SUPPLEMENT NO. 13
VOLUMES I and II
January 2026

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement is up-to-date at this time through:

Ordinance No. 5539, adopted December 8, 2025.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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TC:5—TC:40	TC:5—TC:40.3
TC:46.1—TC:60	TC:47—TC:60.5
TC:78.1—TC:82	TC:79—TC:82
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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HRC:15—HRC:19	HRC:15—HRC:19
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1:7—1:13	1:7—1:13
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3:1, 3:2	3:1, 3:2
3:13—3:16	3:13—3:16.2
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8:1, 8:2	8:1, 8:2
8:8.1—8:22.1	8:9—8:22.6
8:29—8:38	8:29—8:38
8:47—8:56.1	8:47—8:56
8:65—8:74.2	8:65—8:74.3
9:9—9:20	9:9—9:22
10:1—10:10	10:1—10:10.2
10:17—10:20	10:17—10:20.2
11:11—11:14	11:11—11:14.3
12:3—12:22	12:3—12:25
13:1, 13:2	13:1, 13:2
13:9—13:15	13:9—13:15
16:5—16:10	16:5—16:10.1
18:13—18:17	18:13—18:17
18:25, 18:26	18:25—18:26.1
18:33—18:38	18:33—18:37

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21.2:1—21.2:3	21.2:1—21.2:3
21.3:1—21.3:3	21.3:1—21.3:4
22:5—22:9	22:5—22:9
25:44.1—25:52	25:45—25:52.2
25:67—25:84.11	25:67—25:84.11
30:1—30:4.2	30:1—30:4
30.1:1—30.1:6	30.1:1—30.1:4
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SUPPLEMENT NO. 12
VOLUMES I and II
December 2024

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement is up-to-date at this time through:

Ordinance No. 5458, adopted November 25, 2024.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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11:1—11:8	11:1—11:8
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25:63—25:82	25:63—25:82.1
28:1	28:1
31:1—31:3	31:1—31:7
CCT:41	CCT:41
CDi:1—CDi:184	CDi:1—CDi:184

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SUPPLEMENT NO. 11
VOLUMES I and II
January 2024

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement is up-to-date at this time through:

Ordinance No. 5411, adopted November 27, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
TC:30.1—TC:32	TC:31—TC:32.1
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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Remove Old Pages	*Insert New Pages*
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25:119	25:119—25:126
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SUPPLEMENT NO. 10
VOLUMES I and II
December 2022

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement is up-to-date at this time through:

Ordinance No. 5375, adopted October 31, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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21.2:1—21.2:3	21.2:1—21.2:3
21.3:1—21.3:3	21.3:1—21.3:3
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SUPPLEMENT NO. 9
VOLUMES I and II
December 2021

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement is up-to-date at this time through:

Ordinance No. 5327, enacted November 29, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title page	Title page
TC:10.1—TC:12	TC:11—TC:12.1
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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25:65—25:84	25:65—25:84.11
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CDi:15—CDi:18.1	CDi:15—CDi:18.1
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SUPPLEMENT NO. 8
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December 2020

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement is up-to-date at this time through:

Ordinance No. 5283, enacted November 16, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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TC:20.1—TC:26	TC:21—TC:26
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 7
VOLUMES I and II
December 2019

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement is up-to-date at this time through:

Ordinance No. 5238, enacted October 21, 2019.

See the Code Comparative Table for further information.

Included in the Charter is:

Petition, enacted November 6, 2018.

See the Charter Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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SUPPLEMENT NO. 6
VOLUMES I and II
December 2018

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement is up-to-date at this time through:

Ordinance No. 5179, enacted November 19, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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SUPPLEMENT NO. 5
VOLUMES I and II
December 2017

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement is up-to-date at this time through:

Ordinance No. 5121, enacted December 4, 2017.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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SUPPLEMENT NO. 4
VOLUMES I and II
January 2017

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5074, enacted December 19, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Title page	Title page
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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7:5—7:11	7:5—7:11
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8:35, 8:36	8:35—8:36.1
8:75—8:78	8:75—8:78
9:9—9:16	9:9—9:18
13:31—13:34.2	13:31—13:34.1
14:1—14:3	14:1—14:3
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SUPPLEMENT NO. 3
VOLUMES I and II
December 2015

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 5008, enacted October 26, 2015.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 2
VOLUMES I and II
December 2014

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4948, enacted November 24, 2014.

See the Code Comparative Table for further information.

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SUPPLEMENT NO. 1
July 2014

FARGO MUNICIPAL CODE

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 4915, enacted May 12, 2014.

See the Code Comparative Table for further information.

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PREFACE

This Code constitutes a complete publication of the general and permanent ordinances of the City of Fargo, North Dakota.

Source materials used in the preparation of the Code were the original Code prepared by the office of the city attorney, and ordinances subsequently adopted by the City of Fargo. The source of each section is included in the history note appearing at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the original Code. By use of the comparative table appearing in the back of this Code, the reader can locate any section of the Fargo Municipal Code, as supplemented, and any subsequent ordinance included therein.

Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the index itself which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up to date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up to date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of Dennis Sinnett, Vice President, Stephanie Benesh, Editor, and April McDermid, Proofreader, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mr. Erik R. Johnson, City Attorney, and Ms. Jackie Faith, Secretary to the City Attorney, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

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Checklist of Up-to-Date Pages

(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Municipal Code will be able to gain a more complete picture of the Code's historical evolution.

Ord./Res. No.	Date Adopted	Included/ Omitted	Supplement No.
Supp. No. 1			
4866	7-22-2013	Omitted	1
4867	7-22-2013	Omitted	1
4868	7-22-2013	Omitted	1
4869	7-22-2013	Omitted	1
4870	8- 5-2013	Included	1
4871	8-19-2013	Included	1
4872	8-19-2013	Included	1
4873	8-19-2013	Included	1
4874	8-19-2013	Included	1
4875	8-19-2013	Included	1
4876	8-19-2013	Included	1
4877	8-19-2013	Included	1
4878	8-19-2013	Omitted	1
4879	8-19-2013	Omitted	1
4880	8-19-2013	Omitted	1
4881	8-19-2013	Included	1
4882	8-19-2013	Included	1
4883	9- 3-2013	Omitted	1
4884	9-16-2013	Included	1
4885	9-16-2013	Included	1
4886	9-16-2013	Omitted	1
4887	9-16-2013	Omitted	1
4888	9-30-2013	Omitted	1
4889	10-14-2013	Included	1
4890	10-14-2013	Included	1
4891	10-14-2013	Omitted	1
4892	10-14-2013	Omitted	1
4893	11-12-2013	Omitted	1
4894	11-12-2013	Omitted	1
4895	11-12-2013	Included	1

Ord./Res. No.	Date Adopted	Included/ Omitted	Supplement No.
4896	11-25-2013	Included	1
4897	11-25-2013	Included	1
4898	12- 9-2013	Included	1
4899	12-23-2013	Omitted	1
4900	12-23-2013	Omitted	1
4901	12-23-2013	Omitted	1
4902	1- 6-2014	Included	1
4903	1- 6-2014	Included	1
4904	1-20-2014	Omitted	1
4905	1-20-2014	Omitted	1
4906	3- 3-2014	Omitted	1
4907	3-31-2014	Omitted	1
4908	3-31-2014	Omitted	1
4909	4-14-2014	Included	1
4910	4-14-2014	Omitted	1
4911	4-14-2014	Omitted	1
4912	4-28-2014	Included	1
4913	4-14-2014	Included	1
4914	4-28-2014	Included	1
4915	5-12-2014	Included	1
Supp. No. 2			
4916	5-27-2014	Omitted	2
4917	6- 9-2014	Omitted	2
4918	6-23-2014	Included	2
4919	7- 7-2014	Included	2
4920	7- 7-2014	Omitted	2
4921	7- 7-2014	Omitted	2
4922	7- 7-2014	Omitted	2
4923	7-21-2014	Included	2
4924	7-21-2014	Omitted	2
4925	7-21-2014	Omitted	2
4926	8- 4-2014	Included	2
4927	8- 4-2014	Included	2
4928	8-18-2014	Omitted	2
4929	8-18-2014	Omitted	2
4930	8-18-2014	Omitted	2
4931	8-18-2014	Omitted	2
4932	8-18-2014	Omitted	2
4933	9- 2-2014	Omitted	2
4934	9- 2-2014	Omitted	2
4935	9-15-2014	Omitted	2
4936	9-15-2014	Omitted	2
4937	9-15-2014	Omitted	2
4938	9-29-2014	Included	2
4939	9-29-2014	Omitted	2
4940	9-29-2014	Omitted	2

Ord./Res. No.	Date Adopted	Included/ Omitted	Supplement No.
4941	9-29-2014	Omitted	2
4942	10-13-2014	Omitted	2
4943	10-13-2014	Omitted	2
4944	10-13-2014	Omitted	2
4945	10-27-2014	Included	2
4946	10-27-2014	Included	2
4947	10-27-2014	Included	2
4948	11-24-2014	Included	2
4949	11-24-2014	Omitted	2
4950	11-24-2014	Omitted	2
Supp. No. 3			
4951	12- 8-2014	Included	3
4952	12- 8-2014	Included	3
4953	12-22-2014	Included	3
4954	12-22-2014	Included	3
4955	12-22-2014	Included	3
4956	12-22-2014	Included	3
4957	12-22-2014	Omitted	3
4958	12-22-2014	Omitted	3
4959	12-22-2014	Omitted	3
4960	1- 5-2015	Included	3
4961	1-19-2015	Omitted	3
4962	1-19-2015	Omitted	3
4963	2- 2-2015	Omitted	3
4964	2- 2-2015	Included	3
4965	2-17-2015	Included	3
4966	2-17-2015	Included	3
4967	2-17-2015	Omitted	3
4968	3- 2-2015	Omitted	3
4969	3- 2-2015	Included	3
4970	3- 2-2015	Included	3
4971	3- 2-2015	Included	3
4972	3-16-2015	Included	3
4973	3-16-2015	Included	3
4974	3-16-2015	Omitted	3
4975	3-16-2015	Omitted	3
4976	3-16-2015	Omitted	3
4977	3-16-2015	Omitted	3
4978	3-16-2015	Omitted	3
(Res.)	1- 5-2015	Included	3
4979	4-13-2015	Included	3
4980	4-27-2015	Omitted	3
4981	4-27-2015	Included	3
4982	5-11-2015	Omitted	3
4983	6- 8-2015	Included	3
4984	6- 8-2015	Included	3

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4985	6- 8-2015	Included	3
4986	6- 8-2015	Included	3
4987	6- 8-2015	Included	3
4988	6- 8-2015	Included	3
4989	6-22-2015	Omitted	3
4990	6-22-2015	Omitted	3
4991	6-22-2015	Omitted	3
4992	7- 6-2015	Included	3
4993	7- 6-2015	Omitted	3
4994	7- 6-2015	Omitted	3
4995	7- 6-2015	Omitted	3
4996	8- 3-2015	Omitted	3
4997	8-17-2015	Included	3
4998	8-17-2015	Included	3
4999	8-17-2015	Omitted	3
5000	9-14-2015	Included	3
5001	9-14-2015	Included	3
5002	9-14-2015	Included	3
5003	9-14-2015	Omitted	3
5004	9-14-2015	Omitted	3
5005	10-12-2015	Omitted	3
5006	10-12-2015	Omitted	3
5007	10-12-2015	Omitted	3
5008	10-26-2015	Included	3
5009	11- 9-2015	Omitted	3
Supp. No. 4			
4581	3-12-2007	Included	4
4660	5- 5-2008	Included	4
5010	11-23-2015	Included	4
5011	11-23-2015	Included	4
5012	11-23-2015	Omitted	4
5013	1- 4-2016	Included	4
5014	1- 4-2016	Omitted	4
5015	1- 4-2016	Omitted	4
5016	1- 4-2016	Included	4
5017	1- 4-2016	Included	4
5018	1-19-2016	Omitted	4
5019	1-19-2016	Omitted	4
5020	1-19-2016	Omitted	4
5021	2- 1-2016	Omitted	4
5022	2- 1-2016	Omitted	4
5023	2-29-2016	Omitted	4
5024	2-29-2016	Omitted	4
5025	2-29-2016	Omitted	4
5026	3-14-2016	Omitted	4
5027	3-14-2016	Omitted	4

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5028	3-14-2016	Omitted	4
5029	4-11-2016	Omitted	4
5030	4-11-2016	Omitted	4
5031	4-11-2016	Omitted	4
5032	4-11-2016	Omitted	4
5033	4-11-2016	Omitted	4
5034	4-25-2016	Omitted	4
5035	6- 6-2016	Included	4
5036	6- 6-2016	Included	4
5037	6- 6-2016	Included	4
5038	6-20-2016	Omitted	4
5039	6-20-2016	Omitted	4
5040	6-20-2016	Omitted	4
5041	7- 5-2016	Omitted	4
5042	7-18-2016	Omitted	4
5043	7-18-2016	Included	4
5044	7-18-2016	Omitted	4
5045	8- 1-2016	Omitted	4
5046	8- 1-2016	Omitted	4
5047	8- 1-2016	Omitted	4
5048	8-15-2016	Included	4
5049	8-15-2016	Included	4
5050	8-15-2016	Included	4
5051	8-15-2016	Included	4
5052	8-15-2016	Included	4
5053	8-15-2016	Included	4
5054	8-15-2016	Included	4
5055	8-15-2016	Included	4
5056	8-15-2016	Omitted	4
5057	8-15-2016	Omitted	4
5058	8-15-2016	Omitted	4
5059	8-29-2016	Included	4
5060	8-29-2016	Included	4
5061	8-29-2016	Included	4
5062	9-12-2016	Omitted	4
5063	9-26-2016	Omitted	4
5064	9-26-2016	Omitted	4
5065	10-10-2016	Omitted	4
5066	10-10-2016	Omitted	4
5067	10-24-2016	Omitted	4
5068	11- 7-2016	Included	4
5069	11-21-2016	Included	4
5070	12- 5-2016	Included	4
5071	12- 5-2016	Omitted	4
5072	12-19-2016	Included	4
5073	12-19-2016	Included	4

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5074	12-19-2016	Omitted	4
Supp. No. 5			
Charter Res.	8-15-2016	Included	5
5075	1-17-2017	Omitted	5
5076	1-17-2017	Omitted	5
5077	1-17-2017	Included	5
5078	1-30-2017	Included	5
5079	1-30-2017	Omitted	5
5080	2-13-2017	Included	5
5081	2-13-2017	Included	5
5082	2-13-2017	Omitted	5
5083	2-13-2017	Omitted	5
5084	2-13-2017	Omitted	5
5085	2-27-2017	Included	5
5086	3-13-2017	Omitted	5
5087	3-27-2017	Omitted	5
5088	3-27-2017	Omitted	5
5089	4-10-2017	Included	5
5090	4-24-2017	Omitted	5
5091	4-24-2017	Included	5
5092	4-24-2017	Included	5
5093	5- 8-2017	Omitted	5
5094	5-22-2017	Omitted	5
5095	5-22-2017	Omitted	5
5096	5-22-2017	Omitted	5
5097	5-22-2017	Omitted	5
5098	6-19-2017	Omitted	5
5099	7- 3-2017	Omitted	5
5100	7- 3-2017	Omitted	5
5101	7-17-2017	Omitted	5
5102	7-17-2017	Omitted	5
5103	7-17-2017	Omitted	5
5104	7-31-2017	Omitted	5
5105	7-31-2017	Included	5
5106	8-14-2017	Omitted	5
5107	8-14-2017	Omitted	5
5108	8-28-2017	Omitted	5
5109	9-11-2017	Included	5
5110	9-11-2017	Included	5
5111	9-11-2017	Included	5
5112	9-11-2017	Omitted	5
5113	9-25-2017	Included	5
5114	9-25-2017	Omitted	5
5115	9-25-2017	Omitted	5
5116	10- 9-2017	Included	5
5117	10- 9-2017	Omitted	5

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5118	11- 6-2017	Omitted	5
5120	12- 4-2017	Included	5
5121	12- 4-2017	Included	5
Supp. No. 6			
5122	1-16-2018	Included	6
5123	1-16-2018	Omitted	6
5124	1-16-2018	Omitted	6
5125	1-16-2018	Included	6
5126	1-16-2018	Omitted	6
5127	1-16-2018	Omitted	6
5128	1-16-2018	Omitted	6
5129	1-29-2018	Included	6
5130	1-29-2018	Omitted	6
5131	1-29-2018	Omitted	6
5132	2-12-2018	Included	6
5133	2-12-2018	Included	6
5134	3-12-2018	Omitted	6
5135	3-26-2018	Included	6
5136	3-26-2018	Included	6
5137	3-26-2018	Omitted	6
5138	3-26-2018	Omitted	6
5139	3-26-2018	Omitted	6
5140	4- 9-2018	Omitted	6
5141	5- 7-2018	Included	6
5142	5- 7-2018	Omitted	6
5143	5-21-2018	Included	6
5144	6- 4-2018	Included	6
5145	6-18-2018	Included	6
5146	6-18-2018	Omitted	6
5147	6-18-2018	Omitted	6
5148	6-18-2018	Omitted	6
5149	6-18-2018	Included	6
5150	7- 2-2018	Included	6
5151	7- 2-2018	Included	6
5152	7- 2-2018	Omitted	6
5153	7-16-2018	Omitted	6
5154	7-30-2018	Omitted	6
5156	8-13-2018	Omitted	6
5157	8-13-2018	Omitted	6
5158	8-13-2018	Omitted	6
5159	8-13-2018	Omitted	6
5160	8-13-2018	Omitted	6
5161	8-27-2018	Omitted	6
5162	9-10-2018	Omitted	6
5163	9-10-2018	Included	6
5164	9-10-2018	Included	6

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5165	9-24-2018	Included	6
5166	9-24-2018	Included	6
5167	9-24-2018	Omitted	6
5168	10- 8-2018	Included	6
5169	10- 8-2018	Included	6
5170	10- 8-2018	Included	6
5171	10-22-2018	Included	6
5172	10-22-2018	Included	6
5173	10-22-2018	Included	6
5174	10-22-2018	Omitted	6
5175	10-22-2018	Omitted	6
5176	11- 5-2018	Included	6
5177	11- 5-2018	Included	6
5178	11-19-2018	Omitted	6
5179	11-19-2018	Included	6
Supp. No. 7			
5180	12- 3-2018	Included	7
5181	12- 3-2018	Included	7
5182	12-17-2018	Included	7
5183	12-17-2018	Included	7
5184	12-17-2018	Omitted	7
5185	12-17-2018	Omitted	7
5186	1-14-2019	Included	7
5187	1-14-2019	Included	7
5188	1-14-2019	Included	7
5189	1-14-2019	Omitted	7
5190	1-28-2019	Included	7
5191	1-28-2019	Included	7
5192	2-11-2019	Omitted	7
5193	2-25-2019	Included	7
5194	2-25-2019	Omitted	7
5195	2-25-2019	Omitted	7
5196	2-25-2019	Omitted	7
(Petition)	11- 6-2018	Included	7
5197	3-11-2019	Omitted	7
5198	3-25-2019	Omitted	7
5199	4- 8-2019	Omitted	7
5200	4- 8-2019	Omitted	7
5201	4-22-2019	Omitted	7
5202	4-22-2019	Omitted	7
5204	5-20-2019	Included	7
5205	5-20-2019	Omitted	7
5206	6-17-2019	Omitted	7
5207	6-17-2019	Omitted	7
5208	7- 1-2019	Included	7
5209	7-15-2019	Omitted	7

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5210	7-29-2019	Included	7
5211	7-29-2019	Included	7
5212	7-29-2019	Included	7
5213	7-29-2019	Omitted	7
5214	7-29-2019	Omitted	7
5215	8-12-2019	Included	7
5216	8-12-2019	Included	7
5217	8-12-2019	Included	7
5218	8-12-2019	Included	7
5219	8-12-2019	Included	7
5220	8-12-2019	Included	7
5221	8-12-2019	Included	7
5222	8-12-2019	Included	7
5223	8-26-2019	Omitted	7
5224	8-26-2019	Included	7
5225	8-26-2019	Included	7
5226	9- 9-2019	Included	7
5227	9- 9-2019	Omitted	7
5228	9-23-2019	Included	7
5229	9-23-2019	Omitted	7
5230	9-23-2019	Omitted	7
5231	10- 7-2019	Included	7
5232	10- 7-2019	Included	7
5233	10-21-2019	Omitted	7
5234	10-21-2019	Omitted	7
5235	10-21-2019	Included	7
5236	10-21-2019	Included	7
5237	10-21-2019	Included	7
5238	10-21-2019	Included	7
5239	11-18-2019	Omitted	7
5203	4-22-2019	Included	8
5240	12- 2-2019	Included	8
5241	12- 2-2019	Omitted	8
5242	12-30-2019	Included	8
5243	12-30-2019	Omitted	8
5244	1-27-2020	Omitted	8
5245	3-23-2020	Omitted	8
5246	3-23-2020	Omitted	8
5247	4- 6-2020	Included	8
5248	4-20-2020	Omitted	8
5249	6- 1-2020	Omitted	8
5250	6- 1-2020	Omitted	8
5251	6-15-2020	Omitted	8
5252	6-15-2020	Omitted	8
5253	6-15-2020	Omitted	8
5254	6-15-2020	Omitted	8

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5255	6-15-2020	Omitted	8
5256	6-15-2020	Omitted	8
5257	6-15-2020	Omitted	8
5258	6-15-2020	Omitted	8
5259	7-13-2020	Omitted	8
5260	7-13-2020	Omitted	8
5261	7-27-2020	Included	8
5262	7-27-2020	Omitted	8
5263	7-27-2020	Omitted	8
5264	7-27-2020	Omitted	8
5265	7-27-2020	Omitted	8
5266	8-24-2020	Omitted	8
5267	8-24-2020	Omitted	8
5268	8-24-2020	Included	8
5269	8-24-2020	Omitted	8
5270	8-24-2020	Omitted	8
5271	9- 8-2020	Omitted	8
5272	9-21-2020	Omitted	8
5273	9-21-2020	Omitted	8
5274	10- 5-2020	Included	8
5275	10- 5-2020	Included	8
5276	10-19-2020	Included	8
5277	10-19-2020	Omitted	8
5278	10-19-2020	Omitted	8
5279	11- 2-2020	Included	8
5280	11-16-2020	Omitted	8
5281	11-16-2020	Included	8
5282	11-16-2020	Omitted	8
5283	11-16-2020	Included	8
Supp. No. 9			
5284	11-30-2020	Included	9
5285	1-11-2021	Omitted	9
5286	1-11-2021	Omitted	9
5287	1-25-2021	Omitted	9
5288	3- 8-2021	Omitted	9
5289	3-22-2021	Omitted	9
5290	3-22-2021	Omitted	9
5291	3-22-2021	Included	9
5292	4- 5-2021	Included	9
5293	4- 5-2021	Omitted	9
5294	4-19-2021	Included	9
5295	5- 3-2021	Omitted	9
5296	5- 3-2021	Omitted	9
5297	5- 3-2021	Omitted	9
5298	5-17-2021	Omitted	9
5299	6- 1-2021	Omitted	9

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5300	6- 1-2021	Omitted	9
5301	6- 1-2021	Omitted	9
5302	6- 1-2021	Omitted	9
5303	6-28-2021	Included	9
5304	6-28-2021	Omitted	9
5305	6-28-2021	Included	9
5306	6-28-2021	Included	9
5307	6-28-2021	Included	9
5308	7-12-2021	Omitted	9
5309	7-12-2021	Included	9
5310	7-12-2021	Included	9
5311	7-26-2021	Included	9
5312	7-26-2021	Included	9
5313	7-26-2021	Included	9
5314	7-26-2021	Omitted	9
5315	7-26-2021	Omitted	9
5316	9-20-2021	Omitted	9
5317	9-20-2021	Omitted	9
5318	9-20-2021	Included	9
5319	9-20-2021	Included	9
5320	10- 4-2021	Omitted	9
5321	11- 1-2021	Included	9
5322	11-15-2021	Omitted	9
5323	11-15-2021	Included	9
5325	11-15-2021	Omitted	9
5326	11-29-2021	Omitted	9
5327	11-29-2021	Included	9
Supp. No. 10			
5328	12-13-2021	Omitted	10
5329	12-13-2021	Omitted	10
5330	12-13-2021	Included	10
5331	1-10-2022	Omitted	10
5332	1-10-2022	Omitted	10
5333	1-10-2022	Omitted	10
5334	1-24-2022	Omitted	10
5335	1-24-2022	Included	10
5336	2- 7-2022	Omitted	10
5337	2-22-2022	Included	10
5338	2-22-2022	Included	10
5339	2-22-2022	Included	10
5340	3- 7-2022	Omitted	10
5341	3-21-2022	Omitted	10
5342	3-21-2022	Included	10
5343	4- 4-2022	Omitted	10
5344	4-18-2022	Omitted	10
5345	4-18-2022	Omitted	10

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5346	5-31-2022	Included	10
5347	5-31-2022	Included	10
5348	5-31-2022	Included	10
5349	5-31-2022	Included	10
5350	5-31-2022	Included	10
5351	5-31-2022	Included	10
5352	5-31-2022	Included	10
5353	5-31-2022	Included	10
5354	5-31-2022	Included	10
5355	5-31-2022	Included	10
5356	5-31-2022	Omitted	10
5357	6-13-2022	Included	10
5358	6-13-2022	Omitted	10
5359	6-13-2022	Omitted	10
5360	6-13-2022	Omitted	10
5361	6-13-2022	Omitted	10
5362	6-13-2022	Omitted	10
5363	6-13-2022	Included	10
5364	6-27-2022	Omitted	10
Resolution	3-21-2022	Included	10
5366	8- 8-2022	Omitted	10
5367	8-22-2022	Omitted	10
5368	8-22-2022	Omitted	10
5369	9- 6-2022	Omitted	10
5370	9- 6-2022	Omitted	10
5372	10- 3-2022	Included	10
5373	10- 3-2022	Included	10
5374	10-17-2022	Included	10
5375	10-31-2022	Included	10
5376	11-14-2022	Omitted	10
5377	11-28-2022	Omitted	10
Supp. No. 11			
5378	12-27-2022	Included	11
5379	12-27-2022	Included	11
5380	2-21-2023	Included	11
5381	2-21-2023	Included	11
5382	2-21-2023	Included	11
5383	3- 6-2023	Omitted	11
5384	4-17-2023	Included	11
5385	4-17-2023	Omitted	11
5386	4-17-2023	Omitted	11
5387	5- 1-2023	Included	11
5388	5-15-2023	Included	11
5389	5-15-2023	Included	11
5390	5-30-2023	Included	11
5391	5-30-2023	Omitted	11

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5392	5-30-2023	Included	11
5393	6-12-2023	Included	11
5394	6-26-2023	Included	11
5324	11-15-2021	Included	11
5365	7-11-2022	Included	11
5395	7-10-2023	Included	11
5396	7-24-2023	Omitted	11
5397	7-24-2023	Included	11
5398	7-24-2023	Included	11
5399	8- 7-2023	Included	11
5400	9- 5-2023	Omitted	11
5401	9- 5-2023	Omitted	11
5402	10- 2-2023	Included	11
5403	10-16-2023	Omitted	11
5404	10-16-2023	Omitted	11
5405	10-30-2023	Omitted	11
5406	11-13-2023	Included	11
5407	11-13-2023	Included	11
5408	11-13-2023	Included	11
5409	11-27-2023	Included	11
5410	11-27-2023	Included	11
5411	11-27-2023	Included	11
5412	12-11-2023	Omitted	11
5413	12-11-2023	Omitted	11
5414	12-11-2023	Omitted	11
5415	12-11-2023	Omitted	11
Supp. No. 12			
5416	12-26-2023	Included	12
5417	12-26-2023	Included	12
5418	1- 8-2024	Included	12
5419	1- 8-2024	Included	12
5420	1-22-2024	Omitted	12
5421	1-22-2024	Omitted	12
5422	2- 5-2024	Omitted	12
5423	2-20-2024	Omitted	12
5424	2-20-2024	Omitted	12
5425	3- 4-2024	Included	12
5426	3- 4-2024	Omitted	12
5427	4- 1-2024	Omitted	12
5428	4-15-2024	Included	12
5429	4-15-2024	Omitted	12
5430	4-29-2024	Omitted	12
5431	5-28-2024	Included	12
5432	5-28-2024	Included	12
5433	5-28-2024	Included	12
5434	5-28-2024	Included	12

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5435	6-10-2024	Included	12
5436	6-10-2024	Included	12
5437	6-10-2024	Included	12
5438	6-10-2024	Included	12
5439	6-10-2024	Included	12
5440	6-10-2024	Included	12
5441	6-10-2024	Included	12
5442	7- 8-2024	Omitted	12
5443	7- 8-2024	Omitted	12
5444	7- 8-2024	Omitted	12
5445	7-22-2024	Omitted	12
5446	8-19-2024	Omitted	12
5447	8-19-2024	Omitted	12
5448	9- 3-2024	Included	12
5449	9- 3-2024	Omitted	12
5450	9- 3-2024	Included	12
5451	9-30-2024	Omitted	12
5452	9-30-2024	Omitted	12
5453	9-30-2024	Omitted	12
5454	10-14-2024	Omitted	12
5455	10-14-2024	Omitted	12
5456	11-12-2024	Omitted	12
5457	11-12-2024	Omitted	12
5458	11-25-2024	Included	12
Supplement 13			
5459	12- 9-2024	Included	13
5460	1- 8-2025	Omitted	13
5461	1- 8-2025	Omitted	13
5462	1- 8-2025	Included	13
5463	1-21-2025	Omitted	13
5464	2- 3-2025	Omitted	13
5465	2-18-2025	Included	13
5466	2-18-2025	Included	13
5467	2-18-2025	Omitted	13
5468	3- 3-2025	Included	13
5469	3- 3-2025	Included	13
5470	3- 3-2025	Omitted	13
5471	4-14-2025	Included	13
5472	4-14-2025	Included	13
Res. of	8- 5-2024	Included	13
5473	4-28-2025	Included	13
5474	4-28-2025	Included	13
5475	4-28-2025	Omitted	13
5476	4-28-2025	Omitted	13
5477	4-28-2025	Omitted	13
5478	6- 9-2025	Included	13

Ord./Res. No.	Date Adopted	Included/ Omitted	Supplement No.
5479	6- 9-2025	Included	13
5480	6- 9-2025	Included	13
5481	6- 9-2025	Included	13
5482	6- 9-2025	Included	13
5483	6- 9-2025	Included	13
5484	6-23-2025	Included	13
5485	6-23-2025	Included	13
5486	6-23-2025	Included	13
5487	6-23-2025	Included	13
5488	6-23-2025	Included	13
5489	6-23-2025	Included	13
5490	6-23-2025	Included	13
5491	6-23-2025	Included	13
5492	6-23-2025	Included	13
5493	6-23-2025	Included	13
5494	7-21-2025	Included	13
5495	7-30-2025	Omitted	13
5496	7-21-2025	Included	13
5497	7-21-2025	Included	13
5498	7-21-2025	Included	13
5499	7-21-2025	Included	13
5500	7-30-2025	Included	13
5501	7-21-2025	Included	13
5502	7-21-2025	Included	13
5503	7-21-2025	Included	13
5504	7-21-2025	Included	13
5505	7-21-2025	Included	13
5506	7-21-2025	Included	13
5507	7-21-2025	Included	13
5508	7-21-2025	Included	13
5509	7-21-2025	Included	13
5510	7-30-2025	Omitted	13
5511	8- 4-2025	Included	13
5512	8- 4-2025	Omitted	13
5513	8-18-2025	Included	13
5514	8-18-2025	Included	13
5515	8-18-2025	Included	13
5516	8-18-2025	Included	13
5517	8-18-2025	Included	13
5518	8-18-2025	Included	13
5519	8-18-2025	Omitted	13
5520	8-18-2025	Omitted	13
5521	8-18-2025	Included	13
5522	8-18-2025	Included	13
5523	9- 2-2025	Included	13
5524	9-15-2025	Included	13

Ord./Res. No.	Date Adopted	Included/ Omitted	Supplement No.
5525	9-15-2025	Included	13
5526	9-15-2025	Included	13
5527	9-15-2025	Omitted	13
5528	10-13-2025	Omitted	13
5529	10-13-2025	Omitted	13
5530	10-27-2025	Included	13
5531	10-27-2025	Included	13
5532	10-27-2025	Included	13
5533	10-27-2025	Included	13
5534	11-10-2025	Omitted	13
5535	11-20-2025	Included	13
5536	11-24-2025	Omitted	13
5537	11-24-2025	Omitted	13
5538	12- 8-2025	Included	13
5539	12- 8-2025	Included	13

HOME RULE CHARTER

CITY OF FARGO, NORTH DAKOTA

Article 1 - Incorporation

The inhabitants of the city of Fargo, within the corporate limits as now established or as hereafter established in the manner provided by law, shall continue to be a municipal body politic and corporate in perpetuity, under the name of "City of Fargo".

Article 2 - Governing body and mayor

A. Subject to the limitations imposed by the constitution of the United States of America, the constitution of the state of North Dakota, state law, and this charter, all powers of the city shall be vested in the elected governing body. The elected governing body shall enact ordinances, adopt annual and long-range budgets, raise revenue, determine policies and prescribe the functions of government to be performed by the city's elected and appointed officials under the authority of this charter.

1. The Fargo city government shall operate with the commission form of government. The governing body shall consist of the mayor and four commissioners, forming the board of city commissioners. The mayor is the presiding officer of the commission and the city's chief executive officer. The mayor may participate in all respects in commission action.

2. The mayor and all other members of the governing body shall hold office for four years and until a successor has been duly elected and qualified. To qualify after election, the governing board members shall take the following oath or affirmation, filing a signed copy of same with the city auditor.

> "I do solemnly swear (or affirm) that I will support the constitution of the United States, constitution of the state of North Dakota, and the home rule charter of the city of Fargo, so help me God (if an oath) under the pains and penalties of perjury (if an affirmation)".

3. The governing body shall by ordinance, resolution or other appropriate action take such steps as may be necessary to make effective the provisions of this home rule charter.

4. Each member of the governing body shall act as the governing body's representative in examining and reporting on the operations and performance of the major city departments. The individual assignments will be proposed by the mayor and approved by the governing body.

5. At the first meeting of the new governing body after each biennial election, the governing body shall elect one of its members as deputy mayor. The deputy mayor shall perform all of the duties of the office of mayor in the absence or inability of the mayor to act. If the mayor's office becomes vacant, the deputy mayor shall become the acting mayor until the vacancy is filled as provided for in this charter.

6. The governing body shall have the sole authority to pass and adopt ordinances, rules and regulations concerning the organization, management and operation of all departments of the city and other agencies created by it for the administration of city affairs.

7. A member of the governing body may serve as a participating member on any board, commission, or other governmental units as may be determined by the governing body. Appointments to these entities shall be made by the mayor and confirmed by the governing body.

8. The governing body shall determine the annual salaries paid to each of its members, including the mayor. The salary levels shall be determined as part of the annual budget.

9. Each elected official before entering the duties of office shall furnish bond in the penal sum which is required by North Dakota state law.

10. The mayor and each of the commissioners shall be elected by all the voters in the city, and shall serve four-year terms. The mayor will be elected in the regular 1986 city election and every four years thereafter. The mayor's term will start such day as is specified by city ordinance.

11. Two city commissioners shall be elected in the 1986 city election and two in the 1988 city election. The terms shall begin on such day as is specified by city ordinance following each election and shall expire on such day as is specified by city ordinance four years thereafter.

12. Candidates for the governing body must be qualified electors of the city of Fargo, and must have been in continuous residence in the city for at least six months prior to filing their nomination papers.

13. Any elector desiring to become a candidate for the governing body shall file with the city auditor a statement of such candidacy. The filing must meet the deadline required by law. Each filing shall be accompanied by a filing fee of one hundred dollars ($100), or in lieu thereof, by a petition signed by 300 qualified electors of the city.

14. The regular city election shall be held in every even-numbered year on the date specified by city ordinance. The governing body shall be the judge of the election and qualifications of its own members.

15. Every resident of Fargo who is qualified to vote in North Dakota general elections is qualified to vote in Fargo city elections. The governing body shall establish all the necessary election procedures by ordinance.

16. Members of the governing body shall be residents of the city of Fargo and shall surrender their office if such residency is terminated. No member of the governing body shall hold a position of remuneration in the employment of the city or any of its agencies or utilities.

17. Whenever it is necessary for the more efficient supervision and direction of city affairs, the governing body may summon and compel the attendance of witnesses and the production of books and papers, including computer information, before it. The governing body may cite reluctant witnesses for contempt, and may punish contempt with the same fines and penalties as the county judge may impose for contempt of county court.

18. Any member of the governing board may resign by filing a written resignation with the city auditor. When a vacancy occurs or whenever a resignation is submitted pursuant to section 12 of this Article, the governing body must call a special election to fill such vacancy for the unexpired term unless a city-wide election occurs within the next six months. In that case, the governing body may fill the position by appointment until the vacancy is filled by election.

19. The governing body shall meet in regular sessions at such time as the governing body may establish. Special meetings may be called by the mayor or any two members of the governing body to consider matters listed in the call of such meeting. Written notice of any special meeting shall be given to each member of the governing body.

B. As the elected head of the city of Fargo, the mayor shall represent or designate a representative at city functions and at meetings, conferences and negotiations relating to policy matters with other units of government and legislative bodies. The mayor shall represent the city in negotiations with individuals and private or public enterprises when cultural or economic improvement of the city of Fargo may be involved.

1. The mayor shall be the executive officer of the city and shall see that all the laws of the city are enforced. The mayor shall have the right to vote as a member of the board, but shall have no veto power.

2. The procedure for making appointments of members to all boards, commissions and other agencies shall be established by city ordinance.

3. The mayor shall cause to be prepared and shall present to the governing body on or before September 1 of each year, the proposed budget for the

ensuing fiscal year, which starts on January 1 and ends on December 31. The budget shall be in a form as permitted by state law. The proposed budget shall include all maintenance and operating expenses, all wages and salaries, all carryover cash reserves anticipated from the current fiscal year, and all anticipated revenues from city taxes and fees and all other sources of revenue, and all debt retirement requirements.

4. The proposed budget may establish reserves for equipment replacement and other capital improvement projects.

5. The proposed budget shall include the total anticipated revenue of all city-operated utilities, and the allotment of that revenue to the city treasury, to utility operating expenses, to debt retirement, to capital improvements and to reserves.

6. The mayor in his budget message shall include all long-range plans, in place or anticipated, for major capital improvement and investment programs. The proposed budget shall contain a review of the economic, physical and social conditions and needs of the city, and its long-range plans for cultural and economic development.

(Res. of 1-5-2015, appr. 4-28-2015)

Editor's note—A resolution adopted Jan. 5, 2015, proposed an amendment to remove the requirement that a city commissioner resign before becoming a candidate for the office of mayor, and was approved at a special city election held Apr. 28, 2015.

Article 3 - Powers of city

The city shall have all powers granted to municipal corporations by the constitution and the laws of this state together with all the implied powers necessary to execute such powers. In addition thereto, the city shall have the following powers, which may be implemented by ordinance:

A. To acquire, hold, operate, and dispose of property within or without the corporate limits, and exercise the right of eminent domain for such purposes.

B. To control its finances and fiscal affairs; to appropriate money for its purposes, and make payment of its debts and expenses; to levy and collect taxes, excises, fees, charges, and special assessments for benefits conferred, for its public and proprietary functions, activities, operations, undertakings, and improvements; to contract debts, borrow money, issue bonds, warrants, and other evidences of indebtedness; to establish charges for any city or other services, and to establish debt and mill levy limitations, provided that the mill levies ordered imposed by the governing body on taxable property subject to ad valorem taxation shall not exceed sixty-four mills without first receiving authorization from the voters. All property situated within the city limits shall be subject to ad valorem taxation by

the city except that property which is specifically exempt by the constitution of North Dakota and by ordinances of the city. The foregoing mill levy limitation shall not apply to improvements by special assessments or any mill levies

necessary to provide funds for special assessment deficiencies provided that all real and personal property, in order to be subject to the assessment provisions of this subsection shall be assessed in a uniform manner as prescribed by the state board of equalization and the state supervisor of assessments.

C. To fix the fees, number, terms, conditions, duration, and manner of issuing and revoking licenses in the exercise of its governmental police powers.

D. To provide for city officers, agencies, and employees, their selection, terms, powers, duties, qualifications, and compensation. To provide for change, selection, or creation of its form and structure of government including its governing body, executive officer, and city officers.

E. To provide for city courts, their jurisdiction and powers over ordinance violations, duties, administration, and the selection, qualifications, and compensation of their officers; however, the right of appeal from judgment of such courts shall not be in any way affected.

F. To provide for all matters pertaining to city elections, except as to qualifications of electors.

G. To provide for the adoption, amendment, and repeal of ordinances, resolutions, and regulations to carry out its governmental and proprietary powers and to provide for public health, safety, morals, and welfare, and penalties for a violation thereof.

H. To lay out or vacate streets, alleys, and public grounds, and to provide for the use, operation, and regulation thereof.

I. To define offenses against private persons and property and the public health, safety, morals, and welfare, and provide penalties for violations thereof.

J. To engage in any utility, business, or enterprise permitted by the constitution or not prohibited by statute or to grant and regulate franchises therefor to a private person, firm, or corporation.

K. To provide for zoning, planning, and subdivision of public or private property within the city limits; to provide for such zoning, planning, and subdivision of public or private property outside the city limits as may be permitted by state law.

L. To levy and collect franchise and license taxes for revenue purposes.

M. To exercise in the conduct of its affairs all powers usually exercised by a corporation.

N. To fix the boundary limits of the city and the annexation and de-annexation of territory adjacent to the city except that such power shall be subject to, and shall conform with the state law made and provided.

O. To contract with and receive grants from any other governmental entity or agency, with respect to any local, state, or federal program, project, or works.

P. To impose a retail sales and/or use tax subject to the following limitations:

1. Sales and uses taxed shall be limited to those which are taxed by the State of North Dakota pursuant to Chapters 57-39.2 and 57-40.2 of the North Dakota Century Code.

2. The amount of the tax shall not exceed one-half of one percent of the gross receipts and purchases which are taxed by the State of North Dakota pursuant to Chapters 57-39.2 and 57-40.2, of the North Dakota Century Code, nor shall the tax exceed twelve and 50/100 dollars on any single purchase; provided, that a higher rate of tax may be imposed and collected on sales and uses of less than one dollar and on sales and uses of fractional dollar amounts and the bracket system for the application of the state sales tax set forth in Section 57-39.2-08.2 of the North Dakota Century Code shall be adjusted to incorporate the additional city tax. The retail sales and use tax imposed shall be computed and collected in the same manner provided by law for the collection of the state and use tax.

3. A sales and/or use tax which is imposed pursuant to the authority granted herein shall extend for a period of twenty years from and after January 1, 1989, and end on December 31, 2008.

4. Proceeds of a sales and/or use tax which is imposed pursuant to the authority granted herein shall be utilized for the construction, maintenance, and operation of a multi-purpose dome facility and, with the concurrence of the Board of City Commissioners, functionally related and subordinate facilities, all to be located on or adjacent to the NDSU campus to be used as a center for conventions and/or conferences, musical activities, sports activities, and such other convention, cultural and sports functions as the dome authority, hereinafter created, may deem appropriate. Proceeds from such tax may be used to make direct payment of the costs for such construction, maintenance and operation or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs. From January 1, 1996, through December 31, 2001, such proceeds shall be divided into three separate funds which shall be maintained and utilized as follows:

(a) Construction, maintenance and operation fund -- this fund shall consist of a portion of the total proceeds collected in each

calendar year to be used for construction, maintenance and operation of the dome and related facilities. The amount placed into this fund shall be the greater of; (1) the amount needed to pay the principal and interest on any bonds which may have been sold to finance construction costs of the dome and/or related facilities, plus annual installments of special assessments levied against the dome premises or, (2) 75% of the total proceeds collected in the calendar year.

(b) Escrow fund -- the remaining annual proceeds, up to a maximum of $250,000 per year, together with interest earnings thereon, shall be placed in an escrow account to be retained as a reserve for capital improvements, maintenance and operation of the dome and related facilities. This fund may be utilized only if the funds described in (a) above are insufficient for such payments.

(c) Street improvement fund -- the remainder of annual proceeds collected shall be placed in a fund to be used by the Board of City Commissioners for street improvements in the City of Fargo.

(d) The Board of City Commissioners may, upon formal request of the dome authority and if circumstances so require, redirect funds from the street improvement fund established under (c) above to the dome authority for its use under (a) above.

Provided, that from and after December 31, 2001, until termination of the tax on December 31, 2008, all of the annual funds collected shall be utilized for construction, maintenance and operation of the dome and related facilities with any excess added to the escrow fund to provide for future capital improvements, maintenance and dome operation; and provided further, that after January 1, 2010, any funds remaining in the escrow fund shall be held as a segregated fund which, together with the interest earnings thereon shall be utilized by the dome authority for the construction, operation and maintenance of the dome and related facilities.

5.

(a) The construction, maintenance, and operation of the facility shall be under the control of a dome authority, consisting of seven members appointed for staggered four-year terms by the board of city commissioners as follows:

- One member from a list of nominees provided by the Board of Education of the city of Fargo (the initial appointee shall serve a two-year term, and subsequent appointees a four-year term);

- one member from a list of nominees provided by the Board of Park Commissioners of the city of Fargo (the initial appointee shall serve a two-year term and subsequent appointees a four-year term);

- One member from a list of nominees provided by the Board of County Commissioners of Cass County, North Dakota (the initial appointee to serve a two-year term and subsequent appointees a four-year term);

- Two members from a list of nominees provided by the President of North Dakota State University (the initial appointees shall serve a three-year term and subsequent appointees a four-year term);

- Two members who must be residents of the city of Fargo (to serve four-year terms).

(b) The members of the authority shall select from among themselves a president, vice president, secretary, and treasurer to serve one-year terms of office.

Q. To impose a retail sales and/or use tax subject to the following limitations:

1. Sales and uses taxed shall be limited to those which are taxed by the State of North Dakota pursuant to Chapters 57-39.2 and 57-40.2 of the North Dakota Century Code.

2. The amount of tax shall not exceed one-half of one percent of the gross receipts and purchases which are taxed by the State of North Dakota pursuant to Chapters 57-39.2 and 57-40.2 of the North Dakota Century Code, nor shall the tax exceed twelve and 50/100 dollars on any single purchase; provided, that a higher rate of tax may be imposed and collected on sales and uses of less than one dollar and on sales and uses of fractional dollar amounts and the bracket system for the application of the state sales tax set forth in Section 57-39.2-08.2 of the North Dakota Century Code shall be adjusted to incorporate the additional city tax. The retail sales and use tax imposed shall be computed and collected in the same manner provided by law for the collection of the state sales and use tax.

3. A sales and/or use tax which is imposed pursuant to the authority granted herein shall extend for a period of twenty years from and after July 1, 1992, and end on June 30, 2012.

4. One-half of the proceeds of a sales and/or use tax which is imposed pursuant to the authority granted herein shall be utilized for street improvements, one-half of the proceeds of such tax shall be utilized for

construction of a water treatment plant, and a portion of the interest earnings on such proceeds may be utilized for other capital improvements. Proceeds from such tax may be used to make direct payment for such street improvements, water plant construction or other capital improvements, or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs.

5. Revenues raised and collected pursuant to authority granted herein, less administrative expenses, and interest earnings on such revenues, shall be deposited in three separate funds, to be established and utilized as follows:

   a. Fargo Street Improvement Funding - one-half of the proceeds of such tax shall be placed in this fund to be utilized as follows:

      i. To pay all special assessments imposed pursuant to S.I.D. 3962 for the North Broadway Bridge which have not been certified for collection as of July 1, 1992.

      ii. To pay all special assessments imposed pursuant to S.I.D. 4097 for the interchange at 25th Street South and Interstate Highway 94 which have not been certified for collection as of July 1, 1992.

      iii. To pay all special assessments imposed pursuant to S.I.D. 4152 for the improvement of 45th Street South from Interstate 94 to 11th Avenue South which have not been certified for collection as of July 1, 1992.

      iv. To pay all or any portion of the city's share of the cost of construction of urban aid street improvement projects which are funded in part by state and/or federal funds.

      v. To pay all or any portion of the city's share of the cost of construction of arterial streets which are constructed with no federal and/or state funds. The city's share of such construction costs shall be the additional costs required to construct such streets because of the additional width or thickness necessitated by such street's designation as an arterial.

   b. Fargo Water Treatment Plant Fund - one-half of the proceeds of such tax shall be placed in this fund and such proceeds plus any interest income therefrom, shall be utilized for construction costs of the Fargo Water Treatment Plant.

   c. Capital Improvement Fund - all of the interest earnings from the Fargo Street Improvement Fund shall be placed in this fund to be

utilized for such capital improvements as the governing body of the city may select. Transfer of such earnings to this fund shall be quarterly or more frequently, if directed by the governing body of the city.

d. Commencing July 1, 2002, and continuing until June 30, 2012, the sales and/or use tax imposed shall be utilized for such infrastructure capital improvements as the governing body of the city may select including streets and traffic management; water supply and distribution needs; and flood mitigation projects.

R. To impose a retail sales and/or use tax subject to the following limitations:

1. Sales and uses taxed shall be limited to those which are taxed by the State of North Dakota pursuant to Chapters 57-39.2 and 57-40.2 of the North Dakota Century Code.

2. The amount of tax shall not exceed one-half of one percent of the gross receipts and purchases which are taxed by the State of North Dakota pursuant to Chapters 57-39.2 and 57-40.2 of the North Dakota Century Code, nor shall the tax exceed twelve and 50/100 dollars on any single purchase; provided, that a higher rate of tax may be imposed and collected on sales and uses of less than one dollar and on sales and uses of fractional dollar amounts and the bracket system for the application of the state sales tax set forth in Section 57-39.2-08.2 of the North Dakota Century Code shall be adjusted to incorporate the additional city tax. The retail sales and use tax imposed shall be computed and collected in the same manner provided by law for the collection of the state sales and use tax.

3. A sales and/or use tax which is imposed pursuant to the authority granted herein shall extend for a period of eighteen months from and after January 1, 2005, and end on June 30, 2006.

4. Proceeds of a sales and/or use tax which is imposed pursuant to the authority granted herein shall be utilized for the construction, improvement, maintenance and operation of the Public Library and library expansion pursuant to an adopted library facility plan. This will include construction of a new 45,000 square foot library facility in the downtown Fargo area, and the acquisition (either conversion or new construction) of a facility in south Fargo for a branch library. Any funds remaining after completion of the library facility projects will be placed in a special escrow fund to support future library operations or expansion needs.

S. To impose a retail sales, gross receipts and use tax subject to the following limitations:

1. Sales, gross receipts and uses taxed shall be limited to those which are taxed by the State of North Dakota pursuant to Chapters 57-39.2, 57-39.5, 57-39.6 and 57-40.2 of the North Dakota Century Code.

2. The amount of tax shall not exceed one percent of the gross receipts and purchases which are taxed by the State of North Dakota pursuant to Chapters 57-39.2, 57-39.5, 57-39.6 and 57-40.2 of the North Dakota Century Code, nor shall the tax exceed twenty-five and 00/100 dollars on any single purchase, subject to Section 57-01-02.1 of the North Dakota Century Code; and subject to collection as in Section 57-39.2-08.2 of the North Dakota Century Code. The retail sales, gross receipts and use tax imposed shall be computed and collected in the same manner provided by law for the collection of the state sales, gross receipts and use tax.

3. A sales, gross receipts and use tax, which is imposed pursuant to the authority granted herein, shall extend for a period of twenty years from and after January 1, 2009, and end on December 31, 2028.

4. The proceeds of a sales, gross receipts and use tax which is imposed pursuant to the authority granted herein shall be utilized for such infrastructure capital improvements as the governing body of the city may select. Infrastructure capital improvements shall mean expenditures for streets and traffic management; water supply and treatment needs including construction or expansion of water treatment facilities; water distribution system needs; sewerage treatment and collection system needs, including construction or expansion of sewage treatment facilities, and flood protection projects. Interest earnings on such proceeds may be utilized for other such capital improvements. Proceeds from such tax may be used to make direct payment for such infrastructure improvements or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs.

5. Revenues raised and collected pursuant to authority granted herein, less administrative expenses, and interest earnings on such revenues, shall be deposited in a separate infrastructure fund to be established, and shall be utilized as directed by the governing body of the city for the purposes set forth herein.

T. To impose a retail sales, gross receipts and use tax subject to the following limitations:

1. Sales, gross receipts and uses taxed shall be limited to those which are taxed by the State of North Dakota pursuant to Chapters 57-39.2, 57-39.4, 57-39.5, 57-39.6 and 57-40.2 of the North Dakota Century Code.

2. The amount of tax shall not exceed one-half of one percent (1/2%) of the gross receipts and purchases which are taxed by the State of North Dakota pursuant to Chapters 57-39.2, 57-39.4, 57-39.5, 57-39.6 and 57-40.2 of the North Dakota Century Code, nor shall the tax exceed twelve and 50/100 dollars ($12.50) on any single purchase, subject to

Section 57-01-02.1 of the North Dakota Century Code; and subject to collection as in Section 57-39.2-08.2 of the North Dakota Century Code. The retail sales, gross receipts and use tax imposed shall be computed and collected in the same manner provided by law for the collection of the state sales, gross receipts and use tax.

3. A sales, gross receipts and use tax, which is imposed pursuant to the authority granted herein, shall extend from and after January 1, 2010, and end on December 31, 2084. Notwithstanding the foregoing, once the governing body of the city determines, by majority vote of its members. that all the costs for the Metro Flood Diversion Project including all availability payments have been paid or are otherwise provided and once all debt and all other contractual obligations related to the financing of said costs have been retired, or the payment for which has been otherwise sufficiently provided and arranged, the governing body may direct the state tax commissioner to cease collecting said tax.

4. The proceeds of a sales, gross receipts and use tax, which is imposed pursuant to the authority granted herein, shall be utilized for such flood risk mitigation and reduction, and related improvements and activities, as the governing body of the city may select. Flood risk mitigation and reduction, and related improvements and activities, shall mean expenditures to reduce or mitigate the risk to the city from flood events, to provide protection from such flood events, including without limitation the providing for retention of water. Such expenditures may be used to acquire property; enter into agreements; make, install, construct or build improvements and engage in projects and activities as are necessary and appropriate for such purposes. The stated goal shall be to reduce the risk to the city to the level of a 500-year flood event. Interest earnings on such proceeds may also be utilized for such purposes. Proceeds from such tax may be used to make direct payment for such purposes or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs.

5. Revenues raised and collected pursuant to authority granted herein, less administrative expenses, shall be deposited in a separate flood risk mitigation fund to be established, and shall be utilized as directed by the governing body of the city for the purposes set forth herein. Further, sales tax revenues may be used to reduce special assessments, may be pledged to pay bonds, notes or other obligations established for the financing of eligible project costs and may be used to pay or to secure any obligations incurred through one or more intergovernmental agreements with other political subdivisions and joint powers entities for the purpose of financing the cost of such eligible expenditures, including the Metro Flood Diversion Project, and may be pledged for the repayment of the bonds issued by the city that are payable solely from such revenues.

U. To impose a retail sales, gross receipts and use tax subject to the following limitations:

1. Sales, gross receipts and uses taxed shall be limited to those which are taxed by the State of North Dakota pursuant to Chapters 57-39.2, 57-39.4, 57-39.5, 57-39.6 and 57-40.2 of the North Dakota Century Code.

2. The amount of tax shall not exceed one-half of one percent (1/2%) of the gross receipts and purchases which are taxed by the State of North Dakota pursuant to Chapters 57-39.2, 57-39.4, 57-39.5, 57-39.6 and 57-40.2 of the North Dakota Century Code, nor shall the tax exceed twelve and 50/100 dollars ($12.50) on any single purchase, subject to Section 57-01-02.1 of the North Dakota Century Code; and subject to collection as in Section 57-39.2-08.2 of the North Dakota Century Code. The retail sales, gross receipts and use tax imposed shall be computed and collected in the same manner provided by law for the collection of the state sales, gross receipts and use tax.

3. A sales, gross receipts and use tax which is imposed pursuant to the authority granted herein shall extend from and after January 1, 2013, and end on December 31, 2084. Notwithstanding the foregoing, once the governing body of the city determines, by majority vote of its members, that all the costs for the Metro Flood Diversion Project including all availability payments have been paid or are otherwise provided and once all debt and all other contractual obligations related to the financing of said costs have been retired. or the payment for which has been otherwise sufficiently provided and arranged, the governing body may direct the state tax commissioner to cease collecting said tax.

4.

(a) The proceeds of a sales, gross receipts and use tax, which is imposed pursuant to the authority granted herein, shall be utilized for such infrastructure capital improvements as the governing body of the city may select; provided, however, that commencing January 1, 2017, said tax proceeds will only be utilized for flood risk mitigation and reduction, and related improvements and activities, as set forth in subparagraph (b), below, and for paying obligations on infrastructure capital improvements that existed prior to January 1, 2017. Infrastructure capital improvements shall mean expenditures for streets and traffic management; water supply and treatment needs including construction or expansion of water treatment facilities; water distribution system needs; sewerage treatment and collection system needs, including construction or expansion of sewage treatment facilities, and flood protection or flood risk mitigation projects, and

related improvements and activities. Flood risk protection or flood risk mitigation projects, and related improvements and activities, shall mean expenditures to reduce or mitigate the risk to the city from flood events, to provide protection from such flood events, including without limitation the providing for retention of water. Such expenditures may be used to acquire property; enter into agreements; make, install, construct or build improvements and engage in projects and activities as are necessary and appropriate for such purposes. Interest earnings on such proceeds may be utilized for other such capital improvements. Proceeds from such tax may be used to make direct payment for such infrastructure improvements or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs.

(b) From and after January 1, 2017, the proceeds of a sales, gross receipts and use tax, which is imposed pursuant to the authority granted herein, shall be utilized for such flood risk mitigation and reduction, and related improvements and activities, as the governing body of the city may select. Flood risk mitigation and reduction, and related improvements and activities, shall mean expenditures to reduce or mitigate the risk to the city from flood events, to provide protection from such flood events, including without limitation the providing for retention of water. Such expenditures may be used to acquire property; enter into agreements; make, install, construct or build improvements and engage in projects and activities as are necessary and appropriate for such purposes. The stated goal shall be to reduce the risk to the city to the level of a 500-year flood event. Interest earnings on such proceeds may also be utilized for such purposes. Proceeds from such tax may be used to make direct payment for such purposes or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs.

5. Revenues raised and collected pursuant to authority granted herein, less administrative expenses, and interest earnings on such revenues, shall be deposited in a separate infrastructure fund to be established, and shall be utilized as directed by the governing body of the city for the purposes set forth herein. Further, sales tax revenues may be used to reduce special assessments, may be pledged to pay bonds, notes or other obligations established for the financing of eligible project costs and may be used to pay or to secure any obligations incurred through one or more intergovernmental agreements with other political subdivisions and joint powers entities for the purpose of financing the cost of such eligible expenditures, including the Metro Flood Diversion Project, and may be pledged for the repayment of the bonds issued by the city that are payable solely from such revenues.

The enumeration of particular powers by this charter shall not be deemed to be exclusive, and in addition to the powers enumerated herein or implied hereby, or appropriate to the exercise of such powers, it is intended that the city shall have and may exercise all powers which under the constitution of this state, it would be competent for this charter specifically to enumerate. References to provisions of the North Dakota Century Code include any amendments thereto that may be adopted by the North Dakota Legislative Assembly.

(Res. of 8-15-2016, appr. 11-8-2016; Res. of 08-05-2024(1), appr. 11-5-2024)

Editor's note—A resolution adopted Aug. 15, 2016, proposed an amendment to extend collection periods for sales, gross receipts and use taxes related to public infrastructure, including flood protection, and was approved at a general election Nov. 8, 2016.

A resolution adopted Aug. 5, 2024, proposed an amendment to establish a city lodging tax of three percent (3%) in addition to the three percent (3%) city lodging tax, and was approved at a general election Nov. 5, 2024.

Article 4 - Initiative and Referendum

The electors of the city of Fargo reserve to themselves the right to initiate ordinances that comply with the powers vested in the city. If the governing body refuses to enact an initiated ordinance, as provided in this charter, the proposal shall be submitted to the voters for approval or rejection.

The electors also reserve the right to refer an ordinance enacted by the governing body. If the governing body fails to repeal the referred ordinance, the ordinance will be suspended until the voters approve or reject the ordinance.

The rights of initiative and referendum are secured to the people of Fargo, no matter what form of government is provided by the Fargo home rule charter or state law.

A. Requirements for petitions for initiative, referendum and charter amendments are the same. The petitions must identify by name and voting address three members of the petitioners' committee responsible for circulating and filing the petitions. The petitions must include the full text of the ordinance or charter amendment being initiated, or the ordinance being referred. The number of valid petition signers must equal or exceed 15% of the number of voters who voted for mayor in the most recent city election at which that office was filled. The petitions must show the date of signing, signature of the elector, and his/her voting address. The circulator of each petition shall sign an affidavit on the petition affirming that he/she witnessed the signing of all names on the petition and believes that the signers are qualified electors.

B. The city auditor or city official designated by the governing body shall determine the validity and sufficiency of the signatures. If he finds irregularities, he shall notify the sponsor's committee and allow ten days for correction. The city official shall notify the governing body of his decision and certify the petitions as valid to the governing body when they meet the criteria set forth in this charter.

C. If the petitions for an initiated ordinance are sufficient and valid, the proposed ordinance shall be submitted to the governing body. The governing body may enact the ordinance without change or submit the initiated ordinance to the voters for approval or rejection. If the measure is not enacted within 21 days after the petitions are certified as valid and sufficient, the ordinance shall be put up for approval or disapproval by the voters. The election may be held no sooner than 60 days after the petitions are ruled valid.

D. Petitions to refer an ordinance must be filed within ten days of the effective date of the ordinance. If the designated city official finds the petitions valid and sufficient, the referred ordinance shall be suspended. The ten days allowed for correction of petition irregularities shall not be used to add names and signers to the petition. The annual city budget ordinance is exempt from the referendum process. The governing body may either repeal a referred ordinance or submit the ordinance to the voters at the next city-wide election occurring 60 days after the petitions are ruled valid. Referendum petitions may be filed against individual sections and subsections of an ordinance; if so, the remainder of the ordinance remains in effect.

E. The question for both initiated and referred ordinances on the election ballot shall be: "Shall this ordinance be approved?" If there is a majority of "Yes" votes, the ordinance is enacted and becomes effective ten days after the election results are certified. If the "No" votes are in majority, the ordinance is rejected.

F. Initiated or referred ordinances proposed by a Petition and adopted by a vote of the voters cannot be repealed or amended except by a vote of the voters so long as the City of Fargo remains under the commission system of government. This article is self-executing and all of its provisions are mandatory. Ordinances may be enacted to facilitate and safeguard, but not to hamper, restrict or impair these powers.

Article 5 - Amendment or repeal of charter

This Fargo Home Rule Charter may be amended or repealed only by a majority of the electorate voting on charter proposals submitted to them.

A. Proposals to amend or repeal the Fargo Home Rule Charter may be submitted to the voters by adoption of a resolution approved by a majority of all members of the governing body. The proposed amendment shall be published in the official newspaper of the city at least 60 days prior to the election at which the matter will be decided.

B. Fargo citizens also reserve to themselves the right to amend or repeal this home rule charter by the initiative process. Petitions for such purpose must conform to the rules prescribed in this charter on initiative and referendum of ordinances.

C. The complete amendment must be printed on the petitions. When petitions to amend or repeal are certified as valid, a proposal must be submitted to the voters at the next city-wide election occurring at least 60 days after publication of the petition in the official newspaper of the city. The ballot question shall be "Shall such amendment be approved?" If there is a majority of "Yes" votes of those voting on the matter, the charter amendment becomes effective ten days after the election results are certified.

D. If either the governing body or an initiative petition seeks to repeal the Fargo Home Rule Charter, the ballot proposal must establish the form of government which would replace the system established by this charter.

Article 6 - Boundaries

The boundaries of the city shall be the boundaries as established at the time this charter takes effect, or as such boundaries may be changed thereafter in the manner authorized by law.

Article 7 - Publicity of records

All public records and accounts of every office, department or agency of the city shall be open to inspection by any citizen, any representative of a citizens' organization or any representative of the press, radio, television and other news media at all reasonable times and under reasonable regulations established by the governing body.

Article 8 - Separability

If any section or part of section of this charter shall be held invalid by a court of competent jurisdiction, such holding shall not affect the remainder of this charter, except to the extent that an entire section or part of section may be inseparably connected in meaning and effect with the section or part of section to which such holding shall directly apply.

Article 9 - Plenary and implied powers of the governing body

The governing body shall have plenary power to enact and make all proper and necessary ordinances, resolutions and orders to carry out and give effect to the express and implied powers granted in this charter to the end that a complete, harmonious and effective municipal government may be initiated, installed, operated, and maintained in the city, and thereby protect and safeguard the rights, interests, safety, morality, health and welfare of the city and its inhabitants.

Article 10 - Succession in government

A. Rights of officers and employees preserved

Except as otherwise specifically provided, this charter shall not affect or impair the rights or privileges of officers or employees of the city, or any office, department or agency thereof, existing at the time this charter shall take effect. Any provision of law in force at the time this charter shall take effect, which provision of law is not inconsistent herewith, shall remain in full force and effect as respects qualifications of personnel, appointment, removal, pension and retirement rights, civil rights, or any other rights or privileges of officers or employees of the city or any office, department or agency thereof.

B. Continuance of present officers

All persons holding executive and administrative office at the time this charter takes effect shall continue in office and shall continue the performance of their duties until provisions shall have been made in accordance therewith for the performance of such duties or the discontinuance of such office.

C. Continuance of present offices, departments or agencies

Any office, department, or agency, heretofore existing, shall continue to exercise powers and duties the same as were heretofore exercised and shall have the power to continue any business proceedings or other matters within the scope of its regular powers and duties until such office, department or agency shall be charged or abolished by the governing body. The powers conferred and the duties imposed upon any office, department or agency of the city by the laws of this state shall, if such office, department or agency be abolished by this charter or under its authority, be thereafter exercised and discharged by the office, department or agency designated by the governing body.

D. Continuance of appointive boards, authorities and commissions

All appointive boards, authorities and commissions, heretofore existing shall continue and shall exercise such powers and duties as were granted them until such boards, authorities, and commissions and the powers thereof shall be changed or abolished by the governing body.

E. Continuance of contracts

All contracts entered into by the city, or for its benefit, prior to the taking effect of this charter, shall continue in full force and effect.

F. Pending actions and proceedings

The adoption of this charter shall not abate or otherwise affect any action or proceeding civil or criminal, pending when it takes full effect, brought by or against the city or any office, department, agency or officer thereof.

G. Ordinances and statutes to remain in force

All ordinances, resolutions and regulations of the city together with state statutes applicable to municipalities which are in force at the time this charter takes effect, and not inconsistent with the provisions thereof, are hereby continued in force until such ordinances, resolutions and regulations of the city are duly amended or repealed and until ordinances are enacted providing procedures replacing those previously required by state statute.

H. Inauguration of government under this charter

If a majority of the qualified electors of the city voting on the question vote to ratify this charter, the provisions of this charter shall go into effect upon the filing of the charter by the governing body with the secretary of state, the clerk of the District Court for Cass County, and the office of the city auditor, within ninety days.

Article 11 - Election Procedures

A. Methodology. City officials will be elected so that each voter may vote for all the candidates the voter approves of in each race. Candidates receiving the most votes will be elected until all necessary seats are filled in each race.

B. Ballot instructions. For each race to elect city officials, the instructions on the ballot will instruct voters with the directions, "Vote for ALL the names you approve of," with "ALL" being written in uppercase.

C. Reporting of results. For each candidate's result in each race, reported vote percentages must be calculated by taking the number of votes for that candidate divided by the total ballots cast.

(Approval Voting Petition, appr. 11-6-2018)

Editor's note—An Approval Voting Petition was proposed to get the election change on the ballot and then was passed by the citizens of Fargo, North Dakota in November of 2018.

Initiated amendments (approved by majority vote)

Amendment #1 - No city-wide special assessment district shall be established unless the question of establishing such a district has been submitted to a vote of the qualified electors of Fargo and has been approved by sixty percent of such electors voting on such question.

Amendment #2 - No city sales and/or use tax shall be imposed unless the question of imposing such a sales and/or use tax has been submitted to a vote of the qualified electors of the City of Fargo, North Dakota, and has been approved by sixty (60) percent of such electors voting on such question.

HOME RULE CHARTER COMPARATIVE TABLE

This table gives the location within the Home Rule Charter of those ordinances adopted since the Republication of July 2014. Ordinances not listed herein have been omitted as repealed, superseded, or not of a general and permanent nature.

Ordinance Number	Date Adopted	Date Approved	Section		Section this Home Rule Charter
(Res.)	1- 5-2015	4-28-2015			Art. 2, A.12
(Res.)	8-15-2016	11- 8-2016	1		Art. 3, T.3, 5
			3		Art. 3, U.3--5
(Petition)		11- 6-2018		Added	Art. 11
(Res.)	8- 5-2024	11- 5-2024		Added	Art. 3, V.

FARGO MUNICIPAL CODE

CITY OF FARGO, NORTH DAKOTA

CHAPTER 1

CITY GOVERNMENT - GENERAL PROVISIONS

Article

1-01	The Enacting Ordinance, §§ 1-0101 to 1-0107.
1-02	Ordinances and Resolutions--Procedure, §§ 1-0201 to 1-0209.
1-03	Ordinances--Violations, §§ 1-0301 to 1-0307.
1-04	Ordinances-Administrative Enforcement Program, §§ 1-0401 to 1-0413.

ARTICLE 1-01

THE ENACTING ORDINANCE

Section

1-0101	Title of ordinances.
1-0102	Ordinances to remain in effect.
1-0103	Repeal--Exceptions.
1-0104	Construction of Fargo Municipal Code.
1-0105	Separability provisions.
1-0106	Existing licenses and permits.
1-0107	New licenses and permits.
1-0108	Implementation of Powers.

1-0101. Title of ordinances.--The ordinances of the city of Fargo shall be known and cited as the Fargo Municipal Code.

Source: 12242 (1966), 2258 (1986).

1-0102. Ordinances to remain in effect.--All previously adopted ordinances and amendments thereto shall remain in full force and effect until repealed or amended by the governing body of the city of Fargo.

Source: 12242 (1966), 2258 (1986).

1-0103. Repeal--Exceptions.--All ordinances of the city of Fargo adopted prior to December 31, 1965, are hereby repealed, except only the following ordinances which are not specifically printed and included in the Fargo Municipal Code, but which shall continue in full force and effect regardless of the fact that they are omitted therefrom, to-wit:

A. All existing ordinances or any part thereof creating contract obligations on the part of the city, which obligations shall remain binding until fully performed by the parties thereto.

B. All existing ordinances establishing special improvement districts.

C. All existing ordinances levying taxes for previous years which are still unpaid or for future years under the provisions of any law relating to the issuance of municipal bonds, warrants, certificates of indebtedness, or other municipal obligations, whether general or special.

D. All salary and appropriation ordinances, and amendments thereto, enacted for or during the fiscal year beginning July 1, 1965, and ending June 30, 1966.

E. Any and all other ordinances adopted in said Revised Ordinances of 1965 by reference, although the same are not set forth in full therein.

F. All existing ordinances establishing, extending, or reducing the city limits of the city and all existing zoning ordinances.

G. All existing ordinances by which the zoning of any area has been established or modified.

H. The incorporation herein of any ordinances of the city granting franchises to individuals, associations, or corporations shall not operate to repeal the same in their original form nor to extend the term of any franchise beyond that permitted by law or fixed in the ordinance granting the same which is re-enacted herein.

I. All existing provisions of ordinances required for the payment of pension benefits under the former pension system for city employees to persons retired prior to the election to discontinue the system.

Source: 12242 (1966), 2258 (1986).

1-0104. Construction of Fargo Municipal Code.--All of the provisions of the Fargo Municipal Code are to be construed according to the fair import of their terms with a view to effecting their objects and granting justice.

Source: 12242 (1966), 2258 (1986).

1-0105. Separability provisions.--If any section, subsection, sentence, clause or phrase of these ordinances is, for any reason, held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of any other section, subsection, sentence, clause, phrase, or portion thereof. The board of city commissioners hereby declares that it would have passed these ordinances and each section, subsection, sentence, clause or phrase thereof, irrespective of the fact that any one or more other sections, subsections, sentences, clauses, or phrases may be declared invalid or unconstitutional.

Source: 12242 (1966).

1-0106. Existing licenses and permits.--All licenses and permits issued prior to the date on which this ordinance becomes effective shall continue in force for the remainder of the term for which the same were issued, without additional fees, but all licensees and permittees shall be governed by the provisions of the Fargo Municipal Code for the remainder of the terms of said licenses and permits in the same manner and to the same extent as if said licenses and permits had been issued under the provisions of the Fargo Municipal Code.

Source: 2258 (1986).

1-0107. New licenses and permits.--In the case of any license or permit not heretofore required and appearing for the first time in the Fargo Municipal Code, such license or permit shall be secured on or before the first day of the first month following the effective date of this

ordinance, and the first fee therefor shall be prorated for the remainder of the term thereof on a monthly basis, provided that the minimum fee for any such new license or permit shall be $5.00.

Source: 2258 (1986).

1-0108. Implementation of Powers.--The city of Fargo shall have all powers granted to municipal corporations by the constitution and laws of the state of North Dakota together with all the implied powers necessary to execute such powers. In addition, the city shall have those powers contained in Article 3 of the City's Limited Home Rule Charter. The powers described herein may be implemented by the city of Fargo through its board of city commissioners, or the city of Fargo's officers, employees or agents, by motion, resolution or ordinance of the board of city commissioners.

Source: 4742 (2010).

ARTICLE 1-02

ORDINANCES AND RESOLUTIONS - PROCEDURE

Section

1-0201 When yea and nay vote on passage required.
1-0202 Reconsidering or rescinding of vote.
1-0203 Procedure in passing ordinances-- Signing and attesting.
1-0204 Resolutions--When read in full.
1-0205 Publication of ordinances and notices--Official newspaper.
1-0206 Additions and amendments to Fargo Municipal Code.
1-0207 City auditor to provide supplements.
1-0208 Amendments--Penalty.
1-0209 Tampering with or changing of ordinances forbidden.

1-0201. When yea and nay vote on passage required.--The yeas and nays shall be taken by the board of city commissioners upon the passage of all ordinances and on all propositions to create any liability against the city or for the expenditure or appropriation of money and, in all other cases, at the request of any member, which shall be entered on the journal of its proceedings.

Source: 1866 (1978).

1-0202. Reconsidering or rescinding of vote.--No vote of the board of city commissioners shall be reconsidered or rescinded at a special meeting unless there is present at such special meeting as large a number of members as was present when such vote was taken.

Source: 1952 Rev. Ord. 1-0202.

1-0203. Procedure in passing ordinances.--Signing and attesting.--All ordinances shall be read twice and the second reading shall not be had in less than one week after the first reading. Ordinances shall be received and filed for consideration by the board of city commissioners at least one week prior to the first reading, except that such requirement may be waived with the concurrence of at least two-thirds of the qualified and existing members of the board of city commissioners present at the meeting. The first reading of the ordinance may be by title

only. The second reading shall be at length, except that the second reading may also be by title only if a reading at length is not requested by any citizen, and if such reading is waived by unanimous consent of the members of the board of city commissioners present at the meeting. In the event that a reading at length is not waived, or is requested by any citizen, the board may designate a time, date and place for such reading. After the first reading and before final passage, ordinances may be amended and shall then be put upon their second reading and final passage. In the event that any ordinance is amended between first and second reading, final passage shall not be had for at least one week after second reading, except that such requirement may be waived with the concurrence of at least two-thirds of the qualified and existing members of the board of city commissioners present at the meeting. Except as otherwise specifically provided, a majority of all the qualified and existing members of the board of city commissioners must concur in the passage of any ordinance and in the creation of any liability against the city and in expending or appropriating money. For the purposes of this section, any member of the board of city commissioners who, by reason of a stated conflict of interest, is excused from voting by a majority of the remaining members, shall not be considered to be a qualified or existing member of the board. If passed by the board of city commissioners, ordinances shall be signed by the president of the board of city commissioners and attested by the city auditor.

Source: 1551 (1973), 1618 (1974).

1-0204. Resolutions--When read in full.--All resolutions requiring the signature of the president of the board of city commissioners or involving the expenditure of any of the funds of the city shall be read in full to the board of city commissioners when in session.

Source: 1952 Rev. Ord. 1-0204.

1-0205. Publication of ordinances and notices--Official newspaper.--The publication of any ordinances, notices, and other matter required by law to be published shall be made in a daily newspaper of general circulation published in the city having a bona fide paying subscription list and circulation among the inhabitants of the city. The circulation of the newspaper shall be taken into consideration by the board of city commissioners in awarding the contract for such publication.

Source: 1952 Rev. Ord. 1-0205.

1-0206. Additions and amendments to Fargo Municipal Code.--Any and all additions or amendments to the Fargo Municipal Code, when passed in such form as to indicate the intention of the board of city commissioners to make the same a part thereof, shall be deemed to be incorporated in said Fargo Municipal Code, so that reference to the Fargo Municipal Code shall be understood and intended to include such additions and amendments. All ordinances which are additions or amendments to the Fargo Municipal Code and which are not specifically printed and included in said Fargo Municipal Code shall continue in full force and effect regardless of the fact that they are omitted therefrom and until they are specifically repealed.

Source: 911 (1954), 2258 (1986).

1-0207. City auditor to provide supplements.--It shall be the express duty of the city auditor, or someone authorized by him, from time to time and when so directed by the board

of city commissioners, to provide and distribute printed supplements containing amendments or ordinances which indicate the intention of the commission to make the same a part of the Fargo Municipal Code.

Source: 911 (1954), 2258 (1986).

1-0208. Amendments--Penalty.--In case of the amendment of any section of the Fargo Municipal Code for which a penalty is not provided, the general penalty as provided in section 1-0301 shall apply to the section as amended or, in case such amendment contains provisions for which a penalty other than the aforementioned general penalty is provided in another section in the same chapter, the penalty so provided in such other section shall be held to relate to the section so amended, unless such penalty is specifically repealed therein.

Source: 911 (1954), 2258 (1986).

1-0209. Tampering with or changing of ordinances forbidden.--It shall be unlawful for any person, firm, or corporation in the city to change or amend by additions or deletions any part or portion of the Fargo Municipal Code or of any ordinances of the city of Fargo, or to insert or delete pages or portions thereof, or to alter or tamper with said Fargo Municipal Code in any manner whatsoever which will cause the laws of the city of Fargo to be misrepresented thereby. Any person, firm, or corporation violating this section shall be punished as provided in section 1-0301.

Source: 911 (1954), 2258 (1986).

1-0210. Procedure in passing ordinances by city electorate.--Notwithstanding the procedure in passing ordinances, signing and attesting as set forth in this article, proposals for enactment of an ordinance may be submitted to the voters by adoption of a resolution approved by a majority of all members of the governing body. The resolution must contain the proposed ordinance and the resolution shall be published in the official newspaper of the city at least 60 days prior to the election at which the matter will be decided. The proposal must be submitted to the voters at the next city-wide election occurring at least 60 days after publication of the resolution in the official newspaper of the city. The ballot question shall be "Shall such ordinance be approved?" If there is a majority of "Yes" votes of those voting on the matter, the ordinance shall become effective ten days after the election results are certified except as to an ordinance imposing any penalty, fine, imprisonment, or forfeiture for a violation of its provisions, in which case the title and penalty clause of the ordinance shall be published in one issue of the official newspaper of the city and it shall take effect and be in force from and after the publication thereof unless otherwise expressly provided therein. If the "No" votes are in majority, the ordinance is rejected. The proposal may enact a new ordinance, may amend an existing ordinance, may repeal an existing ordinance, or it may propose any combination thereof.

Source: 5335 (2022).

ARTICLE 1-03

ORDINANCES - VIOLATION

Section

1-0301 Penalties for violation of ordinances--Failure to pay fine.

1-0302 Community Service--Authority of court.
1-0303 Community Service Oversight.
1-0304 Refusal to work--Contempt of court.
1-0305 Classification of ordinance violations.
1-0306 Disposition of ordinance violations--Procedures.
1-0307 Penalties for violations--Authority of municipal court.

1-0301. Penalties for violation of ordinances--Failure to pay fine.--Any person, firm or corporation violating any of the terms or provisions of the Fargo Municipal Code shall be punished by fine or imprisonment or both, or shall be required to pay a fee, in accordance with the following categories of violations:

A. Class B misdemeanor. Every person, firm or corporation violating an ordinance which is punishable as a Class B misdemeanor shall be punished by a fine not to exceed $1,500.00, or by imprisonment not to exceed 30 days, or by both such fine and imprisonment, in the discretion of the court; the court to have power to suspend said sentence and to revoke the suspension thereof. In addition to such fine and/or imprisonment, the court, in its discretion, may assess a fee in an amount not to exceed $25.00 as provided in section 27-01-10, N.D.C.C. All such fees paid to the municipal court shall be deposited monthly in the city treasury for allocation by the board of city commissioners in accordance with subsection (3) of section 27-01-10, N.D.C.C.

B. Infraction. Every person, firm or corporation violating an ordinance which is punishable as an infraction shall be punished by a fine not to exceed $1,000.00; the court to have power to suspend said sentence and to revoke the suspension thereof.

C. Offense. Every person, firm or corporation violating an ordinance for which a fee is required shall be deemed to have committed an offense and shall pay a fee as hereinafter provided.

D. Each day any person, firm, association, or corporation violates any of the provisions of the Fargo Municipal Code shall constitute a separate Class B misdemeanor, infraction or offense.

E. If any person, firm or corporation does not pay a fine, or make any required partial payment, the court, upon motion of the prosecutor or on its own motion, may issue an order to show cause why the defendant should not be fined an additional amount, not to exceed $1,500.00, or imprisoned for non-payment, or fined and imprisoned, in the discretion of the court.

Source: 2487 (1989), 2601 (1991), 2738 (1995), 2830 (1997), 2991 (1999), 4864 (2013).

1-0302. Community Service--Authority of court.--If, in the opinion of the court, a person sentenced is capable of performing manual labor, the court may assign such person to community service under such terms and conditions as the court may prescribe.

Source: 2487 (1989), 4864 (2013).

1-0303. Community Service Oversight.--Any person assigned to community service, as provided in section 1-0302, shall be required to work at such labor as his or her strength will permit under the direction of RESTORE or other oversight facility as the court may direct, not to exceed 10 hours each working day.

Source: 2487 (1989), 4864 (2013).

1-0304. Refusal to work--Contempt of court.--Any person refusing to perform manual labor or otherwise participate in community service in accordance with the sentence of the court shall be deemed to be in contempt of court and shall be guilty of a Class B misdemeanor. No credit shall be allowed such person on account of assessed fine and costs for the day or days that such person refuses to perform manual labor or participate in community service in accordance with the sentence of the court.

Source: 2487 (1989), 4864 (2013).

1-0305. Classification of ordinance violations.--

A. Violations of the following ordinances are Class B misdemeanors, subject to punishment as provided in this article:

1. Section 1-0306(D) (failure to appear or post bond on a non-criminal, non-traffic offense), section 8-0305(A)(2) (fictitious registration), section 8-0305(A)(3) (lending registration plates), section 8-0308 (reproducing operator's or driver's license or permit), section 8-0309 (driving under suspension), section 8-0310 (driving under the influence), section 8-0314 (reckless driving), section 8-0320(D) (failure to deliver plates) section 8-0803 (crashes involving damage to vehicle), section 8-0804 (duty to give information and render aid), section 8-0805 (duty upon striking fixture or other property), section 10-0104 (curfew), section 10-0201 (indecent exposure), section 10-0301 (disorderly conduct), section 10-0201 (indecent exposure), section 10-0301 (disorderly conduct), section 10-0317 (resisting police officer), section 10-0319 (incendiary devices), section 10-0320 (registration in schools), section 10-0321 (criminal mischief), section 10-0321.1 (criminal mischief-hate crime), section 10-0322 (harassment), section 10-0322.1 (harassment-hate crime), section 10-0323 (simple assault), section 10-0323.1 (simple assault-hate crime), section 10-0324 (aiding and abetting), section 10-0601 (shoplifting), section 10-0602 (theft), section 10-0702 (order to disperse), section 10-0703 (tenant/owner cooperation required), section 10-1202(2) (≥½ oz. marijuana) and 10-1202(3) (under 21 in possession of marijuana), 12-0105(E)(6)(failing to surrender habitually at large animal), 12-0117(G)(2)(owning a dog after being barred), 12-0117(G)(3)(failure to surrender a dangerous or potentially dangerous dog), 12-0117(G)(4)(allowing a dangerous or potentially dangerous dog to run at large), section 13-0511 (removal of wastes), section 13-0513 (fee/permit for hauling waste), section 13-0529 (misuse of compost sites), article 13-13 (drug lab cleanup), article 13-18 (massage therapy establishments), chapter 17 (sewers and sewerage), article 18-09 (excavation code), section 25-0412 (unlicensed taxicab or vehicle for hire), section 25-1509(A) (selling alcoholic beverage to minor), section 25-1518(C) (minor misrepresenting age), and section 25-1518(D) (delivery of alcoholic beverage to minor), article 25-33 (tattoos, body art and body piercing), article 25-36 (tanning facilities), article 25-38 (commercial pedal car vehicles).

B. Violations of all ordinances not designated in A or C of this section are infractions, subject to punishment as hereinabove provided. Any person convicted of an infraction who, within one year before commission of the infraction of which the person was convicted, has been convicted previously at least twice of the same offense classified as an infraction may be sentenced as though convicted of a class B misdemeanor. If the prosecution contends that the infraction is punishable as a class B misdemeanor, the complaint must specify the offense is a misdemeanor.

C. Violations of the following ordinances are noncriminal offenses and shall require payment of a fee as follows:

1. For a violation of the following ordinances, a fee of $5.00.
Section 8-1412 (riders/passengers restricted), section 8-1413 (riding on roadway/bike paths--restrictions), section 8-1414 (operate bicycle too fast for conditions), section 8-1416 (carrying packages--restrictions), section 8-1419 (equipment on bicycles), section 8-1420 (bicycles--age restrictions).

2. For a violation of the following ordinances, a fee of $20.00.
Section 8-0113 (unlawful use of skates/coasters), section 8-0304 (registration card to be carried in the driver's compartment--inspection of card), section 8-0305(a)(1), section 8-0305(A)(4) (displayed license plates and current motor vehicle registration required), section 8-0305(A)(5) (displayed license plate and current motorcycle and trailer registration required), section 8-0318 (operating motor vehicle on bicycle trail), section 8-0323 (license to be carried and exhibited on demand), section 8-0406 (pedestrian-control signal), section 8-0411 (alter traffic or railroad sign), section 8-0412 (display unauthorized signs, signals or marking), section 8-0707 (pedestrian crossing street where prohibited), section 8-0709(A) (pedestrian walking in roadway), section 8-0710 (pedestrian soliciting rides or business), section 8-0712 (pedestrian obstructing traffic), section 8-0901 (fail to display flag/light rear of load), section 8-0902 (improper tires), section 8-0903 (improper horn), section 8-0904 (brakes required), section 8-0905 (mirrors required), section 8-0906 (obstructed vehicle windshield/windows), section 8-0907 (windshield wipers required), 8-0908 (mufflers/exhaust system required), section 8-0909 (leaking or loose load), section 8-0910 (lights/lamps fail to conform to state law), section 8-0911 (fail to display lighted lamps), section 8-0913 (illegal spotlights), section 8-0914 (improper towing connection), section 8-0915 (reflectors/taillight required on trailer), section 8-0916 (flashing lights prohibited), section 8-0917 (illegal light on vehicle), section 8-0919(A) (riding on exterior of vehicle), section 8-0919(B) (more passengers than capacity), section 8-0919(C) (allow body to protrude from moving vehicle), section 8-0928 modified suspension system), section 8-0929 (driving of vehicle in unsafe condition unlawful), section 8-1003(A) thru (J) and (L) thru (S) (stopping, standing, parking prohibited in specific places),

section 8-1013 (improper parking/obstructing traffic), section 8-1301(A) (following fire apparatus), section 8-1301(B) (driving vehicle within block of fire apparatus), section 8-1302 (driving through parade/funeral procession), section 8-1304 (failure to obtain parade permit), section 8-1307 (opening and closing vehicle doors), section 8-1311 (improper start of parked vehicle), section 8-1317 (coasting vehicle on downgrade prohibited), section 8-1318 (littering), section 8-1320(A) (operating snowmobile under 16 or allowing when prohibited), section 8-1320(B) (operating snowmobile in restricted area), section 8-1410 (traffic laws apply to persons riding bicycles), section 8-1411 (bicyclist to obey traffic control devices), section 8-1422 (bicycle accidents), section 8-1902 (cruising prohibited), article 8-20 (motorized scooters).

3. For a violation of the following ordinance, a fee of $25.00.
Section 10-0103(C) (tobacco possession by an individual under 21 years of age prohibited).

4. For a violation of the following ordinances a fee of $40.00.
Section 8-0105 (driving wrong way on one-way street), section 8-0106 (obey temporary traffic sign/barrier), section 8-0303(B) (parent/guardian allow unlicensed/under 16 to drive), section 8-0303(C) (owner allowing unlicensed/under 16 to drive), section 8-0306 (violation of restricted license), section 8-0316 (permit unauthorized person to drive), section 8-0403 (disobey traffic control device (barricade)), section 8-0405 (traffic control signals), section 8-0407 (flashing signals), section 8-0506 (impeding traffic), article 8-06 (regulating turning movements), section 8-1010 (motor vehicle left unattended--brakes to be set, engine stopped, and keys removed), section 8-1011 (drive or park on private property), section 8-1018 (taking on or discharging passengers), section 8-1111 (vehicle required to stop at railroad crossing), section 8-1201 (following too closely), sections 8-1202 thru 8-1218(D) (general rules of the road), section 8-1220 (overtaking and passing a bicycle), section 8-1301(C) (driving over fire hose), section 8-1301(D) (driving through/around barricade), section 8-1305 (driving vehicle on sidewalk), section 8-1306 (improper backing), 8-1308 (helmet required--operator/passenger), section 8-1309 (number of riders on motorcycle limited), section 8-1310 (clinging to a vehicle or allowing same), section 8-1313 (unlawful riding on vehicle), section 8-1315 (unlawful towing), section 8-1316(A) (operating motor vehicle with view obstructed by load/passengers), section 8-1316(B) (passenger obstructing driver's view), section 8-1319 (unlawful operation of motor vehicle private property), section 8-1321 (use of seat belts required), section 8-1804 (driving through school patrols), section 8-1415 (right-of-way emerging from alley or driveway), section 8-1417 (parking restriction).

5. For a violation of the following ordinances, a fee of $50.00.
Section 8-0116 (failure to yield to emergency vehicle), section 8-0311

(open container), section 8-0317(B)(2) (exhibition driving), section 8-0801 (immediate notice of accident), section 8-0931 (child restraint devices required), 8-1219 (use of motor vehicle), section 10-0311(C) (panhandling within the city of Fargo), section 8-1003(T) (electric vehicle parking stall).

6. For a violation of the following ordinances, a fee of $60.00.
Section 8-0301 (failure to have vehicle under control), section 8-0501 (speed-care required), section 8-0505 (special speed limitation on bridges), section 8-0409 (traffic engineer to establish and design public carrier stops and stands).

7. For a violation of the following ordinances, a fee of $100.00.
Section 8-0317(B)(1) (drag racing), section 8-1003(K) (parking in areas reserved handicap), section 8-0702 (fail yield right-of-way pedestrian), section 8-0920 (size, weight, and load restrictions of vehicles operated within the city), section 8-0924 (restricted use of streets and highways), section 8-1108(A) (disobey signal of approaching train), section 8-1108(B) (driving thru/around railroad crossing gate), section 8-1110 (disobey railroad stop sign), section 8-1218(F) (unlawful passing of school bus), section 8-1218(G) (unlawful proceeding past bus in oncoming lane), section 10-0304(D) (carrying, possession, discharge of dangerous weapons).

8. For a violation of the following ordinances, a fee of $120.00.
Section 11-0202 (unnecessary noise prohibited), section 11-0204 (projection of sound unlawful), section 11-0205 (motorized vehicles--excessive noise), section 11-0205 Table 2(D) (motorized vehicles--compression brakes prohibited).

9. For a violation of the following ordinance, a fee of $150.00.
Section 11-0814 (littering on private property), section 8-0305(B) (current license required), section 8-0320(A) (driving without liability insurance -- first offense).

10. For a violation of the following ordinances, a fee of $200.00.
Section 8-0321 (use of a wireless communication device prohibited), section 8-0322 (distracted driving), section 8-0313 (careless driving).

11. For a violation of the following ordinance, a fee of $250.00.
Section 8-1219 (use of motor vehicle), section 8-1218(F) (unlawful passing of school bus), section 8-1218(G) (unlawful proceeding past bus in oncoming lane).

12. For a violation of the following ordinance, a fee of $300.00.
Section 08-0320(A) (driving without liability insurance -- second or subsequent offense in three years).

13. For a violation of section 08-0502, a fee established as follows:

    a. Speed zones 65 miles per hour or less: $20, or $3 for each mile per hour over the limit, whichever is greater. An additional fee of $20 must be assessed for a violation of 16 miles per hour or more over the limit.

    b. Speed zones in excess of 65 miles per hour: $20, or $5 for each mile per hour over the limit, whichever is greater. An additional fee of $20 must be assessed for a violation of 16 miles per hour or more over the limit.

    c. School zone speed limit: $40 for 1-10 miles per hour over the posted speed; and $40 plus $1 for each additional mile per hour over 10 miles per hour over the limit, unless a greater fee would be applicable.

    d. Construction Zone: $150 for 1-10 miles per hour over the posted limit; and $150 plus $2 for each mile per hour over 10 miles per hour over the limit, unless a greater fee would be applicable. The fee in this subsection does not apply to a construction zone unless individuals engaged in construction are present at the time and place of the violation and the posted speed limit sign states "Minimum Fee $150."

14. The determination of the fees payable for parking violations described in articles 8-10, 8-17, and section 9-0705 shall be based upon the vehicle that is found to be in violation of said article and the owner of the vehicle shall be responsible for payment of the fees.

    a. With respect to violations in the central business district, as defined in section 8-0101, for a violation of section 8-1006, and section 8-1009, the fee for such violation shall be $20.00 for the first violation associated with the vehicle within the prior six-month period, $20.00 for a second violation within six months of said first violation and $25.00 for a third violation within six months of the said second violation and $30.00 for the fourth violation within six months of the said third violation and for every subsequent violation within six months of the next-preceding violation. As to violations of sections 8-1006 and 8-1009, the person issuing the ticket for the parking violation is authorized to waive the fee and, instead, to issue a warning ticket, for the first said violation. At such time as a period of six months or more elapses without a parking ticket for any violation of article 8-10 having been issued for a particular vehicle, the next violation shall be treated as an initial violation.

b. Violations. With respect to parking violations other than in the central business district, for a violation of sections 8-1001, 8-1002, 8-1004, 8-1005, 8-1006, 8-1006.1, 8-1007, 8-1008, 8-1009, 8-1012, 8-1014 through 8-1024, 8-1026, the fee for such violation shall be $20.00.

c. With respect to a parking violation as defined in section 9-0705, the fee for such violation shall be $20.00.

d. With respect to a snow emergency route or snow emergency declaration parking violation as defined in section 8-1710, the fee for such violation shall be $100.00.

e. With respect to any parking violation, the prescribed fee must be paid within 15 days of the date it is due. The fee shall be due upon the date of issuance of the ticket or, if there is a review of the ticket, upon the date of notification after such review. In the event the prescribed fee on a parking ticket is not paid within said 15 days, the fee shall increase by $5.00.

15. For a violation of the following ordinance, a fee of $500.00.
Section 8-1322 (Motor vehicle owner's responsibility regarding a driver who flees a peace officer--second or subsequent offense).

16. An individual who has a temporary restricted driver's license and commits a moving traffic violation is subject to the fee specified for the violation, plus an additional fee of one hundred dollars.

Source: 2487 (1989), 2522 (1990), 2548 (1990), 2586 (1991), 2598 (1991), 2607 (1992), 2635 (1992), 2655 (1993), 2691 (1994), 2709 (1994), 2744 (1995), 2749 (1995), 2769 (1995), 2776 (1996), 2783 (1996), 2840 (1997), 2860 (1998), 2984 (1999), 3020 (1999), 3030 (1999), 3046 (1999), 3064 (1999), 4060 (2000), 4075 (2000), 4077 (2000), 4083 (2000), 4090 (2000), 4234 (2002), 4266 (2002), 4325 (2003), 4458 (2005), 4485 (2005), 4491 (2005), 4500 (2005), 4521 (2006), 4527 (2006), 4562 (2006), 4569 (2007), 4572 (2007), 4646 (2008), 4662 (2008), 4707 (2009), 4730 (2010), 4768 (2010), 4776 (2011), 4781 (2011), 4800 (2011), 4837 (2012), 4898 (2013), 4914 (2014), 5017 (2016), 5109 (2017), 5164 (2018), 5169 (2018), 5181 (2018), 5188 (2019), 5204 (2019), 5225 (2019), 5226 (2019), 5236 (2019), 5242 (2019), 5274 (2020), 5294 (2021), 5310 (2021), 5311 (2021), 5312 (2021), 5313 (2021), 5318 (2021), 5319 (2021), 5346 (2022), 5363 (2022), 5382 (2023), 5393 (2023), 5410 (2023), 5428 (2024), 5468 (2025), 5472 (2025), 5474 (2025), 5479 (2025), 5480 (2025), 5497 (2025), 5504 (2025), 5505 (2025), 5507 (2025), 5508 (2025), 5509 (2025), 5518 (2025), 5521 (2025), 5522 (2025), 5530, (2025).

1-0306. Disposition of ordinance violations--Procedures.--Ordinance violations shall be prosecuted and administered as follows:

A. Violations of ordinances which are designated as Class B misdemeanors shall be prosecuted as provided in the ordinances, statutes, or rules relating to criminal procedure.

B. Violations of ordinances which are designated as infractions shall be prosecuted as provided in the ordinances, statutes, or rules relating to criminal procedure; provided, that the provisions of section 12.1-32-03.1, N.D.C.C., shall also be applicable to prosecution of infractions.

C. Violations of ordinances which are designated as noncriminal offenses shall be prosecuted and administered as provided in section 39-06.1-02, N.D.C.C., and 39-06.1-03, N.D.C.C., and 39-06.1-04, N.D.C.C., provided, however, that the bond amount and related fee for such offenses shall be the amounts specified in Fargo Municipal Code section 1-0305(C).

D. Any person who fails to appear or post bond on a non-criminal, non-traffic offense shall be guilty of a Class B misdemeanor.

Source: 2487 (1989), 4082 (2000), 4465 (2005), 4536 (2006), 4630 (2007), 4707 (2009).

1-0307. Penalties for violations--Authority of municipal court.--The Fargo Municipal Court shall have all of the authority as hereinabove provided for imposition of sentence, including sentencing alternatives, as provided in chapter 40-18, N.D.C.C.

Source: 2487 (1989).

1-0308. Administrative fees for ordinance violations processed under the administrative enforcement program.--Repealed in its entirety.

Source: 4465 (2005), 4631 (2007).

ARTICLE 1-04

ORDINANCES-ADMINISRATIVE ENFORCEMENT PROGRAM

Repealed in its entirety.

Source: 4632 (2007).

CHAPTER 2

BOARD OF CITY COMMISSIONERS

Article

2-01 Duties of board of city commissioners--Service on other boards or commissions--Duties of president--Salary of commissioners--Meetings, §§ 2-0101 to 2-0107.

2-02 Municipal elections, §§ 2-0201 to 2-0205.

ARTICLE 2-01

DUTIES OF BOARD OF CITY COMMISSIONERS--SERVICE ON OTHER BOARDS OR COMMISSIONS--DUTIES OF PRESIDENT--SALARY OF COMMISSIONERS--MEETINGS

Section

2-0101 Board of city commissioners--Duties.

2-0102 Additional duties--Appointments to other bodies--Terms of such appointments.

2-0103 Mayor--Duties--Limitations.

2-0104 Salary of commissioners.

2-0105 Regular meetings of the board--When and where held.

2-0106 Limitation on terms.

2-0107 Noxious weed control board--Appointment of city commissioners.

2-0101. Board of city commissioners--Duties.--The mayor and four commissioners, hereafter collectively known as the board of city commissioners, shall be the governing body of the city of Fargo and shall perform all duties as specified by the laws of the state of North Dakota, the Fargo Home Rule Charter, and the ordinances of the city of Fargo.

Source: 1965 Rev. Ord. 2-0101, 1524 (1973), 2488 (1989).

2-0102. Additional duties--Appointments to other bodies--Terms of such appointments.--Members of the board of city commissioners who are appointed by said board as representatives of the city on other boards, commissions, councils or any other group or organization, shall be deemed to have been appointed for a term of one year unless otherwise specified in said appointment by the board of city commissioners.

Source: 1965 Rev. Ord. 2-0102, 1524 (1973).

2-0103. Mayor--Duties--Limitations.--The mayor shall (1) when present, preside at all meetings of the board of city commissioners; and (2) perform all duties prescribed by law and the ordinances of the city of Fargo; and (3) be authorized and empowered to issue proclamations, provided, that any such proclamation may be rescinded upon concurrence of at least three members of the board of city commissioners.

Source: 1965 Rev. Ord. 2-0103, 1524 (1973), 2172 (1984), 2219 (1985), 2488 (1989).

2-0104. Salary of commissioners.--Effective July 1, 1971, the salary of each member of the board of city commissioners of the city of Fargo shall not exceed the sum as established by the board of city commissioners at the annual budget sessions and as finally adopted and approved in the annual appropriation ordinance.

Source: 1965 Rev. Ord. 2-0104, 1524 (1973).

2-0105. Regular meetings of the board--When and where held.--A regular meeting of the board of city commissioners of the city of Fargo, North Dakota, shall be held at 5:00 p.m. at least once every two weeks and at such additional times as the board of city commissioners may establish. The meetings shall be held in the commission rooms at the city hall, except that a majority of the board may, at any regular or special meeting, vote to dispense with and not hold any regular meeting. The board of city commissioners shall, by resolution adopted on or before December 1 of the preceding year, establish the schedule of meetings for the following calendar year.

Source: 1965 Rev. Ord. 2-0105, 1524 (1973), 1717 (1976), 1734 (1976), 2191 (1985), 2233 (1985), 2376 (1987).

2-0106. Limitation on terms.--No member of the board of city commissioners may serve more than three (3) successive four-year terms; provided, that such term limitation shall be subject to the following:

A. Any member elected to a term of less than four years as a result of a vacancy on the board shall be eligible to serve three additional four-year terms and any such partial term or terms shall not be deemed to interrupt a succession of four-year terms.

B. Any member who has completed three successive four-year terms shall not be eligible for re-election until the next regular election following the expiration of such member's third successive term.

C. Any member who has served in the capacity of mayor, as well as city commissioner, may not serve more than four (4) successive four-year terms.

Source: Res. of 3-21-2022.

Editor's note—A Resolution adopted March 21, 2022 proposed an ordinance establishing term limits, and said ordinance was approved by a city-wide election held on June 14, 2022, effective July 11, 2022.

2-0107. Noxious weed control board--Appointment of city commissioners.--There is hereby established a weed control program within the jurisdictional limits of the city of Fargo, as provided in section 63-01.1-10.1, N.D.C.C. The board of city commissioners is hereby appointed to act as the weed control authority and is authorized to establish and administer the program.

Source: 2687 (1994).

ARTICLE 2-02

MUNICIPAL ELECTIONS

Section

2-0201 Qualification of electors.

2-0202 Elections--When held--Notice--Polls--Judges and inspectors.
2-0203 Elections--Provisions governing.
2-0204 Compensation of inspectors, judges and clerks of election.
2-0205 Election Procedures.

2-0201. Qualification of electors.--Every resident of the city of Fargo who is qualified to vote therein at general elections may vote at all municipal elections held therein. Each person shall vote in the precinct of which he is a resident.

Source: 1965 Rev. Ord. 2-0201, 1479 (1973).

2-0202. Elections--When held--Notice--Polls--Judges and inspectors.--Biennial city elections shall be held in the city of Fargo on the second Tuesday in June in each even-numbered year. The city elections shall comply with state law and the board of City Commissioners may contract with Cass County for all matters relating to conducting the city election.

Source: 1479 (1973), 2249 (1986), 4100 (2000), 5524 (2025).

2-0203. Elections--Provisions governing.--Municipal elections in the city of Fargo shall be conducted in accordance with the statutes of the state of North Dakota which relate to elections in cities with a commission form of government except as otherwise provided by city home rule charter, city ordinance or both home rule charter and ordinance.

Source: 1965 Rev. Ord. 2-0203, 1479 (1973), 5191 (2019).

2-0204. Compensation of inspectors, judges and clerks of election.--Each inspector, judge or clerk of any city election, for services performed by him at such election, shall receive as compensation therefor an hourly wage equal to the federal minimum wage then in effect, or such higher amount as may be established by resolution of the board of city commissioners prior to such election.

Source: 1965 Rev. Ord. 2-0204, 1839 (1978).

2-0205. Election Procedures.--

A. Methodology. City officials will be elected so that each voter may vote for as many candidates as there are open seats. The individual receiving the highest number of votes for any office is deemed elected to that office. Candidates receiving the most votes will be elected until all necessary seats are filled in each race.

B. Ballot instructions. For each race to elect city officials, the instructions on the ballot will instruct voters as to the maximum amount of candidates which a voter may select on the ballot for the specific race.

C. Reporting of Results. For each candidate's result in each race, reported vote percentage must be calculated by taking the total number of votes for that candidate divided by the total ballots cast.

Source: 5191 (2019), 5525 (2025).

CHAPTER 3

FINANCES

Article

3-01 Purchasing Procedure, §§ 3-0101 to 3-0107.
3-02 Bills, Claims, and Accounts against City, §§ 3-0201 to 3-0204.
3-03 Surety Bonds for City, § 3-0301.
3-04 Federal Revenue Sharing Funds, §§ 3-0401, 3-0402.
3-05 Bond Ordinances, §§ 3-0501, 3-0502.
3-06 Deferred Compensation Plan, §§ 3-0601 to 3-0607.
3-07 Taxation of Dwelling Units, Business and Commercial Establishments--Repealed.
3-08 Short-Term Municipal Indebtedness, § 3-0801.
3-09 Taxation of Local Telephone Service, §§ 3-0901 to 3-0904.
3-10 Special Assessments, §§ 3-1001 to 3-1006.
3-11 Special Improvement Districts, § 3-1101.
3-12 Municipal Budget, §§ 3-1201, 3-1202.
3-13 Lodging Tax, §§ 3-1301 to 3-1307.
3-14 Conference Center and City Lodging Tax, §§ 3-1401 to 3-1408.
3-15 Imposition of a Sales and Use Tax (Fargo Dome), §§ 3-1501 to 3-1510.
3-16 Imposition of a Sales and Use Tax (Street Improvements and Water Plant), §§ 3-1601 to 3-1610.
3-17 Special Assessment of Costs, §§ 3-1701 to 3-1703.
3-18 Promotion of Business Activity and Special Assessment of Costs, §§ 3-1801 to 3-1805.
3-19 Imposition of a Sales and Use Tax (Fargo Public Library), §§ 3-1901 to 3-1910
3-20 Imposition of a Sales and Use Tax (Infrastructure Capital Improvements), §§ 3-2001 to 3-2012.
3-21 Imposition of a Sales and Use Tax (Flood Risk Mitigation and Reduction Improvements), §§3-2101 to 3-2111.
3-22 Imposition of a Sales and Use Tax (Infrastructure Improvements Including Flood Protection), §§ 3-2201 to 3-2211.
3-23 Collection of Utilities and Services, §§ 3-2301, 3-2302.
3-24 Imposition of a Sales Tax (Fire and Police Operations, Equipment, and Buildings), §§ 3-2401 to 3-2412.

ARTICLE 3-01

PURCHASING PROCEDURE

Section

3-0101 Purchasing procedures.
3-0102 Regulations for purchases under $1,000.
3-0103 Approval of contracts.
3-0104 Inspection and receipt of purchases.
3-0105 Sale or leasing of city-owned property.
3-0106 Contracts for purchase of property.

3-0107 Investments in interest rate swaps or exchanges
3-0108

3-0101. Purchasing procedures.--The purchasing policy of the city of Fargo shall be policy as adopted by resolution of the board of city commissioners.

Source: 1952 Rev. Ord. 3-0102, 2158 (1984), 2440 (1989), 2489 (1989), 2759 (1995).

3-0102. Regulations for purchases under $1,000.--The board of city commissioners shall prescribe such regulations as are deemed advisable for the purchase of equipment and supplies not in excess of $1,000.

Source: 1952 Rev. Ord. 3-0103, 2158 (1984), 2440 (1989), 2489 (1989).

3-0103. Approval of contracts.--All contracts, either in the form of a written contract or a purchase order, except those covering purchases made for immediate use, shall be approved by the director of finance as to sufficiency of funds and appropriations before being executed.

Source: 1952 Rev. Ord. 3-0104, 2158 (1984), 2440 (1989), 2489 (1989).

3-0104. Inspection and receipt of purchases.--The responsibility for the inspection and acceptance of all materials, supplies, and equipment on a construction project shall rest with the using department or its designated agency. The receipt of purchases shall be indicated on the receiving report form provided therefor.

Source: 1952 Rev. Ord. 3-0105, 2158 (1984), 2440 (1989), 2489 (1989).

3-0105. Sale or leasing of city-owned property.--Whenever any real or personal property is no longer required for a public purpose, the same may be offered for sale by the board of city commissioners. Personal property having a value of $5,000 or less may be offered for sale and sold by the director of finance.

All sales of real property shall be by public sale unless the value of said property is estimated by the board of city commissioners to be of a value of less than $5,000, in which case, such property may be sold at private sale if authorized by resolution of the board of city commissioners.

Sale of property by public sale shall be authorized by resolution of the board of city commissioners and notice of said sale, together with any conditions imposed thereon, shall be published in the official newspaper of the city once each week for two consecutive weeks with the last publication being at least 10 days prior to the date of sale. Said notice shall specify whether the bids, or any other method of bidding as determined by the board of city commissioners and shall also state any conditions or limitations placed upon such sale.

Leasing or renting of real or personal property by the city or the Municipal Airport Authority of the City of Fargo shall be on such terms and conditions as the city or the Municipal Airport Authority may establish.

Sales of publicly-owned property which has been acquired by the city by forfeiture for nonpayment of special assessments and which is sold pursuant to § 57-28-17, N.D.C.C., and sales of property acquired specifically for resale, shall not be subject to the provisions of this ordinance.

Sales of real or personal property owned or held in the name of the municipal airport authority of the city of Fargo shall not be subject to the provisions of this ordinance. Sales of

such property may be made by proper action of a majority of the qualified and existing members of said Municipal Airport Authority on such terms and conditions as may be deemed necessary.

Source: 1952 Rev. Ord. 3-0106, 2158 (1984), 2440 (1989), 2489 (1989).

3-0106. Contracts for purchase of property.--Pursuant to the provisions of the Home Rule Charter of the city of Fargo, the city is hereby authorized by resolution or resolutions of its board of city commissioners to acquire any real or personal property, easement or right-of-way for any purpose authorized by law or necessary to the exercise of any power granted to the city under a contract providing for payment of the purchase price in installments over such period of years and bearing interest at such rate as may be agreed upon with the vendor, and providing for conveyance of title to the property upon completion of payment of the purchase price or upon execution of the contract, or at such intermediate time as may be agreed. The obligation of the city to pay the purchase price and interest thereon, if so directed by resolution of the board, may be evidenced by the issuance of a note or notes to the vendor in registered or bearer form with or without attached interest coupons, and upon such further terms and conditions as may be established by such resolutions. In computing at any time the amount of indebtedness which the city may validly incur within constitutional and statutory limitations, the then remaining balance of principal to be paid under any such contract, except any payments for which tax or other revenues of the current year have been duly appropriated, shall be included; and all interest thereon shall be excluded, except such interest, if any, which is at any time due and unpaid.

Source: Rev. Rev. Ord. 3-0107, 1803 (1977), 2158 (1984), 2440 (1989), 2489 (1989).

3-0107. Investments in interest rate swaps or exchanges.--The city is authorized to enter into contracts for interest rate swaps or exchanges as investments for its general fund, provided any such contract must first be competitively bid and approved by a majority vote of the city commission.

Source: 4037 (2000).

3-0108. The city may invest monies in its general fund, or balances in any special or temporary fund, in types of investments as authorized by state law, including Section 21-06-07 of the North Dakota Century Code. In addition, the city may invest such monies or balances in the following:

A. Direct obligations of the United States of America and securities fully and unconditionally guaranteed as to the timely payment of principal and interest by the United States of America, provided, that the full faith and credit of the United States of America must be pledged to any such direct obligation or guarantee ("Direct Obligations").

B. Debt securities issued by government sponsored enterprises ("GSE"), federal agencies, and federal financing banks.

C. Direct obligations of the state of North Dakota or any subdivision or agency thereof those unsecured, and uninsured is rated, at the time of purchase, "A3" or better by Moody's Investors Services and "A-" or better by Standard & Poor's Corporation, or any obligation fully and unconditionally guaranteed by any

state, subdivision or agency whose uninsured and unguaranteed general obligation debt is rated, at the time of purchase, "A3" or better by Moody's Investors Service and "A-" or better by Standard & Poor's Corporation.

D. Commercial paper rated, at the time of purchase, "P-1" by Moody's Investor's Services and "A-1" or better by Standard & Poor's Corporation.

E. Bankers' acceptances issued by a domestic bank or a branch office of a foreign bank which branch office is located in the United States.

F. Negotiable certificates of deposit issued by a nationally-chartered or state-chartered bank or a savings association or federal association, a state or federal credit union, or by a state-licensed branch of a foreign bank.

G. Certificates of deposit and time deposits issued or endorsed by a domestic bank, or a savings and loan association, organized and supervised under the laws of the United States and denominated in US dollars; provided, however, that deposits are fully insured or guaranteed by the Federal Deposit Insurance Corporation ("FDIC").

H. Obligations or notes issued by corporations organized and operating within the United States or by depository institutions licensed by the United States that have a minimum long term debt ratings, at the time or purchase, of "A3" by Moody's and "A-" by Standard & Poor's Corporation.

I. Investments in money-market funds rated "AAAm" by Standard & Poor's Corporation.

J. Repurchase agreements that are collateralized only by direct obligations of the U.S. government, or of Government National Mortgage Association ("GNMA"), The Federal National Mortgage Association ("FNMA", "Fannie Mae"), The Federal Home Loan Mortgage Corporation ("FHLMC", "Freddie Mac"), Federal Farm Credit Bank ("FFCB"), or Federal Home Loan Banks ("FHLB").

Source: 4844 (2012).

ARTICLE 3-02

BILLS, CLAIMS, AND ACCOUNTS AGAINST CITY

Section

3-0201 Bills, claims or accounts--Itemized statement--Approval required--Exceptions.
3-0202 Approval of bills, claims, or accounts by city department--Exceptions.
3-0203 Records kept regarding bills, claims, or accounts.
3-0204 Municipal court witnesses--Compensation.

3-0201. Bills, claims or accounts--Itemized statement--Approval required--Exceptions. No bill, claim, or account against the city of Fargo shall be paid unless an itemized statement or bill shall have been submitted and payment approved by the director of finance; provided, that fixed salaries of officials whose positions are continuing, contractual obligations, periodic billings for necessities such as electrical power and telephone service, and any other financial commitments which are included in the budget of the city of Fargo shall not require approval of the board of city commissioners prior to payment.

Source: 1965 Rev. Ord. 3-0203, 1696 (1976), 2491 (1989), 2816 (1997).

3-0202. Approval of bills, claims, or accounts by city department--Exceptions.--No bills, claims, or accounts shall be approved by the board of city commissioners unless it has been approved by the department for which the expense was incurred; provided, that fixed salaries of officials whose positions are continuing, contractual obligations, periodic billings for necessities such as electrical power and telephone service, and any other financial commitments which are included in the budget of the city of Fargo shall not require approval of the board of city commissioners prior to payment.

Source: 1952 Rev. Ord. 3-0204, 2491 (1989).

3-0203. Records kept regarding bills, claims, or accounts.--Except in the case of disputed or questioned bills, claims, or accounts, the certificate of the city finance office showing the date of approval and the amount allowed by the board of city commissioners shall constitute sufficient record of adequacy of consideration for said payment. The minutes of the meeting of the board of city commissioners shall include any action taken by the board of city commissioners in the case of disputed or questioned bills.

Source: 1952 Rev. Ord. 3-0206, 2491 (1989).

3-0204. Municipal court witnesses--Compensation.--A witness in municipal court is entitled to receive compensation for time necessarily spent in municipal court; provided, that such compensation shall be in an amount to be established by resolution of the board of city commissioners. A witness who is subpoenaed in two or more cases by the same party shall be entitled to one compensation only from such party for the same days as attendance or travel.

Source: 2491 (1989).

ARTICLE 3-03

SURETY BONDS FOR CITY

Section

3-0301 Surety bonds--Power of board of city commissioners to obtain for city.

3-0301. Surety bonds--Power of board of city commissioners to obtain for city.--The board of city commissioners shall procure, on behalf of the city, such surety bonds as may be required by law in proceedings on appeal or writ of certiorari, or in any action, case, or proceeding in which the city is involved. The board of city commissioners and such sureties as may execute such bonds on behalf of the city and shall be kept harmless by the city therefor.

Source: 1952 Rev. Ord. 3-0301.

ARTICLE 3-04

FEDERAL REVENUE SHARING FUNDS

Section

3-0401 Trust fund established.
3-0402 Disbursement of funds.

3-0401. Trust fund established.--There is hereby established a trust fund to be known as the Federal Revenue Sharing Fund, said trust fund to be established on the books and records of the city as a separate set of accounts and shall be accounted for in a manner customarily followed by the city in accounting for trust or other segregated funds as required by Public Law 92-512.

Source: 1965 Rev. Ord. 3-0401, 1457 (1973).

3-0402. Disbursement of funds.--All funds disbursed from the trust fund referred to in § 3-0401 shall be strictly accounted for and all such disbursements and expenditures shall be in accordance with guidelines which have been or may hereinafter be adopted by the United States Department of the Treasury, as provided in United States Public Law 92-512.

Source: 1965 Rev. Ord. 3-0402, 1457 (1973).

ARTICLE 3-05

BOND ORDINANCES

Section

3-0501 Municipal auditorium--Air conditioning.
3-0502 Garbage and waste disposal system.

3-0501. Municipal auditorium--Air conditioning.--Pursuant to the provisions of the Limited Home Rule Charter of the city of Fargo, the city is hereby authorized, by resolution or resolutions of its board of city commissioners, to issue bonds of the city in an amount not exceeding $160,000 for the purpose of improving the municipal auditorium of the city by the purchase and installation therein of an air conditioning system. The construction and financing of said improvement shall be carried out in the same manner as authorized for an undertaking under the provisions of North Dakota Century Code, chapter 40-35, as amended.

In the resolution authorizing the issue of such bonds, the city may covenant and agree that such bonds shall be payable from the gross revenues of the auditorium, before deduction therefrom of any of the costs of operation, maintenance, repair or depreciation thereof.

Source: 1965 Rev. Ord. 3-0501, 1469 (1973).

3-0502. Garbage and waste disposal system.--Pursuant to the provisions of the Limited Home Rule Charter of the city of Fargo, the city is hereby authorized, by resolution or resolutions of its board of city commissioners, to issue revenue bonds of the city for the purpose of acquisition, construction, reconstruction, improvement, betterment and extension of the municipal system for the collection, treatment, and disposal of garbage and other solid waste, in the same manner as authorized for undertakings financed under the provisions of North Dakota Century Code, chapter 40-35, as amended.

Source: 1965 Rev. Ord. 3-0502, 1483 (1973).

ARTICLE 3-06

DEFERRED COMPENSATION PLAN

Section

3-0601 Deferred compensation for city employees--Investment of funds.

3-0602 Deferred compensation program committee--Agreements.
3-0603 Deferred compensation program--Administration.
3-0604 Definition--Employee.
3-0605 Committee authorized to make payments.
3-0606 Deferred compensation program--Benefits--Taxation.
3-0607 Liability under deferred compensation program.

3-0601. Deferred compensation for city employees--Investment of funds.--The city may, by contract, agree with any employee to defer in whole or in part, any portion of that employee's compensation. The city may, for the purpose of funding such deferred compensation program, contract for, purchase or otherwise procure an annuity contract or a contract (other than a life, health, or accident, property, casualty, or liability insurance contract) from any insurance company licensed to contract business in the state of North Dakota. Any employee deferrals which are not so invested in a contract with an insurance company shall be deposited into a trust fund held for the exclusive benefit of participants and their beneficiaries with a trustee under a trust agreement entered into by the city for the purpose of holding such deferred compensation contributions.

Source: 1965 Rev. Ord. 3-0601, 1621 (1974), 2854 (1998).

3-0602. Deferred compensation program committee--Agreements.--There is hereby created a body to be known as the "deferred compensation program committee", hereinafter referred to in this article as "the committee". The committee shall consist of three members, who shall be appointed by the board of city commissioners of the city of Fargo, one of whom shall each be nominated by the board of trustees of the city employee's pension plan, the police pension fund, and the fireman's pension system, respectively. Members of the committee may be employees of the city. Committee members shall serve until removed or replaced by the board of city commissioners.

Source: 1965 Rev. Ord. 3-0602, 1621 (1974), 2854 (1998).

3-0603. Deferred compensation program--Administration.--The administration of the deferred compensation program of the city of Fargo shall be under the direction of the committee and shall comply with the provisions of the deferred compensation plan of the city of Fargo as approved by the Internal Revenue Service. The committee is hereby authorized to amend the deferred compensation plan from time to time in order to comply with changes to the Internal Revenue Code and to make other design changes to the plan. Payroll deductions shall be made in each instance by the appropriate payroll officer. The city may, upon recommendation of the committee, contract with a private corporation or institution for providing consolidated billing and other administrative services.

Source: 1965 Rev. Ord. 3-0603, 1621 (1974), 2854 (1998).

3-0604. Definition--Employee.--For the purpose of this article the term "employee" shall mean any person, whether appointed, elected or under contract, providing services to the city for which compensation is paid.

Source: 1965 Rev. Ord. 3-0604, 1621 (1974), 2854 (1998).

3-0605. Committee authorized to make payments.--Notwithstanding any other provision of law to the contrary, the committee is hereby authorized to make payment of premiums

for the purchase of fixed or variable life insurance or annuity contracts described in § 3-0601 under the deferred compensation program. Such payments shall not be construed to be a prohibited use of the general assets of the city.

Source: 1965 Rev. Ord. 3-0605, 1621 (1974), 2854 (1998).

3-0606. Deferred compensation program--Benefits--Taxation.--The deferred compensation program established by this article shall exist and serve, in addition to retirement, pension or benefit systems established by the city, and no deferral of income under the deferred compensation program shall effect a reduction of any retirement, pension or other benefit provided by law. However, any sum deferred under the deferred compensation program shall not be subject to taxation until distribution is actually made to the employee.

Source: 1965 Rev. Ord. 3-0606, 1621 (1974), 2854 (1998).

3-0607. Liability under deferred compensation program.--The financial liability of the city under the deferred compensation program shall be limited at any time to the then current value of any insurance or annuity contracts and trust funds maintained for purposes of investing the contributions under the deferred compensation program.

Source: 1965 Rev. Ord. 3-0607, 1621 (1974), 2854 (1998).

ARTICLE 3-07

TAXATION OF DWELLING UNITS, BUSINESS AND COMMERCIAL ESTABLISHMENTS

Note: Article 3-07 of chapter 3 of the Revised Ordinances of 1965 (sections 3-0701 to 3-0703 as enacted by Ord. No. 1584, §§ 1 to 3, 1974), was repealed by Ord. No. 1597, 1974.

ARTICLE 3-08

SHORT-TERM MUNICIPAL INDEBTEDNESS

Section

3-0801 Certificates of indebtedness--Negotiation.
3-0802 Issuance of bonds or other obligations.

3-0801. Certificates of indebtedness--Negotiation.--Notwithstanding the provisions of § 21-02-11 of the North Dakota Century Code, the board of city commissioners of the city of Fargo may, upon determination of necessity therefor, borrow upon certificates of indebtedness in order to provide short-term financing for the city of Fargo.--Such certificates may be issued without limitation as to amount and without advertising for bids as required for the sale of bonds as referred to in said § 21-02-11 of the North Dakota Century Code.

Source: 1965 Rev. Ord. 3-0801, 1665 (1975).

3-0802. Issuance of bonds or other obligations.--Pursuant to the provisions of the Limited Home Rule Charter of the city of Fargo, the city is hereby authorized, by resolution or resolutions of its board of city commissioners, to contract debts, borrow money, and issue bonds, warrants, or other obligations, subject to the provisions of this section, to pay the costs

of the acquisition, construction, improvement, betterment, extension, and equipping of a public facility or undertaking, as determined by resolution of the board of city commissioners. The obligations issued hereunder may be in the form of bonds, notes, warrants, loan agreements, leases, installment sale contracts, or other contracts or obligations, including sale lease-back and lease lease-back financings.

Each obligation shall provide that all payments of principal and interest, however designated, shall be subject to annual appropriation, or annual termination by a resolution of nonappropriation, by the board of city commissioners. Each obligation issued under this provision shall state that it is not a general obligation of the city to which the city's full faith and taxing power is pledged. Obligations may be sold at public or private sale, bear interest at fixed or variable rates, be in such principal amount, mature, or be subject to redemption on such dates, and contain such covenants or other terms as authorized by resolution of the board of city commissioners. The board of city commissioners may secure, by resolution, the obligations issued hereunder with a pledge, mortgage lien, security interest, or lessor's interest in such property or revenues as determined by the board of city commissioners to be necessary or appropriate. The provisions of this section are in addition to, and not in limitation of, any other power or authority of the city pursuant to law or its Limited Home Rule Charter to contract debts, borrow money, or issue bonds or other evidences of indebtedness.

Source: 4912 (2014)

ARTICLE 3-09

TAXATION OF LOCAL TELEPHONE SERVICE

Note: This article was enacted by Ord. No. 1444, 1972 as "Article 3-04 of chapter 3"; however, the ordinance was the subject of litigation and did not become effective until a later date. The compiler re-designated the article as "3-09".

Section

3-0901 Definitions.
3-0902 Tax on local telephone service.
3-0903 Collection of tax.
3-0904 Exemptions.

3-0901. Definitions.--

1. Telephone company - shall mean all persons, firms, or corporations engaged in the business of furnishing communications by telephone.

2. Local telephone service - shall mean the furnishing of communications by telephone in the city of Fargo, North Dakota.

3. Local telephone receipts - shall mean gross receipts from the furnishing of local telephone service including local service and directory representation, but specifically excluding receipts from the following:

a. sale of "yellow pages" advertising;
b. long distance telephone service;
c. sale of equipment; and
d. equipment installation charges.

Source: 1965 Rev. Ord. 3-0401, 1444 (1972), 2056 (1982).

3-0902. Tax on local telephone service.--A tax of 2% is hereby imposed upon gross receipts from local telephone service which tax shall be computed on a monthly basis by each and every telephone company based upon the application of such tax rate to all local telephone service receipts as herein defined.

Source: 1965 Rev. Ord. 3-0402, 1444 (1972).

3-0903. Collection of tax.--The tax hereby imposed shall be computed and collected by each and every telephone company on a monthly basis and remitted to the city of Fargo on or before the last day of each month following the month in which such local telephone service was furnished. The telephone company shall be entitled to 3.0 percent of such tax as a fee for such collection.

Source: 1965 Rev. Ord. 3-0903, 1444 (1972).

3-0904. Exemptions.--Gross receipts from telephone service which are exempt from the North Dakota state sales tax shall be exempt from the provisions of this article.

Source: 1965 Rev. Ord. 3-0404, 1444 (1972).

ARTICLE 3-10

SPECIAL ASSESSMENTS

Section

3-1001 Special assessment commission.
3-1002 Number of members--Terms of members--Appointment of members--Filling vacancies.
3-1003 Powers and duties of commission.
3-1004 Deferment of special assessments permitted.
3-1005 Bond payments on deferred assessments.
3-1006 Power of city to defray expense of improvements by special assessment.

3-1001. Special assessment commission.--There is hereby created a body to be known as the special assessment commission of the city of Fargo, which shall have all the powers and duties hereinafter prescribed.

Source: 1965 Rev. Ord. 3-1001, 1805 (1977).

3-1002. Number of members--Terms of members--Appointment of members--Filling vacancies.--The special assessment commission of the city of Fargo shall consist of three members who shall be appointed by the president of the board of city commissioners, subject to confirmation by the board of city commissioners. The terms of office of such commissioners shall be as follows, to-wit: one member who shall serve until July 1, 1978; one member who shall serve until July 1, 1979; one member who shall serve until July 1, 1980. At the expiration of the terms of the members as aforesaid, members shall be appointed for three-year terms. If a vacancy occurs otherwise than by expiration of a term, it shall be filled for the unexpired portion of the term by appointment and confirmation as set forth above. Notwithstanding the expiration of a member's term, such member may serve until his or her successor has been appointed and qualified.

Source: 1965 Rev. Ord. 3-1002, 1805 (1977).

3-1003. Powers and duties of commission.--The special assessment commission of the city of Fargo shall have such powers and shall perform such duties as may now or hereinafter be provided by the laws of the state of North Dakota and all provisions of chapter 40-23 which are not in conflict with this ordinance shall remain in full force and effect.

Source: 1965 Rev. Ord. 3-1003, 1805 (1977).

3-1004. Deferment of special assessments permitted.--The city commission, by resolution, may defer special assessments on undeveloped property for a period not to exceed ten (10) years or until the property is platted or a building permit is issued for the property, whichever is earlier. The resolution must be passed by the city commission prior to the publication of the Resolution of Necessity, if necessary, or, if no Resolution of Necessity is necessary, prior to the award of the construction contract. The resolution should set out the property given the exemption, the specific terms of the deferment, and shall be in such form so that it can be recorded at the Register of Deeds' office. If assessments are deferred by resolution of the city commission pursuant to this section, once the period of deferment ends on a particular property, the assessments shall be spread over the same number of years as the non-deferred assessments in the district. If all assessments are deferred in the district, the length of the assessment shall be determined by the number of years over which assessments are spread for similar improvements in the city of Fargo. The first year's assessment shall bear interest for only one year, not interest for the entire deferment period.

Source: 3055 (1999)

3-1005. Bond payments on deferred assessments.--The city may use sales tax proceeds or other city funds to make timely principal or interest payments on any bonds issued by the city where the collection of special assessments is insufficient to make timely bond payments as a result of deferred special assessments. Any such payments made with city funds may be reimbursed from the subsequent collection of special assessments for that district in excess of the amount necessary to pay the principal and interest on any bonds issued for that district. The city is authorized to continue levying special assessments on the deferred property for the appropriate time period, even if the underlying bonds have been paid off, and all such funds shall be used to reimburse the city for city funds used to pay principal and interest on the bonds.

Source: 3055 (1999).

3-1006. Power of city to defray expense of improvements by special assessments.--In addition to those powers enumerated in state law, the city may defray the expense of the following type of improvement by special assessments:

A. The improvement of property for the construction of railroad spur lines including any one or more of the processes of acquisition, opening, widening, grating, graveling, and repairing of any such railroad spur lines. Such power shall include the acquiring, leasing or otherwise obtaining the necessary property and easements for the same.

Source: 4021 (2000).

ARTICLE 3-11

SPECIAL IMPROVEMENT DISTRICTS

Section

3-1101 Creation of special improvement district--Acquisition of sewer and water facilities.

3-1101. Creation of special improvement district--Acquisition of sewer and water facilities.--Pursuant to the provisions of the Limited Home Rule Charter of the city of Fargo, the city is hereby authorized, by resolution or resolutions of its board of city commissioners, to create a special improvement district which shall include the following-described area:

> East one-half (E½) of Section Fifteen (15), Township One Hundred Thirty-nine North (T. 139 N.), Range Forty-nine West (R. 49 W) of the 5th principal meridian

and to acquire previously constructed sewer and water facilities located within such area. The special improvement district shall be created upon the receipt of a petition which the board of city commissioners determines by resolution has been signed by the owners of all of the area of property to be included within the special improvement district. To finance the acquisition of said previously constructed sewer and water facilities, the city is authorized to issue warrants on the fund of such special improvement district, pursuant to the provisions of § 40-24-19 of the North Dakota Century Code, and to issue bonds for the purchase of such outstanding warrants pursuant to chapter 40-27 of the North Dakota Century Code, and to levy special assessments to defray the cost thereof.

Source: 1965 Rev. Ord. 3-1101, 1951 (1979).

ARTICLE 3-12

MUNICIPAL BUDGET

Note: This article was enacted by Ord. No. 1994, 1980 as "Article 3-10 of chapter 3"; however, since the article designation "3-10" was used for Ord. No. 1805, 1977, the compiler has assigned number "3-12" to the 1980 ordinance.

Section

3-1201 State law adopted.
3-1202 Fiscal year.

3-1201. State law adopted.--Except as hereinafter provided, the preparation and adoption of the annual budget for the city of Fargo shall be in accordance with chapter 40-40 of the North Dakota Century Code and other applicable statutes of the state of North Dakota.

Source: 1965 Rev. Ord. 3-1001, 1994 (1980).

3-1202. Fiscal year.--The fiscal year of the city of Fargo shall be the calendar year commencing on the 1st day of January of each year and commencing (ending) on the 31st day of December.

Source: 1965 Rev. Ord. 3-1001, 1994 (1980).

ARTICLE 3-13

LODGING TAX

Section

3-1301 Definition.
3-1302 Tax on gross receipts.
3-1303 Collection of tax.
3-1304 Tax receipts--Utilization--Visitors Promotion Fund and Visitors Capital Construction Fund.
3-1305 Administration of fund--Convention and Visitors Bureau.
3-1306 Budget.
3-1307 Failure to comply--Penalty.

3-1301. Definition.--

1. "Gross receipts" - shall mean receipts of retailers for the leasing or renting of a hotel or motel room or other accommodations occupied by the same natural person or persons for residential housing, for periods of fewer than thirty consecutive calendar days within the corporate limits of the city of Fargo.

2. "Retailer" - shall mean any person, firm or corporation in the business of leasing or renting hotel, motel or other accommodations for periods of fewer than thirty consecutive calendar days or one month.

3. "Visitors Promotion Fund" - shall be comprised of the funds created by collection of the tax imposed by this ordinance, less any amount which may be retained by the city for the collection of such tax.

Source: 2014 (1981), 4960 (2015), 5232 (2019).

3-1302. Tax on gross receipts.--A tax is hereby imposed upon gross receipts as defined herein, which tax shall be computed on a monthly basis by each and every hotel, motel or other accommodations located within the corporate limits of the city of Fargo. Said tax must be in addition to the state sales tax on rental accommodations provided in chapter 57-39.2. The amount of such tax shall be as follows:

A. Two percent (2%) to be placed in the visitors promotion fund of the Fargo-Moorhead Convention and Visitors Bureau in accordance with § 40-57.3-02, N.D.C.C.

B. One percent (1%) to be placed in the visitors promotion capital construction fund of the Fargo-Moorhead Convention and Visitors Bureau to be used as provided in § 40-57.3-03, N.D.C.C.

Source: 2014 (1981), 2595 (1991), 2602 (1992), 5232 (2019).

3-1303. Collection of tax.--The tax hereby imposed shall be computed by every retailer and paid to the city of Fargo. Such computation shall be on a monthly basis and payment for each month shall be made to the city on or before the 10th day of the following month. The payment shall be accompanied by a report indicating the amount of gross receipts for the reporting period and shall be certified by a certified public accountant or by the retailer, or managing officer thereof. The city may retain up to 3% of the total amount collected for administrative costs.

Source: 2014 (1981), 2237 (1986).

3-1304. Tax receipts--Utilization--Visitors Promotion Fund and Visitors Capital Construction Fund.--There are hereby created two funds to be known as the visitors promotion fund and the visitors promotion capital construction fund, and all taxes collected pursuant to this ordinance, less costs of administration as hereinabove provided, shall be placed in these funds and utilized for the purpose of promoting tourism in the city of Fargo and to encourage and attract visitors to come to the city of Fargo.

Source: 2014 (1981), 2602 (1992).

3-1305. Administration of fund--Convention and Visitors Bureau.--The visitors promotion fund and the visitors promotion capital construction fund shall be administered by the Fargo-Moorhead Convention and Visitors Bureau pursuant to agreement with the city of Fargo. The members of the board of directors of the Fargo-Moorhead Convention and Visitors Bureau shall receive no compensation payable from the visitors promotion fund except reimbursement for necessary expenses.

Source: 2237 (1986), 2602 (1992).

3-1306. Budget.--The operating budget for the Fargo-Moorhead Convention and Visitors Bureau shall be established annually by the board of directors of the Fargo-Moorhead Convention and Visitors Bureau and thereafter, submitted to the board of city commissioners for its approval.

Source: 2014 (1981), 2237 (1986).

3-1307. Failure to comply--Penalty.--If any retailer shall fail to make payment as required by this article or to file the necessary report within the time provided, or, if upon audit, is found to owe additional tax, such retailer shall be subject to a penalty of 5% of the amount of tax due, plus interest of 1% of such tax for each month of delay or a fraction thereof. The board of city commissioners, if satisfied that the delay was excusable, may waive all or any part of such penalty and interest. Any penalty and interest paid shall be utilized in the same manner as other receipts under this chapter.

Source: 2237 (1986).

ARTICLE 3-14

CONFERENCE CENTER AND CITY LODGING TAX

Section

3-1401. Definition.
3-1402. Tax on gross receipts.
3-1403. Collection of tax.
3-1404. Dedication of Tax Proceeds--Conference Center Capital Construction Fund.
3-1405. Administration of fund.
3-1406. Management, Operations, Maintenance and Budget.
3-1407. Term.
3-1408. Failure to comply--Penalty.

3-1401. Definition.--

1. "Gross receipts" - shall mean receipts of retailers for the leasing or renting of a hotel or motel room or other accommodations occupied by the same natural person or persons for residential housing, for periods of fewer than thirty consecutive calendar days within the corporate limits of the city of Fargo.

2. "Retailer" - shall mean any person, firm or corporation in the business of leasing or renting hotel, motel or other accommodations for periods of fewer than thirty consecutive calendar days or one month.

Source: 5465 (2025).

3-1402. Tax on gross receipts.--A tax is hereby imposed upon gross receipts as defined herein, which tax shall be computed on a monthly basis by each and every hotel, motel or other accommodations located within the corporate limits of the city of Fargo. Said tax must be in addition to the state sales tax on rental accommodations provided in chapter 57-39.2 and said tax must be in addition to the existing city lodging tax imposed pursuant to Fargo municipal code, article 3-13. The amount of such tax shall be three percent (3%) of the gross receipts to be initially placed in an improvement construction fund of the city of Fargo in accordance with the home rule charter of the city of Fargo, Article 3.V.

Source: 5465 (2025).

3-1403. Collection of tax.--The tax hereby imposed shall be computed by every retailer and paid to the city of Fargo. Such computation shall be on a monthly basis and payment for each month shall be made to the city on or before the 10th day of the following month. The payment shall be accompanied by a report indicating the amount of gross receipts for the reporting period and shall be certified by a certified public accountant or by the retailer, or managing officer thereof. The city may retain up to 3% of the total amount collected for administrative costs.

Source: 5465 (2025).

3-1404. Dedication of Tax Proceeds--Conference Center Capital Construction Fund. There is hereby created a fund to be known as the conference center capital construction fund, and all taxes collected pursuant to this ordinance, less costs of administration as hereinabove provided, shall initially be placed in this fund and said fund, along with interest and other authorized investment earnings, shall be utilized for costs associated with construction of a conference center, at a location within the city of Fargo to be determined by a request for proposal process established by the board of city commissioners of the city, and with ongoing capital projects, maintenance, operation and functionally-related facilities (the "Projects"), all as the board of city commissioners of the city may select. Such expenditures may be used to acquire property; enter into agreements; make, install, construct or build improvements and engage in projects and activities as are necessary and appropriate for such purposes. Interest earnings on such proceeds may be utilized for other such capital improvements. Proceeds from such tax may be used to make direct payment for such expenditures or improvements or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs.

Source: 5465 (2025).

3-1405. Administration of fund.--The conference center capital construction fund shall be administered by the city director of finance unless otherwise established by the board of city commissioners by resolution or ordinance.

Source: 5465 (2025).

3-1406. Management, Operations, Maintenance and Budget.--Upon completion of construction of the Projects, the city will be responsible for the management, operations and

maintenance of the Projects unless otherwise established by the board of city commissioners by resolution or ordinance. The city may enter into one or more agreements by which some or all of the tasks associated with such management, operations and maintenance are delegated to a third party. An operating budget for the conference center and functionally-related facilities shall be established annually by a person, firm or entity as determined by the board of city commissioners and such operating budget shall be submitted to the board of city commissioners for its approval.

Source: 5465 (2025).

3-1407. Term.--The collection of the tax imposed by this article shall be for a term not to exceed a period of twenty-five (25) years and the collection of the tax shall only be commenced once the board of city commissioners has identified a specific project in accordance with the requirements set forth in Article 3.V of the home rule charter of the city of Fargo. The date of commencement of the collection of said tax and the period for such collection shall be established either by amendment of this section or by separate ordinance. Furthermore, as provided by Article 3.V of the home rule charter of the city of Fargo, if no project is identified, and the collection of the tax is not implemented by December 31, 2028, authorization of the tax shall expire.

Source: 5465 (2025).

3-1408. Failure to comply--Penalty.--If any retailer shall fail to make payment as required by this article or to file the necessary report within the time provided, or, if upon audit, is found to owe additional tax, such retailer shall be subject to a penalty of 5% of the amount of tax due, plus interest of 1% of such tax for each month of delay or a fraction thereof. The board of city commissioners, if satisfied that the delay was excusable, may waive all or any part of such penalty and interest. Any penalty and interest paid shall be utilized in the same manner as other receipts under this chapter.

Source: 5465 (2025).

ARTICLE 3-15

IMPOSITION OF A SALES AND USE TAX (FARGODOME)

Section

3-1501 Definitions.
3-1502 Sales tax imposed.
3-1503 Use tax imposed.
3-1504 Exemptions.
3-1505 Maximum tax imposed.
3-1506 Collection and administration.
3-1507 Contract with state tax commissioner.
3-1508 Corporate officer liability.
3-1509 Dedication of tax proceeds.
3-1510 Term.

3-1501. Definitions.--All terms defined in chapter 57-39.2, N.D.C.C. and chapter 57-40.2, N.D.C.C., including all future amendments, are adopted by reference.

Source: 2430 (1988).

3-1502. Sales tax imposed.--Except as otherwise provided in this article, a tax of one-half of one percent (.5%) is imposed upon the gross receipts of retailers from all retail sales within the corporate limits of the city of Fargo, North Dakota, of the following:

A. Tangible personal property, consisting of goods, wares, or merchandise.

B. The furnishing or service of gas, communication services, or steam other than steam used for processing agricultural products.

C. Tickets or admissions to places of amusement or entertainment or athletic events, including amounts charged for participation in an amusement, entertainment, or athletic activity; but not including the playing of any machine for amusement or entertainment in response to the use of a coin.

D. Magazines and other periodicals.

E. The leasing or renting of a hotel or motel room or tourist court accommodations.

F. The leasing or renting of tangible personal property, the transfer of title to which has not been subjected to a retail sales tax under this article.

G. Sales of alcoholic beverages and tobacco products as defined in § 57-39.2-03.2, N.D.C.C.

H. Furnishing and installment or attachment to real property in this state by a contractor or a subcontractor who is a retailer of drapes, hardware for hanging drapes, or carpet for floor covering.

Source: 2430 (1988), 2615 (1992).

3-1503. Use tax imposed.--Except as otherwise provided in this article, an excise tax of one-half of one percent (.5%) is imposed on the storage, use, or consumption in the city of Fargo on:

A. The purchase price of tangible personal property purchased at retail for storage, use, or consumption within the city.

B. The fair market value of tangible personal property which was not originally purchased for storage, use or consumption in the city, at the time which it is brought into this city.

C. Alcoholic beverages and tobacco products which are stored, used or consumed in this city, as provided in § 57-39.2-03.2, N.D.C.C.

D. The purchase price of tangible personal property used by a contractor or subcontractor to fulfill a contract as defined in § 57-40.2-03.3, N.D.C.C. This tax applies only to bids submitted on or after January 17, 1989.

Source: 2430 (1988).

3-1504. Exemptions.--All sales, storage, use, or consumption of tangible personal property which are exempt from imposition and computation of the sales or use tax of the state of North Dakota are specifically exempt from the provisions of this article.

Source: 2430 (1988).

3-1505. Maximum tax imposed.--No single transaction involving one or more items is subject to a tax in excess of $12.50.

Source: 2430 (1988).

3-1506. Collection and administration.--The tax commissioner and the director of finance for the city of Fargo shall have the powers enumerated in the provisions of chapter 57-39.2, N.D.C.C., and chapter 57-40.2, N.D.C.C., relating to the collection and administration of the state sales and use tax, including all administrative rules adopted by the tax commissioner. The tax commissioner is authorized to establish rate tables integrating the tax imposed by this chapter with other state, county and city taxes.

Source: 2430 (1988).

3-1507. Contract with state tax commissioner.--The director of finance for the city of Fargo is hereby authorized to contract with the tax commissioner for the administration and collection of taxes imposed by this chapter. The director of finance has all powers granted the

commissioner and in the absence of a valid contract with the commissioner or failure of the commissioner to perform the delegated duties, shall perform these duties in place of the commissioner.

Source: 2430 (1988).

3-1508. Corporate officer liability.--Officers of any corporation required to remit taxes imposed by this article are personally liable for the failure of the corporation to file required returns or remit required payments. The dissolution of a corporation shall not discharge an officer's liability for a prior failure of the corporation to make a return or remit the tax due. The tax, penalty, and interest due may be assessed and collected pursuant to the provisions adopted by this article.

Source: 2430 (1988).

3-1509. Dedication of tax proceeds.--In accordance with Article 3P(4) of the Home Rule Charter of the city of Fargo, the revenues raised and collected pursuant to this article, less administrative expenses, are hereby dedicated to the construction, maintenance, and operation of a multi-purpose dome facility to be located on or adjacent to the campus of North Dakota State University to be used as a center for conventions and/or conferences, musical activities, sports activities and such other convention, cultural and sports functions as the dome authority, hereinafter created, may deem appropriate. Proceeds from such tax may be used to make direct payment of the costs for such construction, maintenance and operation or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs; provided, that such proceeds shall be deposited in two separate funds, to be established and utilized as follows:

A. FargoDome Debt Service and Reserve Fund - Proceeds from the sales and use tax shall be placed in this fund in an amount which is sufficient to amortize any bonds or other debt instruments which may be sold to finance the construction cost of the FargoDome, and to provide a reserve therefor. The amount to be placed in this fund and disbursed therefrom shall be as provided in any resolution authorizing the bonds or other debt instruments.

B. FargoDome Sales Tax Surplus Fund - All proceeds from the sales and use tax which are not placed in the FargoDome Debt Service and Reserve Fund as hereinabove provided shall be placed in this fund to be utilized for construction, operation, and maintenance of the FargoDome. Use of such funds by the Fargo Dome Authority shall be subject to approval of the board of city commissioners of the city of Fargo.

Source: 2430 (1988), 2507 (1989).

3-1510. Term.--A tax imposed by this article shall be in full force and effect through December 31, 2008.

Source: 2430 (1988).

ARTICLE 3-16

IMPOSITION OF A SALES AND USE TAX (STREET IMPROVEMENTS AND WATER PLANT)

3-1601 Definitions.

3-1602 Sales tax imposed.
3-1603 Use tax imposed.
3-1604 Exemptions.
3-1605 Maximum tax imposed.
3-1606 Collection and administration.
3-1607 Contract with state tax commissioner.
3-1608 Corporate officer liability.
3-1609 Dedication of tax proceeds.
3-1610 Term.

3-1601. Definitions.--All terms defined in chapter 57-39.2, N.D.C.C., and chapter 57-40.2, N.D.C.C., including all future amendments, are adopted by reference.

Source: 2614 (1992).

3-1602. Sales tax imposed.--Except as otherwise provided in this article, a tax of one-half of one percent (.5%) is imposed upon the gross receipts of retailers from all retail sales within the corporate limits of the city of Fargo, North Dakota, of the following:

A. Tangible personal property, consisting of goods, wares, or merchandise.

B. The furnishing or service of gas, communication services, or steam other than steam used for processing agricultural products.

C. Tickets or admissions to places of amusement or entertainment or athletic events, including amounts charged for participation in an amusement, entertainment, or athletic activity; but not including the playing of any machine for amusement or entertainment in response to the use of a coin.

D. Magazines and other periodicals.

E. The leasing or renting of a hotel or motel room or tourist court accommodations.

F. The leasing or renting of tangible personal property, the transfer of title to which has not been subjected to a retail sales tax under this article.

G. Sales of alcoholic beverages and tobacco products as defined in § 57-39.2-03.2, N.D.C.C.

H. Furnishing and installment or attachment to real property in this state by a contractor or a subcontractor who is a retailer of drapes, hardware for hanging drapes, or carpet for floor covering.

Source: 2614 (1992).

3-1603. Use tax imposed.--Except as otherwise provided in this article, an excise tax of one-half of one percent (.5%) is imposed on the storage, use, or consumption in the city of Fargo on:

A. The purchase price of tangible personal property purchased at retail for storage, use, or consumption within the city.

B. The fair market value of tangible personal property which was not originally purchased for storage, use or consumption in the city, at the time which it is brought into this city.

C. Alcoholic beverages and tobacco products which are stored, used or consumed in this city, as provided in § 57-39.2-03.2, N.D.C.C.

D. The purchase price of tangible personal property used by a contractor or subcontractor to fulfill a contract as defined in § 57-40.2-03.3, N.D.C.C. This tax applies only to bids submitted on or after May 5, 1992.

Source: 2614 (1992).

3-1604. Exemptions.--All sales, storage, use, or consumption of tangible personal property which are exempt from imposition and computation of the sales or use tax of the state of North Dakota are specifically exempt from the provisions of this article.

Source: 2614 (1992).

3-1605. Maximum tax imposed.--No single transaction involving one or more items is subject to a tax in excess of $12.50.

Source: 2614 (1992).

3-1606. Collection and administration.--The tax commissioner and the director of finance for the city of Fargo shall have the powers enumerated in the provisions of chapter 57-39.2, N.D.C.C., and chapter 57-40.2, N.D.C.C., relating to the collection and administration of the state sales and use tax, including all administrative rules adopted by the tax commissioner. The tax commissioner is authorized to establish rate tables integrating the tax imposed by this chapter with other state, county and city taxes.

Source: 2614 (1992).

3-1607. Contract with state tax commissioner.--The director of finance for the city of Fargo is hereby authorized to contract with the tax commissioner for the administration and collection of taxes imposed by this chapter. The director of finance has all powers granted the commissioner and in the absence of a valid contract with the commissioner or failure of the commissioner to perform the delegated duties shall perform these duties in place of the commissioner.

Source: 2614 (1992).

3-1608. Corporate officer liability.--Officers of any corporation required to remit taxes imposed by this article are personally liable for the failure of the corporation to file required returns or remit required payments. The dissolution of a corporation shall not discharge an officer's liability for a prior failure of the corporation to make a return or remit the tax due. The tax, penalty, and interest due may be assessed and collected pursuant to the provisions adopted by this article.

Source: 2614 (1992).

3-1609. Dedication of tax proceeds.--In accordance with Article 3Q(4) and (5) of the Home Rule Charter of the city of Fargo, one-half of the revenues raised and collected pursuant to this article, less administrative expenses, are hereby dedicated and shall be utilized for street improvements; and one-half of such revenues, less administrative expenses, are dedicated and shall be utilized for construction of a water treatment plant, with a portion of the interest earnings on such proceeds to be used for other capital improvements. Proceeds from such tax may be used to make direct payment of the costs for such street improvements

and water plant construction, or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs; provided, that such proceeds shall be deposited in three separate funds, to be established and utilized as follows:

A. Fargo Street Improvement Fund - one-half of the proceeds of such tax shall be placed in this fund to be utilized as follows:
   1. To pay all special assessments imposed pursuant to S.I.D. 3962 for the North Broadway Bridge which have not been certified for collection as of July 1, 1992.
   2. To pay all special assessments imposed pursuant to S.I.D. 4097 for the interchange at 25th Street South and Interstate Highway 94 which have not been certified for collection as of July 1, 1992.
   3. To pay all special assessments imposed pursuant to S.I.D. 4152 for the improvement of 45th Street South from Interstate 94 to 11th Avenue South which have not been certified for collection as of July 1, 1992.
   4. To pay all or any portion of the city's share of the cost of construction of urban aid street improvement projects which are funded in part by state and/or federal funds.
   5. To pay all or any portion of the city's share of the cost of construction of arterial streets which are constructed with no federal and/or state funds. The city's share of such construction costs shall be the additional costs required to construct such streets because of the additional width or thickness necessitated by such street's designation as an arterial.

B. Fargo Water Treatment Plant Fund - one-half of the proceeds of such tax shall be placed in this fund and such proceeds, plus any interest income therefrom, shall be utilized for construction costs of the Fargo Water Treatment Plant.

C. Capital Improvement Fund - all of the interest earnings from the Fargo Street Improvement Fund shall be placed in this fund to be utilized for such capital improvements as the governing body of the city may select. Transfer of such earnings to this fund shall be quarterly or more frequently, if directed by the governing body of the city.

D. Notwithstanding the foregoing specific allocations of sales and/or use tax proceeds, commencing July 1, 2002, and continuing through June 30, 2012, the sales and/or use tax imposed shall be utilized for such infrastructure capital improvements as the governing body of the city may select including streets and traffic management; water supply and distribution needs; and flood mitigation projects.

Source: 2614 (1992), 3085 (1999).

3-1610. Term.--The tax imposed by this article shall be in full force and effect through June 30, 2012.

Source: 2614 (1992), 3085 (1999).

ARTICLE 3-17

SPECIAL ASSESSMENT OF COSTS

Section

3-1701 Duty of property owner--Assessment of costs.

3-1702 Notice of hearing--Publication.
3-1703 Hearing on assessments.

3-1701. Duty of property owner--Assessment of costs.--Whenever a duty is placed upon an owner, occupant or tenant of real property located within the city of Fargo to remove snow, control weeds, or otherwise abate nuisances, and when such owner, occupant or tenant fails to fulfill such duty and thereafter, the city furnishes labor and material for such removal, control or abatement, in accordance with law, all of the costs incurred by the city, including administrative and legal costs, may be assessed against such real property as hereinafter provided.

Source: 2688 (1994).

3-1702. Notice of hearing--Publication.--In all cases where the city has incurred costs to fulfill duties imposed on property owners as hereinabove provided in § 3-1701, the city finance director shall prepare a list of such assessments and shall give notice of hearing on such assessments. The notice, together with the list of assessments, shall be published once each week for two consecutive weeks in the official newspaper of the city and the last publication shall be not less than eight days before the date set for the hearing.

Source: 2688 (1994).

3-1703. Hearing on assessments.--At the time and date set for the hearing which is referred to in § 3-1702 of this article, the board of city commissioners shall consider and hear any objections to the assessments as published by the director of finance, or to any part thereof. After revision or correction of the assessment, if such revision or correction is necessary, it shall approve and confirm the assessments. Thereafter, the director of finance shall attach to the assessment list his certificate that the list is correct as confirmed by the governing body and shall file the same in his office, and shall certify the assessment in the manner provided in § 40-24-11, N.D.C.C.

Source: 2668 (1994).

ARTICLE 3-18

PROMOTION OF BUSINESS ACTIVITY AND SPECIAL ASSESSMENT OF COSTS

Section

3-1801 Downtown Business Improvement Entity of Fargo, North Dakota established and authorized.
3-1802 Powers of the Downtown Entity.
3-1803 Financing methods, special assessments, voluntary assessments, or other methods.
3-1804 Protest against resolution of necessity--Protest bar to proceeding--Invalid or insufficient protest--Payment of costs--Tax Levy.
3-1805 Fiscal and miscellaneous matters.

3-1801. Downtown Business Improvement Entity of Fargo, North Dakota established and authorized.--The Downtown Business Improvement Entity of Fargo, North Dakota, a North Dakota nonprofit corporation (hereinafter sometimes called "BID", "Entity", or "Down-

town Entity"), is hereby designated and shall be responsible, under the direction of the board of city commissioners, for the implementing, managing, directing and administration of promotion of business activity in downtown Fargo in the geographical area (hereinafter sometimes called "The Area") described as follows:

The boundaries of The Area are from the Red River of the North extending due west to the point of intersection of Second Avenue South and Fourth Street South; thence north along Fourth Street to First Avenue South; thence west along First Avenue to Broadway; thence north to Main Avenue with Main Avenue forming the southerly boundary; University Drive from Main Avenue to the railroad tracks in the vicinity of Sixth Avenue North; Sixth Avenue North to Fourth Street North; thence south to Fifth Avenue North (Old G.N. now B.N. railway tracks); thence east along said Fifth Avenue (railway tracks) to the north-south alley forming the easterly boundary of Lots 29 and 30, Block 26, Keeney and Devitt's 2nd Addition; thence south along said alley to the Red River of the North with the Red River forming the easterly boundary and shall include the properties abutting the said streets and avenues on both sides of the same. These boundaries are more particularly detailed on a map of downtown Fargo, a copy of which is on file with the city auditor's office and is incorporated herein by reference and made a part hereof.

Each owner of an assessable commercial or business property within the boundaries of The Area are members of the Downtown Entity and are entitled to representation at any and all meetings, either in person or by a representative of their choice. Any and all meetings of the Entity and any and all records of the Entity are public records and open to the public as provided by state law. Entity shall prepare and file with the city a three-year business, economic and development plan which shall include the suggested means of financing. Said plan shall use as its foundation and base the following:

1. Organization: Encouraging cooperation between the city, businesses and property owners, and developers in the downtown business community;
2. Promotion: Creating a positive image by promoting the downtown area as an exciting and meaningful place to live, work, entertain, shop, and invest;
3. Design: Improving the appearance and the viability of the downtown area;
4. Administration: The three-year plan may serve as a planning model and district financing schedule subject to appropriate adjustment and revision as contemporary needs require. Any such plan and specifications must be filed in the office of the city auditor and shall remain on file in that office subject to inspection by the public.

Source: 2826 (1997).

3-1802. Powers of the Downtown Entity.--The Downtown Entity shall have the following powers:

A. To develop, construct, maintain, manage and administrate the Downtown Entity as created hereby and defined herein.

B. To adopt an annual budget, as well as a project budget or budgets as applicable, all of which shall be subject to approval of the board of city commissioners of the city of Fargo.

C. Subject to its approved budget, to execute such contracts and other instruments as may be necessary to carry out the construction, maintenance, financing and operation of the Downtown Entity, to include, but not be limited to, the following:

1. To employ necessary personnel, either permanent or temporary, as may be required, and determine their duties, qualifications and compensation. Said personnel shall be direct employees of the Downtown Entity.
2. To acquire, by purchase, gift, devise, public or private grant, lease or otherwise any and all property, money, securities, or any other intangibles, which may be necessary for the construction, maintenance, financing and operation of the Downtown Entity.
3. To purchase and sell supplies, goods, services, and equipment as may be necessary for the operation of all of its facilities, programs and projects.

E. To establish necessary bylaws, rules and regulations for the construction, maintenance, financing and operation of the Downtown Entity subject, however, to its approved budget and this ordinance.

Source: 2826 (1997).

3-1803. Financing methods, special assessments, voluntary assessments, or other methods.--The city may defray the expense of improvements by special assessments for the promotion of business activity and new business development in The Area through any means not inconsistent with the purposes of this ordinance including, but not limited to, advertising, public information, marketing, decoration of public places, promotion of public events, furnishing of music in any public place, providing professional management, planning and promotion, and the general promotion of trade activities. In planning an improvement project under this ordinance, the board of city commissioners may include any work on materials which are deemed necessary or reasonably incidental to the project. Financing methods may include, but not be limited to, assessing the costs and expense of the projects upon benefited property owners within The Area consistent with the provisions of chapters 40-22, 40-22.1, or 40-23 of the North Dakota Century Code and subject to the provisions of this ordinance. Prior to proceeding with the initial assessment district to include the entire Area, there must be an affirmative vote of 60% of assessable property owners responding to a preliminary notice mailed by city to all assessable property owners in The Area. The purpose of the notice is to show a positive affirmation to city prior to establishing the district and not to replace the legal requirements for establishing a special assessment district, including publication of the resolution declaring improvements necessary. Calculation of the percentage of affirmative or negative responses to said notice shall be based on the same formula as will be utilized in assessing benefits. Any subsequent special assessment district established will be in accordance with chapters 40-22 and 40-22.1 N.D.C.C. Assessment of the costs of any district will be done under the methods currently permissible under North Dakota state law. Financing methods may also include, but not be limited to, voluntary assessments and tax increment financing. The initial special assessment district will be created to generate revenues sufficient to fund an annual budget of $300,000 for the years 1998 through 2000. The city may also create special assessments districts for separate projects which may encompass separate areas within The Area.

Source: 2826 (1997).

3-1804. Protest against resolution of necessity--Protest bar to proceeding--Invalid or insufficient protest--Payment of costs--Tax levy.--Upon receipt of a 60% affirmative response to the preliminary notice referred to in § 3-1804 above, the city may proceed to establish the initial improvement district utilizing the powers and procedures set forth in chapters 40-22 and 40-22.1, N.D.C.C. Any subsequent project will require a request therefor and if satisfied with the percentage of owners, the city may proceed to establish such special assessment district. Any district created shall include only property devoted in whole or in part to commercial or business use and income-producing rental property, and shall not include owner-occupied dwelling units including owner-occupied residential condominium units. Assessment of benefits will be governed by all of the provisions of chapters 40-22 or 40-22.1, N.D.C.C. Protests against the resolution of necessity shall be governed by the provisions of chapter 40-22, N.D.C.C., except as otherwise provided herein. In addition to the required published notice, mailed notice will be given to all affected property owners as shown on the records of the city assessor's office. If the board of city commissioners finds the protest to contain the names of the owners of at least 40% of assessable property (as calculated hereinafter) within any separate property area included within the district, the protest bars proceeding with the applicable portion of the improvement project, but does not bar proceeding with the remainder of the improvement project or assessing the cost of the improvement project against other areas within the proposed district, unless the protest represents a majority of the entire district. Calculation of the percentage of protest shall be based on the same formula as will be utilized in assessing benefits. Termination of proceedings does not relieve the city of responsibility for payment of costs incurred. The city is not responsible for payment of costs incurred and may require a deposit for costs. Payment of the costs incurred for such a barred improvement project must be as provided in § 3-1802. For payment of costs incurred for a barred improvement project proposed by the city of Fargo, the city may, if available funds are insufficient, issue its certificates of indebtedness or warrants, or levy a tax which shall be considered a tax for a portion of the costs of a special improvement project by general taxation within the meaning of § 57-15-10 of the North Dakota Century Code. If the protests are found to be insufficient or invalid, the board of city commissioners may cause the improvement to be made, levy and collect necessary assessments, and contract for the improvement and acquisition of necessary property or services.

Source: 2826 (1997).

3-1805. Fiscal and miscellaneous matters.--The Downtown Entity shall keep appropriate books, files and records which shall be open for public inspection at all reasonable times in accordance with North Dakota law. The books and accounts of the Downtown Entity may be audited by the city of Fargo in a manner similar to departments or agencies of the city of Fargo. The current level of city services to the area contained and described as the Entity will not be curtailed or limited by reason of additional services that may be provided by reason of the special assessment district.

Source: 2826 (1997).

ARTICLE 3-19

IMPOSITION OF A SALES AND USE TAX (FARGO PUBLIC LIBRARY)

Section

3-1901 Definitions
3-1902 Sales tax imposed
3-1903 Use tax imposed
3-1904 Exemptions
3-1905 Maximum tax imposed
3-1906 Collection and administration
3-1907 Contract with State Tax Commissioner
3-1908 Governor, manager and corporate officer liability
3-1909 Dedication of tax proceeds
3-1910 Term

3-1901. Definitions.--All terms defined in Chapter 57-39.2 NDCC and Chapter 57-40.2 NDCC, including all future amendments, are adopted by reference.

Source: 4438 (2004).

3-1902. Sales tax imposed.--Except as otherwise provided in this article, a tax of one-half of one (.5) percent is imposed upon the gross receipts of retailers from all retail sales within the corporate limits of the city of Fargo, North Dakota, of the following:

A. Tangible personal property, consisting of goods, wares, or merchandise.
B. The furnishing or service of gas, communication services, or steam other than steam used for processing agricultural products.
C. Tickets or admissions to places of amusement or entertainment or athletic events, including amounts charged for participation in an amusement, entertainment, or athletic activity; but not including the playing of any machine for amusement or entertainment in response to the use of a coin.
D. Magazines and other periodicals.
E. The leasing or renting of a hotel or motel room or tourist court accommodations.
F. The leasing or renting of tangible personal property, the transfer of title to which has not been subjected to a retail sales tax under this article.
G. Sales of alcoholic beverages and tobacco products as defined in Section 57-39.2-03.2 NDCC.

Source: 4438 (2004).

3-1903. Use tax imposed.--Except as otherwise provided in this article, an excise tax of one-half of one (.5) percent is imposed on the storage, use, or consumption in the city of Fargo on:

A. The purchase price of tangible personal property purchased at retail for storage, use, or consumption within the city.
B. The fair market value of tangible personal property which was not originally purchased for storage, use or consumption in the city, at the time which it is brought into this city.

C. Alcoholic beverages and tobacco products which are stored, used or consumed in this city, as provided in Section 57-39.2-03.2 NDCC.

D. The purchase price of tangible personal property used by a contractor or subcontractor to fulfill a contract as defined in Section 57-40.2-03.3 NDCC. This tax applies only to bids submitted on or after January 1, 2005.

Source: 4438 (2004).

3-1904. Exemptions.--All sales, storage, use, or consumption of tangible personal property which are exempt from imposition and computation of the sales or use tax of the state of North Dakota are specifically exempt from the provisions of this article.

Source: 4438 (2004).

3-1905. Maximum tax imposed.--No single transaction involving one or more items is subject to a tax in excess of Twelve and 50/100 ($12.50) dollars. By way of explanation, it is noted that there are other impositions of sales and use tax with the present imposition being $12.50 for each of two impositions, thus totaling $25 at the current time. The tax imposed by this ordinance is in addition to those impositions.

Source: 4438 (2004).

3-1906. Collection and administration.--The Tax Commissioner and the director of finance for the city of Fargo shall have the powers enumerated in the provisions of Chapter 57-39.2 NDCC and Chapter 57-40.2 NDCC relating to the collection and administration of the state sales and use tax, including all administrative rules adopted by the Tax Commissioner. The Tax Commissioner is authorized to establish rate tables integrating the tax imposed by this chapter with other state, county and city taxes.

Source: 4438 (2004).

3-1907. Contract with State Tax Commissioner.--The director of finance for the city of Fargo is hereby authorize to contract with the Tax Commissioner for the administration and collection of taxes imposed by this chapter. The director of finance has all powers granted the commissioner and in the absence of a valid contract with the commissioner or failure of the commissioner to perform the delegated duties, shall perform these duties in place of the commissioner.

Source: 4438 (2004).

3-1908. Governor, manager and corporate officer liability.--N.D.C.C. Sections 57-39.2-15.2 and 57-39.2-18.1 shall govern for liability for payment of taxes under this ordinance as follows:

A. If a limited liability company required to hold a permit under this chapter fails for any reason to file the required returns or to pay the taxes due under this chapter, the governors, managers, or members of a member-controlled limited liability company, jointly or severally, charged with the responsibility of supervising the preparation of the returns and payments are personally liable for the failure. The dissolution of a limited liability company does not discharge a governor's, manager's, or member's liability for a prior failure of the limited liability company to file a return or remit the tax due. The taxes, penalty, and interest may be assessed and collected under the provisions of this chapter.

B. If the governors, managers, or members elect not to be personally liable for the failure to file the required returns or to pay the tax due, the limited liability company must be required to make a cash deposit or post with the tax commissioner a bond or undertaking executed by a surety company authorized to do business in this state. The cash deposit, bond, or undertaking provided for in this section must be in an amount equal to the estimated annual sales tax liability of the limited liability company.

C. If a corporation required to hold a permit issued under this chapter fails for any reason to file the required returns or to pay the tax due, the president, vice president, secretary, or treasurer of the corporation, jointly or severally, having control, or supervision of, or charged with the responsibility for making the returns and payments are personally liable for the failure. The dissolution of a corporation shall not discharge an officer's liability for a prior failure of the corporation to make a return or remit the tax due. The sum due for the liability may be assessed and collected pursuant to the provisions of this chapter for the assessment and collection of other liabilities.

D. If the corporate officers elect not to be personally liable for the failure to file the required returns or to pay the tax due, the corporation must be required to make a cash deposit or post with the tax commissioner a bond or undertaking executed by a surety company authorized to do business in this state. The cash deposit, bond, or undertaking provided for in this section must be in an amount equal to the estimated annual sales tax liability of the corporation.

Source: 4438 (2004).

3-1909. Dedication of tax proceeds.--In accordance with Article 3R(4) of the Home Rule Charter of the city of Fargo, proceeds of a sales and/or use tax which is imposed pursuant to the authority granted herein shall be utilized for the construction, improvement, maintenance and operation of the Public Library and library expansion pursuant to an adopted library facility plan. This will include construction of a new 45,000 square foot library facility in the downtown Fargo area, and the acquisition (either conversion or new construction) of a facility in south Fargo for a branch library. Any funds remaining after completion of the library facility projects will be placed in a special escrow fund to support future library operations or expansion needs. The board of city commissioners of the city of Fargo, as the budget authority over the funds, will have the authority to establish said special escrow fund and to transfer funds, if any, remaining after completion of the said library facility projects.

Source: 4438 (2004).

3-1910. Term.--The tax imposed by this article shall be in full force and effect through June 30, 2006.

Source: 4438 (2004).

ARTICLE 3-20

IMPOSITION OF A SALES AND USE TAX (INFRASTRUCTURE CAPITAL IMPROVEMENTS)

Section

3-2001 Definitions.

3-2002 Sales tax imposed.
3-2003 Use tax imposed.
3-2004 Gross Receipts of Alcoholic Beverages.
3-2005 Gross Receipts of New Farm Machinery and New Farm Irrigation Equipment.
3-2006 Exemptions.
3-2007 Maximum Tax Imposed.
3-2008 Collection and Administration.
3-2009 Contract with state tax commissioner.
3-2010 Dedication of tax proceeds.
3-2011 Term.
3-2012 Effective Date.

3-2001. Definitions.--All terms defined in chapters 40-05.1, 57-39.2, 57-39.4, 57-39.5, 57-39.6 and 57-40.2, North Dakota Century Code (N.D.C.C.), are adopted by reference.

3-2002. Sales tax imposed.--Subject to the provisions of N.D.C.C. §40-05.1-06 and except as otherwise provided in this article or the sales and use tax laws of the State of North Dakota, a tax of one percent (1%) is imposed upon the gross receipts of retailers from all retail sales, including the leasing or renting of tangible personal property, within the corporate limits of the city of Fargo, North Dakota.

3-2003. Use tax imposed.--Subject to the provisions of N.D.C.C. §40-05.1-06 and except as otherwise provided in this article or the sales and use tax laws of the State of North Dakota, an excise tax of one percent (1%) is imposed on the storage, use, or consumption in the city of Fargo of tangible personal property purchased at retail for storage, use, or consumption in this city, at the rate of one percent (1%) of the purchase price of the property. An excise tax is imposed on the storage, use, or consumption within the corporate limits of the city of Fargo, North Dakota of tangible personal property not originally purchased for storage, use, or consumption in this city at the rate of one percent (1%) of the fair market value of the property at the time it was brought into this city. With respect to the purchase price of tangible personal property used by a contractor or subcontractor to fulfill a contract as defined in §57-40.2-03.3, N.D.C.C., the tax imposed by this section applies only to bids submitted on or after January 1, 2009.

3-2004. Gross Receipts of Alcoholic Beverages.--Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided in this Ordinance, a gross receipts tax of one percent (1%) is imposed upon all gross receipts from the sale of alcoholic beverages within the city. A person who receives alcoholic beverages for storage, use, or consumption in this state is subject to tax on storage, use, or consumption of those alcoholic beverages at the rate of one percent (1%).

3-2005. Gross Receipts of New Farm Machinery and New Farm Irrigation Equipment.--Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided in this Ordinance, a gross receipts tax of one percent (1%) is imposed upon all gross receipts from the sale of new farm machinery and new farm irrigation equipment within the city. A person who receives new farm machinery or new farm irrigation equipment for storage, use, or consumption in this state is subject to tax on storage, use, or consumption of that machinery and/or equipment at the rate of one percent (1%).

3-2006. Exemptions.--All sales, storage, use, or consumption of tangible personal property which are exempt from imposition and computation of the sales or use tax of the state of North Dakota are specifically exempt from the provisions of this article. In addition to the exemptions provided by state law, this Ordinance provides an exemption from imposition and computation of the city sales or use tax for the playing of any machine for amusement or entertainment in response to the use of a coin.

3-2007. Maximum tax imposed.--Any patron or user paying a tax imposed by this article in excess of $25.00 upon any single transaction of one or more items may obtain a refund of the excess tax payment by filing a request for refund upon the forms provided by the tax commissioner.

3-2008. Collection and administration.--The tax commissioner and the director of finance for the city of Fargo shall have the powers enumerated in the provisions of chapters 57-39.2, 57-39.4, 57-39.5 and 57-39.6 N.D.C.C., and chapter 57-40.2, N.D.C.C., relating to the collection and administration of the state sales, use and gross receipts tax, including all administrative rules adopted by the tax commissioner. The tax commissioner is authorized to establish rate tables integrating the tax imposed by this chapter with other state, county and city taxes.

3-2009. Contract with state tax commissioner.--The director of finance for the city of Fargo is hereby authorized to contract with the tax commissioner for the administration and collection of taxes imposed by this chapter. The director of finance has all powers granted the commissioner and in the absence of a valid contract with the commissioner or failure of the commissioner to perform the delegated duties shall perform these duties in place of the commissioner.

3-2010. Dedication of tax proceeds.--In accordance with Article 3R(4) and (5) of the Home Rule Charter of the city of Fargo, the revenues raised and collected pursuant to this article, less administrative expenses, and interest earnings on such revenues, shall be deposited in a separate infrastructure fund to be established, and shall be utilized for such infrastructure capital improvements as the governing body of the city may select. Infrastructure capital improvements shall mean expenditures for streets and traffic management; water supply and treatment needs including construction or expansion of water treatment facilities; water distribution system needs; sewerage treatment and collection system needs, including construction or expansion of sewage treatment facilities, and flood protection projects. Interest earnings on such proceeds may be utilized for other such capital improvements. Proceeds from such tax may be used to make direct payment for such infrastructure improvements or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs.

3-2011. Term.--The tax imposed by this article shall be in full force and effect from January 1, 2009 through December 31, 2028.

3-2012. Effective Date.--This ordinance shall be in full force and effect from and after its passage and approval, but not prior to January 1, 2009.

Source: 4673 (2008), 4682 (2008), 4703 (2009).

ARTICLE 3-21

IMPOSITION OF A SALES AND USE TAX (FLOOD RISK MITIGATION AND REDUCTION IMPROVEMENTS)

3-2101 Definitions.
3-2102 Sales tax imposed.
3-2103 Use tax imposed.
3-2104 Gross receipts of alcoholic beverages.
3-2105 Gross receipts of new farm machinery and new farm irrigation equipment.
3-2106 Exemptions.
3-2107 Maximum tax imposed.
3-2108 Collection and administration.
3-2109 Contract with state tax commissioner.
3-2110 Dedication of Tax proceeds.
3-2111 Term.

3-2101. Definitions.--All terms defined in chapters 40-05.1, 57-39.2, 57-39.4, 57-39.5, 57-39.6 and 57-40.2, North Dakota Century Code (N.D.C.C.), are adopted by reference.

3-2102. Sales tax imposed.--Subject to the provisions of N.D.C.C. §40-05.1-06 and except as otherwise provided in this article or the sales and use tax laws of the State of North Dakota, a tax of one-half of one percent (½%) is imposed upon the gross receipts of retailers from all retail sales, including the leasing or renting of tangible personal property, within the corporate limits of the city of Fargo, North Dakota.

3-2103. Use tax imposed.--Subject to the provisions of N.D.C.C. §40-05.1-06 and except as otherwise provided in this article or the sales and use tax laws of the State of North Dakota, an excise tax of one-half of one percent (½%) is imposed on the storage, use, or consumption in the city of Fargo of tangible personal property purchased at retail for storage, use, or consumption in this city, at the rate of one-half of one percent (½%) of the purchase price of the property. An excise tax is imposed on the storage, use, or consumption within the corporate limits of the city of Fargo, North Dakota of tangible personal property not originally purchased for storage, use, or consumption in this city at the rate of one-half of one percent (½%) of the fair market value of the property at the time it was brought into this city. With respect to the purchase price of tangible personal property used by a contractor or subcontractor to fulfill a contract as defined in §57-40.2-03.3, N.D.C.C., the tax imposed by this section applies only to bids submitted on or after January 1, 2010.

3-2104. Gross receipts of alcoholic beverages.--Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided in this Ordinance, a gross receipts tax of one-half of one percent (½%) is imposed upon all gross receipts from the sale of alcoholic beverages within the city. A person who receives alcoholic beverages for storage, use, or consumption in this state is subject to tax on storage, use, or consumption of those alcoholic beverages at the rate of one-half of one percent (½%).

3-2105. Gross receipts of new farm machinery and new farm irrigation equipment. Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided in this Ordinance, a gross receipts tax of one-half of one percent (½%) is imposed upon all gross

receipts from the sale of new farm machinery and new farm irrigation equipment within the city. A person who receives new farm machinery or new farm irrigation equipment for storage, use, or consumption in this state is subject to tax on storage, use, or consumption of that machinery and/or equipment at the rate of one-half of one percent (½%).

3-2106. Exemptions.--All sales, storage, use, or consumption of tangible personal property which are exempt from imposition and computation of the sales or use tax of the state of North Dakota are specifically exempt from the provisions of this article. In addition to the exemptions provided by state law, this Ordinance provides an exemption from imposition and computation of the city sales or use tax for the playing of any machine for amusement or entertainment in response to the use of a coin.

3-2107. Maximum tax imposed.--Any patron or user paying a tax imposed by this article in excess of $12.50 upon any single transaction of one or more items may obtain a refund of the excess tax payment by filing a request for refund upon the forms provided by the tax commissioner.

3-2108. Collection and administration.--The tax commissioner and the director of finance for the city of Fargo shall have the powers enumerated in the provisions of chapters 57-39.2, 57-39.4, 57-39.5 and 57-39.6 N.D.C.C., and chapter 57-40.2, N.D.C.C., relating to the collection and administration of the state sales, use and gross receipts tax, including all administrative rules adopted by the tax commissioner. The tax commissioner is authorized to establish rate tables integrating the tax imposed by this chapter with other state, county and city taxes.

3-2109. Contract with state tax commissioner.--The director of finance for the city of Fargo is hereby authorized to contract with the tax commissioner for the administration and collection of taxes imposed by this chapter. The director of finance has all powers granted the commissioner and in the absence of a valid contract with the commissioner or failure of the commissioner to perform the delegated duties shall perform these duties in place of the commissioner.

3-2110. Dedication of tax proceeds.--In accordance with Article 3T(4) and (5) of the Home Rule Charter of the city of Fargo, the proceeds of a sales, gross receipts and use tax, which is imposed pursuant to the authority granted herein, shall be utilized for such flood risk mitigation and reduction, and related improvements and activities, as the governing body of the city may select. Flood risk mitigation and reduction, and related improvements and activities, shall mean expenditures to reduce or mitigate the risk to the city from flood events, to provide protection from such flood events, including without limitation the providing for retention of water. Such expenditures may be used to acquire property; enter into agreements; make, install, construct or build improvements and engage in projects and activities as are necessary and appropriate for such purposes. The stated goal shall be to reduce the risk to the city to the level of a 500-year flood event. Interest earnings on such proceeds may also be utilized for such purposes. Proceeds from such tax may be used to make direct payment for such purposes or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs. Revenues raised and collected pursuant to authority granted herein, less administrative expenses, shall be deposited in a separate flood risk mitigation fund to be

established, and shall be utilized as directed by the governing body of the city for the purposes set forth herein. Further, sales tax revenues may be used to reduce special assessments, may be pledged to pay bonds, notes or other obligations established for the financing of eligible project costs and may be used to pay or to secure any obligations incurred through one or more intergovernmental agreements with other political subdivisions and joint powers entities for the purpose of financing the cost of such eligible expenditures, including the Metro Flood Diversion Project, and may be pledged for the repayment of the bonds issued by the city that are payable solely from such revenues.

Source: 5072 (2016).

3-2111. Term.--The tax imposed by this article shall be in full force and effect from January 1, 2010 through December 31, 2084. Notwithstanding the foregoing, once the governing body of the city determines, by majority vote of its members, that all the costs for the Metro Flood Diversion Project including all availability payments have been paid or are otherwise provided and once all debt and all other contractual obligations related to the financing of said costs have been retired, or the payment for which has been otherwise sufficiently provided and arranged, the governing body may direct the state tax commissioner to cease collecting said tax.

Source: 4712 (2009), 5072 (2016).

ARTICLE 3-22

IMPOSITION OF A SALES AND USE TAX (INFRASTRUCTURE IMPROVEMENTS INCLUDING FLOOD PROTECTION)

3-2201 Definitions.
3-2202 Sales tax imposed.
3-2203 Use tax imposed.
3-2204 Gross receipts of alcoholic beverages.
3-2205 Gross receipts of new farm machinery and new farm irrigation equipment.
3-2206 Exemptions.
3-2207 Maximum tax imposed.
3-2208 Collection and administration.
3-2209 Contract with state tax commissioner.
3-2210 Dedication of Tax proceeds.
3-2211 Term.

3-2201. Definitions.--All terms defined in chapters 40-05.1, 57-39.2, 57-39.4, 57-39.5, 57-39.6 and 57-40.2, North Dakota Century Code (N.D.C.C.), are adopted by reference.

3-2202. Sales tax imposed.--Subject to the provisions of N.D.C.C. §40-05.1-06 and except as otherwise provided in this article or the sales and use tax laws of the State of North Dakota, a tax of one-half of one percent (½%) is imposed upon the gross receipts of retailers from all retail sales, including the leasing or renting of tangible personal property, within the corporate limits of the city of Fargo, North Dakota.

3-2203. Use tax imposed.--Subject to the provisions of N.D.C.C. §40-05.1-06 and except as otherwise provided in this article or the sales and use tax laws of the State of North Dakota, an excise tax of one-half of one percent (1/2%) is imposed on the storage, use, or consumption in the city of Fargo of tangible personal property purchased at retail for storage, use, or consumption in this city, at the rate of one-half of one percent (1/2%) of the purchase price of the property. An excise tax is imposed on the storage, use, or consumption within the corporate limits of the city of Fargo, North Dakota of tangible personal property not originally purchased for storage, use, or consumption in this city at the rate of one-half of one percent (1/2%) of the fair market value of the property at the time it was brought into this city. With respect to the purchase price of tangible personal property used by a contractor or subcontractor to fulfill a contract as defined in §57-40.2-03.3, N.D.C.C., the tax imposed by this section applies only to bids submitted on or before June 30, 2012 and to bids submitted on or after January 1, 2013.

3-2204. Gross receipts of alcoholic beverages.--Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided in this Ordinance, a gross receipts tax of one-half of one percent (1/2%) is imposed upon all gross receipts from the sale of alcoholic beverages within the city. A person who receives alcoholic beverages for storage, use, or consumption in this state is subject to tax on storage, use, or consumption of those alcoholic beverages at the rate of one-half of one percent (1/2%).

3-2205. Gross receipts of new farm machinery and new farm irrigation equipment. Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided in this Ordinance, a gross receipts tax of one-half of one percent (1/2%) is imposed upon all gross receipts from the sale of new farm machinery and new farm irrigation equipment within the city. A person who receives new farm machinery or new farm irrigation equipment for storage, use, or consumption in this state is subject to tax on storage, use, or consumption of that machinery and/or equipment at the rate of one-half of one percent (1/2%).

3-2206. Exemptions.--All sales, storage, use, or consumption of tangible personal property which are exempt from imposition and computation of the sales or use tax of the state of North Dakota are specifically exempt from the provisions of this article.

3-2207. Maximum tax imposed.--Any patron or user paying a tax imposed by this article in excess of $12.50 upon any single transaction of one or more items may obtain a refund of the excess tax payment by filing a request for refund upon the forms provided by the tax commissioner.

3-2208. Collection and administration.--The tax commissioner and the director of finance for the city of Fargo shall have the powers enumerated in the provisions of chapters 57-39.2, 57-39.4, 57-39.5 and 57-39.6 N.D.C.C., and chapter 57-40.2, N.D.C.C., relating to the collection and administration of the state sales, use and gross receipts tax, including all administrative rules adopted by the tax commissioner. The tax commissioner is authorized to establish rate tables integrating the tax imposed by this chapter with other state, county and city taxes.

3-2209. Contract with state tax commissioner.--The director of finance for the city of Fargo is hereby authorized to contract with the tax commissioner for the administration and

collection of taxes imposed by this chapter. The director of finance has all powers granted the commissioner and in the absence of a valid contract with the commissioner or failure of the commissioner to perform the delegated duties shall perform these duties in place of the commissioner.

3-2210. Dedication of tax proceeds.--

A. In accordance with Article 3.U (4) and (5) of the Home Rule Charter of the city of Fargo, the proceeds of a sales, gross receipts and use tax, which is imposed pursuant to said Article 3.U, shall be utilized for such infrastructure capital improvements as the governing body of the city may select; provided, however, that commencing January 1, 2017, said tax proceeds will only be utilized for flood risk mitigation and reduction, and related improvements and activities, as set forth in subsection B, below, and for paying obligations on infrastructure capital improvements that existed prior to January 1, 2017. Infrastructure capital improvements shall mean expenditures for streets and traffic management; water supply and treatment needs including construction or expansion of water treatment facilities; water distribution system needs; sewerage treatment and collection system needs, including construction or expansion of sewage treatment facilities, and flood protection or flood risk mitigation projects, and related improvements and activities. Flood risk protection or flood risk mitigation projects, and related improvements and activities, shall mean expenditures to reduce or mitigate the risk to the city from flood events, to provide protection from such flood events, including without limitation the providing for retention of water. Such expenditures may be used to acquire property; enter into agreements; make, install, construct or build improvements and engage in projects and activities as are necessary and appropriate for such purposes. Interest earnings on such proceeds may be utilized for other such capital improvements. Proceeds from such tax may be used to make direct payment for such infrastructure improvements or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs.

B. From and after January 1, 2017, the proceeds of a sales, gross receipts and use tax, which is imposed pursuant to the authority granted herein, shall be utilized for such flood risk mitigation and reduction, and related improvements and activities, as the governing body of the city may select. Flood risk mitigation and reduction, and related improvements and activities, shall mean expenditures to reduce or mitigate the risk to the city from flood events, to provide protection from such flood events, including without limitation the providing for retention of water. Such expenditures may be used to acquire property; enter into agreements; make, install, construct or build improvements and engage in projects and activities as are necessary and appropriate for such purposes. The stated goal shall be to reduce the risk to the city to the level of a 500-year flood event. Interest earnings on such proceeds may also be utilized for such purposes. Proceeds from such tax may be used to make direct payment for such purposes or may be pledged to amortize bonds or other debt instruments which may be sold to finance such costs.

Revenues raised and collected pursuant to authority granted herein, less administrative expenses, and interest earnings on such revenues, shall be deposited in a separate fund to be established, and shall be utilized as directed by the governing body of the city for the purposes set forth herein.

Source: 5073 (2016).

3-2211. Term.--The tax imposed by this article shall be in full force and effect from January 1, 2013 through December 31, 2084. Notwithstanding the foregoing, once the governing body of the city determines, by majority vote of its members, that all the costs for the Metro Flood Diversion Project including all availability payments have been paid or are otherwise provided and once all debt and all other contractual obligations related to the financing of said costs have been retired, or the payment for which has been otherwise sufficiently provided and arranged, the governing body may direct the state tax commissioner to cease collecting said tax.

Source: 4824 (2012), 5073 (2016).

ARTICLE 3-23

COLLECTION OF UTILITIES AND SERVICES

Section

3-2301 Tenant and owner jointly and severally liable.
3-2302 Charges to constitute lien on premises; assessment and collection of lien.

3-2301. Tenant and owner jointly and severally liable.--The owner and occupant of each premise shall be jointly and severally liable for all charges for all municipal utilities and services provided to the property, including but not limited to water, sanitary sewer, street lighting, vector control, solid waste, forestry, and storm water service during the period of their respective ownership or occupancy.

Source: 5170 (2018).

3-2302. Charges to constitute lien on premises; assessment and collection of lien.--All unpaid municipal utilities and services shall constitute a lien upon the respective lots, tracts and premises receiving such utility or service; and all such charges which have been properly billed to the owner or occupant of the premises served and which are more than thirty days past due may be charged as an assessment against the lot or parcel of land. In August of each year the board of city commissioners shall review all assessments, and hear all complaints against the same, and approve the same as finally adjusted, and the city, in so certifying such charges, shall specify the amount thereof, the description of the premises served and the name of the owner thereof. The amount so certified shall be extended by the county on the tax rolls against such premises and collected by the county and paid to the city in the same manner as other county and municipal taxes are assessed, certified, collected and returned.

Source: 5170 (2018).

ARTICLE 3-24

IMPOSITION OF A SALES TAX (FIRE AND POLICE OPERATIONS, EQUIPMENT, AND BUILDINGS)

Section

3-2401 Definitions.
3-2402 Collection and administration.
3-2403 Sales tax imposed.

3-2404 Use tax imposed.
3-2405 Gross receipts of alcoholic beverages.
3-2406 Gross receipts of new farm machinery and new farm irrigation equipment.
3-2407 Maximum tax imposed.
3-2408 Exemptions.
3-2409 Dedication of tax proceeds.
3-2410 Contract with state tax commissioner.
3-2411 Saving clause.
3-2412 Term.

3-2401. Definitions.--All terms defined in chapters 40-05.1, 57-39.2, 57-39.4, 57-39.5, 57-39.6, and 57-40.2 of the North Dakota Century Code (N.D.C.C.), including any future amendments, are adopted by reference. All references to the N.D.C.C. include amendments adopted by the North Dakota Legislative Assembly. All references to "this ordinance" shall mean the ordinance enacted by the board of city commissioners of the city of Fargo and codified as Article 3-24 of the Fargo Municipal Code containing enumerated sections commencing with this section 3-2401.

Source: 5459 (2024).

3-2402. Collection and administration.--Where not in conflict with the provisions of this ordinance, the provisions of N.D.C.C. chapters 40-05.1, 57-39.2, 57-39.4, 57-39.5, 57-39.6, and 57-40.2, and all administrative rules adopted by the Tax Commissioner, pertaining to the collection and administration of the retail sales, use, and gross receipts tax, including provisions for liability, refund, penalty, interest or credit, govern the administration by the North Dakota Office of State Tax Commissioner (hereinafter "Tax Commissioner") of the taxes imposed by this ordinance.

Source: 5459 (2024).

3-2403. Sales tax imposed.--Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided by this ordinance, or the sales and use tax laws of the State of North Dakota, a tax of one-quarter of one percent (0.25%) is imposed upon the gross receipts of retailers from all sales at retail, including the leasing or renting of tangible personal property, within the corporate limits of the of the city of Fargo, North Dakota.

Source: 5459 (2024).

3-2404. Use tax imposed.--Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided in this ordinance, or the sales and use tax laws of the State of North Dakota, an excise tax is imposed upon the storage, use, or consumption within the corporate limits of the city of Fargo, North Dakota of tangible personal property purchased at retail for storage, use, or consumption in this city, at the rate of one-quarter of one percent (0.25%) of the purchase price of the property. An excise tax is imposed on the storage, use, or consumption within the corporate limits of the city of Fargo, North Dakota of tangible personal property not originally purchased for storage, use, or consumption in this city at the rate of one-quarter of one percent (0.25%) percent of the fair market value of the property at the time it was brought into this city. With respect to the purchase price of tangible personal

property used by a contractor or subcontractor to fulfill a contract as defined in N.D.C.C. § 57-40.2-03.3, the tax imposed by this section applies only to bids submitted on or after the effective date of this ordinance.

Source: 5459 (2024).

3-2405. Gross receipts of alcoholic beverages.--Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided in this ordinance, a gross receipts tax of one-quarter of one percent (0.25%) is imposed upon all gross receipts from the sale of alcoholic beverages within the city. A person who receives alcoholic beverages for storage, use, or consumption in this state is subject to tax on storage, use, or consumption of those alcoholic beverages at the rate of one-quarter of one percent (0.25%).

Source: 5459 (2024).

3-2406. Gross receipts of new farm machinery and new farm irrigation equipment. Subject to the provisions of N.D.C.C. § 40-05.1-06, and except as otherwise provided in this ordinance, a gross receipts tax of one-quarter of one percent (0.25%) is imposed upon all gross receipts from the sale of new farm machinery and new farm irrigation equipment within the city. A person who receives new farm machinery or new farm irrigation equipment for storage, use, or consumption in this state is subject to tax on storage, use, or consumption of that machinery and/or equipment at the rate of one-quarter of one percent (0.25%).

Source: 5459 (2024).

3-2407. Maximum tax imposed.--Any patron or user paying a tax imposed by this ordinance in excess of six and 25/100ths dollars ($6.25) upon any single transaction of one or more items may obtain a credit or refund of the excess tax at the time of purchase from the vendor or request a refund of the excess tax payment by filing a request for refund upon the forms provided by the Tax Commissioner.

Source: 5459 (2024).

3-2408. Exemptions.--All sales, storage, use, or consumption of tangible personal property which are exempt from imposition and computation of the sales or use tax of the state of North Dakota are specifically exempt from the provisions of this ordinance.

Source: 5459 (2024).

3-2409. Dedication of tax proceeds.--All fees, taxes, penalties and other charges imposed and collected under this ordinance, less administrative costs, are hereby dedicated and shall be utilized for fire and police operations, equipment, and buildings. All such proceeds of a sales, gross receipts and use tax which is imposed pursuant to the authority granted herein shall be utilized for the purposes authorized herein as the governing body of the city may select.

Source: 5459 (2024).

3-2410. Contract with state tax commissioner.--The city auditor of the city of Fargo is hereby authorized to contract with the Tax Commissioner for administration and collection of taxes imposed by this ordinance. The City Auditor has all powers granted to the Tax Commissioner and in the absence of a valid contract with the Tax Commissioner or failure of the Tax Commissioner to perform the delegated duties, shall perform these duties in place of the Tax Commissioner.

Source: 5459 (2024).

3-2411. Saving clause.--Should any section, paragraph, sentence, clause or phrase of this ordinance be declared unconstitutional or invalid for any reason, the remainder of this ordinance shall not be affected thereby.

Source: 5459 (2024).

3-2412. Term.--A tax imposed by this ordinance shall extend for a period of twenty (20) years from and after April 1, 2025, and ending on March 31, 2045.

Source: 5459 (2024).

CHAPTER 4

OFFICERS AND DUTIES -- GENERAL

Article

4-01 General Provisions Governing City Officials and Employees, §§ 4-0101 to 4-0116.
4-02 Removal of City Officials and Employees, §§ 4-0201 to 4-0203.
4-03 City Auditor, §§ 4-0301, 4-0302.
4-04 City Treasurer, §§ 4-0401, 4-0402.
4-05 City Assessor, § 4-0501.
4-06 City Attorney, § 4-0601.
4-07 Municipal Judge, §§ 4-0701, 4-0702.
4-08 City Engineer, §§ 4-0801 to 4-0803.
4-09 Superintendent of Water and Sewage Utilities, § 4-0901.
4-10 Superintendent of Streets, §§ 4-1001 to 4-1007.
4-11 Director of Public Health, §§ 4-1101, 4-1102.
4-12 City Weighmaster--Repealed by omission.
4-13 Airport Manager, § 4-1301.
4-14 City Administrator, § 4-1401 to 4-1405.

ARTICLE 4-01

GENERAL PROVISIONS GOVERNING CITY OFFICIALS AND EMPLOYEES

Section

4-0101 Officers of the city of Fargo.
4-0101.1 When term of elective officers begins.
4-0102 Appointment of officers by board of city commissioners.
4-0103 Term of appointive officers.
4-0104 Term of "acting" officers.
4-0105 Letter or commission of authority.
4-0106 Oath of office of elective or appointive officers--Filing.
4-0107 Bonds of officials and employees--Requirement.
4-0108 Bonds of officials and employees--Approval--Filing-Sureties--Payment of premiums-- New and additional bonds.
4-0109 Salary of city officials and appointive officers.
4-0110 Department payrolls and salaries of officers--Semi-monthly payment--Warrants for payment.
4-0111 Duties of officers--General provision.
4-0112 Obstructing a city official or employee prohibited.
4-0113 Records and reports of officials or employees--Review by board of city commissioners.
4-0114 Officers to turn over property, books, and other effects at expiration of term.
4-0115 Mileage and travel expense of city officers and employees.
4-0116 Direct deposit of paychecks--Mandatory for new employees. Repealed.

4-0101. Officers of the city of Fargo.--The officers of the city of Fargo shall be: the mayor and four city commissioners who, together, shall be known as the board of city commissioners of the city of Fargo and its executive assistant, a city administrator, a municipal judge, director of finance, planning director, director of operations-public works, enterprise director, city attorney, director of human resources, fire chief, police chief, director of public health, city engineer and such other officers and boards as the board of city commissioners may deem necessary.

In addition to the officers as hereinabove named, heads of the various city divisions shall report to the city administrator, through their respective director, as follows:

Director of finance -- auditor, assessor, buildings & grounds, and municipal court.

Planning director -- Inspections and transit.

Director of operations-public works -- streets, central garage, water mains & hydrants and forestry.

Enterprise Director -- solid waste, waste water and water.

Source: 1965 Rev. Ord. 4-0101, 1603 (1974), 1863 (1978), 4287 (2002).

4-0101.1 When term of elective officers begins.--The term of each elective officer in the city of Fargo shall commence on July 1 of the year in which the officer is elected.

Source: 1965 Rev. Ord. 4-0101.1, 1580 (1974), 5432 (2024).

4-0102. Appointment of officers by board of city commissioners.--The board of city commissioners shall appoint the city auditor, city treasurer, city attorney, city assessor, city engineer, planning director, superintendent of water and sewage utilities, fire chief, police chief, superintendent of streets, superintendent of garbage utility, city forester, personnel director, auditorium director, health officer, executive secretary of the board of city commissioners, and such other officers and boards as are deemed necessary and as provided by state law.

Source: 1965 Rev. Ord. 4-0102, 1604 (1974).

4-0103. Term of appointive officers.--Appointive officers shall be appointed by the board of city commissioners for an indefinite period subject to the laws of the state of North Dakota and the civil service ordinances.

Source: 1965 Rev. Ord. 4-0103, 1416 (1972).

4-0104. Term of "acting" officers.--Persons appointed as "acting" officers shall serve at the pleasure of the board of city commissioners, and the term of such officers may be terminated or the office declared vacant by the board of city commissioners.

Source: 1952 Rev. Ord. 4-0104.

4-0105. Letter or commission of authority.--There shall be issued to persons appointed as officers or as "acting" officers a letter or commission of authority executed by the board of city commissioners and attested by the city auditor. Such letter or commission of authority shall be issued immediately after such person has been appointed and has qualified as prescribed by law.

Source: 1952 Rev. Ord. 4-0105.

4-0106. Oath of office of elective or appointive officers--Filing.--All officers of the city, whether elected or appointed, before entering upon the duties of their respective offices shall

take and subscribe the oath of office prescribed in section 4 of article XI of the constitution of the state of North Dakota. Such oath shall be filed in the office of the city auditor; provided, that the oath of the city auditor and the city treasurer shall be filed in the office of the county auditor.

Source: 1952 Rev. Ord. 4-0106, 5204 (2019).

4-0107. Bonds of officials and employees--Requirement.--All city officials and such employees as may be required by law or ordinance shall furnish bonds in such amount as may, from time to time, be required by law or resolution of the board of city commissioners.

Source: 1952 Rev. Ord. 4-0107.

4-0108. Bonds of officials and employees--Approval--Filing--Sureties--Payment of premiums--New and additional bonds.--All bonds of city officials and employees required by law or ordinance shall be conditioned for the faithful discharge of the duties of their respective offices by the designated officers or employees and must be approved by the president of the board of city commissioners and, when so approved, shall be filed in the office of the city auditor. No personal surety shall be accepted on any such bonds, but all such bonds must be with the North Dakota state bonding fund or with a corporate surety company authorized to do business within this state. Premiums for bonds of the state bonding fund shall be paid by the city in the manner provided by law, but no premium shall be paid by the city upon any bond other than those upon which the state bonding fund shall be surety. The board of the city commissioners by resolution at any time may require new and additional bonds of any officer or employee.

Source: 1952 Rev. Ord. 4-0108.

4-0109. Salary of city officials and appointive officers.--The salary of city officials and appointive officers, except as otherwise provided by law, shall be in such sums and amounts as may be fixed from time to time by resolution of the board of city commissioners.

Source: 1952 Rev. Ord. 4-0109.

4-0110. Department payrolls and salaries of officers--Semi-monthly payment--Warrants for payment.--The payroll of each department, when certified to by the department head and approved by the board of city commissioners, and the salary of city officials and appointive officers fixed by the board of city commissioners shall be paid semi-monthly. The president of the board of city commissioners and the auditor are hereby authorized to draw warrants for the same as the same shall become due and payable.

Source: 1952 Rev. Ord. 4-0110.

4-0111. Duties of officers--General provision.--Each officer mentioned in § 4-0101 shall do and perform each, every, and all the duties and things prescribed for him to do by the statutes of the state, or by any ordinance, resolution, or proper instruction of the board of city commissioners.

Source: 1952 Rev. Ord. 4-0111.

4-0112. Obstructing a city official or employee prohibited.--No person shall willfully delay or obstruct a city official or employee in the discharge or attempt to discharge any duty of his office.

Source: 1952 Rev. Ord. 4-0112.

4-0113. Records and reports of officials or employees--Review by board of city commissioners.--All officials or employees of the city shall, at all times when required by the board of city commissioners, submit the books, records, and papers of their respective offices and make a report of their transactions in such offices to the board of city commissioners.

Source: 1952 Rev. Ord. 4-0113.

4-0114. Officers to turn over property, books, and other effects at expiration of term. All city officers at the expiration of their term of service shall turn over and deliver to their successor or successors-in-office all books, accounts, records, and property of whatever kind or description in their possession as such, and shall be entitled to a receipt therefor, if desired.

Source: 1952 Rev. Ord. 4-0114.

4-0115. Mileage and travel expense of city officers and employees.--City officials, whether elective or appointive, and their deputies, assistants, clerks or other city employees, because of the nature of their duties requiring travel, shall be allowed and paid mileage and travel expense in the following amounts:

1. The sum as provided by the laws of the state of North Dakota for state government travel for each mile actually and necessarily traveled in the performance of official duties when such travel is by privately-owned motor vehicle, provided, however, that the board of city commissioners may, by resolution, vary the amount to be paid for travel. No allowance shall be made or paid for such mileage for travel to or from said official's or employee's residence and his place of employment. When official travel is by motor vehicle owned by the city, no allowance shall be made or paid for such mileage, it being intended that when at all possible, city-owned vehicles should be utilized. This subsection shall not apply, however, to such work agreements as may be approved by the city commission or its designees.

2. When travel is by rail or certified air taxi, commercial operator or other common carrier, including regularly scheduled flights by airlines, the amount of the fare, including taxes, for the most economical class of service, provided, however, that the board of city commissioners may, by resolution, vary the amount to be paid for travel.

3. The sum as provided by the laws of the state of North Dakota for expense reimbursement and lodging expenses provided, however, that the board of city commissioners may, by resolution, vary the amount to be paid for travel as regards meals and lodging.

Before any allowance for any such mileage or travel expense shall be made, the official or city employee shall file with the finance director an itemized statement showing the mileage traveled, the days, when and how traveled, the purpose thereof and such other information and documentation as may be prescribed by the city. The statement accompanied by a voucher as required by the city shall be submitted for approval and paid in the same manner as other city bills and claims.

Source: 1965 Rev. Ord. 4-0115, 1454 (1972), 1515 (1973), 2755 (1995).

4-0116. Direct deposit of paychecks--Mandatory for new employees.--

Source: 2969 (1998), repealed by Ord No. 4433 (2004).

ARTICLE 4-02

REMOVAL OF CITY OFFICIALS AND EMPLOYEES

Section

4-0201 Removal of officers or employees serving without letter or commission.
4-0202 Removal of appointive officers--Filling vacancies.
4-0203 Removal of elective officers.

4-0201. Removal of officers or employees serving without letter or commission.--Officers or employees not serving by virtue of a letter or commission of authority may be removed by the board of city commissioners subject, however, to civil service laws, ordinances, and regulations.

Source: 1952 Rev. Ord. 4-0201.

4-0202. Removal of appointive officers--Filling vacancies.--Every person appointed to any office may be removed and any vacancy may be filled in the manner provided by law subject, however, to civil service laws, ordinances, and regulations.

Source: 1952 Rev. Ord. 4-0202.

4-0203. Removal of elective officers.--Elective officers of the city of Fargo may be removed in the manner provided by law.

Source: 1952 Rev. Ord. 4-0203.

ARTICLE 4-03

CITY AUDITOR

Section

4-0301 General powers and duties--Books and records.
4-0302 Destruction of city records.

4-0301. General powers and duties--Books and records.--The city auditor shall perform all the duties prescribed by law and the ordinances of the city. He shall issue the calls for all special meetings of the board of city commissioners when requested so to do by the president of the board of city commissioners. He shall keep a full and complete record of all meetings of the board of city commissioners and shall record in proper books all business of the board of city commissioners. He shall keep a book to be styled the "Ordinance Book" and shall record therein at length all ordinances of the city. All books of the city auditor shall have full and complete indices of the contents thereof.

Source: 1952 Rev. Ord. 4-0301.

4-0302. Destruction of city records.--In addition to the provisions of § 40-16-10 of the North Dakota Century Code, the city auditor may also destroy all bonds, bond coupons for interest, warrants, special assessment warrants, and any and all other documents evidencing

debt made or executed by the city when five years have elapsed after their payment, and when the period within which an action might be commenced to determine the validity of such documents has expired.

Source: 1965 Rev. Ord. 4-0302, 1768 (1977).

ARTICLE 4-04

CITY TREASURER

Section

4-0401 General powers and duties--Reports.
4-0402 Treasurer to deposit city funds--Interest to accrue to city.

4-0401. General powers and duties--Reports.--The city treasurer shall perform all the duties prescribed by law and the ordinances of the city. He shall make a monthly report to the board of city commissioners of all monies received by him and all monies paid out by him and, when requested so to do, shall furnish the board of city commissioners with a complete statement of all monies in his hands belonging to the city or any other, information pertaining to the finances of the city required by the board of city commissioners.

Source: 1952 Rev. Ord. 4-0401.

4-0402. Treasurer to deposit city funds--Program of interfund loans--Interest to accrue to city.--The city treasurer shall organize records and establish the various accounts and funds required by law in order to show the receipts, disbursements and balances in said accounts and funds. Said treasurer shall be authorized to hold and invest such funds as follows:

A. The city treasurer may hold all funds of the city in one or several bank accounts in banking institutions approved in accordance with law; and

B. The city treasurer may advance or loan money from any accounts or funds otherwise legally available; provided that: (i) such loan or advance is authorized by resolution of the board of city commissioners, which resolution may approve a program of interfund loans; and (ii) the terms and conditions for forgiveness or repayment of the advance or loan (including at a minimum, the principal amount, the interest rate or interest rate formula, and maximum term) are provided for in the authorizing resolution or program; and

C. The city treasurer may from time to time, with the assistance of the city auditor, determine the expected cash needs of the city and may accordingly invest the funds of the city for short terms, depending upon the financial needs of the city as herein before determined; and

D. Such short-term investments may be in United States Treasury debentures or debentures guaranteed by the United States or the United States Treasury, as well as interest-bearing deposits of financial intermediaries which are approved according to law.

Any interest earned from the deposit or investment of any funds of the city shall accrue to and be paid over to the general fund of the city unless specifically prohibited by law for any particular fund or account. Any loans or advances pursuant to subsection B herein may be structured as draw-down or line-of-credit obligations of the lending fund.

Source: 1965 Rev. Ord. 4-0402, 1481 (1973), 5433 (2024).

ARTICLE 4-05

CITY ASSESSOR

Section

4-0501 General powers and duties.

4-0501. General powers and duties.--The assessor shall be governed by and shall make assessments and returns as provided by the state law.

Source: 1952 Rev. Ord. 4-0501.

ARTICLE 4-06

CITY ATTORNEY

Section

4-0601 General duties.

4-0601. General duties.--It shall be the duty of the city attorney, when requested to do so, to draft all ordinances; to draft and supervise the execution of all instruments in writing to which the city shall be a party; and to advise all city officers in matters relating to their official duties. He shall conduct, on behalf of the city, all suits and legal proceedings in which the city may be a party and shall handle such matters in a manner which he shall deem to be for the best interests of the city and its citizens and for the promotion of justice; provided, that the city attorney shall consult with the board of city commissioners with regard to all extraordinary lawsuits or proceedings wherein the city may become involved in heavy or unusual expense or damage.

Source: 1952 Rev. Ord. 4-0601.

ARTICLE 4-07

MUNICIPAL JUDGE

Section

4-0701 General duties.
4-0702 Refusal to turn over money collected or permit inspection of records.

4-0701. General duties.--The municipal judge shall perform all the duties prescribed by law and the ordinances of the city.

Source: 1952 Rev. Ord. 4-0701.

4-0702. Refusal to turn over money collected or permit inspection of records.--If the municipal judge shall neglect or refuse to pay over the money collected by him or shall refuse to allow the board of city commissioners to examine his records in regard to such matters, he shall be deemed guilty of willful neglect in office.

Source: 1952 Rev. Ord. 4-0702.

ARTICLE 4-08

CITY ENGINEER

Section

4-0801 Qualifications and general duties.
4-0802 Duty to make surveys, plans, plats, statements, and estimates--Duty to keep records of streets, and sewage and water systems--Report to board of city commissioners.
4-0803 Duty to superintend building or repair of sewers, waterworks systems, paving, and construction work.

4-0801. Qualifications and general duties.--The city engineer shall have the qualifications prescribed by law and shall perform the duties pertaining to his office as prescribed by law and the ordinances of the city.

Source: 1952 Rev. Ord. 4-0801.

4-0802. Duty to make surveys, plans, plats, statements, and estimates--Duty to keep records of streets, and sewage and water systems--Report to board of city commissioners.--The city engineer shall make all surveys, plans, plats, statements, and estimates required by the board of city commissioners and keep a record thereof in a book kept especially for that purpose. He shall also keep a record of all grades of streets, together with a profile of such street grades, in a book kept for that purpose alone. He shall also keep a complete record of the sewage and water pipe systems of the city. He shall make a monthly report to the board of city commissioners of all work done in his department. He shall make such plats, maps, or profiles as may be required by the city attorney in the prosecution of or defense of any action in which the city is an interested party.

Source: 1952 Rev. Ord. 4-0802.

4-0803. Duty to superintend building or repair of sewers, waterworks systems, paving, and construction work.--The city engineer shall superintend in person and carefully watch the building or repairing of any sewers built or ordered by the board of city commissioners, the extension or repair of the waterworks system, the construction and repair of paving, and the doing of all construction work contracted for by the city, and shall see that the work is done in conformity with the contract, ordinance or resolution authorizing the same. He shall see that improvements of all streets, sidewalks, and culverts are in conformity with the grade of the street on which such improvements are being made.

Source: 1952 Rev. Ord. 4-0803.

ARTICLE 4-09

SUPERINTENDENT OF WATER AND SEWAGE UTILITIES

Section

4-0901 General duties--Monthly and annual reports.

4-0901. General duties--Monthly and annual reports.--The superintendent of water and sewage utilities shall perform all the duties pertaining to his office as are prescribed by law

and the ordinances of the city. He shall be responsible for all waterworks property of the city including all books, records, and files of the department. He shall make a monthly report to the board of city commissioners and at the first meeting of the board in April of each year shall make an annual report containing a full list of all property connected with the waterworks system and a general statement of the condition of such property and the waterworks plant.

Source: 1952 Rev. Ord. 4-0901.

ARTICLE 4-10

SUPERINTENDENT OF STREETS

Section

4-1001 General duties.
4-1002 Monthly and annual reports.
4-1003 Duty to superintend and see to repair of streets, bridges, and sidewalks.
4-1004 Duty to keep streets and alleys clean.
4-1005 Duty to report violations of health ordinances and aid health officer.
4-1006 Defective sidewalks--Inspection--Notices to property owners to repair--Reports to board of city commissioners--Repealed.
4-1007 Defective sidewalks--Power and duty to prevent use of, post danger signals, and repair--Repealed.

4-1001. General duties.--The superintendent of streets shall perform all the duties pertaining to his office as are provided by law and the ordinances of the city.

Source: 1952 Rev. Ord. 4-1001.

4-1002. Monthly and annual reports.--The superintendent of streets shall make monthly reports to the board of city commissioners and at the first meeting of the board in April of each year shall make an annual report containing a list of all property belonging to the city in his hands or under his control and a statement of its condition.

Source: 1952 Rev. Ord. 4-1002.

4-1003. Duty to superintend and see to repair of streets, bridges, and sidewalks.--The superintendent of streets, under the direction of the board of city commissioners, shall have charge of the streets, bridges, and sidewalks of the city and shall see that all needful repairs are made thereon.

Source: 1952 Rev. Ord. 4-1003.

4-1004. Duty to keep streets and alleys clean.--The superintendent of streets shall see that the streets and alleys are kept clean and free from filth, manure, paper, and other rubbish and from all noxious weeds.

Source: 1952 Rev. Ord. 4-1004.

4-1005. Duty to report violations of health ordinances and aid health officer.--It shall be the duty of the superintendent of streets to report promptly to the health officer all violations of the health ordinances which come to his notice and to render any practical assistance to the health officer which the health officer may require.

Source: 1952 Rev. Ord. 4-1005.

4-1006. Defective sidewalks--Inspection--Notices to property owners to repair--Reports to board of city commissioners.--Repealed by Ord. No. 2516 (1990).

4-1007. Defective sidewalks--Power and duty to prevent use of, post danger signals, and repair.--Repealed by Ord. No. 2516 (1990).

ARTICLE 4-11

DIRECTOR OF PUBLIC HEALTH

Section

4-1101 General duties.
4-1102 Recording and documenting violations.

4-1101. General duties.--The director of public health, or its authorized agents, shall perform all the duties pertaining to said office prescribed by law and the ordinances of the city.

Source: 1952 Rev. Ord. 4-1101, 4395 (2004).

4-1102. Recording and documenting violations.--The director of public health, or its authorized agents, shall record and document violations of the health ordinances and orders or requirements of the board of health, health officer, or public health department.

Source: 1952 Rev. Ord. 4-1102, 4395 (2004).

ARTICLE 4-12

CITY WEIGHMASTER

Note: Article 12 of chapter 4 (section 4-1201) of the Revised Code of 1952 is repealed by omission from the 1965 Revised Ordinances. The article related to the general duties and reports of the city weighmaster. Chapter 15 (sections 15-0101 to 15-0301), relating to the city weighmaster, regulations as to weights and measures, and providing a penalty was repealed by Ord. No. 1209, 1965.

ARTICLE 4-13

AIRPORT MANAGER

Section

4-1301 General powers and duties.

4-1301 General powers and duties.--The manager of the airport shall have charge of the maintenance and operation of the municipal airport.

Source: 1952 Rev. Ord. 4-1301.

ARTICLE 4-14

CITY ADMINISTRATOR

4-1401 City administrator supervises all city departments.
4-1402 City administrator establishes goals and objectives.
4-1403 City administrator coordinates budget.
4-1404 City administrator represents departments to commission.
4-1405 Liaison for city.

4-1401. City administrator supervises all city departments.--The city administrator shall supervise the activities of all city departmental managers. Ensures completion of all reports and correspondences required by state and federal rules and regulations.

4-1402. City administrator establishes goals and objectives.--The city administrator shall establish goals and objectives for all departments and the city to ensure compliance with city commission policy directives and any applicable local, state or federal laws rules and regulations.

4-1403. City administrator coordinates budget.--The city administrator coordinates financial status of city with departmental goals, objectives and actual performance. The city administrator aids in development of the budget, and recommends and monitors the budget for all departments and monitors expenditures for various items to ensure compliance with guidelines.

4-1404. City administrator represents departments to commission.--The city administrator represents city departments to the city commission to present the plans and accomplishments of each department and to provide recommendations regarding current plans, projects and programs.

4-1405. Liaison for city.--The city administrator shall serve as liaison for the city with non-governmental organizations, contractors and citizens concerning city projects and policies.

Source: 4288 (2002).

CHAPTER 5

POLICE DEPARTMENT

Article

5-01 Organization and Regulations, §§ 5-0101 to 5-0105.
5-02 General Powers and Duties of the Police Force, §§ 5-0201 to 5-0207.
5-03 Chief of Police, §§ 5-0301 to 5-0307.
5-04 Reserved, §§ 5-0401 to 5-0409.

ARTICLE 5-01

ORGANIZATION AND REGULATIONS

Section

5-0101 Establishment of police department.
5-0102 Oath and bond of officers.
5-0103 Additional officers--Appointment in emergencies.
5-0104 Special officers--Appointment and powers.
5-0105 Rules and regulations of the police department.

5-0101. Establishment of police department.--There hereby is created a police department for the city. The police department shall consist of the chief of police and as many policemen, policewomen, patrolmen, and officers as may be authorized by the board of city commissioners.

Source: 1952 Rev. Ord. 5-0101.

5-0102. Oath and bond of officers.--The chief of police, the captain, and all policemen, policewomen, patrolmen, and other police officers shall subscribe the oath and affirmation provided for by law for all officers of the city, and shall give bond in such amount as may be required by the board of city commissioners.

Source: 1952 Rev. Ord. 5-0102.

5-0103. Additional officers--Appointment in emergencies.--In case of riot or unusual or general disturbances of the peace, the president of the board of city commissioners or, in the absence of the president from the state, the board of city commissioners shall have power to appoint such other and additional policemen and policewomen as shall be deemed necessary for the preservation of the public peace.

Source: 1952 Rev. Ord. 5-0103.

5-0104. Special officers--Appointment and powers.--At the request of any corporation, firm or person, the board of city commissioners may appoint and commission one or more special policemen or policewomen to duty for such corporation, firm, or person. Special policemen or policewomen shall have all the authority now, or which hereafter may be, conferred by law upon policemen; provided, however, that such special policemen or police-

women shall receive no compensation from the city and the city shall not be responsible for their negligent or unauthorized acts, these matters being the responsibility of the firm, person, or corporation requesting their appointment.

Source: 1952 Rev. Ord. 5-0104.

5-0105. Rules and regulations of the police department.--The board of city commissioners and chief of police are hereby authorized to promulgate such rules and regulations for the government of the officers and men and women of the police department as may be deemed necessary. A copy of such rules and regulations shall be provided for each of the officers and men and women of the department.

Source: 1952 Rev. Ord. 5-0105.

ARTICLE 5-02

GENERAL POWERS AND DUTIES OF THE POLICE FORCE

Section

5-0201 Service of warrants and process.
5-0202 Duty to report ordinance or law violations--Duty to make complaints and attend trials.
5-0203 Arrest without warrant disturbers of peace and order.
5-0204 Abatement of nuisances.
5-0205 Disposition of money or property of arrested persons.
5-0206 Duty to enforce all ordinances.
5-0207 Arrested persons brought before municipal judge.

5-0201. Service of warrants and process.--It shall be the duty of the police force of the city policeman and policewoman to serve all warrants and process delivered to such policeman or policewoman for service in the city and which, by law, he or she is authorized to serve.

Source: 1952 Rev. Ord. 5-0201.

5-0202. Duty to report ordinance or law violations--Duty to make complaints and attend trials.--It shall be the duty of the police force of the city and of each and every policeman and policewomen to notice and inquire diligently into and report to the board of city commissioners, chief of police, and city attorney all violations of the city ordinances, violations of the criminal laws of the state, and breaches of the peace and to make complaint against the person or persons guilty thereof. Every policeman or policewoman shall attend punctually all trials of offenses in regard to which he or she has made complaint.

Source: 1952 Rev. Ord. 5-0202.

5-0203. Arrest without warrant disturbers of peace and order.--It shall be the duty of the police force of the city and of each and every policeman or policewoman to ferret out all suspicious or disorderly houses in the city, to visit all parts of the city where disturbances and breaches of peace or violations of any ordinances are occurring or are likely to occur, and to arrest without warrant any person or persons who shall be found in a state of intoxication, or who are fighting, pilfering, or robbing, or who shall be making or uttering loud cries or noises or doing any act to disturb the peace or good order of the community, or who the policeman

or policewoman shall have good cause to believe are about to commit any unlawful act, and bring such person or persons before the police magistrate of the city to be dealt with according to law and the ordinances of the city.

Source: 1952 Rev. Ord. 5-0203.

5-0204. Abatement of nuisances.--It shall be the duty of the police force of the city, and of each and every policeman or policewoman, when required by the board of city commissioners, to abate or remove or cause to be abated or removed all nuisances within the limits of the city and to prosecute all persons guilty of maintaining the same.

Source: 1952 Rev. Ord. 5-0204.

5-0205. Disposition of money or property of arrested persons.--It shall be the duty of the police force of the city and of each and every policeman or policewoman to keep safely all money or property which may be found on the person or in the possession of, or which may be claimed by, any person arrested for crime and to pay or deliver over the same by the order of the police magistrate of the city and, forthwith, after taking the same, to report in writing the kind and amount thereof to the police magistrate of the city.

Source: 1952 Rev. Ord. 5-0205.

5-0206. Duty to enforce all ordinances.--It shall be the imperative duty of every policeman or policewoman to be active and vigilant in enforcing the several provisions of all the ordinances of the city that may be now or hereafter in force.

Source: 1952 Rev. Ord. 5-0206.

5-0207. Arrested persons brought before municipal judge.--Any police officer, after making any arrest, with or without a warrant, for any violation of city ordinances, shall take the person or persons so arrested, without any unreasonable delay, before the municipal judge to be dealt with according to law and the ordinances of the city.

Source: 1952 Rev. Ord. 5-0207.

ARTICLE 5-03

CHIEF OF POLICE

Section

5-0301 Appointment.
5-0302 Enforcement of laws and ordinances.
5-0303 Orders, rules, and regulations.
5-0304 Suspension of officers.
5-0305 Record of reports from officers.
5-0306 Record of accidents.
5-0307 Other duties.

5-0301. Appointment.--A chief of police shall be appointed with such qualifications and under such bond as shall be fixed by the board of city commissioners.

Source: 1952 Rev. Ord. 5-0301.

5-0302. Enforcement of laws and ordinances.--The chief of police shall devote his whole time to the discharge of the duties of his office and shall see that all the laws of the state and ordinances of the city, the execution which devolves upon the police force, are fully observed and enforced.

Source: 1952 Rev. Ord. 5-0302.

5-0303. Orders, rules, and regulations.--The chief of police shall promptly execute all orders and observe all rules and regulations. All orders to the chief of police shall emanate from, and be issued to him by, the board of city commissioners, and all orders to the police force shall be issued by the chief of police. The chief of police shall have power to promulgate orders to the police force not inconsistent with the law or with this chapter. The orders shall be written or printed and all members of the force shall observe and obey them.

Source: 1952 Rev. Ord. 5-0303.

5-0304. Suspension of officers.--The chief of police at his discretion may suspend from duty and report to the civil service commission and the board of city commissioners any member of the department against whom complaint has been made, and the pay of such department member shall not be allowed during the period between his suspension and his reinstatement or discharge unless such suspension is subsequently found to be unjustified.

Source: 1952 Rev. Ord. 5-0304.

5-0305. Record of reports from officers.--The chief of police shall record in a book reports from the several officers of all defects in the highways, pavement, sidewalks, and bridges; violations of the building laws; and cases of nuisances and shall report the same to the proper officials of the city.

Source: 1952 Rev. Ord. 5-0305.

5-0306. Record of accidents.--The chief of police shall keep a record of all accidents for which the city may become chargeable including therein the circumstances, names of witnesses, and a description of the location.

Source: 1952 Rev. Ord. 5-0306.

5-0307. Other duties.--The chief of police shall perform any other duties and services required of him by the board of city commissioners.

Source: 1952 Rev. Ord. 5-0307.

ARTICLE 5-04.

RESERVED*

Section

5-0401--5-0409. Reserved.

5-0401--5-0409. Reserved.--

***Editor's note**—Ord. No. 5511, § 1, adopted August 4, 2025 repealed Art. 5-04, §§ 5-0401--5-0409, which pertained to Fargo police advisory and oversight board and derived from Ord. No. 5327, adopted 2021; and Ord. No. 5431, adotped 2024.

CHAPTER 6

PENSIONS

Article

6-01 Police Pensions, § 6-0101 to 6-0123, 6-0125 to 6-0127 [6-0124--Repealed by omission].

6-02 Pensions for City Employees Other Than Those In the Police and Fire Pension Systems, § 6-0201 to 6-0228.

ARTICLE 6-01

POLICE PENSIONS

Section

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6-0101. Creation of pension and retirement system.--Under the authority of chapter 40-45 of the North Dakota Century Code and acts amendatory thereof there is hereby created a pension and retirement system for disabled or retired police department members, their spouses and children under 18 years of age.

Source: 1952 Rev. Ord. 6-0101, 904 (1953), 2657 (1993).

6-0102. Board of trustees--Officers--Compensation.--The board of trustees for management of the police pension fund shall consist of a member designated by the city commission of the city of Fargo and four persons elected by and from the members of the police department who are currently being assessed. No member shall be eligible for election until he or she has eight years' service. The election shall be held in the month of March of each year. Each elected member shall serve for a term of four years. A special election shall be held to replace a resigning or deceased trustee, such election to be for the remainder of such trustee's unexpired term. The terms of elected members shall commence immediately after their election. The president of the board shall be elected annually by the board of trustees. Such trustees shall receive no additional compensation for their services as members of the board.

Source: 1904 (1979), 2267 (1986), 2394 (1988), 2657 (1993).

6-0103. Investment of surplus in fund--Limitations--Securities deposited with treasurer.--At the end of the fiscal year, the board of trustees may invest any surplus left in the police pension fund, but no part of the moneys realized from any city contribution shall be used for any purpose other than the payment of pensions or related expenses. Such surplus funds may be invested in interest-bearing bonds of the United States or the state of North Dakota, or bonds or warrants of any county, township, or municipal corporation of this state which constitute the general obligations or contingent general obligations of the issuing tax authority, or investments with any federally insured bank or savings and loan association. All securities shall be deposited with the treasurer of the board for safekeeping. The board may also invest all or part of such surplus funds in other investments by selecting a funding agent or agents and establish an investment agreement contract regarding such surplus funds. The contract shall authorize the funding agent or agents to hold and invest such funds for the board and such funds shall be placed for investment only with a firm or firms whose primary endeavor is money management, and only after a trust agreement or contract has been executed.

Source: 1965 Rev. Ord. 6-0103, 1258 (1967), 2657 (1993).

6-0104. Acceptance of money, property and rewards by board--Limitations.--The board may take by gift, grant, devise, or bequest, any money or property, real or personal, or other thing of value for the benefit of the pension fund. All rewards in monies, fees, gifts, or emoluments of any kind or nature that may be paid or given to any police department or to any member thereof, except when allowed to be retained or given to endow a medal or other permanent or competitive reward on account of extraordinary services rendered by said department or any member thereof, and all fines and penalties imposed upon members shall be paid into the pension fund and become a part thereof.

Source: 1952 Rev. Ord. 6-0104.

6-0105. Membership fees and assessments--Employees' share picked up by city.--

A. Every member of said system shall be required to pay annually an amount equal to 9.0% of their total salary, beginning January 1, 2013. Beginning January 1,

2014, every member of said system shall be required to pay annually an equal of 10.0% of their total salary. In addition, any member hired after April 1, 1986, shall also be assessed, and required to pay annually an amount equal to 1.45% per annum upon the amount of the annual salary paid to such member, which assessment shall be deducted and retained in equal monthly installments out of such salary, said assessments to continue for the entire term of employment of said member and to be used for the Medicare portion of Social Security. Said additional assessments shall be adjusted from time to time to reflect changes in the Medicare portion of Social Security. For purposes of this section, annual salary shall include base pay and longevity and shall not include overtime, bonuses, or cash payments for sick or annual leave. The member's contribution shall be deducted from the employee's pay and paid into the pension fund.

B. The city shall pick up the member' contributions required by this section and such contributions shall be treated as employer contributions in determining federal tax treatment under section 414(h) of the United States Internal Revenue Code and such contributions shall not be included as gross income of the employee until such time as they are distributed or made available. The city shall pay the member contributions from the same source of funds which is used in paying earnings to the employee. The city shall pick up the member contributions by a salary deduction either through a reduction in the cash salary of the employee or a combination of a reduction in salary and offset against a future salary increase.

C. Any member of said system may make, and this system will accept, qualified rollover contributions.

Source: 1965 Rev. Ord. 6-0105, 1289 (1969), 1728 (1976), 2012 (1981), 2239 (1986), 2385 (1987), 2411 (1988), 2541 (1990), 2657 (1993), 4815 (2012), 4842 (2012).

6-0106. Service in armed forces.--Any member of the police department who has resigned therefrom or who shall resign therefrom, or who has been granted or shall be granted a leave of absence to serve in the Army, Navy, Air Force, or Marine Corps of the United States, or as a member of the United States Army, Navy, Air Force, or Marine Corps Reserve, or as a trainee under the selective service provisions of the laws of the United States and who has returned with an honorable discharge or other document showing honorable service shall have the period of such military service included as part of their period of service in the department, provided that credit allowed for such service shall not exceed a total of five years. Any such employee who seeks credit for such military service shall, upon their return to the employment of the city, pay into the police pension fund for each year of military service three percent of their average annual salary paid by the city or three percent of their annual military pay, whichever is the lesser amount.

Source: 1952 Rev. Ord. 6-0106, 904 (1953), 2564 (1991).

6-0107. Retired members assigned for light duty.--

Source: 1952 Rev. Ord. 6-0107, repealed by Ord. No. 2657 (1993).

6-0108. Pensions not subject to debts, execution or other process.--All pensions paid under the provisions of this article shall be exempt from liability for debts of the person to or on account of whom the same is paid and shall not be subject to seizure upon execution or other process.

Source: 1952 Rev. Ord. 6-0108.

6-0109. Warrants on pension fund--Financial report.--All pensions paid and all monies drawn from the pension fund under the provisions of this article shall be upon warrants signed by the person or persons designated by the board of trustees. The warrants shall designate the name of the person and purpose for which payment is made. The monthly financial report shall show the receipts and expenditures of such fund for the preceding month, the money on hand and how invested.

Source: 1952 Rev. Ord. 6-0109, 2657 (1993).

6-0110. Fiscal year.--The fiscal year for such fund shall commence on the first day of January of each year, and terminate on the thirty-first day of December of the same year.

Source: 1952 Rev. Ord. 6-0110, 2565 (1991).

6-0111. City contributions to plan.--The city's contribution to the police pension fund shall be an amount equal to a percentage of the pay of such employees in the police department, and such percentage shall be established by the board of city commissioners during the annual budget session.

Source: 1965 Rev. Ord. 6-0111, 1258 (1967), 2012 (1981).

6-0112. Actuary.--The pension fund shall be based upon actuarial tables and the board of trustees shall be empowered to engage the services of an actuary from time to time for the purpose of determining the conditions of such fund. Said actuary shall receive such compensation as the board may find to be fair and reasonable.

Source: 1952 Rev. Ord. 6-0112, 2657 (1993).

6-0113. Persons eligible for membership.--Every full-time employee of the police department of the city of Fargo shall be a member of the police pension fund, provided, however, that the chief of police appointed by the board of city commissioners pursuant to article 5-03 of the Fargo Municipal Code shall not be allowed to be a member of the police pension fund established by this chapter unless said appointed chief of police was a member of the police pension fund prior to appointment.

Source: 1014 (1957), 2266 (1986).

6-0114. Change in status of member--Notice to board.--It shall be the duty of the chief of police to give immediate notice in writing to the board of trustees of the change in status of any member in the department resulting from transfer, promotion, leave of absence, resignation, reinstatement, dismissal, death or other causes, and the chief of police shall furnish such other information concerning any member as the board may require.

Source: 1952 Rev. Ord. 6-0114, 2657 (1993).

6-0115. Regulations adopted by board--Member and beneficiary to furnish information.--The board of trustees, consistent with the terms and provisions of this article, shall be authorized from time to time to adopt such regulations as they deem necessary for governing

the operation of the fund and the requirements as to members and payments to beneficiaries. Each member and beneficiary shall be subject to all the provisions of this article and to all rules and regulations adopted by the board of trustees and shall furnish to the board such information affecting their status as a member or beneficiary of the system as the board may require.

Source: 1952 Rev. Ord. 6-0115, 2657 (1993).

6-0116. Refund upon termination of employment--Rights to pension benefits during leave of absence.--Any employee of the police department who shall have contributed to the police pension fund, and leaves the employment of the city, shall be entitled, upon application at the time of such termination, to a refund of all contributions made by them. For members leaving the employment of the city (or by death as provided for in section 6-0125(B) entitled "Members entitled to pension--Conditions--Amount.") after 1970, interest at the legal rate (currently 6% per annum) or such legal rate as may be established by the state legislature hereafter, shall be paid with and in addition to the refund of all contributions made by the employee. Said interest shall not be payable for the year in which the contributions are made but shall be calculated as of the end of the next year of employment (on the preceding year's contribution amount) and shall be simple interest compounded yearly thereafter. It is intended that for the first year of employment, no interest will be payable and for the second year of employment (and each year thereafter) interest shall be payable at the end of the year on the preceding year's contribution total. No rights to pension benefits shall accrue to any employee of the police department or to their beneficiaries during any leave of absence. Any employee of the police department who is displaced through privatization activities of the city, and who is not eligible for early retirement, shall receive 80% of the city's contribution to the pension, together with interest compounded annually at the legal rate (currently 6% per annum) or such legal rate as may be established by the state legislature hereafter. The city's pension contribution as aforesaid shall be combined with the employee's contribution to the pension, together with interest at the legal rate as aforesaid and shall be distributed to the employee in one lump sum.

Source: 904 (1953), 2268 (1986), 2657 (1993), 2752 (1995).

6-0117. Administrative costs.--

Source: 1952 Rev. Ord. 6-0117, repealed by Ord. No. 2657 (1993).

6-0118. Re-entering pension system.--Any member who, within two years after discontinuance of city service, but not otherwise, re-enters such service, may redeposit in the pension fund, in one sum or in not to exceed 6 monthly or 12 semi-monthly payments, an amount equal to that which they withdrew therefrom at the last termination of their membership and, thereupon, shall acquire credit for the years of service prior to their leaving the employment of the department. If a member upon re-entering the employ of the city within two years after a termination of their membership shall not make such redeposit, within one year of re-employment, they shall re-enter as a new member without credit for any service.

Source: 1952 Rev. Ord. 6-0118, 2657 (1993).

6-0119. Disability retirement.--

A. Retirement of a member for permanent disability shall be made by the board of trustees upon examination as follows: Any member while in the city service or

within 90 days after the discontinuance of city service or while physically or mentally incapacitated for the performance of their duty (if such incapacity has been continuous since discontinuance of city service) shall be examined by two competent physicians selected by the board of trustees, and reviewed by the city health officer. The examination shall be made upon the board's own motion following the application of said member, or a person acting on the member's behalf stating that said member is physically or mentally incapacitated for the performance of duty and ought to be retired and provided said member shall have been credited with ten or more years of continuous city service or shall have become physically or mentally incapacitated in the line of duty, provided, however, that the board of trustees, in its discretion, may accept, receive and consider any information pertaining to an employee's possible disability which may have been received under section 7-0305 of the Revised Ordinances of the city of Fargo. Such information may include medical reports which may be utilized by the board of trustees in addition to or in lieu of the medical examinations referred to hereinbefore. Any decision of the board established by the civil service commission shall not be binding on the board of trustees of the police pension system provided, however, that the board of trustees may consider any such information submitted to it in arriving at a final decision relative to the member's disability.

B. If such medical examination and other available evidence show to the satisfaction of the board of trustees: (1) that the said member is permanently physically or mentally disabled and incapacitated for the performance of duty; and (2) that said permanent disability was received in the line of duty or that said member had been on active duty with the police department for at least 10 years prior to such disability; then and not otherwise, the board of trustees shall retire the said member for disability.

C. The board of trustees shall secure medical services and advice as may be necessary to carry out the purpose of this section and section 6-0120 and the costs of such medical services and advice shall be paid from the police pension fund.

Source: 1965 Rev. Ord. 6-0119, 1929 (1979), 2012 (1981), 2657 (1993).

6-0120. Retired member re-entering city service.--

A. Should a beneficiary, after retirement for disability, re-enter the police department service at a pay range equal to or higher than the pay range which said member has been drawing pension on, the member's retirement allowance shall be canceled and they shall immediately become a member of the pension fund. Credit will be given for previous years of service.

B. Should the member re-enter police department service at a lesser pay range, their retirement allowance shall not be reduced until the member's pay range is equivalent to what said member was making prior to retirement for disability, it being the intent of this provision that member shall suffer no pay loss by reason of re-entering the police department service.

Source: 1965 Rev. Ord. 6-0120, 1930 (1979), 2012 (1981), 2657 (1993).

6-0121. Decision of board on re-examination.--The decision of the board upon re-examination, in the absence of fraud, and no appeal shall be allowed therefrom. Such disabled member shall remain upon the pension roll unless and until reinstated in such department by reason of such examination. Such reinstatement shall be evidenced by a certificate in writing signed by members of the board and filed with the police department.

Source: 1952 Rev. Ord. 6-0121.

6-0122. Retirement allowances payable.--A pension or retirement allowance granted under the provisions hereof shall be payable in equal monthly installments commencing in the month (and including payment for the entire month) that said pension or retirement allowance was granted.

Source: 1952 Rev. Ord. 6-0122; 4104 (2001).

6-0123. Members may receive workmen's compensation in addition to pension--Approval of board of trustees--Payment of workmen's compensation premiums from pension fund.--

Source: 1965 Rev. Ord. 6-0123, 1931 (1979), repealed by Ord. No. 2657 (1993).

6-0124. Pensions, basis of.--Repealed by Ord. No. 1061 (1959).

6-0125. Members entitled to pension--Conditions-- Amount.--

A.

1. Any member of the police pension fund who while a member of such fund, shall suffer permanent mental or physical disability as determined in accordance with section 6-0119 of this article, so that he or she is unable to discharge his or her duties shall be entitled to be retired and upon retirement shall be paid a monthly pension equal to 45% of the average monthly salary received during the highest paid consecutive 36-month period prior to such disability retirement. Any member who, at the time of being granted the disability retirement referred to herein, shall have served in the police department more than 20 years, shall upon attaining 88 points as defined in subsection (3) hereinafter, and if still on disability retirement, be entitled to an adjustment of their pension benefit and shall receive from that date a monthly pension benefit equal to 2% of the average monthly salary received during the highest paid consecutive 36-month period prior to the member's disability retirement multiplied by the years of service in the police department at the time said member actually retired on disability pension not to exceed 30 years.

2. For members retiring after the effective date of this ordinance (July 25, 1983), in addition to the pensions provided for in the foregoing subsections, each such retiree shall receive an additional $250 per month provided, however, that those retirees having less than 30 years of service shall receive such percentage of $250 per month as the years of their service bear to 30 years, and further provided that those members on disability retirement prior to the adoption of this ordinance shall not be entitled to any portion of such additional $250 per month.

3. After October 1, 1985, any member may retire at such time as he or she attains at least 78 points provided such member shall have attained at least 20 years of service. Points will be assigned as follows: One point will be assigned for each year of the member's age and one point will be assigned for each year of the member's service with the Fargo police department. Years of service and age will be calculated to the nearest six months (i.e. six months or more will constitute a completion of that year of service or that year of the member's age). If a member shall have attained 88 points, said member shall receive a full pension equal to 60% of the average monthly salary received during the highest paid consecutive 36-month period prior to retirement. In addition, said member shall receive the additional $250 per month provided for in the preceding subsection. For those members retiring with less than 88 points, the full pension will be reduced by 1/24th for each point less than 88. The additional $250 per month provided for in the preceding subsection shall be payable at the rate of $8.33 per month times each year of service but not to exceed a maximum of said $250. A table showing the various retirement benefits payable at points ranging from 78 to 88 will be maintained by the board of trustees and shall be open to inspection by members of the Fargo police fund. Any member terminating employment prior to attaining 78 points will be ineligible for retirement benefits unless said member has served at least 20 years. Such member's points would be determined by adding their years of service as of their termination date to their age when benefits commence.

4. Members reaching the age of 50 years may retire and shall receive a pension equal to 2.65 percent (effective January 1, 2004) of the member's average monthly salary received during the highest paid consecutive 36-month period prior to retirement times the years of said member's service. In addition, said member shall receive an additional sum per month equal to $8.33 per month times each year of service but not to exceed a maximum of $250 per month. Members joining the pension system prior to August 1, 1990, shall have the option of selecting the pension benefits provided under this subsection or the pension provided for in the preceding subsection, at the election of such member at the time of retirement. The retirement benefits provided for hereunder shall, however, be mandatory for persons joining the police pension system after August 1, 1990. Notwithstanding the actual date of adoption, the provisions of this subsection shall be effective for members retiring after July 1, 2000.

5. Members retiring after May 1, 1989, may request joint survivorship benefits for his or her designee. The amount of the survivor's monthly benefit and the diminution in the amount of the retiree's monthly benefit shall be determined by actuarial principals. Retiree may, at his or her option, elect to accept the reduced monthly benefit and the survivor benefit, as an alternative to the benefit otherwise determined in accordance with this article; provided, however, that should the retiree's

designee die prior to the death of the retiree, the benefit shall revert back to the original amount of the benefit. Joint survivorship must be applied for at the time retirement benefits are requested. The member's designee will be required to sign an affidavit acknowledging the member's option regarding joint survivorship.

B. Any member who has reached retirement age and actually retires shall be entitled to be paid the amount of pension benefits in effect at the time such member actually leaves the employ of the police department. In addition, the board of trustees pursuant to section 6-0115 of this article may adopt rules and regulations providing for additional payments to retirees from any excess interest earnings as determined by the said board of trustees provided, however, that in any one year, such additional payments shall not exceed a sum equal to two month's pension received by the retiree, and further provided that retirees have been retired for one complete year before any such additional sums are paid out to said retirees. The foregoing monthly pension together with the additional payment referred to, if any, shall continue from the member's retirement date and shall end with the last monthly payment due prior to the member's death. In the event a member or their beneficiaries, if any, die before the aggregate amount of pension payments received equal the total amount of the member's contributions made to the retirement plan (with such interest as is provided for in section 6-0116 hereof), the difference between the total amount of the member's contributions and the aggregate amount of pension benefit received by the member and beneficiaries, if any, shall be paid in a single lump sum to the person or persons designated by the member.

C. Notwithstanding the foregoing provisions, members having at least ten years of service and leaving the employment of the Fargo police department prior to age 50, may retire and receive pension benefits upon reaching the age of 50 years as provided herein. Those members shall receive a pension presently equal to 2.65% (effective January 1, 2004) of the member's average monthly salary received during the highest paid consecutive 36-month period prior to leaving the employment of the Fargo police department times the years of said member's service. It is provided, however, that the percentage to be paid upon the member's reaching the age of 50 years shall be the percentage in effect at the time the said member actually left the employment of the Fargo Police Department. It is further provided, however, that no other benefits shall be payable hereunder.

Source: 1258 (1967), 1264 (1968), 1290 (1969), 1890 (1979), 1932 (1979), 2012 (1981), 2106 (1983), 2265 (1986), 2384 (1987), 2472 (1989), 2540 (1990), 2542 (1990), 2657 (1993), 2751 (1995), 2878 (1998), 2962 (1998), 3083 (1999), 4067 (2000), 4068 (2000), 4415 (2004).

6-0126. Payments to beneficiaries.--Upon the death of any active or retired member (subject to the limitation contained in subparagraph (C)) of such department leaving a spouse, minor children or other beneficiaries surviving them, there shall be paid out of said fund pensions as follows:

A. To the surviving spouse of a member retiring prior to September 30, 1985, the sum of $240 per month effective January 1, 1989.

B. To the guardian of each surviving child under 18 years of age, for the benefit of such child, the sum of $80 per month.

C. Upon the death of any active or retired member of such department, a death benefit payment will be made to his or her spouse, other designated beneficiary, or if no designated beneficiary, to the member's estate. The amount of the payment shall be $2,500, provided, however, that such death benefit shall not apply to any active member or member retiring after July 25, 1983. After July 25, 1983, and prior to September 30, 1985, the amount of the payment was $50,000 for active members and was and shall remain $25,000.00 for members retiring between July 25, 1983, and September 30, 1985. After September 30, 1985, the amount of the payment shall be $65,000 for active members and $40,000 for members retiring after such date. After October 1, 2001, the beneficiary of an active member who has died may elect to choose to take the full $65,000 death benefit, plus the member's contributions (with interest as allowable under § 6-0116), or to receive the $40,000 death benefit and a monthly pension based upon the regular retirement of the deceased employee and 100% survivorship option. This pension will begin at the time the deceased would have reached the age of 50 and would have been eligible to collect the pension. This election, however, is contingent upon the active member being vested at the time of death. Said payments shall be provided by the pension fund. The $2,500 death benefit provided for herein shall be payable upon the filing of written proof of eligibility to receive payment. Payment may be made in a lump sum or prorated over a 6-month period, at the election of the beneficiary.

Source: 1728 (1976), 2105 (1983), 2232 (1985), 2262 (1986), 2425 (1988), 2657 (1993), 4232 (2002).

6-0127. Partial benefits.--

Source: 1965 Rev. Ord. 6-0127, 1474 (1973), 1892 (1979), repealed by Ord. No. 2657 (1993).

6-0128. Current retirees.--Current retirees including members on disability retirement, as of July 1, 1983, shall have their retirement benefit increased by 3% for each year of retirement from their retirement date to July 1, 1983. In the event of a partial year, the 3% shall be prorated for that year.

Source: 2104 (1983).

ARTICLE 6-02

PENSIONS FOR CITY EMPLOYEES OTHER THAN THOSE IN THE POLICE AND FIRE PENSION SYSTEMS

Note: Article 6-02 of chapter 6 of the Revised Ordinances of 1965 (sections 6-0201 to 6-0226) was repealed by Ord. No. 1964 (1980), which enacted new article 6-02 (sections 6-0201 to 6-0217).

Section

6-0201 Creation of pension and retirement system.
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6-0201. Creation of pension and retirement system.--Pursuant to authority of the Home Rule Charter of the city of Fargo, there is hereby created a pension and retirement system to provide monthly retirement compensation for eligible retired or totally disabled city employees (exclusive of those in the police and fire pension systems) and to provide for survivors' benefits in the event of death of such employee or retiree.

Source: 1964 (1980), 2238 (1985), 2269 (1986).

6-0201.1. Qualification.--

A. Coverage. This plan is intended to qualify under section 401 of the Internal Revenue Code. As such, for fiscal years prior to August 5, 1997, the plan shall be treated at all times as benefiting either:

1. 70 percent or more of all the employees, or 80 percent or more of all the employees who are eligible to benefit under the plan if 70 percent or more of all the employees are eligible to benefit under the plan, excluding in each case employees who have been employed not more than a minimum period prescribed by the plan, employees whose customary employment is for not more than 20 hours in any one week, and employees whose customary employment is for not more than 5 months in any calendar, or

2. Such employees as qualify under a classification set up by the City and found by the Secretary or his delegate not to be discriminatory in favor of employees who are officers. persons whose principal duties consist in supervising the work of other employees, or highly compensated employees.

For fiscal years beginning after August 5. 1997, this subsection shall not apply.

B. Nondiscrimination. For fiscal years prior to August 5, 1997, the benefits provided under the plan shall be treated as not discriminating in favor of employees who are officers, persons whose principal duties consist in supervising the work of other employees, or highly compensated employees. For fiscal years beginning after August 5, 1997, this subsection shall not apply.

C. Quarterly Participation Test. For fiscal years prior to August 5, 1997, the plan shall be treated as meeting the requirements of § 6-0201.1B on at least one day in each quarter of the fiscal year. For fiscal years beginning after August 5, 1997, this subsection shall not apply.

D. Vesting. Upon the termination of the plan or upon complete discontinuance of contributions, the rights of all members to benefits accrued to the date of such termination or discontinuance under the terms of this ordinance, to the extent then funded, shall be nonforfeitable. This section (D) shall not apply to benefits which, under provisions of the ordinance adopted pursuant to regulations prescribed by the Secretary or his delegate to preclude the discrimination prohibited by § 6-0201.1B may not be used for designated employees in the event of early termination of the plan.

Source: 4078 (2000), 4272 (2002).

6-0201.2. Exclusive Benefit Rule.--

A. The corpus or income of any trust or custodial account maintained to fund benefits provided under the terms of the plan may not be diverted to or used for other than the exclusive benefit of the members or their beneficiaries.

B. If plan benefits under the terms of the plan are provided through the distribution of annuity or insurance contracts, any refunds or credit in excess of plan benefits (on account of dividends, earnings, or other experience rating credits. or surrender or cancellation credits) will be paid to the trust or custodial account maintained to fund benefits provided under the terms of the plan.

C. If upon plan termination all liabilities are satisfied, any excess assets arising from erroneous actuarial computations shall revert to the City.

E. Any contribution made by the employer because of a mistake of fact must be returned to the City within one year of the contribution.

Source: 4078 (2000), 4272 (2002).

6-0202. Board of trustees--Management of pension fund--Officers--Compensation. The mayor, the city auditor, the city attorney, director of finance and four persons elected by and from the members of the city employees' pension plan, which persons are currently being assessed, shall constitute the board of trustees for the management of the city employees' pension fund. No member shall be eligible to serve on the board until he or she has been a member of the plan for a minimum of five years. Two of the four members shall be elected each year and the election shall be held on the second Tuesday in June of each year, or such other date in June as the board may designate, and the terms of elected members shall commence on the first day of July following the election. Each elected member shall serve for a term of two years or until his successor is elected and qualified. The terms of the elected members shall be staggered so that two new members are elected each year. The president of the board of city commissioners shall be the president and the city auditor shall act as secretary-treasurer of such board. The faithful performance of the duties of the treasurer shall be secured by his official bond as city auditor. The trustees shall not receive any compensation for their services as members of said board.

Source: 1965 Rev. Ord. 6-0202, 1964 (1980), 2004 (1980), 2205 (1985), 2406 (1988), 2696 (1994), 4534 (2006).

6-0203. Investment of surplus in fund--Limitations-- Securities deposited with treasurer.--The board of trustees may invest any surplus left in the city employees' pension fund, but no part of the monies realized from any tax levy shall be used for any purpose other than payment of pensions. Such surplus funds may be invested in interest-bearing bonds of the United States or the state of North Dakota, or bonds or warrants of any county, township or municipal corporation of this state which constitutes the general obligations or contingent general obligations of the issuing tax authority, or investments with any federally insured bank or savings and loan association. All securities shall be deposited with the treasurer of the board for safekeeping. The board may also invest all or part of such surplus funds in other investments by selecting a funding agent or agents and establishing an investment agreement contract regarding such surplus funds. The contract shall authorize the funding agent or agents to hold and invest such funds for the board and such funds shall be placed for investment only with a firm or firms whose primary endeavor is money management, and only after a trust agreement or contract has been executed.

Source: 1964 (1980), 2269 (1986).

6-0204. Acceptance of money and property by board.--The board of trustees may take by gift, grant, devise or bequest any money or property, real or personal, or other thing of value for the benefit of the city employees' pension fund, and when received, such property shall become a part of such fund.

Source: 1965 Rev. Ord. 6-0204, 1964 (1980), 2238 (1985).

6-0205. Service in armed forces--Compliance with Uniformed Services Employment and Reemployment Rights Act of 1994.--Any employee of the city who is subject to the provisions of this article to whom has been granted or shall be granted a leave of absence to

serve in the Army, Navy, Marine Corps, or Air Force of the United States, or is a member of the United States Army, Navy, Marine Corps or Air Force Reserves, or who shall have been selected for training under the selective service provisions of the laws of the United States and who has returned to the employ of the city with an honorable discharge, or other document showing honorable service in such service, shall have the period of such service included as a part of his period of service to the city, provided that credit allowed for such service shall not exceed a total of five years. Any such employee who seeks credit for such military service shall, upon his return to the employment of the city, pay into the employees' pension fund an amount equal to the amount such employee would have contributed if he had been a city employee during the period of his military service.

Effective for veterans re-hired on or after December 12, 1994, and notwithstanding any provision of this Article 6-02 to the contrary, contributions, benefits and service credit will be provided in accordance with section 414(u) of the Code. This shall not preclude any person from receiving more generous treatment for military service pursuant to state law or the provisions of this plan if such treatment is not inconsistent with the tax qualification requirements.

Source: 1965 Rev. Ord. 6-0205, 1964 (1980), 4078 (2000).

6-0206. Pensions not subject to assignment, debts, execution, or other process.--Any pension paid under the provisions of this article shall not be subject to assignment and shall be exempt from liability for debts of the person to or on account of whom the same is paid, and shall not be subject to seizure upon execution or other process.

Source: 1965 Rev. Ord. 6-0206, 1964 (1980).

6-0207. Payments from pension fund--Treasurer's report.--All pensions paid and all monies drawn from the pension fund under the provisions of this article shall be upon checks or drafts issued by the treasurer of such board. Such checks or drafts shall designate the person to whom and purpose for which payment is made. The treasurer's annual report shall show the receipts and expenditures of the fund for the preceding fiscal year, the money on hand, and how the same is invested. Such report shall be made to the board of trustees and shall be filed with the city auditor.

Source: 1964 (1980), 2269 (1986).

6-0208. Fiscal year.--The fiscal year for the pension fund shall commence the first day of January of each year and terminate on the last day of December of each year.

Source: 1965 Rev. Ord. 6-0208, 1964 (1980), 2238 (1985).

6-0209. Contributions to plan.--Member's share picked up by city.--

A. The city's contribution to the employees' pension plan shall be an amount equal to 7% of payroll beginning with the payroll period commencing immediately prior to January 1, 2012, and increasing to 8% beginning with the payroll period commencing immediately prior to January 1, 2013, less that amount of city matching contributions which is contributed on behalf of a member to the deferred compensation program pursuant to section 3-0608. For purposes of this section, payroll shall include base pay and longevity and shall not include overtime, bonuses, or cash payments for sick or annual leave. In addition to the percentage of payroll contribution aforementioned, the city may fund all or part of the actuarially required contributions as determined by the plan actuary.

B. The member's contribution shall be mandatory and equal to that percentage of salary as determined by the board of trustees but shall in no event be in excess of 3% of a member's pay through the last payroll period in 1999, and 4% beginning with the first payroll period in 2000, and 5.5% beginning with the payroll period commencing immediately prior to January 1, 2012, and 6.5% beginning with the payroll period commencing immediately prior to January 1, 2013, which is defined to include base pay and longevity and shall not include overtime, bonuses, or cash payments for sick or annual leave. Such reductions from base pay and longevity, although designated as member contributions, shall be deducted by the city at the normal payroll intervals and paid by the city as pick-up contributions in lieu of contributions by the member. The city shall deduct the member's mandatory contributions required by this section from a member's salary and longevity on or after the first payroll interval in 2000 following the effective date of this section, and the contributions so deducted shall be treated as city contributions in determining federal tax treatment under section 414(h) of the Internal Revenue Code of 1986, as amended. In no event shall a member have the option of receiving the amount of the picked-up member contribution in cash in lieu of the picked-up contribution to the plan.

Source: 1964 (1980), 2238 (1985), 2269 (1986), 2291 1986), 2550 (1990), 2841 (1997), 2853 (1998), 3072 (1999), 4272 (2002), 4843 (2012).

6-0210. Actuary and actuarial equivalence.--Administration of the pension fund shall be based upon actuarial advice and the board of trustees shall be empowered to engage the services of an actuary for the purpose of assisting in the administration of such fund. The city shall pay such compensation for the services of an actuary as the board may find to be fair and reasonable. For purposes of this article, the term "actuarial equivalent" means the equivalent value as determined by the actuary, computed as follows:

A. Mortality - the 1984 Unisex Pension Mortality Table; and,

B. Interest - 7 percent interest.

Source: 1965 Rev. Ord. 6-0210, 1964 (1980), 4272 (2002).

6-0211. Persons included in the system--Exception.--Except as hereinafter provided, all persons in the permanent employ of the city of Fargo, except the city adminiministrator and all employees in the police and fire pension systems, shall be members of the plan. It is provided, however, that the director of finance at the time of adoption of this ordinance shall continue to be an optional member of the plan. Persons in the permanent employ of the city means those persons classified by the city as employed in a full-time regular position. Membership in the employees' pension plan shall be optional for any person employed by the city prior to November 1, 1986; provided, that any employee who is a member of the plan and has not withdrawn prior to November 1, 1986, shall remain a member for the duration of his or her employment. Any employee who shall have terminated his or her membership between November 1, 1985, and November 1, 1986, may re-enter the plan by reimbursing any refund of contributions which was received by that employee upon his or her termination, and by paying to the plan, the amount of the employee contribution which would have been made if he or she had not withdrawn from the plan. Employees re-entering the plan as hereinabove provided shall be reinstated and given credit for longevity in the same manner as if said employee had never withdrawn from the plan. Any employee who was not a member of the plan on

November 1, 1985, or did not re-enter the plan prior to November 1, 1986, as hereinabove provided, may enter the plan at any time and years of service for that employee for purposes of determining pension benefits shall be determined as of the date of entry into the plan. The board of trustees for the city employees' pension fund, with the consent of the board of city commissioners, have elected to permit existing city employees to choose whether to remain as a member of the city employees' pension plan, as governed by this article, or whether to join the North Dakota Public Employees Retirement System pension program, and to make contributions thereto. Further, individuals who become employed by the city on or after January 1, 2008, will be allowed only to join the North Dakota Public Employees Retirement System pension program. As to those city employees who have joined the North Dakota Public Employees Retirement System pension program, all benefits accruing as a result of contributions from and after an employee's entry in the North Dakota Public Employees Retirement System shall be subject to the bylaws, rules and regulations thereof.

Source: 1964 (1980), 2238 (1985), 2269 (1986), 2279 (1986), 2289 (1986), 2593 (1991), 4272 (2002), 4534 (2006), 4653 (2008).

6-0212. Change in employment status--Notice to board.--It shall be the duty of the personnel officer of the city of Fargo to give immediate notice in writing to the board of trustees of the change in status of any city employee who is subject to the provisions of this article. The changes to be reported are those resulting from transfer, promotion, leave of absence, resignation, reinstatement, dismissal, death, ceasing to be employed by the city in a full-time regular position, or other cause, and the personnel officer shall furnish such other information concerning any such employee as the board may require.

Source: 1965 Rev. Ord. 6-0212, 1964 (1980), 4272 (2002).

6-0213. Regulations--Duty of member and of beneficiary.--The board of trustees shall be authorized from time to time to adopt such regulations, subject to approval of the board of city commissioners, as may be deemed necessary, consistent with the terms and provisions of this article, to govern the operation of the pension fund and the requirements as to members and payments to beneficiaries. Each member and beneficiary shall be subject to all the provisions of this article and to all such rules and regulations as adopted by the board and shall furnish to the board such information affecting his status as a member or beneficiary of the system as the board may require.

Source: 1965 Rev. Ord. 6-0213, 1964 (1980).

6-0214. Accumulation accounts--Refund upon termination of employment or membership.--There is hereby established for each member of the plan a city accumulation account which shall be comprised of an amount equal to 2.75% of the member's annual salary since January 1, 1990, plus interest thereon at the rate of 5.0% per annum compounded annually at the end of each calendar year. In addition to the city accumulation account, there is also established for each member an employee accumulation account which shall consist of the total of the member's contributions to the plan during the member's period of city service.

Interest on the employee accumulation account shall accrue at the rate of 5% per annum from and after January 1, 1986, compounded annually from the end of each calendar year. Upon termination of employment, a member shall be entitled to payment as follows:

A. If the terminating member has not yet reached the age of 55 years, the member may, at his or her option, elect to receive:

1. The combined total of the member's city accumulation account and employee accumulation account, with interest credited to the distribution date; or

2. A single payment in an amount equal to the "actuarial equivalent" value of his or her deferred annuity benefit; or

3. A deferred retirement annuity.

Notwithstanding the foregoing, any member who is displaced through privatization activities, and who is not eligible for early retirement, shall receive 80% of the city's pension contribution, together with interest compounded annually at 6% per annum. The city's pension contribution as aforesaid shall be combined with the member's contribution to the pension, together with interest at 6% per annum as aforesaid and shall be distributed to the member in one lump sum.

Source: 1964 (1980), 2238 (1985), 2269 (1986), 2364 (1987), 2594 (1991), 2695 (1994), 2753 (1995), 4272 (2002), 4653 (2008).

6-0215. Administrative costs.--The administrative costs of the pension system shall be paid by the city, such payments to be charged against the appropriation for the system and the budget for the then current fiscal year.

Source: 1965 Rev. Ord. 6-0215, 1964 (1980).

6-0216. Re-entering system plan.--Any member subject to the provisions of this article who, after discontinuance of city service or membership in the plan, re-enters such service as an employee in the permanent employ of the city, subject to the provisions of this article, may redeposit into the pension fund an amount equal to that which he or she withdrew therefrom at the preceding termination of his or her membership, plus interest thereon at the rate of 1% higher than the average annual earnings of the pension fund for the 10-year period preceding the date of re-employment, or 1% higher than the current actuarial rate, whichever is higher, and thereupon shall acquire credit for the years of service prior to his or her leaving the employment of the city. If a member upon re-entering the employ of the city after a termination of his or her employment or membership in the plan, shall not make such redeposit within 60 days of his or her reemployment in the permanent employ of the city, he or she shall re-enter as a new member without credit for any prior service. Any employee who was terminated as a city employee and thereafter re-entered such service as an employee prior to January 1, 1993, and who makes written request on or before January 1, 1994, for credit for such prior service shall have 30 days from and after determination of the amount to be paid, to re-deposit the amount withdrawn, plus accrued interest as hereinabove provided, and shall thereupon acquire credit for his or her years of service prior to discontinuance of city service. A member and city employee who has elected to participate in the North Dakota Public Employees Retirement System effective on or after January 1, 2008, shall not be eligible, thereafter, to re-enter the city employee pension plan.

Source: 1965 Rev. Ord. 6-0216, 1964 (1980), 2641 (1993), 2675 (1993), 4272 (2002). 4653 (2008).

6-0217. Retirement--Application for benefits.--Any member who has reached the age of 55 years or older and has been a member of the plan for a minimum of ten years (for termination of employment or membership prior to July 1, 1994) and five years (for termination of employment or membership on or after July 1, 1994), may draw benefits from the pension plan at any time after termination of his employment with the city or membership in the plan and become a retiree. From and after January 1, 2008, any member who has reached the age of 55 years or older may draw benefits from the pension plan at any time after termination of his employment with the city in the plan and become a retiree. After January 1, 2000, any member may also terminate his employment with the city and draw benefits from the pension plan as a retiree at such time as he or she attains at least 90 points while employed by the city in a regular full-time position. Any member attaining 90 points will be eligible to become a retiree with 100% benefits and not be affected by the factor for age as shown in 6-0218(C) of this chapter. Points will be assigned as follows: one point will be assigned for each year of the members age and one point will be assigned for each year of the members service based, however, on the hire date as a full-time employee. Years of service and age will be calculated to the nearest six months (i.e. six months or more will constitute a completion of that year of service or that year of the member's age). Actual benefits for those members attaining 90 points will be based on the number of years paid into the pension plan. Written application for benefits shall be made by the member and submitted to the board of trustees.

Source: 1964 (1980), 2238 (1985), 2269 (1986), 2594 (1991), 2695 (1994), 3073 (1999), 4272 (2002), 4653 (2008).

6-0218. Determination of monthly benefit.--The monthly benefit payable to a retiree who terminates his employment with the city or his membership in the plan on or before October 22, 1990, shall be determined at the time he or she makes application for benefits and shall be based upon the retiree's age, years of service with the city, subject to the application of section 6-0211, and highest average monthly salary and shall be determined as follows:

A. Determine the highest average monthly salary received by the member during any consecutive 60-month period during his employment with the city. For purposes of this section, salary shall include base pay plus longevity but shall not include overtime, bonuses or cash payments for sick or annual leave.

B. Multiply the highest average monthly salary by the member's total years of service, subject to the application of section 6-0211, expressed to the nearest month.

C. Except as provided in section 6-0217 concerning attaining 90 points, (with respect to a member who terminates his employment with the city or his membership in the plan on or after January 1, 2000), multiply the total amount determined in accordance with (B) above by the appropriate age factor (applicable to a member who becomes a retiree on or after October 22, 1990), as listed below:

AGE		*FACTOR*	*AGE*		*FACTOR*
YEARS	*MONTHS*		*YEARS*	*MONTHS*	
55	0	.00700	59	0	.00833
	1	.00703		1	.00836
	3	.00708		2	.00839
	4	.00711		3	.00842
	5	.00714		4	.00844
	6	.00717		5	.00847
	7	.00719		6	.00850
	8	.00722		7	.00853
	9	.00725		8	.00856
	10	.00728		9	.00858
	11	.00731		10	.00861
56	0	.00733		11	.00864
	1	.00736	60	0	00867
	2	.00739		1	.00872
	3	.00742		2	.00878
	4	.00744		3	.00883
	5	.00747		4	.00889
	6	.00750		5	.00894
	7	.00753		6	.00900
	8	.00756		7	.00906
	9	.00758		8	.00911
	10	.00761		9	.00917
	11	.00764		10	.00922
57	0	.00767		11	.00928
	1	.00769	61	0	.00933
	2	.00772		1	.00939
	3	.00775		2	.00944
	4	.00778		3	.00950
	5	.00781		4	.00956
	6	.00783		5	.00961
	7	.00786		6	.00967
	8	.00789		7	.00972
	9	.00792		8	.00978
	10	.00794		9	.00983
	11	.00797		10	.00989
58	0	.00800		11	.00994
	1	.00803	62 and Over	0	.01000
	2	.00806			
	3	.00808			

AGE		*FACTOR*	*AGE*		*FACTOR*
YEARS	*MONTHS*		*YEARS*	*MONTHS*	
	4	.00811			
	5	.00814			
	6	.00817			
	7	.00819			
	8	.00822			
	9	.00825			
	10	.00828			
	11	.00831			

D. Multiply the total amount determined in accordance with (C) above for members who terminated their employment with the city or their membership in the plan on or after October 22, 1990 and prior to January 1, 2013, and who have not attained 90 points as provided in section 6-0217:

1. by 1.10 for members who terminated their employment with the city or their membership in the plan before August 1, 1991,
2. by 1.20 for members who terminated their employment with the city or their membership in the plan on or after August 1, 1991, and before January 1, 1998,
3. by 1.30 for members who terminated their employment with the city or their membership in the plan on or after January 1, 1998, and before January 1, 2000, and
4. by 1.40 for members who terminated their employment with the city or their membership in the plan on or after January 1, 2000 and who have not attained 90 points as provided in section 6-0217, to determine the normal monthly retirement benefit.

E. With respect to a member who terminates his employment with the city or their membership in the plan on or after January 1, 2000 and has attained 90 points as provided in section 6-0217, multiply the total amount determined in accordance with (B) above by .014.

F. Determination of monthly benefit on or after January 1, 2013.--

1. The monthly benefit payable to a retiree who terminates his employment with the city or his membership in the plan on or after January 1, 2013, shall be determined at the time he or she makes application for benefits and shall be based upon the retiree's age, years of service with the city, subject to the application of section 6-0211, and highest average monthly salary and shall be determined as follows:
   a. Determine the highest average monthly salary received by the member during any consecutive 60-month period during his employment with the city. For purposes of this section, salary shall include base pay plus longevity but shall not include overtime, bonuses or cash payments for sick or annual leave.
   b. Determine the applicable benefit multiplier, as described in subdivision F.2, below.

c. Determine the member's years of service prior to January 1, 2013, subject to the application of section 6-0211, expressed to the nearest month.
d. Determine the member's total years of service on or after January 1, 2013, subject to the application of section 6-0211, expressed to the nearest month.
e. Determine the applicable early retirement factor for service prior to January 1, 2013, as described in subdivision F.3, below.
f. Determine the applicable early retirement factor for service on or after January 1, 2013, as described in subdivision F.3, below.
g. The monthly benefit payable is the sum of the product of paragraphs a, b, c and e plus the product of a, b, d and f, above.

2. Applicable benefit multiplier. For members who terminated their employment with the city or their membership in the plan on or after January 1, 2013, the applicable benefits multiplier is 1.4% (.014) for each full year of service.

3. Applicable early retirement factor. The applicable early retirement factor is determined by the age of the member on the date of the commencement of their benefit and is different for benefits earned due to service earned prior to January 1, 2013, and for benefits earned due to subsequent service.
   a. Early retirement factor for service prior to January 1, 2013.
      The applicable early retirement factor under paragraph F.1.e, is determined as follows based on the age and service of the member on the date on commencement:
      i. For members who have attained the age of 62, the early retirement factor is 100% (1.0000).
      ii. For members who have not yet attained age 62 but who have attained 90 points as provided in section 6-0217, the early retirement factor is 100% (1.0000).
      iii. For members who meet neither criteria a. nor b. above, the early retirement factor is 1.0000 less the sum of the following:
         (1) The number of full months prior to age 62, up to 24 months, divided by 180 and rounded to three decimals.
         (2) The number of full months prior to age 62 exceeding 24 months divided by 360 and rounded to three decimals.
      iv. For illustration purposes, the following table shows examples of applicable early retirement factors under paragraph F.3.a:

Months	ERF
12	0.933
24	0.867

Months	ERF
36	0.833
48	0.800
60	0.767
72	0.733
84	0.700

b. Early retirement factor for service on or after January 1, 2013. The applicable early retirement factor under paragraph F.1.f, is determined as follows based on the age and service of the member on the date on commencement:

i. For members who have attained the age of 65, the early retirement factor is 100% (1.0000).

ii. For members who have not yet attained age 65 but who have attained 90 points as provided in section 6-0217, the early retirement factor is 100% (1.0000).

iii. For members who meet either criteria a. nor b. above, the early retirement factor is 1.0000 less the number of full months prior to age 65 divided by 180 and rounded to three decimals.

iv. For illustration purposes, the following table shows examples of applicable early retirement factors under paragraph F.3.b:

Months	ERF
12	0.933
24	0.867
36	0.800
48	0.733
60	0.667
72	0.600
84	0.533
96	0.467
108	0.400
120	0.333

G. In addition to the retirement benefit determined as hereinabove provided, a retiree whose combined age and years of plan participation equal or exceed 87, shall be entitled to an additional benefit of $200 per month, payable for a maximum of three years, or until the retiree is eligible for Medicare benefits, whichever occurs first, provided that upon the death of said retiree, the balance of said additional benefit then remaining unpaid shall be paid in a lump sum to the retiree's beneficiary, spouse, or estate, as the case may be.

H. As of January 1, 2008, with some city employees having elected to join and contribute to the North Dakota Public Employees Retirement System pension plan, those benefits for city employees who are, or have been, contributing

members of the city employee pension plan set forth in this article shall not be based upon an employee's years of service with the city while the employee was a contributing member of North Dakota Public Employees Retirement System. An employee's years of service prior to January 1, 2008, will remain eligible for benefits under the terms and conditions of this article.

The normal benefit form for retiring city members shall be a life only annuity with monthly benefit to be determined as hereinabove provided. The monthly benefit shall be payable for the life of the retiree and shall terminate upon such retiree's death; provided, that the retiree may elect to provide for spousal survivor benefits as hereinafter provided.

Source: 2269 (1986), 2452 (1989), 2550 (1990), 2587 (1991), 2594 (1991), 2695 (1994), 2726 (1995), 2841 (1997), 3074 (1999), 4272 (2002), 4653 (2008), 4843 (2012).

6-0218.1. Distribution Requirements.--

A. General Rules.

1. The requirements of this article shall apply to any distribution of a member's interest and will take precedence over any inconsistent provisions of this plan. Unless otherwise specified, the provisions of this article apply to calendar years beginning after December 31, 1984.
2. All distributions required under this article shall be determined and made in accordance with the Proposed Income Tax Regulations under section 401(a)(9) of the Code, including the minimum distribution incidental benefit requirement of section 1.401(a)(9)-2 of the Proposed Income Tax Regulations.

B. Required Beginning Date. The entire interest of a member must be distributed or begin to be distributed no later than the participant's required beginning date.

C. Limits on Distribution Periods. As of the first distribution calendar year, distributions, if not made in a single-sum may only be made over one of the following periods (or a combination thereof):

1. the life of the member, or
2. the life of the member and a designated beneficiary,

D. Determination of amount to be distributed each year.

1. If the member's interest is to be paid in the form of annuity distributions under the plan, payments under the annuity shall satisfy the following requirements:
   a. the annuity distributions must be paid in periodic payments made at intervals not longer than one year;
   b. the distribution period must be over a life (or lives) or over a period certain not longer than a life expectancy (or joint life and last survivor expectancy) described in section 401(a)(9)(A)(iii) or section 401(a)(9)(13)(iii) of the Code, whichever is applicable;
   c. the life expectancy (or joint life and last survivor expectancy) for purposes of determining the period certain shall be determined without recalculation of life expectancy;
   d. once payments have begun over a period certain, the period certain may not be lengthened even if the period certain is shorter than the maximum permitted;

e. payments must either be nonincreasing or increase only as follows:
   i. with any percentage increase in a specified and generally recognized cost-of-living index;
   ii. to the extent of the reduction to the amount of the member's payments to provide for a survivor benefit upon death, but only if the beneficiary whose life was being used to determine the distribution period described in section (C) above dies and the payments continue otherwise in accordance with that section over the life of the member;
   iii. to provide cash refunds of member contributions upon the member's death; or
   iv. because of an increase in benefits under the plan.

f. If the annuity is a life annuity (or a life annuity with a period certain not exceeding 20 years), the amount which must be distributed on or before the member's required beginning date (or, in the case of distributions after the death of the member, the date distributions are required to begin pursuant to section (E) below) shall be the payment which is required for one payment interval. The second payment need not be made until the end of the next payment interval even if that payment interval ends in the next calendar year. Payment intervals are the periods for which payments are received, e.g., bimonthly, monthly, semi-annually, or annually.

   If the annuity is a period certain annuity without a life contingency (or is a life annuity with a period certain exceeding 20 years) periodic payments for each distribution calendar year shall be combined and treated as an annual amount. The amount which must be distributed by the member's required beginning date (or, in the case of distributions after the death of the member, the date distributions are required to begin pursuant to section (e) above) is the annual amount for the first distribution calendar year. The annual amount for other distribution calendar years, including the annual amount for the calendar year in which the member's required beginning date (or the date distributions are required to begin pursuant to section (E) below) occurs, must be distributed on or before December 31 of the calendar year for which the distribution is required.

2. Annuities purchased after December 31, 1988, are subject to the following additional conditions:
   a. Unless the member's spouse is the designated beneficiary, if the member's interest is being distributed in the form of a period certain annuity without a life contingency, the period certain as of the beginning of the first distribution calendar year may not exceed the applicable period determined using the table set forth in Q&A A-5 of section 1.401 (a)(9)-2 of the Proposed Income Tax Regulations.

b. If the member's interest is being distributed in the form of a joint and survivor annuity for the joint lives of the member and a nonspouse beneficiary, annuity payments to be made on or after the member's required beginning date to the designated beneficiary after the member's death must not at any time exceed the applicable percentage of the annuity payment for such period that would have been payable to the member using the table set forth in Q&A A-6 of section 1.401(a)(9)-2 of the Proposed Income Tax Regulations.

3. Transitional rule. If payments under an annuity which complies with section (A) above begin prior to January 1, 1989, the minimum distribution requirements in effect as of July 27, 1987, shall apply to distributions from this plan, regardless of whether the annuity form of payment is irrevocable. This transitional rule also applies to deferred annuity contracts distributed to or owned by the employee prior to January 1, 1989, unless additional contributions are made under the Plan by the employer with respect to such contract.

4. If the form of distribution is an annuity made in accordance with this section (D), any additional benefits accruing to the member after his or her required beginning date shall be distributed as a separate and identifiable component of the annuity beginning with the first payment interval ending in the calendar year immediately following the calendar year in which such amount accrues.

5. Any part of the member's interest which is in the form of an individual account shall be distributed in a manner satisfying the requirements of section 401(a)(9) of the Internal Revenue Code and the proposed regulations thereunder.

E. Death Distribution Provisions.

1. Distribution beginning before death. If the member dies after distribution of his or her interest has begun, the remaining portion of such interest will continue to be distributed at least as rapidly as under the method of distribution being used prior to the member's death.

2. Distribution beginning after death. If the member dies before distribution of his or her interest begins, distribution of the member's entire interest shall be completed by December 31 of the calendar year containing the fifth anniversary of the member's death except to the extent that an election is made to receive distributions in accordance with (a) or (b) below:

a. if any portion of the member's interest is payable to a designated beneficiary distributions may be made over the life or over a period certain not greater than the life expectancy of the designated beneficiary commencing on or before December 31 of the calendar year immediately following the calendar year in which the member died.

b. if the designated beneficiary is the member's surviving spouse, the date distributions are required to begin in accordance with (a)

above shall not be earlier than the later of (1) December 31 of the calendar year immediately following the calendar year in which the member died and (2) December 31 of the calendar-year in which the member would have attained age 70½.

If the member has not made an election pursuant to this section (E)(2) by the time of his or her death, the member's designated beneficiary must elect the method of distribution no later than the earlier of (1) December 31 of the calendar year in which distributions would be required to begin under this section, or (2) December 31 of the calendar year which contains the fifth anniversary of the date of death of the member. If the member has no designated beneficiary, or if the designated beneficiary does not elect a method of distribution, distribution of the member's entire interest must be completed by December 31 of the calendar year containing the fifth anniversary of the member's death.

3. For purposes of section (E)(2) above, if the surviving spouse dies after the member, but before payments to such spouse begin, the provisions of section (E)(2), with the exception of paragraph (b) therein, shall be applied as if the surviving spouse were the member.
4. For purposes of this section (E), any amount paid to a child of the member will be treated as if it had been paid to the surviving spouse if the amount becomes payable to the surviving spouse when the child reaches the age of majority.
5. For the purposes of this section (E), distribution of a member's interest is considered to begin on the member's required beginning date (or, if section (E)(3) above is applicable, the date distribution is required to begin to the surviving spouse pursuant to section (E)(2) above). If distribution in the form of an annuity described in section (D)(1)(b) above irrevocably commences to the member before the required beginning date, the date distribution is considered to begin is the date distribution actually commences.

F. Definitions

1. "Designated beneficiary". The individual who is designated as the beneficiary under the plan in accordance with section 401(a)(9) of the Internal Revenue Code and the proposed regulations thereunder.
2. "Distribution calendar year". A calendar year for which a minimum distribution is required. For distributions beginning before the member's death, the first distribution calendar year is the calendar year immediately preceding the calendar year which contains the member's required beginning date. For distributions beginning after the member's death, the first distribution calendar year is the calendar year in which distributions are required to begin pursuant to section (E) above.
3. "Life expectancy". The life expectancy (or joint and last survivor expectancy) calculated using the attained age of the member (or designated beneficiary) as of the member's (or designated beneficiary's) birthday in the applicable calendar year. The applicable calendar year shall be the first distribution calendar year. If annuity payments commence before

the required beginning date, the applicable calendar year is the year such payments commence. Life expectancy and joint and last survivor expectancy are computed by use of the expected return multiples in Tables V and VI of section 1.72-9 of the Income Tax Regulations.

4. "Required beginning date".
   a. General rule. The required beginning date of a member is the first day of April of the calendar year following the later of the calendar year in which the member attains age 70½ or the date of actual retirement.
   b. Transitional rule. The required beginning date of a member who attains age 70½ before January 1, 1988, shall be the first day of April of the calendar year following the calendar year in which the later of retirement or attainment of age 70½ occurs. The required beginning date of a member who attains age 70½ during 1988 and who has not retired as of January 1, 1989, is April 1, 1990.

G. "Transitional Rule".
   1. Notwithstanding the other requirements of this Article, distribution on behalf of any member, may be made in accordance with all of the following requirements (regardless of when such distribution commences):
      a. The distribution by the Plan is one which would not have disqualified such Plan under section 401(a)(9) of the Internal Revenue Code as in effect prior to amendment by the Deficit Reduction Act of 1984.
      b. The distribution is in accordance with a method of distribution designated by the member whose interest in the Plan is being distributed or, if the member is deceased, by a beneficiary of such member.
      c. Such designation was in writing, was signed by the member or the beneficiary, and was made before January 1, 1984.
      d. The member had accrued a benefit under the plan as of December 31, 1983.
      e. The method of distribution designated by the member or the beneficiary specifies the time at which distribution will commence, the period over which distributions will be made, and in the case of any distribution upon the member's death, the beneficiaries of the member listed in order of priority.
   2. A distribution upon death will not be covered by this transitional rule unless the information in the designation contains the required information described above with respect to the distributions to be made upon the death of the employee.
   3. For any distribution which commences before January 1, 1984, but continues after December 31, 1983, the member, or the beneficiary to whom such distribution is being made will be presumed to have designated the method of distribution under which the distribution is being

made if the method of distribution was specified in writing and the distribution satisfies the requirements in subsections 6.0218.1(G)(1)(a)-(e).

4. If a designation is revoked any subsequent distribution must satisfy the requirements of section 401(a)(9) of the Internal Revenue Code and the proposed regulations thereunder. If a designation is revoked subsequent to the date distributions are required to begin, the plan must distribute by the end of the calendar year following the calendar year in which the revocation occurs the total amount not yet distributed which would have been required to have been distributed to satisfy section 401(a)(9) of the Internal Revenue Code and the proposed regulations thereunder, but for the section 242(b)(2) election. For calendar years beginning after December 31, 1988, such distributions must meet the minimum distribution incidental benefit requirements in section 1.401(a)(9)-2 of the Proposed Income Tax Regulations. Any changes in the designation will be considered to be a revocation of the designation. However, the mere substitution or addition of another beneficiary (one not named in the designation) under the designation will not be considered to be a revocation of the designation, so long as such substitution or addition does not alter the period over which distributions are to be made under the designation, directly or indirectly (for example, by altering the relevant measuring life). In the case in which an amount is transferred or rolled over from one plan to another plan, the rules in O&A J-2 and Q&A J-3 of section 1.40 1(a)(9)-I of the Proposed Income Tax Regulations shall apply.

Source: 4078 (2000), 4272 (2002).

6-0218.2. Limitation on Benefits.--

This section applies to any member of this plan and any member who is or who has ever been a participant in another qualified plan maintained by the City.

In addition to other limitations set forth in the plan, and notwithstanding any other provisions of the plan, the accrued benefit, including the right to any optional benefits provided in the plan and all other defined benefit plans required to be aggregated with this plan under the provisions of section 415 of the Internal Revenue Code, shall not increase to an amount in excess of the amount permitted under Internal Revenue Code section 415 at any time. Notwithstanding any provision of this plan to the contrary, for purposes of the preceding sentence and for purposes of determining whether the benefits of this Plan exceed the limitations of Internal Revenue Code section 415 with respect to limitation years beginning after December 31, 1986, the term "annual addition" shall include all member contributions to the plan, other than member contributions "picked-up" by the City. The picked-up contributions will not be treated as "annual additions" for purposes of section 415(c) of the Internal Revenue Code. This shall not require the recomputation of annual additions for limitation years beginning before January 1, 1987.

For the purposes of this paragraph and determining compliance with Internal Revenue Code section 415, for limitation years beginning before January 1, 1995, compensation shall mean compensation as defined in Internal Revenue Code section 415(b)(3), and the regulations thereunder. If the defined benefit of a member of this plan exceeds for any year the limitation

imposed by rules under section 415 of the Internal Revenue Code, the defined benefit of the member under this plan shall automatically is reduced to the extent of the excess, and any other remedial action that may be necessary to correct this excess shall be made in this plan. If total benefits under this plan and the benefits and contributions to which any member is entitled under any other qualified plans maintained by the employer that employs the member would otherwise exceed the applicable limits under section 415 of the Internal Revenue Code, the benefits the member would otherwise receive from this plan shall be reduced to the extent necessary to enable the benefits to comply with section 415 of the Internal Revenue Code, unless the employer has provided other rules that satisfy those requirements. The provisions of Internal Revenue Code section 415, and the regulations thereunder, including the special rules under section 415(b) applicable to governmental plans and qualified participants in police and fire department plans, are hereby incorporated by reference as part of the terms and conditions of this plan.

Source: 4078 (2000), 4272 (2002).

6-0218.3. Maximum Annual Compensation.--

A. Compensation. For the purposes of this section, "compensation" is defined as wages, salaries and fees for professional services and other amounts received (without regard to whether or not an amount is paid in cash) for personal services actually rendered in the course of employment with the employer maintaining the plan to the extent that the amounts are includable in gross income (including, but not limited to, commissions paid salesmen, compensation for services on the basis of a percentage of profits, commissions on insurance premiums, tips, bonuses, fringe benefits, and reimbursements, or other expense allowances under a nonaccountable plan (as described in 1.62-2(c)), and excluding the following:

1. Employer contributions to a plan of deferred compensation which are not includable in the employee's gross income for the taxable year in which contributed, or employer contributions under a simplified employee pension to the extent such contributions are deductible by the member, or any distributions from a plan of deferred compensation;
2. Other amounts which received special tax benefits, or contributions made by the employer (whether or not under a salary reduction agreement) towards the purchase of an annuity contract described in section 403(b) of the Internal Revenue Code (whether or not the contributions are actually excludable from the gross income of the employee).

Notwithstanding the above, if the member was a participant as of the first day of the first limitation year beginning after December 31, 1986, compensation shall include any amount which is contributed by the employer pursuant to a salary reduction agreement and which is not includable in the gross income of the employee under sections 125, 402(e)(3), 402(h), or 403(b) of the Internal Revenue Code.

B. For fiscal years beginning on or after January 1, 1989 and before January 1, 1994, the annual compensation of each member taken into account for determining all benefits provided under the plan for any fiscal year shall not exceed $200,000. This limitation shall be adjusted by the Secretary at the same time and

in the same manner as under section 415(d) of the Internal Revenue Code, except that the dollar increase in effect on January 1 of any calendar year is effective for fiscal years beginning in such calendar year the first adjustment to the $200,000 limitation is effective on January 1, 1990.

C. For fiscal years beginning on or after January 1, 1994, the annual compensation limit of each member taken into account for determining all benefits provided under the plan for any determination period shall not exceed $150,000, as adjusted for the cost-of-living in accordance with section 401(a)(17)(B) of the Internal Revenue Code. The cost-of-living adjustment in effect for a calendar year applies to any determination period beginning in such calendar year.

D. If a determination period consists of fewer than 12 months, the annual compensation limit is an amount equal to the otherwise applicable annual compensation limit multiplied by a fraction, the numerator of which is the number of months in the determination period, and the denominator of which is 12.

E. Effective for fiscal years beginning before January 1, 1997, in determining the compensation of a member for purposes of this limitation, the rules of section 414(q)(6) of the Internal Revenue Code shall apply, except in applying such rules, the term "family" shall include only the spouse of the spouse and any lineal descendants of the member who have not attained age 19 before the close of the year. If, as a result of application of such rules, the adjusted annual compensation limitation is exceeded, then (except for purposes of determining the portion of compensation up to the integration level if this plan provides for permitted disparity), the limitation shall be prorated among the affected individuals in proportion to each such individual's compensation as determined under this section prior to the application of this limitation.

F. If compensation for any prior determination period is taken into account in determining a member's benefits for the current fiscal year, the compensation for such prior determination period is subject to the applicable annual compensation limit in effect for that prior period. For this purpose, in determining benefits in fiscal years beginning on or after January 1, 1989, the annual compensation limit in effect for determination periods beginning before that date is $200,000. In addition, in determining benefits in fiscal years beginning on or after January 1, 1994, the annual compensation limit in effect for determination period beginning before that date is $150,000.

Source: 4078 (2000), 4272 (2002).

6-0218.4. Forfeitures.--Forfeitures, if any, shall be used only to reduce the amount of Employer contribution under § 6-0218. In no event shall forfeitures be used to increase the benefits to which a participant is or shall be otherwise entitled under the plan.

Source: 4078 (2000).

6-0218.5. Rollover Contributions and Direct Rollovers.--

A. This section applies to distributions made on or after January 1. 1993. Notwithstanding any provision of the plan to the contrary that would otherwise limit a distributee's election under this part, a distributee may elect, at the time and in the manner prescribed by the plan administrator, to have any portion of an eligible rollover distribution that is equal to at least $500 paid directly to an

eligible retirement plan specified by the distributee in a direct rollover. Any member or survivor who receives any distribution that is an eligible rollover distribution as defined by section 402(c)(4) of the Internal Revenue Code is entitled to have that distribution transferred directly to another eligible retirement plan of the member's or survivor's choice upon providing direction to the board regarding that transfer in accordance with procedures established by the board.

B. Definitions.

1. "Eligible rollover distribution": An eligible rollover distribution is any distribution of all or any portion of the balance to the credit of the distributee, except that an eligible rollover distribution does not include: any distribution that is one of a series of substantially equal periodic payments (not less frequently than annually) made for the life (or life expectancy) of the distributee or the joint lives (or joint life expectancies) of the distributee and the distributee's designated beneficiary, or for a specified period of ten years or more, any distribution to the extent such distribution is required under section 401(a)(9) of the Internal Revenue Code, and the portion of any distribution that is not includable in gross income (determined without regard to the exclusion for net unrealized appreciation with respect to employer securities), and any other distribution(s) that is reasonably expected to total less than $200 during a year.
2. "Eligible retirement plan": An eligible retirement plan is an individual retirement account described in section 408(a) of the Internal Revenue Code, an individual retirement annuity described in section 408(b) of the Internal Revenue Code, an annuity plan described in section 403(a) of the Internal Revenue Code, or a qualified plan described in section 401(a) of the Internal Revenue Code, that accepts the distributee's eligible rollover distribution. However, in the case of an eligible rollover distribution to the surviving spouse, an eligible retirement plan is an individual retirement account or individual retirement annuity.
3. "Distributee": A distributee includes an employee or former employee. In addition, the member's or former member's surviving spouse and the member's or former member's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in section 414(p) of the Internal Revenue Code, are distributees with regard to the interest of the spouse or former spouse.
4. "Direct rollover": A direct rollover is a payment by the plan to the eligible retirement plan specified by the distributee.

Source: 4078 (2000), 4272 (2002).

6-0219. Benefits for surviving spouse of retiree.--A retiree, as part of his application for benefits in accordance with section 6-0217 of this article, may request joint survivorship benefits for his or her spouse. The amount of the survivor's monthly benefit and the diminution in the amount of the retiree's monthly benefit shall be determined by actuarial principals. Retiree may, at his option, elect to accept the reduced monthly benefit and the survivor benefit, as an alternative to the benefits determined in accordance with section 6-0218 of this article.

Source: 2269 (1986).

6-0220. Insurance--Death benefit.--The board of trustees may, at its option and if actuarially feasible, purchase group insurance on all city employees who are members of the pension plan, to fund the death benefit which is provided in subsection (B) of section 6-0221.

Source: 2269 (1986), 2695 (1994).

6-0221. Death of member.--In the event of death of an employee of the city, who is a member of the pension plan, the surviving spouse or other designated beneficiary of said deceased employee shall be entitled to payment from the plan as follows:

A. Effective January 1, 1996, upon the death of an active employee, who is a member of the pension plan, regardless of age or years of service, the surviving spouse or other designated beneficiary of said deceased member may elect to receive the actuarial cash value of the immediate benefit.

B. The additional sum of $20,000, as a survivor's death benefit.

Source: 2269 (1986), 2695 (1994), 2787 (1996), 4272 (2002).

6-0222. Disability of a member.--Any member who is totally disabled and has been a member of the plan for a minimum of 5 years may draw benefits from the pension plan. The monthly benefit shall be determined as follows:

A. If the disabled member is 55 years of age or older, the monthly benefit shall be determined in accordance with sections 6-0217 and 6-0218 of this article.

B. If the disabled member is less than 55 years of age, the monthly benefit shall be the smaller of the following:

1. An amount equal to the disabled member's highest average monthly salary determined in accordance with section 6-0218(A) of this article multiplied by a percentage which shall be equal to 1.4% for each year of service, expressed to the nearest month; or

2. An amount equal to the highest average monthly salary determined in accordance with section 6-0218(A) of this article multiplied by a percentage which shall be equal to .7% for each year of service, expressed to the nearest month, which the disabled member would have had if his or her employment had continued to age 55.

C. Monthly benefits payable to a disabled member who is less than 55 years of age shall be reduced by an amount equal to any workmen's compensation benefit payments which are made to such member.

D. When the disabled member reaches the age of 55 years, the monthly benefit shall be determined in accordance with subparagraph (2) of paragraph (B) above.

An member shall be deemed to be disabled if the board of trustees determines, on the basis of the concurring report of at least two out of three physicians designated by the board, that such employee's termination of employment occurred on account of a physical or mental disability rendering him permanently incapable of performing the duties of his position with the city; and he has been determined to be totally disabled by the Social Security Administration and is qualified for total disability benefits from that agency.

Source: 2269 (1986), 2560 (1991), 2587 (1991), 3075 (1999), 4272 (2002).

6-0223. Re-examination of disabled member.--

A. The board of trustees, at any time, may cause any member who has been retired by reason of physical or mental disability to be brought before it and again

examined by three competent physicians appointed by the board to discover whether such disability continues, whether it can be improved, and whether such retired member should be continued on the pension role, and the board may examine witnesses for such purposes. The question of continued disability or ability to perform regular or like duty shall be determined by the concurring report of at least two of the three examining physicians. Such member shall have reasonable notice that the examination will be made and that he shall be present at the time of the taking of any testimony. The member may examine the witnesses brought before the board and introduce evidence in his own behalf. All witnesses shall be examined under oath which may be administered by any member of the board.

B. Should any member retired from disability pursuant to section 6-0222 herein refuse to submit to medical re-examination, his pension shall be discontinued until the withdrawal of such refusal if he does not provide reasonable cause for such refusal to the satisfaction of the board of trustees. If the member has not submitted to reexamination as of the one-year anniversary of the board of trustee's request for reexamination, effective immediately, the member's entitlement to benefits under the pension plan, if any, shall thereafter be determined in accordance with sections 6-0217 and 6-0218 to the extent they may be applicable.

C. The decision of the board of trustees upon the re-examination provided for in this section shall be final and conclusive in the absence of fraud and no appeal shall be allowed therefrom. The disabled member shall remain on the pension role unless and until reinstated in service by reason of the re-examination.

Source: 2269 (1986), 4272 (2002).

6-0224. Return to city service by disabled retired member.--Should a member after retirement or disability, re-enter the permanent employ of city and be eligible for membership in the employees' pension fund in accordance with the provisions of this article, his disability retirement allowance shall be cancelled and he shall immediately become a member of the pension system and shall be credited for years of service while he was disabled. He shall not be required to make any contribution for the period of his disability but shall, upon being re-employed with the city, begin making contributions to the plan.

Source: 2269 (1986), 4272 (2002).

6-0225. Death of disabled member.--In the event of death of a member who is under the age of 55 years, who has been determined to be totally disabled, and who has been drawing benefits from the plan, no survivors' benefits shall be payable. If said disabled member is 55 years of age or older, and has selected a survivor benefit option in accordance with section 6-0219 hereof, the surviving spouse of the deceased disabled member shall be entitled to benefits in accordance therewith.

Source: 2269 (1986), 4272 (2002).

6-0226. Death of retiree.--In the event of death of a retiree, survivors' benefits and death benefits shall be payable as follows:

A. If the decedent retired prior to January 1, 1986, and is survived by a spouse to whom said member was married at the time of retirement, said surviving spouse

shall be entitled to a monthly benefit in the amount of $100 per month. In addition to the surviving spouse's benefit, the estate or designated beneficiary of said retiree shall receive a lump sum death benefit in the amount of $3,000.

B. If the decedent retired after January 1, 1986, and is survived by a spouse to whom said member was married at the time of retirement, said surviving spouse shall be entitled to a monthly benefit determined in accordance with the selection made by the retiree pursuant to section 6-0219 of this article. In addition to the surviving spouse's benefit, the estate or designated beneficiary of said retiree shall receive a lump sum death benefit in the amount of $3,000.

Source: 2269 (1986), 2477 (1989), 4272 (2002).

6-0227. Pre-existing retirement benefits reserved--Increases allowed.--All retirees who shall have retired prior to January 1, 1986, shall continue to receive minimum monthly benefits from the plan in the amount determined at the time of retirement; provided, that the board of trustees may, in their discretion, increase such benefits from time to time.

Source: 2269 (1986), 2441 (1989).

6-0228. Deferred compensation program--City matching contributions.--

Source: 2853 (1998), repealed by Ord. No. 4272 (2002).

CHAPTER 7

CIVIL SERVICE

Article
7-01 General Provision, §§ 7-0101 to 7-0103.
7-02 Civil Service Commission, §§ 7-0201 to 7-0207.
7-03 Rules and Regulations, §§ 7-0301 to 7-0309.

ARTICLE 7-01

GENERAL PROVISIONS

Section
7-0101 Purpose of chapter.
7-0102 Employees covered--Exceptions.
7-0103 Definitions.

7-0101. Purpose of chapter.--The purpose of this chapter is to increase the efficiency of all city departments and to promote fair treatment of employees by the establishment and maintenance of a personnel system based on merit principles.

Source: 2386 (1987).

7-0102. Employees covered--Exceptions.--All regular full-time employees and officers of the city shall be included in, and come under, the civil service system of the city. The following officers and employees are not included in the civil service system of the city:

A. Elective officers and officials.

B. Members of commissions and boards appointed by the board of city commissioners.

C. Employees who have not satisfactorily completed a probationary period.

D. Part-time non-benefited positions and contract positions.

Source: 2386 (1987), 2661 (1993), 2799 (1996).

7-0103. Definitions.--

1. "Appointing authority" means the board of city commissioners for directors and department heads; and directors or department heads for all other employees.

2. "Class of positions" means a group of one or more positions sufficiently similar that the same title may be used to designate positions in the class, the same minimum qualifications of experience and training may be required of all candidates for entrance to competition, and the same examination may be given to all persons seeking appointment to a position in the class.

3. "Classification" means the process of analyzing the duties and responsibilities of positions and then grouping positions which are substantially similar in these respects into classes.

4. "Clerk" means the clerk of the civil service commission as provided in § 7-0207.

5. "Commission" means the civil service commission as provided in article 7-02 of this chapter.

6. "Demotion" means the assignment or transfer of an employee to a position with less responsibilities which is in a lower salary range.

7. "Eligible person" means a person whose name is on an original entrance, promotional or re-employment list.

8. "Lateral transfer" means the transfer of an employee to a position in the same salary range as his or her current position.

9. "Original entrance list" means a list of names of persons arranged in the order of final examination ratings who have qualified, through suitable entrance examinations, for employment in a specific class of positions.

10. "Position" means any office and place of employment where the duties and responsibilities appertaining thereto are exercised by one person.

11. "Probationary period" means a working test period lasting a minimum of 12 continuous months during which the appointing authority is required to note the work and conduct of all employees new to their positions and determine whether they merit permanent appointment with civil service status.

12. "Promotion" means an assignment or transfer of an employee to a higher level position with increased responsibilities which is in a higher salary range.

13. "Promotional list" means a list of names of persons arranged in the order of final examination ratings who have qualified, through suitable examinations open only to those already employed in city departments, for promotion.

14. "Reclassification" means the addition or deletion of responsibilities and may or may not result in assignment to another salary range, and may or may not result in a change in salary.

15. "Re-employment list" means a list of names of persons, who have been separated from city departments through no fault of their own, and who seek reinstatement to a position in the specific class where formerly employed.

16. "Regular full-time employee" means any person appointed by proper authority who is employed for 12 continuous months in each calendar year and who works a minimum of 40 hours per work-week or an equivalent amount for work periods in excess of one week.

17. "Salary plan" means the schedule of salaries for each class of positions in the city departments, showing minimum, intermediate and maximum salaries for each classification.

18. "Salary range" means a range of minimum to maximum salaries determined by a classification of position.

19. "Salary step" means any assigned salary in a salary range.

Source: 2386 (1987), 2661 (1993).

ARTICLE 7-02

CIVIL SERVICE COMMISSION

Section

7-0201 Creation of civil service commission.
7-0202 Qualifications of members.
7-0203 Terms of members of civil service commission-Appointment--Vacancies.
7-0204 Removal of members.

7-0205 Meetings--Order of business.
7-0206 General duties of commission.
7-0207 Personnel officer--Clerk of commission--Duties.

7-0201. Creation of civil service commission.--There is hereby established a civil service commission of five members who shall be appointed as hereinafter provided.

Source: 2386 (1987).

7-0202. Qualifications of members.--The members of the civil service commission shall be citizens and qualified electors of the city of Fargo. No person shall be eligible to be a member of such commission if he is a member of any local, state, or national political party committee; or if he is a candidate for or holds any elective public office; or if at any time within one year immediately preceding the date of appointment to such commission, he has been a member of any such committee, or been a candidate for or held any such public office.

Source: 2386 (1987).

7-0203. Terms of members of civil service commission--Appointment--Vacancies. Terms of members of the civil service commission shall be three years, beginning on July 1 and ending on June 30. Terms of two of the members shall expire in 1988, two in 1989, and one in 1990. Appointments to the commission shall be made and confirmed in accordance with § 2-0106 of the Fargo Municipal Code. If a vacancy occurs other than by expiration of a term, it shall be filled by appointment for the unexpired portion of the term.

Source: 2386 (1987).

7-0204. Removal of members.--Any member of the commission may be removed by an affirmative vote of four members of the board of city commissioners. The member shall be given a copy of the charges against him and he shall have ten days from the date on which his removal is effective within which to request that he be given an opportunity to be heard publicly. A statement of the charges, the member's request for hearing, and the findings of the hearing shall be filed with the city auditor.

Source: 2386 (1987).

7-0205. Meetings--Order of business.--The commission shall hold regular meetings at the city commission chambers in city hall at such times as shall be determined by the commission. The commission shall determine the order of business for the conduct of its meeting and three members of the commission shall constitute a quorum for the transaction of official business.

Source: 2386 (1987).

7-0206. General duties of commission.--The duties of the commission shall be as follows:

A. To present to the board of city commissioners such rules and regulations as they may deem necessary for the administration of this chapter. Such rules and regulations shall have no effect until approved by the board of city commissioners; provided, that the commission may establish procedural rules for the conduct of its own business without approval of the board of city commissioners.

B. To hear appeals of disciplinary matters as hereinafter provided in this chapter.
C. To make investigations, either on complaint or on its own motion, concerning any matters touching the administration of this chapter, and otherwise represent the public interest in the improvement of personnel administration and the protection of the merit principle.
D. To make an annual report to the board of city commissioners on its activities, together with recommendations for improvement of the civil service system, and to make any special analysis or reports requested by the board of city commissioners.

Source: 2386 (1987).

7-0207. Personnel officer--Clerk of commission--Duties.--The personnel officer shall be the clerk of the commission and its administrative officer and shall assume all of the duties hereinafter set forth:

A. To attend all meetings of the civil service commission and maintain a record of its official proceedings.
B. To prepare and recommend rules and regulations to the commission, and amendments thereto, for the execution of this chapter.
C. To administer such rules and regulations.
D. To prepare and recommend duties classification and salary plans.
E. To perform any and all additional duties which may be directed by the commission or the board of city commissioners concerning the civil service of the city.

Source: 2386 (1987).

ARTICLE 7-03

RULES AND REGULATIONS

Section

7-0301 Duties classification and salary plan.
7-0302 Recruitment.
7-0303 In-service personnel activities.
7-0304 Attendance and leave regulations.
7-0305 Employee separation and discipline.
7-0306 Prohibition of discrimination and corruption.
7-0307 Political activities of employees.
7-0308 Residence of employees--Response time.
7-0309 Administrative rules.

7-0301. Duties classification and salary plan.--The clerk shall prepare and maintain a duties classification plan and a salary plan which shall include job descriptions, minimum qualification requirements, relative rank of the various positions, base pay and step increases for all positions, and any other information which is deemed necessary and appropriate. The plan or plans and any amendments thereto shall be subject to the approval of the board of city commissioners. A copy of the duties classification and salary plan shall be maintained in the personnel office for inspection by any interested person.

Source: 2386 (1987).

7-0302. Recruitment.

A. Public announcement of vacancies.

The clerk shall give public notice of all examinations for entrance into the civil service of the city and, of all vacancies to be filled without examination. Such public notice shall include the posting of an appropriate notice on bulletin boards in the city hall and other public buildings, advertising in the official newspaper of the city, and any other method which the clerk deems advisable; provided, that advertisement in the official newspaper shall not be required for positions which are to be filled without examination and which are classified in salary range 22 or lower. The notice shall specify the time and place of each examination, the title and salary range of each position, the minimum qualifications required, and any other pertinent data.

B. Application procedure.

All applications shall be made on forms prescribed by the clerk. Such forms may require information relating to personal characteristics, education, experience, references, and other information. The clerk may also require a report as to the applicant's health from one or more physicians who have examined the applicant. The clerk shall establish the procedure for notifying applicants of their rejection for employment or their acceptance for participation in further tests of fitness, and, prior to the date of the tests for which they have filed, may reject for cause any application. The clerk, subject to review by the commission, may refuse to examine an applicant or, after examination, may remove his name from any employment list, or refuse to certify for appointment any eligible whom he finds lacks any of the preliminary requirements established for the class of position or whom he deems, for reasons of physical health or personal character, unfit to assume the duties and responsibilities of the position to which he seeks appointment.

C. Application and promotion--Competitive examination: factors considered.

The relative fitness of applicants for appointment to or promotion within the police and fire departments shall be determined by competitive examination. Such examination may consist of written or oral tests, or any combination thereof, and may include consideration and grading of any or all of the qualification factors; education, training, experience, general adaptability, special aptitudes, physical fitness as determined by physical tests and medical examination, knowledge, skill, behavior characteristics, character and such other qualifications as may be deemed necessary as determined by the appointing authority. All applicants will be required to undergo a drug screening and provide sufficient information for completion of a background investigation. The clerk shall ensure that competitive examinations are administered in a manner to give applicants equal opportunity to demonstrate their fitness. The commission, in its discretion, may also order competitive examinations for positions in other departments.

D. Establishment of eligible entrance and promotional employment lists--police and fire departments.

With respect to initial application to the police department, applicants receiving a passing score on competitive examinations and having satisfactorily

completed all other requirements shall be placed on a list of eligible applicants for a period of two years provided, however, that the appointing authority may establish the maximum number of eligible applicants as deemed necessary and appropriate.

With respect to initial application to the fire department, applicants receiving a passing score on competitive examinations and having satisfactorily completed all other requirements shall be placed on a list of eligible applicants for a period of one year provided, however, that the appointing authority may establish the maximum number of eligible applicants as deemed necessary and appropriate.

The appointing authority may request a new competitive examination for initial application to the police and fire departments as deemed necessary and appropriate. In such cases, the list of additional applicants will be consolidated into the existing eligibility list provided, however, that the maximum period of eligibility shall not exceed the maximum eligibility at the time of examination. All candidates undergoing examination shall be bound by the eligibility period at the time of testing and shall forfeit previous list standing.

With respect to promotions within the police and fire departments, applicants receiving a passing score on competitive examinations shall be placed on a list of eligible applicants for promotion for a period of two (2) years or until a new test is required by the appointing authority. The appointing authority may request a new competitive examination as deemed necessary and appropriate. The period of eligibility on a promotional list shall not exceed two years.

E. Establishment of re-employment lists.

Any person who has held a permanent position in the civil service from which he has been laid off for reasons not discreditable to him shall be entitled to have his name placed on the re-employment list for that position; provided, that he notifies the clerk, in writing, within five days from the date that his lay-off became effective. Any person who has resigned in good standing from a permanent civil service position may, at the discretion of the department head, be placed on the re-employment list, if it is determined that the employee's work record and contribution to the department is such that it would merit consideration for re-hire. Each name placed on the re-employment list shall be stricken therefrom at the expiration of two years from the date of resignation or lay-off.

Any person returning to his former position while his name is on the re-employment list shall begin at his former step on the pay scale and shall be given credit for longevity time accrued to the date of the lay-off. Any person returning to his former position after his name has been stricken from the re-employment list shall be treated as a new employee and begin at the beginning step on the pay scale.

F. Removal of names from lists.

The name of any person appearing on an original entrance, promotional or re-employment list shall be removed by the clerk if he or she fails to respond to a notice of certification or to give an acceptable reason for not appearing before the appointing authority as requested.

G. Appointments to positions in the Civil Service.

Whenever an appointing authority desires to fill a vacancy in any position in the civil service, he shall notify the clerk giving pertinent facts relative to the duties, responsibilities, and qualification requirements of the position which is to be filled.

All vacancies in the civil service shall be filled by original appointment, promotion, re-employment, transfer or demotion. All such vacancies for positions having a salary band of "C" or higher shall be advertised by public announcement as is set forth in subsection (A) of this section.

Formal eligibility lists and certification procedure shall not be required for positions which the commission has not designated to be filled by competitive examinations. The clerk shall, however, review all applications and forward his recommendations to the appointing authority. Such recommendations shall not be binding.

If the position is to be filled by competitive examination, the clerk shall certify to the appointing authority the names of all eligible candidates from the original entrance, promotional, or re-employment lists for the position to be filled. The appointing authority shall appoint one of the persons certified by the clerk.

H. Probationary period.

All non-police original appointments and re-employments shall be made for a probationary period of one year. The probation period for police officers shall start upon the date of hire and shall end one year after completion of North Dakota POST [Professional Officer Standards & Training] certification and the department field training program. After the first six months, the appointing authority shall submit a rating of the employee's performance on a report form prepared by the clerk. Additional appraisals may be prepared and filed as the appointing authority may deem necessary. During the probationary period, an employee may be summarily dismissed by the appointing authority. Written notice of such dismissal, with the reasons therefor, shall be delivered to the clerk who may cause the name of such employee to be reinstated to its former position on the appropriate list.

No salary or other wage payment shall be made to any employee after his probationary appointment is completed unless the appointing authority has first certified to the clerk, five days preceding the end of the probationary period, that the employee is to be continued in service.

Promotions shall be made for a probationary period of one year. During the probationary period for promotion, an employee may be summarily reinstated to his former position by the appointing authority. Written notice of such reinstatement, with the reasons therefor, shall be delivered to the clerk.

For demotions and lateral transfers, the appointing authority, in consultation with the human resource department, shall determine whether a probationary period is required, depending on the circumstances of the demotion or lateral transfer. The presence or absence of a probationary period would be determined prior to the effective date of the demotion or lateral transfer.

Probationary periods in individual cases may be extended by the appointing authority, in his or her discretion, for a period not to exceed six months.

I. Transfer and re-employment of employees and former employees.

Any person who is unable to perform his or her duties as a result of job-related disability may be transferred to any other position for which he or she is qualified, without the necessity for compliance with subsections (A), (B) and (C) of this section.

Any person who has been retired from service with the city of Fargo as a result of job-related disability and who is being paid worker's compensation benefits, may be re-employed by the city for any position for which he or she is qualified, without the necessity for compliance with subsections (A), (B) and (C) of this section.

J. Fingerprinting.

This ordinance is enacted pursuant to N.D.C.C. §12-60-24 to regulate the employment of firefighters.

An applicant, seeking to engage in firefighting shall submit, if required, two sets of his/her fingerprints taken by the Cass County Sheriff's Department or the Fargo Police Department to the Fargo Fire Department.

Upon receipt of the fingerprints, the Fargo Fire Department will transmit both sets of fingerprints and the appropriate fees to the North Dakota Bureau of Criminal Investigation. The North Dakota Bureau of Criminal Investigation will compare the subject's fingerprints against its criminal file and submit the fingerprints to the Federal Bureau of Investigation for a comparison with nationwide records. The results of the Federal Bureau of Investigation check will be returned to the North Dakota Bureau of Criminal Investigation, which will disseminate the state and national results to the Fargo Fire Department.

The Fargo Fire Department shall render a fitness determination based upon the results of the criminal background check.

In rendering a fitness determination, the Fargo Fire Department will decide whether the record subject has been convicted of, or is under pending indictment for, (a) a crime which bears upon his/her ability or fitness to serve in the capacity; (b) any felony; or (c) a misdemeanor which involved force or threat of force, controlled substances, or was a sex-regulated offense.

A record subject may request and receive a copy of his/her criminal history record information from the Fargo Fire Department. Should the record subject seek to amend or correct his/her record, he/she must contact the Bureau of Criminal Investigation for a North Dakota state record or the Federal Bureau of Investigation for records from other jurisdictions maintained in its file.

Source: 2386 (1987), 2530 (1990), 2559 (1991), 2610 (1992), 2682 (1994), 2715 (1994), 2781 (1996), 4095 (2000), 4335 (2003), 4581 (2007), 4660 (2008), 5186 (2019), 5355 (2022).

7-0303. In-service personnel activities.--

A. Promotions.

Whenever practical, vacancies shall be filled by competitive promotional examinations. The procedure set forth in § 7-0302(G) shall be utilized provided that competition shall be limited to those in the service who possess the minimum qualification requirements.

B. Transfers.

The commission may authorize the transfer of an employee in the civil

service from one position to another position in the same class, and not otherwise. Transfers shall be permitted only with the consent of the concerned appointing authority.

C. Performance evaluations.

The clerk shall prepare, install, and maintain a system of performance evaluations whereby appointing authorities shall report on the performance of all employees in the civil service. Such evaluations shall be in writing and at such times and in the manner prescribed by the commission. Performance evaluations shall be considered in all actions involving a change in status of any employee.

D. Temporary inter-departmental assignments.

The city commission may temporarily assign employees from one department to another department under such terms and conditions as it deems advisable and necessary, including a provision relative to the employee continuing present pension membership should such temporary assignment be to a department which operates under a different pension system from that to which the temporarily assigned employee belongs.

Source: 2386 (1987), 2613 (1992).

7-0304. Attendance and leave regulations.--Attendance and leave regulations including annual leave, sick leave, holidays, and the like, shall be policy as adopted by resolution of the Board of City Commissioners.

Source: 2386 (1987), 2662 (1993), 2699 (1994), 4443 (2004).

7-0305. Employee separation and discipline.--

A. Layoff.

An appointing authority may lay off an employee in the civil service whenever he deems it necessary because of a material change in duties or organization or a shortage of work or funds. The order in which employees will be laid off shall be determined by the commission in accordance with the employees′ service ratings and length of service with the city. Employees separated from the service through no fault of their own shall be placed on the re-employment list for their former classes of positions as provided in subsection (E) of § 7-0302.

B. Resignation.

Any employee wishing to leave the municipal service in good standing shall file with his department head, at least two weeks before leaving, a written resignation stating the date the resignation shall become effective and the reason for leaving. An employee failing to give such notice shall not be placed on the re-employment list. Unauthorized absence from work for a period of three working days may result in termination without the right to be placed on the re-employment list. The appointing authority shall, upon receipt thereof, forward all resignations to the clerk.

C. Disability retirement.

Any employee may be retired from city service because of permanent mental or physical disability. The determination as to whether an employee′s disability is total and permanent shall be made as provided in subsection (B) of § 7-0304.

D. Suspension, demotion and discharge--Procedure.

Any employee or official in the civil service who has completed the proba-

tionary period may be suspended, removed, demoted, or discharged by the appointing authority for cause. Cause shall include, but not be limited to, any violation of the general rules and regulations of conduct governing the employees. Written notice of the suspension, removal, demotion, or discharge stating the reason and effective date shall be given to the employee or mailed to his last known address by certified or other mail requiring a signed receipt. A copy of such notice of suspension, removal, demotion or discharge shall be filed with the clerk. Within five business days after the delivery or receipt of such written notice, any employee so suspended, removed, demoted or discharged may, in writing, petition the commission for a hearing.

The commission, on receiving such petition, shall set a date for a hearing or investigation of the reasons for the proposed suspension, removal, demotion or discharge. The date set shall not be less than three days, nor more than 30 days after the date on which the employee received notice of the proposed disciplinary action. Notice of the time and place of such hearing or investigation shall be personally served upon the employee being disciplined, or mailed to his last known address by certified or other mail requiring a signed receipt, at least two business days before the hearing date. Notice of the hearing shall also be given the appointing authority who imposed the suspension, removal, demotion or discharge.

The employee being disciplined shall have full opportunity to be heard. The commission may call other persons to ascertain the facts and make any further investigation which it deems proper. The commission shall spread in its official minutes, its findings of facts and conclusions resulting from the investigation and hearing. Copies of the findings and conclusions shall be transmitted to the city auditor's office, the clerk, the appointing authority, and the employee.

The determination of the commission shall be appealable to the board of city commissioners; provided, that the employee must file his notice of appeal within 10 calendar days after service of the findings and conclusions on the employee. Service shall be deemed complete upon delivery of a copy of the findings and conclusions to the employee or, if personal service cannot be made, by sending a copy to the employee, by certified mail or other mail requiring a signed receipt. If the employee shall refuse or neglect, or otherwise fail to sign a receipt for the findings and conclusions, the 10-day appeal period will commence five days after the findings and conclusions are mailed.

Source: 2386 (1987).

7-0306. Prohibition of discrimination and corruption.--No person in the municipal service or person seeking admission to the municipal service shall be appointed, promoted, reduced, removed, or in any way favored or discriminated against because of his race or his political or religious affiliations.

No person shall willfully or corruptly make any false statement, certificate, mark, rating, or report in regard to any test, certificate, or appointment held or made under the municipal personnel system or in any manner commit or attempt to commit any fraud preventing the impartial execution of the personnel rules. No person seeking employment to or promotion in the municipal service shall either directly or indirectly give, render, or pay any

money, service, or other valuable consideration to any person for or on account of, or in connection with, his test, proposed appointment, promotion, or proposed promotion. Provided, however, that nothing in this chapter shall prohibit persons from securing such employment through duly licensed employment agencies and paying reasonable fees therefor.

Violation of this section shall be grounds for discharging an employee or for disqualification of an applicant for employment with the city.

Source: 2386 (1987).

7-0307. Political activities of employees.--No person holding a position under the civil service of the city shall engage in political activities while on duty or in uniform.

The term "political activity" includes any form of campaigning or electioneering, such as attending or arranging for political meetings, transporting candidates or workers engaged in campaigning or electioneering, distributing campaign literature, political guide cards, and placards, soliciting or canvassing for campaign funds, transporting electors to the polls on election day, and any other form of political work usually and ordinarily engaged in by city employees during city, primary and general election campaigns.

Nothing in this chapter shall be construed to prevent a city employee from becoming or continuing to be a member of a political club or organization, or from attendance at a political meeting, or from enjoying entire freedom from all interference in casting his or her vote, or from seeking or accepting election or appointment to public office. Provided, further, that any person employed subject to the terms and provisions of this chapter who shall become a candidate for the office of mayor or city commissioner shall automatically receive a leave of absence without pay commencing 40 days prior to the date of the city election and continuing until such person is eliminated, either voluntarily or otherwise, as a candidate, and shall, during such period, perform no duties connected with the office or position so held by him. If such person is required to participate in a runoff election, his or her leave of absence without pay shall continue until the runoff election is held. In the event that such person is elected to the office of mayor or city commissioner, his or her employment with the city shall be terminated, effective on the date of election.

Source: 2386 (1987), 2680 (1994).

7-0308. Residence of employees--Response Time.--Employees of the city shall not be required to live within the corporate limits of the city provided, however, that employees living outside of the corporate limits may be required to respond and be at his or her duty station within a certain specified time after being called by a supervisor. Response time may, depending on job requirements, be different for the various departments and shall be established by the director, department head or chief of the department involved.

Source: 2404 (1988).

7-0309. Administrative rules.--The clerk may adopt administrative rules to implement and amplify the provisions of this chapter. Such rules shall be incorporated in the city employees' handbook and the adoption of such rules or any changes thereto shall not be effective until approved by the commission and the board of city commissioners.

Source: 2386 (1987).

CHAPTER 8

TRAFFIC CODE

Article

8-01 General Provisions, §§ 8-0101 to 8-0127.
8-02 Traffic Administration, §§ 8-0201 to 8-0206.
8-03 Regulation Governing Operators, §§ 8-0301 to 8-0320.
8-04 Traffic-Control Devices, §§ 8-0401 to 8-0412.
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8-06 Turning Movements, §§ 8-0601 to 8-0609.
8-07 Pedestrians' Rights and Duties, §§ 8-0701 to 8-0715.
8-08 Crashes, §§ 8-0801 to 8-0809.
8-09 Equipment of Vehicles--Size, Weight, and Height and Load Restrictions, §§ 8-0901 to 8-0931.
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8-11 Railroad Cars and Crossings, §§ 8-1101 to 8-1111.
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ARTICLE 8-01

GENERAL PROVISIONS

Section

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8-0105 One-way streets and alleys.
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8-0101. Definitions.--In this chapter, unless the context or subject matter otherwise requires:

1. "Authorized emergency vehicles":
   - A. "Class A authorized emergency vehicles" shall mean:
     - i. Vehicles of a governmental-owned fire department;
     - ii. Vehicles when operated by or under the control of a police officer having authority to enforce the provisions of this title pertaining to all motor vehicles or by a salaried employee of any municipal police department within the municipality or by any sheriff or deputy sheriff not to include special deputy sheriffs, or by the warden of the state penitentiary and his authorized agents;
     - iii. Ambulances;
     - iv. Vehicles operated by or under the control of the commissioner, and district deputy commissioner, and district deputy game warden of the North Dakota Game and Fish Department;
     - v. Vehicles owned or leased by the United States Government used for law enforcement purposes;
     - vi. Vehicles designated for the use of the adjutant general and assistant adjutant general in cases of emergency;
   - B. "Class B authorized emergency vehicles" shall mean wrecker and such other emergency vehicles as are authorized by the local authorities;
   - C. Class C vehicles used by civil defense directors while used in the performance of emergency duties.
2. "Bicycle" shall mean every device propelled by human power upon which any person may ride, having two tandem wheels, either of which is more than 20 inches in diameter.
3. "Bus" shall mean every motor vehicle designed for carrying more than 10 passengers and used for the transportation of persons, and every motor vehicle, other than a taxicab, designed and used for transportation of persons for compensation.

4. "Business district" shall mean the territory contiguous to a highway when 50% or more of the frontage thereon for a distance of 300 feet or more is occupied by buildings in use for business; and the term "business district" shall in all cases include also that portion of the city lying within the fire limits now established or to be hereafter established in the city, together with all streets or alleys constituting the boundaries thereof.

5. "Central business district" shall mean all streets and portions of streets within the area described as follows: All that area bounded by 2nd Street North to 4th Street South, 4th Street South to 6th Avenue South, 6th Avenue South to 7th Street South, 7th Street South to 2nd Avenue South, 2nd Avenue South to South University Drive, South University Drive to 7th Avenue North, 7th Avenue North to Broadway North, Broadway North to 9th Avenue North, 9th Avenue North to 4th Street North, 4th Street North to 7th Avenue North, 7th Avenue North to 2nd Street North.

6. "Coaster" shall mean a small vehicle (sled, wagon or similar apparatus) used in coasting, which is propelled by human power or gravity.

7. "Commercial vehicle" shall mean a vehicle designed, maintained, or used primarily for the transportation of property provided, however, that such definition shall not include vehicles designated or titled as three-quarter ton or less.

8. "Controlled-access highway" shall mean every highway, street, or roadway in respect to which owners or occupants of abutting lands and other persons have no legal right of access to or from the same except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street, or roadway.

9. "Crosswalk" shall mean that part of a roadway at an intersection included within the connections of the lateral lines of the sidewalk on opposite sides of the highway measured from the curbs or, in the absence of curbs, from the edges of the traversable roadway; or any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

10. "Curb" shall mean the boundary of that portion of the street open to the use of the public for the use of vehicles.

11. "Curb loading zone" shall mean a space adjacent to a curb reserved for the exclusive use of vehicles during the loading and unloading of passengers or materials.

12. "Driver" shall mean every person who drives or is in actual physical control of a vehicle.

13. "Explosives" shall mean any chemical compound or mechanical mixture that is commonly used or intended for the purpose of producing an explosion and which contains any oxidizing and combustive units or other ingredients in such proportions, quantities, or packing that an ignition by fire, by friction, by concussion, by percussion, or by detonator of any part of the compound or mixture may cause such a sudden generation of highly heated gases that the resultant gaseous pressures are capable of producing destructive effects on contiguous objects or by destroying life or limb.

14. "Farm tractor" shall include every motor vehicle designed and used primarily as a farm implement for drawing plows, moving machines, and other implements of husbandry.

15. "Freight curb loading zone" shall mean a space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight.

16. "Implement of husbandry" shall mean every vehicle designed and adapted exclusively for agricultural, horticultural or livestock raising operations or for lifting or carrying an implement of husbandry and in either case not subject to registration if used upon the highway.

17. "Intersection" shall mean the area embraced within the prolongation of the lateral curb lines, or, if none, then the lateral boundary lines of two or more streets which join one another at an angle, whether or not one such street crosses the other.

18. "Intoxicating liquor" shall mean and include any beverage containing alcohol.

19. "Laned roadway" shall mean a roadway which is divided into two or more clearly marked lanes for vehicular traffic.

20. "Legal owner" shall mean a person who holds the legal title to a vehicle.

21. "Mail" shall mean to deposit mail properly addressed and with postage prepaid with the United States postal service.

22. "Metal tires" shall include all tires the surface of which in contact with the highway is wholly or partly of metal or other hard, non-resilient material, except that this provision shall not apply to pneumatic tires.

23. "Motorcycle" shall mean every motor vehicle having a seat or saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, including "motorized bicycles" as defined in § 39-01-01, N.D.C.C., but excluding implements of husbandry.

24. "Motor vehicle" shall include every vehicle which is self-propelled, including motorcycles.

25. "Official time standard" shall mean the standard time or daylight-saving time as may be in current use in this city.

26. "Official traffic-control devices" shall mean all signs, signals, markings, and devices not inconsistent with this chapter placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning, or guiding traffic.

27. "Operator" shall mean every person who drives or is in actual physical control of a motor vehicle upon a highway or who is exercising control over or steering a vehicle being towed by a motor vehicle.

28. "Owner" shall mean a person who holds the legal title of a vehicle, or if a vehicle is the subject of an agreement for the conditional sale or lease thereof with the right of purchase upon performance of the conditions stated in the agreement, and with an immediate right of possession vested in the conditional vendee or lessee, or if a mortgagor of a vehicle is entitled to possession, then such conditional vendee or lessee or mortgagor shall be deemed the owner for the purpose of this chapter.

29. "Park" or "parking" shall mean the standing of a vehicle, occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading merchandise or passengers.

30. "Passenger curb loading zone" shall mean a place adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers.

31. "Pedestrian" shall mean any person afoot or otherwise moving or traveling about by means of any human-powered device, including a human-powered or motorized wheelchair. For purposes of this definition, persons operating a motorized scooter meet the definition of "pedestrian," but persons riding a bicycle do not.

32. "Person" shall include every natural person, firm, co-partnership, association or corporation.

33. "Pneumatic tires" shall include all tires inflated with compressed air.

34. "Pole trailer" shall mean every vehicle without motive power designed to be drawn by another vehicle and attached to the towing vehicle by means of a reach, or pole, or by being boomed or otherwise secured to the towing vehicle and ordinarily used for transporting long or irregularly shaped loads such as poles, pipes, or structural members capable, generally, of sustaining themselves as beams between the supporting connections.

35. "Police officer" shall mean every officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

36. "Private property" shall mean and include any and all real property or land within the city of Fargo which has not been opened or dedicated for public use or as a public thoroughfare.

37. "Private road or driveway" shall mean every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner but not by other persons.

38. "Public building" shall mean any theater, moving-picture house, hospital, church, school, city building, county building, state building, federal building, public library or courthouse.

39. "Railroad" shall mean a carrier of persons or property upon cars, other than streetcars, operated upon stationary rails.

40. "Railroad sign or signal" shall mean any sign, signal, or device erected by authority of a public body or official or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

41. "Railroad train" shall mean any steam engine, diesel or electric or other powered locomotive, with or without cars coupled thereto, operated upon rails except streetcars.

42. "Residence district" shall mean all of that territory within the limits of the city outside of the district known and designated as the fire limits, and not comprising a business district.

43. "Revocation" shall mean that the driver's license and privilege to drive a motor vehicle on the public streets are terminated and shall not be renewed or restored, except that an application for a new license may be presented and acted upon the proper authorities after the expiration of the period of revocation, which period shall not be less than 30 days.

44. "Right-of-way" shall mean the privilege of the immediate use of a street.

45. "Roadway" shall mean that portion of a street improved, designed, or ordinarily used for vehicular travel, exclusive of the berm or shoulder. In the event a street includes two or more separate roadways, the term "roadway" as used herein shall refer to any such roadway separately but not to all such roadways collectively.

46. "Safety zone" shall mean the area or space officially set aside within a street for the exclusive use of pedestrians and which is marked or indicated by proper signs so as to be plainly visible at all times while set apart as a safety zone.

47. "School bus" shall mean every motor vehicle owned by a public or governmental agency and operated for the transportation of children to or from school or privately owned and operated for compensation for the transportation of children to or from school.

48. "School zone" shall mean the area or space of any public street or alley any part of which abuts or lies opposite any public or private property used exclusively for school purposes, wherein any children of the age of 16 years or less receive educational training and shall include public playgrounds.

49. "Scooter" shall mean a foot-operated vehicle consisting of a narrow footboard mounted between two wheels in tandem, with an upright steering handle attached to the front wheel.

50. "Semitrailer" shall include every vehicle of the trailer type so designed and used in conjunction with a motor vehicle that some part of its own weight and that of its own load rests upon or is carried by another motor vehicle, except that it shall not include a "house trailer" or "mobile home" as defined in subsection 59 of this section.

51. "Sidewalk" shall mean that portion of a street between the curb lines or the lateral lines of a roadway, and the adjacent property lines, intended for use of pedestrians.

52. "Skateboard" shall mean a narrow board with approximately 1.5 feet to 3 feet in length mounted on lower-type wheels or tracks.

53. "Skyway" shall mean an enclosed aerial walkway connecting two buildings or adjoining skyways.

54. "Snowmobile" shall mean and include without limitation any vehicle or sled which is propelled and driven by pneumatic tires, continuous metal or rubber belting, or similar or other means, and used primarily upon snow or ice covered areas.

55. "Solid tire" shall include every tire made of rubber or other material other than a pneumatic tire.

56. "Stand" or "standing" shall mean the halting of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in receiving or discharging passengers.

57. "Stop", when required, shall mean complete cessation from movement.

58. "Stop" or "stopping", when prohibited, means any halting, even momentarily of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

59. "Street" or "highway" shall mean the entire width between the legal boundary lines of every way publicly maintained when any part thereof is open to the use of the public for the purposes of vehicular travel; including, but not limited to, fire lanes as designated in accordance with subsection (F) of § 9-0704 of the Fargo Municipal Code, all drives and parking lots on that portion of the campus of North Dakota State University which is located within the corporate limits of the city of Fargo, and all drives and parking lots located on property owned by the city of Fargo, the Fargo Public School District and the Fargo Park District.

60. "Suspension" shall mean that the driver's license and privilege to drive a motor vehicle on the streets are temporarily withdrawn but only during the period of such suspension.

61. "Through highway" shall mean every highway or portion thereof at the entrances to which vehicular traffic from intersecting highways is required by law to stop before entering or crossing the same when stop signs are erected, or to yield right-of-way when yield right-of-way signs are erected as provided in this chapter.

62. "Traffic" shall mean pedestrians, ridden or herded animals, vehicles, streetcars, and other conveyances, either singly or together, while using any street for purposes of travel.

63. "Traffic-control signal" shall mean any device, whether manually, electrically, or mechanically operated, by which traffic is alternately directed to stop and to proceed.

64. "Traffic division" shall mean the traffic division of the police department of this city.

65. "Trailer" shall include every vehicle without motive power designed to carry property or passengers wholly on its own structure and to be drawn by a motor vehicle, except that it shall not include a "house trailer" or "mobile home", which terms shall mean a vehicle as defined in this subsection which is designed and intended for use as living or sleeping quarters for people and which is not used for commercial hauling of passengers.

66. "Truck" shall include every motor vehicle designed, used or maintained primarily for transportation of property.

67. "Truck tractor" shall include every motor vehicle designed and used primarily for drawing other vehicles and not so constructed as to carry a load other than a part of the weight of the vehicle and load so drawn.

68. "Vehicle" shall include every device in, upon, or by which any person or property may be transported or drawn upon a public highway, except devices moved by human power or used exclusively upon stationary rails or train tracks.

69. "Alley" shall mean a public way less than 30 feet in width which affords only a secondary means of access to abutting property.

70. "Motorized scooter" shall mean a motorized scooter as defined in Fargo Municipal Code section 8-2001.

71. "Electronic communication device" means an electronic device, including a wireless telephone, personal digital assistant, a portable or mobile computer or other device, and video display equipment. The term does not include a global positioning system or navigation system or a device that is physically or electronically integrated into the motor vehicle.

Source: 1119 (1962), 1965 Rev. Ord. 8-0101, 1750 (1976), 1780 (1977), 1824 (1977), 2102 (1983), 2283 (1986), 2371 (1987), 2519 (1990), 4457 (2005), 4813 (2012), 5089 (2017), 5275 (2020).

8-0102. Authority of police and fire department officials.--

A. It shall be the duty of the officers of the police department or such officers as are assigned by the chief of police to enforce all street traffic laws of this city and all of the state vehicle laws applicable to street traffic in the city.

B. Officers of the police department or such officers as are assigned by the chief of police are hereby authorized to direct all traffic by voice, hand, or signal in conformance with traffic laws; provided that, in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require notwithstanding the provisions of the traffic laws.

C. Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.

Source: 1952 Rev. Ord. 1119 (1962).

8-0103. Creation and extension of through and one-way streets.--The board of city commissioners may, by resolution, create, extend, or discontinue through streets and one-way streets.

Source: 1952 Rev. Ord. 1119 (1962), 2340 (1987), 2421 (1988).

8-0104. Authority to place and maintain signs on one-way streets and alleys.--Whenever any one-way street or alley has been created by resolution of the board of city commissioners, appropriate signs shall be placed and maintained giving notice thereof, and no such regulations shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited.

Source: 1952 Rev. Ord. 1119 (1962), 2340 (1987), 2421 (1988).

8-0105. One-way streets and alleys.--Upon those streets and alleys so marked and/or posted, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic are erected and maintained at every intersection where movement in the opposite direction is prohibited. Within a trailer court, park or campground, vehicular traffic shall move only in the indicated direction as posted by the operator of said establishment.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-0105, 1917 (1979), 2340 (1987).

8-0106. Authority to restrict direction of movement on streets during certain periods.

A. The traffic engineer is hereby authorized to determine and designate streets or parts of streets or specific lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day and shall place and maintain appropriate markings, signs, barriers, or other devices to give notice thereof. The traffic engineer may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the center line of the roadway.

B. It shall be unlawful for any person to operate any vehicle in violation of such markings, signs, barriers, or other devices so placed in accordance with this section.

Source: 1952 Rev. Ord. 1119 (1962), 2340 (1987).

8-0107. Through streets designated.--Repealed by Ord. No. 2340, effective June 1, 1987.

8-0108. Play streets--Authority to establish.--The traffic engineer shall have authority to declare any street or part thereof a play street and to place appropriate signs or devices in the roadway indicating and helping to protect the same, providing the board of city commissioners approves the action by resolution.

Source: 1952 Rev. Ord. 1119 (1962), 2340 (1987).

8-0109. Play streets--Driving restricted.--Whenever authorized signs are erected indicating any street or part thereof as a play street, no person shall drive a vehicle upon any such

street or portion thereof except drivers of vehicles having business or whose residences are within such closed area, and then said drivers shall exercise the greatest care in driving upon any such street or portion thereof.

Source: 1952 Rev. Ord. 1119 (1962).

8-0110. Required obedience to chapter and traffic ordinances.--It is a misdemeanor or infraction for any person to do any act forbidden or fail to perform any act required in this chapter and the traffic ordinances of the city.

Source: 1952 Rev. Ord. 1119 (1962), 2340 (1987), 2380 (1987).

8-0111. Obedience to police and fire department officials.--No person shall willfully fail or refuse to comply with any lawful order or direction of a police or fire department official.

Source: 1952 Rev. Ord. 1119 (1962).

8-0112. Persons propelling pushcarts or riding animals to obey traffic regulations. Every person propelling any pushcart or riding an animal upon a roadway, and every person driving any animal-drawn vehicle shall be subject to the provisions of this chapter applicable to the driver of any vehicle, except those provisions of this chapter which by their very nature can have no application.

Source: 1952 Rev. Ord. 1119 (1962).

8-0113. Use of coasters, roller skates, and similar devices restricted.--No person upon roller skates or in-line skates (sometimes called "roller blades"), or riding in or by means of any coaster, scooter, skateboard, toy vehicle, or similar device shall go upon any roadway, city-owned parking ramp, or any parking lot owned, managed or operated by the city of Fargo, or skyway within the city, upon any sidewalk in the central business district, or upon any other sidewalk or any other parking ramp in the city which is posted with signs prohibiting such devices. Provided, that any person may ride such devices on a roadway for purposes of crossing a roadway on a crosswalk, and when so crossing, such person shall be granted all of the rights and shall be subject to all the duties applicable to pedestrians.

Source: 1952 Rev. Ord. 1119 (1962), 2370 (1987), 2554 (1990), 2764 (1995), 4327 (2003).

8-0114. Public employees subject to provisions of chapter--Exceptions.--The provisions of this chapter shall apply to the driver of any vehicle owned by or used in the service of the United States Government, this state, county, city, district, or other political subdivisions of the state, and it shall be unlawful for any said driver to violate any of the provisions of this chapter subject to such exceptions as are set forth in this article. The provisions of this chapter shall not apply to persons, teams, motor vehicles or other equipment while actually engaged in work upon the surface of the highway but shall apply to such persons and vehicles while traveling to or from work.

Source: 1952 Rev. Ord. 1119 (1962).

8-0115. Class A authorized emergency vehicles.--

A. The driver of a Class A authorized emergency vehicle may:

1. Park or stand, irrespective of the provisions of this chapter;
2. Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation;

3. Exceed the speed limit so long as he does not endanger life or property;
4. Disregard regulations governing direction of movement or turning in specified directions.

B. The exceptions herein granted to a Class A authorized emergency vehicle shall apply only:
1. When the authorized emergency vehicle is in pursuit of or apprehension of a violator or a suspected violator requiring the use of these exemptions;
2. When the Class A authorized emergency vehicle is being operated in response to a reported emergency involving a possible personal injury, death, or damage to property, and when giving audible signal by siren or when giving adequate warning by use of a revolving or flashing red light or a revolving or flashing red light in combination with a revolving or flashing white and/or blue light, which is visible under normal atmospheric conditions for at least 500 feet;
3. In any instance when the head of a law enforcement agency deems advisable within the area of his jurisdiction for the protection of person and property and when giving audible signal by siren or when giving adequate warning by use of a revolving or flashing red light or a revolving or flashing red light in combination which a revolving or flashing white and/or blue light, which is visible under normal atmospheric conditions for at least 500 feet.

C. No emergency vehicle shall display or permit to be displayed any red lamp except when operated on official business.

D. Vehicles operated as emergency fire apparatus owned or operated by a duly organized fire department while responding to an emergency may use revolving white or red lights.

Source: 1952 Rev. Ord. 1119 (1962), 2340 (1987), 3044 (1999).

8-0115.1. Class B authorized emergency vehicles.--

A. The driver of Class B authorized emergency vehicles may:
1. Park or stand, irrespective of the provisions of this chapter;
2. Exceed the speed limit so long as he does not endanger life or property during the time of a local or national disaster;
3. Disregard regulations governing direction of movement or turning in specified directions.

B. The exceptions herein granted to a Class B authorized emergency vehicle shall apply only when the authorized emergency vehicle is displaying an amber light visible under normal atmospheric conditions for a distance of 500 feet in any direction, and;
1. When it is necessary for the authorized emergency vehicle to use these exemptions for the immediate protection of life or property;
2. When an authorized emergency vehicle is stopped on a highway for the purpose of performing a duty as required of him; or
3. When traveling at a speed slower than the normal flow or traffic.

Source: 1952 Rev. Ord. 1119 (1962).

8-0115.2. Class C authorized emergency vehicles.--All Class B specifications shall apply except that a rotating blue flashing light shall be displayed.

Source: 1952 Rev. Ord. 1119 (1962).

8-0116. Duty of drivers on approach of authorized emergency vehicles.--

A. Upon approach of an authorized emergency vehicle giving an audible signal by bell, siren, or exhaust whistle, or displaying a visible flashing red or white light, the driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to, and as close as possible to, the right-hand edge or curb of the street, clear of any intersection, and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

B. Any driver on a one-way street upon the approach of an authorized emergency vehicle giving a signal as described above shall immediately drive his vehicle to a position as near as possible and parallel to the left-hand or right-hand edge or curb of the street depending on which curb is nearest to him at the time he first observes said emergency vehicle. Center lanes on one-way streets shall be left clear and the driver should be clear of any intersection. The driver shall stop and remain in such position unless otherwise directed by a police or traffic officer until the emergency vehicle shall have passed.

C. Whenever an emergency vehicle is parked or stopped at the scene of an emergency and is displaying a flashing red light, approaching traffic shall move to the right-hand edge or curb of the street and shall stop, but once having stopped, traffic may proceed past the scene at its own risk when the street is clear, except when otherwise directed by a police officer.

D. This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the street.

Source: 1952 Rev. Ord. 1119 (1962), 2340 (1987).

8-0117. Tampering with or injuring motor vehicles.--No person shall tamper with or drive or operate a motor vehicle without the permission of the owner; and no person shall, without authority of the person in charge, climb upon or in any motor vehicle, whether the same is in motion or at rest; or shall hurl stones or other missiles at any motor vehicle or occupants thereof; or shall, while such motor vehicle is at rest and unattended, sound the horn or other signaling device; or attempt to manipulate any of the levers, starting crank, brakes, or machinery thereof; or set such motor vehicle in motion; or shall otherwise damage or interfere with any motor vehicle.

Source: 1952 Rev. Ord. 1119 (1962).

8-0118. Taking or removing motor vehicles without consent of owner.--Repealed by Ord. No. 2340, effective June 1, 1987.

8-0119. Renting motor vehicles--License of renter.--No person shall rent a motor vehicle to any other person unless the latter person is then duly licensed hereunder or, in the case of a nonresident, then duly licensed under the laws of the state or country of his residence, or unless the renter certifies that the vehicle shall be driven by a duly licensed operator.

Source: 1952 Rev. Ord. 1119 (1962).

8-0120. Renting motor vehicles--License required of operator.--No person shall rent a motor vehicle to another until he has inspected the operator's or chauffeur's license of the person to whom the vehicle is to be rented or of the person by whom the vehicle shall be driven and compared and verified the signature thereon with the signature of such person written in his presence.

Source: 1952 Rev. Ord. 1119 (1962).

8-0121. Renting motor vehicles--Records.--Every person renting a motor vehicle to another shall keep a record of the registration number of the motor vehicle so rented, the name and address of the person to whom the vehicle is rented, the number of the license of said person or his certified driver, and the date and place when and where said license was issued. Such record shall be open to inspection by any police officer.

Source: 1952 Rev. Ord. 1119 (1962).

8-0122. Rights of owners of real property used for roadway to make provisions for use of property.--Nothing in this chapter shall be construed to prevent the owner of real property which is used by the public for the purposes of vehicular travel by permission of the owner and not as a matter right from prohibiting such use or from requiring other or different or additional conditions than those specified in this chapter or otherwise regulating such use as may seem best to such owner.

Source: 1952 Rev. Ord. 1119 (1962).

8-0123. Operation of motor vehicle, tractor, or other vehicle prohibited on flood protective works--Exception--Penalty.--Unless authorized by the authority in charge thereof, no person shall operate a motor vehicle, tractor, or other vehicle upon or across any flood protective works including, but not limited to, any dike or flood protective works constructed by a state or federal agency or by any municipality or local subdivision of the state. Any person violating the provisions of this section shall be liable to the city, municipality, or political subdivision suffering injury for the full amount of the damage sustained thereby and in addition shall be guilty of a misdemeanor.

Source: 1952 Rev. Ord. 1119 (1962).

8-0124. Driving on inclines or curves and under viaducts or bridges.--Repealed by Ord. No. 2340, effective June 1, 1987.

8-0125. Penalties for violation of chapter.--Repealed in its entirety.

Source: 4563 (2006).

8-0126. Removal of vehicles.--Motor vehicles found in violation of this chapter or in violation of any resolution passed pursuant thereto may be removed by or under the direction of the police department to the city hall, or any other place designated by the police department, and held until the cost and expenses of such removal and storage, together with any and all fines or penalties imposed for violation of this chapter, are paid; provided, however, that in the event the owner or person in possession of said motor vehicle disputes the validity of the impoundment, such person shall be entitled to a review if the person submits a written request to the Fargo police department within 15 days after the impoundment. The review shall

be conducted by a person designated by the chief of police within five days of the request. The post-impoundment review shall not adjudicate or determine the validity of any citation or criminal charge which may have been issued with respect to the impounded vehicle.

Source: 1952 Rev. Ord. 1965, 2748 (1995).

8-0127. Application to fire lanes, North Dakota State University and property owned by local governmental units.--The provisions of this chapter shall apply with full force and effect in all fire lanes as designated in accordance with subsection (D) of § 9-0707 of the Revised Ordinances of 1965 of the city of Fargo, all drives and parking lots located on that portion of the campus of North Dakota State University which is located within the corporate limits of the city of Fargo, and all drives and parking lots owned by the city of Fargo, the Fargo Public School District and the Fargo Park District.

Source: 1965 Rev. Ord. 8-0127, 1750 (1976), 1780 (1977).

ARTICLE 8-02

TRAFFIC ADMINISTRATION

Section

8-0201 Records of traffic violations.
8-0202 Traffic accident studies.
8-0203 Traffic accident reports.
8-0204 Drivers' files to be maintained.
8-0205 City traffic engineer.
8-0206 Emergency and experimental regulations.

8-0201. Records of traffic violations.--The police department shall keep a record of all violations of the traffic ordinances of this city of which any person has been charged, together with a record of the final disposition of all such alleged offenses. Such record shall be so maintained as to show all types of violations and the total of each. Said record shall accumulate during at least a five-year period and from that time on, the record shall be maintained complete for at least the most recent five-year period.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0202. Traffic accident studies.--Whenever the accidents at any particular location become numerous, the traffic engineer shall conduct studies of such accidents and determine remedial measures.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0203. Traffic accident reports.--The police department shall maintain a suitable system of filing traffic accident reports. Accident reports or cards referring to them shall be filed numerically.

Source: 1952 Rev. Ord. 1119 (1962), 2381 (1987), 2515 (1990).

8-0204. Drivers' files to be maintained.--

A. The police department shall maintain a suitable record of all traffic accidents, warnings, arrests, convictions, and complaints reported for each driver, which shall be filed alphabetically under the name of the driver concerned.

B. The police department shall study the cases of all the drivers charged with frequent or serious violations of the traffic laws or involved in frequent or serious traffic accidents, and shall attempt to discover the reasons therefore, and shall take whatever steps are lawful and reasonable to prevent the same or to have the licenses of such persons suspended or revoked.

C. Such records shall accumulate during at least a five-year period and from that time on, such records shall be maintained complete for at least the most recent five-year period.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0205. City traffic engineer.--

A. The office of city traffic engineer is hereby established. The head of the traffic division shall serve as city traffic engineer in addition to his other functions and shall exercise the powers and duties with respect to traffic as provided in this chapter and the traffic ordinances of this city.

B. It shall be the general duty of the traffic engineer to determine the installation and proper timing and maintenance of traffic-control devices, to conduct engineering analyses of traffic accidents and to devise remedial measures, to conduct engineering investigation of traffic conditions, to plan the operation of traffic on the streets and highways of this city, to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out the additional powers and duties imposed by ordinances of this city.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0206. Emergency and experimental regulations.--

A. The chief of police and/or the traffic engineer are hereby empowered to make regulations necessary to make effective the provisions of the traffic ordinances of this city and to make and enforce temporary or experimental regulations to cover emergencies or special conditions. No such temporary or experimental regulations shall remain in effect for more than 90 days.

B. The police department and/or traffic engineer may test traffic-control devices under actual conditions of traffic.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

ARTICLE 8-03

REGULATIONS GOVERNING OPERATORS

Section

8-0301 Control of vehicle--Careful driving.
8-0302 School zones--Designation--Driving with care.
8-0303 Operation of motor vehicles by certain minors forbidden.
8-0304 Registration card to be carried in the driver's compartment--Inspection of card.
8-0305 Current license and registration required.
8-0306 Restrictions imposed on license--Violation prohibited.
8-0307 Unlawful use of license.

8-0308 Reproducing operator's or driver's license or permit.
8-0309 Driving while license suspended or revoked--Impoundment of license plates.
8-0310 Persons under the influence of intoxicating liquor or controlled substances not to operate vehicle--Declaring what constitutes being under the influence of intoxicating liquor--Impoundment of license plates.
8-0311 Unlawful to have opened receptacle containing beer, alcohol, or alcoholic beverages in motor vehicles, truck, or bus.
8-0312 Person conveying passengers not to engage drivers addicted to intoxicants.
8-0313 Careless driving.
8-0314 Reckless driving.
8-0315 Registration number as prima facie evidence of operation of vehicle.
8-0316 Unlawful to permit unauthorized persons to drive.
8-0317 Racing and exhibition driving on streets, alleys and public ways.
8-0318 Operation of motor vehicles on bicycle trails prohibited.
8-0319 Operation of motor vehicles in park or playground.
8-0320 Driving without liability insurance prohibited.
8-0321 Use of a wireless communication device prohibited.
8-0322 Distracted driving.
8-0323 License to be carried and exhibited on demand.

8-0301. Control of vehicle--Careful driving.--The driver or person in charge of a vehicle shall at all times have the vehicle under control. All vehicles shall be driven in a careful manner and with due regard to the safety and convenience of pedestrians and all other vehicles.

Source: 1952 Rev. Ord. 1119 (1962).

8-0302. School zones--Designation--Driving with care.--The traffic engineer shall designate and sign school zones. Any person who drives any vehicle upon any public street or alley shall, before entering any school zone and while traversing the same, have such vehicle under perfect control and shall operate such vehicle with due caution and circumspection and at a speed and in a manner so as not to endanger or be likely to endanger any person or property and in accordance with any speed restriction sign which is posted.

Source: 1952 Rev. Ord. 1119 (1962), 2341 (1987), 2515 (1990).

8-0303. Restrictions on operation of motor vehicles by certain minors.--

A. The driving or operation of motor vehicles, including automobiles, motorcycles, motor-driven cycles, taxicabs, trucks or other commercial vehicles and delivery cars, within the city limits of the city of Fargo by any person under the age of 16 years is prohibited, except that persons under the age of 16 years shall be permitted to operate an automobile upon compliance with, and subject to the restriction as limited by, North Dakota Century Code 39-06-05 and 39-06-17.

B. Any owner or other person who knowingly allows or permits a minor under the age of 16 years to drive or operate a motor vehicle within the city limits of Fargo unless said minor is qualified under North Dakota law as aforesaid, shall be guilty of an infraction.

C. An individual under the age of 18 years and who was issued a permit or license after January 1, 2012, may not operate an electronic communication device to talk, compose, read or send an electronic message while operating a motor

vehicle that is in motion unless the sole purpose of operating the device is to obtain emergency assistance, to prevent a crime about to be committed, or in the reasonable belief that an individual's life or safety is in danger.

Source: 1952 Rev Ord. 1119 (1962), 1965 Rev. Ord. 8-0303, 1546 (1973), 2374 (1987), 4811 (2012).

8-0304. Registration card to be carried in the driver's compartment--Inspection of card.--The registration card issued for a vehicle shall be carried in the driver's compartment of the vehicle at all times when the vehicle is being operated upon the streets of the city. Such card shall be subject to inspection by any peace officer. However, a person cited for violation of this section may not be found to have committed the violation if the person, within fourteen days after being cited produces and displays to the office of the prosecutor where the matter is pending, a registration card valid at the time the person was cited. A peace officer, upon citing a person for violating this section, shall inform the person that a violation will be considered as not having occurred if the person produces and displays a valid registration card in the manner provided in this section.

Source: 1952 Rev. Ord. 1119 (1962), 5318 (2021).

8-0305. Current license and registration required.--

A. It shall be unlawful for any person to commit any of the following acts:

1. To operate, drive or park or the owner thereof knowingly to permit anyone to operate, drive or park, upon the streets of the city of Fargo, any motor vehicle, trailer or semi-trailer which is required to be registered pursuant to chapter 39-04, N.D.C.C., and which registration has been cancelled or revoked, or which is not registered.
2. To display or permit to be displayed, or to have in possession, any registration card or registration number plate knowing the same to be fictitious or to have been cancelled, revoked, suspended, or altered.
3. To lend any registration number plate or registration card to any person not entitled thereto, or knowingly permit the use of any registration number plate or registration card by any person not entitled thereto.
4. To operate, drive, or park or the owner knowingly to permit anyone to operate, drive, or park, upon the streets of the city of Fargo, any motor vehicle which does not have attached and displayed two license plates and registration tabs assigned by North Dakota or other state or province for the current registration period, subject to the exemptions permitted in Chapter 39-04 of the North Dakota Century Code. Each number plate shall be clearly displayed in a horizontal and upright position, with one in the front and rear of the vehicle and must be securely fastened. Each plate must be mounted in a visible manner that clearly displays the registration number assigned to the vehicle and name of the state on the plate. The license plates must be kept free and clear of mud, dirt, ice, or snow as far as reasonably possible so as to be clearly visible.
5. To operate, drive or park or the owner to knowingly permit anyone to operate, drive, or park upon the streets of the city of Fargo any motorcycle or trailer which does not have attached and displayed a number

plate and registration tab assigned by North Dakota or other state or province for the current registration period, subject to the exemptions permitted in Chapter 39-04 of the North Dakota Century Code. The number plate must be attached to the rear of the motorcycle or trailer and may be displayed vertically. The license plate must be mounted in a visible manner and clearly display the registration number assigned to the motorcycle or trailer and the name of the state on the plate. The license plate must be kept free and clear of mud, dirt, ice, or snow as far as reasonably possible so as to be clearly visible.

B. It shall be unlawful to operate or drive a vehicle upon the streets of the city of Fargo unless the operator thereof has a valid operator's license or permit as required by law.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-0305, 1660 (1975), 2048 (1982), 2341 (1987), 2690 (1994), 5089 (2017), 5187 (2019), 5468 (2025).

8-0306. Restrictions imposed on license--Violation prohibited.--No person shall operate a vehicle in any manner in violation of the restrictions imposed in a restricted license issued to him.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0307. Unlawful use of license.--It shall be unlawful for any person:

A. To display or cause or permit to be displayed or have in his possession any cancelled, revoked, suspended, fictitious, or fraudulently altered operator's or chauffeur's license;

B. To lend his operator's or chauffeur's license to any other person or knowingly permit the use thereof by another;

C. To display or represent as one's own any operator's or chauffeur's license not issued to him;

D. To fail or refuse to surrender to the state upon lawful demand any operator's or chauffeur's license which has been suspended, revoked, or cancelled;

E. To permit any unlawful use of an operator's or chauffeur's license issued to him.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0308. Reproducing operator's or driver's license or permit.--

A. It shall be unlawful for any person to print, photograph, photostat, duplicate or in any way reproduce any operator's or driver's license or permit or facsimile thereof in such a manner that it would be mistaken for a valid license, or to display or have in his possession any such printed, photograph, photostat, duplicate, reproduction or facsimile unless authorized by the provisions of the North Dakota law.

B. It shall also be unlawful for any person to alter in any manner any operator's or driver's license or permit, or to display or have in his possession any altered operator's or driver's license or permit.

C. Every person, firm or corporation violating this section shall, upon conviction thereof, be punished by a fine not to exceed $1,000, or by imprisonment not to

exceed 30 days, or by both such fine and imprisonment, in the discretion of the court; the court to have power to suspend said sentence and to revoke the suspension thereof.

Source: 1965 Rev. Ord. 8-0308.1, 1378 (1970), 2515 (1990), 3010 (1999), 3045 (1999).

8-0309. Driving while license suspended or revoked--Impoundment of license plates. It shall be unlawful for any person to drive a vehicle on any public or private way, street, alley, parking lot, or area to which the public has a right of access for vehicular use, within the city, at a time when the driver's privilege to do so is suspended or revoked in any jurisdiction.

If the suspension or revocation was imposed for violation of § 39-08-01 of the North Dakota Century Code or equivalent statute or ordinance or was governed by § 39-06-31 or chapter 39-20 of the North Dakota Century Code, the sentence must be at least four consecutive days' imprisonment and such fine as the court deems proper.

Upon conviction for violation of this ordinance, the court may, in addition to the imposition of the penalty, order the motor vehicle number plates of the motor vehicle owned by the offender at the time of the offense to be impounded by the chief law enforcement officer of the city or designated representative for the duration of the period of suspension of the offender's driver's license or driving privileges by the licensing authority. The impounded motor vehicle number plates may be released, upon the order of the court, to a bona fide purchaser of the offender's motor vehicle, if that purchaser produces a new certificate of title issued by the registrar of motor vehicles.

The municipal Judge may order the destruction of a motor vehicle number plate as permitted in state law.

A court may dismiss a charge under this section upon motion by the defendant if the defendant's operator's license is reinstated within sixty days of the date of the offense and the defendant provides to the court satisfactory evidence of the reinstatement. Alternatively, upon motion, a court may grant a motion to amend a charge under this section to a violation of section 8-0305(B).

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-0309, 1379 (1970), 1651 (1975), 2049 (1982), 2606 (1992), 2820 (1997), 5339 (2022), 5505 (2025).

8-0310. Persons under the influence of intoxicating liquor or controlled substances not to operate vehicle--Declaring what constitutes being under the influence of intoxicating liquor--Impoundment of license plates.--

A. No person shall drive, or be in actual physical control of, any vehicle upon any street, highway, public or private parking lot, or other public or private property in this city if said person is under the influence of intoxicating liquor or controlled substances. Being under the influence of intoxicating liquor or controlled substances shall be as defined by chapter 39-08 of the North Dakota Century Code including any amendments hereafter adopted. All other relevant and applicable statutes of the state of North Dakota relating to driving under the influence of intoxicating liquor or controlled substances are also incorporated herein by reference and made a part hereof.

B. An individual who operates a motor vehicle on a highway or on public or private areas to which the public has a right of access for vehicular use in this state who

refuses to submit to a chemical test or tests required under chapter 39-08 of the North Dakota Century code including any amendments hereafter adopted is guilty of an offense under this section.

Source: 1952 Rev. Ord. 1119 (1962), 1198 (1965), 1965 Rev. Ord. 8-0310, 1855 (1978), 2050 (1982), 2103 (1983), 2341 (1987), 4862 (2013).

8-0311. Unlawful to have opened receptacle containing beer, alcohol, or alcoholic beverages in motor vehicles, truck, or bus.--Except as provided in § 39-08-18 of the North Dakota Century Code, and as a passenger on a commercial pedal car containing not less than five (5) drive trains, no person shall drink or consume beer, alcohol, or alcoholic beverages, as defined by state law, in a motor vehicle, truck or other commercial vehicle, or bus or keep in a motor vehicle, truck or other commercial vehicle, or bus any bottle or receptacle containing beer, alcohol, or alcoholic beverages, as defined by state law, which has been opened or the contents of which have been partially consumed.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990), 2637 (1993), 5398 (2023).

8-0312. Person conveying passengers not to engage drivers addicted to intoxicants. No person owning or having the direction or control of any vehicle for the conveyance of passengers in this city shall employ or continue in his employment as a driver of such vehicle any person who is addicted to drunkenness or to the excessive use of intoxicating liquors.

Source: 1952 Rev. Ord. 1119 (1962).

8-0313. Careless driving.--An individual may not drive a vehicle at a speed greater than is reasonable and prudent under the conditions and shall drive with regard to existing actual and potential hazards. An individual shall drive at a safe and appropriate speed when approaching and crossing an intersection or railroad grade crossing, when approaching and going around a curve, when approaching a hill crest, when traveling upon any narrow or winding roadway, and when special hazards exist with respect to pedestrians or other traffic or by reason of weather or highway conditions. An individual who drives a vehicle upon a highway or private or public property open to the public for the operation of motor vehicles in violation of the requirements or restrictions of this section is guilty of careless driving.

Source: 1952 Rev. Ord. 1119 (1962), 1198 (1965), 4552 (2006), 5504 (2025).

8-0314. Reckless driving.--Any person who drives any vehicle upon a street, highway, public or private parking lot, or other public or private property in this city recklessly in disregard of the rights or safety of others, or without due caution and circumspection and at a speed or in a manner so as to endanger or be likely to endanger any person or property shall be guilty of reckless driving.

Source: 1952 Rev. Ord. 1119 (1962), 1198 (1965), 4775 (2011).

8-0315. Registration number as prima facie evidence of operation of vehicle.--In any proceeding for a violation of the provisions of this chapter or any local ordinance, rule, or regulation, the registration plate displayed on the vehicle shall be prima facie evidence that the owner of such vehicle was then operating the same. If in any hearing or proceeding the owner shall testify under oath or affirmation that he was not operating the vehicle at the time of the alleged violation of this chapter or any local ordinance, rule, or regulation, and shall submit himself to an examination as to who at that time was operating such vehicle, and reveal the

name of the person, if known to him, or, if the information is made in a county other than that of his own residence, shall forward to the magistrate an affidavit setting forth these facts, then the prima facie evidence arising from the registration plate shall be overcome and removed and the burden of proof shifted.

Source: 1952 Rev. Ord. 1119 (1962).

8-0316. Unlawful to permit unauthorized persons to drive.--No person shall authorize or knowingly permit a vehicle owned by him or under his control to be driven upon any property, parking lot, street, or highway by any person who is not authorized under this chapter or any other city ordinance, or to be driven in violation of any provision of this chapter or of any city ordinance.

Source: 1952 Rev. Ord. 1185 (1964).

8-0317. Racing and exhibition driving on streets, alleys and public ways.--

A. No person shall engage in exhibition driving of any vehicle on a highway, street, alley, sidewalk, public way, or any public or private parking lot or area within the city of Fargo, nor shall any person engage in a speed competition, race, drag race, acceleration contest, test of physical endurance, or exhibition of speed or acceleration on any highway, street, alley, sidewalk, public way, or any public or private parking lot or area within the city of Fargo, nor shall any person in any manner participate in any such race, drag race, competition, contest, or exhibition.

B. The following definitions shall apply to the interpretation and enforcement of this ordinance:

1. "Drag race" means the operation of two or more vehicles from a point side by side at accelerating speeds in a competitive attempt to outdistance each other; or the operation of one or more vehicles over a common selected course, from the same to the same point, for the purpose of comparing the relative speeds or powers of acceleration of such vehicle or vehicles within a certain distance or time limit.

2. "Exhibition driving" means driving a vehicle in such a manner that it creates or causes unnecessary engine noise, tire squeal, skid or slide upon acceleration, braking or stopping; or that causes the vehicle to unnecessarily turn abruptly or sway; or driving and executing or attempting one or a series of unnecessarily abrupt turns.

3. "Race" means the use of one or more vehicles in an attempt to outgain, outdistance, or to arrive at a given distance ahead of another vehicle or vehicles; or the use of one or more vehicles to willfully prevent another vehicle from passing the racing vehicle or vehicles or to test the physical stamina or endurance of the person or persons driving the vehicles over a long distance driving route.

C. Nothing in this ordinance shall be construed as prohibiting drag racing, exhibition driving, racing or similar events when carried out in an organized manner on a track or other privately owned area specifically set aside and used solely for such purposes by drivers of motor vehicles, including snowmobiles.

Source: 1965 Rev. Ord. 8-0317, 1653 (1975).

8-0318. Operation of motor vehicles on bicycle trails prohibited.--No person shall operate any motor vehicle on any of the bicycle trails which are so designated and marked by the Park District of the city of Fargo. This ordinance shall not apply to police vehicles or maintenance vehicles while on official duties.

Source: 1965 Rev. Ord. 8-0319, 1640 (1975), 2515 (1990).

8-0319. Operation of motor vehicles in park or playground.--No person shall operate any motor vehicle in any area of a park or playground except a maintained and designated street or parking area. This ordinance shall not apply to police vehicles or maintenance vehicles while on official duties.

Source: 1965 Rev. Ord. 8-0320, 1640 (1975), 2515 (1990).

8-0320. Driving without liability insurance prohibited.

A. A person may not drive, or the owner may not cause or knowingly permit to be driven, a motor vehicle in this city without a valid policy of liability insurance in effect in order to respond in damages for liability arising out of the ownership, maintenance, or use of that motor vehicle in the amount required by chapter 39-16.1, N.D.C.C.

B. Upon being stopped by a law enforcement officer for the purpose of enforcing or investigating the possible violation of an ordinance or state law, the person driving the motor vehicle shall provide to the officer upon request satisfactory evidence, including written or electronic proof of insurance, of the policy required under this section. If unable to comply with the request, that person may be charged with a violation of this section. If that person produces satisfactory evidence, including written or electronic proof of insurance, of a valid policy of liability insurance in effect at the time of the alleged violation of this section to the office of the prosecutor where the matter is pending, that person may not be convicted or assessed any administration fee for violation of subsection A.

C. Notwithstanding section 26.1-30-18, N.D.C.C., a person may be convicted for failure to have a valid policy of liability insurance in effect under this section if the time of acquisition of the policy was after the time of the alleged incidence of driving without liability insurance. If the time of acquisition of the policy comes into question, the driver or owner has the burden of establishing the time of acquisition. If the driver is not an owner of the motor vehicle, the driver does not violate this section if the driver provides the court with evidence identifying the owner of the motor vehicle and describing circumstances under which the owner caused or permitted the driver to drive the motor vehicle.

D. Violation of subsection A is a noncriminal offense and the sentence imposed must include a fine of one hundred fifty dollars which may not be suspended. A person convicted for a second or subsequent violation of driving without liability insurance within a three-year period must be fined three hundred dollars which may not be suspended. For a second or subsequent conviction for violation of subsection A, the court shall order the motor vehicle number plates of the motor vehicle owned and operated by the person at the time of the violation to be impounded until that person provides proof of insurance and a twenty dollar fee to the office of the police officer that made the arrest and notify

the department of the order. The person shall deliver the number plates to the court without delay at a time certain as ordered by the court following the conviction. The court shall deliver the number plates to the department. A person who does not provide the number plates to the court at the appropriate time is guilty of a class B misdemeanor.

Source: 2047 (1982), 2515 (1990), 2742 (1995), 2815 (1997), 4635 (2008), 4739 (2010), 4865 (2013), 5318 (2021).

8-0321. Use of a wireless communication device prohibited.--

A. The operator of a motor vehicle that is part of traffic may not use a wireless communication device to compose, read or send an electronic message.

B. The following definitions shall apply to the interpretation and enforcement of this ordinance:

1. "Electronic message" means a self-contained piece of digital communication that is designed or intended to be transmitted between physical devices. The term includes e-mail, a text message, an instant message, a command or request to access a World Wide Web page, or other data that uses a commonly recognized electronic communications protocol. The term does not include:

a. Reading, selecting, or entering a telephone number, an extension number, or voice mail retrieval codes and commands into an electronic device for the purpose of initiating or receiving a telephone or cellular phone call or using voice commands to initiate or receive a telephone or cellular phone call;

b. Inputting, selecting, or reading information on a global positioning system device or other navigation system device;

c. Using a device capable of performing multiple functions, such as fleet management systems, dispatching devices, smart phones, citizen band radios, music players, or similar devices, for a purpose that is not otherwise prohibited;

d. Voice or other data transmitted as a result of making a telephone or cellular phone call;

e. Data transmitted automatically by a wireless communication device without direct initiation by an individual; or

f. A wireless communications device used in a voice-activated, voice-operated, or any other hands-free manner.

2. "Traffic" means operation of a motor vehicle while in motion or for the purposes of travel on any street or highway and includes a temporary stop or halt of motion, such as at an official traffic-control signal or sign. The term does not include a motor vehicle that is lawfully parked.

C. This section does not apply if a wireless communication device is used for obtaining emergency assistance to report a traffic accident, medical emergency, or serious traffic hazard or to prevent a crime about to be committed, in the reasonable belief that an individual's life or safety is in immediate danger, or in an authorized emergency vehicle while in the performance of official duties.

Source: 4799 (2011), 5111 (2017).

8-0322. Distracted driving.--

A. An operator of a motor vehicle shall maintain control of that motor vehicle without distraction at all times. An individual is in violation of this section if that individual:
   1. Commits an offense under this chapter or Title 39 of the North Dakota Century Code and, at the time of the offense, the individual was engaged in the operation of a motor vehicle while distracted; or
   2. Is determined to have been the operator of a motor vehicle that was involved in a reportable accident as defined in section 39-08-09 which resulted in property damage and, at the time the reportable accident occurred, the individual was engaged in the operation of a motor vehicle while distracted.

B. The elements of an offense under this section are the elements of the offense for a violation of this chapter or Title 39 of the North Dakota Century Code and the additional elements that create an offense under the above subsection.

C. An individual may be issued a citation or summons for any other traffic offense that was committed by the individual in relation to the individual's commission of this traffic offense.

D. As used in this section, "operation of a motor vehicle while distracted" means the operation of a motor vehicle by an individual who, while operating the vehicle, is engaged in an activity that:
   1. Is not necessary to the operation of the vehicle; and
   2. Actually impairs, or would reasonably be expected to impair, the ability of the individual to safely operate the vehicle.

Source: 5110 (2017).

8-0323. License to be carried and exhibited on demand.--An individual licensed to operate a motor vehicle shall have the operator's license in the individual's immediate possession at all times when operating a motor vehicle and shall physically surrender the operator's license upon demand of any court or police officer; however, an individual charged with violating this section may not be convicted or assessed any court costs if the individual produces within fourteen days of being cited, to the office of the prosecutor where the matter is pending, a valid operator's license issued to that individual that is not under suspension, revocation, or cancellation at the time of the individual's arrest.

Source: 5187 (2019), 5318 (2021).

ARTICLE 8-04

TRAFFIC-CONTROL DEVICES

Section

8-0401 Authority to install traffic-control devices.
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8-0411 Interference with official traffic-control signs or devices or railroad signs or signals.
8-0412 Display of unauthorized signs, signals, or markings.

8-0401. Authority to install traffic-control devices.--

A. The traffic engineer and/or police department shall place and maintain traffic-control signs, signals, and devices when and as required under the traffic ordinances of this city to make effective the provisions of said ordinances, and may place and maintain such additional traffic-control devices as may be necessary to regulate traffic or to guide or warn traffic under the traffic ordinances of this city or under state law.

B. The traffic engineer and/or police department is authorized to erect temporary signs indicating no parking upon either or both sides of any street when such parking would, in its opinion, interfere with traffic or create a hazardous situation.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0402. Manual and specifications for traffic-control devices.--All traffic-control signs, signals, and devices shall conform to the manual and specifications approved by resolution of the board of city commissioners. All signs and signals required hereunder for particular purpose shall, so far as practicable, be uniform as to type and location throughout the city. All traffic-control devices so erected and not inconsistent with the provisions of state law or this chapter shall be official traffic-control devices. Notwithstanding the foregoing provisions or any other provisions of state law or city ordinance governing traffic-control signs, signals or devices, the use within the city of Fargo of such fold-down school stop signs as have been utilized heretofore, shall be lawful and such stop signs shall be deemed official traffic-control devices.

Sources: 1965 Rev. Ord. 8-0402, 1451 (1972).

8-0403. Obedience to official traffic-control devices.--The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with the provisions of this chapter unless otherwise directed by a traffic or police officer or unless subject to the exceptions granted the driver of an authorized emergency vehicle in this chapter.

Source: 1952 Rev. Ord. 1119 (1962).

8-0404. When traffic signs required for enforcement purposes.--No provision of this chapter or other city ordinance requiring the installation of traffic signs shall be enforced against an alleged violator if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.

Source: 1952 Rev. Ord. 1119 (1962).

8-0405. Traffic-control signals legend.--Whenever traffic is controlled by traffic-control signals exhibiting different colored lights, or colored lighted arrows, successively one at a time or in combination, only the colors green, red, and yellow may be used, except for special pedestrian signals carrying a word or legend, and said lights must indicate and apply to drivers of vehicles and pedestrians as follows:

A. Green indication:

1. Vehicular traffic facing a circular green signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.
2. Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.
3. Unless otherwise directed by a pedestrian-control signal as provided for in N.D.C.C. § 39-10-06, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.

B. Steady yellow indication:

1. Vehicular traffic facing a steady yellow signal is thereby warned that the related green movement is being terminated or that a red indication will be exhibited immediately thereafter when vehicular traffic may not enter the intersection.
2. Pedestrians facing a steady yellow signal, unless otherwise directed by a pedestrian-control signal as provided for in N.D.C.C. § 39-10-06, are thereby advised that there is insufficient time to cross the roadway before a red indication is shown and no pedestrian may then start to cross the roadway.

C. Steady red indication:

1. Vehicular traffic facing a steady red signal alone shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then before entering the intersection and shall remain standing until an indication to proceed is shown, except as provided for in subdivision 2.
2. Except when a sign is in a place prohibiting a turn, vehicular traffic facing a steady red signal may cautiously enter the intersection to turn right, or to turn left from a one-way street into a one-way street, after stopping as required by subdivision 1. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within adjacent crosswalk and to other traffic lawfully using the intersection.

3. Unless otherwise directed by a pedestrian-control signal as provided for in N.D.C.C. § 39-10-06, pedestrians facing a steady red signal alone may not enter the roadway.

D. In the event an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this section are applicable, except as to those provisions which by their nature can have no application. Any stop required must be made at a sign or marking on the pavement indicating where the stop must be made, but in the absence of any such sign or marking the stop must be made at the signal.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-0405, 1315 (1969), 1498 (1973), 2739 (1995).

8-0406. Pedestrian-control signals.--Whenever special pedestrian-control signals exhibiting the words "Walk" or "Don't Walk" are in place, such signals shall indicate as follows:

A. "Walk". Pedestrians facing such signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

B. "Wait" or "Don't Walk". No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed his crossing on the walk signal shall proceed to a sidewalk or safety zone while the wait signal is showing.

Source: 1952 Rev. Ord. 1119 (1962).

8-0407. Flashing signals.--

A. Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal it shall require obedience by vehicular traffic as follows:

1. Flashing red (stop signal). When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, or if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

2. Flashing yellow (caution). When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

B. This section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossings shall be governed as stated elsewhere in this chapter.

Source: 1952 Rev. Ord. 1119 (1962).

8-0408. Traffic engineer designates crosswalks and establishes every safety zone and traffic lane.--The traffic engineer is hereby authorized:

A. To designate and maintain, by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at the intersections where in their opinion there is particular danger to pedestrians crossing the roadway, and at such other places as may be necessary;

B. To establish safety zones of such kind and character and at such places as may be necessary for the protection of pedestrians;

C. To mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary. Where such traffic lanes have been marked, it shall be unlawful for the operator of any vehicle to fail or refuse to keep such vehicle within the boundaries of any such lane except when lawfully passing another vehicle or preparatory to making a lawful turning movement.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0409. Traffic engineer to establish and designate public carrier stops and stands. The traffic engineer is hereby authorized, subject to the approval of the board of city commissioners, to establish bus stops, bus stands, taxicab stands, and stands for other passenger common-carrier motor vehicles on such public streets in such places and in such number so as to be of the greatest benefit and convenience to the public, and every such bus stop, bus stand, taxicab stand, or other stand shall be designated by appropriate signs.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0410. Intersections where stop or yield is required.--The traffic engineer is hereby authorized to determine and designate intersections at other than through streets where particular hazard exists and to determine:

A. Whether vehicles shall stop at one or more entrances to any such intersections, in which event it shall cause a stop sign to be erected at every such place where a stop is required subject to the approval of the board of city commissioners.

B. Whether vehicles shall yield the right-of-way to vehicles on a different street at such intersection, in which event it shall cause to be erected a yield sign at every place where obedience thereto is required.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0411. Interference with official traffic-control signs or devices or railroad signs or signals.--No person shall, without lawful authority, alter or attempt to alter, paste stickers on, deface, injure, knock down, or remove any official traffic-control sign or device or any railroad sign or signal, or any inscription, shield, or insignia thereon, or any other part thereof.

Source: 1952 Rev. Ord. 1119 (1962).

8-0412. Display of unauthorized signs, signals, or markings.--

A. No person shall place, maintain, or display upon or in view of any highway an unauthorized sign, signal, marking, or device which purports to be, or is an imitation of, or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal.

B. No person shall place or maintain, nor shall any public authority permit, upon any street or highway any sign or signal bearing thereon any commercial or political advertising.

C. This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs; provided, that said signs and installations are approved by the police department.

D. All signs other than official signs, signals, and markings are hereby declared to be a public nuisance and the police department is hereby empowered to remove such signs or cause them to be removed without notice. Subject to the following exceptions, those signs already in place at the time of passage of this ordinance shall be permitted to remain, but there shall be no maintenance or repair of these signs on the part of the persons originally given permission for said installation. When, in the opinion of the police department, the general appearance of any such sign has deteriorated sufficiently or any safety factor makes it necessary to remove said sign, then the police department is empowered to declare the sign a public nuisance and order its removal.

Source: 1952 Rev. Ord. 1119 (1962).

8-0402. Manual and specifications for traffic-control devices.--All traffic-control signs, signals, and devices shall conform to the manual and specifications approved by resolution of the board of city commissioners. All signs and signals required hereunder for particular purpose shall, so far as practicable, be uniform as to type and location throughout the city. All traffic-control devices so erected and not inconsistent with the provisions of state law or this chapter shall be official traffic-control devices. Notwithstanding the foregoing provisions or any other provisions of state law or city ordinance governing traffic-control signs, signals or devices, the use within the city of Fargo of such fold-down school stop signs as have been utilized heretofore, shall be lawful and such stop signs shall be deemed official traffic-control devices.

Sources: 1965 Rev. Ord. 8-0402, 1451 (1972).

8-0403. Obedience to official traffic-control devices.--The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with the provisions of this chapter unless otherwise directed by a traffic or police officer or unless subject to the exceptions granted the driver of an authorized emergency vehicle in this chapter.

Source: 1952 Rev. Ord. 1119 (1962).

8-0404. When traffic signs required for enforcement purposes.--No provision of this chapter or other city ordinance requiring the installation of traffic signs shall be enforced against an alleged violator if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.

Source: 1952 Rev. Ord. 1119 (1962).

8-0405. Traffic-control signals legend.--Whenever traffic is controlled by traffic-control signals exhibiting different colored lights, or colored lighted arrows, successively one at a time or in combination, only the colors green, red, and yellow may be used, except for special pedestrian signals carrying a word or legend, and said lights must indicate and apply to drivers of vehicles and pedestrians as follows:

A. Green indication:

1. Vehicular traffic facing a circular green signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

2. Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by such arrow or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

3. Unless otherwise directed by a pedestrian-control signal as provided for in N.D.C.C. § 39-10-06, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.

B. Steady yellow indication:

1. Vehicular traffic facing a steady yellow signal is thereby warned that the related green movement is being terminated or that a red indication will be exhibited immediately thereafter when vehicular traffic may not enter the intersection.

2. Pedestrians facing a steady yellow signal, unless otherwise directed by a pedestrian-control signal as provided for in N.D.C.C. § 39-10-06, are thereby advised that there is insufficient time to cross the roadway before a red indication is shown and no pedestrian may then start to cross the roadway.

C. Steady red indication:

1. Vehicular traffic facing a steady red signal alone shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then before entering the intersection and shall remain standing until an indication to proceed is shown, except as provided for in subdivision 2.

2. Except when a sign is in a place prohibiting a turn, vehicular traffic facing a steady red signal may cautiously enter the intersection to turn right, or to turn left from a one-way street into a one-way street, after stopping as required by subdivision 1. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within adjacent crosswalk and to other traffic lawfully using the intersection.

3. Unless otherwise directed by a pedestrian-control signal as provided for in N.D.C.C. § 39-10-06, pedestrians facing a steady red signal alone may not enter the roadway.

D. In the event an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this section are applicable, except as to those provisions which by their nature can have no application. Any stop required must be made at a sign or marking on the pavement indicating where the stop must be made, but in the absence of any such sign or marking the stop must be made at the signal.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-0405, 1315 (1969), 1498 (1973), 2739 (1995).

8-0406. Pedestrian-control signals.--Whenever special pedestrian-control signals exhibiting the words "Walk" or "Don't Walk" are in place, such signals shall indicate as follows:

A. "Walk". Pedestrians facing such signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

B. "Wait" or "Don't Walk". No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed his crossing on the walk signal shall proceed to a sidewalk or safety zone while the wait signal is showing.

Source: 1952 Rev. Ord. 1119 (1962).

8-0407. Flashing signals.--

A. Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal it shall require obedience by vehicular traffic as follows:

1. Flashing red (stop signal). When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, or if none, then before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

2. Flashing yellow (caution). When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

B. This section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossings shall be governed as stated elsewhere in this chapter.

Source: 1952 Rev. Ord. 1119 (1962).

8-0408. Traffic engineer designates crosswalks and establishes every safety zone and traffic lane.--The traffic engineer is hereby authorized:

A. To designate and maintain, by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at the intersections where in their opinion there is particular danger to pedestrians crossing the roadway, and at such other places as may be necessary;

B. To establish safety zones of such kind and character and at such places as may be necessary for the protection of pedestrians;

C. To mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary. Where such traffic lanes have been marked, it shall be unlawful for the operator of any vehicle to fail or refuse to keep such vehicle within the boundaries of any such lane except when lawfully passing another vehicle or preparatory to making a lawful turning movement.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0409. Traffic engineer to establish and designate public carrier stops and stands. The traffic engineer is hereby authorized, subject to the approval of the board of city commissioners, to establish bus stops, bus stands, taxicab stands, and stands for other passenger common-carrier motor vehicles on such public streets in such places and in such number so as to be of the greatest benefit and convenience to the public, and every such bus stop, bus stand, taxicab stand, or other stand shall be designated by appropriate signs.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0410. Intersections where stop or yield is required.--The traffic engineer is hereby authorized to determine and designate intersections at other than through streets where particular hazard exists and to determine:

A. Whether vehicles shall stop at one or more entrances to any such intersections, in which event it shall cause a stop sign to be erected at every such place where a stop is required subject to the approval of the board of city commissioners.

B. Whether vehicles shall yield the right-of-way to vehicles on a different street at such intersection, in which event it shall cause to be erected a yield sign at every place where obedience thereto is required.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0411. Interference with official traffic-control signs or devices or railroad signs or signals.--No person shall, without lawful authority, alter or attempt to alter, paste stickers on, deface, injure, knock down, or remove any official traffic-control sign or device or any railroad sign or signal, or any inscription, shield, or insignia thereon, or any other part thereof.

Source: 1952 Rev. Ord. 1119 (1962).

8-0412. Display of unauthorized signs, signals, or markings.--

A. No person shall place, maintain, or display upon or in view of any highway an unauthorized sign, signal, marking, or device which purports to be, or is an imitation of, or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal.

B. No person shall place or maintain, nor shall any public authority permit, upon any street or highway any sign or signal bearing thereon any commercial or political advertising.

C. This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs; provided, that said signs and installations are approved by the police department.

D. All signs other than official signs, signals, and markings are hereby declared to be a public nuisance and the police department is hereby empowered to remove such signs or cause them to be removed without notice. Subject to the following exceptions, those signs already in place at the time of passage of this ordinance shall be permitted to remain, but there shall be no maintenance or repair of these signs on the part of the persons originally given permission for said installation. When, in the opinion of the police department, the general appearance of any such sign has deteriorated sufficiently or any safety factor makes it necessary to remove said sign, then the police department is empowered to declare the sign a public nuisance and order its removal.

Source: 1952 Rev. Ord. 1119 (1962).

ARTICLE 8-05

SPEED REGULATIONS

Section

8-0501 Speed--Care required.
8-0502 Speed limitations.
8-0503 Speed limitations--Emergency vehicles exempt--Liability of exempt driver for reckless driving.
8-0504 Increase or decrease of speed limits.
8-0505 Special speed limitation on bridge.
8-0506 Impeding traffic.
8-0507 Radar evidence in speed violations.

8-0501. Speed--Care required.--Any person driving a vehicle on a highway shall drive the same at a careful and prudent speed not greater than is reasonable and proper, having due regard to the traffic, surface, and width of the highway and of any other conditions that exist. No persons shall drive any vehicle upon a highway at a speed to endanger life, limb, or property of any person.

Source: 1952 Rev. Ord. 1119 (1962).

8-0502. Speed limitations.--Subject to the provisions of § 8-0501 and except in instances where a lower speed is specified in this chapter or by the laws of this state, it shall be prima facie lawful for the driver of a vehicle to drive the same at a speed not exceeding:

A. Twenty-five miles per hour on all streets and avenues of this city except that on through streets and avenues, on the basis of engineering and traffic investigations and where signs are in place giving notice thereof, it shall be prima facie lawful to drive at the speed therein posted;

B. Twenty miles an hour when passing a school; regular school hours when children are present, or when traveling through a designated school zone when a flashing beacon or other device indicates that reduced speed is required.

C. Twenty miles an hour in traversing or going around curves or traversing a grade upon a highway or street when the driver's view is obstructed within a distance of 100 feet along such street in the direction in which he is proceeding;

D. Fifteen miles per hour in all park areas including River Drive when properly posted with 15 miles per hour signs;

E. Twenty miles per hour when passing any public playground, swimming pool, or other similar recreational area during the hours when said facility is in use;

F. Speeds within trailer courts, mobile home parks, or campgrounds, shall be as posted by the operators of such establishments.

G. Fifteen miles per hour in all alleys of this city except as may be otherwise posted.

H. Twenty-five miles per hour in any road construction zone within the city when road construction workers are present, unless otherwise directed by the placement and/or posting of appropriate signs.

In any case when the speed provided for in the foregoing subdivisions shall be unsafe, it shall be unlawful to operate a motor vehicle at such speed. It shall be unlawful for any person to exceed the foregoing speed limitations except as otherwise provided in this chapter.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-0502, 1639 (1975), 1917 (1979), 4076 (2000), 4455 (2005).

8-0503. Speed limitations--Emergency vehicles exempt--Liability of exempt driver for reckless driving.--The speed limitations provided for in this ordinance shall not apply to:

A. Vehicles when operated with due regard for safety under the direction of the police in the chase or apprehension of violators of the law or of persons charged with or suspected of any such violation;

B. Fire department or fire patrol vehicles when traveling in response to a fire alarm; or

C. Public or private ambulances when traveling in emergencies. The exemptions provided for in this section shall not protect the driver of any such vehicle from the consequences of reckless disregard of the safety of others.

Source: 1952 Rev. Ord. 1119 (1962).

8-0504. Increase or decrease of speed limits.--The traffic engineer, subject to the approval of the board of city commissioners, may increase or decrease the speed limits as set by § 8-0502 above, providing signs giving notice of such changes are properly placed and maintained.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0505. Special speed limitation on bridge.--No person shall drive upon any public bridge, causeway, or viaduct at a speed which is greater than the maximum speed which can with safety to such structure be maintained thereon, when such structure is properly sign-posted.

Source: 1952 Rev. Ord. 1119 (1962).

8-0506. Impeding traffic.--Except when necessary for safe operation or to comply with some other provision of this ordinance, no person shall drive a motor vehicle at a rate of speed so slow or in such a manner as to block or impede the normal and reasonable flow of traffic.

Source: 1952 Rev. Ord. 1119 (1962).

8-0507. Radar evidence in speed violations.--The speed of any motor vehicle may be checked by the use of radio microwaves or other electrical device. The results of such checks shall be accepted as prima facie evidence of the speed of such motor vehicle in any court or legal proceeding where the speed of the motor vehicle is at issue. The driver of any such motor vehicle may be arrested without a warrant under this section, provided that the arresting officer is in uniform or displays his badge of authority and provided that such officer has observed the record of the speed of such motor vehicle by the radio microwaves or other electrical device or has received a radio message from the officer who observed the speed of the motor vehicle recorded by the radio microwaves or other electrical device.

Source: 1952 Rev. Ord. 1119 (1962).

ARTICLE 8-06

TURNING MOVEMENTS

Section

8-0601 Required position and method of turning at intersection.
8-0602 Starting, stopping, or turning movements and required signals.
8-0603 Vehicle turning left at intersection.
8-0604 Authority to place restricted turn signs.
8-0605 Obedience to no-turn signs.
8-0606 Limitations on turning around.
8-0607 Turning on curve or crest of grade prohibited.
8-0608 Emerging from alley, driveway, or building--Right-of-way.
8-0609 Authority to place, and obedience to, turning markers.
8-0610 Rotary traffic islands.

8-0601. Required position and method of turning at intersection.--The driver of a vehicle intending to turn at an intersection shall do so as follows:

A. Right turns. Both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway.

B. Left turns on two-way roadways. At any intersection where traffic is permitted to move in both directions on each roadway entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the center line thereof and by passing to the right of such center line where it enters the intersection, and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the center line of the roadway being entered. Whenever practicable the left turn shall be made in that portion of the intersection to the left of the center of the intersection.

C. Left turns on other than two-way roadways. At any intersection where traffic is restricted to one direction on one or more of the roadways, the driver of a vehicle intending to turn left at any such intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle and after entering the intersection shall make the left turn so as to leave the intersection, as nearly as practicable, in the left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered.

Source: 1952 Rev. Ord. 1119 (1962).

8-0602. Starting, stopping, or turning movements and required signals.--

A. A driver shall not start, stop, turn, or merge a vehicle from a direct line until such movement may be made safely, and must give a plainly visual signal. If any pedestrian is affected by such movement, the driver shall also be governed by provisions of article 8-07 of this chapter.

B. A signal of intention to turn right or left shall be given continuously during not less than the last 100 feet traveled by the vehicle before turning. The signal may be given either by an approved mechanical or electrical signal device or by means of hand and arm as follows: Whenever the signal is given by means of hand and

arm, the driver shall indicate his intention to make a left turn by extending the hand and arm horizontally, a right turn by extending the forearm and hand upward, and a stop by extending the arm outward and down; in each case the signal shall be made from and beyond the left side of the vehicle.

C. No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give such signal.

Source: 1952 Rev. Ord. 1119 (1962), 5462 (2025).

8-0603. Vehicle turning left at intersection.--The driver of a vehicle within an intersection who intends to turn to the left shall yield the right-of-way to any vehicle which is approaching from the opposite direction and which is within the intersection or so close thereto as to constitute an immediate hazard. Said driver shall use special care and caution in entering the intersection and completing the left turn.

Source: 1952 Rev. Ord. 1119 (1962).

8-0604. Authority to place restricted turn.--The traffic engineer is hereby authorized to determine those intersections at which drivers of vehicles shall not make right, left, or U-turns and place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs, or the prohibiting signs may be removed when such turns are permitted.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0605. Obedience to no-turn signs.--Whenever authorized signs are erected indicating that no right or left or U-turn is permitted, no driver of a vehicle shall disobey the direction of any such sign.

Source: 1952 Rev. Ord. 1119 (1962).

8-0606. Limitations on turning around.--

A. Unless otherwise allowed or directed by signs placed by the traffic engineer allowing such movement, no vehicle shall be turned around or the direction thereof reversed upon any street or intersection in the business district and the driver shall not at any other intersection so turn a vehicle unless such movement can be made in safety and without interfering with other traffic.

B. Unless otherwise allowed or directed by signs placed by the traffic engineer allowing such movement, no U-turn shall be made at any mid-block location or at any signalized intersection in the city. The police department may, by means of signs, forbid U turns at any street intersection in the city.

Source: 1952 Rev. Ord. 1119 (1962), 2736 (1995).

8-0607. Turning on curve or crest of grade prohibited.--No vehicle shall be turned so as to proceed in the opposite direction upon any curve or upon the approach to, or near the crest of, a grade where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within 500 feet.

Source: 1952 Rev. Ord. 1119 (1962).

8-0608. Emerging from or entering alley, driveway, or building--Right-of-way.--

A. The driver of a vehicle emerging from an alley, driveway, or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway or driveway, and shall yield the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on said roadway.

B. The driver of a vehicle who intends to turn into or emerge from any driveway shall yield the right-of-way to any pedestrian on the sidewalk area extending across the driveway and the pedestrian shall immediately vacate said area and allow the motor vehicle to pass; provided, that no pedestrian shall enter said sidewalk area extending across any alleyway or driveway if a motor vehicle is turning into or approaching said alleyway or driveway.

Source: 1952 Rev. Ord. 1119 (1962), 2170 (1984), 3009 (1999).

8-0609. Authority to place, and obedience to, turning markers.--The traffic engineer may cause markers, buttons, or signs to be placed within or adjacent to intersections and thereby require and direct that a different course from that specified in this article be traveled by vehicles turning at an intersection, and when markers, buttons, or signs are so placed, no driver shall turn a vehicle at an intersection other than as directed and required by such markers, buttons, or signs.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-0610 Rotary traffic islands.--

1. A vehicle passing around a rotary traffic island must be driven only to the right of such island.
2. After a vehicle enters a rotary traffic island, the vehicle may exit from any position within the rotary traffic island without giving a signal of intention to exit the rotary traffic island.

Source: 5416 (2023), 5503 (2025).

ARTICLE 8-07

PEDESTRIANS' RIGHTS AND DUTIES

Section

8-0701 Pedestrians subject to traffic-control signals.
8-0702 Right-of-way of pedestrians at regulated intersection.
8-0703 Right-of-way of pedestrians when intersection is not regulated.
8-0704 Pedestrians to use right half of crosswalks.
8-0705 Blind person's right-of-way.
8-0706 When pedestrian shall yield right-of-way.
8-0707 Prohibited crossing.
8-0708 Obedience of pedestrians to railroad signals.
8-0709 Pedestrians traveling along roadways.
8-0710 Pedestrians soliciting rides or business.
8-0711 Blocking passage of pedestrians.
8-0712 Pedestrians not to obstruct traffic.

8-0713 Right to cross streets safely--Interference with vehicles.
8-0714 Playing on streets prohibited.
8-0715 Drivers to exercise due care.

8-0701. Pedestrians subject to traffic-control signals.--Pedestrians shall be subject to traffic-control signals as heretofore declared in §§ 8-0405 and 8-0406 of this chapter, but at all other places pedestrians shall have the rights and be subject to the restrictions stated in this article.

Source: 1952 Rev. Ord. 1119 (1962).

8-0702. Right-of-way of pedestrians at regulated intersection.--No vehicle shall enter a crosswalk where traffic is regulated by a traffic officer or a system of traffic-control signals until pedestrians who have properly commenced to cross the street have completed their passage across in front of such vehicle, and any vehicle permitted to turn to either right or left shall yield the right-of-way to all pedestrians who are proceeding on crosswalks in a direction authorized by the officer or traffic signal, and failure to yield such right-of-way shall be a violation of this section.

Source: 1952 Rev. Ord. 1119 (1962).

8-0703. Right-of-way of pedestrians when intersection is not regulated.--

A. Where traffic-control signals are not in place or in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to yield to a pedestrian crossing the roadway within a crosswalk when the pedestrian is upon the half of the roadway which the vehicle is traveling, or when the pedestrian is approaching so closely from the opposite half of the roadway as to be in danger.

B. No pedestrian shall suddenly leave a curb or other place of safety and walk or run into the path of a vehicle which is so close that it is impossible for the driver to yield.

C. Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake or pass such stopped vehicle.

Source: 1952 Rev. Ord. 1119 (1962).

8-0704. Pedestrians to use right half of crosswalks.--Pedestrians shall move, whenever practicable, upon the right half of crosswalks.

Source: 1952 Rev. Ord. 1119 (1962).

8-0705. Blind person's right-of-way.--Blind pedestrians, when carrying a white cane or stick held out horizontally in the direction they desire to travel over any crosswalks on any street, avenue, alley, or other public highway in the city, shall have the right-of-way over all other pedestrians and vehicles except police and fire apparatus, except that all blind persons at intersections governed by traffic-control devices shall be subject to the same rules as apply to other pedestrians.

Any driver of a vehicle or operator of a motor-driven vehicle or a pedestrian who is not blind who approaches or comes in contact with a blind person upon the streets of the city or

with any blind person carrying a white cane or stick shall, if conditions of traffic or safety of the blind person shall require, immediately stop and take such precaution, before proceeding, as may be necessary to avoid accident or injury to or be necessary to protect the blind person.

The words "blind pedestrian" or "blind person" as used in this section shall mean persons wholly or partially blind so as to require mechanical, human, or other aid in the use of the streets of the city.

Source: 1952 Rev. Ord. 1119 (1962).

8-0706. When pedestrian shall yield right-of-way.--Every pedestrian crossing a roadway at any point other than within a marked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

Source: 1952 Rev. Ord. 1119 (1962).

8-0707. Prohibited crossing.--

A. Between adjacent intersections at which traffic-control signals are in operation, pedestrians shall not cross at any place except on a crosswalk.

B. No pedestrian shall cross a roadway other than on a crosswalk in any business district in the city.

Source: 1952 Rev. Ord. 1119 (1962).

8-0708. Obedience of pedestrians to railroad signals.--No pedestrians shall pass through, around, over, or under any gate or barrier at a railroad grade crossing or bridge while such gate or barrier is closed or being opened or closed.

Source: 1952 Rev. Ord. 1119 (1962).

8-0709. Pedestrians traveling along roadways.--

A. Where sidewalks are provided it shall be unlawful for any pedestrian to walk, or otherwise travel, along and upon an adjacent roadway.

B. Where sidewalks are not provided, any pedestrian walking or otherwise traveling along and upon a highway shall, when practicable, walk only on the left side of the roadway or its shoulder facing traffic which may approach from the opposite direction.

Source: 1952 Rev. Ord. 1119 (1962), 4456 (2005).

8-0710. Pedestrians soliciting rides or business.--

A. No person shall stand in a roadway for the purpose of soliciting a ride, employment, or business from the occupant of any vehicle.

B. No person shall stand on or in proximity to a street or highway for the purpose of soliciting the watching or guarding of any vehicle while parked or about to be parked on a street or highway.

Source: 1952 Rev. Ord. 1119 (1962).

8-0711. Blocking passage of pedestrians.--Vehicles shall not stop on a crosswalk so as to interfere with the passage of pedestrians.

Source: 1952 Rev. Ord. 1119 (1962).

8-0712. Pedestrians not to obstruct traffic.--Three or more persons shall not stand together or near each other in any street or any footpath, sidewalk, or alley in the city, so as to obstruct the free passage of pedestrians or vehicles; and any person or persons so standing shall move on immediately and cease to obstruct said places after being requested so to do by the chief of police or any police officer of the city.

Source: 1952 Rev. Ord. 1119 (1962).

8-0713. Right to cross streets safely--Interference with vehicles.--The roadbeds of streets are intended primarily for vehicles but pedestrians have the right to cross them in safety, and all drivers of vehicles shall exercise all proper care not to injure pedestrians. Pedestrians when crossing a street shall not carelessly or maliciously interfere with the passing of vehicles.

Source: 1952 Rev. Ord. 1119 (1962).

8-0714. Playing on streets prohibited.--No person shall play upon the streets, avenues, alleys, or public grounds of the city except upon such grounds or streets as may be provided for such purposes, and this section shall apply to both business and residential areas.

Source: 1952 Rev. Ord. 1119 (1962).

8-0715. Drivers to exercise due care.--Notwithstanding the foregoing provisions of this article, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise proper precaution upon observing any child or any confused or incapacitated person upon a roadway.

Source: 1952 Rev. Ord. 1119 (1962).

ARTICLE 8-08

CRASHES

Section

8-0801. Immediate notice of crash.
8-0802. Written report of crash to city.
8-0803. Crashes involving damage to vehicles.
8-0804. Duty to give information and render aid.
8-0805. Duty upon striking fixtures or other property.
8-0806. Officer to report to traffic director.
8-0807. Driver unable to report--Report by occupant or owner.
8-0808. Garages to report and investigation stickers.
8-0809. Reserved.

8-0801. Immediate notice of crash.--The driver of a vehicle involved in a crash in the city resulting in injury to or death of any person or in property damage to the extent set forth in North Dakota Century Code section 39-08-09 shall immediately give notice of such crash to the Fargo police department.

The driver of a vehicle involved in a crash with an undomesticated animal resulting in property damage only to the driver's vehicle is exempt from the notice requirements of this section, regardless of the amount of damage to the driver's vehicle.

Source: 1965 Rev. Ord. 8-0801, 1652 (1975), 2175 (1984), 2382 (1987), 5530 (2025).

8-0802. Written report of crash to city.--The driver of a vehicle involved in any crash resulting in bodily injury to or death of any person or property damage to an apparent extent of the amount as established by North Dakota Century Code section 39-08-09 shall forward a written report of such crash to the police department of this city . The provisions of this section shall not be applicable if the crash was investigated at the scene by a police officer while such driver was present.

Source: 1652 (1975), 2175 (1984), 2315 (1987), 5530 (2025).

8-0803. Crashes involving damage to vehicles.--The driver of any vehicle involved in a crash resulting only in damage to a vehicle which is driven or attended by any person shall immediately stop the vehicle at the scene of such crash or as close as possible and shall remain at or return to the scene of such crash until the driver has fulfilled all of the requirements of §§ 8-0801 and 8-0804. Every stop shall be made without obstructing traffic more than is necessary.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990), 2558 (1991), 5530 (2025).

8-0804. Duty to give information and render aid.--The driver of any vehicle involved in a crash resulting in injury to or the death of any person or damage to any vehicle which is driven or attended by any person shall give the driver's name, address, name of the motor vehicle insurance policy carrier of the driver and owner, and registration number of the vehicle. Upon request, and if available, the driver of any vehicle involved in the crash shall exhibit the driver's, operator's, or chauffeur's license to the person struck or to the driver or occupant of, or person attending, any other vehicle involved in the crash . The driver shall render to any person injured in the crash, reasonable assistance, including the carrying, or the making of arrangements for the carrying, of the person to a physician, surgeon, or hospital for medical or surgical treatment if it is apparent that treatment is necessary or if such carrying is requested by the injured person.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990), 5068 (2016), 5530 (2025).

8-0805. Duty upon striking fixtures or other property.--The driver of any vehicle involved in a crash resulting only in damage to fixtures, unattended vehicles, or other property shall take reasonable steps to locate the owner or person in charge of such property and notify the owner of such fact and of the driver's name, address, and registration number of the vehicle. Upon request, and if available, the driver shall exhibit the operator's or chauffeur's license and shall give immediate notice as required by § 8-0801.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990), 2558 (1991), 2664 (1993), 5530 (2025).

8-0806. Officer to report to traffic director.--Every law enforcement officer who investigates a motor vehicle crash, which is required to be reported as provided in North Dakota Century Code section 39-08-09, shall forward promptly a report, prescribed by the traffic director, to the traffic division.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990), 5530 (2025).

8-0807. Driver unable to report--Report by occupant or owner.--

A. A crash report is not required under this chapter from any person who is physically incapable of making the report during the period of such incapacity.

B. Wherever the driver of a vehicle is physically incapable of giving an immediate report of any crash as required herein, and there was another occupant in the vehicle at the time of the crash capable of doing so, such occupant shall make or cause to be given the report normally required of the driver.

C. Whenever the driver of a vehicle is physically incapable of making a written report of a crash as required herein and such driver is not the owner of the vehicle, then the owner of the vehicle, within five days after learning of the crash, shall make the report normally required of the driver.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990), 5530 (2025).

8-0808. Garages to report and investigation stickers.--The person in charge of any garage or repair shop to which is brought any motor vehicle which shows evidence of having been involved in a reportable crash as provided in North Dakota Century Code section 39-08-09 or of being struck by any bullet, shall report or cause a report to be made to the Fargo Police within twenty-four hours after such motor vehicle is received, and before any repairs are made. The report shall contain the registration number, name and address of the owner, operator, or person in control of such vehicle, description and location of the type of damage to the vehicle, and any missing parts. The report is not required if the vehicle has a sticker on a window issued by a police officer, sheriff, or highway patrol trooper, bearing information to show that the crash in which the vehicle was involved has been investigated. The police officer investigating any reportable crash shall attach a sticker to the window of any damaged vehicle showing that the crash in which such vehicle was involved has been investigated. If the vehicle does bear such a sticker, the garage or repair shop may begin repairs immediately. After repairs have been made and before the vehicle is released, the sticker provided must be removed.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990), 5530 (2025).

8-0809. Reserved.--

Editor's note—Ord. No. 5530, § 2, adopted Oct. 27, 2025, repealed § 8-0809, which pertained to false reports and derived from 1952 Rev. Ord. 1119, adopted 1962; Ord. No. 2515, adopted 1990; Ord. No. 2558, adopted 1991; and Ord. No. 2634, adopted 1992.

ARTICLE 8-09

EQUIPMENT OF VEHICLES--SIZE, WEIGHT, AND HEIGHT AND LOAD RESTRICTIONS

Section

8-0901 Flag or light at end of load.
8-0902 Restrictions as to tire equipment.
8-0903 Horns and warning devices.
8-0904 Brakes on motor vehicles and motorcycles--Requirements.
8-0905 Mirrors.
8-0906 Windshields and windows must be unobstructed--Tinted windows.
8-0907 Windshield wipers required.
8-0908 Mufflers required--Cutouts prohibited.
8-0909 Vehicle to be constructed to prevent sifting or leaking loads.

8-0910 Lamps and lights must conform to state law.
8-0911 When lighted lamps are required.
8-0912 Correction on improperly adjusted lamps.
8-0913 Spot lamps--Limitations on number and use.
8-0914 Drawbar or connections between vehicles--Trailers and towed vehicles.
8-0915 Trailer to be equipped with reflectors or taillights.
8-0916 Flashing lights, prohibition.
8-0917 Red or green light visible from in front of vehicle prohibited--Exception.
8-0918 Misdemeanor to violate provisions governing equipment of vehicles.--Repealed.
8-0919 General regulations as to loading of motor vehicles.
8-0920 Size, weight, and load restrictions of vehicles operated within the city.
8-0920.1 Width, height, and length limitations of vehicles operated within the city.
8-0921 Regulating movement of engines, tractors, and heavy vehicles on pavement.
8-0921.1 Failure to obtain overweight or over-dimensional vehicle permits.
8-0922 Permits for excessive size and weight.
8-0923 Trucks prohibited on certain streets--Truck routes established--Maps and signs required.
8-0923.1 Trucks not to be operated except upon designated truck routes.--Repealed.
8-0923.2 Truck routes established.--Repealed.
8-0923.3 Truck route maps and signs.--Repealed.
8-0924 Restricted use of streets and highways.
8-0925 Peace officers may weigh vehicle and require removal of excess load.
8-0926 Motor-driven cycles and non-motorized traffic-- Restrictions upon use of streets.
8-0927 Load restrictions upon vehicles using certain highways.
8-0928 Modification of motor vehicle suspension systems and steering mechanisms prohibited.
8-0929 Driving of vehicle in unsafe condition unlawful.
8-0930 Law enforcement radio equipment on private automobiles prohibited without permit.
8-0931 Child restraint devices required.

8-0901. Flag or light at end of load.--Whenever the load upon any vehicle extends to the rear four feet or more beyond the bed or body of such vehicle, there shall be displayed at the extreme rear end of the load, at the time specified in § 8-0911, a red light or lantern plainly visible from a distance of at least 600 feet to the sides and rear. The red light or lantern required under this section shall be in addition to the red rear light required upon every vehicle. At any other time there shall be displayed at the extreme rear end of such load a red flag or cloth not less than 12 inches square and so hung that the entire area is visible to the driver of a vehicle approaching from the rear.

Source: 1952 Rev. Ord. 1119 (1962).

8-0902. Restrictions as to tire equipment.--All tire equipment moved on any street or highway within the city shall conform to the restrictions established by North Dakota state law.

Source: 1952 Rev. Ord. 1119 (1962), 2339 (1987).

8-0903. Horns and warning devices.--Every motor vehicle when operated upon a street or highway shall be equipped with a horn in good working order capable of emitting sound

audible under normal conditions from a distance of not less than 200 feet; and it shall be unlawful, except as otherwise provided in this section, for any vehicle to be equipped with, or for any person to use upon a vehicle, any siren or exhaust, compression, or plug whistle or for any person, at any time, to use a horn otherwise than as a reasonable warning, or to make unnecessary or unreasonable loud or harsh sounds by means of a horn or other warning device.

Every police or fire department, and fire patrol vehicle, and every ambulance used for emergency calls shall be equipped with a bell, siren, or exhaust whistle.

Source: 1952 Rev. Ord. 1119 (1962).

8-0904. Brakes on motor vehicles and motorcycles--Requirements.--Every motor vehicle when operated upon a street shall be equipped with brakes adequate to control the movement of, and to stop and to hold, such vehicle, including two separate means of applying the brakes, each of which means shall be effective to apply the brakes to at least two wheels and be so constructed that no part which is liable to failure shall be common to the two means. A motorcycle need be equipped with only one brake. All such brakes shall be maintained in good working order.

Source: 1952 Rev. Ord. 1119 (1962).

8-0905. Mirrors.--No person shall drive on a street or highway a motor vehicle which is so constructed or loaded as to prevent the driver from obtaining a view of the street or highway to the rear by looking backward from the driver's position unless such vehicle is equipped with a mirror so located as to reflect to the driver a view of the street for a distance of at least 200 feet to the rear of such vehicle.

Source: 1952 Rev. Ord. 1119 (1962).

8-0906. Windshields and windows must be unobstructed--Tinted windows.--

A. No individual shall drive upon a street or highway any vehicle with any frost, condensation, sign, poster, lumber, cardboard, metal, or other nontransparent material upon, or in place of, the front windshield, side wings, or side or rear windows of such motor vehicle, other than a certificate or other paper required to be so displayed by law.

B. An individual may not operate a motor vehicle with any object or any material or tinting displayed, affixed, or applied on the front windshield or on any window unless the object, material, or tinting in conjunction with the windshield upon which it is displayed, affixed or applied has a light transmittance of at least seventy percent (70%) or the object, material, or tinting in conjunction with a window other than the windshield upon which it is displayed, affixed, or applied has a light transmittance of at least thirty-five percent (35%). This subsection does not apply to windows behind the operator if the motor vehicle is equipped with outside mirrors on both sides that meet the requirements of North Dakota Cent. Code section 39-21-38.

Source: 1952 Rev. Ord. 1119 (1962), 2431 (1989), 4038 (2000), 4351 (2003), 5515 (2025).

8-0907. Windshield wipers required.--Every windshield on motor vehicles shall be equipped with a device in good working order for cleaning rain, snow, or other moisture from the windshield which shall be so constructed as to be controlled or operated by the driver of the vehicle.

Source: 1952 Rev. Ord. 1119 (1962).

8-0908. Mufflers required--Cutouts prohibited.--No person shall drive a motor vehicle on any street or highway unless such motor vehicle is equipped with a muffler, together with any necessary extensions, pipes or resonators, in good working order and in constant operation to prevent excessive and unusual noise and annoying smoke. Such exhaust system shall operate to blend the exhaust noise into the over-all vehicle noise. No person shall use a ″muffler cutout″, ″bypass″ or similar device on any motor vehicle upon the streets or highways in the city. The exhaust system shall not emit or produce a sharp, popping or cracking sound, nor shall it emit or produce loud or explosive noises.

Source: 1965 Rev. Ord. 8-0908, 1553 (1973).

8-0909. Vehicle to be constructed to prevent sifting or leaking loads.--No vehicle shall be driven or moved on any street or highway unless it is so constructed or loaded as to prevent its contents from dropping, sifting, leaking, or otherwise escaping therefrom, except that sand may be dropped for the purpose of securing traction or water or other substance may be sprinkled on a roadway in cleaning or maintaining the roadway. No person shall operate on any street or highway any vehicle with any load unless the load and any covering thereon is securely fastened so as to prevent said covering or load from becoming loose, detached, or in any manner a hazard to other users of the street or highway.

Source: 1952 Rev. Ord. 1119 (1962).

8-0910. Lamps and lights must conform to state law.--It shall be unlawful for any person to operate any motor vehicle within the city, unless such motor vehicle is properly equipped with lamps and lights as prescribed by the laws of this state.

Source: 1952 Rev. Ord. 1119 (1962).

8-0911. When lighted lamps are required.--Every vehicle upon a street or highway at any time from sunset to sunrise and at any other time when, due to insufficient light or unfavorable atmospheric conditions, persons and vehicles on the street or highway are not clearly discernible at a distance of 500 feet ahead shall display lighted lamps and illuminating devices as hereinafter respectively required for different classes of vehicles, subject to exceptions with respect to parked vehicles.

Source: 1952 Rev. Ord. 1119 (1962), 2339 (1987).

8-0912. Correction on improperly adjusted lamps.--The driver of any motor vehicle equipped with approved head lamps, auxiliary driving lamps, rear lamps, or signal lamps, who is arrested upon the charge that such lamps are improperly adjusted or are equipped with bulbs of a candle power not approved for use therewith, shall be allowed 48 hours within which to bring such lamps into conformance with the requirements of this chapter. It shall be a defense to any such charge that the person arrested produce in court or submit to the police department traffic bureau a certificate showing that within 48 hours after such arrest, such lamps have been made to conform with the requirements of this chapter.

Source: 1952 Rev. Ord. 1119 (1962).

8-0913. Spot lamps--Limitations on number and use.--Any motor vehicle may be equipped with not to exceed two spot lamps. Every lighted spot lamp shall be aimed and used upon approaching another vehicle so that no part of the beam will be directed to the left of the center of the street or highway nor more than 100 feet ahead of the vehicle.

Source: 1952 Rev. Ord. 1119 (1962).

8-0914. Drawbar or connections between vehicles--Trailers and towed vehicles.--The drawbar or other connection between any two vehicles, one of which is towing or drawing the other on a street or highway, shall not exceed 15 feet in length from one vehicle to the other. Whenever such connection consists of a chain, rope, or cable, there shall be displayed upon such connection a red flag or other signal or cloth not less than 12 inches both in length and width.

Source: 1952 Rev. Ord. 1119 (1962).

8-0915. Trailer to be equipped with reflectors or taillights.--No trailer or semi-trailer shall be transported or operated in the city unless it is equipped with approved reflectors not less than three inches in diameter or with taillights.

Source: 1952 Rev. Ord. 1119 (1962).

8-0916. Flashing lights, prohibition.--Flashing lights are prohibited except on an authorized emergency vehicle, school bus, snow-removal equipment, or on any vehicle as a means of indicating a right or left turn, or as a means of indicating the presence of a vehicular traffic hazard requiring unusual care in approaching, overtaking, or passing.

Source: 1952 Rev. Ord. 1119 (1962).

8-0917. Red or green light visible from in front of vehicle prohibited--Exception.--No person shall drive or move upon any street or highway any vehicle with any red or green light thereon visible from directly in front thereof. This section shall not apply to police, fire department, ambulance, other authorized emergency vehicles or school buses equipped as provided by North Dakota state law.

Source: 1952 Rev. Ord. 1119 (1962), 2725 (1995).

8-0918. Misdemeanor to violate provisions governing equipment of vehicles.--Repealed by Ord. No. 2374 (1987).

8-0919. General regulations as to loading of motor vehicles.--No person shall:

A. Ride or stand upon the running board or exterior of any moving vehicle. This provision shall not apply to police officers or firemen or other city employees while in the performance of their duties.

B. Drive a vehicle containing more passengers than the seating capacity of such vehicle.

C. Allow any part of the body to protrude beyond the limits of the vehicle while the vehicle is in motion except to signal change of direction as provided in this chapter.

D. Drive a vehicle loaded with iron or other material likely to produce an annoying sound without using proper precautions to minimize such annoying sound.

Source: 1952 Rev. Ord. 1119 (1962).

8-0920. Size, weight, and load restrictions of vehicles operated within the city.--

A. No person, partnership, or corporation shall drive, operate or park, or permit to be driven, operated or parked through any agent or employee on any street or alley within the city any vehicle in violation of the restrictions on size, weight, and load established by North Dakota Century Code Chapter 39-12.

B. No person, partnership or corporation shall drive, operate or park, or permit to be driven, operated or parked through any agent or employee on any street or alley within the city any vehicle the gross weight of which exceeds that determined by the bridge length formula calculation of:

$$W = \frac{LN}{500(N-1+12N+36)}$$

where W equals the maximum weight in pounds of any group of two or more axels; L equals the distance in feet between the extremes of any group of two or more consecutive axels; and N equals the number of axels in group under consideration.

C. No person, partnership or corporation shall drive, operate or park, or permit to be driven, operated or parked through any agent or employee on any street or alley in the city of Fargo which is not designated as a city truck route pursuant to § 8-0923 any vehicle the gross weight of which exceeds 80,000 pounds unless otherwise posted.

D. No person, partnership or corporation shall drive, operate or park, or permit to be driven, operated or parked through any agent or employee on any street or alley in the city of Fargo which is designated as a city truck route pursuant to § 8-0923 any vehicle the gross weight of which exceeds 105,500 pounds unless otherwise posted.

E. All maximum gross weight limitations in subsections C and D are subject to the bridge length formula calculation in subsection B. The maximum gross vehicle weight limitation is either the maximum allowed as per designation of the roadway or the bridge length formula calculation, whichever is the least amount of weight allowed.

Source: 1952 Rev. Ord. 1119 (1962), 2339 (1987), 5089 (2017).

8-0920.1. Width, height, and length limitations of vehicles operated within the city.--

A. Vehicles driven, operated or parked on a street or alley in the city of Fargo may not exceed a total outside width, including load thereon, of eight feet six inches (8′6″). This limitation does not apply to:

1. Construction and building contractors′ equipment and vehicles used to move such equipment which does not exceed ten feet (10′) in width when being moved by contractors or resident carriers.

2. Implements of husbandry being moved by farmers, ranchers, dealers, or manufactures between sunrise and sunset which do not exceed a total outside width, including the load thereon, of fourteen feet six inches (14′6″). Any implement of husbandry that exceeds fourteen feet six inches (14′6″) in width will require a city of Fargo overdimensional permit to move or operate within the city. Permits must be in the possession prior to starting any movement. The permit will contain such other restrictions as deemed necessary by the permit issuing official. The width requirements of this subsection do not apply to implements of husbandry between fourteen feet six inches (14′6″) and twenty feet (20′)

in width on multi-lane roads and implements of husbandry that exceed fourteen feet six inches (14′6″) on a single lane roads but do not cross the center line or travel on the unpaved section of the roadway.

B. Vehicles driven or operated on a street or alley in the city of Fargo may not exceed a height of fourteen feet (14′), whether loaded or unloaded. The maximum legal height limitation of fourteen feet (14′) applies unless routes of travel include structures such as bridges, underpasses or other structures are less than fourteen feet (14′) in height. This limitation does not apply to:

1. Implements of husbandry being moved by farmers, ranchers, dealers or manufactures between sunrise and sunset which do not exceed a total height of fifteen feet six inches (15′6″) high. Any implement of husbandry that exceeds fifteen feet six inches (15′6″) in height will require a city of Fargo overdimensional permit to move or operate within the city. Permits must be in the possession prior to starting any movement. The permit will contain such other restrictions as deemed necessary by the permit issuing official.

C. Vehicles driven or operated on a street or alley in the city of Fargo may not exceed the following length limitations:

1. A single unit vehicle with two or more axels, including the load thereon, shall not exceed a length of fifty feet (50′).
2. A combination of two, three or four units, including the load thereon, shall not exceed a length of seventy-five feet (75′) on a non-designated streets. Three and four unit combinations are subject to safety rules adopted by the highway commissioner. All streets in the city of Fargo are non-designated streets except those streets designated by the city of Fargo as city truck routes pursuant to § 8-0923.
3. A combination of two, three or four units, including the load thereon, may exceed seventy-five feet (75′) in length but may not exceed one-hundred and ten feet (110′) in length when traveling on designated city truck routes.
4. The length of a trailer or semi-trailer, including the load thereon, may not exceed fifty-three feet (53′), except that trailers and semitrailers titled and registered in North Dakota before July 1, 1987, and towed vehicles may not exceed a length of sixty feet (60′).
5. Convertor dollies that are used to convert semi-trailers to trailers are considered trailers if they meet all lighting requirements and are equipped with brakes and safety chains. No more than one converter dolly can be towed behind a truck-tractor, semi-trailer and trailer; and no more than two converter dollies can be towed behind a truck-tractor and semi-trailer.

Source: 5089 (2017).

8-0921. Regulating movement of engines, tractors, and heavy vehicles on pavement. No person, firm, or corporation shall move, park, or cause to be moved or parked, over or on the paved streets, sidewalks, crosswalks, culverts, bridges, and viaducts within the city any motor vehicle, tractor, trailer, wagon, truck or other commercial vehicle, or other vehicle,

object, or thing which will tend to injure the paving, sidewalks, crosswalks, culverts, bridges, or viaducts over which the same are transported or which exceeds the weight or weights as established pursuant to the preceding § 8-0920 or as established in any ordinance or resolution established under § 8-0924, or any vehicle to the wheels of which are attached spurs, bars, angle irons, or cleats which will tend to mar or deface the paving, sidewalk, crosswalks, culverts, bridges, or viaducts, except as authorized by a permit granted under § 8-0922. Any person, firm, or corporation moving, parking or causing to be moved or parked, any such engines, tractors, trailers, or vehicles shall pay or cause to be paid to said city, upon demand, any and all damages done to the paving, sidewalks, crosswalks, culverts, bridges, and viaducts.

Source: 1952 Rev. Ord. 1119 (1962), 2788 (1996), 5089 (2017).

8-0921.1. Failure to obtain overweight or over-dimensional vehicle permits.--No person, firm, or corporation shall move, park, or caused to be moved or parked, over or on the paved streets, sidewalks, crosswalks, culverts, bridges, and viaducts within the city any vehicle, motor vehicle, tractor, trailer, wagon, truck or other commercial vehicle, or such vehicle as may be required to obtain a permit pursuant to pursuant to § 8-0921, § 8-0922, or both said sections, without obtaining said permit.

Source: 5089 (2017).

8-0922. Permits for excessive size and weight.--The city engineer may, under such policies as the city may establish, upon application in writing and good cause being shown therefore, issue a special permit in writing authorizing the applicant to operate or move a vehicle of a size and weight exceeding the maximum specified in this chapter upon any street or highway under the jurisdiction of and for the maintenance of which the city is responsible. Every such permit shall be issued for a single trip and may designate the route to be traversed and contain other restrictions or conditions deemed necessary by the city engineer. Every such permit shall be carried in the vehicle to which it refers and shall be open to inspection by any peace officer or other agent of the city, and it shall be unlawful for any person to violate any of the terms and conditions of such special permit. The fee for such special permit shall be established by resolution of the board of city commissioners.

Source: 1952 Rev. Ord. 1119 (1962), 2789 (1996).

8-0923. Trucks prohibited on certain streets--Truck routes established--Maps and signs required.--

A. No truck or commercial vehicle exceeding five tons registered gross weight shall be operated in the city of Fargo except upon truck routes designated as hereinafter provided in subsection (B) of this section; provided, that this ordinance shall not prohibit:
   1. Such vehicles from operating upon other city streets when delivering or picking up materials or merchandise, provided entrance or exit to or from such street is made at the nearest intersection; through streets as established elsewhere in the Fargo city ordinances shall be considered as secondary truck routes and must be used in preference to other streets whenever possible.
   2. The operation of trucks owned or operated by the city of Fargo.
   3. The operation of Class A emergency vehicles, as defined in the traffic ordinances of the city of Fargo, upon any street in the city.

4. Trucks making more than one delivery on any one trip may take the most direct route between one delivery and the next.

B. Truck routes shall be established by resolution of the board of city commissioners, after notice and hearing. The notice shall be by one publication in the official newspaper of the city at least 15 days prior to the date of the hearing. The truck routes, as established by the board of city commissioners, shall be stated in the resolution and on an official map which shall be kept and maintained in the office of the city auditor and shall be available for public inspection.

C. On each street or avenue designated as a truck route in accordance with subsection (B) above, such street or avenue may, but need not be, posted with appropriate signs.

Source: 2683 (1994), 2790 (1996).

8-0923.1. Trucks not to be operated except upon designated truck routes.
Source: 1226 (1966), repealed by Ord. No. 2683 (1994).

8-0923.2. Truck routes.--
Source: 1226 (1966), 1275 (1968), 2339 (1987), repealed by Ord. No. 2683 (1994).

8-0923.3. Truck route maps and signs.--
Source: 1226 (1966), 2339 (1987), repealed by Ord. No. 2683 (1994).

8-0924. Restricted use of streets and highways.--The board of city commissioners, by resolution, may prohibit the operation of vehicles or impose restrictions as to the weight of vehicles upon any street or highway under their jurisdiction or for the maintenance of which they are responsible whenever any of said streets or highways, by reason of deterioration, rain, snow, or other climatic conditions, will be seriously damaged or destroyed unless the use of vehicles thereon is prohibited or the permissible weights thereof reduced. The board when enacting any such resolution shall erect, or cause to be erected and maintained, signs designating the provisions of the resolution at each end of that portion of any street or highway affected thereby, and the resolution shall not be effective until or unless such signs are erected and maintained. The board may also, by resolution, prohibit the operation of trucks or other commercial vehicles, or impose limitations as to the weight thereof, on designated streets and highways, which prohibitions and limitations shall be designated by appropriate signs placed on such streets or highways.

Source: 1952 Rev. Ord. 1119 (1962), 2791 (1996).

8-0925. Peace officers or other agents may weigh vehicle and require removal of excess load.--Any peace officer, designated agent of city, or city-designated personnel, having reason to believe that the weight of a vehicle and load is unlawful is authorized to weigh the same, either by means of portable or stationary scales, and may require that such vehicle be driven to the nearest scales. The peace officer, or other designated individual as aforesaid, may then require the driver to unload immediately such portion of the load as may be necessary to decrease the gross weight of such vehicle to the maximum allowed therefor.

If the driver, operator or owner of the vehicle and load fails or refuses to drive the vehicle to the nearest scale, the peace officer, or other designated individual as aforesaid, may

retain and use the services of individuals capable of moving the vehicle and load to the nearest scale and require that the driver, operator or owner of the vehicle compensate the city for such services.

Source: 1952 Rev. Ord. 1119 (1962), 2792 (1996), 5089 (2017).

8-0925.1. Impounding overweight vehicle.--Any vehicle found to have been located, parked, moved or used upon any highway, street, alley or other public way within the city at a weight exceeding the limitations as specified in any ordinance or resolution established under § 8-0924, or as limited by § 8-0920, may be impounded by any peace officer, designated agent of city, or city-designated personnel and taken to a warehouse, garage or other facility for storage.

Source: 2793 (1996), 5089 (2017).

8-0925.2. Impounding receipt--Information.--A receipt must be given by the peace officer or other person impounding the vehicle, to the driver or person in charge of such vehicle. Such receipt must identify as nearly as possible the owner of the vehicle and cargo, the driver or person in charge of such vehicle, the cargo, the place vehicle is to be stored during impoundment, the weight of the loaded vehicle and the name and address of the impounding officer. Information as to the owner of the vehicle and cargo must be obtained from the driver or person in charge of the vehicle.

Source: 2793 (1996).

8-0925.3. Impounding notice--Perishables.--The impounding officer shall notify the owner or owners, if they can be found, by wire or telephone, of the impoundment and the charges involved. If the cargo consists of perishables, the impounding officer shall use reasonable diligence in assisting the operator or owner in finding suitable storage facilities for such perishables, but all risk of loss or damage to such perishables must be upon the owner, operator, or lessee of such vehicle.

Source: 2793 (1996).

8-0925.4. Civil complaint.--The city attorney of the city shall, if no settlement is made under the next succeeding section, immediately prepare and file a civil complaint on behalf of the city for the purpose of recovering charges for the extraordinary use of the highways, streets, alleys or other public roadways of the city.

Source: 2793 (1996).

8-0925.5. Voluntary settlement of extraordinary road use fee charges.--Before the complaint is issued pursuant to the preceding section, the owner, or the owner′s driver or agent, may voluntarily pay the amount of the extraordinary road use fee, or may provide proof of surety coverage to ensure payment of the extraordinary road use fee, provided under § 8-0925.7, plus any towing or storage costs. Any settlement, whether made by the owner, or the owner′s driver or agent, must be presumed to be of a voluntary nature. A peace officer or a peace officer′s designee is authorized to receive the settlement payment on behalf of the city. The extraordinary road use fees must be remitted to the city auditor′s office.

Source: 2793 (1996).

8-0925.6 Mailing complaint.--A copy of the complaint must be served upon the driver or person in charge of the vehicle and a copy must be sent by registered or certified mail to the owner of the vehicle, if the address of such owner is known.

Source: 2793 (1996).

8-0925.7 Cash bond--Holding.--Unless a cash bond is furnished in an amount sufficient to cover the charge for extraordinary use of highways, streets, alleys or other public roadway, as provided in the next succeeding section, together with the costs which may be collectible under any subsequent settlement made pursuant to this article, said vehicle must be held until a trial of the case can be held before the district court.

Source: 2793 (1996).

8-0925.8 Trial--Charges.--At the trial of the action, the court shall hear testimony concerning the facts and if it is found that such vehicle or vehicles were located, parked, moved, or used upon the highways, streets, alleys or other public roadways of the city at a weight in excess of the limitations imposed under the provisions of this article, charges for the extraordinary use of the highways, streets, alleys, or roadways must be assessed as follows:

1. The storage charges and costs of the action must be assessed; and
2. An additional charge must be assessed as follows:

   1 to 1,000 pounds [45 to 453.59 kilograms] of excess weight = $20
   1,001 to 2,000 pounds [454.05 to 907.18 kilograms] of excess weight = $40
   2,001 to 3,000 pounds [907.64 to 1360.78 kilograms] of excess weight = $60
   3,001 to 4,000 pounds [1361.23 to 1814.37 kilograms] of excess weight = $140
   4,001 to 5,000 pounds [1814.82 to 2267.96 kilograms] of excess weight = $220
   5,001 to 6,000 pounds [2268.41 to 2721.55 kilograms] of excess weight = $305
   6,001 to 7,000 pounds [2722.01 to 3175.14 kilograms] of excess weight = $380
   7,001 to 8,000 pounds [3175.60 to 3628.74 kilograms] of excess weight = $495
   8,001 to 9,000 pounds [3629.19 to 4082.33 kilograms] of excess weight = $575
   9,001 to 10,000 pounds [4082.78 to 4535.92 kilograms] of excess weight = $655
   10,001 to 11,000 pounds [4536.37 to 4989.51 kilograms] of excess weight = $1,100
   11,001 to 12,000 pounds [4989.97 to 5443.10 kilograms] of excess weight = $1,200
   12,001 to 13,000 pounds [5443.56 to 5896.70 kilograms] of excess weight = $1,300
   13,001 to 14,000 pounds [5897.15 to 6350.29 kilograms] of excess weight = $1,680
   14,001 to 15,000 pounds [6350.74 to 6803.88 kilograms] of excess weight = $1,800
   15,001 to 16,000 pounds [6804.33 to 7257.47 kilograms] of excess weight = $1,920
   16,001 to 17,000 pounds [7257.93 to 7711.06 kilograms] of excess weight = $2,550
   17,001 to 18,000 pounds [7711.52 to 8164.66 kilograms] of excess weight = $2,700
   18,001 to 19,000 pounds [8165.11 to 8618.25 kilograms] of excess weight = $2,850
   19,001 to 20,000 pounds [8618.70 to 9071.84 kilograms] of excess weight = $3,000
   20,001 to 21,000 pounds [9072.29 to 9525.43 kilograms] of excess weight = $4,200
   21,001 to 22,000 pounds [9525.89 to 9979.02 kilograms] of excess weight = $4,400
   22,001 to 23,000 pounds [9979.48 to 10432.62 kilograms] of excess weight = $4,600
   23,001 to 24,000 pounds [10433.07 to 10886.21 kilograms] of excess weight = $4,800
   24,001 to 25,000 pounds [10886.66 to 11339.80 kilograms] of excess weight = $5,000
   25,001 to 26,000 pounds [11340.25 to 11793.40 kilograms] of excess weight = $5,200
   26,001 to 27,000 pounds [11793.86 to 12246.99 kilograms] of excess weight = $5,400
   27,001 to 28,000 pounds [12247.45 to 12700.59 kilograms] of excess weight = $5,600
   28,001 to 29,000 pounds [12701.04 to 13154.18 kilograms] of excess weight = $5,800
   29,001 to 30,000 pounds [13154.63 to 13607.77 kilograms] of excess weight = $6,000

   An additional charge of $200 for every 1,000-pound [453.59 kilogram] increase over 30,000 pounds [13607.77 kilograms] consistent with the above formula.

Source: 2793 (1996), 4820 (2012), 5089 (2017).

8-0925.9. Payment of charges--Confiscation--Sale.--If the charges and costs as provided in the preceding section are not paid immediately from a cash bond previously posted or other cash payment, the judge shall order the vehicle confiscated and sold by the sheriff of the county at a public sale to the highest bidder and the proceeds applied to the payment of the charges and costs assessed under the provisions of this article.

Source: 2793 (1996).

8-0925.10. Payment--Effect.--The payment of charges may not be construed as a payment for the future use of highways, streets, alleys and other public roadways of the city by vehicles carrying excess loads.

Source: 2793 (1996).

8-0925.11. Proceeds of sale.--The proceeds of sale must be applied first to the payment of the costs of the proceeding, including any allowable attorney's and witness fees and costs, and next to the payment of the charges assessed. Such charges must be remitted to the city

auditor to be credited to the city general fund. The balance of the proceeds of any sale after the payment of costs and charges must be paid over by the sheriff to the person entitled thereto as determined by the court, or must be deposited with the clerk of the court for such payment.

Source: 2793 (1996).

8-0926. Motor-driven cycles and nonmotorized traffic--Restrictions upon use of streets. The traffic engineer is hereby authorized, subject to a resolution of approval by the board of city commissioners, to determine and designate those heavily traveled streets upon which shall be prohibited the use of motor-driven cycles or bicycles, horse-drawn vehicles or other nonmotorized traffic and to erect appropriate signs giving notice thereof. Disobedience of any restriction in any sign so posted is prohibited.

Source: 1952 Rev. Ord. 1119 (1962), 2339 (1987).

8-0927. Load restrictions upon vehicles using certain highways.--When signs are erected giving notice thereof, no person shall operate any vehicle with a gross weight in excess of the amounts specified on said sign at any time upon any of the streets or parts of streets so posted.

Source: 1952 Rev. Ord. 1119 (1962).

8-0928. Modification of motor vehicle suspension systems and steering mechanisms prohibited.--Except as otherwise permitted by North Dakota state law, it shall be unlawful for any person to operate a motor vehicle of the type required to be registered under the laws of this state with an unloaded weight of 6,000 pounds or less upon the public highways with either the rear or front end suspension system or steering mechanism altered or changed from the manufacturer's original design, except that nothing contained herein shall prevent the installation of manufacturer's heavy duty equipment to include shock absorbers or overload springs nor shall anything contained herein prevent a person from operating a motor vehicle upon a public highway with normal wear of the aforementioned systems and mechanisms unless the normal wear affects the control of the vehicle through the steering mechanism.

Source: 1952 Rev. Ord. 1185 (1964), 2339 (1987).

8-0929. Driving of vehicle in unsafe condition unlawful.--It is a misdemeanor for any person to drive or move, or for the owner to cause or knowingly permit to be driven or moved, upon any street or highway any vehicle or combination of vehicles which is in such an unsafe condition as to endanger any person or which does not contain equipment in proper condition or adjustment as required by this chapter or by state law or for any person to do any act forbidden or fail to perform any act required by this chapter or by state law. Nothing contained in this chapter shall be construed to prohibit the use of additional parts or accessories on any vehicle not inconsistent with the provisions of this chapter. The provisions of this chapter with respect to equipment on vehicles shall not apply to implements of husbandry, road machinery, road rollers, or farm tractors except as herein made applicable.

Source: 1952 Rev. Ord. 1185 (1964).

8-0930. Law enforcement radio equipment on private vehicles prohibited without authorization.--No person shall equip or use in an automobile or any other motor vehicle a radio equipped for transmitting and/or receiving on any frequency assigned to the city of Fargo for law enforcement or police purposes by the Federal Communications Commission without first securing written authorization to do so from the chief of police of the city of

Fargo. This section shall not apply to receivers which are a part of a two-way radio system, employees of a news media organization, or persons who hold a valid Federal Communications Commission license.

Source: 1965 Rev. Ord. 8-0930, 1859 (1978), 2588 (1991).

8-0931. Child restraint devices required.--If a child, under seven years of age, is present in any motor vehicle, that motor vehicle must be equipped with at least one child restraint system for each such child. However, a child under the age of seven who is at least fifty-seven inches [1.45 meters] tall and who weighs at least eighty pounds [36.28 kilograms] is not required to use a child restraint system. The child restraint system must at least meet the standards adopted by the United States Department of Transportation for those systems (49 CFR 571.213). While the motor vehicle is in motion, each such child must be properly secured in the child restraint system in accordance with the manufacturer's instructions. A child weighing more than forty pounds [18.14 kilograms] may be restrained by a lap belt if the vehicle is not equipped with lap and shoulder belts or if all lap and shoulder belts are in use by other occupants. While the motor vehicle is moving, each child of seven through seventeen years of age who is in the motor vehicle must be in an approved child restraint system or buckled in a seat belt. Use of child restraint systems and seat belts is not required in motor vehicles that were not equipped with seat belts when manufactured. If a child is being transported in an emergency situation, this section does not apply. Violation of this section is not, in itself, evidence of negligence. The fact of a violation of this section is not admissible in any proceeding other than one charging the violation.

Source: 2154 (1984), 2375 (1987), 2592 (1991), 3063 (1999), 4490 (2005).

ARTICLE 8-10

PARKING REGULATIONS

Section

8-1001 Parallel parking and diagonal parking.
8-1002 Obedience to angle-parking signs or markings.
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8-1004 Parking of trucks, trailers and semi-trailers regulated.
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8-1019 Parking prohibited during certain hours on certain streets.
8-1020 Parking prohibited on sidewalks or boulevards.
8-1021 Parking signs required.
8-1022 Application of article.
8-1023 Regulations not exclusive.
8-1024 Abandoned vehicles.
8-1025 Reserved.
8-1026 Designated passenger loading areas.

8-1001. Parallel parking and diagonal parking.--The owner, driver, or person operating or in charge of any vehicle shall not permit the same to stand or be parked upon any street where there are adjacent curbs unless such vehicle is parallel with the street and the right-hand wheels are not more than 18 inches from the right-hand curb or street line and the vehicle is so placed that the front and rear wheels are each at least 3 feet from any other vehicle. In all cases vehicles must be so parked as to economize parking space and be so placed as to form, where possible, continuous lines. The engineering department may limit the parking area by signs, markers, paint, or other devices and no vehicle shall be parked wholly or partly outside of the indicated and permitted parking area; provided, that all vehicles shall be parked diagonally to the curb of any street or avenue within said business district if said street or avenue is posted or marked by the engineering department for diagonal parking.

Where parking is permitted on a one-way street the above regulation shall apply except that vehicles parking on the left side of the one-way street shall park parallel with the street and with the wheels on the left side of the automobile not more than 18 inches from the left curb or street line.

Source: 1952 Rev. Ord. 1119 (1962), 3086 (1999).

8-1002. Obedience to angle-parking signs or markings.--On those streets which have been signed or marked by the engineering department for angle parking, no person shall park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by such signs or markings.

Source: 1952 Rev. Ord. 1119 (1962), 3086 (1999).

8-1003. Stopping, standing, or parking prohibited in specified places.--No person shall stop, stand, or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with the law or the directions of a police officer or traffic-control device, in any of the following places:

A. On a sidewalk.
B. Within an intersection.
C. In front of a public or private driveway, including parking so as to encroach on the radius of said driveway.
D. Within 10 feet of that portion of a curb which is directly in front of an adjacent fire hydrant.

E. On a crosswalk.

F. Within 10 feet of a crosswalk at an intersection.

G. Within 15 feet upon the approach to any flashing beacon, stop sign, or traffic-control signal located at the side of a roadway.

H. Between a safety zone and the adjacent curb or within 15 feet of points on the curb immediately opposite the ends of a safety zone, unless the state highway department or local authority indicates a different length by signs or markings.

I. Within 15 feet of the nearest rail of a railroad crossing.

J. Within 20 feet of the driveway entrance to any fire station, and on the side of a street opposite the entrance to any fire station, within 75 feet of said entrance when properly signposted.

K. In any space which is designated and appropriately marked, in accordance with N.D.C.C. 39-01-15(9), for use by mobility-impaired persons; provided, that this prohibition shall not apply to any person whose automobile displays the distinguishing certificate or insignia which is issued by the state of North Dakota in accordance with § 39-01-15, N.D.C.C. The provisions of this ordinance shall extend to all such marked parking spaces which are generally open to the public, whether public or privately owned.

(1) Whenever any public or private entity designates parking spaces for use by motor vehicles operated or used by mobility-impaired persons, those reserved spaces must comply with the requirements set forth in N.D.C.C. 39-01-15(9) and any entity which violates said requirements is guilty of an infraction if the entity does not comply with said requirements within sixty days after receiving official notification of the violation.

L. Alongside or opposite any street excavation or obstruction when stopping, standing, or parking would obstruct traffic.

M. On the roadway side of any vehicle stopped or parked at the edge or curb of a street.

N. Upon any bridge or other elevated structure on a street or highway or within a street or highway tunnel.

O. At any place where official signs prohibit stopping.

P. In any designated parking lot on that portion of the campus of North Dakota State University which is located within the corporate limits of the city of Fargo, unless the parking permit which is required by North Dakota State University regulations is prominently displayed on such vehicle in accordance with university regulations.

Q. Any lane designated a fire lane by the fire chief.

R. In front of or in any alley.

S. In the front yard of any property within the city of Fargo (except as otherwise allowed by § 20-0701 of the Fargo Municipal Code). The penalty for violation of this subsection shall be in addition to the remedy provided in § 11-0402 of the Fargo Municipal Code.

T. In or obstructing a designated electric vehicle parking stall consistent with the manual of uniform traffic control devices authorized under North Dakota Century Code section 39-13-06, and indicate:

(1) Use of the reserved space is for charging electric vehicles only; and

(2) Unauthorized use of the space is a nonmoving violation for which a fee of fifty dollars must be imposed.

(a) An individual may not park or leave standing a vehicle in a stall or space designated for charging a vehicle, unless the individual's vehicle is connected for electric charging purposes.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1003, 1750 (1976), 1780 (1977), 1825 (1977), 2153 (1984), 2383 (1987), 2428 (1988), 2525 (1990), 4073 (2000), 4303 (2003), 4765 (2010), 4927 (2014), 5516 (2025).

8-1004. Parking of trucks, trailers and semi-trailers regulated.--No truck, trailer, semi-trailer, or commercial vehicle shall be parked on any street, avenue, boulevard, or alley in any residential district of the city for a period longer than one hour; provided, however, that such vehicles loading or unloading cargo may be parked on the streets, avenues, boulevards or alleys long enough to complete their loading or unloading; and provided further, that such restrictions shall not apply to any truck in use on any repair, maintenance, or construction project in progress on any such street, avenue, boulevard or alley. Except as otherwise allowed by permit issued by the city engineer's office, no case shall any semi-truck trailer be parked on any street, avenue, boulevard or alley in any district of the city while said semi-truck trailer is disconnected from the tractor; nor shall any truck, trailer, semi-trailer, or other commercial vehicle be parked on any street, avenue, boulevard or alley in any district of the city between the hours of 10:00 p.m. and 6:00 a.m. "Commercial vehicle" as designated herein shall not include vehicles rated as less than one-ton.

Source: 1424 (1972), 1667 (1975), 1825 (1977), 2284 (1986), 2823 (1997).

8-1004.1. Parking of construction vehicles regulated.--Notwithstanding the provisions of § 8-1004, whenever off-street parking is not available or practicable, parking of construction vehicles as herein defined is permitted for the term and under the conditions set forth hereinafter. "Construction vehicles" are defined as vehicles or trailers being used in performing construction, remodeling, siding or the like. Such vehicles may include pickups, trucks, trailers detached from the towing vehicle provided the trailers do not exceed 30 feet in length, and vans. Such vehicles do not include, however, truck tractor or semi-trailers, but may include bumper-hitched or smaller fifth-wheel construction-type trailers not exceeding 30 feet in length. The following conditions apply to any parking under this section:

A. Parking is not allowed in "no parking" zones or any other prohibited area as set forth in city ordinance.

B. Vehicles and/or trailers must be properly licensed as required by the state of North Dakota.

C. A trailer disconnected from the towing vehicle must have a properly sized pad placed under the dolly or jack to avoid damage to the street.

D. Street parking will be allowed only if appropriate measures are taken to insure public safety including, but not limited to, diamond grade "conspicuity tape" around the entire perimeter of the trailer and/or equipment. Cones shall be used in advance of any trailer or equipment when work is in progress.

E. Parking of a vehicle or trailer shall not be allowed directly across the street from another parked vehicle or trailer.

F. There shall be no parking allowed which would be in violation of any other ordinance of the city of Fargo concerning parking regulations.

G. The owner's name, company name (if any), and phone number shall be legibly indicated on any trailer or construction vehicle.

H. Twenty-eight inch cones or barrels with high-intensity sheeting around the entire perimeter of the trailer and/or equipment may be substituted for the measures prescribed in subsection (D) above.

If the construction activity in which the vehicles are involved will take in excess of five days, however, a permit as referenced in § 8-1004 will be required.

Source: 1965 Rev. Ord. 8-1004.1, 1667 (1975), 2823 (1997).

8-1004.2 Impounding vehicles.--The police department of the city or any of the members thereof may impound any truck, trailer, semi-trailer, delivery car, service car, or other commercial vehicle parked in violation of this ordinance and may retain possession of the same until all fines and fees have been paid and until any sentence or order of the court has been completed and/or obeyed.

Source: 2823 (1997).

8-1005. Loading and unloading regulations for trucks.--A vehicle may be allowed to double-park for the purpose of loading or discharging passengers or for unloading freight when there is no alley for such purpose and no other parking space available and the freight to be unloaded is of a heavy or bulky nature, but only for such length of time as is absolutely necessary for such loading and unloading, except that no merchandise or freight pickups or deliveries whatsoever shall be made from double-parked vehicles between the hours of 4:00 p.m. and 6:00 p.m. on any day except Sundays and legal holidays and no vehicle shall double-park for such purposes between such hours.

It shall be unlawful for any person, firm or corporation to load or unload freight or merchandise from a semi-trailer between the hours of 7:00 a.m. and 9:00 a.m., or between the hours of 4:00 p.m. or 6:00 p.m. All loading or unloading of freight or merchandise from a semi-trailer shall be prohibited on all principal and minor arterial roadways.

Any person owning, driving, operating, or having under his control any vehicle shall not permit the same to stand or be parked in any alley except while loading or unloading freight or merchandise. If any vehicle is left parked or standing in any alley during such loading or unloading operations, it shall be located so that it does not block the alley and as close to the edge of the alley as possible. If the alley is so narrow that it will be blocked even though the vehicle engaged in the loading or unloading operation is parked as close to the edge of the alley as possible, then and in that event, such vehicle shall not be left unattended at any time.

It shall be unlawful to load or unload automobile transport trailers or vehicles on any street, alley, boulevard, or public property of the city, except as herein provided and subject to all of the other terms of this section. An automobile transport vehicle, when parked in the immediate vicinity of the automobile dealership where the vehicles are to be loaded or unloaded, is permissible provided the said automobile transport vehicle must stand parallel and adjacent to the curb and be headed in the direction of the traffic, and further provided that a "flag person" is required to direct or slow traffic should the automobile transport vehicle impede traffic in any manner while loading and unloading. If the automobile transport vehicle is to utilize a no-parking zone, it will be necessary to notify the Fargo police department of the location and provide the duty officer with an estimate of the time required to load and unload

vehicles from the transport trailer. It is further provided that in no event shall the parking of an automobile transport trailer leave available less than 20 feet of the width of the roadway for free movement of vehicular traffic.

It shall be unlawful to park or permit any vehicle to stand so that it is backed against the curb except when actually loading or unloading freight or merchandise, and if the vehicle is a semi-trailer or trailer combination, the motor vehicle or tractor unit thereof must stand parallel to the curb and be headed in the direction of the traffic. No vehicle shall stand so backed up that it interferes with or interrupts the passage of traffic.

In any case it shall be unlawful to load or unload freight or merchandise from a semi-trailer backed into the curb unless the owner or operator of the unit involved shall have first secured a written permit from the chief of police; such a written permit must also be secured before any semi-trailer unit may be driven across the center line of the street in order to back the same into a loading stall. Such permit may be issued for reasonable periods of time, not to exceed one year.

It shall be unlawful for any person, firm or corporation to drive or permit to be driven any semi-trailer or truck of more than one-ton capacity by backing the same into a curb unless such person, firm or corporation shall provide a person or arrange with some person, in addition to the driver, to act as flagman during all operations, and said flagman shall station himself in such a position so that he can warn both pedestrians and moving traffic and so that the driver can back the vehicle in a safe manner. It shall be lawful for a police officer to act as such flagman if it does not interfere with his duties as a police officer.

Source: 1965 Rev. Ord. 8-1005, 1825 (1977), 3016 (1999).

8-1006. Time-limited parking zones.--Except as otherwise allowed by a permit issued by the Department of Planning and Development or designee for the Downtown Residential Parking Zone as authorized below, the owner or driver of any motor vehicle of any kind whatsoever shall not cause, permit, or allow such vehicle to be parked or to be re-parked within the same block, or within the same off-street parking lot or parking ramp owned or operated by the city of Fargo, for a period longer than the time limit restrictions posted for such area.

For purposes of determining a violation of this ordinance, a vehicle shall be considered to have remained parked or to have been re-parked within the same block, lot, or ramp when it is established by a preponderance of the evidence that the same vehicle has been found parked along either side of the same street or road between two intersecting roads, or has been parked within the same lot or ramp at any time within a four hour period, regardless of any evidence that the vehicle was moved between the time it was initially parked and later re-parked. Each 10-, 15-, 30-, 60-, 90-, 120-minute or other time-limited period during which a vehicle is parked shall constitute a separate and additional violation of this section.

The City Engineer shall post the time-limited parking zones on city streets, except for time-zones located on the campus of North Dakota State University in which case the University shall post the time-limited parking zones. The City Engineer is hereby authorized to establish and post time-limited parking zones in publicly owned or operated parking lots or ramps. Time-limited parking zones in publicly operated lots and ramps shall be approved by resolution by the board of commissioners. The police department or its designee shall enforce such time zone restrictions in areas which are so posted.

The City Engineer, if in its judgment traffic conditions so warrant it, may extend, change, or adjust the parking zones designated herein, provided said extension, changes, or adjustments are posted or marked.

The Department of Planning and Development or designee shall be authorized to issue a permit to residents of the Downtown Residential Parking Zone in accordance with an approved program as adopted by resolution of the board of city commissioners.

Source: 1965 Rev. Ord. 8-1006, 1450 (1972), 2019 (1981), 3086 (1999), 4023 (2000), 4301 (2003), 4701 (2009), 4725 (2010), 4986 (2015), 5498 (2025).

Editor's note—Section 1 of Ord. No. 4986, adopted June 8, 2015, amended § 8-1006 in its entirety to read as herein set out, including retitling the catchline from "Ten-minute, fifteen-minute, thirty-minute, sixty-minute, ninety-minute, one hundred twenty-minute or other time-limited parking zones."

8-1006.1. Parking in spaces controlled by a parking meter.--No person shall stop, stand or park a vehicle in any space in a parking ramp, parking lot, or such parking facility that is controlled by a parking meter, unless the required payment is deposited in the parking meter to authorize parking. The owner, driver or any other person having under his control or charge, any motor vehicle of any kind whatever, shall not cause, permit, or allow such vehicle to stand or remain in such space after the period of time authorized by such payment has expired.

Source: 4233 (2002).

8-1006.2. Permit only parking zones in publicly operated lots and ramps.--No person shall stop, stand, or park a vehicle in any space located within a parking lot or ramp owned or operated by the city of Fargo which is designated as a permit-only space, unless the vehicle has a valid permit that has been issued by the department of planning and development or designee.

The Planning and Development Director is hereby authorized to establish permit-only parking zones located in off-street parking lots or ramps owned or operated by the city of Fargo. The fees for such a parking permit shall be approved by resolution of the board of commissioners.

Source: 4987 (2015), 5498 (2025).

8-1007. The traffic engineer may designate ten-minute parking areas.--

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990), repealed by Ord. No. 3087 (1999).

8-1008. Ten-minute parking in front of post office.--

Source: 1965 Rev. Ord. 8-1008, 1453 (1972), repealed by Ord. No. 4066 (2000).

8-1009. Night parking restrictions.--Within the central business district, as defined in § 8-0101, it shall be unlawful for any person to park any vehicle or trailer on any north-south street between the hours of 2:00 a.m. and 7:00 a.m. on Tuesdays, Thursdays, and Saturdays, or on any east-west avenue between the hours of 2:00 a.m. and 7:00 a.m. on Mondays, Wednesdays, Fridays, and Sundays. Any vehicle or trailer parked in violation of this section is hereby declared to be a public nuisance, and may be impounded by the police department.

Source: 2365 (1987), 2410 (1988), 2503 (1989), 2531 (1990), 2722 (1994), 4489 (2005), 5177 (2018), 5275 (2020), 5531 (2025).

8-1010. Motor vehicle left unattended--Brakes to be set, engine stopped, and keys removed--Exceptions.--No person having control or charge of a motor vehicle shall allow such vehicle to stand unattended on any street, alley or in any public parking lot whether such lot is available to the public on a free or on a fee basis, without first effectively setting the brakes thereon, stopping the motor of said vehicle, and removing the keys thereof from the interior or any outside lock of said vehicle, and when standing upon any grade, the front wheels of such vehicle shall be turned to the curb or side of the street or highway. It shall not, however, be a violation of this ordinance to have and utilize an automatic starting device so long as the same permits movement of the vehicle only with a key. It further shall not be a violation of this section to leave the keys within a motor vehicle so long as all outer doors are securely locked and the vehicle is otherwise secured.

Source: 1965 Rev. Ord. 8-1010, 1276 (1968), 1578 (1974), 1825 (1977), 4009 (2000).

8-1011. Unlawful to drive or park on private property.--It shall be unlawful to trespass upon by driving or parking a motor vehicle or trailer or vehicle of any kind upon private property within the city limits where there is displayed upon said property a sign containing the words "Private Property" or "Private Parking", without first obtaining permission in writing from the owner or lessee thereof.

Source: 1965 Rev. Ord. 8-1011, 1991 (1980), 2029 (1981).

8-1012. Restricted parking in recreation areas.--Vehicles shall not be parked upon any public street or alley within any playground, swimming pool, or other recreation area, when said street, alley, or area is designated or posted against parking.

Source: 1952 Rev. Ord. 1119 (1962).

8-1013. Parking not to obstruct traffic.--No person shall park any vehicle upon a street, other than an alley when permitted by this article, in such manner or under such conditions as to leave available less than 10 feet of the width of the roadway for free movement of vehicular traffic.

Source: 1965 Rev. Ord. 8-1013, 1825 (1977).

8-1014. Parking for certain purposes prohibited.--No person shall park a vehicle upon any roadway for the principal purpose of (a) displaying such vehicle for sale; or (b) washing, greasing, or repairing such vehicle except repairs necessitated by an emergency.

Source: 1965 Rev. Ord. 8-1014, 1825 (1977).

8-1015. No stopping, standing, or parking near hazardous or congested places.--The engineering department is hereby authorized to determine and designate by proper signs places not to exceed 100 feet in length in which the stopping, standing, or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic.

When official signs are erected at hazardous or congested places as authorized herein, no person shall stop, stand, or park a vehicle in any such designated place.

The engineering department is hereby authorized to determine the location of passenger and freight loading zones and shall place and maintain appropriate signs indicating the same.

No person shall stop, stand, or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger curb loading zone and then only for a period long enough to complete such loading.

No person shall stop, stand, or park a vehicle for any purpose or length of time other than for expeditious loading and delivery or pick-up and loading of materials in any place marked as a freight curb loading zone. In no case shall the stop for loading and unloading of materials be longer than that needed to complete such loading and unloading.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990), 3086 (1999).

8-1016. Stopping, standing, and parking of buses and taxicabs regulated.--The operator of a bus shall not stand or park such vehicle upon any street at any place other than a bus stand so designated as provided herein. The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, bus stand, or passenger loading zone so designated as provided herein, except in case of an emergency and except with respect to all buses which shall be allowed to stop upon any street at any place for the purpose of loading or unloading passengers or their baggage.

The operator of a bus shall enter a bus stop, bus stand, or passenger loading zone on a public street, and any location that a bus may stop to load or unload passengers or their baggage in such a manner that the bus when stopped to load or unload passengers or baggage shall be in a position with the right front wheel of such vehicle not further than 18 inches from the curb and the bus approximately parallel to the curb so as not to impede unduly the movement of other vehicular traffic.

The operator of a taxicab shall not stand or park such vehicle upon any street at any place other than in a taxicab stand so designated as provided herein. This provision shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of, and while actually engaged in, the expeditious loading or unloading of passengers.

Source: 1952 Rev. Ord. 1119 (1962), 2208 (1985).

8-1017. Restricted use of bus and taxicab stands.--No person shall stop, stand, or park a vehicle other than a bus in a bus stop or other than a taxicab in a taxicab stand when any such stop or stand has been officially designated and appropriately signed, subject to the following exceptions:

A. The driver of a passenger vehicle may temporarily stop there for the purpose of, and while actually engaged in, loading or unloading passengers when such stopping does not interfer with any bus or taxicab.

B. Valet parking services may utilize the taxicab stand as a temporary stop for the purpose of, and while actually engaged in, loading or unloading passengers when such stopping does not interfer with any taxicab.

Source: 1952 Rev. Ord. 1119 (1962), 4361 (2003).

8-1018. Taking on or discharging passengers.--No common carrier of passengers, except duly licensed taxicabs and buses operating under city franchise, shall take on or discharge passengers upon the streets, alleys, or other public ways within the fire limits of the city. A school bus may take on or discharge passengers to the extent otherwise permitted by this chapter.

Source: 1952 Rev. Ord. 1119 (1962), 2723 (1994).

8-1019. Parking prohibited during certain hours on certain streets.--When signs are erected in each block giving notice thereof, no person shall park a vehicle upon any of the streets so posted between the hours specified on the signs on any day except Sundays and public holidays.

Source: 1952 Rev. Ord. 1119 (1962).

8-1020. Parking prohibited on sidewalks or boulevards.--No person shall stop, stand, or park any automobile, truck, or other vehicle, whether attended or unattended, on a sidewalk or on any boulevard or on any berm between the sidewalk and the roadway in the city; provided, that berm parking shall be permitted on hard surfaced approaches to private driveways if such parked vehicle does not extend into the street or block any portion of the public sidewalk crossing said approach.

Source: 1965 Rev. Ord. 8-1020, 1825 (1977), 2045 (1982), 2079 (1983).

8-1021. Parking signs required.--Whenever in this chapter or any other ordinance of this city any parking time limit is imposed or parking is prohibited on designated streets, it shall be the duty of the traffic engineer to erect appropriate signs giving notice thereof, and no such regulations shall be effective unless said signs are erected and in place at the time of any alleged offense, subject to specific exceptions as stated in this article.

Source: 1965 Rev. Ord. 8-1021, 1825 (1977).

8-1022. Application of article.--The provisions of this article prohibiting the standing or parking of a vehicle shall apply at all times or at those times herein specified or as indicated on official signs except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic-control device.

Source: 1952 Rev. Ord. 1119 (1962).

8-1023. Regulations not exclusive.--The provisions of this article imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing, or parking of vehicles in specified places or at specified times.

Source: 1952 Rev. Ord. 1119 (1962).

8-1024. Abandoned vehicles.--No person shall abandon any vehicle upon a street, highway, alley or other public roadway. Any vehicle abandoned shall be handled in accordance with § 13-0903 and the definition therein contained shall govern.

Source: 1965 Rev. Ord. 8-1024, 1386 (1971), 1825 (1977).

8-1025 Reserved.--

Editor's note—Ord. No. 5499, § 1, adopted July 21, 2025, repealed § 8-1025, which pertained to parking commission and derived from Ord. No. 3088, adopted 1999, and Ord. No. 4985, adopted 2015.

8-1026. Designated passenger loading areas.--

A. No owner, driver, or person operating or in charge of any vehicle may stop, stand, or park in an area designated for passenger loading for longer than 10 minutes during the following times:

(1) Thursday at 10:00 p.m. until Friday at 3:00 a.m.;

(2) Friday at 10:00 p.m. until Saturday at 3:00 a.m.; and
(3) Saturday at 10:00 p.m. until Sunday at 3:00 a.m.

B. The owner, driver, or person operating or in charge of any vehicle within the designated passenger loading area must remain with the vehicle at all times.

C. The board of city commissioners, by resolution, may establish designated passenger loading areas. The board shall cause to be erected and maintained signs designating the provisions of the resolution in each designated passenger loading area. Enforcement of the ordinance shall not be effective until signs are erected.

Source: 5363 (2022).

ARTICLE 8-11

RAILROAD CARS AND CROSSINGS

Section

8-1101 Flagman at railroad crossing--Board of city commissioners may require--Auditor to notify railroad.
8-1102 Duty of railroad company after notice delivered.
8-1103 Penalty for failure to maintain flagman, gates, or lights at crossings.
8-1104 Engines and cars on crossings--Length of time permissible.
8-1105 Unconnected cars not allowed.
8-1106 "Flying switches" prohibited.
8-1107 Speed of vehicles moving on fixed rails.
8-1108 Obedience to signal indicating approach of train.
8-1109 Crossing intersections or railroads.
8-1110 All vehicles must stop at certain railroad grade crossings.
8-1111 Certain vehicles must stop at all railroad grade crossings.

8-1101. Flagman at railroad crossing--Board of city commissioners may require--Auditor to notify railroad.--

A. Whenever the board of city commissioners shall deem it necessary to have and maintain a flagman, lights, or gates for the safety of travel on the public streets and avenues of the city where the same are crossed by railways within the limits of the city, it may, by resolution, declare that it is necessary to have and maintain a flagman, gates, or lights at the crossing or crossings designated in such resolution, and therein request the railroad company whose duty it is, or may be, to furnish and maintain such flagman, gates, or lights to furnish and maintain the same at the crossing or crossings designated.

B. It shall be the duty of the city auditor at once to notify such railroad company by serving upon the proper officers of the company a copy of such resolution.

Source: 1952 Rev. Ord. 1119 (1962).

8-1102. Duty of railroad company after notice delivered.--It shall be the duty of any railroad company within 10 days after a copy of a resolution is served on it or its officers as

provided in § 8-1101, to place a flagman, gates, or lights as may be required by said resolution at the crossing or crossings designated in such resolution and to maintain such flagman, gates, or lights thereon until relieved therefrom by the order of the board of city commissioners.

Source: 1952 Rev. Ord. 1119 (1962).

8-1103. Penalty for failure to maintain flagman, gates, or lights at crossings.--If any railroad company shall neglect or refuse to furnish, place, or maintain a flagman, gates, or lights, as may be required by resolution, at such crossings after notice and request as hereinbefore provided, it shall, upon conviction in the proper court for such refusal or neglect, be punished by a fine of not more than $100 for each and every day it shall neglect or refuse to furnish and maintain a flagman, gates, or lights at such crossings.

Source: 1952 Rev. Ord. 1119 (1962).

8-1104. Engines and cars on crossings--Length of time permissible.--No railroad company, railroad engineer, train conductor, or other person shall cause or allow any locomotive, engine, car, cars, or train of cars to stop in or remain on any street and railroad crossing within the limits of the city for a longer time than five minutes, except that this provision shall not apply to trains or cars in motion other than for switching.

Source: 1952 Rev. Ord. 1119 (1962).

8-1105. Unconnected cars not allowed.--No railroad company, railroad engineer, train conductor, or other person shall cause or allow any car or cars, unconnected with the engine or locomotive, to stand or remain upon any street and railroad crossing or avenue and railroad crossing within the limits of the city for any length of time whatever.

Source: 1952 Rev. Ord. 1119 (1962).

8-1106. "Flying switches" prohibited.--No railroad company, railroad engineer, train conductor, or other person shall cause or allow to be made what is generally known as a "flying switch" on or across any street crossing within the city limits.

Source: 1952 Rev. Ord. 1119 (1962).

8-1107. Speed of vehicles moving on fixed rails.--All railroad trains, engines, cars, and other vehicles moving on fixed rails within the city limits shall be operated at a reasonable speed and with due care.

Source: 1952 Rev. Ord. 1119 (1962).

8-1108. Obedience to signal indicating approach of train.--

A. Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within 50 feet but not less than 15 feet from the nearest rail of such railroad and shall not proceed until he can do so safely. The foregoing requirements shall apply when:

1. A clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train;

2. A crossing gate is lowered or a human flagman gives or continues to give a signal of the approach or passage of a railroad train;

3. A railroad train approaching within approximately 1,320 feet of a highway crossing emits a signal audible from such distance and such railroad train, by reason of its speed or nearness to such crossing, is an immediate hazard; or

4. An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

B. No person shall drive any vehicle through, around, or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed. No person shall drive any vehicle past any human flagman at a railroad crossing until the flagman signals that the way is clear to proceed.

Source: 1952 Rev. Ord. 1119 (1962).

8-1109. Crossing intersections or railroads.--In crossing an intersection of a street or the intersection of a street by a railroad right-of-way, the driver of a vehicle shall at all times cause such vehicle to travel on the right half of the street unless such right half is obstructed or impassable or unless there are two lanes of traffic going in the same direction.

Source: 1952 Rev. Ord. 1119 (1962).

8-1110. All vehicles must stop at certain railroad grade crossings.--The police department is hereby authorized to designate particularly dangerous streets or highway grade crossings of railroads and to erect stop signs thereat. When such stop signs are erected, the driver of any vehicle shall stop within 50 feet but not less than 15 feet from the nearest rail of such railroad and shall proceed only upon exercising due care.

Source: 1952 Rev. Ord. 1119 (1962).

8-1111. Certain vehicles must stop at all railroad grade crossings.--

A. The driver of a bus carrying passengers for hire, or of any school bus carrying any school child, or of any vehicle carrying explosive substances or flammable liquids as a cargo or part of a cargo, before crossing at grade any track or tracks of a railroad, shall stop such vehicle within 50 feet but not less than 15 feet from the nearest rail of such railroad and while so stopped shall listen and look in both directions along such track for any approaching train, and for signals indicating the approach of a train, except as hereinafter provided, and shall not proceed until he can do so safely. After stopping as required herein and upon proceeding when it is safe to do so, the driver of any said vehicle shall cross only in such gear of the vehicle that there will be no necessity for changing gears while traversing such crossing and the driver shall not shift gears while crossing the track or tracks;

B. No stop need be made at any such crossing where a police officer directs traffic to proceed.

Source: 1952 Rev. Ord. 1119 (1962).

ARTICLE 8-12

GENERAL RULES OF THE ROAD

Section

8-1201 Following too closely.
8-1202 Right-of-way.
8-1203 Vehicle entering street or highway from private road or driveway or turning left to enter a private road or driveway.
8-1204 Vehicle entering through street or stop intersection.
8-1205 Vehicle entering yield intersection.
8-1206 Driving on divided street or highway.
8-1207 Restricted access.
8-1208 Restrictions on use of controlled-access roadway.
8-1209 Driving on right side of roadway--Exceptions.
8-1210 Passing vehicles proceeding in opposite directions.
8-1211 Dimming of headlights upon meeting another vehicle.
8-1212 Overtaking a vehicle on the left.
8-1212.1 Driver to give way to overtaking vehicle.
8-1213 When overtaking on the right is permitted.
8-1214 Limitations on overtaking on the left.
8-1215 Further limitations on driving to left of center of roadway.
8-1216 No-passing zones.
8-1217 Driving on roadways laned for traffic.
8-1218 Stopping on street.
8-1219 Permitting use of vehicle to violate subsections (E), (F) and (G) of § 8-1218 prohibited--Presumption of permission--Defense--Dual prosecution prohibited.
8-1220 Overtaking and passing a bicycle.

8-1201. Following too closely.--The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicle and the traffic upon and the condition of the street, and in no event, more closely than would permit the driver of the vehicle following another to stop within the space between the two vehicles in case the first vehicle stops upon the street.

Source: 1952 Rev. Ord. 1119 (1962).

8-1202. Right-of-way.--When two vehicles approach or enter an intersection at approximately the same time, and there is a reasonable probability of a collision unless one gives way, the driver of the vehicle on the left has the greater duty to maintain a fair margin of safety and shall yield the right-of-way to the vehicle on the right except as otherwise provided in this chapter.

Source: 1965 Rev. Ord. 8-1202, 1385 (1971).

8-1203. Vehicle entering street or highway from private road or driveway or turning left to enter a private road or driveway.--The driver of a vehicle about to enter or cross a street or highway from a private road or driveway shall yield the right-of-way to all vehicles approaching

on said street or highway and a vehicle turning left to enter a private road or driveway shall yield the right-of-way to all vehicles approaching on said street or highway and to any vehicle which is then in the left-hand lane overtaking or is about to overtake the left-turning vehicle.

Source: 1952 Rev. Ord. 1119 (1962).

8-1204. Vehicle entering through street or stop intersection.--

A. The driver of a vehicle shall come to a complete stop before entering or crossing any through street or highway and shall use special care and caution in crossing the intersection of, or intercepting the line of traffic on, such through highways or streets, until his way is clear of such through traffic; provided, that when the traffic at any intersection of such through street or highway is regulated or controlled by traffic lights or by a member of the police department there on duty, the driver of any vehicle shall be regulated and controlled thereby, and shall act in accordance with the directions and regulations of such traffic lights or such traffic policeman and in accordance with any traffic signs there in place affecting such traffic.

B. The driver of a vehicle shall likewise come to a complete stop in obedience to a stop sign as required herein at an intersection where a stop sign is erected at one or more entrances thereto although not a part of a through street or highway and shall use special care and caution in crossing the intersection of, or intercepting the line of traffic on, such stop intersection, until his way is clear of such traffic; provided, that when the traffic at any intersection is regulated or controlled by traffic lights or by a member of the police department there on duty, the driver of any vehicle shall be regulated and controlled thereby, and shall act in accordance with the directions and regulations of such traffic lights or such traffic policeman and in accordance with any traffic signs there in place affecting such traffic.

C. Every driver approaching a stop sign shall stop before entering the crosswalk on the near side of the intersection, or in the event there is not a crosswalk, shall stop at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway, except when directed to proceed by a police officer or traffic-control signal.

Source: 1952 Rev. Ord. 1119 (1962).

8-1205. Vehicle entering yield intersection.--

A. The driver of a vehicle approaching a yield right-of-way sign shall, in obedience to such sign, slow down to a speed reasonable for the existing conditions or shall stop, if necessary, and shall yield the right-of-way to any pedestrian legally crossing the roadway on which he is driving and to any vehicle in the intersection or approaching on another street or highway so closely as to constitute an immediate hazard. A driver who enters a yield intersection without stopping and has or causes a collision with a pedestrian in a crosswalk or a vehicle in the intersection shall be considered prima facie not to have yielded as required herein. The foregoing shall not relieve the drivers of other vehicles approaching the intersection on the favored highway and at such distance as not to constitute an immediate hazard from the duty to drive with due care to avoid a collision.

B. The driver of a vehicle approaching a yield sign if required for safety to stop shall stop before entering the crosswalk on the near side of the intersection or, in the event there is no crosswalk, at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway.

Source: 1952 Rev. Ord. 1119 (1962).

8-1206. Driving on divided street or highway.--Whenever any street or highway has been divided into two roadways by an intervening space or by a physical barrier or clearly indicated dividing section so constructed as to impede vehicular traffic, every vehicle shall be driven only upon the right-hand roadway and no vehicle shall be driven over, across, or within any such physical barrier, or dividing section or space except through an opening in such physical barrier or dividing section or space at a crossover or intersection established by public authority.

Source: 1952 Rev. Ord. 1119 (1962).

8-1207. Restricted access.--No person shall drive a vehicle onto or from any controlled-access roadway except at such entrances and exits as are established by public authority.

Source: 1952 Rev. Ord. 1119 (1962).

8-1208. Restrictions on use of controlled-access roadway.--Subject to the approval of the board of city commissioners, the police department may, by regulation, prohibit the use by pedestrians, bicycles, or other nonmotorized traffic or by any person operating a motor-driven cycle on any controlled-access roadway under the jurisdiction of the city.

Upon the adoption and approval of any such prohibitory regulations, the police department shall erect and maintain official signs on the controlled-access roadway on which such regulations are applicable and when so erected, no person shall disobey the restrictions stated on such signs.

Source: 1952 Rev. Ord. 1119 (1962).

8-1209. Driving on right side of roadway--Exceptions.--

A. Upon all roadways of sufficient width a vehicle shall be driven upon the right half of the roadway except as follows:
   1. When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement;
   2. When the right half of a roadway is closed to traffic while under construction or repair;
   3. Upon a roadway divided into three marked lanes for traffic under the rules applicable thereon; or
   4. Upon a roadway designated and signposted for one-way traffic.

B. Upon all roadways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection or into a private road or driveway.

Source: 1952 Rev. Ord. 1119 (1962).

8-1210. Passing vehicles proceeding in opposite directions.--Drivers of vehicles proceeding in opposite directions shall pass each other to the right, and upon roadway having width for not more than one line of traffic in each direction, each driver shall give to the other at least one-half of the main-traveled portion of the roadway as nearly as possible.

Source: 1952 Rev. Ord. 1119 (1962).

8-1211. Dimming of headlights upon meeting another vehicle.--Whenever a motor vehicle meets another vehicle on the street after dusk or whenever it is necessary for the vehicle's lamps to be turned on, the driver of each vehicle shall dim his lamps by tilting the beam downward so that under normal atmospheric conditions such lamps shall shine down from a level plane.

Source: 1952 Rev. Ord. 1119 (1962), 2316 (1987).

8-1212. Overtaking a vehicle on the left.--The following rules shall govern the overtaking and passing of vehicles proceeding in the same direction, subject to those limitations, exceptions, and special rules hereinafter stated:

A. The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle. When not within a business or residence district, the driver of an overtaking vehicle shall give audible warning with his horn or other warning device before passing or attempting to pass a vehicle proceeding in the same direction; and

B. Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle, on audible signal, and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

Source: 1952 Rev. Ord. 1119 (1962).

8-1212.1. Driver to give way to overtaking vehicle.--The driver of a vehicle upon a highway, about to be overtaken and passed by another vehicle approaching from the rear, shall give way to the right in favor of the overtaking vehicle, on suitable and audible signal being given by the driver of the overtaking vehicle, and shall not increase the speed of his vehicle until completely passed by the overtaking vehicle.

Source: 1952 Rev. Ord. (1965).

8-1213. When overtaking on the right is permitted.--

A. The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

1. When the vehicle overtaken is making or about to make a left turn;
2. Upon a street or highway with unobstructed pavement not occupied by parked vehicles and of sufficient width for two or more lines of moving vehicles in each direction; or
3. Upon a one-way street, or upon any roadway on which traffic is restricted to one direction of movement, where the roadway is free from obstructions and of sufficient width for two or more lines of moving vehicles.

B. The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. In no event shall such movement be made by driving off the pavement or main-traveled portion of the roadway.

Source: 1952 Rev. Ord. 1119 (1962).

8-1214. Limitations on overtaking on the left.--No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In any event, the overtaking vehicle must return to the right-hand side of the roadway before coming within 100 feet of any vehicle approaching from the opposite direction.

Source: 1952 Rev. Ord. 1119 (1962).

8-1215. Further limitations on driving to left of center of roadway.--No vehicle shall at any time be driven to the left side of the roadway under the following conditions:

A. When approaching the crest of a grade or upon a curve in the street where the driver's view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction;

B. When approaching within 100 feet of or traversing any intersection or railroad grade crossing;

C. When the view is obstructed upon approaching within 100 feet of any bridge, viaduct, or tunnel. The foregoing limitations shall not apply upon a one-way roadway.

Source: 1952 Rev. Ord. 1119 (1962).

8-1216. No-passing zones.--The traffic engineer is hereby authorized to determine those portions of any street or highway where overtaking and passing or driving to the left of the roadway would be especially hazardous and may, by appropriate signs or markings on the roadway, indicate the beginning and end of such zones, and when such signs or marking are in place and clearly visible to an ordinarily observant person, every driver of a vehicle shall obey the directions thereof.

Source: 1952 Rev. Ord. 1119 (1962), 2316 (1987).

8-1217. Driving on roadways laned for traffic.--Whenever any roadway has been divided into two or more clearly marked lanes for traffic, the following rules, in addition to all others consistent herewith, shall apply:

A. A vehicle shall be driven as nearly as practicable entirely within a single lane and shall not be moved from such lane until the driver has first ascertained that such movement can be made with safety;

B. Upon a roadway which is divided into three lanes, a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle where the roadway is clearly visible and such center lane is clear of traffic within a safe

distance, or in preparation for a left turn, or where such center lane is at the time allocated exclusively to traffic moving in the direction the vehicle is proceeding and is signposted to give notice of such allocation; and

C. Official signs may be erected directing slow-moving traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway, and drivers of vehicles shall obey the directions of every such sign.

Source: 1952 Rev. Ord. 1119 (1962).

8-1218. Stopping on street.--The following rules shall be applicable to stopping and parking vehicles on streets:

A. No person shall park or leave standing any vehicle, whether attended or unattended, upon the main traveled portion of any street when it is practicable to park or leave such vehicle standing off the main traveled portion of the street; provided, in no case shall any person park or leave standing, attended or unattended, upon any street, a vehicle unless a clear and unobstructed width of not less than 15 feet upon the main traveled portion of the street opposite such standing vehicle shall be left free for the passage of other vehicles thereon, and unless a clear view of such vehicle may be obtained from a distance of 200 feet in both directions upon such streets.

B. No driver of any vehicle shall stop the same on any street, avenue, lane or alley of the city in such manner as to prevent or hinder other vehicles or persons from passing at all times, unless in case of absolute necessity, nor shall any driver of any vehicle stop the same at any regular crossing of said street, alley, lane, or avenue so as to prevent the free passage of persons traveling or passing on foot.

C. Whenever any police officer shall find a vehicle standing upon a street or highway in violation of the provisions of this section, he is hereby authorized to move such vehicle, or require the driver or person in charge of such vehicle to move such vehicle, to a position permitted under this section, or to impound it at the expense of the owner or driver.

D. Provisions of this section shall not apply to the driver of any vehicle which is disabled while upon the main traveled portion of a street in such manner and to such extent that it is impossible to avoid stopping and temporarily leaving the vehicle in such position.

E. No person shall activate the flashing red lights, stop sign control arm, or safety strobe lights of a school bus on any street of four lanes or more or on any one-way street within the city of Fargo.

F. No driver of a motor vehicle shall pass a school bus while that school bus has activated flashing red lights, stop sign control arm, or safety strobe lights.

G. No driver of a motor vehicle shall proceed past a school bus in the oncoming lane while that school bus has activated flashing red lights, stop sign control arm, or safety strobe lights.

Source: 1952 Rev. Ord. 1119 (1962), 2724 (1994).

8-1219. Permitting use of vehicle to violate subsections (E), (F) and (G) of section 8-1218 prohibited--Presumption of permission--Defense--Dual prosecution prohibited.--The registered owner of a motor vehicle may not permit that motor vehicle to be operated in

violation of subsections (E), (F) and (G) of § 8-1218. If a motor vehicle is seen violating said subsections, it is a disputable presumption that the registered owner of the motor vehicle permitted that violation. It is a defense to a charge of violating this section that the registered owner of the vehicle was not operating the vehicle, if that registered owner identifies the person authorized by that owner to operate the motor vehicle at the time of the violation of the aforementioned subsections of § 8-1218, or if that motor vehicle had been taken without the registered owner's permission. A person may not be charged both with violating this section and with violating subsections (E), (F) and (G) of § 8-1218. Violation of this section is not a lesser included offense of violation of subsections (E), (F) and (G) of § 8-1218.

Source: 2782 (1996).

8-1220. Overtaking and passing a bicycle.--The driver of a vehicle shall leave a safe distance when overtaking and passing a bicycle proceeding in the same direction on a roadway and shall maintain clearance until safely clear of the overtaken bicycle. "Safe distance" as used in this section means no less than three feet [0.91 meters] clearance.

Source: Ord. 5319 (2021).

ARTICLE 8-13

MISCELLANEOUS DRIVING RULES

Section

8-1301 Following fire apparatus prohibited--Parking within block where fire apparatus used prohibited--Driving over fire hose or through street barricade prohibited.
8-1302 Driving through parade, funeral, or procession.
8-1303 Driving in funeral or procession.
8-1304 Permits required for parades and processions--Exceptions.
8-1305 Vehicle shall not be driven on a sidewalk.
8-1306 Limitations on backing.
8-1307 Opening and closing vehicle doors.
8-1308 Equipment for motorcycle riders.
8-1309 Number of riders on motorcycles limited.
8-1310 Clinging to vehicles.
8-1311 Starting parked vehicles.
8-1312 Boarding or alighting from vehicles.
8-1313 Unlawful riding.
8-1314 Cruising about streets forbidden.
8-1315 Towing sleds and carts.
8-1316 Obstruction to driver's view or driving mechanism.
8-1317 Coasting prohibited.
8-1318 Garbage, glass, and other injurious materials--Throwing or depositing on highways prohibited--Removal.
8-1319 Operation of motor vehicles on private property.
8-1320 Regulations for the use and operation of snowmobiles.
8-1321 Use of safety belts required in certain motor vehicles.
8-1322 Motor vehicle owner's responsibility regarding a driver who flees a peace officer--Exceptions.

8-1301. Following fire apparatus prohibited--Parking within block where fire apparatus used prohibited--Driving over fire hose or through street barricade prohibited.--It shall be unlawful for the driver of any vehicle other than one on official business:

A. To follow any fire apparatus traveling in response to a fire alarm closer than 300 feet;

B. To drive into or park such vehicle within the block where fire apparatus has stopped in answer to a fire alarm;

C. To drive over any fire hose;

D. To drive through or around any street barricade.

Source: 1952 Rev. Ord. 1119 (1962).

8-1302. Driving through parade, funeral, or procession.--No vehicle except Class A vehicles may be driven through any parade, funeral, or procession except with the permission or upon the signal of a police officer.

Source: 1952 Rev. Ord. 1119 (1962), 2317 (1987).

8-1303. Driving in funeral or procession.--Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practicable and shall follow the vehicle ahead as close as is practicable and safe. The headlights of all vehicles shall be turned on so that identification of vehicles in such procession is easily established.

Source: 1952 Rev. Ord. 1119 (1962).

8-1304. Permits required for parades and processions--Exceptions.--No procession or parade containing 50 or more persons or 20 or more vehicles, except the forces of the United States Army or Navy, the military forces of this state, and the forces of the police and fire departments, shall occupy, march, or proceed along any street except in accordance with a permit issued by the chief of police and in accordance with other pertinent regulations, statutes, and ordinances.

Source: 1952 Rev. Ord. 1119 (1962).

8-1305. Vehicle shall not be driven on a sidewalk.--The driver of a vehicle shall not drive on or within any sidewalk area except at a permanent or temporary driveway or while engaged in maintaining or constructing the sidewalk or boulevard areas.

Source: 1952 Rev. Ord. 1119 (1962), 2819 (1997).

8-1306. Limitations on backing.--The driver of a vehicle shall not back the same unless such movement can be made with reasonable safety and without interfering with other traffic.

Source: 1952 Rev. Ord. 1119 (1962).

8-1307. Opening and closing vehicle doors.--No person shall open the door of a motor vehicle on the side available to moving traffic unless and until it is reasonably safe to do so, nor shall any person leave a door open on the side of a motor vehicle available to moving traffic for a period of time longer than necessary to load or unload passengers.

Source: 1952 Rev. Ord. 1119 (1962).

8-1308. Equipment for motorcycle riders.--

A. No person under the age of eighteen years shall operate or ride upon a motorcycle unless protective headgear, which complies with standards estab-

lished by the North Dakota State Motor Vehicle Department is being worn on the head of the operator and rider, except when participating in a lawful parade. If the operator of a motorcycle is required to wear protective headgear, any passenger must also wear protective headgear regardless of the age of the passenger.

B. This section shall not apply to persons riding within an enclosed cab or on a golf cart.

Source: 1965 Rev. Ord. 8-1308.1, 1860 (1978), 2515 (1990).

8-1309. Number of riders on motorcycles limited.--No motorcycle, as defined by subsection 22 of ordinance [section] 8-0101, designed to travel with fewer than three wheels in contact with the ground, shall be operated with more than one person thereon except that a motorcycle may be operated with not more than two persons riding thereon if such motorcycle is designed specifically for the purpose of carrying more than one person. The specifications that a motorcycle must meet in order for two persons to ride on such motorcycle shall be those promulgated by the rules and regulations of the North Dakota Motor Vehicle Registrar.

Source: 1252 (1967), 2515 (1990).

8-1310. Clinging to vehicles.--No person riding upon any bicycle, coaster, skis, roller skates, sled, toboggan, or toy vehicle shall attach the same or himself to any vehicle upon any roadway. No person shall drive a motor vehicle upon a public highway knowing the same to be attached by any bicycle, coaster, roller skates, sled, skis, toy vehicle, or person.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-1311. Starting parked vehicles.--No person shall start a vehicle which is stopped, standing, or parked unless and until such movement can be made with reasonable safety.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-1312. Boarding or alighting from vehicles.--No person shall board or alight from any vehicle while such vehicle is in motion.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-1313. Unlawful riding.--No person, operator, or passenger shall ride upon or permit anyone to ride upon any portion of any vehicle not designated or intended for the use of passengers. This provision shall not apply to an employee engaged in the discharge of a necessary duty or to persons riding within truck bodies in space intended for merchandise nor shall this provision apply when such vehicle is driven in a parade or ceremonial conducted or permitted under local ordinances.

Source: 1965 Rev. Ord. 8-1312, 1283 (1968), 2515 (1990).

8-1314. Cruising about streets forbidden.--No common carrier of freight or passengers shall cruise about the streets to solicit business.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-1315. Towing sleds and carts.--No driver or operator shall tow or permit to be towed by any vehicle on the streets of the city any sleigh, wagon, cart, toboggan, skis, or other device which creates a traffic hazard.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-1316. Obstruction to driver's view or driving mechanism.--

A. No person shall drive a vehicle when it is so loaded, or when there are in the front seat such a number of persons, exceeding three, as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver's control over the driving mechanism of the vehicle.

B. No passenger in a vehicle shall ride in such position as to interfere with the driver's view ahead or to the sides or to interfere with his control over the driving mechanism of the vehicle.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-1317. Coasting prohibited.--The driver of any motor vehicle when traveling upon a downgrade shall not coast with gears of such vehicle in neutral or with the clutch disengaged.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-1318. Garbage, glass, and other injurious materials--Throwing or depositing on highways prohibited--Removal.--

A. No person shall throw or deposit upon any street or highway any glass bottle, glass, nails, tacks, wire, cans, metal, wood, or any other substance likely to injure any person, animal, or vehicle or throw or deposit rubbish of any kind upon any street or highway.

B. Any person who drops, or permits to be dropped or thrown, upon any street or highway any destructive or injurious material shall immediately remove the same or cause it to be removed.

C. Any person removing a wrecked or damaged vehicle from a street or highway shall remove any glass or other dangerous or injurious substance dropped upon the highway from such vehicle.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-1319. Operation of motor vehicles on private property.--No person operating any motor vehicle shall drive it on any private property:

A. As a route or short-cut from one street to another.

B. To cruise or race on such private property.

C. To avoid any traffic-control device or sign.

D. So as to endanger any person or property.

E. Unless such person, or one of the occupants of such vehicle, intends to transact business there. Any person driving a motor vehicle onto and off of such premises without stopping shall be presumed to have violated this subsection.

Source: 1952 Rev. Ord. 1219 (1965), 2515 (1990), 2667 (1993).

8-1320. Regulations for the use and operation of snowmobiles.--

A. No person under the age of 16 years shall operate a snowmobile in the city of Fargo and no person owning or having custody of any snowmobile shall authorize or permit any person under the age of 16 years to operate said snowmobile, except that persons between the ages of 10 and 16 years shall be permitted to operate snowmobiles when under the supervision, direction and control of a parent or guardian.

B. No person shall operate or permit to be operated any snowmobile anywhere in the city of Fargo except on property owned or leased by him or on property adjacent thereto after permission has been obtained from the owner or on property owned or maintained by the Fargo Park Board, and then only upon such park areas as are designated in writing by the park board and posted in at least three public places within the city of Fargo. A copy and listing of the areas designated by the park board for operation of snowmobiles shall also be kept on file in the police department, in the city hall and in the offices of the park board of the city of Fargo.

C. It shall be unlawful to operate or to permit the operation of a snowmobile anywhere in the city of Fargo prior to 7:00 a.m. or after 10:00 p.m. of any day.

D. Snowmobiles shall not be driven to areas designated for their use by the park board but shall be transported thereto by automobile or trailer or other appropriate means.

E. No person owning or having custody or control of a snowmobile shall operate or permit the operation thereof upon any real property or land within the city of Fargo not owned or leased by such person except as elsewhere permitted by this ordinance, nor shall such person operate or permit to be operated any snowmobile upon any street, alley, roadway, berm, boulevard, sidewalk, ditch, or city-owned property or right-of-way within the city of Fargo.

F. No snowmobile shall be operated anywhere in the city of Fargo with more than one operator and one passenger aboard unless the manufacturer's specifications or recommendations permit or authorize more than two persons.

G. No snowmobile shall be used to pull any sled, toboggan, flying saucer or any other similar device except that sleds attached by a metal towbar may be pulled and persons on skis may be pulled if a towrope at least 50 feet long is used.

H. It shall be unlawful to operate any snowmobile in the city of Fargo unless it is equipped with a factory muffler or the equivalent in good working order.

I. No person may operate a snowmobile, and an owner of a snowmobile may not knowingly permit the snowmobile to be operated anywhere in the city of Fargo, without a policy of liability insurance which insures the person named, and any person using the snowmobile with the express or implied permission of the person named, against loss from the liability imposed by law for damages arising out of the ownership, maintenance or use of the snowmobile within this state, subject to the following limits, exclusive of interest and costs, with respect to each snowmobile: $25,000 because of bodily injury to or death of one person in any one accident and, subject to the limit for one person, $50,000 because of bodily injury to or death of two or more persons in any one accident, and $25,000 because of injury to or destruction of property of others in any one accident. Upon request of a law enforcement officer, a person operating a snowmobile shall provide proof of liability insurance to that officer within 20 days.

J. Any snowmobile which is operated in violation of any of the provisions of this ordinance may be impounded by the police department.

K. Every person, firm or corporation violating subsections (I) is guilty of a Class B misdemeanor and must be assessed a fine of at least $100.

Source: 1265 (1968), 2515 (1990), 2519 (1990), 2829 (1997).

8-1321. Use of safety belts required in certain motor vehicles.--A driver may not operate on any street or highway in the city of Fargo, a motor vehicle designed for carrying fewer than 11 passengers, which was originally manufactured with safety belts, unless each occupant is wearing a properly adjusted and fastened safety belt.

A. This section shall not apply to the following:

1. A child in a child restraint device or seat belt as defined in § 39-21-41.2, N.D.C.C.
2. Drivers of implements of husbandry.
3. To operators of farm vehicles as defined in subsection 5 of § 39-04-19, N.D.C.C.
4. To rural mail carriers while on duty delivering mail.
5. When all safety belts are in use by other occupants.
6. To an occupant with a medical or physically disabling condition that prevents appropriate restraint in a safety belt, if a qualified physician, physician assistant, or advanced practice registered nurse states in a signed writing the nature of the condition and the reason restraint is inappropriate.
7. To an occupant who is an emergency medical services personnel, during the provision of direct patient care.

Source: 2708 (1994), 5402 (2023).

8-1322. Motor vehicle owner's responsibility regarding a driver who flees a peace officer--Exceptions.--

1. The owner of a motor vehicle involved in a violation of North Dakota Century Code § 39-10-71 is presumed to have violated this section.
2. A peace officer may proceed in accordance with this section instead of pursuing the driver of a motor vehicle who flees or attempts to elude the peace officer after being given a visual or audible signal to bring the vehicle to a stop in violation of North Dakota Century Code § 39-10-71.
   a. A peace officer may investigate the violation and prepare a traffic citation under this section.
   b. A peace officer may issue a traffic citation under this section in accordance with the North Dakota Rules of Civil Procedure to the motor vehicle owner within ninety-six (96) hours after observing the violation.
3. A motor vehicle owner may not be found to have violated this section if:
   a. The driver operating the motor vehicle at the time of the violation of North Dakota Century Code § 39-10-71 has been charged with a violation of North Dakota Century Code § 39-10-71.
   b. The motor vehicle was reported stolen before the violation occurred or within a reasonable time after the violation occurred.

c. The motor vehicle owner assists or cooperates with a peace officer to demonstrate the owner was not the one who operated the motor vehicle at the time and place of the violation of North Dakota Century Code § 39-10-71.

d. The motor vehicle owner provides information that demonstrates the owner was not the driver of the motor vehicle at the time of the offense.

4. A motor vehicle owner may not be found to have violated this section, and the lessee is presumed to have violated this section, if the motor vehicle owner is a lessor of vehicles and at the time of the violation of North Dakota Century Code § 39-10-71 the motor vehicle was in the possession of a lessee, and the lessor provides a peace officer with the motor vehicle's registration number and the name, address, and operator's license number of the individual renting or leasing the motor vehicle.

5. An individual may not be charged both with violating this section and North Dakota Century Code § 39-10-71 for acts arising out of the same incident or occurrence.

6. This section may not apply to a motor vehicle rental company that rents motor vehicles to customers for a period of ninety (90) days or less.

Source: 5496 (2025).

ARTICLE 8-14

BICYCLES

Section

8-1401 Effect of regulations.
8-1402 Reserved.
8-1403 Reserved.
8-1404 Reserved.
8-1405 Reserved.
8-1406 Reserved.
8-1407 Reserved.
8-1408 Reserved.
8-1409 Bicycle dealers--Repealed.
8-1410 Traffic laws apply to persons riding bicycles.
8-1411 Obedience to traffic-control devices.
8-1412 Riding on bicycles.
8-1413 Riding on roadways and bicycle paths.
8-1414 Speed.
8-1415 Emerging from alley or driveway.
8-1416 Carrying articles.
8-1417 Parking Bicycles - Abandoned Bicycles.
8-1418 Riding on sidewalks.
8-1419 Lamps and other equipment on bicycles.
8-1420 Restricted operation by child under twelve years of age.
8-1421 Bicycles may be impounded if operated in violation of ordinances.

8-1422 Bicycle accidents.
8-1423 Bicycle routes to be established.
8-1424 Yielding and stopping while operating a bicycle on a roadway.
8-1425 Penalties imposed.

8-1401. Effect of regulations.--

A. The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this chapter.

B. These regulations applicable to bicycles shall apply whenever a bicycle is operated upon any street or highway or upon any path set aside for the exclusive use of bicycles subject to those exceptions stated herein.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1401, 1411 (1971), 4951 (2014).

8-1402. Reserved.

Editor's note—Ord. No. 4951, § 2, adopted Dec. 8, 2014, repealed § 8-1402, which pertained to license application and derived from 1965 Rev. Ord. 8-1402; Ord. No. 1411, adopted 1971; Ord. No. 2061, adopted 1982; and Ord. No. 2599, adopted 1991.

8-1403. Reserved.

Editor's note—Ord. No. 4951, § 2, adopted Dec. 8, 2014, repealed § 8-1403, which pertained to issuance of license and derived from 1952 Rev. Ord.; Ord. No. 1119, adopted 1962; 1965 Rev. Ord. 8-1403; Ord. No. 1411, adopted 1971, Ord. No. 2342, adopted 1987, and Ord. No. 2599, adopted 1991.

8-1404. Reserved.

Editor's note—Ord. No. 4951, § 2, adopted Dec. 8, 2014, repealed § 8-1404, which pertained to attachment of license plate and derived from 1965 Rev. Ord. 8-1404 and Ord. No. 1411, adopted 1971.

8-1405. Reserved.

Editor's note—Ord. No. 4951, § 2, adopted Dec. 8, 2014, repealed § 8-1405, which pertained to inspection of bicycles and derived from 1952 Rev. Ord.; Ord. No. 1119, adopted 1962; 1965 Rev. Ord. 8-1405; and Ord. No. 1411, adopted 1971.

8-1406. Reserved.

Editor's note—Ord. No. 4951, § 2, adopted Dec. 8, 2014, repealed § 8-1406, which pertained to renewal of license and derived from 1965 Rev. Ord. 8-1406 and Ord. No. 1411, adopted 1971.

8-1407. Reserved.

Editor's note—Ord. No. 4951, § 2, adopted Dec. 8, 2014, repealed § 8-1407, which pertained to transfer of ownership and derived from 1952 Rev. Ord.; Ord. No. 1119, adopted 1962; 1965 Rev. Ord. 8-1407; and Ord. No. 1411, adopted 1971.

8-1408. Reserved.

Editor's note—Ord. No. 4951, § 2, adopted Dec. 8, 2014, repealed § 8-1408, which pertained to rental agencies and derived from 1952 Rev. Ord.; Ord. No. 1119, adopted 1962; 1965 Rev. Ord. 8-1408; and Ord. No. 1411, adopted 1971.

8-1409. Bicycle dealers.--1965 Rev. Ord. 8-1409, 1411 (1971), repealed by Ord. No. 2599 (1991).

8-1410. Traffic laws apply to persons riding bicycles.--Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all the duties which may be applied to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles or by the traffic ordinances of this city, except as to special regulations in this article and except as to those provisions of laws and ordinances which by their nature can have no application.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1410, 1411 (1971).

8-1411. Obedience to traffic-control devices.--

A. Any person operating a bicycle shall obey the instructions of official traffic-control signals, signs, and other control devices applicable to vehicles, unless otherwise directed by a police officer, or except as to special regulations in this article.

B. Whenever authorized signs are erected indicating that no right or left or U-turn is permitted, no person operating a bicycle shall disobey the direction of any such signs, but where the rider dismounts from the bicycle to make any such turn, he shall then obey the regulations applicable to pedestrians.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1411, 1411 (1971), 5319 (2021).

8-1412. Riding on bicycles.--

A. A person propelling a bicycle shall not ride other than astride a permanent and regular seat attached thereto.

B. No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped.

C. Passengers, other than those propelling a bicycle, may ride on a seat which is mounted to the rear of the operator. Said passenger seat shall be equipped with handgrips and footrests and seat belts, or otherwise designed to prevent the occupant from falling or being thrown from said seat, and shall be occupied by the persons who are too young to operate a bicycle.

D. No person shall be permitted to ride on any part of a bicycle other than a seat as described in (C) above. Said passenger shall be guilty of an offense as well as the party permitting same.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1412, 1411 (1971), 2342 (1987).

8-1413. Riding on roadways and bicycle paths.--

A. Every person operating a bicycle upon a roadway at less than the normal speed of traffic at the time and place and under the conditions then existing shall ride as close as practicable to the right side of the roadway except under any of the following situations:
   1. When overtaking and passing another bicycle or vehicle proceeding in the same direction.
   2. When preparing for a left turn at an intersection or into a private road or driveway.
   3. When reasonably necessary to avoid conditions including, but not limited to fixed or moving objects, parked or moving vehicles, bicycles, pedestrians, animals, surface hazards, or substandard width lanes that make it unsafe to continue along the right-hand curb or edge. For purposes of this section, a "substandard width lane" is a lane that is too narrow for a bicycle and a vehicle to travel safely side by side within the lane.
   4. When driving a bicycle on a one-way street.
   5. When approaching a place where a right turn is authorized.

B. Persons riding bicycles upon a roadway shall not ride more than two abreast, except on paths or parts of roadways set aside for the exclusive use of bicycles. Persons riding two abreast shall not impede the normal and reasonable movement of traffic and, on a single laned roadway, shall ride within a single lane.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1413, 1411 (1971), 2342 (1987), 4550 (2006).

8-1414. Speed.--No person shall operate a bicycle at a speed greater than is reasonable and prudent under the conditions then existing.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1414, 1411 (1971).

8-1415. Emerging from alley or driveway.--The operator of a bicycle emerging from an alley, driveway, or building, upon approaching a sidewalk or sidewalk area shall yield the right-of-way to the pedestrians approaching on said sidewalk or sidewalk area, and upon entering the roadway, shall yield the right-of-way to all vehicles approaching on said roadway.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1415, 1411 (1971).

8-1416. Carrying articles.--No person operating a bicycle shall carry a package, bundle, or article which prevents the rider from keeping at least one hand upon the handle bars or carry a package, bundle, or article which prevents the forward vision of the operator.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1416, 1411 (1971).

8-1417. Parking Bicycles - Abandoned Bicycles.--

A. No person shall park a bicycle upon a street or public right of way other than the curb or in a rack to support the bicycle. A bicycle shall be parked in such manner as to afford the least obstruction to pedestrian traffic

B. Any bicycle appearing to be abandoned on any public path, sidewalk or street may be removed and impounded by a police officer, or any other employee of the city that is authorized to issue parking citations.

C. In such cases, notice shall be posted on the bicycle stating that the bicycle will be impounded and disposed of as allowed by law if it is not removed within three days of such posting on such bicycle. Any bicycle which remains in violation of this ordinance may be impounded and disposed of as allowed by law without further notice to the owner.

D. The term "abandoned" shall refer to the condition of a bicycle in a state of disuse or neglect as evidenced by missing components, flat tires or other signs of disuse or neglect.

Source: 1952 Rev. Ord. 1119 (1962), 1965 Rev. Ord. 8-1417, 1411 (1971), 4550 (2006).

8-1418. Riding on sidewalks.--

A. No person shall ride a bicycle upon any skyway.

B. Whenever any person is riding a bicycle upon a sidewalk, he shall yield the right-of-way to any pedestrian and shall give audible signal before overtaking and passing any pedestrian.

C. No person shall ride a bicycle upon a sidewalk which is posted with signs prohibiting bicycles; provided that this ordinance shall not apply to law enforcement officers riding bicycles in connection with their duties. The posting of signs shall be in accordance with the latest revision of the Manual of Uniform Traffic Control Devices as published by the U.S. Department of Transportation, Federal Highway Administration provided; however, that signs not in accordance therewith shall be in full force and effect if approved by resolution of the Board of City Commissioners.

Source: 2393 (1988), 2551 (1990), 2652 (1993), 4550 (2006).

8-1419. Lamps and other equipment on bicycles.--

A. Every bicycle when in use between one-half hour after sunset and one-half hour before sunrise shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least 500 feet to the front; and with a red reflector of at least two square inches on the rear, of a type which shall be visible from all distances from 50 to 500 feet to the rear when directly in front of a lawful upper beam of headlamps of a motor vehicle. A lamp emitting a red light visible from a distance of 500 feet to the rear may be used in addition to the red reflector. Reflectors or reflectorized material shall also be attached to the handlebars and front fork to reflect light emitted by lawful headlamps of a motor vehicle. Said material shall be white or silver in color.

B. No person shall operate a bicycle equipped with, nor shall any person use upon a bicycle, any siren or whistle.

C. Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheel skid on dry, level, clean pavement.

D. Every bicycle shall be equipped with handlebars no higher than the shoulders of the operator.

Source: 1965 Rev. Ord. 8-1419, 1411 (1971).

8-1420. Restricted operation by child under twelve years of age.--

A. No child under the age of 12 years shall operate a bicycle on the streets or avenues in the city within a zone the boundaries of which shall be as follows:

From the intersection of Roberts Street and Sixth Avenue North. South on Roberts Street to NP Avenue: West on NP Avenue to Eighth Street and First Avenue South; East on First Avenue South to the intersection of First Avenue South and Fourth Street; North on Fourth Street to the intersection with Sixth Avenue North; and West on Sixth Avenue North to the intersection with Roberts Street.

B. No child under the age of 12 years shall operate a bicycle on Broadway or on the one-way streets of University Drive and Tenth Street from 13th Avenue South to 19th Avenue North, unless accompanied by a person 18 years of age or older.

Source: 1965 Rev. Ord. 8-1420, 1411 (1971).

8-1421. Bicycles may be impounded if operated in violation of ordinances.--The police department of the city or any of the members thereof may impound any bicycle operated in violation of any of the ordinances of the city and retain possession of same until all fines have been paid or until compliance with any other sentence of the court.

Source: 1965 Rev. Ord. 8-1421, 1411 (1971), 1552 (1973), 2599 (1991).

8-1422. Bicycle accidents.--The driver of a bicycle involved in an accident with another bicycle, motor vehicle, or with a pedestrian, shall immediately stop such bicycle at the scene of the accident and shall give his name, age and address to the other person or persons involved. He shall also give immediate notice of the accident to the police department and shall file a report with the police department regarding the accident. In the event said accident is investigated at the scene by the police, it is not necessary for the driver to file an individual report.

Source: 1965 Rev. Ord. 8-1422, 1411 (1971).

8-1423. Bicycle routes to be established.--Bicycle routes shall be established by the city and shall be so posted by the police department. Said routes are created to encourage bicycle operators to utilize these routes for their safety and convenience.

Source: 1965 Rev. Ord. 8-1423, 1411 (1971).

8-1424. Yielding and stopping while operating a bicycle on a roadway.--

A. An individual operating a bicycle who is approaching a stop sign at an intersection with a roadway having three or more lanes for moving traffic shall come to a complete stop before entering the intersection.

B. An individual operating a bicycle who is approaching a stop sign at an intersection where a vehicle is stopped in the roadway at the same stop sign shall come to a complete stop before entering the intersection.

C. An individual operating a bicycle who is approaching a stop sign at an intersection with a roadway having two or fewer lanes for moving traffic shall reduce speed and, if required for safety, stop before entering the intersection. After slowing to a reasonable speed or stopping, the individual shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time the individual is moving across or within the intersection, except that an individual, after slowing to a reasonable speed and yielding the right-of-way if required, cautiously may make a turn or proceed through the intersection without stopping.

D. An individual operating a bicycle who is approaching an intersection shall yield the right-of-way to any vehicle that already has entered the intersection.

E. When an individual operating a bicycle and a vehicle enter an intersection from different roadways at approximately the same time, the operator of the vehicle or bicycle on the left shall yield the right-of-way to the vehicle or bicycle on the right.

F. If the individual operating a bicycle is involved in a collision with a vehicle in the intersection or junction of roadways after proceeding past a stop sign without stopping or past a steady red traffic-control light, the collision is deemed prima facie evidence of the individual's failure to yield the right-of-way.

Source: Ord. 5319 (2021).

8-1425. Penalties imposed.--All persons found to have violated provisions of this Article shall be punished as stated in section 01-0305(C)(1)(2) or (5), except a violation of section 8-1418, which shall be an infraction.

Source: 1965 Rev. Ord. 8-1425, 1411 (1971), 4951 (2014), 5168 (2018), 5478 (2025).

ARTICLE 8-15

TRANSPORTATION OF EXPLOSIVES BY MOTOR VEHICLES

Note: Article 8-15 of chapter 8 of the Revised Ordinances of 1965 (sections 8-1501 to 8-1506) was repealed by Ord. No. 1995, 1980.

ARTICLE 8-16

ARREST PROCEDURE

Section

8-1601 Arresting person for violating traffic regulations--Duty of officer arresting.
8-1602 Hearing upon arrest--Time of hearing--Promise of defendant to appear--Failure of defendant to appear.
8-1603 When defendant not entitled to release upon promise to appear.
8-1604 Arrest of nonresident traffic violator.
8-1605 Fines and forfeitures--Disposition--Bail schedule.
8-1606 Parking tickets.
8-1607 Reports kept by municipal judge.
8-1608 When copy of citation shall be deemed a lawful complaint.
8-1609 Failure to comply with traffic citation attached to parked vehicle.
8-1610 Presumption in reference to illegal parking.
8-1611 When warrant for arrest to be issued.
8-1612 Delinquent parking tickets--Impounding of vehicles.

8-1601. Arresting person for violating traffic regulations--Duty of officer arresting. Whenever any resident of the city is arrested for the violation of any of the provisions of this chapter, the officer arresting such person, except as otherwise provided, shall:

A. Take the name and address of such person;

B. Take the license number of his motor vehicle;

C. Issue a summons or otherwise notify him in writing to appear at a time and place to be specified in such summons or notice; and

D. A peace officer, without a warrant, may arrest a person, on a charge made upon reasonable cause of driving or being in actual physical control of a vehicle while under the influence of alcoholic beverages.

Source: 1965 Rev. Ord. 8-1601, 1311 (1969).

8-1602. Hearing upon arrest--Time of hearing--Promise of defendant to appear--Failure of defendant to appear.--

A. The time to be specified in the summons or notice provided for in § 8-1601 shall be at least two days after such arrest unless the person arrested shall demand an earlier hearing, and if the person arrested desires, he may have the right, at a convenient hour, to an immediate hearing or to a hearing within 24 hours. Such hearing shall be before a municipal judge of the city. Upon the receipt from the arrested person of a written promise to appear at the time and place mentioned in the summons or notice, such officer shall release him from custody. Any person refusing to give such written promise to appear shall be taken immediately, or as soon as possible, by the arresting officer before the nearest or most accessible municipal judge.

B. A willful failure to keep a written promise to appear shall be a separate violation of this chapter regardless of the disposition of the charge upon which such person originally was arrested.

Source: 1952 Rev. Ord. 1119 (1962).

8-1603. When defendant not entitled to release upon promise to appear.--The provisions of § 8-1602 shall not apply if the arresting officer shall have good reason to believe such person guilty of any felony, or when such person is arrested and charged with either of the following offenses:

A. Causing or contributing to an accident resulting in injury or death of any person;

B. Driving while under the influence of intoxicating liquor or a narcotic drug.

The arresting officer forthwith shall take any person not released upon his promise to appear before the proper judge.

Source: 1952 Rev. Ord. 1119 (1962), 2515 (1990).

8-1604. Arrest of nonresident traffic violator.--A police officer at the scene of a traffic accident may arrest without a warrant any driver of a vehicle who is a nonresident of this state and who is involved in the accident when the officer has reasonable and probable grounds, based upon personal investigation, to believe that the person has committed any offense under the provisions of this chapter in connection with the accident and if the officer has reasonable and probable grounds to believe the person will disregard a written promise to appear in court.

Whenever any person is arrested under the provisions of this section, he shall be taken without unnecessary delay before the proper judge.

Source: 1952 Rev. Ord. 1119 (1962).

8-1605. Fines and forfeitures--Disposition--Bail schedule.--All fines or forfeitures collected upon conviction or upon forfeiture of bail of any person charged with the violation of any provisions of this chapter shall be disposed of as by law provided. The municipal judge may file with the police chief a schedule in writing, subscribed by the judge and based on the offense charged, indicating the amount of bail fixed by such judge for the release of persons arrested or charged with any violation of this chapter, which schedule shall be applicable for the bail to be furnished in his absence from court, and any person who pays or delivers such bail to the chief of police or any other person in charge of the police department at the time, during the absence of the municipal judge, shall be immediately released from custody. Provided, that the payment or delivery of such bail shall be a waiver of any defect or irregularity or any previous defect or irregularity in such proceedings, including the arrest of such person; and provided further, that the municipal judge may, in all cases where he is present in court, fix bail in such amounts or upon such conditions as may be provided by law and within his discretion without regard to bail schedule provided and applicable in his absence from court.

Source: 1952 Rev. Ord. 1119 (1962).

8-1606. Parking Tickets.--Any officer or representative of the police department who finds any motor vehicle located within the city at a place or in a condition which is at the time in violation of any of the provisions of article 8-10 (Parking Regulations) may affix a parking ticket to any portion of such motor vehicle. The parking ticket shall give notice in writing requiring the owner or person in possession of the motor vehicle to pay a parking fine in the amount as set forth in § 1-0305. For purposes of this article, where action may be taken or a function fulfilled by a representative of the police department, said representative may be one

or more non-police-officer employees or may be a person, firm or other entity that has been designated by the police department or by the board of city commissioners to take such action or perform such function.

In the event the owner or person in possession of said motor vehicle disputes the validity of the parking ticket, such person shall be entitled to a review of the alleged violation by submitting a written request thereof to the police department if the parking ticket was issued by the city of Fargo, or to the North Dakota State University Parking Office if the parking ticket was issued by North Dakota State University, within five (5) days of the date of the issuance of the parking ticket. The review shall be conducted within five (5) days of the request by a person designated by the chief of police or by a representative of the police department to conduct such proceedings.

After said review of the parking ticket, if the parking ticket is not voided, the owner or person in possession of the motor vehicle shall have five (5) days from the date of notification to request a hearing in Fargo Municipal Court. Failure to timely pay the fine amount or request a hearing will result in an increase in the fine/fee amount.

In the event the owner or person in possession of the motor vehicle requests a hearing in Fargo Municipal Court he may do so by posting a bond with the Clerk of Municipal Court in an amount equal to the dollar amount of the parking ticket. A copy of the parking ticket review form completed at the time a written request is made to the police department or North Dakota State University must be submitted to the Fargo Municipal Court at the time a hearing is requested. The clerk of Fargo Municipal Court shall provide notice of the time and place of the hearing. If after the hearing the Fargo Municipal Court makes a determination of not guilty, any sums paid to Fargo Municipal Court shall be returned to the person who requested the hearing. Sentencing upon a determination of guilt shall be in accordance with the Fargo Municipal Code.

The parking ticket which is issued pursuant to this section shall include a notice that the motor vehicle being tagged is subject to impoundment if the owner neither requests a review, nor pays the fine within the time allotted or after the review, if the parking ticket is determined to be valid.

The foregoing procedure as set forth in this section is not exclusive, but is in addition to any other remedies or procedures provided by law.

Source: 1952 Rev. Ord. 1119 (1962), 2746 (1995), 4677 (2008), 4691 (2008), 4701 (2009), 5017 (2016).

8-1607. Reports kept by municipal judge.--The municipal judge shall keep and file a report of every case in which a person is charged with violation of any provision of this chapter; provided, however, that reports regarding parking tickets issued pursuant to § 8-1606 of this article shall be maintained by the police department.

Source: 1952 Rev. Ord. 1119 (1962), 2746 (1995).

8-1608. When copy of citation shall be deemed a lawful complaint.--In the event the form of citation includes information and is sworn to as required under the general laws of this state in respect to a complaint charging commission of the offense alleged in said citation to have been committed, then such citation when filed with the court having jurisdiction shall be deemed to be a lawful complaint for the purpose of prosecution under this chapter.

Source: 1952 Rev. Ord. 1119 (1962).

8-1609. Failure to comply with traffic citation attached to parked vehicle.--If a violator of the restrictions on stopping, standing, or parking under the traffic laws or ordinances does not appear in response to a traffic citation affixed to such motor vehicle within a period of five days, the police department may send to the owner of the motor vehicle to which the traffic citation was affixed a letter informing him of the violation and warning him that in the event such letter is disregarded for a period of five days a warrant of arrest may be issued.

Source: 1952 Rev. Ord. 1119 (1962), 2318 (1987).

8-1610. Presumption in reference to illegal parking.--In any prosecution charging a violation of any law or regulation governing the standing or parking of a vehicle, proof that the particular vehicle described in the complaint was parked in violation of any such law or regulation, together with proof that the defendant named in the complaint was at the time of such parking the registered owner of such vehicle, shall constitute in evidence a prima facie presumption that the registered owner of such vehicle was the person who parked or placed such vehicle at the point where, and for the time during which, such violation occurred.

Source: 1952 Rev. Ord. 1119 (1962).

8-1611. When warrant for arrest to be issued.--In the event any person fails to comply with a traffic citation given to such person or attached to a vehicle or fails to make appearance pursuant to a summons directing an appearance in the municipal judge's court, or if any person fails or refuses to deposit bail as required and within the time permitted by ordinance, the police department shall secure, from the municipal judge, a warrant for his arrest.

Source: 1952 Rev. Ord. 1119 (1962).

8-1612. Delinquent parking tickets--Impounding of vehicles.--Motor vehicles having delinquent parking tickets may be impounded in accordance with § 8-0126.

Source: 1965 Rev. Ord. 8-1612, 1661 (1975).

ARTICLE 8-17

SNOW EMERGENCY ROUTES AND SNOW EMERGENCY DECLARATION*

Section

8-1701 Definitions.
8-1702 Parking or stopping on snow emergency route.
8-1703 Snow emergency declaration.
8-1704 Stalled vehicle on snow emergency route or when snow emergency declared.
8-1705 Declarations of the mayor.
8-1706 Termination of snow emergency declaration by the mayor.
8-1707 Provisions temporarily effective to take precedence.
8-1708 Signs to mark snow emergency routes.
8-1709 Impounding vehicles.
8-1710 Violations--Traffic citation--Complaint.

***Editor's note—**Ord. No. 5274, § I, adopted Oct. 10, 2020, changed the title of Art. 8-17 from "Snow Emergency Routes" to "Snow Emergency Routes and Snow Emergency Declaration," as set out herein.

8-1711 Evidence with respect to vehicles parked or left in violation of ordinance.
8-1712 Snow emergency routes designated.
8-1713 Separability.

8-1701. Definitions.--The following definitions, in addition to those contained in § 8-0101, shall apply in the interpretation and enforcement of this article:

1. "Mayor" is the mayor of the city of Fargo, or, in the event of the absence of the mayor, the vice-mayor, or their designee. In the event of the absence of both the mayor and the vice-mayor, the board of city commissioners shall have all authority granted by this article.

2. "Snow emergency routes" are those roadways generally traversing the entire city or a major part thereof, and are considered essential to the rapid movement of emergency vehicles and normally carry heavy traffic volumes.

3. "Snow tires" are any tires mounted on drive wheels of motor vehicles which are especially designed to give effective traction on snow, mud or ice-covered roadways by means of extra heavy duty treads with special high-traction patterns, except that no tire so defined shall be construed to be a snow tire if it is damaged or worn to the extent that its performance would be substantially impaired.

4. "Tire chains" are any metal chains mounted on drive wheel tires of motor vehicles which cross the tread of each such tire laterally in at least three different places.

5. "Snow emergency" shall mean when four (4) or more inches of snow is forecast by the National Weather Service.

Source: 1965 Rev. Ord. 8-1701, 1828 (1977), 2502 (1989), 5274 (2020).

8-1702. Parking or stopping on snow emergency route.--

No person shall park or stop any vehicle on any roadway designated as a snow emergency route at any time between November 1 and April 15.

Source: 1965 Rev. Ord. 8-1702, 1828 (1977), 1915 (1979), 2502 (1989), 5274 (2020).

8-1703. Snow emergency declaration.--

A. Whenever the mayor determines a snow emergency to exist, the mayor shall put into effect a parking prohibition on all roadways by declaring a snow emergency in a manner prescribed by this ordinance. While the prohibition is in effect, no person shall park or remain stopped any vehicle on any portion of any roadway in the city of Fargo.

B. Once in effect, a prohibition under this section shall remain in effect until terminated by announcement of the mayor in accordance with this ordinance, or until such time that the individual roadway has been cleared of snow from curb to curb for the length of the entire block. However, nothing in this section shall be construed to permit parking at any time or place where it is forbidden by any other provision of law.

Source: Ord. 5274 (2020).

8-1704. Stalled vehicle on snow emergency route or when snow emergency declared. Whenever a vehicle becomes stalled on any part of a snow emergency route or on any roadway when a snow emergency declaration is in effect, the person operating such vehicle shall take immediate action to have the vehicle towed or pushed off the roadway. No person shall

abandon or leave a vehicle unattended in the roadway of a snow emergency route or when a snow emergency declaration is in effect, except for a period of time actually necessary to secure assistance in removing the same.

Source: 1965 Rev. Ord. 8-1705, 1828 (1977), 2502 (1989), 5274 (2020).

8-1705. Declarations of the mayor.--

A. The mayor shall cause each declaration made pursuant to this ordinance to be publicly announced through the Cass County Alerts system, by means of broadcasts or telecasts from stations with a normal operating range covering the city, on the city of Fargo website and through city of Fargo social media accounts, news media and in newspapers of general circulation, when feasible. Each announcement shall describe the action taken by the mayor including the time it became or will become effective.

B. The mayor shall make or cause to be made a record of each time and date when any declaration is announced to the public in accordance with this section.

Source: 1965 Rev. Ord. 8-1706, 1828 (1977), 2502 (1989), 5274 (2020).

8-1706. Termination of snow emergency declaration by the mayor.--Whenever the mayor shall find that some or all of the conditions which give rise to the snow emergency declaration in effect pursuant to this ordinance no longer exist, the mayor may terminate the snow emergency declaration in a manner prescribed by this ordinance, effective immediately upon announcement.

Source: 1965 Rev. Ord. 8-1707, 1828 (1977), 2502 (1989), 5274 (2020).

8-1707. Provisions temporarily effective to take precedence.--Any provision of this ordinance which becomes effective by declaration of the mayor take precedence over other conflicting provisions of law normally in effect, except that it shall not take precedence over provisions of law relating to traffic accidents, emergency travel of authorized emergency vehicles or emergency traffic directions by a police officer.

Source: 1965 Rev. Ord. 8-1708, 1828 (1977), 2502 (1989), 5274 (2020).

8-1708. Signs to mark snow emergency routes.--

A. On each roadway designated by resolution as a snow emergency route, such roadways shall be posted with appropriate signs at intervals not exceeding one every 1,320 feet. Signs posted in accordance with this section shall be distinctive and uniform in appearance and shall be plainly visible and readable to persons traveling on the roadway.

Source: 1965 Rev. Ord. 8-1709, 1828 (1977), 1915 (1979), 2502 (1989), 5274 (2020).

8-1709. Impounding vehicles.--Any vehicle stopped on any snow emergency route or on any roadway in violation of the mayor's snow emergency declaration in violation of any of the provisions of this article may be impounded in accordance with § 8-0126 of this chapter and no person shall recover any vehicle removed pursuant to this section without first paying the cost of removal and the cost of storage. Any payments required by this section shall not be construed as a penalty so as to preclude prosecution for violation of any of the provisions of this article.

Source: 1965 Rev. Ord. 8-1710, 1828 (1977), 2502 (1989), 5274 (2020).

8-1710. Violations--Traffic citation--Complaint.--Whenever any motor vehicle is found stopped or parked contrary to the provisions of this article, the owner of such vehicle may, pursuant to § 8-0315 of this chapter, be charged with a violation of this article. Prosecution may be instituted by traffic citation or complaint in the same manner as for violation of any of the provisions of this chapter.

Source: 1965 Rev. Ord. 8-1711, 1828 (1977), 2502 (1989), 5274 (2020).

8-1711. Evidence with respect to vehicles parked or left in violation of ordinance.--In any prosecution with regard to a vehicle parked or left in a place or in a condition in violation of any provision of this ordinance, proof that the particular vehicle described in the complaint was parked or left in violation of a provision of this ordinance, together with proof that the defendant named in the complaint was at the time the registered owner of such vehicle, shall constitute prima facie evidence that the defendant was the person who parked or left the vehicle in violation of this ordinance.

Source: 1965 Rev. Ord. 8-1712, 1828 (1977), 2502 (1989), 5274 (2020).

8-1712. Snow emergency routes designated.--Snow emergency routes shall be as designated by resolution of the board of city commissioners.

Source: 1965 Rev. Ord. 8-1711, 1828 (1977), 2502 (1989), 5274 (2020).

8-1713. Separability.--If any section, subsection, sentence, clause, phrase or portion of this ordinance is for any reason held invalid or unconstitutional by any court of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision and such holding shall not affect the validity of the remaining portions hereof.

Source: 1965 Rev. Ord. 8-1714, 1828 (1977), 2502 (1989), 5274 (2020).

ARTICLE 8-18

SCHOOL SAFETY PATROLS

Section

8-1801 Establishment of school safety patrols--Authorization.
8-1802 Appointment of members.
8-1803 Identification--Uniformity.
8-1804 Driving through school patrols unlawful.

8-1801. Establishment of school safety patrols--Authorization.--The governing board or other directing authority of any school or institution, public or private, or its designated representatives, in the exercise of authorized control and supervision over pupils attending such schools and other educational institutions, is hereby authorized and empowered to organize and supervise school safety patrols for the purpose of influencing and encouraging pupils to refrain from crossing public streets at points other than regular crossings, and for the purpose of directing pupils when and where to cross public streets.

Source: 2073 (1983).

8-1802. Appointment of members.--Such governing board or other directing authority may appoint any pupil who is at least nine years of age to be designated as a member of the school patrol; provided, that no pupil whose parents or guardian objects in writing to the school authorities, may be appointed to such school patrol.

Source: 2073 (1983).

8-1803. Identification--Uniformity.--Identification of school patrol members and the operation of the school patrol system shall be uniform throughout the city and each school patrol member shall wear a safety patrol belt approximately two inches in width with a shoulder strap or, in the event of inclement weather, an outer garment which is bright yellow in color. Said belt and strap shall be orange in color. A flag approximately two feet by two feet, orange in color, with a yellow stop sign emblem with letters in black on said flag, will be utilized by said school patrols.

Source: 2073 (1983).

8-1804. Driving through school patrols unlawful.--It shall be a violation of this article for any person to drive a motor vehicle through a column of school children crossing a street or highway or pass a member of a school safety patrol, while said member is directing the movement of children across a street or highway, and while holding his official signal in the stop position.

Source: 2073 (1983).

ARTICLE 8-19

CRUISING

Article

8-1901 Definitions.
8-1902 Cruising prohibited.--Exceptions.
8-1903 No cruising area.--Designation.
8-1904 No cruising area.--Signs required.

8-1901. Definitions. In this article, the following definitions shall apply:

1. "Cruising" shall mean the operation of a motor vehicle past a traffic control point three times within a two-hour period, from 9 p.m. to 6 a.m. in a no cruising area.

2. "Traffic control point" shall mean any point or points which has been established by the police department for the purpose of monitoring cruising.

Source: 2666 (1993).

8-1902. Cruising prohibited.--Exceptions.--No person shall engage in cruising, as defined in this article, in an area which has been designated as a no cruising zone as hereinafter; provided that this section shall not apply to taxicabs, buses, or other transit vehicles being driven for business purposes, or to authorized emergency vehicles.

Source: 2666 (1993).

8-1903. No cruising area.--Designation.---The following described area within the corporate limits of the city of Fargo is hereby designated as a no cruising area:

Broadway, from Main Avenue to and including, Sixth Avenue North; including every intersecting avenue between Main Avenue and Sixth Avenue North for 150 feet on either side of the center line of Broadway.

Source: 2666 (1993).

8-1904. No cruising area.--Signs required.---At every point where a public street or alley becomes or provides ingress to a no cruising area, there shall be posted a sign which designates the area as a no cruising area between the hours of 9 p.m. and 6 a.m.

Source: 2666 (1993).

ARTICLE 8-20

Motorized Scooters

8-2001 Definitions.
8-2002 Operation of motorized scooters--Regulations.
8-2003 Motorized scooters may be impounded if operated in violation of ordinances.
8-2004 Penalty.

8-2001. Motorized scooter--Definition.--A "motorized scooter" shall mean any wheeled, open device, regardless of the number of wheels, powered by any style motor, which is not capable of traveling more than fifteen (15) miles per hour.

Source: 4444 (2005).

8-2002. Operation of motorized scooters--Regulations.--A person may operate a motorized scooter on the public sidewalks within the city of Fargo, subject to the following conditions:

A. A motorized scooter may not be operated upon any sidewalk in the central business district, upon any pedestrian walkway or trail which was constructed with Federal Aid Highway Funds, except as provided by law, or upon any other sidewalk in the city which is posted with signs prohibiting motorized scooters. Persons who obtain a mobility impairment permit from the city of Fargo, completed by a licensed physician, are exempt from this requirement.

B. An operator of a motorized scooter must dismount and push a motorized scooter across a city street and within the crosswalk area. Persons who obtain a mobility impairment permit from the city of Fargo, completed by a licensed physician, are exempt from this requirement.

C. A motorized scooter may not be operated upon any public street, except by persons who obtain a mobility impairment permit from the city of Fargo, completed by a licensed physician and only when absolutely necessary or when a sidewalk is impassable or unavailable.

D. A motorized scooter operated upon any street must be equipped with reflectors.

E. An operator of a motorized scooter shall in all situations yield the right-of-way to pedestrians.

F. An operator of a motorized scooter under 18 years of age must wear a helmet.

G. No passengers are allowed on a motorized scooter, unless the scooter is specifically designed for carrying passengers

H. Motorized scooters may only be operated during the hours from sunrise to sunset. Persons who obtain a mobility impairment permit from the city of Fargo, completed by a licensed physician, are exempt from this requirement.

I. All motorized scooters operated within the city of Fargo must be equipped with factory supplied stock mufflers, exhaust systems, and braking systems.

J. Applications for a mobility impaired permits may be obtained from the auditor's office and shall be completed by a licensed physician.

Source: 4444 (2005).

8-2003. Motorized scooters may be impounded if operated in violation of ordinances. The police department of the city or any of the members thereof may impound any motorized scooter operated in violation of any of the ordinances of the city and retain possession of same until all fines have been paid.

Source: 4444 (2005).

8-2004. Penalty.--Any violation of this section shall result in a minimum penalty of $40. The parent, guardian, or any adult, providing supervision of an operator under 18 years of age, who violates the provisions of this ordinance, shall be responsible for paying the penalty amount.

Source: 4444 (2005).

ARTICLE 8-21

RESIDENTIAL PARKING PERMIT PROGRAMS

Section

8-2101 Declaration of public policy and purpose.
8-2102 Residential parking permit districts authorized.
8-2103 Definitions.
8-2104 Establishing a residential parking permit program district.
8-2105 Traffic engineer investigation of petition.
8-2106 Recommendation and review by committee.
8-2107 Notices.
8-2108 Hearing before commission.
8-2109 Parking permits authorized and issued.
8-2110 Posting of residential parking permit districts.
8-2111 Display of permits.
8-2112 Permit parking exemption.
8-2113 Modification or removal of designation of residential parking permit district.
8-2114 Violations.
8-2115 Revocation of permit.

8-2101 Declaration of public policy and purpose.--The board of city commissioners finds that there are residential areas within the city of Fargo that are adjacent to or very near intense nonresidential uses that generate a significant demand for parking. The city commis-

sion finds that persons employed by or who are using those nonresidential facilities frequently park their vehicles on nearby residential streets and that, in addition, there are residential areas within the city that are negatively affected by the inappropriate conversion of single-detached owner-occupied housing to rental housing. The commission finds that excess parking demand is generated by these converted rental units because off-street parking for said units is often inadequate to address the needs of the number of residents living in the rental units. The commission finds that parking congestion threatens the general well-being of impacted neighborhoods. This parking ordinance regulating parking in designated residential areas is hereby established in order to protect the residents of such areas and neighborhoods from unreasonable burdens in obtaining parking near their residences and in gaining access to their residences, to preserve the character of such areas and neighborhoods as residential, to promote the efficiency of street maintenance in these areas, resulting in streets that are clean and in safe condition, to promote traffic safety and the peace, order, comfort, convenience and general welfare of the inhabitants of the affected neighborhoods and areas, to preserve the general health, safety and welfare of these residential areas and to encourage large employers, public and private institutions to make better use of public transportation to meet the peak hour commuting needs of their clients, employees, and or students. This ordinance is further established to address the parking congestion on residential streets caused by nonresident parkers and to address excess parking demand caused by the concentrated conversion of single family residential property to multiple occupancy rental property.

Source: 4538 (2006).

8-2102. Residential parking permit districts authorized.--The board of city commissioners may by resolution establish and designate residential areas or parts thereof as residential permit parking districts. On-street parking may be limited or restricted in such areas to certain locations, hours, times and/or types of motor vehicles as may be further provided in this article. The board of city commissioners may designate such area for a specified period of time, after which time the district shall lapse and be of no further force or effect.

Source: 4538 (2006).

8-2103. Definitions.--For purposes of this article, the following definitions shall apply:

A. "Block" - the length of street, including both sides thereof, existing between two other intersecting streets, or between an intersecting street and another point of termination such as a dead-end.

B. Motor vehicle - a motor vehicle as defined by N.D.C.C. Section 39-01-01 that is not in excess of ten thousand pounds gross weight.

C. Non-resident vehicle - motor vehicle parked in a residential parking permit program district by a person not residing within the district.

D. Owner - the fee owner of the property. Where a property is held by multiple owners, the owner shall be the authorized person, firm or entity acting on behalf of a property.

E. Property - a residential or non-residential building or structure located on one or more tax parcels.

F. Resident - person who resides or works in the residential parking permit district.

G. Resident vehicle - a motor vehicle owned or under the control of a resident.

Source: 4538 (2006).

8-2104. Establishing a residential parking permit program district.--The designation of a residential permit parking district shall be initiated by a petition filed with the city engineer. The petition must specify the problems being caused by nonresidential parking including identification of the times when parking demand is at its peak, the probable cause of the problems and the specific area being proposed to be restricted. The petition may identify a primary district where the parking problems predominate in addition to a buffer district. A filing fee of $50 shall accompany every petition. The petition shall be signed by the owners of property representing more than fifty percent (50%) of the total properties within the proposed district. The petition shall contain the name and address of the signer, and the address of the property owned by the signer. By placing his signature on such a petition, a person is affirming that he is, in fact, the owner of the property in question or is the authorized representative of the owner. Each separate page of the petition shall have appended thereto a certificate, verified by oath, that each signature was signed by the person purporting to have signed the petition. The petition shall identify a resident within the proposed area who shall have the responsibility of verifying each separate page of signatures, as well as having the responsibility of assisting the city engineer in the investigation of the petition to implement a residential permit parking program in the proposed district. A petition may also be submitted by the city director of planning and development or the city engineer, which petition may be based upon documented problems or complaints in the area.

Source: 4538 (2006).

8-2105. Traffic engineer investigation of petition.--Upon receipt of a valid petition, the city engineer shall conduct an investigation to determine the feasibility of a residential permit parking program for the proposed area or alternatives to the proposed area. This investigation may include, but shall not be limited to observations, surveys, studies or any other data-gathering method which will assist the city traffic engineer in making a recommendation regarding the designation of a residential permit parking district. The city engineer shall hold at least one neighborhood meeting to guide the development of the proposed district, or an alternative district being considered by the city engineer, which outlines zone boundaries and recommended parking restrictions, as determined by the city engineer.

Source: 4538 (2006).

8-2106. Recommendation and review by committee.--After completing the investigation, the city engineer shall submit the results of the investigation to a committee established or designated by resolution of the board of city commissioners and shall submit a recommendation for the designation or rejection of a specific residential permit parking district. If the city

engineer recommends elements of a residential parking permit program or an area of such program that is different than the petition, the engineer shall submit a written proposal to the committee. The recommendation of the city engineer shall be considered at a public hearing before the committee, after public notice is given and an opportunity for written protest is given to owners in the proposed district. If there is filed with the city engineer written protest by owners of at least one-half of all the properties within the area proposed to be included in the district, the proposal shall be denied by the committee. If the written protest is less than one-half, then the committee shall make a recommendation to the board of city commissioners. The committee shall use the same factors to be used by the board of city commissioners in their decision and recommendation.

Source: 4538 (2006).

8-2107. Notices.--All notices required under this article must: (1) indicate the time and place of all scheduled public hearings; (2) describe the proposed area; (3) describe the nature, scope and purpose of the proposal; and (4) indicate the location and source of additional information on the proposal.

A. Written notice. When written notice is required under this article, the official responsible for accepting the application shall provide written notice by first class mail to all owners of property within the proposed district. The notice shall be deposited in the U.S. mail at least 15 days before the first scheduled public hearing. Ownership information shall be obtained from the Cass County Assessor's Office.

B. Published notice. When the provisions of this article require that notice be published in the newspaper, the official responsible for accepting the application shall ensure that notice is published in a newspaper of general circulation within the City at least once each week for 2 successive weeks preceding the date of the first scheduled public hearing.

C. Constructive notice. Minor technical deviations from specified notice requirements shall not be deemed to impair notice where there is actual notice. When required written notices have been properly addressed and deposited in the mail, failure of a party to receive such notice shall not invalidate any subsequent action. In all cases, however, the requirements for the timing of the notice and for specifying the time, date and place of a hearing and the general location of the property shall be strictly construed. If questions arise at the hearing regarding the adequacy of notice, the body hearing the matter shall make a finding regarding whether there was compliance with the notice requirements of this article.

Source: 4538 (2006).

8-2108. Hearing before commission.--The board of city commissioners shall consider the recommendation of the designated or established committee at a hearing, after public notice is given. After the hearing, the board of city commissioners may approve the proposed residential parking permit district, after the board considers the following:

A. That the proposal is consistent with the public policy and purpose of this parking ordinance and that there is a sufficient parking problem in the area to warrant the establishment of a district.

B. That the proposed district consists of streets that are predominantly residential.

C. That at least 60% of the on-street spaces in the primary district area are occupied during peak times.

D. That establishing the district would increase access to available on-street parking to area residents, would reduce traffic congestion and would increase safety for pedestrians and occupants of vehicles.

E. That the size of the proposed district is sufficient to adequately address the problems identified and sufficient to minimize the transfer of the observed parking problems from one area to another.

F. That no other reasonable alternatives have been identified that are as likely to resolve the problems that have been established.

G. That the proposed district is located such that public transportation is reasonably available to assist in defraying the parking demand of adjacent employers, institutions, and non-resident parkers.

H. Any other factor that the board of city commission deems relevant under the circumstances.

Source: 4538 (2006).

8-2109. Parking permits authorized and issued.--The resolution designating and establishing a residential permit parking district shall provide for the issuance of annual parking permits to residents of such district subject to the following:

A. No permit required. Each block in a designated residential parking permit program district must maintain at least 4 spaces or 25% of the available spaces, whichever is greater, as "no permit required" parking. "No permit required" parking spaces must be located on the corner of a block.

B. Permit required. Portions of a designated residential parking permit program district that are designated as "permit only" parking will be posted with signs that indicate "residential parking permit required" and will also indicate the hours and days the permit-only designation applies.

C. Type of permits. Owners in a designated residential parking permit district are eligible to apply for parking permits. The City will issue a maximum of two parking permits per property. The initial cost of a residential parking permit program resident permit is $20.

D. Proof required. Written proof of residency, such as a rental agreement, property tax bill, current utility bill or telephone bill, and a current vehicle registration issued by the North Dakota Department of Motor Vehicles or equivalent authorized agency of another state or governmental entity for each vehicle that is to be permitted must be provided for a permit. The vehicle must be registered to the resident or, in the case of a business, the vehicle must be registered to the business or to an employee of the business that can provide proof of employment.

E. Renewal. Permits must be renewed on an annual basis. A permit is valid for one year, from July 1 to June 30, regardless of the date of issuance. The cost to renew a permit is $10.

F. No permits issued under this article shall guarantee or reserve to the holder a particular parking space within the designated area but shall provide general parking in said area during the time specified by the resolution approving the district and so posted as required by this article.

G. Nothing herein shall abrogate or limit the scope of parking privileges required to be provided for handicapped persons as defined under the laws of this city or the state of North Dakota.

H. Nothing herein shall abrogate or limit the effect of other local or state law regarding parking of motor vehicles.

Source: 4538 (2006).

8-2110. Posting of residential parking permit districts.--The parking spaces identified as "no permit required" parking must be designated by signage that indicates "no permit required between signs". Those spaces will be limited to a four hour time zone. The portions of a designated residential parking permit district that are designated as "permit only" parking must be posted with signs that indicate "residential parking permit required". The signs must also indicate the hours and days the permit-only designation applies. [J1]

Source: 4538 (2006).

8-2111. Display of permits.--Residential parking permits shall be permanently affixed to the rear window of the permitted vehicle on the driver's side so that the permit is readily visible to enforcement personnel.

Source: 4538 (2006).

8-2112. Permit parking exemption.--Emergency vehicles, delivery vehicles (clearly marked as such), and vehicles displaying a valid state-issued mobility-impaired parking permit or license plate are exempt from the provisions of this program and do not require a Residential parking permit to park on the street in a designated residential parking permit district.

Source: 4538 (2006).

8-2113. Modification or removal of designation of residential parking permit district. The board of city commissioners, after a public hearing, may modify or remove the designation of a residential parking permit district by resolution under the same process for review and consideration as an original petition, as set forth in this article.

Source: 4538 (2006).

8-2114. Violations.--It shall be a violation of this ordinance to:

A. Display a permit issued for a vehicle other than the vehicle for which the permit was issued.

B. To sell or transfer a permit to a person other than the permitee.

C. Provide false information in applying for a permit.

Source: 4538 (2006).

8-2115. Revocation of permit.--The city may revoke any permit issued under this article upon a finding that the permit was issued under false pretenses or a finding of four or more violations of this article by the permittee.

Source: 4538 (2006).

CHAPTER 9

FIRE PROTECTION AND PREVENTION

Article

9-01	Organization and Regulations of the Fire Department, §§ 9-0101 to 9-0105.
9-02	Fire Limits and Fire Zones, §§ 9-0201 to 9-0204 [§ 9-0202, Repealed].
9-03	Inspection of Buildings--Repealed by Ord. No. 1091, 1961.
9-04	Fire Hazards, §§ 9-0401, 9-0402, 9-0406 to 9-0409, 9-0413, 9-0416, 9-0417, 9-0419 to 9-0421 [§§ 9-0403 to 9-0405, 9-0410, 9-0411, 9-0412, 9-0414, 9-0415, 9-0418, 9-0422, Repealed].
9-05	Fire Hazards Declared Nuisances--Abatement, §§ 9-0501 to 9-0505.
9-06	Miscellaneous, §§ 9-0601 to 9-0604.
9-07	International Fire Code, §§ 9-0701 to 9-0708.

ARTICLE 9-01

ORGANIZATION AND REGULATIONS OF THE FIRE DEPARTMENT

Section

9-0101	Officers of the fire department.
9-0102	Chief of fire department may prescribe limits in vicinity of fire.
9-0103	Chief of fire department may remove and demolish buildings.
9-0104	Chief of fire department, assistant, and firemen as special fire police--Duties and powers.
9-0105	Duties of police in aiding fire department.

9-0101. Officers of the fire department.--The fire department shall consist of a chief of the fire department and such other officers and employees as may, from time to time, be deemed necessary. A bureau of fire prevention shall be maintained within the fire department.

Source: 1952 Rev. Ord. 9-0101, 4010 (2000).

9-0102. Chief of fire department may prescribe limits in vicinity of fire.--The chief of the fire department may prescribe limits in the vicinity of any fire within which no person shall be permitted to come except firemen and policemen and those admitted by his order or by order of the members of the fire department.

Source: 1952 Rev. Ord. 9-0101, 4010 (2000).

9-0103. Chief of fire department may remove and demolish buildings.--The chief of the fire department shall have power to demolish any building or parts of buildings or to remove any property therefrom whenever it shall become necessary for the preservation of such property from fire, or to prevent the spreading of fire, or to protect adjoining property.

Source: 1952 Rev. Ord. 9-0101, 4010 (2000).

9-0104. Chief of fire department, assistant, and firemen as special fire police--Duties and powers.--The chief of the fire department, assistant chief, and all firemen are hereby constituted and appointed special fire police; and it shall be their duty to see that the provisions of this article are enforced. They may arrest any person whom they shall find violating any of the provisions of this article and shall immediately deliver such person to the police of the city.

Source: 1952 Rev. Ord. 9-0101, 4010 (2000).

9-0105. Duties of police in aiding fire department.--The chief of police and all policemen, at all fires, shall preserve order and cooperate with, and render all possible assistance to, the chief or the acting chief of the fire department and see that his orders are promptly obeyed.

Source: 1952 Rev. Ord. 9-0101, 4010 (2000).

ARTICLE 9-02

FIRE LIMITS AND FIRE ZONES

Section

9-0201 Fire limits defined.
9-0202 Fire zones created and established.--Repealed.
9-0203 Fire protection outside city--Chief may authorize.
9-0204 (Fire protection outside)--City to be reimbursed--When.

9-0201. Fire limits defined.--The boundary lines of the city as presently fixed, together with the boundary lines of all additions and annexations made or hereafter to be made to said city, shall be and are hereby fixed and declared to be the fire limits.

Source: 1952 Rev. Ord. 9-0201, 892 (1953), 895 (1953), 926 (1954), 930 (1954).

9-0202. Fire zones created and established.--

Source: 1965 Rev. Ord. 9-0202, 1243 (1967), repealed by Ord. No. 4012 (2000).

9-0203. Fire protection outside city--Chief may authorize.--

A. Whenever the chief of the fire department, or in the event of his absence, the person who is in charge of the fire department, determines that it is expedient and not contrary to public safety to answer a request from the city of Moorhead, the equipment and personnel of the fire department may furnish such service or actively engage in the fighting of fires with the fire department of the city of Moorhead.

B. Whenever the chief of the fire department or, in the event of his absence, the person who is in charge of the fire department, determines that it is expedient and not contrary to public safety to answer a request from other municipalities or any organized fire department in the state of North Dakota, to furnish standby service to such communities or organized fire departments, the equipment and personnel of the city of Fargo fire department, may furnish such service or actively engage in the fighting of fires with such municipalities or organized fire departments.

Source: 1965 Rev. Ord. 9-0203, 1285 (1968).

9-0204. (Fire protection outside)--City to be reimbursed--When.--Whenever the chief of the fire department or, in the event of his absence, the person who is in charge of the fire department, determines that it is expedient and not contrary to public safety to answer a request from a resident of Cass County residing outside the corporate limits of the city, to furnish fire fighting equipment and personnel to such resident, the fire department may furnish such service upon condition that the city be reimbursed by the person requesting such service in an amount to be determined in a manner established by a resolution by the board of city commissioners.

Source: 1965 Rev. Ord. 9-0204, 1285 (1968), 2018 (1981).

ARTICLE 9-03

INSPECTION OF BUILDINGS

Note: Article 3 of chapter 9 of the 1952 Revised Ordinances consisting of section 9-0301 relating to duties and powers of the chief of the fire department regarding inspection of buildings in the fire limits in the city was repealed by Ord. No. 1091 (1961).

ARTICLE 9-04

FIRE HAZARDS

Section

9-0401 Piling flammable materials in city limits prohibited.
9-0402 Fires on pavement or in sewers or drains prohibited.
9-0403 to 9-0405 Repealed.
9-0406 Deposit of combustible material--Distance from buildings.
9-0407 Ashes--How to be deposited.
9-0408 Buildings where flammable materials are kept--Doors and windows to be kept shut--Exceptions.
9-0409 Persons with unprotected lights or fires to keep away from flammable materials.
9-0410 Unslaked lime--Storage.--Repealed.
9-0411, 9-0412 Repealed.
9-0413 Storage, use and handling of liquefied gas--Repealed.
9-0414, 9-0415 Repealed.
9-0416 Smoking in theaters prohibited.
9-0417 Use of cigars, cigarettes, pipes, and tobacco so as to endanger life or property forbidden.
9-0418 Regulation of burning of rubbish--Repealed.
9-0419 Regulation of rubbish removal from vacant buildings.
9-0420 Warning lights in streets--Open-fired flare prohibited.
9-0421 Open-fired flare warning lights in streets--Penalty.
9-0422 Paper baling operations--Prohibited in fire zone number one.--Repealed.

9-0401. Piling flammable materials in city limits prohibited.--No person, persons, firm, or corporation shall pile empty boxes, barrels, paper, or other flammable material within any

building or make, establish, or maintain any pile or piles of empty boxes, barrels, or other flammable material upon any premises, streets, avenues, alleys, or other public places within the limits of the city, as now or hereafter established.

Source: 1952 Rev. Ord. 9-0401.

9-0402. Fires on pavement or in sewers or drains prohibited.--No person shall build a fire upon any pavement or within any sewer or drain for any purpose whatsoever within the limits of the city.

Source: 1952 Rev. Ord. 9-0402.

9-0403. Storage of explosives prohibited--Exception.--

Source: Repealed by Ord. No. 1091 (1961).

9-0404. Gunpowder--Permit required to sell or store.--

Source: Repealed by Ord. No. 1091 (1961).

9-0405. Gunpowder--Regulating storage of.--

Source: Repealed by Ord. No. 1091 (1961).

9-0406. Deposit of combustible material--Distance from buildings.--No person, persons, firm, or corporation shall deposit or stack any hay, straw, shavings, or other highly combustible material in any yard or lot in the open air at a less distance than 75 feet from any dwelling house in this city.

Source: 1952 Rev. Ord. 9-0406.

9-0407. Ashes--How to be deposited.--No person, persons, firm, or corporation shall deposit any ashes in any building unless such ashes are kept in a metallic or other fireproof vessel or receptacle, nor deposit ashes in any wooden vessel in any yard, lot, or alley unless such vessel is kept covered and at least 20 feet distant from any wooden building or combustible material.

Source: 1952 Rev. Ord. 9-0407.

9-0408. Buildings where flammable materials are kept--Doors and windows to be kept shut--Exceptions.--The occupants of any barn, stable shop, or other building wherein hay, straw, shavings, or other flammable materials are kept shall keep the doors, windows, or openings exposing such materials securely closed during the nighttime, excepting windows and doors on floors where horses and cattle are kept.

Source: 1952 Rev. Ord. 9-0408.

9-0409. Persons with unprotected lights or fires to keep away from flammable materials.--No person shall, at any time, enter any room or depository wherein hay, straw, shavings, or other flammable materials are stored with an unprotected light or fire or with a burning cigar, cigarette, or pipe.

Source: 1952 Rev. Ord. 9-0409.

9-0410. Unslaked lime--Storage.--

Source: 1952 Rev. Ord. 9-0410, repealed by Ord No. 4013 (2000).

9-0411. Storage, handling, and selling of matches.--
Source: Repealed by Ord. No. 1091 (1961).

9-0412. Handling, storage and selling of flammable liquids.--
Source: Repealed by Ord. No. 1091 (1961).

9-0413. Storage, use and handling of liquefied gas.--
Source: Repealed by Ord. No. 4643 (2008).

9-0414. Storage, handling, and manufacture of pyroxylin plastics.--
Source: Repealed by Ord. No. 1091 (1961).

9-0415. Transportation of flammable liquids through or within the city limits.--
Source: Repealed by Ord. No. 1091 (1961).

9-0416. Smoking in theaters prohibited.--No person shall smoke in any theater except in such parts of the theater as shall be designated and approved by the management and which shall have been previously approved by the chief of the fire department for such purpose.
Source: 1952 Rev. Ord. 9-0416.

9-0417. Use of cigars, cigarettes, pipes, and tobacco so as to endanger life or property forbidden.--Any person who, by smoking or attempting to light or to smoke cigarettes, cigars, pipes, or tobacco in any manner in which lighters or matches are employed, shall in any careless, negligent, or reckless manner whatsoever, whether willfully or wantonly or not, set fire to any building, furniture, curtains, drapes, house, or any household fittings or furnishings whatsoever so as to endanger life or property in any way or to any extent shall be guilty of violating this section and shall be subject to penalty as hereinafter set forth.

A plainly printed notice shall be posted in a conspicuous place in each sleeping room of all hotels, rooming houses, lodging houses, and other places of public abode advising tenants of the provisions of this section.
Source: 1952 Rev. Ord. 9-0417.

9-0418. Regulation of burning of rubbish.--
Source: Repealed by Ord. No. 1091 (1961).

9-0419. Regulation of rubbish removal from vacant buildings.--Whenever any building, structure, or dwelling within the city, or any rooms, portions, or parts thereof shall become vacant or unoccupied, the owner thereof or his agent shall, within 24 hours thereafter, remove or cause to be removed therefrom all rubbish, waste paper, boxes, or any other flammable material especially liable to fire which may have been allowed or permitted to be accumulated therein.

If any buildings, structures, or dwelling referred to in this section or any rooms, portion, or parts thereof which are separately occupied shall remain vacant or unoccupied for a more than 10 days, the owner, lessee, or occupant thereof shall lock or securely close and keep locked and securely closed all doors, windows, entrances, or openings to the same.
Source: 1952 Rev. Ord. 9-0419.

9-0420. Warning lights in streets--Open-fired flare prohibited.--The use of any open-fired flare or warning light, oil burning lantern, or any light or flare using a combustible fuel on any street, alley, or sidewalk in the city is hereby prohibited. All such warning lights used on any street, alley, or sidewalk in the city shall be an approved type of flasher light powered by electricity.

Source: 1952 Rev. Ord. 1148 (1964).

9-0421. Open-fired flare warning lights in streets--Penalty.--Every person, firm, company, or corporation violating any of the provisions of § 9-0420 shall, upon conviction, be punished by a fine not to exceed $100 or by imprisonment not to exceed 90 days, or both such fine and imprisonment, in the discretion of the court; the court to have power to suspend said sentence and to revoke the suspension thereof. Each day any person, firm, company, or corporation shall violate the provisions of § 9-0420 shall constitute a separate offense.

Source: 1952 Rev. Ord. 1148 (1964).

9-0422. Paper baling operations--Prohibited in fire zone number one.--

Source: 1965 Rev. Ord. 9-0422, 1586 (1974), repealed by Ord. No. 4013 (2000).

ARTICLE 9-05

FIRE HAZARDS DECLARED NUISANCES--ABATEMENT

Section

9-0501 Nuisance declared.
9-0502 Chief of fire department--Duty as to inspection and report.
9-0503 Chief of fire department to give order to abate fire hazard.
9-0503.1 Appeals.
9-0504 Action to abate.
9-0505 Penalty for violation of article.

9-0501. Nuisance declared.--Any combustible or explosive matter, dangerous accumulation of rubbish, or unnecessary accumulation of waste paper, boxes, shavings, or any other highly flammable materials especially liable to fire, so situated or used as to endanger property, or obstructions to or on fire escapes, stairs, passageways, doors, or windows, liable to interfere with the operations of the fire department or egress of occupants in case of fire, or in violation of or nonconformity with any ordinance of the city affecting the fire hazard, are hereby declared nuisances.

The installation, maintenance, and use of the following equipment or supplies, unless they shall conform to the latest and current regulations and standards set forth by the National Board of Fire Underwriters on file in the office of the chief of the fire department of the city, are hereby declared fire hazards and nuisances and may be abated as such: oil burning equipment, oil burning heating equipment, small heating and cooking appliances, class A ovens and furnaces, gas piping and gas appliances in buildings, combustible fibers, and spray finishing using flammable materials.

Source: 1952 Rev. Ord. 9-0501.

9-0502. Chief of fire department--Duty as to inspection and report.--It is hereby made the duty of the chief of the fire department, whenever it may be called to the attention of his department or any officer or employee thereof that any fire hazard exists as set forth in § 9-0501, to make a thorough inspection of the premises upon and with respect to which such condition is alleged to exist, and to make a full and complete report to the board of city commissioners.

Source: 1952 Rev. Ord. 9-0502, 992 (1957).

9-0503. Chief of fire department to give order to abate fire hazard.--If, in the opinion of the chief of the fire department, a fire hazard is found to exist as set forth in § 9-0501, it shall be the duty of the chief of the fire department immediately to order the owner or occupant of the premises upon which such condition exists to abate such nuisance and eliminate such condition. It shall be the further duty of the chief of the fire department to give or cause to be given notice in writing to the owner or occupant of such premises that such fire hazard exists and that the same must be abated and eliminated, within the time specified in the notice, said time so fixed to be not less than 10 days nor more than 30 days from the date of said notice.

Source: 1952 Rev. Ord. 9-0504, 992 (1957), 4011 (2000).

9-0503.1. Appeals.--Appeals of an order of the chief of the fire department may be taken to the board of appeals, as set forth in Section 103.1.4 of the International Fire Code (adopted by reference in Section 9-0701), by filing with the fire chief a written appeal within ten (10) days of such order.

Source: 4011 (2000), 4926 (2014).

9-0504. Action to abate.--In the event that such owner or occupant, within the time specified in the above-described notice, fails to remedy such condition as above provided the fire chief may, in his/her discretion, request the city attorney to commence an action to abate said nuisance.

Source: 1952 Rev. Ord. 9-0504, 992 (1957), 4011 (2000).

9-0505. Penalty for violation of article.--Any person, firm, association or corporation who shall violate any of the terms and provisions of this article or who shall, when notified in writing by the chief of the fire department or the board of city commissioners, fail, neglect or refuse to take steps to correct the condition complained of within the time specified in such notice as hereinbefore provided for, shall, upon conviction thereof, be punished by a fine not to exceed $500 or by imprisonment not to exceed 30 days, or by both such fine and imprisonment in the discretion of the court; the court to have power to suspend said sentence and to revoke the suspension thereof. Each day any person, firm, association or corporation shall violate any of the provisions of this ordinance shall constitute a separate offense.

Source: 1965 Rev. Ord. 9-0505, 1857 (1978).

ARTICLE 9-06

MISCELLANEOUS

Section

9-0601 Fires in hotels, rooming houses, and lodging houses to be reported.

9-0602 Erection of barricades around damaged buildings.
9-0603 Interference with electric wiring and meters prohibited.
9-0604 Automotive service station and bulk oil plant licensing.

9-0601. Fires in hotels, rooming houses, and lodging houses to be reported.--Every fire of any kind, and from whatever source, occurring in or about any hotel, rooming house, lodging house, or apartment hotel in the city, shall be reported immediately to the fire department.

Source: 1952 Rev. Ord. 9-0601.

9-0602. Erection of barricades around damaged buildings.--It shall be the duty of the fire department, with the assistance of the police department and other properly designated departments or agencies, to bring fires or other catastrophic situations under control and to establish a condition of stability in the hazard area.

Promptly and as soon as possible after the completion of the work of the fire department and other departments assigned to assist, the police department shall place temporary barricades, obtained from the streets and sewers division of the department of public works, around the hazard area so as to warn the public and keep unauthorized persons away from the hazard area.

The city engineer, acting through the building inspector, shall determine the type and extent of permanent barricades needed to protect the public adequately, and shall notify the owner as to the barricades needed and the location of the same, and direct him to take steps to provide and place said permanent barricades.

If, within 24 hours after notice given as above provided, the owner has not replaced the temporary barricades with permanent barricades, the city, acting through the public works department, shall do so and the owner will be obligated and required to pay to the city the entire cost for materials and labor involved and said cost shall be collected by suit if necessary.

The city engineer in his discretion may, from time to time, alter the requirements for the location and type of permanent barricades so as to increase or decrease the area protected.

Source: 1952 Rev. Ord. 9-0602.

9-0603. Interference with electric wiring and meters prohibited.--No person shall tamper, meddle, or interfere with electric wiring or meters used in the measuring of electricity or gas furnished to any residence, business building, or structure of any kind within the limits of the city. The use or attempted use of pennies, coins, slugs, or any pieces or objects other than underwriter-approved fuses in electric meters shall be a violation of this section.

Source: 1952 Rev. Ord. 9-0603.

9-0604. Automotive service station and bulk oil plant licensing.--No person, firm or corporation shall engage in the business of keeping, maintaining, conducting or operating any automotive service station or any bulk oil plant in the city of Fargo, North Dakota, without first obtaining a license therefor from the city auditor of the city of Fargo and paying the fees therefor.

Application for such license shall be made to the city auditor in writing and when approved by the chief of the fire department, shall be issued by the city auditor to the applicant therefor, upon the presentation by the applicant of a receipt from the city treasurer showing payment of the required license fee. All licenses issued under this section shall be for a period

terminating on the last day of June next following the issuance of the same. The annual license fee for an automotive service station or bulk oil plant shall be established by resolution of the board of city commissioners. Said license fee shall cover the cost of all inspections made by the fire department. No license fee shall be charged for a privately owned gasoline pump not used for commercial purposes. All renewal license fees shall be due July first of each year and a penalty of 10% of the license fees shall be assessed for each day after July 10th that said renewal license fee is not paid.

Such license shall be transferable only: (1) when the licensee desires to change his place of business; and (2) when the licensee has sold and disposed of his business. All applications for transfer of any such license shall be made to the city auditor in writing, such applications to be signed both by the licensee and the person or persons to whom it is desired to transfer the same. Where the licensee has abandoned or discontinued the business conducted under such license or has been dispossessed of the premises by legal proceedings, or where his occupancy of such premises as a tenant has terminated, the city auditor, with the approval of the chief of the fire department, may grant a new license to the incoming tenant or proprietor for the unexpired term regardless of the failure or refusal of said licensee to join in the application for such license.

Source: 2405 (1988).

ARTICLE 9-07

INTERNATIONAL FIRE CODE

Section

9-0701 International Fire Code--Adoption.
9-0702 Establishment and duties of bureau of fire prevention.
9-0703 Definitions.
9-0704 Modification of International Fire Code.
9-0705 Fire lanes--Enforcement--Duty of property owner.
9-0706 Modifications--Power of the chief of the fire prevention bureau.
9-0707 Appeals.
9-0708 Penalties.

9-0701. International Fire Code--Adoption.--There is hereby adopted by reference by the board of city commissioners, for the purpose of prescribing regulations governing conditions hazardous to life and property from fire or explosion, that certain code known as the International Fire Code being particularly the 2024 Edition thereof and all subsequent revisions and additions thereto; save and except such portions as are hereinafter deleted, modified, or amended by ordinance or in accordance with the provisions of section 9-0704, a copy of said code is on file in the office of the chief of the Fargo Fire Department and the same is hereby adopted and incorporated as fully as if set out in length herein, and from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the limits of the city, and within the extra-territorial zoning jurisdiction of the city.

Source: 5354 (2022), 5489 (2025).

Editor's note—Ord. No. 5354, §§ 1, 2, adopted May 31, 2022, repealed the former § 9-0701, and enacted a new § 9-0701 as set out herein. The former section pertained to similar

subject matter and derived from Ord. Nos. 2080 (1983), 2251 (1986), 2449 (1989), 2618 (1992), 2756 (1995), 2866 (1998), 4188 (2001), 4408 (2004), 4426 (2004), 4603 (2007), 4744 (2010), 4877 (2013), 5053 (2016), and 5222 (2019).

9-0702. Establishment and duties of bureau of fire prevention.--

A. The International Fire Code shall be enforced by the bureau of fire prevention in the fire department of the city which bureau is hereby established and which shall be operated under the supervision of the chief of the fire department.

B. The chief in charge of the bureau of fire prevention shall be appointed by the chief of the fire department on the basis of examination to determine his qualifications. His appointment shall continue during good behavior and satisfactory service.

C. The chief of the fire department may detail such members of the fire department as inspectors as shall, from time to time, be necessary. The chief of the fire department shall recommend to the civil service commission the employment of technical inspectors who, when such authorization is made, shall be selected through an examination to determine their fitness for the position. The examination shall be open to members and nonmembers of the fire department, and appointments made after examination shall be for an indefinite term subject to civil service ordinances and regulations.

D. A report of the bureau of fire prevention shall be made annually and transmitted to the board of city commissioners. It shall contain all proceedings under this code with such statistics as the chief of the fire department shall wish to include therein. The chief of the fire department shall also recommend any amendments to the code which, in his judgment, shall be desirable.

Source: 2080 (1983), 4188 (2001).

9-0703. Definitions.--

1. Wherever the word "municipality" is used in the International Fire Code, it shall mean the city of Fargo.
2. Wherever the term "corporation counsel" is used in the International Fire Code, it shall mean the city attorney for the city of Fargo.
3. Wherever the term "International Plumbing Code" is used in the International Fire Code, it shall mean the North Dakota state plumbing code.
4. Wherever the term "ICC Electrical Code" is used in the International Fire Code, it shall mean the National Electric Code together with the North Dakota State Wiring Standards.

Source: 2080 (1983), 4188 (2001).

9-0704. Modification of International Fire Code.--The International Fire Code as adopted in Section 9-0701 is hereby changed and amended as follows:

Section 101.1 is hereby amended to read as follows:

101.1 Title. These regulations shall be known as the Fire Code of the city of Fargo, hereinafter referred to as "this code."

Section 103.1 is hereby amended to read as follows:

> **103.1 Creation of Agency.** The Fargo Fire Department is hereby created and the official in charge thereof shall be known as the fire code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

Section 104.8 is hereby amended to read as follows:

> **104.8 Liability.** The fire code official, member of the board of appeals, officer or employee charged with the enforcement of this code, while acting for the jurisdiction, in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not be rendered personally liable, either civilly or criminally, and is hereby relieved from all personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. Any suit instituted against an officer or employee because of an act or omission performed by that officer or employee in the lawful discharge of duties and under the provisions of this code shall be afforded all the protection provided by the city's insurance pool and immunities and defenses provided by other applicable state and federal laws and shall be defended by legal representative of the jurisdiction until the final termination of the proceedings. The building official or any subordinate shall not be liable for cost in any action, suit or proceeding that is instituted in pursuance of the provisions of this code.
>
> This code shall not be construed to relieve from or lessen the responsibility of any person owning, operating, or controlling any building or structure for any damages to persons or property caused by defects nor shall the code enforcement agency or the city be held as assuming any such liability by reason of the inspection authorized by this code or any permits or certificates issued under this code.

Section 105.5.1 is hereby deleted in its entirety.

Table 105.5.9 is hereby amended to read as follows:

> **Table 105.5.9 Permit Amounts for Compressed Gases.**

Type of Gas	Amount (cubic feet at NTP)
Carbon dioxide used in carbon dioxide enrichment systems	4375 (500 lbs.)
Carbon dioxide used in insulated liquid carbon dioxide beverage dispensing applications	4375 (500 lbs.)
* * * *	* * * *

Section 105.5.14 is hereby deleted in its entirety.

Section 105.5.15 is hereby deleted in its entirety.

Section 105.5.18 Subsection 2 is hereby amended in part to read as follows:

2. To store, handle or use Class 1A liquids in excess of 30 gallons, Class 1B liquids in excess of 60 gallons, Class 1C liquids in excess of 90 gallons in a building or outside of a building, except that a permit is not required for the following:

* * * *

Section 105.5.18 Subsection 3 is hereby amended to read as follows:

3. To store, handle or use Class II or Class IIIA liquids in excess of 120 gallons in a building or in excess of 120 gallons outside a building, except for fuel oil used in connection with oil-burning equipment.

Section 105.5.19 is hereby deleted in its entirety.

Section 105.5.25 Subsections 1, 5, and 6 of are hereby deleted in their entirety.

Section 105.5.33 is hereby deleted in its entirety.

Section 105.5.34 is hereby deleted in its entirety.

Section 105.5.35 is hereby deleted in its entirety.

Section 105.5.38 is hereby amended to read as follows:

105.5.38 Open flames and candles. An operational permit is required to use open flames or candles in connection with assembly areas, dining areas of restaurants or drinking establishments. For purposes of this provision, churches shall not be deemed to be assembly areas and shall not be required to obtain a permit to utilize candles in religious ceremonies.

Section 105.5.40 is hereby deleted in its entirety.

Section 105.5.42 is hereby deleted in its entirety

Section 105.5.46 is hereby amended to read as follows:

105.5.46 Refrigeration equipment. An operational permit is required to operate a mechanical refrigeration unit or system regulated by Chapter 6 containing more than 30 pounds of Group A3, B2, or B3 refrigerant.

Section 105.5.47 is hereby amended to read as follows:

105.5.47 Repair garages. An operational permit is required for operation of repair garages.

Section 105.5.51 is hereby amended to read as follows:

> **Section 105.5.51 Temporary membrane structures, special event structures and tents.** An operational permit is required to operate an air-supported temporary membrane structure, a temporary special event structure, or a tent having an area in excess of 400 square feet (37m^2) for the purposes of assembly.
>
> * * * *

Section 105.5.55 is hereby deleted in its entirety.

Section 105.5.56 is hereby deleted in its entirety

Section 105.5.57 is hereby deleted in its entirety.

Section 105.6.3 is hereby deleted in its entirety.

Section 105.6.6 is hereby deleted in its entirety.

Section 105.6.8 is hereby deleted in its entirety.

Section 105.6.11 is hereby deleted in its entirety.

Section 105.6.12 is hereby deleted in its entirety.

Section 105.6.13 is hereby deleted in its entirety.

Section 105.6.14 is hereby deleted in its entirety.

Section 105.6.16 is hereby amended to read as follows:

> **105.6.16 LP-gas.** A construction permit is required for installation of or modification to an LP-gas system with a single container in excess of 2000 gallons water capacity or the aggregate capacity of containers is more than 4000 gallons in water capacity. Maintenance performed in accordance with this code is not considered to be a modification and does not require a permit.

Section 105.6.17 is hereby deleted in its entirety.

Section 105.6.18 is hereby deleted in its entirety.

Section 105.6.19 is hereby deleted in its entirety.

Section 105.6.20 is hereby deleted in its entirety.

Section 105.6.21 is hereby deleted in its entirety.

Section 105.6.22 is hereby deleted in its entirety.

Section 105.6.24 is hereby deleted in its entirety.

Section 105.6.25 is hereby deleted in its entirety.

Section 106.4 is hereby amended as follows:

> **106.4 Retention of construction documents.** One set of construction documents shall be retained by the fire code official for a period of not less than 180 days from date of completion of the permitted work, or as required by state or local laws.

Section 113.4 is hereby amended to read as follows:

> **113.4 Violation penalties**. Persons who shall violate a provision of this code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or do work in violation of the approved construction documents or directive of the fire code official, or of a permit or certificate used under provisions of this code, shall be guilty of an infraction. Each day that a violation continues after due notice has been served shall be deemed a separate offense. Every person, firm or corporation violating an ordinance which is punishable as an infraction shall be punished by a fine not to exceed $1,000.00; the court to have power to suspend said sentence and to revoke the suspension thereof.

Section 203.4.2 is hereby amended to read as follows:

> **203.4.2 Group E, day care facilities**. This group includes buildings and structures or portions thereof occupied by more than twelve children older than 2 ½ years of age who receive educational, supervision or personal care services for fewer than 24 hours per day.

Section 203.4.2.2 is hereby amended to read as follows:

> **203.4.2.2 Twelve or fewer children.** A facility having twelve or fewer children receiving such day care shall be classified as part of the primary occupancy.

Section 203.4.2.3 is hereby amended to read as follows:

> **203.4.2.3 Twelve or fewer children in a dwelling unit.** A facility such as the above within a dwelling unit and having twelve or fewer children receiving such day care shall be classified as a Group R-3 occupancy or shall comply with the International Residential Code.

Section 203.7.4 is hereby amended to read as follows:

> **203.7.4 Institutional Group I-4, day care facilities.** Institutional Group I-4 shall include buildings and structures occupied by more than twelve persons of any age who receive

custodial care for fewer than 24 hours per day by persons other than parents or guardians, relatives by blood, marriage or adoption, and in a place other than the home of the person cared for. This group shall include, but not be limited to, the following:

Adult day care

Child day care

Section 203.7.4.1 is hereby amended to read as follows:

203.7.4.1 Classification as Group E. Every child day care facility that provides care for more than twelve but not more than 100 children 2 ½ years or less of age, where the rooms in which the children are cared for are located on a level of exit discharge serving such rooms and each of these child care rooms have an exit door directly to the exterior, shall be classified as Group E.

Section 203.7.4.3 is hereby amended to read as follows:

203.7.4.3 Twelve or fewer persons receiving care. A facility having twelve or fewer persons receiving custodial care shall be classified as part of the primary occupancy.

Section 203.7.4.4 is hereby amended to read as follows:

Section 203.7.4.4 Twelve or fewer persons receiving care in a dwelling unit. A facility such as the above within a dwelling unit having twelve or fewer persons receiving custodial care shall be classified as a Group R-3 occupancy or shall comply with the International Residential Code.

Section 304.1.1 is hereby amended to read as follows:

304.1.1 Valet trash. Valet trash collection shall not be permitted. Trash and recycling materials shall not be placed in the corridor of Group R occupancies.

Section 307.1.1 is hereby amended to read as follows:

307.1.1 Prohibited open burning. Open burning shall be prohibited when atmospheric conditions or local circumstances make such fires hazardous. All open burning, including recreational fires, are banned when the fire index is at the high, very high or extreme level, and any time during a red flag warning.

* * * *

Section 308.3 is hereby amended by adding the following subsection 1.4 to exception 1:

Exceptions:

1. Open-flame devices are allowed to be used in the following situations, provided approved precautions are taken to prevent ignition of a combustible material or injury to occupants:

* * * *

1.4. Open-flame devices for food warming.

Section 503.4 is hereby amended to read as follows:

503.4 Obstruction of fire apparatus access roads. Fire apparatus access roads shall not be obstructed in any manner, including the parking of vehicles. The minimum widths and clearances established in Sections 503.2.1 and 503.2.2 shall be maintained at all times. Enforcement of such prohibited parking may be accomplished in the same manner as regulations contained in Article 8-10 and in Section 9-0705 of the Fargo Municipal Code.

Section 507.5.4 is hereby amended to read as follows:

507.5.4 Obstruction. Unobstructed access to fire hydrants shall be maintained at all times. The fire department shall not be deterred or hindered from gaining immediate access to fire protection equipment or fire hydrants. An approved hydrant marker shall be installed immediately adjacent to the rear of the hydrant.

Section 806.1.1 is hereby amended by adding the following exception:

Exceptions:

* * * *

3. For purposes of this provision, churches shall not be deemed public buildings and may utilize natural or resin bearing cut trees in the altar area of the church. No electric lighting is allowed on the tree.

Section 903.3.1 is hereby amended to read as follows:

903.3.1 Standards. Automatic sprinkler systems shall be designed with a 5 psi safety margin and installed in accordance with Sections 903.3.1.1, unless otherwise permitted by Sections 903.3.1.2 or 903.3.1.3 and other chapters of this code, as applicable.

Section 903.3.1.1.1 is hereby amended to read as follows:

903.3.1.1 Exempt locations. Automatic sprinklers shall not be required in the following rooms or areas where such rooms or areas are protected with an automatic fire detection system in accordance with Section 907.2 that will respond to visible or

invisible particles of combustion. Sprinklers shall not be omitted from a room merely because it is damp, of fire-resistant-rated construction or contains electrical equipment.

* * * *

6. Elevator machine room and machinery spaces. Where sprinklers are not installed in elevator machine rooms, shunt trip required in accordance with IBC 3005.5 shall not be installed.

Section 903.3.5 Water Supplies is hereby amended to read as follows:

903.3.5 Water supplies. Water supplies for automatic sprinkler systems shall comply with this section and the standards referenced in Section 903.3.1. The potable water supply shall be protected against backflow in accordance with the requirements of this section and the International Plumbing Code. For connections to public waterworks systems, the water supply test used for design of fire protection systems shall be adjusted to account for seasonal and daily pressure fluctuations based on information from the water supply authority and as approved by the fire code official. Underground water supply piping shall be constructed of a material allowed by Chapters 16 and 22 of the Fargo Municipal Code and shall be allowed to extend into the building through the slab or wall not more than 24 inches.

Section 907.8.3 is hereby deleted in its entirety.

Section 1009.8.1 is hereby amended to read as follows:

1009.8.1 System requirements. Two-way communication systems shall provide communication between each required location and the fire command center or a central control point location approved by the fire department. Where the central control point is not constantly attended, a two-way communication system shall have a timed automatic telephone dial-out capability that provides two-way communication with an approved supervising station. The two-way communication system shall include both audible and visible signals. Systems shall be listed in accordance with UL 2525 and installed in accordance with NFPA 72.

Section 1011.1 Exceptions are hereby amended to read as follows:

Exceptions:

1. Within rooms or spaces used for assembly purposes, stepped aisles shall comply with Section 1030.

2. A stairway complying with section 1011 except where in a B, F, M, S or U that serves an area of 750 sf or less, and is not open to the public, that has a maximum riser height of 8 inches and a minimum tread depth of 9 inches, has a minimum width of 36 inches and has at least one handrail that terminates at the top and bottom riser and otherwise complies with section 1014.

Section 1011.5.2 exceptions are hereby amended to read as follows:

Exceptions:

* * * *

3. In Group R-3 occupancies; within dwelling units in Group R-2 occupancies not required by Chapter 11 to be Accessible or Type A dwelling or sleeping units; and in Group U occupancies that are accessory to a Group R-3 occupancy or accessory to individual dwelling units in Group R-2 occupancies; the maximum riser height shall be 8 inches; the minimum tread depth shall be 9 inches; and the minimum winder tread depth shall be 6 inches (152 mm). A nosing projection not less than ¾ inch (19.1 mm) but not more than 1 ¼ inches (32 mm) shall be provided on stairways with solid risers where the tread depth is less than 11 inches (279 mm).

* * * *

6. Stairways used only to attend equipment or private stairways serving an occupant load of 10 or fewer persons and which are not accessible to the public are permitted to have a maximum 8-inch riser height and minimum 9 tread depth.

Section 1103.2 is hereby deleted in its entirety.

Section 1103.5.1 is hereby deleted in its entirety.

Section 1103.5.3 is hereby deleted in its entirety.

Section 1103.5.4 is hereby deleted in its entirety.

Section 2303.1 is hereby amended by adding the following Subsection 7:

Section 2303.1 Location of dispensing devices.

* * * *

7. On new installations, dispensing devices used to fill portable containers with home heating fuels shall not be located on the same island where Class I liquids are dispensed.

Section 2306.1 is hereby amended to read as follows:

2306.1 General. Storage of flammable and combustible liquids shall be in accordance with Chapter 57 and Sections 2306.2 through 2306.6.3. See also Fargo Municipal Code, Section 9-0604.

Section 3107.2 is hereby amended to read as follows:

3107.2 General. Outdoor assembly events with planned attendance exceeding 1,000 people shall be in accordance with this section and Section 403.11. Temporary structures erected for outdoor assembly events shall comply with this chapter.

Section 3303.1 is hereby amended to read as follows:

3303.1 Program development and maintenance. The owner or owner's authorized agent shall be responsible for the development, implementation and maintenance of an approved, written site safety plan establishing a fire prevention program at the project site applicable throughout all phases of the construction, repair, alteration or demolition work. When required by the fire code official, the plan shall be submitted and approved before a building permit is issued. Any changes to the plan shall be submitted for approval.

Section 4104.2 is hereby amended to read as follows:

4104.2 Open-flame cooking devices. Charcoal burners and other open-flame cooking devices shall not be operated on combustible balconies or decks or within 10 feet (3048 mm) of combustible construction.

Exceptions:

1. One- and two-family dwellings.

2. Where buildings, balconies and decks are protected by an automatic sprinkler system.

3. LP-gas cooking devices having LP-gas container with a water capacity not greater than 47.8 pounds [nominal 20 pounds (9 kg) LP-gas capacity].

Section 5704.2.9.6.1 is hereby amended to read as follows:

5704.2.9.6.1 Locations where above-ground tanks are prohibited. Storage of Class I and II liquids in above-ground tanks outside of buildings is prohibited within the limits established by law as set forth in the fire code adoption ordinance or other regulation adopted by the jurisdiction. Above-ground tanks, with a capacity exceeding 660 gallons in individual capacity or 1,320 gallons in aggregate capacity, outside of buildings shall be installed only in areas zoned industrial or limited industrial and shall be located at least 300 feet from all non-industrial zoned districts.

Exception: Above-ground tanks containing a class II liquid directly connected to a fuel burning appliance shall not exceed 1,320 gallons in all non-industrial zoned districts.

Above-ground tanks used for dispensing outside of buildings in all non-industrial zoned districts shall not exceed 660 gallons in individual capacity or 1,320 gallons in aggregate capacity and shall be listed and labeled as protected above-ground tanks in accordance with UL 2085.

Section 5704.2.13.1.4 is hereby amended to read as follows:

5704.2.13.1.4. Tanks abandoned in place. Tanks abandoned in place shall be as follows:

* * * *

7. Site assessment is required to determine if there are any spills, leaks, or discharge from the tank system. Records of site assessment shall be kept on the site of tank location.

Section 5705.3.7.5.1 exception is hereby amended to read as follows:

Exceptions:

1. Where natural ventilation can be shown to be effective for the materials used, dispensed or mixed.

2. When approved by the chief, continuous ventilation may be provided for one complete air change per hour, if supplemented with mechanical ventilation designed to provide for a complete air change six times per hour. The non-continuous ventilation equipment and any lighting fixtures shall be operated by the same switch located outside of the door.

Section 5806.2 is hereby amended to read as follows:

5806.2 Limitations. Storage of flammable cryogenic fluids in stationary containers outside of buildings is prohibited within the limits established by law as set forth in the fire code adoption ordinance or other regulation adopted by the jurisdiction. Stationary containers shall be installed only in areas zoned industrial or limited industrial and shall be located at least 300 feet from all non-industrial zoning districts.

Section 6103.2.1.6 is hereby amended to read as follows:

6103.2.1.6 Use with self-contained torch assemblies. Portable LP-gas containers are allowed to be used to supply approvedself-contained torch assemblies or similar appliances. Such containers shall not exceed a water capacity of 12 pounds.

Section 6104.2 is hereby amended to read as follows:

6104.2 Maximum capacity within established limits. For the protection of heavily populated or congested areas, storage of liquefied petroleum gas shall not exceed an aggregate capacity in any one installation of 2,000 gallons (7570 L) within the limits established by law as set forth in the fire code adoption ordinance or other regulation

adopted by the jurisdiction. Unprotected tanks with a water capacity exceeding 2,000 gallons shall be installed only in areas zoned industrial or limited industrial and shall be located at least 300 feet from all non-industrial zoning districts.

* * * *

Appendix B "Fire-Flow Requirements for Buildings" is hereby adopted and enacted in its entirety.

Appendix C "Fire Hydrant Locations and Distribution" is hereby adopted and enacted in its entirety.

Appendix D "Fire Apparatus Access Roads" is hereby adopted and enacted in its entirety.

Section D103.1 of Appendix D is hereby deleted in its entirety.

Source: 5354 (2022), 5489 (2025).

Editor's note—Ord. No. 5354, §§ 1, 2, adopted May 31, 2022, repealed the former § 9-0704, and enacted a new § 9-0704 as set out herein. The former section pertained to similar subject matter and derived from Ord. Nos. 2080 (1983), 2250 (1986), 2449 (1989), repealed by Ord. No. 2618 (1992), re-enacted by Ord. No. 2618 (1992), 2756 (1995), 2866 (1998), 4014 (2000), 4188 (2001), 4286 (2002), 4408 (2004), 4426 (2004), 4603 (2007), 4697 (2009), 4744 (2010), 4877 (2013), 5053 (2016), 5222 (2019).

9-0705. Fire lanes--Enforcement--Duty of property owner.--

A. No person shall park any motor vehicle in or obstruct in any way any fire lanes or access roads which have been designated and marked with No Parking signs. The owner and/or manager of any private property which is utilized by the public and which has been designated as a fire lane or access road as hereinbefore provided, shall not permit or allow such parking or obstruction of said fire lanes by any other person. It shall be the duty of the owner and/or manager of any property designated a fire lane to clearly sign and mark such fire lane in accordance with guidelines to be specified by the chief of the fire department and thereafter to remove or cause to be removed any vehicles or other obstructions from said fire lanes.

B. Managers and/or owners of private property designated as fire lanes are hereby empowered to remove any motor vehicle or other obstruction in said fire lanes and to charge the cost of such removal to the owner of the motor vehicle or other property obstructing the fire lane. Upon removal of any such motor vehicle or other property from a fire lane, the owner and/or manager of the private property may retain possession of said motor vehicle or other personal property until any costs of such removal are paid by the owner and/or manager of said motor vehicle or other personal property.

Source: 2080 (1983), 2618 (1992), 4926 (2014).

9-0706. Modifications--Power of the chief of the fire prevention bureau.--The chief of the fire prevention bureau shall have power to modify any of the provisions of the Interna-

tional Fire Code upon application in writing by the owner or lessee, or his duly authorized agent, when there are practical difficulties in the way of carrying out the strict letter of the code, provided that the spirit of the code shall be observed, public safety secured, and substantial justice done. The particulars of such modification when granted or allowed and the decision of the chief of the fire prevention bureau thereon shall be entered upon the records of the department and a signed copy shall be furnished the applicant, and the chief of the fire prevention bureau shall notify the board of city commissioners in writing within a period of three days regarding any modifications in the code.

Source: 2080 (1983), 4926 (2014).

9-0707. Appeals.--Whenever the chief of the fire department shall disapprove an application or refuse to grant a permit applied for, or when it is claimed that the provisions of the code do not apply or that the true intent and meaning of the code have been misconstrued or wrongly interpreted, the applicant may appeal from the decision of the chief of the fire department to the board of city commissioners within 30 days from the date of the decision appealed from by filing a written notice of appeal with said board specifically stating the grounds and reasons for said appeal.

Source: 2080 (1983).

9-0708. Penalties.--

A. Any person who shall violate any of the provisions of the code hereby adopted or fail to comply therewith, or who shall violate or fail to comply with any order made thereunder, or who shall build in violation of any detailed statement of specifications or plans submitted and approved thereunder or any certificate or permit issued thereunder, and from which no appeal has been taken, or who shall fail to comply with any order as affirmed or modified by the board of city commissioners, or by a court of competent jurisdiction, within the time fixed therein shall severally for each and every such violation and noncompliance respectively be guilty of an offense, punishable by a fine of not more than $1,000. The imposition of one penalty for any violation shall not excuse the violation or permit it to continue; and all persons shall be required to correct or remedy such violations or defects within a reasonable time; and when not otherwise specified, each 10 days that prohibited conditions are maintained shall constitute a separate offense.

B. The application of the above penalty provisions shall not be held to prevent the enforced removal of prohibited conditions.

Source: 2080 (1983), 4926 (2014).

CHAPTER 10

PUBLIC SAFETY, MORALS AND WELFARE

Article

10-01	Restraint of Minors, §§ 10-0101 to 10-0104.
10-02	Regulation of Decency, §§ 10-0201 to 10-0203.
10-03	Breaches of Peace and Order, §§ 10-0301 to 10-0325.
10-04	Prohibited Knives and Other Devices, §§ 10-0401 to 10-0405.
10-05	False Identification as to Age, §§ 10-0501, 10-1502.
10-06	Theft and Shoplifting, §§ 10-0601, 10-0602.
10-07	Noisy Parties, §§ 10-0701 to 10-0704.
10-08	Picketing--Repealed.
10-09	Sunday Laws, § 10-0901.
10-10	Tobacco Vending Machines, §§ 10-1001, 10-1002.
10-11	Smoking in Public Indoor Work Places Prohibited, §§ 10-1101 to 10-1103.
10-12	Marijuana and Marijuana Paraphernalia, §§ 10-1201 to 10-1205.
10-13	Cigar Smoking in Public Places and Places of Employment Prohibited, §§ 10-1301 to 10-1303.
10-14	Camping on Public Property, §§ 10-1401 to 10-1404.

ARTICLE 10-01

RESTRAINT OF MINORS

Section

10-0101	Persons under the age of 21 years prohibited from purchasing, possessing or consuming alcoholic beverages.
10-0102	Unlawful for minors to enter liquor or beer establishments.
10-0103	Sale of tobacco to individuals under twenty-one (21) years of age and use and possession by individuals under 21 years of age prohibited.
10-0104	Curfews.
10-0105	Sale of flavored e-liquids to individuals under 21 years of age prohibited.

10-0101. Persons under the age of 21 years prohibited from purchasing, possessing or consuming alcoholic beverages.--Except as permitted in this section and § 25-1509 of the Fargo Municipal Code, it shall be unlawful for any person under the age of 21 years to purchase, attempt to purchase, have in his possession, consume or have recently consumed other than during a religious service, or to be under the influence of alcoholic beverages, or furnish money to any person for such purchase, within the city limits of the city of Fargo. Consumption for purposes of this ordinance shall also include consumption of alcoholic beverages whether within or without the limits of the city of Fargo if the arrest occurs within the city of Fargo.

Source: 2508 (1989), 2585 (1991), 4018 (2000).

10-0102. Unlawful for minors to enter liquor or beer establishments.--It shall be unlawful for any person under the age of 21 years to enter, or attempt to enter, any establishment in the city where intoxicating liquor or beer is sold, served, or dispensed, unless otherwise permitted under § 25-1509.

Source: 2508 (1989), 5311 (2021).

10-0103. Sale of tobacco to individuals under twenty-one (21) years of age and use and possession by individuals under 21 years of age prohibited.--

A. For purposes of this section the definitions in 10-1001 shall apply.

B. No person shall sell or furnish to an individual under 21 years of age, or procure for an individual under 21 years of age, cigarettes, including clove cigarettes, cigarette papers, cigars, e-cigarettes, snuff, or tobacco products in any other form in which it may be utilized for smoking, vaping, or chewing. As used in this section, "sell" includes dispensing from a vending machine under the control of the vendor. A person in violation of this subsection shall be guilty of an infraction.

C. No person under the age of 21 shall sell, possess, purchase, attempt to purchase, smoke, or use cigarettes, including clove cigarettes, cigars, cigarette papers, e-cigarettes, snuff, or tobacco products in any other form in which it may be utilized for smoking, vaping, or chewing.

D. An individual fourteen years of age or older, but under eighteen years of age, found to have violated subsection B or C of this section has committed an infraction and must be sent to juvenile court.

1. Subsections (B) and (C) shall not apply to persons under the age of 21 who purchase or attempt to purchase said tobacco products listed in this subsection while under the direct supervision of the police department, the city health department, or the city attorney's office, for training, education, research, or enforcement purposes.

2. Subsections (B) and (C) do not apply to an individual under 21 years of age who possesses cigarettes, cigarette papers, cigars, snuff, tobacco in any other form in which it may be used for smoking or chewing, electronic smoking devices, or alternative nicotine products when required in the performance of the individual's duties as an employee, however, in no event shall any sale or other exchange for value with a person under 21 years of age be lawful.

3. It shall be a defense to subsections (B) and (C) if the individual under 21 years of age possesses or uses tobacco related to a cultural or religious practice; including, without limitation, the use or possession of tobacco

during any religious or cultural ceremony, however, in no event shall any sale or other exchange for value with a person under 21 years of age be lawful.

4. Non-criminal violation. A person found to have violated subsection (C) and is at least 18 years of age must attend and complete within sixty (60) days of the date of offense a tobacco education program or cessation class approved by the Fargo Municipal Court.

5. Payment procedure. Any individual who has been cited for a violation of subsection (C) must post bond in the amount stated on the citation within fourteen (14) days of the date of the citation and must also, within said fourteen (14) day period, notify the Fargo Municipal Court whether he or she requests a hearing before one of the judges of the Fargo Municipal Court. At such hearing, the individual who has been cited for a violation of subsection (C) may make a statement in explanation of that individual's action and the judge may waive, reduce, or suspend the fee or bond, or both. If the individual cited elects to forfeit the bond or fails to appear before the Fargo Municipal Court at a time scheduled for a hearing, that individual has admitted the violation and has waived the right to a hearing on the issue of commission of the violation. The bond required to secure appearance before the court is the same as the fee schedule set forth in subparagraph 4, above. This section does not allow a citing officer to receive the fee or bond.

   a. If an individual cited for a violation of subsection (C) requests a hearing on the issue of the commission of the violation cited, the clerk of court will schedule a hearing date no later than 90 days after the citation was issued. If said individual has not already done so, at the time of a request for a hearing on the issue on commission of the violation, the individual cited shall deposit with the court an appearance bond equal to the fee for the violation cited.

   b. The failure to post bond or to pay an assessed fee, or attend a tobacco education or tobacco cessation class when required to do so is punishable as contempt of court. Such person adjudged guilty of contempt for failure to pay a fee or fine or to attend a tobacco education class or tobacco cessation class when required to do so may be sentenced by the court to a sanction or order designed to ensure compliance with the payment of the fee or fine or attendance at a tobacco education class or tobacco cessation class, to an alternative sentence or a sanction including community service. An individual under 21 years of age may not be imprisoned for the contempt.

6. Burden of proof. The prosecution must prove the commission of a cited violation under subsection (C), above, by a preponderance of the evidence.

7. Penalty for contempt. A person adjudged guilty of contempt for failure to pay a fee or fine or to attend a tobacco education class or tobacco cessation class when required to do so may be sentenced by the court to a sanction or order designed to ensure compliance with the payment of the fee or fine or attendance at a tobacco cessation class to an alternative sentence or sanction including community service and may require the person to pay an additional fee or fine of up to $500.

Source: 2779 (1996), 3021 (1999), 4265 (2002), 4902 (2014), 5235 (2019), 5312 (2021), 5502 (2025).

10-0104. Curfews--Definitions, restrictions, exceptions and enforcement.--

A. In this section, unless the context or subject otherwise requires:

1. "Curfew hours" means 11:00 p.m. until 6:00 a.m. every day of the week.

2. "Emergency" means an unforeseen combination of circumstances or the resulting state that calls for immediate action. The term includes, but is not limited to, a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or loss of life.

3. "Establishment" means any privately owned place of business operated for a profit to which the public is invited including, but not limited to, any place of amusement or entertainment.

4. "Guardian" means (a) a person who, under court order, is the guardian of the person of a minor; or (b) a public or private agency with whom a minor has been placed by a court.

5. "Minor" means, for the purposes of this ordinance, any person under 16 years of age.

6. "Operator" means any individual, firm, association, partnership, or corporation operating, managing, or conducting any establishment. The term includes the members or partners of an association or partnership and the officers of a corporation.

7. "Parent" means a person who is (a) a natural parent, adoptive parent, or step-parent of another person; or (b) at least 18 years of age and authorized by a parent or guardian to have the care and custody of a minor.

8. "Public place" means any place to which the public or a substantial group of the public has access and includes, but is not limited to, streets, highways, and the common areas of schools, hospitals, apartment houses, office buildings, transport facilities, and shops.

9. "Remain" means to (a) linger or stay; or (b) fail to leave premises when requested to do so by a police officer or the owner, operator, or other person in control of the premises.

10. "Serious bodily injury" means bodily injury that creates a substantial risk of death or that causes death, serious permanent disfigurement, or protracted loss or impairment of the function of any bodily member or organ.

B. Restrictions during curfew hours.

1. It shall be unlawful for any minor to remain in any public place or on the premises of any establishment within the city during curfew hours.

2. It shall be unlawful for any parent or guardian of a minor to knowingly permit, or by insufficient control allow, the minor to remain in any public place or on the premises of any establishment within the city during curfew hours. The term "knowingly" includes knowledge which a parent or guardian should reasonably be expected to have concerning the whereabouts of a minor in the legal custody of that parent or guardian.

3. It shall be unlawful for any owner, operator, or any employee of an establishment to knowingly allow a minor to remain upon the premises of the establishment during curfew hours.

C. Exceptions to curfew.

1. The following shall constitute valid exceptions to the operation of the curfew. That the minor was:

a. accompanied by the minor's parent or guardian;

b. on an errand at the direction of the minor's parent or guardian, without any detour or stop;

c. in a motor vehicle involved in interstate travel;

d. engaged in an employment activity, or going or returning home from an employment activity, without any detour or stop;

e. involved in an emergency;

f. on the sidewalk abutting the minor's residence or abutting the residence of a next-door neighbor if the neighbor did not complain to the police department about the minor's presence;

g. attending an official school, religious, or other recreational activity supervised by adults and sponsored by a civic organization, or another similar entity that takes responsibility for the minor, or going to or returning home from, without any detour or stop, an official school, religious, or other recreational activity supervised by adults and sponsored by a civic organization, or another similar entity that takes responsibility for the minor;

h. exercising First Amendment rights protected by the United States Constitution, such as the free exercise of religion, freedom of speech, and the right of assembly; or,

i. married or had been married.

2. It is a defense to prosecution under section (B) that the owner, operator or employee of an establishment promptly notified the police department that a minor was present on the premises of the establishment during curfew hours and refused to leave.

D. Enforcement of curfew. Before taking any enforcement action under this section, a police officer shall ask the apparent offender's age and reason for being in the public place. The officer shall not issue a citation or make an arrest under this section unless the officer has probable cause to believe that an offense has occurred and that, based on any response and other circumstances, no defense in section (C) is present.

Source: 2778 (1996).

10-0105. Sale of flavored e-liquids to individuals under 21 years of age prohibited.--

1. No person shall sell, offer for sale, or distribute in this city any flavored e-liquid or electronic smoking device containing flavored e-liquid to an individual under 21 years of age.

2. "E-liquids" include the solution, liquid, or flavor agent in electronic cigarettes, which are vaporized. "E-liquids" may or may not include nicotine.

3. A person that violates subsection 1 and is not a manufacturer is subject to a fine of five hundred dollars ($500) for each individual package of flavored e-liquid product or electronic smoking device containing flavored e-liquid sold or offered for sale.

4. A person in violation of this subsection shall be guilty of an infraction and shall be fined $500.

Source: Ord. 5237 (2019), 5312 (2021).

ARTICLE 10-02

REGULATION OF DECENCY

Section

10-0201 Indecent exposure.
10-0202 Indecent, disorderly persons.
10-0203 Public intoxication--Assistance--Medical care.

10-0201. Indecent exposure.--No person shall engage in the following:

A. Knowingly exposing one's penis, vulva, or anus with the intent to annoy, harass, or alarm another person.

B. Masturbating with the intent to annoy, harass, or alarm another person.

Source: 2508 (1989), 2743 (1995).

10-0202. Indecent, disorderly persons.--No person shall appear in any street, alley, building, or public place within the city and there conduct himself or herself in a tumultuous, riotous, indecent, or disorderly manner, or commit any lewd, lascivious, immoral, or indecent act.

Source: 2508 (1989).

10-0203. Public intoxication--Assistance--Medical care.--A police officer shall have authority to take any apparently intoxicated person to said person's home, to a local hospital, or, whenever such person constitutes a danger to himself or others, to a jail for purposes of detoxification. A duly licensed physician of such local hospital shall have authority to hold such person for treatment up to 72 hours. Such intoxicated person shall not be held in jail because of intoxication more than 24 hours. An intoxicated person shall not be placed in jail unless a jailer is constantly present within hearing distance and medical services are provided when the need is indicated. Upon placing such intoxicated person in a hospital or jail, said police officer shall notify the intoxicated person's family as soon as possible. Any additional costs incurred by the city on account of an intoxicated person shall be recoverable from such person. Said intoxicated person shall not be prosecuted in any court solely for public intoxication. The police department and officers thereof, may utilize standard identification procedures on all persons given assistance because of apparent intoxication.

Source: 2508 (1989).

ARTICLE 10-03

BREACHES OF PEACE AND ORDER

Section

10-0301 Disorderly conduct.
10-0302 Making a false report to police unlawful.
10-0303 Obstructing public officers in discharge of their duties.

10-0304 Carrying, possession, discharge of dangerous weapons.
10-0305 Persons lying in wait to commit crime.
10-0306 Throwing missiles against buildings or motor vehicles or at persons.
10-0307 Reserved.
10-0308 Disturbing religious meetings.
10-0309 Assemblies on streets prohibited.
10-0310 Disturbing public assemblage.
10-0311 Reserved.
10-0312 Posting handbills or advertisements on private or public property.
10-0312.1 Signs advertising sales--Date--Removal.
10-0313 False fire or police alarms--Interference with alarm systems, apparatus, or equipment.
10-0314 Barbed wire fences prohibited.
10-0315 Regulations for national defense.
10-0316 Sale and use of fireworks in the city.
10-0317 Unlawful to resist police officer.
10-0318 State of emergency--Declaration and duration.
10-0319 Incendiary devices.
10-0320 Registration in public schools.
10-0321 Criminal mischief.
10-0321.1 Criminal mischief--Hate crime.
10-0322 Harassment.
10-0322.1 Harassment--Hate crime.
10-0323 Simple assault.
10-0323.1 Simple assault--Hate crime.
10-0324 Aiding or abetting violation.
10-0325 Criminal trespass.
10-0326 Urinating in public.
10-0327. Consuming or possessing alcoholic beverages in public.

10-0301. Disorderly conduct.--

A. A person is guilty of disorderly conduct if, with intent to harass, annoy, or alarm another person or in reckless disregard of the fact that another person is harassed, annoyed, or alarmed by his behavior, he:

1. Engages in fighting, or in violent, tumultuous or threatening behavior;

2. Makes unreasonable noise;

3. In a public place uses abusive or obscene language, knowingly exposes that individual's penis, vulva, or anus, or makes an obscene gesture;

4. Obstructs vehicular or pedestrian traffic, or the use of a public facility;

5. Persistently follows a person in or about a public place or places;

6. While loitering in a public place for the purpose of soliciting sexual contact, he solicits such contacts;

7. Makes any threatening or intimidating telephone calls;

8. Creates a hazardous, physically offensive, or seriously alarming condition by any act which serves no legitimate purpose; or

9. Engages in harassing conduct by means of intrusive or unwanted acts, words, or gestures that are intended to adversely affect the safety, security, or privacy of another person.

B. This section does not apply to constitutionally-protected activity. If an individual claims to have been engaged in a constitutionally-protected activity, the court shall determine the validity of the claim as a matter of law and, if found valid, shall exclude evidence of the activity.

If any section, sentence, paragraph or provision of this ordinance shall be held invalid or unconstitutional, such shall not affect the validity of any other section, sentence, paragraph or provision hereof.

Source: 2508 (1989), 2747 (1995), 4518 (2006).

10-0302. Making a false report to police unlawful.--It shall be unlawful for any person knowingly to make or submit to the police department of the city or any officer or employee thereof any report or complaint of the violation of any law of this state or of the United States or any ordinance of the city, which report or complaint shall be in fact false or untrue, and known to the person making or submitting the same to be false and untrue.

Source: 2508 (1989).

10-0303. Obstructing public officers in discharge of their duties.--Every person who willfully delays or obstructs a public officer in the discharge or attempt to discharge any duty of his office shall, upon conviction thereof, be punished as herein provided.

Source: 2508 (1989).

10-0304. Carrying, possession, discharge of dangerous weapons.--

A. Definitions. For purposes of this section:

1. "Dangerous weapon" includes any switchblade or gravity knife, machete, scimitar, stiletto, sword, dagger, or knife with a blade of six inches [15.24 centimeters] or more; any throwing star, nunchaku, or other martial arts weapon; any billy, blackjack, sap, bludgeon, cudgel, metal knuckles, or sand club; any slingshot; any bow and arrow, crossbow, or spear; any weapon that will expel, or is readily capable of expelling, a projectile by the action of a spring, compressed air, or compressed gas including any such weapon, loaded or unloaded, commonly referred to as a BB gun, air rifle, or CO_2 gun; and any projector of a bomb or any object containing or capable of producing and emitting any noxious liquid, gas, or sub-

stance. "Dangerous weapon" does not include a spray or aerosol containing CS, also known as ortho-chlorobenzamalonitrile; CN, also known as alpha-chloroacetophenone; or other irritating agent intended for use in the defense of an individual, nor does the term include a device that uses voltage for the defense of an individual, unless the device uses a projectile and voltage, then the term includes the device for an individual who is prohibited from possessing a firearm under this title. However, the term includes a device that uses a projectile and may be used to apply multiple applications of voltage during a single incident.

2. "Firearm" means any device which will expel, or is readily capable of expelling, a projectile by the action of an explosive and includes any such device, loaded or unloaded, commonly referred to as a pistol, revolver, rifle, gun, machine gun, shotgun, bazooka, or cannon.

3. A "public gathering" means an athletic or sporting event, a school, or a church, and a publicly owned or operated building.

B. It shall be unlawful within the limits of the city for anyone except law enforcement officers, or anyone duly permitted by the state of North Dakota, to carry concealed about his person a dangerous weapon or firearm.

C. It shall be unlawful within the limits of the city for any person to discharge, or activate any dangerous weapon or firearm. This subsection shall not apply to:

1. Law enforcement officers in the performance of their duties;

2. Persons in defense of person or property;

3. Persons lawfully participating in a management plan or program approved by the board of city commissioners for the control of deer or other animals within the city limits; and

4. Person using an indoor firing range that is a permitted use under Chapter 20 (Land Development Code) of the Fargo Municipal Code.

D. Except for those persons described in N.D.C.C. § 62.1-02-05 subd. 2, it shall be unlawful within the limits of the city for a person to carry or have in his possession a dangerous weapon or firearm:

1. At a public gathering, as defined by N.D.C.C. 62.1-02-05 subd. 1; and

2. In a publicly owned or operated building.

E. Except for those persons described in N.D.C.C. § 62.1-02-10, it shall be unlawful within the limits of the city for any person to carry or possess a loaded firearm in or on a motor vehicle.

F. The chief of police is hereby authorized to grant a permit for certain types of events to take place within the city that include the discharge of those items listed in subsection D. above. The sponsor of the event shall submit to the chief of police a written application for a permit prior to the opening of the event. The application shall state:

1. The time, date and location of the event;

2. The group, firm or individual by whom the event will be sponsored;

3. The purpose of the event;

4. The activities that will be held; and

5. An affirmation that the sponsor agrees to save and hold harmless the city of Fargo, its officers, employees and agents from and against all claims, lawsuits, causes of action, damages and litigation costs, including attorney's fees, arising from the sponsor's activity under the permit issued herein, and an affirmation that the issuance of a permit hereunder shall not preclude the city of Fargo from asserting against third parties any defenses to liability it may have under North Dakota law.

The decision of the chief of police may be appealed to the board of city commissioners by the sponsor.

In granting a permit for an event the chief of police may consider the following:

1. The nature of the event and how it can serve the community, the city and/or its citizens;

2. The time period during which the event will occur;

3. The location of the event and whether the location inhibits the safe flow of traffic in the city;

4. Whether the activities would be in compliance with other applicable laws;

5. Whether the event is to benefit nonprofit community service organizations. Commercial events which generate profit for the private sector, other than profit incidental to the event which is made by persons other than the sponsor of the event, shall be permitted only if the applicant submits evidence to the chief of police that the event constitutes a community service; and

6. The general health, safety and welfare of the participants in and organizers of the event and the citizens and occupants of the city.

The sponsor of the event shall provide all cleaning services necessary to rid the area of all debris and litter created as a result of the event.

The issuance of a permit to a sponsor shall authorize only that sponsor and participants specifically authorized by the sponsor to participate in that event without the restrictions imposed by this chapter.

A copy of the permit granted under this subsection will be posted in city hall, near the office of the city auditor and on the city's website.

The sponsor of the event shall procure general liability insurance for the event in an amount not less than $250,000 per person/$500,000 per occurrence and shall name the city of Fargo as an additional insured. Evidence of an insurance policy naming the city of Fargo as an additional insured must be submitted to the chief of police prior to the issuance of the permit. The insurance requirement of this paragraph is not applicable to those events during which the items noted in subparagraph C. above do not fire or release a projectile.

G. Nothing in this section shall be construed to prohibit the carrying of dangerous weapons or unloaded firearms or the use of firearms which are loaded with blank cartridges for signal or ceremonial purposes in athletic or sporting events, or for use by military organizations.

Source: 2508 (1989), 2632 (1992), 4074 (2000), 4487 (2005), 4519 (2006), 4741 (2010), 4812 (2012), 4831 (2012), 4861 (2013), 5000 (2015), 5133 (2018), 5517 (2025).

10-0305. Persons lying in wait to commit crime.--No person shall lurk, lie in wait, or conceal himself in any house or other building or in any yard or other place within the limits of the city with intent to do any mischief, or pilfer, or commit any crime or misdemeanor whatever.

Source: 2508 (1989).

10-0306. Throwing missiles against buildings or motor vehicles or at persons.--No person shall throw or cast, or encourage, aid, or assist others in throwing or casting, any stone or other missiles into, upon, or against any buildings, erection, motor vehicles, or other public or private property, or at any person or persons in any street, alley, or any enclosed or unenclosed place within the city.

Source: 2508 (1989).

10-0307 Reserved.--

Editor's note—Ord. No. 5418, § 1, adopted January 8, 2024, repealed § 10-0307, which pertained to persons using streets not to be molested and derived from Ord. No. 2508, adopted 1989.

10-0308. Disturbing religious meetings.--No person shall disquiet or disturb any congregation or assembly, meeting for religious purposes, by making any noise or committing any rude or indecent behavior, or making disorderly or profane discourse within the place of worship or so near the same as to disturb the order and solemnity of the meeting.

Source: 2508 (1989).

10-0309. Assemblies on streets prohibited.--Except as authorized under sections 18-0307 through 18-0317 herein, it shall be unlawful for any number of persons to assemble upon any sidewalk, bridge, street, alley, or public way in the city in any way or in a manner which may tend to hinder or impede free public travel thereon or hinder or impede free egress or ingress to and from any place of business, public hall, church, or other buildings; and any of the persons so assembled who shall refuse or neglect to move away, depart, and give free passage, after being requested to do so by the chief of police or any police officer or by the owner, occupant, or manager of any such place of business, hall, or church obstructed as aforesaid, shall be guilty of a misdemeanor.

Source: 2508 (1989), 4377 (2004).

10-0310. Disturbing public assemblage.--No person shall, in this city, interfere with or disturb any lawful assemblage or association of people by rude or indecent behavior or by any other means.

Source: 2508 (1989).

10-0311 Reserved.--

Editor's note—Ord. No. 5419, § 1, adopted January 8, 2024, repealed § 10-0311, which pertained to panhandling and derived from Ord. No. 2508, adopted 1989; Ord. No. 4006, adopted 2000; Ord. No. 4212, adopted 2002; Ord. No. 4830, adopted 2012; Ord. No. 5275, adopted 2020.

10-0312. Posting handbills or advertisements on private or public property.--No person shall, without first obtaining the consent of the owner or proprietor, post handbills, placards, or posters, or make, print, or mark any word, letter, or advertisement of any kind upon any private house, store or other building, or upon any fence, railing, wall, vehicle, or other property; nor shall any person make, print, post or mark any word, character or advertisement upon any public building, bridge, fence, railing, sidewalk, utility pole, vehicle or other public or private property within the city. This section shall not be construed to prohibit the placement of pamphlets, handbills or other written material on the exterior of public or private property, including vehicles; provided, that such placement does not require alteration or defacement of the property or vehicle by use of nails, tacks, tape or any other fastening device or material.

Source: 2508 (1989).

10-0312.1 Signs advertising sales--Date--Removal.--No person shall post any handbill, placard, poster or sign of any kind advertising any auction sale, rummage sale, garage sale or similar activity unless such sign indicates the date or dates of the sale. Such sign shall be removed no later than midnight on the date following the last date of the sale.

Source: 2473 (1989).

10-0313. False fire or police alarms--Interference with alarm systems, apparatus, or equipment.--No person shall give, or cause to be given, any false fire alarm or police alarm with intent to deceive; or tamper with or set off any fire alarm or police alarm or signal box with like intent; or tamper, meddle, and interfere with any such police or fire alarm box, or intentionally cut, break, deface or remove any of such boxes or any of the wires or supports thereof connecting with the fire alarm system or the police alarm system; or intentionally interfere with, or injure any portion of, such system or systems; or, in any manner whatever, intentionally interfere with or injure any property of any kind belonging to or used by the fire department or police department; or hinder or delay any apparatus or equipment or vehicle belonging to the fire department or the police department.

Source: 2508 (1989).

10-0314. Barbed wire fences prohibited.--No person or persons shall, within the limits of the city, erect, construct, or maintain any fence or enclosure on any premises or piece or parcel of ground with what is known as barbed wire; provided, however, that such part of any fence so erected which is eight feet or more above the ground may be erected or constructed of barbed wire; and provided further, that no part of such barbed wire shall be permitted to extend beyond the lot line of the property upon which the same is so erected or constructed.

Source: 2508 (1989).

10-0315. Regulations for national defense.--The president of the board of city commissioners shall proclaim and publish, five days in advance of any national defense activities hereinafter mentioned, rules and regulations, which shall have the force and effect of law, for the conduct and cooperation of citizens in connection therewith. Such activities may include air raid and blackout plans, trial blackouts, emergency fire, police and health department activities, including trial emergency periods involving plans for the protection of public peace, health, and safety in times of national emergency; and in connection with the powers vested in him by the laws of the state of North Dakota, the president of the board of city commissioners may call on male inhabitants of the city over the age of 18 years to aid in enforcing such rules and regulations; and further in such connection, he may call for assistance upon organizations such as the local chapter of the American Red Cross, the National Defense Council, local posts of the American Legion and of the Veterans of Foreign Wars, and other national and local organizations, for special duties in connection with the carrying out of plans for the national defense as may be set forth in such rules and regulations.

It shall be unlawful to willfully refuse or neglect to obey such rules and regulations as proclaimed by the president of the board of city commissioners, or to willfully refuse or neglect to obey any order issued by him in connection therewith, or any call made upon any citizen for aid in enforcing the same.

This section shall constitute an exercise by the city of its governmental functions for the protection of public peace, health, and safety, and a violation of or failure to comply with any of the provisions of this section or of the rules and regulations proclaimed by the president of the board of city commissioners in connection therewith shall constitute a misdemeanor, and shall be punishable by a fine of not exceeding $100, or by imprisonment in the city jail not exceeding 90 days, or by both such fine and imprisonment.

Source: 2508 (1989).

10-0316. Sale and use of fireworks in the city.--As used in this section the term "fireworks" means any substance or combination of substances or articles prepared for the purpose of producing a visible or an audible effect by combustion, explosion, deflagration, or detonation and includes blank cartridges, toy cannons, and toy canes in which explosives are used, the type of balloons which require fire underneath to propel them, firecrackers, torpedoes, sky rockets, Roman candles, daygo bombs, sparklers, or other fireworks containing any explosive or inflammable compound, or any tablets or other devices containing any explosive substance and commonly known as fireworks. The term "fireworks" shall not include toy paper caps containing not more than .25 of a grain of explosive composition per cap.

Except as otherwise provided in this ordinance, it shall be unlawful for any person to offer for sale, expose for sale, sell at retail or wholesale, use, explode or possess any fireworks within the limits of the city of Fargo.

In the event an existing location for the retail or wholesale sale of fireworks becomes annexed into the city of Fargo, the chief of the fire department shall be authorized to grant a permit to possess and sell at retail or wholesale fireworks within the limits of the city of Fargo provided the following are met:

A. The permit may only be granted for the next period for sale of fireworks of June twenty-seventh through July fifth as defined in N.D.C.C. Section 23-15-01.

B. Any enclosure in which fireworks are stored or from which fireworks are sold must be at least 1,000 feet from the nearest single or multiple residential (SR or MR) zoning district.

C. Any enclosure in which fireworks are stored or from which fireworks are sold must be at least 1,000 feet from the nearest residential building.

D. In order to qualify for such permit, the said person, firm or other entity requesting the permit shall have obtained a Temporary Use Permit, under Section 20-0404 of the Land Development Code, for the prior period for sale of fireworks of June twenty-seventh through July fifth as defined in N.D.C.C. Section 23-15-01.

E. The said person, firm or other entity requesting the permit shall obtain a Temporary Use Permit, under Section 20-0404 of the Land Development Code for the next and upcoming period for sale of fireworks of June twenty-seventh through July fifth as defined in N.D.C.C. Section 23-15-01. The zoning administrator shall be authorized to issue a Temporary Use Permit, under Section 20-0404, as though said person, firm or other entity were still located outside city limits..

F. The applicant shall display a sign at each check-out stand where retail fireworks are sold indicating that possession of fireworks within Fargo city limits is unlawful and that purchases of fireworks from the applicant must be removed from city limits within one hour of purchase. Such sign shall be displayed in a location which may be viewed and easily read by any customer purchasing fireworks.

G. Any person in possession of fireworks purchased at a fireworks stand within Fargo city limits which has obtained permission from the fire chief, as described herein, shall not be in violation of this ordinance prohibiting such possession during a period of one hour from the time such purchase is made.

This ordinance shall not prohibit supervised public displays of fireworks by any organization or association within the city for which a permit shall have been first obtained from the Fargo fire department. The application for such permit shall be made with the fire department for investigation to determine whether the operator of the display is competent and whether the display is of such character and is to be so located, discharged, or fired that it will not be hazardous to property or endanger any person. The chief of the fire department shall determine whether such permit shall be issued or the application rejected. In issuing such permit, the city assumes no liability for any damage to persons or property resulting from such displays.

Nothing in this section shall be construed to prohibit the use of fireworks by airplanes and railroads or other transportation agencies for signal purposes or illumination; or the sale or use of blank cartridges for a show or theater, or for signal or ceremonial purposes in athletics or sports, or for use by military organizations.

Source: 2508 (1989), 4318 (2003).

10-0317. Unlawful to resist police officer.--It shall be unlawful for any person by the use of force, violence, or flight to resist knowingly any police officer in the performance of his duties.

Source: 2508 (1989).

10-0318. State of emergency--Declaration and duration.--

A. The mayor or commissioner acting for the mayor, is authorized, if he finds that the city or any part thereof is suffering or is in imminent danger of suffering civil disturbance, disorder, riot or other occurrence, including danger of flooding of the city, or any part of the city, which will seriously and substantially endanger the health, safety and property of the citizens, to declare a STATE OF EMERGENCY and take the following specified measures throughout the city or any part thereof; the declaration shall be made in a proclamation which shall be delivered to the chief of police, who shall then see that said proclamation is delivered to the news media within the city and who shall use public address systems throughout the city, electronic notification systems or other means deemed appropriate by the chief of police and immediately notify the public of said proclamation.

1. Require evacuation of all or any portion of the city. The chief of police shall have the authority to order the evacuation of residential or commercial buildings or other structures whenever, in the opinion of the chief of police, it is necessary in order to maintain the peace or to protect the health, safety or property of the city or its citizens from the danger for which the state of emergency was declared.
2. Prohibit or limit the movement of persons or hours of operation of businesses, by curfew or otherwise, within the designated disaster or emergency area, and the occupancy of premises therein.
3. Halt access or exit upon public highways to or from the city or any part thereof.
4. Suspend operations at municipal airport.
5. Halt the movement of trains, or other vehicles into, within, or from the city.
6. Limit or prohibit the sale, dispensing or transportation of alcoholic beverages, explosives, gasoline or other flammable liquids.
7. Limit or prohibit the sale, carrying or possession on the public sidewalks or public streets, or in any public park, of weapons including, but not limited to, bows and arrows, air rifles, slingshots, knives, razors, or missiles of any kind.
8. The city engineer shall have the authority to go upon the property of another to establish a temporary flood control dike of earthen or other material whenever, in the opinion of the city engineer, it is necessary in order to maintain or protect the health, safety or property of the city or citizens from flooding or the effects of flooding. In forming such opinion, the city engineer may consider the effect that floodwaters would have upon the city's system of storm or sanitary sewers, or upon other of the city's infrastructure system.

9. The mayor or chief of police shall have the authority to close any and all streets, alleys, levees, dikes or other flood protection barriers and other public ways in the city of Fargo to the public and to prohibit persons from being on, walking on or driving on the same whenever, in the opinion of the chief of police, it is necessary in order to maintain the peace of the community or to safeguard the same.

10. Every person remaining present at the place of any riot or unlawful assembly after the same has been ordered to disperse by the police or any other lawful authority, except the public officers and persons assisting them in the dispersing of same, shall be guilty of a misdemeanor.

B. Unless noted otherwise in this section, any person who willfully violates any provisions of this section or a declaration issued by the mayor pursuant to this section is guilty of an infraction.

C. Duration. The STATE OF EMERGENCY declared by the mayor shall continue until the mayor determines that the threat of an emergency has passed or the disaster has been dealt with to the extent that emergency conditions no longer exist; however, such declaration may not extend for a period of more than 30 days without approval of the board of city commissioners. The STATE OF EMERGENCY may be terminated at any time by the board of city commissioners.

Source: 2508 (1989), 4702 (2009), 4732 (2010), 5182 (2018).

10-0319. Incendiary devices.--No person or groups of persons shall own, manufacture, sell, transfer, use or possess any incendiary device or similar device or parts thereof including, but not limited to a "molotov cocktail". An incendiary device is defined as any flammable liquid enclosed in a readily breakable container that can be equipped with an igniter of any type.

A. Exception. This ordinance shall not apply to authorized personnel of the United States government or of the state of North Dakota who use incendiary devices as part of their duties.

Source: 2508 (1989).

10-0320. Registration in public schools.--During such time as regularly scheduled classes are in session, no person shall enter and remain in any public elementary or secondary school building within the city of Fargo without first registering in the main office of said school; provided, however, this section shall not apply to members and staff of the board of education of the city of Fargo, faculty and employees of the Fargo public schools and students enrolled in that school nor to police officers or other law enforcement officers in the performance of their duties.

Reasonable notification of the requirements of this section shall be conspicuously posted at the entrance to every public elementary and secondary school within the city of Fargo and no complaint for a violation of this section shall issue unless such notice is given.

Source: 2508 (1989), 4568 (2007).

10-0321. Criminal mischief.--A person is guilty of criminal mischief if he commits any of the following acts:

A. Willfully tampers with tangible property of another so as to endanger person or property.

B. Willfully damages tangible property of another. The court may, in addition to assessing any penalty for violation of this ordinance as permitted by law, order reimbursement or restitution by the offender to the person whose property has been damaged or destroyed.

Source: 2508 (1989).

10-0321.1. Criminal mischief--Hate crime.--A person is guilty of criminal mischief if he commits any of the following acts:

A. Willfully tampers with tangible property of another so as to endanger person or property.

B. Willfully damages tangible property of another. The court may, in addition to assessing any penalty for violation of this ordinance as permitted by law, order reimbursement or restitution by the offender to the person whose property has been damaged or destroyed.

C. Commits an offense in violation of subdivision A or B in whole or in part because of the actual or perceived race, color, religion, gender, disability, sexual orientation, gender identity, national origin, or ancestry of the victim.

Source: Ord. 5305 (2021).

10-0322. Harassment.--

A. A person is guilty of an offense if, with intent to frighten or harass another, the person:

1. Makes a telephone call anonymously or in offensively coarse language;

2. Makes repeated telephone calls or other electronic communication, whether or not a conversation ensues, with no purpose of legitimate communication;

3. Communicates a falsehood in writing or by electronic communication and causes mental anguish; or

4. Uses a robot to engage in offensive conduct with no legitimate purpose.

B. Any offense defined herein and committed by use of electronic communication may be deemed to have been committed at either the place at which the electronic communication was made, or at the place where the electronic communication was received.

C. Any offense defined herein is deemed communicated in writing if it is transmitted electronically, by electronic mail, facsimile, or other similar means. Electronic communication means transfer of signs, signals, writing, images, sounds, data, or intelligence of any nature transmitted in whole or in part by a wire, radio, electromagnetic, photo-electronic, or photo-optical system.

D. As used in this section "robot" means an artificial object or system that senses, processes, and acts using technology, including the associated elements, communication links, and artificial intelligence. The term includes remotely piloted aircraft.

Source: 2508 (1989), 4863 (2013), 5501 (2025).

10-0322.1. Harassment--Hate crime.--

A. A person is guilty of an offense if, with intent to frighten or harass another, the person:

1. Makes a telephone call anonymously or in offensively coarse language;

2. Makes repeated telephone calls or other electronic communication, whether or not a conversation ensues, with no purpose of legitimate communication;

3. Communicates a falsehood in writing or by electronic communication and causes mental anguish; or

4. Uses a robot to engage in offensive conduct with no legitimate purpose.

B. Any offense defined herein and committed by use of electronic communication may be deemed to have been committed at either the place at which the electronic communication was made, or at the place where the electronic communication was received.

C. Any offense defined herein is deemed communicated in writing if it is transmitted electronically, by electronic mail, facsimile, or other similar means. Electronic communication means transfer of signs, signals, writing, images, sounds, data, or intelligence of any nature transmitted in whole or in part by a wire, radio, electromagnetic, photo-electronic, or photo-optical system.

D. Commits an offense in violation of subdivision A (1), (2), or (3) in whole or in part because of the actual or perceived race, color, religion, gender, disability, sexual orientation, gender identity, national origin, or ancestry of the victim.

E. As used in this section "robot" means an artificial object or system that senses, processes, and acts using technology, including the associated elements, communication links, and artificial intelligence. The term includes remotely piloted aircraft.

Source: Ord. 5306 (2021), 5501 (2025).

10-0323. Simple Assault.--A person is guilty of an offense if he:

A. Willfully causes bodily injury to another human being; or

B. Negligently causes bodily injury to another human being by means of a firearm, destructive device, or other weapon, the use of which against a human being is likely to cause death or serious bodily injury.

Source: 2468 (1989).

10-0323.1. Simple assault--Hate crime.--A person is guilty of an offense if he:

A. Willfully causes bodily injury to another human being; or

B. Negligently causes bodily injury to another human being by means of a firearm, destructive device, or other weapon, the use of which against a human being is likely to cause death or serious bodily injury.

C. Causes bodily injury to another in whole or in part because of the victim's actual or perceived race, color, religion, gender, disability, sexual orientation, gender identity, national origin, or ancestry.

Source: Ord. 5307 (2021).

10-0324. Aiding or abetting violation.--Every person who aids, abets, counsels, encourages, hires, commands, induces, or otherwise procures another to violate any of the provisions of this chapter shall be guilty of an offense.

Source: 2654 (1993).

10-0325. Criminal trespass.--A person is guilty of criminal trespass, a class B misdemeanor, if:

A. Knowing that the person is not licensed or privileged to do so, that person enters or remains in any place as to which notice against trespass is given by actual communication to the actor by the person in charge of the premises or other authorized person or by posting in a manner reasonably likely to come to the attention of intruders. The name of the person posting the premises must appear on each sign in legible characters, or

B. That person remains upon the property of another after being requested to leave the property by a duly authorized person.

Source: 3089 (1999).

10-0326. Urinating in public.--It shall be unlawful for any person to urinate upon public or private property, including any street, alley, or public highway, or sidewalk or boulevard, except in a facility which is specifically designed for such purposes.

Source: 4561 (2006).

10-0327. Consuming or possessing alcoholic beverages in public.--A person may not consume alcoholic beverages, or possess an open container, to include any bottle, can or other receptacle that contains any amount of alcoholic beverages, upon streets, avenues, alleys, sidewalks, stairways, thoroughfares, or other public property in an area within the City, nor in

or upon the parking areas of private shopping centers, hotels, motels, licensed liquor establishments, restaurants, clubs, religious institutions, or similar establishments, unless such areas have been designated as part of an on-sale licensed premise, or granted a special event permit.

Source: 5471 (2025).

ARTICLE 10-04

PROHIBITED KNIVES AND OTHER DEVICES

Section

10-0401 Possession or sale of switchblades or butterfly knives illegal.
10-0402 Possession shall be evidence of unlawful intent.
10-0403 Destruction of switchblade or butterfly knives by chief of police.
10-0404 "Person" defined.
10-0405 Aiding or abetting violation--Repealed.

10-0401. Possession or sale of switchblade or butterfly knives illegal.--It shall be unlawful within the corporate limits of the city for any person to sell, offer or expose for sale, give away, or have in possession any knife, dagger, stiletto, or other similar device of the type commonly known as a switchblade knife, springblade knife, butterfly knife, or push-button knife.

Source: 2508 (1989).

10-0402. Possession shall be evidence of unlawful intent.--Possession of any one of the types of knives, daggers, or stilettos defined by § 10-0401 shall be prima facie evidence that such possession is unlawful and that such possession is had for the purpose and with the intent to violate this article.

Source: 2508 (1989).

10-0403. Destruction of switchblade or butterfly knives by chief of police.--If the defendant in any action, proceeding, prosecution, or trial shall plead guilty to, or be found guilty of, violating this article, any device found in his possession and similar to that described in § 10-0701 shall be destroyed by the chief of police or by someone under his direction, such destruction to be by burning with an acetylene torch or by some similar method which will insure complete destruction of the device.

Source: 2508 (1989).

10-0404. "Person" defined.--The term "person" as used in this article shall mean and include individuals, partnerships, associations, corporations, trustees, or receivers.

Source: 2508 (1989).

10-0405. Aiding or abetting violation.--

Source: 2508 (1989), repealed by Ord. No. 2654 (1993).

ARTICLE 10-05

FALSE IDENTIFICATION AS TO AGE

Section

10-0501 Unlawful to display or possess false identification as to age.
10-0502. Proof of Identification in a licensed premises.

10-0501. Unlawful to display or possess false identification as to age.--It shall be unlawful for any person to display, or cause or permit to be displayed, or have in his possession any identification card, document, paper, instrument, or thing of any kind which falsely or incorrectly shows, portrays, or represents said person's birth date or age in years to be anything other than his true and correct birth date or age in years.

Source: 2508 (1989).

10-0502. Proof of Identification in a licensed premises.--

1. If a peace officer has reasonable and articulable suspicion that an individual is under the age of twenty-one and is in a licensed premises as prohibited in section 25-1509 of the Fargo Municipal Code, the peace officer may request the individual to furnish a nondriver photo identification card or an operator's license to verify the individual's age.

2. An individual who refuses to provide proof of identification upon request is guilty of an infraction.

3. If an individual charged with an infraction under this section produces a nondriver photo identification card or an operator's license before the final disposition of the infraction establishing the individual was twenty-one years of age or older at the time of the peace officer's request to furnish identification, the prosecuting attorney shall dismiss the infraction against the individual.

Source: 5506 (2025).

ARTICLE 10-06

THEFT AND SHOPLIFTING

Section

10-0601 Commission of shoplifting or retail theft unlawful.
10-0602 Commission of theft unlawful.

10-0601. Commission of shoplifting or retail theft unlawful.--The commission of shoplifting or retail theft as referred to in chapter 51-21 of the North Dakota Century Code within the jurisdiction of the city of Fargo is unlawful and prohibited. Shoplifting or retail theft shall be subject to the following:

A. Presumption.--Any person concealing upon his person or among his belongings, or causing to be concealed upon the person or among the belongings of

another, unpurchased merchandise displayed, held, offered, or stored for sale in a retail mercantile establishment and removing it to a point beyond the last station for receiving payments in that retail mercantile establishment shall be prima facie presumed to have so concealed such merchandise with the intention of permanently depriving the merchant of possession of the full retail value of such merchandise, all as provided in § 51-21-02 of the North Dakota Century Code.

B. Definitions.--For purposes of this section, all of the definitions contained in § 51-21-01 of the North Dakota Century Code are hereby adopted by reference. In addition to those definitions, "shoplifting" means the taking of or exercising of unauthorized control over merchandise belonging to another and which merchandise is displayed, held, offered or stored for sale in a retail mercantile establishment, with the intent to permanently deprive the merchant of possession of the full retail value of such merchandise.

C. Detention of Suspect.--Procedure--Immunity.--The provisions of §§ 51-21-03 and 51-21-04 of the North Dakota Century Code are hereby adopted by reference.

Source: 2508 (1989), 2633 (1992), 4838 (2012).

10-0602. Commission of theft unlawful.-- The commission of theft as defined by chapter 12.1-23 of the North Dakota Century Code within the jurisdiction of the city of Fargo is unlawful and prohibited.

Source: 2605 (1992), 2633 (1992).

ARTICLE 10-07

NOISY PARTIES

Section

10-0701 Noisy party or gathering prohibited.
10-0702 Order to disperse--Refusal prohibited.
10-0703 Tenant or owner--Cooperation required.
10-0704 Violations--Prima facie evidence.

10-0701. Noisy party or gathering prohibited.--No person shall participate in any party or gathering consisting of two or more people when such party or gathering occurs in residentially zoned or used areas or buildings between the hours of 10:00 p.m. and 6:00 a.m. (subject to the exception set forth hereinafter) and when said party or gathering gives rise to unreasonable noise likely to cause significant discomfort or annoyance to a reasonable person of normal sensitivities present in the area, in consideration of the time of day and the residential character of said area or building. The 10:00 p.m. closing time may be extended by special permit secured from the board of city commissioners. Violation of this section shall be an infraction.

Source: 2508 (1989), 2653 (1993), 3029 (1999), 4393 (2004).

10-0702. Order to disperse--Refusal prohibited.--When a police officer determines that a party or other gathering of people is creating such unreasonable noise, disturbing the peace, or is disturbing the quiet or repose of another person, the officer may order all persons present, other than the owner or tenant of the premises where the disturbance is occurring, to disperse immediately. No person shall refuse to leave the premises after being ordered by a police officer to do so.

Source: 2508 (1989), 2653 (1993).

10-0703. Tenant or owner--Cooperation required.--Every owner of such premises, or tenant in charge of such premises, who has knowledge of the disturbance shall cooperate with such police officer and shall make reasonable effort to stop the disturbance.

Source: 2508 (1989).

10-0704. Violations--Prima facie evidence.--The following shall be prima facie evidence in any prosecution under this article:

A. As to tenants, and owner if owner resides on the premises, if twice or more on the same day or if on successive days, the Fargo police department is called upon to enforce the terms of this ordinance either by citizen complaint or by personal investigation of peace officer.

B. As to the owner if the owner does not reside at the premises, if after owner receives written notice of three violations of this ordinance by his tenants at any

premises owned by owner in the city of Fargo within a six-month period, and after receipt of such written notice, the Fargo police department is called upon to enforce this ordinance either by citizen complaint or by personal investigation of a peace officer.

C. Noise of such volume as to be clearly audible at a distance of 50 feet from the structure or building in which the party or gathering is occurring, or in the case of apartment buildings, in the adjacent hallway or apartment, shall be prima facie evidence of unreasonable noise in violation of this article.

Source: 2508 (1989), 3029 (1999).

ARTICLE 10-08

PICKETING

Note: Article 8 of chapter 10 (Sections 10-0801 to 10-0804) was repealed by Ord. No. 2843 (1998).

Source: 2190 (1985), 2508 (1989), 2640 (1993), 2707 (1994), 2716 (1994), 2843 (1998).

ARTICLE 10-09

SUNDAY LAWS

Section

10-0901 Business on Sunday--Food stores--Number of employees.

10-0901. Business on Sunday--Food stores--Number of employees.--Food stores may be operated on Sunday as provided in subsection 30 of § 12.1-30-03 of the North Dakota Century Code, without limitation as to the number of employees working.

Source: 2454 (1989).

ARTICLE 10-10

TOBACCO VENDING MACHINES

Section

10-1001 Definitions.
10-1002 Sale of tobacco products through vending machines limited.

10-1001. Definitions.--

1. "E-cigarette, electronic cigarette or electronic smoking devices" shall all mean any electronic oral device, such as one composed of a heating element and battery or electronic circuit, or both, which provides a vapor of nicotine or any other substances, and the use or inhalation of which simulates smoking. The term shall include any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, and e-pipe or under any other product, name, or descriptor and also includes any cartridge or other component of the device.

2. "Minor" shall mean any person who has not reached the age of 18 years.

3. "Person" shall mean any individual, partnership, corporation or other legal entity.

4. "Tobacco products" shall mean, any product that is made from or derived from tobacco, which contains nicotine or a similar substance, and is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, dissolved, inhaled or ingested by any other means, including, but not limited to, a cigarette, a cigar, pipe tobacco, chewing tobacco, snuff, snus, or an electronic smoking device. Tobacco product also includes pipes and rolling papers, but does not include any product specifically approved by the U.S. Food and Drug Administration for legal sale as a tobacco cessation product and is being marketed and sold solely for that approved purpose.

5. "Vending machine" shall mean any kind of device or mechanical machine which, upon the insertion of a coin or coins, tokens or other objects, will release tobacco products in packages or otherwise.

Source: 2621 (1992), 4902 (2014).

10-1002. Sale of tobacco products through vending machines limited.--No person shall sell or dispense any tobacco product through the use of a vending machine, except as follows:

A. A vending machine may be used to dispense tobacco products on the premises of an establishment licensed to sell alcoholic beverages, either on-sale or off-sale; provided, that if an on-sale establishment is also a restaurant where minors are permitted as provided in § 25-1509(C) of the Fargo Municipal Code, a vending machine located in that portion of the premises where individuals under 21 years of age are allowed must be operable only by activation of an electronic switch operated by an employee of the establishment before each sale, or by insertion of tokens provided by an employee of the establishment before each sale.

B. A vending machine which was in place prior to August 1, 1992, may be used to dispense tobacco products in an area within a factory, business, office or other place not open to the general public or to which persons under 21 years of age are not generally permitted access.

In the event of violation of this ordinance, the owner of the vending machine and the owner of the premises where the vending machine is located will both be deemed to have committed an infraction, as defined in § 1-0301 of Fargo Municipal Code.

Source: 2621 (1992), 5312 (2021).

ARTICLE 10-11

SMOKING IN PUBLIC INDOOR WORKPLACES PROHIBITED

Section

10-1101 Smoking in Public Indoor Workplaces Prohibited.
10-1102 Penalty.
10-1103 Effective Date.

10-1101. Smoking in Public Indoor Workplaces Prohibited.

A. The provisions of Sections 23-12-09 through 23-12-11 of the North Dakota Century Code as now enacted, are hereby adopted, except as provided in subsection B, and shall govern the regulation of smoking in public places and places of employment as if set out in this Article.

B. The exemptions from the prohibition of smoking in public places set forth in Section 23-12-10 (2) f, g, h, as set forth below are deleted and smoking is also prohibited in those places within the city limits.

f. Bars

g. Separately enclosed areas in truck stops which are accessible only to adults.

h. Any place of public access rented or leased for private functions from which the general public and children are excluded and arrangements for the function are under the control of the function sponsor.

10-1102. Penalty.--An individual who smokes in an area in which smoking is prohibited under this ordinance is guilty of an infraction. An owner or other person with general supervisory responsibility over a public place or place of employment who willfully fails to comply with this ordinance is guilty of an infraction, subject to a fine not to exceed one hundred dollars for the first violation, to a fine not to exceed two hundred dollars for a second violation within one year, and a fine not to exceed five hundred dollars for each additional violation within one year of the preceding violation.

10-1103. Effective Date.--Upon approval by the qualified voters of the City of Fargo at the next city wide election, this ordinance shall be in full force and effect from and after 8:00 am. on July 1st 2008

The foregoing initiated ordinance repealing and re-enacting Article 10-11 of Chapter 10 of the Fargo Municipal Code resulted from an initiated measure under the Fargo Home Rule Charter. The measure was entitled "SMOKING IN INDOOR PUBLIC PLACES PROHIBITED." Said caption was contained on a petition entitled PETITION TO PLACE THIS INITIATED ORDINANCE TO A VOTE OF THE PEOPLE ON THE NEXT CITY WIDE BALLOT TO PROHIBIT SMOKING IN INDOOR WORKPLACES INCUDING ALL BARS AND TRUCK STOPS. Said initiated ordinance was submitted to the voters; at the General Election held June 10, 2008; and adopted by the voters of the City of Fargo. The effective date on the initiated ordinance indicated it was to be in full force and effect from and after 8:00 a.m. on July 1, 2008.

Source: Initiated Ordinance 4670 (2008).

ARTICLE 10-12

MARIJUANA AND MARIJUANA PARAPHERNALIA

Section

10-1201 Definitions.
10-1202 Unlawful to possess marijuana.
10-1203 First offense.
10-1204 Unlawful to possess marijuana paraphernalia.

10-1205 Marijuana paraphernalia guidelines.

10-1201 Definitions.--

1. "Marijuana" is defined as set forth in the North Dakota Uniform Controlled Substances Act, N.D.C.C. Chapter 19-03.1 including N.D.C.C. §19-03.1-01.
2. "Marijuana paraphernalia" shall mean any device used, intended for use, or designed for personal use in, storing or containing, marijuana or for personal use in ingesting, inhaling, or otherwise intentionally introducing marijuana into the human body.

Source: 4913 (2014), 5224 (2019).

10-1202. Unlawful to possess marijuana.--

1. Except as may be authorized by N.D.C.C. Chapter 19-24.1, regarding medical marijuana, it shall be unlawful for any person to willfully, as defined by N.D.C.C. section 12.1-02-02, possess marijuana of an amount of less than one-half ounce [14.175 grams] within the jurisdictional limits of the city; such person therefore being guilty of an infraction.
2. Except as may be authorized by N.D.C.C. Chapter 19-24.1, regarding medical marijuana, it shall be unlawful for any person to willfully, as defined by N.D.C.C. section 12.1-02-02, possess marijuana in an amount of at least one-half ounce [14.175 grams] but not more than 500 grams of marijuana; such person therefore being guilty of a class B misdemeanor.
3. Except as may be authorized by N.D.C.C. Chapter 19-24.1, regarding medical marijuana, a person who is under twenty-one years of age and intentionally ingests, inhales, injects, or otherwise takes into the body a controlled substance that is marijuana is guilty of a class B misdemeanor.

Source: 4913 (2014), 5001 (2015), 5224 (2019).

10-1203. First offense.--When a person pleads guilty or is found guilty of a first offense under § 10-1202, the court, upon motion, shall seal the court record of that conviction if the person is not subsequently convicted within two years of a further violation of this chapter and has not been convicted of any other criminal offense. Once sealed, the court record may not be opened even by order of the court.

Source: 4913 (2014).

10-1204. Unlawful to possess marijuana paraphernalia.--Except as may be authorized by N.D.C.C. Chapter 19-24.1, regarding medical marijuana, it shall be unlawful for any person to use or possess with the intent to use marijuana paraphernalia to ingest, inhale, or otherwise introduce into the human body marijuana or to possess with the intent to store or contain marijuana within the jurisdictional limits of the city.

Source: 4913 (2014), 5224 (2019).

10-1205. Marijuana paraphernalia guidelines.--In determining whether an object is marijuana paraphernalia the court shall consider, in addition to all other logically relevant factors, the factors listed in N.D.C.C. § 19-03.4-02 as may be amended from time to time.

Source: 4913 (2014).

ARTICLE 10-13

CIGAR SMOKING IN PUBLIC PLACES AND PLACES OF EMPLOYMENT PROHIBITED

Section

10-1301 Definitions.
10-1302 Cigar smoking in public places and places of employment prohibited.
10-1303 Penalty.

10-1301. Definitions.--

1. "Smoking" means inhaling, exhaling, burning, or carrying any lighted or heated cigar, cigarette, or pipe, or any other lighted or heated tobacco or plant product intended for inhalation, in any manner or in any form. Smoking also includes the use of an e-cigarette which creates a vapor, in any manner or any form, or the use of any oral smoking device.
2. "Cigar" means an individual roll of tobacco which has a wrapper or cover of whole leaf tobacco; does not contain filler other than tobacco filler; does not contain binder other than tobacco binder; does not contain additives other than water; does not contain a filter, tip, or nontobacco mouthpiece; weighs at least six pounds per thousand count; and is made by hand, except to allow for the use of a manually operated machine to assist in bunching, rolling, and binding.
3. "E-cigarette" means any electronic oral device, such as one composed of a heating element and battery or electronic circuit, or both, which provides a vapor of nicotine or any other substances, and the use or inhalation of which simulates smoking. The term shall include any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, and e-pipe or under any other product, name, or descriptor.
4. "Public place" means an area which the public enters. Some examples of public places are publicly owned buildings, vehicles, or offices; bars; bingo facilities; gambling and gaming facilities as defined in section 12.1-28-01; child care and adult day care facilities subject to licensure by the department of health and human services, including those operated in private homes; convention facilities; educational facilities, both public and private; facilities primarily used for exhibiting a motion picture, stage, drama, lecture, musical recital, or other similar performance; financial institutions; health care facilities; hotels and motels, including all rooms that are rented to guests; laundromats; any common areas in apartment buildings, condominiums, mobile home parks, retirement facilities, nursing homes, and other multiple-unit residential facilities; private and semi-private nursing home rooms; museums, libraries, galleries, and aquariums; polling places; professional offices; public transportation facilities, including buses, trains, airplanes and similar aircraft, taxicabs and similar vehicles such as towncars and limousines when used for public transportation, and ticket, boarding, and waiting areas of public transit facilities, including bus and train stations and airports; reception areas; restaurants; retail food production and marketing establishments; retail service establishments; retail stores, includ-

ing tobacco and hookah establishments; rooms, chambers, places of meeting or public assembly, including school buildings; shopping malls; sports arenas; theaters; and waiting rooms.

5. "Place of employment" means an area under the control of a public or private employer, including work areas, auditoriums, classrooms, conference rooms, elevators, employee cafeterias, employee lounges, hallways, meeting rooms, private offices, restrooms, temporary offices, vehicles, and stairs. A private residence is not a place of employment unless it is used as a licensed child care, adult day care, or health care facility.

Source: 5380 (2023).

10-1302. Cigar smoking in public places and places of employment prohibited.--Cigar smoking is prohibited in public places and places of employment.

Source: 5380 (2023).

10-1303. Penalty.--An individual who smokes in an area in which smoking is prohibited under this ordinance is guilty of an infraction. An owner or other person with general supervisory responsibility who willfully allows a person to smoke in a place where smoking is prohibited is guilty of an infraction.

Source: 5380 (2023).

ARTICLE 10-14

CAMPING ON PUBLIC PROPERTY

Sections

10-1401 Definitions.
10-1402 Prohibited camping.
10-1403 Removal of a campsite.
10-1404 Penalties and enforcement.

10-1401. Definitions.--For the purpose of this Article, the following definitions will apply:

1. "City" means the city of Fargo, North Dakota.
2. "Camp" means to set up or to remain in a campsite.
3. "Campsite" means to pitch, erect, create, use, or occupy camp facilities for the purposes of habitation or maintaining a temporary place to live, as evidenced by the use of camp paraphernalia.
4. "Camp facilities" include, but are not limited to, lean-to, shacks, tents, huts, temporary shelters, or vehicles.
5. "Camp paraphernalia" includes, but is not limited to, tarpaulins, cots, beds, sleeping bags, pallets, mattresses, hammocks, stoves or fires, outdoor cooking devices or utensils and similar equipment.
6. "Enforcement officer" means a sworn law enforcement officer employed by the city of Fargo.
7. "Park areas" or "Park property" means those parks and recreation facilities identified in the city of Fargo owned and maintained by the Park District of the city of Fargo.

8. "Public property" means vacant or occupied lands that are owned, possessed or under the control of the city of Fargo, open to the public, premises, and buildings, including but not limited to any building used in connection with the transaction of public business and includes public rights-of-way. Public property as used in this Article shall include Park areas and Park property designated by the Park District of the city of Fargo for inclusion in this Article and corresponding Resolution, as the same shall be adopted from time to time.

9. "Public rights of way" means the area between boundary lines of a public street or other public easement that is reserved, used, or to be used for a public street, alley, or pathway.

10. "Store" or "storage" means to put aside or accumulate for use when needed, to put for safekeeping, to place or leave in a location.

11. "Unsanitary" means a hazard to the health and safety of the public, to include but not limited to human waste, bodily fluids, or chemical contamination.

Source: 5450 (2024).

10-1402. Prohibited camping.--No person may camp or establish any campsite in or upon any public property except as expressly authorized by this Article 10-14 or by Resolution of the Board of City Commissioners of the city of Fargo.

Source: 5450 (2024).

10-1403. Removal of a campsite.

1. Any person camping unlawfully shall vacate and remove all belongings from the public property within forty-eight (48) hours of receiving notice to vacate from an enforcement officer.

2. After notice has been given to vacate a campsite and the allotted time has expired, the City or its contractor shall remove the campsite, all camp facilities and camp paraphernalia as the same has been deemed a public nuisance.

(a) All unclaimed personal property with apparent value or utility will be stored for 60 days as required by Fargo Municipal Code § 28-0101.

(b) All unclaimed items that have no apparent utility or value, are in an unsanitary condition, or present an immediate hazard or danger, may be immediately discarded upon removal of individuals from the campsite.

(c) Any personal property that remains unclaimed for 60 days after the campsite cleanup may be disposed of in accordance with Fargo Municipal Code § 28-0101.

(d) Weapons, drug paraphernalia, and items which reasonably appear to be evidence of a crime may be retained and/or disposed of by the police department in accordance with the department's written policies and procedures.

Source: 5450 (2024).

10-1404. Penalties and enforcement.

1. Violations of any provision of this Article is an infraction and may result in additional violations of Fargo Municipal Code or North Dakota Century Code.

2. In addition to any other penalties that may be imposed, any campsite used in a manner not authorized by this Article, or other provisions of this code shall constitute a public nuisance and may be abated as such.

3. The remedies described in this Article shall not be the exclusive remedies of the City for violations of this Article.

Source: 5450 (2024).

CHAPTER 11

PUBLIC AND SANITARY NUISANCES

Article

11-01	General Provisions, §§ 11-0101 to 11-0103.
11-02	Noise Control and Radio Interference, §§ 11-0201 to 11-0215.
11-03	Gas Works, §§ 11-0301 to 11-0304.
11-04	Automobiles and Personal Property, §§ 11-0401 to 11-0404.
11-05	Smoke and Gases, §§ 11-0501 to 11-0506.
11-06	Dangerous Structures or Buildings, §§ 11-0601 to 11-0603.
11-07	Hedge, Tree, or Growth of any Nature Obstructing View of Driver of Vehicle or Creating Unsafe Obstruction or Hiding Place, §§ 11-0701 to 11-0704.
11-08	Environmental Nuisances, §§ 11-0801 to 11-0823.
11-09	Littering of Public Places by Contractors, §§ 11-0901 to 11-0907.
11-10	Pigeons and Harmful Wild Birds, §§ 11-1001 to 11-1004.

ARTICLE 11-01

GENERAL PROVISIONS

Section

11-0101	Nuisances under common law and law of state.
11-0102	Nuisances not permitted on any land.
11-0103	Cost of removal of nuisance assessed against property.

11-0101. Nuisances under common law and law of state.--In all cases where no provision is made defining what are nuisances and how the same may be removed, abated, or prevented, those offenses which are known to the common law of the land and the statutes of North Dakota as nuisances may, in case the same exist within the city limits or within one mile thereof, be treated as such and proceeded against as in this chapter provided or in accordance with any other law which shall give the court trying the same jurisdiction.

Source: 1952 Rev. Ord. 11-0101.

11-0102. Nuisances not permitted on any land.--No owner or occupant of any lot or tenement shall cause or permit any nuisance to be or remain in or upon any lot or tenement or between the same and the center of the street adjoining.

Source: 1952 Rev. Ord. 11-0102.

11-0103. Cost of removal of nuisance assessed against property.--The expense of the removal or destruction of a nuisance, source of filth, or cause of sickness shall be assessed against the property concerned by the city engineer and the assessment filed in the office of the city auditor. In August of each year, after due notice, the board of city commissioners shall review all such assessments, and hear all complaints against the same, and approve the same as finally adjusted; and such special assessment shall then be certified to by the county auditor and be placed upon the tax roll for that year and be collected as other taxes.

Source: 1952 Rev. Ord. 11-0103.

ARTICLE 11-02

NOISE CONTROL AND RADIO INTERFERENCE

Section

11-0201 Definitions.
11-0202 Unnecessary noise prohibited.
11-0203 Unlawful noise--Determination.
11-0204 Projection of sound unlawful.
11-0205 Motorized vehicles--compression brakes prohibited.
11-0206 Aircraft.
11-0207 Exemptions.
11-0208 Application for special permit.
11-0209 Application for permit for sound amplifying equipment used outdoors--Permit Required.
11-0210 Radio interference between six o'clock p.m. and eleven o'clock p.m. prohibited.
11-0211 Unlawful interference defined.
11-0212 Interference--When permitted.
11-0213 Building inspector--Powers and duties.
11-0214 Wires over streets, alleys, and private property--Consent of owner.
11-0215 Advertising or making announcements from buildings or on streets with sound trucks or noise-making devices prohibited--Exceptions.
11-0216 Public nuisance--Remedy.

11-0201. Definitions.--For purposes of this article, certain words and phrases used herein are defined as follows:

1. "Ambient noise" is the all-encompassing noise associated with a given environment, being usually composite of sounds from many sources, near and far.

2. "'A' band level" is the total sound level of all noise as measured with a sound level meter using the "A" weighting network. The unit measurement is the dB(A). "dB" is the abbreviation for decibel. "dB(A)" is a weighted decibel which closely approximates the human ear response to sound.

3. "Bel" is the common logarithmic value of any sound intensity as related to the standard threshold of audibility (minimum detectable sound 10^{-12} watts per square meter).

4. "Decibel" is one-tenth (1/10) of a bel as measured on the "A" scale of a standard sound meter.

5. "Central Business District" as defined in § 8-0101.

6. "Cycle" is the complete sequence of value of a periodic quantity that occur during a period.

7. "Frequency" of a function periodic in time is the reciprocal of the primitive period. The unit is the cycle per unit time and must be specified.

8. "Outdoors" shall include any location not inside of a totally enclosed permanent structure.

9. "Sound amplifying equipment" is:

   A. Equipment that uses alternating current (AC) or direct current (DC) to amplify any sound.

B. Equipment that amplifies sound to a level that equals or exceeds 85 dB(A) measured at or corrected to 25 feet.

10. "Sound-level meter" is an instrument including a microphone, an amplifier, an output meter, and frequency weighting networks for the measurement of noise and sound levels in a specified manner.

11. "Person" is a person, person's firm, association, co-partnership, joint venture, corporation or any entity public or private in nature.

12. "Emergency work" is work made necessary to restore property to a safe condition following a public calamity or work required to protect persons or property from an imminent exposure to danger.

13. "Emergency vehicles" are those vehicles such as ambulance, fire, police, and other city vehicles operating in time of emergency.

Source: 2017 (1981), 4839 (2012), 5275 (2020).

11-0202. Unlawful noise prohibited.--It shall be unlawful for any person to make any loud, unnecessary or unusual noise or any noise which either annoys, disturbs, injures or endangers the comfort, repose, health, peace or safety of others within the limits of the city of Fargo.

Source: 2017 (1981), 4839 (2012).

11-0203. Unlawful noise--Determination.--The standards which shall be considered in determining whether a violation of § 11-0202 exists shall include, but shall not be limited, to the following:

A. The volume of the noise.

B. The intensity of the noise.

C. Whether the nature of the noise is usual or unusual.

D. Whether the origin of the noise is natural or unnatural.

E. The volume and intensity of the background noise, if any.

F. Within the Downtown Business District and all residential zoning districts, the following noises between the hours of 10:00 p.m. and 6:00 a.m. Sunday evening through Friday morning and 11:00 p.m. and 7:00 a.m. Friday evening through Sunday morning are specifically prohibited:

1. Radios, tape players or other sound amplifiers, whether portable or installed in vehicles, at a level which can be heard by a person more than 10 feet away from said vehicle or amplifier.

2. Any horn, bell or other noise-making device except burglar alarms or similar emergency warning devices.

3. Shouting or yelling where the voice is clearly audible at a distance of more than 10 feet.

Source: 2017 (1981), 2372 (1987), 4392 (2004), 4839 (2012).

11-0204. Projection of sound unlawful.--It shall be unlawful to project a sound or noise excluding noise emanating from a moving motor vehicle from one property into another, within the boundary of a use district which exceeds the limiting noise criteria set forth in Table 1 below, except as permitted under section 11-0208 and 11-0209.

A. Sound or noise projecting from one use district, into another use district with a different noise level limit, shall not exceed the limits of the district into which the noise is projected.

B. The permissible levels in decibels set forth in Table 1 shall be modified so that any noise occurring on property deemed to be nonconforming use property shall be determined upon the conforming zoning designation of the property.

TABLE 1. LIMITING NOISE LEVELS FOR ZONING DISTRICTS

	Zoning District		
	Residential AG, SR-0, SR-1, SR-2, SR-3, SR-4, MR-1, MR-2, MR-3, MHP, NO, NC, DMU	Commercial GO, LC, GC	Industrial LI, GI
Maximum number of decibels permitted from 6:00 a.m. to 10:00 p.m., Monday through Thursday and 6:00 a.m. to 11:00 p.m. on Friday and 7:00 a.m. to 11:00 p.m. Saturday and 7:00 a.m. to 10:00 p.m. on Sunday	55	65	80
Maximum number of decibels permitted from 10:00 p.m. to 6:00 a.m. Sunday evening through Friday morning and 11:00 p.m. to 7:00 a.m. Friday evening through Sunday morning	50	60	75

For purposes of the decibel levels listed in Table 1, zoning districts that are comprised of a mixed use, having a residential land-use component, shall be designated as residential and the more restrictive decibel levels applicable for residential zoning shall apply.

Source: 2017 (1981), 4553 (2006), 4839 (2012).

11-0205. Motorized vehicles--compression brakes prohibited.--It shall be unlawful to operate a motorized vehicle within the city limits which creates a noise or sound which exceeds the noise level limits set out in Table 2, as follows:

TABLE 2. LIMITING NOISE LEVELS FOR MOTOR VEHICLES

A. Trucks, buses, construction equipment, or any motor vehicle with a gross weight rating of 10,000 pounds or more: Maximum allowable limit: 88 dB(A) measured at or corrected to 25 feet.

B. Passenger cars, pickups, vans, motorcycles, snowmobiles, or any motor vehicle with a gross weight rating less than 10,000 pounds: Maximum allowable limit: 80 dB(A) measured at or corrected to 25 feet.

C. Interstate Motor Carrier:
Maximum allowable limit:
1. 92 dB(A) measured at or corrected to 25 feet when traveling on roadways with speed limits of 35 mph or less.
2. 92 dB(A) measured at or corrected to 25 feet when traveling on roadways with speed limits of more than 35 mph.

D. Notwithstanding any other provision of the Fargo Municipal Code, it shall be unlawful for any person within the city limits to make, or cause to be made, loud or disturbing noises with any mechanical devices operated by compressed air and used for purposes of assisting braking on any semi-tractor.

Source: 2017 (1981), 4731 (2010).

11-0206. Aircraft.--It shall be unlawful for any person to operate or cause to be operated any type of aircraft over the city which produces noise levels exceeding 88 dB(A) within the city.

Source: 2017 (1981).

11-0207. Exemptions.--The following uses and activities shall be exempt from noise level regulations:

A. Noises of safety signals, warning devices, and emergency relief valves.

B. Noises resulting from any authorized emergency vehicles, when responding to an emergency call or acting in time of emergency.

C. Noises resulting from emergency work as defined in § 11-0201(10).

D. Any construction or maintenance activities at the construction or maintenance site.

E. Any other noise resulting from activities of a temporary duration permitted by law and for which a license or permit therefor has been granted by the city in accordance with § 11-0208 or § 11-0209.

F. Any aircraft operated in conformity with, or pursuant to, federal law, federal air regulations, and air traffic control instruction used pursuant to and with the duly adopted federal air regulations shall be exempt from the provisions of § 11-0206 as well as other regulations of this section. Any aircraft operating under technical difficulties, in any kind of distress, under emergency orders of air traffic control or being operated pursuant to and subsequent to the declaration of an emergency under federal air regulations shall also be exempt from the provisions of § 11-0206 as well as the other regulations of this section.

G. Any regulation of railroad noise will be subject to the following:
Title 40, Code of Federal Regulations, part 201:
1. 201.1 (c), (m), (p), (t), (aa), (dd), (ee)
2. 201.10
3. 201.11 (a), (b)
4. 201.12 (a), (b)
5. 201.13
6. 201.22, 201.23, 201.24

H. Non-amplified sound generated at a scheduled stadium event, which includes noise generated by parade spectators and participants on the parade route during a lawful parade.

I. Amplified announcements at scheduled stadium events or other lawful outdoor events.

Source: 2017 (1981), 4839 (2012).

11-0208. Application for special permit for construction or demolition equipment.--In the event certain construction or demolition equipment noise will exceed prohibited noise levels, the owner or operator of such equipment may apply for relief from this article on the basis of undue hardship. Applications for a permit for relief from the noise level designated in this section on the basis of undue hardship may be made to the city engineer or a duly authorized representative. Any permit granted by the city engineer hereunder shall contain all conditions upon which said permit has been granted and shall specify a reasonable time that the permit shall be effective. The city engineer, or his duly authorized representative, may grant the relief as applied for if the city engineer finds:

A. That additional time is necessary for the applicant to alter or modify his activity or operation to comply with this section; or

B. The activity, operation or noise source will be of temporary duration, and cannot be done in a manner that would comply with other provisions within this article; and

C. That no other reasonable alternative is available to the applicant.

The city engineer may prescribe any conditions or requirements he deems necessary to minimize adverse effects upon the community or the surrounding neighborhood.

Source: 2017 (1981), 4839 (2012).

11-0209. Application for permit for sound amplifying equipment used outdoors-Permit Required.--No person shall use or maintain any sound amplifying equipment outdoors without first having obtained a permit.

A. Application-- A complete application for a permit must be submitted to the chief of police or his authorized designee in a form established by the chief of police, along with a non-refundable fee that has been established by resolution of the board of city commissioners. The application must be made at least 30 days in advance of the requested permit date unless a waiver is granted by the chief of police. The application shall contain the following information or, in lieu thereof, a detailed statement of the reason why such information cannot be furnished:

1. The name, address and telephone number of the applicant;

2. The address and a site plan showing the location of the property where the sound amplifying equipment will be used, a listing of the type of sound amplifying equipment and the direction to which the amplified sound will be directed.

3. The date and time period the sound amplifying equipment will be used.

4. A statement that the applicant understands the requirements of this chapter and agrees to comply with all applicable requirements.

B. Regulations for Use.-- The following regulations apply to all permits issued pursuant to Section 11-0209.

1. The only sound permitted shall be music or human speech or both.
2. No permits shall be issued for any property located within a residential zoning district. For the purpose of this section the Downtown Mixed-Use Zoning District is not considered residential.
3. Permits are valid for the day or days listed on the permit only.
4. Permits issued for any property where the source of the sound is located within 500 feet of a residential zoning district shall be valid for no longer than one day.
5. With respect to any permit for a property where the source of the sound is within 500 feet of a residential zoning district, no more than four (4) permits may be issued every 30 days; each permit shall be at least five (5) days from any other permit.

C. Waiver--The requirement of filing an application at least 30 days before the event may be waived by the chief of police upon a showing that the 30-day period may substantially burden protected rights, including rights of speech and assembly as to matters of public concern.

D. Issuance of Permit-- The chief of police has the discretion to grant or deny a permit that pertains to a property for which a permit has been revoked within the prior 24-month period. In deciding whether to deny a permit on such grounds, the chief of police shall consider:

1. Whether the ownership of the property has changed since a prior permit was denied.
2. What steps, if any, the property owner has taken to correct the violation which led to the permit revocation.

With respect to all other applications for permits, the chief of police shall issue a permit to any applicant who has submitted a properly completed application along with the applicable fee unless such permit is prohibited because the application pertains to property in a residential zoning district.

E. Revocation-- A permit may be revoked by the chief of police upon:

1. Violation of one or more regulations of the permit;
2. Material misrepresentation of fact in the permit application; or
3. Material change in any of the circumstances relied upon by the chief of police in granting the permit.
4. A permit may be revoked at any time, even after the permitted event, if the chief of police learns of any violation listed above.

F. Exemptions-- The following shall be exempt from the requirement of obtaining a permit under this section:

1. Community events and festivals permitted by Section 18-0314 of the Fargo Municipal [Code];
2. Other community-wide events or festivals;
3. An event that is open to the general public for which no admission is charged and when the purpose for the event is generally not for commercial gain; and,

4. All land and property owned by the Park District is exempt from the requirements of this section.

The chief of police is authorized to determine whether a proposed event is exempt pursuant to this subsection, and shall consider the factors provided under Section 18-0314.C. of the Fargo Municipal Code in making such determination. The Fargo Moorhead Marathon, currently operated by Fargo Marathon, Inc., is hereby deemed to be a community-wide event that is exempt.

G. Appeal--The applicant or any person actually or potentially aggrieved by the issuance or denial of a permit or the granting or denial of an exemption may appeal said decision to the board of city commissioners.

Source: 4839 (2012), 4966 (2015), 5394 (2023), 5441 (2024).

11-0210. Radio interference between six o'clock p.m. and eleven o'clock p.m. prohibited.--It shall be unlawful for any person, firm or corporation to operate in the city any device or apparatus, either electrical or mechanical, which generates or causes high frequency oscillations or electrostatic or electromagnetic waves which interfere with radio broadcast reception between the hours of six o'clock p.m. and eleven o'clock p.m., except that a person duly licensed to practice medicine, osteopathy, chiropractic, or dentistry by the laws of the state of North Dakota, in a case of absolute emergency arising in the course of the practice of his profession, which case demands immediate treatment between the aforementioned hours, may operate or cause to be operated under his immediate direction and supervision any machinery necessary to give emergency in such case.

This prohibition shall be construed to apply to radio equipment either of the regenerative or any other type, violet ray machines, X-ray machines, diathermy machines, vibrating battery charges, sign changers or electric signs or devices using a blinking device where a make and break contact is maintained, electric refrigeration machines, electrically driven oil pumps or furnace equipment, high tension ignition systems, electric transmission lines, defective insulators and transformers, defectively sparking motors and generators, and all other electrical or mechanical devices which, because of the manner of construction, state of repair, or condition or manner of operation, interfere with radio reception.

Source: 2017 (1981), 4839 (2012).

11-0211. Unlawful interference defined.--Unlawful interference with radio reception within the meaning of this article shall exist where radio reception interference arises from the use or operation of any device or apparatus such as violet ray machines, machines using Tesla coil or principle, X-ray machines and diathermy machines described in § 11-0210, under all of the following conditions:

A. Such device or apparatus must be situated not less than 100 feet from the radio receiving set with which it interferes.

B. The radio receiving equipment interfered with shall be operated at a volume comparable to a person's normal tone of voice.

C. The broadcasting station whose program is being received when the interference occurs must have a power output of not less than one kilowatt and must be located not more than 300 miles from the receiving set.

It is expressly provided, however, that this article shall not apply to radio stations, either broadcast, commercial, or amateur, duly licensed by the government of the United States; and unlawful radio reception interference shall not be deemed to arise or exist from the operation of duly licensed broadcasting stations.

Source: 2017 (1981), 4839 (2012).

11-0212. Interference--When permitted.--Unlawful radio reception interference, within the meaning of this article, shall not be deemed to arise or exist under the following conditions:

A. It shall not be unlawful to cause radio reception interference except between the hours of six o'clock p.m. and eleven o'clock p.m.

B. It shall not be unlawful to cause radio reception interference where the devices mentioned in § 11-0210 are operated by any agency or department of the city, the county of Cass, the state of North Dakota, or the United States of America; provided, that such devices be equipped so far as is reasonably possible with filters, chokes, condensers, shields, and grounds and are operated and maintained exclusively in the exercise of public or governmental functions.

Source: 2017 (1981), 4839 (2012).

11-0213. Building inspector--Powers and duties.--The building inspector of the city, or his duly authorized deputies, shall have the right to enter upon any premises, other than private residences, at all reasonable hours for the purpose of inspecting the same. He may enter upon the premises and inspect private dwellings with the consent of the owner or occupant thereof. If it is found that equipment, apparatus, or devices described in § 11-0210 are being operated or maintained in violation of this article, the building inspector shall notify, in writing, the person, firm or corporation responsible for the unlawful operation or maintenance of such devices, equipment, or apparatus to discontinue the use thereof, or to make additions, repairs, or modifications thereof, in order that the same may be operated or used in a manner which complies with this article. The mailing of a registered or certified letter to the owner or operator of such machine, device, or apparatus, addressed to such owner or operator at the premises where such machine, device, or apparatus is operated or maintained, or the personal service of such notice upon the said owner or operator shall constitute sufficient notice for the purposes of this article. In the event that the owner or operator of such machine, device or apparatus shall not, within three days after the giving of such notice, either entirely discontinue the use or operation of such machine, device, or apparatus during the hours when the same is prohibited to be used or operated by the terms of this article or repair the same so that it complies with the provisions of this article, such owner or operator thereof shall be deemed to be operating the same in violation of the provisions of this article.

Source: 2017 (1981), 4839 (2012).

11-0214. Wires over streets, alleys, and private property--Consent of owner.--No person, firm, or corporation shall install, operate, or maintain any aerial ground wire or other wire used in connection with any radio receiving set over, upon or across any public street or alley; nor over, upon, or across the private property of any other person, firm, or corporation without the consent of the owner thereof; nor within five feet of any telephone, electric light or telegraph pole, or any exterior telephone, telegraph, or electric light service wire. Such aerial,

ground wire, or any other device used in connection with the maintenance of any radio receiving set shall be properly grounded or protected against lightning or other improper foreign electrical conductivity.

Source: 2017 (1981), 4939 (2012).

11-0215. Advertising or making announcements from buildings or on streets with sound trucks or noise-making devices prohibited--Exceptions.--The word "person" as use in this section shall include the singular and the plural and shall also mean and include any person, firm, corporation, association, club, co-partnership, society, or any other organization.

No person owning, leasing, or operating any building, structure, or vehicle shall play, use, operate, or permit to be played, used, or operated any radio receiving set, musical instrument, phonograph, loud speaker, sound amplifier, sound truck, or other machine or device for the producing or reproducing of sound for the purpose of advertising, making announcements, or attracting the attention of the public to such building, structure, or vehicle, except that the board of city commissioners may issue a permit for the use of sound trucks upon specified city streets during stated hours if the announcements or programs to be broadcast are in the public interest and not for commercial purposes.

Each person shall be deemed guilty of a separate offense for each day during any portion of which any violation of the provisions of this article be committed, continued, or permitted.

Source: 2017 (1981), 4839 (2012).

11-0216. Public nuisance--Remedy--Penalty.--Any noises found to be in violation of this ordinance and the maintenance, use, or operation of any of the apparatus, machinery, or devices defined in § 11-0210 in violation of the terms of the article, are hereby declared to be a public nuisance and may be abated, enjoined or repressed in the same manner as any other public nuisance, including restraining order or injunction issued by a court of competent jurisdiction. A violation of any of provision of this article shall constitute an infraction, punishable in accordance with § 1-0301 of the Fargo Municipal Code. Each day a violation exists shall be deemed to be a separate offense. The remedy provided by this section shall not be deemed to be exclusive, and violations may be prosecuted in municipal court in the same manner as violations of other ordinances.

Source: 2017 (1981), 4553 (2006), 4839 (2012).

ARTICLE 11-03

GAS WORKS

Section

11-0301 Gas works--When a nuisance.
11-0302 Petition against nuisance--Parties--Service of notice to abate.
11-0303 Abatement of nuisance.
11-0304 Penalty for violation of article.

11-0301. Gas works--When a nuisance.--Any person, persons, firm, or corporation now or hereafter engaged in operating any gas works or factory for the manufacture of gas

within or within one mile of the corporate limits of the city shall be guilty of a misdemeanor who shall suffer on his, her, their, or its premises, or on premises of which he, she, they, or it may be the occupant or occupants, any considerable quantity or amount of offensive, nauseous, or unwholesome smoke, coal or coke dust, gases, fumes, or smells to escape, or to be emitted therefrom and, borne by the winds, to be precipitated upon the property of adjacent householders or persons residing in the neighborhood of such gas works or factory in sufficient quantity or amount to injure or endanger the health or safety of animal or vegetable life, or damage or destroy, paint upon buildings, or in any way render insecure or uncomfortable the life or health of persons or the use of property; or who shall produce, or permit to be produced, on such premises loud and disturbing noises, such as to annoy or injure the comfort and repose of any considerable number of persons of ordinary sensibilities residing in the neighborhood of such gas house, works, or factory; provided, that such offensive, nauseous or unwholesome smoke, dust, gases, fumes, or smells, damage, or noises must be shown to affect at the same time an entire community or neighborhood, or a considerable number of persons, buildings, or premises. Any such person, persons, firm, or corporation who shall throw or deposit, or suffer to be thrown or deposited, any gas tar or refuse of any gas house, works, or factory into any sewer owned by or used by the city, or into any river or stream, or into any sewer or stream emptying into any river or stream within one mile of the corporate limits of the city shall be guilty of a misdemeanor. Such acts, either singly or collectively, shall be held and construed to be unlawful acts or the omission to perform duty or duties required by the public good; and each such unlawful act or omission, and the premises upon which is situated any such gas house, works, or factory from which any of the foregoing offensive, nauseous, or unwholesome effects emanate or are emitted, or where the same is done or permitted to be done, shall constitute and is hereby, declared to be a nuisance.

Source: 1952 Rev. Ord. 11-0301.

11-0302. Petition against nuisance--Parties--Service of notice to abate.--Upon the petition of any considerable number of freeholders, in fee (not less than 50), residing within 1,500 feet in any direction from the nearest property line of the premises now or hereafter occupied by and upon which is operated any gas house, works, or factory and the aggregate value of the real property of such petitioners combined shall equal at least the sum of $50,000, praying for the abatement of such nuisance as described and defined in § 11-0301, then and thereupon it shall be the duty of the board of the city commissioners to order and direct the city engineer to investigate and make to it his separate report, findings, and recommendations, based upon his personal investigation of such gas house, works, or factory and the persons residing adjacent thereto and the premises and neighborhoods surrounding the same. And if, upon the filing of such report of investigation, findings, and recommendations by the city engineer, the board of city commissioners shall decide and determine by majority vote, it may order and direct the city attorney to serve notice in writing upon such person, persons, firm, or corporation, to be served and returned in like manner as a summons is served and returned, to abate such nuisance forthwith. And if the owner or owners or occupant or occupants of such premises on which the said nuisance shall be situated shall neglect or refuse to abate the same for a period of 30 days after such notice shall have been served, he, she, they, or it, upon conviction thereof, shall be liable to the penalties prescribed in § 11-0304.

Every day such nuisance shall continue to be unabated after said 30 days shall constitute a separate offense.

Source: 1952 Rev. Ord. 11-0302.

11-0303. Abatement of nuisance.--After conviction of any person, persons, firm, or corporation for maintaining any such nuisance as is defined and declared in § 11-0301, then and thereupon it shall be the duty of the board of city commissioners to abate summarily the said nuisance or the acts or omissions constituting such nuisance in such manner as it may direct.

Source: 1952 Rev. Ord. 11-0303.

11-0304. Penalty for violation of article.--Any person, firm, or corporation who violates, disobeys, neglects, or refuses to comply with, or who willfully omits to perform, any legal duty relating to the removal of, discontinuance, or abatement of the acts or omissions constituting any such nuisance as defined herein, or who resists any of the provisions of this article shall upon conviction be punished by a fine not to exceed $100 or by imprisonment not to exceed 90 days, or by both such fine and imprisonment for each and every offense, in the discretion of the court; the court to have power to suspend said sentence and to revoke the suspension thereof.

Source: 1952 Rev. Ord. 11-0304.

ARTICLE 11-04

AUTOMOBILES AND PERSONAL PROPERTY

Section

11-0401 Automobiles or other personal property--When declared nuisance.
11-0402 Removal and impounding by police department.
11-0403 Immediate disposal of abandoned motor vehicles--When appropriate.
11-0404 Disposal of abandoned motor vehicles--Notice to owner and law enforcement required.
11-0405 Right of owner to reclaim abandoned vehicle.
11-0406 Disposal of motor vehicle--Disposition of proceeds.
11-0407 Disposal of abandoned motor vehicles not sold.
11-0408 Impounded personal property--When held and sold.
11-0409 Impounded trailers--When held and sold.
11-0410 Report to city auditor--Disposition of proceeds.

11-0401. Automobiles or other personal property--When declared nuisance.--Any motor vehicle or other articles of personal property located within the city, the use, condition, or status of which is in violation of any ordinance of the city or any law of the state of North Dakota, or which constitutes an obstruction, hazard, or detriment to public traffic, snow-removal operations, public safety, or public health or morals, or which may be damaged, disabled or otherwise involved in an accident or in the commission of any violation of any ordinance of the city or any law of the state, or any vehicle or other article of personal property abandoned or unclaimed within the city is hereby declared to be a nuisance and shall be abated in the manner provided by this article. The practice of parking motor vehicles or trailers in the front yards of properties within the city of Fargo (except as otherwise allowed by § 20-0701 of the Fargo Municipal Code) is hereby declared to be a nuisance and shall be abated in the manner provided by this article.

Source: 1952 Rev. Ord. 11-0401, 2367 (1987), 4072 (2000), 4970 (2015), 5513 (2025).

11-0402. Removal and impounding by police department.--The police department of the city or a contractor designated to act on its behalf may enter private property and remove or cause to be removed to the city hall, or any other place within the city selected for the purpose, any personal property described in § 11-0401, and may impound and retain the same until the expense of removal, storage, and impounding is paid, together with the amount of any fine, costs, bail, or other claims of the city against the owner or any other person lawfully entitled to the possession thereof.

Source: 1952 Rev. Ord. 11-0402, 2512 (1990), 2612 (1992).

11-0403. Immediate disposal of abandoned motor vehicles--When appropriate.--An abandoned motor vehicle for which the value as determined by the party with custody is no more than one thousand dollars ($1,000) and for which the owner, lienholder, or secured parties cannot be identified with reasonable certainty after a search of the department of transportation records is immediately eligible for disposable by a permitted scrap iron processor and is not subject to the notification, reclamation, or title provisions of FMC 11-0404. A license plate on the abandoned motor vehicle must be removed and destroyed prior to purchaser taking possession of the vehicle. An abandoned vehicle that qualifies under this ordinance is not eligible for reimbursement of storage costs pursuant to North Dakota Century Code § 23.1-15-09.

Source: 5513 (2025).

Editor's note—Ord. No. 5513, § 1, adopted August 18, 2025, repealed the former § 11-0403, and enacted a new § 11-0403 as set out herein. The former § 11-0403 pertained to impounded property--when held and sold and derived from 1965 Rev. Ord. 11-0403; Ord. No. 1452, adopted 1972; and Ord. No. 2612, adopted 1992.

11-0404. Disposal of abandoned motor vehicles--Notice to owner and law enforcement required.--

A. When an abandoned motor vehicle or personal property does not for qualify immediate disposal, the police department or contracted towing service taking it into custody shall give notice within ten days or within ten days after communications from the owner, lienholder, or identifiable secured parties of the abandoned motor vehicle have ceased. The notice must include the following:

1. The date and place of the taking,

2. The year, make, model, and serial number of the abandoned motor vehicle,

3. The place where the vehicle is being held, and

4. Information for the owner, lienholders, or identifiable secured parties of their right to reclaim the vehicle and that the failure to exercise their right to reclaim the vehicle within thirty (30) days is deemed a waiver of all rights, title, and interest in the vehicle and a consent to the disposal of the vehicle and include the end date of the thirty days to reclaim the vehicle.

B. The notice must be sent by certified mail, return receipt requested, to the registered owner, if any, of the abandoned motor vehicle and to all readily identifiable lienholders or secured parties of record. If it is not possible to determine with reasonable certainty the identity and address of the parties, the notice must be published once in a newspaper of general circulation in the area where vehicle was abandoned or placed on the official website of the City. When posted on the website, the notice must be placed in a designated area of the website for a minimum of thirty days and include the same information outlined in subsection (A).

C. Subject to the exception in Fargo Municipal Code § 11-0403, a commercial towing service shall provide notice to the police department within twelve hours after completing the tow. The notice must include the following:

1. The license plate number and state of registration,

2. The location from which the abandoned motor vehicle was towed,

3. The location to which the abandoned motor vehicle was towed to,

4. The name, address, and telephone number of the commercial towing service that towed and is storing the abandoned motor vehicle, and

5. A description of the abandoned motor vehicle, include the make, model, year, and color.

D. A commercial towing service that fails to comply with this section may not collect a storage fee and shall return the vehicle to the registered owner at no cost to the owner, lienholder, or identifiable secured party.

Source: 5513 (2025).

Editor's note—Ord. No. 5513, § 1, adopted August 18, 2025, repealed the former § 11-0404, and enacted a new § 1-0404 as set out herein. The former § 11-0404 pertained to report to city auditor--disposition of proceeds and derived from 1952 Rev. Ord. 11-0404; and Ord. No. 2612, adopted 1992.

11-0405. Right of owner to reclaim abandoned vehicle.

A. Any owner, secured party, or lienholder of an abandoned motor vehicle has the right to reclaim such vehicle from the police department or contracted towing service taking the vehicle into custody upon payment of all towing and storage charges resulting from the taking of the vehicle into custody within thirty (30) days after the date of the notice required pursuant to § 11-0404.

B. Storage charges may not exceed fifty dollars ($50.00) per day for an abandoned vehicle that does not exceed twenty thousand registered gross weight pounds.

C. This section also applies to emergency towing.

Source: 5513 (2025).

11-0406. Disposal of motor vehicle--Disposition of proceeds.

A. For any abandoned motor vehicle valued at more than one thousand dollars taken into custody by the police department or contracted towing service and not reclaimed under § 11-0405, the license plates displayed on the abandoned motor vehicle must be removed and destroyed and thereafter the police department may:

1. Sell the abandoned motor vehicle to the highest bidder at public auction or sale following reasonable published notice. The purchaser must be given a receipt in a form prescribed by the Department of Transportation which shall entitle the purchaser to register the vehicle and receive a certificate of title, free and clear of all liens and claims of ownership; or

2. Obtain a release from the department of transportation which is sufficient title to dispose of the vehicle by a permitted scrap iron processor.

3. The sale of the vehicle may be postponed or discontinued by public announcement at the time of the sale when there are no bidders, or when the amount offered is grossly inadequate, or for other reasonable cause. The City may become a purchaser of any or all property at such sale.

Source: 5513 (2025).

11-0407. Disposal of abandoned motor vehicles not sold.--When no bid has been received for an abandoned motor vehicle, the police department may dispose of the abandoned motor vehicle in accordance with North Dakota Century Code § 23.1-15-08.

Source: 5513 (2025).

11-0408. Impounded personal property--When held and sold.

A. Any personal property located in an impounded motor vehicle shall be held and inventoried in accordance by the police department or contracted towing service in accordance with the department's written policies and procedures.

B. Any personal property with apparent value of utility will be stored for 60 days as required by Fargo Municipal Code § 28-0101.

C. Any personal property that remains unclaimed for 60 days may be disposed of in accordance with Fargo Municipal Code § 28-0101.

Source: 5513 (2025).

11-0409. Impounded trailers--When held and sold.--Any trailers that are in violation of any ordinance of the city or any law of the state of North Dakota, or which constitutes an obstruction, hazard, or detriment to public traffic, snow-removal operations, public safety, or public health or morals, or which may be damaged, disabled or otherwise involved in an accident or in the commission of any violation of any ordinance of the city or any law of the state or any trailer abandoned or unclaimed within the city is hereby declared to be a nuisance and shall be abated in the same manner as abandoned motor vehicles provided in this article.

Source: 5513 (2025).

11-0410. Report to city auditor--Disposition of proceeds.--Within 30 days after sale as provided for in Article 11-04 of this article, the police department, or a contractor designated to act on its behalf, shall make out, in writing, and file with the city auditor a full report of such sale specifying the property sold, the amount received therefor, the amount of costs and expenses, and the disposition made by him of the proceeds of the sale. The proceeds arising from such sale must be held for a period of ninety (90) days for the owner of the vehicle or entitled lienholder and then be delivered to the administrator of the state abandoned property office.

Source: 5513 (2025).

ARTICLE 11-05

SMOKE AND GASES

Section

11-0501 Dense smoke, ash dust, soot, cinders, noxious gases, and paint spray as nuisance.
11-0502 Dense smoke, ash dust, soot, cinders, noxious gases, and paint spray prohibited.
11-0503 Complaints.
11-0504 Investigation.
11-0505 Action to abate.
11-0506 Penalty for violation of article.

11-0501. Dense smoke, ash dust, soot, cinders, noxious gases, and paint spray as nuisance.--The emission of dense smoke, ash dust, soot, cinders, or noxious gases from the stack or chimney of any locomotive or similar machine or contrivance or from the smoke stack or chimney of any building or premises or the emission of paint spray from any paint sprayer or similar apparatus in such quantities as to cause injury or detriment to any person or persons or to the public, or to endanger the comfort, health, or safety of any such person or persons, or in such manner as to cause or tend to cause damage or injury to property is hereby declared to be a nuisance.

Source: 1952 Rev. Ord. 11-0501, 1172 (1964).

11-0502. Dense smoke, ash dust, soot, cinders, noxious gases, and paint spray prohibited.--No person, persons, association, or corporation shall cause, permit, or allow the escape into the open air from any smoke stack, chimney, or paint-spraying apparatus, of such quantities of dense smoke, ash dust, soot, cinders, acid or other fumes, dirt or other material, noxious gases, or paint spray in such place or manner as to cause injury, detriment, or nuisance to any person or persons or to the public or to endanger the comfort, health, or safety of any such person or persons or the public, or in such manner as to cause or have a natural tendency to cause injury or damage to business or property.

Source: 1952 Rev. Ord. 11-0502, 1172 (1964).

11-0503. Complaints.--Any person or persons having cause for complaint with respect to the violation of §§ 11-0501 and 11-0502 shall file such complaint, in writing, with the board

of city commissioners, setting forth the facts in connection therewith including a description of the premises from which such smoke, ash dust, soot, cinders, noxious gases, or paint spray was allowed to escape and the name of the owner thereof.

Source: 1952 Rev. Ord. 11-0503, 1172 (1964).

11-0504. Investigation.--When any complaint with respect to violation of §§ 11-0501 and 11-0502 has been filed with the board of city commissioners, the same shall be referred to

the city engineer for investigation, and if, upon such investigation, the city engineer shall find the conditions complained of such as to justify said complaint, the board shall, in writing, by registered mail or by personal service upon such owner, notify the owner of said premises to take such steps as, in the judgment of the board may be necessary to remedy the same, such order to specify the time limit within which such action must be taken.

Source: 1952 Rev. Ord. 11-0504.

11-0505. Action to abate.--In the event that the owner of said premises fails to remedy offensive conditions within the time limit specified in the order given by the board of city commissioners, as provided in § 11-0504, the board may, in its discretion, require the city attorney to commence an action to abate said nuisance.

Source: 1952 Rev. Ord. 11-0505.

11-0506. Penalty for violation of article.--Any person who shall violate any of the terms and provisions of this article and who, when notified in writing by the board of city commissioners, shall fail, neglect, or refuse to take steps to correct the condition complained of, and to prevent a repetition thereof, within the time specified in the notice provided for in § 11-0504 shall be guilty of a misdemeanor, and upon conviction shall be punished by a fine not to exceed $100 or by imprisonment not to exceed 90 days, or by both such fine and imprisonment, in the discretion of the court, for each such offense; the court to have power to suspend said sentence and to revoke the suspension thereof. Each day any person, firm, association, or corporation shall violate any of the provisions of this article shall constitute a separate offense.

Source: 1952 Rev. Ord. 11-0506.

ARTICLE 11-06

DANGEROUS STRUCTURES OR BUILDINGS

Section

11-0601 Dangerous structure, building, bridge, excavation, ditch, cellar, basement, or wall of building declared a nuisance.
11-0602 Duties of health department and health officer-- Inspection--Order and notice to abate.
11-0603 Failure of owner to comply with order--Complaint filed.

11-0601. Dangerous structure, building, bridge, excavation, ditch, cellar, basement, or wall of building declared a nuisance.--Any structure, building, bridge, excavation, ditch, cellar, basement, or wall of any building within the city which by reason of its condition is dangerous to the health of, or is likely to cause accident or injury to, any person is hereby declared a nuisance.

Source: 1952 Rev. Ord. 11-0601.

11-0602. Duties of health department and health officer--Inspection--Order and notice to abate.--It is hereby made the duty of the health department of the city, whenever it may be called to the attention of such department, or any officer or employee thereof that any structure, building, bridge, excavation, ditch, cellar, basement, or wall of any building within the limits of the city, by reason of the condition which then exists with respect thereto, is

dangerous to the health of, or is likely to cause accident or injury to, any person, to make a thorough inspection of the premises upon and with respect to which such condition is alleged to exist and to make a full and complete report thereof to the city health officer.

If, in the opinion of the city health officer, after a review of the report of investigation hereinbefore provided for, a condition is found to exist with respect to the premises complained against which is dangerous to the health of, and is likely to cause accident or injury to, any person, it shall be his duty immediately to order the owner or occupant, or agent for either, of the premises upon which such condition exists to abate such nuisance and eliminate such condition within a reasonable time as may be determined by such health officer. It shall be the further duty of such health officer to give or cause to be given notice in writing, by registered mail, to the owner or occupant, or agent for either, of such premises that such dangerous or hazardous condition exists and that the same must be abated and eliminated within the time specified in the notice.

Source: 1952 Rev. Ord. 11-0602.

11-0603. Failure of owner to comply with order-- Complaint filed.--In the event that an owner, within the time specified in the notice provided for in § 11-0602, or within such further time as may be granted by the health officer of the city, fails to comply with such order and abate and eliminate the dangerous or hazardous condition complained of, he shall be guilty of a misdemeanor and it shall be the duty of the health officer to file with the police magistrate a complaint against the owner of such premises charging him with a violation of this article.

Source: 1952 Rev. Ord. 11-0603.

ARTICLE 11-07

HEDGE, TREE, OR GROWTH OF ANY NATURE OBSTRUCTING VIEW OF DRIVER OF VEHICLE OR CREATING UNSAFE OBSTRUCTION OR HIDING PLACE

Section

11-0701 Hedge, tree, or growth--When a nuisance.
11-0702 Duties of chief of police--Inspection--Order and notice to abate.
11-0703 Failure of owner to obey order--Action to abate.
11-0704 Penalty for violation of article.

11-0701. Hedge, tree, or growth--When a nuisance.--Any hedge, tree, or growth, of any kind or character maintained on any property in the city which is so located or of such height as to constitute either a traffic hazard by obstructing the view of the driver of any vehicle upon the streets of the city to the extent that such driver is unable to readily observe the approach of other vehicles on streets, alleys, and at intersections, or which is likely, because of its location or height, to cause accident or injury to any person or which, in the opinion of the chief of police, creates an unsafe obstruction, hiding place or harborage for possible criminal activity, is hereby declared a nuisance.

Source: 1952 Rev. Ord. 11-0701, 1010 (1957), 4317 (2003).

11-0702. Duties of chief of police--Inspection--Order and notice to abate.--It is hereby made the duty of the chief of police, whenever it may be called to the attention of his department, or any officer or employee thereof, that any hedge, tree, or growth of any kind or character on any property within the city, has been so planted or is maintained in a place or at a height so as to obstruct the view of the driver of any vehicle on the streets of the city, to the extent that such driver is unable to observe readily the approach of other vehicles on streets, alleys, and at intersections; which is likely because of its location or height to cause accident or injury to any person or which is located on non-residential property and which may create an unsafe obstruction, hiding place or harborage for possible criminal activity to make a thorough inspection of the premises upon and with respect to which such condition is alleged to exist.

If in the opinion of the chief of police, a condition is found to exist, with respect to the premises complained against, which is dangerous as a traffic hazard and is likely to cause accident or injury to any person or which creates an unsafe obstruction, hiding place or harborage for possible criminal activity, it shall be the duty of the chief of police immediately to order the owner of the premises upon which such condition exists to abate such nuisance and eliminate such condition. It shall be the further duty of the chief of police to give or cause to be given notice in writing to the owner of such premises that such dangerous or hazardous condition exists and that the same must be abated and eliminated or an appeal taken from the order to the board of city commissioners within the time specified in the notice, said time so fixed to be not less than 15 days nor more than 60 days from the date of said notice. The chief of police may authorize the head of the office of building inspections to issue any such notice or order as described in this article.

Source: 1952 Rev. Ord. 11-0702, 1010 (1957), 4317 (2003).

11-0703. Failure of owner to obey order--Action to abate.--In the event that such owner, within the time specified in the notice provided for in § 11-0702, fails to remedy such condition as therein provided or fails to appeal to the board of city commissioners from the order made by the chief of police, head of the office of building inspections, or if the board shall find, upon hearing the appeal, that said nuisance should be abated, the board may, in its discretion, request the city attorney to commence an action to abate said nuisance.

Source: 1952 Rev. Ord. 11-0704, 1010 (1957), 4317 (2003).

11-0704. Penalty for violation of article.--Any person, firm, association, or corporation who shall violate any of the terms and provisions of this article or who shall, when notified in writing by the chief of police, head of the office of building inspections, or the board of city commissioners, fail, neglect, or refuse to take steps to correct the condition complained of within the time specified in such notice, as provided for in § 11-0702, shall be guilty of an infraction, and upon conviction shall be punished by a fine not to exceed $500 for each such offense; the court to have the power to suspend said sentence and to revoke the suspension thereof. Each day any person, firm, association, or corporation shall violate any of the provisions of this article shall constitute a separate offense.

Source: 1952 Rev. Ord. 11-0705, 1010 (1957), 4317 (2003).

ARTICLE 11-08

ENVIRONMENTAL NUISANCES

Section

11-0801 Collection, storage, accumulation of rubbish, foreign matter, animal matter, rubbish, dead animal, or other offensive substances prohibited.
11-0802 Accumulation of animal waste.
11-0803 Proper storage of food and animal feed.
11-0804 Materials and property not to afford harborage for vermin.
11-0805 Control of stagnant water, noxious or other weeds, tall grass.
11-0806 Duty of property owners to control stagnant water, fill excavations, remove dirt piles, noxious or other weeds, tall grasses.
11-0807 Failure to drain stagnant water, fill excavations, remove dirt piles, remove weeds, maintain grass.--Notice of violation.
11-0808 Control of noxious and other weeds, grass--exceptions to general requirements.
11-0809 Land management plan permit--Issuance.
11-0810 Permit application--review.
11-0811 Owner or occupant's responsibilities concerning land management plan.
11-0812 Authority of city to manage and control grass and plantings within an area included within a land management plan.
11-0813 Spitting or throwing litter of any kind prohibited in public places in city.
11-0814 Littering on private property prohibited.
11-0815 Buildings not allowed to become foul.
11-0816 Sanitary sewers, building sewers and connections.
11-0817 Unlawful deposit, drainage or seepage of sewage or foul substance.
11-0818 Cellar, vault, private drain, cesspool, or sewer not to become nauseous.
11-0819 Violations and nuisances, health officer's duty to remedy violations and abate, notice.
11-0820 Expenses of corrective action to be charged as special assessments.
11-0821 Penalties for violation.
11-0822 Entrance by health officer for abatement of nuisance, source of filth, cause of sickness.
11-0823 Property agent to disclose name of principal to health department.

11-0801. Collection, storage, accumulation of rubbish, foreign matter, animal matter, rubbish, dead animal, or other offensive substances prohibited.--It shall be unlawful for any person, firm, corporation, occupant, or agent or employee thereof, to collect, store, deposit, bury, or to permit the storage, collection, deposit, or burying, upon private property within the city of Fargo, any rubbish, foreign matter, animal matter, dead animal, carcass, animal waste or excrement, ashes, or other offensive substance that is detrimental to the cleanliness of the city or the health and safety of its residents. The collection, storage, or deposit of decayed vegetation, filth, fish, hides, skins, poultry, or game is specifically prohibited. The collection, storage, or presence of such substances shall be deemed a nuisance and shall be abated by the health officer or his designee. This section does not apply to accumulation or storage of vegetation or other organic material in a properly contained compost pile unless in the opinion of the health officer, or his designee, such compost pile becomes a public health nuisance.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-08-02. Accumulation of animal waste.--It shall be unlawful for any person, firm, corporation, occupant, or agent or employee thereof, to accumulate or to allow the accumulation of animal waste or excrement such that the conditions of the premises or any structure become, in the opinion of the health officer or chief of police, or such designee thereof, offensive and injurious to the public health or to the welfare of any animals kept on the premises. The accumulation of animal waste or excrement shall be deemed a nuisance and shall be abated by the health officer, or his designee, as otherwise provided in this article.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0803. Proper storage of food and animal feed.--All foods and feed kept within the city for the feeding of animals shall be kept and stored in metal, plastic or other appropriate containers.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0804. Materials and property not to afford harborage for vermin.--It shall be unlawful for any person to accumulate on any premises, improved or vacant, or on any open lots and alleys in the city, any lumber, boxes, barrels, bricks, stones, or similar material that may be permitted to remain thereon, unless the same shall be placed on open racks that are elevated not less than 18 inches from the ground and evenly piled or stacked so that these materials will not afford harborage for vermin.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0805. Control of stagnant water, noxious or other weeds, tall grass.--No stagnant water shall be allowed to stand or remain, noxious or other weeds, or grass allowed to grow more than eight inches (8″) in length upon or along the line of any railroad, street, highway, alley, public place, along or upon any vacant or other lot or real estate parcel, public or private, or other place within the city. For purposes of this article, ″noxious weeds″ shall mean any species of plant or vegetation recognized by the North Dakota State Weed Board as a noxious weed.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006), 5143 (2018).

11-0806. Duty of property owners to control stagnant water, fill excavations, remove dirt piles, noxious or other weeds, tall grasses.--It shall be the duty of all property owners, occupants, or persons having control over private property to remove or drain stagnant water, to fill excavations, to remove dirt piles, to remove noxious or other weeds, and to maintain the growth of grass on such property so that it does not exceed eight inches (8″) in length. These requirements apply to areas along and upon any railroad, street, highway, alley, public place or along or upon any vacant or other lot or place within the city.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006), 5143 (2018).

11-0807. Failure to drain stagnant water, fill excavations, remove dirt piles, remove weeds, maintain grass.--Notice of a violation of this article shall be mailed to the record property owner as shown in the property tax records maintained in the city assessor′s office, upon any agent of the property owner, and upon any occupant of the property when appropriate. The owner, agent, tenant or person in charge of the property shall take appropriate action to remove the stagnant water, fill excavations, remove dirt piles, fill holes or depressions, cut and/or keep down the growth of any noxious or other weeds, and maintain all

grasses not to exceed eight inches (8″) in height, as directed by the health department within the specified period of time. If the property owner, tenant, or agent fails to take such appropriate action within the time period as directed by the health department, the health department shall have authority to remove or drain off any stagnant water, fill all excavations, holes, or depressions, and cut or mow any noxious or other weeds and grasses.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006), 5143 (2018).

11-0808. Control of noxious and other weeds, grass--exceptions to general requirements.--The requirements in this article requiring control of noxious and other weeds and grasses do not apply to property where the owner or person in control of the property has applied for and obtained a land management plan permit from the city allowing grass growth to exceed eight inches (8″) in length.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0809. Land management plan permit--Issuance.--To obtain a land management plan permit, the applicant must submit a written plan identifying the specific area where the plantings or grass is planned to exceed eight inches (8″) in length, a statement of intent and purpose for the area, a drawing, plot plan and/or survey showing the location of the planting on the applicant's property, a detailed description of the plant types and plant succession involved, and specific management and maintenance techniques to be employed. The land management plan must include provisions for maintaining plantings at a length not to exceed eight inches (8″) in the area between the sidewalk and the street, or a strip not less than fifteen feet (15′) adjacent to the street where there is no sidewalk, as well as a strip not less than four feet (4′) adjacent to neighboring property lines unless waived in writing by the abutting property owner on the side so affected. Any such waiver of the requirements shall be affixed to the application and plan. No area of city owned property within any street right-of-way may be included within a land management plan. This shall include the property between the sidewalk and the street and not less than fifteen (15) feet adjacent to the street where there is no sidewalk. As a condition of receiving approval of a land management permit, the applicant agrees and understands to mow or cut any grass or plantings when ordered to due so by the health officer or any other city official or designee thereof.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0810. Permit application--Review.--An application for a land management plan permit shall be on a form provided by the city shall be submitted to the forestry department. A copy of the application shall be mailed to each of the owners of record, as listed in the office of the City Assessor, who are owners of the property situated in whole or in part within 200 feet of the boundaries of the properties affected. The application and any related information shall be considered by the city forester. The city forester shall have authority, after reviewing all appropriate materials and information, to approve or deny the application. An applicant who has had a permit denied or revoked, or an affected property owner in the event a permit is granted, may appeal the decision of the city forester to the board of adjustment. Such appeal must be made in writing within fifteen (15) days of the city forester's decision and shall be heard at a regular meeting of the board of adjustment.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0811. Owner or occupant's responsibilities concerning land management plan.--An owner or occupant receiving a land management plan permit agrees to maintain any grass or

plantings so as not to present hazards or to create a nuisance for adjoining properties, or to persons or vehicles traveling on the public ways. An owner or occupant receiving such permit also agrees to manage and maintain such grass or plantings such that they do not present a hazard to structures on affected land and to maintain such plantings as to enhance the appearance of the property on which they are located.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0812. Authority of city to manage and control grass and plantings within an area included within a land management plan.--Notwithstanding issuance of a land management pan permit, the city may order the cutting of such grass or plantings included within a land management plan at any time the city determines that the growth may constitute a fire or safety hazard as to cause danger to the safety of the inhabitants of any residential structure on located on the premises or to the citizens and residents of the neighborhood. Any costs incurred by the city shall be charged to the owner, occupant, or person in control of the property as authorized under this article.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0813. Spitting or throwing litter of any kind prohibited in public places in city.--No person shall spit, expectorate, or throw litter upon the sidewalks or crossings of any street, avenue, alley, or driveway within the corporate limits of the city, or upon the floors, stairs, or hallways within, or sidewalks leading to or from any public building or public form of transportation.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0814. Littering on private property prohibited.--No person may discard or abandon any litter, garbage, furniture, or other debris upon public or private property not owned by that person, unless the property is designated for the disposal of such items and that person is authorized to use the property for that purpose. For purposes of this section, litter shall include any rubbish, junk, refuse, or waste of any kind.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006), 5204 (2019).

11-0815. Buildings not allowed to become foul.--No owner or occupant of any building or premises within the city shall allow the same to become foul, nauseous, or offensive.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0816. Sanitary sewers, building sewers and connections.--Any sanitary sewer or building sewer connection shall comply with all other requirements of the Fargo Municipal Code or any applicable building or plumbing code.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0817. Unlawful deposit, drainage or seepage of sewage or foul substance.--It shall be unlawful for any person, firm, corporation, occupant, or agent or employee thereof, to deposit, drain, or to allow the deposit, drainage or seepage of sewage or foul substance in or onto any private or public ground within the city.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0818. Cellar, vault, private drain, cesspool, or sewer not to become nauseous.--No person shall allow or permit any cellar, vault, private drain, cesspool, or sewer upon any premises belonging to or occupied by him or her within the limits of the city to become foul, offensive, or injurious to the public health.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0819. Violations and nuisances, health officer's duty to remedy violations and abate, notice.--Upon finding a violation of any section in article 11-08, the health officer, or designee thereof, shall provide notice to the owner, occupant, or person in control of the property of the violation, ordering its abatement or corrected and stating a deadline for such abatement or correction to occur. If the violation is not abated or corrected by the deadline, the health officer, or designee thereof, is authorized to take further enforcement action to remedy the violation or to abate the nuisance. In the event a property owner has been found to be in violation of one or more provisions of this article within the prior 18 months, the health department is authorized to issue a single written notice of the violation, delivered as provided in this article, said notice to contain a standing order that requires compliance with such maintenance requirement or requirements for such period of time as stated therein, said period to not exceed 8 months from the date of the order. After such standing order has been provided, should the health department determine that the lot, parcel or other place that is the subject of the notice and standing order has not been maintained in accordance with said order, the health department is authorized to take further action to remedy the violation or to abate the nuisance. Any costs associated with correcting the violation or abating the nuisance shall be chargeable to the property as otherwise authorized under this article. In addition, the health officer is authorized to include within such costs the costs of administration of the nuisance abatement program pertaining to this article and to establish a schedule of such costs to be approved by resolution of the board of city commissioners.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006), 5143 (2018).

11-0820. Expenses of corrective action to be charged as special assessments.--Any expenses incurred by the health department in connection with enforcing any provisions of this article may be charged as a special assessment against the lot or parcel of land for which enforcement action was taken. Such expenses shall be certified by the health department to the city auditor to be collected as a special assessment. In August of each year the board of city commissioners shall review all assessments, and hear all complaints against the same, and approve the same as finally adjusted, and such special assessment shall then be certified to the county auditor and be placed upon the tax roll for that year and be collected as other city taxes.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0821. Penalties for violation.--Any person, firm, company, or corporation violating any provision in article 11-08, other than section 11-0814, shall upon conviction, be punished by a fine not to exceed $1000, with the court having such power and discretion to suspend such fine and to revoke suspension thereof. Each day any person, firm, company, or corporation shall violate the provisions of this article shall constitute a separate offense.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006), 4832 (2012), 5143 (2018).

11-0822. Entrance by health officer for abatement of nuisance, source of filth, cause of sickness.--The health officer of director of public health shall have authority described in section 13-0206 to enter any building within the jurisdiction of the public health department to examine, destroy, remove, or prevent any nuisance, source of filth, or cause of sickness.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

11-0823. Property agent to disclose name of principal to health department.--Upon application being made therefor by any inspector, agent, or officer of the health department, every agent or other person having the charge, control, or management of, or who collects or receives the rents of any lands, premises, or other property in the city, shall disclose the name or names of the person or persons for whom such agent or other person is acting.

Source: 1952 Rev. Ord. 11-0801, 2512 (1990), 4533 (2006).

ARTICLE 11-09

LITTERING OF PUBLIC PLACES BY CONTRACTORS, PROJECT MANAGERS, OR OTHER PERSONS

Section

11-0901 Unlawful dumping and littering by contractors, project managers, or other persons.
11-0902 Vehicles to be clean before entering public street.
11-0903 Streets to be maintained in a litter-free condition.
11-0904 Liability of contractor, project manager, or other person.
11-0905 Cleaning up littered streets.
11-0906 Exceptions.
11-0907 Penalty for violation of article.

11-0901. Unlawful dumping and littering by contractors, project managers, or other persons.--No contractor, project manager, or other person shall allow any vehicle to operate out of any construction site, regardless of whether the same shall be operated by the contractor, project manager, other persons, or their agents, employees, or subcontractors, in such a manner as to dump, scatter, or deposit any rubbish, stones, wire, earth, ashes, cinders, sawdust, hay, glass, manure, filth, paper, snow, ice, dirt, grass, leaves, twigs, shrubs, construction waste, garbage, hazardous or dangerous liquids, or other offensive or nauseous material on any street, alley, or public place.

Source: 1952 Rev. Ord. 1122 (1962), 5458 (2024).

11-0902. Vehicles to be clean before entering public street.--No contractor, project manager, or other person shall drive or permit a vehicle to enter upon a public street, alley, sidewalk, or other public place without first (a) having its tires and wheels cleaned so as not to litter or soil any street, alley, sidewalk, or other public place, and (b) having any material removed from the interior or exterior of vehicle body which might fall or be deposited upon any street, alley, sidewalk, or public place by normal movement of vehicle in traveling over such places.

Source: 1952 Rev. Ord. 1122 (1962)5458 (2024).

11-0903. Streets to be maintained in a litter-free condition.--All streets, alleys, sidewalks, and public places adjacent to any building or construction site shall be maintained in a litter-free condition at all times. This shall include such soiling or littering caused by erosion, landslides, or general construction activities at any such site.

Source: 1952 Rev. Ord. 1122 (1962), 5458 (2024).

11-0904. Liability of contractor, project manager, or other person.--Whenever a contractor, project manager, or other person is engaged in any construction or maintenance activity, it shall be his responsibility to see that none of the provisions of this article are violated by the contractor, project manager, other person, or their agents, employees, subcontractors, or haulers of materials and supplies. If more than one contractor, project manager, or other person, or any governmental unit is involved in work which contributes to the littering of streets, alleys, sidewalks, or other public places in the same site or area, they shall be separately and jointly responsible for compliance with the provisions of this article.

Source: 1952 Rev. Ord. 1122 (1962), 5458 (2024).

11-0905. Cleaning up littered streets.--If a street, alley, sidewalk, or public place should become soiled or littered through any of the means outlined in §§ 11-0901 and 11-0903, the person or persons responsible shall cause such soiling or littering to be cleaned up forthwith. If and when the person or persons responsible fail to comply with any order from the City of Fargo or designee to clean up or take such precautions as the City of Fargo or designee deems necessary to prevent foreign materials from being deposited on any street, alley, or public place, then the City of Fargo or designee may order (in writing) all ingress and egress to the site or area involved stopped until compliance with the order is effected.

Source: 1952 Rev. Ord. 1122 (1962), 5458 (2024).

11-0906. Exceptions.--The provisions of this article shall not apply to construction work within the barricaded area of work being done in the street right-of-way, pursuant to a city excavation permit authorizing the same or to certain emergency or other work being performed within a barricaded area pursuant to a city contract or by certain emergency forces, provided that excavated material stored temporarily within the barricaded area shall not be scattered or carried or allowed to accumulate outside of such area.

Source: 1952 Rev. Ord. 1122 (1962), 5458 (2024).

11-0907. Penalty for violation of article.--Violation of any provision of this Article is an infraction. Any person, firm, association, partnership, or corporation who violates any of the provisions of this article shall have 24 hours from the time of the notice or citation to remedy said violation before it is considered a separate offense. Every separate violation shall require a separate charging document. The City may seek restitution for the expense of abating any unlawful conduct.

Source: 1952 Rev. Ord. 1122 (1962), 5458 (2024).

ARTICLE 11-10

PIGEONS AND HARMFUL WILD BIRDS

Section

11-1001 Pigeons and harmful wild birds--Public nuisance.
11-1002 Extermination of pigeons and harmful wild birds--Permit required.
11-1003 Extermination only by licensed exterminator.
11-1004 Method of extermination.

11-1001. Pigeons and harmful wild birds--Public nuisance.--Pigeons (a/k/a rock doves) and harmful wild birds as defined in § 20.1-01-02, N.D.C.C., which exist within the corporate limits of the city are hereby declared to be a public nuisance subject to extermination as hereinafter provided.

Source: 2121 (1983).

11-1002. Extermination of pigeons and harmful wild birds--Permit required.--No person, firm or corporation shall exterminate pigeons or other harmful wild birds without first having obtained a permit from the Fargo health department. Application for such permit shall be on forms to be provided by the city and the permit shall specify the method of extermination to be utilized.

Source: 2121 (1983).

11-1003. Extermination only by licensed exterminator.--A permit for the extermination of pigeons and other harmful wild birds shall be issued only to persons, firms or corporations which are licensed as exterminators pursuant to the provisions of article 25-21 of the Revised Ordinances of 1965 of the City of Fargo.

Source: 2121 (1983).

11-1004. Method of extermination.--Pigeons and other harmful wild birds shall be exterminated in a manner which is consistent with the health and safety of persons and other living creatures and shall be subject to the approval of the health department. The method of extermination shall be clearly indicated on the permit.

Source: 2121 (1983).

CHAPTER 12

CONTROL AND PROTECTION OF ANIMALS, BIRDS AND FOWL

Article

12-01 Dogs and Cats, §§ 12-0101 to 12-0117.
12-02 Animals, General, §§ 12-0201 to 12-0219.
12-03 Domestic Fowl, Wild Birds, and Pets, §§ 12-0301 to 12-0315.
12-04 Wildlife Management Program--Regulations, §§ 12-0401 to 12-0409.

ARTICLE 12-01

DOGS AND CATS

Section

12-0101 Definition of terms.
12-0102 License and registration required--Kennel license fee.
12-0103 Terms of license--Cancellation for failure to have rabies inoculation.
12-0104 Animal must have collar with rabies tag and license tag attached.
12-0105 Running at large prohibited.
12-0106 Impounded animals--Procedure for impounding.
12-0107 Impounded animals--Notice to owner and redemption.
12-0108 Impounded animals--Disposition of unclaimed or infected dogs and cats.
12-0109 Muzzling.
12-0110 Rabies--Notice to police required.
12-0111 Repealed.
12-0112 Animals - Disturbing the peace.
12-0113 Animals - shelter requirements.
12-0114 Animals - Food and water requirements.
12-0115 Chains, kennels, tethers, and tie outs.
12-0116 Number of Dogs and/or Cats - Limitation.
12-0117 Potentially dangerous and dangerous dogs.

12-0101 Definition of terms.--As used in this ordinance, unless the context otherwise indicates:

1. "Dog" or "cat" shall refer to both the male and female of the species.

2. "Owner" shall mean any person or persons, firm, association, or corporation owning, keeping, or harboring a dog or a cat.

3. "At large" shall mean off the premises of the owner and not under the control of the owner or a member of his immediate family either by leash, cord, chain, or otherwise.

Source: 1952 Rev. Ord. 12-0101, 1179 (1964).

12-0102. License and registration required--Kennel license fee.--All dogs and cats kept or maintained by their owners in the city shall be licensed and registered if over four months of

age on or before the first day of March of each calendar year. Dog and cat licenses shall be issued by the city auditor upon payment of an annual license fee as prescribed by the city commission. The owner shall state at the time application is made for such license, upon printed forms provided for such purpose, his name and address and the breed, color, and sex of the animal, date of rabies inoculation of the animal, and whether or not the animal is neutered, spayed or desexed. A license shall not be issued unless the license application is accompanied by proof, including, but not limited to, a rabies certificate, a signed statement from a licensed veterinarian or vaccination record from veterinary clinic, the dog or cat has received a rabies vaccination and such vaccination is current at the time of application. The licensing provision of the section shall not apply to dogs or cats brought into the city for the purpose of participation in any dog or cat show, nor to a service animal, which is any guide dog, signal dog, or other animal individually trained to provide assistance to an individual with a disability, nor to dogs owned by the city of Fargo or any other political subdivision and used for law enforcement purposes.

Each person, group, or persons, association, or corporation engaged in the commercial business of buying, selling, breeding, or boarding dogs and cats who owns or keeps five or more dogs or cats in a kennel shall pay an annual kennel license fee as set by resolution.

Source: 1965 Rev. Ord. 12-0102, 1729 (1976), 2246 (1986), 2846 (1998), 4972 (2015).

12-0103. Terms of license--Cancellation for failure to have rabies inoculation.--The license herein provided for shall be in force until December 31 of the year in which it is issued. Said license shall be canceled unless the records of the city auditor contain written evidence that a dog or cat has been inoculated against rabies at least once every three years.

Source: 1965 Rev. Ord. 12-0103, 1729 (1976), 2846 (1998), 4972 (2015).

12-0104. Animal must have collar with rabies tag and license tag attached.--Upon payment of the license fee provided for in § 12-0102, the chief of police shall issue to the owner a license certificate and a metallic tag for each dog and cat so licensed. The shape of the tag shall be changed every year and the tag shall have stamped thereon the year for which it was issued and the number corresponding with the number on the certificate. Each owner shall be required to provide each dog and cat with a collar to which the license tag must be affixed and shall see that the collar and tag are constantly worn. The collar may not exceed two pounds in weight and must be made of durable material strong enough to hold the animal for which it is intended. A collar may not be used in a manner that causes injury or sickness to the animal. Collars may not be equipped with any type of sharp prongs on the inside of the collar or weighted devices that may cause injury or discomfort to the animal's neck. Blunt pronged training collars are only permitted if the collar is properly fitted to the animal and it has not been altered from the manufactured design. In case a tag is lost or destroyed, a duplicate will be issued by the chief of police upon presentation of a receipt showing the payment of the license fee for the current year and the payment of a $.50 fee for such duplicate. Tags shall not be transferable from one animal to another and no refunds shall be made on any license fee because of death of the animal or the owner's leaving the city before expiration of the license period. The metal rabies inoculation tag shall also be kept affixed to the animal's collar at all times. The provisions of this ordinance shall not apply to dogs owned by the city of Fargo or any other political subdivision and used for law enforcement purposes.

Source: 1952 Rev. Ord. 12-0104, 1179 (1964), 2246 (1987), 4729 (2010).

12-0105. Running at large prohibited.--

A. Every person having the custody or control of any dog or cat shall prevent said animal from leaving the property limits of its owner or keeper without being effectively restrained by a chain or leash not exceeding six feet in length, or, within a vehicle being driven or parked on the street. In the event any such dog or cat is found at large, the owner, custodian or keeper of such animal shall be guilty of a violation of this section.

B. Every person having custody or control of a leashed animal on property other than his own shall be equipped to, and collect said animal's solid waste when eliminated.

C. Intentionally left blank.

D. Every female dog or cat in heat shall be kept confined in a building or secure enclosure or in a veterinary hospital or boarding kennel in such manner that such dog or cat cannot come in contact with another dog or cat except for breeding purposes.

E. Animal Habitually at Large:

1. "Habitually at large" is defined as 3 or more convictions of Fargo Municipal Code section 12-0105(A) or an equivalent offense of another jurisdiction for the specific animal, within 2 years.

2. Whenever there is reasonable cause to believe an animal is habitually at large, an application may be presented to the Fargo Municipal Court for a finding that the animal is habitually at large.

3. After receiving evidence at a hearing on the matter, the Municipal Court shall enter an order containing the court's findings, established by a preponderance of the evidence, whether the City has met its burden of showing the animal is habitually at large.

4. If the Defendant does not appear at the hearing, testimony may still be taken.

5. If the Court determines the animal is habitually at large, the Court shall order the surrender of such animal to the custody of the Fargo Police Department or designee.

6. Failure to surrender an animal deemed habitually at large within seven days of the order to surrender is a Class B Misdemeanor.

F. The owner, custodian or keeper of any animal which has bitten or scratched a human being or other animal, or which is suspected by the humane officer, health officer, or other appropriate city official, of having rabies, shall, in addition to any action or remedy otherwise provided in this article:

1. At the request of such official, confine any said animal for 10 days in a suitable secure enclosure or, if deemed necessary by said official, in the animal pound.

2. Immediately notify the Fargo police department if any said animal escapes during the above-mentioned 10-day period.

3. Make any and all reports requested in reference to the general health and medical history of said animal.

4. Surrender any said animal for such medical tests as are deemed necessary and submit said animal to treatment, or in the alternative, for destruction.

G. The provisions of this ordinance shall not apply to any dogs owned by the city of Fargo or any other political subdivision and used for law enforcement purposes.

Source: 1965 Rev. Ord. 12-0105, 1729 (1976), 2003 (1980), 2246 (1987), 2686 (1994), 4729 (2010), 4751 (2010), 5480 (2025).

12-0106. Impounded animals--Procedure for impounding.--Every police officer and other persons designated by the board of city commissioners may apprehend any dog or cat found running at large contrary to the provisions of this article and may impound such dog or cat in the city pound, if one is maintained, or other suitable place selected by the chief of police for the impounding of animals. The poundmaster or designated pound representative, upon receiving any dog or cat, shall make a complete registry, entering the breed, color, and sex of such dog or cat and whether licensed for the current year. If licensed, he shall enter the name and address of the owner and the number of the license tag.

Source: 1952 Rev. Ord. 12-0106, 1179 (1964), 5374 (2022).

12-0107. Impounded animals--Notice to owner and redemption.--Not later than two days after the impound of any dog or cat, the owner, if known, shall be notified. The owner of any dog or cat so impounded may reclaim such animal upon payment of the license fee, if unpaid, the costs of impoundment and maintenance, all costs incurred in giving any needed rabies inoculations, together with an administrative penalty in the amount approved by resolution of the board of city commissioners.

Source: 1965 Rev. Ord. 12-0107, 1729 (1976), 1999 (1980).

12-0108. Impounded animals--Disposition of unclaimed or infected dogs and cats.--It shall be the duty of the chief of police to keep all dogs and cats so impounded for a period of three days. If at the expiration of three days from the date of notice to the owner such dog or

cat shall not have been redeemed, it may be destroyed; any unlicensed dog or cat required by law to be licensed or any dog or cat which appears to be suffering from rabies or to be affected with another dangerous disease shall not be released but may be forthwith destroyed.

Source: 1965 Rev. Ord. 12-0108, 1729 (1976).

12-0109. Muzzling.--Whenever it becomes necessary to safeguard the public from the dangers of rabies, the chief of police, poundmaster, or city health officer, if any of them deem it necessary, shall request the president of the board of city commissioners to issue a proclamation ordering every person owning or keeping a dog or cat to confine it securely on his premises unless such dog or cat shall have a muzzle of sufficient strength to prevent its biting any person. Any unmuzzled dog or cat running at large during the time of the proclamation shall be seized and impounded, unless noticeably infected with rabies. All dogs and cats so noticeably infected with rabies and displaying vicious propensities shall be killed by the police department without notice to the owner. If not noticeably infected with rabies, such unmuzzled dogs or cats shall be impounded for at least two weeks; after which time they may be released to the owner upon payment of the impounding charges provided for in § 12-0107. Any dog or cat found to be infected with rabies during the impoundment shall be destroyed. If unclaimed after two weeks, such dogs or cats may be summarily destroyed.

Source: 1965 Rev. Ord. 12-0109, 1729 (1976).

12-0110. Rabies--Notice to police required.--If a dog or cat is believed to have rabies and has been bitten by a dog or cat suspected of having rabies, such animal shall be placed under the observation of a veterinarian, at the expense of the owner, for a period of two weeks. The owner shall notify the chief of police of the fact that his dog or cat has been exposed to rabies and at his discretion the chief of police is empowered to have such animal removed from the owner's premises to a veterinary hospital and there placed under observation for a period of two weeks at the expense of the owner.

It shall be unlawful for any person knowing or suspecting that a dog or cat has rabies to allow such dog or cat to be taken off his premises or beyond the limits of the city without the written permission of the chief of police. Every owner, or other person, upon ascertaining that a dog or cat is rabid shall immediately notify the poundmaster or a policeman who shall either remove the animal to the pound or summarily destroy it.

Source: 1952 Rev. Ord. 12-0110, 1179 (1964).

12-0111. Repealed.

Source: 1965 Rev. Ord. 12-0111, 1729 (1976), 4729 (2010), 4738 (2010).

12-0112. Animals - Disturbing the peace.--

A. It shall be unlawful for any person to own, keep, have in possession, or harbor any animal or animals which make any noise to the reasonable annoyance of another person or persons. The phrase "to the reasonable annoyance of another person or persons" shall include, but not be limited to: the creation of any noise by any animal or animals which can be heard by any person, including an animal control officer or a law enforcement officer, from a location outside of the building or premises where the animal or animals are located and which animal

noise occurs repeatedly over at least a five-minute period of time with no more than a one-minute lapse of time between each animal noise during the five minute period. Any such animals found to be disturbing the peace due to a reasonable annoyance of another person or persons are hereby declared a public nuisance.

B. A law enforcement officer or animal control officer may make a request to stop the annoyance. If after such request to stop or prevent the annoyance, the person violating this section fails or refuses to comply with the request to stop or prevent the annoyance within twenty-four hours of the request or in the event the law enforcement officer or animal control officer determines it necessary to stop the annoyance, the police officer or animal control officer may take custody of the animal or animals. Any animal or animals taken by a law enforcement officer or animal control officer may be reclaimed by the owner of said animal or animals upon payment of a fee in an amount up to $500 for each animal, said fee to be established by resolution of the board of city commissioners. If the animal is not redeemed, said animal may be put up for adoption or, if no suitable home can be found for the animal or animals, euthanized.

Source: 1965 Rev. Ord. 12-0112, 1729 (1976), 4729 (2010).

12-0113. Animals - shelter requirements.--No person shall keep an animal outdoors on any premises without providing proper containment and shelter for said animal at all times. Proper containment and shelter is defined as: (a) the animal has access to the owner's home through a door during all times spent outside; (b) the animal is at all times in the company of a human being; or (c) the animal is at all times provided access to an enclosed building, a house designed for the animal, or a similar structure. The term proper containment and shelter shall also mean that the animal must have sufficient space within the containment area that is outside the shelter to move about and be able to relieve itself away from its shelter. Said containment and shelter must be such that:

A. The shelter must have at least three sides, a roof and a floor;

B. The shelter must have a floor raised off the ground, free of cracks, depressions, and rough areas where insects, rodents, or eggs from parasites may lodge;

C. The containment area and shelter must be cleaned and maintained in a manner designed to insure the best possible sanitary conditions. Excreta shall be removed from the containment area and shelter as often as necessary, and rugs, blankets, and/or other bedding shall be kept clean and dry.

D. Both the containment area and shelter must be of adequate size to allow the animal to stand up and turn about freely, stand easily, sit and lie in a comfortable and normal position.

E. The shelter must have a floor constructed so as to protect the animal's feet and legs from injury.

F. The containment area and shelter must allow animals kept outdoors to remain dry during rain or snow.

G. The containment area and shelter must have sufficient clean bedding material and/or other means of protection from the weather and elements.

H. The containment area and shelter must provide sufficient shade to allow the animals kept outdoors to protect themselves from the direct rays of the sun, when sunlight is likely to cause overheating and/or discomfort.

I. The containment area and shelter must be structurally sound and maintained in good repair to protect the animal from injury.

J. The containment area and shelter must be constructed and maintained so that the animal contained therein has convenient access to clean food and water.

12-0114. Animals - Food and water requirements.--

A. Food. No person shall keep an animal on any premises, unless the animal is provided sufficient food daily to maintain proper body weight and good health.

1. The animal shall be provided food, which shall be free to contamination, and be wholesome, palatable, and of sufficient quantity and quality to meet the normal daily requirements for the condition and size of the animal.

2. Food receptacles shall be accessible to the animal and shall be located so as to minimize contamination by excreta and insects. Feeding pans shall be durable and kept clean. Disposable food receptacles may be used but must be discarded after each feeding. Self-feeders may be used for the feeding of dry food, and shall be sanitized regularly to prevent molding, deterioration, or caking of feed. Spoiled or contaminated food shall be disposed of in a sanitary manner.

B. Water. No person shall keep an animal on any premises unless the animal has fresh, potable water at all times, said water to be contained in such a manner that prevents the water from freezing during cold temperatures. Clean potable water shall be made available to the animal unless restricted by a veterinarian as a treatment for a specific medical or surgical condition and:

1. If the water is kept in a container, this container shall be of such design as to prevent leaking, tipping or spilling of the water contained therein. If necessary to accomplish this, the container shall be secured to a solid structure or secured to the ground. Watering containers shall be kept clean, kept out of the sun, and must be emptied and refilled with fresh water at least once a day; or,

2. If water for the animal is provided through an automatic or on-demand device, the water supply connected to the device must function twenty-four hours a day and the water receptacle and bowl must be cleaned regularly.

12-0115. Chains, kennels, tethers, and tie outs.--Chains, tethers, or tie outs must be at least three times the length of the animal secured to it and may not exceed ten pounds in total weight. Such chains, tethers or tie outs must be of durable material, that is strong enough to hold the animal being chained, tethered or tied-out. Any animal secured with a tie out must be so secured in an area that does not allow the animal to become tangled around objects and, thus, preventing the animal from having access to water and shelter. Chains, tethers and tie outs must be placed in such a location as to preclude or prevent the animal secured from reaching a public sidewalk, street or alley. The chain, tether or tie out must not allow the secured animal access to any neighboring property unless written permission has been obtained from the property owner. Animals restrained by a chain, tether, or other tie out device, shall not be secured to any stationary object for more than two consecutive hours, with at least a two-hour rest or relief period between each chaining, and no more than four two-hour chaining periods in a twenty-four hour period. Kennels and pulley/cable run systems shall be exempt from the two-hour restriction provided that:

A. The length of the pulley system is at least twelve feet and the attached tether has a swivel at both ends;

B. The height of the pulley system is mounted at least seven feet above the ground;

C. The space provided inside the kennel is at least thirty-two square feet;

D. The kennel floor is made of solid material, such as cement, brick, durable plastic or other suitable material, not including, however, wood ;

E. The animal or animals so confined or secured to a kennel or pulley system are not confined in it, or to it, for more than ten consecutive hours in a twenty-four hour period.

12-0116. Number of Dogs and/or Cats - Limitation.--

A. It shall be unlawful to keep, harbor, own, or in any way possess more than six dogs and cats over six months of age upon or about the premises of any dwelling unit, within the corporate limits of the City of Fargo. The maximum number of dogs and cats, combined, may not exceed six.

B. Exception - A person may request a permit from the Fargo Police Department to keep more than six dogs and cats as part of a qualified home used by organizations for rescue or sheltering of abandoned or lost animals. For purposes of this section, a "qualified home" shall mean a home which has received written approval to house abandoned or lost animals by or on behalf of a bona fide organization involved in the rescue or sheltering of abandoned or lost animals, and which organization has been in existence within the United States of

America and operating for at least one year. The permit shall be for a period of one year, and may be renewed annually, provided there have been no violations of the provisions of this chapter resulting in an administrative penalty, infraction, or criminal violation being imposed on the holder of said permit. The fee for the permit shall be set and reviewed from time to time by the board of city commissioners.

12-0117. Potentially dangerous and dangerous dogs.--

A. Designation.

1. Any dog inside the City of Fargo may be designated as a potentially dangerous dog if the dog:

a. When unprovoked, bites a human or domestic animal on public or private property;

b. When unprovoked, chases or approaches a person, including a person on a bicycle, upon the streets, sidewalks, or any public or private property, other than the dog owner's property, in an apparent attitude of attack; or

c. Has a known propensity, tendency, or disposition to attack, unprovoked, causing injury or otherwise threatening the safety of humans or domestic animals.

2. Any dog within the City of Fargo may be designated as a dangerous dog if the dog has:

a. Inflicted substantial bodily injury on a human being or a domestic animal on public or private property;

b. Killed a domestic animal while off the owner's property; or

c. Previously been found to be potentially dangerous and commits any offense under section 12-0117 (A)(1-2).

B. Procedure for designating a dog as potentially dangerous or dangerous.

1. Whenever there is reasonable cause to believe a dog is dangerous or potentially dangerous, an application may be presented to the municipal court for a finding the dog is dangerous or potentially dangerous. After receiving evidence at a hearing on the matter, the municipal court shall enter an order containing the court's findings, established by a preponderance of the evidence, whether the dog is dangerous or potentially dangerous. The court shall be authorized to order compliance by the owner of the dog with the provisions of this section and any other conditions which are necessary to ensure the health and safety of others.

2. The owner shall not transfer ownership of the dog after an application has been served. This restraining provision shall be included in the application.

3. If the owner does not appear at the hearing, the Court shall hear the matter and issue an order.

4. When a dog is designated to be potentially dangerous or dangerous, the owner shall be notified in writing of such designation by the Municipal Court.

C. Registration and application.

1. If a dog is deemed dangerous or potentially dangerous, the dog shall be registered with the City of Fargo Police Department. The application to register the dog as a dangerous or potentially dangerous dog shall be determined by the Fargo Police, and at a minimum, include:

a. The owner's full name, home address, and telephone number;

b. Proof of the implanted microchip identification number;

c. Proof of a current City of Fargo animal license;

d. Dog's name, breed, and age;

e. Current photo of the dog;

f. Proof the dog has been sterilized; and

g. Proof of current vaccinations.

2. The application to register a dog as potentially dangerous shall include proof of continuing liability insurance in a single incident amount of at least $100,000 for bodily injury to or death of any person or persons or for damage to property owned by the persons which may result from the ownership, keeping, or maintenance of dogs designated as potentially dangerous, and a yearly registration fee up to $300.

3. The application to register a dog as dangerous shall include proof of continuing liability insurance in a single incident amount of at least $400,000 for bodily injury to or death of any person or persons or for damage to property owned by the persons which may result from the ownership, keeping, or maintenance of dogs designated as dangerous, and a yearly registration fee up to $600.

4. Every owner of a dog designated as potentially dangerous or dangerous shall complete and file an application with the accompanying registration fees no later than the deadline as designated by the court, and then, annually, no later than the third Monday of each year thereafter.

D. Such additional conditions imposed on a dangerous or potentially dangerous dog may include, but are not limited to:

1. The owner not sell or transfer ownership of the dog without approval from the Court.

2. Any subsequent owner of the dog shall abide by the Court's Order as if they were the owner.

3. The owner notify the police if the dog bites anyone else within 48 hours.

4. The owner notify the police if the dog dies or becomes injured within 48 hours.

5. The owner notify the police if the owner moves within 48 hours.

6. The dog undergo obedience training.

7. The owner post the property with warnings about the dog.

8. The dog not be allowed outdoors during certain times.

9. The dog be leashed and/or muzzled and/or under the control of a competent adult.

10. Any caretaker or boarder of the dog be given a copy of the Order.

11. Compliance with all other requirements of this section.

E. Removal of designation of dangerous dog and potentially dangerous dog.

1. Removal of designation of dangerous dog. The owner of a dangerous dog may apply to the municipal court to have the designation of dangerous dog transitioned to potentially dangerous dog once the following criteria have been met:

a. Participation and proof of completion of training classes approved by the Fargo Police Department;

b. Letter of recommendation and rehabilitation from the Fargo Police Department approved dog trainer; and

c. No complaints about the dog have been received by the City of Fargo within the previous 24 months as confirmed by the Fargo Police.

2. Removal of designation of potentially dangerous dog. The owner of a potentially dangerous dog may apply to the municipal court judge to have the designation of potentially dangerous dog removed by following the requirements listed under section 12-0117 (E)(1). If a dangerous dog has transitioned to potentially dangerous, all criteria under subsection 12-0117 (E)(1) must be completed again and the timelines restart from the time the dog was deemed to be potentially dangerous by the Court.

3. A hearing shall take place to determine whether sufficient criteria, by a preponderance of the evidence, supports changing the designation of the dog. The Court shall issue an amended Order with findings if the designation of the dog changes.

F. Foreign judgment. Any dog designated as potentially dangerous, dangerous, or equivalent designation by another jurisdiction must be registered within 24 hours of being brought into the city limits of Fargo. Such registration shall be with the Fargo Police Department. An owner seeking to keep a dangerous or potentially dangerous dog in the City of Fargo in excess of 14 days must petition the Court for an Order to do so. If the Court allows the dog to remain in excess of 14 days, the Court shall issue an Order similar to if the offense had occurred in the City of Fargo.

G. Remedies and Enforcement.

1. Dogs in violation of registration or court-ordered conditions requirements may be impounded by the police department and held until the dog is brought into compliance. If not brought into compliance within 5 days after impoundment, the dog may be euthanized or relocated. The owner of said dog is responsible for boarding and all other expenses associated with this process before the dog may be released.

2. No person may own or be in possession of a dog in the City of Fargo if the person has been convicted of any violation of this section, or of an equivalent ordinance or statute of another state or political subdivision, more than once. If any member of a household is prohibited from owning a dog pursuant to this section, no person residing in the same household is permitted to own a dog. The City shall petition the Court and schedule a hearing for an Order which bars the individual from owning dogs. The burden of proof is preponderance of the evidence. An individual who owns a dog after being barred from doing so is guilty of a Class B Misdemeanor.

3. A dog found to be dangerous or potentially dangerous more than once shall be surrendered to the Fargo Police Department or designee for

placement or destruction. The City may petition the Court and schedule a hearing for an Order to determine whether two or more findings of dangerous or potentially dangerous have occurred. The burden of proof is preponderance of the evidence. An owner or caretaker who fails to surrender a dog under this section shall be guilty a Class B Misdemeanor.

4. It shall be a Class B misdemeanor offense to allow a potentially dangerous dog or dangerous dog to "run at large."

5. It shall be an infraction if the owner fails to abide by the Court's Order, fails to register a dangerous or potentially dangerous dog, or violates any other provision of this section besides those listed in 12-0117 (G)(2), (G)(3), and (G)(4).

Source: 1965 Rev. Ord. 12-0113, 1729 (1976), 2772 (1995), 4729 (2010), 5480 (2025).

ARTICLE 12-02

ANIMALS, GENERAL

Section

12-0201 Unlawful to keep vicious animal.
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12-0216 Squirrels--Killing in city prohibited.
12-0217 Cruelty to dumb animals prohibited.
12-0218 Keeping of wild or exotic animals prohibited.
12-0219 Feeding of deer prohibited.

12-0201. Unlawful to keep vicious animal.--No person or persons in the city, being the owner or keeper of any dangerous, vicious, mischievous, or unruly animal and knowing said animal to be such, shall allow or permit the same to be or run at large; provided, however, that dangerous or potentially dangerous dogs are subject to the provisions of Section 12-0117.

Source: 1952 Rev. Ord. 12-0201, 4729 (2010), 4751 (2010).

12-0202. Rabbits and guinea pigs.--No rabbits or guinea pigs shall be kept within an enclosure within the city.

Source: 1952 Rev. Ord. 12-0202, 5092 (2017).

12-0203. Unlawful to keep farm animals within city limits-- Public nuisance--Exceptions.--It shall be unlawful for the owner or owners of any farm animal mentioned in § 12-0213 to allow the same to be kept within the limits of the city, except that such farm animals may be kept on property which is classified as "AG-Agricultural District" under the Land Development Code (Fargo Municipal Code, Chapter 20) of the city of Fargo. It shall further be unlawful to allow any such farm animal to run at large on the streets, avenues, alleys, parks, or public grounds of the city, or to be tethered or staked out on the streets, parks, or public grounds of the city, or to be tethered or staked in such a manner as to go upon any street, sidewalk, crosswalk, or public ground within the city. Any such animals found within the corporate limits of the city except on property zoned with an "AG-Agricultural District" are declared to be public nuisances. This section shall not apply to the owners of any farm animals kept as a part of any state educational institution or the owners of any farm animals temporarily exhibited at any fair or agricultural exhibition, provided said animals are stabled and cared for in a sanitary manner approved by the health department.

Source: 1965 Rev. Ord. 12-0203, 1699 (1976), 4729 (2010), 5092 (2017).

12-0204. Impounding farm animals--Authority.--Any farm animals mentioned in § 12-0213 found to be in violation of the provisions of § 12-0203 shall be liable to impounding according to law.

Source: 1965 Rev. Ord. 12-0204, 1699 (1976).

12-0205. Impounding farm animals--Duties of police.--It shall be the duty of the chief of police or any police officer of the city to take any of the farm animals mentioned in § 12-0213 found within the city, limits or running at large or tethered or staked contrary to the provisions of this article and impound the same, in accordance with § 12-0105 of article 12-01 of this chapter.

Source: 1952 Rev. Ord. 12-0205, 941 (1955).

12-0206. Impounding farm animals--Failure of owner to pay fines, fees, or charges--Complaint to municipal judge--Hearing and notice.--Upon the refusal or neglect of the owner of any of the farm animals mentioned in § 12-0213, for 24 hours after the impounding of such animal or animals, to pay any fines, fees, and charges provided for, the chief of police or policeman so impounding such animal shall make a complaint in writing to the municipal judge giving a general description of the animal so impounded and the date when impounded and, if known, the name of the owner. The municipal judge shall fix a day and hour for hearing

said complaint and the trial of the matter. Such municipal judge shall issue notice of such hearing or trial to such owner if known, and if the name of the owner be unknown, then to the unknown owner of such animal. Notice shall be served or posted as provided in § 12-0207.

Source: 1952 Rev. Ord. 12-0206.

12-0207. Impounding farm animals--Failure of owner to pay fines, fees, or charges--Service of notice of hearing.--The notice of hearing may be served by the chief of police or any police officer of the city. The serving officer shall make service upon the owner of such animal, if known, by giving such notice to said owner in hand or by leaving a copy thereof at his usual place of abode with some member of the family over 14 years of age, informing such person of the contents thereof; and, if the owner be unknown, then he shall serve same by posting a copy of such notice in each of three conspicuous places in the city of Fargo, and, in addition thereto, shall cause a copy thereof to be published once in the official newspaper of the city. He shall make a return in writing of the manner in which such service is made, which return shall be sworn to by him and shall be prima facie evidence of the matter therein stated.

Source: 1952 Rev. Ord. 12-0207.

12-0208. Impounding farm animals--Failure of owner to pay fines, fees, or charges--Hearing--Procedure.--If the notice shall be served or posted and published at least three days before the day therein named for the hearing, then the complaint shall be for trial at the time and place mentioned in said notice. The city of Fargo shall be the plaintiff and the owner, or unknown owner, of the animals impounded shall be the defendant in such case or trial. Either party shall be entitled to a trial by jury under the same conditions and in the same manner, as near as may be possible, as any other cases before the court.

Source: 1952 Rev. Ord. 12-0208.

12-0209. Impounding farm animals--Failure of owner to pay fines, fees, or charges--Default cases--Manner of trial.--If the owner shall fail to appear at the time and place of hearing or trial, his default shall be entered and a hearing may be had before the court as in other cases of default.

Source: 1952 Rev. Ord. 12-0209.

12-0210. Impounding farm animals--Failure of owner to pay fines, fees, or charges--Judgment and order for sale of animals.--If the owner, or unknown owner, of such animals be convicted on the basis of the complaint provided for in § 12-0206, then judgment shall be rendered against him for the fine, fees, costs, and charges provided under § 12-0213, and the court shall make an order directing the chief of police forthwith to proceed to sell such animals to pay such fine, fees, costs, and charges.

Source: 1952 Rev. Ord. 12-0210.

12-0211. Impounding farm animals--Failure of owner to pay fines, fees, or charges--Notice of sale of animals.--Immediately upon receipt of the order provided for in § 12-0210, the chief of police shall proceed to sell such animals at public auction at the pound where they are impounded by first giving 10 days' notice of said sale by posting the same at the door of the police department. The notice shall specify the time and place of such sale, a general

description of the animals to be sold, and the date on which same were impounded. The chief of police shall also cause such notice to be published once in the official newspaper of the city, at least five days prior to the time of such sale.

Source: 1952 Rev. Ord. 12-0211.

12-0212. Impounding farm animals--Failure of owner to pay fines, fees, or charges--Procedure for sale of animals--Disposition of proceeds.--All sales made under the provisions of the order provided for in § 12-0210 shall be for cash in hand; the sale may be adjourned, from day to day, for good cause. Out of the proceeds of the sale the chief of police shall pay all fees and charges as herein provided, and pay over any balance to the city treasurer with a statement of the amount for which such animal or animals were sold and the amount of charges and costs incurred. The amount so paid to the city treasurer shall be for the use of the owner of such animal or animals. The chief of police shall not purchase or be interested directly or indirectly in the purchase of any animal by virtue of the provisions hereof, under a penalty of $10 fine and the forfeiture of his office.

Source: 1952 Rev. Ord. 12-0212.

12-0213. Impounding farm animals--Notice to owner--Redemption--Fees.--The chief of police shall immediately, upon the impounding of any animals mentioned herein, notify the owner, if known to him, either verbally or by leaving a written notice at his place of residence. Any animal which has been restrained or impounded may be redeemed at any time before the sale by, paying the chief of police or poundmaster the following fees and other costs up to the time of redemption, viz.:

	EACH
For impounding animals of the horse kind	$2.00
For impounding cattle	$2.00
For impounding sheep	$1.00
For impounding swine	$1.00
For impounding goats	$1.00
Providing substance for horses, per day	$1.00
Providing substance for cattle, per day	$1.00
Providing substance for sheep, goats or swine, per day	$1.00
For notifying owners of animals	$1.00
For making of service of notice of time	$2.00
For writing and posting notice of sale	$1.00
Court fees for issuing notice	$1.00
Court fees for taking proof and entering judgment	$2.00
Court fees for making order of sale	$1.00

The fees and costs collected shall forthwith be turned over to the city treasurer by the chief of police or poundmaster.

Source: 1952 Rev. Ord. 12-0213.

12-0214. Trespassing animals may be taken up by owner or occupant of property. Any and all animals which shall at any time be found trespassing upon any private property within the limits of the city shall be liable to be taken up and restrained by the owner or occupant of such property or his child, servant, or agent.

Source: 1952 Rev. Ord. 12-0214.

12-0215. Unlawful to let out animal from private enclosure.--No person or persons shall open, let down, break down, tear down, or injure or shall aid, assist, or advise in opening, letting down, breaking down, tearing down or injuring any gate, boards, fence, yard, shed, stable, barn, or other enclosure or building of any person whereby any animal or animals belonging to such person shall get out or escape from any building or enclosure.

Source: 1952 Rev. Ord. 12-0215.

12-0216. Squirrels--Killing in city prohibited.--It shall be unlawful for any person to kill or injure or attempt to kill or injure any squirrel within the corporate limits of the city.

Source: 1952 Rev. Ord. 12-0216.

12-0217. Cruelty to dumb animals prohibited.--It shall be unlawful for any person within the city to beat, injure, or otherwise abuse inhumanly, unnecessarily, or cruelly any dumb animal.

Source: 1952 Rev. Ord. 12-0217.

12-0218. Keeping of wild or exotic animals prohibited.--

A. Definitions.--For the purposes of this section, the following words and phrases shall have the meanings respectively ascribed to them:

1. "Animal" shall include any live vertebrate creature, domestic or wild, not to include birds.

2. "Pet" shall mean any animal kept for pleasure rather than utility.

3. "Wild" or "exotic animal" shall mean any live monkey (non-human primate), raccoon, skunk, wolf, squirrel, fox, leopard, panther, tiger, lion, lynx or any other warm-blooded animal, poisonous snake or tarantula which can normally be found in the wild state or any other member of crocodilian, including but not limited to alligators, crocodiles, caimans, and gavials and including such other animal that cannot be effectively inoculated for rabies. Ferrets, non-poisonous snakes, rabbits, and laboratory rats which have been bred in captivity and which have never known the wild shall be excluded from this definition.

B. Display or exhibition.--No person shall keep or permit to be kept on his premises any wild or exotic animal for display or for exhibition purposes, whether gratuitously or for a fee. This section shall not be construed to apply to zoological parks, performing animal exhibitions, circuses, or veterinary clinics which are properly licensed by the federal government or state of North Dakota.

C. Keeping as a pet.--No person shall keep or permit to be kept any wild or exotic animal as a pet.

D. Notice required at a place of sale.--Any person who offers for sale a wild or exotic animal as defined by § 12-0218, subsection (A), subparagraph 3, of this section shall post conspicuously at the place of sale or display the following notice:

> No person may lawfully keep or permit to be kept in the city of Fargo any live monkey (non-human primate), raccoon, skunk, wolf, squirrel, fox, leopard, panther, tiger, lion, lynx or any other warm-blooded animal, poisonous snake or tarantula, crocodile or alligator, which can normally be found in the wild state or any other member of the crocodilian, including but not limited to, alligators, crocodiles, caimans and gavials and including such other animal that cannot be effectively inoculated for rabies.

E. Penalty.--Any person violating any of the provisions of this section shall be deemed guilty of an infraction. Each day a violation of this section shall continue constitutes a separate offense.

F. Notice of keeping dangerous animals.--Upon the written complaint of any person that a person owns or is keeping or harboring a wild or exotic animal in violation of this section in the city, the police department or their authorized designee shall forthwith cause the matter to be investigated; and if after investigation the facts indicate that such person named in the complaint is in fact the owner or is keeping or harboring any such animal in the city, they shall forthwith send written notice to the person requiring such person to safely remove the animal from the city within five days of the date of the notice. Notice as herein provided shall not be required where such animal has previously caused serious physical harm or death to any person or has escaped and is at large, in which case the police department shall cause the animal to be immediately seized and impounded, according to the provisions of § 12-0218, or killed if seizure and impoundment are not possible without risk or serious physical harm or death to any person.

G. Seizure and impounding of wild or exotic animals.--The police department or their authorized designee shall forthwith cause to be seized and impounded any wild or exotic animal, where the person owning, keeping or harboring such animal has failed to comply with the notice sent pursuant to § 12-0218, subsection (F), above. Upon a seizure and impoundment, the animal shall be delivered to a place of confinement, which may be with any organization which is authorized by law to accept, own, keep or harbor such animals.

If, during the course of seizing and impounding any such animal, the animal poses a risk of serious physical harm or death to any person, such person

or persons authorized by the police department may render the animal immobile by means of tranquilizers or other safe drugs; or if that is not safely possible, then the animal may be killed.

H. Enforcement.--The provisions of § 12-0218 shall be enforced by the police department or the North Dakota State Game and Fish Department, the Animal Damage Control Department of the United States Department of Agriculture or any other person duly designated by the Fargo chief of police.

I. Effective date.--Any person who keeps a wild or exotic animal(s) in contravention of this section may dispose of the animal(s) by removal of the animal(s) from the city of Fargo by giving or selling the animal(s) to a zoological park or by releasing the animal(s) to the wild.

Source: 2770 (1995).

12-0219. Feeding of deer prohibited.--No person shall feed or allow the feeding of any deer within the city limits of the city of Fargo. For purposes of this section, feeding shall mean the provision of one-half cubic foot or more of grain, fruit, vegetables, nuts, hay, or other edible material, either on the ground or at a height of less than five feet above the ground, in a manner that attracts deer on a regular basis. Living food sources such as fruit trees and other live vegetation shall not be considered as deer feeding. This prohibition shall not apply to veterinarians, city animal control officers, and park maintenance staff, or county, state or federal game officials who, in the course of their duties, have deer in their custody or under their management.

Source: 4505 (2006).

ARTICLE 12-03

DOMESTIC FOWL, WILD BIRDS, AND PETS

Section

12-0301 Running at large of domestic fowl prohibited.
12-0302 No domestic fowl to be kept.
12-0303 Keeping of domestic fowl as public nuisance--Declaration.
12-0304 Keeping of domestic fowl as public nuisance--Abatement.
12-0305 Unlawful to kill harmless wild birds or to destroy eggs or nests.
12-0306 Keeping of chickens prohibited without permit.
12-0307 Definitions.
12-0308 Permit.
12-0309 Confinement.
12-0310 Chicken coops and chicken runs.
12-0311 Conditions and inspections.
12-0312 Private restrictions and covenants on property.
12-0313 Refusal to grant or renew permit.
12-0314 Removal of chicken coop and chicken run.
12-0315 Violation--Keeping of chickens without permit.

12-0301. Running at large of domestic fowl prohibited.--It shall be unlawful for the owner, keeper, or custodian of chickens, ducks, geese, turkeys, pigeons, or other domestic fowl to permit or allow the same to run at large within the limits of the city.

Source: 1952 Rev. Ord. 12-0301.

12-0302. No domestic fowl to be kept.--Except as permitted in this article, no geese, ducks, turkeys, pigeons, or other domestic fowl shall under any circumstances be kept within the city except as may be permitted under the Land Development Code (Chapter 20, Fargo Municipal Code).

Source: 1952 Rev. Ord. 12-0302, 5092 (2017).

Editor's note—Ord. No. 5092, § 1, adopted Apr. 24, 2017, retitled the catchline of § 12-0302 from "Distance from dwellings domestic fowl to be kept" to read as herein set out.

12-0303. Keeping of domestic fowl as public nuisance--Declaration.--Other than the keeping of any ducks, geese, turkeys, pigeons, or other domestic fowl as permitted under the Land Development Code and other than the keeping of chickens under a permit as provided by this article, the keeping of any ducks, geese, turkeys, pigeons or other domestic fowl is declared to be a public nuisance.

Source: 1952 Rev. Ord. 12-0303, 5092 (2017).

12-0304. Keeping of domestic fowl as public nuisance--Abatement.--Any person who owns or keeps at any time within the limits of the city any fowl of any kind declared to be a public nuisance, as set forth in § 12-0303, who shall fail, neglect or refuse to abate said nuisance by destroying said fowl or removing said fowl from the city or by doing whatever shall be necessary to the abatement of such nuisance within 10 days after notice thereof so to do shall be deemed guilty of maintaining a public nuisance.

Source: 1952 Rev. Ord. 12-0304.

12-0305. Unlawful to kill harmless wild birds or to destroy eggs or nests.--Unless otherwise permitted by law, it shall be unlawful for any person to kill or injure or attempt to kill or injure any harmless wild bird as defined in 20.1-01-02, N.D.C.C., within the corporate limits of the city or to injure or destroy the eggs or nest of any such bird within said corporate limits.

Source: 1952 Rev. Ord. 12-0305, 2120 (1983), 5092 (2017).

12-0306. Keeping of chickens prohibited without permit.--Chickens permitted. It is unlawful for any person to own, control, keep, maintain or harbor chickens on any premises within the City unless issued a permit to do so as provided in this section. No permit shall be issued for the keeping or harboring of more than six (6) chickens on any premises. The keeping or harboring of male chickens or roosters is prohibited.

Source: 5092 (2017), 5523 (2025).

12-0307. Definitions.--The following definitions shall apply unless the context clearly indicates or requires a different meaning.

A. "Chicken" means a female chicken or hen.

B. "At large" means a chicken out of its chicken coop or run, off the premises or not under the custody and control of the owner.

C. "Chicken coop" means a structure for housing chickens made of wood or other similar materials that provides shelter from the elements.

D. "Chicken run" means an enclosed outside yard for keeping chickens.

E. "Person" means for purposes of this article and unless the context suggests otherwise, the resident, property owner, custodian, or keeper or of any chicken and shall include, where the context of the provision allows, any natural person, co-tenancy, partnership, corporation, limited liability company or other form of separate business entity recognized by North Dakota state law.

F. "Premises" means, for purposes of this article only, a lot as defined by § 20-1202.
Source: 5092 (2017).

12-0308. Permit.--No person shall maintain a chicken coop or chicken run unless granted a permit by the city auditor. The permit shall be subject to all the terms and conditions of this article and any additional conditions deemed necessary by the city auditor to protect public health, safety and welfare. The city auditor shall issue said permit for a period not to exceed one year, subject to annual renewal thereof. The initial permit shall automatically expire at the end of the initial calendar year and, thereafter, renewals of said permit shall extend for calendar-year periods. The necessary permit application may be obtained from the city auditor. Included with the completed application must be a scaled diagram that indicates the location of any chicken coop and chicken run, and the approximate size and distance from adjoining structures and property lines, the number of chickens to be maintained at the premises, and a statement that the applicant/permittee will at all times keep the chickens in accordance with this ordinance and all the conditions prescribed by the city auditor, or modification thereof, and failure to obey such conditions will constitute a violation of the provisions of this section and grounds for cancellation of the permit. To the extent a chicken coop or run is intended to be movable, the scaled diagram shall indicate the area or areas into which they may be located should the permit be granted. No permit shall be issued for incomplete applications. Prior to issuance of an applicant's initial permit by the city auditor, the applicant must allow the city to inspect the applicant's proposed chicken coop and chicken run as installed and the city's inspector must approve the installation. A permit for the keeping of chickens may be revoked or suspended by the city auditor for any violation of this section following written notice or, upon request for renewal, the renewal permit may be refused by the city auditor. The permittee may appeal the revocation, suspension or refusal of renewal of the permit by timely request for a hearing before the city health officer. The request for hearing must be either postmarked or received in the city auditor's office within seven (7) days of the date of the notice. The city health officer shall hold a hearing on the permittee's request for hearing and shall render a decision on the matter after said hearing. The decision of the health officer may be further appealed to the board of city commissioners by filing a timely notice of appeal of the decision of the health officer with the city auditor. The notice of appeal must be either postmarked or received in the city auditor's office within seven (7) days of the date of the decision of the health officer.
Source: 5092 (2017), 5523 (2025).

12-0309. Confinement.--Every person who owns, controls, keeps, maintains, or harbors chickens must keep them confined at all times in a chicken coop and chicken run and may not allow the chickens to run at large. Chickens may be allowed out of their coop and run under direct supervision by an adult and so long as the chickens are not allowed to run at large.

Source: 5092 (2017).

12-0310. Chicken coops and chicken runs.--

(a) Except as set forth in this section, chicken coops and runs, as accessory structures, must comply with the setback requirements set forth in Section 20-0403. Chicken coops and chicken runs may not be located within the front yard and are subject to a three (3) foot setback from any adjacent premises. All chicken coops must be a minimum of four (4) square feet per chicken in size, may not exceed ten (10) square feet per chicken in size and may not exceed seven (7) feet in total height from adjacent ground level. Attached fenced-in chicken runs must have a minimum of ten (10) square feet per chicken, including the chicken coop and may not exceed twenty (20) square feet per chicken and fencing may not exceed six (6) feet in total height from adjacent ground level. Chicken runs may be enclosed with wood or woven wire materials or a combination thereof. Chicken feed must be kept in metal predator proof containers. Chicken manure may be placed in yard compost piles. To the extent the setback provisions of Section 20-0403 conflict with the setbacks or other provisions of this section, the setback or other provisions herein shall apply.

(b) Chicken coops must either be:

(i) Elevated with a clear open space of at least twenty-four (24) inches between the ground surface and framing/floor of the coop; or,

(ii) The coop floor, foundation and footings must be constructed using rodent resistant construction.

(c) Chicken coops are not allowed to be located in any part of a home or garage that is attached to a home. A chicken coop may be attached to a detached garage, detached shed or other structure that is not attached to a dwelling or any other structure that includes sleeping, cooking, eating or sanitation facilities, or any combination thereof, and so long as there is a physical separation between the chicken coop and run and the space used and occupied for non-chicken-keeping-related purposes.

(d) Chickens must be secured in a chicken coop from sunset to sunrise each day.

(e) With respect to chickens owned or kept pursuant to a permit issued pursuant to this article, the slaughter and breeding of chickens on any premises within the city is prohibited.

(f) Commercially purchased chicken coops must substantially conform with the sizing requirements set forth in Section 12-0310(a), as determined at the discretion of the city's inspector.

Source: 5092 (2017), 5523 (2025).

12-0311. Conditions and inspections.--No person who owns, controls, keeps, maintains, or harbors chickens shall permit the premises where the chickens are kept to be maintained in an unhealthy, unsanitary or noxious condition or to permit the premises to be in such condition that noxious odors are carried to adjacent public or private property. Any chicken coop or chicken run authorized by permit under this section may be inspected at any reasonable time by the animal control officer, law enforcement officer, public health official, or other employee or agent of the city. A person who has been issued a permit shall submit the same for examination upon demand by the animal control officer, law enforcement officer, public health official, or other employee or agent of the city.

Source: 5092 (2017), 5523 (2025).

12-0312. Private restrictions and covenants on property.--Notwithstanding the issuance of a permit by the City, private restrictions and/or covenants on the use of property shall remain enforceable and take precedence over a permit. Private restrictions include but are not limited to deed restrictions, condominium master deed restrictions, neighborhood association by-laws, covenant declarations and deed restrictions. A permit issued to a person whose premises are subject to private restrictions and/or covenants that prohibit the keeping of chickens is void. The interpretation and enforcement of the private restriction is the sole responsibility of the private parties involved.

Source: 5092 (2017).

12-0313. Refusal to grant or renew permit.--The city auditor may refuse to grant or renew a permit to keep or maintain chickens for failure to comply with the provisions of this section, submitting an inaccurate or incomplete application, if the conditions of the permit are not met, if a nuisance condition is created, or if the public health and safety would be unreasonably endangered by the granting or renewing of such permit.

Source: 5092 (2017).

12-0314. Removal of chicken coop and chicken run.--Any chicken coop or chicken run constructed or maintained on any premises shall be immediately removed from said premises after the suspension, expiration or termination of the permit for said premises, or shall be removed if the chicken-keeping activities have been discontinued or abandoned. Chicken-keeping activities shall be deemed to have been discontinued or abandoned if an annual renewal of the chicken-keeping permit is not obtained by a permittee by the last day of February each year.

Source: 5092 (2017), 5523 (2025).

12-0315. Violation--Keeping of chickens without permit.--Any person who owns, controls, keeps, maintains or harbors chickens in the city of Fargo without obtaining or maintaining a current permit or after a permit has been suspended or revoked shall be guilty of an infraction.

Source: 5092 (2017).

ARTICLE 12-04

WILDLIFE MANAGEMENT PROGRAM--REGULATIONS

Section

12-0401 City Wildlife Management Program.
12-0402 Repealed.
12-0403 Designated season and areas for inclusion within Wildlife Management Program, number of permits, permit fee.
12-0404 Repealed.
12-0405 Repealed.
12-0406 Rules and regulations of participation.
12-0407 Repealed.
12-0408 Repealed.
12-0409 Penalty for violations.

12-0401. City Wildlife Management Program.--The board of city commissioners deems it necessary and appropriate to establish a Wildlife Management Program within the city limits of Fargo. Through this program, the city authorizes persons to use an archery device for purposes of meeting the goals of the program. The board of city commissioners shall have authority to adopt such rules and regulations as are necessary to implement the Wildlife Management Program.

Source: 4517 (2006), 4855 (2013), 5373 (2022).

12-0402. Repealed.

Source: 4517 (2006), 5373 (2022).

12-0403. Designated season and areas for inclusion within Wildlife Management Program, number of permits, permit fee.--The board of city commissioners may annually, by resolution, designate a period of time during which persons may participate in the city's Wildlife Management Program. The board of city commissioners may also, by resolution designate specific areas within the city limits for inclusion within the program as well as designate the appropriate number of permits. The board of city commissioners shall also have authority to charge a fee for participating in the program which may be set annually by resolution.

Source: 4517 (2006), 4855 (2013).

12-0404. Repealed.

Source: 4517 (2006), 4855 (2013), 5373 (2022).

12-0405. Repealed.

Source: 4517 (2006), 5373 (2022).

12-0406. Rules and regulations of participation.--

A. Eligibility for participation in the Wildlife Management Program is governed by applicable North Dakota Game and Fish regulations.

Source: 4517 (2006), 4855 (2013), 5373 (2022).

12-0407. Repealed.
Source: 4517 (2006), 4855 (2013), 5373 (2022).

12-0408. Repealed.
Source: 4517 (2006), 4855 (2013), 5373 (2022).

12-0409. Penalty for violations.--Any person, entity, or group of individuals who violate any provision of this article, other than the unlawful carrying, possession, or discharge of a weapon as described in section 10-0304, or who fail to follow any related rules or regulations, shall be charged with an infraction, punishable by a fine not to exceed $1,000.00.
Source: 4517 (2006), 5373 (2022).

CHAPTER 13

HEALTH PROTECTION AND DISEASE PREVENTION

Article

13-01 Public Health Department, §§ 13-0101 to 13-0105.
13-02 Regulations of the Public Health Department, §§ 13-0201 to 13-0214.
13-03 Control and Regulation of Food Establishments, §§ 13-0301 to 13-0305.
13-04 Food Service Establishments, §§ 13-0401.
13-05 Waste, yardwaste, ashes and other waste--Removal and disposal of, §§ 13-0501 to 13-0530.
13-06 Rubbish, Ashes, and Wastes Removal--Commercial Haulers--Repealed by Ord. 949 (1955).
13-07 Slaughtering Animals and Processing and Sale of Meat--Repealed by Ord. 4374 (2004).
13-08 Dead Animals, Bones, Carcasses, Furs, and Hides, §§ 13-0801 to 13-0814.
13-09 Regulation of Storage and Accumulation of Junk, Trash, Rubbish, Junk Automobiles, Abandoned Vehicles and Building Materials and of Maintenance of Blighted Structures, §§ 13-0901 to 13-0907.
13-10 Recreational Aquatic Facilities, §§ 13-1001 to 13-1015.
13-11 Child Care Centers, §§ 13-1101, 13-1110 to 13-1112.
13-12 Pet Stores, §§ 13-1201 to 13-1207.
13-13 Regulations Relating to Cleanup of Clandestine Drug Lab Sites and Chemical Dump Sites, §§ 13-1301 to 13-1322.
13-14 Lodging Establishments, §§ 13-1401 to 13-1411.
13-15 Ambulance Service, §§ 13-1501 to 13-1505.
13-16 Boarding Facilities, §§ 13-1601 to 13-1607.
13-17 Boulevard Gardens, §§ 13-1701 to 13-1706.
13-18 Massage Therapy Establishments, §§ 13-1801 to 13-1807.

ARTICLE 13-01

PUBLIC HEALTH DEPARTMENT

Section

13-0101 Public Health Department--Purpose.
13-0102 Public Health Department--Authority.
13-0103 Director of public health--Appointment.
13-0104 Director of public health--Duties.
13-0105 Notice of Regulations to be given.
13-0106 Blueprint review.

13-0101. Public Health Department--Purpose.--It is the intent of the city of Fargo that the health of the public be protected and promoted to the greatest extent possible through the public health department while respecting individual rights to dignity, health information privacy, nondiscrimination, due process, and other legally-protected interests.

Source: 1952 Rev. Ord. 13-0101, 1952 Rev. Ord. 13-0102, 1952 Rev. Ord. 13-0103, 4396 (2004).

13-0102. Public Health Department--Authority.--Pursuant to authority granted by the board of city commissioners, the public health department, and designated agents thereof, shall have authority concerning the following:

1. To inquire into all nuisances, sources of filth, and causes of sickness and to abate, remove, or make regulations regarding the same as are necessary for the public health and safety.

2. To isolate, kill, or remove any animal affected with a contagious or infectious disease if the animal poses a material risk to human health and safety.

3. To make and enforce an order in a local matter if an emergency exists.

4. To enter into and examine at any time all buildings, lots and places of any description within its jurisdiction for the purpose of ascertaining the conditions thereof insofar as public health may be affected.

5. To keep records and make reports required by the state department of health.

6. To prepare and submit a public health unit budget.

7. Except in the case of an emergency, to conduct a search or seize material located on private property to ascertain the condition of the property as the condition relates to public health and safety as authorized by an administrative search warrant issued under N.D.C.C. chapter 29-29.1.

8. To supervise any matter relating to preservation of life and health of individuals, including the supervision of any water supply and sewage system.

9. To recommend to the city commission and other governing bodies within the jurisdiction, ordinances for the protection of public health and safety.

10. To make recommendations to the board of city commissioners to employ, or contract with any person to provide the services necessary to carry out the purposes of the public health department.

Nothing in this section shall require an individual or agency within the public health department to provide specific health services or to mandate state and local public health departments or agencies to implement unfunded programs.

Source: 1952 Rev. Ord. 13-0101, 1952 Rev. Ord. 13-0102, 1952 Rev. Ord. 13-0103, 4396 (2004).

13-0103. Director of public health--Appointment.--The board of city commissioners shall appoint a person to serve as Director of Public Health. Such person shall have the qualifications and experience appropriate for the position as determined by the board of city commissioner.

Source: 1952 Rev. Ord. 13-0101, 1952 Rev. Ord. 13-0102, 1952 Rev. Ord. 13-0103, 4396 (2004).

13-0104. Director of public health--Duties.--

A. Within the jurisdiction of the public health department, the director of public health, pursuant to authority granted by the board of city commissioners, shall:

1. See that the health ordinances of the city, rules and regulations of the board of health, laws and regulations of the state board of health and health laws of the state are fully complied with throughout the jurisdiction.

2. Establish goals and objectives for the Department to ensure compliance with Board of Health policy directives and all applicable local, state or federal laws, rules and regulations, as well as particular requirements of each grant.

3. Provide guidance to managers in the development, recommendation and implementation of operating policies and procedures to accomplish departmental goals and objectives.

4. Maintain and prepare reports and correspondence concerning department activities, contracts with funding sources and, compliance with federal rules and regulations.

5. Keep a record of the proceedings of the board of health.

6. Represent the department of public health at board of health, city commission and other meetings concerning the department's programs and policies.

7. Serves as a liaison of the department and the city with other local community agencies to establish relationships of mutual benefit, promote services and to develop an overall health network for the care of county and city residents.

8. Have authority to appoint staff to assist with carrying out the mission of the public health department and such persons shall be considered city employees.

B. Reports to the Board. The director of public health shall, at least quarterly, submit to the board of health a full report summarizing the operations and activities of the public health department. At the end of each official year, the director of public health shall make to the board of health a full and concise statement of the operations and activities of the public health department, including a financial report, along with any special observations or recommendations to improve public health, safety, morals, and welfare of the city.

Source: 1952 Rev. Ord. 13-0101, 1952 Rev. Ord. 13-0102, 1952 Rev. Ord. 13-0103, 4396 (2004).

13-0105. Notice of regulations to be given.--Notice shall be given by the board of city commissioners, pursuant to the laws of the state of North Dakota, of all general orders and regulations made by such board concerning public health matters of the city by publishing the same in some newspaper of general circulation within the city of Fargo, which publication shall be deemed a legal notice to all persons.

Source: 1952 Rev. Ord. 13-0101, 1952 Rev. Ord. 13-0102, 1952 Rev. Ord. 13-0103, 4396 (2004).

13-0106. Blueprint review.--The public health department shall conduct site plan reviews and shall charge a review fee in an amount established by resolution of the board of city commissioners.

Source: 4946 (2014).

ARTICLE 13-02

REGULATIONS OF THE PUBLIC HEALTH DEPARTMENT

Section

13-0201 Adoption of N.D.C.C. Chapter 23-07.6 by reference.
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13-0204 Board of health--Membership.
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13-0201. Adoption of N.D.C.C. Chapter 23-07.6 by reference.--There is hereby adopted by reference by the board of city commissioners, for the purposes of proscribing regulations governing public health and safety in the city of Fargo, more specifically communicable disease and confinement procedures, the provisions of N.D.C.C. chapter 23-07.6 as duly enacted, and the same is hereby adopted and incorporated as fully set out in length therein, including any amendments hereinafter adopted thereto, and from the date on which this ordinance shall take effect, the provision thereof shall be controlling within the jurisdiction of the public health department.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0202. Definitions.--In this chapter, unless the context otherwise requires:

A. "Board of health" shall mean the city board of health.

B. "Communicable disease" shall mean a disease or condition that causes serious illness, serious disability, or death, the infectious agent of which may pass or be carried, directly or indirectly, from the body of one person to the body of another.

C. "Confinement" shall mean quarantine or isolation.

D. "Contagious disease" shall mean a reportable condition or disease under N.D.C.C. § 23-07-01.

E. "Department" shall mean the state department of health.

F. "Director of public health" shall mean the director or the public health department.

G. "Essential public health services and functions" shall mean services and functions to:

1. Monitor health status to identify and solve community health problems;
2. Investigate and diagnose health problems and health hazards in the community;
3. Inform, educate, and empower individuals about health issues;
4. Mobilize public and private sector collaboration and action to identify and solve health problems;
5. Develop policies, and plans, and programs that support individual and community health efforts;
6. Enforce laws and regulations that protect health and ensure safety;
7. Link individuals to needed personal health services and assure the provision of health care when otherwise unavailable;
8. Assure a competent public health workforce;

9. Evaluate effectiveness, accessibility, and quality of personal and population-based health services; and
10. Research for new insights and innovative solutions to health problems.

H. "Governing body" shall mean, as applicable, a city commission, city council, board of county commissioners, or joint board of county commissioners.

I. "Isolation" shall mean the physical separation and restrictions on movement or travel of an individual or groups of individuals who are infected or reasonably believed to be infected with a contagious or possibly contagious disease from nonisolated individuals, to prevent or limit the transmission of the disease to nonisolated individuals.

J. "Local board" shall mean the board of health.

K. "Local health officer" shall mean the health officer of a local board.

L. "Private sector partner" shall mean non-governmental persons, including community organizations, contractors, educational institutions, health care facilities, health care providers, health insurers, private businesses, media, nonprofit organizations, and volunteers that provide essential public health services and functions or work to improve public health outcomes in collaboration with a state or local public health agency.

M. "Public health department" shall mean Fargo Cass Public Health, or any name by which such department shall be hereinafter known, and its authorized representatives.

N. "Public sector partner" shall mean international, federal, tribal, or other state or local governments and their public health agencies or departments that provide essential public health services and functions or work to improve public health outcomes with a state or local public health agency or department.

O. "Quarantine" shall mean the physical separation and restrictions on movement or travel of an individual or groups of individuals, who are or may have been exposed to a contagious or possibly contagious disease and who do not show signs or symptoms of a contagious disease, from nonquarantined individuals to prevent or limit the transmission of the disease to nonquarantined individuals.

P. "Reportable disease" shall mean a disease or condition designated by the state department of health pursuant to N.D.C.C. § 23-07-01.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0203. Board of health--Mission.--The mission of the board of health shall be to act as an advisory board for the public health department and to provide leadership to the public health department as the public health department carries out its functions concerning:

A. Conditions in which people can be healthy;

B. Provision of essential public health services and functions (as defined in 13-0203(G) that are culturally and linguistically appropriate for the populations being serviced;

C. Collaboration among public and private sector partners in the public health system; and

D. Adequate funding and other sources to provide essential public health services and functions or accomplish public health goals through public or private sources.

The board of health shall also make recommendations to the board of city commissioners for appointment of a local health officer.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0204. Board of health--Membership.--The board of health shall have a minimum of five members, which shall be appointed for three (3) year terms. One member of the board of health shall be a current member of the board of city commissioners. Other members of the board of health shall be appointed with such qualifications as shall be determined by the board of city commissioners. In no instance may the board be either all male or all female. Each appointee shall serve until a successor is appointed or qualified, and if a vacancy occurs, the vacancy shall be filled by appointment for the remainder of the unexpired term in the same manner as the initial appointment. Each appointee shall qualify by filing the constitutional oath of office in the office of the city auditor.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0205. Quarantine measures concerning contagious or infectious diseases.--When a case of a contagious or infectious disease exists within the jurisdiction of the public health department, the director of public health shall immediately examine the facts of the case and may implement such quarantine and sanitary measures recommended by the health officer to prevent the spread of such disease. The health officer, or the director of public health acting under the health officer's authority, may immediately cause any person infected with such disease to be removed to a separate house if, in the opinion of the health officer, such person can be removed without danger to that person's health. If the infected person cannot be removed without danger to that person's health, the health officer shall make such quarantine regulations as it deems proper with reference to the house within which such infected person is, and may cause the persons in the neighborhood to be removed, and may take such other measures as it deems necessary for the safety of the inhabitants within its jurisdiction. Such authority and quarantine measures shall comply with N.D.C.C. chapter 23-07.6 (communicable disease confinement procedure.)

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord.

13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0206. Abatement and removal of nuisance, source of filth, and cause of sickness.--

A. If necessary for the protection of public health to abate or remove any nuisance, source of filth, or cause of sickness, the public health department shall serve notice on the owner or occupant of the property to remove or abate the nuisance, source of filth, or cause of sickness within a time specified by the public health department not exceeding thirty days. If the owner or occupant fails to comply with the notice to remove or abate or if the nuisance, source of filth, or cause of sickness exists on property of nonresident owners or on property the owners of which cannot be found, the public health department may remove or destroy the nuisance, source of filth, or cause of sickness at the expense of the city or county, which shall charge the expense against the lot, piece, or parcel of land on which the work is done.

B. The expense of the removal or destruction of a nuisance, source of filth or cause of sickness maybe levied and assessed against the property and the assessment filed in the office of the city auditor. In August of each year, after due notice, the board of city commissioners shall review all such assessments, and hear all complaints against the same, and approve the same as finally adjusted; and such special assessment shall then be certified by the county auditor and be placed upon the tax roll for that year and be colleted as other taxes.

C. If the health officer or director of public health determines it is necessary for the preservation of public health to enter any building within the jurisdiction of the public health department to examine, destroy, remove, or prevent any nuisance, source of filth, or cause of sickness and is refused entrance into the building, the local health officer, or its authorized agents, may make a complaint under oath to a district judge within the jurisdiction of the public health department stating the facts in the case which the local health officer, or its authorized agents, has knowledge. If a warrant is issued and if requested by the health officer or director of public health, a county sheriff or city police department shall provide assistance to the public health department in any action to search or seize material in or on any private property to destroy, remove, or prevent the nuisance, source of filth, or cause of sickness, if there is probable cause to believe a public health hazard or public health nuisance exists on or in that property, and shall carry out any other preventive measures the public health department requests. For purposes of this subsection, a request from a public health department means a request for assistance which is specific to a public health nuisance and is not a continuous request for assistance.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0207. Destruction or disinfection of articles exposed to infection.--The public health department or health officer may cause to be destroyed any bed or bedding, curtains, carpets, or other articles which have been exposed to infection from infectious or contagious disease and may allow reasonable compensation for the same, or may provide a proper place with all the necessary precaution attendant upon the disinfection of such articles, and may provide transportation for the conveyance of such articles.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0208. Public health department may provide temporary hospital for infected persons.--The public health department may provide such temporary hospital or place of reception for persons afflicted with infectious or contagious diseases as it judges best for their accommodation and the safety of its inhabitants. It may provide necessary transportation for the conveyance of such persons to such hospital. All such hospitals, and all private houses or places where exist any infectious or contagious diseases, during the existence of such disease, shall be under the control and subject to the regulations of the board of health. All the inmates of such house or other place, during the existence of such disease therein, must conform to the regulations and obey the instructions of the board of health with reference thereto.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0209. Board of city commissioners may re-establish a detention hospital and purchase necessary property.--The board of city commissioners may, in its discretion, re-establish a city detention hospital, either temporarily or permanently, and purchase or otherwise acquire such real and personal property needed to operate such a detention hospital as, in the judgment of the board of city commissioners, is in the best interest of the city.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0210. Health officer--Appointment.--The board of health shall make recommendations for a local health officer to the board of city commissioners who shall make such appointment pursuant to the Home Rule Charter. The local health officer shall be licensed to practice medicine within this state. The health officer shall serve a term of five years, subject to removal for cause by the board of city commissioners. If the state health officer finds a local health officer is failing to perform the duties of the position, the state health officer may report

the case to the board of health or board of city commissioners. The board of city commissioners shall declare the office vacant and may appoint another physician to fill the unexpired term. If the health officer resigns, the board of city commissioners shall declare the office vacant and may appoint another physician to fill the unexpired term.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0211. Health officer--Authority and duties.--

A. Authority. The health officer may recommend, advise and provide guidance to the board of public health and public health department for the provision of essential public health services and functions. In doing so, the health officer shall maintain an office within the jurisdiction of the public health department and may select and discharge any assistant health officer in the public health department, consistent with any terms of appointment.

B. Duties. Within the jurisdiction of the board of health, a local health officer:

1. Shall keep a record of the official acts of the local health officer.
2. Shall enforce every law and rule relating to preservation of life and health of individuals.
3. May make sanitary inspections of any place within the jurisdiction in which the local health officer finds a probability a health-threatening condition exists.
4. May investigate public water and ice supplies suspected of contamination and initiate necessary condemnation proceedings.
5. May enforce school cleanliness; inspect any school that may be overcrowded, poorly ventilated, or unsanitary; and when, necessary, report cases of any unsanitary or unsafe school building to the board of health for investigation.
6. May take any action necessary for the protection of public health and safety.
7. May determine when confinement and decontamination is necessary for the safety of the public and may establish confinements consistent with procedures provided under N.D.C.C chapter 23-07.6 and perform any acts required for decontamination when necessary.
8. Shall report any reportable disease to the state department of health as required by law.
9. May request the assistance of a county sheriff or police department in the same manner as provided under N.D.C.C. § 23-35-09(3).

C. Reports to board. The health officer shall, at least quarterly, submit to the board of health a report summarizing the activities performed by the health officer.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord.

13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0212. Testing for sexually transmitted diseases.--The health officer, when necessary for the protection of public health, shall:

A. Make examination of any person reasonably suspected of being infected with a sexually transmitted disease and detain that person until the results of the examination are known.

B. Require any person infected with a sexually transmitted disease to report for treatment to a reputable physician and to continue such treatment until cured or, if incurable, continue indefinitely such treatment as recommended by the physician.

C. Investigate sources of infection of sexually transmitted diseases.

D. Cooperate with the proper officials whose duty it is to enforce laws directed against prostitution, and otherwise to use every proper means for the repression of prostitution, including providing proper officials with all relevant information available concerning individuals who are infected with the human immunodeficiency virus and who are engaged in prostitution.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

13-0213. Appeal to city commission.--A person affected by action of the board of health, health officer or public health department, and who disagrees with action taken by the board of health, health officer or public health department, such person may appeal to the board of city commissioners by filing a written notice of appeal with the executive secretary of the city commission. Such appeal must be filed within ten (10) days of the specific action taken by the board of health, health officer, or public health department. Upon receipt of such appeal, the city will set a hearing date at a time, not to exceed 30 days from receipt of the notice of appeal at which time the board of city commissioners will hear the appeal.

Source: 1952 Rev. Ord. 13-0201, 1952 Rev. Ord. 13-0202, 1952 Rev. Ord. 13-0203, 1952 Rev. Ord. 13-0204, 1952 Rev. Ord. 13-0205, 1952 Rev. Ord. 13-0206, 1952 Rev. Ord. 13-0207, 1952 Rev. Ord. 13-0208, 1952 Rev. Ord. 13-0209, 1952 Rev. Ord. 13-0210, 1952 Rev. Ord. 13-0211, 1952 Rev. Ord. 13-0212, 1952 Rev. Ord. 13-0213, 1952 Rev. Ord. 13-0214, 1952 Rev. Ord. 13-0215, 1952 Rev. Ord. 13-0216, 1952 Rev. Ord. 13-0217, 1952 Rev. Ord. 13-0218, 2514 (1990), 4397 (2004).

ARTICLE 13-03

CONTROL AND REGULATION OF FOOD ESTABLISHMENTS

Section

13-0301. Definitions.

13-0302. Operation of a food establishment--License required.
13-0303. Inspection of food establishments.
13-0304. Food establishments--License suspension, revocation, and closure.
13-0305. Food product sources, specifications, and additives.
13-0306 Reserved.

13-0301. Definitions.--In this chapter, unless the context otherwise requires,

1. "Food" shall mean a raw, cooked, or processed edible substance, ice, beverage, or ingredient used or intended for use or for sale in whole or in part for human consumption.

2. "License" shall mean a written authorization to operate a food establishment issued by the public health department.

3. "Proprietor" shall mean the person in charge of a food establishment, whether as an owner, lessee, licensee, manager, or agent.

4. "Public health department" shall mean Fargo Cass Public Health. or any name by which such department shall be known hereafter, and its authorized representatives.

Source: 1952 Rev. Ord. 13-0301, 4373 (2004), 5150 (2018), 5473 (2025).

13-0302. Operation of a food establishment--License required.--No person shall operate a food establishment without first applying for and obtaining a license issued by the public health department. A license shall be issued when a pre-operational inspection has determined that the proposed food establishment and its method of operation will conform to the requirements of this chapter. A license, once issued, is nontransferable. The initial application for a license shall extend from the date of issuance until year-end. Thereafter, the food establishment license may be renewed annually on January 1. All food establishments shall pay an annual license fee in an amount to be established by resolution of the board of city commissioners, said fee payable prior to January 1st of each year.

Source: 5473 (2025).

Editor's note—Ord. No. 5473, § 1, adopted April 28, 2025, repealed the former § 13-0302, and enacted a new section as set out herein. The former § 13-0302 pertained to food establishments to be kept clean and derived from 1952 Rev. Ord. 13-0302, Ord. No. 1157 adopted 1963, Ord. No. 4373 adopted 2004, and Ord. No. 5150 adopted 2018.

13-0303. Inspection of food establishments.--Every food establishment shall be inspected by the public health department as often as necessary to determine compliance with this chapter. Frequency of inspections shall be based on a system of risk categorization which involves types of foods served, the process steps these foods require, and the population served. It shall be the duty of the public health department to visit, as often as required, each licensed food establishment to examine and carefully inspect all such food.

If any adulterated, misbranded. mislabeled, unhealthy, unwholesome, or unapproved food or ingredient so intended for sale or human consumption is found in a licensed food establishment, the public health department shall immediately notify the person in charge. The public health department, if deemed advisable, may take possession of such questioned food so intended for sale or human consumption and destroy the same at the expense of the person in whose custody such unwholesome provisions are found.

Furthermore, based upon inspection findings or other evidence, the public health department may embargo any food that is found to be. or suspected of being. contaminated or

adulterated and embargo equipment or utensils that are found to be unsanitary or in such disrepair that food, equipment, or utensils may become contaminated or adulterated. No embargoed food, equipment, or utensils shall be used unless the embargo has been released.

The public health department shall have free access to all food establishments at any reasonable time for purposes of inspection. The public health department may enter, inspect, photograph, and secure any sample, photographs, or other evidence from the food establishment, for the purpose of enforcing this chapter. A written report of the inspection shall be made, and a copy shall be provided to the food establishment. It shall be a violation of this chapter for any person or establishment subject to the requirements of this chapter to refuse entry or inspection, the taking of samples, photographs, or other evidence or who otherwise attempts to conceal samples or evidence. The public health department may obtain an administrative search warrant to obtain the same.

Source: 1965 Rev. Ord. 13-0303, 1530 (1973), 4373 (2004), 5150 (2018), 5473 (2025).

13-0304. Food establishments--License suspension, revocation, and closure.--

A. Authority of the Public Health Department

The public health department may modify, suspend, or revoke a food establishment license for serious or repeated violations of this article or for interference with the department's duties. Before taking such actions, the public health department will provide an opportunity for a hearing. except in cases requiring immediate suspension.

B. Immediate Closure

The public health department may immediately direct closure of any food establishment if:

1. An inspection or examination of employees, food records, or other relevant means (as specified in the currently adopted FDA Food Code) determines that an Imminent Health Hazard exists. An Imminent Health Hazard includes, but is not limited to:
   a. Fire, flood, or extended interruption of electrical or water service:
   b. Sewage backup or misuse of poisonous or toxic materials;
   c. Apparent foodborne illness outbreak;
   d. Grossly unsanitary conditions: or
   e. Any other circumstance endangering public health.
2. The food establishment's operations, facilities, or equipment fail to comply with the requirements of this chapter;
3. The proprietor fails to submit required plans or the facility's construction or renovation is not substantially compliant with the requirements of this chapter;
4. The proprietor fails to submit a license application for a new food establishment or a change of ownership;
5. The proprietor was not granted a license under the requirements of this chapter;
6. The proprietor does not pay the annual renewal fee by December 31 of the calendar year:
7. The proprietor does not comply with the requirements of this chapter; or,
8. The proprietor or staff interfere with the public health department or its agents in the performance of its duties.

C. Suspension of License

1. A license may be temporarily suspended for noncompliance with this chapter or failure to comply with an implemented risk control plan.
2. A food establishment with a suspended license must cease operations immediately and remain closed until:
   a. The public health department conducts a re-inspection: and
   b. Compliance with this chapter is verified.
3. The proprietor may request a re-inspection for reinstatement, provided that all violations have been corrected.
4. When a license is suspended, the proprietor:
   a. Must immediately cease all food operations;
   b. Will receive written notice of the suspension, its immediate effect, and the conditions for reinstatement;
   c. May request a hearing with the board of city commissioners by submitting a written request to the public health department within 10 days of receiving the suspension notice: and
   d. Will be informed that failure to request a hearing within 10 days results in the suspension being sustained.

D. Revocation of License

1. The public health department may revoke a license for serious or repeated violations, failure to comply with a suspension order, or interference with department duties. Before revocation, the proprietor will have the opportunity for a hearing as outlined in the suspension procedures.
2. Revocation Consequences and Reinstatement:
   a. The food establishment must remain closed until compliance is demonstrated.
   b. The proprietor must present evidence of changed circumstances justifying a new license.
   c. A new license may only be issued if:
      i. The public health department conducts a re-inspection and confirms compliance:
      ii. The proprietor properly reapplies under this chapter; and
      iii. The reinstatement license fee is paid.

Source: 1952 Rev. Ord. 13-0304, 952 (1955), 4373 (2004), 5150 (2018), 5473 (2025).

Editor's note—5150, § 1, adopted July 2, 2018, retitled § 13-0304 from "Bakeries, bars, restaurants, groceries, meat market, mobile units, temporary units or any other food service establishments--Inspection of premises--Inspection fee--Suspension of license" to read as herein set out.

13-0305. Food product sources, specifications, and additives.--The following regulations apply to all food sources, specifications, and additives used in a food establishment:

A. No person shall sell, offer, or hold for sale any food that is unsafe, unwholesome. or derived from an animal, fish, or fowl that died from disease or accident or was not slaughtered and processed under federal or state inspection. The public health department shall have the discretion to determine whether food is healthy, fresh. sound, and wholesome.

B. Food prepared in a private home kitchen may not be used or offered for human consumption in a food establishment.

C. Packaged food shall be labeled as specified by law.

D. Food may not contain unapproved food additives and must be "generally recognized as safe" ("GRAS") by the FDA.

Source: 1952 Rev. Ord. 13-0305, 4373 (2004), 5150 (2018), 5473 (2025).

13-0306. Reserved.

Editor's note—Ord. No. 5473, § 1, adopted April 28, 2025, repealed § 13-0306, which pertained to sale of meat and poultry--regulations and derived from 1952 Rev. Ord. 13-0306, Ord. No. 4373 adopted 2004, and Ord. No. 4757 adopted 2010.

ARTICLE 13-04

FOOD SERVICE ESTABLISHMENTS

Section

13-0401. North Dakota Food Code adopted.--There is hereby adopted by reference by the board of city commissioners, for the purpose of prescribing regulations governing standards, relative to food establishments in the city of Fargo, that certain code known as the North Dakota Food Code recommended and compiled by the North Dakota Department of Health, chapter 33-33-04.1 of the North Dakota Administrative Code, as well as all other applicable chapters or sections of the North Dakota Century Code and this chapter and the same is hereby adopted and incorporated as fully as if set out in length herein, and from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the limits of the city.

Source: 1965 Rev. Ord. 13-0402, 1888 (1979), 2842 (1998), 4373 (2004), 5150 (2018).

Editor's note—5150, § 1, adopted July 2, 2018, retitled § 13-0401 from "North Dakota requirements for food and beverage establishments adopted" to read as herein set out.

ARTICLE 13-05

WASTE, YARDWASTE, ASHES, AND OTHER WASTE--REMOVAL AND DISPOSAL OF

Section

13-0501 Definition of terms.
13-0502 Statement of purpose.
13-0502.1 Accumulation of wastes in city limits prohibited.
13-0502.2 Unlawful to deposit waste material in containers owned by others.
13-0503 Burning of dry rubbish--When permitted--Prohibition.
13-0504 Containers required for waste--Construction-- Capacity--Accessibility--Materials not picked up with garbage.
13-0505 Solid waste operations manager to enforce ordinance.
13-0506 Solid waste operations manager authorized to make rules and regulations.
13-0507 Collection by city employees or by contract.
13-0508 Waste contract--Advertising for bids.
13-0509 Awarding of contract--Bond required.
13-0510 Frequency of waste collection--Exceptions.
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13-0512 Private haulers contracting with city--Application for permit.
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13-0514 Private haulers--Regulation by solid waste operations manager.
13-0515 Private haulers--Suspension or revocation of permit.
13-0516 Unlawful to collect or transport wastes without authority.
13-0517 Vehicles transporting waste to be covered.
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13-0519 Collection of charges for waste collection by water department.
13-0520 Charges for waste collection where water service not provided.
13-0521 Charges for waste collection collected by civil action and assessment.
13-0522 Charges for waste collection payable in all cases--Owners to furnish list of tenants.
13-0523 Waste collection fund established.

13-0524 Solid waste operations manager to inspect premises.
13-0525 Penalty for violation of article--Revocation of license.
13-0526 Separability of provisions of article.
13-0527 Written notice to be given city on sale or lease of business.
13-0528 Permits nontransferable--Canceled if business sold.
13-0529 Landfill prohibited wastes.
13-0530 City of Fargo Composing and Recycling Program--Deposit sites and receptacles--Penalties.

13-0501. Definition of terms.--The following definitions shall apply in the interpretation and enforcement of this ordinance:

"Ashes" are the residue from the burning of wood, coal, coke, or other combustible materials for the purpose of heating, cooking or disposing of waste and combustible materials.

"Collection" means the act of removing, transporting, and disposing of waste material from the source at which the waste was generated.

"Private Haulers" are any person, firm, or corporation operating as a subcontractor or under contract with the City which are licensed to remove, collect, transport, or dispose of waste within the City.

"Waste" is all garbage, refuse, and trash generated by residences, apartments, rooming and boarding houses, motels, hotels, restaurants, and commercial and retail businesses. The term also includes nonhazardous industrial waste generated from industrial and manufacturing processes, sludges generated by water and wastewater treatment plants, and construction and demolition waste.

"Yardwaste" is all weeds, grass, lawn clippings, vegetable waste and similar organic material gathered from lawns and gardens which is suitable for composting.

Source: 1952 Rev. Ord. 13-0501, 1200 (1965), 2366 (1987), 2600 (1991), 2945 (1998), 3032 (1999).

13-0502. Statement of purpose.--The following provisions are designed to protect the health, welfare and safety of the residents and commercial establishments of the City of Fargo by providing for the organized collection, transportation and disposal of their wastes. This will be accomplished by the City exercising exclusive responsibility over those functions. Within its sole discretion, the City may contract with private parties as necessary or appropriate to accomplish these objectives.

Source: 3032 (1999).

13-0502.1. Accumulation of wastes in city limits prohibited.--No person or persons, firm, or corporation shall permit or suffer to accumulate in or about any yard, lot, place, or premises, or upon any street or sidewalk adjacent to or abutting upon any lot, block or place, or premises owned and occupied by him or them, or for which he or they may be agent or agents, within the city limits, garbage, manure, ashes or all refuse and rubbish of every description whatsoever, nor suffer such yard, lot, place, or premises to be or remain in such condition.

Source: 1952 Rev. Ord. 13-0502, 1200 (1965), 3032 (1999).

13-0502.2. Unlawful to deposit waste material in containers owned by others.--It shall be unlawful for any person to deposit waste material in a container which is not owned or leased by such person, or in which such person does not have specific authority to deposit such waste material.

Source: 2700 (1994), 3032 (1999).

13-0503. Burning of dry rubbish--When permitted-- Prohibition.--It shall be unlawful to burn garbage or rubbish within the city limits except in an incinerator or other device approved by the North Dakota Department of Health.

Source: 1952 Rev. Ord. 13-0503, 1200 (1965), 2366 (1987), 3032 (1999).

13-0504. Containers required for garbage--Construction-- Capacity--Accessibility--Materials not picked up with garbage.--Materials not picked up with waste.--All single family household waste shall be placed in city supplied containers of either small, medium or large size designation of a design approved by the solid waste utility manager. Any waste located outside the city supplied container shall require homeowner or occupant notification to the city to schedule an extra collection. Containers must be placed on the berm not earlier than 6:00 p.m. on the day prior to the day of collection nor later than 8:00 a.m. on the morning of collection; and shall be removed from the berm not later than 6:00 p.m. on the day of collection. Where there are alleys, containers must be placed at the rear of the property. During the winter months, the area where the containers are placed must be kept clear of snow so that the containers are accessible. During windy conditions, the property owner must take appropriate steps to ensure that the container does not blow away and the city will not be responsible for cans which are lost or damaged as a result of such windy conditions. The following materials will not be picked up by waste trucks: ashes, bricks, concrete pieces, building materials, plaster, sod, animal manure, tree trunks or tree branches except as provided in § 13-0501.

Source: 1952 Rev. Ord. 13-0504, 1200 (1965), 1245 (1967), 2366 (1987), 2457 (1989), 3032 (1999), 4715 (2009).

13-0505. Solid waste operations manager to enforce ordinance.--The collection, removal, and disposal of wastes in the city shall be under the supervision, direction and control of the solid waste operations manager who, subject to the approval of the board of city commissioners, may appoint a supervisor and such other employees as may be necessary to carry out the provisions of this article pursuant to civil service ordinances and regulations, as well as use the services of private subcontractors as necessary or appropriate.

Source: 1952 Rev. Ord. 13-0505, 1200 (1965), 2366 (1987), 2513 (1990), 3032 (1999).

13-0506. Solid waste operations manager authorized to make rules and regulations. The solid waste operations manager shall prescribe and publish such reasonable rules and regulations in connection with the preparation, handling and disposition of wastes, as well as the regulation of and contracting with private haulers and subcontractors, as may be necessary to regulate, enforce, and carry out the provisions of this article. He may direct that collection crews shall not collect waste from any premises where the ordinance or laws and said rules and regulations are not complied with, and the failure to collect the same shall not relieve the owner or occupant of the premises from the payment of the fees nor from the enforcement of the penalties of this article as hereinafter set forth.

Source: 1952 Rev. Ord. 13-0506, 1200 (1965), 2513 (1990), 3032 (1999).

13-0507. Collection by city employees or by contract.--The city either may purchase, maintain, or lease and operate equipment for the removal and disposal by city employees of all or any part of the wastes referred to in § 13-0501 or may provide for the collection, removal, or disposal thereof, in whole or in part, by any person, firm, or corporation with whom the city now has, or hereafter may have, duly contracted as hereinafter provided.

Source: 1952 Rev. Ord. 13-0507, 1200 (1965), 2513 (1990), 3032 (1999).

13-0508. Waste contract--Advertising for bids.--Except as provided in § 13-0513, if it shall be deemed advisable by the solid waste operations manager, the city auditor may advertise for bids for the collection, transportation or disposal of any or all of the wastes referred to in § 13-0501, under such conditions as the solid waste operations manager may establish. Such notice shall be published twice, once each week in the official newspaper of the city of Fargo. Each bid shall be accompanied by a certified check in the sum of $500, payable to the order of the city treasurer, which check shall be forfeited to the city if the successful bidder fails to enter into a contract with the city and give bond as provided in § 13-0509 herein. Provided, however, that the requirement for solicitation of bids for any particular project may be waived if the annual cost to the city is $10,000 or less. The solid waste operations manager may enter into contracts for the collection and disposal of waste not to exceed one year without the need for bid.

Source: 1965 Rev. Ord. 13-0509, 1200 (1965), 1764 (1977), 2513 (1990), 3032 (1999).

13-0509. Awarding of contract--Bond required.--The contract or contracts, as the case may be, shall be awarded to the lowest responsible bidder or bidders, if to be let by competitive bids, except as provided as follows: if the solid waste operations manager concludes that acceptance of the lowest responsible bid may result in a disproportionate amount of the service being provided by a single entity, the solid waste operations manager, in that person's sole discretion, may choose to assume responsibility directly by the City, using its own personnel and equipment, for the services required, or to award the contract to the next lowest responsible bidder, under the proviso that the next lowest responsible bidder match the bid submitted by the lowest responsible bidder. The city may enter into long term disposal contracts for the disposal of waste at its landfill, the terms of which may be negotiated by the solid waste operations manager subject to approval by the board of city commissioners. The person, or persons, obtaining such contract from the city shall execute a bond to the city in such sum as the board of city commissioners may provide for the full and faithful performance of all the agreements of said contract and a complete compliance with this ordinance.

Source: 1952 Rev. Ord. 13-0509, 1200 (1965), 2513 (1990), 3032 (1999).

13-0510. Frequency of waste collection--Exceptions.--All waste as herein defined shall be collected as frequently as necessary to maintain and preserve community cleanliness and sanitation, except that this article shall not require the collection of waste where streets and alleys are in a temporary condition which makes it impossible to do so, and the failure to collect such waste shall not relieve the owner or occupant of the premises of the payment of the collection fees hereinafter provided for.

Source: 1952 Rev. Ord. 13-0510, 1200 (1965), 2513 (1990), 3032 (1999).

13-0511. Removal of wastes.--All waste material, except ashes, as herein defined, shall be disposed of under the system established and approved by the solid waste operations

manager. All collection, transportation and removal of waste shall be under the direct control and supervision of the city. The solid waste operations manager, at that person's sole discretion, may contract to have the same collected and removed by a person, firm, or corporation holding a permit from the city.

Source: 1952 Rev. Ord. 13-0511, 1200 (1965), 2513 (1990), 2600 (1991), 2678 (1993), 2945 (1998), 2994 (1999), 3032 (1999).

13-0512. Private haulers contracting with the city--Application for permit.--No person, firm, or corporation shall engage in the business of removing, collecting, transporting, or disposing of the wastes referred to in § 13-0501 for compensation or hire except as a contractor with the city, and without first securing a permit therefor from the city auditor. Application for such permit shall be made to the auditor upon forms provided by him and such application shall contain, among other things, the following information: The name and place of residence of the applicant, a description of the vehicle(s) in which such wastes are to be hauled, and a complete listing of all accounts serviced by the hauler, either directly under the waiver provisions of § 13-0513 or through subcontract with the city.

Source: 1952 Rev. Ord. 13-0512, 1200 (1965), 2366 (1987), 2513 (1990), 2600 (1991), 3032 (1999).

13-0513. Private haulers limited to contracts with City--Waivers.--Upon approval of the application provided for in § 13-0512 and the payment of an annual license fee which shall be established by resolution of the board of city commissioners (payable July 1st of each year) the city auditor shall issue a permit which shall contain the name and address of the licensee. Such permit shall allow the private hauler only to contract with the City for the collection, transportation or disposal of waste in a manner directed by the City (via the solid waste operations manager), and pursuant to the process established in § 13-0508. A private hauler shall not be allowed to contract directly with any person or entity for the collection transportation or disposal of waste, except as may be expressly allowed through formal waiver granted by the solid waste operations manager. The solid waste operations manager is authorized to grant waivers to the provisions of Article 13 to those private haulers whose operations are designed to meet the health, safety and environmental requirements of the city through other contracts with the city that ensure, among other things, proper disposal of the waste. Such waivers shall only be for the term of such other contracts. Yard waste may be deposited at compost collection sites within the city or may be hauled to the city compost site at the landfill in accordance with regulations established by the solid waste operations manager pursuant to § 13-0514 of this article.

Source: 1965 Rev. Ord. 13-0513, 1349 (1970), 1558 (1973), 2366 (1987), 2513 (1990), 2600 (1991), 2623 (1992), 2678 (1993), 2701 (1994), 2945 (1998), 2994 (1999), 3032 (1999).

13-0514. Private haulers--Regulation by solid waste operations manager.--The solid waste operations manager is hereby authorized from time to time to issue regulations governing the type of vehicle used by private haulers, the hours of collection, sanitary provisions, and such other regulations which he may deem necessary to regulate, enforce, and carry out the provisions of this article with regard to private haulers.

Source: 1952 Rev. Ord. 13-0515, 1200 (1965), 2513 (1990), 2600 (1991), 3032 (1999).

13-0515. Private haulers--Suspension or revocation of permit.--A private hauler's permit may be suspended or revoked by the solid waste operations manager for violation of

any of the provisions of this article or of any regulations issued by him thereunder, or for breach of the terms of any contract that private hauler has with the city. Revocation shall be effective only upon notice first being given to the holder thereof by registered or certified mail, stating the reasons for such revocation. Such revocation shall become final unless, within five days from the date of mailing such notice, the holder of such permit shall in writing request a hearing thereon by the board of city commissioners. The hearing shall be held within five days thereafter and the decision of the board of city commissioners shall be final.

Source: 1952 Rev. Ord. 13-0516, 1200 (1965), 2513 (1990), 2600 (1991), 3032 (1999).

13-0516. Unlawful to collect or transport wastes without authority.--Except as provided in this article, it shall be unlawful for any person, firm, or corporation or any agent or employee thereof to collect or transport or carry or convey through, along, or upon any public street, alley, or sidewalk within the city any waste, except such persons, firms, or corporations as may be authorized, licensed, or permitted to do so under the provisions of this article.

Source: 1952 Rev. Ord. 13-0517, 1200 (1965), 2366 (1987), 2513 (1990), 2600 (1991), 3032 (1999).

13-0517. Vehicles transporting waste to be covered.--It shall be unlawful for any person, firm or corporation or any agent or employee thereof, to operate or permit the operation of any truck or other vehicle in the hauling of any waste, unless the same be sufficiently enclosed. All trucks or other vehicles and trailers, including vehicles operated or owned by licensed private haulers, shall be covered with a sufficient permanent or temporary covering, which may include canvas, tarpaulin, or other similar covering, designed to contain the waste therein hauled.

Source: 1965 Rev. Ord. 13-0517.1, 1392 (1971), 2513 (1990), 2600 (1991), 3032 (1999).

13-0518. Fees and charges.--For the collection of such waste and the disposal thereof, fees and charges shall be set at the discretion of the solid waste operations manager, provided, however, that said fees and charges may be ratified, modified or set aside by the board of city commissioners at the next regular city commission meeting.

Source: 1965 Rev. Ord. 13-0518, 1271 (1968), 1372 (1970), 1458 (1973), 1659 (1975), 2366 (1987), 2423 (1988), 3032 (1999).

13-0519. Collection of charges for waste collection by water department.--Subject to the waiver provisions of § 13-0513, in all places where water service is provided, the monthly charge for waste removal shall be added to and collected as part of the water bill and collected by the water department of the city but shall be separately stated on said bill. If the solid waste operations manager determines that billing by the water department for waste services for those private haulers granted waivers under § 13-0513 would best meet the goals and objectives of this article, such billing shall also be done by the water department, and that hauler shall be compensated by the city in the provisions set forth in the contract with the private hauler. Waste collections bills shall be due and payable at the same time as the water bill, either monthly or quarterly, as the case may be. If said charge is not paid when due, the water service to said premises shall be shut off by the water department in the same manner as is now provided for in the case of delinquency of payment of water bills and said service shall not be restored until a payment of $5.00 is made for services in turning on the water again.

Source: 1952 Rev. Ord. 13-0519, 1200 (1965), 2678 (1993), 3032 (1999).

13-0520. Charges for waste collection where water service not provided.--Except as provided for in § 13-0513 and § 13-0519, in all places where water service is not provided, the charge for waste removal shall be paid to the water department of the city upon quarterly bills from the water department.

Source: 1952 Rev. Ord. 13-0520, 1200 (1965). 3032 (1999).

13-0521. Charges for waste collection collected by civil action and assessment.--If the waste collection charge so established is not paid when due, such sum may be recovered by the city in an action at law against the owner or occupant, or both, of the property served and may be assessed against the premises served in the same manner as is provided by § 11-0805.

Source: 1952 Rev. Ord. 13-0521, 1200 (1965), 3032 (1999).

13-0522. Charges for waste collection payable in all cases--Owners to furnish list of tenants.--No person, firm or corporation within the city shall be permitted to refuse to accept the waste collection and disposal service provided for in this article. The owner or his authorized agent of any multiple dwelling unit shall furnish the city water department and the solid waste operations manager with a complete and accurate list containing the names and addresses of all tenants therein, said list to be submitted by telephone or over the signature of said owner or agent, and it shall be the duty of such owner or agent to advise the city water department and the solid waste operations manager in writing of any changes in tenants within five days of the time when such changes are made. Any person who is a tenant up to the 15th of any month shall be deemed, for purposes of this ordinance, to be a tenant for the entire month.

Source: 1965 Rev. Ord. 13-0522, 1279 (1968), 2678 (1993), 3032 (1999).

13-0523. Waste collection fund established.--The proceeds from waste collection fees and charges shall be placed in a separate fund to be known as the "waste collection fund" and all of the expense of the city for subcontracts with private haulers, and the purchase and maintenance of equipment and in the collection and disposal of said waste shall be paid out of said fund.

Source: 1952 Rev. Ord. 13-0523, 1200 (1965), 3032 (1999).

13-0524. Solid waste operations manager to inspect premises.--The solid waste operations manager or his designated representative shall be charged with the duty of enforcement of this article, shall have the right to enter upon any and all premises at any reasonable time for such enforcement purposes.

Source: 1952 Rev. Ord. 13-0524, 1200 (1965), 2366 (1987), 3032 (1999).

13-0525. Penalty for violation of article--Revocation of license.--A person who willfully violates this article is guilty of an infraction. Every person, firm or corporation violating an ordinance which is punishable as an infraction shall be punished by a fine not to exceed $500.00; the court to have power to suspend said sentence and to revoke the suspension thereof. Each day any person, firm, company, or corporation shall violate any of the provisions of this article shall constitute a separate offense. The permit of any person, firm, company or corporation who is convicted as hereinabove provided shall be automatically revoked for one year without refund of license fee. A second conviction by any person, firm, company or corporation shall result in the permanent revocation of license.

Source: 1952 Rev. Ord. 13-0525, 1200 (1965), 2366 (1987), 3032 (1999), 4715 (2009).

13-0526. Separability of provisions of article.--It is the intention of the board of city commissioners that the separate provisions of this article shall be deemed independent of all other provisions herein, and it is further the intention of the said board that if any provisions of this article be declared invalid, all other provisions thereof shall remain valid and enforceable.

Source: 1952 Rev. Ord. 13-0526, 1200 (1965), 3032 (1999).

13-0527. Written notice to be given city on sale or lease of business.--Any waste hauler holding a city waste-hauling permit shall, within three days after the sale or lease of his business, file a written notice with the city auditor containing the name and address of the purchaser and the exact date of the sale or lease.

Source: 1236 (1966), 3032 (1999).

13-0528. Permits nontransferable--Canceled if business sold.--Waste hauler permits and licenses are nontransferable and shall be turned in to and canceled by the city auditor in the event of a sale or lease of the business.

Source: 1236 (1966), 3032 (1999).

13-0529. Landfill prohibited wastes.--It shall be unlawful to dispose of any of the following materials at the City landfill.

1. Hazardous Waste
   (other than normal household quantities)
   Including:
   a. Ignitables (solvents, fuels, paints, etc.)
   b. Corrosives (acids and alkalis)
   c. Reactives (hypochlorites - swimming pool chemicals, cyanides, etc.)
   d. Toxicity Characteristic wastes
   e. Other listed hazardous wastes
2. Industrial Waste
   (Nonhazardous waste generated by industrial or manufacturing processes)
   MSW Landfills may accept an amount of up to ten percent of the total weight of MSW received per month if the industrial waste is identified in the industrial waste management procedures contained in the approved operating plan.
3. Lead Acid Batteries
4. Liquids
   (other than normal household quantities)
5. Animal Manure
6. Septic Tank Pumpings
7. Tires
8. Major Appliances
   (refrigerators, washers, etc.)
9. Municipal Waste Incinerator Ash
10. Pesticide Containers
    (other than normal household quantities or triple rinsed and punctured)
11. PCB Waste and PCB Oils
    (transformers and capacitors)

12. Sludges
(raw or digested sewage sludges, lime sludges, grit chamber cleanings bar screenings, oil sludges and other sludges unless approved by the NDDH)
13. Regulated Infectious
(other than normal household quantities)
MSW landfills may accept regulated infectious waste from hospitals, nursing homes, etc. If incinerated or autoclaved and sharps rendered "non-sharp" with NDDH approval.
14. Waste Oil
15. Special Waste
(nonhazardous solid wastes generated by energy conversion facilities; crude oil and natural gas exploration and production; mineral and ore mining; beneficiation and extraction; and surface coal mine operations)
16. Other Waste
(toxic or adverse characteristics potentially impacting public health or environmental resources)

Source: 2571 (1991), 3032 (1999).

13-0530. City of Fargo Composting and Recycling Program--Deposit sites and receptacles--Penalties.--It shall be unlawful for any person, corporation, or any agent or employee thereof to place in the compost or deposit sites established by the City any non-compatible trash. Trash and recyclable materials shall be deposited in the appropriate containers and anyone depositing trash in a container not marked or designated for that type of trash or recyclable material shall be guilty of a violation of this section.

Source: 3032 (1999).

ARTICLE 13-06

RUBBISH, ASHES, AND WASTES REMOVAL--COMMERCIAL HAULERS

Note: Article 6 of chapter 13 (sections 13-0601 to 13-0609) of the Revised Code of 1952 was repealed by Ord. No. 949 (1955). For present provisions, see article 13-05.

ARTICLE 13-07

SLAUGHTERING ANIMALS AND PROCESSING AND SALE OF MEAT

Note: Article 13-07 of chapter 13 (Sections 13-0701 to 13-0711) was repealed by Ord. No. 4374 (2004).

Source: Article 13-07 of Chapter 13, Revised Ordinances of 1952 (sections 13-0701 to 13-0711), repealed by Ord. 4374 (2004).

ARTICLE 13-08

DEAD ANIMALS, BONES, CARCASSES, FURS, AND HIDES

Section

13-0801 Dead animals, bones, carcasses not to be brought in or stored in city--Exception.

13-0802 Requirements of warehouse or storage room where carcasses kept.
13-0803 Trucks containing carcasses--Standing on streets over four hours prohibited.
13-0804 Trucks containing carcasses--Unloading restrictions.
13-0805 Skinning or storing in authorized warehouse required.
13-0806 Commercial enterprises to abide by regulations.
13-0807 Time during which dead animals and carcasses may be kept.
13-0808 Storage and skinning not permitted when prohibited by zoning ordinances.
13-0809 Flushing and cleaning floor required.
13-0810 Hides and furs not to be cured or stored outside of buildings.
13-0811 "Bones" defined--Storage.
13-0812 Hide and fur houses or business of storing or skinning animals as public nuisance.
13-0813 Repeal of conflicting ordinances.
13-0814 Penalty for violation of article.

13-0801. Dead animals, bones, carcasses not to be brought in or stored in city--Exception.--No person, firm, or corporation shall bring into or store within the city any dead animals, bones, or carcasses of dead animals other than such as are suitable and intended for human consumption except in accordance with the provisions listed in this article.

Source: 1952 Rev. Ord. 13-0801, 953 (1955).

13-0802. Requirements of warehouse or storage room where carcasses kept.--No person, firm, or corporation shall be permitted to bring in, keep, or store carcasses of dead animals in the city unless such person, firm, or corporation shall have first provided a warehouse or storage room therefor, which said storage room or warehouse shall be constructed with a concrete floor and finished in such a manner as to make it impervious to moisture, said floor is to be so constructed as to slope from all parts thereof toward a drain or opening in such floor, and such opening or drain must be connected with a sanitary sewer system of the city in a manner and according to the regulations and ordinances of this city governing connections with sanitary sewers. No carcasses shall be at any time stored or kept in or upon any premises in the city other than in such warehouse or storage room so constructed, except that frozen carcasses may be temporarily stored in any fully enclosed room in a warehouse containing a storage room constructed in the manner herein provided, or in any connecting warehouse not equipped with a concrete floor and drain, and any frozen carcasses so stored shall be removed therefrom while they are in a frozen condition. A warehouse or storage room shall, in addition to said construction, be fully enclosed on all sides and covered by a roof and shall be accessible for the delivery of such carcasses or bones through an entrance not opening through or across any street or sidewalk in the city, and provided further, that such storage room or warehouse shall be equipped with ventilators constructed so as to open through the roof or top of said building and no opening or access to said building shall at any time be left or kept so as to permit odors from such storage rooms or warehouse to escape through or across any street or sidewalk in the city, and such storage room or warehouse shall at all times be kept in a clean and sanitary condition.

Source: 1952 Rev. Ord. 13-0802, 953 (1955).

13-0803. Trucks containing carcasses--Standing on streets over four hours prohibited. No person, firm, or corporation shall permit any trucks, wagons, or other conveyances containing the bodies or carcasses of dead animals other than those animals suitable or intended for human consumption to remain standing on any street, alley or other public way in the city for a period of more than four hours.

Source: 1952 Rev. Ord. 13-0803, 953 (1955).

13-0804. Trucks containing carcasses--Unloading restrictions.--All trucks, wagons or other conveyances containing the bodies or carcasses of dead animals, not suitable or intended for human consumption, shall be unloaded within four hours after the arrival of such truck, wagon, or other conveyance in the city in the warehouse as defined in § 13-0802, and no such animals or carcasses shall be unloaded across or over any street or sidewalk.

Source: 1952 Rev. Ord. 13-0804, 953 (1955).

13-0805. Skinning or storing in authorized warehouse required.--No person, firm, or corporation shall store or skin any dead animal within the city unless such storage or skinning is done within the warehouse as defined in§ 13-0802, and the carcasses of animals skinned shall not be piled on the ground or on any wooden, tile, or other form of floor except a concrete floor as hereinbefore defined and described in this article.

Source: 1952 Rev. Ord. 13-0805, 953 (1955).

13-0806. Commercial enterprises to abide by regulations.--No person, firm, or corporation, while operating a commercial enterprise in the city, shall skin or permit the skinning of dead animals in the city unless such skinning is done in a warehouse and on a floor constructed as defined in § 13-0802.

Source: 1952 Rev. Ord. 13-0806, 953 (1955).

13-0807. Time during which dead animals and carcasses may be kept.--Bodies of dead animals intended for skinning may be kept as hereinbefore provided and before skinning so long as such bodies are solidly frozen and not longer. Frozen bodies may be removed from the place where stored to the place where the skinning is carried on and kept in such skinning room a sufficient length of time to thaw such bodies sufficiently for skinning, and after such animals have been skinned the carcasses thereof shall be removed outside of the corporate limits of the city within 48 hours.

Source: 1952 Rev. Ord. 13-0807, 953 (1955).

13-0808. Storage and skinning not permitted when prohibited by zoning ordinances. No storage or skinning of dead animals shall be permitted in any portion of the city where such storage and skinning is prohibited by the zoning ordinances of the city, and the storage of either dead animals before skinning or carcasses of skinned animals outside of the buildings hereinbefore described is prohibited.

Source: 1952 Rev. Ord. 13-0808, 953 (1955).

13-0809. Flushing and cleaning floor required.--The floor of a warehouse used for skinning or piling of skinned carcasses of dead animals shall be cleaned at least each day by flushing the same thoroughly with water and such floor shall be thoroughly cleaned.

Source: 1952 Rev. Ord. 13-0809, 953 (1955).

13-0810. Hides and furs not to be cured or stored outside of buildings.--No person, firm, or corporation shall place outside of any buildings any hide, fur, skin, or other portion of the body of any animal for the purpose of storing, drying, or curing the same, and all drying, curing of hides, skins and furs, and any other portion of the body of any animal shall be done inside of a building or warehouse and no such hides, skins, or furs, or other portions of the bodies of dead animals shall be stored outside of a building or warehouse.

Source: 1952 Rev. Ord. 13-0810, 953 (1955).

13-0811. "Bones" defined--Storage.--The word "bones" as used in this article is defined to mean such bones of animals as are clean and free from all flesh, skin, or hair, and the keeping of bones to which are attached any flesh, skin, or hair is hereby prohibited unless such bones are stored and kept in a warehouse constructed in the same manner and with the same floor construction as defined in § 13-0802.

Source: 1952 Rev. Ord. 13-0811, 953 (1955).

13-0812. Hide and fur houses or business of storing or skinning animals as public nuisance.--The operation of hide and fur houses or places of business where animals or the bodies or carcasses of animals are brought into the city for the purpose of storing or skinning such animals is hereby declared to be a public nuisance unless the same be conducted in accordance with the provisions of this article.

Source: 1952 Rev. Ord. 13-0812, 953 (1955).

13-0813. Repeal of conflicting ordinances.--All ordinances or parts of ordinances in conflict with any of the provisions of this article are hereby repealed.

Source: 1952 Rev. Ord. 13-0813, 953 (1955).

13-0814. Penalty for violation of article.--Every person, firm, company, or corporation violating any of the provisions of this article shall, upon conviction thereof, be punished by a fine not to exceed $100, or by imprisonment not to exceed 90 days, or by both such fine and imprisonment, in the discretion of the court; the court to have the power to suspend said sentence and to revoke the suspension thereof. Each day any person, firm, company, or corporation shall violate any of the provisions of this article shall constitute a separate offense.

Source: 1952 Rev. Ord. 13-0814, 953 (1955).

ARTICLE 13-09

REGULATION OF STORAGE AND ACCUMULATION OF JUNK, TRASH, RUBBISH, JUNK AUTOMOBILES, ABANDONED VEHICLES AND BUILDING MATERIALS AND OF MAINTENANCE OF BLIGHTED STRUCTURES

Section

13-0901 Definitions.
13-0902 Storage of junk, junk automobiles, etc.--Contrary to public health and safety--Nuisance.
13-0903 Unlawful to store or accumulate junk, junk automobiles, abandoned vehicles or to abandon vehicles.
13-0904 Unlawful to dismantle automobile except on business premises.

13-0905 Unlawful to maintain blighted structure.
13-0906 Unlawful to store building materials except on business premises.
13-0907 Police department may remove junk automobiles or abandoned vehicles.
13-0908 Appeal to city commission.
13-0909 Junk, junk automobiles and abandoned vehicles--Transfer to other property.
13-0910 Abatement of nuisance--Penalty.

13-0901. Definitions.--The following words or terms when used herein shall be deemed to have the meanings set forth below:

1. The term "junk" shall include, without limitation, trash, rubbish, parts of machinery or motor vehicles, unused furniture, stoves, refrigerators, or other appliances, remnants of wood, metal, or any other castoff material of any kind, whether or not the same could be put to any reasonable use.

2. The term "junk automobiles" shall include, without limitation, any motor vehicle which is not licensed for use upon the highways of the state of North Dakota for a period in excess of 60 days, and shall also include, whether licensed or not, any motor vehicle which is inoperative for any reason for a period in excess of 15 days; provided that there is excepted from this definition unlicensed, but operative, vehicles which are kept as the stock in trade of a regularly licensed and established new or used automobile dealer.

3. The term "abandoned vehicle" shall include, without limitation, any vehicle which has remained on private property for a period of 48 continuous hours, or more, without the consent of the owner or occupant of the property, or for a period of 48 continuous hours or more after the consent of the owner or occupant has been revoked.

4. The term "blighted structure" shall include, without limitation, any dwelling, garage, or outbuilding, or any factory, shop, store, warehouse or any other structure or part of a structure which, because of fire, wind, or other natural disaster, or physical deterioration, is no longer habitable as a dwelling, nor useful for the purpose for which it may have been intended.

5. The term "building materials" shall include, without limitation, lumber, bricks, concrete or cinder blocks, plumbing materials, electric wiring or equipment, heating ducts or equipment, shingles, mortar, concrete, or cement, nails, screws, or any other materials used in constructing any structure.

6. The term "person" shall include all natural persons, firms, co-partnerships, corporations, and all associations of natural persons, incorporated or unincorporated, whether acting by themselves, or by a servant, agent or employee. All persons who violate any of the provisions of this ordinance, whether as owner, occupant, lessee, agent, servant or employee shall, except as herein otherwise provided, be equally liable as principals.

7. The terms "trash" and "rubbish" shall include any and all forms of debris and waste material not herein otherwise classified.

Source: 1230 (1966), 2538 (1990), 5276 (2020).

13-0902. Storage of junk, junk automobiles, etc.--Contrary to public health and safety--Nuisance.--It is hereby determined that the storage or accumulation of trash, rubbish, junk, junk automobiles, abandoned vehicles, building materials, and the maintenance of blighted structures upon any private property within the city of Fargo is a nuisance and tends

to result in blighted and deteriorated neighborhoods, the increase in criminal activity, the spread of vermin and disease, and is contrary to the public peace, health, safety and general welfare of the community.

Source: 1230 (1966), 2538 (1990).

13-0903. Unlawful to store or accumulate junk, junk automobiles, abandoned vehicles or to abandon vehicles.--

A. It shall be unlawful for any person to store, or permit the storage or accumulation of trash, rubbish, junk, junk automobiles or abandoned vehicles on any private property in the city of Fargo except within a completely enclosed building or upon the business premises of a duly licensed junk dealer, junk buyer, dealer in used auto parts, dealer in secondhand goods or junk gatherer.

B. No person shall abandon any vehicle upon a street, highway, alley or other public roadway.

C. No person shall abandon any vehicle upon any public or private property without the express or implied consent of the owner or person in lawful possession or control of the property.

D. For purposes of this section, a vehicle shall be presumed to be abandoned if it is left unattended on a highway, alley, or other public roadway, for a period in excess of 48 hours; or on any public or private property without the express or implied consent of the owner or person in lawful possession or control of the property, for a period in excess of 48 hours.

E. Any police officer who has reasonable grounds to believe that a vehicle has been abandoned may remove the vehicle, or cause it to be removed, at the expense of the owner, to the nearest garage or other place of safety.

F. In the event a vehicle is not reclaimed by the registered owner or any lien-holder within 90 days, the laws of this state governing the disposition of abandoned property shall apply and the property shall be disposed of in accordance therewith.

Source: 1230 (1966), 1384 (1971), 2538 (1990).

13-0904. Unlawful to dismantle automobile except on business premises.--It shall be unlawful for any person to dismantle, cut up, remove parts from, or otherwise disassemble any automobile, whether or not the same be junk automobile, abandoned vehicle, or otherwise, or any appliance or machinery, except in a completely enclosed building, or upon the business premises of a duly licensed junk dealer, junk buyer, dealer in used auto parts, dealer in secondhand goods or junk gatherer.

Source: 1230 (1966).

13-0905. Unlawful to maintain blighted structure.--It shall be unlawful for any person to keep or maintain any blights or vacant structure, dwelling, garage, outbuilding, factory, shop, store, or warehouse unless the same is kept securely locked, the windows kept glazed or neatly boarded up, and otherwise protected to prevent entrance thereto by unauthorized persons or unless such structure is in the course of construction in accordance with a valid building permit issued by the city of Fargo, and unless such construction is completed within a reasonable time.

Source: 1230 (1966).

13-0906. Unlawful to store building materials except on business premises.--It shall be unlawful for any person to store or permit the storage or accumulation of building materials on any private property, except in a completely enclosed building or except where such building materials are part of the stock in trade of a business located in said property, or except when such materials are being used in the construction of a structure on the property in accordance with a valid building permit issued by the city of Fargo, and unless such construction is completed within a reasonable time.

Source: 1230 (1966).

13-0907. City may remove junk, junk automobiles or abandoned vehicles--Notice to property owner.--The city may remove or cause to be removed any junk, junk automobile or abandoned vehicle, or parts of either, from any public or private property after having notified, in writing, the owner or occupant of such property of its intention to do so at least 12 days prior to such removal. Such notice shall identify the property to be removed and the real property upon which it is located and shall state further that if it is not removed by the owner within 12 days, it will be removed by the city and the cost thereof will be assessed against the real property described in the notice. The notice may be served personally upon the owner or occupant of the property; or may be served by regular mail addressed to the same person and to the same address as is designated to receive the real estate tax notice for the property. If service of the notice is by mail, three additional days shall be allowed for mailing time. If such junk or junk automobiles, or parts of either, have not been removed by the owner within the time specified, it shall be removed by the city and disposed of forthwith. If any abandoned vehicles have not been removed by the owner within the time specified, such abandoned vehicles shall be removed and disposed of as provided in § 13-0903 of this article. Such removal by the city shall not excuse or relieve any person of the obligation imposed by this ordinance to keep his property free from storage or accumulation of junk, junk automobiles or abandoned vehicles, or parts of either, nor from the penalties for violation thereof.

Source: 1230 (1966), 2538 (1990).

13-0908. Appeal to city commission.--In the event the property owner disagrees with the determination of the city and the notice for removal, the property owner may appeal to the board of city commissioners by filing with the executive secretary of the city commission, a notice of appeal, in writing. Such appeal must be filed within ten (10) days of receipt of the notice for removal and before the deadline within which the owner is otherwise required to remove the junk, junk automobile, and/or abandoned vehicle. Upon receipt of such notice, the city will set a hearing date at a time, not to exceed 30 days from receipt of the notice of appeal at which time the board of city commissioners will hear the appeal.

Source: 2538 (1990), 4394 (2004), 4477 (2005).

13-0909. Junk, junk automobiles and abandoned vehicles--Transfer to other property. In the event that any junk, junk automobiles or abandoned vehicles are identifiable and are moved or transferred from one parcel of real property to another after receipt of the notice provided for in § 13-0907 of this article, a new notice shall not be required and the identifiable junk, junk automobiles or abandoned vehicles may be removed by the city as provided in § 13-0907 of this article and the costs assessed against the property upon which it was located at the time the notice was given.

Source: 2538 (1990).

13-0910. Abatement of nuisance--Penalty.--The cost of removal of any junk, junk automobiles and abandoned vehicles may be assessed against the property where said junk, junk automobiles and abandoned vehicles are located at the time the notice was issued. Such removal and assessment of costs shall not be deemed to be the exclusive remedy of the city. Violation of any of the provisions of this article is an infraction, punishable in accordance with § 1-0301 of the Fargo Municipal Code. Each day of violation shall be deemed to be a separate infraction.

Source: 2538 (1990).

ARTICLE 13-10

RECREATIONAL AQUATIC FACILITIES*

Section

13-1001 Definitions.
13-1001.1 Model Aquatic Health Code Adopted--Amendments.
13-1001.2 Modification of Model Aquatic Health Code.
13-1002 Regulation by health department.
13-1003 Health department approval of construction plans.
13-1004--13-1007 Reserved.
13-1008 Inspection by health department.
13-1009 Periodic inspection and testing by the health department.
13-1010 Compliance with requirements of state health department--Repealed.
13-1011 Licensing and Fees.
13-1012 License--Compliance and revocation.
13-1013 Pool operator certification.
13-1014 Variance.
13-1015 Appeals.

13-1001. Definitions.--

1. "Authority Having Jurisdiction" (also referred to as "AHJ") and "health department" shall mean the health department of the city of Fargo.

2. "Certified operator" shall mean the person having a current certification from the successful completion of at least one of the following three courses: (a) the National Swimming Pool Foundation Certified Pool Operator course, (b) both Tech I and Tech II courses of the National Spa and Pool Institute and (c) the National Recreation and Park Association Aquatic Facility Operator course.

3. "Person" shall mean any individual, limited liability company, firm, partnership, association, corporation, company, society, government agency, club, business entity or organization of any kind.

***Editor's note**—Ord. No. 4965, § 1, adopted Feb. 17, 2015, amended Art. 13-10 in its entirety to read as herein set out. Former Art. 13-10, §§ 13-1001--13-1011, pertained to swimming and wading pools. Prior legislative history has been retained in section history notes.

4. "Pool" shall mean any structure, chamber, or tank containing an artificial body of water for recreational use including, without limitation, a competition pool, wading pool, splash pad, spa, lazy river, special purpose pool, plunge pool, water slide, flume, speed slide, wave pool, sand bottom pool, vortex pool and zero depth entry pool.

5. "Private residential pool" shall mean a pool connected with a single family residence or with a multi-unit owner-occupied complex, that is located on private property and that is under the control of the property owner or owners, the use of which pool is limited to the owner or owners or the family members or invited guests of the owner or owners or of their families, is deeper than 2 feet, and has a recirculation system. A pool that is used for commercial purposes is not a private residential pool.

Source: 1344 (1970), 4449 (2005), 4965 (2015), 5013 (2016), 5120 (2017).

13-1001.1. Model Aquatic Health Code Adopted--Amendments.--The installation, construction, enlargement, alteration, repair, moving, removal, demolition, conversion, occupancy, equipment, operation and maintenance of pools in the city of Fargo, North Dakota, shall meet with the provisions of the 2016 edition of the Model Aquatic Health Code of the Center for Disease Control of the Department of Health and Human Services of the United States of America as the same are now established in said code, a copy of which is on file in the office of the city auditor for the city of Fargo, with the exception of the sections hereinafter set forth affecting local conditions in the city of Fargo, which sections shall be substituted for and in lieu of like sections or paragraphs in said Model Aquatic Health Code; and the board of city commissioners of said city of Fargo, by this section hereby approves and adopts such code, as so modified, for use and application in the city of Fargo, North Dakota.

Source: 5120 (2017).

13-1001.2. Modification of Model Aquatic Health Code.--The Model Aquatic Health Code as adopted in § 13-1001.1 is hereby amended as follows:

1. The following sections and paragraphs of Chapter 5 are hereby deleted in their entirety:
   Sections 5.4.2.1; 5.4.1.2; 5.7.5.9 and 5.12.2.1 and paragraphs 5.5.6.1.2; 5.6.2.10.1; 5.6.3.3.2; 5.6.7.4.2; 5.6.7.4.3; 5.6.9.3.9; 5.8.5.3.2; 5.8.5.4.3 and 5.8.5.4.4.
2. The following parts of Chapter 6 are hereby deleted in their entirety:
   Parts 6.1 and 6.2.
3. **Section 5.7.3.5.1** of Chapter 5 is hereby amended to read as follows:
   Acceptable disinfectant and pH control chemicals ~~shall~~ may be delivered through an automatic chemical feed system upon adoption of this CODE.
4. **Paragraph 5.7.3.7.1** of Chapter 5 is hereby amended to read as follows:
   An AUTOMATED CONTROLLER capable of measuring the disinfectant residual *(FAC or bromine)* or surrogate such as ORP ~~shall~~ may be used to maintain the disinfectant residual in AQUATIC VENUES as outlined in MAHC 4.7.3.2.8.
5. **Paragraph 5.9.2.4.1** of Chapter 5 is hereby amended to read as follows:
   DISINFECTION and pH control chemicals shall be ~~automatically~~ introduced through the RECIRCULATION SYSTEM.
6. **Paragraph 6.3.2.1.7** of Chapter 6 is hereby amended to read as follows:
   List of Aquatic Facilities Requiring Qualified Lifeguards

Note: This list includes but shall not be limited to the following:

1) For new construction occurring from the date of acceptance of this CODE, any AQUATIC VENUE deeper than five feet *(1.5 m)* at any point;
2) Any AQUATIC VENUE that allows for unsupervised children under the age of 14 years;
3) Any AQUATIC VENUE while it is being used for the recreation of youth groups, including but not limited to childcare usage or school groups;
4) Any AQUATIC VENUE while it is being used for group training must have dedicated lifeguards on DECK for class surveillance, sufficient to meet the requirements of MAHC 6.3.3.1, including but not limited to competitive swimming and/or sports, lifeguard training, exercise programs, and swimming lessons;
5) Any AQUATIC VENUE with a configuration in which any point on the AQUATIC VENUE surface exceeds 30 feet *(9.1 m)* from the nearest DECK;
6) Any AQUATIC VENUE with an induced current or wave action including but not limited to WAVE POOLS and LAZY RIVERS; and
~~7)~~ ~~Waterslide landing pools; and~~
7) Any AQUATIC VENUE in which BATHERS enter the water from any height above the DECK including but not limited to diving boards, DROP SLIDES, starting platforms, and/or climbing walls. This does not include POOL SLIDES.

7. **Paragraph 6.3.1.1.2** of Chapter 6 is hereby amended to read as follows:

A QUALIFIED OPERATOR shall be on-site or immediately available within two hours during all hours of operation at an AQUATIC FACILITY that has:

1) More than two AQUATIC VENUES; or
2) An AQUATIC VENUE of over ~~50,000~~5,000 gallons of water; or
3) AQUATIC VENUES that include AQUATIC FEATURES with recirculated water; or
4) An aquatic venue used as a therapy pool; or
5) An AQUATIC VENUE used to provide swimming training.

Source: 5120 (2017).

13-1002. Regulation by health department.--

1. The health department, and agents and employees thereof, shall have authority to regulate the public health and safety in the city of Fargo concerning use, design, operation, and maintenance of Aquatic Venues. The health department shall have such authority to adopt regulations, rules, standards and practices. Such regulations, rules, standards, and practices shall be approved by the board of city commissioners, are hereby adopted by reference and fully incorporated herein, including any amendments hereinafter adopted, and shall be controlling within the jurisdiction of the health department.

2. No person shall own, operate or allow to be occupied an Aquatic Venue, except a private residential pool, without a license for such issued by the health department pursuant to this article.

3. No person shall occupy an Aquatic Venue that has been closed and placarded for closure by the health department, as provided in section 6.6.4 of the Model Aquatic Health Code adopted herein, and no licensee shall allow such Aquatic Venue to be occupied after such closure and placarding other than for the limited purposes of repairs, maintenance or other activities needed to correct an imminent health hazard.

Source: 1344 (1970), 2735 (1995); 4449 (2005), 4965 (2015), 5013 (2016), 5120 (2017), 5240 (2019).

13-1003. Health department approval of construction plans.--Before any construction, alteration, addition, remodeling or other improvement to an Aquatic Venue, the plans and specifications shall be approved by the health department.

Source: 1344 (1970), 4449 (2005), 4965 (2015), 5013 (2016), 5120 (2017).

13-1004--13-1007. Reserved.

Editor's note—Ord. No. 5013, § 2, adopted Jan. 4, 2016, repealed §§ 13-1004--13-1007, which pertained to fence/barrier and gate requirements, bathers with communicable diseases, sanitation of premises, and cleaning, respectively, and derived from Ord. No. 1344, adopted 1970; Ord. No. 4449, adopted 2005; Ord. No. 4965, adopted 2015.

13-1008. Inspection by health department.--The health department may inspect or cause to be inspected, all recreational aquatic facilities within the city at such times as it may deem necessary to carry out the intent of this ordinance. The health department is hereby authorized to enter upon any premises to take such samples of water from such pools at such times as it may deem necessary and to require the owner, proprietor or operator to comply with rules and regulations pertaining to Aquatic Venues promulgated by the health department in accordance with this ordinance, and as approved by the board of city commissioners. In the event of the failure of compliance after due notice with the rules and regulations and requirements of the health department or the requirements of this ordinance, the health department shall have the power to abate or cause a suspension of the use of such Aquatic Venue until such time as the same is, in the opinion of the health department, no longer a menace or a hazard to health, safety or morals.

Source: 1344 (1970), 4449 (2005), 4965 (2015), 5013 (2016), 5120 (2017), 5240 (2019).

13-1009. Periodic inspection and testing by the health department.--All Aquatic Venues in use shall be sampled and tested for water quality at intervals to be determined by the health department. The allowable limits and frequency of such tests shall be as determined by the health department.

Source: 1344 (1970), 4449 (2005), 4965 (2015), 5120 (2017).

13-1010. Compliance with requirements of state health department.--Repealed by Ord. No. 2735 (1995).

Source: 1344 (1970), repealed by Ord. No. 2735 (1995), 4449 (2005), 4965 (2015).

13-1011. Licensing and Fees.--A license shall be issued after a preoperational inspection has determined that the recreational aquatic facility and its method of operation will

conform to the requirements of this chapter. A license, once issued, is nontransferable, and shall only be valid only for the location described in the application. All licenses issued under the provisions of this article, unless otherwise specifically provided, shall terminate on December 31 following the date of issuance; provided, however that any license issued under the provisions of this article may, under certain circumstances, be revoked or not renewed by the director of public health. The initial application for a license shall extend from the date of issuance until December 31. Thereafter, the license may be renewed annually, January 1, by the director of public health. The license shall be posted in a conspicuous place in the recreational aquatic facility.

Fees shall be set by resolution of the board of city commissioners and shall be sufficient to cover the actual expenses of administering and enforcing this program, including the expenses of inspecting. The fee for the periodic tests required in 13-1009 shall be established by resolution of the board of city commissioners. Periodic inspection and testing fees shall be at the expense of the recreational aquatic facility. Current licensees must pay, in full, any outstanding inspection and testing fees prior to the annual licensing renewal period on January 1. The licensee's failure to pay any outstanding fees will result in the non-renewal of the license and said license shall terminate on December 31.

Source: 1344 (1970), 2032 (1981), 4449 (2005), 4965 (2015), 5120 (2017), 5407 (2023).

13-1012. License--Compliance and revocation.--

A. All licensees shall comply with the requirements of the regulations, rules, standards and practices promulgated and adopted as set forth in section 13-1002. The health department may revoke any license to operate an Aquatic Venue; may direct any Aquatic Venue to close upon violation of this chapter including a violation of the adopted regulations, rules, standards and practices and including the failure to pay the administrative penalty imposed pursuant to this section; or may both order such closure and revoke such license.

1. When the health department has revoked an Aquatic Venue license, the person in charge:
    a. Shall immediately close the pool for use by anyone;
    b. Shall be notified in writing by the health department that the Aquatic Venue license is immediately revoked upon service of the notice and the suspension shall remain in effect until a hearing with the health department occurs. If the health department finds the operation to be in compliance with the requirements of this chapter, the Aquatic Venue may reapply for a new license;
    c. May request a hearing by filing a written request for a hearing with the health department within 10 days of receipt of the notice of revocation; and,
    d. Shall be notified, if a written request for a hearing is not filed within 10 days that the revocation shall be sustained.

Any Aquatic Venue owner whose license has been revoked may, at any time, make written application for a re-inspection for the purpose of re-applying for a license. The application shall include a statement, signed by the owner, that, in the owner's opinion, the conditions causing the revocation have been corrected.

A new license may be issued if the health department determines that conditions which prompted the revocation no longer exist.

2. When the health department has ordered an Aquatic Venue to be closed and has placarded the same to prohibit use until an imminent health hazard is corrected, as provided in section 6.6.4 of the Model Aquatic Health Code, adopted herein, if the licensee or agent or employee of the licensee either fails to close said pool or said licensee, agent or employee thereof opens the pool for occupancy or use prior to approval of the AHJ, then, in addition to any other remedies provided herein, administrative penalties may be imposed upon the licensee as follows:
   a. For a first offense: a $500 monetary penalty;
   b. For a second offense within the prior twelve-month period since the date of the prior offense: a $1,000 monetary penalty plus a period of suspension of the violator's license to be determined by the administrative board, below, or if said board's decision is appealed, by the board of city commissioners; and,
   c. For a third or any subsequent such offense occurring within the prior twelve-month period since the next previous offense: a $1,000 monetary penalty plus a period of suspension of the violator's license to be determined by the administrative board, below, or if said board's decision is appealed, by the board of city commissioners.

3. Administrative Board--Notice of Violation-Procedure for Hearing-Appeals. There is hereby established a three-member administrative board consisting of the health officer, the director of public health and the city auditor. When an Aquatic Venue has been ordered closed and placarded by the health department, as authorized by law, and subsequently the health department determines that the Aquatic Venue either has not been closed, has not remained closed or has been unlawfully allowed to be occupied prior to approval of the AHJ, then the health department may cause a notice of violation to be delivered to the licensee, which notice shall describe the nature of the violation, the date or dates said violation existed, and the amount of the administrative penalty being sought by such notice. Upon receipt of the notice of violation, the licensee may admit to the violation, pay the monetary administrative penalty and make arrangements with the health department for implementation of the suspension of the licensee's license within ten (10) days or a public hearing before the administrative board will be scheduled by the health department. A hearing shall be set by the health department and a notice of said hearing issued to the licensee specifying the time and place of the hearing and further describing the reason for said hearing. The notice shall be served upon the licensee. No hearing shall be held until at least ten (10) days after the date of service of the notice. The licensee shall have a right to be heard at the hearing. After receiving the evidence at the hearing, the administrative board shall make a determination as to the facts that occurred and issue a written decision, determined by a majority vote of the members of the administrative board, to be served upon the licensee. If an administrative penalty is imposed, the written decision must identify the amount of the administrative fine in the amount set forth herein and the date by which it must be paid and it must provide the dates of commencement and completion of

any period of suspension of the license. The licensee may appeal the decision of the administrative board by filing a written notice of appeal of said decision with the health department within ten days of the date of service of the administrative board's written decision upon the licensee. A hearing of said appeal shall be set by the city commission specifying the time and place of the hearing and notice of the same shall be served upon the licensee. At the hearing of the appeal to the board of city commissioners, the licensee shall be allowed to make any statements or arguments and fully argue its case but it will not be entitled to a trial de novo. The decision of the board of city commissioners shall be based on a review of the evidence presented to the administrative board along

with a record of the hearing and based upon a review of the findings and decision of the administrative board along with the statements and arguments of the licensee presented to the board of city commissioners to determine whether to affirm or reverse the decision of the administrative board. The decision of the board of city commissioners shall be served on the licensee, such decision being subject to further appeal in accordance with Chapter 28-34 of the North Dakota Century Code. Service of notices of hearing or of decisions of the administrative board or the board of city commission shall be completed in the same manner as provided by law for the service of a summons in a civil action (Rule 4, North Dakota Rules of Civil Procedure).

4. As provided in the Model Aquatic Health Code, Section 6.6.4, within 15 days of the closure and placarding of an Aquatic Venue, the operator of the Aquatic Venue may request an opportunity to be heard and present proof that continued operation of the facility does not constitute a danger to the public health.

Source: 4965 (2015), 5013 (2016), 5120 (2017).

Editor's note—Ord. No. 5013, § 1, adopted Jan. 4, 2016, retitled § 13-1012 from "Revocation" to read as herein set out.

13-1013. Pool operator certification.--Every commercial Aquatic Venue must have at least one certified operator on staff to operate or to help operate the facility.

Source: 4965 (2015), 5013 (2016), 5120 (2017).

Editor's note—Ord. No. 5013, § 1, adopted Jan. 4, 2016, retitled § 13-1013 from "Certified Pool Operator certification" to read as herein set out.

13-1014. Variance.--In any case where a license is required by this article, and upon application by the responsible person or persons, the director of public health, or health official designated by the director, may grant a variance from the strict interpretation or application of law, regulations or rules. A variance may be granted upon an affirmative finding that all of the following conditions exist:

a. The requested variance arises from conditions that are unique to the subject property or matter, that are not ordinarily found in similar properties or matters;
b. The strict application of the applicable standards or regulations will constitute an unnecessary hardship;
c. The strict enforcement of any provision of this article, or of the rules and regulations promulgated pursuant to this article would be unreasonable, impractical or not feasible under the circumstances;
d. The variance desired will not adversely affect the public health, safety or general welfare; and
e. The variance is the minimum variance that will overcome the hardship.

In granting the variance, the director of public health or designated health official may include such conditions as may be reasonably necessary to maintain the general purpose of these rules and regulations and the interest of applicable local, state or federal laws.

Source: 5013 (2016).

13-1015. Appeals.--Any person aggrieved by a decision of the health department or one of its officials including without limitation an order or denial of an order or by the denial of permit or a variance, may appeal such decision by filing a notice of appeal with the director

of public health. Appeals of final decisions made pursuant to the procedures of this article must be filed within 10 days of the date of the decision. Said appeal must be in writing and shall be submitted to the director of public health. The board of city commissioners shall consider the appealed decision as a new matter in a public hearing and, at the close of the public hearing, act to affirm or reverse the original decision.

Source: 5013 (2016).

ARTICLE 13-11

CHILD CARE CENTERS

Section

13-1101 Definitions.
13-1102--13-1109 Reserved.
13-1110 Physical activity requirements.
13-1111 Electronic media viewing.
13-1112 Beverages.

13-1101. Definitions.--

1. "Child Care Facility": Any facility required by the North Dakota Department of Human Services (NDDHS) to have a health inspection where children receive care and supervision for 24 hours or less per day; unaccompanied by the child's parent, guardian or custodian.

2. "Electronic Media": Media that use electronics or electromechanical energy for the end user (audience) to access the content.

Source: 2054 (1982), 2986 (1999), 4763 (2010), 4918 (2014), 5261 (2020).

13-1102. Reserved.--

Editor's note—Ord. No. 5261, § 2, adopted July 27, 2020, repealed § 13-1102, which pertained to application for childcare facilities and derived from Ord. No. 2054, adopted 1982; Ord. No. 2986, adopted 1999; Ord. No. 4918, adopted 2014.

13-1103. Reserved.--

Editor's note—Ord. No. 5261, § 2, adopted July 27, 2020, repealed § 13-1103, which pertained to certificate of occupancy requirement and derived from Ord. No. 2054, adopted 1982; Ord. No. 4918, adopted 2014.

13-1104. Reserved.--

Editor's note—Ord. No. 5261, § 2, adopted July 27, 2020, repealed § 13-1104, which pertained to a required permit for operation of a child care facility and derived from Ord. No. 4763, adopted 2010; Ord. No. 4918, adopted 2014.

13-1105. Reserved.--

Editor's note—Ord. No. 5261, § 2, adopted July 27, 2020, repealed § 13-1105, which pertained to the regulation, inspection and enforcement by public health department and derived from Ord. No. 4763, adopted 2010; Ord. No. 4918, adopted 2014.

13-1106. Reserved.--

Editor's note—Ord. No. 5261, § 2, adopted July 27, 2020, repealed § 13-1106, which pertained to the display and no transferability of permit and derived from Ord. No. 4763, adopted 2010; Ord. No. 4918, adopted 2014.

13-1107. Reserved.--

Editor's note—Ord. No. 5261, § 2, adopted July 27, 2020, repealed § 13-1107, which pertained to the application and fees, issuance and expiration of permits, and renewal and derived from Ord. No. 4763, adopted 2010; Ord. No. 4918, adopted 2014.

13-1108. Reserved.--

Editor's note—Ord. No. 5261, § 2, adopted July 27, 2020, repealed § 13-1108, which pertained to health and sanitation requirements and derived from Ord. No. 2054, adopted 1982; Ord. No. 4763, adopted 2010; Ord. No. 4785, adopted 2011; Ord. No. 4918, adopted 2014.

13-1109. Reserved.--

Editor's note—Ord. No. 5261, § 2, adopted July 27, 2020, repealed § 13-1109, which pertained to safety requirements and derived from Ord. No. 2054, adopted 1982; Ord. No. 4763, adopted 2010; Ord. No. 4918, adopted 2014.

13-1110. Physical activity requirements.--All licensed child care facilities shall provide a program of age and developmentally appropriate physical activity that comply with the following:

A. Participate, and ensure staff participates in approved trainings equaling at least two hours on physical activity (above and beyond playground safety) annually. Initial training must be completed within three months of hire.

B. Toddlers and preschool-age children shall play outdoors daily for a minimum of 60 minutes. In inclement weather, active indoor play shall be substituted in safe play areas.

C. Children ages 12 months and older attending a full-day program shall be scheduled to participate in at least 60 minutes of physical activity per day. Children attending less than a full day program shall be scheduled to participate in a proportionate amount of such activities.

D. For children ages three and older, at least 30 of the 60 minutes shall be structured and guided physical activity. Structured and guided physical activity shall be led by teachers and/or caregivers and shall promote moderate to vigorous physical activity, basic movement, creative movement, motor skills development, and general coordination.

E. Infants should have supervised "tummy time" every day when they are awake. Caregivers should interact with an awake infant on their tummy for short periods of time (three to five minutes), increasing the amount of time as the infant shows he/she enjoys the activity.

F. Toddlers and preschool-age children shall not be sedentary or sit passively for more than 60 minutes continuously, except when sleeping.

G. Infants shall be placed in safe settings that facilitate physical activity and do not restrict movement for more than 20 minutes at one time (seated position, swings, exer-saucers, etc.), promote the development of movement skills, and allow infants to perform small and large muscle activities. A least restrictive environment is encouraged at all times.

H. Facilities shall document physical activities including outdoor time, active play and routine physical activity education and make such documentation available to the health department at designated times. This documentation shall be included in the program daily schedule and program lesson/activity plans.

Source: 4918 (2014).

13-1111. Electronic media viewing.

A. Electronic media shall not be used with children under two years of age.

B. For children ages two and older, viewing of electronic media shall be limited to no more than 60 minutes per day of educational programs or programs that actively engage child movement. Children attending less than a full day program shall be limited to a proportionate amount of such viewing.

Source: 4918 (2014).

13-1112. Beverages.

A. Beverages with added sweeteners, whether artificial or natural, shall not be provided to children.

B. Juice shall only be provided to children twelve months and older, and shall not be provided in a bottle. Only 100 percent juice shall be permitted and children shall receive no more than six ounces per day.

C. Water shall be made available and shall be easily accessible throughout the day.

Source: 4918 (2014).

ARTICLE 13-12

PET SHOPS

13-1201 Definitions.
13-1202 Unlawful to operate pet store without license--Sale or display of colored birds or animals prohibited.
13-1203 License to operate pet store issued annually--Fee--Application form--Health department to enforce regulations.
13-1204 Inspection of licensed premises.
13-1205 Cruelty to animals prohibited.
13-1206 Animals shall be provided with clean and proper food and water.
13-1207 Licenses--Termination, suspension, revocation.

13-1201. Definitions.--As used in this ordinance, unless the context otherwise indicates, the following definitions shall apply:

A. "Animals" shall include any non-human vertebrate species housed, offered for sale or adoption, or both, in a pet store, including, but not limited to, mammals, birds, reptiles, amphibians, fish, and also invertebrates housed, sold, or adopted as pets, except worms, leeches or the like sold for fishing bait.

B. "Pet store" shall mean an establishment or market place where animals are bought, sold, exchanged, or offered for sale, in any single calendar year, to the general public with the intent of making a profit. This term includes the keeping for transfer or the transfer of animals at temporary facilities, such as flea markets, mobile facilities, department stores, merchandise outlets, discount outlets, animal shows conducting a sale, and other types of retail outlets where the animals are intended as companions or household animals. The term "pet store" shall not include a person, firm, company or corporation which sells, offers for sale or exchanges less than 25 pet animals in any single calendar year,

nor which keeps lost or homeless pet animals for the purpose of locating the existing owner of the pet animals or a new owner and which recoups solely expenses incurred in caring for said pet animal.

C. "Director" shall mean the Director of Public Health for the city of Fargo.

Source: 2824 (1997), 4758 (2010).

13-1202. Unlawful to operate pet store without license--Sale or display of artificially colored birds or animals prohibited.--It shall be unlawful to operate a pet store unless a license is first obtained from the city auditor. No artificially colored birds or animals shall be sold or displayed by any person at any time.

Source: 2824 (1997), 4758 (2010).

13-1203. License to operate pet store issued annually--Fee--Application form--Health department to enforce regulations.--The license mentioned in § 13-1202 hereof shall be issued annually, January 1st, by the Director after an inspection by the city health officer or his designee. The fee therefor shall be as established by resolution of the board of city commissioners and applicants shall fill in and sign an application form furnished by the Director.

The city health officer is authorized to promulgate regulations creating minimum standards for pet stores pertaining to the facilities for housing and maintenance of animals, requirements for feeding and watering animals, sanitary conditions for animals, disease control and medical care, record keeping requirements and minimum age requirements of animals to be sold, which regulations may be enforced by the city health officer after they are approved by the city commission, notice of which is given pursuant to the provisions of § 13-0101 of the Fargo Municipal Code.

Source: 2824 (1997), 4758 (2010).

13-1204. Inspection of licensed premises.--The members of the board of city commissioners of the city of Fargo, the chief of police, or any officer of the health or police department may, at any time, enter upon any licensed premises for the purpose of inspection or to determine whether the licensed premises are in compliance with any and all ordinances of the city.

Source: 2824 (1997), 4758 (2010).

13-1205. Cruelty to animals prohibited.--It shall be unlawful for any person within the city to beat, injure, mistreat, or otherwise abuse inhumanely, unnecessarily, or cruelly any animal.

Source: 2824 (1997), 4758 (2010).

13-1206. Animals shall be provided with clean and proper food and water.--All animals kept for sale or display or any other purpose shall be provided with suitable sanitary housing with clean and proper food and water available at all times.

Source: 2824 (1997), 4758 (2010).

13-1207. Licenses--Termination, suspension, revocation.--All licenses issued under the provisions of this article, unless otherwise specifically provided, shall terminate on December

31st following the date of issuance; provided, however, that any license issued under the provisions of this article may, under certain circumstances, be terminated, suspended or revoked by the Director.

A. The Director may, in its discretion, suspend or revoke for cause any license issued under the provisions of this article. The grounds for suspension or revocation shall, among others, include the following:

1. The licensee has filed a petition in bankruptcy.
2. An individual licensee, one of the partners in a partnership licensee, or one of the officers in a corporation or limited liability licensee, or any individual in active management of the licensed business is determined to have violated any of the provisions of this article.
3. The licensee has been convicted of a felony under the laws of the United States or under the laws of one of the several states.
4. The licensee has made any false statement in his application for a license.
5. The licensee has violated one or more of the regulations created pursuant to § 13-1203.

B. The grounds enumerated in subsection (A) of this section shall not be deemed to be exclusive and any license issued under the provisions of this article may be suspended or revoked by the Director for any other reason deemed by the Director to be sufficient in order to promote and protect the health, safety, and humane treatment of animals in the care of the licensees. When any license is suspended or revoked by the Director pursuant to the provisions of this section, or when the licensee voluntarily ceases business, no portion of the license fee previously paid shall be returned to the licensee or to anyone claiming under or through him.

C. No license issued under the provisions of this article shall be suspended or revoked for cause by the Director without a public hearing. In the event that the Director intends to consider the suspension or revocation of any license for cause, it shall notify the licensee of its intention to consider the same. The notice shall specify the time and place of the suspension or revocation hearing and shall be served upon the licensee or his managing agent in the same manner as provided by law for the service of a summons in a civil action. No suspension or revocation hearing shall be held before the expiration of 15 days after the date of the service of the notice upon the licensee.

If, upon such hearing, it appears to the Director that sufficient cause exists for the suspension or revocation of a license issued pursuant to the provisions of this article, the Director shall make its order suspending or revoking the said license.

D. An order suspending or revoking a license issued pursuant to the provision of this article may be appealed to the City Commission. The licensee must give notice of its intent to appeal the order of suspension or revocation to the City Commission no later than 15 days following the date of the service of the order upon him.

Source: 2824 (1997), 4758 (2010).

ARTICLE 13-13

REGULATIONS RELATING TO CLEANUP OF CLANDESTINE DRUG LAB SITES AND CHEMICAL DUMP SITES

Section

13-1301 Purpose and Intent.
13-1302 Jurisdiction.
13-1303 Fees.
13-1304 Definitions.
13-1305 Existence of clandestine drug lab site or chemical dump site--Observation during law enforcement investigation or by other cities officials in regular course of duties.
13-1306 Declaration of property as a public health nuisance--Order to vacate the premises.
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13-1314 Notice filed with property record and/or motor vehicle record.
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13-1316 Recovery of costs from persons causing damage.
13-1317 Site owner and address.
13-1318 Occupation prohibited.
13-1319 Removal of personal property from the site.
13-1320 Removal of posted declaration of public health nuisance.
13-1321 Health officer's authority to modify or remove declaration of public health nuisance or order for abatement.
13-1322 Violations and penalties.

13-1301. Purpose and Intent.--The purpose of this article is to reduce public exposure to health risks where law enforcement officers or other city officials have determined that hazardous chemicals from a suspected clandestine drug lab site or associated dumpsite may exist. The board of city commissioners finds that such sites may contain suspected chemicals and residues that place people, particularly children or adults of child bearing age, at risk when exposed through inhabiting or visiting the site, now and in the future.

Source: 4499 (2005).

13-1302. Jurisdiction.--This ordinance shall apply to all areas located within the city limits of Fargo.

Source: 4499 (2005).

13-1303. Fees.--Fees for the administration of this article may be established and amended periodically by resolution of the board of city commissioners.

Source: 4499 (2005).

13-1304. Definitions.--In this chapter, unless the context otherwise requires:

A. "Child" shall mean any person less than 18 years of age.

B. "Chemical dumpsite" shall mean any place or area, including any motor vehicle, trailer or boat, where chemicals or other waste materials used in a clandestine drug lab have been located.

C. "Chemical investigation site" shall mean a clandestine drug lab site that is under notice and order for cleanup and/or remediation as a public health nuisance, as determined by the health officer, or his designee.

D. "Clandestine drug lab" shall mean the unlawful manufacture or attempt to manufacture controlled substances or the possession of equipment and other items commonly used to manufacture controlled substances.

E. "Clandestine drug lab site" shall mean any place or area where law enforcement has determined that conditions associated with the operation of an unlawful clandestine drug lab exist. A clandestine drug lab site may include dwellings, accessory buildings, accessory structures, a chemical dumpsite, any tract of land, or any motor vehicle, trailer or boat where conditions associated with the operation of an unlawful clandestine drug lab exist.

F. "Cleanup" shall mean removal and/or containment of substances hazardous to humans and/or the environment at a chemical investigation site.

G. "Controlled substance" shall mean a drug, substance, or immediate precursor in schedules I through V as set forth in North Dakota Century Code chapter 19-03.1. The term shall not include distilled spirits, wine, malt beverages, intoxicating liquors or tobacco.

H. "Director of public health" shall mean the director of the public health department.

I. "Health officer" shall mean the local health officer for the public health department and his designees.

J. "Household hazardous wastes" shall mean waste generated from a clandestine drug lab. Such wastes shall be treated, stored, transported, or disposed of in a manner consistent with North Dakota Department of Health, North Dakota Department of Environmental Health, Cass County Health rules and regulations.

K. "Law enforcement officer" shall mean any licensed peace officer.

L. "Manufacture, in places other than a pharmacy" shall mean and include the production, cultivation, qualify control, and standardization, by mechanical, physical, chemical or pharmaceutical means, packing, repacking, tableting, encapsulating, labeling, relabeling, filling, or by other process, of drugs.

M. "Owner" shall mean any person, firm, or corporation who owns, in whole or in part, the land, building, structure, motor vehicle, trailer or boat associated with a clandestine drug lab site or chemical dumpsite.

N. "Public health department" shall mean Fargo Cass Public Health, or any name by which that department shall hereinafter be known, and its authorized representatives.

O. "Public health nuisance" shall mean any dwelling, accessory structure, building and/or adjacent property, or motor vehicle, trailer or boat associated with a

clandestine drug lab site are create a potential threat to the public health, safety, and welfare of the citizens of Fargo and hereby declared to be a public health nuisance.

P. "Remediation" shall mean methods such as assessment, evaluation, testing, venting, detergent scrubbing, enclosure, encapsulation, demolition, quarantine, and/or removal of contaminated materials from a chemical investigation site.

Q. "Site" shall mean the location, area, building, motor vehicle, trailer or boat, where items typically associated with a chemical dumpsite, chemical investigative site, or clandestine drug lab are located or found.

R. "Site owner" shall mean any person, firm, or corporation who owns, in whole or in part, the land, building, structure, motor vehicle, trailer or boat associated with a clandestine drug lab site or chemical dumpsite.

S. "Structure" shall mean a dwelling, building, motor vehicle, trailer, boat, ice fishing house, appliance or any other area or location, either fixed or temporary.

Source: 4499 (2005).

13-1305. Existence of clandestine drug lab site or chemical dump site--Observation during law enforcement investigation or by other cities officials in regular course of duties. Law enforcement officers as part of a criminal investigation or caretaking public service function, or other city officials in the regular course of their duties, who identify or observe conditions associated with a clandestine drug lab site or chemical dump site that places neighbors, visiting public, or present and future occupants of the affected property at risk for exposure to harmful contaminants and other associated conditions, shall notify public health authorities and other pertinent agencies of the site location, property owner if known, and conditions found at the site.

When law enforcement officers or other city officials have completed their work and are prepared to leave the site, they shall post a warning sign on the entrance of the affected part of the structure. In a situation involving a vehicle, such warning sign shall be clearly posted on the vehicle. The warning sign shall be of a size and contain information sufficient to alert visitors or returning occupants to the site that the area is a chemical investigation site, may be dangerous to enter, and must not be entered except by authorization of the public health department, health officer, or law enforcement agency identified on the sign.

Upon receiving information related to conditions associated with a clandestine drug lab site or chemical dump site, the public health department shall conduct an appropriate investigation of the site.

Source: 4499 (2005).

13-1306. Declaration of property as a public health nuisance--Order to vacate the premises.--If law enforcement or public health authorities confirm the presence or existence of a clandestine drug lab site or chemical dumpsite, the property shall be deemed a public health nuisance. Following an inspection by the health officer and/or his designee confirming the presence of a clandestine drug lab site or chemical dumpsite, the health officer shall issue a declaration of public health nuisance for the affected site, identifying the site as a public health nuisance and declaring the site as unsafe to occupy. As part of this declaration, the health officer shall have authority to order all occupants of such building, structure, or any part thereof to immediately vacate the premises. A copy of the declaration shall be posted on doorway entrances to the site or, in the case of bare land, in several conspicuous places on the

property. In a situation involving a vehicle, a copy of the declaration shall be clearly posted on the vehicle. The declaration of public health nuisance shall not expire until the property owner completes cleanup and remediation efforts related to the property as provided for in this ordinance.

Source: 4499 (2005).

13-1307. Issuance of order to abate public health nuisance--Notice.--Upon issuance of a declaration of public health nuisance, the health officer shall issue an order of abatement for the affected site. A copy of the order for abatement shall be posted on all doorway entrances to the site, or in the case of bare land, the order shall be posted in several conspicuous places on the property. In a situation involving a vehicle, a copy of the order for abatement shall be clearly posted on the vehicle. The health officer shall send give personal or written notice to the site owner of the order to abate, which shall include the following:

A. a copy of the abatement order;
B. information about the potentially hazardous condition of the site;
C. notification of suspension of the site's rental license if applicable;
D. a summary of the site owner's and occupant's responsibilities under this ordinance; and
E. information that can help the owner locate appropriate services necessary to abate the public health nuisance.

Source: 4499 (2005).

13-1308. Notice of declaration and order of abatement--Notice to concerned parties. The health officer shall notify the owner of the property in person or by mail of the declaration of public health nuisance and order of abatement along with the following parties:

A. occupants of the property;
B. neighbors at probable risk;
C. Fargo Police Department; and
D. North Dakota Department of Health and other state and local authorities which are known to have public and environmental protection responsibilities that are applicable to the situation.

Such notice shall include information related to the following:

A. property location by street address and other identifiable location;
B. property owner's and occupant's identities - especially the identities of any children and women of child-bearing age found or known to be associated with the site;
C. chemicals found and indications of chemical residues; and
D. presumed duration of the lab.

Source: 4499 (2005).

13-1309. Site owner's right to appeal.--The site owner may appeal the declaration of public health nuisance and related order for abatement to the board of city commissioners. Such appeal must be made in writing and filed with the executive secretary of the city commission before the deadline when the site owner is otherwise required to submit a cleanup/remediation plan as required under section 13-1310.

Source: 4499 (2005).

13-1310. Site owner's responsibility to abate public health nuisance--Required action. Within twenty (20) business days of the date the abatement order is mailed or personally served upon the site owner, the site owner shall accomplish the following:

A. Notify the health officer that he has confirmed that all persons and their pets have vacated the site and that the site will remain vacated and secured until the public health nuisance is completely abated as required by this ordinance;

B. Contract with one or more city-approved environmental hazard testing and cleaning firms to conduct the following work according to the most the current North Dakota Department of Health Management Practices for Cleanup of Methamphetamine Labs, or according to standards and regulations as may be adopted by the North Dakota Department of Health:

1. a detailed on-site assessment of the extent of contamination at the site and the contamination of the personal property therein;
2. soil testing of the site and testing of all property and soil in proximity to the site that the environmental hazard testing and cleaning firm determines may have been affected by the conditions found at the site;
3. a complete cleanup of the site (including but not limited to the cleanup or removal of contaminated plumbing, ventilation systems, fixtures and contaminated soil) or a demolition of the site and a complete cleanup of the demolished site;
4. a complete cleanup, or disposal at an approved dumpsite, of all personal property in the site;
5. a complete cleanup of all property and soil in proximity to the site that is found to have been affected by the conditions found at the site;
6. remediation testing and follow-up testing to determine that all health risks are sufficiently reduced, according to North Dakota Department of Health management practices for cleanup of methamphetamine labs, or according to standards and regulations as may be adopted by the North Dakota Department of Health, to allow safe human occupancy and use of the site and use of the personal property therein.

C. Provide the health officer with the contractor's plan and schedule for remediation;

D. Sign an agreement with the health officer concerning a cleanup and/or remediation schedule. The schedule shall establish reasonable deadlines for completing all actions required by this ordinance for abatement of the public health nuisance. In determining appropriate deadlines, the health officer shall consider practical limitations and the availability of contractors in approving the schedule for cleanup. The health officer may consider practical limitations and the availability of contractors in approving the schedule for cleanup;

E. Provide written documentation of the cleanup process, including a signed, written statement that the property is safe for human occupancy and that the cleanup was conducted according to North Dakota Department of Health management practices for cleanup of methamphetamine labs, or according to standards and regulations as may be adopted by the North Dakota Department of Health;

F. The site owner may request an extension of time to consider options for arranging cleanup or removal of the affected parts of the structure. The owner or occupant must show good cause for any such extension. Such extension shall be dependent upon the owner's assurance that the affected parts of the structure will not be occupied pending appropriate cleanup or demolition.

Source: 4499 (2005).

13-1311. Duty to notify health officer of prospective change in ownership.--During the time that an order of abatement is in effect for an affected site, the site owner shall inform the health officer of any prospective change in ownership of the affected site.

Source: 4499 (2005).

13-1312. Site owner's responsibility for costs.--The site owner shall be responsible for all costs associated with nuisance abatement and of cleanup of the site, including contractor's fees and public costs for services that were performed in association with a clandestine drug lab site or chemical dump site cleanup. Public costs may include, but are not limited to:

A. posting of the site;

B. notification of affected parties;

C. securing the site, providing limited access to the site, and prosecution of unauthorized persons found at the site;

D. expenses related to the recovery of costs, including the assessment process;

E. laboratory fees;

F. cleanup services;

G. administrative fees; and

H. other associated costs.

Source: 4499 (2005).

13-1313. Site owner's failure to abate public health nuisance--City's authority to abate.

A. If the site owner fails to organize and implement appropriate cleanup and remediation efforts within twenty (20) business days of the date the abatement order is mailed to the site owner, or if the site owner otherwise fails to comply with this ordinance, the health officer is authorized to proceed in a prompt manner and to take all reasonable actions necessary to abate the public health nuisance, including, but not limited to contracting with a city-approved environmental hazard testing and cleaning firm to conduct the work listed in section 13-1309.

B. If the city is unable to locate the property owner within ten (10) days of the declaration of public health nuisance, the city is authorized to proceed in a prompt manner to initiate the onsite assessment and cleanup.

C. If the estimated costs associated with cleanup and remediation of real or personal property at the site exceeds fifty percent (50%) of the county assessor's market value of the structure and land, the city may exercise its authority under Fargo Municipal Code Article 21-04.

Source: 4499 (2005).

13-1314. Notice filed with property record and/or motor vehicle record.--

A. If the site owner fails to organize and implement appropriate cleanup and remediation efforts within twenty (20) business days of the date the abatement order is mailed to the site owner, or if the site owner otherwise fails to comply with this ordinance, the health officer is authorized to provide a copy of the declaration of public health nuisance and abatement order to the county recorder and to the lien and/or mortgage holders of the affected site to help assure that persons with interest in the site have access to information about the declaration of public health nuisance.

B. When the affected property is a motor vehicle, boat, or trailer, the health officer the health officer is authorized to notify the appropriate state and local agencies that maintain motor vehicle, boat, or trailer records, and the holders of liens or security interests against the vehicle or trailer, of the declaration of public health nuisance and order of abatement.

Source: 4499 (2005).

13-1315. Recovery of costs by city.--

A. Assessment of costs. If the city abates the public health nuisance, in addition to any other legal remedy, the city shall be entitled to recover all of its costs plus an additional 25% of the costs for administration. The city may recover costs by civil action against the owner of the site or by assessing such costs pursuant to North Dakota Century Code section 23-35-09(2) together with any amendments or modifications thereto.

B. Notice of costs. The member of the governing body who is responsible for streets shall return and file the assessment in the office of the city auditor. The auditor shall publish, in the same manner as provided under section 40-22-06, the amount of the assessment together with a notice of the time and location the governing body will meet to consider the approval of the assessment. Each assessment must be recorded, collected, and paid as other taxes are recorded, collected, and paid.

Source: 4499 (2005).

13-1316. Recovery of costs from persons causing damage.--No provisions of this ordinance are intended to limit the site owner's, residents' or the city's right to recover costs incurred under this ordinance from either the persons contributing to the public health nuisance, such as the operators of the clandestine drug lab, and/or from other lawful sources.

Source: 4499 (2005).

13-1317. Site owner and address.--For purposes of this article, when the site is real property and the owner or the address of the owner of the site is unknown, the owner and the owner's address is deemed to be that of the property's taxpayer's name and address as that information is maintained by the county auditor's office. When the site is a vehicle, boat or trailer and the owner or the address of the owner of the site is unknown, the owner and the owner's address is deemed to be that of the person on file as the owner on the current or most recent title to the vehicle, boat or trailer.

Source: 4499 (2005).

13-1318. Occupation prohibited.--It shall be unlawful for any person to occupy, enter, or allow occupancy or entrance to a building or structure declared a public health nuisance until such declaration is vacated or modified. In a situation involving a vehicle, it shall be unlawful for any person to enter or otherwise operate a motor vehicle declared a public health nuisance until such declaration is vacated or modified. This provision does not apply to the health officer, his designees, to law enforcement authorities or other city officials.

Source: 4499 (2005).

13-1319. Removal of personal property from the site.--While a declaration of public health nuisance has been posted at the site, no personal property may be removed from the site without prior written consent from the health officer. Consent to remove personal property shall only be granted at the reasonable discretion of the health officer, and only in cases of hardship after:

A. A city-approved environmental hazard testing and cleaning firm has advised the city, in writing, that the item(s) of personal property can be sufficiently cleaned to remove all harmful contamination; and

B. The owner of the personal property agrees in writing:

1. That the owner is aware of the danger of using the contaminated property;

2. That the owner will thoroughly clean the property to remove all contamination before the property is used; and

3. That the owner releases and agrees to indemnify the city, its staff, and the Fargo board of city commissioners from all liability to the owner and/or third persons for injuries or damages caused, or alleged to have been caused, by the contaminated property.

Source: 4499 (2005).

13-1320. Removal of posted declaration of public health nuisance.--It shall be unlawful for any person, except the health officer or other authorized city personnel, to remove or alter a posted declaration of public health nuisance or an order of abatement from a chemical dumpsite or a clandestine drug lab site.

Source: 4499 (2005).

13-1321. Health officer's authority to modify or remove declaration of public health nuisance or order for abatement.--The health officer may modify or remove the declaration of public health nuisance and related order for abatement. Such modification or removal shall only occur after the health officer receives documentation from a city-approved environmental hazard testing and cleaning firm stating that the suspected health and safety risks, including those to neighbors and potential dwelling occupants, either do not exist or have been sufficiently abated or corrected to justify amendment or removal of the declaration. In addition, prior to the health officer allowing occupancy of the site or structure, the site owner shall execute a covenant in recordable form identifying the property as a clandestine drug lab site which has been remediated and such covenant shall be recorded in the county recorder's office. When the declaration or order of abatement is modified or removed, the health officer shall forward that information to the county recorder to be included in the property record if notice

of the nuisance declaration was previously filed with the recorder as described above. Notice shall also be provided to the motor vehicle or other license records agencies and lien holders if a notice had previously been provided to them.

Source: 4499 (2005).

13-1322. Violations and penalties.--Any person violating any provision of this ordinance shall be guilty of a class B misdemeanor and upon conviction shall be subject to the penalties set forth in Fargo Municipal Code section 1-0301(A). In addition, the city shall be entitled to seek any other remedy available at law or in equity in order to protect the health, safety, and welfare of the community, including temporary and permanent injunctions.

Source: 4499 (2005).

ARTICLE 13-14

LODGING ESTABLISHMENTS

Section

13-1401 Definitions.
13-1402 Application.
13-1403 Rules and regulations.
13-1404 Exterior maintenance and parking.
13-1405 Restrooms and handwashing facilities.
13-1406 Guest rooms.
13-1407 Interior construction.
13-1408 Water supply.
13-1409 Plumbing.
13-1410 Garbage/Refuse disposal.
13-1411 Miscellaneous.

13-1401. Definitions.--

1. "Clean" - Shall mean the absence of dirt, grease, rubbish, garbage, and other offensive, unsightly or extraneous matter.
2. "Employee" - Shall mean any person working in a lodging establishment including janitors, maids, porters, and other persons whose duties include the cleaning of rooms, toilets, or other parts of the building.
3. "Good repair" - Shall mean free of corrosion, breaks, cracks, chips, pitting, excessive wear and tear, leaks, obstructions, and similar defects so as to constitute a good and sound condition.
4. "Guest" - Shall mean an occupant of any lodging establishment.
5. "Guest room" - Shall mean any room used by a guest for sleeping purposes.
6. "Health Department" - Shall mean Fargo Cass Public Health.
7. "Health hazard" - Shall mean any chemical agent, source of filth, cause of sickness, or condition that is a health threat to employees or guests.
8. " Lodging Establishment" - Shall mean a building, structure, enclosure, or any part thereof used as, maintained as, advertised as, or held out to be a place where sleeping accommodations are furnished to the public for a charge and for periods of less than one week. The term does not include residential or personal dwelling units.

9. "Public restroom" - Shall mean any facility that provides toilet and handwashing facilities for the general public.

Source: 5408 (2023).

13-1402. Application.--All lodging establishments shall be subject to the requirements of this article and the rules or regulations promulgated hereunder.

Source: 5408 (2023).

13-1403. Rules and Regulations.--

13-1403.1 Regulation by Health Department.--The health department, and agents and employees thereof, shall have authority to regulate the public health and safety in the city of Fargo concerning use, design, operation, and maintenance of lodging establishments and shall have such authority to adopt regulations, rules, standards and practices. Such regulations, rules, standards, and practices shall be approved by the board of city commissioners, and are hereby adopted by reference and fully incorporated herein, including any amendments hereinafter adopted, and shall be controlling within the jurisdiction of the city of Fargo.

Source: 5408 (2023).

13-1403.2 Health Department Approval of Construction Plans.--Before work is commenced on the construction of a lodging establishment, or there is any alteration, addition, remodeling, or other improvement, the plans and specifications must be approved by the health department.

Source: 5408 (2023).

13-1403.3 Inspection by Health Department.--The health department may inspect or cause to be inspected all lodging establishments within the city at such times as it may deem necessary to carry out the intent of this ordinance. In the event of the failure of compliance after due notice with the rules and regulations and requirements of this ordinance, the health department shall have the power to abate or cause a suspension of use of such lodging establishment until such time the health department deems there to be no longer a menace or a hazard to health, safety or morals. Yearly inspection fees shall be established by resolution of the board of city commissioners.

Source: 4946 (2014), 5408 (2023).

13-1404. Exterior maintenance and parking.--

13-1404.1 - Every building, structure, or enclosure used to provide lodging accommodations for the public shall be kept in good repair, and so maintained as to promote the health, comfort, safety, and well-being of persons accommodated.

Source: 5408 (2023).

13-1404.2 - There shall be at least one parking spot provided for each lodging room in a lodging establishment and for all staff. The parking lot and all property used in connection with the lodging establishment shall be kept free of litter and refuse. Also, the walking and driving surfaces of all exterior areas shall be surfaced with concrete or asphalt or a similar material effectively treated to facilitate maintenance and minimize dust. These surfaces shall be graded to prevent pooling. Only articles necessary for the operation and maintenance of the lodging establishment shall be stored on the premises.

Source: 5408 (2023).

13-1404.3 - Outside openings shall be protected against the entrance of insects and rodents by tight fitting, self-closing doors, closed windows, and screening or other approved means. Screen doors shall be self-closing, and screens for windows, doors, skylights, intake and exhaust air ducts and other openings to the outside shall be tight fitting and free of breaks or holes. Screening materials shall not be less than sixteen mesh to the inch.

Source: 5408 (2023).

13-1405. Restrooms and handwashing facilities.--

13-1405.1 - All public restrooms shall be provided with mechanical ventilation, self-closing doors, and proper handwashing facilities. The handwashing sink shall be equipped with self-dispensing soap and self-dispensing disposable towels or a hand drying device providing heated air and a suitable waste receptacle. Handwashing sinks shall also provide hot and cold water tempered by means of a mixing valve or combination faucet. Hot water shall not exceed one hundred twenty degrees (120°F). Any self-closing, slow closing, or metering faucet shall be designed to provide a flow of water for at least fifteen seconds without the need to reactivate the faucet.

Source: 5408 (2023).

13-1405.2 - Restroom facilities shall be conveniently located and shall be accessible to employees and guests at all times.

Source: 5408 (2023).

13-1405.3 - Handwashing facilities, soap dispensers, hand drying devices and all related fixtures shall be kept clean and in good repair.

13-1405.4 - Walls, floors, and ceilings in restrooms shall be constructed of smooth, easily cleanable materials and shall be kept clean and in good repair.

Source: 5408 (2023).

13-1406. Guest rooms.--

13-1406.1 - Walls, floors, and ceilings in guest rooms shall be constructed of smooth easily cleanable materials and shall be kept clean and in good repair. This includes furniture, drapes, curtains, lamp shades, carpeting and all other fixtures.

13-1406.2 - All beds, bunks, cots, and other sleeping places provided for guests in lodging establishments shall be supplied with suitable pillow slips and top sheets. All bedding including mattresses, quilts, blankets, pillows, sheets, spreads and all bath linen shall be kept clean. No bedding, including mattresses, quilts, blankets, pillows, bed and bath linen shall be used which are worn out or unfit for further use. Pillow slips, sheets, and bath linen after being used by one guest shall be washed before they are used by another guest, so a clean set is furnished after each succeeding guest. For any guest occupying a guest room for an extended period of time, a fresh set of sheets and pillow slips shall be furnished at least once each week, and at least two clean towels per guest each day if they are requested.

Source: 5408 (2023).

13-1406.3 - Each lodging establishment must provide toilet, handwashing, and bathing facilities for its guests. There must be a ratio of 1 toilet and bathing facility for every 8 guests. These facilities must be maintained in good repair and cleaned at least between stays of different guests. All toilet and bathing facilities must also be well ventilated. An area is well ventilated when excessive heat, odors, fumes, vapors, smoke, or condensation is reduced to a negligible level and barely perceptible to the normal senses.

Source: 5408 (2023).

13-1406.4 - All guest rooms must have a heating system able to maintain a minimum temperature of 67°F.

13-1406.5 - The doors of all guest rooms used for sleeping in any lodging establishment shall be equipped with proper bolts or locks to permit the occupants to lock or bolt such doors securely from within the rooms. Such bolts or locks shall be constructed in a manner which will render it impossible to unbolt or unlock the door from the outside.

Source: 5408 (2023).

13-1407. Interior construction.--

13-1407.1 Walls, floors, and ceilings in hallways, lobbies, and laundry rooms shall be constructed of smooth easily cleanable materials and shall be kept clean and in good repair.

Source: 5408 (2023).

13-1407.2 All laundry rooms and any other rooms used to store linen, cribs, roll away beds, food, or food service equipment must shield all lights or use shatterproof bulbs.

13-1408. Water supply.--

13-1408.1 - A safe adequate supply of potable water with both hot and cold under pressure shall be provided in all bathrooms and toilets.

13-1408.2 - Guest room glasses must be single service or multi use glasses that are cleaned and sanitized between each different guest.

13-1408.3 - Self-service ice provided for guests must be dispensed through the use of self-dispensing ice machines or prepackaged from an approved source. Self-service ice storage bins are not acceptable for guest use and must be kept in areas not accessible to guests. All self-dispensing ice machines shall be cleaned and sanitized internally every quarter (3 months).

Source: 5408 (2023).

13-1409. Plumbing.-- All plumbing shall be properly maintained and meet all state and local plumbing codes.

13-1410. Garbage/Refuse disposal.--

13-1410.1 - All liquid wastes shall be disposed of in an approved public sewage system.

13-1410.2 - Prior to removal, all garbage and refuse stored within the premises shall be kept in watertight, nonabsorbent receptacles which are covered with close fitting lids to prevent access to birds, rodents, and other vermin. These garbage receptacles shall be kept in good repair.

13-1410.3 - All garbage, trash, and refuse shall be removed from the premises frequently to prevent nuisance and unsightly conditions and shall be disposed of in a sanitary manner.

Source: 5408 (2023).

13-1411. Miscellaneous.--

13-1411.1 - All cleaning operations must be conducted in a manner that minimizes contamination of the facility. Cleaning equipment, supplies, insecticides, paints, and other toxic materials must be stored properly. They may not be stored above or next to linens, food, or food service equipment. All cleaners, sanitizers, and disinfectants must comply with 21 CFR section 178.1010. An ingredient label and "direction for use" label on each chemical being used must be readily available for reference or inspection. All containers used for dispensing these chemicals must be prominently and distinctively labeled for identification of contents.

13-1411.2 - Every lodging establishment shall be constructed, maintained, and equipped to prevent the entrance, harborage, or breeding of flies, roaches, bedbugs, rats, mice, and all other insects and vermin. They must also have means necessary to eliminate such pests such as cleaning, renovation, or fumigation. The health department may order the facility to hire a licensed exterminator to exterminate pests when:

A. The infestation is so extensive that it is unlikely that a nonprofessional can eradicate the pests effectively.

B. The extermination method of choice can only be carried out by a licensed exterminator.

C. Upon reinspection it is found that the establishment has not been brought into compliance with a prior order to rid the establishment of pests.

Source: 4759 (2010), 5408 (2023).

ARTICLE 13-15

AMBULANCE SERVICE

Section

13-1501 Definitions.
13-1502 City May Provide Services.
13-1503 Agreement Required.
13-1504 Suspension and Revocation.
13-1505 Not Applicable to Operators Outside City Limits.

13-1501. Definitions:--In this chapter, unless the context otherwise requires:

"Ambulance" means a motor vehicle which is specially designed, constructed, equipped and staffed to provide basic, intermediate or advanced care for one or more.

"Ambulance service" means the emergency medical care and transport, the non-emergency medical care and transport service, including inter-facility ambulance transport service, or both, which are provided to patients utilizing an ambulance with appropriately licensed personnel. The term "ambulance service" does not include the use of vehicles for nonmedically supervised patient transport service, air ambulance service or special event medical service transports.

13-1502. City May Provide Services.--Pursuant to Section 23-12-08, N.D.C.C., the city may establish, maintain, contract for or otherwise provide ambulance services, provided that such services meet the minimum standards set forth in this chapter, and adopt such rules or regulations as may be necessary to regulate such services.

13-1503. Agreement Required.--No person may operate any ambulance service within the city unless all licensing requirements of the State of North Dakota have been met, they have been designated by the State as a licensed ambulance provider for the city and have entered into an agreement with the city approved by the board of commissioners.

13-1504. Suspension and Revocation.--Upon the giving of the notice hereinafter required, an ambulance service agreement may be suspended or revoked at any time by the board of city commissioners, without cause, by a 180 day advance written notice.

13-1505. Not Applicable to Operators Outside City Limits.--The provisions of this chapter do not apply to an operator of an ambulance service not located in the city that transports patients to or from locations outside the city; however, no operator may transport patients from one location within the city to another location within the city unless that operator has an agreement with the city, except for the duration of a lawfully declared state of emergency for the city.

Source: 4850 (2013).

ARTICLE 13-16

BOARDING FACILITIES

Section

13-1601 Definitions.
13-1602 Operation of a boarding facility--License required.
13-1603 Application; fee.
13-1604 License to operate boarding facility issued annually.
13-1605 Regulation, inspection and enforcement.
13-1606 Display of license--License nontransferable.
13-1607 Appeals.

13-1601. Definitions.--As used in this ordinance, unless the context otherwise indicates, the following definitions apply:

1. "Boarding facility" means any establishment, excluding private residences, operating for profit, where animals are kept, congregated, and/or housed, for a specific period, with the sole purpose of providing shelter and care of animals in return for a fee. A "Boarding Facility" does not include the temporary use of kennels by veterinarians, grooming establishments, or municipal pounds.

2. "Boarding operator" or "operator of a boarding facility" means any individual, firm, corporation, partnership, other business unit, society, association or other legal entity, or public or private institution which maintains, owns, or operates a boarding facility.

3. "Public health department" means Fargo Cass Public Health or any representative thereof.

Source: Ord. 5281 (2020).

13-1602. Operation of a boarding facility--License required.--It shall be unlawful to operate a boarding facility without a license issued by the public health department.

Source: Ord. 5281 (2020).

13-1603. Application; fee.--A boarding operator shall submit an application for a license to the public health department on a form provided by the public health department along with payment of a required license fee. License fees and fees for renewal thereof shall be established by resolution of the board of city commissioners. The application must include the name and complete mailing address and street address of the boarding facility along with any other information reasonably required by the public health department for the administration of this section.

Source: Ord. 5281 (2020).

13-1604. License to operate boarding facility issued annually.--The license hereof shall be issued annually, January 1, by the public health department after a passed inspection. All licenses under the provisions of this article, unless otherwise specifically provided, shall terminate on December 31 following the date of issuance. License renewal notices will be mailed by the city auditor's office effective January 1 of each year and shall expire on December 31 of said year.

Source: Ord. 5281 (2020).

13-1605. Regulation, inspection and enforcement.--The public health department is authorized to promulgate regulations creating minimum standards for boarding facilities, which regulations may be enforced by the public health department. In order to provide for the public health and safety, the public health department shall have authority to regulate and enforce the provisions stated herein concerning the use, operation, and maintenance of boarding facilities within the jurisdiction of such department. The public health department shall have the authority to enter upon the premises of the boarding facility and inspect the facility as often as necessary to confirm compliance with the provisions of this article. In the event of a failure to comply with the provisions of this article, after due notice thereof, the public health department shall have the power to abate or cause a suspension of the use of the boarding facility license until such time as the same is, in the opinion of the public health department, no longer a hazard to public health or safety.

Source: Ord. 5281 (2020).

13-1606. Display of license--License nontransferable.--A license issued pursuant to this article shall be displayed in a conspicuous location in the boarding facility for which the license is issued. A license issued pursuant to this article is non-transferable.

Source: Ord. 5281 (2020).

13-1607. Appeals.--Any person aggrieved by a decision of the health department or one of its officials including without limitation an order or denial of an order or by the denial of a license, may appeal such decision by filing a notice of appeal with the director of public health. Appeals of final decisions made pursuant to the procedures of this article must be filed within 10 days of the date of the decision. Said appeal must be in writing and shall be submitted to the director of public health. The board of city commissioners shall consider the appealed decision as a new matter in a public hearing and, at the close of the public hearing, act to affirm or reverse the original decision.

Source: Ord. 5281 (2020).

ARTICLE 13-17

BOULEVARD GARDENS

Section

13-1701 Definitions.
13-1702 Plantings Permitted.
13-1703 Raised Planting beds prohibited without permit.
13-1704 Public Works and utilities.
13-1705 Regulation, Inspection and enforcement.
13-1706 Private restrictions and covenants on property.

13-1701. Definitions.--As used in this ordinance, unless the context otherwise indicates, the following definitions apply:

1. "Boulevard" means the public right-of-way lying between the property line and sidewalk, and between the sidewalk and the roadway, or where no sidewalk exists, between the property line and the roadway.

2. "Drip line" shall mean an imaginary vertical line that extends from the outermost branches of a tree's canopy to the ground.
3. "Noxious weeds" means any species of plant or vegetation recognized by the North Dakota State Weed Board as a noxious weed.
4. "Public Health Department" means Fargo Cass Public Health or any representative thereof.

Source: Ord. 5309 (2021).

13-1702. Plantings Permitted.--

A. A property owner in the city shall be permitted to plant, care for and maintain gardens on the boulevards adjacent to their property, subject to the restrictions set forth below.

1. No garden shall be planted on the boulevard without written documentation that the property owner has contacted "North Dakota One-Call" for utility locations forty-eight (48) hours before digging, and has planned plantings which will not interfere with said utilities.
2. Plantings shall not exceed thirty-six (36) inches in height. Plantings within thirty (30) feet of an intersection, five (5) feet from a driveway or alley, and the three (3) foot radius around fire hydrants shall not exceed twenty-four (24) inches. Height shall be measured from the sidewalk to the top of the plant or from the top of the curb to the top of the plant. A raised planting bed is included in such measurement.
3. Plantings shall be maintained with no encroachment or overhang onto the adjacent sidewalk, curb, or street. The edge must be within one (1) foot of the outermost planting.
4. Any proposed planting or site disturbance with the dripline of an existing street tree(s) must be approved by the City Forester.
5. Plantings may include flowers, vegetables, native or turf grasses, and other plants, but in no event shall any noxious weed be planted or maintained.
6. Plantings with thorns, spines, or sharp ridged parts, as well as shrubs (evergreen or deciduous) or other woody plants are not allowed.
7. Shredded hardwood mulch shall be used around plants to prevent soil erosion and must not exceed the height of the adjacent curb.
8. River rock or similar aggregate material shall not be used. Boulders and structures such as retaining walls, fences and steps are prohibited.
9. Boulevard gardens shall only be permitted in areas of residential use in the city.

B. The current property owner shall be solely responsible for the maintenance of the boulevard garden. Maintenance at a minimum shall include:

1. Removal of noxious weeds or invasive plants;
2. Removal of accumulated sediment;
3. Removal of trash, leaves, grass clippings, or other debris; and
4. Repairing areas of bare soil or erosion.

C. A permit shall not be required for a boulevard garden.

Source: Ord. 5309 (2021).

13-1703. Raised Planting beds prohibited without permit.--

A. No property owner shall erect or maintain a raised planting bed on the boulevard unless granted a permit by the public health department. If the raised planting bed

is four (4) inches or less, a permit shall not be required. The public health department may impose reasonable conditions upon issuance of the permit and the performance of the property owner thereunder to protect the health, safety, and welfare or when necessary to protect the boulevard and its current use. The public health department shall issue said permit for a period not to exceed one year, subject to annual renewal thereof. The initial permit shall automatically expire at the end of the initial calendar year and, thereafter, renewals of said permit shall extend for calendar-year periods.

A permit for a raised planting bed may be revoked or suspended by the public health department upon a finding that the permit was issued under false pretenses or for any violation of this article following written notice or, upon request for renewal, the renewal permit may be refused by the public health department. The permittee may appeal the revocation, suspension or refusal of renewal of the permit by timely request for a hearing before the public health department. The request for hearing must be either postmarked or received by the public health department within seven (7) days of the notice. The public health department shall hold a hearing on the permittee's request for hearing and shall render a decision on the matter after said hearing. The decision of the public health department may be further appealed to the board of city commissioners by filing a timely notice of appeal of the decision of the public health department with the city auditor. The notice of appeal must be either postmarked or received in the city auditor's office within seven (7) days of the date of the decision of the public health department.

B. In addition to obtaining said permit and subject to the restrictions set forth in Section 13-0702, a property owner may erect and maintain a raised planting bed on the boulevard provided the owner complies with the additional restrictions set forth below.

1. Insurance required. The property owner must maintain general liability insurance at all times during the term of the raised planting bed permit. Proof of insurance must be provided to the public health department with a Certificate of Liability Insurance describing the limits of coverage and naming the City of Fargo as an additional insured party. If the raised bed is four (4) inches or less, proof of insurance shall not be required.

2. Size and height. A raised planting bed shall not be larger than four (4) feet wide by eight (8) feet long, or a total area of thirty-two (32) square feet. The raised planting bed shall not be higher than twelve (12) inches.

3. Setbacks. A raised planting bed shall be located at a minimum of two (2) feet from the edge of the sidewalk, two (2) feet from the edge of the alleyway or driveway, two (2) feet from the neighboring adjacent boulevard, and three (3) feet from the curb of the street.

4. Material. Permanent material, such as concrete, shall not be used.

Source: Ord. 5309 (2021).

13-1704. Public Works and utilities.--Notwithstanding the foregoing, all such boulevards remain public property and subject to the right of the city and private utility companies

to perform necessary work, to plant, trim and otherwise maintain trees, to access utilities and store excess snow. In the event the city interferes with boulevard plantings in the course of such work, it shall be responsible only to restore the boulevard to the original grassy state. In no event shall the city or private utility company be liable for any damage to, disruption of or removal of plantings, either direct or indirect, as a result of the city or private utility company, their employees, agents or contractors performing any installation, maintenance or repairs. Further, the city shall have the right to remove or restrict any plantings that are deemed to interfere with the safety of pedestrians and motorists without notice.

Source: Ord. 5309 (2021).

13-1705. Regulation, Inspection and enforcement.--In order to provide for the public health and safety, the public health department shall have authority to enforce the provisions stated herein concerning the use and maintenance of boulevard gardens within the jurisdiction of such department. For any property deemed to be in violation, the public health department shall give notice of the alleged violation to the property owner to remove or abate the nuisance within a time specified by the public health department not exceeding thirty (30) days. The public health department may additionally determine whether a planting otherwise in compliance with this article nonetheless poses a nuisance of hazard, in the opinion of the public health department, and may take action to abate such nuisance or hazard. If the property owner fails to comply with the notice to remove or abate or if the property owner cannot be found, the public health department may remove or destroy the nuisance, which shall charge the expense against the parcel of land on which the work is done.

Source: Ord. 5309 (2021).

13-1706. Private restrictions and covenants on property.--Notwithstanding the issuance of a permit by the public health department, private restrictions or covenants on the use of property shall remain enforceable and take precedence over a permit. Private restrictions include, but are not limited to, deed restrictions, condominium master deed restrictions, neighborhood association by-laws, covenant declarations and deed restrictions. A permit issued to a property owner whose premises is subject to private restrictions or covenants that prohibit boulevard gardens or raised planting beds is void. The interpretation and enforcement of the private restriction is the sole responsibility of the private parties involved.

Source: Ord. 5309 (2021).

ARTICLE 13-18

MASSAGE THERAPY ESTABLISHMENTS

Section

13-1801 Definitions.
13-1802. License to operate massage therapy establishment issued annually--Fee; application, investigation.
13-1803 Display of license--License non-transferable.
13-1804 List of employees required.
13-1805 Regulation, inspection and enforcement.
13-1806 Licenses--Non-renewal, suspension, or revocation of license.

13-1807 Operation of a massage therapy establishment--Violations.

13-1801. Definitions.--As used in this ordinance, unless context otherwise indicates, the following definitions shall apply:

1. "Massage" means the practice of massage therapy by the manual application of a system of structured touch to the soft tissues of the human body, including:

   a. Assessment, evaluation, or treatment;

   b. Pressure, friction, stroking, rocking, gliding, kneading, percussion, or vibration;

   c. Active or passive stretching of the body within the normal anatomical range of movement;

   d. Use of manual methods or mechanical or electrical devices or tools that mimic or enhance the action of human touch;

   e. Use of topical applications such as lubricants, scrubs, or herbal preparations; and

   f. Use of hot or cold applications.

   Except as provided in this chapter, "massage" does not include diagnosis or other services that require a license to practice medicine or surgery, osteopathic medicine, chiropractic, occupational therapy, physical therapy, or podiatry and does not include services provided by professionals who act under their state-issued professional license, certification, or registration.

2. "Massage therapy establishment" means any person as defined in this article, holding itself out as providing massage therapy services to the public for a fee or other form of remuneration. The term shall not include the following activities:

   a. Any individual who provides massage therapy in the dwelling unit in which the individual resides, provided that all of the following conditions are met:

      i. no more than 25 percent of the floor area of the dwelling unit is used as a place of work;

      ii. no employees of the resident come to the dwelling unit site;

      iii. no more than four (4) customers per day or more than twelve (12) customers per week come to the dwelling unit site;

      iv. massage therapy services are limited to hours of 7:00 a.m. to 9:00 p.m.; and

v. no more than one (1) customer is permitted on the dwelling unit site at any given time.

b. Schools that furnish massage services to their student athletes;

c. Any student of a school of massage who is practicing massage in the course of fulfilling a required massage therapy practicum under the direct supervision of a licensed massage therapist or in the course of participating in a school-supervised student massage clinic under the direct supervision of a licensed massage therapist, a school may charge a fee and students may accept tips under a policy set by the school. Students may practice homework unsupervised on other students, family or friends, but no fee or tip may be charged or accepted. These massages may only be performed at the school or at the residence of the student, family member, or friend;

d. Any individual who is engaged in a profession or occupation for which the individual is licensed by this state, as long as the individual's activities are performed in the course of a bona fide practice of the individual's profession or occupation and as long as the individual does not represent to the public that the individual is a massage therapist or is engaged in the practice of massage and does not perform massage while working in a massage therapy establishment;

e. A health spa or similar business to the extent the spa or business is performing superficial applications used for beautification or health of the skin, including salt glows and contouring;

f. Any individual instructor demonstrating massage techniques as a component of a board-approved seminar; and

g. Any individual practicing healing by manipulating the energy field or the flow of energy of the human body by means other than the manipulation of the soft tissues of the body, provided that the individual's services are not designated or implied to be massage or massage therapy. For purposes of this subsection, a light touch or tap is not a manipulation of the soft tissues of the human body.

3. "Person" means any individual, partnership, corporation or limited liability company or other lawful business entity.

4. "Massage therapist" means an individual licensed to practice massage by the board.

5. "Board" means the North Dakota Board of Massage Therapy.

6. "Public health department" means Fargo Cass Public Health or any representative or designee thereof.

Source: 5330 (2021), 5411 (2023).

13-1802. License to operate massage therapy establishment issued annually--Fee; application, investigation.--No person shall operate a massage therapy establishment without first applying for and obtaining a license issued by the public health department. The license shall be subject to all the terms and conditions of this article and any other approved regulations as provided in this article. The initial application for a license shall extend from the date of issuance until year-end. Thereafter, the massage therapy establishment license may be renewed annually, January 1, by the director of public health. The fee for an initial license and any renewal thereof shall be as established by resolution of the board of city commissioners, and applicants shall complete an application form furnished by the public health department. A license shall apply only to the premises described in the application, and in the license issued thereon, and only one location shall be so described in each license.

The chief of police or their designee shall investigate the facts stated in the application and shall report the results of the investigation to the public health department prior to the issuance of a license. Said investigation shall include the character, reputation, and fitness of the applicant to hold a license, or any other pertinent information as to whether such license should be granted. Upon satisfaction of compliance with all license requirements, the massage therapy establishment license shall be issued.

Source: 5330 (2021), 5411 (2023).

13-1803. Display of license--License non-transferable.--A license issued pursuant to this article shall be displayed in a conspicuous location in the massage therapy establishment for which the license is issued. A license issued pursuant to this article is non-transferable.

Source: 5330 (2021).

13-1804. List of employees required.--The licensee shall maintain a written list of names and current addresses of all employees and to supply the public health department with said list. Said list shall be shown to the public health department or its designee, upon request. The licensee shall provide updated such list on at least a monthly basis to keep the public health department apprised of any changes in the list of current employees.

Source: 5330 (2021).

13-1805. Regulation, inspection and enforcement.--In order to provide for the public health and safety, the public health department may promulgate regulations creating minimum standards for massage therapy establishments, which regulations may be enforced by the director of public health, chief of police, or any officer of the health or police department. Said regulations shall be approved by resolution of the board of city commissioners.

The director of public health, chief of police, or any officer of the health or police department may, at any time, enter upon any licensed premises for the purpose of a health inspection or to determine whether the licensed premises are in compliance with any and all ordinances of the city. This section shall not restrict or limit the right of entry vested in any law enforcement agency. In the event of a failure to comply with the provisions of this article, after

due notice thereof, the public health department shall have the power to abate or cause a suspension of the use of the massage therapy establishment license until such time as the same is, in the opinion of the director of public health, no longer a hazard to public health or safety.

Source: 5330 (2021).

13-1806. Licenses--Non-renewal, suspension, or revocation of license.--All licenses issued under the provisions of this article, unless otherwise specifically provided, shall terminate on December 31 following the date of issuance; provided, however, that any license issued under the provisions of this article may, under certain circumstances, be suspended, revoked, or not renewed by the director of public health.

A. The director of public health may suspend, revoke, or not renew a massage therapy establishment license for any of the following reasons:

1. A violation related to fraud, misrepresentation, or false statement contained in a license application or a renewal application;

2. A violation related to fraud, misrepresentation, or false statement made in the course of carrying on the licensed occupation or business;

3. The licensee has been convicted of a felony under the laws of the United States or any state;

4. Conducting the licensed business or occupation in an unlawful manner or in such a manner as to constitute a breach of the peace or to constitute a menace to the health, safety, or general welfare of the community;

5. If the owner, manager, lessee or any of the employees are found to be in control or in possession of an alcoholic beverage, a narcotic drug or controlled substance on the premises, other than drugs which may be purchased over the counter without a prescription or those for which the individual has a prescription;

6. If the licensee fails to maintain with the issued authority a current list of all employees of such licensed premises or fails to produce the list upon request;

7. If the licensee refuses or restricts access to the massage therapy establishment for purposes of an inspection; or

8. If the licensee employs anyone other than a duly-licensed massage therapist to administer one or more massages on the licensed premises.

B. The grounds enumerated in this section shall not be deemed to be exclusive, and any license issued under the provisions of this article may be suspended or revoked for any other reason deemed to be sufficient in order to promote and protect the public health, safety, morals and general welfare of the people of the city of Fargo.

C. No license under the provisions of this article shall be suspended or revoked for cause by the director of public health without a public hearing. In the event that the director of public health intends to consider the suspension or revocation of any license for cause, it shall notify the licensee of its intention to consider the same. The notice shall specify the time and place of the suspension or revocation hearing and shall be served upon the licensee or its managing agent in the same manner as provided by law for the service of a summons in a civil action. No suspension or revocation hearing shall be held before the expiration of 10 days after the date of the service of the notice upon the licensee.

If, upon such hearing, it appears to the director of public health that sufficient cause exists for the suspension or revocation of a license issued pursuant to the provisions of this article, the director of public health shall make its order suspending or revoking said license.

D. An order suspending or revoking a license pursuant to the provisions of this article may be appealed to the board of city commissioners. The licensee must give written notice of its intent to appeal the order of suspension or revocation to the board of city commissioners no later than 10 days of the date of the decision. The board of city commissioners shall consider the appealed decision in a public hearing and, at the close of the public hearing, shall act to affirm or reverse the original decision.

E. The director of public health or its designee may immediately suspend a license, if the licensee, or any person working on behalf of the licensee, is determined to be conducting business in an unlawful manner, any manner that constitutes a substantial hazard to the health, safety, or general welfare of the public, or after repeated complaints received regarding unlawful conduct of the business practices or method of solicitation. The licensee will be given notice of the immediate suspension on site, and the suspension will take place immediately. The licensee may request a hearing within 10 days of notice of the suspension and the hearing procedure will be the same as set forth in Subsection D, aforementioned.

Source: 5330 (2021), 5411 (2023).

13-1807. Operation of a massage therapy establishment--Violations.--It shall be a violation of this ordinance for any person to:

1. Operate as a massage therapy establishment in the city of Fargo without a license issued by the public health department;

2. Employ, as a massage therapy establishment, anyone other than a duly-licensed massage therapist to administer one or more massages on the licensed premises;

3. Fail or refuse to a request by the public health department or its designee of the massage therapy establishment's list of names and current addresses of all employees;

4. Fail or refuse to grant access for purposes of inspection of the massage therapy establishment upon lawful request by the director of public health, chief of police, or any officer of the health or police department; or

5. Provide false information on a license or renewal application, knowing or having reason to believe that such information is false.

Source: 5330 (2021).

CHAPTER 14

DAIRY PRODUCT REGULATION

Article
14-01 Soft Serve Freezing/Dispensing Machines.

ARTICLE 14-01

SOFT SERVE FREEZING/DISPENSING MACHINES

Section
14-0101 Definitions.
14-0102 Sanitizing and testing of freezing/dispensing machines.
14-0103 Labeling.
14-0104 License.
14-0105 License revocation or suspension.
14-0106 Sale of nonconforming products prohibited.
14-0107 Exemptions.
14-0108 License fees.

14-0101. Definitions:--

1. "Commissary" means any place, premise or establishment in which soft serve freezing/dispensing machines manufacture, store, and sell soft serve dairy and nondairy frozen dessert products.

2. "Dispensing only machine" means a machine that does not mix or freeze a mixture but which only dispenses a prepackaged ready-to-use soft serve dessert product.

3. "Laboratory" means a biological, physical or chemical laboratory which is under the supervision of the state or local health authority.

4. "License" means a written authorization to operate issued by the public health department.

5. "Manufacturer" means any establishment operating a soft serve freezing/dispensing machine.

6. "Public health department" shall mean Fargo Cass Public Health, or any name by which such department shall be known hereafter, and its authorized representatives.

7. "Soft serve" means the frozen combination of two or more ingredients used in the manufacture of soft serve dairy or nondairy dessert products, with or without fruit, fruit juices, candy, nuts, meats, flavoring, or coloring.

8. "Soft serve freezing/dispensing machine" means any mechanically operated freezing/dispensing machine used to produce a partially frozen dairy or nondairy dessert product combination of two or more of the following: milk or milk products, edible oil or fat, eggs or egg products, sugar, water, fruit or fruit juices, flavoring, candy, coloring, or stabilizer, and includes, but is not limited to, soft serve desserts, ices, novelties, or other similar products.

9. "Soft serve mix" means the unfrozen combination of two or more ingredients used in the manufacture of soft serve dairy and nondairy dessert products.

Source: 1952 Rev. Ord. 14-0101, 1952 Rev. Ord. 14-0104, 1952 Rev. Ord. 1012 (1957), 1952 Rev. Ord. 1144 (1963), 1965 Rev. Ord. 14-0102, 1965 Rev. Ord. 14-0103, 1965 Rev. Ord. 14-0203, 1965 Rev. Ord. 14-0302, 940 (1955), 1025 (1958), 1240 (1967), 1267 (1968), 1449 (1972), 1534 (1973), 1533 (1973), 1535 (1973), 4375 (2004).

14-0102. Sanitizing and testing of freezing/dispensing machines.--Soft serve freezing/dispensing machines must be cleaned and sanitized as often as necessary to maintain the quality of the frozen product. The Director of Public Health may establish required frequency and methods for sampling and testing of soft serve freezing/dispensing machines and the acceptable standards for sanitary conditions to be approved by resolution of the board of city commissioners. The licensee of the soft serve freezing/dispensing machines shall be responsible for maintaining sanitary conditions of the soft serve freezing/dispensing machines in compliance with said approved standards. Soft serve freezing/dispensing machines shall be made available for testing by the Public Health Department during business hours for testing and determination of compliance with approved standards. If, after sampling, a soft serve freezing/dispensing machine is out of compliance according to the Public Health Department, the operation of the machine may be immediately suspended until it meets the applicable Public Health Department standards.

Source: 1952 Rev. Ord. 14-0101, 1952 Rev. Ord. 14-0104, 1952 Rev. Ord. 1012 (1957), 1952 Rev. Ord. 1144 (1963), 1965 Rev. Ord. 14-0102, 1965 Rev. Ord. 14-0103, 1965 Rev. Ord. 14-0203, 1965 Rev. Ord. 14-0302, 940 (1955), 1025 (1958), 1240 (1967), 1267 (1968), 1449 (1972), 1534 (1973), 1533 (1973), 1535 (1973), 4375 (2004), 5035 (2016).

Editor's note—Section 1 of Ord. No. 5035, adopted June 6, 2016, repealed and reenacted § 14-0102 as herein set out, retitling the catchline from "Sanitizing machines and examination of product" to read as herein set out.

14-0103. Labeling.--All soft serve dairy/nondairy products that are not sold at the point of manufactured origin must be properly labeled according to the current Food and Drug Administration guidelines.

Source: 1952 Rev. Ord. 14-0101, 1952 Rev. Ord. 14-0104, 1952 Rev. Ord. 1012 (1957), 1952 Rev. Ord. 1144 (1963), 1965 Rev. Ord. 14-0102, 1965 Rev. Ord. 14-0103, 1965 Rev. Ord. 14-0203, 1965 Rev. Ord. 14-0302, 940 (1955), 1025 (1958), 1240 (1967), 1267 (1968), 1449 (1972), 1534 (1973), 1533 (1973), 1535 (1973), 4375 (2004).

14-0104. License.--It shall be unlawful for any person who does not possess a valid license from the public health department to sell, store, or offer for sale any soft serve machine dairy/nondairy dessert product.

Source: 1952 Rev. Ord. 14-0101, 1952 Rev. Ord. 14-0104, 1952 Rev. Ord. 1012 (1957), 1952 Rev. Ord. 1144 (1963), 1965 Rev. Ord. 14-0102, 1965 Rev. Ord. 14-0103, 1965 Rev. Ord. 14-0203, 1965 Rev. Ord. 14-0302, 940 (1955), 1025 (1958), 1240 (1967), 1267 (1968), 1449 (1972), 1534 (1973), 1533 (1973), 1535 (1973), 4375 (2004).

14-0105. License revocation or suspension.--A license, as required by this chapter, may be suspended by the public health department upon the violation by the licensee of any part of this chapter. Any person whose license has been suspended shall immediately discontinue

operation of the soft serve machine until the defects that caused the suspension have been corrected. Following correction, the applicant may request reinstatement of the license by the public health department. The public health department may require the license holder to demonstrate proper cleaning procedures and maintenance of the soft serve freezing/dispensing machine before reinstating the license.

Source: 1952 Rev. Ord. 14-0101, 1952 Rev. Ord. 14-0104, 1952 Rev. Ord. 1012 (1957), 1952 Rev. Ord. 1144 (1963), 1965 Rev. Ord. 14-0102, 1965 Rev. Ord. 14-0103, 1965 Rev. Ord. 14-0203, 1965 Rev. Ord. 14-0302, 940 (1955), 1025 (1958), 1240 (1967), 1267 (1968), 1449 (1972), 1534 (1973), 1533 (1973), 1535 (1973), 4375 (2004), 5035 (2016).

14-0106. Sale of nonconforming products prohibited.--No mix or soft serve dairy/nondairy dessert shall be sold within the city unless such mix or soft serve dairy/nondairy dessert product has been manufactured and frozen in conformity with the requirements of this article. Milk and any milk product that is used in the manufacture of ice cream, frozen dairy dessert, frozen dessert, or sherbet shall be pasteurized. Ice cream mix, frozen dairy dessert mix, and frozen dessert mix are unfrozen products that are used in the manufacture of ice cream, frozen dairy dessert, or frozen dessert. They shall comply with all requirements for ice cream, frozen dairy dessert, or frozen dessert, respectively.

Source: 1952 Rev. Ord. 14-0101, 1952 Rev. Ord. 14-0104, 1952 Rev. Ord. 1012 (1957), 1952 Rev. Ord. 1144 (1963), 1965 Rev. Ord. 14-0102, 1965 Rev. Ord. 14-0103, 1965 Rev. Ord. 14-0203, 1965 Rev. Ord. 14-0302, 940 (1955), 1025 (1958), 1240 (1967), 1267 (1968), 1449 (1972), 1534 (1973), 1533 (1973), 1535 (1973), 4375 (2004).

14-0107. Exemptions.--The soft serve freezing/dispensing machine program is concerned with the manufacture and freezing of soft serve frozen desserts, including both dairy and nondairy products. The public health department has determined that establishments freezing/dispensing nondairy ice beverage products exclusively, such as water ices, slush, frozen cappuccino, etc., or serving hard hand-dipped ice cream, or dispensing only machines which dispense a prepackaged ready-to-use frozen dessert do not require a soft serve freezing/dispensing machine license.

Source: 1952 Rev. Ord. 14-0101, 1952 Rev. Ord. 14-0104, 1952 Rev. Ord. 1012 (1957), 1952 Rev. Ord. 1144 (1963), 1965 Rev. Ord. 14-0102, 1965 Rev. Ord. 14-0103, 1965 Rev. Ord. 14-0203, 1965 Rev. Ord. 14-0302, 940 (1955), 1025 (1958), 1240 (1967), 1267 (1968), 1449 (1972), 1534 (1973), 1533 (1973), 1535 (1973), 4375 (2004).

14-0108. License fees.--Any person, firm or corporation that operates a soft serve freezing/dispensing machine shall pay a yearly license fee in an amount which shall be established by resolution of the board of city commissioners. All such fees shall be paid to the city treasurer by the person, firm, or corporation licensed to operate a soft serve freezing/dispensing machine as defined in this ordinance, said fees to be paid before the license is issued.

Source: 1952 Rev. Ord. 14-0101, 1952 Rev. Ord. 14-0104, 1952 Rev. Ord. 1012 (1957), 1952 Rev. Ord. 1144 (1963), 1965 Rev. Ord. 14-0102, 1965 Rev. Ord. 14-0103, 1965 Rev. Ord. 14-0203, 1965 Rev. Ord. 14-0302, 940 (1955), 1025 (1958), 1240 (1967), 1267 (1968), 1449 (1972), 1534 (1973), 1533 (1973), 1535 (1973), 4375 (2004).

CHAPTER 15

CIVIL RIGHTS

Article
15-01 Commission on the Status of Women, §§ 15-0101 to 15-0104.
15-02 Human Rights Commission, §§ 15-0201 to 15-0206.

ARTICLE 15-01

COMMISSION ON THE STATUS OF WOMEN

Section
15-0101 Creation of commission on status of women.
15-0102 Number of members--Term of members--Appointment of members--Filling vacancies.
15-0103 Powers and duties of commission.
15-0104 Commission advisory in nature.

15-0101. Creation of commission on status of women.--There is hereby created and established a body to be known as the commission on the status of women, whose purpose is to assist in the demolition of prejudices and customs which act as barriers to the full partnership of women employed by the city of Fargo.

Source: 1965 Rev. Ord. 15-0101, 1616 (1974).

15-0102. Number of members--Term of members--Appointment of members--Filling vacancies.--The commission on the status of women shall consist of seven members, who shall be appointed by the president of the board of city commissioners, subject to confirmation by the board of city commissioners. The terms of office of such commissioners shall be as follows, to-wit: two members who shall serve until July 1, 1975; two members who shall serve until July, 1, 1976; two members who shall serve until July 1, 1977; and one member who shall also be a member of the civil service commission and whose term shall coincide with his or her term as a member of such civil service commission. At the expiration of the terms of the members as aforesaid, members shall be appointed for three-year terms, except that the term of member serving jointly on the civil service commission and the commission on the status of women shall coincide with his or her term as a member of the civil service commission. If a vacancy occurs otherwise than by expiration of a term, it shall be filled by appointment for the unexpired portion of the term. Notwithstanding the expiration of a member's term, such member may serve until his or her successor has been appointed and qualified.

Source: 1965 Rev. Ord. 15-0102, 1616 (1974).

15-0103. Powers and duties of commission.--The commission on the status of women may, by or on behalf of employees of the city, receive or initiate complaints alleging violation of equal opportunity legislation and may investigate and hold hearings on such complaints. Upon completion of such investigation and after hearing thereon, the commission shall prepare a written report indicating its findings and recommendations and shall forward such

report to the civil service commission and the board of city commissioners of the city of Fargo. The commission may, in its discretion, assist aggrieved employees other than employees of the city of Fargo, but such assistance shall consist of information and guidance and any findings or determinations of said commission shall not be binding, and may not be utilized as evidence in any civil or criminal litigation.

Source: 1965 Rev. Ord. 15-0103, 1616 (1974).

15-0104. Commission advisory in nature.--The commission on the status of women shall be advisory in nature and shall submit all reports and determinations to the civil service commission and board of city commissioners of the city of Fargo. Final authority shall be in the board of city commissioners.

Source: 1965 Rev. Ord. 15-0104, 1616 (1974).

ARTICLE 15-02

HUMAN RIGHTS COMMISSION

Section

15-0201 Creation of Human Rights Commission.
15-0202 Number of Members--Term of Members--Appointment of Members--Filling Vacancies.
15-0203 President of commission--Meetings--Record to be kept.
15-0204 Goals of the Human Rights Commission.
15-0205 Powers and Duties of Commission.
15-0206 Commission advisory in nature.

15-0201. Creation of Human Rights Commission.--There is hereby created and established a body to be known as the Human Rights Commission, whose purpose is to promote the acceptance and respect for diversity through educational programs and activities and to discourage all forms of discrimination on the basis of race, color, religion, sex, national origin, age, the presence of any mental or physical disability, status with regard to marriage or public assistance, participation in lawful activity off the employer's premise during nonworking hours which is not in direct conflict with the essential business-related interests of the employer or sexual orientation.

Source: 4081 (2000), 5338 (2022).

15-0202. Number of Members--Term of Members--Appointment of Members--Filling Vacancies.--The Human Rights Commission shall consist of eleven members, who shall be appointed by the president of the board of city commissioners, subject to confirmation by the Board of City Commissioners. The terms of office of such commissioners shall be as follows, to wit: three members who shall serve until July 1, 2021; four members who shall serve until July 1, 2022; and four members who shall serve until July 1, 2023. At the expiration of the terms of the members as aforesaid, members shall be appointed for three-year terms. If a

vacancy occurs otherwise then by expiration of a term, it shall be filled by appointment for the unexpired portion of the term. Notwithstanding the expiration of a member's term, such member may serve until his or her successor has been appointed and qualified.

Source: 4081 (2000), 5338 (2022).

15-0203. President of commission--Meetings--Record to be kept.--The Human Rights Commission shall elect its president for a term of one year from among the appointed members and shall hold regular monthly meetings. The commission shall keep a record of its resolutions, findings and the determinations and such record shall be a public record. The commission may appoint such subcommittees from among the appointed members as it may be necessary for its work.

Source: 4081 (2000), 5338 (2022).

15-0204. Goals of the Human Rights Commission.--The goals of the Human Rights Commission are:

A. To provide leadership in the areas of civil rights.

B. To encourage and educate the public in the promotion of civil rights.

C. To identify issues of principal concern to members of the community in the area of civil rights and to recommend priorities and objectives to the board of city commissioners.

D. To encourage adherence to federal and state laws regarding civil rights, including Chapter 14-02.4 of the North Dakota Century Code, through education, conciliation and mediation.

Source: 4081 (2000), 5338 (2022).

15-0205. Powers and Duties of Commission.--The Human Rights Commission shall:

A. Recommend to the board of city commissioners, from time to time, action and programs in furtherance of the purpose of the Human Rights Commission as described in this article.

B. Consult and advise with public officials and agencies and with private individuals and organizations to provide education regarding civil rights. The commission may, in its discretion, assist aggrieved individuals, but such assistance shall consist of information, guidance and, in its discretion, conciliation and mediation services.

Source: 4081 (2000), 5338 (2022).

15-0206. Commission advisory in nature.--The Human Rights Commission shall be advisory in nature and shall submit all reports and determinations to the board of city commissioners of the city of Fargo. Final authority shall be in the board of city commissioners.

Source: 4081 (2000), 5338 (2022).

CHAPTER 16

WATERWORKS SYSTEM

Article

16-01 Water Services and Connections. §§ 16-0101 to 16-0118, 16-0120 to 16-0125 [§ 16-0119 Repealed].
16-02 Control and Regulation of Water Meters, §§ 16-0201 to 16-0217.
16-03 Water Service Rates, Bills and Accounts, §§ 16-0301 to 16-0308.
16-04 Fire Protection Services, §§ 16-0401 to 16-0412.
16-05 Other Rules and Regulations, §§ 16-0501 to 16-0509.
16-06 Application of Rules, § 16-0601.
16-07 Municipal Utilities Fund, §§ 16-0701 to 16-0704.
16-08 Water Utility Fund and Revenue Bonds, §§ 16-0801 to 16-0808.
16-09 Drought Response Measures,§§16-0901 to 16-0914.

ARTICLE 16-01

WATER SERVICES AND CONNECTIONS

Section

16-0101 Meaning of "water department" or "city water department".
16-0102 Water service connection--Permit required.
16-0103 Application for water service connection--Contents.
16-0104 Water service connection--Who to make--Cost.
16-0105 Services--Construction and maintenance.
16-0106 Restrictions on laying of pipes.
16-0107 Requirements of pipes.
16-0108 Other regulations governing construction and maintenance.
16-0109 Stopcocks on line of service.
16-0110 Depth of services--Curb stopcock required.
16-0111 Separate curb stopcocks required for each building.
16-0112 Stop boxes--Design--Control of--Use by plumbers.
16-0113 Stop boxes--Setting of.
16-0114 Curb shutoff--Keeping closed.
16-0115 Curb shutoff--Shutting off after completing test-- Exceptions.
16-0116 Installation and maintenance of service pipes and fixtures.
16-0117 Two or more consumers on one supply pipe--Failure to pay charge--Penalty.
16-0118 Two or more services on one shutoff--Turning on of water.
16-0119 Failure of consumer to locate and repair leaks--Repealed.
16-0120 Leaking of unused service pipe--Repairing or turning off.
16-0121 Abandoned service pipes--Permanently closed off--Permit for disconnection--Deposit--Refund.
16-0121.1 Failure to close off abandoned service pipes--Closing off by city--Liability of owner for expense.
16-0121.2 Expense of closing off to be charged as special assessments.
16-0122 Unlawful to disconnect, remove, or alter water fixtures without closing water connection and reporting same.

16-0123 Plumber's license may be revoked on failure to repair.
16-0124 Right to shut off water--Notice, when required--Claims against city.
16-0125 Leaks or defects in service--Twenty-four hours' notice of water shutoff.

16-0101. Meaning of "water department" or "city water department".--In this chapter the words "water department" or "city water department" shall mean the city of Fargo acting through its qualified officers.

Source: 1952 Rev. Ord. 16-0101.

16-0102. Water service connection--Permit required.--Plumbers shall first secure a permit from the city engineer's office before making any connection with a main, and no plumber or other person shall make any attachment or connection to a main to serve premises other than the premises described in the permit.

Source: 1952 Rev. Ord. 16-0102.

16-0103. Application for water service connection--Contents.--Applications for water service connections must be made to the city engineering department in writing by the owner or agent of the property to be served. Such application shall state the official house number or lot and block and addition of the premises to be served, the size of pipe required, and the approximate location where such service will enter the premises.

Source: 1952 Rev. Ord. 16-0103.

16-0104. Water service connection--Who to make--Cost.--Taps or connections to the water mains will be made by the water department for the plumber engaged by the applicant. Taps shall be paid for before they will be made. The fee for such taps shall be established by resolution of the board of city commissioners, except that connections larger than one and one-half inches in size will be made at the actual cost of labor and materials, plus 20% for overhead expenses. No taps or connections to the water mains shall be made by anyone except an authorized employee of the water department. All corporation stops, curb stops, and curb boxes shall be of a pattern approved by the water department.

Source: 1965 Rev. Ord. 16-0104, 1802 (1977).

16-0105. Services--Construction and maintenance.-- --All new services or larger replacement services, including the necessary pavement and sidewalk cuts and replacement thereof, shall be constructed by licensed plumbers engaged by the owner and at the owner's expense. The city water department repairs and maintains existing services between the corporation and the curb cock only. Any repairs or maintenance from the curb cock to the structure shall be the sole responsibility of the owner of the premises.

Source: 1952 Rev. Ord. 16-0105, 936 (1955), 5211 (2019).

16-0106. Restrictions on laying of pipes.--No consumer shall be permitted to conduct water pipes across lots or buildings to adjoining premises; but all service pipe shall be laid on streets, alleys, or public ground to the premises to be served and shall enter at the front or rear of the building nearest the main.

Source: 1952 Rev. Ord. 16-0106.

16-0107. Requirements of pipes.--Every service pipe must have a standard compression stop and waste placed adjacent to and on street side of meter, and the compression stop

and waste shall be kept in working order at all times so that the water may be shut off by the occupant of the premises. There shall also be a gate valve placed on the outlet side of any water meter larger than five-eighths inches. The valve shall be installed not more than three feet from the meter, so that the meter can be taken out or replaced without draining the pipe system in the building.

Source: 1952 Rev. Ord. 16-0107.

16-0108. Other regulations governing construction and maintenance.--

A. Services shall be constructed in accordance with the requirements of the plumbing code of the city of Fargo.

B. No services shall be constructed from a main for any purpose having a greater capacity than 50% of the main, and in no case shall a service be larger than eight inches in diameter.

C. Services one and one-half inches in diameter or less shall be of copper pipe, which shall conform to the latest revision ASTM Specification B88-33 for underground services known as Type "L" soft tubing, or greater. Taps on water mains may be made up to two inches in diameter except on mains of six inches diameter or less when taps larger than one inch will not be permitted.

D. Services one and one-half inches in diameter or less which are located in the same trench as the sewer service main, shall conform to the latest revision ASTM Specification B88-33 for underground services known as Type "K" soft tubing, or greater, and said water service pipe must be placed at an elevation at least 12 inches above the sewer service.

E. If the water service is placed in the same trench as the sewer service, the sewer service shall he subject to the following requirements:

1. Shall not leak when subjected to a 10-foot head of water, or equivalent.
2. Joints must be water-tight and root-proof.
3. A sewer pipe must be dwv schedule 40 plastic or heavier (SRD 35).
4. The sewer service must be installed at least 12 inches lower than the water service.

F. Services over one and one-half inches in diameter shall be of standard cast-iron pipe connected to the main by a tapping sleeve and valve or tee. Gate valves below four inches shall not be used. Any cast-iron service less than four inches in size shall have a four-inch gate valve with proper reducers.

G. No new service shall be constructed and no existing service shall be changed in such manner that more than one building shall be on same service.

H. Copper services shall have at least two feet of extra length between the main and the curb cock.

Source: 1965 Rev. Ord. 16-0108, 1422 (1972), 2415 (1988).

16-0109. Stopcocks on line of service.--All stopcocks on the line of service must have round ways of the same diameter as the pipe with which they are placed and must be of a make and pattern approved by the water department.

Source: 1952 Rev. Ord. 16-0109.

16-0110. Depth of services--Curb stopcock required.--All services shall have a minimum depth of seven feet below finished grade; and each service shall have a stop or curb stopcock fitted with a box set at standard location, six inches outside of, and at the same grade as, the sidewalk.

Source: 1952 Rev. Ord. 16-0110.

16-0111. Separate curb stopcocks required for each building.--Owners of premises having water services which do not have separate curb stopcocks and boxes for each building or which otherwise do not conform to the requirements in this chapter shall be required to put in such curb stopcock or make such other changes as are necessary to conform to these requirements, when so instructed by the city engineer.

Source: 1952 Rev. Ord. 16-0111.

16-0112. Stop boxes--Design--Control of--Use by plumbers.--The stop box used shall be of a design approved by the water department and must have an unobstructed opening at least one and one-half inches in diameter and be fitted with a substantial cover. The outside shutoff and stop box shall be under the sole control of the water department, and no one, except an employee or person specially authorized by the water department, shall open the cover of such box or turn water on or off; provided, however, that licensed plumbers may turn water on or off for testing plumbing or making repairs, but whenever so used the shutoff must be left closed if found closed, and open if found open, by the plumber who uses it.

Source: 1952 Rev. Ord. 16-0112.

16-0113. Stop boxes--Setting of.--The stop box on every service must be kept flush with the surrounding ground or sidewalk surface and must be kept visible from the sidewalk.

Source: 1952 Rev. Ord. 16-0113, 936 (1955).

16-0114. Curb shutoff--Keeping closed.--Plumbers installing water service pipes shall close the curb shutoff and leave it closed upon completion of their work; and, when pipes are laid to the curb only, they shall close the end of the pipe or fitting with a tight metal plug or cap.

Source: 1952 Rev. Ord. 16-0114.

16-0115. Curb shutoff--Shutting off after completing test-- Exceptions.--Plumbers shall leave all new water services shut off at the curb stopcock after completing the testing, except that water may be left on only when the owner or his agent has made application for the same and has a receipt from the water department showing payment of all fees.

Source: 1952 Rev. Ord. 16-0115.

16-0116. Installation and maintenance of service pipes and fixtures.--All new service pipes and fixtures from the street main to the premises, including the corporation cocks at the main, the curb stopcock, and the curb box, shall be installed by licensed plumbers engaged by the owner at the owners expense; repairs and maintenance thereto shall be performed by the water department.

Source: 1952 Rev. Ord. 16-0116, 936 (1955).

16-0117. Two or more consumers on one supply pipe--Failure to pay charge-- Penalty. Whenever two or more consumers, whose service has been connected prior to the passage of this chapter, are supplied from one supply pipe, the failure of either consumer to pay the water charge specified or to comply with the provisions of this chapter shall be sufficient cause for the water department to shut off the water supply at the stop box.

Source: 1952 Rev. Ord. 16-0117.

16-0118. Two or more services on one shutoff--Turning on of water.--Where there are two or more services on one shutoff, the water will not be turned on one service unless the service pipes supplying the entire premises are metered and the water bill is paid for each service.

Source: 1952 Rev. Ord. 16-0118.

16-0119. Failure of consumer to locate and repair leaks.--Repealed by Ord. No. 936 (1955).

16-0120. Leaking of unused service pipe--Repairing or turning off.--If a service pipe or connection, which is not being used, is found to be leaking, the water department may, without notice, repair or turn off the same.

Source: 1952 Rev. Ord. 16-0120, 936 (1955).

16-0121. Abandoned service pipes--Permanently closed off--Permit for disconnection-- Deposit--Refund.--All service pipes that may become useless because of the laying of larger or other new services, or because water will no longer be used through them, or because a structure or structures have been destroyed or moved off the site must be permanently closed off at the water main at the expense of the owner of the premises and a permit therefor shall be secured from the city engineer and a $100 deposit made to guarantee that the service line will be properly disconnected at the water main; any such work shall be done to the satisfaction of the city engineer and the water department and the completion of the work shall be reported in writing to both the city engineer and water department after which the $100 deposit shall be refunded.

Source: 1952 Rev. Ord. 16-0121, 1094 (1961), 1130 (1962).

16-0121.1. Failure to close off abandoned service pipes--Closing off by city--Liability of owner for expense.--If the owner of the premises shall fail to close off any service pipe as described in § 16-0121 within five days after notice or demand served on him, or posted on the premises, if the owner cannot be located after inquiry, then the city, through its proper officers or employees, may close off said pipes and the expense attending the closing off may be recovered from the owner in an action against him or them by the city or such expense may be returned by the city engineer, verified by his oath, to the city auditor.

Source: 1952 Rev. Ord. 16-0121.1, 1130 (1962).

16-0121.2 Expense of closing off to be charged as special assessments.--It shall be the duty of the city auditor to enter such costs and expense so certified by the city engineer as a special assessment against the lot or parcel of land from which the water pipe has been closed

off.--In August of each year the board of city commissioners shall review all assessments, and hear all complaints against the same, and approve the same as finally adjusted, and such special assessment shall then be certified to the county auditor and be placed upon the tax roll for that year and be collected as other city taxes.

Source: 1952 Rev. Ord. 16-0121.2, 1130 (1962).

16-0122. Unlawful to disconnect, remove, or after water fixtures without closing water connection and reporting same.--No plumber or owner of property shall disconnect or remove water supply fixtures or piping from any premises served by city water or alter the same in such a way as to make the service connection unnecessary for the premises without permanently closing off the connection at the water main and reporting the same to the city engineer.

Source: 1952 Rev. Ord. 16-0122.

16-0123. Plumber's license may be revoked on failure to repair.--The board of city commissioners may revoke the license of any plumber who, when employed by the consumer, fails to repair any leak, or fails or neglects to fill any excavation, or fails to pay the water department for making any excavation in pavement, where such excavation is made in any street or alley.

Source: 1952 Rev. Ord. 16-0123.

16-0124. Right to shut off water--Notice, when required--Claims against city.--The water department reserves the right, at any time when necessary, without notice, to shut the water off its mains for the purpose of making repairs or extensions or for any other purposes; and no claims shall be made against the city by reason of the breakage of any service pipe or service cock or from any other damage that may result from shutting off water for repairing, laying, or relaying mains, hydrants, or other connections. The water department shall give notice of shutting off water if conditions are such that it is possible to do so.

Source: 1952 Rev. Ord. 16-0124.

16-0125. Leaks or defects in service--Twenty-four hours' notice of water shut-off. Water may be shut off upon 24 hours' notice in writing to the owner or occupant of the premises when leaks or defects are found in the service between the main and the meter.

Source: 1952 Rev. Ord. 16-0125.

ARTICLE 16-02

CONTROL AND REGULATION OF WATER METERS

Section

16-0201 Water meters required.
16-0202 Water meters to be attached to all services--Exception.
16-0203 One water meter to a service--Private meters.
16-0204 Size of water meter furnished, installed, and maintained by water department or owner.
16-0205 Reserved.
16-0206 Water meters in multiple property buildings--Payment of water charges.
16-0207 Water meters set by water department--Location by owner of property.

16-0208 Water meters to be kept sealed--Removal of meter by water department.
16-0209 Valves on water meters one and one-half inches in size and over.
16-0210 Water meters to be protected from hot water.
16-0211 Water meter for large services--Reservation of right by city to install more meters.
16-0212 Plumber to get instructions when large service pipe used.
16-0213 Protection of water meters--Damage to meter--Notice to water department--Liability of owner.
16-0214 Owner of premises to give notice when meter not needed--Responsibility for loss.
16-0215 Interference with registration of and breaking seals of water meters prohibited--Exception.
16-0216 Tampering with water meter--Water charge to be established.
16-0217 Testing water meter at request of consumer--Expenses--When meter deemed accurate.

16-0201. Water meters required.--Any person, firm, or corporation taking water from the water mains of the city shall be required to use a meter furnished by the city, at the expense of the consumer, to measure water used by said consumer and to pay, for the water so used. City retains discretion to replace meters for any reason, including changes in technology. Failure of the water service consumer to replace a water service meter to the city preferred water meter shall result in a service charge for the water service, such charge to be in an amount to be determined by resolution of the board of city commissioners. Water used shall be charged at such rate per hundred cubic feet or per thousand gallons, or otherwise, as the board of city commissioners may, by resolution, adopt.

Any person firm or corporation taking water from the city may opt out of activation of the radio transmitted meter component of the water service meter by completing an Opt Out Request Form provided by the city and pay a fee, in an amount to be determined by Resolution of the board of city commissioners.

Failure to pay the established monthly service charge for failure to replace the required water service meter or opt out fee shall be deemed a breach and water service may be terminated.

Source: 1952 Rev. Ord. 16-0201, 2465 (1989), 5538 (2025).

16-0202. Water meters to be attached to all services--Exception.--Meters shall be attached to all services except fire protection services as provided in § 16-0403.

Source: 1952 Rev. Ord. 16-0202.

16-0203. One water meter to a service--Private meters.--One meter, only, shall be installed and read on each service, except that the board of city commissioners may, in its discretion, permit the installation of more than one meter on an existing service. Property owners may purchase a private meter for use on the house side of the master meter.

Source: 1952 Rev. Ord. 16-0203.

16-0204. Size of water meter furnished, installed, and maintained by water department or owner.--Meters smaller than one inch in size shall be installed, and maintained by the water department at a furnished construction charge in an amount to be established by Resolution of

the board of city commissioners. Meters broken or damaged by the water service recipient shall be repaired at the expense of the consumer, and these charges shall be payable the first of the month following the date of such repairs. Meters one inch in size and larger shall be furnished at the owner's expense subject to the approval of the water department.

All water meters shall be subject to inspection by city or designee upon property notice to owner. Such inspection shall take place not more than once every two (2) years. Failure to permit inspection after proper notice shall result in termination of water service.

Source: 1952 Rev. Ord. 16-0204, 5231 (2019), 5538 (2025).

16-0205. Reserved.--

Editor's note—Ord. No. 5538, § 3, adopted Dec. 8, 2025, repealed § 16-0205, which pertained to water meter--standard construction and proportions--inspection before installed and derived from 1952 Rev. Ord. 16-0205.

16-0206. Water meters in multiple property buildings--Payment of water charges.--For multiple property complexes there shall be a separate meter and a separate shutoff in the street for each water user in the multiple property building. The owner shall pay the water charges for any existing services to duplex residences where there is only one meter.

Source: 1952 Rev. Ord. 16-0206, 5538 (2025).

16-0207. Water meters set by water department--Location by owner of property.--All meters shall be set by the water department, but the owners must provide suitable location in piping system for same. Meters shall be placed on service pipe not to exceed two feet from the wall where such pipe enters the premises. There shall be a stop and waste between the meter and the wall. A suitable place shall be provided for the meter so that it is kept dry and clean, is protected from frost, and is readily accessible at all times to the meter reader and inspectors of the water department.

Source: 1952 Rev. Ord. 16-0207.

16-0208. Water meters to be kept sealed--Removal of meter by water department. Meters shall at all times be sealed and the seals shall not be broken. Meters shall be removed only by authorized employees of the water department.

Source: 1952 Rev. Ord. 16-0208.

16-0209. Valves on water meters one and one-half inches in size and over.--Meters one and one-half inches in size and over shall be bypassed and a suitable valve on either side of the meter and a valve on the bypass shall be provided.

Source: 1952 Rev. Ord. 16-0209.

16-0210. Water meters to be protected from hot water.--Meters that are liable to become damaged by hot water shall be protected by the installation of a reliable check and relief valve.

Source: 1952 Rev. Ord. 16-0210.

16-0211. Water meter for large services--Reservation of right by city to install more meters.-- For services larger than two inches in diameter, the water department reserves the right to install two or more meters of smaller size. Where meters are so placed, each meter shall have a valve or shutoff on both inlet and outlet pipe in addition to the basement shutoff.

Source: 1952 Rev. Ord. 16-0211.

16-0212. Plumber to get instructions when large service pipe used.--Where a service pipe larger than two inches in diameter is used, the plumber shall call at the water department office for instructions regarding the fittings and space to be provided for the water meters.

Source: 1952 Rev. Ord. 16-0212.

16-0213. Protection of water meters--Damage to meter--Notice to water department--Liability of owner.--The owner or occupant of premises where a meter is installed shall be responsible for its care and protection from freezing or hot water and from other injury or interference from any person or persons. In case of damage to the meter or in case of its stoppage or imperfect working, he shall give immediate notice to the office of the water department. In all cases where meters are broken or damaged by negligence of owners or occupants of premises, or by freezing, hot water, or other damage except ordinary wear and tear, the cost of repairs shall be paid by the owner or occupant, and, in case payment thereof is neglected or refused, the water supply shall be turned off and shall not be turned on until full payment has been made, plus an additional charge for restoring water service in an amount to be determined by Resolution of the board of city commissioners.

Source: 1952 Rev. Ord. 16-0213, 5538 (2025).

16-0214. Owner of premises to give notice when meter not needed--Responsibility for loss.--Wherever a water meter is installed on a water service in premises that are to be remodeled, removed, or destroyed or where the service is discontinued so that the water meter is no longer needed, the owner of such premise shall give notice to the water meter department to remove such meter. Owner shall provide access to such meter no later than 24 hours after notice is given so that the meter may be removed. The owner of the premise shall be responsible for the meter until possession of the water meter is secured by city.

Source: 1952 Rev. Ord. 16-0214, 5538 (2025).

16-0215. Interference with registration of and breaking seals of water meters prohibited-- Exception.--No one shall interfere in any way with the proper registration of a water meter and no one, except an authorized employee of the water department, shall break a seal of a meter; provided, however, that the water department may grant specific permission to licensed plumbers to break such seal for draining pipes or stopping water leaks.

Source: 1952 Rev. Ord. 16-0215.

16-0216. Tampering with water meter--Water charge to be established.--If any water service or meter is found to have been tampered with, the amount charged for water service shall be estimated for the period and the meter repaired and tested. Upon repetition of the offense, it will be optional with the water department to discontinue the water service or collect the amount estimated due. Tampering with the city water service meter or connecting to the city water service by circumventing the legally mandated water meter in any way shall be deemed a violation of this ordinance, resulting in a charge of an infraction for such activity.

Source: 1952 Rev. Ord. 16-0216, 5538 (2025).

16-0217. Testing water meter at request of consumer--Expenses--When meter deemed accurate.--In case there is doubt on the part of the consumer as to the accuracy of a water meter, he may have the meter tested by the water department, at which test he may be present, or have a representative present if he so desires, and if the meter is found to register within 2% of being correct, a charge in an amount to be established by Resolution of the board of city commissioners will be made to pay for a part of the labor for making such tests. If the meter is found to measure more than 2% incorrectly, no charge shall be made for making the test. If the meter should be found to over-register more than 2%, there shall be a proportional deduction made from the previous water bill. A water meter shall be considered to register satisfactorily when it registers within 2% of accuracy.

Source: 1952 Rev. Ord. 16-0217, 5231 (2019).

ARTICLE 16-03

WATER SERVICE RATES, BILLS, AND ACCOUNTS

Section

16-0301 Water rates and charges--Establishment--Change of rate.
16-0302 Water rates--Application in billing service rentals.
16-0303 "Domestic" and "commercial" classes of water services.
16-0304 Water service bills--Due date--Delinquency--Turning off of water--Resumption of service.
16-0305 Water service bills--Payable at water department.
16-0306 Water service--Discontinuance--Notification necessary--Report by plumber.
16-0307 Water service accounts kept in name of owner or tenant.
16-0308 Permission necessary to turn water on, when.

16-0301. Water rates and charges--Establishment--Change of rate.--It is hereby expressly provided that the board of city commissioners reserves the right to change the rate for the use of water from time to time, by resolution, and at all times reserves the right to make such water service restrictions, rules, and regulations as, in the judgment of the board, may be necessary; provided, that the schedules of such rates and charges shall be such as will provide the amounts required, over and above the current expenses of operation and maintenance of the water utility, to produce adequate and proper allowances for depreciation, replacement, and improvement of said utility which will keep the same in a state of efficiency corresponding to the progress of such water utilities generally, including payment of principal and interest and creation and maintenance of reserves securing such payments on any bonds issued to finance or refinance improvements thereto, in accordance with the resolutions and ordinances authorizing such bonds. Water rates, discounts, penalties and service or advance charges shall be those established by the water department and by the board of city commissioners by resolution.

Source: 1952 Rev. Ord. 16-0301, 910 (1953).

16-0302. Water rates--Application in billing service rentals.--In billing water service rentals the rates shall be applied separately on the consumption through each meter or on the total of a set of meters if placed on one service so as to discharge into a common supply pipe.

Source: 1952 Rev. Ord. 16-0302.

16-0303. "Domestic" and "commercial" classes of water services.--Water service shall be divided into two classes; namely, "domestic" and "commercial." Meters on domestic services shall be billed and collected monthly, and on commercial services shall be billed and collected monthly. The classification for any service may be changed at the discretion of the water department.

Source: 1952 Rev. Ord. 16-0303, 3028 (1999).

16-0304. Water service bills--Due date--Delinquency--Turning off of water--Resumption of service.--All bills are due and payable on or before the tenth day after date of billing. Fifteen days after a bill has become delinquent the water may be shut off from the premises, and, when so shut off, shall not be turned on again until all water rents and all other charges due for services to the consumer, together with a charge in an amount to be established by

Resolution of the board of city commissioners for turning water off and on, has been paid. The consumer shall be notified of the date water will be shut off and afforded the right to an administrative hearing upon request of the consumer no later than three days before the shut-off date. An overtime fee to turn the water on outside of regular business hours will be in an amount established by Resolution of the board of city commissioners.

Source: 1952 Rev. Ord. 16-0304, 1171 (1964), 2093 (1983), 5231 (2019).

16-0305. Water service bills--Payable at water department.--All bills for water and other services are payable at the office of the water department during regular working hours or at such other places and times as may be designated by the board of city commissioners.

Source: 1952 Rev. Ord. 16-0305.

16-0306. Water service--Discontinuance--Notification necessary--Report by plumber. Any consumer desiring to discontinue the use of water must either notify the water department in writing or call a licensed plumber. If the water is turned off at the stop box by a licensed plumber, he must make a report in writing the same day the water service is discontinued.

Source: 1952 Rev. Ord. 16-0306, 936 (1955).

16-0307. Water service accounts kept in name of owner or tenant.--Water service accounts shall be kept in the name of the owner or tenant of the property served.

Source: 1952 Rev. Ord. 16-0307.

16-0308. Permission necessary to turn water on, when.--It shall be unlawful for any person, firm, company, or corporation from whose premises the water shall have been shut off for any of the reasons provided for in this article, to turn the water on without permission from the water department.

Source: 1952 Rev. Ord. 16-0308.

ARTICLE 16-04

FIRE PROTECTION SERVICES

Section

16-0401 Fire services--Construction.
16-0402 Fire services--Control by gate valve.
16-0403 Fire services--When meters not required.
16-0404 When fire system to be opened.
16-0405 Seals broken on fire system--Notice to water department.
16-0406 Size of fire service limited.
16-0407 Installation of more than one fire service to same premises.
16-0408 Use of fire service for other purposes--Penalty.
16-0409 City may require owner to furnish meter.
16-0410 Fire hydrants--Permit required to use.
16-0411 Use of fire hydrants in flushing sewers and streets.
16-0412 Opening of fire hydrants.

16-0401. Fire services--Construction.--The construction of fire services shall be under the personal supervision of an authorized employee of the water department, and the cost of this supervision shall be charged to the owner.

Source: 1952 Rev. Ord. 16-0401.

16-0402. Fire services--Control by gate valve.--Fire services shall be controlled by a gate valve placed in the street as near to the main as practicable. Valves shall be of a standard type and shall have a substantial valve box fitted with a cover upon which directions for opening or closing the valve are plainly marked.

Source: 1952 Rev. Ord. 16-0402.

16-0403. Fire services--When meters not required.--Private fire protection services may be constructed without meters, provided, that all outlet valves are sealed and that the system is approved by the water department.

Source: 1952 Rev. Ord. 16-0403.

16-0404. When fire system to be opened.--Fire protection systems shall be opened in case of fire or for inspection and shall not supply water for domestic or other than fire purposes.

Source: 1952 Rev. Ord. 16-0404.

16-0405. Seals broken on fire system--Notice to water department.--When seals on a fire protection system are broken, it shall be the duty of the owner or occupant to notify the water department within 24 hours thereafter.

Source: 1952 Rev. Ord. 16-0405.

16-0406. Size of fire service limited.--The water department shall reserve the right to limit the size of fire protection services where the street mains are of such size as to make it necessary in order to protect public interest.

Source: 1952 Rev. Ord. 16-0406.

16-0407. Installation of more than one fire service to same premises.--If more than one service is installed to the same premises, the piping system of one shall not be connected with the other except on recommendation of the city engineer.

Source: 1952 Rev. Ord. 16-0407.

16-0408. Use of fire service for other purposes--Penalty.--In any case when the owner or occupants of any premises are found to be using water from a fire service for purposes other than fire protection, the water shall be shut off from the same. A violation of this rule will be considered sufficient cause for cutting the service off at the main and refusing to reconnect same while the offender occupies the premises.

Source: 1952 Rev. Ord. 16-0408.

16-0409. City may require owner to furnish meter.--The water department reserves the right at any time to require the owner of the premises supplied to furnish and install, at his expense and under the direction of the city engineer, an approved water meter and to keep the same in accurate operating condition.

Source: 1952 Rev. Ord. 16-0409.

16-0410. Fire hydrants--Permit required to use.--No person, other than authorized personnel of the Fargo fire department, shall use a fire hydrant without first obtaining a permit therefor from the fire department; and without making arrangements for metering all water used.

Source: 1952 Rev. Ord. 16-0410, 2466 (1989).

16-0411. Use of fire hydrants in flushing sewers and streets.--Hydrants used for construction purposes or for flushing sewers and streets shall have a reducing coupling attached to the nozzle of the hydrant with an independent throttling valve for regulating the supply.

Source: 1952 Rev. Ord. 16-0411.

16-0412. Opening of fire hydrants.--Hydrants shall be opened only with a numbered hydrant spanner which shall be obtained either from the fire department or from the water department.

Source: 1952 Rev. Ord. 16-0412.

ARTICLE 16-05

OTHER RULES AND REGULATIONS

Section

16-0501 Contractor's services--Application for temporary service--Guarantee of charges.
16-0502 Water supply from two sources--Separation of piping systems--Substitution of private supply for city water.
16-0503 Premises having direct connection to two sources of water supply--Disconnection.
16-0504 Safety devices required.
16-0505 Repair of services to conform to chapter.
16-0506 Water department does not guarantee accuracy of information given.
16-0507 Unnecessary waste--Right to cut off supply--Restrictions on uses.
16-0508 Fixed pressure not guaranteed--Emergencies--Shut off without notice.
16-0509 Nonliability of city for water service breakage or failure in supply.

16-0501. Contractor's services--Application for temporary service--Guarantee of charges. When a temporary service is desired by contractors and builders for water to be used on construction work, they shall make application to the water department and deposit with the water department a sum not to exceed $25 for a meter to be used on such services to guarantee payment of such water service charges and the return of the meter in good order; the charges for such water service shall be at the same rate as other services.

Source: 1952 Rev. Ord. 16-0501.

16-0502. Water supply from two sources--Separation of piping systems--Substitution of private supply for city water.--On premises where water is supplied from two sources, the city water being one of them, the piping system for city water must be entirely separated from that of the other source. If other than city water is to be furnished premises previously supplied with

city water, the owner or his plumber must give notice at the office of the city water works when he will make this change and must also cut off the city water at the corporation cock and disconnect the service pipe.

Source: 1952 Rev. Ord. 16-0502.

16-0503. Premises having direct connection to two sources of water supply--Disconnection.-- Premises now having direct connection between the city water supply and another supply shall forthwith disconnect the same.

Source: 1952 Rev. Ord. 16-0503.

16-0504. Safety devices required.--Consumers are required to equip boilers, heating plants, and refrigeration machinery with safety devices or provide auxiliary supplies. Every hot-water heater and hot-water storage tank must have a check valve on the supply pipe line and a suitable relief valve on the discharge line of such heater or tank.

Source: 1952 Rev. Ord. 16-0504.

16-0505. Repair of services to conform to chapter.--Repairs made to existing water services shall cause each service to conform in every respect with this chapter.

Source: 1952 Rev. Ord. 16-0505.

16-0506. Water department does not guarantee accuracy of information given.--Such information as may be obtained from the records, maps, and employees of the water department relative to the location of water mains and service pipes will be furnished to licensed plumbers and interested parties, but the water department does not guarantee the accuracy of such information.

Source: 1952 Rev. Ord. 16-0506.

16-0507. Unnecessary waste--Right to cut off supply--Restrictions on uses.--Consumers shall prevent unnecessary waste of water and keep all water outlets closed when not in actual use. If unnecessary waste of water takes place, the water department reserves the right to cut off the supply. The city reserves the right to prohibit the use of water for yard sprinklers, elevators, air conditioners, and coolers, and by large consumers of water when in the judgment of the board of city commissioners it shall be necessary to do so.

Source: 1952 Rev. Ord. 16-0507.

16-0508. Fixed pressure not guaranteed--Emergencies--Shut off without notice.--The water department does not guarantee the consumer any fixed pressure or a continuous supply. In emergencies water may be shut off without notice.

Source: 1952 Rev. Ord. 16-0508.

16-0509. Nonliability of city for water service breakage or failure in supply.--The water department shall not be held responsible by reason of the breaking of any service pipe or apparatus, water coil, or shutoff or for failure in the supply of water.

Source: 1952 Rev. Ord. 16-0509.

ARTICLE 16-06

APPLICATION OF RULES

Section

16-0601 Foregoing rules and regulations considered part of every contract.

16-0601. Foregoing rules and regulations considered part of every contract.--The foregoing rules and regulations shall be considered a part of the contract with every person who takes water supplied by the city of Fargo through the city waterworks, and every such person who takes water shall be considered as having expressed his agreement to be bound thereby.

Source: 1952 Rev. Ord. 16-0601.

ARTICLE 16-07

MUNICIPAL UTILITIES FUND

Section

16-0701 Water used, wasted, or donated by city to be provided for by taxation.
16-0702 Tax levy--Computation of amount.
16-0703 Municipal utilities fund.
16-0704 Municipal utilities fund--How used.

16-0701. Water used, wasted, or donated by city to be provided for by taxation.--The board of city commissioners shall annually provide by appropriation and uniform tax levy on property subject to their jurisdiction such sums hereinafter designated per hydrant (or more, if in their judgment more is necessary) to defray the cost and expense (including maintenance and depreciation) incident to and caused by reason of the general and special use by the city of the waterworks, filtration plant, fire hydrants, and distribution system in supplying water to the municipal buildings, city public parks and fountains, donees (such as a charity, or for semi-public use which has no income or profit), for sprinkling streets, flushing sewers, construction of public improvements, and extinguishing fires, for the next succeeding fiscal year; provided, that if in any years, surplus water revenues shall be received which are transferable to the general fund of the city in accordance with the provisions of § 16-0704 and article 8 of this chapter, the tax levy for said purposes collectible in the succeeding year may be reduced by an amount not exceeding the amount of said surplus revenues.

Source: 1952 Rev. Ord. 16-0701, 910 (1953).

16-0702. Tax levy--Computation of amount.--The sum or sums herein provided and hereby ordained as necessary for the purposes in § 16-0701 designated and provided shall be computed upon the following basis per fire hydrant according to the class or classes under which the board of city commissioners, by ordinance or resolution, shall determine and provide with respect to the annual municipal uses, waste, and donations of water, and the sums per hydrant shall be cumulative if any such water takings shall be in more than one class.

Class 1. Use of water for extinguishing fire under a required pressure not greater than 50 pounds per square inch, not less than the annual sum of $24 per hydrant for each and every hydrant within the corporate limits of the city, or

Class 2. Use of water for same purpose under a required pressure greater than 50 and not greater than 75 pounds per square inch, not less than the annual sum of $36 per hydrant for each and every hydrant within the said corporate limits, or

Class 3. For supplying water to city buildings, parks, fountains, street, drinking bubblers, public or semi-public places which have no income or profit, or as charity, sprinkling city roads and streets, flushing sewers and streets, under a required normal pressure not exceeding 40 pounds per square inch, not less than the annual sum of $20 per hydrant for each and every hydrant within said corporate limits, or

Class 4. For granting permit to, or allowance of, any person, firm, or corporation to use fire hydrants for public construction work upon buildings, street paving, sidewalks and improvements, or tamping ditches, not less than the annual sum of $7.50 for each hydrant for which a permit is issued.

Source: 1952 Rev. Ord. 16-0702.

16-0703. Municipal utilities fund.--All sums collected as provided for in §§ 16-0701 and 16-0702, together with all sums derived from other rates and charges for the services, facilities, products, and by-products of the water system and the sewerage system and of any future additions thereto and betterments thereof furnished and made available to the city and its inhabitants and all other customers, and all amounts realized upon sale or disposition of any of the properties of the city used or useful in the operation of said systems, shall be paid into and credited to a special fund to be maintained separate from all other funds on the books and records of the city and to be known as the "municipal utilities fund." Said fund shall be used only for the purposes and disbursed only in the manner provided in § 16-0704, and in accordance with the further provisions and limitations of article 16-08 of this chapter and article 17-01 of chapter 17.

Source: 1952 Rev. Ord. 16-0703, 910 (1953), 1098 (1961).

16-0704. Municipal utilities fund--How used.--Upon proper orders or warrants issued upon the authority of the board of city commissioners, there shall be paid out of the municipal utilities fund all sums necessary for the operation, maintenance, enlargement, repair, alteration, improvement, and extension of the plant or plants the earnings of which go into the fund, including the payment of principal of and interest on any bonds issued for such purposes and made payable from or a charge upon the earnings of such plant or plants, and the creation and maintenance of reserves securing such payments in the amounts covenanted and agreed in the ordinances and resolutions of the city authorizing such bonds; but no sum shall be paid out of or diverted from the fund for any purpose except that when the board of city commissioners shall determine that there is a cash surplus in the municipal utilities fund over and above any amount necessary to provide adequately for the operation, maintenance, repair, enlargement, alteration, improvement, and extension of the plant or plants and the payment of bond principal and interest and the creation and maintenance of bond reserves, it, in its discretion, may invest the surplus or transfer a portion thereof as follows:

A. All or any part of the surplus may be invested by the board of city commissioners in interest-bearing bonds of the United States government, the state of North Dakota, or any bonds or special improvement district warrants of the city of Fargo, and all the principal and interest on the warrants and bonds, when repaid, shall be placed back in the municipal utilities fund; or

B. The board of city commissioners, at the end of the fiscal year or at various times during the year, may divert and transfer from the surplus in the fund to the general fund of the city or to any other fund of the city, a total sum of not more than 20% of the gross receipts of the municipal utilities for the fiscal year of the city during which the transfer or transfers are made.

Source: 1952 Rev. Ord. 16-0704, 910 (1953).

ARTICLE 16-08

WATER UTILITY FUND AND REVENUE BONDS

Section

16-0801 Authorization of revenue bonds.
16-0802 Disposition of and accounting for bond proceeds.
16-0803 Water utility fund.
16-0804 Priorities among issues of revenue bonds.
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16-0806 Sale, execution, and delivery of bonds.
16-0807 Repealing clause.
16-0808 Reserve revenue bond financing--Deficiency levy.

16-0801. Authorization of revenue bonds.--It is hereby found, determined, and declared that the water system owned and operated by the city, herein referred to as the "municipal water utility," comprising all systems, plants, works, instrumentalities, and properties used and useful in connection with the obtaining of a water supply and the conservation treatment, and disposal of water for public and private uses, within and without its corporate limits, together with all parts thereof and all appurtenances thereto, including, but without limitation, lands, easements, rights in land, water rights, contract rights, franchises, approaches, dams, reservoirs, water mains, filtration works, pumping stations, and equipment, constitutes a municipal undertaking as described in chapter 40-35 of the North Dakota Century Code, under the provisions of which law the city may improve, better, and extend said utility and may pay the cost thereof in whole or in part by the issuance of revenue bonds, payable exclusively from the net revenues of said utility; provided, that no holder thereof shall ever have the right to compel an exercise of the taxing power of the city to pay said bonds or the interest thereon, or to enforce payment thereof against any property of the municipality, and said bonds shall not constitute a charge, lien or encumbrance, legal or equitable, upon any property of the city. Such bonds are hereby authorized to be issued and sold in such amounts and at such times and subject to such terms with reference to time and manner of payment of principal and interest as the board of city commissioners shall determine, by resolution duly adopted at a regular meeting thereof, to be necessary and expedient for the purpose of keeping the utility in a state of efficiency corresponding to the progress of water utilities generally; provided, that all such bonds shall be issued subject to the further terms and provisions of this article.

Source: 1952 Rev. Ord. 16-0801, 910 (1953).

16-0802. Disposition of and accounting for bond proceeds.-- Upon delivery of each issue of such revenue bonds the entire proceeds thereof, except accrued interest and premium,

if any, received thereon, shall be deposited by the city treasurer in a separate bank account in a duly qualified depository bank and secured as required by the laws of the state of North Dakota, and shall be held and accounted for on the books of the city as a separate and special construction fund; and the monies in said fund shall be disbursed only upon orders duly executed pursuant to claims duly allowed by the board of city commissioners for the payment of expenses, which, in accordance with sound accounting practices, constitute legitimate capital expenditures for the improvement of said municipal water utility, in accordance with plans and specifications theretofore approved by said board; provided, that any monies in such construction fund which are not immediately required for payment of such expenses may, in the discretion of the board and when authorized by resolution thereof, be invested in general obligations of the United States government maturing not more than one year from the date of such investment. The costs of improvements to be paid from said construction fund shall include all expenses incurred and to be incurred which are reasonably required for the completion thereof in accordance with the plans and specifications thereof, including, but without limitation, amounts due to the contractor or contractors for work and materials furnished, the cost of all lands, easements, equipment, materials, and labor necessary to be procured by the city in connection therewith, all costs of the issuance of the revenue bonds financing the same, and all engineering, inspection, fiscal, and legal expenses.

Source: 1952 Rev. Ord. 16-0802, 910 (1953).

16-0803. Water utility fund.--So long as the principal of or interest on any of the bonds authorized by this article to be issued shall be outstanding and unpaid, the city irrevocably covenants with the holders from time to time of each said bonds that it will maintain, within the municipal utilities fund established by § 16-0703 of this chapter, a special subfund which is hereby created and designated as the "water utility fund." The monies from time to time held in said water utility fund shall be accounted for on the books and records of the city, separate from all other funds and separate from any other monies of the municipal utilities fund pertaining to any public utility other than the water utility now or hereafter operated by the city. Into the water utility fund there shall be credited and paid, as received, the entire gross revenues derived from the operation of the water utility, and from any future additions thereto and betterments thereof, including all income and receipts derived from rates, fees and charges for services, facilities, products, and by-products of the utility furnished or sold to the city and its inhabitants and all other customers, and for the availability thereof, and from sale of any of the properties of the utility not necessary to be retained, and from the investment of any of the monies so collected; but such gross revenues shall not be deemed to include any sums realized from special assessments or taxes which may be levied or bonds or other obligations which may be issued for the financing of improvements to said utility. All such gross revenues shall be deposited as received in a duly qualified depository bank and secured as required by law. On the books and records of the water utility fund there shall be established and maintained four separate accounts, to be designated as the "operation and maintenance account," "revenue bond account," "reserve account," and "surplus account," respectively. The revenues on hand in the water utility fund from time to time shall be apportioned among the said accounts at least once in each calendar month and shall thereafter be held and administered in and disbursed from the several accounts as follows:

A. To the operation and maintenance account there shall be credited upon each such monthly apportionment, as a first lien and charge on the gross revenue,

such sum as shall be needed, over and above any credit balance then held therein, to pay all claims then due and allowed which by accepted accounting practices constitute normal, reasonable, and current expenses of operation and maintenance of the utility, and to pay such expenses estimated to accrue for a period of one month, and to maintain a reasonable reserve for contingencies. Monies in said account shall be used only to pay expenses of the foregoing type, and not for major repairs, replacements, or capital improvements which are properly chargeable to replacement and depreciation reserves or surplus funds. The net revenues of the utility, which are herein pledged and appropriated to the extent required for the payment of the bonds herein authorized and interest thereon, are hereby defined as the aggregate of all sums on hand in the water utility fund from time to time in excess of the current requirements of the operation and maintenance account as herein set forth.

B. To the revenue bond account there shall be credited, out of the net revenues on hand at the time of each such distribution, an amount equal to not less than one-twelfth of the sum of the principal and interest payments to become due upon all outstanding bonds which are payable from said account within the next succeeding period of 12 months. If the net revenues on hand at any time are insufficient to permit the transfer to said account of the full amount so required, such deficiency shall be restored out of the next net revenues thereafter received. There shall also be credited to said account the premium and accrued interest, if any, paid on each such issue of revenue bonds payable from said account. The monies in said account shall be used only for the purpose of paying the principal and interest, as such principal and interest respectively become due, on revenue bonds which are issued and made payable therefrom, as a first lien and charge on the net revenues, in accordance with the provisions of § 16-0804. All monies pertaining to said revenue bond shall be deposited as received in a special bank deposit account, separate from all other funds of the city.

C. To the reserve account there shall be credited out of the net revenues on hand each month, commencing July 1, 1954, in excess of the current requirements of the revenue bond account, such sum as will be sufficient to accumulate therein a balance of $120,000 on or before July 1, 1957, and thereafter to maintain the same in said amount; provided, that it is the intention hereof to establish and maintain in said account a reserve at all times at least equal to the average of the annual principal and interest payments thereafter required to be made from the revenue bond account, and in the event that such average annual principal and interest requirements shall exceed $120,000 by reason of the authorization of any issue of bonds payable from the revenue bond account, additional net revenues shall be transferred to the reserve account monthly in amounts sufficient to increase the balance therein to the amount so required within three years from and after the issuance of such bonds. Monies in the reserve account shall be used only for the payment of maturing principal and interest on bonds primarily payable from the revenue bond account, when and as the monies in the revenue bond account are insufficient therefor, and whenever so used shall be restored out of the next net revenues thereafter received. All monies pertaining to the reserve account shall be deposited as received in a special bank deposit

account, separate from all other funds of the city; provided, that such monies may be invested in the discretion of the board of city commissioners but only in general obligations of the United States government maturing within one year from and after the date of purchase thereof.

D. All surplus net revenues from time to time received, in excess of the current requirements of the revenue bond account and reserve account, shall be credited on the books of the city to the surplus account of the water utility fund; provided, that the city reserves the right to create additional accounts within said fund for the purpose of segregating any of such surplus net revenues which may be pledged and appropriated to the payment of any obligations hereafter issued to finance improvements, replacements, or repairs of said utility, other than bonds made payable from the revenue bond account, and subject to the prior lien on the net revenues of the bonds payable from that account. Surplus net revenues on hand from time to time shall be available and shall be used to the full extent necessary to restore any deficiency in the operation and maintenance account and the revenue bond account and reserve account, but when not so needed may be used to pay for capital improvements, replacements, or repairs of the water utility, or to pay principal and interest on obligations hereafter issued for such purposes, other than bonds payable from the revenue bond account, or may be used to redeem and pay, prior to maturity, bonds payable from the revenue bond account, when and as such bonds become redeemable according to their terms. Monies in the surplus account determined by the board of city commissioners to be in excess of the immediate requirements of said account for the repair, enlargement, alteration, improvement, or extension of the utility may be invested in accordance with the provisions of § 16-0704 of this chapter and § 40-33-12 of the North Dakota Century Code. The board shall maintain in said account such a balance of cash and investments as it shall from time to time determine to constitute an adequate reserve for operation and maintenance emergencies and for depreciation and contemplated improvements or replacements; but monies in excess of such reserve may be transferred to other funds of the city in accordance with the subject to the limitations contained in said § 16-0704 and in § 40-33-12 of the Century Code.

Source: 1952 Rev. Ord. 16-0803, 910 (1953).

16-0804. Priorities among issues of revenue bonds.--The total principal amount of revenue bonds which may be issued and made payable from said revenue bond account, as a first and prior lien and charge on the net revenues of the utility, as herein defined, is limited to $1,575,000, and after the initial issuance of revenue bonds in this amount, no additional obligations of any kind shall be issued or incurred and made payable from said net revenues unless the lien thereof upon said net revenues is expressly made junior and subordinate to that in favor of the bonds issued hereunder; save and except that:

A. If monies on hand in the water utility fund should at any time be insufficient for the payment of the principal and interest then due on all bonds payable from the revenue bond account, any matured bonds which cannot be paid from said monies may be refunded by the issuance of refunding revenue bonds, which refunding bonds may be made payable from the revenue bond account on a

parity as to interest with all then outstanding bonds payable from said account, but shall mature not earlier than one year after the latest maturity date of such outstanding bonds.

B. In the event that the board of city commissioners shall at any time determine it to be necessary and expedient to issue additional bonds to finance capital improvements of said utility, or to refund outstanding bonds payable from the revenue bond account, which are then prepayable according to their terms for the purpose of reducing the interest rate or interest cost or extending the maturities thereof, such additional or refunding revenue bonds may be made payable from the revenue bond account on a parity as to both principal and interest with the then outstanding bonds payable from said account, if the annual net revenues received during the fiscal years next preceding such issuance shall have equaled or exceeded 125% of the average of all principal and interest to become due and payable from said account in each subsequent complete fiscal year of the then remaining term of said outstanding bonds, on such outstanding bonds and the additional or refunding bonds to be issued.

C. If any of the rates and charges for water service shall have been increased or reduced at any time subsequent to the commencement of the fiscal year immediately preceding the issuance of additional bonds as contemplated in part (B) above, the net revenues for the period prior to such change shall be deemed, for the purpose of the computation required in said part (B), to be those which would have been received by applying the revised rates and charges to the quantities of water actually consumed and municipal hydrants actually maintained during such period, less the estimated amount of decrease in consumption due to an increase in said rates and charges, and by deducting from the gross revenues so determined the actual operating expenses of the utility for said period. The computation of the net revenues in the event of any such change in rates shall be made by a qualified and disinterested engineer and approved by the board of city commissioners.

Source: 1965 Rev. Ord. 16-0804, 1436 (1972).

16-0805. Covenants for the security of revenue bonds.--The city hereby further covenants and agrees with the original purchaser and each holder from time to time of each bond issued hereunder, as follows:

A. It will complete all improvements financed by the issuance of such bonds in substantial accordance with the approved plans and specifications therefor and with due diligence and with the greatest economy consistent with good workmanship and efficient results, and will do so without creating or permitting the creation of any liens and encumbrances on said utility or on the revenues thereof other than the liens and charges on said revenues expressly authorized in this ordinance.

B. As long as any of such bonds are outstanding, it will continue to own and operate said utility as a municipal utility, free from all competition as to the services thereby provided and in good and efficient operating condition.

C. It will at all times maintain and collect reasonable rates, charges, and rentals for all services, facilities, commodities, and benefits furnished and made available by

said utility according to schedules such that the net revenues derived therefrom will be at least sufficient to pay into said revenue bond account and reserve account the amounts required in § 16-0803 hereof at the times therein provided, and to provide surplus net revenues adequate for payment of principal and interest on any obligations hereafter issued as a lien on the net revenues junior to the lien of bonds payable from the revenue bond account, and will revise such schedules in such manner and whenever and as often as needed to perform this covenant.

D. Under each such schedule the city shall be obligated to pay and will pay from its other funds to the water utility fund a fair and equitable amount for any and all services, facilities, commodities, and benefits furnished to the city or any of its departments by the utility.

E. It will at all times maintain books of account adequate to show all receipts and disbursements of the city respecting the utility and the application of such receipts to the purposes of the several accounts of the water utility fund as provided in § 16-0803 hereof, which books of account shall be open to inspection at any reasonable time by the holder of any revenue bond, and it will furnish a certified transcript therefrom of any information which any such bondholder may request, upon payment of a reasonable fee therefor.

F. At the close of each fiscal year, being the 12-month period ending on June 30th of each year as provided in the statutes of the state of North Dakota, it will cause an operating statement to be prepared and included in the annual financial statement of the city required by the provisions of § 40-16-05 of the North Dakota Century Code, showing the financial condition and the receipts and disbursements of the water utility fund and of its several accounts during each fiscal year, and a copy of such statement will be furnished to the original purchaser of each issue of revenue bonds and also to any holder of such bonds upon request. The city will also cause the books of account of the utility to be audited by a certified public accountant as soon as may be after the close of each fiscal year and will furnish a copy of the report of each such audit to the original purchaser of each issue of revenue bonds, and will make the same available upon request to any holder of such bonds. The cost of all such accounting and audits shall be paid as an operating expense of the utility.

G. It will at all times keep the properties of said utility insured in reasonable amounts against loss or damage by all causes against which similar properties are customarily insured by prudent owners thereof, and will carry adequate public liability insurance against any claim of personal injury or property damage which is or may become a charge against the revenues of the utility, and will cause all persons handling funds of the utility to be bonded in suitable amounts for the protection of the city and the holders of said revenue bonds, and such insurance and fidelity bonds will be carried with the state fire and tornado fund or such other reputable and responsible insurers as shall be selected by the board of city commissioners, and the expense of all such insurance and bonds shall be paid as an operating cost of the utility, and the city will use the proceeds thereof, immediately upon the occurrence of any loss or damage covered thereby, to restore such loss or damage.

H. The city will use due diligence in the selection and supervision of employees charged with the operation of said utility and the handling of the funds thereof and in the operation and maintenance and the collection of the revenues of said utility, to the end that the properties thereof shall be kept in good and efficient operating condition and the revenues shall not be lost or mishandled. Bills for water service will be presented to all customers not less often than quarterly, and if any bill is not paid within 15 days from the due date thereof, the supply of water to the premises involved shall be discontinued, and such premises shall not be reconnected until full payment of all charges due for water service together with penalties.

I. The city and its governing body and each and all of its officers will punctually perform all duties with reference to said utility and the revenues thereof and the bonds herein authorized which are imposed by law and the ordinances and resolutions of the city, including this ordinance, in force upon the date upon which any of such bonds are issued, and all conditions of the constitution and laws of the state and of such ordinances and resolutions as will provide security for the holders of the bonds issued hereunder are acknowledged to be a part of the city's contract with the holders from time to time of such bonds; provided, that nothing herein shall be deemed to preclude the city from modifying the rates and charges and billing procedures now in effect to any extent which will not impair the sufficiency of the revenues of said utility to comply with the remaining provisions of this ordinance.

J. The holders of 25% or more in principal amount of each issue of bonds payable from the net water utility revenues which are at any time outstanding shall be privileged and are hereby empowered to institute and maintain, in behalf of the holders of all outstanding bonds of such issue, any suit, action, proceeding at law or in equity for the protection and enforcement of any covenant, agreement, or stipulation herein provided to be performed or observed by the city or its governing body or any of its officers, whether or not any of such bonds are then in default as to the principal and interest, and each and all of the rights and remedies specified and mentioned in §§ 40-35-15 to 40-35-19, inclusive, of the North Dakota Century Code, are hereby acknowledged to be available to the holders of such bonds.

K. In the event that monies on hand in the revenue bond account and reserve account should be insufficient at any time to pay all principal and interest then due on bonds payable from said accounts, and cannot be made sufficient by transfers of monies from other accounts of the water utility fund, such monies shall be first used to pay the interest then due or to become due on the next succeeding interest payment date on all such then outstanding bonds, and any monies on hand in excess of amounts required for the payment of all such interest shall be applied to the payment of maturing principal on such bonds in order of their maturity dates, earliest maturing bonds first; and such monies shall be applied prorata to the payment of the principal of bonds maturing on the same date.

Source: 1952 Rev. Ord. 16-0805, 910 (1953).

16-0806. Sale, execution, and delivery of bonds.--All bonds issued in accordance with the provisions of this article shall be sold in the manner required by the laws of the state of North Dakota and shall be prepared for execution in such form as shall be determined by the board of city commissioners; provided, that all such bonds shall be deemed to be negotiable instruments as provided in § 40-35-10 of the North Dakota Century Code, and shall have coupons appurtenant, evidencing the interest payable thereon at the rate or rates specified in the contract of sale thereof, but may be issued in form permitting registration of the ownership of the principal thereof. Pending preparation of definitive bonds, interim certificates or receipts may be issued to the purchaser of any issue of such revenue bonds, in such form and with such provisions as the board of city commissioners may determine, which certificates or receipts shall also be deemed to be negotiable instruments. The bonds of each issue, or the interim certificates or receipts evidencing the same, when prepared in accordance with the foregoing provisions, shall be executed and authenticated by the signature of the president of the board of city commissioners and countersigned by the city auditor, and the interest coupons appurtenant thereto shall be executed and authenticated by the printed, engraved, or lithographed facsimile signatures of said officers, and such bonds, certificates, or receipts shall then be delivered to the purchaser upon receipt of the purchase price specified in the contract of sale thereof, and the purchaser shall not be obligated to see to the application of the purchase price. The officers of the city are further authorized and directed to furnish to the purchaser of each issue of such revenue bonds certified copies of all ordinances, resolutions, and other proceedings of the city with reference to the establishment, improvement, and administration of said utility and the funds thereof and the issuance of said revenue bonds, and such additional certificates and affidavits as to matters appearing on the records in their official custody or otherwise known to them, as may be reasonably required to evidence the legality and marketability of such bonds; and all such certified copies, certificates, and affidavits shall be deemed to constitute representations and recitals of the city of Fargo as to the correctness of all statements therein contained.

Source: 1952 Rev. Ord. 16-0806, 910 (1953).

16-0807. Repealing clause.--All ordinances and resolutions of the city of Fargo which are in any manner inconsistent with the terms and provisions of this article and the amendments to the Revised Ordinances of 1952 affected hereby are hereby amended or repealed to the extent necessary to give full force and effect to the provisions of this ordinance [Ord. No. 910, 1953].

Source: 1952 Rev. Ord. 16-0807, 910 (1953).

16-0808. Reserve revenue bond financing--Deficiency levy.--

A. Pursuant to the provisions of the Home Rule Charter of the city of Fargo, the city is hereby authorized by resolution or resolutions of its city commission, to issue revenue bonds of the city to finance the cost of additions or improvements to its water and sewerage utility (the "utility"). Except as otherwise provided herein, all of the provisions of article 16-08, and article 17-01 of the Revised Ordinances of 1965 of the City of Fargo, North Dakota, as amended, and the provisions of chapter 40-35, N.D.C.C., shall apply to bonds issued under this ordinance. In the resolution authorizing the issuance of revenue bonds in anticipation of the collection of the revenues of the utility, the city commission shall establish a reserve for the security of the bonds and may provide that such

reserve shall be set aside from the proceeds of the bonds or from any revenues on hand and properly available therefor. The resolution shall also provide that rates, fees and charges for the services, facilities or commodities provided by the utility shall be established, and revised from time to time when necessary, so that the revenues derived from the utility will at all times be sufficient to pay all normal, reasonable and current costs of the operation and maintenance thereof, and (together with any other monies appropriated therefor) to pay when due the principal of and the interest on the bonds, and to maintain the reserve in the amount required by such resolution. In the event that there shall be at any time a deficiency in said reserve, the city commission shall cause all necessary taxes to be levied, including a tax upon all taxable property in the city for the payment of such deficiency, and such tax shall be subject to no limitation of rate or amount, other than the limits imposed by the Home Rule Charter.

B. Prior to adoption of the resolution authorizing the issuance of bonds under this ordinance, the city commission shall cause to be published at least once in the official newspaper of the city a notice describing the general nature of the addition or improvement and the estimated cost thereof, and stating that it is proposed to issue bonds to defray such estimated cost and that the resolution authorizing the issuance of such bonds will include a provision for a reserve to be established and maintained from bond proceeds or revenues on hand and available therefor, and that if at any time a deficiency exists in the reserve, the city commission will levy all necessary taxes, including a tax upon all taxable property in the city for payment of such deficiency, and stating that written protests against the issuance of such bonds must be filed in the office of the city auditor within 20 days after the publication of the notice.

C. If, within 20 days after the publication of the notice required in paragraph (B) hereof, written protests against the issuance of bonds, signed by electors of the city equal in number to at least 20% of the number of voters participating at the last preceding general election held in the city, are filed in the office of the city auditor, the bonds described in the notice shall not be issued. Such protests shall not, however, be a bar to proceeding with the undertaking under the provisions of article 16-08, and article 17-01 of N.D.C.C. If the protests are found to be insufficient or invalid by the city commission at a regular or special meeting occurring within 30 days after the expiration of the time for filing such protests, the city commission may proceed to issue the bonds in accordance with paragraph (A) of this ordinance.

D. Protests described in paragraph (C) shall contain the date of signature, the signature of the elector, the address of the elector, the age of the elector, and the length of residency within the city of Fargo of the elector. If any of these protest signature requirements are missing from the petition, the protest shall not be counted by the city auditor.

E. If a tax is ever levied for any deficiency in the bond reserve, the amount thereof shall be restored to the general fund of the city from the net revenues of the utility received in excess of current expenses of operation and maintenance, and current payments of principal and interest on any outstanding revenue bonds for that utility.

F. The city commission also reserves the right to levy assessments with respect to any improvement, or to establish connection charges and to appropriate part or all of the collections thereof to the sinking fund, established for any bonds issued pursuant to this ordinance.

Source: 2107 (1983), 2566 (1991).

ARTICLE 16-09

DROUGHT RESPONSE MEASURES

Section

16-1901 Procedural definitions.
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16-0905 Drought severity phases--Declaration.
16-0906 Waivers.
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16-1901. Procedural definitions.--The following procedural definitions apply to this article:

A. "Notice of violation". A notice of violation is a written notice of the violation of an ordinance in this article which identifies the nature of the violation, the section or ordinance allegedly violated and the time of occurrence of the violation, if known.

B. "Administrative compliance order". An administrative order is an order issued by the enterprise director which identifies the nature of the violation, the section or ordinance allegedly violated, the time of occurrence of the violation, if known, the corrective steps necessary and the nature of subsequent penalties and enforcement actions should the situation not be corrected and ordering that the alleged violator come into compliance with the section or ordinance allegedly violated. The administrative order may provide a time period within which compliance must occur.

C. "Administrative compliance order with fine". An administrative order with fine is an administrative order that also provides that the city will impose a civil fine if compliance does not occur within the time provided in the order.

D. "Order to show cause". An order issued by the enterprise director issued when there is reason to believe that the violation identified in the administrative order has not ceased or been corrected as required, and directing the alleged violator

to appear before the administrative enforcement board to show cause why further enforcement measures should not be taken or ordered or fees imposed, or both.

Source: 4539 (2006).

16-0902. Declaration of policy.--It is hereby declared that, because of the conditions prevailing in the city of Fargo, the health, safety and general welfare of the city requires that the water resources available to the city be put to the maximum beneficial use of the water resources, that unreasonable use of water and unreasonable methods of use of water be prevented, that waste of water be prevented, that water be conserved to the extent possible and that the reasonable and beneficial uses of water is all in the best interests of the people of the city of Fargo.

Source: 4539 (2006).

16-0903. Drought management plan.--The board of city commissioners, by resolution, may adopt a drought management plan that includes directives for education of the public regarding drought management, voluntary drought management measures and that may further outline the city's program to address drought management throughout the city.

Source: 4539 (2006).

16-0904. Drought management regulations.--The enterprise director is authorized to promulgate regulations describing restrictions and limitations on the use of water as well as affirmative action to be required by persons using water for one or more of the five drought severity phases, approved by a resolution of the board of city commissioners. The regulations may also include a schedule for irrigation or watering of golf courses, gardens, residential, commercial and industrial lawns, and so forth. The regulations may also, for a Phase III, Drought Watch, or more severe drought severity phase, establish special water usage rates and surcharges for use of water by activity or by industry. The regulations approved by the board of city commissioners shall take effect upon a single publication of the regulations in a newspaper of general circulation in the city.

Source: 4539 (2006).

16-0905. Drought severity phases--Declaration.--The level of drought severity, established by the board of city commissioners from time to time, shall be one of the following five phases, listed in increasing order of severity: Phase I - Normal, Phase II - Drought Advisory, Phase III - Drought Watch, Phase IV - Drought Warning and Phase V - Drought Emergency. Phase I, Normal, Drought Severity Phase shall be deemed to be in effect unless another drought severity phase has been declared by the board of city commissioners. The board of city commissioners may declare the particular drought severity phase to be in effect and may identify the effective date for implementation of the restrictions for such phase, as set forth in this article. In establishing the drought severity phase in effect, the board of city commissioners may rely upon the recommendation of the enterprise director or other person designated by the board of city commissioners as having knowledge and expertise in evaluating potential or existing drought conditions. To initiate a particular drought response, the board of city commissioners shall declare a drought severity phase and the effective date for implementation of applicable restrictions for such phase. The board of city commissioners may determine that the declaration of drought severity phase is to take effect immediately. The declaration of the

drought severity phase in effect shall be published in a newspaper of general circulation and shall take effect upon such publication of said declaration or the effective date in the declaration. In the case of an emergency declared by the board of city commissioners, the declaration may be deemed to take effect immediately upon passage, in which case the declaration shall be published in a newspaper of general circulation promptly after the declaration is declared by the board of city commissioners.

The determination by the board of city commissioners as to the drought severity phase to be declared shall be based upon an evaluation of four drought indicators including the Standardized Precipitation Index (SPI), the Palmer Drought Severity Index (PDSI), existing streamflow conditions and existing reservoir storage conditions and upon a finding that three out of the four such indicators establish a given phase. The board of city commissioners may revise the declared drought severity phase, from time to time, as conditions change.

Once a declaration has been made by the board of city commissioners as to the drought severity phase in effect, all persons shall comply with the regulations approved by the board of city commissioners as provided in section 16-0904.

Source: 4539 (2006).

16-0906. Waivers.--The enterprise director shall be authorized to waive any requirements within the approved drought management regulations upon making a finding that compliance with the requirement will involve an unnecessary hardship, and that waiver of such requirement is not contrary to the objectives of this article. The enterprise director may require as a condition of the waiver, a dedication or construction, or agreement to dedicate or construct, as may be necessary to adequately meet the said standards and requirements. All waivers must be in writing to be valid.

Source: 4539 (2006).

16-0907. Responsibility for enforcement.--The enterprise director is authorized to enforce this article and any regulations approved by the board of city commissioners pursuant to this article.

Source: 4539 (2006).

16-0908. Enforcement procedures.--The following enforcement procedures shall apply to violations of this article, in addition to the procedures set forth in article 1-04 pertaining to administrative enforcement.

A. Non-emergency matters. In the case of violations of this article that do not constitute an emergency, the enterprise director may:
   1. Issue a notice of violation;
   2. Issue an administrative order; or,
   3. Issue an administrative order with fine;

   All notices and orders shall be issued to any person who is alleged to be in violation of this article.

B. Emergency matters. In the case of violations of this article that do constitute an emergency situation, the city shall use all remedies, penalties and enforcement powers available under this article without prior notice, but the enterprise director must send notice simultaneously with beginning enforcement action to the person who is alleged to be in violation of this article and advise other persons who the enterprise director determines may be affected by the action

taken that a hearing will be held within seven days from the date of such action. At the hearing, the administrative enforcement board will determine whether there were appropriate grounds for the action taken, and whether the action taken should continue.

C. Adminstrative compliance orders--Procedure. Persons receiving an administrative order or an administrative order with fee shall have 10 days, or such longer period as the enterprise director allows, to correct the violation. If the violation is not corrected within the required time-frame, the enterprise director shall use all penalties, remedies and enforcement powers available under this article. Any notice or order issued by the enterprise director must be given in the manner required by the administrative enforcement ordinance, article 1-04 of the Fargo Municipal Code.

D. Administrative compliance order with fee/administrative complaint or citation--Procedure. The enterprise director shall include in the administrative complaint the amount of administrative fee to be paid by the person against whom the citation or complaint is issued. The authorized city employee or representative issuing the administrative citation need not issue an administrative order before issuing an administrative complaint.

E. Order to show cause--Hearing. In the event the enterprise director has issued an administrative order or an administrative order with fee, if the violation is not corrected by timely compliance, the enterprise director may order any person who causes or allows an unauthorized discharge to show cause before the administrative enforcement board why water service should not be shut off. A notice shall be served on the offending party, specifying the time and place of a hearing to be held by the administrative enforcement board regarding the violation, and directing the offending party to show cause before said board why an order should not be made directing the shut off of water service. The notice of the hearing shall be served personally or by registered or certified mail (return receipt requested) at least 10 days before the hearing in accordance with the provisions of article 1-04. The hearing before the administrative enforcement board shall be held in the same manner, and under the same rules and procedures as provided in article 1-04.

Source: 4539 (2006).

16-0909. Remedies and enforcement powers.--The city shall have the following remedies and enforcement powers, including all the authority as set forth in article 1-04 of the municipal code regarding administrative enforcement.

A. Water shut off. The enterprise director or the board of city commissioners may order the shut off of the supply of water to the violator, subject to the procedure as set forth in this article.

B. Withhold permits. The city may deny or withhold all permits, certificates or other forms of authorization as to any applicant for any permit that is issued by the city. Instead of withholding or denying an authorization, the city may grant such authorization subject to the condition that the violation be corrected. The city may deny or withhold all permits, certificates or other forms of authorization on any land or structure or improvements owned by a person who owns,

developed or otherwise caused an uncorrected violation of a provision of this article or of a condition or qualification of a permit, certificate, approval or other authorization previously granted by a decision-making body. This provision applies regardless of whether the property for which the permit or other approval is sought is the property where the violation occurred.

C. Injunctive relief. The city may seek an injunction or other equitable relief in court to stop any violation of this article or of a permit, certificate or other form of authorization granted hereunder.

D. City attorney's fees and costs--In addition to the fees and penalties provided herein, the city may recover reasonable attorney's fees, court costs, court reporter's fees, and other expenses of litigation by appropriate action against the person found to have violated this chapter or the orders, rules, regulations and permits issued hereunder.

E. Other remedies. The city shall have such other remedies as are and as may be from time to time provided by North Dakota law and municipal codes for the violation of this article or related provisions.

F. Remedies cumulative. The remedies and enforcement powers established in this article are cumulative. An administrative enforcement board may hold a single hearing to consider evidence and render decisions on appeals from administrative citations or complaints, orders to show cause or other administrative proceedings involving one or more alleged violators stemming from the same occurrence or series of occurrences.

Source: 4539 (2006).

16-0910. Enforcement--Non-compliance and re-inspection fees.--Any person who is found to have violated an order of the enterprise director made in accordance with this chapter, or who has failed to comply with any provision of this chapter and the orders, rules, regulations and permits issued hereunder, is guilty of an offense. Each day on which a violation occurs or continues to exist shall be deemed a separate offense. A schedule for noncompliance and re-inspection fees to defray the administrative and other costs of monitoring and enforcement of this ordinance may be approved by the board of city commissioners.

Source: 4539 (2006).

16-0911. Other powers.--In addition to the enforcement powers specified in this article, the city may exercise any and all enforcement powers granted to them by North Dakota law.

Source: 4539 (2006).

16-0912. Continuation.--Nothing in this article shall prohibit the continuation of previous enforcement actions undertaken by the city pursuant to previous and valid ordinances and laws.

Source: 4539 (2006).

16-0913. Power and authority of inspectors--Right of entry.-- Where it is necessary to make an inspection to enforce the provisions of this code, or where the engineers or inspections officer has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this article the engineer or inspections officer is authorized to enter the structure or premises at reasonable times to inspect or to perform the

duties imposed by this code, provided that if such structure or premises be occupied that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the engineer or inspections officer shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the engineer shall have recourse to the remedies provided by law to secure entry.

Source: 4539 (2006).

16-0914. Savings clause--Conflict.--In the event that any provision, paragraph, word, section or article of this ordinance is invalidated by any court of competent jurisdiction, the remaining provisions, paragraphs, words, sections and articles shall not be affected and shall continue in full force and effect.

Source: 4539 (2006).

CHAPTER 17

SEWERS AND SEWAGE*

Article	
17-01	Sewerage Utility and Revenue Bond Fund, §§ 17-0101 to 17-0108.
17-02	Control and Regulation of Sewerage System, §§ 17-0201--17-0204.
17-04	General Requirements, §§ 17-0401 to 17-0414.
17-05	Wastewater Discharge Permit Requirements, §§ 17-0501 to 17-0514.
17-06	Reporting Requirements, §§ 17-0601 to 17-0611.
17-07	Sampling and Analytical Requirements, §§ 17-0701 to 17-0703.
17-08	Compliance Monitoring, §§ 17-0801 to 17-0804.
17-09	Confidential Information, § 17-0901.
17-10	Publication of Users in Significant Non-Compliance, § 17-1001.
17-11	Administrative Enforcement Remedies, §§ 17-1101 to 17-1109.
17-12	Judicial Enforcement Remedies, §§ 17-1201 to 17-1203.
17-13	Supplemental Enforcement Action, §§ 17-1301 to 17-1305.
17-14	Affirmative Defenses to Discharge Violations, §§ 17-1401 to 17-1403.
17-15	Wastewater Treatment Rates, §§ 17-1501 to 17-1511.
17-16	Miscellaneous Provisions, §§ 17-1601 to 17-1605.

***Note**—Chapter 17, pertaining to Sewers and Sewerage, was revised in 2019 with the passage of Ord. No. 5203, adopted April 22, 2019, by which articles 17-02, 17-04 and 17-05 were repealed and re-enacted in their entirety and articles 17-06 through 17-16 were enacted. To the extent reasonably possible, the annotated "sources" of various sections of enacted and re-enacted provisions have been included, for historical reference purposes, to prior ordinances addressing equivalent subject matter.

ARTICLE 17-01

SEWERAGE UTILITY AND REVENUE BOND FUND

Section

17-0101 Authorization of revenue bonds.
17-0102 Disposition of and accounting for bond proceeds.
17-0103 Sewerage utility fund.
17-0104 Priorities among issues of revenue bonds.
17-0105 Covenants for the security of revenue bonds.
17-0106 Sale, execution, and delivery of bonds.
17-0107 Sewerage rates and rules.
17-0108 Industrial waste--Cost recovery--Repealed by Ord. No. 4481 (2005).

17-0101. Authorization of revenue bonds.--It is hereby found, determined, and declared that the sewerage system owned and operated by the city, herein referred to as the "municipal sewerage utility," comprising all systems, plants, works, instrumentalities, and properties used and useful in connection with the collection, treatment, and disposal of sewage, waste, and storm water, together with all parts thereof and appurtenances thereto, including, but without limitation, lands, easements, rights in land, the sewage disposal plant, intercepting sewers, trunk connections, other sewer mains, pumping stations, and equipment, constitutes a municipal undertaking as described in chapter 40-35 of the North Dakota Century Code, as amended, under the provisions of which law the city may improve, better, and extend said utility and may pay the cost thereof in whole or in part by the issuance of revenue bonds, payable exclusively from the net revenues of said utility; provided, that no holder thereof shall ever have the right to compel any exercise of the taxing power of the city to pay said bonds or the interest thereon, or to enforce payment thereof against any property of the municipality, and said bonds shall not constitute a charge, lien, or encumbrance, legal or equitable, upon any property of the city. Such bonds are hereby authorized to be issued and sold in such amounts and at such times and subject to such terms with reference to time and manner of payment of principal and interest as the board of city commissioners shall determine, by resolution duly adopted at a regular meeting thereof, to be necessary and expedient for the purpose of keeping the utility in a state of efficiency corresponding to the progress of sewerage utilities generally; provided, that all such bonds shall be issued subject to the further terms and provisions of this article.

Source: 1952 Rev. Ord. 17-0101, 1098 (1961).

17-0102. Disposition of and accounting for bond proceeds.--Upon delivery of each issue of such revenue bonds the entire proceeds thereof, except accrued interest and premium, if any, received thereon, shall be deposited by the city treasurer in a separate bank account in a duly qualified depository bank and secured as required by the laws of the state of North Dakota, and shall be held and accounted for on the books of the city as a separate and special construction fund; and the monies in said fund shall be disbursed only upon orders duly executed pursuant to claims duly allowed by this board for the payment of expenses which, in accordance with sound accounting practices, constitute legitimate capital expenditures for the improvement of said municipal sewerage utility, in accordance with plans and specifications theretofore approved by said board; provided, that any monies in such construction fund

which are not immediately required for payment of such expenses may, in the discretion of said board and where authorized by resolution thereof, be invested in general obligations of the United States government maturing not more than one year from the date of such investment. The costs of improvements to be paid from said construction fund shall include all expenses incurred and to be incurred which are reasonably required for the completion thereof in accordance with the plans and specifications thereof, including, but without limitation, amounts due to the contractor or contractors for work and materials furnished, the cost of all lands, easements, equipment, materials, and labor necessary to be procured by the city in connection therewith, all costs of the issuance of the revenue bonds financing the same, and all engineering, inspection, fiscal, and legal expenses.

Source: 1952 Rev. Ord. 17-0102, 1098 (1961).

17-0103. Sewerage utility fund.--So long as the principal of or interest on any of the bonds authorized by this article to be issued shall be outstanding and unpaid, the city irrevocably covenants with the holders from time to time of each of said bonds that it will maintain within the municipal utilities fund established by § 16-0703 of chapter 16, a special subfund which is hereby created and designated as the "sewerage utility fund." The monies from time to time held in said sewerage utility fund shall be accounted for on the books and records of the city, separate from all other funds and separate from any other monies of the municipal utilities fund pertaining to any public utility other than the sewerage utility now or hereafter operated by the city. Into the sewerage utility fund there shall be credited and paid as received the entire gross revenues derived from the operation of the sewerage utility and from any future additions thereto and betterments thereof, including all income and receipts derived from rates, fees and charges for services, facilities, products and by-products of the utility furnished or sold to the city and its inhabitants and all other customers, and for the availability thereof, and from sale of any of the properties of the utility not necessary to be retained, and from the investment of any of the monies so collected; but such gross revenues shall not be deemed to include any sums realized from special assessments or taxes which may be levied or bonds or other obligations which may be issued for the financing of improvements to said utility. All such gross revenues shall be deposited as received in a duly qualified depository bank and secured as required by law. On the books and records of the sewerage utility fund there shall be established and maintained four separate accounts, to be designated as the "operation and maintenance account," "revenue bond account," "reserve account," and "surplus account," respectively. The revenues on hand, in the sewerage utility fund from time to time shall be apportioned among the said accounts at least once in each calendar month and shall thereafter be held and administered in and disbursed from the several accounts as follows:

A. To the operation and maintenance account there shall be credited upon each such monthly apportionment, as a first lien and charge on the gross revenues, such sum as shall be needed, over and above any credit balance then held therein, to pay all claims then due and allowed which by accepted accounting practices constitute normal, reasonable, and current expenses of operation and maintenance of the utility, and to pay such expenses estimated to accrue for a period of one month, and to maintain a reasonable reserve for contingencies. Monies in said account shall be used only to pay expenses of the foregoing type, and not for major repairs, replacements, or capital improvements which are properly chargeable to replacement and depreciation reserves or surplus funds. The net revenues

of the utility, which are herein pledged and appropriated to the extent required for the payment of the bonds herein authorized and interest thereon, are hereby defined as the aggregate of all sums on hand in the sewerage utility fund from time to time in excess of the current requirements of the operation and maintenance account as herein set forth.

B. To the revenue bond account there shall be credited out of the net revenues on hand at the time of each such distribution, an amount equal to not less than one-twelfth of the sum of the principal and interest payments to become due upon all outstanding bonds which are payable from said account within the next succeeding period of 12 months. If the net revenues on hand at any time are insufficient to permit the transfer to said account of the full amount so required, such deficiency shall be restored out of the next net revenues thereafter received. There shall also be credited to said account the premium and accrued interest, if any, paid on each issue of revenue bonds payable from said account. The monies in said account shall be used only for the purpose of paying the principal and interest, as such principal and interest respectively become due, on revenue bonds which are issued and made payable therefrom, as a first lien and charge on the net revenues, in accordance with the provisions of § 17-0104. All monies pertaining to said revenue bond account shall be deposited as received in a special bank deposit account, separate from all other funds of the city.

C. To the reserve account there is hereby credited the sum of $66,000, from net revenues of the sewerage system which are now on hand and available for such purpose. It is the intention hereof to establish and maintain in said account a reserve at all times at least equal to the average of the annual principal and interest payments thereafter required to be made from the revenue bond account, and in the event that such average annual principal and interest requirements shall exceed $66,000 by reason of the authorization of any issue of bonds payable from the revenue bond account, additional net revenues shall be transferred to the reserve account monthly in amounts sufficient to increase the balance therein to the amount so required within three years from and after the issuance of such bonds. Monies in the reserve account shall be used only for the payment of maturing principal and interest on bonds primarily payable from the revenue bond account, when and as the monies in the revenue bond account are insufficient therefor, and whenever so used shall be restored out of the next net revenues thereafter received. All monies pertaining to the reserve account shall be deposited as received in a special bank deposit account, separate from all other funds of the city; provided, that such monies may be invested in the discretion of the board of city commissioners but only in general obligations of the United States government maturing within one year from and after the date of purchase thereof.

D. All surplus net revenues from time to time received, in excess of the current requirements of the revenue bond account and reserve account, shall be credited on the books of the city of the surplus account of the sewerage utility fund; provided, that the city reserves the right to create additional accounts within said fund for the purpose of segregating any of such surplus net revenues which may be pledged and appropriated to the payment of any obligations hereafter

issued to finance improvements, replacements, or repairs of said utility, other than bonds made payable from the revenue bond account, and subject to the prior lien on the net revenues of the bonds payable from that account. Surplus net revenues on hand from time to time shall be available and shall be used to the full extent necessary to restore any deficiency in the operation and maintenance account and the revenue bond account and reserve account, but when not so needed may be used to pay for capital improvements, replacements, or repairs of the sewerage utility, or to pay principal and interest on obligations hereafter issued for such purposes, other than bonds payable from the revenue bond account, or may be used to redeem and pay prior to maturity bonds payable from the revenue bond account, when and as such bonds become redeemable according to their terms. Monies in the surplus account determined by the board of city commissioners to be in excess of the immediate requirements of said account for the repair, enlargement, alteration, improvement, or extension of the utility may be invested in accordance with the provisions of § 16-0704 of chapter 16 of the Revised Ordinances of 1965 and § 40-33-12 of the North Dakota Century Code, as amended. The board shall maintain in said account such a balance of cash and investments as it shall from time to time determine to constitute an adequate reserve for operation and maintenance emergencies and for depreciation and contemplated improvements or replacements; but monies in excess of such reserve may be transferred to other funds of the city in accordance with and subject to the limitations contained in said § 16-0704 and in § 40-33-12 of the North Dakota Century Code.

Source: 1952 Rev. Ord. 17-0103, 1098 (1961).

17-0104. Priorities among issues of revenue bonds.--The total principal amount of revenue bonds which may be issued and made payable from said revenue bond account, as a first and prior lien and charge on the net revenues of the utility, as herein defined, is limited to the amount required to pay the cost of the enlargement of the sewage disposal plant in accordance with plans and specifications approved by the board of city commissioners on and prior to May 1, 1961, less the amount of such cost to be paid from federal grants made for that purpose, which net cost is presently estimated to be approximately $1,000,000; and after the initial issuance of revenue bonds in this amount, no additional obligations of any kind shall be issued or incurred and made payable from said net revenues unless the lien thereof upon said net revenues is expressly made junior and subordinate to that in favor of the bonds issued hereunder; save and except that:

A. If monies on hand in the sewerage utility fund should at any time be insufficient for the payment of the principal and interest then due on all bonds payable from the revenue bond account, any matured bonds which cannot be paid from said monies may be refunded by the issuance of refunding revenue bonds, which refunding bonds may be made payable from the revenue bond account on a parity as to interest with all then outstanding bonds payable from said account, but shall mature not earlier than one year after the latest maturity date of such outstanding bonds.

B. In the event that the board of city commissioners shall at any time determine it to be necessary and expedient to issue additional bonds to finance capital

improvements of said utility, or to refund outstanding bonds payable from the revenue bond account which are then prepayable according to their terms for the purpose of reducing the interest rate or interest cost or extending the maturities thereof, such additional or refunding revenue bonds may be made payable from the revenue bond account on a parity as to both principal and interest with the then outstanding bonds payable from said account, if the average of the annual net revenues received during the three fiscal years next preceding such issuance shall have equaled or exceeded 125% of the maximum sum of principal and interest to become due and payable from said account on all then outstanding bonds and on all additional bonds so issued, in any subsequent fiscal year of the then remaining term of said outstanding bonds.

C. If any of the rates and charges for sewerage service shall have been increased or reduced at the date of issuance of such additional bonds from those in effect during any portion of said three fiscal years, the net revenues for such period shall be deemed, for the purpose of the computation required in part (B), to be those which would have been received by applying the revised rates and charges to the quantities of sewerage service actually rendered and made available during such period, and by deducting from the gross revenues so determined the actual operating expenses of the utility for said period; provided, that where sewerage rates are based on water consumption, the quantities consumed shall be reduced by the estimated decrease in actual consumption due to any increase in such rates. The computation of the net revenues in the event of any change in rates shall be made by a qualified and disinterested engineer and approved by the board of city commissioners. In no event shall the net revenues for any period under a revised schedule of rates and charges be deemed to be more than 150% of the net revenues actually received during such period.

D. Upon the issuance of any additional revenue bonds pursuant to this article after the payment and discharge of all such bonds issued prior to January 1, 1972, only the net revenues received in the fiscal year immediately preceding such issuance shall be considered in applying the provisions of subsection (B) above, and no limitation shall be placed on the upward adjustment of such net revenues by the application of revised rates and charges pursuant to subsection (C) above, and the computation of such adjusted net revenues shall be made by the city auditor.

Source: 1965 Rev. Ord. 17-0104, 1495 (1973).

17-0105. Covenants for the security of revenue bonds.--The city hereby further covenants and agrees with the original purchaser and each holder from time to time of each bond issued hereunder, as follows:

A. It will complete all improvements financed by the issuance of such bonds in substantial accordance with the approved plans and specifications therefor and with due diligence and with the greatest economy consistent with good workmanship and efficient results and will do so without creating or permitting the creation of any liens and encumbrances on said utility or on the revenues thereof other than the liens and charges on said revenues expressly authorized in this ordinance.

B. As long as any of such bonds are outstanding, it will continue to own and operate said utility as a municipal utility, free from all competition as to the services thereby provided and in good and efficient operating condition.

C. It will at all times maintain and collect reasonable rates, charges, and rentals for all services, facilities, commodities, and benefits furnished and made available by said utility according to schedules such that the net revenues derived therefrom will be at least sufficient to pay into said revenue bond account and reserve account the amounts required in § 17-0103 hereof at the times therein provided and to provide surplus net revenues adequate for payment of principal and interest on any obligations hereafter issued as a lien on the net revenues junior to the lien of bonds payable from the revenue bond account, and will revise such schedules in such manner and whenever and as often as needed to perform this covenant.

D. Under each such schedule the city shall be obligated to pay and will pay from its other funds to the sewerage utility fund a fair and equitable amount for any and all services, facilities, commodities, and benefits furnished to the city or any of its departments by the utility.

E. It will at all times maintain books of account adequate to show all receipts and disbursements of the city respecting the utility, and the application of such receipts to the purposes of the several accounts of the sewerage utility fund as provided in § 17-0103 hereof, which books of account shall be open to inspection at any reasonable time by the holder of any revenue bond, and it will furnish a certified transcript therefrom of any information which any such bondholder may request, upon payment of a reasonable fee therefor.

F. At the close of each fiscal year, being the 12-month period ending on June 30 of each year as provided in the statutes of the state of North Dakota, it will cause an operating statement to be prepared and included in the annual financial statement of the city required by the provisions of § 40-16-05 of the North Dakota Century Code, showing the financial condition of the receipts and disbursements of the sewerage utility fund and of its several accounts during such fiscal year, and a copy of each statement will be furnished to the original purchaser of each issue of revenue bonds, and also to any holder of such bonds upon request. The city will also cause the books of account of the utility to be audited by a certified public accountant as soon as may be after the close of each fiscal year, and will furnish a copy of the report of each such audit to the original purchaser of each issue of revenue bonds, and will make the same available upon request to any holder of such bonds. The cost of all such accounting and audits shall be paid as an operating expense of the utility.

G. It will at all times keep the properties of said utility insured in reasonable amounts against loss or damage by all causes against which similar properties are customarily insured by prudent owners thereof, and will carry adequate public liability insurance against any claim of personal injury or property damage which is or may become a charge against the revenues of the utility, and will cause all persons handling funds of the utility to be bonded in suitable amounts for the protection of the city and the holders of said revenue bonds, and such insurance and fidelity bonds will be carried with the state fire and

tornado fund or such other reputable and responsible insurers as shall be selected by the board of city commissioners, and the expense of all such insurance and bonds shall be paid as an operating cost of the utility, and the city will use the proceeds thereof, immediately upon the occurrence of any loss or damage covered thereby, to restore such loss or damage.

H. The city will use due diligence in the selection and supervision of employees charged with the operation of said utility and the handling of the funds thereof and in the operation and maintenance and the collection of the revenues of said utility, to the end that the properties thereof shall be kept in good and efficient operating condition and the revenues shall not be lost or mishandled. Bills for sewerage service will be presented to all customers not less often than quarterly, and if any bill is not paid within 15 days from the due date thereof, the supply of water to the premises involved shall be discontinued, and such premises shall not be reconnected until full payment of all charges due for sewerage service together with penalties.

I. The city and its governing body and each and all of its officers will punctually perform all duties with reference to said utility and the revenues thereof and the bonds herein authorized which are imposed by law and the ordinances and resolutions of the city, including this ordinance, in force upon the date upon which any of such bonds are issued, and all conditions of the constitution and laws of the state and of such ordinances and resolutions as will provide security for the holders of the bonds issued hereunder are acknowledged to be a part of the city's contract with the holders from time to time of such bonds; provided, that nothing herein shall be deemed to preclude the city from modifying the rates and charges and billing procedures now in effect to any extent which will not impair the sufficiency of the revenues of said utility to comply with the remaining provisions of this ordinance.

J. The holders of 25% or more in principal amount of each issue of bonds payable from the net sewerage utility revenues which are at any time outstanding shall be privileged and are hereby empowered to institute and maintain, in behalf of the holders of all outstanding bonds of such issue, any suit or proceedings at law or in equity for the protection and the enforcement of any covenant, agreement, or stipulation herein provided to be performed or observed by the city or its governing body or any of its officers, whether or not any of such bonds are then in default as to the principal and interest, and each and all of the rights and remedies specified and mentioned in §§ 40-35-15 to 40-35-19, inclusive, of the North Dakota Century Code, as amended, are hereby acknowledged to be available to the holders of such bonds.

K. In the event that monies on hand in the revenue bond account and reserve account should be insufficient at any time to pay all principal and interest then due on bonds payable from said accounts, and cannot be made sufficient by transfers of monies from other accounts of the sewerage utility fund, such monies shall be first used to pay the interest then due or to become due on the next succeeding interest payment date on all such then outstanding bonds, and any monies on hand in excess of amounts required for the payment of all such

interest shall be applied to the payment of maturing principal on such bonds in order of their maturity dates, earliest maturing bonds first, and prorata to the payment of the principal of bonds maturing on the same date.

Source: 1952 Rev. Ord. 17-0105, 1098 (1961).

17-0106. Sale, execution, and delivery of bonds.--All bonds issued in accordance with the provisions of this article shall be sold in the manner required by the laws of the state of North Dakota and shall be prepared for execution in such form as shall be determined by the board of city commissioners; provided, that all such bonds shall be deemed to be negotiable instruments as provided in § 40-35-10 of the North Dakota Century Code, and shall have coupons appurtenant, evidencing the interest payable thereon at the rate or rates specified in the contract of sale thereof, but may be issued in form permitting registration of the ownership of the principal thereof. Pending preparation of definitive bonds, interim certificates or receipts may be issued to the purchaser of any issue of such revenue bonds, in such form and with such provisions as the board of city commissioners may determine, which certificates or receipts shall also be deemed to be negotiable instruments. The bonds of each issue, or the interim certificates or receipts evidencing the same, when prepared in accordance with the foregoing provisions, shall be executed and authenticated by the signature of the president of the board of city commissioners and countersigned by the city auditor, and the interest coupons appurtenant thereto shall be executed and authenticated by the printed, engraved, or lithographed facsimile signatures of said officers, and such bonds, certificates, or receipts shall then be delivered to the purchaser upon receipt of the purchase price specified in the contract of sale thereof, and the purchaser shall not be obliged to see to the application of the purchase price. The officers of the city are further authorized and directed to furnish to the purchaser of each issue of such revenue bonds certified copies of all ordinances, resolutions, and other proceedings of the city with reference to the establishment, improvement, and administration of said utility and the funds thereof and the issuance of said revenue bonds, and such additional certificates and affidavits as to matters appearing on the records in their official custody or otherwise known to them, as may be reasonably required to evidence the legality and marketability of such bonds; and all such certified copies, certificates, and affidavits shall be deemed to constitute representations and recitals of the city of Fargo as to the correctness of all statements therein contained.

Source: 1952 Rev. Ord. 17-0106, 1098 (1961).

17-0107. Sewerage rates and rules.-- The city reserves the right to impose surcharges and to change rates for use and availability of sewerage service from time to time, in accordance with the provisions of Article 17-04.

Source: 1965 Rev. Ord. 17-0107, 1851 (1978), 4481 (2005).

17-0108. Industrial waste--Cost recovery.--repealed by Ord. 4481 (2005).

Source: 1965 Rev. Ord. 17-0108, 1852 (1978).

ARTICLE 17-02

CONTROL AND REGULATION OF SEWERAGE SYSTEM*

Section

17-0201. Purpose and policy.
17-0202. Administration.
17-0203. Definitions.
17-0204. Abbreviations.

17-0201. Purpose and policy.--This ordinance sets forth uniform requirements for users of the Publicly Owned Treatment Works (POTW) for the city of Fargo, ND and enables the city of Fargo to comply with all applicable State and Federal laws, including the Clean Water Act (33 USC §1251 et seq.) and the General Pretreatment Regulations (40 C.F.R. Part 403). The objectives of this ordinance are:

A. To prevent the introduction of pollutants into the POTW that will interfere with the operation of the POTW;

B. To prevent the introduction of pollutants into the POTW which will pass through the POTW, inadequately treated, into receiving waters or otherwise be incompatible with the POTW;

C. To ensure that the quality of the wastewater treatment plant sludge is maintained at a level which allows its use and disposal in compliance with applicable statutes and regulations;

D. To protect POTW personnel who may be affected by wastewater and sludge in the course of their employment and to protect the general public; and

E. To improve the opportunity to recycle and reclaim wastewater and sludge from the POTW.

This article shall apply to all users of the POTW. This article authorizes the issuance of wastewater discharge permits; authorizes monitoring, compliance, and enforcement activities; establishes administrative review procedures; requires user reporting; and provides for the setting of fees for the equitable distribution of costs resulting from the program established herein.

Source: 5203 (2019).

17-0202. Administration.--Except as otherwise provided herein, the Director shall administer, implement, and enforce the provisions of this ordinance. Any powers granted to or duties imposed upon the Director may be delegated by the Director to other city of Fargo personnel.

Source: 5203 (2019).

***Editor's note**—Ord. No. 5203, §§ 1, 2, adopted April 22, 2019, repealed the former Art. 17-02, §§ 17-0201--17-0211, and re-enacted a new Art. 17-02 as set out herein. The former Art. 17-02 pertained to similar subject matter and derived from Ord. No. 2187, adopted in 1985; Ord. Nos. 2297 and 2298, adopted in 1986; Ord. Nos. 2573, 2574 and 2575, adopted in 1991; Ord. No. 2784, adopted in 1996; Ord. No. 2899, adopted in 1998; Ord. No. 4150, adopted in 2001; Ord. Nos. 4231 and 4273, adopted in 2002; Ord. No. 4319, adopted in 2003; Ord. Nos. 4354 and 4362, adopted in 2003; and Ord. No. 4483, adopted in 2005.

17-0203. Definitions.--The following words, terms and phrases are hereby defined and shall be interpreted as such throughout this chapter. Terms not herein defined shall have the meaning customarily assigned to them:

1. "Act" or "the Act." The Federal Water Pollution Control Act, also known as the Clean Water Act, as amended. 33 U.S.C. 1251 et seq.

2. "Approval Authority." State of North Dakota Department of Health.

3. "Authorized Representative of the User."

a. If the user is a corporation or limited liability company (LLC):

i. The president, general manager of an LLC, secretary, treasurer, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation or LLC; or

ii. The manager of one or more manufacturing, production, or operation facilities, provided, the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations and initiating and directing other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for control mechanism requirements; and where authority to sign documents has been assigned or delegated to the manger in accordance with corporate procedures.

b. If the user is (a) a partnership including a limited partnership, limited liability partnership or limited liability limited partnership or (b) a sole proprietorship: a general partner or proprietor, respectively;

c. If the user is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or his/her designee.

d. The individuals described in paragraphs a through c above may designate another authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the city of Fargo.

4. "Best Management Practices (BMPs)." Shall mean the schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in §403.5(a)(1) and (b) of the Act and in section 17-0403. BMP also include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

5. "Biochemical Oxygen Demand (BOD)." The quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five (5) days at 20 degrees Celsius, usually expressed as a concentration [milligrams per liter (mg/l)].

6. "Building drain." That part of the lowest horizontal piping of a drainage system which receives the discharge from soil, waste, and other drainage pipes inside the walls of the building and conveys it to the building sewer.

7. "Building sewer (also house connection or service sewer)." The extension from the building drain to the public sewer or other place of disposal.

8. "Categorical Pretreatment Standard or Categorical Standard." Any regulation containing pollutant discharge limits promulgated by the U.S. EPA in accordance with Sections 307(b) and (c) of the Act (33 U.S.C. §1317) which applies to a specific category of users and which appears in 40 C.F.R. Chapter 1, Subchapter N, Parts 405--471, as the same may be amended from time to time.

9. "Categorical User." An industrial user regulated by one of the EPA's Categorical Pretreatment Standards.

10. "City." The city of Fargo, a municipal corporation of the state of North Dakota.

11. "Color." The optical density at the visual wave length of maximum absorption, relative to distilled water. One hundred percent (100%) transmittance is equivalent to zero (0.0) optical density.

12. "Combined Sewer." A sewer intended to receive both wastewater and storm or surface water.

13. "Composite Sample." The sample resulting from the combination of individual wastewater samples taken at selected intervals based on an increment of either flow or time.

14. "Control Authority." The city of Fargo.

15. "Cooling Water/Non-Contact Cooling Water." Water used for cooling which does not come into direct contact with any raw material, intermediate product, waste product, or finished product. Cooling water may be generated from any use, such as air conditioning, heat exchangers, cooling or refrigeration to which the only pollutant added is heat.

16. "Director." The director of wastewater utilities of the city of Fargo, or the authorized deputy, agent or representative of said director.

17. "Domestic User (Residential User)." A "domestic user" is a user that is not regulated under federal categorical pretreatment standards but that applies to the city of Fargo for a new building permit or occupies an existing building and plans to commence discharge of wastewater to the city of Fargo collection system after the effective date of this ordinance. A "new source," as defined above, is regulated under federal categorical pretreatment standards and, therefore, a new source is not a domestic user as described in this definition.

18. "Easement." An acquired legal right for the specific use of real property owned by others.

19. "Environmental Protection Agency (EPA)." The U.S. Environmental Protection Agency or, where appropriate, the Director of Region 8 Office of Water, or duly authorized official of said agency.

20. "Floating Oil." Oil, fat, or grease in a physical state such that it will separate by gravity from wastewater by treatment in an approved pretreatment facility. A wastewater shall be considered free of floatable oil if it is properly pre-treated and the wastewater does not interfere with the wastewater facilities.

21. "Grab Sample." A sample which is taken from a waste stream on a one-time basis without regard to the flow in the waste stream and without consideration of time.

22. "Indirect Discharge or Discharge." The introduction of pollutants into the POTW from any non-domestic source regulated under Section 307(b), (c), or (d) of the Act.

The discharge into the POTW is normally by means of pipes, conduits, pumping stations, force mains, constructed drainage ditches, surface water intercepting ditches, and all constructed devices and appliances appurtenant thereto.

23. "Industrial cost recovery period." A period of 30 years starting at the time of receipt of federal grant money used for the purpose of constructing wastewater facilities during which the grant allocable to the treatment of waste from industrial users is recovered from the industrial users of such facilities.

24. "Industrial User." Shall mean any nondomestic source regulated under section 307(b), (c) or (d) of the Clean Water Act that introduces pollutants into the city's wastewater treatment works.

25. "Interference." A discharge which alone or in conjunction with a discharge or discharges from other sources, either: (1) inhibits or disrupts the POTW, its treatment processes or operations; (2) inhibits or disrupts its sludge processes, use or disposal; or (3) is a cause of a violation of the city of Fargo's NPDES permit or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued thereunder (or more stringent State or local regulations): Section 405 of the Act; the Solid Waste Disposal Act (SWDA), including Title II commonly referred to as the Resource Conservation and Recovery Act (RCRA); any State regulations contained in any State sludge management plan prepared pursuant to Subtitle D of the SWDA; the Clean Air Act; the Toxic Substances Control Act.

26. "Letter of intent." Notification from an industrial user to the city of Fargo of that user's intent to utilize a publicly owned treatment facility for a given period of time.

27. "Maximum Allowable Discharge Limit." The maximum concentration (or loading) of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composited sample collected, independent of the industrial flow rate and the duration of the sampling event.

28. "May." "May" is permissive. (See "Shall").

29. "National Pretreatment Standard, Pretreatment Standard, or Standard." Shall mean any regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307(b) and (c) of the Act, which applies to Industrial Users. This term includes prohibitive discharge limits established pursuant to Section 403.5 of the Act.

30. "Natural outlet." Any outlet, including storm sewers and combined sewer overflows, into a watercourse, pond, ditch, lake or other body of surface or ground water.

31. "New Source."

a. Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants, the construction of which commenced after the publication of proposed categorical pretreatment standards under Section 307.8 of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

i. The building, structure, facility, or installation is constructed at a site at which no other source is located; or

ii. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

iii. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an

existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

b. Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of Section a.(ii) or (iii) above but otherwise alters, replaces, or adds to existing process or production equipment.

c. Construction of a new source as defined under this definition has commenced if the owner or operator has:

i. Begun, or caused to begin as part of a continuous on-site construction program:

1. Any placement, assembly, or installation of facilities or equipment; or

2. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

ii. Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this definition.

32. "Pass Through." A discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the city's NPDES permit (including an increase in the magnitude or duration of the violation).

33. "Permittee." A person or user issued a wastewater discharge permit.

34. "Person." Any individual, partnership, including limited partnership, limited liability partnership or limited liability limited partnership, co-partnership, firm, company, corporation, limited liability company, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns. This definition includes all federal, state, or local governmental entities.

35. "pH." A measure of the acidity or alkalinity of a substance, expressed in standard units.

36. "Pollutant." Any dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discharged equipment, rock, sand, cellar dirt, agricultural and industrial wastes, and the characteristics of the wastewater [i.e., pH, temperature, TSS, turbidity, color, BOD, Chemical Oxygen Demand (COD), toxicity, or odor].

37. "Pretreatment." The reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to (or in

lieu of) introducing such pollutants into the POTW, whether obtained by physical, chemical, or biological processes; by process changes; or by other means (except by diluting the concentration of the pollutants unless allowed by an applicable pretreatment standard).

38. "Pretreatment Requirement." Any substantive or procedural requirement related to pretreatment imposed on a user, other than a pretreatment standard.

39. "Pretreatment Standards or Standards." Prohibited discharge standards, categorical pretreatment standards, and local limits and/or BMPs established by the city of Fargo/POTW.

40. "Prohibited Discharge Standards or Prohibited Discharges." Absolute prohibitions against the discharge of certain substances, which appear in section 17-0403.

41. "Publicly Owned Treatment Works (POTW)." A "treatment works," as defined by Section 212 of the Act (33 U.S.C. §1292) which is owned by the city. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature and any conveyances which convey wastewater to a POTW as defined in Section 502(4) of the Act, which has jurisdiction over the indirect discharges to and the discharges from such a treatment works. The term also means the municipality as defined in section 502(4) of the Act, which has jurisdiction over the Indirect Discharges to and the discharges from such a treatment works.

42. "Septic Tank Waste." Any sewage from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.

43. "Sewage." Human excrement and gray water (household showers, dishwashing operations, etc.).

44. "Sewer." Any pipe, conduit ditch, or other device used to collect and transport sewage from the generating source.

45. "Sewer use charge." A monthly charge to all users of the wastewater facilities which is based on sewage volume, strength and/or flow.

46. "Shall," "May," "May Not." "Shall" is mandatory, "may" is permissive, and "may not" is prohibitive.

47. "Significant Industrial User (SIU)."

a. A user subject to categorical pretreatment standards; or

b. A user that:

i. Discharges an average of 25,000 gallons per day (GPD) or more process wastewater to the POTW (excluding sanitary, non-contact cooling, and boiler blowdown wastewater); or

ii. Contributes a process waste stream which makes up five (5) percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or

iii. Is designated as such by the city on the basis that it has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement; unless,

iv. Upon a finding that a user meeting any of the above three criteria has no reasonable potential for adversely affecting the POTW's operation or for violating an applicable pretreatment standard or requirement, Fargo may at any time, on its own initiative or in response to a petition received

from a user [and in accordance with procedures in 40 C.F.R. § 403.8(f)(6)] determine that such user should not be considered a significant industrial user.

48. "Significant Noncompliance" (403.8(f)(2)(vii)).

IU violations that meet one or more of the following criteria:

a. Chronic violations of wastewater discharge limits, defined here as those in which 66 percent or more of all the measurements for each pollutant parameter taken during a 6-month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits, as defined by 40 C.F.R. § 403.3(l).

b. Technical Review Criteria (TRC) violations, defined here as those in which 33 percent or more of all the measurements for each pollutant parameter taken during a 6-month period equal or exceed the product of the numeric pretreatment standard or requirement including instantaneous limits, as defined by 40 C.F.R. § 403.3(l) multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats, oil and grease and 1.2 for all other pollutants except pH).

c. Any other violation of a pretreatment standard or requirement as defined by 40 C.F.R. § 403.3(l) (daily maximum, long-term average, instantaneous limit, or narrative standard) that the POTW determines has caused, alone or in combination with other dischargers, interference or pass through (including endangering the health of POTW personnel or the general public).

d. Any discharge of a pollutant that has caused imminent endangerment to human health, welfare, or to the environment or has resulted in the POTW's exercise of its emergency authority under paragraph (f)(1)(vi)(B) of 40 C.F.R. § 403.8 to halt or prevent such a discharge.

e. Failure to meet, within 90 days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction, or attaining final compliance.

f. Failure to provide, within 30 days after the due date, required reports such as baseline monitoring reports, 90-day compliance reports, periodic self-monitoring reports, and reports on compliance with compliance schedules

g. Failure to accurately report noncompliance

h. Any other violation or group of violations, which can include a violation of best management practices, that the POTW determines will adversely affect the operation or implementation of the local pretreatment program.

49. "Slug Load." Any discharge at a flow rate or concentration which could cause a violation of the discharge standards in sections 17-0403 through 17-0406 or any discharge of a non-routine, episodic nature, including but not limited to, an accidental spill or a non-customary batch discharge.

50. "Solid Waste Disposal Act (SWDA)." Federal law located at 43 U.S.C. §6901 et seq.

51. "Standard Industrial Classification (SIC) Code." A classification pursuant to the Standard Industrial Classification Manual issued by the United States Office of Management and Budget.

52. "Storm Water." Any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snowmelt.

53. "Superintendent." The person designated by the city to supervise the operation of the POTW, and who is charged with certain duties and responsibilities by this ordinance, or a duly authorized representative.

54. "Total Suspended Solids." The total suspended matter that floats on the surface of, or is suspended in, water, wastewater, or other liquid, and which is removable by laboratory filtering.

55. "Toxic Pollutant." One of 126 pollutants, or combination of those pollutants, listed as toxic in regulations promulgated by the EPA under the provision of Section 307 (33 U.S.C. §1317) of the Act.

56. "Treatment Plant Effluent." The discharge from the POTW into waters of the United States.

57. "Wastewater." Liquid and water-carried industrial wastes and sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, which are contributed to the POTW.

58. "Wastewater Discharge Permit (Industrial Wastewater Discharge Permit, Discharge Permit)." An authorization or equivalent control document issued by the city to users discharging wastewater to the POTW. The permit may contain appropriate pretreatment standards and requirements as set forth in this ordinance.

59. "Wastewater Treatment Plant or Treatment Plant." The portion of the POTW which is designed to provide treatment of municipal sewage and industrial waste.

Source: 2187 (1985), 2573 (1991), 2784 (1996), 2899 (1998), 4231 (2002), 4354 (2003), 4362 (2003), 5203 (2019).

17-0204. Abbreviations.--The following abbreviations shall have the designated meanings:

- ASPP -- Accidental Spill Prevention Plan
- BOD -- Biochemical Oxygen Demand
- C.F.R. § -- Code of Federal Regulations
- COD -- Chemical Oxygen Demand
- EPA -- U.S. Environmental Protection Agency
- GPD -- gallons per day
- IWA -- Industrial Waste Acceptance
- l -- Liter
- IU -- Industrial User
- LEL -- Lower Explosive Limit
- mg -- milligrams
- mg/l -- milligrams per liter
- NPDES -- National Pollutant Discharge Elimination System
- O&M -- Operation and Maintenance
- POTW -- Publicly Owned Treatment Works
- RCRA -- Resource Conservation and Recovery Act
- SIC -- Standard Industrial Classifications
- SIU -- Significant Industrial User
- SWDA -- Solid Waste Disposal Act (43 U.S.C. 6901, et seq.)
- TSS -- Total Suspended Solids

- USC -- United States Code

Source: 5203 (2019).

ARTICLE 17-03

ABANDONED SEWER PIPES

Section

17-0301 Abandoned sewer pipes--Permanently closed off--Permit and deposit required.
17-0302 Closing off of sewer pipes if owner fails to do so.
17-0303 Expense of closing off to be charged as special assessment.

17-0301. Abandoned sewer pipes--Permanently closed off--Permit and deposit required.--All sewer service pipes that may become useless because of the laying of larger or other new services, or because sewage will no longer be passing through them, or because a structure or structures have been destroyed or moved off the site must be permanently closed off at a point outside the property line, at the expense of the owner of the premises, and a permit therefor shall be secured from the city engineer and a $100 deposit made to guarantee that the sewer service line will be properly disconnected; any such work shall be done to the satisfaction of the city engineer and the completion of the work shall be reported in writing to the city engineer, after which the $100 deposit shall be refunded.

Source: 1952 Rev. Ord. 1131 (1962).

17-0302. Closing off of sewer pipes if owner fails to do so.--If the owner of the premises shall fail to close off any such sewer service pipe within five days after notice or demand served on him, or posted on the premises if the owner cannot be located after inquiry, then the city, through its proper officers or employees, may close off said pipes and the expense attending the closing off may be recovered from the owner in an action against him or them by the city or such expense may be returned by the city engineer verified by his oath to the city auditor.

Source: 1952 Rev. Ord. 1131 (1962).

17-0303. Expense of closing off to be charged as special assessment.--It shall be the duty of the city auditor to enter such costs and expense so certified by the city engineer as a special assessment against the lot or parcel of land from which the sewer pipe has been closed off. In August of each year the board of city commissioners shall review all assessments, and hear all complaints against the same, and approve the same as finally adjusted, and such special assessment shall then be certified to the county auditor and be placed upon the tax roll for that year and be collected as other city taxes.

Source: 1952 Rev. Ord. 1131 (1962).

ARTICLE 17-04

GENERAL REQUIREMENTS*

Section

17-0401. Sanitary sewers, building sewers and connections.
17-0402. Prohibited connections to sewer system--Inspection and surcharge authority--Waiver provisions.
17-0403. Prohibited discharge standards.
17-0404. Federal categorical pretreatment standards.
17-0405. State requirements.
17-0406. Local limits.
17-0407. City's right of revision.
17-0408. Special agreement.
17-0409. Dilution.
17-0410. Pretreatment facilities.
17-0411. Deadline for compliance with applicable pretreatment requirements.
17-0412. Additional pretreatment.
17-0413. Accidental spill prevention plans.
17-0414. Septic tank waste.

17-0401. Sanitary sewers, building sewers and connections.--

A. No unauthorized person shall uncover, make any connections with or opening into, use, alter, or disturb any public sewer or appurtenance thereof without first obtaining a written permit from the city engineer.

B. There shall be two classes of building sewer permits:

1. For residential and commercial service, and

2. For service to establishments producing industrial wastes. In either case, the owner, or his agent, shall make application on a special form furnished by the city. The permit application shall be supplemented by any plans, specifications, or other information considered pertinent in the judgment of the city engineer. A permit and inspection fee shall be paid to the city at the time the application is filed. The amount of such fee shall be established by resolution of the board of city commissioners in accordance with section 22-0114.

C. All costs and expenses incidental to the installation and connection of the building sewer shall be borne by the owner. The owner shall indemnify the city from any loss or damage that may directly or indirectly be occasioned by the installation of the building sewer.

D. A separate and independent building sewer shall be provided for every building; except where one building stands at the rear of another on an interior lot and no private sewer is available or can be constructed to the rear building through an adjoining alley, court, yard, or driveway, the building sewer from the front building may be extended to the rear

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***Editor's note**—Ord. No. 5203, §§ 1, 3, adopted April 22, 2019, repealed the former Art. 17-04, §§ 17-0401--17-0408, and re-enacted a new Art. 17-04 as set out herein. The former Art. 17-04 pertained to surcharge for sewerage industrial pre-treatment and derived from Ord. No. 4484, adopted in 2005.

building and the whole considered as one building sewer, but the city does not and will not assume any obligation or responsibility for damage caused by or resulting from any such single connection aforementioned.

E. Old building sewers may be used in connection with new buildings only when they are found, on examination and test by the director to meet all requirements of this ordinance.

F. The size, slope, alignment, materials of construction of all sanitary sewers including building sewers, and the methods to be used in excavating, placing of the pipe, jointing, testing and backfilling the trench, shall all conform to the requirements of the building and plumbing code or other applicable rules and regulations of the city. In the absence of suitable code provisions set forth in appropriate specifications of the A.S.T.M. and W.P.C.F. Manual of Practice No. 9 shall apply.

G. Whenever possible, the building sewer shall be brought to tile building at an elevation below the basement floor. In all buildings in which any building drain is too low to permit gravity flow to the public sewer, sanitary sewerage carried by such building drain shall be lifted by an approved means and discharged to the building sewer.

H. No person shall make connection of roof downspouts, foundation drains, areaway drains, or other sources of surface runoff or ground water to a building sewer, or building drain which in turn is connected directly or indirectly to a public sanitary sewer unless such connection is approved by the director and the North Dakota state department of health.

I. The connection of the building sewer into the public sewer shall conform to the requirements of the building and plumbing code or other applicable rules and regulations of the city, or the procedures set forth in appropriate specifications of the A.S.T.M. and the W.P.C.F. Manual of Practice No. 9. All such connections shall be made gastight and watertight and verified by proper testing. Any deviation from the prescribed procedures and materials must be approved by the director before installation.

J. The applicant for the building sewer permit shall notify the director when the building sewer is ready for inspection and connection to the public sewer. The connection and testing shall be made under the supervision of the director or his representative.

K. All excavations for building sewer installation shall be adequately guarded with barricades and lights so as to protect the public from hazard. Streets, sidewalks, parkways, and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the city.

Source: 2187 (1985), 5203 (2019).

17-0402. Prohibited connections to sewer system--Inspection and surcharge authority--Waiver provisions.--

A. Section 22-0432 prohibits surface or ground water drains, including roof drains and foundation drain tiles, from being connected to the sanitary sewer. Said ordinance requires that surface or ground water drains shall be connected directly to the city storm sewer or discharged into a sump and thereafter pumped into the city storm sewer system or onto a yard in such a manner so as to drain into the city storm sewer system. The following subsections further expand on such prohibited connections and provide for inspections, surcharges, waivers and penalties.

B. All dwellings, buildings and structures constructed after September 21, 1971, which require, because of infiltration of water into basements, crawl spaces and the like, a

foundation drainage system shall have a permanently installed discharge line which, shall not at any time, discharge water into the sanitary sewer system except as hereinafter provided in section 17-0402(F). A permanent installation shall be one in which the direction of flow cannot be altered and provides for year-round discharge to either the outside of the dwelling, building or structure, or is connected directly to the city storm sewer, or discharges to the curb and gutter.

C. Prior to June 1, 2001, all dwellings, buildings or structures constructed after September 21, 1971, having surface or ground water drains, including sump pumps, now connected and/or discharging into the sanitary sewer system shall disconnect and/or remove the same. Any disconnects or openings in the sanitary sewer shall be closed or repaired in an effective, workmanlike manner, as approved by the city engineer.

D. Authorized city personnel, or its designated representatives bearing proper credentials and identification, shall be permitted to enter all properties constructed after September 21, 1971, for the purposes of inspection and observation to identify prohibited discharges to the sanitary sewer system. Any person may furnish a certificate from a licensed plumber certifying that their property is in compliance with section 22-0432 and this section, in lieu of having the city inspect their property. Any person refusing to allow their property to be inspected (or failing to furnish a plumber's certificate in lieu thereof) within fourteen (14) days of the date city employees or their designated representatives are denied admittance to the property, shall immediately become subject to the surcharge penalty as required under section 17-0402(E). Any person found to have violated this provision shall make the necessary changes to eliminate the discharge of surface or ground water into the sanitary sewer system and furnish proof of the changes to the city within ninety (90) days. Each prohibited connection identified may be re-inspected by the city, its designated representative or a licensed plumber, to confirm compliance.

E. A monthly surcharge penalty, established by resolution of the board of city commissioners, shall be imposed and added to the regular sewer billing on and after June 1, 2001, to property owners who are not in compliance with this section. The surcharge shall be added every month through December 2001 until the property is in compliance. The surcharge shall continue to be levied monthly, every year on properties not complying with this section. It is provided, however, that the surcharge shall not be charged unless and until a property has been inspected and found to be not in compliance, or if the property owner refuses to allow an inspection and fails to provide a plumber's certificate in lieu thereof as set forth in this section.

F. The Superintendent shall have the authority to grant exemptions from strict compliance with this section.

Exemptions may be granted in the form of seasonal waivers which would allow the property owner to temporarily discharge directly into the sanitary sewer system between the date of October 1 and March 31. The holder of a seasonal waiver shall allow a city employee or designated representative to certify that, prior to April 1 of each subsequent year, their discharge water connection has been removed from the sanitary sewer. Failure to provide such certification shall place the seasonal waiver holder in violation and subject to the surcharge penalty as required under section 17-0402(E). Seasonal waiver requests shall be submitted on the official form provided by the city engineer for utilities.

Exemptions may be granted in the form of non-seasonal waivers for a particular property owner who can demonstrate undue hardship because of unique or extenuating circumstances, including physical or handicap limitations. A non-seasonal waiver would allow the property

owner to discharge directly into the sanitary sewer system without seasonal restrictions. The non-seasonal waiver request shall be submitted to the Superintendent in writing and, at a minimum, identify the property for which the waiver is being requested, the name of the property owner/applicant, and a detailed description of the circumstances justifying the request.

G. Any person granted a seasonal waiver shall be charged an additional monthly fee on their utility bill to cover the cost of compliance inspections and the cost for treating the extra discharge water during the waiver period. The seasonal waiver amount shall be set by resolution of the board of city commissioners.

Any person granted a non-seasonal waiver shall be charged an additional monthly fee on their utility bill to cover the cost for treating the extra discharge water on a year-round basis. The non-seasonal waiver amount shall be set by resolution of the board of city commissioners.

H. If a seasonal waiver is granted, the owner of the property may place a pipe connecting the sump pump to the sanitary sewer, which must have a shut-off valve. City staff or its designated representative, on or around April 1 of each year, will inspect the system to verify that the valve is closed so no prohibited water is discharged into the sanitary sewer. By applying for the waiver, the owner has granted permission to the city staff or its representatives to inspect the connection at any time between April 1 and October 31 to verify compliance with this section. Such inspections must be made between 8:00 a.m. and 5:00 p.m., Monday through Friday, and only when a resident of the premises is on site. Failure to allow such an inspection or to allow city staff or its designated representatives entry for verification of compliance shall result in automatic revocation of the seasonal waiver and imposition of the surcharge penalty pursuant to section 17-0402(E).

I. If any new structure is found to have been constructed wherein the sump pump connection for the structure has been unlawfully connected to the sanitary sewer system, or that there is another connection or device or lack of a plug which allows surface run-off or ground water to enter into the sanitary sewer system, either permanently or temporarily, the city may deny the issuance of a certificate of occupancy for said new structure.

Source: 4150 (2001), 5203 (2019).

17-0403. Prohibited discharge standards.--

A. General Prohibitions: No user shall introduce or cause to be introduced into the POTW any pollutant or wastewater which causes pass through or interference. These general prohibitions apply to all users of the POTW whether or not they are subject to categorical pretreatment standards or any other federal, state, or local pretreatment standards or requirements.

B. Specific Prohibitions: No user shall introduce or cause to be introduced into the POTW the following pollutants, substances, or wastewater:

1. Oils and Grease.
   i. Oil and grease concentrations or amounts from industrial facilities violating pretreatment standards.
   ii. Wastewater from industrial facilities containing floatable fats, wax, grease or oils in amounts which would cause interference or pass through the treatment process.
   iii. Petroleum oil, non-biodegradable cutting oil, or products of mineral oil origin in amounts which would cause interference or pass through.

2. Pollutants which create a fire or explosive hazard in the POTW, including, but not limited to, waste streams with a closed-cup flash point of less than 140 F (60 C) using the test methods specified in 40 C.F.R. § 261.21;

3. Wastewater having a pH less than 5.0 S.U. or more than 12.5 S.U., or otherwise causing corrosive structural damage to the POTW or equipment.

4. Solid or viscous wastes. Solid or viscous wastes which will interfere with the proper operation of the wastewater treatment system. Prohibited materials include, but are not limited to, grease, un-comminuted garbage, animal guts or tissues, paunch manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, spent grains, spent hops, waste paper, wood, plastic, tar, asphalt residues, residues from refining or processing of fuel or lubricating oil, and similar substances.

5. Pollutants, including oxygen-demanding pollutants (BOD, etc.), released in a discharge at a flow rate and/or pollutant concentration which, either independently or by interaction with other pollutants, will cause interference with the POTW;

6. Wastewater having a temperature which will inhibit biological activity in the treatment plant resulting in interference, but in no case wastewater which causes the temperature at the introduction into the treatment plant to exceed 104° F (40° C) unless the Approval Authority, upon the request of the POTW, approves alternate temperature limits;

7. Petroleum oil, non-bio-degradable cutting oil, or products of mineral oil origin, in amounts that will cause interference or pass through;

8. Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems;

9. Trucked or hauled pollutants, except a discharge points designated by the city.

Source: 2187 (1985), 2297 (1986), 2574 (1991), 4231 (2002), 5203 (2019).

17-0404. Federal categorical pretreatment standards.--The federal categorical pretreatment standards as amended and promulgated by EPA pursuant to the Act and as found at 40 C.F.R. Chapter I, Subchapter N, Parts 405--471, are hereby adopted by reference.

Source: 5203 (2019).

17-0405. State requirements.--The state requirements as set forth in North Dakota Administrative Code (N.D.Admin.C.) §33-16-01.1 and limitations on discharges to the POTW shall be met by all users which are subject to such standards in any instance in which they are more stringent than federal requirements and limitations or those in this ordinance or in other applicable ordinances.

Source: 5203 (2019).

17-0406. Local limits.--The Superintendent is authorized to establish Local Limits pursuant to 40 C.F.R. § 403.5(c). No person shall discharge wastewater containing pollutant levels in excess of the following daily maximum allowable discharge limits:

Pollutant	*Daily Maximum Concentration*
Arsenic (As)	2.8 mg/l
Cadmium (Cd)	0.11 mg/l
Chromium (III)	5.86 mg/l
Chromium (VI)	0.65 mg/l
Chromium (Total)	5.57 mg/l
Copper (Cu)	2.82 mg/l
Lead (Pb)	1.60 mg/l
Mercury (Hg)	0.001 mg/l
Nickel (Ni)	5.60 mg/l
pH)	5 to 12.5 S.U.
Selenium (Se)	0.26 mg/l
Silver (Ag)	0.43 mg/l
Zinc (Zn)	18.17 mg/l

The above limits apply at the point where the wastewater is discharged to the POTW (end of pipe). All concentrations for metallic substances are for "total" metal unless indicated otherwise. Where a user is subject to a categorical pretreatment standard and a local limit for a given pollutant, the more stringent limit or applicable pretreatment standard shall apply.

Total SIU BOD mass loading or Maximum Allowable Industrial Loadings (MAIL) at the wastewater treatment plant headworks shall not exceed 7,353 pounds per day. Total SIU TSS mass loading or MAIL at the wastewater treatment plant headworks shall not exceed 4,825 pounds per day. The city may, at its discretion, implement local limits through allocation of the BOD and TSS MAILs to significant industrial Users.

Under no circumstances shall the industrial user achieve compliance with the above limitations or categorical pretreatment standards by diluting its industrial waste with tap water, unpolluted water, sanitary sewage, or any other liquid diluent.

The POTW may develop Best Management Practices (BMPs) to implement provisions of this Chapter. Such BMPs shall be considered local limits and Pretreatment Standards for the purposes of this part and section 307(d) of the Act.

The POTW may develop site-specific limits in addition to Local Limits.

The following limits shall apply to wastewater that are discharged from the groundwater cleanup of petroleum and gasoline underground storage tanks or other remediation wastewaters containing these pollutants or where these pollutants are appropriate surrogates. It shall be unlawful user to discharge to cause to be discharged any waste or wastewater that exceeds the following limits, as applicable:

Pollutant[(a) (b)]	*Daily Maximum Limit (mg/L)*
Benzene	0.050
BTEX[(c)]	0.750

(a) These limits are based on the installation of air stripping technology as described in the EPA document: "Model NPDES Permit for Discharges Resulting from the Cleanup of Gasoline Released from Underground Storage Tanks, June 1989."

(b) All pollutants shown in the table are total.

(c) BTEX shall be measured as the sum of Benzene, Ethylbenzene, Toluene, and Xylene.

Source: 2187 (1985), 2298 (1986), 4231 (2002), 4273 (2002), 4319 (2003), 5203 (2019).

17-0407. City's right of revision.--The city reserves the right to establish, by ordinance or in wastewater discharge permits, more stringent standards or requirements on discharges to the POTW.

Source: 5203 (2019).

17-0408. Special agreement.--The city may enter into special agreements with users setting out special terms under which they may discharge to the POTW so long as such special agreement does not waive compliance with a categorical pretreatment standard. However, users may request of the superintendent a net/gross adjustment to a categorical standard in accordance with 40 C.F.R. §403.15. They may also request a variance from the categorical pretreatment standard from the Approval Authority in accordance with 40 C.F.R. §403.13.

Source: 5203 (2019).

17-0409. Dilution.--No user shall increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with an applicable pretreatment standard or requirement unless expressly authorized by an applicable pretreatment standard or requirement. The Superintendent may impose mass limitations on users which he believes may be using dilution to meet applicable pretreatment standards or requirements or in other cases when the imposition of mass limitations is appropriate.

Source: 5203 (2019).

17-0410. Pretreatment facilities.--Users shall provide necessary wastewater treatment as required to comply with this ordinance and shall achieve compliance with all applicable pretreatment standards and requirements set out in this ordinance within the time limitations specified by the EPA, the state, or the Superintendent, whichever is more stringent. Any facilities required to pretreat wastewater to a level acceptable to the city of Fargo shall be provided, operated, and maintained at the user's expense. Detailed plans showing the pretreat-

ment facilities and operating procedures shall be submitted to the city for review and must be approved by the Superintendent before construction of the facility. The review of such plans and operating procedures will in no way relieve the user from the responsibility of modifying the facility as necessary to produce an acceptable discharge to the city under the provisions of this ordinance.

Source: 5203 (2019).

17-0411. Deadline for compliance with applicable pretreatment requirements.--Compliance by existing sources covered by a modification of Categorical Pretreatment Standards shall be achieved within three years of the date the standard is effective unless a shorter compliance time is specified in the appropriate standard. The city shall establish a final compliance deadline date for any existing user not covered by Categorical Pretreatment Standards or for any categorical user when the local limits for said user are more restrictive than the federal Categorical Pretreatment Standards.

New source and domestic users are required to comply with applicable pretreatment standards within the shortest feasible time, not to exceed 90 days from the beginning of discharge. New Sources and domestic users shall install, have in operating condition, and shall start up all pollution control equipment required to meet applicable pretreatment standards before beginning to discharge.

Any wastewater discharge permit issued to a categorical user shall not contain a compliance date beyond any deadline date established in EPA's Categorical Pretreatment Standards. Any other existing user or a categorical user that must comply with a more stringent local limit which is in non-compliance with any local limits shall be provided with a compliance schedule placed in an industrial wastewater permit to ensure compliance within the shortest time feasible.

Source: 5203 (2019).

17-0412. Additional pretreatment.--

A. Whenever deemed necessary, the Superintendent may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage waste streams from industrial waste streams, and such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this ordinance.

B. Grease, oil, and sand interceptors shall be provided when, in the opinion of the Superintendent, they are necessary for the proper handling of wastewater containing excessive amounts of grease and oil, or sand, except that such interceptors shall not be required for residential users. All interception units shall be of type and capacity approved by the Superintendent and shall be so located to be easily accessible for cleaning and inspection. Such interceptors shall be inspected, cleaned, and repaired regularly, as needed, by the user at its expense.

C. Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter.

Source: 5203 (2019).

17-0413. Accidental spill prevention plans.--The Superintendent may require any user to develop and implement an accidental spill prevention plan (ASPP) or slug control plan.

Where deemed necessary by the city, facilities to prevent accidental discharge or slug discharges of pollutants shall be provided and maintained at the user's cost and expense. An accidental spill prevention plan or slug control plan showing facilities and operating procedures to provide this protection shall be submitted to the city for review and approval before implementation. The city shall determine which user is required to develop a plan and require said plan to be submitted within 180 days after notification by the city. Each user shall implement its ASPP as submitted or as modified after such plan has been reviewed and approved by the city. Review and approval of such plans and operating procedures by the city of Fargo shall not relieve the user from the responsibility to modify its facility as necessary to meet the requirements of this ordinance.

A. Any user required to develop and implement an accidental spill prevention plan shall submit a plan which addresses, at a minimum, the following:

   1. Description of discharge practices, including non-routine batch discharges;
   2. Description of stored chemicals;
   3. Procedures for immediately notifying the POTW of any accidental or slug discharges. Such notification must also be given for any discharge which would violate any of the standards in sections 17-0403 through 17-0406; and

   Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training building of containment structures or equipment, measures for containing toxic organic chemicals (including solvents), and/or measures and equipment for emergency response.

B. Users shall notify the city Wastewater Treatment Facility immediately after the occurrence of a slug or accidental discharge of substances regulated by this chapter. The notification shall include location of discharge, date and time thereof, type of waste, concentration and volume, and corrective actions. Any affected user shall be liable for any expense, loss, or damage to the POTW, in addition to the amount of any fines imposed on the city on account thereof under state or federal law.

C. Within five (5) days following an accidental discharge, the user shall submit to the Superintendent a detailed written report describing the cause of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the POTW, fish kills, or any other damage to person or property nor shall such notification relieve the user of any fines, civil penalties, or other liability which may be imposed by this chapter or other applicable law.

D. Signs shall be permanently posted in conspicuous places on the user's premises advising employees whom to call in the event of a slug or accidental discharge. Employers shall instruct all employees who may cause or discover such a discharge with respect to emergency notification procedures.

Source: 5203 (2019).

17-0414. Septic tank waste.--

A. Septic tank waste may be introduced into the POTW only at a designated receiving structure within the treatment plant area, and at such times as are established by the Superintendent. Such wastes shall not violate this section or any other requirements established or adopted by the city. Wastewater discharge permits for individual vehicles to use such facilities may be issued by the Superintendent.

B. Septic tank waste haulers may only discharge loads at locations specifically designated by the Superintendent. No load may be discharged without prior consent of the Superintendent. The Superintendent may collect samples of each hauled load to ensure compliance with applicable pretreatment standards. The Superintendent may require the hauler to provide a waste analysis of any load prior to discharge.

C. Septic tank waste haulers must provide a waste-tracking manifest form for every load. This form shall include, at a minimum, the name and address of the waste hauler, permit number, truck identification, sources of waste, and volume and characteristics of waste.

D. Fees for dumping hauled wastes will be established as part of the user fee system as authorized in article 17-16 of this chapter.

Source: 5203 (2019).

ARTICLE 17-05

WASTEWATER DISCHARGE PERMIT REQUIREMENTS*

Section

17-0501. Permit required.
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17-0503. Wastewater discharge permitting: New source.
17-0504. Wastewater discharge permitting: Extra jurisdictional users.
17-0505. Wastewater discharge permit application contents.
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17-0511. Wastewater discharge permit modification.
17-0512. Wastewater discharge permit transfer.
17-0513. Wastewater discharge permit revocation.
17-0514. Wastewater discharge permit reissuance.

17-0501. Permit required.--No significant industrial user shall discharge wastewater into the POTW without first obtaining a wastewater discharge permit from the Superintendent; the permit must be enforceable and contain all the elements as required by 40 C.F.R. § 403.8(f)(1)(iii)(B). Any violation of the terms and conditions of a wastewater discharge

***Editor's note—**Ord. No. 5203, §§ 1, 4, adopted April 22, 2019, repealed the former Art. 17-05, §§ 17-0501--17-0508, and re-enacted a new Art. 17-04 as set out herein. The former Art. 17-05 pertained to violations and enforcement of sewerage regulations and derived from Ord. No. 4484, adopted in 2005.

permit shall be deemed a violation of this ordinance and subjects the wastewater discharge permittee to the penalties or sanctions set forth in this article. Obtaining a wastewater discharge permit does not relieve a permittee of its obligation to comply with all federal and state pretreatment standards or requirements or with any other requirements of federal, state, and local law. The Superintendent may require other users, including liquid waste haulers, to obtain wastewater discharge permits (as necessary) to carry out the purposes of this ordinance.

Source: 5203 (2019).

17-0502. Wastewater discharge permitting.--Any SIU that was discharging wastewater into the POTW prior to the effective date of this ordinance and that wishes to continue such discharges in the future shall, within 60 days after notification by the Superintendent submit a permit application to the city in accordance with section 17-0505.

Source: 5203 (2019).

17-0503. Wastewater discharge permitting: New source.--At least 90 days prior to the anticipated start-up, any new source, which is a source that becomes a user subsequent to the proposal of an applicable categorical pretreatment standard that is later promulgated, and any domestic user considered by the city of Fargo to fit the definition of SIU shall apply for a wastewater discharge permit and will be required to submit to the city of Fargo at least the information listed in section 17-0505(A)--(E). A new source or domestic user may not discharge without first receiving approval from the city of Fargo. New sources and domestic users shall also be required to include in their application information on the method of pretreatment they intend to use to meet applicable pretreatment standards. New Sources and domestic users shall give estimates of the information requested in section 17-0505(D) and (E).

Source: 5203 (2019).

17-0504. Wastewater discharge permitting: Extra jurisdictional users.--Any existing user who is located beyond the city of Fargo limits and who is required to obtain a wastewater discharge permit shall submit a wastewater discharge permit application as outlined in section 17-0502. New Source and domestic users who are located beyond the city of Fargo limits and who are required to obtain a wastewater discharge permit shall comply with section 17-0503.

Source: 5203 (2019).

17-0505. Wastewater discharge permit application contents.--The Superintendent shall approve a form to be used as a permit application for a wastewater discharge permit. Categorical users submitting the following information must have complied with 40 C.F.R. §403.12(b) prior to submitting said application. All users required to obtain a wastewater discharge permit must submit, at a minimum, the following information.

A. Identifying information. The user shall submit the name and address of the facility including the name of the operator and owners.

B. Permits. The user shall submit a list of all environmental control permits held by or for the facility;

C. Description of operations. The user shall submit a brief description of the nature, average rate of production, and standard industrial classification of the operation(s) carried out by such Industrial User, including a list of all raw materials and chemicals used or stored at the facility which are or could accidentally or intentionally be discharged to the POTW; number or processes,

and rate of production; type and amount or raw materials processed (average and maximum per day) and the time and duration of discharges. This description should also include a schematic process diagram which indicates points of discharge to the POTW from the regulated or manufacturing processes; site plans; floor plans; mechanical and plumbing plans; and details to show all sewers, sewer connections, inspection manholes, sampling chambers and appurtenances by size, location and elevation.

D. Flow Measurement.

1. Categorical User: The user shall submit information showing the intended measured average daily and maximum daily flow, in gallons per day, to the POTW from each of the following:
   i. Regulated or manufacturing process streams; and
   ii. Other streams as necessary to allow use of the combined waste stream formula (40 C.F.R. §403.6(e)).
2. Non-Categorical User: The user shall submit information showing the intended measured average daily and maximum daily flow, in gallons per day, to the POTW from each of the following:
   i. Total process flow,
   ii. Wastewater treatment plant flow,
   iii. Total plant flow or
   iv. Individual manufacturing process flow as required by the Superintendent.

The city may allow verifiable estimates of said flows where justified by cost or feasibility considerations proposed by the applicant to the satisfaction of the city.

E. Measurements of pollutants.

1. Categorical User:
   i. The user shall identify the applicable pretreatment standards for each regulated or manufacturing process.
   ii. In addition, the user shall submit the results of sampling and analysis identifying the nature and concentration (or mass, where required by Categorical Pretreatment Standard or as required by the city or regulated pollutants (including standards contained in sections 17-0403 through 17-0406 as appropriate) in the discharge from each regulated or manufacturing process. Both daily maximum and average concentration (or mass, where required) shall be reported. The sample shall be representative of daily operations and shall conform to sampling and analytical procedures outlined in article 17-07.
   iii. The user shall take a minimum of one representative sample to compile that data necessary to comply with the requirements of this subsection.
   iv. Where an alternate concentration or mass limit has been calculated in accordance with 40 C.F.R. §403.6(e) for a categorical user, this adjusted or alternate limit along with supporting data shall be submitted as part of the application.

2. Non-Categorical User:
   i. The user shall identify the applicable pretreatment standards for its wastewater discharge.
   ii. In addition, the user shall submit the results of sampling and analysis identifying the nature and concentration in the discharge (or mass where required by the city) of regulated pollutants contained in sections 17-0403 through 17-0406, as appropriate. Both daily maximum and average concentration (or mass, where required) shall be reported. The sample shall be representative of daily operations and shall conform to sampling and analytical procedures outlined in article 17-07.
   iii. The user shall take a minimum of one representative sample to compile the data necessary to comply with the requirements of this subsection.
   iv. Where the Superintendent has developed alternate concentration or mass limits because of dilution, this adjusted or alternate limit along with supporting data shall be submitted as part of the application.

F. Certification. The user shall submit a statement, worded as specified in section 17-0506, which has been reviewed by an authorized representative of the user, and certified by a qualified professional, indicating whether the applicable pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance and/or additional pretreatment is required for the user to meet the applicable pretreatment standards and Requirements.

G. Compliance Schedule. If additional pretreatment and/or operation and maintenance will be required to meet the applicable pretreatment standards, the user shall submit the shortest schedule by which the user will provide such additional pretreatment and/or operation and maintenance. The user's schedule shall conform with the requirements of section 17-0604. The completion date in this schedule shall not be later than the compliance date established pursuant to section 17-0411.

1. Where the user's categorical Pretreatment Standard has been modified by a removal allowance (40 C.F.R. §403.7), the combined waste stream formula (40 C.F.R. §403.6(e)), and/or a Fundamentally Different Factors variance (40 C.F.R. §403.13) at the time the user submits the report required by this subsection, the information required by subsections (F) and (G), hereof, shall pertain to the modified limits.
2. If the categorical Pretreatment Standard is modified by a removal allowance (40 C.F.R. §403.7), the combined waste stream formula (40 C.F.R. §403.13) after the user submits the report required by subsections (F) and (G), hereof, then a report containing modified information shall be submitted by the user within 60 days after the new limit is approved.

H. The user shall submit any other information as may be deemed necessary by the Superintendent to evaluate the wastewater discharge permit application.

Incomplete or inaccurate applications will not be processed and will be returned to the user for revision.

Source: 5203 (2019).

17-0506. Signatory and certification requirement.--All wastewater discharge permit applications and user reports must be signed and certified by the authorized representative of the user, as defined in this chapter, containing the following certification statement:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

Source: 5203 (2019).

17-0507. Wastewater discharge permit decisions.--The Superintendent will evaluate the data furnished by the user and may require additional information. Within 30 days of receipt of a complete wastewater discharge permit application, the Superintendent will determine whether or not to issue a wastewater discharge permit. Upon a determination to issue, the permit shall be issued within 30 days of full evaluation and acceptance of the data furnished. The Superintendent may deny any application for a wastewater discharge permit. Failure of the Superintendent to take such action within said 30 days shall be deemed to be a denial of the permit.

Source: 5203 (2019).

17-0508. Wastewater discharge permit contents.--The Superintendent is authorized to include such conditions on a wastewater discharge permit as are reasonably deemed necessary by the Superintendent to prevent pass through or interference, protect the quality of the water body receiving the treatment plant's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW.

A. All Wastewater discharge permits are subject to the following conditions and the Superintendent shall ensure that the permit expressly states the following:
   1. A statement that indicates wastewater discharge permit duration, which in no event shall exceed five (5) years;
   2. A statement that the wastewater discharge permit is non-transferable without prior notification to and approval from the city, and provisions for furnishing the new owner or operator with a copy of the existing wastewater discharge permit;
   3. Applicable pretreatment standards and requirements, including any special state requirements;
   4. Self-monitoring, sampling, reporting, notification, submittal of technical reports, compliance schedules, and record-keeping requirements. These requirements shall include an identification of pollutants to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law.

5. Requirement for immediate notification to the city where self-monitoring results indicate non-compliance;
6. Requirement to report a bypass or upset of a pretreatment facility;
7. Requirement to report immediately to the city all discharges, including slug loadings, that could cause problems to the POTW;
8. Requirement for the SIU who reports non-compliance to repeat the sampling and analysis and submit results to the city within 30 days after becoming aware of the violation.
9. A statement of applicable civil, criminal, and administrative penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule.
10. Requirements to control slug discharges, if determined by the POTW to be necessary.

B. Wastewater discharge permits may contain, but need not be limited to, the following conditions:

1. Limits on the average and/or maximum rate of discharge, time of discharge, and/or requirements for flow regulation and equalization;
2. Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works;
3. Requirements for the development and implementation of spill control plans or other special conditions including management practices necessary to adequately prevent accidental, unanticipated, or routine discharges;
4. Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the POTW;
5. The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the POTW;
6. Requirements for installation and maintenance of inspection and sampling facilities and equipment;
7. A statement that compliance with the wastewater discharge permit does not relieve the permittee of responsibility for compliance with all applicable Federal and State pretreatment standards, including those which become effective during the term of the wastewater discharge permit;
8. Any special agreements the Superintendent chooses to continue or develop between the city and user;
9. Other conditions as deemed appropriate by the Superintendent to ensure compliance with this article, and state and federal laws, rules, and regulations.

Source: 5203 (2019).

17-0509. Wastewater discharge permit appeals.--Any person, including the user, may petition the city to appeal the denial of, or to reconsider the terms of, a wastewater discharge

permit or may appeal the terms of the permit required by the Superintendent in issuing the permit by filing a written notice of appeal with the Superintendent within 180 days of its denial or issuance.

A. Failure to submit a timely petition for review shall be deemed to be a waiver of the right to appeal.

B. In its written petition and notice to appeal, the appealing party must indicate the wastewater discharge permit provisions objected to, the reasons for this objection, and the alternative condition, if any, it seeks to place in the wastewater discharge permit or, if it is an appeal of a denial of the permit, the reasons for challenging the denial.

C. The denial of the wastewater discharge permit shall not be stayed pending the appeal.

D. The appeal shall be heard and considered by the Director. The Director may schedule a hearing at which time the appellant and the city may appear and present evidence, information and arguments in support of, or opposing, the appeal or reconsideration. Unless the Director extends the time within which the city will consider the appeal or reconsideration, if the city fails to act within 30 days, a request for reconsideration shall be deemed to be denied. Decisions not to reconsider a wastewater discharge permit, not to issue a wastewater discharge permit, or not to modify a wastewater discharge permit shall be considered final action for purposes of judicial review.

E. The decision of the Director on appeal, including the denial of an appeal or reconsideration that has resulted from a failure to act within said 30 days, shall be subject to further appeal to the board of city commissioners of the city, by the appellant filing a written notice of appeal with the Director within fifteen (15) days of such denial.

Source: 5203 (2019).

17-0510. Wastewater discharge permit duration.--Wastewater discharge permits shall be issued for a specified time period, not to exceed five (5) years. A wastewater discharge permit may be issued for a period less than five (5) year, at the discretion of the Superintendent. Each wastewater discharge permit will indicate a specific date upon which it will expire, although the failure of the permit to so indicate shall not invalidate the permit.

Source: 5203 (2019).

17-0511. Wastewater discharge permit modification.--The Superintendent may modify the wastewater discharge permit for good cause including, but not limited to, the following:

A. To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

B. To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of wastewater discharge permit issuance;

C. A change in the POTW that requires either a temporary or permanent reduction or elimination or the authorized discharge;

D. Information indicating that the permitted discharge poses a threat to the city's POTW, personnel, or receiving waters;

E. Violation of any terms or conditions of the wastewater discharge permit;

F. Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required report;
G. Revision of or a grant of variance from categorical pretreatment standards pursuant to 40 C.F.R. §403.13;
H. To correct typographical or other errors in the wastewater discharge permit; or
I. To reflect a transfer of the facility ownership and/or operation to a new owner/operator.

Source: 5203 (2019).

17-0512. Wastewater discharge permit transfer.--Wastewater discharge permits may be reassigned or transferred to a new owner and/or operator only if the permittee gives at least thirty (30) days advance notice to the Superintendent and the Superintendent approves the wastewater discharge permit transfer. The notice to the Superintendent must include a written certification by the new owner and/or operator which:

A. States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;
B. Identifies the specific date on which the transfer is to occur; and
C. Assumes full responsibility for complying with the existing wastewater discharge permit beginning on the date of the transfer.

Failure to provide advance notice of a transfer renders the wastewater discharge permit voidable as of the date of facility transfer.

Source: 5203 (2019).

17-0513. Wastewater discharge permit revocation.--Wastewater discharge permits may be revoked for, but not limited to, the following reasons:

A. Failure to notify the city of significant changes to the wastewater prior to said change.
B. Failure to provide prior notification to the city of changed conditions;
C. Misrepresentation or failure to full disclose all relevant facts in the wastewater discharge permit application;
D. Falsifying self-monitoring reports;
E. Tampering with monitoring equipment;
F. Refusing to allow the city timely access to the facility premises and records;
G. Failure to meet discharge limitations;
H. Failure to pay fines;
I. Failure to pay sewer charges;
J. Failure to meet compliance schedules;
K. Failure to complete a wastewater survey or the wastewater discharge permit application;
L. Failure to provide advance notice of the transfer of permitted facility; or
M. If the city has to invoke its emergency provision as cited in article 17-11.
N. Violation of any pretreatment standard or requirement, or any terms of the wastewater discharge permit or this ordinance.

Wastewater discharge permits shall be voidable upon cessation of operations or transfer of business ownership. All wastewater discharge permits issued to a particular user are void upon the issuance of a new wastewater discharge permit to that user.

Source: 5203 (2019).

17-0514. Wastewater discharge permit reissuance.--A user who is required to have a wastewater discharge permit shall apply for wastewater discharge permit reissuance by submitting a complete wastewater discharge permit application, in accordance with section 17-0505, a minimum of [thirty (30)] days prior to the expiration of the user's existing wastewater discharge permit. A user whose existing wastewater discharge permit has expired and who has submitted its re-application in the time period specified herein shall be deemed to have an effective wastewater discharge permit until the city issues or denies the new wastewater discharge permit. A user whose existing wastewater discharge permit has expired and who failed to submit its re-application in the time period specified herein will be deemed to be discharging without a wastewater discharge permit.

Source: 5203 (2019).

ARTICLE 17-06

REPORTING REQUIREMENTS

Section

17-0601. Baseline monitoring reports.
17-0602. Compliance reporting.
17-0603. Periodic compliance report.
17-0604. Compliance schedules for meeting applicable pretreatment standards.
17-0605. Notification of significant production changes.
17-0606. Hazardous waste notification.
17-0607. Notice of potential problems, including accidental spills, bypasses, and slug loads.
17-0608. Non-compliance reporting.
17-0609. Notification of changed discharge.
17-0610. Reports from un-permitted users.
17-0611. Record keeping.

17-0601. Baseline monitoring reports.--

A. Within either one hundred and eighty (180) days after the effective date of a categorical pretreatment standard or the final administrative decision on a category determination under 40 C.F.R. §403.6(a)(4) (whichever is later) existing categorical users currently discharging to or scheduled to discharge to the POTW, shall be required to submit to the city a report which contains the information listed in subsection B, below. At least ninety (90) days prior to commencement of their discharge, new sources, and sources that become categorical users subsequent to the promulgation of an applicable categorical standard, shall be required to submit to the city a report which contains the information listed in subsection B, below. A new source shall also be required to report the method of retreatment it intends to use to meet applicable categorical standards. A new source shall also give estimates of its anticipated flow and quantity off pollutants discharged.

B. Users described above shall submit the following information:

1. Identifying Information. The name and address of the facility, including the name of the operator and owner.
2. Environmental Permits. A list of any environmental control permits held by or for the facility.

3. Description of Operations. A brief description of the nature, average rate of production, and standard industrial classifications of the operation(s) carried out by such user. This description should include a schematic process diagram which indicates points of discharge to the POTW from the regulated processes.
4. Flow Measurement. Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined waste stream formula set out in 40 C.F.R. §403.6(e).
5. Measurement of Pollutants.
    i. The categorical pretreatment standards applicable to each regulated process.
    ii. The results of sampling and analysis identifying the nature and concentration (and/or mass, where required by the standard or by the city) of regulated pollutants in the discharge from each regulated process. Instantaneous, daily maximum, and long term average concentrations (or mass, where required) shall be reported. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in article 17-07.
    iii. Sampling must be performed in accordance with procedures set out in article 17-07.
6. Certification. A statement, reviewed by the user's authorized representative and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment, is required to meet the pretreatment standards and requirements.
7. Compliance Schedule. If additional pretreatment and/or O&M will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment and/or O&M. The completion date in the schedule shall not be later than the compliance date established for the applicable pretreatment standard. A compliance schedule pursuant to this section must meet the requirements set out in section 17-0604.
8. Signature and Certification. All baseline monitoring reports must be signed and certified in accordance with section 17-0506.

Source: 5203 (2019).

17-0602. Compliance reporting.--

A. Within ninety (90) days following the date for final compliance of an existing Significant Industrial User (SIU) with applicable pretreatment standards and requirements set forth in this article, in federal categorical standards, or in a wastewater discharge permit, or, in the case of a new source or a domestic user considered by the city to fit the definition of SIU, within 90 days following commencement of the introduction of wastewater into the POTW, the affected user shall submit to the city a report containing the information outlined in subsections (D)--(F) of section 17-0505.

B. For users subject to equivalent mass or concentration limits established by the city in accordance with procedures established in 40 C.F.R. §403.6(c), this report shall contain a reasonable measure of the user's long term production rate. For all other users subject to

categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period.

Source: 5203 (2019).

17-0603. Periodic compliance report.--

A. Any user that is required to have an industrial waste discharge permit and performs self-monitoring shall comply with all applicable requirements under 40 C.F.R. §403.12 and submit to the city on or before June 1 and December 1 of each year, unless required on other dates or more frequently by the city, a report indicating the nature of the effluent over the previous reporting period. The frequency of monitoring shall be as prescribed within the industrial waste discharge permit. At a minimum, users shall sample their discharge at least twice per year.

B. The report shall include a record of the concentrations (and mass if specified in the wastewater discharge permit) of the pollutants listed in the wastewater discharge permit that were measured and a record of all flow measurements (average and maximum) taken at the designated sampling locations and shall also include any additional information required by this ordinance or the wastewater discharge permit. Production data shall be reported if required by the wastewater discharge permit. Both daily maximum and average concentration (or mass, where required) shall be reported. If a user sampled and analyzed more frequently than what was required by the city or by this ordinance, using methodologies in 40 C.F.R. Part 136, it must submit all results of sampling and analysis of the discharge during the reporting period.

C. Any user subject to equivalent mass or concentration limits established by the city or by unit production limits specified in the applicable categorical standards shall report production data as outlined in section 17-0602(B).

D. If the city calculated limits to factor out dilution flows or non-regulated flows, the user will be responsible for providing flows from the regulated process flows, dilution flows and non-regulated flows.

E. Flows shall be reported on the basis of actual measurement, provided, however, that the city may accept reports of average and maximum flows estimated by verifiable techniques if the city determines that an actual measurement is not feasible.

F. Discharges sampled shall be representative of the user's daily operations and samples shall be taken in accordance with the requirements specified in article 17-07.

G. The city may require reporting by users that are not required to have an industrial wastewater discharge permit if information or data is needed to establish a sewer charge, determine the treatability of the effluent, or determine any other factor which is related to the operation and maintenance of the sewer system.

H. The city may require self-monitoring by the user or, if requested by the user, may agree to perform the periodic compliance monitoring needed to prepare the periodic compliance report required under this section. If the city agrees to perform such periodic compliance monitoring, it may charge the user for such monitoring, based upon the costs incurred by the city for the sampling and analyses. Any such charges shall be added to the normal sewer charge and shall be payable as part of the sewer bills. The city is under no obligation to perform periodic compliance monitoring for a user.

Source: 5203 (2019).

17-0604. Compliance schedules for meeting applicable pretreatment standards.--

A. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards (e.g., hiring an engineer, completing preliminary plans, completing final plans, executing contract for major components, commencing construction, completing construction, etc.).

B. No increment referred to in subsection (A) of this section shall exceed nine (9) months.

C. Not later than fourteen (14) days following each date in the schedule and the final date for compliance, the user shall submit a progress report to the city including, at a minimum, whether or not it complied with the increment of progress to be met on such date and, if not, the date on which it expects to comply with this increment of progress, the reason for delay, and the steps being taken by the user to return the construction to the schedule established. In no event shall more than 9 months elapse between such progress reports.

Source: 5203 (2019).

17-0605. Notification of significant production changes.--Any user operating under a wastewater discharge permit incorporating equivalent mass or concentration limits shall notify the city within two (2) business days after the user has a reasonable basis to know that the production level will significantly change within the next calendar month. Any user not providing a notice of such anticipated change will be required to comply with the existing limits contained in its wastewater discharge permit.

Source: 5203 (2019).

17-0606. Hazardous waste notification.--Any user that is discharging more than 15 kilograms of hazardous wastes as defined in 40 C.F.R. §261 (listed or characteristic wastes) in a calendar month or any facility discharging any amount of acutely hazardous wastes as specified in 40 C.F.R. §§261.30(d) and 261.33(e) is required to provide a one-time notification in writing to the city, to the EPA Region 8 Hazardous Waste Director, and to the state of North Dakota. Any existing user exempt from this notification shall comply with the requirements contained herein within 30 days of becoming aware of a discharge of 15 kilograms of hazardous wastes in a calendar month or any discharge of acutely hazardous wastes to the city sewer system.

Such notification shall include:

A. The name of the hazardous waste as set forth in 40 C.F.R. Part 261.

B. The EPA Hazardous waste number; and

C. The type of discharge (continuous, batch, or other).

D. If an industrial user discharges more than 100 kilograms of such waste per calendar month to the sewer system, the notification shall also contain the following information to the extent it is known or readily available to the industrial user:

1. An identification of the hazardous constituents contained in the wastes,

2. An estimation of the mass and concentration of such constituents in the waste streams discharged during that calendar month, and;

3. An estimation of the mass of constituents in the waste streams expected to be discharged during the following 12 months.

These notification requirements do not apply to pollutants already reported under the self-monitoring requirements.

Whenever the EPA publishes final rules identifying additional hazardous wastes or new characteristics of hazardous waste, a user shall notify the city of the discharge of such a substance with 90 days of the effective date of such regulations.

In the case of any notification made under this paragraph, an industrial user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

Source: 5203 (2019).

17-0607. Notice of potential problems, including accidental spills, bypasses, and slug loads.--Any user shall give verbal notice of an unanticipated bypass, accidental spill, and/or slug load that exceeds applicable Pretreatment Standards to the Control Authority within 24 hours from the time the becomes aware of the issue. The notification shall include the concentration and volume and corrective action. Steps being taken to reduce any adverse impact should also be noted during the notification. A written submission shall also be provided within 5 days of the time the user becomes aware of the accidental spill, bypass, or slug load. Any user who discharges a slug load of pollutants shall be liable for any expense, loss, or damage to the POTW, in addition to the amount of any fines imposed on the city under state or federal law.

Source: 5203 (2019).

17-0608. Non-compliance reporting.--If sampling performed by a user indicates a violation, the user shall notify the Control Authority within 24 hours of becoming aware of the violation. Within five (5) days following such discharge, the User shall submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the User to prevent similar future occurrences. Such notification shall not relieve the User of any expense, loss damage, or other liability which might be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the User of any fines, penalties, or other liability which may be imposed pursuant to this ordinance. The user shall also repeat the sampling and submit the results of the repeat analysis to the Control Authority within 30 days after becoming aware of the violation. [Where the Control Authority has performed the sampling and analysis in lieu of the Industrial User, the Control Authority must perform the repeat sampling and analysis unless it notifies the User of the violation and requires the User to perform the repeat analysis]. Resampling is not required if:

A. The Control Authority performs sampling at the site of the Industrial User at a frequency of at least once per month, or

B. The Control Authority performs sampling at the User between the time when the initial sampling was conducted and the time when the User or the Control Authority receives the results of this sampling.

Source: 5203 (2019).

17-0609. Notification of changed discharge.--All users shall promptly notify the Control Authority in advance of any substantial change in the volume or character of pollutants in

their discharge, including significant manufacturing process changes, pretreatment modifications, and the listed or characteristic hazardous wastes for which the user has submitted initial notification under 40 C.F.R. §403.12(p).

Source: 5203 (2019).

17-0610. Reports from un-permitted users.--All users not required to obtain a wastewater discharge permit shall provide appropriate reports to the city as the Superintendent may require.

Source: 5203 (2019).

17-0611. Record keeping.--Users subject to the reporting requirements of this article shall retain and make available for inspection and copying all records of information obtained pursuant to any monitoring activities required by this ordinance and any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements. Records shall include the date, exact place, method, and time of sampling and the name of the person(s) taking the samples; the dates analysis were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses including documentation associated with Best Management Practices. These records shall remain available for a period of at least three (3) years. This period shall be automatically extended for the duration of any litigation concerning the user or POTW, or where the User has been specifically notified of a longer retention period by the Superintendent.

Source: 5203 (2019).

ARTICLE 17-07

SAMPLING AND ANALYTICAL REQUIREMENTS

Section

17-0701. Sampling requirements for users.
17-0702. Analytical requirements.
17-0703. City monitoring of user's wastewater.

17-0701. Sampling requirements for users.--

A. Grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds. For all other pollutant, 24-hour composite samples must be obtained through flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the Control Authority, the samples must be representative of the discharge and the decision to allow the alternative sampling must be documented in the Industrial User file for the Industrial User manifested by the city. Using protocols (including appropriate preservation) specified in 40 C.F.R. Part 136 and appropriate EPA guidance, multiple grab samples collected during the 24-hour period may be composited in the laboratory. Composite samples for other parameters unaffected by compositing procedures as documented in approved EPA methodologies may be authorized by the Control Authority, as appropriate.

B. For sampling required in support of baseline monitoring and 90-day compliance reports, a minimum of four (4) grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical

sampling data does not exist; for facilities for which historical sampling data are available, the Control Authority may authorize a lower minimum. For the reports required by 40 C.F.R. §403.12 (e) and (h), the Control Authority shall require the number of grab samples necessary to assess and assure compliance by Industrial Users with applicable Pretreatment Standards and Requirements.

C. Samples shall be taken immediately downstream from facilities if such exist, immediately downstream from the regulated or manufacturing process if no pretreatment exists, or at a location determined by the city and specified in the user's wastewater discharge permit. For categorical users, if other wastewaters are mixed with the regulated wastewater prior to pretreatment, the user shall measure the flows and concentrations necessary to allow use of the combined waste stream formula of 40 C.F.R. §403.6(e) in order to evaluate compliance with the applicable Categorical Pretreatment Standards. For other SIU for which the city has adjusted its local limits to factor out dilution flows, the user shall measure the flows and concentrations necessary to evaluate compliance with the adjusted pretreatment standard(s).

D. All sample results shall indicate the time, date and place of sampling, and the methods of analysis and shall certify that the waste stream sampled is representative of normal work cycles and expected pollutant discharges from the user. If a user sampled and analyzed the waste stream more frequently than what was required in its wastewater discharge permit, using methodologies in 40 C.F.R. Part 136, it must submit all results of sampling and analysis of the discharge as part of its self-monitoring report.

Source: 5203 (2019).

17-0702. Analytical requirements.--All pollutant analyses, including sampling techniques, shall be performed in accordance with the techniques prescribed in 40 C.F.R. Part 136, unless otherwise specified in an applicable categorical pretreatment standard. If 40 C.F.R. Part 136 does not contain sampling or analytical techniques for the pollutant in question, sampling and analyses must be performed in accordance with procedures approved by the EPA.

Source: 5203 (2019).

17-0703. City monitoring of user's wastewater.--The city will follow the same procedures as outlined in sections 17-0701 and 17-0702.

Source: 5203 (2019).

ARTICLE 17-08

COMPLIANCE MONITORING

Section

17-0801. Inspection and sampling.
17-0802. Monitoring facilities.
17-0803. Search warrants.
17-0804. Vandalism.

17-0801. Inspection and sampling.--The city shall have the right to enter the facilities of any user to ascertain whether the purpose of this ordinance and any wastewater discharge permit or order issued hereunder is being met and whether the user is complying with all

requirements thereof. Users shall allow the Superintendent ready access to all areas of the premises for the purposes of inspection, sampling, records examination and copying, and the performance of any additional duties.

A. Where a user has security measures in force which require proper identification and clearance before entry into its premises, the User shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, the Superintendent will be permitted enter without delay for the purposes of performing specific responsibilities.

B. The Superintendent shall have the right to set up on the User's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the user's operations.

C. Any temporary or permanent obstruction to safe and easy access to the facility to be inspected and/or sampled shall be promptly removed by the user at the written or verbal request of the Superintendent and shall not be replaced. The costs of clearing such access shall be borne by the user.

D. Unreasonable delays in allowing the Superintendent access to the user's premises shall be a violation of this ordinance.

Source: 5203 (2019).

17-0802. Monitoring facilities.--Each user shall provide and operate at its own expense a monitoring facility to allow inspection, sampling, and flow measurements of each sewer discharge to the city. Each monitoring facility shall be situated on the user's premises, except where such a location would be impractical or cause undue hardship on the user, the city may concur with the facility being constructed in the public street or sidewalk area, provided that the facility is located so that it will not be obstructed by landscaping or parked vehicles. The Superintendent, whenever applicable, may require the construction and maintenance of sampling facilities at other locations (for example, at the end of a manufacturing line or a wastewater treatment system).

There shall be ample room in or near such sampling facility to allow accurate sampling and preparation of samples for analysis. The facility, including the sampling and measuring equipment, shall be maintained at all times in a safe and proper operating condition at the expense of the user.

The Superintendent may require the user to install monitoring equipment as necessary at the User's expense. All monitoring facilities shall be constructed and maintained in accordance with all applicable local construction standards and specifications. All devices used to measure wastewater flow and quality shall be calibrated to ensure their accuracy.

Source: 5203 (2019).

17-0803. Search warrants.--If the Superintendent has been refused access to a building, structure or property, or any part thereof and is able to demonstrate probable cause to believe that there may be a violation of this ordinance, or that there is a need to inspect as part of a routine inspection program of the city designed to verify compliance with this ordinance or any wastewater discharge permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, the city may seek an administrative search warrant pursuant to N.D.C.C. Chapter 29-29.1, or may seek any other search warrant as authorized by law.

Source: 5203 (2019).

17-0804. Vandalism.--No person shall willfully or negligently break, damage, destroy, uncover, deface, tamper with, or prevent access to any structure, appurtenance or equipment, or other part of the POTW. Any person found in violation of this requirement shall be subject to the sanctions set out in this ordinance.

Source: 2187 (1985), 5203 (2019).

ARTICLE 17-09

CONFIDENTIAL INFORMATION

Section

17-0901. Confidential information.

17-0901. Confidential information.--Information and data on a user obtained from reports, surveys, wastewater discharge permit applications, wastewater discharge permits, and monitoring programs, and from city inspection and sampling activities is held and maintained subject to North Dakota Open Record Law, including N.D.C.C. §44-04-17.1 et seq., and specifically N.D.C.C. §44-04-18.4. City Wastewater constituents, characteristics and other "effluent data" as defined by 40 C.F.R. §2.302 will not be recognized as confidential information and will be available to the public without restriction.

Source: 5203 (2019).

ARTICLE 17-10

PUBLICATION OF USERS IN SIGNIFICANT NON-COMPLIANCE

Section

17-1001. Publication of significant non-compliant users.

17-1001. Publication of significant non-compliant users.--The city shall publish annually, in one or more newspaper(s) of general circulation providing meaningful public notice within the jurisdiction(s) served by the POTW, a list of the users which, during the previous twelve (12) months, were in significant non-compliance with applicable pretreatment standards and requirements. For the purposes of this provision, an industrial user is in significant noncompliance if its violation meets one or more of the following criteria:

A. Chronic violations of wastewater discharge limits, defined here as those in which sixty-six percent (66%) or more of wastewater measurements taken for each pollutant parameter during a six (6) month period exceed (by any magnitude) a numeric Pretreatment Standard or Requirement, including instantaneous limits, as defined by 40 C.F.R. §403.3(l);

B. Technical Review Criteria (TRC) violations, defined here as those in which thirty-three percent (33%) or more of wastewater measurements taken for each pollutant parameter during a six (6) month period equals or exceeds the product of the numeric Pretreatment Standard or Requirement, including instantaneous limits, as defined by 40 C.F.R. §403.3(l) multiplied by the TRC [TRC=1.4 for BOD, TSS, fats, oils and grease, and TRC = 1.2 for all other pollutants except pH];

C. Any other discharge violation of a Pretreatment Standard or Requirement as defined by 40 C.F.R. §403.3(l) (daily maximum, longer-term average, instantaneous limit, or narrative Standard) that the POTW determines has caused, alone or in combination with other discharges, Interference or Pass Through (including endangering the health of POTW personnel or the general public);

D. Any discharge of pollutants that has caused imminent endangerment to the public or to the environment, or has resulted in the city's exercise of its emergency authority to halt or prevent such a discharge;

E. Failure to meet, within ninety (90) days of the scheduled date, a compliance schedule milestone contained in a wastewater discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance;

F. Failure to provide within thirty (30) days after the due date, any required reports, including baseline monitoring reports, reports on compliance with categorical pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

G. Failure to accurately report non-compliance; or

H. Any other violation or group of violations, which may include a violation of Best Management Practices, which the POTW determines will adversely affect the operation or implementation of the local Pretreatment Program.

Source: 5203 (2019).

ARTICLE 17-11

ADMINISTRATIVE ENFORCEMENT REMEDIES

Section

17-1101. Definitions.
17-1102. Responsibility for enforcement.
17-1103. Types of violations.
17-1104. Remedies and enforcement powers.
17-1105. Enforcement procedures.
17-1106. Emergency suspensions.
17-1107. Termination of discharge (non-emergency).
17-1108. Other powers.
17-1109. Continuation.

17-1101. Definitions.--The following definitions apply to this chapter:

A. "Notice of violation (NOV)" shall mean a notice of violation is a written notice of the violation of an ordinance in this chapter which identifies the nature of the violation, the section or ordinance allegedly violated and the time of occurrence of the violation, if known.

B. "Administrative compliance order (ACO)" shall mean an administrative compliance order is an order issued by the director which identifies the nature of the violation, the section or ordinance allegedly violated, the time of occurrence of the violation, if known, the corrective steps necessary and the nature of subsequent penalties and enforcement actions should the situation not be corrected and ordering that the alleged violator come into compliance with the section or ordinance within which compliance must occur.

C. "Order to show cause" shall mean an order issued by the director issued when there is reason to believe that the violation identified in the administrative compliance order has not ceased or been corrected as required, and directing the alleged violator to appear before the director to show cause why service should not be terminated.

D. "Restitution" shall mean restitution is the amount determined by the director to be payable to the city by a violator of this chapter necessary to reimburse the city for damage caused to the sewage system as a result of such violation.

Source: 4484 (2005), 5203 (2019).

17-1102. Responsibility for enforcement.--The director is authorized to enforce this chapter.

Source: 4484 (2005), 5203 (2019).

17-1103. Types of violations.--All of the following represent violations of this article and of law and will be subject to the remedies and penalties provided in this article, the city code and state law.

A. Discharge of sewage without required permit or approval. It is a violation of this section to discharge sewage into the sewerage system of the city without obtaining all the permits, approvals, certificates and other forms of authorization required by this article.

B. Discharge of sewage inconsistent with permit. It is a violation of this section to discharge sewage into the sewerage system of the city in any way inconsistent with the terms and conditions of any permit, approval, certificate or other form of authorization required in order to engage in such activity.

C. Discharge of sewage inconsistent with conditions. It is a violation of this section to violate, by act or omission, any term, condition, or qualification imposed by a decision-making body upon a required permit, certificate, or other form of authorization.

D. Sewerage discharge equipment and structures inconsistent with this section. It is a violation of this section to erect, construct, reconstruct, remodel, alter, maintain, move, or use any equipment, building or structure or to use any equipment, building or structure in violation or contravention of this section.

E. Continuing violations. It is a violation of this section to continue any of the violations specified in this section. Each day that a violation continues shall be considered a separate offense.

Source: 4484 (2005), 5203 (2019).

17-1104. Remedies and enforcement powers.--The city shall have the following remedies and enforcement powers:

A. Withhold permits. The city may deny or withhold all permits, certificates or other forms of authorization as to any applicant for a permit, or to refuse the discharge into the sewerage system as to any land or structure or improvements thereon upon which there is an uncorrected violation of this chapter or of a condition or qualification of a permit, certificate, approval or other authorization previously granted by a decision-making body. Instead of withholding or denying an authorization, the city may grant such authorization subject to the condition that the violation be corrected. This enforcement provision applies

regardless of whether the current owner or applicant is responsible for the violation in question. The city may deny or withhold all permits, certificates or other forms of authorization on any land or structure or improvements owned by a person who owns, developed or otherwise caused an uncorrected violation of a provision of this article or of a condition or qualification of a permit, certificate, approval or other authorization previously granted by a decision-making body. This provision applies regardless of whether the property for which the permit or other approval is sought is the property in violation.

B. Revoke permits. A permit may be revoked when the director determines that:

1. There is departure from the plans, specifications, or conditions as required under terms of the permit;
2. The plans, specifications, or conditions were obtained by false representation or was issued by mistake; or
3. Any of the provisions of this chapter are being violated.

C. Revoke plan or other approval. When a violation of this article involves a failure to comply with approved plans or conditions to which the approval of such plans was made subject, the superintendent, may, upon notice to the applicant and other known parties in interest (including an holders of building or other permits affected) and after a public hearing, revoke the plan or other approval or condition its continuance on strict compliance, the provision of security or such other conditions as the superintendent may reasonably impose.

D. Sewer service shut off. In a situation deemed by the director to be an emergency, the director may order the shut off of sewer service subject to the user's right to a hearing before the director as set forth in this article. In non-emergency situations, subject to the user's right to a hearing prior to such shut-off, as set forth in this article, the superintendent may order the sewer service of a violator to be shut off.

E. Injunctive relief. The city may seek an injunction or other equitable relief in court to stop any violation of this chapter or of a permit, certificate or other form of authorization granted hereunder.

F. Abatement. The city may seek a court order in the nature of mandamus, abatement, injunction or other action or proceeding to abate or remove a violation or to otherwise restore the premises in question to the condition in which they existed prior to the violation.

G. Restitution. The city may seek an order requiring restitution as a condition to be met by a person before the person's permit is restored, before the person is allowed to lawfully discharge into the sewer system, or before other action may be taken by the person as determined by an appropriate order.

H. Penalties. The penalty for a violation of this ordinance shall be governed by the penalty provisions of Fargo Municipal Code 1-0305, and the city may also seek such criminal or civil penalties provided by North Dakota law or city ordinance.

I. Other remedies. The city shall have such other remedies as are and as may be from time to time provided by North Dakota law and municipal codes for the violation of this chapter or related provisions.

J. Remedies cumulative. The remedies and enforcement powers established in this article are cumulative.

Source: 4484 (2005), 5203 (2019).

17-1105. Enforcement procedures.--The following enforcement procedures shall apply to violations of this chapter:

A. Non-emergency matters. In the case of violations of this chapter that do not constitute an emergency, the superintendent may:

1. Issue a notice of violation; or

2. Issue an administrative compliance order;

which shall be issued to the property owner and to any other person who is alleged to be in violation of this article or of the terms of any permit or condition granted and to any applicant for any relevant permit.

B. Emergency matters. In the case of violations of this chapter that do constitute an emergency situation, the city shall use all remedies, penalties and enforcement powers available under this chapter without prior notice, including shutting off sewer service, but the director must send notice simultaneously with beginning enforcement action to the property owner, to any other person who is party to the agreement and to applicants for any relevant permit and must advise persons affected by the sewer service shut off that a hearing will be held within seven days from the date sewer service was shut off. At the hearing, the director will determine whether there were appropriate grounds for the sewer service to be shut off, and whether the shut off of sewer service should continue.

C. Administrative compliance orders procedure. Persons receiving an administrative compliance order or an administrative compliance order with fine shall have ten (10) days, or such longer period as the director allows, to correct the violation. If the violation is not corrected within the required time-frame, the director may use all penalties, remedies and enforcement powers available under this article.

D. Order to Show Cause Hearing. In the event the director has issued an administrative compliance order, if the violation is not corrected by timely compliance, the director may order any person who causes or allows an unauthorized discharge to show cause before the director why sewer service should not be shut off. A notice shall be served on the offending party, specifying the time and place of a hearing to be held by the director regarding the violation, and directing the offending party to show cause before said board why an order should not be made directing the shut off of service. The notice of the hearing shall be served personally or by registered or by certified mail, return receipt requested, at least 10 days before the hearing. Such notice shall be deemed served if a copy thereof is (a) delivered to the offending party personally or to the offending party's registered agent; (b) sent by certified mail addressed to the offending party or to the offending party's registered agent at the last known address with a return-receipt requested; or (c) delivered in any other manner as permitted under local law. If the certified mailing is returned showing that the item was not delivered,

a copy thereof shall be posted in a conspicuous place in or about the property affected by such notice. Service by mail shall be deemed made or accomplished when it is deposited for delivery with the U.S. Postal Service.

Source: 4484 (2005), 5203 (2019).

17-1106. Emergency suspensions.--The Superintendent may immediately suspend a user's discharge (after informal notice to the user) whenever such suspension is necessary to stop an actual or threatened discharge which reasonably appears to present or cause an imminent or substantial endangerment to the health or welfare of persons. The Superintendent may also immediately suspend a user's discharge (after notice and opportunity to respond) that threatens to interfere with the operation of the POTW or which presents or may present an endangerment to the environment.

A. Any user notified of a suspension of its discharge shall immediately stop or eliminate its contribution. In the event off a user's failure to immediately comply voluntarily with the suspension order, the Superintendent shall take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the POTW, its receiving stream, or endangerment to any individuals. The superintendent shall allow the user to recommence its discharge when the user has demonstrated to the satisfaction of the city that the period of endangerment has passed, unless the termination proceedings in section 17-1107 are initiated against the user.

B. A user that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement, describing the causes of the harmful contribution and the measures taken to prevent any future occurrence, to the Superintendent prior to the date of any show cause or termination hearing under this chapter.

Nothing in this section shall be interpreted as requiring a hearing prior to any emergency suspension under this chapter.

Source: 5203 (2019).

17-1107. Termination of discharge (Non-emergency).--In addition to the provisions in section 17-0513, any user that violates the following conditions is subject to discharge termination:

A. Violation of wastewater discharge permit conditions;

B. Failure to accurately report the wastewater constituents and characteristics of its discharge;

C. Failure to report significant changes in operation or wastewater volume, constituents and characteristics prior to discharge;

D. Refusal of reasonable access to the user's premises for the purpose of inspection, monitoring or sampling; or

E. Violation of the pretreatment standards in article 17-04.

Such user will be notified of the proposed termination of its discharge and be offered an opportunity to show cause under section 17-1105 why the proposed action should not be taken. Exercise of this option by the city shall not be a bar to, or a prerequisite for, taking any other action against the user.

Source: 5203 (2019).

17-1108. Other powers.--In addition to the enforcement powers specified in this chapter, the city may exercise any and all enforcement powers granted to them by North Dakota law.

Source: 4484 (2005), 5203 (2019).

17-1109. Continuation.--Nothing in this chapter shall prohibit the continuation of previous enforcement actions, undertaken by the city pursuant to previous and valid ordinances and laws.

Source: 4484 (2005), 5203 (2019).

ARTICLE 17-12

JUDICIAL ENFORCEMENT REMEDIES

Section

17-1201. Injunctive relief.
17-1202. Criminal prosecution.
17-1203. Remedies non-exclusive.

17-1201. Injunctive relief.--When the Superintendent finds that a user has violated or continues to violate any provision of this ordinance, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the Superintendent may petition the state district court or federal district court, as applicable, for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the wastewater discharge permit, order, or other requirement imposed by this ordinance on activities of the user. The city may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against a user.

Source: 5203 (2019).

17-1202. Criminal prosecution.--

A. A user which has willfully or negligently violated any provision of this ordinance, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement shall, upon conviction, be guilty of a Class B misdemeanor, punishable by a fine of not more than $1500, imprisonment for not more than thirty (30) days, or both said imprisonment and fine.

B. A user which has willfully or negligently introduced any substance into the POTW which causes personal injury or property damage shall, upon conviction, be guilty of a Class B misdemeanor, punishable by a fine of not more than $1500, imprisonment for not more than thirty (30) days, or both said imprisonment and fine. This penalty shall be in addition to any other cause of action for personal injury or property damage available under State law.

C. A user which knowingly made any false statements, representations, or certifications in any application, record, report, plan, or other documentation filed, or required to be maintained, pursuant to this ordinance, wastewater discharge permit, or order issued hereunder, or who falsified, tampered with, or knowingly rendered inaccurate any monitoring device

or method required under this ordinance shall, upon conviction, be guilty of a Class B misdemeanor, punishable by a fine of not more than $1500, imprisonment for not more than thirty (30) days, or both said imprisonment and fine.

Source: 5203 (2019).

17-1203. Remedies non-exclusive.--The provisions in articles 17-10 through 17-13 of this chapter are not exclusive remedies. The city reserves the right to take any, all, or any combination of these actions against a non-compliant user. Enforcement in response to pretreatment violations will generally be in accordance with the city's enforcement response plan. However, the city reserves the right to take other action against any user when the circumstances warrant. Further, the city is empowered to take more than one enforcement action against any non-compliant user. These actions may be taken concurrently.

Source: 5203 (2019).

ARTICLE 17-13

SUPPLEMENTAL ENFORCEMENT ACTION

Section

17-1301. Performance bonds.
17-1302. Liability insurance.
17-1303. Water supply severance.
17-1304. Public nuisances.
17-1305. Contractor listing.

17-1301. Performance bonds.--The Superintendent may decline to issue or reissue a wastewater discharge permit to any user which has failed to comply with any provision of this ordinance, a previous wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement unless such user first files a satisfactory bond, payable to the city, in a sum not to exceed a value determined by the Superintendent to be necessary to achieve consistent compliance.

Source: 5203 (2019).

17-1302. Liability insurance.--The Superintendent may decline to issue or reissue a wastewater discharge permit to any user which has failed to comply with any provision of this ordinance, a previous wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, unless the user first submits proof that is has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge.

Source: 5203 (2019).

17-1303. Water supply severance.--Whenever a user has violated or continues to violate any provision of this ordinance, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, water service to the user may be severed. Service will only recommence, at the user's expense, after it has satisfactorily demonstrated its ability to comply.

Source: 5203 (2019).

17-1304. Public nuisances.--A violation of any provision of this article, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, is hereby declared a public nuisance and city may be abated, enjoined or repressed in the same manner as any other public nuisance, including restraining order or injunction issued by a court of competent jurisdiction.

Source: 5203 (2019).

17-1305. Contractor listing.--Users which have not achieved compliance with applicable pretreatment standards and requirements are not eligible to receive a contractual award for the sale of goods or services to the city. Existing contracts for the sale of goods or services to the city held by a user found to be in significant non-compliance with the pretreatment standards or requirements may be terminated at the discretion of the city.

Source: 5203 (2019).

ARTICLE 17-14

AFFIRMATIVE DEFENSES TO DISCHARGE VIOLATIONS

Section

17-1401. Upset.
17-1402. Prohibited discharge standards.
17-1403. Bypass.

17-1401. Upset.--

A. For the purposes of this chapter, "upset" means an exceptional incident in which there is unintentional and temporary non-compliance with applicable pretreatment standards because of factors beyond the reasonable control of the user. An upset does not include non-compliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

B. An upset shall constitute an affirmative defense to an action brought for non-compliance with applicable pretreatment standards if the requirements of subsection C hereof are met.

C. A user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence that:

1. An upset occurred and the user can identify the cause(s) of the upset;
2. The facility was at the time being operated in a prudent and workman-like manner and in compliance with applicable operation and maintenance procedures; and
3. The user has submitted the following information to the POTW and treatment plant operator within twenty four (24) hours of becoming aware of the upset [if this information is provided orally, a written submission must be provided within five (5) days]:
   i. A description of the indirect discharge and cause of non-compliance;

ii. The period of non-compliance, including exact dates and times or, if not corrected, the anticipated time the non-compliance is expected to continue; and

iii. Steps being taken and/or planned to reduce, eliminate, and prevent recurrence of the non-compliance.

D. In any enforcement proceeding, the user seeking to establish the occurrence of an upset shall have the burden of proof.

E. Users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action brought for non-compliance with applicable pretreatment standards.

F. Users shall control production of all discharges to the extent necessary to maintain compliance with applicable pretreatment standards upon reduction, loss, or failure of their treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.

Source: 5203 (2019).

17-1402. Prohibited discharge standards.--A user shall have an affirmative defense to an enforcement action brought against it for non-compliance with the prohibitions in section 17-0403(A) and (B) if it can prove that it did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference and that either: (a) a local limit exists for each pollutant discharged and the user was in compliance with each limit directly prior to, and during, the pass through or interference; or (b) no local limit exists, but the discharge did not change substantially in nature or constituents from the user's prior discharge when the city was regularly in compliance with its NPDES permit, and in the case of interference, was in compliance with applicable sludge use or disposal requirements.

Source: 5203 (2019).

17-1403. Bypass.--

A. For the purposes of this chapter,

1. "Bypass" means the intentional diversion of waste streams from any portion of a user's treatment facility.

2. "Severe property damage" means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

B. A user may allow any bypass to occur which does not cause applicable pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of subsections (C) and (D) hereof.

C. Notice to Bypass.

1. If a user knows in advance of the need for a bypass, it shall submit prior notice to the POTW at least ten (10) days before the date of the bypass, if possible.

2. A user shall submit oral notice to the city of an unanticipated bypass that exceeds applicable pretreatment standards within twenty-four (24) hours from

the time it becomes aware of the bypass. A written submission shall also be provided within five (5) days of the time the user becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent recurrence of the bypass. The POTW may waive the written report on a case by case basis if the oral report has been received within twenty-four (24) hours.

D. Bypass Conditions.

1. Bypass is prohibited, and the POTW may take an enforcement action against a user for a bypass, unless the user demonstrates:
   i. Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;
   ii. There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate back-up equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and
   iii. The user submitted notices as required under subsection (C) hereof.
2. The POTW may approve an anticipated bypass, after considering its adverse effects, if the POTW determines that it will meet the three conditions listed in subparagraph (a) of this subsection.

Source: 5203 (2019).

ARTICLE 17-15

WASTEWATER TREATMENT RATES

Section

17-1501. Sewerage rates and rules.
17-1502. Industrial waste surcharge.
17-1503 Reserved.
17-1504 Reserved.
17-1505. Maximum loadings.
17-1506. Transitional provision.
17-1507. Industrial waste permit fee.
17-1508. Notification of rates and charges.
17-1509. When due.
17-1510. Exemptions.
17-1511. Out of city sewer connections.

17-1501. Sewerage rates and rules.--The city reserves the right to change the rates for the use and availability of sewerage service from time to time, by resolution, and at all times to make such sewerage service restrictions, rules, and regulations as, in the judgment of the board of city commissioners may be necessary; provided, that the schedules of such rates and charges

shall be such as will provide the amounts required, over and above the current expenses of operation and maintenance for depreciation, replacement, and improvement of said utility which will keep the same in a state of efficiency corresponding to the progress of such sewerage utilities generally, including payment of principal and interest and creation and maintenance of reserves securing such payments on any bond issued to finance or refinance improvements thereto, in accordance with the resolutions and ordinances authorizing such bonds. Sewerage rates, surcharges, discounts, penalties, service, or advance charges shall be those established by the board of city commissioners by resolution:

A. Payment of the user's wastewater service charge and penalties--The city shall submit statements on a quarterly or more frequent basis to the user. The city shall add a penalty of 10% if the payment is not received by the city within 15 days. Should any user fail to pay the user wastewater service charge and penalty within three months of the due date, the city may stop the wastewater service to the property.

B. Wastes prohibited from being discharged to the wastewater treatment system--The discharge of wastes containing materials in such quantities as to be detrimental to the wastewater treatment process is hereby prohibited. The discharge of wastes which cause or are likely to cause maintenance problems such as to hinder flow, block pipes and/or pumps is hereby prohibited.

Source: 4484 (2005), 5203 (2019).

17-1502. Industrial waste surcharge.--

A. There shall be collected from any permitted user within the city an additional charge over and above the base sewage rates provided for commercial users based upon the extent to which the sewage or waste so discharged has a biochemical oxygen demand (BOD) concentration greater than two hundred seventy-five (275) mg/l, total suspended solids (TSS) greater than two hundred seventy-five (275) mg/l or other pollutants in such concentration as to require special attention to treatment as determined by resolution of the board of city commissioners.

B. Any sums so charged in addition to the base sewage charges shall be termed "surcharge" and shall be ascertained as hereinafter described.

1. Sampling and testing of the permittees' wastewater shall be conducted at periodic intervals as specified in the industrial waste permit or agreed upon by the city and permittee for the purpose of computation of the monthly surcharge and penalty fee, if any.
2. The surcharge to the permitted user shall be based upon the following:
   i. S = (RB(BOD-275) + RS(TSS-275) + RP(P)) * 8.34 * VW
   ii. For the purposes of this ordinance the following terms apply:
      (a) RB = surcharge rate in $/lb for BOD
      (b) BOD = Concentration of BOD in user's wastewater, mg/l
      (c) RS = surcharge rate in $/lb for TSS
      (d) TSS = Concentration of TSS in user's discharge, mg/l
      (e) RP = surcharge rate in $/lb for other specified pollutant
      (f) P = Concentration of other pollutant(s) in user's discharge, mg/l
      (g) VW= Volume of wastewater discharged for the billing period, million gallons

iii. If the surcharge amount for any pollutant in the above formula becomes less than zero (0) it shall not be used to offset or reduce the surcharge amount to be collected for other pollutants listed in the surcharge formula.

3. Wastewater surcharges shall be in addition to and shall be collected with the wastewater base rate charges and all regulations which apply to the collection of these wastewater base rate charges shall also apply to wastewater surcharges.

4. The rates to be applied in the surcharge formula for treatment of pollutants in addition to the wastewater rentals are established as follows:

i. For BOD: The BOD rate (RB) = is amount set by resolution of the board of city commissioners.

ii. For TSS: The TSS rate (RS) = is amount set by resolution of the board of city commissioners.

iii. For other pollutants: The rate (P) = (rate to be determined by board of city commissioners when need exists for special attention to treatment of other pollutants.)

C. Any person discharging any waste which by its nature or toxicity causes damage to the treatment works or increases the cost of managing the effluent, sludge or other products of treatment shall pay the costs of cleanup, restoration of such damage, and any increased treatment costs.

Source: 4484 (2005), 5203 (2019).

17-1503 Reserved.

17-1504 Reserved.

17-1505. Maximum loadings.--The Board of city commissioners, by resolution, may establish the maximum load of BOD and TSS, or other pollutant, for each permittee.

Source: 4484 (2005), 5203 (2019).

17-1506. Transitional provision.--The requirement of the maximum loadings set by the board of city commissioners, as provided by section 17-1505, shall take effect no earlier than July 1, 2007.

Source: 4484 (2005), 5203 (2019).

17-1507. Industrial waste permit fee.--An annual fee of one hundred dollars ($100.00) shall be charged for each industrial waste permit. The initial fee shall be submitted at the time of application for such permit and subsequent renewal fees shall be submitted with a written application for renewal of the permit prior to December 31 of each year.

Source: 4484 (2005), 5203 (2019).

17-1508. Notification of rates and charges.--The charges for wastewater service (user charges) shall be stated separately from the water, refuse collection or other amounts shown on the periodic water bills issued to each user. Each user will be notified annually, or at more frequent intervals, as to the current rates for wastewater service, surcharges for high strength wastes, and any other charges made for collection and treatment of wastewater in the city.

Source: 4484 (2005), 5203 (2019).

17-1509. When due.--Wastewater charges shall be collected with the water charges of the city by the city water department, and shall become due and delinquent upon the same dates as the water bills upon which the same are charged, and for failure to pay the said wastewater charges the authorized city representative shall have the same authority to shut off water and said authorized city representative shall refuse to turn on or reconnect the same as is now provided in the case of default in the payment of water bills. Whenever the authorized city representative shall have shut off water service as provided herein for failure of the owner or occupant to pay the wastewater charges, such service shall not be reinstated until all past due bills for wastewater service are paid in full.

Source: 4484 (2005), 5203 (2019).

17-1510. Exemptions.--

A. No wastewater fees shall be charged or collected upon water meter readings for water which is carried out of the city for use. This section shall not be construed as exempting from wastewater charges water which is used for processing purposes within the city though the product thereof is carried outside of the city for use, but shall apply only to water users actually hauling or carrying their water beyond the city limits for use.

B. No wastewater fees shall be charged upon premises outside the city limits unless said premises are served by the city wastewater system.

Source: 4484 (2005), 5203 (2019).

17-1511. Out of city sewer connections.--

A. No wastewater services shall be connected to the systems of the city to serve property lying outside the corporate limits of the city.

B. Exceptions:

1. Political subdivision. Wastewater service may be extended to any village, city, township, county, state, or federal governmental agency with the approval of the board of city commissioners.
2. Existing connections. Any sewer connection serving property outside the corporate limits of the city, on the effective date of this article, shall be continued.
3. Institutions of learning and public charity. Wastewater service may be extended to schools, academics, colleges, institutions of learning, institutions of public charity, hospitals, churches and religious organizations with the approval of the board of city commissioners.

C. Any person, firm or corporation that is permitted as an out of city sewer connection shall enter into an agreement with the city that said person, firm or corporation will construct and maintain in good repair at the user's own expense under the direction, supervision, and according to instruction of the authorized city representative, the necessary service pipe, manholes, and other appurtenances to serve the premises in compliance with all city codes and ordinances, will obtain the necessary plumbing permits therefor and will pay all sewer connection or service fees, permit fees, and inspection fees required for such installations. The authorized city representative shall have the same authority to collect monthly wastewater fees and to shut off water for failure of the user to pay the said wastewater fees as for users within the city limits.

D. In the event an additional user desires to be connected to an existing out of city sewer service the written consent of the owner of the sewer and of the authorized city representative, together with the payment of all applicable fees shall be required. Said fees shall

include the inspection fee, sewer connection or service fee, industrial waste permit fee, and/or any other fees if and when applicable to the service desired and shall accompany a written application to the city for said service.

E. The payment of the monthly wastewater service charges provided in this article shall also apply to out of city property owners who have been heretofore connected to said service, and in addition said users shall be subject to all conditions and regulations imposed by this chapter, and amendments thereto and shall be subject to such other conditions as may be required by the authorized city representative.

Source: 2187 (1985), 5203 (2019).

ARTICLE 17-16

MISCELLANEOUS PROVISIONS

Section

17-1601. Pretreatment charges and fees.
17-1602. Severability.
17-1603. Conflicts.
17-1604. Days.
17-1605. Savings clause.

17-1601. Pretreatment charges and fees.--The city may adopt reasonable fees for reimbursement of costs of setting up and operating the city's Pretreatment Program which may include:

A. Fees for wastewater discharge permit applications including the cost of processing such application;

B. Fees for monitoring, inspection, and surveillance procedures including the cost of collection and analyzing a user's discharge, and reviewing monitoring reports submitted by users;

C. Fees for reviewing and responding to accidental discharge procedures and construction;

D. Fees for filing appeals; and

E. Other fees as the city may deem necessary to carry out the requirements contained herein. These fees relate solely to the matters covered by this ordinance and are separate from all other fees, fines, and penalties chargeable by the city.

Source: 5203 (2019).

17-1602. Severability.--If any provision of this ordinance is invalidated by any court of competent jurisdiction, the remaining provisions shall not be affected and shall continue in full force and effect.

Source: 5203 (2019).

17-1603. Conflicts.--All other ordinances and parts of other ordinances inconsistent or conflicting with any part of this ordinance are hereby repealed to the extent of the inconsistency or conflict.

Source: 5203 (2019).

17-1604. Days.--A day under this chapter should be a calendar day unless context suggests otherwise.

Source: 5203 (2019).

17-1605. Savings clause.--To the extent that any portion of Chapter 17 of the Fargo Municipal Code has been repealed and re-enacted with a different or revised section or article number, particularly with respect to a repeal and re-enactment occurring with the year 2019 passage of Ordinance No. 5203 of the city of Fargo, and to the extent said re-enacted section or portion thereof addresses the same subject matter as existed under the prior version of said law; and to the extent such prior city ordinance was referenced in an agreement with the state, an agency thereof, or another political subdivision or other party, public or private, the re-enacted version of the ordinance or section shall be deemed to be an amendment of the prior version, regardless of the change in numbering or title of the re-enacted law.

Source: 2187 (1985), 5203 (2019).

CHAPTER 18

PUBLIC WAYS AND PLACES

Article

18-01 Streets and Alleys, §§ 18-0101 to 18-0108.
18-02 Construction of Sidewalks and Driveways, §§ 18-0201 to 18-0220.
18-03 Use and Care of Streets and Sidewalks, §§ 18-0301 to 18-0317.
18-04 Encroachments, Obstructions, Excavations and Paving, §§ 18-0401 to 18-0433.
18-05 Public Buildings and Property--City Hall--Auditorium Commission, §§ 18-0501 to 18-0514.
18-06 Broadway Mall Improvement, §§ 18-0601 to 18-0604.
18-07 Municipal Parking System, §§ 18-0701 to 18-0705.
18-08 Parking Lot Construction and Drainage, §§ 18-0801 to 18-0805.
18-09 Excavation Ordinance, §§ 18-0900 to 18-0917.

ARTICLE 18-01

STREETS AND ALLEYS

Section

18-0101 Elevations--Determination.
18-0102 Building and house numbers.
18-0103 Naming and numbering streets and avenues.
18-0104 Lighting of streets, alleys and public buildings.
18-0105 Alleys--Nuisance--Cleaning and maintenance--Assessment of costs.
18-0106 Street paving--Standards--Costs to be assessed.
18-0107 Alley paving--Standards--Costs to be assessed.
18-0108 Street and alley paving--Fund established.

18-0101. Elevations--Determination.--Streets and alleys and their elevations, as established in the past by the city, shall be considered as permanent; and all references to past elevations and all future elevations as established from now on should be referred to and based on the United States Geological Survey elevations as established in 1917.

Source: 1965 Rev. Ord. 18-0101, 1619 (1974).

18-0102. Building and house numbers.--It shall be the duty of the owner, owners, or occupants of any building or buildings in the city fronting upon any street or avenue therein to place and keep in a conspicuous place on the front of such building or buildings the proper house number or house numbers thereof.

Source: 1965 Rev. Ord. 18-0102, 1619 (1974).

18-0103. Naming and numbering streets and avenues.--The names of the streets and avenues to the city shall be those designated in the official street name map as adopted by the board of city commissioners and on file in the office of the city auditor.

Source: 1965 Rev. Ord. 18-0103, 1619 (1974).

18-0104. Lighting of streets, alleys and public buildings.--The board of city commissioners shall have authority to, and shall, provide for the lighting of streets, avenues, alleys, public places and public buildings within the city by contract or such other arrangement as it may deem necessary or best.

Source: 1965 Rev. Ord. 18-0104, 1619 (1974).

18-0105. Alleys--Nuisance--Cleaning and maintenance-- Assessment of costs.--Any alley in the city of Fargo which is not graded, maintained and kept free from filth, garbage, rubbish and all noxious weeds shall be deemed to be a nuisance.

The owner or occupant of any building or grounds within the city adjacent to any alley shall keep such alley free from filth, garbage, rubbish and all noxious weeds. Such owner or occupant may, in his discretion and at his expense, grade and maintain such alley, or may request that the city perform such grading and maintenance work.

If said owner or occupant shall refuse or fail to keep such alley free from filth, garbage, rubbish and all noxious weeds, or if he shall fail to grade and maintain, or request that the city grade and maintain, such alley, the city of Fargo may grade, maintain and clean, or cause to be graded, maintained and cleaned, such alley, and the necessary costs and expenses thereof shall be chargeable to and assessed against, and shall be a lien upon, the property and premises adjacent to said alley.

The responsibility of the owner or occupant of property adjacent to an alley shall not include responsibility for snow removal and the costs thereof may not be assessed against any adjoining property.

Source: 1965 Rev. Ord. 18-0105, 1619 (1974).

18-0106. Street paving--Standards--Costs to be assessed.--Street paving in the city of Fargo shall be constructed and the costs assessed therefor in accordance with the following:

A. Street widths shall be based upon the traffic needs of each individual street and shall be determined by the city engineer, subject to the approval of the board of city commissioners.

B. The design standards for any street, including pavement type and thickness, shall be based upon the needs of traffic and shall be determined by the city engineer, subject to the approval of the board of city commissioners.

C. The cost of street paving shall be assessed against property which is benefited, in accordance with the provisions of chapters 40-22 through 40-27 of the North Dakota Century Code.

Source: 1965 Rev. Ord. 18-0106, 1619 (1974), 1775 (1977), 2444 (1989).

18-0107. Alley paving--Standards--Costs to be assessed.--Alley paving in the city of Fargo shall be constructed and the costs assessed therefor in accordance with the following:

A. Width of alley paving shall be based upon the platted width of each individual alley and shall be determined by the city engineer, subject to the approval of the board of city commissioners.

B. The design standards for any alley, including pavement type and thickness, shall be based upon the needs of traffic and shall be determined by the city engineer, subject to the approval of the board of city commissioners.

C. The cost of alley paving shall be assessed against adjoining property owners in accordance with the provisions of chapters 40-22 through 40-27 of the North Dakota Century Code.

Source: 1965 Rev. Ord. 18-0107, 1619 (1974).

18-0108. Street and alley paving--Fund established.--There is hereby created a fund to be known as the "permanent street improvement fund". All sums in excess of $570,000 which are returned to the city of Fargo from the state of North Dakota as the city's share of "jackpotted" highway funds and repayments to the city in lieu of personal property tax, shall be placed in such "permanent street improvement fund". The maximum amount to be placed in said fund in any fiscal year shall be $150,000. This fund shall be used to defray street and alley improvement costs which are not assessed against benefited property owners, and to pay the city's share of street and alley improvement costs which exceed assessable amounts as provided in §§ 18-0106 and 18-0107 hereof.

Source: 1965 Rev. Ord. 18-0108, 1619 (1974).

ARTICLE 18-02

CONSTRUCTION OF SIDEWALKS AND DRIVEWAYS

Section

18-0201 Scope of article.
18-0201.1 Duty of property owners to construct and maintain sidewalks.
18-0202 License necessary to construct, reconstruct, and repair sidewalks and driveways.
18-0203 Contractor's license--Fee--Expiration date.
18-0204 Bond of licensee--Repealed.
18-0205 Name stamp required of licensee.
18-0206 Construction subject to inspection--Request by licensee.
18-0207 Sidewalk construction--Permit required--Fees.
18-0208 Contract for construction of sidewalks--Bids-- Specifications.
18-0209 Qualifications of contractor.
18-0210 Bond to accompany contract.
18-0211 City sidewalk contract controlled by city engineer.
18-0212 City sidewalk contract--Scope of work.
18-0213 Contractor to be responsible until sidewalk completed.
18-0214 Failure of contractor to fulfill conditions.
18-0215 Width of sidewalks.
18-0216 City sidewalks--Driveways--Construction specifications.
18-0217 Materials and Construction Methods.
18-0218 Construction staking.
18-0219 Excavation for sidewalks and driveways.
18-0220 Measurement and payment on city contract.

18-0201. Scope of article.--This article shall govern all construction of all sidewalks, sidewalk approaches, alley returns, and driveways within the city of Fargo.

Source: 1952 Rev. Ord. 1152 (1963).

18-0201.1. Duty of property owners to construct and maintain sidewalks.--Notwithstanding the provisions of 40-29-02 of the North Dakota Century Code, the duty to construct, reconstruct and maintain sidewalks in the city of Fargo shall be as follows:

A. Except as hereinafter provided in subsection (E) of this section, the original owner of any building constructed in the city of Fargo shall construct sidewalks along the street or avenue in accordance with the requirements of this article; or shall petition the city in writing, to construct such sidewalks and to assess the cost thereof against the adjoining property. The form of the petition shall be as provided by the city finance office.

B. Construction of sidewalks, or submission of a petition as hereinabove provided, shall be a prerequisite to the issuance of a certificate of occupancy for any building constructed in the city of Fargo.

C. The owner of any lot or parcel of land adjoining any street or avenue in the city of Fargo shall reconstruct and maintain in good repair such sidewalks along the street or avenue as have been previously constructed and shall construct such sidewalks when so ordered by resolution of the board of city commissioners.

D. Such sidewalks shall be constructed in accordance with all of the requirements of this article. Notice of such order to construct, reconstruct or repair shall be given in accordance with §40-29-03 of the North Dakota Century Code.

E. The board of city commissioners may, for good cause shown, waive the requirement for sidewalks; provided, that such waiver may not be granted for any property which is unplatted. Petitions for sidewalk waivers will be submitted and processed as follows:

1. A written petition, signed by a majority of the owners of property within the area for which the waiver is requested, shall be submitted to the planning office. The form of the petition shall be approved and furnished by the planning office.
2. The petition shall be submitted to the planning commission at its next regular meeting for consideration and recommendations; provided, that such petition may be submitted and considered by the planning commission simultaneously with the request for approval of a plat of the area for which the sidewalk waiver is requested.
3. The planning commission, after consideration of the petition, shall forward its determination and recommendation to the board of city commissioners.
4. The board of city commissioners shall consider the petition and the recommendation of the planning commission, in making its final decision on the petition.
5. A waiver of the requirement for sidewalks shall not constitute a waiver of the requirement to provide sufficient right-of-way to accommodate sidewalks in the future, in the event the waiver is rescinded pursuant to paragraph (F) of this section.
6. Appropriate guidelines regarding the necessity for sidewalks shall be developed and incorporated in the subdivision regulations for the city of Fargo.

F. A waiver of the requirement for sidewalks which is granted pursuant to subsection (E) of this section shall be rescinded as follows:

1. Upon submission of a petition signed by a majority of the owners of property located within the area which is the subject of the waiver.
2. If the city determines that sidewalks in the area are necessary and that rescission of the previously granted waiver is in the public interest; provided, that such waiver shall not be rescinded by the city, except on recommendation of the planning commission, after public hearing on the proposed rescission. Notice of the hearing shall be given by publication in the official newspaper, or by mail addressed to the residents in the affected area.

Source: 1965 Rev. Ord. 18-0201.1, 1393 (1971), 2527 (1990), 2704 (1994).

18-0202. License necessary to construct, reconstruct, and repair sidewalks and driveways.--No person shall construct, reconstruct, or repair sidewalks or driveways within the city without first procuring a license from the city auditor to engage in such work. To apply for a license to construct, reconstruct or repair sidewalks and driveways in the City of Fargo, the applicant must have a North Dakota general contractor's license, and be in good standing as a licensed contractor.

Source: 1965 Rev. Ord. 18-0202, 1461 (1973), 5136 (2018).

18-0203. Contractor's license--Fee--Expiration date.--If a license to construct, reconstruct, and repair sidewalks and driveways is granted by the board of city commissioners, the person applying shall pay to the city treasurer the required fee, which shall be established by resolution of the board of city commissioners. Such license shall expire one year from the date thereof.

Source: 1965 Rev. Ord. 18-0203, 1461 (1973), 1505 (1973).

18-0204. Bond of licensee.--No license shall be granted by the city auditor unless such person shall have given a bond in the sum of $25,000 with good and sufficient surety therefor, approved by the city auditor and the city attorney, conditioned, among other things, that said licensee will save harmless the city of Fargo and the owner of the property adjacent to the street or avenue where the sidewalk is constructed, from damages caused by reason of any negligence or faulty work by any person or any employee of such person, and that the material used and the work done in the construction of said sidewalks shall be strictly in accordance with the requirements of this article.

Source: Repealed by Ord. No. 2397, effective February 22, 1988, re-enacted by Ord. No. 2527, (1990).

18-0205. Name stamp required of licensee.--Sidewalk construction licensees shall be required to have a stamp which shall be used to imprint the contractor's name and year of construction into the constructed sidewalk. Said stamp shall consist of letters one and one-quarter inches high and of sufficient depth to imprint to the depth of one-eighth inch into the fresh concrete.

Source: 1952 Rev. Ord. 1152 (1963).

18-0206. Construction subject to inspection--Request by licensee.--Licensee shall request an inspection by the city engineer after having constructed the forms and placed and

compacted the subbase and before the placing of any concrete. The city engineer shall be given four working hours in which to make said inspection. Concrete shall not be placed until the work has been approved.

Source: 1952 Rev. Ord. 1152 (1963).

18-0207. Sidewalk construction--Permit required--Fees.--All public sidewalks constructed within the city must be built on the line and grade set by the city engineer; and every person, firm, or corporation shall, before undertaking any sidewalk construction, reconstruction, or repair, request line and grade and obtain from the city engineer a written permit for each separately owned piece of property, and pay the required fee, which shall be established by resolution of the board of city commissioners.

No permits shall be required for sidewalks constructed or reconstructed under a city contract since the city order will serve as the permit.

Source: 1965 Rev. Ord. 18-0207, 1505 (1973).

18-0208. Contract for construction of sidewalks--Bids--Specifications.--Each year, before the beginning of the construction season, the city auditor shall receive bids for the construction or reconstruction of such city sidewalks as the city may find necessary to construct. Such bids shall be made upon proposals furnished by the city engineer and shall conform to specifications filed with the city auditor by the city engineer and approved by the board of city commissioners.

Source: 1952 Rev. Ord. 1152 (1963).

18-0209. Qualifications of contractor.--Any contractor bidding on the city contract for the construction of sidewalks must (1) have a sidewalk builder′s license, and (2) hold a North Dakota general contractor′s license.

Source: 1952 Rev. Ord. 1152 (1963).

18-0210. Bond to accompany contract.--When any contract for the construction of sidewalks is about to be entered into by the city in accordance with the provisions of the laws of this state, the contractor to whom any such contract shall be awarded shall be required, before such contract is entered into, to give, in addition to the contract bond required by §§ 48-01-01 to 48-01-04, inclusive, of the North Dakota Century Code, a bond in an amount to be determined by the board of city commissioners, running to the city of Fargo, conditioned that said contractor shall maintain and keep in good repair for a period of two years all sidewalks so constructed by such contractor under the terms of such contract, and that in case of default on the part of such contractor to so maintain and keep such sidewalks in good repair for the said period of two years, or in case such sidewalks shall within such time begin to crumble or disintegrate or become cracked and broken to such an extent that, in the opinion of the city engineer, the same is not a satisfactory compliance with the specifications for the construction thereof, then the city engineer may direct that such sidewalk be immediately repaired or re-laid, in whole or in part, as he shall deem best, and the contractor immediately shall cause the same to be repaired or re-laid; and in the case of the contractor′s neglect, refusal, or failure so to repair or re-lay the same, the city, at any time within said two-year period or thereafter, may cause the same to be repaired or re-laid and the cost thereof, whether done by the city directly or through a contract, may be recovered against said contractor and the surety upon such bond.

Source: 1952 Rev. Ord. 1152 (1963).

18-0211. City sidewalk contract controlled by city engineer.--The contractor shall report to the city engineer for the purpose of receiving orders with reference to any work under the contract and for accurate information on the location of sidewalks; and the contractor shall not begin work until so informed and until he has in his possession a written order for said work.

He shall begin work within five days of receipt of such orders and shall complete said work in a continuous operation insofar as possible.

The contractor shall notify the city engineer before beginning work upon each sidewalk ordered.

Source: 1952 Rev. Ord. 1152 (1963).

18-0212. City sidewalk contract--Scope of work.--The city sidewalk contract shall include the construction, reconstruction, and repair of all sidewalks, sidewalk approaches, alley returns, and crossings deemed necessary by the board of city commissioners.

The contractor must report all obstructions to the sidewalk, water stop boxes, poles, hydrants, etc. He must use, throughout the work, materials and workmanship approved by the city engineer. The decision of the city engineer as to the manner in which the work shall be executed and the quality of the work and material shall be final and conclusive.

When the work is completed the contractor must immediately remove all surplus material, whether old or new, and leave the sidewalk, gutter, and roadway free and unobstructed.

Source: 1952 Rev. Ord. 1152 (1963).

18-0213. Contractor to be responsible until sidewalk completed.--The contractor shall have charge of and be responsible for the entire work until its completion and acceptance. All sidewalk shall be installed and available for public use, including backfilling, within 14 days of removal of existing sidewalk, unless written permission for a longer time period is granted by the city engineer.

Properly skilled workmen only shall be employed on the work; and the contractor shall dismiss any employee who may, in the opinion of the city engineer, be negligent of his duty or who performs his work in an improper manner.

The contractor shall, at all times, either be on the work himself or have a competent foreman there who must have all powers of the contractor and to whom orders, instructions, and directions may be given.

The contractor shall protect the public from sidewalk removal/construction areas in accordance with the current version of the City of Fargo Standard Specifications for Construction.

The contractor shall be responsible for bringing to grade and checking for usability all stop boxes within sidewalk line. Information on locations of stop boxes may be obtained from the city water department.

Source: 1952 Rev. Ord. 1152 (1963), 4806 (2012).

18-0214. Failure of contractor to fulfill conditions.--The finished sidewalk must not be used until, in the opinion of the city engineer, it has set sufficiently to receive travel.

The city engineer shall have the power to condemn any material or work not in accordance with this article and his instructions and orders, and any material or work condemned shall be removed at once by the contractor and properly replaced at his own expense.

In case the contractor shall neglect or refuse to remove any rejected material or work or to replace the same with proper material or work, such material or work shall be removed and replaced by the city engineer at the contractor's expense, and the cost of any such removal and replacement shall be deducted from any money that may be due, or may become due, the contractor from the city.

Source: 1952 Rev. Ord. 1152 (1963).

18-0215. Width of sidewalks.--All sidewalks constructed or reconstructed in the city shall be no less than four and one-half feet in width, provided that:

A. No sidewalk shall be reconstructed of a width less than that existing prior to reconstruction.

B. Should the occupancy of a commercial property change so as to substantially increase the pedestrian traffic, or should the existing pedestrian traffic pattern warrant, the city engineer shall require the sidewalk to be widened to conform with the sidewalks in the surrounding area.

Source: 1952 Rev. Ord. 1152 (1963).

18-0216. City sidewalks--Driveways--Construction specifications.--All city sidewalks shall be constructed per the City of Fargo Standard Specifications for Construction. A copy of this specification can be obtained from the City Engineer. Sidewalks over vaults or other openings shall be constructed to carry a load of not less than 250 pounds per square foot. No concrete tile shall be used in the construction or reconstruction of any city sidewalks.

All driveways shall be constructed per the City of Fargo Standard Specifications for Construction. All residential driveways shall be no less than 9 feet nor more than 30 feet wide at the sidewalk line, and shall be located so as to provide access to a parking space within the property to be served. Provided, however, that such residential driveways may, upon approval of the city engineer, be constructed to a maximum width of 36 feet or one-half the width of the lot, whichever is less. As to residences which satisfy the requirements of §20-0506B (Alternative Residential Development Options - Attached Housing), driveways may, upon approval of the city engineer, be constructed to a maximum width of fifty-five percent (55%) of the lot width, provided that in no event may a driveway serving two attached housing units exceed forty feet (40') in width. Commercial and industrial driveways shall be no more than 40 feet in width at the sidewalk line. Provided, however, that industrial driveways may, upon approval of the city engineer, be constructed to a maximum width equal to one-half of the width of the lot. Said driveways shall meet the requirements of Section 20-0702 of the Fargo Municipal Code (Land Development Code), but in no event shall the driveway be less than fifteen feet from any block corner and the location shall be approved by the city of Fargo engineering department. Except as stated herein, in no case shall the aggregate width of driveways into a property exceed one-half the width of that property.

Source: 1965 Rev. Ord. 18-0216, 1486 (1973), 1720 (1976), 2527 (1990), 4043 (2000), 4052 (2000), 4806 (2012).

18-0217. Materials and Construction Methods.--The city engineer shall retain the right to accept or reject any or all materials which do not comply with the City of Fargo Standard Specifications for Construction. All methods of construction shall be in accordance with the City of Fargo Standard Specifications for Construction.

Source: 1952 Rev. Ord. 1152 (1963), 2527 (1990), 4806 (2012).

18-0218. Construction staking.--At least 48 hours prior (weekends and legal holidays excluded) to construction or reconstruction of any sidewalk construction of any driveway where no sidewalk exists, the sidewalk builder shall notify and request the city engineer to set line and grade for the construction. The line and grade of the sidewalk shall conform to the stakes provided.

Source: 1952 Rev. Ord. 1152 (1963), 4806 (2012).

18-0219. Excavation for sidewalks and driveways.--The excavation for sidewalks and driveways shall be performed in such manner as to leave any finished lawns and boulevards in good condition and so as to protect any trees or shrubs adjacent to the work.

All excavation shall be in accordance with the City of Fargo Standard Specifications for Construction.

Source: 1952 Rev. Ord. 1152 (1963), 4806 (2012).

18-0220. Measurement and payment on city contract.--At the completion of each sidewalk constructed on city order, the contractor shall measure the material and work involved, shall complete the estimate form provided, and shall forward the duplicate to the city engineer for verification and payment.

Source: 1952 Rev. Ord. 1152 (1963), 4806 (2012).

ARTICLE 18-03

USE AND CARE OF STREETS AND SIDEWALKS

Section

18-0301 Removal of snow and ice from sidewalks.
18-0302 Riding or driving on sidewalk prohibited.
18-0303 Regulating movement of tractors and heavy vehicles on pavement--Repealed.
18-0304 Sale of merchandise from stands on streets prohibited.
18-0305 Selling on streets restricted.
18-0306 Amusements on streets prohibited.
18-0307 Limited use of sidewalks in Central Business District allowed.
18-0308 Definitions.
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18-0310.2 Repealed.
18-0310.3 Repealed.
18-0310.4 Repealed.
18-0310.5 Repealed.
18-0310.6 Repealed.
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18-0312 Outdoor merchandise areas.

18-0313 Outdoor dining areas.
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18-0315 Planning director to issue permits.
18-0316 Application.
18-0317 Encroachment agreements.

18-0301. Removal of snow and ice from sidewalks.--The owner or occupant of any building or grounds within the city fronting upon or adjoining any street, when a sidewalk exists, shall clear the sidewalk in front of or adjoining such building and grounds or unoccupied lot or building, as the case may be, of snow and ice to the width of such sidewalk on or before nine o'clock p.m.

If the owner or occupant shall refuse or fail to remove such snow and ice by nine o'clock p.m. of each day and cause the sidewalk to be kept clear of snow and ice, the director of public works may remove, or cause to be removed, all snow and ice from the sidewalks along or in front of any buildings, grounds or premises, and the necessary costs and expenses of such removal of snow and ice by the director of public works shall be chargeable and assessed against, and shall be a lien upon such premises. Assessment of costs and expenses shall be in accordance with article 3-17 of the Fargo Municipal Code.

Source: 1952 Rev. Ord. 18-0301, 2692 (1994).

18-0302. Riding or driving on sidewalk prohibited.--No person shall ride, drive, place, push, draw, or back any horse or other animal, wagon, car, automobile, or other vehicle or heavy object upon or over or across any sidewalk except at a regular crossing or concrete driveway or where alleys intersect the streets. The occupant of any yard, lot, or warehouse may have access across the sidewalk by placing in front of the yard, lot, or warehouse, at his expense, with the consent of the city engineer, a temporary bridge or carriageway over the sidewalk, gutter, and curbing in such manner as will preserve the same from injury.

Source: 1952 Rev. Ord. 18-0302.

18-0303. Regulating movement of tractors and heavy vehicles on pavement.--Repealed by omission.

Note: This section is repealed by omission from the 1965 Revised Ordinance. The subject matter of this section is covered in 8-0921.

18-0304. Sale of merchandise from stands on streets prohibited.--Except as authorized under sections 18-0307 through 18-0317 herein, it shall be unlawful for any person, firm, or corporation to set up any stand or wagon upon any of the streets, alleys, sidewalks, crosswalks, or public grounds within the city for the purpose of selling therefrom, or exposing for sale, any meats, provisions, refreshments, or any goods or merchandise whatsoever.

Source: 1952 Rev. Ord. 18-0304, 4378 (2004).

18-0305. Selling on streets restricted.--Except as authorized under sections 18-0307 through 18-0317 herein, no person, persons, firm, or corporation shall sell, offer, or expose or sale at any point upon any of the streets, alleys, sidewalks, crosswalks, or public grounds,

including but not limited to the berm, boulevard, return or apron abutting a private driveway, within the city any goods, wares, or merchandise whatsoever contrary to the provisions of articles 25-5 and 25-7 of chapter 25.

Source: 1952 Rev. Ord. 18-0305, 4378 (2004), 4740 (2010).

18-0306. Amusements on streets prohibited.--No person shall, upon any street or alley within the city, take part in any game of ball, nor shall any person, upon any such street or alley, take part in any game of tossing ball or flying kite, or any other game or play, so as to impede or endanger public travel thereon.

Source: 1952 Rev. Ord. 18-0306.

18-0307. Limited use of sidewalks in Central Business District allowed.--Except as allowed under the provisions of this article 18-03 for locations within the Central Business District, it shall be unlawful for any person to sell, offer for sale, exhibit or any goods, wares, merchandise, mechanical devices, animals or any article of any kind whatsoever, by whatever name called, upon any public street, sidewalk, square, avenue or alley within the corporate limits of the city.

A. None of the requirements of this article for permits or encroachment agreements shall apply to outdoor dining areas or outdoor merchandise areas which are otherwise allowed under the community events and festivals permit set forth in section 18-0314.

B. Permits issued for pushcarts and outdoor merchandise areas under the provisions of this article shall be temporarily suspended at locations designated for the community events and festivals permitted under section 18-0314 of this code. Permit holders may, however, apply to continue their operation during the community event or festival pursuant to the procedures set up by the community event or festival permit holder. Permits issued for outdoor dining areas shall not be temporarily suspended in areas designated for a community event or festival.

C. The authority granted to Sidewalk Performers under this article shall be temporarily suspended at locations designated for community events and festivals permitted under section 18-0314 of this code. Sidewalk Performers may, however, apply to continue their operation during the community event or festival pursuant to the procedures set up by the community event or festival permit holder.

Source: 4379 (2004).

18-0308. Definitions.--The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this article, except where the context clearly indicates a different meaning:

A. "Central Business District" as defined in § 8-0101. For purposes of defining this boundary, the sidewalk on both sides of the streets, above-named, shall be included within the Central Business District.

B. Grilling" shall mean the cooking of raw animal products such as meat, poultry or fish on a flat top or charbroil style high-heat surface designed for such purpose, but does not include smoking, deep-fat frying, wok or skillet-style cooking, barbecuing/rotisserie-style cooking or any other type of cooking.

C. "Grilling pushcart" shall mean a pushcart that includes equipment for grilling.

D. "Merchandise" shall include, but is not limited to, plants, flowers, wearing apparel, jewelry, ornaments, art work, household or office supplies, food or beverages of any kind, whether or not for immediate consumption, or other goods or wares.

E. "Outdoor dining area" shall mean an area in front of or adjacent to a business maintaining a restaurant or limited restaurant license issued by the city health department and located on a public sidewalk whereon tables, chairs or benches are placed for purposes of serving food and/or alcoholic beverages.

F. "Outdoor merchandise area" shall mean an area in front of or adjacent to a retail business where merchandise is located on a public sidewalk for the purpose of displaying, exhibiting, selling or offering for sale merchandise.

G. "Pedestrian way" shall mean the area of sidewalk adjacent to the property line and extending therefrom to the edge of the curb or for a distance of ten (10) feet, whichever is narrower.

H. "Planning Director" shall mean the department head of the Department of Planning and Development of the city of Fargo.

I. "Professional sidewalk entertainer" shall mean a sidewalk entertainer who, through direct or passive behavior, asks for or solicits any form of remuneration and "professional sidewalk entertainment" shall mean sidewalk entertainment performed while the performer is thus soliciting any form of remuneration.

J. "Pushcart" shall mean a wheeled cart which may be moved by one person without the assistance of a motor and which is designed and used for displaying, keeping or storing any food, beverages or other articles for sale by a vendor. To the extent a pushcart is used for displaying, keeping or storing food or beverages, the pushcart must be limited to service of potentially hazardous foods or commissary-wrapped food maintained at proper temperatures, or limited to the preparation and service of frankfurters, as is defined by North Dakota Administrative Code Chapter 33-33-04. Cooking will only be allowed on an approved grilling pushcart.

K. "Review Committee" shall consist of five members to be appointed by the mayor with the consent of the board of city commissioners. Such membership of the review committee may be comprised of one or more city employees from one or more departments within the city.

L. "Sidewalk entertainer" shall mean a person who engages in sidewalk entertainment.

M. "Sidewalk entertainment" shall mean performances which may include, but not be limited to, music, dance, mimes, magicians, clowns, jugglers and theatrical presentations, but specifically excluding speeches, lectures, and sermons.

Source: 4379 (2004), 4644 (2008), 5275 (2020).

18-0309. Pedestrian signs.--Notwithstanding any other requirements of this article, pedestrian signs may be on public sidewalk that is within the Central Business District and that is at least six (6) feet in width, provided the dimensions and proposed location of the sign meet the following standards and provided a permit is obtained from the planning director.

A. A pedestrian sign permit application must be submitted to the planning director in a form established by the planning director along with a nonrefundable fee established by the board of city commissioners.

1. The application must include the name, address and telephone number of the applicant, the dimensions of the proposed sign and the specific location of where the sign will be displayed, including the distance the sign will be from the adjacent curb and building. A photograph or drawing of the sign shall be submitted, along with a complete description of the materials from which the sign will be made and the manner in which the sign is self-supporting.

2. The height of the sign shall not exceed four feet (48 inches) above the surface of the sidewalk. A height of five feet (60 inches) above the surface of the sidewalk is permitted if the sign is mounted on an easel.

3. The width of the sign shall not exceed 30 inches, or a width that ensures that at least 44 inches of unobstructed clearance will exist on the sidewalk (after sign placement), whichever results in the lesser sign width.

4. Spacing between sign locations shall be 25 feet, so that no portable sign application may be approved for any sign that is proposed to be located within 25 feet, measured along the same side of the street, of any other portable sign location.

5. No sign shall extend past the curb or into any portion of the street surface or parking lane.

6. Pedestrian signs shall be self-supporting and freestanding. Sign supports or features shall not protrude into the pedestrian area adjacent to the sign.

7. The application and permit shall clearly state that the applicant agrees to indemnify and hold the city harmless from any and all claims, demands or causes of action which may result from placement of the sign on public property. The applicant shall, at the time of making application for the permit, provide proof of insurance to cover the risk of injury to

person or property caused by the presence of the sign. Said insurance shall provide minimum coverage for bodily injury of $1,000,000 per occurrence and in the aggregate.

8. Signs requiring electrical connections shall be prohibited.

9. The permit shall state the name, address and telephone number of the applicant, the date of issuance of the permit and the date of expiration of the permit. The permit must be securely fastened to the sign at all times while the sign is being displayed or evidence of a permit made visible on the store front.

10. The permit shall be valid for a period of one (1) year, but may be renewed upon application of the permittee for another period of one (1) year, without payment of an additional fee.

11. Permitted pedestrian signs may be displayed or located on the sidewalk only between the hours of 7:00 a.m. and 11:00 p.m. or at business closure, whichever is earlier.

Source: 4379 (2004).

18-0310. Performers of sidewalk entertainment.--Performers of sidewalk entertainment may perform on any sidewalk or pedestrian way provided that such performers shall:

1. Not violate the prohibitions on disturbing, annoying and unnecessary noise as set forth in article 11-02 of the Fargo Municipal Code.

2. Not obstruct or cause to be obstructed pedestrian or vehicular traffic, including but not limited to not obstructing or causing to be obstructed sidewalks, doorways or other access areas. Entertainer must provide a minimum of 6 feet of pedestrian passageway. If a performer attracts a crowd sufficient to obstruct the public way, a police officer may disperse the crowd if the officer determines the crowd is resulted in an obstructed pathway. The officer may ask the performer to temporarily suspend a performance or to move to a less congested area.

3. Not sell records, tapes or other products.

4. Perform only at times between the hours of 9:00 a.m. and 10:00 p.m.

5. Not consume nor be under the influence of alcoholic beverages or other controlled substances while performing, in compliance with the North Dakota laws and regulations.

6. Not perform any nearer than 150 feet from another professional sidewalk entertainer who is also performing.

7. Not perform at locations designated for a community event or festival, unless permitted to play at the community event or festival by the event or festival coordinator, pursuant to section 18-0313.

8. Comply with all federal, state and local laws when performing within the city, including but not limited to, the panhandling ordinance and the noise ordinance.

9. Not perform within fifty (50) feet of a pushcart or permitted outdoor eating area.

10. Maintain the permitted area within a radius of ten feet free of trash and debris.

11. Not create a fire hazard or use fire, knives, or dangerous items during a performance.

12. Not engage in the application of tattoos or body piercing.

13. Not include obscenity in a performance.

14. Not engage in harassment or coercion of passersby.

15. Not display or offer food or drink for sale.

16. Not display tables, lounge chairs, push carts or mobile display racks.

17. Not block access to an entrance to a building.

18. Not perform in a street, or not interfere with a motorist, either regarding the passage of a vehicle or the sight of its driver.

19. Make no effort to reserve a location for sidewalk entertainment; performance locations shall be on a daily, first-come, first-served basis. Sidewalk entertainers shall abandon the location at the end of the day, including the removal of all personal property by 10:00 p.m.

20. Not connect to electric outlets or power sources owned by the city or others without the express written permission to do so.

21. Not block or obstruct a curb cut.

22. Not perform on any bike path, without prior written approval from the city.

23. Not construct a stage or platform.

24. Not block a handicap parking spot.

25. Not leave any equipment, props, or other items unattended. Unattended items are subject to removal as abandoned property.

Source: 4379 (2004), 4644 (2008), 5372 (2022), 5485 (2025).

18-0310.1. Repealed.
Source: 4644 (2008), 5372 (2022).

18-0310.2. Repealed.
Source: 4644 (2008), 5372 (2022).

18-0310.3. Repealed.
Source: 4644 (2008), 5372 (2022).

18-0310.4. Repealed.
Source: 4644 (2008), 5372 (2022).

18-0310.5. Repealed.
Source: 4644 (2008), 5372 (2022).

18-0310.6. Repealed.
Source: 4644 (2008), 5372 (2022).

18-0310.7. Trespass--Sidewalk entertainer.--Nothing in this article shall be construed to allow a sidewalk entertainer, professional or otherwise, to trespass upon privately owned property.

Source: 4644 (2008).

18-0310.8. Repealed.
Source: 4644 (2008), 5372 (2022).

18-0311. Pushcarts.--Pushcarts meeting the requirements of this article shall be allowed in the pedestrian way of the Central Business District provided a permit is first obtained and provided that all pushcarts and their operators shall meet the following:

A. The pushcart shall not be motorized or propelled in any manner other than the walking motion of person operating the pushcart, with the exception that persons with disabilities may use a motorized system to propel the pushcart. No motorized assistance shall be used to locate the pushcart on the sidewalk or public place, with the exception that persons with disabilities may use motorized assistance.

B. With the exception of grilling performed on approved grilling pushcarts, pushcarts may not be utilized to cook foods, but only to heat and hold previously cooked foods at a safe temperature. The city health department shall have the authority to determine whether a food product requires cooking or may be re-heated. The pushcart shall be covered with an appropriate material to prevent exposure of the food or food product to wind, dust, insects and the elements and shall meet any such other regulations as may be required by the city health

department or any other applicable regulatory agency. The pushcart operator shall display, in plain view, all required permits as set forth by federal, state, and local laws and shall provide a copy of health department and other regulatory agency permits and/or licenses to the city prior to the issuance of a permit by the city for the pushcart. The pushcart operator shall continuously maintain the required approvals, permits and/or licenses and provide evidence to the city of the continuous maintenance of them.

C. The pushcart shall have attached to it a proper container for the collection of waste and trash. The pushcart operator shall be responsible for the proper disposal of waste and trash associated with the pushcart operation. No grease, waste, trash or other debris from the pushcart operation shall be deposited on or released onto city property, which includes the streets, sidewalk or other public place nor into the gutter or storm drainage system. The pushcart operator shall keep the immediate area in a 5-foot radius from the center of the pushcart clean of garbage, trash, paper, cups, cans or litter associated with the pushcart operation. Unless otherwise permitted by the city, a pushcart operator shall not locate a container for the collection of waste and trash on the streets, sidewalks or public places nor use city trash receptacles, city street cans or other city waste disposal containers for the disposal of waste and trash associated with the pushcart operation. A three-foot by five-foot (3' x 5') mat shall be used with pushcarts from which foodstuff is sold. Said mat must comply with standards set by the National Sanitation Foundation, or with equivalent standards.

D. The pushcart shall not have attached to it any bell, siren, horn, loudspeaker or any similar device to attract the attention of possible customers, nor shall the permit holder use any such device to attract attention.

E. Signs attached to the pushcart shall comply with the requirements article 25-03 of the Fargo Municipal Code, regarding outdoor advertising, including the Fargo Sign Code incorporated by reference therein.

F. The pushcart shall be set up only in the location set forth in the operator's permit issued by the city, and shall not impede, endanger or interfere with pedestrian or vehicular traffic.

G. The pushcart shall be set up so that a minimum of six feet of passage for pedestrians shall be provided at all times.

H. The pushcart shall not be stored, parked or left overnight on any street or sidewalk or in any parking space of the city.

I. The pushcart shall operate only at times between the hours of 7:00 a.m. and 2:00 a.m.

J. No item related to the operation of the pushcart shall be placed on the street, sidewalk, public place or anywhere other than in or on the pushcart.

K. Pushcart operators shall not consume nor be under the influence of alcohol or controlled substance while operating the pushcart.

L. The dimensions of the pushcart shall be no greater than the following:

1. 4 feet 6 inches in height as measured from the ground to the highest point of the pushcart; and
2. 24 square feet as measured in length and width (the overall footprint), excluding any trailer hitch; and
3. 5 feet for the height of any umbrella affixed to the pushcart, as measured from the base of the umbrella to the highest point of the umbrella. No freestanding umbrella or canopy shall be used.

The city reserves the right to require smaller dimensions based upon such factors as, but not limited to, pedestrian and vehicular safety and adequate sight distances.

M. The pushcart permit holder or her/his designee shall be in attendance at the pushcart at all times, except in case of an emergency.

N. The pushcart operator shall comply with all federal, state and local laws when operating the pushcart.

O. Design of pushcarts which are to be permitted for the Central Business District must be approved by the planning director or her/his designee, using the city's downtown design review guidelines, prior to a permit being issued for their use in the Central Business District. The applicant must provide a photograph, drawing or sketch of the design of pushcart as part of the application for a permit.

P. Pushcarts may not be located nearer than 65 feet from any other pushcart vendor. Pushcarts may not be located nearer than 65 feet from a business that holds a limited restaurant license or a restaurant license issued by the city health department; provided, however, that a pushcart may be located in front of the sponsoring restaurant for said pushcart or the base of commissary operations for the pushcart, as the case may be.

Q. No pushcart vendor shall sell, offer for sale, or solicit offers to purchase from any motor vehicle.

R. The owner or operator of a grilling pushcart must obtain permission from the city health department and the planning director before the grilling pushcart may used for grilling. A grilling pushcart must meet the standards set by the National Sanitation Foundation, or equivalent nationally-recognized standards for food equipment and must be constructed of appropriate material, must be of adequate size, must be readily cleanable and must be in good repair, as approved by the city health director. In addition, a grilling pushcart must comply with all requirements of a pushcart set forth herein.

Source: 4379 (2004).

18-0312. Outdoor merchandise areas.--No person may own, set up or operate an outdoor merchandise area without first obtaining a permit. The planning director is authorized to issue a permit for an outdoor merchandise area that extends no more than thirty-six (36) inches beyond the property boundary adjacent to a public sidewalk. An outdoor merchandise area that extends more than thirty-six (36) inches beyond the property boundary adjacent to a public sidewalk shall not be allowed without the owner or operator first obtaining a permit in the form of an encroachment agreement pursuant to the provisions of this article.

Permit holders for outdoor merchandise areas and their employees shall meet the following:

A. Outdoor merchandise areas shall be located only in the area designated by the city and indicated in the encroachment agreement or on the permit, specifically excluding roadways. Merchandise and the fixtures or devices on which it is displayed shall be located so that they do not impede, endanger or interfere with pedestrian or vehicular traffic.

B. Merchandise and the fixtures or devices on which it is displayed shall be located so that a minimum of 6 feet of unobstructed clearance for pedestrian traffic, or the minimum required by the Fargo Building Code or the Americans with Disabilities Act, whichever requirement is more restrictive, shall be provided at all times.

C. No fixtures or devices on which outdoor merchandise is displayed shall be attached to the sidewalk or other public area without the permission of the city in the encroachment agreement.

D. Outdoor merchandise areas will be permitted only adjacent to the building or structure in which the retail business is located and shall not be permitted next to the curb of the street or in the middle of the sidewalk. In no event shall outdoor merchandise areas be permitted in roadways.

E. Merchandise and the fixtures or devices on which the merchandise is displayed must not block regulatory signs, crosswalks or intersections and shall be sufficiently lit during times of low light in order to provide for safe pedestrian passage alongside the outdoor merchandise area.

F. All merchandise located within an outdoor merchandise area shall be placed so that the outdoor merchandise and the fixtures or devices on which the merchan-

dise is displayed are stable and not easily tipped and do not include sharp edges, protrusions, or other features which may be hazardous to the public. No canopy may be placed over a building exit.

G. All displays of merchandise within the outdoor merchandise area must meet a minimum height of 28 inches tall or of sufficient size or height so that safe pedestrian traffic is not impeded or must comply with the requirements of the Americans with Disabilities Act, whichever requirement is more restrictive.

H. All merchandise and the fixtures or devices on which the merchandise is displayed shall be moved inside the building or structure wherein the retail business is located during hours the retail business is open and during inclement weather, including, but not limited to, heavy rain, wind, ice or snow.

I. All merchandise and the fixture, or devices on which the merchandise is displayed must be secured so that it may not be dislodged during windy or stormy weather prior to being moved inside the building or structure wherein the retail business is located.

J. In the event of a declared emergency or in a situation where exigent circumstances arise, a permit holder shall remove all articles from the sidewalk when directed to do so by any law enforcement officer, fire official or emergency medical personnel.

K. The permit holder for the outdoor merchandise area shall be responsible for the maintenance, upkeep and security of the devices on which the merchandise is displayed and the city shall not be responsible for the same.

L. The permit holder for the outdoor merchandise area shall be responsible for keeping the outdoor merchandise area clean of garbage, trash, paper, cups, cans or litter associated with the operation of the outdoor merchandise area, and shall be responsible for clean up or repair of the sidewalk caused by use of the outdoor merchandise area.

M. The permit holder for the outdoor merchandise area shall not have on the premises any bell, siren, horn, bullhorn or similar loudspeaker or any such device to attract the attention of possible customers nor shall the permit holder use any such device to attract attention.

N. Outdoor merchandise areas shall not include merchandising of any live animals.

O. Alcoholic beverages may not be displayed or sold from outdoor merchandise areas.

Source: 4379 (2004).

18-0313. Outdoor dining areas.--No person may own, set up or operate an outdoor dining area without first obtaining a permit. The planning director is authorized to issue a permit for an outdoor dining area that extends no more than forty-two (42) inches beyond the property boundary adjacent to a public sidewalk. An outdoor dining area that extends more than forty-two (42) inches beyond the property boundary adjacent to a public sidewalk; includes placement of a fence, rope or similar structure, as may be necessary for the serving of alcoholic beverages, or a canopy or similar structure on the sidewalk; or which is placed at a

location other than immediately adjacent to the appurtenant building shall not be allowed without the owner or operator first obtaining a permit in the form of an encroachment agreement pursuant to the provisions of this article.

Permit holders for outdoor dining areas and their employees shall meet the following:

A. The permit holder shall set up the outdoor dining area, including, but not limited to, the furniture, canopies, fencing and/or other accessories used for the outdoor dining area, only in the area designated by the city in the encroachment agreement or on the permit, specifically excluding roadways. The outdoor dining area shall not impede, endanger or interfere with pedestrian or vehicular traffic.

B. Furniture, canopies, fencing and/or other accessories used for the outdoor dining area shall be located so that a minimum clearance of 44 inches of unobstructed clearance within the pedestrian way, or the minimum required by the Fargo Building Code or the Americans with Disabilities Act, whichever is more restrictive, shall be provided at all times.

C. The permit holder shall provide proper containers or some other means for the collection of waste and trash within the outdoor dining area permitted. The permit holder shall keep the immediate area around the outdoor dining area and the outdoor dining area clean of garbage, trash, paper, cups, cans or litter associated with the operation of the outdoor dining area. All waste and trash shall be properly disposed of by the permit holder.

D. The permit holder shall comply with all city health and other applicable regulatory agency requirements, including, but not limited to, the requirements for food service. The permit holder shall display in a conspicuous location all such required permits and/or licenses and shall provide copies of those permits and/or licenses to the city prior to issuance of a permit for an outdoor dining area by the city. The permit holder shall continuously maintain the required approvals, permits and/or licenses and provide evidence to the city of the continuous maintenance of them.

E. The permit holder shall be responsible for the maintenance, upkeep and security of the furniture and accessories of the outdoor dining area and the city shall not be responsible for the same.

F. The permit holder shall not have on the premises any bell, siren, horn, loudspeaker or any similar device to attract the attention of possible customers nor shall the permit holder use any such device to attract attention.

G. Employees of the permit holder for the outdoor dining area shall not consume alcoholic beverages while working in the outdoor dining area.

H. For any outdoor dining area where alcoholic beverages are served, the permit holder shall comply with all state and local regulations for the sale, possession and/or consumption of alcoholic beverages and shall provide the city with a copy of any and all required permits or licenses for the sale, possession and/or consumption of alcoholic beverages and the diagram and/or plans showing the location of the outdoor dining area which were submitted for the permit or license. In addition, the area where alcoholic beverages are sold, possessed

and/or consumed must be effectively partitioned by rope, temporary fence, or other device designed and intended to separate the outdoor dining area from passersby.

I. The permit holder shall comply with the prohibitions on disturbing, annoying and unnecessary noises set forth in article 11-02 of the Fargo Municipal Code.

J. Design of the furniture and accessories for an outdoor dining area to be located in the Central Business District must be approved by the planning director prior to a permit being issued for their use in the Central Business District. The applicant must provide a photograph, drawing or sketch of the design of the furniture and accessories to be used for the outdoor dining area as part of the application for a permit.

K. Tables, chairs, ropes, fences and any other structure or item placed on the sidewalk must be removed from the sidewalk at the end of the business day, at business closure, or in the event of inclement weather, unless arrangements for assembly and storage of such items on a part of the sidewalk are approved in an encroachment agreement.

L. Cooking, food preparation or self-service food shall not be allowed in such outdoor dining areas.

M. No canopy may be placed over a building exit.

Source: 4379 (2004).

18-0314. Community events and festivals.--The planning director is hereby authorized to grant a permit, after notice, a hearing before the review committee and approval by vote of the majority of the members of the review committee in attendance, for certain types of community events or festivals to take place upon the public streets, sidewalks, squares, avenues or alleys of the city.

A. The sponsor of the event or festival shall submit to the planning director a written application for a permit at least 45 days prior to the opening of the community event or festival for which a permit is desired. The application shall state:

1. The time, date and location of the festival or event;
2. The group, firm or individual by whom the festival or event will be sponsored;
3. The purpose of the festival or event;
4. The activities that will be held.

B. A hearing must be held by the review committee, after notice of the application and of the hearing is given. The provisions of sections 20-0901 through 20-0904 of the Land Development Code shall apply to the requirements for such applications, notice, the burden of proof or persuasion and date of decision and time period for appeals, with the exception that appeals of final decisions must be filed within 24 hours of the date of the decision. The decision of the review committee may be appealed to the board of city commissioners.

C. In granting permits for community events and festivals, the review committee shall consider the following:

1. The nature of the event or festival and how it can serve the community of the city and its citizens;

2. The time period during which the event or festival will occur;
3. The location of the event or festival and whether the location inhibits the safe flow of traffic in the city;
4. Whether the activities would be in compliance with other applicable laws;
5. Whether the event or festival is to benefit nonprofit community service organizations. Commercial events or festivals which generate profit for the private sector, other than profit incidental to the festival or event which is made by persons other than the sponsor of the festival or event, shall be permitted only if the applicant submits evidence to the review committee that the event or festival constitutes a community service; and
6. The general health, safety and welfare of the participants in the event or festival and the citizens of the city.

D. The annual Downtown Street Fair, sponsored by the Downtown Community Partnership, is deemed a festival and shall be automatically allowed.

E. The sponsor of the event or festival shall provide all cleaning services necessary to rid the festival area of all debris and litter created as a result of the event or festival.

F. The issuance of a permit to a sponsor shall authorize only that sponsor and participants specifically authorized by the sponsor to participate in that community event or festival without the restrictions imposed by this chapter.

G. Authorized participants in a community event or festival for which a permit has been issued shall not be required to obtain a city permit required by the provisions of sections 18-0307 through 18-0316, for the period during which the community event or festival takes place; provided, however, that in no event may any person affix any structure to the sidewalk or other public right of way during such community event or festival without an encroachment agreement.

H. Community events and festivals will be posted in city hall, near the office of the city auditor and on the city's website.

Source: 4379 (2004).

18-0315. Planning director to issue permits.--The planning director shall be authorized to issue permits under this article for a term of up to one year Such permits may be extended for additional periods of up to one year per extension. The denial of a permit by the planning director may be appealed to the review committee by delivery of notice of appeal within five business days of the date notice of decision is mailed to the applicant whose application has been denied. The planning director may designate one or more city employee to exercise the planning director's functions under this article.

Source: 4379 (2004).

18-0316. Application.--Businesses or property owners within the Central Business District are eligible to obtain a permit under this article for use of the sidewalk fronting said business or property and of the sidewalk in general as to pushcart operators. Each application for an encroachment agreement for an outdoor dining area or outdoor merchandise area shall be filed with the planning director and shall include, but not be limited to, the following:

A. The name, address and telephone number of the applicant.

B. For permits to allow outdoor dining areas, the application shall include a site plan showing the proposed location of furniture, canopies, fencing and other accessories for the outdoor dining area; a description, drawing, sketch, or photograph showing the design of all furniture, fencing, canopies and accessories to be used in the outdoor dining area; location for the outdoor dining area; and other pertinent information related to the use of the outdoor dining area. For permits to allow outdoor merchandise areas, the application shall include a site plan showing the location of the outdoor merchandise area, the proposed location of fixtures or devices on which the merchandise is to be displayed, and other pertinent information related to the use of the outdoor merchandise area.

C. For permits to allow pushcarts, the application shall include the name and phone number of the sponsoring restaurant or the location of the base of commissary operations that has been approved by the city health department and the application shall include information about the type of food or other product to be sold; proposed times and area of operation; description, drawing, sketch, or photograph of the type of pushcart to be used; and other pertinent information related to the method of doing business under the permit.

D. For permits for pushcarts to allow the sale of food, food products and/or beverages and for permits or encroachment agreements for outdoor dining areas, the applicant shall provide and maintain a certificate of insurance for comprehensive general liability and products and completed operations coverage in a minimum amount of $1,000,000.00 per occurrence and in the aggregate, provided that those certificates may be furnished as evidence of such coverage purchased for the applicant's principal place of business for serving food, food products and/or beverages, so long as such certificates meet the minimum acceptable requirements established in this section. For permits or encroachment agreements for outdoor merchandise areas, the applicant shall provide and maintain a certificate of insurance for comprehensive general liability and products and completed operations coverage in a minimum amount of $1,000,000.00 per occurrence and in the aggregate, provided that those certificates may be furnished as evidence of such coverage purchased for the applicant's retail business, so long as such certificates meet the minimum acceptable requirements established in this section. All certificates shall be issued by an insurance company authorized to do business in North Dakota, shall name the city as additional insured and shall provide that the policy shall not terminate or be canceled prior to the expiration date without 30 days advance written notice to the city. The permit holder or encroachment agreement party shall continuously maintain the insurance required by this section and shall continuously provide the city with evidence of the insurance required by this section.

E. The permit holder shall execute a statement on the permit application wherein the applicant holds harmless and indemnifies the city from any claims or causes of action arising out of or related to the permitted activity, including, but not limited to, compliance with the Americans with Disabilities Act, the Fargo Building Code and all other health and safety laws and regulations.

F. Written approval from the city health department and/or other applicable regulatory agency showing that the outdoor dining area has been inspected and is in compliance with current requirements for food handling establishments or sale of other product.

G. Such additional information as may be requested by the planning director or review committee which may be necessary to determine compliance with this article.

H. Payment of the permit fee and/or encroachment fee set by resolution of the board of city commissioners.

I. The planning director shall have the same remedies and enforcement powers as are set forth in article 20-11 of the Land Development Code.

Source: 4379 (2004).

18-0317. Encroachment agreements.--The planning director is hereby authorized to execute encroachment agreements only in the Central Business District, as defined in article 18-03, after notice, a hearing before the review committee and approval by vote of the majority of the members of the review committee in attendance.

The procedure for obtaining an encroachment agreement authorizing a structure or merchandise on the sidewalk or other public place shall be as follows:

A. Written application shall be made to the planning director or her/his designee. If the property is being leased, the lessee shall also sign the application.

B. The application shall include those items described in section 18-0316.

C. The application shall state the reason the encroachment is being requested.

D. Before approving an encroachment agreement, a hearing must be held by the review committee, after notice of the application and of the hearing is given. The provisions of sections 20-0901 through 20-0904 of the Land Development Code shall apply to the requirements for such applications, notice, the burden of proof or persuasion and date of decision and time period for appeals, with the exception that appeals of final decisions must be filed within 24 hours of the date of the decision. The decision of the review committee may be appealed to the board of city commissioners.

E. An encroachment agreement with property owners (and lessees, where applicable) may only be executed by the planning director after a hearing on the application and approval by vote of a majority of the members of the review committee in attendance. An application for an encroachment agreement with property owners (and lessees, where applicable) may only be approved if the review committee determines that the encroachment can be allowed without detriment to the health, safety and welfare of the general public. In determining

what constitutes detriment to the health, safety and welfare of the general public, the following factors, among others not specifically enumerated, shall be considered:

1. The location, type and size of the encroachment, including the encroaching structure(s) or merchandise.

2. The proximity of the encroaching structure(s) or merchandise to a traveled road, whether public or private.

3. Whether the encroaching merchandise, display, tables, chairs or other structure(s) will unreasonably interfere with pedestrian or vehicular passage or safety.

4. Whether the encroaching structure(s) or merchandise will interfere with an existing water or wastewater line, storm water facility or other utility.

F. The review committee shall set forth in writing the reason for granting or denying an encroachment pursuant to this section. The terms of an encroachment agreement shall include, but not be limited, to the following:

1. The agreement shall be subject to termination upon 30 days notice at such time as the review committee may deem the encroachment, including activities associated with the encroachment, to create a safety hazard to pedestrians or vehicular traffic or other safety hazard or a public nuisance or otherwise not be in keeping with the health, safety and welfare of the general public.

2. The owner (and lessee, where applicable) obtaining the encroachment agreement shall agree that, upon such termination, if the owner (or lessee, where applicable) shall fail to remove the encroachment within 30 days following the giving of the notice by the city in accordance with subsection F(1) of this section, the city shall be authorized to remove the encroaching structure and recover all costs associated therewith from the property owner.

3. The property owner (and lessee, if applicable) shall agree to indemnify and hold harmless the city from any and all liability that may arise by virtue of the encroachment, including, but not limited to, compliance with the Americans with Disabilities Act, the Fargo Building Code and all other health and safety laws and regulations. The applicant shall provide and maintain a certificate of insurance for comprehensive general liability and products and completed operations coverage in a minimum amount of $1,000,000.00 per occurrence and in the aggregate providing coverage for all the dates of the approved festival or community event, including the days allowed for set up and tear down of such festival or event. All certificates shall be issued by an insurance company authorized to do business in North Dakota, shall name the city as additional insured and shall provide that the policy shall not terminate or be canceled prior to the expiration date without 30 days advance written notice to the city.

4. If the property is sold or, where applicable, if the lease is terminated after execution of the encroachment agreement, the encroachment agreement shall be null and void and a new encroachment agreement with the new property owner and, where applicable, with the lessee, shall be required prior to the encroachment being permitted to continue.

5. The length of the term of the encroachment agreement, which term may not exceed three years. Upon filing and review of a renewal application, an encroachment agreement may be extended for additional periods of up to three years per extension.

G. No structure may be affixed to the sidewalk, or any street or other public property, without an encroachment agreement approved by the board of city commissioners. Neither the review committee nor the planning director have authority to approve or enter into encroachment agreements for any such fixture.

Source: 4379 (2004).

ARTICLE 18-04

ENCROACHMENTS, OBSTRUCTIONS, EXCAVATIONS AND PAVING

Section

18-0401 Repealed by omission.
18-0402 License necessary to exhibit shows on streets.
18-0403 Wires in street--Permission necessary to stretch.
18-0404 Wires in street--Manner of stretching.
18-0405 Wires in street--Prohibiting interference with other wires.
18-0406 Wires in street--Cutting wires prohibited.
18-0407 Wires in street--Placing of poles.
18-0408 Pipes and conduits in streets--Prevention of leaks.
18-0409 Pipes and conduits in streets--Repairing of breaks.
18-0410 Pipes and conduits in streets--Duty of officials to notify owner of leak.
18-0411 Pipes and conduits in streets--Failure of owner to repair.
18-0412 Excavations in streets--Compliance with excavation code.
18-0413 Construction of sewer, vault, cellar, cistern, or well-- Authority of city commissioners required.
18-0414 Excavations in streets--Permits required--Repealed.
18-0415 Excavations in streets--Bond required--Repealed.
18-0416 Excavations in streets--Deposit required--Repealed.
18-0417 Excavations not to be unguarded--Repealed by omission.
18-0418 Excavations to have signal lights--Repealed by omission.
18-0419 Excavations to be under direction of city engineer--How made--Signal lights--Repealed by omission.
18-0420 Excavations--Replacements of paving and sidewalks--Repealed.
18-0421 Excavations in street--Failure to maintain in good condition and restore--Recovery of expenses--Repealed.
18-0422 Openings in sidewalks--Covering required.
18-0423 Gas and water service shutoffs not to cause obstruction.
18-0424 Filthy substances not to be thrown in drains and sewers.
18-0425 Throwing and depositing paper or waste materials on streets and other public property prohibited.
18-0426 Depositing of snow on streets regulated.
18-0427 Depositing rubbish without owner's consent prohibited.
18-0428 Removal of rubbish.
18-0429 Paving in residential areas--Standards established--Repealed.
18-0430 Curb to be replaced and driveway removed where not needed.

18-0431 Abandonment of driveway--Restriction on building permit.
18-0432 Abandonment of driveway--Failure to remove and replace curb--Penalty.
18-0433 Low profile mountable curb at street intersections.

18-0401. Teams, vehicles not to obstruct streets.--Repealed by omission.

18-0402. License necessary to exhibit shows on streets.--No person shall, upon any of the public streets or grounds within the city, without having first obtained a license from the board of city commissioners, exhibit any show or performance of any kind which may obstruct public travel, or cause a gathering of multitudes of people upon any street or sidewalk, or tend to the injury of any public park, nor shall any person call any public meeting upon any street, alley, or public ground without such license or permission aforesaid.

Source: 1952 Rev. Ord. 18-0402.

18-0403. Wires in street--Permission necessary to stretch.--It shall be unlawful for any person, firm, or corporation to stretch any wire of any kind in any street or alley in the city without having first obtained permission from the board of city commissioners so to do.

Source: 1952 Rev. Ord. 18-0403.

18-0404. Wires in street--Manner of stretching.--Any person, firm, or corporation in stretching wire in any street or alley of the city shall so stretch the same and maintain it in such condition that it shall not interfere with any other wire previously stretched in the same street or alley for the transmission of electricity. All such wires stretched in the streets or alleys of this city by permission of the board of city commissioners shall, within 30 days, be placed in a condition to conform with the provisions of this section, and shall thereafter be maintained in a safe and non-hazardous condition.

Source: 1952 Rev. Ord. 18-0404.

18-0405. Wires in street--Prohibiting interference with other wires.--Any person, firm, or corporation stretching or repairing wires in said streets or alleys shall so handle such wires that they shall not interfere with the electric current conducted by any other wire stretched in said streets or alleys.

Source: 1952 Rev. Ord. 18-0405.

18-0406. Wires in street--Cutting wires prohibited.--No person shall cut, remove, or break any telephone, telegraph, fire alarm, or electric wire properly strung upon poles running through or across any street in the city for the purpose of moving any building or for any other purpose, except in the case of fire or to prevent the destruction of property, without first giving at least 12 hours' written notice of his intention to cut, remove, or break such wire, such notice to be given both to the company which owns or controls such wire and to the city engineer.

Source: 1952 Rev. Ord. 18-0406.

18-0407. Wires in street--Placing of poles.--No pole or poles for the holding or conveying of any wire or wires or cables to be used in connection with telegraph, telephone, electric lighting, or electric power service shall be placed in any street, alley, avenue, park, or other

public place within the city by any person, firm, company, or corporation unless permission to do so shall have first been obtained from the board of city commissioners and the place so occupied by such pole or poles shall have been approved by the city engineer.

Source: 1952 Rev. Ord. 18-0407.

18-0408. Pipes and conduits in streets--Prevention of leaks.--It shall be the duty of every person, firm, or corporation forcing, transmitting, or conveying water or gas through pipes or other conduits which have heretofore been, or shall be hereafter, laid in any street, alley, or public ground in the city to prevent the public use of such street, alley, or public ground from being or becoming in any way impaired, obstructed, injured, or rendered dangerous or offensive by the escape of water or gas out of said pipes or conduits into or upon said street, alley, or public ground.

Source: 1952 Rev. Ord. 18-0408.

18-0409. Pipes and conduits in streets--Repairing of breaks.--In case any pipe or conduit shall break out or burst so that water or gas shall escape from the same into or upon any street, alley, or public ground in the city, it shall be the duty of any person, firm, or corporation forcing, transmitting, or conveying water or gas through the same, within 24 hours after having received notice or knowledge of the escaping water or gas therefrom as aforesaid, to commence and prosecute diligently the repair of said pipe or other conduit, in case such pipe or other conduit is owned by such person, firm, or corporation; and if such pipe or other conduit is not owned by such person, firm, or corporation, such person, firm, or corporation shall immediately shut off the water or gas therefrom until same is repaired.

Source: 1952 Rev. Ord. 18-0409.

18-0410. Pipes and conduits in streets--Duty of officials to notify owner of leak.--It shall be the duty of the superintendent of streets and all police officers of the city, upon discovery of the fact that water or gas is escaping from any pipe or other conduit used as aforesaid, into or upon any street, alley or public ground, to notify immediately the city engineer who shall, in turn, notify the person, firm, or corporation forcing, transmitting, or conveying water or gas through the same of such escape.

Source: 1952 Rev. Ord. 18-0410.

18-0411. Pipes and conduits in streets--Failure of owner to repair.--In case any person, firm, or corporation forcing, transmitting, or conveying water or gas through any pipe or other conduit laid in any street, alley, or public ground of the city shall neglect or refuse to repair the same, in case it is owned by such person, firm, or corporation or to shut the water or gas off therefrom, in case it is not owned by such person, firm, or corporation, in accordance with 18-0409, then the superintendent of streets, under the direction of the city engineer, shall forthwith proceed to repair said pipe or other conduit, and the cost shall be recovered by the city in an action for that purpose from such person, firm, or corporation. Provided, that the foregoing provision shall not apply to any water mains or service pipes which are owned or under the control of the city and under the supervision of the superintendent of waterworks.

Source: 1952 Rev. Ord. 18-0411.

18-0412. Excavations in streets--Compliance with excavation code.--All excavations in streets, alleys or sidewalks and as otherwise defined therein, shall be done only in compliance with the provisions of article 18-09 of this chapter.

Source: 1965 Rev. Ord. 18-0412, 1849 (1978).

18-0413. Construction of sewer, vault, cellar, cistern, or well--Authority of city commissioners required.--No person shall construct, or cause to be constructed or made, any sewer, vault, cellar, cistern, or well in any of the streets or public places of the city without express authority from the board of city commissioners.

Source: 1952 Rev. Ord. 17-0201 and 18-0413.

18-0414. Excavations in streets--Permits required.-- Repealed by Ord. No. 1849 (1978).

18-0415. Excavations in streets--Bond required.--Repealed by Ord. No. 1849 (1978).

18-0416. Excavations in streets--Deposit required.-- Repealed by Ord. No. 1849 (1978).

18-0417. Excavations not to be unguarded.--Repealed by omission.

18-0418. Excavations to have signal lights.--Repealed by omission.

18-0419. Excavations to be under direction of city engineer--How made--Signal lights. Repealed by omission.

18-0420. Excavations--Replacements of paving and sidewalks.-- Repealed by Ord. No. 1849 (1978).

18-0421. Excavations in streets--Failure to maintain in good condition and restore--Recovery of expenses.--Repealed by Ord. No. 1849 (1978).

18-0422. Openings in sidewalks--Covering required.--Any person, firm, or corporation who shall make any opening in any sidewalk in the city for the purpose of placing therein any coal-hole or water meter, or shall make other like openings, shall cover such openings with a good and safe cover, firmly fastened thereon with hinges or other like appliances, and shall, at all times, keep and maintain such cover and hinges even with the surface of the walk in which the same are placed.

Source: 1952 Rev. Ord. 18-0422.

18-0423. Gas and water service shutoffs not to cause obstruction.--All gas and water service shutoffs shall be placed between the sidewalk and the curb, and the tops thereof shall not project above the surface of the street. When necessary to place such shutoffs in a sidewalk, the tops shall be placed and maintained flush with the upper surface of such sidewalk so as not to afford an obstruction to pedestrians. All shutoffs not projecting into or through any sidewalk, and which do not conform to the provisions herein contained, shall be made to conform upon notice to the owner thereof by the city engineer.

Source: 1952 Rev. Ord. 18-0423.

18-0424. Filthy substances not to be thrown in drains and sewers.--No person shall cast or throw, or cause to be cast or thrown, into any drains or sewers within the city any filthy substance, or any substance calculated to cause any obstruction, nuisance, or injury in or to the same.

Source: 1952 Rev. Ord. 17-0204 and 18-0424.

18-0425. Throwing and depositing paper or waste materials on streets and other public property prohibited.--It shall be unlawful for any person or persons, firm, association, or corporation to throw, place, leave, deposit, dispose of or bury upon any street, alley, sidewalk, park property, or other public property or grounds within the city any paper, cloth, trash, rubbish, trash burners, boxes, grass cuttings, leaves, or other waste material or to leave any such paper or waste materials in any yard or places where the same may blow or be liable to blow upon any street, alley, sidewalk, park property, or other public property or grounds within the city.

Source: 1952 Rev. Ord. 18-0425, 1054 (1950).

18-0426. Depositing of snow on streets regulated.--Snow which has been shoveled or removed from any sidewalk or driveway located upon any city street right-of-way may be deposited upon the boulevard, provided there is a boulevard adjacent thereto; if there is no adjacent boulevard, then such snow may be deposited on the actual street area itself, provided the snow is not piled in such a manner as to create a traffic hazard or to interfere in any manner with the vision or view of a driver of a motor vehicle at or near street intersections. It shall be unlawful to deposit any snow contrary to the provisions of this paragraph.

It shall be unlawful to deposit or dump any snow removed from parking lots, filling station areas, or from any other private property upon any public or city property or city street, including boulevards or any other part of the street right-of-way.

Source: 1952 Rev. Ord. 18-0426, 1189 (1964).

18-0427. Depositing rubbish without owner's consent prohibited.--Except during construction and maintenance of utility and service lines, no person shall cast or deposit any sand, gravel, dirt, or other material or substance on the ground between any street curbing, and the street line nearest such curbing, without the consent of the owner of the adjacent property.

Source: 1952 Rev. Ord. 18-0427.

18-0428. Removal of rubbish.--In case any wood, timber, lumber, or rubbish or any material or substance whatever mentioned in 18-0425 shall be found remaining or lying upon any street, alley, sidewalk, or public grounds within the limits of the city, in violation of said section, it shall be the duty of the chief of police, the superintendent of streets, or any police officer of the city forthwith to notify and require, by either written or verbal notice, any person who may have placed, caused, or permitted to be placed such substance or thing upon such street, alley, sidewalk, or public ground, or who may be the owner or have the control of such timber, wood, lumber, or other substance, or who may suffer the same to lie or remain upon such street, alley, sidewalk, or public ground, to remove immediately such thing or substances, or cause the same to be removed therefrom, and in case such person or persons shall neglect or fail to remove such substance or thing within a reasonable time after being so notified, it shall be the duty of the chief of police, the superintendent of streets, or any police officer to remove

the same, or cause it to be removed, from such street, alley, sidewalk, or public ground to some convenient or safe place within said city at the expense of such person or persons, to be recovered in an action against him or them to be prosecuted in the name of the city.

Source: 1952 Rev. Ord. 18-0428.

18-0429. Paving in residential areas--Standards established.--Repealed by Ord. No. 1412 (1971). See 18-0105, 18-0106.

18-0430. Curb to be replaced and driveway removed where not needed.--Whenever the building, remodeling, or rebuilding, or change of use of occupancy of any property in the city shall make unnecessary, unneeded, or useless any existing driveway between the roadway and property line in front of said premises, the owner of such premises, or his agent, shall remove said driveway and replace the curb and sidewalk in a manner prescribed by the city engineer.

Source: 1952 Rev. Ord. 1069 (1959).

18-0431. Abandonment of driveway--Restriction on building permit.--The city engineer shall not issue a building permit for the building, remodeling, or rebuilding of any property in the city which building, remodeling, or rebuilding will make unnecessary, unneeded, or useless any driveway in front of said premises unless said permit shall require that any such driveway be removed and the curb replaced in a manner prescribed by the city engineer.

Source: 1952 Rev. Ord. 1069 (1959).

18-0432. Abandonment of driveway--Failure to remove and replace curb--Penalty. Every person, firm, company, or corporation violating 18-0430 shall upon conviction be punished by a fine of not to exceed $100, or by imprisonment not to exceed 90 days, or by both such fine and imprisonment in the discretion of the court, the court to have power to suspend said sentence and to revoke the suspension thereof. Each day any person, firm, company, or corporation shall violate any of the provisions of 18-0430 shall constitute a separate offense.

Source: 1952 Rev. Ord. 1069 (1959).

18-0433. Low profile mountable curb at street intersections.--Curb and gutter in all areas of the city shall be constructed with a low mountable profile at all intersections so as not to impede or hinder the movement of wheelchairs or any other devices used by handicapped persons. Such curb and gutter shall be constructed in a manner prescribed by the city engineer.

Source: 1965 Rev. Ord. 18-0433, 1342 (1970).

ARTICLE 18-05

PUBLIC BUILDINGS AND PROPERTY--CITY HALL--AUDITORIUM COMMISSION

Section

18-0501 Public library established and named.
18-0502 City hall/auditorium and all other city buildings.
18-0503 Machinery, tools, lumber, and supplies used for streets.

18-0504 Books, records, and files of city.
18-0505 Reserved.
18-0506 Reserved.
18-0507 Reserved.
18-0508 Reserved.
18-0509 Reserved.
18-0510 Reserved.
18-0511 Reserved.
18-0512 Reserved.
18-0513 Reserved.
18-0514 Removal of Markers or Monuments.

18-0501. Public library established and named.----Governing law and composition of board of directors.--There is hereby established in the city of Fargo a public library and reading room. Said library shall be known as "Fargo Public Library".

The provisions of Chapter 40-38 of the North Dakota Century Code governing public libraries are hereby adopted by reference. Notwithstanding said provisions, however, the board of city commissioners may appoint a board of seven (7) directors to govern such library and reading room.

Source: 1952 Rev. Ord. 18-0501, 1225 (1966), 4459 (2005).

18-0502. City hall/auditorium and all other city buildings.--The city hall/auditorium and all other city buildings shall be under the supervision and control of the board of city commissioners and shall be subject to such regulations as the board shall, from time to time, direct.

Source: 1952 Rev. Ord. 18-0502.

18-0503. Machinery, tools, lumber, and supplies used for streets.--All the tools, machinery, lumber, supplies, and other articles used in connection with the streets, sidewalks, and bridges of the city shall be under the custody and control of the city engineer, who shall be responsible therefor.

Source: 1952 Rev. Ord. 18-0503.

18-0504. Books, records, and files of city.--All books, records, and files of the city shall be under the custody and control of the several officers using same, who shall be responsible therefor.

Source: 1952 Rev. Ord. 18-0504.

18-0505 Reserved.

Editor's note—5500, § 1, adopted July 30, 2025, repealed § 18-0505, which pertained to City hall/auditorium commission--Composition of commission--Number of members--Qualifications and derived from 1952 Rev. Ord. 1042, adopted 1959.

18-0506 Reserved.

Editor's note—5500, § 2, adopted July 30, 2025, repealed § 18-0505, which pertained to City hall/auditorium commission--Terms of office of members--Serve without compensation and derived from 1952 Rev. Ord. 1042, adopted 1959, and Ord. No. 4300, adopted 2003.

18-0507 Reserved.

Editor's note—5500, § 3, adopted July 30, 2025, repealed § 18-0505, which pertained to City hall/auditorium commission--Removal from office--Filling vacancies in office and derived from 1952 Rev. Ord. 1042, adopted 1959.

18-0508 Reserved.

Editor's note—5500, § 4, adopted July 30, 2025, repealed § 18-0505, which pertained to City hall/auditorium commission--Officers and employees of commission--Compensation and derived from 1952 Rev. Ord. 1042, adopted 1959.

18-0509 Reserved.

Editor's note—5500, § 5, adopted July 30, 2025, repealed § 18-0505, which pertained to City hall/auditorium commission--Meetings of commission--Rules of procedure--Records--Quorum for transacting business and derived from 1952 Rev. Ord. 1042, adopted 1959.

18-0510 Reserved.

Editor's note—5500, § 6, adopted July 30, 2025, repealed § 18-0505, which pertained to City hall/auditorium commission--Powers and duties of commission and derived from 1952 Rev. Ord. 1042, adopted 1959, 1965 Rev. Ord. 18-0510, Ord. No. 1611, adopted 1974, Ord. No. 2242, adopted 1986, and Ord. No. 2320, adopted 1987.

18-0511 Reserved.

Editor's note—5500, § 7, adopted July 30, 2025, repealed § 18-0505, which pertained to City hall/auditorium commission--Monies received by commission--Report--Payment to city treasury and derived from 1952 Rev. Ord. 1042, adopted 1959.

18-0512 Reserved.

Editor's note—5500, § 8, adopted July 30, 2025, repealed § 18-0505, which pertained to City hall/auditorium commission--Estimate of expenses for ensuing fiscal year--Reports and derived from 1952 Rev. Ord. 1042, adopted 1959.

18-0513 Reserved.

Editor's note—5500, § 9, adopted July 30, 2025, repealed § 18-0505, which pertained to Possession, use or consumption of intoxicating liquor unlawful and derived from 1965 Rev. Ord. 18-0513, 1812 (1977).

18-0514. Removal of Markers or Monuments.--The board of city commissioners finds that a marker or monument on City of Fargo property for 40 or more years may not be removed from its location on City of Fargo property.

Source: 4620 (2007).

ARTICLE 18-06
BROADWAY MALL IMPROVEMENT

Section

18-0601 Provisions of state law adopted.
18-0602 Designation of Broadway Mall--Plan.
18-0603 Regulations.
18-0604 Pedestrian mall--Use restrictions.

18-0601. Provisions of state law adopted.--The provisions of §§ 40-62-01, 40-62-02, 40-62-04, 40-62-06 and 40-62-07 of the North Dakota Century Code are hereby ratified and adopted as a part of this ordinance.

Source: 1965 Rev. Ord. 18-0601, 1395 (1971).

18-0602. Designation of Broadway Mall--Plan.--The "Broadway Mall" as constructed and as depicted on the attached plan is incorporated and made a part of this ordinance by reference, and is hereby ratified and approved. The use of this improvement shall be primarily for the free movement, safety, convenience and enjoyment of pedestrians, whether or not part of the mall is made available for emergency or other permitted vehicles. The "Broadway Mall" may provide for and include space for seating, a restaurant, cafe tables, shelters, trees, flower plantings, sculptures, newsstands, telephone booths, traffic signs, kiosks, fire hydrants, street lighting, ornamental lights, trash receptacles, display cases, marquees, awnings, canopies, overhead and underground radiant heating devices, walls, barriers, and all other such fixtures, equipment, facilities and appurtenances as will in the governing body's judgment enhance the free movement, safety, convenience and enjoyment of pedestrians and benefit the adjoining properties and the central business district and the city. Any of the said uses or facilities listed above or depicted in the attached plan, may be leased to any private operator by the governing body of the city. Sidewalks may be constructed of concrete, bricks, asphalt tiles, blocks, granite sets, or such other materials or combinations of materials as the governing body may approve. The governing body may, in its discretion, narrow any roadway to be kept and maintained in the mall, may cause any street vaults to be reconstructed or removed, may construct crosswalks at any point within or at the ends of blocks, may cause the mall to be covered by a roof, may cause any enclosed spaces to be heated and air conditioned, and may cause any roadway to curve and meander within the limits of the street, if deemed desirable to enhance the usefulness or appearance of the mall, regardless of any nonuniformity of street width or any curve or absence of curve in the center line of the street.

Source: 1965 Rev. Ord. 18-0602, 1625 (1975).

18-0603. Regulations.--Section 40-62-05 of the North Dakota Century Code is hereby superseded and the following is substituted therefor:

The jurisdiction of the city to construct the "Broadway Mall," when established in the manner provided by law, shall include jurisdiction to establish by ordinance and from time to time amend reasonable regulations for the use of the mall, conforming to the following provisions:

A. Vehicles shall be permitted to cross the mall at all street intersections except those of two streets each forming part of the mall in the discretion of the governing body.

B. The owners and occupants of all properties abutting upon the mall which have access to no other street or alley for delivery or receipt of merchandise and materials shall be permitted to use the mall during such days and hours, which need not be ordinary business days or hours, and in such manner and over such distance, as the governing body shall find to be reasonably adequate for this purpose and to be possible without interfering with use by pedestrians and by emergency and other vehicles for which use is permitted.

C. The regulations may permit use for any purpose or activity which will enhance the freedom of movement, safety, convenience or enjoyment of pedestrians, including but not limited to, seating, sidewalk cafes, restaurants, displays of merchandise, exhibits, advertising, telephones, transit, transit stops and shelters, newsstands, plantings, ornaments, protection from the elements, rest and recreation areas, entertainment facilities, emergency vehicles, and police and fire equipment.

D. The governing body may adopt a use plan prepared by city officers or consultants, providing for the location and distribution within the mall of furniture, sculpture, pedestrian traffic control devices, trees, flowers, lighting or heating

facilities, and any other equipment or properties placed or installed in the mall, whether owned by the city or others, and may license and regulate the operation and maintenance thereof.

E. Any furniture, structure, facility, or use located or permitted pursuant to such a plan shall not, by reason of such location or use, be deemed a nuisance or unlawful obstruction or condition, and neither the city nor any user acting under permit or lease from the city shall be liable for any injury to person or property therefor unless directly caused by its own negligence or that of its employees in the construction, maintenance, or operation of such furniture, structure, facility, or use.

Source: 1965 Rev. Ord. 18-0603, 1395 (1971).

18-0604. Pedestrian mall--Use restrictions.--The "Broadway Mall" as depicted on the attached drawing, is hereby designated and established as a pedestrian oriented mall. Movement of traffic shall be subordinate to the convenience of pedestrians, and shall be subject to limitations as hereinafter set forth. Use of the "Broadway Mall" shall be subject to the following restrictions:

A. Motorized vehicular traffic shall be limited to one lane in each direction. Overtaking and passing of any motorized vehicle by another motorized vehicle is prohibited, except in the case of emergency vehicles responding to an emergency call.

B. Parking, stopping or standing of motorized vehicles is prohibited in the "Broadway Mall," except standing and loading shall be permitted in areas clearly posted and marked for such purpose. Hours of permitted use of said standing and loading areas shall be as determined by the Fargo Parking Authority with the assistance of the Fargo traffic engineer. Any such restrictions shall have full force and effect when posted, but may be changed by the board of city commissioners.

C. No limitation or prohibition of use herein contained shall apply to vehicles on an avenue intersecting or crossing the said "Broadway Mall" as depicted on the attached plan.

D. Movement and parking of motor vehicles within the "Broadway Mall" shall be subject to all of the ordinances and regulations of the city of Fargo pertaining to traffic and motor vehicles.

E. Riding of bicycles shall be restricted to areas designated for motorized vehicles. Bicycles shall be parked in stands to be provided at convenient locations in the mall.

F. Nothing herein contained shall be interpreted as or construed to be a vacation, in whole or in part, of any city street or part thereof, and the city of Fargo shall retain all police powers within the "Broadway Mall" and all ordinances of the city shall have full force and effect within said "Broadway Mall" except as is herein expressly otherwise provided.

Source: 1965 Rev. Ord. 18-0604, 1625 (1975).

ARTICLE 18-07

MUNICIPAL PARKING SYSTEM

Section

18-0701 Municipal parking system.
18-0702 Municipal parking authority.
18-0703 Parking authority fund.
18-0704 Application of net parking system revenues.
18-0705 Declaration of policy.

18-0701. Municipal parking system.--For the purpose of alleviating traffic congestion, preventing the development of blight, and implementing orderly plans for urban development and urban renewal, pursuant to the provisions of North Dakota Century Code chapter 40-60 (Laws of 1967, Chapter 341), and of the laws therein referred to, it is determined that all municipal off-street parking facilities, as defined in chapter 40-60, which are now owned or shall hereafter be acquired by the city of Fargo, with the exception of those facilities situated on the premises of the Hector Municipal Airport, shall be operated and maintained as a unified municipal parking system, and the revenues therefrom shall be administered in accordance with the provisions of this ordinance. The parking facilities now comprised in the system include, without limitation, the following:

A. Parking lots now owned and operated by the city:
   1. Block 6, North Dakota R. 1 Urban Renewal, known as the Civic Center Parking Lot.
   2. South one-half of Lot 9 and East 150 feet of Lots 10, 11 and 12, Block 3, Roberts' Addition, known as the Second Avenue North Parking Lot.
   3. South one-half of Block 19, Original Townsite, known as the Arena Parking Lot.

B. Parking lots acquired and to be acquired and constructed within Parking Improvement District No. 3237, in accordance with the resolution declaring the necessity thereof, dated March 19, 1968:
   1. Lots 27, 28 and 29, Block 1, Roberts' Addition.
   2. Lots 2, 3, 4, 5, 6, 7, 8 and South 5 feet of Lot 9, Block 8, Keeney and Devitt's Addition.
   3. Beginning at the southwest corner of Lot 12, Block 3, Roberts' Addition; thence east 63 feet; thence north 150 feet to north line of Lot 10; thence west 28.7 feet to east line of Roberts Street; thence southwesterly along said line to beginning.

Source: 1270 (1968).

18-0702. Municipal parking authority.--The board of city commissioners of the city of Fargo is hereby designated as the municipal parking authority for the city of Fargo and shall be vested with all of the powers and duties of such authorities as provided in chapter 40-61, N.D.C.C.

Source: 2273 (1986).

18-0703. Parking authority fund.--In accordance with North Dakota Century Code 40-61-08 [40-61-07] all monies of the municipal parking authority shall be paid to the city

treasurer as agent of the authority, and shall be deposited in a separate bank account or accounts and shall not be commingled with other city funds, and shall be secured, invested, reinvested and expended as provided in 40-61-08 [40-61-07]. However, no net parking system revenues which are at any time required, under the conditions stated in this ordinance, to be paid into another city fund, shall be deemed to be monies of the authority within the meaning of this section. The following separate bookkeeping accounts shall be maintained at all times on the official books and records of the authority, subject to inspection and auditing by the city auditor, for the purpose of showing all receipts of money from the following sources and all disbursements of money for the following purposes:

A. An operation and maintenance account, to which there shall be credited as received all revenues derived in any manner whatsoever from the operation of the municipal parking system (excluding the parking facilities at the Hector Municipal Airport), and to which there shall be charged all items which under accepted accounting practice constitute normal, reasonable and current costs of the operation and maintenance of said parking system. All rentals and payments of whatsoever nature, received under any lease agreement or operating agreement applicable to any parking facility, shall be credited to this account and no operating expenses of any such facility shall be charged thereto, except such portion of the administrative expenses of the authority as may be necessarily incurred in the collection of and the accounting for the revenues so received.

B. A reserve account, to which there shall be credited at least once each month all monies then remaining in the operation and maintenance account, in excess of the amount then due and owing in payment of operation and maintenance expenses and the additional amount reasonably estimated by the authority to be necessary for payments of operation and maintenance expenses to become due in the then current month. The balance on hand in this account from time to time constitutes the "net revenues" referred to in the following provisions of this ordinance [18-0701 to 18-0705].

Source: 1270 (1968).

18-0704. Application of net parking system revenues.--The net revenues at any time on hand in the reserve account of the parking authority fund shall be expended or transferred therefrom only for one or more of the purposes enumerated in this section, in the order of priority stated below. If the net revenues on hand at any time are not equal to the amount then required for any purpose enumerated, no amount shall be expended or transferred for any purpose in a lower order of priority, and the requirements for each purpose shall be cumulative and shall include interest on any money necessarily borrowed by either the city or the parking authority to meet any deficiency in net revenues from time to time available for that purpose. In accordance with the foregoing principles, said net revenues shall be applied for the following purposes in the following order of priority:

A. To provide monies needed in the operation and maintenance account to pay valid claims due and payable with respect to current, reasonable and necessary operation and maintenance expenses of the parking system.

B. To provide monies needed in each fund now or hereafter created by the city and appropriated for the payment of warrants or bonds financing facilities compris-

ing the municipal parking system, not less than 30 days in advance of each date on which interest or principal becomes due and payable on said warrants or bonds, in an amount which will be sufficient with monies then on hand in such fund to pay all such interest and principal then due; provided that the city's resolutions authorizing such bonds shall have pledged and appropriated net parking system revenues for the payment thereof.

C. To credit and pay to the city of Fargo such amount as shall be determined by the board of city commissioners to be reasonably equivalent to the amount of taxes otherwise leviable upon properties of the municipal parking system if privately owned; which amount so credited shall be subject to appropriation by said board for any proper corporate purpose consistent with the provisions of its resolutions authorizing warrants or bonds referred to in paragraph (B) of this section.

D. To provide monies in any reserve account established for the security of warrants or bonds referred to in paragraph (B) of this section at the time or times and in the amounts required in the resolution authorizing the issuance of such warrants or bonds.

E. To provide for replacement of facilities of the municipal parking system, and parts thereof, of a nature other than repairs needed for current maintenance of the system, as provided in paragraph (A) of 18-0703 and paragraph (A) of this section.

F. To provide for improvements or additions to the facilities of the municipal parking system.

Source: 1270 (1968).

18-0705. Declaration of policy.--The following are declared to be the policies of the city of Fargo in relation to the municipal parking system:

A. The system shall continue to be owned by the city and operated as a public parking system for the purposes referred to in 18-0701, at least until all obligations incurred by the city or by the municipal parking authority in providing the system, and all interest thereon, shall have been fully paid.

B. Said system shall be expanded as soon as possible and shall thereafter be maintained at all times in such manner as to provide not less than 600 automobile parking spaces for the use of which reasonable charges shall at all times be imposed and collected.

C. Rates and charges for individual parking spaces and rentals and other payments under agreements for the leasing and operation of parking facilities shall be established and collected according to schedules such that the net revenues derived therefrom will be so far as possible sufficient for all requirements for the purposes specified in 18-0704.

Source: 1270 (1968).

ARTICLE 18-08

PARKING LOT CONSTRUCTION AND DRAINAGE

Section

18-0801 Definitions.

18-0802 Minimum standards.
18-0803 Application for permit.
18-0804 Fee.
18-0805 Penalty.

18-0801. Definitions.--The following words or terms when used herein shall be deemed to have the meanings set forth below:

1. "Parking lot" shall mean an area of land to be used for parking motor vehicles, whether such parking lot is open to the public on a fee or free basis, not including residential driveways and access ways, single- or two-car parking lots, and any parking for one- and two-family dwelling units.

2. "Adequate drainage" shall mean provision for disposal of surface water from parking lots and from any buildings, walks or other surfaces which drain onto parking lots.

Source: 1965 Rev. Ord. 18-0801, 1810 (1977).

18-0802. Minimum standards.--All parking lots hereafter constructed or existing parking lots which are hereafter enlarged or improved shall conform to the following minimum standards:

A. They shall be covered with a dust-free, all-weather surface as required by the city engineering department.

B. Adequate drainage shall be provided as required by the city engineering department.

C. They shall contain a type of barrier designed to prevent encroachment on adjacent public or private property or such other barrier designed to prevent such encroachment as may be approved by the proper city officials under 18-0803 of this article. Such barriers may be of permanent construction, built utilizing chains or other such restraints, or may be parking bumpers or curbs including those held in place by metal pins provided, however, that if the latter method of construction is utilized, the parking bumpers or curbs shall be installed at least two feet from the sidewalk, public or private property to prevent encroachments on such property and provided further that such parking bumpers or curbs shall be held in place by at least a 16-inch metal pin. Any other method of construction shall insure that there shall be no encroachment on adjoining public or private property including sidewalks. Barriers shall prevent motor vehicles from being removed from the parking lot except at regularly established entrances and exits. Barriers shall be required to be erected in all parking lots not presently maintaining any type of barrier and in those hereafter constructed, enlarged or improved. Any parking lot currently having parking bumpers or curbs including those held in place by metal pins, shall be required to properly locate such barriers and secure the same with 16-inch metal pins whenever replacement is required, but in no event to exceed five years from the date of passage of this ordinance.

D. In all other respects not inconsistent herewith, they shall conform to the requirements of 20-0321(1) of the Revised Ordinances of 1965 of the city of Fargo.

Source: 1965 Rev. Ord. 18-0802, 1810 (1977).

18-0803. Application for permit.--Prior to construction, enlargement, or improvement of a parking lot or conversion of private land for use as a parking lot, or for the purpose of installing the required barriers, the owner, tenant or other party in interest who authorizes such construction, conversion, or improvement in compliance with this article, shall apply in writing to the building inspector for a permit. The application shall contain:

A. A drawing or survey showing the location of the parking lot on the premises;

B. The method of access to all public streets or alleys;

C. Specifications indicating type of materials to be used and dimensions of construction;

D. Drainage detail including approximate contours and, if sewers are available, method of connection and materials used in connection with sewers for stormwater drainage purposes;

E. Details concerning reconstruction of any curbs, streets, and sidewalks which will be affected by the parking lot.

The building inspector upon receipt of an application, in consultation with the city engineer and the traffic engineer, shall first determine whether or not the proposed parking lot meets the minimum standards of 18-0802 of this article and that the method of drainage is adequate. The city traffic engineer shall approve the method and place of access to public streets and alleys. If such access is not acceptable as submitted, the traffic engineer shall indicate an alternative method or place of access. The city engineer and the building inspector shall specify what materials, inspection permit and fee, if any, are required with respect to the construction of drainage lines to city sewers and tapping into such city sewers, and shall specify what materials, inspection, permit and fee, if any, are required with respect to the excavation of streets or alleys, or with respect to curbs and sidewalks.

After approval of the parking lot construction, the building inspector shall issue a written permit containing a specific statement as to what changes in plans, specifications and materials are required in addition to or in substitution of those disclosed in the application; what inspections will be required during the course of or upon completion of construction; and what additional permits are required in addition to the permit required by this ordinance. The permit shall also state what fees are required for all of the various permits, which fees shall be paid as a lump sum as a condition precedent to issuance of the permit. In the event the building inspector refuses to issue a permit he shall state in writing the reason for the refusal and the regulation, ordinance or law upon which such refusal is based. The applicant shall have a right of appeal to the board of city commissioners from the determination of the building inspector.

Source: 1965 Rev. Ord. 18-0803, 1810 (1977).

18-0804. Fee.--The fee for the permit shall, in addition to any other fee provided by law, be as established by resolution of the board of city commissioners.

Source: 1965 Rev. Ord. 18-0804, 1810 (1977).

18-0805. Penalty.--Every person, firm, or corporation violating any of the provisions of this article shall, upon conviction, be punished by a fine of not to exceed $500 or by imprisonment not to exceed 30 days or both such fine and imprisonment, in the discretion of

the court; the court to have power to suspend said sentence and to revoke the suspension thereof. Each separate occurrence and each day any person, firm, or corporation shall violate any of the provisions of this article shall constitute a separate offense.

Source: 1965 Rev. Ord. 18-0805, 1810 (1977).

ARTICLE 18-09

EXCAVATION ORDINANCE

Editor's note—Ord. No. 5384, § 1, adopted April 17, 2023, repealed the former Art. 18-09, §§ 18-0901--18-0904, 18-0906--18-0917, and enacted a new Art. 18-09 as set out herein. The former Art. 18-09 pertained to similar subject matter and derived from 1965 Rev. Ord. §§ 18-0601--18-0617; Ord. No. 1850, adopted 1978; Ord. No. 2395, adopted 1988; Ord. No. 2546, adopted 1990; Ord. No. 2727, adopted 1995; Ord. No. 2855, adopted 1998; and Ord. No. 5069, adopted 2016.

Section

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18-0900. Applicability.--This Excavation Code applies to any and all excavation of the City of Fargo's public right-of-way, publicly-owned property, and all locations that must be permitted, as more specifically defined herein, and as otherwise determined by the City Engineer.

Source: 5384 (2023)

18-0901. Definitions.--The following words, terms and phrases shall have the meanings ascribed to them in this Article:

1. "Boulevard" means that right-of-way from the back of the curb or edge of the traveled way to the owner's property line.

2. "City Engineer" means the City Engineer of the City of Fargo or designee.

3. "Excavation" means any removal or disturbance of material within the traveled way of any street or alley or the removal or disturbance of any material, sod, or soil areas of any street, alley, public right-of-way, street boulevards (except boulevard gardens as allowed by Article 13-17), and public utility easements, including but not limited to grading, cutting, trenching, digging, ditching, drilling, pot holing, auguring, tunneling, jacking, boring, scraping, plowing and pile driving, and any disturbance of the surface by any means under, in, on, over, or through any locations required to be permitted within the corporate limits of the City of Fargo.

4. "Excavator" means any person, firm, or entity who performs the act of excavation by any means.

5. "Guidelines" refers to the Excavation Fees and Guidelines Supplement created by the City Engineer and approved by the Board of City Commissioners by Resolution, effective at the time of permit issuance. A copy of the Guidelines is accessible at: https://fargond.gov/city-government/departments/engineering/engineering-services/right-of-way-management/excavation-guidelines-policies.

6. "Specifications" refers to the Standard Specifications for Construction in effect at the time of permit issuance. A copy of the Specifications is accessible at: https://fargond.gov/city-government/departments/engineering/design-construction/construction-specifications.

7. "Street" means the length as dedicated for use by the public and the width as defined by the property lines on each side thereof. For purposes of this Article, all references to "Street" includes alleys.

8. "Traveled way" means the width from curb to curb on curbed streets, from edge to edge on any non-curbed streets, and from shoulder to shoulder on gravel streets.

9. "Utilities" means, for the purpose of this Article, all underground cables, conduit, and pipe used for the transportation or distribution of fuel, electricity, communication services, water, or sewage.

Source: 5384 (2023)

18-0902. Excavator's License.--No person, firm, or entity shall perform excavation, as defined in 18-0901(3), unless licensed as a contractor by the State of North Dakota and licensed as an excavator by the City of Fargo. An excavator's license will be issued by the City Auditor upon submission of a written application on forms obtained from the auditor and upon fulfilling the fee, bonding, and insurance requirements as specified in the Guidelines. A license shall be effective upon issuance until March 1 of the following year.

Source: 5384 (2023)

18-0903. Permit to Excavate.--Except as otherwise provided in 18-0904 and 18-0911, no person may perform excavation, as defined in 18-0901(3), without first obtaining a permit from the City of Fargo Engineering Department. A permit to excavate shall be issued only to an excavator licensed by the City of Fargo, and those exempt under 18-0904(B). The issuance of a permit shall not relieve any permittee from compliance with all requirements of this Article nor relieve the permittee of any liability for damage to any existing utility. The City assumes no liability whatsoever by virtue of the issuance of a permit. Except as set forth elsewhere herein, the excavator performing the excavation must obtain the permit to excavate. Excavation must occur during the permitted time period.

Source: 5384 (2023)

18-0904. Exemptions.--

A. All utility companies franchised with the City of Fargo and authorized to operate within the corporate limits are exempt from the license requirement of this Article.

B. The following shall be exempt from the permit requirements of this Article:

1. All governmental units of the City of Fargo;
2. All contractors performing under a written contract with the City of Fargo or a governmental unit of the City of Fargo; and
3. A property owner planting or maintaining a garden on the boulevard adjacent to their property in accordance with Fargo Municipal Code Article 13-17.

Source: 5384 (2023)

18-0905. Denial or Revocation of Permit.--

A. Mandatory Denial. Except in the case of an emergency, no permit will be granted:

1. To any person, firm, or entity who has failed within the past three years to comply with, or is presently not in compliance with, the requirements of this Article.
2. To any person, firm, or entity who has outstanding debt owed to the City of Fargo that is due, owing, and unpaid.
3. To any person, firm, or entity as to whom there exist grounds for the revocation of a permit under this Article or other applicable law.

B. Permissive Denial. The City Engineer may deny a permit to protect the public health, safety and welfare, to prevent interference with the safety and convenience of ordinary travel over the right-of-way, or when necessary to protect the right-of-way and its users. The City Engineer, at the City Engineer's discretion, may consider one or more of the following factors in denying a permit:

1. The degree of compliance of the applicant with this Article and other applicable ordinances and regulations.
2. The degree of disruption to surrounding communities and businesses that will result from the issuance of a permit.
3. The condition and age of the right-of-way, and whether and when it is scheduled for total or partial reconstruction.
4. The balancing of the costs of disruption to the public and damage to the right-of-way, against the benefits to that part of the public served by the issuance of a permit.
5. The number of incomplete permits held by the applicant.
6. Any other factors the City Engineer deems just and appropriate under the circumstances.

C. Revocation of Permit. A permittee holds a permit issued hereunder as a privilege and not as a right. The City Engineer is authorized, as provided herein, to revoke a permit, without fee refund, upon finding any of the following:

1. The permittee violated or failed to comply with any statute, ordinance, rule, regulation, Guidelines, Specifications, or condition of the permit.
2. An evasion or attempt to evade any term of the permit, or the perpetration or attempt to perpetrate any fraud or deceit upon the City of Fargo or its citizens.
3. Any material misrepresentation of fact in the application for a permit.

4. The failure to maintain the required construction security, bond, or insurance.

5. The failure to complete the permitted work in a timely manner.

6. The failure to correct a condition as requested by the City Engineer.

If the City Engineer determines grounds for revocation of a permit exist, the City Engineer will make a written demand upon the permittee to remedy such violation. The demand shall state that continued violations may be cause for revocation of the permit, and the City Engineer may place additional or revised conditions on the permit. The permittee shall then have the amount of time provided in the Guidelines or as otherwise afforded by the City Engineer to contact the City Engineer with a plan, acceptable to the City Engineer, for correction, including a date of anticipated completion. The permittee's failure to timely contact the City Engineer, failure to submit an acceptable plan, or failure to reasonably implement the approved plan, shall be cause for immediate revocation of the permit. If a permit is revoked, the permittee shall also reimburse the City for its costs incurred in connection with such revocation, including restoration costs and reasonable attorney's fees.

Source: 5384 (2023)

18-0906. Pre-Excavation Requirements.--It shall be the responsibility of each permittee to comply with federal, state, and local laws, including North Dakota One-Call laws, and the terms of the Guidelines and Specifications.

Source: 5384 (2023)

18-0907. Excavation Protection.--The permittee shall be responsible for protecting the safety of the public and the integrity of the public right-of-way in the permitted area. This shall include but is not limited to installing and maintaining traffic control measures in accordance with the "Manual on Uniform Traffic Control Devices" (MUTCD), installing and maintaining erosion and sediment control, and any other requirements stated in the permit, Guidelines, and Specifications.

Source: 5384 (2023)

18-0908. Preservation of Monument.--Any monuments set for the purpose of locating or preserving the property lines, survey reference points, or permanent survey benchmarks, shall not be removed or disturbed without permission in writing from the City Engineer. Replacement of monuments shall be permittee's sole responsibility. Any failure by permittee to replace and verify the location of the monument shall be a permit violation.

Source: 5384 (2023)

18-0909. Compliance with Guidelines and Specifications.--

A. All permittees issued a permit in accordance with this Article must comply with the Guidelines and Specifications in effect at the time of issuance of the permit. Failure to abide by the permit conditions, Guidelines, Specifications, or this Article may result in a violation and subject the permittee to penalties imposed by the City Engineer, including permit and license revocation.

B. Excavators who are exempt from the licensing and permit requirements under 18-0904 must comply with the Guidelines and Specifications in effect at the time of the excavation.

Source: 5384 (2023)

18-0910. Revocation of Excavator License.--

A. The City Engineer may revoke an excavator license issued pursuant to this Article, without a fee refund, if the City Engineer makes any of the following findings:

1. The licensee obtained the license by means of fraud, deceit, or misrepresentation of a material fact.
2. The licensee is not in compliance with any applicable statute, ordinance, rule, regulation, or the Guidelines or Specifications.
3. The licensee is not performing work in compliance with any condition of the license.
4. The licensee has had two (2) or more ordinance violations within a one-year period.
5. The licensee had a permit revoked in accordance with this Article.
6. The practices of the licensee threaten the health, safety, or welfare of the public, interfere with the safety and convenience of ordinary travel over the right-of-way, or otherwise negatively impact the right-of-way or its users.

B. If the City Engineer determines grounds for revocation of a license exist, the City Engineer shall provide written notice to the licensee stating the grounds for revocation. The licensee shall then have the amount of time provided in the Guidelines or as otherwise afforded by the City Engineer after receipt of the written notice to remedy the grounds for revocation to the satisfaction of the City Engineer. If the licensee fails to remedy the grounds for revocation to the satisfaction of the City Engineer, then the City Engineer may revoke the license without further notice.

C. If a license is revoked, the licensee shall reimburse the City for its reasonable costs incurred in connection with such revocation, including restoration costs and reasonable attorney's fees. A licensee who has had a license revoked, or believes any costs and fees imposed are unreasonable, may have the matter reviewed by the City Commission upon written request made to the City Engineer within ten (10) business days of the revocation or notice of fee imposition. A decision by the City Commission affirming such revocation or fee imposition will be in writing and supported by written findings establishing the basis for the decision.

Source: 5384 (2023)

18-0911. Emergency Excavation.--Nothing in this ordinance shall be construed to prevent the making of such excavations as may be necessary for the preservation of life or property or for the location of trouble in conduit or pipe, or for making repairs, provided that the person making such excavation shall apply to the City Engineer for such a permit on the first working day after such work is commenced.

Source: 5384 (2023)

18-0912. Warranty.--The permittee warrants that restoration work will meet the requirements of this Article, the Guidelines, and Specifications for a period of twenty-four (24) months following final acceptance of the work by the City. During this warranty period, the permittee shall, upon notification by the City Engineer, correct all restoration work to the extent necessary using the method required by the City Engineer. Such work shall be completed within five (5) calendar days of the receipt of the notice from the City Engineer, not including days when work is prohibited as unseasonable or unreasonable. If permittee fails to restore the right-of-way in the manner and condition required by the City Engineer, or fails to

satisfactorily and timely complete all restoration required, the City Engineer may do such work or contract for such work to be completed. In such event, the permittee shall pay to the City the costs of restoring the right-of-way within thirty (30) days of the billing.

Source: 5384 (2023)

18-0913. Inspections.--When the work under any permit is completed, the permittee must provide written notice of completion to the City of Fargo Engineering Department. The permittee shall make the site available to the City of Fargo Engineering Department and all others required for inspections at all reasonable times during the execution of and completion of the work. If the City Engineer determines that any work of the permittee does not conform to the terms of the permit or other applicable standards, conditions, or codes, or does not comply with the Guidelines and Specifications, the City Engineer will issue written notice under 18-0905(C) and the permittee shall follow the procedure established in 18-0905(C) to remedy the violations. The provisions of this Article do not relieve or change any inspection requirements contained in the Fargo Municipal Code or in any rules and regulations as approved by the Board of City Commissioners including the Guidelines and Specifications. The permittee shall comply with all other inspection requirements and secure all approvals required for the project.

Source: 5384 (2023)

18-0914. Maintenance of Substructure Records.--Every person owning, using, controlling, or having an interest in substructures under the surface of any public place, shall provide maps, drawn to a scale of not less than one inch to 200 feet, to the City Engineer upon request. The maps must show in detail the plan location, size, and kind of installation of all substructures, except service lines designed to serve single properties.

Source: 5384 (2023)

18-0915. Forms.--The City Auditor is hereby authorized and directed to prepare the license forms required by this Article, and to issue the license upon payment of the required fee and compliance with the application, bonding, and insurance requirements contained within this Article, and the Guidelines and Specifications. The City Engineer is hereby authorized and directed to prepare the permit forms and the necessary related forms as required by this Article.

Source: 5384 (2023)

18-0916. Rules, Regulations, and Penalties.--The City Engineer is hereby authorized and directed to promulgate rules and regulations necessary to effect the purpose and enforcement of this Article, and to issue such permits in accordance herewith. The City Engineer may impose a noncompliance penalty for unreasonable delays in right-of-way excavation, backfilling, and restoration, and noncompliance with the Guidelines and Specifications. In accordance with Fargo Municipal Code 1-0305(A)(1), a violation of this Article is a Class B misdemeanor and penalties may be imposed thereunder.

Source: 5384 (2023)

18-0917. Severability.--If any section, provision, or part of this Article shall be adjudged invalid or unconstitutional, such adjudication shall not affect the validity of the Article as a whole or any section, provision, or part thereof not adjudged invalid or unconstitutional.

Source: 5384 (2023)

CHAPTER 19

DEPARTMENT OF FORESTRY--TREES, PARKS AND BOULEVARDS

Article

19-01 Department of Forestry, §§ 19-0101 to 19-0104.

19-02 Trees and Shrubbery--Permits for Planting and Regulations--Public Nuisance and Abatement Thereof, §§ 19-0201 to 19-0206.

19-03 Trees and Shrubbery--Miscellaneous Provisions, §§ 19-0301 to 19-0303.

ARTICLE 19-01

DEPARTMENT OF FORESTRY

Section

19-0101 Establishment of department of forestry.

19-0102 Duties of city forester.

19-0103 Operation of department of forestry by Fargo park district authorized.

19-0104 Financing--Rates and charges--Establishment--Change of rate.

19-0101. Establishment of department of forestry.--

A. There is hereby created department of forestry which shall consist of the city forester and such assistants as may be authorized by the board of city commissioners.

B. Appointment of city forester--The position of city forester is hereby created and shall be filled by appointment by the board of city commissioners.

C. Fargo Forestry Committee--The city forester may appoint a committee to provide input and support in carrying out the duties listed in section 19-0102. The committee may consist of individuals representing various community entities such as the Fargo Park District, City Commission, North Dakota State University, Cass County Extension Service, public utilities, general public and the city forester. Members of the committee shall be filled as needed upon the recommendation of current committee members.

Source: 1965 Rev. Ord. 19-0101, 1642 (1975), 4737 (2010).

19-0102. Duties of city forester.--The city forester shall be the head of the forestry department and shall coordinate all tree programs in the city of Fargo, and shall perform all the duties prescribed by law and the ordinances of the city of Fargo. The city forester shall be responsible for the care and maintenance of all trees located on the right-of-way of streets and avenues within the city and the enforcement of all laws, ordinances and regulations relating to the care and maintenance of trees. The city forester shall also take appropriate steps to ensure public safety and safeguard the future health and well-being of such trees and shrubs and shall report to the board of city commissioners concerning the performance and finances of the department of forestry.

Source: 1965 Rev. Ord. 19-0102, 1642 (1975), 4737 (2010).

19-0103. Operation of department of forestry by Fargo park district authorized.--The city may contract with the Fargo park district for the operation of the department of forestry

upon such terms and conditions as may be agreed upon between the city and the Fargo park district; provided, however, that notwithstanding such contract, the department of forestry shall be considered a department of the city for all purposes, and the employees of such department shall be considered to be city employees.

Source: 1965 Rev. Ord. 19-0103, 1642 (1975).

19-0104. Financing--Rates and charges--Establishment--Change of rate.--The department of forestry shall be financed by a charge to be imposed by the board of city commissioners. Rates to be charged by the department of forestry as costs for specific materials and services on private property, or for the abatement of nuisances on private property, all as more particularly defined in § 19-0201 of this chapter, shall be established by resolution of the board of city commissioners upon recommendation of the city forester.

Source: 1965 Rev. Ord. 19-0104, 1597 (1974), 1642 (1975).

ARTICLE 19-02

TREES AND SHRUBBERY--PERMITS FOR PLANTING AND REGULATIONS--PUBLIC NUISANCE AND ABATEMENT THEREOF

Section

19-0201 Trees and shrubs--Public nuisance--Abatement.
19-0202 Duty to prune trees.
19-0203 Permit required before planting, pruning or removing trees on public property or public right-of-way or installing any utility--Application.
19-0204 Size and specie requirement of trees--Other restrictions.
19-0205 Topping and Other Inappropriate Pruning Methods.
19-0206 Construction activity on city boulevards or other public property.
19-0206.1 Exemptions.
19-0207 Permit required to inject, treat, remove, destroy, cut, deface, prune, or interfere with trees and shrubs.
19-0208 Damage.

19-0201. Trees and shrubs--Public nuisance--Abatement.--

A. Nuisance declared--The following conditions shall be declared to be public nuisances whenever found to exist within the city of Fargo and shall be abated as provided herein:

1. Any living or standing tree or part thereof located upon public or private property infected to any degree with any disease, fungus, or insect which is, in the judgment of the city forester, harmful to said tree or other trees on public and/or private property.
2. Any dead tree or part thereof, including logs, branches, stumps, firewood or any portion of any diseased or pest infested tree which has not been disposed of in accordance with the regulations of the department of forestry of the city of Fargo.
3. Any tree, shrub or hedge, or part thereof, growing upon public property or upon private property but overhanging or interfering with the use of

any public walk, street or highway, park or public place within the city of Fargo which, in the opinion of the city forester, endangers the life, health, safety or property of the public shall be declared to be a public nuisance.

B. Maintaining nuisances unlawful--It shall be unlawful for any person to willfully permit any public nuisances as defined in subsection (A) hereof to remain on any premises owned or controlled by said person within the city of Fargo. Such nuisances may be abated in the manner prescribed in this article.

C. Inspection and investigation--

1. The city forester, designated employees or agents, shall inspect all premises and places within the city as often as practicable to determine whether any condition described in subsection (A) hereof exists therein, it being intended that a major survey shall be made at least once each year.

2. The city forester, designated employees or agents, may enter upon private premises at any reasonable time for the purpose of carrying out any of the duties assigned to them under this chapter.

3. The city forester shall, when he/she has reasonable cause to believe that a tree or wood is diseased or that harmful insect(s) are present, immediately procure a field sample of the diseased tree or wood. If, based on the field sample, confirmation cannot be determined, appropriate specimens or samples shall be submitted to a qualified plant diagnostician for diagnosis. No action to remove such trees or wood shall be taken until confirmation of the disease or insect has been made.

4. Within forty eight (48) hours of receipt of the confirmation, the owner of the property from which the specimen or sample was obtained shall be notified by the city forester of the result by registered mail.

5. The inspection shall determine all hazards as specified in subsection (A)(3) hereof. Written notice of the nuisance shall be mailed to the last known address of the owner, and shall contain a description of the nuisance and an order to remove or treat the tree, shrub, hedge or wood creating the nuisance within seven (7) days of the date of the notification. If the tree, shrub, hedge or wood creating the nuisance is not removed or treated as specified within seven (7) days of the date of the notification the city forester shall remove or treat the tree, shrub, hedge or wood creating the nuisance and the necessary costs and expenses thereof shall be chargeable to and assessed against, and shall be a lien upon the property upon which the nuisance is found.

D. Abatement of nuisance on public property--

1. In abating the nuisance on public streets, alleys, boulevards or public ways as defined in subsections (A)(1) and (A)(2) hereof, the city forester shall cause the infected tree or wood to be removed or otherwise effectively treated so as to destroy and prevent as fully as possible any tree disease, fungus or harmful insect. Such abatement procedures shall be carried out in accordance with the latest technical and expert methods

and plans as may be designated by the commissioner of agriculture of the state of North Dakota. The city forester shall establish specifications for tree removal and disposal methods consistent therewith.

2. In abating tree hazards on public property as defined in subsection (A)(3) hereof, the city forester shall cause such hazards to be removed and disposed of in accordance with tree care regulations of the forestry department, the cost of which shall be borne by the city.

E. Abatement of nuisance on private property--

1. Whenever the city forester finds with reasonable certainty that any tree disease, fungus or harmful insect exists in any tree or wood located on private property, outside of any public way in the city, he shall notify the owner or person in control of such property on which the nuisance is found by registered or certified mail within forty eight (48) hours of receipt of the diagnosis. The city forester shall order that the tree be removed or effectively treated in a manner approved by the city forester within seven (7) days after receipt of such notice. If such owner cannot be found, a copy of said notice shall be posted upon said infected tree. If said tree is not so removed and/or treated as specified within seven (7) days after receipt of such notice or within seven (7) days after posting of the notice if the owner cannot be found, the city forester shall remove and/or treat said tree, and the necessary costs and expenses thereof shall be chargeable to and assessed against, and shall be a lien upon the property upon which the nuisance is found. The owner or person in charge also may be charged with a violation of this ordinance for maintaining a nuisance.

2. The procedure for the abatement of tree hazards on private property shall be as follows:

   The nuisance as defined in subsection (A)(3) hereof shall be abated by the owner following notification of the existing nuisance. If not corrected or removed within the time allotted, the city forester shall authorize the removal or correction to be done in accordance with recommended procedures of the office of the city forester, the property owner to bear the cost thereof as provided by subsection E.1.

F. Spraying--

1. Whenever the city forester shall determine that any tree or part thereof is infected with any tree disease, fungus or harmful insect, and is in a weakened condition, he/she may cause all such trees within a 1,000-foot radius thereof to be treated with an effective concentrate as may be recommended by the state entomologist.

2. In order to facilitate the work and minimize the inconvenience to the public of any treating operations conducted under this article, the city forester shall cause to be given advance public notice of such operations by newspaper, radio, television, public service announcements or other effective means and shall also cause the posting of appropriate warning notices in the areas and along the streets where trees are to be treated at least 24 hours in advance.

3. When appropriate warning notices have been given and posted in accordance with subsection (2) hereof, the city shall not allow any claim for damages to any vehicle or other property resulting from such treating operations.

4. When trees on private property are to be treated, the city forester shall notify the owner of such property and proceed in accordance with the requirements of this article.

G. Transporting or keeping wood prohibited--It shall be unlawful for any person to transport or keep within the city any diseased or insect infested wood without having obtained a permit therefor from the city forester. The city forester shall grant such permits only when the purpose of this article shall be served thereby and may impose such restrictions as deemed necessary. The transportation or storage of any wood determined by the city forester to be a nuisance is prohibited; except when transporting such wood for destruction purposes. The process employed to abate the nuisance shall follow forestry department policy and procedures.

H. Interference prohibited--It shall be unlawful for any person, firm or corporation to prevent, delay or interfere with the city forester, its designated employees, or agents while they are engaged in the performance of the duties imposed by this article.

I. Costs--The costs for abating of the public nuisances as defined in subsection (A) shall be borne as follows:

1. For abatement under subsection (A)(1), where the nuisance occurs on public land, the cost will be borne by the owner of the property upon which the nuisance is located.

   For abatement under subsection (A)(1), where the nuisance occurs on private land, the cost shall be borne by the private owner.

2. For abatement under subsection (A)(2), the costs shall be borne as defined in subsection (1) above.

3. For abatement under subsection (A)(3), where the nuisance occurs on public or private land, the cost will be borne by the owner of the property upon which the nuisance is located.

4. The cost of spraying for abatement of nuisances as defined in subsections (A)(1) and (A)(2) shall be borne by the office of the city forester when such nuisances are on public property, park district lands and Fargo school board lands, and shall be borne by the private owner when spraying is required on private land.

5. The cost of tree planting for replacement of diseased trees on public property will be borne by the office of the city forester, and on private property will be borne by the owner thereof.

   The cost of tree planting for replacement of diseased trees on any street, alley, boulevard or other public way will be borne by the office of the city forester.

Source: 1965 Rev. Ord. 19-0201, 1642 (1975), 2511 (1990), 4737 (2010).

19-0202. Duty to prune trees.--It shall be the duty of all property owners to keep trees, shrubs and other vegetation which are located on private property and adjoin public property or public rights-of-way pruned so as to avoid interference with travel on streets, avenues, alleys, and sidewalks.

Source: 1965 Rev. Ord. 19-0202, 1642 (1975), 4737 (2010).

19-0203. Permit required before planting, pruning or removing trees on public property or public rights-of-way or installing any utility--Application.--No person, firm or corporation shall hereafter plant, cause to be planted, remove, destroy, cut, deface, prune, or interfere with any tree or shrub within the limits of any street, alley, boulevard or other public way of the city, nor shall any person, firm or corporation install, repair or replace any utility installations of any type on any public right-of-way, or within the CRZ as defined by Section 19-0305, without first having obtained a written permit from the city forester; provided, however, that in the event of emergency repair, the necessity of first obtaining a written permit is hereby waived and such permit may be obtained after the repair work has been accomplished. Application for such permit shall be in writing on forms which shall be provided by the city forester. After the receipt of such application, the city forester shall investigate the location named in such application and shall grant a permit for planting of trees or shrubs only if the location is such as to allow the normal growth and development of such trees or shrubs and shall grant permits for pruning or removing only if such is consistent with the public safety and welfare. The permit shall be in writing and shall specify the location and variety of trees and the year issued, and no charge shall be made for such permit. In making application for such permit, all public utilities, persons, firms or corporations shall submit to the city forester the names of all tree care personnel used by them to assure that said personnel have been certified by the office of the city forester.

Source: 1965 Rev. Ord. 19-0203, 1642 (1975), 4737 (2010), 5395 (2023).

19-0204. Size and Specie requirement of trees--Other restrictions.--No tree measuring less than five feet in height shall be planted or located on any street, alley, boulevard or other public way of the city. Forestry department policy, specifications, the Land Development Code or conditions placed upon the property may require the planting of larger trees. In issuing permits for planting or location of trees or shrubs the city forester may, in the furtherance of uniformity, convenience and public safety, designate the variety, the location and the method of planting such tree or shrub, and may prohibit the planting of trees or shrubs which are carriers of or transmitters of plant disease. In the issuance of such permit for the location or planting of any tree or shrub upon the streets, alleys, boulevards or other public ways of the city, the city forester shall be guided by the necessity of preserving an unrestricted view at intersections for the safe and convenient passage of traffic on any street, alley and other public way.

Source: 1965 Rev. Ord. 19-0204, 1642 (1975), 4737 (2010).

19-0205. Topping and other inappropriate pruning methods.--It shall be unlawful for any firm or city department to top any tree. Topping is defined as the severe cutting back of branches within the tree's crown to such a degree so as to remove the normal canopy and disfigure the tree. This subsection shall not apply to trees severely damaged by storms or other causes, or certain trees under utility wires or other obstructions where other pruning practices are impractical.

Source: 4737 (2010).

19-0206. Construction activity on public property or city boulevards.--Trenching operations or other construction activities on boulevards, or within the CRZ as defined by Section 19-0305, shall not be permitted without first obtaining a permit from the city forester. Application for such permit shall be in writing on forms which shall be provided by the city forester and shall specify the location and the type of installation and construction activity. Any installation and construction activity shall be accomplished in accordance with regulations of the office of the city forester, which regulations shall be clearly specified on the permit issued by the city forester.

Source: 1965 Rev. Ord. 19-0205, 1642 (1975), 4737 (2010), 5395 (2023).

19-0206.1. Exemptions.--

1. Employees of the street department of the city of Fargo, while engaged in work directed by the city, shall be exempt from permit and license requirements.

2. Contractors performing work under a written contract with any governmental unit or public utility company authorized to operate within the corporate limits of the city shall be exempt from permit requirements.

Source: 5395 (2023).

19-0207. Permit required to inject, treat, remove, destroy, cut, deface, prune, or interfere with trees and shrubs.--No person, firm, or corporation shall inject, treat, remove, destroy, cut, deface, prune, or in any way injure or interfere with any tree, shrub, or other vegetable growth located upon any street, alley, boulevard, or other public way of the city without first obtaining a written permit from the city forester.

Source: 1952 Rev. Ord. 19-0206, 4737 (2010).

19-0208. Damage.--Permittee shall be responsible for any damage caused to existing public trees. Damage includes more than 25% of the canopy impacted, any damage to the main stem, or work within the CRZ as defined by Section 19-0305. The city forester shall determine the appropriate remedy, including repair or removal of the impacted property. In the event removal is required, the permittee shall be responsible for the appraised value, as defined in section 19-0305.

Source: 5395 (2023).

ARTICLE 19-03

TREES AND SHRUBBERY--MISCELLANEOUS PROVISIONS

Section

19-0301 Nonliability of city for removal of trees or shrubs.
19-0302 Qualifications.
19-0303 Permission necessary to travel on lawns and boulevards.
19-0304 Violations.
19-0305 Definitions.
19-0306 Removals.
19-0307 City forester decisions--Review and Appeal.

19-0301. Nonliability of city for removal of trees or shrubs.--The city shall not be liable to any property owner or other individual, firm or corporation for damages or costs for the removal or destruction of any tree, shrub or other vegetable growth located on any street, avenue, alley, boulevard or other public way.

Source: 1965 Rev. Ord. 19-0401, 1642 (1975), 2511 (1990).

19-0302. Qualifications.--All personnel involved in the care and maintenance of trees in the city of Fargo, whether employed by the office of the city forester or otherwise, must show a degree of proficiency consistent with the latest version of the American National Standards Institute A300 Standard for tree care operations and the American National Standards Institute Z133.1 Standard for safety requirements, must be in possession of all necessary and current licensing requirements, and must receive authorization from the city forester before practicing any tree related services; provided, however, that for tree care and maintenance crews, only the job supervisor shall be required to be authorized by the city forester and said job supervisor shall be responsible for any violations of this ordinance by any personnel under his direction and control. A license shall be obtained from the City Auditor. The license fee, bond amount, insurance requirements, and other license requirements shall be established by Resolution of the board of city commissioners.

Source: 1965 Rev. Ord. 19-0402, 1642 (1975), 2511 (1990), 4737 (2010), 5395 (2023).

19-0303. Permission necessary to travel on lawns and boulevards.--No person shall go upon, cross, or otherwise travel upon the grass or turf of any land or lot abutting on a public street within the city where the same is used for lawn or park purposes, without permission from the owner or person in charge thereof.

Source: 1952 Rev. Ord. 19-0403, 2511 (1990).

19-0304. Violations.--The violation of any provision of Chapter 19 is an infraction, punishable in accordance with sections 1-0301 and 1-0305 of the Fargo Municipal Code. Each day the violation exists shall be deemed to be a separate infraction.

Source: 4737 (2010).

19-0305. Definitions.--

1. "Appraised Value" shall mean the value determined utilizing a formula in conformity with the latest edition of the Guide for Plant Appraisal authored by the Council of Tree and Landscape Appraisers. This method is used to appraise the monetary value of trees too large to be replaced with nursery or field grown stock. Determination of the value is based on the cost of the largest commonly available transplantable tree and its cost of installation, plus the difference in value of the mature tree.

2. "CRZ (Critical Root Zone)" shall mean the area equal to 1 foot from the trunk for every 1 inch in diameter of a public tree measured at 4.5 feet above ground line.

Source: 5395 (2023).

19-0306. Removals.--Any person, firm or corporation removing a public tree shall be responsible for payment of the appraised value as defined in section 19-0305.

Source: 5395 (2023).

19-0307. City forester decisions--Review and Appeal.--The city forester shall set forth in writing the reasons for any permit denial and shall deliver to the permit applicant notice of

such denial. Said delivery shall be deemed complete three (3) days after deposit of such notice in the United States Postal Service to the address stated on the permit application. Application denial may be appealed to the board of city commissioners in writing to the city forester within ten (10) days. The city forester shall provide written notice to the applicant of the date, time and place for a public hearing before the board of city commissioners, not less than fifteen (15) days from date of receipt of the notice of appeal.

Source: 5395 (2023).

CHAPTER 20

LAND DEVELOPMENT CODE

Article:

20-01	General Provisions, §§ 20-0101--20-0110.
20-02	Base Zoning Districts, §§ 20-0201--20-0216.
20-03	Overlay and Special Purpose Districts, §§ 20-0301--20-0306.
20-04	Use Regulations, §§ 20-0401--20-0404.
20-05	Dimensional Standards, §§ 20-0501--20-0508.
20-06	Subdivision Design and Improvements, §§ 20-0601--20-0612.
20-07	General Development Standards, §§ 20-0701--20-0706.
20-08	Review and Decision-Making Bodies, §§ 20-0801--20-0805.
20-09	Development Review Procedures, §§ 20-0901--20-0916.
20-10	Nonconformities, §§ 20-1001--20-1005.
20-11	Violations and Enforcement, §§ 20-1101--20-1105.
20-12	Definitions, §§ 20-1201--20-1203.
[20-13]	Fargo Sign Code, §§ 20-1301--20-1311.

ARTICLE 20-01

GENERAL PROVISIONS

§20-0101 Title

This chapter shall officially be known as the "Land Development Code of the City of Fargo, North Dakota," and cited as Chapter 20 of the Fargo Municipal Code. It is hereinafter referred to as the "Land Development Code" or "LDC."

§20-0102 Authority

This Land Development Code is adopted pursuant to the authority granted by Chapters 40-47, 40-48 and 40-50 of the North Dakota Century Code.

§20-0103 Applicability and Jurisdiction

The regulations of this Land Development Code apply to all land within the corporate limits of the City of Fargo and to land within the Extraterritorial Jurisdiction of the City.

§20-0104 Purpose and Intent

This Land Development Code is intended to implement Fargo's Comprehensive Plan and related policies in a manner that protects the health, safety, and general welfare of the citizens of Fargo.

§20-0105 Minimum Requirements

The provisions of this Land Development Code are to be interpreted as the minimum requirements necessary to advance the Land Development Code's stated purposes. No building or structure may be erected, converted, enlarged, reconstructed or altered and no land use may occur except in accordance with all of the regulations established by this Land Development Code for the zoning district in which the building, structure or land use is located.

§20-0106 Conflicting Provisions

A. Conflict with State or Federal Regulations

If the provisions of this Land Development Code are inconsistent with those of the state or federal government, the more restrictive provision will control, to the extent permitted by law.

B. Conflict with Other City Regulations

If the provisions of this Land Development Code are inconsistent with one another, or if they conflict with provisions found in other adopted ordinances or regulations of the City, the more restrictive provision will control.

C. Conflict with Private Restrictions

It is not the intent of this Land Development Code to interfere with, abrogate or annul any easement, covenant, deed restriction or other agreement between private parties. If the provisions of this Land Development Code impose a greater restriction than imposed by a private agreement, the provisions of this Land Development Code will control. If the provisions of a valid, enforceable private agreement impose a greater restriction than this Land Development Code, the provisions of the private agreement will control. The City does not enforce private agreements or maintain a record of such agreements.

§20-0107 Zoning Map

The boundaries of the zoning districts established by this Land Development Code are shown on a map or series of maps designated the "Zoning District Map," which is adopted and made a part of this Land Development Code as fully as if it were set out in this Chapter in detail. Original copies of the zoning district map are maintained in the office of the Zoning Administrator. In case of any dispute regarding the zoning classification of property subject to this Land Development Code, the original maps maintained by the Zoning Administrator will control. The Zoning Administrator shall be responsible for producing all updates of the zoning map.

A. Omitted Land

The zoning classification of any land that does not appear to be classified within any of the districts shown on the zoning map shall be AG.

B. District Boundaries

The following rules will govern interpretations regarding the location of zoning district boundaries shown on the zoning map.

1. Streets, Waterways and Railroads

Zoning district boundaries follow the centerlines of streets, alleys, waterways, railroad rights-of-way and other similar features, unless otherwise clearly indicated. When a boundary line shown on the zoning map appears to coincide with a street, alley, waterway or railroad right-of-way, the centerline of that street, alley, waterway or railroad right-of-way will be construed to be the zoning district boundary line.

2. Street Vacations

Whenever any street, alley or public way is vacated by official action of the Board of City Commissioners, the zoning districts adjoining each side of such street, alley, or public way will be automatically extended to the center of such vacation and all area included in the vacation will be subject to all regulations of the extended district.

3. Lot Lines

A zoning district boundary shown as approximately following the boundary line of a lot or separate parcel of land will be construed to be the boundary of the lot or parcel of land. If a lot line cannot be used to determine the boundary, its location will be determined by use of the scale shown on the zoning map.

4. Uncertainties

Where actual on-the-ground conditions contradict those shown on the zoning map, or in cases of any other uncertainties regarding, the location of zoning district boundaries will be determined by the Zoning Administrator.

§20-0108 Zoning of Extra-Territorial Areas

When the City Commission elects to exercise its zoning authority within its Extra-Territorial Zoning Jurisdiction, it shall have the following three options:

To classify such land in the AG zoning district;

To classify such land in a zoning district that reflects the existing use of the property; or

To classify such land in any other zoning district included in this Land Development Code, in accordance with the procedures of Sec. 20-0906.

§20-0109 Transitional Provisions

A. Violations Continue

Any violation of the previous zoning or subdivision regulations of the City will continue to be a violation under this Land Development Code and be subject to penalties and enforcement under Article 20-011, unless the use, development, construction or other activity complies with the provisions of this Land Development Code.

B. Nonconformities Under Previous Code

Any nonconformity under the previous zoning regulations of the City will also be a legal nonconformity under this Land Development Code, as long as the situation that resulted in the nonconforming status under the previous regulation continues to exist. If, however, a nonconforming situation under a previous regulation becomes conforming because of the adoption of this Land Development Code, or any subsequent amendment to it, then the situation will no longer be a nonconformity.

C. Completion of Development

1. Permit Issued Before February 17, 1998

Any building or development for which a permit was issued before February 17, 1998, may be completed in conformance with the issued permit and other applicable permits and conditions, even if such building or development does not fully comply with provisions of this Land Development Code. If construction is not commenced or completed according to the applicable permit terms, the Board of City Commissioners may, for good cause shown, grant an extension of up to 6 months for such construction. If the building is not completed within the time allowed under the original permit or any extension granted, then the building may be constructed, completed or occupied only in compliance with this Land Development Code.

2. Subdivision Plats Approved Before February 17, 1998

Any subdivision for which a preliminary or final plat was approved before February 17, 1998, may be completed according to the approved plat and other applicable permits and conditions, even if the subdivision does not fully comply with the provisions of this Land Development Code. If the subdivision is not completed within the time requirements established by prior code or within any schedule included in the approval of the plat, the Board of City Commissioners may grant one extension of time for the completion of the subdivision. If the subdivision is not completed within the time required under the original approval or any extension granted, then the subdivision may be completed only in compliance with this Land Development Code.

D. Zoning District Conversions

The zoning district names in effect before February 17, 1998, are converted as follows:

District Under This Land Development Code	Previous Zoning District
Base Zoning Districts	
AG, Agricultural	A, Agricultural
SR-0, Single-Dwelling	No Equivalent
SR-1, Single-Dwelling	No Equivalent
SR-2, Single-Dwelling	R-1A, One-Family Dwelling
SR-3, Single-Dwelling	R-1, One- and Two-Family Dwelling
SR-4, Single-Dwelling	R-2A, Rowhouse
MR-1, Multi-Dwelling	No Existing Equivalent
MR-2, Multi-Dwelling	R-2, Limited Multiple-Dwelling
MR-3, Multi-Dwelling	R-3, Multiple-Dwelling
No Equivalent District	R-5, Manufactured Home Dwelling
MHP, Mobile Home Park	R-4, Mobile Home Park
NO, Neighborhood Office	No Existing Equivalent
NC, Neighborhood Commercial	No Existing Equivalent
GO, General Office	No Existing Equivalent
LC, Limited Commercial	C-1, Local Commercial C-1A, Limited Local Commercial
DMU, Downtown Mixed-Use	No Existing Equivalent
GC, General Commercial	C-2, General Commercial C-2A, Limited General Commercial C-2B, General Wholesale
LI, Limited Industrial	M-1, Light Industrial M-1A, Industrial Park
GI, General Industrial	M-2, Heavy Industrial
Overlay and Special Purpose Zoning Districts	
PUD, Planned Unit Development	No Equivalent District (standards only)
C-O, Conditional Overlay	No Existing Equivalent
P/I, Public and Institutional	No Existing Equivalent
HIA-O, Hector International Airport Overlay	No Equivalent District (standards only)

Source: 3062 (1999).

§20-0110 Severability

If any Court of competent jurisdiction declares any part of this Land Development Code to be invalid, that ruling will not affect any other provisions of this Land Development Code not expressly included in the ruling.

ARTICLE 20-02

BASE ZONING DISTRICTS

§20-0201 General

A. Districts Established

The following base zoning districts are hereby established:

1. **AG, Agricultural**
2. **SR-0, Single-Dwelling Residential**
3. **SR-1, Single Dwelling Residential**
4. **SR-2, Single-Dwelling Residential**
5. **SR-3, Single-Dwelling Residential**
6. **SR-4, Single-Dwelling Residential**
7. **SR-5, Single-Dwelling Residential**
8. **MR-1, Multi-Dwelling Residential**
9. **MR-2, Multi-Dwelling Residential**
10. **MR-3, Multi-Dwelling Residential**
11. **UMU, University Mixed-Use**
12. **MHP, Mobile Home Park**
13. **NO, Neighborhood Office**
14. **NC, Neighborhood Commercial**
15. **GO, General Office**
16. **LC, Limited Commercial**
17. **DMU, Downtown Mixed-Use**
18. **GC, General Commercial**
19. **LI, Limited Industrial**
20. **GI, General Industrial**

B. Zoning District Hierarchy

References in this Land Development Code to less restrictive or more restrictive zoning districts refer to the base zoning districts established by Sec. 20-0201-A and represent a progression from the AG district, the most restrictive base zoning district, to the GI district, the least restrictive base zoning district. Overlay and Special Purpose zoning districts are not included in the zoning district hierarchy.

Source: 3062 (1999), 4695 (2009).

§20-0202 AG, Agricultural District

A. Description

The AG, Agricultural district is intended to accommodate agricultural land uses and provide an interim zoning classification for lands pending a determination of an appropriate permanent zoning designation.

B. Allowed Uses

Uses are allowed in the AG district in accordance with the Use Table of Sec. 20-0401.

C. Additional Uses

Wind generation structures are allowed as a use by right in AG zoning district subject to the following standards:

1. Lot size

The minimum lot size is 10 acres.

2. Height

Wind generation structures shall have a maximum height 90 feet as measured from ground level, at the base of the structure, to the highest vertical extension. Taller structures are allowed with an approved conditional use permit in accordance with Section 20-0909.

3. Seback

Wind generation structures shall have a minimum setback from all property lines of two times the height of the structure.

4. Density

One wind generation structure is allowed for every 10 acres of land.

D. Dimensional Standards

Development within the AG district is subject to the dimensional standards of Article 20-05.

Source: 4762 (2010).

§20-0203 SR, Single-Dwelling Districts

A. Description

SR, Single-Dwelling zoning districts (SR-0, SR-1, SR-2, SR-3, SR-4, and SR-5) are intended to preserve land for housing and to provide housing opportunities for individual households. The regulations are intended to create, maintain and promote single-dwelling neighborhoods. The Single-Dwelling districts allow some other types of uses but not to the extent of sacrificing the overall image and character of Single-Dwelling neighborhoods. The regulations accommodate a variety of single-dwelling housing styles and residential densities. The dimensional standards allow for flexibility of development while maintaining compatibility within the City's various neighborhoods. In addition, the regulations provide certainty to property owners, developers, and neighbors about the limits of what is allowed.

SR-0 zoning districts are intended to create, maintain and promote larger estate-style neighborhoods which may have sufficient lot sizes to allow, as an accessory use the keeping of horses (or, by conditional use, other animals). Where lot sizes are such that the keeping of horses or other animals may be permitted as an accessory use, approval of such zoning map amendment shall only be considered when the proposed district is a minimum of twenty (20) acres and when there are permanent arrangements in place where such horses may be lawfully ridden or used such as nearby public lands (parks or publicly dedicated lands) or common areas set aside within the district.

B. Allowed Uses

Uses are allowed in Single-Dwelling districts in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within Single Dwelling zoning districts is subject to the dimensional standards of Article 20-05.

Source: 3062 (1999).

§20-0204 MR-1, Multi-Dwelling District

A. Description

The MR-1, Multi-Dwelling district is primarily intended to accommodate household living in detached houses, attached houses, duplexes and small multi-dwelling structures. The district allows up to 16 dwelling units per acre of land. Development within the district will be characterized by one- and two-story buildings with relatively low building coverage. The district is generally appropriate for sites with access to collector and higher classification streets.

B. Allowed Uses

Uses are allowed in the MR-1 district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development in the MR-1 district is subject to the dimensional standards of Article 20-05 and the Residential Protection Standards of Sec. 20-0704.

§20-0205 MR-2, Multi-Dwelling District

A. Description

The MR-2, Multi-Dwelling district is primarily intended to accommodate household living in detached houses, attached houses, duplexes and multi-dwelling structures. The district allows up to 20 dwelling units per acre of land. Development within the district will be characterized by one- to three-story buildings with slightly higher building coverage than in the MR-1 district. The district is generally appropriate for sites with access to collector and higher classification streets.

B. Allowed Uses

Uses are allowed in the MR-2 district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the MR-2 district is subject to the dimensional standards of Article 20-05.

§20-0206 MR-3, Multi-Dwelling District

A. Description

The MR-3, Multi-Dwelling district is primarily intended to accommodate household living in detached houses, attached houses, duplexes and multi-dwelling structures. The district allows up to 24 dwelling units per acre of land. Development within the district will be characterized by one- to five-story buildings with higher building coverage than in the MR-2 district. The district is generally appropriate for sites with access to collector and higher classification streets, particularly when located near arterial streets.

B. Allowed Uses

Uses are allowed in the MR-3 district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the MR-3 district is subject to the dimensional standards of Article 20-05.

§20-0207 MHP, Mobile Home Park District

A. Description

The MHP, Mobile Home Park district is intended to accommodate mobile home park developments.

B. Allowed Uses

Uses are allowed in the MHP district in accordance with the Use Table of Sec. 20-0401.

C. Development Standards

1. Site Area

A mobile home park must have a minimum site area of 8 acres.

2. Number of Spaces

A mobile home park must have at least 50 mobile home spaces, with 25 spaces ready for occupancy before the first space may be occupied.

3. Minimum Space Size

Each mobile home space within the park must have a minimum area of 4,800 square feet, with a minimum width of 40 feet. A maximum of one mobile home dwelling may be placed on a mobile home space.

4. Building Coverage

No more than 35 percent of a mobile home space may be covered by structures.

5. Setbacks

Mobile homes must be set back at least 20 feet from all streets and accessways within the mobile home park and from all other mobile homes.

6. Streets

Each mobile home space must abut and have access to a paved street or other accessway, with a minimum width of 26 feet. Pavement must be constructed in accordance with the specifications of the City Engineer.

7. Drainage

All drainage structures must be designed and installed in accordance with the Subdivision Design and Improvement Standards of Article 20-06 and all other applicable drainage standards of the City.

8. Electrical Service

All mobile home parks or subdivisions must be provided with underground electrical service facilities. No overhead facilities are allowed.

9. Telephone Service

All mobile home parks or subdivisions must be provided with underground telephone service facilities. No overhead distribution systems are allowed.

10. Fuel Distribution

Fuel shall be distributed to mobile home units by an underground piping system. If not available, cooking gas cylinders are allowed up to the 100-pound class. No outside fuel storage tanks will be permitted except for such storage units as are required for the operation of the distribution system.

§20-0208 NO, Neighborhood Office District

A. Description

The NO, Neighborhood Office district is primarily intended to accommodate very low-intensity office uses on small sites in or near residential areas or between residential and commercial areas. The district regulations are intended to ensure that allowed uses do not adversely affect nearby neighborhoods. Development is intended to be of a scale and character similar to nearby residential areas in order to ensure compatibility.

B. Uses

Uses are allowed in the NO district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the NO district is subject to the dimensional standards of Article 20-05.

D. Additional Standards

1. District and Structure Size

The maximum size of an NO district is 43,560 square feet (one acre).

2. Structure Type

Offices in the NO district are allowed only in structures that were formerly used as residences or that have the general scale and appearance of residential structures.

3. Building Materials

Buildings in an NO district shall have a finished appearance and architectural treatment consistent with the style of the surrounding residential development and buildings. Furthermore, all buildings shall be compatible with the scale of nearby residential areas.

4. Signs

Signs in the NO shall be limited to a maximum one (1) square foot of total aggregate sign area per 100 square feet of building coverage. All signage other than wall signs shall be limited to four feet above ground level.

5. Dimensional Standards

The dimensional standards of the adjacent zoning district (See Article 20-05) shall apply to all areas of the NO zoned site located within 150 feet of the adjacent district. Areas of the NO zoned area located more than 150 feet from adjacent zoning districts shall be governed by the approved Site Plan as required under 20-0910.

Source: 4039 (2000).

§20-0209 NC, Neighborhood Commercial District

A. Description

The NC, Neighborhood Commercial district is primarily intended to accommodate small retail sales and service uses on small sites in or near residential neighborhoods. Uses are restricted in size to promote a local orientation and to limit adverse impacts on nearby residential areas. Development is intended to be compatible with the scale of nearby residential areas.

B. Uses

Uses are allowed in the NC district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the NC district is subject to the dimensional standards of Article 20-05.

D. Additional Standards

1. Outdoor Storage and Display

No outdoor storage or display of goods or merchandise is allowed within the NC district.

2. Location and Access

Development within the NC district must have frontage on at least two streets.

3. District and Structure Size

The maximum size of an NC district is 87,120 square feet (two acres).

4. Drive-Through Uses

Drive-up windows and drive-through uses shall be prohibited in the NC district.

5. Building Materials

Buildings in an NC district shall have a finished appearance and architectural treatment consistent with the style of the surrounding residential development and buildings. Furthermore, all buildings shall be compatible with the scale of nearby residential areas.

6. Signs

Signs in the NC shall be limited to a maximum one (1) square foot of total aggregate sign area per 100 square feet of building coverage. All signage other than wall signs shall be limited in height to four (4) feet above ground level.

7. Dimensional Standards

The dimensional standards of the adjacent zoning district (See Article 20-05) shall apply to all areas of the NC zoned site located within 150 feet of the adjacent district. Areas of the NC zoned district located more than 150 feet from the more restrictive adjacent zoning districts shall be governed by the approved Site Plan as required under 20-0910.

Source: 4039 (2000).

§20-0210 GO, General Office District

A. Description

The GO, General Office district is primarily intended to accommodate office development. The GO district regulations help to prevent the appearance of strip commercial development by allowing office uses but not other commercial uses.

B. Uses

Uses are allowed in the GO district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the GO district is subject to the dimensional standards of Article 20-05.

§20-0211 LC, Limited Commercial District

A. Description

The LC, Limited Commercial district is primarily intended to accommodate low-intensity office and retail sales and service uses.

B. Uses

Uses are allowed in the LC district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the LC district is subject to the dimensional standards of Article 20-05.

§20-0212 DMU, Downtown Mixed-Use District

A. Description

The DMU, Downtown Mixed-Use district is intended to preserve and enhance the City's downtown area. The district allows a broad range of uses in order to enhance downtown Fargo's role as a commercial, cultural, governmental and residential center. In recognition of existing public facility capacity and downtown planning goals, very intensive development is allowed, with high building coverage, large buildings, and buildings placed close together. Development is intended to be pedestrian-oriented with a strong emphasis on a safe and attractive streetscape.

B. Uses

Uses are allowed in the DMU district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the DMU district is subject to the dimensional standards of Article 20-05.

D. Design Standards

1. General

a. Intent

The DMU Design Standards are intended to create and maintain a general visual quality and appearance that will be appealing to people who work in the DMU district and to those who come to the downtown area for goods, services, entertainment or leisure. The regulations are also intended to stimulate and protect investment in the DMU district through the establishment of high standards with respect to materials, details, and appearance.

b. Applicability

The DMU Design Standards of this subsection apply throughout the DMU district, unless otherwise expressly stated.

c. Review Procedure

Review for compliance with the Design Standards of this subsection shall be carried out in accordance with the Site Plan Review Procedures of Sec. 20-0910.

2. Demolition

The standards of this subsection apply in the event of building demolition.

a. Exposed Walls

Any building walls left exposed as a result of demolition shall be given a finished architectural appearance that is similar to the front facade of the subject building. At the applicant's option, a false infill facade may be used as an alternative to refinishing the exposed wall. The wall treatment shall be in place within 60 days of the date of demolition, unless a longer time period is approved at the time of approval of the demolition plans. Prior to approval of the demolition plans the applicant shall provide a letter of credit, a paid-in-full receipt from a contractor, a performance

bond or escrow deposit adequate to ensure that the proposed wall treatment will be completed. The amount of the financial guarantee must be equal to at least 100 percent of the estimated total cost (labor and materials). The City shall be authorized to use such financial guarantee to complete the work if the required wall treatment is not in place by the date stated on the approved performance guarantee form.

b. Vacant Lots

Any lots left vacant after demolition shall be paved or landscaped to ensure a dust-free surface. The paving or landscaping shall be in place within 30 days of the date of demolition, unless a longer time period is approved at the time of approval of the demolition plans. Once installed, the landscaping or paving shall be continuously maintained in serviceable condition. Prior to approval of the demolition plans the applicant shall provide a letter of credit, a paid-in-full receipt from a contractor, a performance bond or escrow deposit adequate to ensure that the proposed landscaping or paving will be completed. The amount of the financial guarantee must be equal to at least 100 percent of the estimated total cost (labor and materials). The City shall be authorized to use such financial guarantee to complete the work if the required paving or landscaping is not in place by the date stated on the approved performance guarantee form. Landscaping or paving required by this subsection must be maintained in serviceable condition.

c. Maintenance

Any lots left vacant after demolition shall be continuously maintained and kept free of debris and litter.

d. Screening

A fence, wall or landscape buffer shall be provided to partially screen vacant lots from view of adjacent property, including sidewalks and public rights-of-way. The required screen shall have a minimum height of 2 ½ feet and a maximum height of 3 feet. Screens may exceed 3 feet in height if they are at least 50 percent transparent.

e. Lighting

Vacant lots resulting from demolition shall be illuminated to sidewalk lighting standards.

3. Building Siting and Design

The standards of this subsection apply to all development.

a. Front Setback

No front setback shall be required unless buildings immediately adjacent to the subject site are set back, in which case a setback equal to the average setback of the adjacent buildings shall be required. In no case shall setbacks of greater than 10 feet be required.

b. Materials

(1) Required

All walls that front a public street shall be finished with architectural materials such as brick, glass, stone, ceramic, stucco, precast panels, exterior insulation finish systems (e.g. dryvit), or curtain walls. When the DMU development is detached/attached single family or small scale multi-dwelling in nature, typical residential structure exterior materials may be accepted (e.g. residential grade vinyl siding, composite brick, residential grade steel siding).

(2) Prohibited

The following materials shall not be used on walls that are visible from the street: metal panels; non-residential grade metal siding; non-residential grade wood-based materials; asphalt; concrete blocks or cinder blocks; provided, that use of architectural metal panels and metal panels for enclosure of mechanical equipment shall be permitted, and use of wood-based materials for architectural treatment shall be permitted. Concrete block may be used only if it is burnished, standing flute or sculptured. Mirrored glass or one-way glass with a reflectance of greater than 40 percent shall be prohibited from covering more than 40 percent of the exterior walls. Residential grade metal siding and wood based materials are prohibited on all DMU development with the exception of attached/detached single family residential development and small scale multi-dwelling residential development.

c. Ground-Floor Transparency

At least 35 percent of the ground-floor facade of buildings along sidewalks shall be comprised of windows, doors and other transparent elements (e.g. glass block) that allow views into buildings, plazas or arcades. Calculations shall be based on the linear footage of the ground floor, and said transparent elements shall be a minimum of four feet in height.

(1) Existing buildings along sidewalks to which interior renovations or structural improvements are proposed shall be excluded from this requirement only if they do not already meet the 35 percent transparency requirement. In those cases, the transparency requirement shall meet or exceed the percentage of ground floor transparency provided by the existing structure.

(2) The Zoning Administrator shall have the authority to allow less than 35 percent ground floor transparency adjacent to sidewalks, provided that the subject wall of the structure includes architectural features which offer visual relief from a blank wall through the use of texture, re-

cessed patterns, or other design features that add visual relief. The decision of the Zoning Administrator may be appealed to the Board of Adjustment.

(3) Residential development, where dwelling units occupy the first floor, shall be excluded from these requirements.

4. Parking

A fence, wall or landscape buffer shall be provided to partially screen surface level parking lots from public rights-of-way excluding alleys. Fences or walls shall be constructed with materials and details similar to or compatible with those of the structures in the surrounding area. The required screen shall have a minimum height of 2½ feet and a maximum height of 3 feet. Screens may exceed 3 feet in height if they are at least 50 percent transparent.

5. Lighting

Parking lots and vacant lots resulting from demolition shall be illuminated to sidewalk levels.

6. Parking Structure Screening

Parked vehicles shall be screened from view of adjacent streets by walls at least 2 ½ feet tall.

Source: 2985 (1999), 4163 (2001), 5043 (2016), 5179 (2018).

§20-0213 GC, General Commercial District

A. Description

The GC, General Commercial district is primarily intended to accommodate commercial uses. It allows a full range of retail, service, office and commercial uses.

B. Uses

Uses are allowed in the GC district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the GC district is subject to the dimensional standards of Article 20-05.

§20-0214 LI, Limited Industrial District

A. Description

The LI, Limited Industrial district is primarily intended to accommodate manufacturing, wholesale, warehousing and distribution related uses.

B. Uses

Uses are allowed in the LI district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the LI district is subject to the dimensional standards of Article 20-05.

§20-0215 GI, General Industrial District

A. Description

The GI, General Industrial district is intended to serve as an exclusive industrial district and to protect manufacturing and industrial operations from encroachment by lower intensity, incompatible uses.

B. Uses

Uses are allowed in the GI district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

Development within the GI district is subject to the dimensional standards of Article 20-05.

§20-0216 UMU, University Mixed-Use District

A. Description:

1. The UMU district is intended to provide for the location and grouping of compatible uses. The appropriate location for this district will meet three factors. 1) The location will be in close proximity to a university or campus setting. The term campus includes large medical or business settings. 2) The location will have access to public transportation routes and alternative transportation corridors. 3) The location will be in a setting where the neighborhood is in transition from owner-occupied housing to rental housing or where blighted conditions are present.
2. The objective of the zoning district is to encourage high-quality, durable, and long-lasting investments in order to enhance the quality of life and discourage blight. To achieve this objective, the University Mixed-Use zoning district allows higher overall residential density and limited commercial uses while incorporating design standards to achieve quality housing. Development is intended to be pedestrian oriented and neighborhood friendly. Use of pedestrian scale components will be incorporated into architectural details, attractive streetscapes and safe traffic movements. The intent of the district is to promote high quality mixed-use development in certain neighborhoods, while preserving the single-family owner occupied housing within the neighborhood. In order to support neighborhood communication regarding new development, upon submission of development application, the applicant is encouraged to meet with the active neighborhood association.
3. A zoning map amendment to a UMU, University Mixed-Use, District may not be applied to the easterly portion of the Roosevelt Neighborhood until an amendment of the Roosevelt Neighborhood Plan has been approved by the Fargo Board of City Commissioners. For purposes of this subparagraph, the Roosevelt Neighborhood Plan is the plan approved by the Fargo Board of City Commissioners by Resolution enacted and approved September 13, 2004 and the easterly portion of the Roosevelt Neighborhood is that part of the Roosevelt Neighborhood described in said Plan lying east of the easterly boundary of Johnson Park, and the extension to the north and south of said easterly boundary.

B. Uses

1. Uses allowed in the UMU district must be in accordance with the Use Table of Sec. 20-0401.
2. The minimum dwelling unit per acre density as required in Sec. 20-0501 must be met on all lots in the UMU District, except for a commercial parking use.
3. All non-residential uses except the use of commercial parking shall be limited to the ground floor and second floor of a building.

C. Dimensional Standards

Development within the UMU district is subject to the dimensional standards of Article 20-05.

D. Design Standards

1. General

a. Intent

The UMU Design Standards are intended to create and maintain a general visual quality and appearance that will be appealing to people who live and work in the UMU district, enhancing the residential character while respecting the institutional presence. The regulations are also intended to stimulate and protect investment in the UMU district through the establishment of high quality standards with respect to materials, details, and appearance.

b. Applicability

The UMU Design Standards of this subsection D apply throughout the UMU district.

c. Review Procedure

Review for compliance with the Design Standards of this subsection shall be carried out in accordance with the Site Plan Review Procedures of Sec. 20-0910.

2. Demolition

The standards of this subsection apply in the event of building and site demolition.

a. Vacant Lots

Any lots left vacant after demolition must be paved or landscaped to ensure a dust-free surface. The paving or landscaping shall be in place within 30 days of the date of demolition, unless a longer time period is approved at the time of approval of the demolition plans. Once installed, the landscaping or paving shall be continuously maintained in serviceable condition. Prior to approval of the demolition plans the applicant shall provide a letter of credit, a paid-in-full receipt from a contractor, a performance bond or escrow deposit adequate to ensure that the proposed landscaping or paving will be completed. The security provided must be in an amount equal to at least 100 percent of the estimated total cost of labor and materials. The City shall be authorized to use such financial guarantee to complete the work if the required paving or landscaping is not in place by the date stated on the approved performance guarantee form. Landscaping or paving required by this subsection must be maintained in serviceable condition.

b. Maintenance

Any lots left vacant after demolition shall be regularly maintained and kept free of debris and litter.

3. Building Siting and Design

The standards of this subsection apply to all development. The following design standards apply to all buildings in the UMU district. These standards are intended to promote an attractive and long-lasting investment.

a. Building Orientation

(1) At least one primary building entry shall face a public street.

(2) The building shall be designed to have all exterior walls with equal design consideration, to include materials, color, articulation and general aesthetics for the purpose of access and appreciation by the general public.

(3) Building elevations that face a public street shall have at least 15 percent of the wall facing the street consist of windows or entrance areas.

b. Materials

(1) All walls shall be finished with architectural materials such as brick, glass, stone, ceramic, stucco, precast panels, exterior insulation finish systems (e.g. dryvit), seamless steel siding with a ceramic hybrid paint finish, fiber cement siding, or curtain walls. Building elevation materials shall be commercial grade, durable, and have a multi-generational life span.

(2) The following materials may not be used other than for purposes of providing accent: insulated metal panels; wood-based materials; asphalt; and decorated concrete block. When these materials are used, the materials must be of commercial grade.

(3) The use of architectural metal panels and wood panels for enclosure of mechanical equipment shall be permitted.

(4) Mirrored glass or one-way glass with a reflectance of greater than 40 percent shall be prohibited from covering more than 40 percent of exterior walls.

(5) When the UMU development is a detached single-family or duplex residential use, residential structure exterior materials that are commonly used in residential developments (e.g. residential grade vinyl siding, composite brick, residential grade steel siding) may be used upon approval of the Zoning Administrator.

c. Ground-Floor Transparency

At least 25 percent of the ground-floor façade of buildings along public streets must be comprised of windows, doors and other transparent elements (e.g. glass block). Calculations shall be based on the total square feet of the elevation of the ground floor. Existing buildings along sidewalks to which interior renovations or structural improvements are proposed shall be excluded from this requirement; however, in no case shall the existing transparency be reduced.

d. Articulation

(1) Offsets

i. As to building elevation walls, as visible above ground, that are longer than 100 feet wall plane

projections or recesses having a depth of at least two feet and extending for a minimum of 25% of the length of such walls must be incorporated into the building design.

ii. **As to** building heights taller than 35 feet a horizontal design features on the building's façade must be incorporated into the building design. Examples of horizontal design features include awnings, canopies, transoms, moldings, balconies, wainscoting or changes in color or texture.

(2) Architectural features

i. The building design shall includeintegrated design features to avoid monotony, to create visual interest, and to enhance the pedestrian scale all of which is to be designed to create compatibility with the surrounding neighborhood. Examples of features to be included are:

a. Arcades
b. Cornices
c. Eaves
d. Bow, bay, arched, oval, or gable windows
e. Shutters
f. Arched entries, balconies or breezeway entrances
g. Stone or brick accent walls
h. Decorative stone or brick banding
i. Decorative tiles
j. Verandas, porches, balconies or decks
k. Projected walls or dormers
l. Variation of roof lines
m. Decorative caps or chimneys

e. Accessory Uses:

(1) The accessory use standards set forth in Sec. 20-0403 apply to the UMU district.

(2) The following additional design standards shall apply to accessory structures for the purpose of design compatibility with the residential neighborhood.

i. Accessory building setbacks shall meet the development standards of primary buildings as required in Sec. 20-0501.

i. Accessory building elevation materials shall match the primary building materials.

ii. Accessory buildings may be located in rear yards and/or side yards only. Accessory buildings are not permitted in the front or street-side yard.

iii. Garage doors on accessory structures may not exceed a width of 20 feet.

iv. Separate garage structures may be no more than 60 feet in length on the longest side of the building.

v. Multiple accessory buildings adjacent to each other shall have a building separation of 10 feet.

vi. Multiple accessory buildings adjacent to each other shall have a building seperation of 10 feet.

f. Parking Structure Screening

Parked vehicles shall be screened from view of adjacent streets by walls at least 2 ½ feet tall or opaque screening materials; such as, fences or plants at least 2 ½ feet tall.

E. Alternative Design Standards.

1. An alternative design standard represents a proposal to meet the intent expressed in Sec. 20-0216 D.1.a. by means other than those prescribed in Sec. 20-0216. Applicants who wish to propose a project or development with alternative design components must secure approval of Alternative Design Standards for the project or development by obtaining review, action and approval by the Planning Commission in accordance with the Conditional Use Permit Review procedures of Sec. 20-0906.

2. a. Recordation of Approved Alternative Design.

An attested copy of an approved Alternative Design or Alternative Design Standards must be recorded with the County Recorder on forms made available in the Planning Department. An Alternative Design or Alternative Design Standards may be amended by following the same procedure required for the original approval.

b. Violations.

Violations of an approved Alternative Design or Alternative Design Standards constitute a violation of the Land Development Code and will be subject to the enforcement and penalty provisions of Article 20-011.

Source: 4695 (2009), 4779 (2011), 4881 (2013), 5179 (2018).

ARTICLE 20-03

OVERLAY AND SPECIAL PURPOSE DISTRICTS

§20-0301 Districts Established

The following overlay and special purpose zoning districts are hereby established:

- PUD, Planned Unit Development
- C-O, Conditional Overlay
- P/I, Public and Institutional
- H-O, Historic Overlay
- HIA-O, Hector International Airport Overlay

§20-0302 PUD, Planned Unit Development

A. Description

The PUD, Planned Unit Development district is an overlay zoning district that permits greater flexibility of land planning and site design than conventional zoning districts. The PUD regulations:

1. Provide flexibility in architectural design, placement, and clustering of buildings; use of open areas and outdoor living areas; provision of circulation facilities and parking; and related site and design considerations;
2. Encourage the conservation of natural features;
3. Provide for efficient use of public services and improvements;
4. Encourage and preserve opportunities for energy efficient development;
5. Promote attractive and functional business environments in nonresidential zones that are compatible with surrounding development; and
6. Promote an attractive and safe living environment in residential zones.

B. Applicability

A PUD district may be approved only when the applicant demonstrates to the satisfaction of the Board of City Commissioners that a proposed PUD project would result in a greater benefit to the City than would a development under conventional zoning district regulations.

C. Developer's Statement of Intent

Each application for PUD zoning and Master Land Use Plan approval must include a comparison of the proposed development with the standards of underlying zoning district and the otherwise applicable standards of this Land Development Code. Applications must also include a statement by the applicant describing how the proposed development provides greater benefits to the City than would a development carried out in accordance with otherwise applicable land development regulations.

D. Effect of Other Zoning District Standards

Except as expressly authorized by the regulations of this section and approved as part of a PUD plan in accordance with the procedures of Sec. 20-0908, all of the standards of this Land Development Code apply to a development within a PUD.

E. Standards Eligible for Modification

The following otherwise applicable standards may be modified by the Board of City Commissioners during the PUD Master Land Use Plan approval process. Standards not listed are not eligible for modification.

1. Allowed Uses

The Board of City Commissioners shall establish the list of uses allowed in a PUD zoning district during the PUD Master Land Use Plan approval process (See Sec. 20-0908).

2. Lot Size

The minimum lot size standards of the underlying zoning district may be modified by the Board of City Commissioners during the PUD review and approval process.

3. Residential Density

The maximum density standards of the underlying zoning district may be modified by the Board of City Commissioners during the PUD review and approval process.

4. Setbacks

The minimum setback standards of the underlying zoning district may be modified by the Board of City Commissioners during the PUD review and approval process.

5. Height

The maximum height limits of the underlying zoning district may be modified by the Board of City Commissioners during the PUD review and approval process.

6. Building Coverage

The maximum building coverage standards of the underlying zoning district may be modified by the Board of City Commissioners during the PUD review and approval process.

7. Parking

The minimum off-street parking standards of the underlying zoning district may be modified by the Board of City Commissioners during the PUD review and approval process.

8. Landscaping

The minimum landscaping standards, including, without limitation, Street Tree, Ground Cover Planting, Open Space Landscaping and Parking Lot Perimeter standards of the underlying zoning district may be waived and/or altered by the Board of City Commissiners during the PUD review and approval process.

9. Residential Protection Standards

The residential protection standards of the LDC may be modified by the Board of City Commissioner during the PUD review and approval process and the residential protection standards shall apply to an approved PUD unless they are so modified.

10. Open Space

The minimum Open Space standards of the underlying zoning district may be waived and/or altered by the Board of City Commissioners during the PUD review and approval process.

F. Additional Requirements and Standards

1. Approval Procedures

PUDs must be reviewed and approved in accordance with the procedures of Sec. 20-0908. The approved PUD Final Plan shall control development within a PUD.

2. Roadway Access

Unless otherwise expressly approved during the PUD approval process of Sec. 20-0908, principal vehicular access to PUDs must be from Collector and higher classification streets. Any PUD containing over 50 dwelling units or 30,000 square feet of nonresidential floor space must provide at least 2 access points, wherever possible.

3. Open Space

At least 10 percent of the gross land area in PUDs must consist of open space.

4. Preservation of Natural Features

Mature trees, vegetative cover, watercourses and other natural site features must be preserved to the greatest extent possible.

5. Additional Conditions

The Planning Commission shall recommend and the Governing Body shall impose such other conditions as are necessary to accomplish the purposes of this Land Development Code.

Source: 4690 (2008), 5179 (2018).

§20-0303 C-O, Conditional Overlay

A. Purpose

By providing for flexible use or property development standards tailored to individual projects or specific properties, the C-O, Conditional Overlay district is intended to:

1. Ensure compatibility among incompatible or potentially incompatible land uses;
2. Ease the transition from one zoning district to another;
3. Address sites or land uses with special requirements; and
4. Guide development in unusual situations or unique circumstances.

B. Application

The C-O district, may be applied in combination with any base zoning district.

C. Use and Property Development Standards

The C-O district can be used to modify and restrict the use and property development standards of an underlying base zoning district. All requirements of a C-O district are in addition to and supplement all other applicable standards and requirements of the underlying zoning district. Restrictions and conditions imposed by a C-O district are limited to the following.

1. Prohibiting otherwise permitted or conditional uses and accessory uses or making a permitted use a conditional use;
2. Decreasing the number or average density of dwelling units that may be constructed on the site or limiting the size of nonresidential buildings that may be placed on a site;
3. Increasing minimum lot size or lot width;
4. Increasing minimum yard and setback requirements; and
5. Restricting access to abutting properties and nearby roads.
6. Creating and enhancing design standards, landscaping requirements, and pedestrian and vehicular traffic guidelines and standards for development within the district.

D. Method of Adoption

Restrictions imposed through a C-O district are considered part of this Land Development Code text and official Zoning Map. All property included in a C-O district must be identified on the Zoning Map by adding the letters C-O″ to the base zoning district symbol. The ordinance zoning or rezoning property to the C-O district must specifically state the modifications imposed pursuant to the C-O district. The restrictions imposed will be considered part of the text of this Land Development Code, and a violation of the restrictions shall be considered a violation of this Land Development Code.

Source: 4322 (2003).

§20-0304 P/I, Public and Institutional District

A. Description

The P/I zoning classification will typically be used for colleges, health care facilities, schools and similar uses. Although the district is geared primarily toward large campus-like settings, it may also be used for smaller, single-use sites.

The P/I, Public and Institutional district is intended to accommodate uses of a governmental, civic, public service or quasi-public nature, including major public facilities. It offers an alternative (versus residential) zoning classification for public and institutional uses, thereby increasing development predictability within residential neighborhoods. Plan review is required for many uses within the P/I district. (See also the Institutional Master Plan review and approval procedures of Sec. 20-0911). The P/I zoning classification is not intended for commercial or industrial developments.

B. Uses

Uses are allowed in the P/I district in accordance with the Use Table of Sec. 20-0401.

C. Dimensional Standards

1. The dimensional standards of the adjacent zoning district (See Article 20-05) shall apply to all areas of the P/I zoned site located within 150 feet of the adjacent district except as otherwise allowed by the Residential Protection standards.
2. Areas of the P/I zoned site located more than 150 feet from adjacent zoning districts shall be governed by the approved Site Plan or Institutional Master Plan, whichever, if any, is applicable.
3. If no Site Plan or Institutional Master Plan is required, no dimensional standards shall apply to that portion of a P/I zoned site located more than 150 feet from adjacent districts.
4. Residential Protection standards shall apply to development in the P/I district when such development occurs on a site located within 150 feet of any SR or MR zoning districts. When the Residential Protection standards are less restrictive than the adjacent zoning district standards within 150 feet of the SR or MR district, the Residential Protection standards shall apply.

D. Project Review

1. Project review shall be required for all development within the P/I district if located within 300 feet of any residential zoning district, provided that the following shall be exempt from Project Review:
   a. Interior alterations;
   b. Development that in cumulative total (existing development + proposed):
      (1) Will not result in the creation of more than 50 parking spaces;
      (2) Will not result in the addition of more than 25,000 square feet of gross floor area;

(3) Will not result in building coverage of more than 25,000 square feet.

2. If Project Review is required, the applicant shall have the option of:

a. Submitting and securing approval of individual Site Plan Review applications for each phase of the project, in accordance with the procedures of Sec. 20-0910; or

b. Submitting and securing approval of an Institutional Master Plan in accordance with the procedures of Sec. 20-0910.

Source: 2985 (1999), 4385 (2004).

§20-0305 H-O, Historic Overlay District

A. Applicability

1. The H-O district may be applied in areas of historic or cultural significance that have been designated by the U.S. Department of the Interior, the North Dakota State Historical Society or the Board of City Commissioners.
2. The H-O district may also be extended to include area that is near such areas of historic or cultural significance that is deemed appropriate and necessary to protect the larger area against the intrusion of land uses and development incompatible with the specific area of historic or cultural significance.
3. An area that conforms to the description of subparagraphs 1 or 2, above, shall be deemed to be an "historic resource". Such historic resources deserve special consideration for preservation and enhancement due to the contribution they make to our collective understanding of the historic development and cultural heritage of the city. They enhance the quality of life and the sense of place as amenities for residents and visitors through their craftsmanship, scale, and irreplaceable historic character.

B. Effect of District Designation

Lands classified in the H-O district shall be subject to the standards of the H-O district and the underlying zoning district. In the event of conflict between the standards of the H-O district and the underlying zoning district, the standards of the H-O district shall control.

C. Adoption of special regulations and standards

Upon the adoption of an H-O district, the City Commission may define special development standards or regulations which are to apply to all properties (new and existing) within the H-O District, consistent with the intent, goals, objectives and policies established for each district. If adopted, such standards shall be based on evidence of the historical and architectural aspects of the district which are typical or characteristic of that district, and shall be included within the zoning regulations of the Historic Overlay ordinance.

D. Purposes

The H-O, Historic Overlay district regulations are intended to:

1. Protect and conserve the heritage of the City;
2. Safeguard the character and heritage of historic districts or landmarks that embody important elements of the City's social, economic, political or architectural history;
3. Promote conservation of historic resources for the education, pleasure and cultural enrichment of residents of the City; and

The provisions of this section merely authorize the Board of City Commissioners to establish such districts in the future, after notification and public hearings.

4. Stabilize and enhance property values throughout historic areas, thus contributing to the improvement of the health and welfare of residents and visitors.

E. Procedure for Designation of H-O Districts

1. Areas eligible for inclusion in an H-O District.
Each area for which an H-O district is established must contain at least one site, building, or structure which is an historic resource, as defined in this ordinance.

2. Report and evidence to be provided prior to enactment of H-O Districts.
Prior to a hearing by the Planning Commission on an application for creation or amendment of an H-O District, the Planning Department staff and the Historic Preservation Commission and staff shall provide in a report, the information and evaluation which will serve as the basis for any proposal to establish an H-O district. The following information shall be included in the required report:

a. Explanation of the reasons that an H-O district should be established for the subject area (with supporting documentation).

b. A description of the area to be included within the boundaries of the H-O district. Such description must include a narrative description, maps, property addresses and parcel numbers. The narrative description must describe existing land uses, the condition of structures, architectural styles, historic status, environmental features in the area, and other relevant information.

c. An analysis of the character-defining features within the proposed H-O district. This section will identify the elements within the proposed district that give the district its historic character.

d. Recommended guidelines, standards and policies to be included in the regulations for the proposed H-O district pertaining to preservation or future development. Examples include signage, architectural character, building height, setbacks, and vehicular and pedestrian circulation patterns.

e. The recommendation of the Historic Preservation Commission regarding the application shall be reported to the Planning Commission and the Board of City Commissioners.

f. A recommendation from the staff of the Planning Department regarding the establishment of the proposed H-O district, and the specific recommended wording for the proposed ordinance to facilitate implementation of the ordinance and to ensure clarity and consistency with other historic districts and other provisions of the Land Development Code. The report may also include any other recommended implementation measures deemed necessary to further the goals and objectives of the proposed H-O district.

3. Public Process.

The H-O district is an overlay zoning designation that may be established only in accordance with the Zoning Map Amendment procedures of Sec. 20-0906.

a. Prior to the Planning Commission's public hearing on the proposed zoning map amendment, the Historic Preservation Commission shall hold a public hearing and issue a recommendation to the Planning Commission.

b. Written notice of the Historic Preservation Commission's public hearing shall be given in accordance with Sec. 20-0901-F.

c. In acting to designate local historic districts or landmarks, the Historic Preservation Commission, Planning Commission and Board of City Commissioners shall consider the purposes set out in this section and the purposes and intent of the Historic Preservation Commission (See Sec. 20-0804).

F. Uses

Development within the H-O district shall be subject to the use regulations of the underlying base zoning district (See Article 20-04), provided that Office and Bed and Breakfast uses may be allowed within any H-O district (regardless of the underlying zoning) if reviewed and approved in accordance with the Conditional Use Permit procedures of Sec. 20-0909.

G. Dimensional Standards

Development within the H-O district shall be subject to the dimensional standards of Article 20-05, unless otherwise noted in the Special Regulations and Standards section of each designated H-O district.

H. Certificates of Appropriateness

1. Building Permits

No building permit for new construction or for alterations to the exterior of existing structures shall be issued for property within an H-O district until a Certificate of Appropriateness has been reviewed and approved in accordance with the procedures of Sec. 20-0912.

2. Demolition Permits

No demolition permit shall be issued for property within an H-O district until a Certificate of Appropriateness has been reviewed and approved in accordance with the procedures of Sec. 20-0912.

3. Sign Permits

No sign permit allowing construction or placement of a new sign (including murals) shall be issued for property within an H-O district until a Certificate of Appropriateness has been reviewed and approved in accordance with the procedures of Sec. 20-0912.

I. Off-Premise Advertising Signs shall be prohibited in the H-O district.

J. Specific Historic Overlay (H-O) Districts

1. Transitional provisions.

The special design standards of any H-O District approved by the Board

of City Commissioners prior to August 1, 2005, shall be enforced in accordance with the procedures of this ordinance. Such H-O Districts are as follows:

Ordinance No. 2942	Passed October 5, 1998
Ordinance No. 4283	Passed September 30, 2002
Ordinance No. 4507	Passed December 19, 2005
Ordinance No. 4655	Passed March 24, 2008
Ordinance No. 4821	Passed June 25, 2012
Ordinance No. 4910	Passed April 14, 2014

Source: 2985 (1999), 4486 (2005), 4822 (2012), 4840 (2012), 4919 (2014).

§20-0306 HIA-O, Hector International Airport Overlay

A. Description and Purpose

The HIA-O, Hector International Airport Overlay district is intended to reduce airport hazards that endanger the lives and property of users of the Hector International Airport and of occupants of land in its vicinity. Lands classified in the HIA-O district will be subject to the standards of the HIA-O district and the underlying zoning district. In the event of conflict between the standards of the HIA-O district and the underlying zoning district, the standards of the HIA-O district will control.

B. Airport Zoning Map

The Fargo Municipal (Hector) Airport Zoning Map" is a part of this Land Development Code as fully as if it were set out in this Chapter in detail. Original copies of the airport zoning map are on file with in Municipal Airport Executive Director's office at Hector International Airport.

C. HIA-O District Surfaces

The HIA-O district consists of the following surfaces, which are hereby established and defined as follows:

1. Precision Instrument Approach Surfaces

A precision instrument approach surface is established at each end of the instrument runway for instrument landings and takeoffs. The instrument approach surface shall have a width of 1,000 feet at a distance of 200 feet beyond each end of the runway, widening thereafter uniformly to a width of 16,000 feet at a distance of 50,200 feet beyond each end of the runway, its center line being the continuation of the center line of the runway.

2. Nonprecision Instrument Approach Surfaces

A surface longitudinally centered on the extended runway center line and extending outward and upward from each end of the primary surface. This approach surface has a width of 500 feet at a distance of 200 feet beyond each end of the runway, widening thereafter uniformly to a width of 3,500 feet at a distance of 10,200 feet beyond each end of the runway.

3. Primary Surfaces

A surface longitudinally centered on a runway and extending 200 feet beyond the end of each hard surface runway. The elevation of any point on the primary surface is the same as the elevation of the nearest point on the runway center line. The width of the primary is 500 feet for nonprecision instrument runways having visibility minimums greater than 0.75 statute miles and 1,000 feet for precision instrument runways.

4. Transitional Surfaces

These surfaces extend outward and upward at right angles to the runway center line and the runway center line extended at a slope of 7 to 1 from the sides of the primary surface and from the sides of the approach surfaces. Transitional surfaces for those portions of the precision approach surface which project through and beyond the limits of the conical surface, extended a distance of 5,000 feet measured horizontally from the edge of the approach surface and at right angles to the runway center line.

5. Horizontal Surfaces

A horizontal plan 150 feet above the established airport elevation, the perimeter of which is constructed by swinging arcs of specified radii from the center of each end of the primary surface of each runway and connecting the adjacent arcs by lines tangent to those arcs.

6. Conical Surfaces

A surface extending outward and upward from the periphery of the horizontal surface at a slope of 20 to 1 for a horizontal distance of 4,000 feet.

D. Height Limits

Unless otherwise specifically provided in this section, no structure or tree may be erected, altered, allowed to grow, or maintained, in any HIA-O zone to a height in excess of the maximum height limit established for such zone. These provisions shall not be construed as prohibiting the growth, construction or maintenance of any tree or structure to a height of up to 35 feet above the surface of the land.

1. Precision Instrument Approach Surfaces

One foot in height for each 50 feet in horizontal distance beginning at a point 200 feet from and at the center line elevation of the end of the instrument runway and extending to a distance of 10,200 feet from the end of the runway; thence 1 foot in height for each 40 feet in horizontal distance to a point 50,200 feet from the end of the runway.

2. Nonprecision Instrument Approach Surfaces

One foot in height for each 34 feet in horizontal distance beginning at the end of the primary surface of the nonprecision instrument runway and extending to a point 10,200 feet from the end of the runway.

3. Transitional Surfaces

One foot in height for each 7 feet in horizontal distance beginning at the edge and normal to the primary surface, extending to a height of 150 feet above the airport elevation which is 900 feet above mean sea level. In addition, there are established height limits of 1 foot vertical height for each 7 feet of horizontal distance measured from the edges of all approach surfaces for the entire length of the approach surface and extending upward and outward to the points where they intersect the horizontal or conical surfaces. Further, where the precision instrument approach surface projects through and beyond the conical surface, a height limit of 1 foot for each 7 feet of horizontal distance shall be maintained beginning at the edge of the instrument approach surface and extending a distance of 5,000 feet from the edge of the instrument approach surface measured normal to the center line of the runway extended.

4. Horizontal Surfaces

150 feet above the airport elevation or a height of 1,050 feet above mean seal level. A 10,000 foot horizontal arc swung from the center of each end of each primary surface and connecting, the adjacent arcs by lines tangent to these arcs make up the perimeter of the horizontal surface.

5. Conical Surfaces

One foot in height for each 20 feet of horizontal distance beginning at the periphery of the horizontal surface, extending to a height of 350 feet above the airport elevation.

E. Uses

Notwithstanding any other provisions of this section, no use may be made of land within the HIA-O district in such a manner as to create electrical interference with radio communication between the airport and aircraft, make it difficult for flyers to distinguish between airport lights and others, result in glare in the eyes of flyers using the airport, impair visibility in the vicinity of the airport or otherwise endanger the landing, taking off or maneuvering of aircraft.

F. Nonconforming Uses

1. Regulations Not Retroactive

The regulations of this section shall not be construed to require the removal, lowering, or other changes or alterations of any structure or tree not conforming to the regulations of this section or otherwise interfere with the continuance of any nonconforming use. Nothing herein shall require any change in the construction, alteration or intended use of any structure, the construction or alteration of which was begun prior to the effective date of the City's original Airport Zoning Ordinance and is diligently pursued.

2. Marking and Lighting

Notwithstanding the regulations of the preceding paragraph, the owner of any nonconforming structure or tree is hereby required to permit the installation, operation and maintenance thereon of such markers and lights as shall be deemed necessary by the Municipal Airport Authority of the City of Fargo, North Dakota, to indicate to the operators of aircraft in the vicinity of the airport the presence of such airport hazards. Such markers and lights shall be installed, operated and maintained at the expense of the Municipal Airport Authority of the City of Fargo, North Dakota.

G. Permits

1. Future Uses

Except as specifically provided in paragraphs a, b and c hereunder, no material change shall be made in the use of land and no structure or tree shall be erected, altered, planted or otherwise established in the HIA-O district unless a permit therefor shall have been applied for and granted. Each application for a permit shall indicate the purpose for which the permit is desired, with sufficient particularity to permit it to be determined whether the resulting use, structure or tree would conform to the regulations herein prescribed. If such determination is in the affirmative, the permit shall be granted.

a. In the area lying within the limits of the horizontal surface and the conical surface, no permit shall be required for any tree or structure less than 75 feet of vertical height above ground, except

when, because of terrain, land contour or topographic features, such tree or structure would extend above the height limits prescribed for such surface.

b. In the areas lying within the limits of the precision instrument and nonprecision instrument approach surfaces, but at a horizontal distance of not less that 4,200 feet from each end of the runways, no permit shall be required for any tree or structure less than 75 feet of vertical height above the ground, except when such tree or structure would extend above the height limit prescribed for such precision instrument or nonprecision instrument approach surfaces.

c. In the areas lying within the limits of the transition surfaces beyond the perimeter of the horizontal surface, no permit shall be required for any tree or structure less than 75 feet of vertical height above the ground, except when such tree or structure, because of terrain, land contour or topographic features, would extend above the height limit prescribed for such transition surfaces.

Nothing contained in any of the foregoing exceptions shall be construed as permitting or intending to permit any construction, alteration, or growth of any structure or tree in excess of any of the height limits established by this section.

2. Existing Uses

No permit shall be granted that would allow the establishment or creation of an airport hazard or permit a nonconforming use, structure or tree to be made or become higher, or become a greater hazard to air navigation than it was on the effective date of the City's Airport Zoning Ordinance or any amendments thereto or than it is when the application for a permit is made. Except as indicated, all applications for such a permit shall be granted.

3. Nonconforming Uses Abandoned or Destroyed

Whenever the Joint Airport Zoning Board determines that a nonconforming structure or tree has been abandoned or more than 80 percent demolished, physically deteriorated or decayed, no permit shall be granted that would allow such structure or tree to exceed the applicable height limit or otherwise deviate from the zoning regulations.

4. Variances

Any person desiring to erect or increase the height of any structure, or permit the growth of any tree, or use his or her property not in accordance with the regulations prescribed in this section, may apply to the Board of Adjustments for a variance from such regulations. Such variances shall be allowed where it is duly found that a literal application or enforcement of the regulations would result in practical difficulty or unnecessary hardship and the relief granted would not be contrary to the public interest but will do substantial justice and be in accordance with the spirit of this section.

5. Hazard Marking and Lighting

Any permit or variance granted may, if such action is deemed advisable to effectuate the purpose of this section and be reasonable in the circumstances, be so conditioned as to require the owner of the structure or tree in question to permit the Municipal Airport Authority of the City of Fargo, North Dakota, at its own expense, to install, operate, and maintain thereon such markers and lights as may be necessary to indicate to flyers the presence of an airport hazard.

H. Administration and Enforcement

It shall be the duty of the Municipal Airport Executive Director to administer and enforce the HIA-O regulations of this section and any applicable regulations promulgated by the Federal Aviation Administration. Applications for permits and variances shall be made to the Federal Aviation Administration and/or the Municipal Airport Executive Director in a form established by the City. Applications shall be promptly considered and granted or denied. The HIA-O regulations of this section may be subject to the regulations promulgated by the Federal Aviation Administration.

ARTICLE 20-04

USE REGULATIONS

§20-0401 Use Table

Table 20-0401 lists the uses allowed within zoning districts.

A. Use Categories.

All of the use categories listed in Table 20-0401 are explained in Sec. 20-1203. The second column of the use table contains an abbreviated explanation of the respective use category. If there is a conflict between the abbreviated definition and the full explanation contained in Sec. 20-1203, the provisions of Sec. 20-1203 will control.

B. **P Uses Permitted By-Right.**

A "P" indicates that a use category is allowed by-right in the respective zoning district. These permitted uses are subject to all other applicable regulations of this Land Development Code.

C. **C Conditional Uses.**

A "C" indicates that a use category is allowed only if reviewed and approved as a Conditional Use, in accordance with the Conditional Use review procedures of Sec. 20-0909. Conditional Uses are subject to all other applicable regulations of this Land Development Code.

D. **/C Uses Subject to Specific Conditions.**

A "P" or a "C" that is accompanied by the symbol "/C" indicates that the listed use type is subject to use-specific conditions. The standards are listed alphabetically in Sec. 20-0402.

E. **– Uses Not Allowed.**

A "-" indicates that a use type is not allowed in the respective zoning district, unless it is otherwise expressly allowed by other regulations of this Land Development Code.

F. New or Unlisted Uses.

If an application is submitted for a use type that is not listed in the use table, the Zoning Administrator shall be authorized to make a similar use interpretation based on the use category descriptions of Sec. 20-1203 and the similar use interpretation criteria of Sec. 20-1203-B. If the Zoning Administrator determines that the proposed use does not fit any of the use category descriptions of Sec. 20-1203, no similar use interpretation shall be made. In the event that a similar use interpretation cannot be made, the Zoning Administrator shall be authorized to allow the proposed use type as a conditional use in the LI district or as a use permitted by-right in the GI district.

Table 20-0401

Use Category	Definition (Excerpt; See Sec. 20-1203)	Specific Use Type	Zoning Districts																				
			AG	SR0	SR1	SR2	SR3	SR4	SR5	MR1	MR2	MR3	UMU	MHP	NO	NC	GO	LC	DMU	GC	LI	GI	PI
Residential																							
Household Living	residential occupancy of a dwelling unit by a "household"	House, Detached	P	P	P	P	P	P		P	P	P	P	P	P	P	C	C	P	C	-	-	-
		House, Attached	-	-	-	-	P	P		P	P	P	P	P	P	P	C	C	P	C	-	-	-
		Duplex	-	-	-	-	P	P		P	P	P	P	P	P	P	C	C	P	C	-	-	-
		Multi-Dwelling Structure	-	-	-	-	-	-		P	P	P	P	P	P	P	C	C	P	C	-	-	-
		Mobile Home Park	-	-	-	-	-	-		-	-	-	-	P	-	-	-	-	-	-	-	-	-
Group Living	residential occupancy of a structure by a group of people who do not meet the definition of "Household Living"		C/C [E]	C/C [E]	C/C [E]	C/C [E]	C/C [E]	C/C [E]		P/C [E]	P/C [E]	P/C [E]	P	P/C [E]	C/C [E]	C/C [E]	C/C [E]	C/C [E]	C/C [E]	C/C [E]	-	-	-
Bed and Breakfast	A facility of residential character that provides sleeping accommodations and breakfast		C/C [S]	C/C [S]	C/C [S]	C/C [S]	C/C [S]	C/C [S]		C/C [S]	C/C [S]	C/C [S]	-		-	-	-	-	-	-	-	-	-
Group Living Restricted Residency	Residential occupancy of a structure by a group of four or more individuals that have been convicted of a felony		-	-	-	-	-	-		C/C [U]	C/C [U]	C/C [U]	C/C [U]	-	C/C [U]	C/C [U]	C/C [U]	C/C [U]	C/C [U]	C/C [U]	C/C [U]	C/C [U]	-
Institutional																							
College	colleges and institutions of higher learning		C	C	C	C	C	C		C	C	C	P	C	C	C	P	P	P	P	P	-	P/C [G]
Community Service	public, nonprofit, or charitable uses, generally providing a local service to the community		C/C [C]	C/C [C]	C/C [C]	C/C [C]	C/C [C]	C/C [C]		P/C [C]	P/C [C]	P/C [C]	C/C [C]	P/C [C]	P/C [C]	P/C [C]	P	P	P/C [C]	P	P	-	P/C [G]
Day Care	care, protection and supervision for children or adults on a regular basis away from their primary residence for less than 24 hours per day	1-7 children or adults[1]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]		P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	-	P/C [G]
		8-12 children or adults[1]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]		P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	-	P/C [G]
		13+ children or adults	-	-	-	-	-	-		C/C [D]	C/C [D]	C/C [D]	P/C [D]	C/C [D]	C/C [D]	C/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	P/C [D]	-	P/C [G]
Detention Facilities	facilities for the detention or incarceration of people		C	-	-	-	-	-		C	C	C	-	-	-	-	C	C	C	P	P	P	P/C [G]
Health Care Facility	medical or surgical care to patients, with overnight care		C	C	C	C	C	C		C	C	C	C	C	-	-	P	P	P	P	P	P	P/C [G]
Parks and Open Areas	natural areas consisting mostly of vegetative landscaping or outdoor recreation, community gardens, etc.		P	P	P	P	P	P		P	P	P	-	P	P	P	P	P	P	P	P	-	P/C [G]
Religious Institution	Meeting area for religious activities	500 seating capacity	C/C [T]	P	P	P	P	P		P	P	P	-	P	P	P	P	P	P	P	P	-	P/C [G]
		501+ seating capacity	C/C [T]	P/C [H]	P/C [H]	P/C [H]	P/C [H]	P/C [H]		P	P	P	-	P	P	P	P	P	P	P	P	-	P/C [G]
Safety Services	public safety & emergency response services		P	P	P	P	P	P		P	P	P	P	P	P	P	P	P	P	P	P	P	P/C [G]
Schools	schools at the primary, elementary, middle, junior high, or high school level		-	P/C [I]	P/C [I]	P/C [I]	P/C [I]	P/C [I]		P/C [I]	P/C [I]	P/C [I]	C	-	-	-	C	C	C	C	C	-	P/C [G]
Utilities, Basic	infrastructure services that need to be located in or near the area where the service is provided		P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]		P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K]	P/C [K] [G]
Commercial																							
Adult Establishment	an adult arcade, adult bookstore, adult cinema, adult entertainment facility, or sexual device shop		-	-	-	-	-	-		-	-	-	-	-	-	-	-	-	-	P/C [A]	P/C [A]	P/C [A]	-

[1] Not including the children or parents of the day care provider.

Use Category	Definition (Excerpt; See Sec. 20-1203)	Specific Use Type	Zoning Districts																				
			AG	SR0	SR1	SR2	SR3	SR4	SR5	MR1	MR2	MR3	UMU	MHP	NO	NC	GO	LC	DMU	GC	LI	GI	PI
Office	Activities conducted in an office setting and generally focusing on business, government, professional, medical, or financial services		-	-	-	-	-	-	-	-	-	-	P	-	P	P	P	P	P	P	P	-	P/C [G]
Off-Premise Advertising Signs	Billboard		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	P/C [B]	-	P/C [B]	P/C [B]	P/C [B}	-
Parking, Commercial	parking that is not accessory to a specific use . . . fees may or may not be charged		-	-	-	-	-	-	-	-	-	-	P	-	-	-	P	P	P	P	P	P	P/C [G]
Recreation and Entertainment, Outdoor	large, generally commercial uses that provide continuous recreation or entertainment oriented activities		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	C	C	P	P	-	P/C [G]
Retail Sales and Service	firms involved in the sale, lease or rental of new or used products to the general public . . . they may also provide personal services or entertainment, or provide product repair or services for consumer and business goods		-	-	-	-	-	-	-	-	-	-	P	-	-	P	-	P	P	P	P	-	-
Self-Service Storage	uses providing separate storage areas for individual or business uses		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	P/C [J]	P/C [J]	P	P	-	-
Vehicle Repair	service to passenger vehicles, light & medium trucks & other consumer motor vehicles, generally, the customer does not wait at the site while the service or repair is being performed		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	P/C [L]	P/C [L]	P	P	-	-
Vehicle Service, Limited	direct services to motor vehicles where the driver or passengers generally wait in the car or nearby while the service is performed		-	-	-	-	-	-	-	-	-	-	P/C [M]	-	-	-	-	P	P/C [M]	P	P	-	-
Non-farm Commercial	Commercial Uses defined in Section 20-1203D occurring in AG, Agricultural Districts		C/C [T]	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
Industrial																							
Industrial Service	firms engaged in the repair or servicing of industrial, business or consumer machinery, equipment, products or by-products		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	C/C [Q]	C/C [R]	P/C [F]	P/C [F]	P/C [G]
Manufacturing and Production	firms involved in the manufacturing, processing, fabrication, packaging, or assembly of goods		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	C	C/C [R]	P	P	P/C [G]
Warehouse and Freight Movement	firms involved in the storage, or movement of goods		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	C	C/C [R]	P	P	P/C [G]
Waste-Related Use	uses that receive solid or liquid wastes from others for disposal on the site or for transfer to another location, uses that collect sanitary wastes, or uses that manufacture or produce goods or energy from the composting of organic material		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	C	P/C [G]
Wholesale Sales	firms involved in the sale, lease, or rental of products primarily intended for industrial, institutional, or commercial businesses		-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	C	C/C [R]	P	P	-

Use Category	Definition (Excerpt; See Sec. 20-1203)	Specific Use Type	Zoning Districts																				
			AG	SR 0	SR 1	SR 2	SR 3	SR 4	SR 5	MR 1	MR 2	MR 3	UMU	MHP	NO	NC	GO	LC	DMU	GC	LI	GI	PI
Other																							
Agriculture	raising, producing or keeping plants or animals	Animal Confinements	C	C [2]	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	C	P/C [G]
		Farming/ Crop Production	P	C	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	P	P/C [G]
Aviation	facilities for the landing and takeoff of flying vehicles, including loading and unloading areas		C	C	-	-	-	-	-	-	-	-	-	-	-	-	C	C	C	C	P	P	P/C [G]
Surface Transportation			-	-	-	-	-	-	-	-	-	-	-	-	-	-	C	C	C	C	P	P	P/C [G]
Entertainment Event, Major	activities & structures that draw large numbers of people to specific events or shows		C	-	-	-	-	-	-	-	-	-	C	-	-	-	-	-	C	C	C	-	P/C [G]
Mining	mining or extraction of mineral or aggregate resources from the ground for off-site use		C	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	C	P	-
Telecommunications Facilities	devices and supporting elements necessary to produce non-ionizing electromagnetic radiation… operating… to produce a signal…	TSS greater than 125 ft in height	-	-	-	-	-	-	-	-	-	-		-	-	-	-	-	-	C/C [N]	C/C [N]	C/C [N]	-
		TSS 125 ft in height or less	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	P/C [N]	P/C [N]	P/C [N]	C/C [N]
		TSS 50 ft in height or less	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	C/C [N]	P/C [N]	P/C [N]	C/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	C/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]
		TSS 35 ft in height or less	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]
		TSSs supported by Guy wires	C/C [N]	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-	-
		Attached Telecommunications facilities	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]	P/C [N]

P = Use Permitted By-Right ■ **P/C** = Use Permitted By-Right But Subject to Use-Specific Standards of Sec. 20-0402
C = Conditional Use, Subject to Procedures of Sec. 20-0909 ■ Some uses also Subject to **Site Plan Review** (See Sec. 20-0910) or to a Traffic Impact Study as required by Sec. 20-0701(L)
■ **C/C** = Conditional Use And Subject to Use-Specific Standards of Sec. 20-0402

Source: 2985 (1999), 3062 (1999), 4039 (2000), 4089 (2000), 4121 (2001), 4179 (2001), 4222 (2002), 4337 (2003), 4560 (2006), 4613 (2007), 4695 (2009), 4771 (2010), 4895 (2013), 4997 (2015), 5078 (2017), 5116 (2017), 5379 (2022), 5435 (2024).

[2] In SR-0 districts, animal confinements are either permitted or a conditional use, subject to procedures of Sec. 20-0909, as described in Sec. 1203.C.2.b.

§20-0402 Use Standards

A. Adult Establishment

Adult establishments are regulated based upon the documents, rationale, and findings set forth in the ordinance adopting this section. The city hereby adopts and incorporates herein its stated findings and legislative record related to the adverse secondary effects of adult establishments, including the judicial opinions and reports related to such secondary effects. Adult establishments shall be subject to all of the following standards:

1. An adult establishment shall not be located within 1,250 feet of any religious institution, school, park or recreation facility (bike paths excluded), SR zoning district, MR zoning district or residential planned unit development.
2. An adult establishment shall not be located within 1,250 feet of any establishment that dispenses alcohol on-premises and is licensed in accordance with Chapter 25 of the Fargo Municipal Code.
3. An adult establishment shall not be located within 750 feet of any other adult establishment.
4. For the purpose of subsections (1), (2), and (3), distance shall be measured from the closest part of any structure, including signs and roof overhangs, used in conjunction with the adult establishment to the closest point on a property boundary of the land use(s) identified in those subsections. Where a use identified in those subsections is located in a multi-tenant development, the distance shall be measured to the closest part of the tenant space occupied by that use rather than the property line of the entire development. The zoning and/or use of land in adjacent jurisdictions shall not disqualify any location within the City of Fargo from being available to an adult establishment.
5. Notwithstanding any provision in the Fargo Municipal Code to the contrary, an adult establishment in a location that satisfies the location standards in the Land Development Code shall not be deemed noncompliant by virtue of the subsequent establishment or expansion of another land use or zoning district identified in subsections (1), (2), or (3).
6. An adult establishment must prohibit entrance by persons less than 18 years of age.
7. The business premises of an adult establishment that are generally open to its patrons are open equally at the same time to members of any law enforcement agency who may wish to enter thereon provided the entry is in the course of the discharge of the law enforcement officer's duties.

B. Off-Premise Advertising Signs

Please refer to Section 20-1308 for applicable standards.

C. Community Service

1. No overnight accommodations shall be allowed in conjunction with a Community Service use in AG or SR districts.

2. Community Service uses in MR districts shall be subject to the maximum density standards of the underlying zoning district. For the purpose of interpreting this standard, each 4-person sleeping capacity shall be considered one dwelling unit.
3. Community Service uses shall be subject to the Residential Protection standards of Sec. 20-0704.
4. No Community Service use may be located within 300 feet of another Community Service use, measured from lot line to lot line, unless such location is otherwise reviewed and approved as a Conditional Use, in accordance with the Conditional Use review procedures of Sec. 20-0909.

D. Day Care

1. Signs

Signs must comply with the City's sign ordinance.

2. Employees

With respect to Day Cares that are accessory to a Residential Use, no more than one nonresident employee is allowed (at any one time) in association with an allowed Day Care.

3. AG and SR Districts

Within all AG and SR zoning districts, day care uses shall be allowed only as an accessory use to an allowed principal use in such zoning district. Day Care is not allowed as a principal use in any AG or SR district.

4. Conditional Use Permits Terminate Upon Transfer of Ownership

Unless otherwise expressly stated, Conditional Use Permits for Day Care uses granted pursuant to Section 20-0909 shall automatically terminate upon sale or transfer of property.

Source: 3008 (1999); 4323 (2003).

E. Household Living/Group Living

1. A Conditional Use Permit shall be required for Group Living Uses in zoning districts other than MR or UMU and in acting upon such Conditional Use Permit requests for Group Living Uses, the Planning Commission shall consider the following factors:
   a. Whether or not the dwelling unit meets all building, housing, and fire codes of the City;
   b. Whether or not the property has off-street parking space for every vehicle which is owned, possessed or utilized by occupants of the building. Such parking spaces must meet all applicable standards of the City;
   c. The general condition of the building and whether or not it is in need of substantial repairs or renovation; and
   d. Whether or not the requested occupancy is compatible with the neighborhood and will not create undue density and congestion.

   Said factors need be considered only when the Planning Commission is considering a request for a Conditional Use Permit.
2. In MR Zoning districts, Group Living uses are permitted by right, provided such uses shall be subject to the maximum density standards of the underlying zoning district. For the purpose of interpreting this standard, each 4-person sleeping capacity shall be considered one dwelling unit.

F. Industrial Service (Above-Ground Fuel Storage Tanks)

Above-ground fuel tanks used for the storage or dispensing of Class I or Class II petroleum products shall be located at least 300 feet from all non-industrial zoning districts.

G. P/I District Review

1. Project review shall be required for all development within the P/I district if located within 300 feet of any residential zoning district, provided that the following shall be exempt from Project Review:
   a. Interior alterations to an existing building;

b. Development that in cumulative total (existing development + proposed):
   (1) Will not result in the creation of more than 50 parking spaces;
   (2) Will not result in the addition of more than 25,000 square feet (gross floor area); and
   (3) Will not result in building coverage of more than 25,000 square feet.

2. If Project Review is required, the applicant shall have the option of:
   a. Submitting and securing approval of individual Site Plan Review applications for each phase of the project, in accordance with the procedures of Sec. 20-0910; or
   b. Submitting and securing approval of an Institutional Master Plan in accordance with the procedures of Sec. 20-0910.

H. Religious Institutions

The following regulations shall apply to Large Religious Institutions (more than 500 seating capacity) in SR districts.

1. Large Religious Institutions in SR districts shall provide off-street parking at a minimum ratio of 0.5 spaces per seat.
2. At least 35 percent of the site area shall be maintained as landscaped open space.
3. Large Religious Institutions in SR districts shall be subject to the Residential Protection Standards of Sec. 20-0704.

I. Schools

The following regulations shall apply to Schools in SR and MR districts. A waiver of one or more of the following regulations may be granted upon review and approval in accordance with Conditional Use Review procedures of Sec. 20-0909.

1. The maximum size shall not exceed 800 students.
2. The base site area for a school shall be 10 acres, plus 1 acre per 100 students.
3. At least 35 percent of the site area shall be maintained as landscaped open space.
4. Schools in SR and MR districts shall be subject to the Residential Protection Standards of Sec. 20-0704.

J. Self-Service Storage

1. All walls visible from the street shall be finished with architectural materials such as brick, glass, stone, ceramic, stucco, precast panels, exterior insulation finish systems (e.g. dryvit), or curtain walls. The following material shall not be used on walls that are visible from the street: metal panels; non-residential grade metal siding; non-residential grade wood-based materials; non-residential grade composition materials, such as plastic or asphalt; concrete blocks or cinder blocks. Concrete block may be used only if it is burnished, standing flute or sculptured.

2. Within the DMU, Downtown Mixed Use, zoning district self-service storage shall be allowed under the following conditions:

   a. The self-service storage is located in the basement of the structure.

   b. Storage of chemicals or other harmful materials is prohibited.

K. Utilities, Basic (Recycling Centers)

Recycling containers must be completely screened from view of residential zoning districts and public rights-of-way by buildings, fences, walls, berms or landscape buffers that are at least as tall as the container.

L. Vehicle Repair

The maximum site area shall not exceed 15,000 square feet and the maximum building size shall not exceed 7,500 square feet.

M. Vehicle Service, Limited

The maximum site area shall not exceed 15,000 square feet and the maximum building size shall not exceed 7,500 square feet.

N. Telecommunications Facilities

1. General

All telecommunications facilities shall comply with the standards of this Land Development Code, all applicable standards of the Federal Telecommunications Act of 1996, and all applicable requirements of the Federal Aviation Administration. Freestanding Non-Commercial Support Structures in AG, SR, MR, UMU, NC, and NO zoning districts are addressed by Section 20-0403.D. Accessory Uses. Freestanding Non-Commercial support structures in any other zoning district shall be considered Telecommunications Support Structures and shall meet the requirements of this section.

2. Attached Telecommunications Facilities

Attached telecommunications facilities shall be allowed by-right in the districts indicated in the Use Table provided that they comply with all applicable standards of the underlying zoning district, including any maximum height standards. If visible from SR, MR or UMU zoning districts, attached telecommunications facilities shall be designed and painted to minimize their visibility from such areas. Any proposed attached telecommunications facility which does not comply with the foregoing requirements will only be permitted if approved in accordance with the Conditional Use review procedures of Sec. 20-0909.

3. Telecommunications Support Structures

Telecommunications support structures (also referred to herein as "TSS") must comply with the following requirements as approved by the Zoning Administrator, unless otherwise stated. TSSs located within the City of Fargo public right-of-way are exempt from the following use standards

of this section, but shall comply with Article 24-04 of the Fargo Municipal Code and all other applicable requirements of the Land Development Code.

a. As provided by Sec. 20-0402, TSSs of no more than 125 feet in height are permitted in GC, LI and GI zoning districts subject to use-specific standards, including:
   (1) No TSS may be located closer than 200 feet or two times the height of the TSS, whichever is greater, from the base of the TSS to any residentially zoned property, as measured from the base of the TSS to the nearest such residentially zoned property line;
   (2) The TSS must have co-location capability of at least one other telecommunications provider, unless stealth design considerations make co-location unfeasible as determined by the City Planner; and
   (3) TSSs shall be either clustered together or spread apart an adequate distance so as to reduce their impact on the overall appearance of the area and the view of the horizon. Therefore, TSSs shall be placed either:
      (a) No farther than 300 feet from an existing and approved telecommunications TSS, or
      (b) A minimum distance of ¼ mile between existing and approved TSSs of 125 feet in height or less, and a minimum distance of ½ mile from telecommunications TSSs of over 125 feet in height, as measured from the base of one TSS to the base of another.

b. As provided by Sec. 20-0401, TSSs of more than 125 feet in height are Conditional Uses in GC, LI and GI zoning districts and are therefore subject to the Conditional Use review process of Sec. 20-0909:
   (1) No TSS may be located closer than 500 feet or three times the height of the TSS, whichever is greater, from any residentially zoned property, as measured from the base of the TSS to the nearest such residentially zoned property line;
   (2) The TSS must have co-location capability of at least two other telecommunications providers, unless stealth design considerations make co-location unfeasible as determined by the City Planner; and
   (3) TSSs shall be either clustered together or spread apart an adequate distance so as to reduce their impact on the overall appearance of the area and the view of the horizon. Therefore, TSSs shall be placed either no farther than 300 feet from an existing and approved telecommunications TSS, or a minimum distance of ¼ mile between

existing and approved telecommunications TSSs of 125 feet in height or less, and a minimum distance of ½ mile from telecommunications TSSs of over 125 feet in height, as measured from the base of one TSS to the base of another TSS.

c. As provided by Sec. 20-0401, TSSs of no more than 50 feet in height are permitted by right in MR-3, UMU, NO, NC, GO, LC and P/I zoning districts subject to use-specific standards, including:

(1) No TSS located in any non-residential zoning district may be located closer than 200 feet from any residentially zoned property, as measured from the base of the TSS to the nearest such residentially zoned property line: and

(2) No TSSs may be located closer than 200 feet from any SR zoning districts, as measured from the base of the TSS to the nearest point of such SR zoning district.

d. As provided by Sec. 20-0401, TSSs of no more than 35 feet in height are permitted by right in AG, SR-0-SR-5, MR-1-MR-2, MHP, and DMU zoning districts subject to the applicable use-specific standards of this section.

e. As provided by Sec. 20-0401, in AG, SR through SR-5, MR-1 through MR-3, UMU, MHP, NO, NC, GO, LC, DMU, and P/I zoning districts, TSSs which exceed the maximum height for TSSs permitted by-right for the applicable zoning district, but are not more than 125 feet in height are Conditional Uses and are therefore subject to the Conditional Use review process of Sec. 20-0909:

(1) No TSS may be located closer than ½ mile from any existing and/or approved TSSs of over 125 feet in height, and ¼ mile from any existing and/or approved TSSs of 125 feet or less, as measured from the base of one TSS to the base of another;

(2) The TSS must have co-location capability of at least one other telecommunications provider, unless stealth design considerations make co-location unfeasible as determined by the City Planner;

(3) TSSs shall comply with such other conditions as determined by the Planning Commission;

(4) No TSS located in any non-residential zoning district may be located closer than 200 feet or two times the height of the TSS, whichever is greater, from any residentially zoned property, as measured from the base of the TSS to the nearest such residentially zone property line; and

(5) No TSSs located in any MR zoning district may be located closer than 200 feet or two times the height of the TSS,

whichever is greater, from any SR zoning districts, as measured from the base of the TSS to the nearest point of such SR zoning district.

f. TSSs supported by Guy Wires - As provided by Sec. 20-0401, TSSs in AG zoning districts of any height are Conditional Uses and are therefore subject to the Conditional Use review process of Sec. 20-0909. Guy TSSs of any height are prohibited in all other zoning districts.

g. In addition to any of the foregoing requirements, all TSSs must comply with the following requirements, unless approval is otherwise obtained through the Conditional Use review process of Sec. 20-0909.

(1) The use of any portion of a TSS for signs other than warning or equipment information signs is prohibited.

(2) TSSs must be set back from public street, park, or bikeway right-of-way a minimum distance equal to one half of the height of the TSS, including all antennas and attachments.

(3) Unless the City Planner determines that stealth design considerations suggest otherwise, TSSs may not be located between a primary building structure and a public street within a front or side yard, except in LI and GI zoning districts, where TSSs may be placed within a side yard abutting an internal/local street. If a site in a GI or LI zoning district is surrounded by public streets, a TSS may be placed within a side yard abutting a local street.

(4) Except as otherwise approved as provided in this section, TSSs must not be illuminated by artificial means and not display strobe lights unless such lighting is specifically required by the Federal Aviation Administration or other federal or state authority for a particular TSS.

h. Before a building permit may be issued for a TSS, the City Planner must provide approval of the standards as follows. In such cases when the Conditional Use review process of Sec. 20-0909 is required for a TSS, the Planning Commission shall be the decision maker and must provide approval of the standards as follows:

(1) The design and construction of the TSS, antenna support structures, equipment buildings, fences, and other structures must be compatible with the architectural style of the surrounding built environment, considering colors, exterior building materials, roof form, scale, mass, color, and character.

(2) The base of the TSS must be enclosed by an opaque fence or wall of at least 6 feet in height and of a character

necessary to provide adequate visual screening and to limit access to the TSS. Such requirements may be waived by the City Planner if the TSS is of a stealth design.

(3) The City Planner may require, as a condition of approval of a TSS, that the lot upon which the TSS is located be brought into conformance with the residential protection standards and/or landscaping requirements set forth in Sections 20-0704 and 20-0705.

(4) Commercial wireless TSSs must be a monopole design unless stealth design considerations are made and the City Planner determines that the stealth design would be more fitting with the surrounding environment.

(5) When incorporated into the approved design of the TSS, light fixtures used to illuminate ball fields, parking lots or similar areas may be attached to the TSS.

i. The applicant shall submit such information as required by the Zoning Administrator including the following:

(1) Description of the TSS height and design including a cross section (site plan) showing the proposed location of the TSS and the equipment building and an elevation showing the proposed height of the TSS including the maximum tip-height (maximum height of any attached antennas),

(2) Documentation of the proposed height above grade for all potential mounting positions for co-located antennas and the minimum separation distances between antennas, and

(3) Descriptions of the TSS's capacity for both the primary user and co-location users, including the number and type of antennas or other equipment that can be accommodated.

(4) Applicant shall be responsible for changing frequencies of the installed equipment if it interferes with any then-existing police, fire or other public or private emergency service system or public signal system.

(5) Other information necessary to evaluate the application as determined during the review process.

j. The following definitions and general provisions shall apply to this Land Development Code:

(1) All TSSs shall be dismantled and removed by the owner when they are no longer in use or upon abandonment. Abandonment shall be deemed to have occurred when a TSS has not been continuously in use by a telecommunications user for a period of at least 12 consecutive months. An abandoned TSS shall be considered a nuisance. Upon abandonment of a TSS, upon 30 days' notice to the record owner of the property upon which the TSS is constructed,

exists or rests, if the TSS is not removed within a period of 60 days from said notice, the TSS and associated facilities may be removed by the City and the costs of removal assessed against the property, in accordance with the provisions of Sec. 11-0103 of the Fargo Municipal Code.

(2) The height of TSSs shall be measured from the TSS′s center point of contact with the ground to the highest point of the TSS, including all antennas or other attachments.

(3) The term ″Co-Location″ shall mean the location of more than one antenna or transmitter on a single TSS.

(4) The term ″stealth″ as used in this section shall mean, in referring to freestanding telecommunications TSSs, the ability to blend into the context of the surrounding environment at a given location or to use a TSS design that is as inconspicuous as possible under the existing or planned circumstances by screening, disguising, concealing, or otherwise camouflaging the TSS as a natural feature, as part of the structure, or as an accessory structure consistent with the overall function of the property on which the TSS is located. For antenna support structures, stealth is the ability to camouflage, conceal, or reduce the conspicuousness of the presence of wireless communication facilities.

k. Through a Conditional Use Permit, the Planning Commission may reduce the TSS spacing and setback requirements of this section (§20-0402.N) by up to 50 percent. Spacing requirements that are eligible for reduction include: 1) spacing distances between existing and proposed TSSs and 2) setback distances from SR and other residential zoning districts. Any such request for reduction of these spacing and/or setback requirements shall be considered in accordance with the Conditional Use Permit review procedures of Section 20-0909, and shall comply with the following standards:

(1) The TSS shall be of a stealth design;

(2) If applicable, the applicant already has telecommunication facilities on the existing TSS from which separation would otherwise be required; and

(3) If applicable, the applicant shall submit verification that the communication equipment planned for the proposed TSS cannot be installed on an existing TSS within the area (if any).

O. Temporary Use of Residential Home as Sales and Construction Office.

In a subdivision of at least 10 lots in number, one residential dwelling may be used on a temporary basis as a sales office and/or construction office for other lots and/or new homes within the subdivision. A permit for such temporary use must be obtained from the Zoning Administrator. The temporary use as such

sales office and/or construction office shall be permitted until such time as ninety percent (90%) of the lots in the subdivision have been sold to persons, firms or entities other than the permittee, upon which event said temporary use must be terminated within ninety (90) days of such event. In no event, however, shall such temporary use be allowed for more than three (3) years from the date of approval of the subdivision unless an extension of the permit is granted as a Conditional Use, in accordance with the Conditional Use review procedures of Sec. 20-0909.

P. Pet Boarding

Within GC, LI and GI zoning districts, animal daycare shall be an allowed use under the following conditions:

1. The proposed facility may not be within 300 feet of any residentially zoned property, measured from the pet enclosure to the property line of the residentially zoned property.

Q. Industrial Service in DMU zoning district

1. In acting upon Conditional Use Permit requests for Industrial Service uses in the Downtown Mixed Use zoning district, the Planning Commission shall consider the following:
   a. Is the proposed use compatible with the surrounding land uses?
   b. Does the proposed development plan meet all Land Development Code requirements for the Downtown Mixed Use Zoning district?
2. Any outdoor storage associated with an Industrial Service use in the DMU district shall be fenced with a six-foot opaque fence, which may not include chain link with slats.
3. Industrial Service vehicles and/or construction equipment larger than pick-up trucks and one ton delivery vans shall be stored off-site or within a building.

R. Industrial Uses in General Commercial Zoning

1. Within GC zoning districts, Industrial Service, Manufacturing and Production, Warehouse and Freight Movement, and Wholesale Sales shall be allowed uses under the following conditions:
   a. The proposed facility may not be within 300 feet of any residentially zoned property, measured from proposed industrial development to the property line of the residentially zoned property.
   b. All outdoor storage areas must be screened with an opaque fence, building, wall, berm or landscape buffer, that is at least six feet in height.
      (1) Outdoor storage areas shall not cover more than 50 percent of the open space of the development.
      (2) Outdoor storage areas shall not be located within the front setback area of the development.
   c. No truck parking will be allowed in the front setback area, or on any side of the development directly visible from residentially zoned property. Truck parking areas directly visible from rights-of-way shall be buffered with an opaque fence or continuous

hedge and large tree species placed 35 feet on center. Trees shall be a minimum of 1.5 inch caliper at the time of installation and do not count toward open space or parking lot buffer requirements.

d. No truck docks or unloading areas will be allowed in the front, or any side of the development directly visible from residentially zoned property or street rights-of-way. Unloading and docking areas visible from rights-of-way shall be buffered with an opaque fence or continuous hedge and large tree species placed 35 feet on center. Trees shall be a minimum of 1.5 inch caliper at the time of installation and do not count toward open space or parking lot buffer requirements.

e. Residential protection standards for landscaping buffers shall apply to any side of the development within 600 feet of residential zoning districts, or within 600 feet of vacant land illustrated as residential in the Growth Plan.

f. These standards do not apply to aggregate or soil and/or construction debris storage, concrete batching, or asphalt mixing uses listed under industrial service. Therefore, aggregate storage, concrete batching, and asphalt mixing are prohibited in the GC zoning district.

S. Bed and Breakfast - All bed and breakfast uses shall be subject to the following standards:

1. Bed and breakfast uses shall be subject to a Conditional Use Permit in accordance with Section 20-0909.
2. Structures shall not be altered in a way that changes their general residential appearance.
3. A minimum of one off-street parking space shall be provided for each guest bedroom, plus spaces required for the principal residence in accordance with Section 20-0701.B. Additional parking shall be required if reception or party space is available. If four or more off-street parking spaces are provided, visual screening from adjacent residential uses shall be required.
4. One sign shall be allowed, with a size limit of two square feet. Internally illuminated signs are not allowed.
5. Receptions, private parties, or similar activities shall not be permitted unless expressly approved as part of the Conditional Use Permit.
6. No long-term rental shall be permitted. The maximum length of stay shall be 30 days.
7. All guest rooms shall be located within the principal structure.
8. Other than registered guests, no meals shall be served to the general public unless expressly approved as part of the Conditional Use Permit.
9. No cooking facilities shall be allowed in the guest rooms.
10. All bed and breakfast establishments must comply with the Fargo Health Department Regulations.
11. All bed and breakfast establishments shall comply with Fire Code Requirements.

T. Non-farm Commercial Uses

1. A Non-farm Commercial Use shall not be allowed unless it has been reviewed and approved in accordance with the Conditional Use Review procedures of Sec. 20-0909. In acting upon Conditional Use Permit requests for such use, the Planning Commission shall consider the following factors:
   a. The factors identified in Section 20-0909 (Conditional Use Permits).
   b. Whether adequate facilities and services including, but not limited to, sewage and waste disposal, domestic water, building construction and inspection, flood protection, gas, electricity, police and fire protection, and roads, as may be applicable are adequate under the cirumcstances. As part of the application for the Conditional Use Permit, the Zoning Administrator may require the applicant to obtain written comment from such facility and service providers as may be applicable.
2. The City Planner shall provide written notice of the Planning Commission public hearing in accordance with Section 20-0901-F except that the written notice shall be mailed to property owners within one (1) mile of the subject property. Notice of the Planning Commission's public hearing shall be published in accordance with Section 20-0901-F.
3. **Prohibited Uses.** Dispatch Centers and Adult Establishments as defined in Section 20-0403.C.5 are prohibited uses.
4. Unless otherwise expressly stated, Conditional Use Permits for Non-farm Commercial uses granted pursuant to Section 20-0909 shall automatically terminate upon sale or transfer of the property.

U. Group Living

1. Purpose and Intent

The city finds and declares that group living of convicted felons is a serious threat to public safety. The city finds that measures should be taken to reduce temptation and opportunity to better protect its citizens; especially children, the elderly and other "at risk" populations. The city contends that without the benefit of a behavioral program intended to reduce the rate of recidivism, the tendency of a convicted felon to relapse into a previous mode of behavior, especially criminal behavior, is amplified by cohabitation with groups of other convicted felons. This regulation is aimed at protecting the health and safety of citizens in the City of Fargo from the risk of convicted felons by establishing a minimum distance at which a group living facility housing convicted felons can be established where children, the elderly, at other at risk populations tend to congregate or be regularly present. It is not the intent of this article to impose a criminal penalty but rather to serve the city's compelling interest to promote, protect and improve the health, safety, and welfare of the citizens of the city by maintaining safety zones around locations

where "at risk" populations regularly congregate in concentrated numbers wherein convicted felons are prohibited from establishing a permanent group living situation.

2. Characteristics

Group Living Restricted Residency is characterized by the residential occupancy of a structure by a group of people, who have been individually convicted of a felony, that do not meet the definition of Household. The size of the group may be larger than the average size of a household. Tenancy is arranged on a monthly or longer basis. Uses where tenancy may be arranged for a shorter period are not considered residential. They are considered to be a form of transient lodging (see the Retail Sales and Service and Community Service categories). Generally, group living structures have a common eating area for residents.

3. Accessory Uses

Accessory uses commonly associated with Group Living Restricted Residency are group treatment and/or training, offices, recreational activities, and parking of vehicles for occupants and staff.

4. Examples

Examples of Group Living Restricted Residency include residential programs for drug and alcohol treatment, treatment of sex offenders; and alternative or post incarceration facilities.

5. Exceptions

a. Lodging where tenancy may be arranged for periods of less than 30 days is to be considered a hotel or motel use and classified in the Retail Sales and Service category.

b. Lodging where the residents meet the definition of Household and where tenancy is arranged on a month-to-month basis or for a longer period is classified as Household Living.

c. Facilities for people who are under judicial detainment and under the supervision of sworn officers are included in the Detention Facilities category.

d. The person was a minor when he/she committed the offense and was not convicted as an adult.

e. The person is a minor or ward under guardianship.

6. Applicability

Group Living Restricted Residency uses subject to a conditional use permit as determined in Table 20-0401 of Article 20-04 of this code, are allowed, if reviewed and approved as a Conditional Use, in accordance with the Conditional Use review procedures of Sec. 20-0909.

7. Conditions of Approval

In acting upon Conditional Use Permit requests for Group Living-Restricted Residency uses in any conditionally permitted zoning district, the Planning Commission shall also consider the following factors:

a. Whether or not the dwelling unit meets all building, housing, and fire codes of the City;

b. Whether or not the property has off-street parking space for every vehicle which is owned, possessed or utilized by occupants of the building. Such parking spaces must meet all applicable standards of the City;

c. The general condition of the building and whether or not it is in need of substantial repairs or renovation; and

d. Whether or not the requested occupancy is compatible with the neighborhood and will not create undue density and/or congestion.

The establishment of a Group Living Restricted Residency Behavioral Program. The program must include a list of the facility's goals and objectives intended to prevent recidivism along with procedures to ensure its successful implementation.

Source: 2985 (1999), 3008 (1999), 4039 (2000), 4089 (2000), 4164 (2001), 4222 (2002), 4223 (2002), 4240 (2002), 4323 (2003), 4372 (2003), 4445 (2004), 4560 (2006), 4604 (2007), 4613 (2007), 4771 (2010), 4807 (2012), 4895 (2013), 4988 (2015), 5078 (2017), 5116 (2017), 5125 (2018), 5179 (2018), 5379 (2022), 5466 (2025).

§20-0403 Accessory Uses

A. General

Permitted uses and approved conditional uses shall be deemed to include accessory uses and accessory structures. Accessory uses and structures will be subject to the same regulations as apply to principal uses and structures in each district, unless otherwise stated in this Land Development Code. Examples of customary accessory uses can be found in use category descriptions of Sec. 20-1203. Interpretations regarding allowed accessory uses shall be made by the Zoning Administrator.

B. Development Standards

The following standards apply to all accessory uses and structures unless otherwise expressly provided.

1. Timing of Construction

Accessory structures must be constructed in conjunction with or after the principal building. They may not be built prior to the construction of the principal structure.

2. Front and Street Side Setbacks and Yards

No accessory structure, other than a fence, wall or hedge may be located within a required front or street side setback. The location of fences and walls within parking lot buffers are regulated by §20-0705.

3. Rear Setback

a. In all zoning districts, except the UMU zoning district, accessory structures, when located within the rear yard area, are exempt from the rear and interior-side setback requirements of the underlying zoning district and shall be set back at least 3 feet from rear and interior-side lot lines. This 3-foot setback shall not apply to fences or walls.

b. In a UMU district, accessory structures, other than fences or walls shall meet the rear setback requirements of Sec. 20-0501. As in districts other than UMU zoning districts, said setback requirements do not apply to fences or walls.

4. Interior Side Setback

a. In zoning districts other than UMU, no accessory structure, other than a fence or wall, may be located within a required interior side setback, except that garages and parking structures accessory to multi-dwelling development in all MR districts shall only require a 3-foot minimum setback on lots platted after February 17, 1998. On MR lots that share a common interior side-yard, no setback is required to accessory structures provided there is a recorded cross-access agreement between the record owners of the respective properties, and provided the structures meet all applicable building codes for such a structure.

b. In a UMU zoning district, accessory structures, other than fences or walls, shall meet the interior side setback requirements of Sec. 20-0501.

5. Setbacks from Public Easements

No accessory structure, other than a fence or wall, may be located within any recorded public easement or over any known public utility.

6. Height of accessory structures/fences, walls, hedges.

a. Residential Districts

In SR-1 through SR-5 and MR and UMU zoning districts accessory structures shall not exceed 15 feet in height.

b. AG, SR-0 and Nonresidential Districts

In the AG, SR-0 districts and the NO and more intensive zoning districts, accessory structures shall not exceed the maximum height limit of the underlying district, unless expressly authorized by this Land Development Code.

c. Fences, Walls and Closely Grown Hedges.

(1) Within SR, MR, UMU, NC and NO zoning districts, restrictions on the height of fences, walls and closely grown hedges shall be as follows:

(a) in any front yard no fence, wall or hedge shall exceed 3 feet in height, provided however, that fences that are at least 75% light-permeable may exceed 3 feet, but may not exceed 4 feet in height;

(b) in any street side yard or interior sideyard from the front property line extending the length of the front-yard setback distance or to the front of any existing house or other principal building, whichever length is greater, no fence, wall or hedge shall exceed 3 feet in height, provided however, that fences that are at least 75% light-permeable may exceed 3 feet, but may not exceed 4 feet in height;

(c) in any street side yard or interior side yard from the point identified in subparagraph (b) hereof to the rear property boundary or in any rear yard no fence, wall or hedge shall exceed 6.5 feet in height; and,

(d) in any rear yard, any fence, wall, or hedge located at least three feet from the property line may exceed 6.5 feet, but may not exceed 8.5 feet.

(2) Within LC, GC, DMU, LI and GI zoning districts, restrictions on the height of fences, walls and closely grown hedges shall be as follows:

(a) No fence, wall or hedge shall exceed 8.5 feet in height.

(b) In the event the property is adjacent to residentially-zoned property, no fence, wall or hedge may exceed 6.5 feet in height along, or within three feet of, the property line abutting residentially-zoned property.

(3) Sight Distance - Within any zoning district, the following restrictions shall apply: (a) On corner lots, no fence, wall or hedge located within 20 feet of a street intersection (right-of-way line) shall exceed 3 feet in height, measured from curb level; and (b) The height of fences, walls and closely grown hedges shall be measured from the elevation of the sidewalk or curb of the adjacent street.

(4) Notwithstanding any other provisions of this section, any fence located completely within the required building setback for the zoning district is subject only to the height limitations as are buildings within that zoning district.

7. Building Coverage

Building coverage of detached accessory structures may not exceed that of the principal building or 700 square feet, whichever is greater; provided, however, that in MR zoning districts, garages accessory to multi-dwelling structures may not exceed 130 percent of the building coverage of the principal building, and in a UMU zoning district building coverage of detached accessory structures may not exceed 50 percent of the building coverage of the principal building, and in the SR-0 district, building coverage of detached accessory structures may not exceed 150 percent of the building coverage of the principal building and in SR-0, SR-1 and SR-2 districts when lot sizes are equal to or greater than 40,000 square feet in size, building coverage of detached accessory structures may not exceed the size as shown on Table 20-0403 below. Accessory buildings and structures shall be included in the calculation of total building coverage. In MR zoning districts, as to multi-dwelling structures with garages as accessory buildings, building coverage may be allowed up to 37.5 percent, provided there is a significant shared site amenity to be shared among the tenants included on the landscaping plan submitted during the building permit process. Examples of such amenities: gazebo with barbeque pit, volleyball court, basketball court, tot-lot/playground, swimming pool, or such other shared amenities as approved by the Zoning Administrator.

Table 20-0403

Lot Size	Maximum size of Accessory Structure
40,000 sq. ft. to 2 Ac.	4,000 sq. ft.
+ 2 Ac. to 3 Ac.	4,500 sq. ft.
+ 3 Ac. to 4 Ac.	5,000 sq. ft.
+ 4 Ac. to 5 Ac.	5,500 sq. ft.
+ 5 Ac. to 10 Ac.	6,000 sq. ft.

C. Home Occupations

Many types of work can be conducted at home with little or no effect on the surrounding neighborhood. The home occupation regulations of this section are intended to permit residents to engage in home occupations, while ensuring

that home occupations will not be a detriment to the character and livability of the surrounding neighborhood. The regulations require that home occupations (an accessory use) remain subordinate to the allowed principal use (household living) and that the residential viability of the dwelling unit is maintained.

1. Types of Home Occupations

There are two types of home occupations - Major Home Occupations and Minor Home Occupations. Both types are considered an accessory use to an allowed household living use. Unless otherwise expressly stated, the regulations of this Land Development Code apply to both types of home occupations.

2. Minor Home Occupations - Defined

A Minor Home Occupation is one in which residents use up to 25 percent of the floor area of their home as a place of work, but in which no employees come to the site. Minor Home Occupations allow up to four customers per day, with a maximum of 12 customers per week, only between the hours of 7:00 a.m. and 9:00 p.m. No more than one customer is permitted on the site at any given time. Examples include, but are not limited to, artists, crafts people, writers, professional consultants personal care and grooming services, and employees of off-site businesses who work from their home. In addition, tutors, such as piano or other music teachers, who provide lessons to no more than 60 students per week and do not have non-resident employees coming to the site, shall be deemed minor home occupations. In addition, dog grooming services that would qualify as a Minor Home Occupation as a result of percentage of floor area of the home, customer activity and hours of operation may be allowed after it has been reviewed and approved in accordance with Conditional Use Review procedures of Sec. 20-0909. Unless otherwise expressly stated, any Conditional Use Permit for such dog grooming service granted pursuant to Section 20-0909 shall automatically terminate upon sale or transfer of the property. For purposes of calculating floor area of a minor or major home occupation in which the home occupation occupies a garage that is attached or detached from the primary home structure, the sum of the home and garage square footage shall be included in the total square footage from which the 25 percent maximum floor area is computed.

3. Major Home Occupations - Defined

A Major Home Occupation is one in which residents use up to 25 percent of the floor area of their home as a place of work and that has a nonresident employee and/or customers coming to the site. Examples are counseling, tutoring, and hair cutting and styling.

4. Allowed Uses

The home occupation regulations of this Land Development Code establish performance standards for accessory home occupations rather than defining a list of allowed home occupations. Uses that comply with all of the standards of this section will be allowed as home occupations unless they are specifically prohibited.

5. Prohibited Uses

a. Vehicle and Large Equipment Repair

Any type of repair or assembly of vehicles or equipment with internal combustion engines (such as autos, motorcycles, scooters, snowmobiles, outboard marine engines, lawn mowers, chain saws, and other small engines) or of large appliances (such as washing machines, dryers, and refrigerators) or any other work related to automobiles and their parts is prohibited.

b. Dispatch Centers

Dispatch centers, where employees come to the site to be dispatched to other locations, are not allowed as home occupations.

c. Mortuaries

Mortuaries are not allowed as home occupations.

d. Animal Care, Grooming, or Boarding Facilities

Animal care or boarding facilities are not allowed as home occupations. This includes animal hospitals, kennels, stables and all other types of animal boarding and care facilities. Dog grooming services are also included as prohibited animal care or boarding facilities; however, to the extent such services would otherwise qualify as a Minor Home Occupation, dog grooming services may be allowed upon application as provided in paragraph 2, regarding Minor Home Occupations, above. In no event may dog grooming be allowed as a Major Home Occupation.

e. **Adult Establishments**

Adult establishments as defined in Sec. 20-1202 are not allowed as a home occupation.

6. Signs

No more than one sign shall be allowed on the site of a home occupation. The maximum size of the sign shall be one square foot. It may not be illuminated, and it must be attached to the dwelling unit.

7. Outdoor Activities

All activities and storage areas must be conducted in completely enclosed structures.

8. Exterior Appearance

There may be no change in the exterior appearance of the dwelling unit that houses the home occupation or the site upon which it is conducted that will make the dwelling appear less residential in nature or function. Examples of such prohibited alterations include construction of parking lots, paving of required setbacks, or adding commercial-like exterior lighting. There may be no visible evidence of the conduct of a home occupation when viewed from the street right-of-way or from an adjacent lot.

9. Operational Impacts

No home occupation or equipment used in conjunction with a home occupation may cause odor, vibration, noise, electrical interference or

fluctuation in voltage that is perceptible beyond the lot line of the lot upon which the home occupation is conducted. No hazardous substances may be used or stored in conjunction with a home occupation.

10. Trucks and Vehicles

No truck or van with a payload rating of more than 1 ton may be parked at the site of a home occupation, and no more than one truck or van with a payload rating of less than 1 ton is allowed at the site of a home occupation.

11. Deliveries

Deliveries or pick-ups of supplies or products associated with business activities are allowed only between 8 a.m. and 6 p.m. Vehicles used for delivery and pick-up are limited to those normally servicing residential neighborhoods.

12. Major Home Occupations

The following regulations apply only to Major Home Occupations.

a. Conditional Use Permits

No Major Home Occupation is allowed unless it has been reviewed and approved in accordance with Conditional Use Review procedures of Sec. 20-0909. Unless otherwise expressly stated, any Conditional Use Permit for such Major Home Occupation granted pursuant to Section 20-0909 shall automatically terminate upon sale or transfer of the property.

b. Employees

A maximum of one nonresident employee is allowed with a Major Home Occupation provided no customers come to the site. Major Home Occupations that have customers coming to the site are not allowed to have nonresident employees. For the purpose of this provision, the term "nonresident employee" includes an employee, business partner, co-owner, or other person affiliated with the home occupation, who does not live at the site, but who visits the site as part of the home occupation.

c. Customers

Customers may visit the site only during the hours of 7 a.m. to 9 p.m., and no more than 12 customers or clients may visit the site in any single day.

d. Number

No more than one Major Home Occupation may be conducted on a single site. A Minor Home Occupation may be conducted on the site of a Major Home Occupation.

D. Freestanding Non-Commercial Telecommunications Support Structures

Telecommunications Support Structures ("TSS") for the purpose of elevating non-commercial antennas are permitted as accessory uses in AG, SR, MR, UMU, NC, and NO zoning districts, pursuant to the requirements listed below.

1. The maximum permitted height of a TSS for non-commercial antennas in an AG, SR, MR, UMU, NC, or NO zoning district or on a site with

residential land use is a total of 50 feet, as measured from the ground to the top of the TSS. The maximum height of masts and/or antennas mounted on the TSS is 30 feet, for a total maximum height of 80 feet.

2. In an AG, SR, MR, UMU, NC, or NO zoning district, or on a site with residential land use, a TSS of greater than 50 feet, up to a maximum of 70 feet, as measured from the ground to the top of the TSS is a conditional use. The maximum height of masts and/or antennas mounted on the TSS is 30 feet, for a total maximum height of 100 feet. Factors for considering approval of a conditional use for TSSs exceeding 50 feet in height include:
   a. Existence of a structure within 300 feet of the TSS, which will create interference with antenna operations.
   b. Tree heights in the yard where the TSS is to be located or in immediately adjacent yards are such that they will interfere with ham radio operations.
   c. The orientation of the trees, yard, TSS, and neighboring homes is such that the increased height will not make the TSS more noticeable or more intrusive to properties within 300 feet.
3. In all other zoning districts, the provisions of Section 20-0402.N. shall apply.
4. Non-commercial antenna TSS shall be permitted only in the rear yard of the property. If the yard is configured in a manner such that there is essentially no rear yard available for the TSS, the Zoning Administrator may approve placement of the TSS within the sideyard. In addition, if the Zoning Administrator determines that locating the TSS in the sideyard would result in reduced visibility of the TSS by neighboring properties, a sideyard location may be approved.
5. Setbacks of the TSS shall meet the dimensional standards of the zoning district in which they are located. Antennas mounted upon such TSS shall not project beyond the property lines.
6. Guy wires, if used, may be anchored within the side or rear yard setbacks of the property. They shall not project into or be anchored into the front yard.
7. The application for a Building Permit and/or Conditional Use Permit for a freestanding non-commercial antenna TSS shall include:
   a. A site plan showing the exact proposed location of the TSS,
   b. Installation plans demonstrating the adequacy of the structural design,
   c. Documentation showing the proposed height of the TSS and the materials from which it will be constructed, and
   d. Any other information as deemed necessary by the Inspections Administrator or the Zoning Administrator.
8. One freestanding non-commercial antenna TSS shall be permitted per residential unit. Additional TSSs, up to a maximum of three, require approval of a Conditional Use Permit, subject to the review criteria stated above and the criteria listed in Section 20-0909.

E. Keeping of Chickens

The keeping of chickens authorized by a city permit in accordance with Article 12-03 shall not be considered an agricultural use but, rather, shall be considered an accessory use to household living. [See also § 20-1203.G, Agricultural use category.]

Source: 2985 (1999), 3008 (1999), 3062 (1999), 4039 (2000), 4164 (2001), 4180 (2001), 4224 (2002), 4239 (2002), 4299 (2003), 4337 (2003), 4695 (2009), 4704 (2009), 5091 (2017), 5092 (2017), 5179 (2018), 5379 (2022), 5466 (2025).

§20-0404 Temporary Uses

A. Purpose

Provisions authorizing temporary uses are intended to permit occasional, temporary uses and activities when consistent with the purposes of this Land Development Code and when compatible with other nearby uses.

B. Exemptions

The following shall be permitted as temporary uses without complying with the permit requirements of this section:

1. Garage sales conducted in residential areas by the owner of such premises for no more than 3 days total in any 180-day period; and
2. Christmas tree sales.

C. Authority to Approve

Temporary uses are prohibited, except that the Zoning Administrator shall have the authority and responsibility to grant permits for certain temporary uses as provided in this section.

D. Definition

A temporary use is a use of property conducted from an area, structure or facility that does not require a building permit from the City of Fargo and which may not comply with the use or dimensional standards of this Land Development Code. Such area, facility, or structure may include parking lots, lawns, trucks, tents, or other temporary structures.

E. Time Limit

Temporary uses will be permitted for a maximum of 15 days, provided, however, the Zoning Administrator should be authorized to allow such temporary use to extend for as long as 8 months. Upon expiration of a temporary use permit, another permit for the same premises may not be obtained for at least 30 days. The applicant shall submit a written explanation of the length of time needed for the temporary use.

Examples of uses that require temporary use permits include, but are not limited to the following:

1. Greenhouses,
2. Fireworks sales (permitted outside City limits only),
3. Outdoor seating and serving area at a restaurant (must include an alternative parking plan if on-site parking area is affected),
4. On-site storage tents, trailers, or other shelter to house inventory during construction or other unusual business interruptions.

F. Permit Required

A permit must be obtained from the Zoning Administrator before establishing a temporary use.

G. Procedure

A complete application for Temporary Use Permit must be submitted to the Zoning Administrator in a form established by the Zoning Administrator along with a non-refundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid. The application shall be reviewed for its likely effects and surrounding properties and its compliance with the purpose of

this section. The Zoning Administrator shall impose such conditions of approval as are necessary to ensure compliance with the purposes of this Land Development Code. If the permit complies with all applicable provisions of this Land Development Code it will be approved.

Source: 4164 (2001).

ARTICLE 20-05

DIMENSIONAL STANDARDS

§20-0501 Residential District Standards

The dimensional standards of Table 20-0501 apply to all development in MR-3 and more restrictive zoning districts.

Table 20-0501

Dimensional Standard	Zoning District										
	AG	SR-0	SR-1	SR-2	SR-3	SR-4	SR-5[9]	MR-1	MR-2	MR-3	UMU
Maximum/Minimum Density (UPA - Units per Acre)	0.1 Max.	1.0 Max.	2.9 Max.	5.4 Max.	8.7 Max.	12.1 Max.	14.5 Max.	16.0 Max.	20.0 Max.	24.0 [1] Max.	18.0 Min.
Minimum Lot Size											
Area (Sq. Ft.)	10 Ac	1 Ac [2]	15,000	8,000	5,000	3,600	3,000	5,000	5,000	5,000	2,420
Width (Ft.)	200	120	80	60	50[3]	34[3]	25	50[3]	50[3]	50[3]	50[3]
Minimum Setbacks(Ft.)											
Front	50[4]	50	35	30	20	15[5]	15[5]	25	25	25	10
Interior Side[6]	25	25	15%/15	10%/5	10%/5	4	4	15%/25	15%/25	10	5
Street Side	25[7]	25	17.5	15	12.5	10	10	12.5	12.5	12.5	10
Rear	50	50	25	25	15	15	15	20	20	20	15
Watercourse Setback	[10]	[10]	[10]	[10]	[10]	[10]	[10]	[10]	[10]	[10]	[10]
Max. Building Coverage (Pct. of Lot)	NA	25	25	35	40	45	50	35[8]	35[8]	35[8]	75
Minimum Open Space(Pct. of Lot)	NA	NA	NA	NA	NA	NA	NA	35	35	35	NA
Maximum Height (Ft.)	35	35	35	35	35	35	35	35	45	60	60

Source: 2985 (1999), 3062 (1999), 4039 (2000), 4165 (2001), 4338(2003), 4695 (2009), 4818 (2012), 5091 (2017).

[1] Higher densities may be allowed in accordance with the Bonus Density provisions of Sec. 20-0505.
[2] SR-0 minimum district size is 20 acres. See Sec. 20-0203-A.
[3] Minimum lot width subject to limitation of access as provided in Sec. 20-0702.
[4] Minimum 100 feet from right-of-way on Arterial or section line road.
[5] Minimum 20-foot setback shall be provided between front-entry garages and nearest edge of sidewalk crossing plate.
[6] #/# = Percent of Lot Width/Feet (whichever is less).
[7] Minimum 75 feet from right-of-way on Arterial or section line road.
[8] Maximum of 37.5 percent of building coverage shall be allowed if site amenity is provided in accordance with Sec. 20-0403.B.7. If the amenity is contained within the footprint of one primary structure, the floor area of that amenity is counted as open space, but is not subtracted from the area of the building.
[9] The SR-5 zoning district is limited to a maximum size of 21,000 square feet, but may exceed 21,000 square feet, up to a maximum of two acres provided the district is within 600 feet of a private or public dedicated open space feature, such as a public park, private park, school yard or playground that is accessible to residents of the SR-5 district, any of which shall be a minimum of two acres or more in size. For purposes of identifying a single SR-5 zoning district, parcels adjacent to one another that are, or will be, the same zoning classification shall be deemed to be within the same zoning district and, therefore, shall be subject to the maximum size limitation.
[10] Watercourse setbacks for all residential, nonresidential and overlay/special zoning districts are as set forth in Section 20-0508.

§20-0502 Nonresidential District Standards

The dimensional standards of Table 20-0502 apply to all development in nonresidential zoning districts.

Table 20-0502

Dimensional Standard	GO	LC	DMU	GC	LI	GI
Minimum Lot Size						
Minimum Setbacks(Ft.)						
Front	20	10	0	20	20	50
Interior Side	5	5	0	5[1]	10[1]	20[1]
Street Side	20	10	0	20	20	50
Rear	15	15	0	15	20	20
Watercourse Setback	[3]	[3]	[3]	[3]	[3]	[3]
Maximum Building Coverage (Pct. of Lot)	65	55	100	85	85	85
Maximum Height (Ft.)	60	35/60 [2]	None	None	None	None

Source: 4039 (2000), 4225 (2002), 4818 (2012), 5179 (2018).

[1] No setback required when adjacent to DMU

[2] The 35-foot height restriction applies whenever residential protection standards apply, or when the Limited Commercial parcel is within 300 feet of SR zoning. Otherwise, the height limit shall be 60 feet in Limited Commercial zoning districts.

[3] Watercourse setbacks for all residential, nonresidential and overlay/special purpose zoning districts are as set forth in Section 20-0508.

§20-0503 Overlay/Special Purpose Zoning District Standards

The dimensional standards that apply within overlay and special purpose zoning districts can be found in the following sections:

PUD, Planned Unit Development	Sec. 20-0302[3]
C-O, Conditional Overlay	Sec. 20-0303 (no set standards)[3]
P/I, Public and Institutional	Sec. 20-0304[3]
H-O, Historic Overlay	Sec. 20-0305 (no dimensional standards)[3]
HIA-O, Hector International Airport Overlay	Sec. 20-0306[3]
NO, Neighborhood Office	Sec. 20-0208[3]
NC, Neighborhood Commercial	Sec. 20-0209[3]

Source: 2985 (1999), 4039 (2000), 4818 (2012).

§20-0504 Measurements and Exemptions

A. Density

Density refers to the number of dwelling units for each acre of land. Density is calculated by dividing the number of dwelling units on a lot by the area (in acres) of the lot on which the dwelling unit is located. The number of dwelling units allowed on a site is based on the presumption that all other applicable standards will be met. The maximum density established for a district is not a guarantee that such densities may be obtained, nor a justification for adjusting other dimensional or development standards.

B. Lot Area

Lot area refers to the horizontal land area within lot lines. No building permit or development approval may be issued for a lot that does not meet the minimum lot area requirements of this Land Development Code except in the following cases.

1. Reduction of Public Purpose

When an existing lot is reduced because of conveyance to a federal, state or local government for a public purpose and the remaining area is at least 75 percent of the required minimum lot size for the district in which it is located, then that remaining lot will be deemed to comply with the minimum lot area standards of this Land Development Code.

2. Utilities

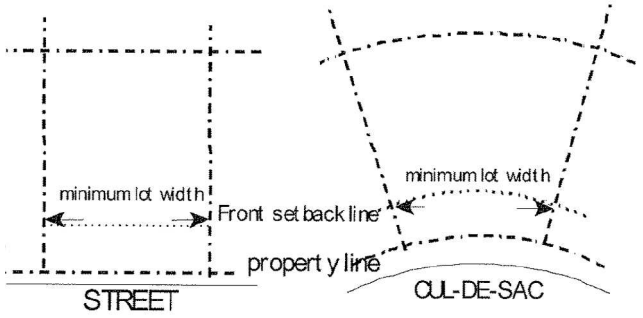
Utilities using land or an unoccupied building covering less than 1,000 square feet of site area are exempt from the minimum lot area standards.

3. Detached House Exemption

The minimum lot area standards of this Land Development Code shall not be interpreted as prohibiting the construction of a detached house on a Legal Lot, provided that the house is constructed in compliance with all applicable setback standards.

C. Lot Width

Lot width is measured between side lot lines along a line that is parallel to the front lot line or its chord and located the minimum front setback distance from the front lot line.



D. Setbacks

Setbacks refer to the unobstructed, unoccupied open area between the furthermost projection of a struc-

ture and the property line of the lot on which the structure is located, except as modified by the standards of this section. Setbacks must be unobstructed from the ground to the sky except as specified in this section.

1. Exceptions to Setbacks

Every part of a required setback must be open and unobstructed from the ground to the sky except as set out in this subsection:

a. Trees, shrubbery or other landscape features may be located within any required setback;

b. Fences and walls may be located within any required setback, subject to Sec. 20-0403-B.2;

c. Driveways and sidewalks may be located within any required setback;

d. Utility lines, wires and associated structures, such as power poles, may be located within any required setback;

e. Signs, where permitted, may be located within any required setback;

f. Uncovered porches, uncovered steps to building entrances, uncovered patio decks and uncovered balconies may extend up to 10 feet into any required front, rear or street side setback and up to 3 feet into any required interior side setback;

g. Openwork fire balconies and fire escapes may extend up to 3 ½ feet into any required setback;

h. Sills, belt courses, cornices, buttresses, eaves and other architectural features may extend up to 3 feet into any required setback;

i. Off-street parking and loading areas, subject to Sec. 20-0704, may be located within any required setback;

j. Chimneys and flues may extend up to 2 feet into any required setback;

k. Accessory structures may be located within rear setbacks in accordance with Sec. 0403-B.3. (See also Sec. 0403-B.4);

l. Solar panels and other apparatus needed for the operation of active and passive solar energy systems and all other forms of renewable passive energy, including but not limited to, overhangs, movable insulating walls and roofs, detached solar collectors, reflectors, and piping may project into a required rear setback by up to 10 feet and into a side setback by up to 3 feet. In all cases, however, they must be located at least 3 feet from all lot lines; and

m. Satellite dish antennas may be placed in required rear setbacks and on roofs.

2. Setback Averaging

In a block where the average front setback of existing buildings within 100 feet of the subject lot is not more than 6 feet greater or 6 feet less than the front setback requirement for the zoning district in which such block is located, the front setback for the proposed building shall be set at such average depth. Where such average depth is more than 6 feet greater or 6 feet less than the front setback required for such district, this average

setback requirement may be waived by the Board of Adjustment and a different requirement established by the Board of Adjustment. When a block is zoned in different zoning districts, the front setback requirements of the district that requires the greater front setback shall apply along its entire length. Setback averaging is not required in a UMU, University Mixed-Use District.

3. Reverse Corner Lots

The minimum street side setback on a reverse corner lot shall equal at least 50 percent of the required front setback of the lots located to the rear of the reverse corner lot. No principal or accessory building on the reverse corner lot shall project beyond this minimum street side setback line. This provision shall not be construed to reduce the buildable lot width of a corner lot to less than 25 feet.

4. Reduction for Public Purpose

When an existing setback is reduced because of conveyance to a federal, state or local government for a public purpose and the remaining setback is at least 75 percent of the required minimum setback for the district in which it is located, then that remaining setback will be deemed to satisfy the minimum setback standards of this Land Development Code.

E. Building Coverage

Building coverage refers to the area of a lot covered by buildings (principal and accessory) or roofed areas, as measured along the outside wall at ground level, and including all projections, other than open porches, fire escapes, canopies and the first three feet of a roof overhang.

F. Open Space

Open Space refers to outdoor, unenclosed areas, located on the ground or on a roof, balcony, deck, porch or terrace designed and accessible for outdoor living, recreation, pedestrian access or landscaping, but not including roads, parking areas, driveways, or other areas intended for vehicular travel. If approved by the Planning Commission, the open space standards of this Article may be satisfied by funding or otherwise providing an equivalent amount of off-site open space within a 1-mile radius of the proposed development site.

G. Height



Building height refers to the vertical distance between the average finished grade at the base of the building along the side of the building being measured and: 1) the average height level between the eaves and ridge line of a gable, hip, gambrel or mono-pitch roof; 2) the highest point of a mansard roof; or 3) the highest point of the coping of a flat roof.

1. Fences or Walls

In the case of fences or walls, height shall be measured from ground level on the higher side of the fence or wall.

2. Exceptions to Height Limits

Zoning district height limits do not apply to belfries, cupolas, spires, domes, monuments, airway beacons, radio/communication towers, structures for essential services, windmills, flagpoles, chimneys, radio/television receiving antennas or chimney flues. Height limits also do not apply to any dormer, bulkhead, elevator, water tank, or to any similar structure or necessary mechanical appurtenance extending above the roof of any building if such structure does not occupy more than 33⅓ percent of the area of the roof. No dormer may exceed the highest point or peak of the structure to which the dormer is attached even when the structure is exempt from a height limitation.

Source: 2985 (1999), 4226 (2002), 4695 (2009), 5173 (2018).

§20-0505 Bonus Density

A. A maximum density of 30 dwelling units per acre shall be allowed for projects that comply with the following 3 standards, provided that:

1. Parking area constructed within the building structure (i.e. underground or "tuck under" parking) shall be provided, with an area equal to at least 70 percent of the principal building footprint;
2. Minimum Open Space shall be 40 percent; and
3. Building height shall comply with maximum height described in Sec. 20-0501.

B. A maximum density of up to 30 dwelling units per acre in MR-3 district may be granted for projects located within 600 feet of the DMU zoning district if, after review under the Conditional Use review procedures of Sec. 20-0909, the Planning Commission determines that one or more of the following conditions have been met:

1. The proposed project will allow for the development of underground parking and substantially more open space and landscaping than otherwise would be achieved;
2. The proposed project is to be designed, constructed and managed for persons with special needs (e.g. physically disabled or older persons), with van service, on-site meals, care-givers and other services available to residents; or
3. The proposal will ensure the preservation of a designated local, state or federally designated historic landmark.

Source: 2985 (1999), 4039 (2000), 4608 (2007).

§20-0506 Alternative Residential Development Options

A. General

1. Purpose

The alternative development options of this section allow for variety in development standards while maintaining the overall character of a single-dwelling neighborhood. These options have several public benefits:

a. They allow for development which is more sensitive to the environment, especially in hilly areas and areas with water features and natural drainageways;

b. They allow for the preservation of open and natural areas;

c. They promote better site layout and opportunities for private recreational areas;

d. They promote opportunities for affordable housing; and

e. They promote energy-efficient development.

2. General

The alternative development options listed in this section are allowed by-right unless otherwise expressly stated. The project must comply with all of the applicable development standards of this section. The project must also comply with all other development standards of the base zoning district unless those standards are superceded by the standards in this section. The alternative development options listed in this section are not applicable to SR-0 zoning districts.

B. Attached Housing

1. Lot Width, Lot Area, Building Coverage and Density

Attached housing is exempt from the lot width, lot area and building coverage standards of the underlying zoning district, but shall not be exempt from the maximum density standards.

2. Setbacks

No interior side setback is required on the "attached" side of a lot containing an attached house. The front, side, and rear setback standards shall apply around the perimeter of an attached housing development.

3. Number of Attached Units

In the SR-3 district, no single structure may contain more than 8 units.

C. Zero Lot Line

1. Description

A zero lot line development is where houses in a development on a common street frontage are shifted to one side of their lot. This provides for greater usable yard space on each lot. These developments require that planning for all of the house locations be done at the same time. Because the exact location of each house is predetermined, greater flexibility in site development standards are possible while assuring that single-dwelling character is maintained.

2. Applicability

Zero lot line developments are allowed for houses in the SR-1 through MR-3 zoning districts.

3. Procedure

Zero lot line developments are allowed by-right. Review for compliance with the standards of this section shall occur during the subdivision platting process. Restrictions that assure the minimum distance between houses and any required easements must be recorded on the plats of the applicable lots. Proof of such recordation must be submitted as part of the building permit application.

4. Setbacks

The side building setback on one side of the house may be reduced to zero. This reduction does not apply to the street side setback or to the interior side setback adjacent to lots that are not part of the zero lot line project.

5. Additional Standards

a. Distance Between Houses

The minimum distance between all buildings in the development must be equal to twice the required side setback required by the underlying zoning district. A deed restriction must be recorded on the deed of each applicable lot to ensure continued compliance with this setback.

b. Eaves

The eaves on the side of a house with a reduced setback may project a maximum of 18 inches over the adjacent property line. In this case, an easement for the eave projection must be recorded on the deed for the lot where the projection occurs.

c. Maintenance Easement

An easement between the two property owners to allow for maintenance or repair of the house is required when the eaves or side wall of the house are within 4 feet of the adjacent property line. The easement on the adjacent property must provide at least 5 feet of unobstructed space between the furthermost project of the structure and the edge of the easement.

d. Privacy

If the side wall of the house is on the property line, or within 3 feet of the property line, windows or other openings that allow for visibility into the side yard of the adjacent lot are not allowed. Windows that do not allow visibility into the side yard of the adjacent lot, such as a clerestory window or a translucent window, are allowed.

D. Cluster Development

A cluster development is a residential subdivision in which the lots are allowed to be smaller (in area and width) than otherwise required for the underlying, base zoning district, but in which the overall density cannot exceed the maximum density limit for the underlying zoning district. Under the cluster develop-

ment option, a subdivision can contain no more lots than would otherwise be allowed for a conventional subdivision in the same zoning district, but the individual lots within the development could be smaller than required in a conventional subdivision. Smaller lot sizes within a cluster development are required to be offset by a corresponding increase in open space.

1. Conflict with Other Regulations

If there is a conflict between the cluster development standards of this chapter and any other requirement of this Land Development Code, the standards of this chapter control. Otherwise, a cluster development is subject to all other applicable requirements of this Land Development Code.

2. Where Allowed

Cluster developments are allowed in all SR zoning districts.

3. Approval Procedure

Cluster Developments are subject to the Subdivision procedures of Sec. 20-0907.

4. Density

A cluster development is subject to the maximum density requirements of the base zoning district.

5. Lot Size

There is no set minimum lot size (area or width) requirement within a cluster development. Individual lot sizes must be adequate to meet all required density and development standards. Minimum lot sizes may be established by the Planning Commission or Board of City Commissioners during the Subdivision process.

6. Setbacks and Building Separations

The minimum setback standards of the base zoning district apply along the perimeter of a cluster development. All detached structures within a cluster development must be separated by a minimum distance of 10 feet.

7. Open Space

a. On-Site Open Space

Cluster developments shall be subject to the minimum on-site open space standards of the base zoning district, if applicable.

b. Common Open Space

(1) Minimum Requirement

Common open space is required within a cluster development to ensure that the overall density within the development does not exceed the maximum density allowed by the underlying zoning district. Common open space must be provided in an amount at least equal to the difference between (1) the actual, average lot area per dwelling unit within the cluster development and (2) the required lot area per dwelling unit for conventional development within the underlying base zoning district.

(2) Use of Common Open Space

Common open space must be set aside and designated as

an area where no development will occur, other than project-related recreational amenities or passive open space areas. The Planning Commission may require that up to 50 percent of required common open space be useable open space, if deemed necessary by the Planning Commission or Board of City Commissioners to ensure adequate recreational amenities for residents of the development.

Source: 3062 (2000).

§20-0507 Attached Development.

The alternative development options of this section allow for variety in development standards while maintaining the overall character of a commercial or industrial area. These options have several public benefits including the potential preservation of open land areas and more efficient use of commercial and industrial space.

a. In a PI (Public and Institutional), LC (Limited Commercial), GC (General Commercial), LI (Limited Industrial), GI (General Industrial), GO (General Office), NC (Neighborhood Commercial) and NO (Neighborhood Office) zoning district, attached structures and buildings shall be exempt from the interior side yard setback requirement of Section 20-0502; provided that owners of all property in the attached development shall have delivered to the zoning administrator written approval of the proposed attached structures or buildings and provided the zoning administrator consents to the proposed attached development. Written approval must be on a form acceptable for recording with the office of the recorder for the county.

(1) Lot Width

In any attached structure, allowed under the foregoing sentence, must comply with minimum building coverage requirements, parking requirements and landscaping requirements as provided in the LDC.

(2) Setbacks

No interior side setback is required on the (attached(side of a lot containing an attached building. The front, side, and rear setback standards shall apply around the perimeter of an attached development.

Source: 4531 (2006).

§20-0508 Watercourse Setbacks - Restrictions and Exceptions.

A. No building or structure may be erected, constructed, enlarged or altered within the Minimal Disturbance Zone Setback or within the Limited Disturbance Zone Setback unless such building or structure conforms to the regulations in this section.

1. a. **MDZS--Red River and Wild Rice Rivers.**
The Minimal Disturbance Zone Setback ("MDZS") for properties near the Red River of the North or the Wild Rice River shall be the greater distance of (a) 350 feet from the center line of the river and (b) the floodway whichever distance creates the greater amount of setback from the center line of the river.

b. **MDZS--Sheyenne River.**
For parcels that are near the Sheyenne River, the Minimal Disturbance Zone Setback ("MDZS") shall be the greater distance of (a) 175 feet from the center line of the river and (b) the floodway whichever distance creates the greater amount of setback from the center line of the river.

2. **LDZS.**
The Limited Disturbance Zone Setback ("LDZS") shall begin at the outer edge of the Minimal Disturbance Zone Setback and extend an additional one hundred (100) feet on the same line as for the MDZS.

For purposes of determining of the disturbance zone setbacks, distances shall be measured horizontally and perpendicular from the tangent of the center line of the applicable water course. For purposes of this ordinance, "floodway" means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a stated amount, as the same has been formally adopted either by the board of city commissioners, by the Federal Emergency Management Agency (FEMA) on a Flood Insurance Rate Map (FIRM), or by both the board of city commissioners and FEMA. To the extent the board of city commissioners and FEMA have adopted different floodways, the floodway most recently adopted shall be deemed to be the floodway for purposes of this ordinance.

B. **Disturbing Land Prohibited.**

No person, firm, corporation or other entity shall engage in any man-made change to improved or unimproved real estate, including but not limited to, buildings or other structures, mining, dredging, filling, grading, paving excavation or drilling operations within the MDZS or the LDZS unless such development conforms to the regulations in this section. Such man-made changes shall include, without limitation, any development as the same is described in Fargo Municipal Code Article 21-06.

C. **Minimal Disturbance Zone Setback.**

All property within the MDZS calculated in accordance with this section shall conform to the following regulations:

1. No permanent structures shall be allowed except the following:
(a) Stairways, Lifts and Landings - Stairways and lifts are the preferred alternative to major topographic alterations for achieving access up and down steep slopes to watercourses. Stairways and lifts must meet the following design requirements:
(i) Stairways and lifts shall not exceed four (4) feet in width on residential lots and eight (8) feet in width for commercial proper-

ties or public open-space recreational properties. Residential lots are permitted one stairway or lift and one facility to provide watercourse access for the physically challenged. The number of accesses for commercial or public open-space shall be determined on a case-by-case basis by the board of city commissioners.

(ii) Landings for stairways and lifts on residential lots shall not exceed thirty-six (36) square feet in area. Landings no larger than sixty-four (64) square feet shall be used for commercial properties, public open-space recreational properties.

(iii) Canopies or roofs shall not be allowed on stairways, lifts, or landings.

(iv) Where reasonably possible, stairways, lifts and landings shall be constructed above the ground on posts or pilings. Stairways, lifts and landing may be placed into the ground, provided they are designed and built in a manner that ensures control of soil erosion.

(v) Facilities such as ramps, lifts or mobility paths for the physically challenged to achieve watercourse access shall not exceed four (4) feet in width for residential lots and eight (8) feet in width for commercial properties or public open-space recreational properties.

(vi) Stairways, lifts and landings shall not prevent or limit the use of public paths or public or private non-motorized vehicle lanes or any other easements.

(b) Roads, bridges, trails, storm drainage, stormwater management facilities and utilities are permitted within the minimal disturbance zone provided that an alternatives analysis has clearly demonstrated that no other feasible alternative exists and that minimal disturbance will take place. These structures shall be located, designed, constructed and maintained to provide maximum erosion protection, to have the least adverse effects on wildlife, aquatic life and their habitats and to maintain hydrologic processes and water quality. Following any disturbance, the impacted area shall be restored.

(c) Bike paths, walking trails, or other multi-use paths.

(d) A public rest room or a public facility that is open on all sides and functionally related to a designated open space or recreational use.

2. No additional fill shall be allowed.

3. No grading shall be allowed, except grading for bank restoration in areas experiencing bank slumping.

4. No excavating shall be allowed.

5. On-site septic systems and drain fields shall not be permitted.

6. Irrigation systems shall not be permitted.

7. Notwithstanding the foregoing restrictions or prohibitions, permanent flood protection levees or walls may be constructed within the MDZS or LDZS

provided the soil is determined, in the opinion of the city engineer, to be sufficiently stable to support the proposed flood protection structure without slumping or shifting.

D. **Limited Disturbance Zone Setback.**
With respect to all property within the LDZS calculated in accordance with this section, the regulations with respect to the said 100-foot setback of the LDZS shall be the same as the regulations for the MDZS (Subsection C), except as follows:

1. In the Limited Disturbance Zone Setback, one accessory building not to exceed One Hundred Twenty (120) square feet shall be allowed.

E. **Transitional Provisions to Watercourse Setback Restrictions.**
To the extent that land within either the MDZS or LDZS was platted prior to the effective date of this ordinance, the following additional regulations shall apply:

1. Exemptions--existing parks and golf courses; lots across street from river. Golf courses that exist as of the effective date of this ordinance and park land of the city or of the Park District of the City of Fargo shall be exempt from the provisions of this ordinance except with respect to permits that would otherwise be required by law other than this ordinance and that are related to buildings or structures within the MDZS or the LDZS. With respect to parcels that have been platted prior to the effective date of this ordinance that are within the MDZS or LDZS, to the extent that a permanent flood protection structure is able to be constructed on the side of the street nearest the river to the elevation established by city policy by motion, resolution or ordinance of the board of city commissioners said parcels shall be exempt from the provisions of this section and building permits may be issued for said parcels.

2. Previously Platted Lands (and not built upon).

   Building permits may not be issued for new buildings or structures within either the MDZS or LDZS for parcels that have been platted prior to the effective date of this ordinance and have not been previously built upon unless a waiver is obtained from the board of city commissioners. A parcel shall be considered built upon if a valid building permit has been issued prior to the effective date of this ordinance or if a bona fide application for a building permit has been received by the Building Official prior to the effective date of this ordinance. An applicant shall only be eligible to receive such a waiver if the requested building permit is for a proposed building or structure that will be located no nearer than 100 feet from the nearest floodway. In reviewing an application for a waiver of this prohibition, the board of city commission shall consider the following factors:

   (a) The extent to which the subject property is already protected from the risk of flooding.

   (b) The extent to which the soil is sufficiently stable to support the proposed building or structure without slumping or shifting of soil.

   (c) The extent to which the proposed building or structure may be elevated to such a level as to mitigate against the risk of flooding.

   (d) The adequacy of area available to install emergency flood protection if the proposed building or structure were in place.

(e) If the proposed building or structure is accessory to a principal building or structure, the extent to which the accessory building or structure to either be constructed to an elevation to appropriately minimize risks of flooding or, in the alternative, or be designed and constructed so as to tolerate being flooded.

3. Previously Platted Lands (and built upon). With respect to applications in which a permit is requested related to a parcel within either the MDZS or LDZS that has been platted prior to the effective date of this ordinance but has already been built upon, such building permit may be issued for a building or structure as follows:
   (a) Enlargement or alteration of existing principal buildings or structures shall be allowed so long as the proposed enlargement or alteration does not extend the building or structure closer to the river; and,
   (b) Interior remodeling of an existing building or structure is allowed.
   (c) To the extent said parcel contains one or more principal buildings or structures lying, in whole or in part, within the MDZS, the LDZS, or both, and in the event any of such buildings or structures is damaged or destroyed by any means, to the extent of more than 50 percent of its structural value prior to the damage, that building or structure may be restored, repaired or rebuilt in its entirety in accordance with the provisions in the Land Development Code regarding non-conforming structures (See generally LDC §20-1004).

F. Conflict with Other Regulations.

1. Where the standards and management requirements of this setback are in conflict with other laws, regulations, ordinances or policies regarding streams, steep slopes, erodible soils, wetlands, floodplains, timber harvesting, land disturbance activities or other environmental protective measures, the more restrictive requirements shall apply.
2. Nothing herein shall be interpreted to abrogate or limit the applicability of any other local, state or federal law, including without limitation the floodplain management regulations of the Federal Emergency Management Agency of the United States of America.
3. Nothing herein shall be interpreted to abrogate or limit the applicability of any substantial improvement provisions of the floodplain management regulations as identified in article 21-06 of the Fargo Municipal Code, as the same may be amended from time to time.

Source: 4818 (2012).

ARTICLE 20-06

SUBDIVISION DESIGN AND IMPROVEMENTS

§20-0601 General

Improvements within subdivisions must be installed and designed in accordance with the standards of this Article, all other applicable requirements of this Land Development Code and the following, as applicable:

A. All applicable provisions of the North Dakota Century Code;
B. The City's Building and Housing Codes;
C. The intent of the Comprehensive Plan, Official Map, and Capital Improvements Program, including all streets, drainage systems, and parks shown on the Official Map or Comprehensive Plan, as adopted;
D. Rules of the Health Department and other local and state agencies responsible for providing facilities and services;
E. The rules of the North Dakota Department of Transportation;
F. The standards and regulations adopted by the Planning Commission and all boards, commissions and agencies of the City;
G. Requirements of the Flood Plain Management Ordinance of the City of Fargo including any necessary permits required from other governmental agencies.

§20-0602 Land Unsuitable for Development

The Planning Commission shall not allow the subdivision of land that is unsuitable for development due to flooding, improper drainage, steep slopes, soil types, adverse earth formations or topography, utility easements or other features that will be harmful to the safety, health, and general welfare of the present or future inhabitants of the subdivision or its surrounding area. If adequate methods to overcome this unsuitability are formulated by the developer and approved by the Planning Commission, the Planning Commission may approve the development on the condition that these measures are carried out.

§20-0603 Subdivision Names

Subdivision names may not duplicate or be phonetically similar to the names of other subdivisions or developments except in cases of additions to existing subdivisions. The Planning Commission shall have final authority over subdivision names.

§20-0604 Street Names and Numbering

Street names may not duplicate names of any existing street in the City or in adjacent communities except where the street is a continuation of an existing street. Streets must be numbered in accordance with the City of Fargo street and property numbering system approved by the Board of City Commissioners.

§20-0605 Monuments

A. Location

Developers shall place permanent reference monuments at block corners, control points, and lot corners.

B. Material Specifications

1. Corner and control point monuments must be iron pins set in concrete.
2. Lot corner monuments must be iron pins set in the ground.

§20-0606 Lots

A. Arrangement

The lot arrangement must be such that there will be no foreseeable difficulties, for reasons of topography or other conditions, in securing building permits to build on all lots in compliance with this Land Development Code and all other applicable ordinances and standards.

B. Dimensions

Lots must comply with the minimum lot size, lot width and other dimensional standards of this Land Development Code.

C. Double-Frontage and Reverse Frontage Lots

Double frontage and reverse frontage lots shall be avoided except where necessary to provide separation of residential development from arterials streets or to overcome specific disadvantages of topography and orientation.

§20-0607 Blocks

A. Width

Blocks must have sufficient width to provide for two tiers of lots, except where single tier lots are required to separate residential development from through vehicular traffic, to separate the lots from another type of use, to allow for unusual topographic conditions or when adjacent to the outer perimeter of the subdivision

B. Length

Block lengths may not exceed 1,320 feet, and when blocks longer than 800 feet are proposed, pedestrian crossings may be required to be provided near the center of the block.

§20-0608 Utilities

A. General

Developers must provide utility improvements in each new subdivision in accordance with the standards and requirements of the City Engineer.

B. Underground Location Required

All utility facilities intended only for distribution within a subdivision including electrical, telephone, and cable television facilities must be placed underground. Area distribution facilities may be placed above ground if approved by the City Engineer.

C. Connection to Public Sewer, Water and Stormwater Systems

Developers of subdivisions are required to connect subdivisions to the public sewer, water and stormwater systems. Individual or other private facilities will be allowed only if public facilities are not available and will not be available for over 15 years, as determined by the City Engineer. The owner of a parcel of land within 200 feet of a public sewer system shall be required to connect to the public sewer system, in accordance with Section 11 or the City of Fargo Revised Ordinances of 1965. It shall be unlawful for any owner or occupant of land within 200 feet of a public sewer system to utilize an individual sewage disposal system on their property unless approved by the City Engineer.

Source: 4166 (2001).

§20-0609 Sidewalks

Sidewalks must be installed in accordance with this section and the standards of Article 18-02, unless an Alternative Sidewalk Plan is approved by the City Commission after recommendation of the Planning Commission, at the time of approval of a subdivision approval as provided in §20-0907. All sidewalks shall be located at least 6 feet from the street edge along which such sidewalk is parallel.

A. Planning Commission Policy

The Planning Commission shall make its recommendation on a sidewalk waiver request based on the guidelines of this subsection and the facts surrounding the waiver request. Based on such factors, the Planning Commission may recommend denial of a sidewalk waiver request even though the request may be technically eligible for such a waiver. The Planning Commission has established the following statement of principles as a foundation for reviewing requests for sidewalk waivers:

(1) Sidewalks are a shared amenity and asset of the community. As such, the public interest in sidewalks transcend specific individuals, lots, subdivisions, or periods of time.

(2) Sidewalks represent an important element of the transportation system, and as such, they provide an element of safety for both the automobile user and the pedestrian, including children on bikes.

(3) Sidewalks are an important element in the inventory of recreational assets of the community.

(4) To meet their potential as elements of the transportation and recreational components of the community, accessibility and convenience are factors of real importance.

(5) Sidewalks, both as a transportation facility and as a recreational asset, must also consider and assume that vulnerable populations should be and will be found in most areas of the City. Availability and functionality are particularly important to children under 14, persons with disabilities and senior citizens.

(6) Sidewalks that are not built can create an uneven or unfair burden of cost, maintenance, and use.

(7) Sidewalk plans that offer creative solutions but that are substantially equal substitutes to the traditional sidewalk should be encouraged.

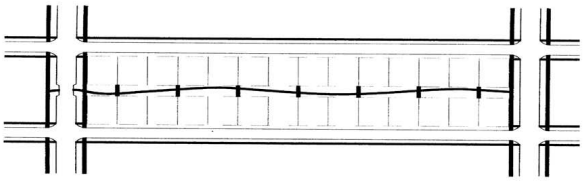
B. Industrial

No maximum sidewalk waiver will apply to industrial subdivisions.

C. Alternative Sidewalk Plan

Sidewalk waivers may be granted at the time of approval of a subdivision if a substitute pedestrian way or trail is incorporated that provides substantially equal service to a sidewalk on a block face (even when there are more than 12 dwelling units per block). An example would be a mid-block trail, pedestrian way or bike path. Pedestrian ways or trails that tend to force mid-block pedestrian crossings should be avoided or be given special design consideration.

Figure 20-0609-5
Sidewalk Alternative



D. Rural Subdivisions and City Consolidations

If the City annexes a rural subdivision or consolidates with an incorporated community a temporary waiver for the entire subdivision may be granted for up to 10 years, after which the subdivision will be subject to the same regulations that apply in the rest of the City. This guideline may be superceded by the applicable annexation or consolidation agreement.

E. Timing of Sidewalk Construction

Sidewalk installation will not be ordered in until street improvements such as paving, curb and gutter are constructed.

F. Missing or Conflicting Guidelines

When conditions arise that are not covered by the Sidewalk Waiver Guidelines of this section, or where guidelines suggest contradictory solutions, the Planning Commission will make a determination that best reflects the general intent of the guidelines. Such determination will be kept on file and used in similar cases.

G. Effect of Existing Sidewalks

The construction and existence of sidewalks that would have been eligible for consideration for a waiver do not create by their existence the automatic requirement for a sidewalk that would also be eligible for a waiver. The City may evaluate such requests as though all the eligible sidewalks had been waived on the condition that reasonable continuity and consistency of pedestrian service is provided.

Source: 4700 (2009).

§20-0610 River Easements and Watercourse Setbacks

A. Maintenance easements shall be established on all land within 40 feet of the Mean High Water Line of all rivers and legal drains. Improvements shall be allowed within such maintenance easements, provided that the City shall be granted authority to temporarily occupy such easements when necessary to conduct maintenance work on the adjacent river or drain.

B. All Final Plats prepared for recording shall:

1. Show the extent of any minimal or limited disturbance zone setbacks on the subject property by metes and bounds and be labeled as "Minimal Disturbance Zone Setback" or "Limited Disturbance Zone Setback"
2. Provide a note to reference the minimal or limited disturbance zone setbacks stating, "There shall be no clearing, grading, construction or disturbance of soil and/or native vegetation except as permitted by the ordinances of the city of Fargo"
3. Provide a note to reference any protective covenants governing all minimal or limited disturbance zone setbacks, "Any minimum or limited disturbance zone setbacks shown hereon are subject to protective covenants which may be recorded in the Office of the Recorder for Cass County and which restrict disturbance and use of these areas."

C. All minimal or limited disturbance zone setbacks must be protected during development activities. Prior to the initiation of development activities, the minimal and limited disturbance zone setbacks shall be surveyed and iron pins set in the ground on side lot lines and adequate visibility of the minimal or limited disturbance zone setbacks shall be provided by staking and flagging.

D. Minimal or limited disturbance zone setbacks shall be established and maintained through a declaration of protective or restrictive covenant, which must be submitted for approval by the board of city commissioners. The covenant shall be recorded in the Office of the Recorder for Cass County and shall run with the land and continue in perpetuity and may not be amended or terminated without approval of the city.

E. All lease agreements pertaining to parcels with MDZS areas, LDZS areas, or both areas, must contain a notation regarding the presence and location of protective covenants for minimal or limited disturbance zone setbacks, and must contain information on the management and maintenance requirements for the minimal or limited disturbance zone setbacks for the tenant.

F. No subdivision may be approved without a notation and delineation of an area One Hundred Seventy-Five (175) feet from the centerline of any legal drain and the applicant for subdivision approval will be required to dedicate such areas to the public for purposes of such drain.

Source: 4818 (2012).

§20-0611 Streets

A. General

Streets must be graded and improved in accordance with the standards of this section and the design and construction standards of the City Engineer.

1. All streets must be properly integrated with the existing and proposed system of thoroughfares and dedicated right-of-ways as established on the Official Map, Comprehensive Plan, or as determined by the Board of City Commissioners.
2 All thoroughfare capacity must be properly related to special traffic generators such as industries, business districts, schools, churches, shopping centers, population densities, and to the pattern of existing and proposed land uses.
3. Local streets must be laid out to conform as much as possible to the topography, to discourage use by through traffic, to permit efficient drainage and utility systems, and to require the minimum number of streets necessary to provide convenient, safe access to property.
4. Streets must be extended to the boundary lines of the subdivision, unless prevented by topography or other physical conditions.
5. In business and industrial developments, the streets and other access ways must be planned in connection with the grouping of buildings, location of rail facilities, and the provision of alleys, truck loading and maneuvering areas, and walks and parking areas so as to minimize conflict of movement between the various types of traffic, including pedestrians.

B. Rural and Urban Standards

The City Engineer will provide separate street standards for rural and urban subdivisions.

C. Frontage on and Access to Streets

No subdivision may be approved unless the area to be subdivided has frontage on and access to a street shown on the Official Map, or unless such street is:

1. An existing state, county, or township highway; or
2. A street designed and constructed in accordance with the standards of this Article and shown on a plat approved and recorded in accordance with the procedures of Sec. 20-0907.

D. Access to Arterials

Where a subdivision borders on or contains an existing or proposed arterial, the Board of City Commissioners may require that access to such streets be limited by one of the following means (See also Sec. 20-0702):

1. The subdivision of lots so as to back onto the arterial and front onto a parallel street of a lower functional classification. In such cases, direct access to the arterial may be prohibited, and screening must be provided in a strip of land along the real property line of such lots.
2. A series of cul-de-sacs, U-shaped streets, or short loops entered from and designed generally at right angles to such a parallel street, with the rear lines of their terminal lots backing onto the arterial.

3. A marginal access or service road that is separated from the arterial by a planting or grass strip and having access thereto at suitable points.

E. Reserve Strips

Reserve strips are not permitted adjacent to a proposed street in such a manner as to deny access from adjacent property to such street.

F. Construction of Streets and Dead-End Streets

1. Streets must be arranged to provide for the continuation of principal streets between adjacent properties. If the adjacent property is undeveloped and the street must be a dead-end street temporarily, the right-of-way shall be extended to the property line. A temporary circular turnabout must be provided on all temporary dead-end streets, with the notation on the subdivision plat that land outside the normal street right-of-way shall revert to abutting property owners whenever the street is continued. The Board of City Commissioners may limit the length of temporary dead-end streets in accordance with the design and construction standards of the City Engineer.
2. Where a street does not extend to the boundary of the subdivision and its continuation is not required by the City Engineer for access to adjoining property, its terminus shall not be nearer to such boundary than 50 feet. However, the Board of City Commissioners may require the reservation of an appropriate easement to accommodate drainage facilities, pedestrian traffic, or utilities. A cul-de-sac turnaround shall be provided at the end of a permanent dead-end street in accordance with the City Engineer's construction standards. For greater convenience to traffic and more effective police and fire protection, permanent dead-end streets shall be limited in length in accordance with the design standards of the City Engineer.

G. Geometric Standards

The geometric design standards of this section apply to all streets.

1. Right-of-Way and Pavement Widths

The right-of-way and pavement width standards of Table 20-0611-1 apply to all streets.

Table 20-0611-1

Urban Street Standards										
Functional Classification	*Category*	*Lanes*	*Zoning Classifications*	*Parking*	*Paving Width[1] Face of Curb (FOC) (Ft)*	*Sidewalks*			*R/W (FT)*	*Notes*
						Right (FT)	*Left (FT)*	*Location*		
Local	L-1	2	SR-0 thru 3 SR-4 > 42' wide	Both Sides Both Sides One Side None None	32 30 28 24 24	4.5 4.5 4.5 4.5 4.5	4.5 4.5 4.5 4.5 None	2' off R/W 2' off R/W 2' off R/W 2' off R/W On R/W	70 66 62 50 50	Sidewalk plan required per LDC
	L-2	2	SR-4 < 42' wide MR-1, UMU	Both Sides One Side None	32 28 24	4.5 4.5 4.5	4.5 4.5 4.5	2' off R/W 2' off R/W 2' off R/W	70 62 60	
	L-3	2	MR-2 & MR-3	Both Sides One Side	40 32	4.5 4.5	4.5 4.5	2' off R/W 2' off R/W	80 70	
	L-4	2	GO Tech Park	Both Sides One Side None	40 32 28	4.5 4.5 4.5	4.5 4.5 4.5	2' off R/W 2' off R/W 2' off R/W	80 70 70	
	L-5	2	LC, GC, GI. LI	Both Sides	40	4.5	4.5	2' off R/W	80	Wider Streets as warranted by traffic Parking restrictions as needed for traffic

Urban Street Standards										
Functional Classification	*Category*	*Lanes*	*Zoning Classifications*	*Parking*	*Paving Width[1] Face of Curb (FOC) (Ft)*	*Sidewalks*			*R/W (FT)*	*Notes*
						Right (FT)	*Left (FT)*	*Location*		
Collector	C-1	2	All SR & MR-1, UMU	Both Sides One Side None	40 32 30	4.5 4.5 4.5	4.5 4.5 4.5	2' off R/W 2' off R/W 2' off R/W	80 80 80	Parking restrictions at major intersections Widen to 3 lanes (36') at major intersections Widen to 3 lanes (36') at major intersections
	C-2	2	MR-2 & MR-3	Both Sides One Side None	44 36 30	4.5 4.5 4.5	4.5 4.5 4.5	2' off R/W 2' off R/W 2' off R/W	80 80 80	Parking restrictions at major intersections Parking restrictions at major intersections Widen to 3 lanes (36') at major intersections
	C-3	2	All Others	Both Sides One Side None	44 36 32	4.5 4.5 4.5	4.5 4.5 4.5	2' off R/W 2' off R/W 2' off R/W	80 80 80	Parking restrictions at major restrictions Parking restrictions at major intersections Widen to 3 lanes (36') at major intersections
	C-4	3	All SR & MR	None	36	4.5	8	2' off R/W	80	Wider streets as warranted by traffic
	C-5	3	All others	None	40	4.5	8	2' off R/W	80	Wider streets as warranted by traffic
Parkway	PW-1	2	All SR & MR-1	Both Sides One Side None	40 32 30	4.5 4.5 4.5	8 8 8	2' off R/W 2' off R/W 2' off R/W	110 100 100	Parking restrictions at major intersections Widen to 3 lanes (36') at major intersections Widen to 3 lanes (36') at major intersections
	PW-2	2	MR-2 & MR-3	Both Sides One Side None	44 36 30	4.5 4.5 4.5	8 8 8	2' off R/W 2' off R/W 2' off R/W	110 100 100	Parking restrictions at major intersections Parking restrictions at major intersections Widen to 3 lanes (36') at major intersections
	PW-3	2	All others	Both Sides One Side None	44 36 32	4.5 4.5 4.5	8 8 8	2' off R/W 2' off R/W 2' off R/W	110 100 100	Parking restrictions at major intersections Parking restrictions at major intersections Widen to 3 lanes (36') at major intersections
	PW-4	2	All Zones	Both Sides	60	4.5	8	2' off R/W	120	City to pay for tree planting
	20' median and two 20' roadways									
	PW-5	3	All SR & MR	None	36	4.5	8	2' off R/W	100	City to pay for tree planting

Notes:

1. Street and R/W widths for PI zones will be determined by type of land use.
2. Street and R/W widths for NO and NC will be based on zoning of the adjacent larger tracts.
3. R/W widths may be reduced if sidewalks are removed as part of an LDC approved sidewalk plan. R/W widths may be reduced by 6' by elimination of sidewalk on one side or 12' by elimination of sidewalks on both sides.
4. Minimum R/W shall be 50'.
5. Over width city funding does not apply to street widening required for parking purposes.

Rural Street Standards										
Type		**Lanes**	**Zoning Classifications**	**Parking**	**Width**		**Ditches**		**R/W (FT)**	**Notes**
	PW-6	3	All others	None	40	4.5	8	2' off R/W	100	City to pay for tree planting
Arterial			All zones	None	As required					
				Paved	**Width**	**Inslope**	**Backslope**			
Local	2	SR & MR	None	26	8	5 to 1	4 to 1	100		
	2	All others	None	26	10	5 to 1	4 to 1	100		
Arterial	2	All Others	None	30	10	5 to 1	4 to 1	100		

2. Backing onto Arterial Streets

Driveways must be designed and arranged so as to avoid requiring vehicles to back on to arterial streets.

Source: 4331 (2003), 4367 (2003), 4695 (2009).

3. Grades, Curve Radii and Other Standards

The street grade, curve radii and other standards of Table 20-0611-1 apply to all streets.

Table 20-0611-2

Improvement	**Residential** UMU, MR-3 and more restrictive)	**Nonresidential** (NO and less restrictive)
Maximum Grade (pct)		
Local	5	5
Collector	5	5
Arterial	5	5
Minimum Grade (pct)		
All streets	0.4	0.4
Minimum Centerline Radius of Curve (feet)		
Local	100	200
Collector	275	275
Arterial	550	550
Minimum Tangent Length Between Reverse Curves (feet)		
Local	100	200
Collector	100	200
Arterial	300	400
Minimum Sight Distance(feet)		
Local	200	250
Collector	240	250
Arterial	300	400
Intersection	Across corners-25 ft back	Across corners-25 ft back
Minimum Turnaround (feet)		
Right-of-Way Diameter	140	160
Pavement	100	140
Design Speed (miles per hour)Local	30	30
Collector	35	35
Arterial	40	50
Maximum Length of Cul-de-Sac		
Permanent	600 feet, measured from the nearest street right-of-way line to the end of the nearest turnaround radius.	
Temporary	800 feet, measured from the nearest street right-of-way line to the end of the nearest turnaround radius.[1] A double entry cul-de-sac may exceed the stated maximum, if approved by the City Engineer.	

[1] The Planning Commission may approve waivers from the cul-de-sac length standards with it finds (1) that extraordinary hardships or practical difficulties will result from strict compliance with the cul-de-sac length standards and (2) that the purposes of these regulations will be served to a greater extent by an alternative proposal. Waiver requests shall be considered during the Subdivision Plat review process.

H. Surfacing.

Curbs, gutters and streets must be installed as prescribed by the regulations of this Article. The surfacing shall be of such character as is suitable for the expected traffic and in harmony with similar improvements in the surrounding

areas. Types of pavement shall be as determined by the City Engineer. Adequate provision shall be made for culverts, drains, and bridges. The cost and benefit allocation to be determined by Special Assessment Commission.

I. Curbs

The curb standards of Table 20-0611-3 apply to all streets.

Table 20-0611-3

Functional Classification	Volume (ADT)	Zoning Districts	
		AG - MR-3, UMU	NO - GI
Required Curb Type			
Local	0--2,499	Mountable	Standard
Local Collector	2,500--4,999	Mountable	Standard
Collector	5,000--9,999	Standard	Standard
Minor Arterial	10,000--19,999	Standard	Standard
Principal Arterial	20,000--29,999	Standard	Standard

J. Railroads and Limited Access Highways

Subdivisions adjacent to railroad rights-of-way or limited access highways shall be treated as follows:

1. Residential Districts

In UMU, MR-3 and more restrictive districts a buffer strip at least fifteen (15) feet in depth in addition to the normal depth of the lot required in the district must be provided adjacent to the railroad right-of-way or limited access highway. This buffer must be included in the lot area owned and maintained by the owner.

2. Nonresidential Districts

In NO and less restrictive districts, the nearest street extending parallel or approximately parallel to the right-of-way shall be located a sufficient distance therefrom to ensure suitable lot depth.

3. Parallel Streets

Streets parallel to the right-of-way, when intersecting a street that crosses the railroad or limited access highway, shall be located a sufficient distance from the right-of-way to provide for adequate future grade separation from the right-of-way. The minimum distance shall be established by the Traffic Engineer.

K. Intersections

1. Streets must be laid out so as to intersect as nearly as possible at right angles. A proposed intersection of two new streets at an angle of less than seventy-five (75) degrees is not acceptable. An oblique street should be curved approaching an intersection and should be approximately at right angles for at least 100 feet therefrom. No more than two (2) streets may intersect at any one point unless specifically approved by the City Engineer.
2. Proposed new intersections along one side of an existing street must coincide with existing intersections on the opposite side of such street. Street jogs with center-line offsets of less than three hundred (300) feet

will not be permitted, except where the intersected street has separated dual drives without median breaks at either intersection. Where streets intersect major streets, their alignment must be continuous. Intersections of major streets must be at least six hundred sixty (660) feet apart.

3. The minimum curb radius at the intersection of two (2) local streets shall be at least twenty-five (25) feet and minimum curb radius at an intersection involving a collector street shall be at least thirty-five (35) feet. Alley intersections and abrupt changes in alignment within a block shall have the corners cut off in accordance with standard engineering practice to permit safe vehicular movement.
4. Intersections must be designed with a flat grade consistent with good engineering practice. In hilly or rolling areas, at the approach to an intersection, a level area must be provided having not greater than a two percent (2%) grade at a distance of sixty (60) feet, measured from the nearest curb line of the intersecting street.
5. Where any street intersection will involve earth banks or existing vegetation inside any lot corner that would create a traffic hazard by limiting visibility, the developer must cut such ground or vegetation (including trees) in connection with the grading of the public right-of-way to the extent deemed necessary by the City Engineer to provide an adequate sight distance.
6. The cross-slopes on all streets, including intersections, shall be three percent (3%) or less.
7. These standards shall not be construed so as to require a street design inconsistent with good engineering practice as determined by the City Engineer.

L. Street Dedications and Reservations

1. New Perimeter Streets

Street systems in new subdivisions must be laid out so as to eliminate or avoid new perimeter half streets. Where an existing half-street is adjacent to a new subdivision, the other half of the street must be dedicated by the subdivider. The Board of City Commissioners may authorize a new perimeter street if the subdivider dedicates the entire required street right-of-way within the subdivision boundaries.

2. Widening and Realignment of Existing Streets

Where a subdivision borders an existing street of substandard width or when the Comprehensive Plan, Official Map, or zoning setback regulations indicate plans for realignment or widening a street that would require use of some of the land in the subdivision, the applicant will be required to dedicate such areas for widening or realignment of such streets. Land reserved for any street purposes may not be counted in satisfying zoning district setback or lot area requirements.

Source: 4695 (2009).

§20-0612 Waivers

The Planning Commission shall be authorized to recommend and the Board of City Commissioners shall be authorized to approve Modifications or Waivers of the Subdivision Design and Improvement Standards of this article in accordance with the Subdivision Waiver provisions of Sec. 20-0907.

Source: 2985 (1999), 5179 (2018).

ARTICLE 20-07

GENERAL DEVELOPMENT STANDARDS

§20-0701 Parking and Loading

A. General

1. Applicability

a. New Development

The off-street parking and loading standards of this section apply to any new building constructed and to any new use established.

b. Expansions and Alterations

The off-street parking and loading standards of this section apply when an existing structure or use is expanded or enlarged. Additional off-street parking and loading spaces will be required only to serve the enlarged or expanded area, not the entire building or use, provided that in all cases the number of off-street parking and loading spaces provided for the entire use (preexisting + expansion) must equal at least 75 percent of minimum ratio established in Off-Street Parking Schedule "A" of this section.

c. Change of Use

Off-street parking and loading must be provided for any change of use or manner of operation that would, based on the Off-Street Parking Schedule "A" or the Off-street Loading Schedule of this section, result in a requirement for more parking or loading spaces than the existing use. Additional parking or loading spaces will be required only in proportion to the extent of the change, not for the entire building or use.

2. DMU Exemption

All residential and nonresidential development in the DMU district shall be exempt from the off-street parking and loading standards of this section.

3. No Reduction Below Minimums

Existing parking and loading spaces may not be reduced below the minimum requirements established in this section. Any change in use that increases applicable off-street parking or loading requirements will be deemed a violation of the Land Development Code unless parking and loading spaces are provided in accordance with the provisions of this section.

4. UMU Exemption for Nonresidential and UMU Reduction for Residential

While no regulatory intent is implied herein, the responsibility clearly falls upon the applicant to review and understand, using professional consultation as appropriate, the parking needs of the development and to provide for the availability of sufficient parking, either onsite or

offsite, which meets the minimum demands of the intended use. However, the minimum parking standards for properties in a UMU zoning district are indicated below.

a. All nonresidential uses in a UMU zoning district shall be exempt from the off-street parking and loading standards of this section.

b. All residential development within a UMU zoning district, shall be required 1.25 parking stalls per dwelling unit. One stall per dwelling unit shall be reserved full time.

Source: 4695 (2009).

B. Off-Street Parkin g Schedules

1. Off-Street Parking Schedule "A"

Off-Street Parking Schedule "A" lists the minimum off-street parking requirement for each use category defined in this Land Development Code. These requirements apply unless an Alternative Access Plan is reviewed and approved in accordance with the procedures of this section. For some uses, the schedule of requirements contains a reference to off-street parking schedules "B" or "C." Those schedules can be found following Schedule "A."

Off-Street Parking Schedule "A"

Use Categories	Specific Uses	Minimum Number of Spaces Required
Residential		
Group Living		1 per 100 square feet of sleeping area
Household Living	Multi-Dwelling Structures	1.25 per efficiency dwelling unit 2.0 per 1-bedroom and larger unit plus 0.25 guest spaces per unit for structures containing 7 or more units and 0.33 guest spaces per unit for structures containing 6 or fewer units
	All Other Household Living	2 per dwelling unit
Institutional		
College		Schedule C
Community Services		Schedule B or Schedule C
Day Care		1 per 500 square feet
Health Care Facility		1.5 per patient bed, plus 1 per 300 square feet of administrative office, plus 1 per 200 square feet of outpatient clinic space
Parks and Open Areas		Schedule C
Religious Institutions		0.4 per seat
Safety Service		1 per employee or Schedule C
Schools	Elementary Middle/Junior High	1 per teacher/employee + 10 visitor spaces or Schedule C
	Senior High	1 per teacher/employee + 1 per 5 students or Schedule C
Utilities, Basic		None
Commercial		
Office	Medical	1 per 200 square feet
	All Other Office	1 per 300 square feet
Parking, Commercial		N/A
Recreation and Entertainment, Outdoor		Schedule B

Use Categories	Specific Uses	Minimum Number of Spaces Required
Retail Sales and Service	Bank or Financial Service	1 per 250 square feet, plus stacking spaces per this section
	Car Wash	Stacking spaces per this section
	Health Club	1 per 200 square feet
	Hotel, motel or other temporary lodging	1 per guest room, plus required spaces for associated uses
	Restaurant, General, Bars, Taverns and Lounges	1 per 75 square feet
	Restaurant, Fast-Food	1 per 75 square feet of customer service and dining area or 1 per 150 square feet of gross floor area, whichever is greater, plus stacking spaces per this section
	Theater	1 per 4 seats
	Outdoor seating areas-Taverns, Bars, Restaurants, and Lounges	1 per 150 square feet of outdoor seating area
	Vehicle and Equipment Sales	Schedule B
	All other Retail Sales & Service uses not specifically listed	1 per 250 square feet
Self-Service Storage		1 plus 1 per 2,500 square feet of storage space
Vehicle Repair		5 per service bay
Vehicle Service, Limited		6 per service bay
Industrial		
Industrial Service		Schedule B
Manufacturing and Production		Schedule B
Warehouse and Freight Movement		Schedule B
Waste-Related Use		Schedule B
Wholesale Sales		Schedule B
Other		
Agriculture		None
Aviation, Surface Passenger Terminals		Schedule C
Detention Facilities		Schedule C
Mining		Schedule C
Telecommunications Facilities		Schedule B or C

Source: 2985 (1999), 4167 (2001).

2. Off-Street Parking Schedule "B"Off-street parking spaces for Schedule "B" uses must be provided for all components of the use, as follows:

Activity	Number of Spaces Required
Office or administrative area	1 per 300 square feet
Indoor sales, service or display area	1 per 500 square feet
Outdoor sales, service or display area	1 per 750 square feet
Indoor storage, warehousing, equipment service, or manufacturing area	1 per 2,500 square feet

3. Off-Street Parking Schedule "C"

Schedule "C" uses have widely varying parking demand characteristics, making it impossible to specify a single off-street parking standard.

a. Parking Study

A developer proposing to develop or expand a Schedule "C" use must submit a parking study that provides justification for the number of off-street parking spaces proposed. A parking study

must include estimates of parking demand based on recommendations of the Institute of Traffic Engineers (ITE), or other acceptable estimates as approved by the City Engineer and should include other reliable data collected from uses or combinations of uses that are the same as or comparable with the proposed use. Comparability will be determined by density, scale, bulk, area, type of activity, and location. The study must document the source of data used to develop the recommendations.

b. Review by City Engineer

The City Engineer shall review the parking study and any other traffic engineering and planning data relevant to the establishment of an appropriate off-street parking standard for the proposed use. After reviewing the parking study, the City Engineer shall establish a minimum off-street parking standard for the proposed use.

c. Appeals

Appeals of the City Engineer's decision may be taken to the Board of Adjustment in accordance with the procedures of Sec. 20-0916.

C. Rules for Computing Requirements

The following rules apply when computing off-street parking and loading requirements.

1. Multiple Uses

Lots containing more than one use must provide parking and loading in an amount equal to the total of the requirements for all uses.

2. Fractions

When measurements of the number of required spaces result in a fractional number, any fraction of (or less will be rounded down to the next lower whole number and any fraction of more than (will be rounded up to the next higher whole number.

3. Area Measurements

Unless otherwise expressly stated, all square-footage-based parking and loading standards must be computed on the basis of gross floor area.

4. Occupancy-Based Standards

For the purpose of computing parking requirements based on employees, students, residents or occupants, calculations shall be based on the largest number of persons working on any single shift, the maximum enrollment or the maximum fire-rated capacity, whichever is applicable and whichever results in the greater number of spaces.

5. Unlisted Uses

Upon receiving a development application for a use not specifically listed in an off-street parking schedule, the Zoning Administrator shall apply the off-street parking standard specified for the listed use that is deemed most similar to the proposed use or require a parking study in accordance with Off-Street Parking Schedule "C."

D. Location of Required Parking

1. General

Except as expressly stated in this section, all required off-street parking spaces must be located on the same lot as the principal use.

2. Single-Family Districts

a. Within single-family (SR) zoning districts, a maximum of one off-street parking space shall be permitted on a front yard residential driveway. Within single-family (SR) zoning districts, front yard residential driveways shall not exceed 24 feet in width or the width of the driveway approach, whichever is greater, provided that in no event shall any such driveway allow less than 8 feet of non-paved surface to exist alongside one or both sides of such driveway [1]. All other off-street parking spaces must be located in a covered garage or in side or rear yards.

b. All off-street parking spaces in front or side yard areas shall have an all-weather surface. Rear yard parking spaces may be surfaced with gravel.

E. Alternative Access Plans

An Alternative Access Plan represents a proposal to meet vehicle parking and transportation access needs by means other than providing parking spaces on-site in accordance with the Off-Street Parking Schedule of Sec. 20-0701-B. Applicants who wish to provide fewer off-street parking spaces than required pursuant to Sec. 20-0701-B must secure approval of an Alternative Access Plan, in accordance with the standards and procedures of this section.

1. Procedures

a. Plan Contents

Alternative Access Plans must be submitted in a form established by the Zoning Administrator and made available to the public. At a minimum, such plans must detail the type of alternative proposed and the rationale for such a proposal.

b. Review and Approval Authority

(1) Small Facilities

The Zoning Administrator is authorized to review and act on Alternative Access Plans if the plan proposes a reduction of no more than 25 percent or 25 parking spaces. The Zoning Administrator shall mail written notice of the request to all property owners within 150 feet of the subject property at least 10 days before the Zoning Administrator takes action on the plan.

(2) Large Facilities

Alternative Access Plans that propose a reduction of more than 25 percent or more than 25 off-street parking spaces require review and action by the Planning Commission, in accordance with the Conditional Use Permit Review procedures of Sec. 20-0909.

[1] Driveway approach width is governed by 18-0216 of the Fargo Municipal Code.

c. Recordation of Approved Plans

An attested copy of an approved Alternative Access Plan must be recorded with the County Register of Deeds on forms made available in the Planning Department. An Alternative Access Plan may be amended by following the same procedure required for the original approval.

d. Violations

Violations of an approved Alternative Access Plan constitute a violation of the Land Development Code and will be subject to the enforcement and penalty provisions of Article 20-011.

2. Eligible Alternatives

A number of specific access alternatives are described in this subsection. Decision-makers are, however, authorized to consider and approve *any* alternative to providing off-street parking spaces on the site of the subject development if the applicant demonstrates to the satisfaction of the decision-making body that the proposed plan will do at least as good of a job protecting surrounding neighborhoods, maintaining traffic circulation patterns and promoting quality urban design than would strict compliance with otherwise applicable off-street parking standards.

a. Bicycle Parking

Decision-makers may authorize a reduction in the number of required off-street parking spaces for developments or uses that provide bicycle parking or that make special provisions to accommodate bicyclists. Examples of accommodations include bicycle lockers, employee shower facilities and dressing areas for employees.

b. Valet Parking

Decision-makers may authorize valet parking as a means of satisfying otherwise applicable off-street parking standards, provided that the following conditions are met:

(1) An automobile shall be retrievable from its parking space with the movement of a maximum of two additional vehicles; and

(2) The decision-maker determines that the valet parking will not cause interference with the public use of streets or ways or imperil the public safety.

3. Transportation Demand Management

Decision-makers may authorize a reduction in the number of required off-street parking spaces for developments or uses that institute and commit to maintain a transportation management program, in accordance with the standards of this section.

a. Required Study

The applicant must submit a study that clearly indicates the types of transportation management activities and measures proposed.

b. Transportation Management Activities

The following measures serve as a guide to eligible transportation

management activities. There is, however, no limitation on the types of transportation management activities for which reductions may be granted from otherwise required off-street parking ratios.

(1) Posting and Distribution of Information
The distribution and posting of information from transit agencies and other sources of alternative transportation may be cause for a reduction in otherwise applicable off-street parking requirements.

(2) Transportation Coordinator
The appointment of a Transportation Coordinator with responsibility for disseminating information on ride-sharing and other transportation options may be cause for a reduction in otherwise applicable off-street parking requirements. In addition to acting as liaisons, Transportation Coordinators shall be available to attend meetings and training sessions with the City or transit providers.

(3) Off-Peak Work Hours
Employers that institute off-peak work schedules, allowing employees to arrive at times other than the peak morning commute period, may be eligible for a reduction in otherwise applicable off-street parking requirements. The peak morning commute period is defined as 7:30-9:00 a.m.

(4) Preferential Parking
The provision of specially marked spaces for each registered car pool and van pool may be cause for a reduction in otherwise applicable off-street parking requirements.

(5) Financial Incentives
The provision of cash or in-kind financial incentives for employees commuting by car pool, van pool and transit may be cause for a reduction in otherwise applicable parking requirements.

4. Off-Site Parking
Off-street parking spaces may be located on a separate lot from the lot on which the principal use is located if approved as part of an Alternative Access Plan and if the off-site parking complies with the all of following standards.

a. Ineligible Activities
Off-site parking may not be used to satisfy the off-street parking standards for residential uses (except for guest parking), restaurants, convenience stores or other convenience-oriented uses. Required parking spaces reserved for persons with disabilities may not be located off-site.

b. Location
No off-site parking space may be located more than 600 feet from

the primary entrance of the use served unless shuttle bus service is provided to the remote parking area. Off-site parking spaces may not be separated from the use served by a street right-of-way with a width of more than 80 feet, unless a grade-separated pedestrian walkway is provided, or other traffic control or shuttle bus service is provided to the remote parking area.

c. Zoning Classification

Off-site parking areas serving uses located in nonresidential zoning districts must be located in nonresidential zoning districts. Off-site parking areas serving uses located in residential zoning districts may be located in residential or nonresidential zoning districts.

d. Agreement for Off-Site Parking

In the event that an off-site parking area is not under the same ownership as the principal use served, a written agreement will be required. An attested copy of the agreement between the owners of record must be submitted to the Zoning Administrator for recordation on forms made available in the Planning Department. Recordation of the agreement with the Register of Deeds must take place before issuance of a building permit for any use to be served by the off-site parking area. An off-site parking agreement may be revoked only if all required off-street parking spaces will be provided, in accordance with Sec. 20-0701-B.

5. Shared Parking

Developments or uses with different operating hours or peak business periods may share off-street parking spaces if approved as part of an Alternative Access and Parking Plan and if the shared parking complies with the all of following standards.

a. Location

Shared parking spaces must be located within 600 feet of the primary entrance of all uses served, unless remote parking shuttle bus service is provided.

b. Zoning Classification

Shared parking areas serving uses located in nonresidential zoning districts must be located in nonresidential zoning districts. Shared parking areas serving uses located in residential zoning districts may be located in residential or nonresidential zoning districts.

c. Shared Parking Study

Those wishing to use shared parking as a means of satisfying off-street parking requirements must submit a shared parking analysis to the Zoning Administrator that clearly demonstrates the feasibility of shared parking. The study must be provided in a form established by the Zoning Administrator and made available to the public. It must address, at a minimum, the size and type of the proposed development, the composition of tenants,

the anticipated rate of parking turnover and the anticipated peak parking and traffic loads for all uses that will be sharing off-street parking spaces.

d. Agreement for Shared Parking

A shared parking plan will be enforced through written agreement among all owners of record. An attested copy of the agreement between the owners of record must be submitted to the Zoning Administrator for recordation on forms made available in the Planning Department. Recordation of the agreement with the Register of Deeds must take place before issuance of a building permit for any use to be served by the off-site parking area. A shared parking agreement may be revoked only if all required off-street parking spaces will be provided, in accordance with Sec. 20-0701-B.

F. Parking for Persons with Disabilities

Off-street parking for persons with disabilities must be provided in accordance with the International Building Code.

G. Parking and Loading Area Design

Off-street parking and loading areas must be designed and constructed to accepted construction standards in the industry. Unless otherwise expressly stated in this Land Development Code, including paragraph D.2. of this section pertaining to gravel surfaces in rear yards within single-family (SR) zoning districts, or approved by the City, all off-street parking spaces shall have an all-weather surface. In LI or GI zoning districts only, rear yard vehicular circulation area, not including parking spaces, may be crushed concrete or similar material as approved by the Zoning Administrator.

H. Use of Required Parking Spaces

Required off-street parking areas are to be used solely for the parking of licensed, motor vehicles in operating condition. Required spaces may not be used for the display of goods for sale or lease or for long-term storage of vehicles, boats, motor homes, campers, mobile homes, or building materials.

I. Vehicle Stacking Areas

1. Minimum Number of Spaces

Off-street stacking spaces shall be provided as follows:

Activity Type	Minimum Spaces	Measured From
Bank teller lane	4	Teller or Window
Automated teller machine	3	Teller
Restaurant drive-through	6	Order Box
Restaurant drive-through	4	Order Box to Pick-Up Window
Car wash stall, automatic	6	Entrance
Car wash stall, self-service	3	Entrance
Gasoline pump island	2	Pump Island
Other	Determined by City Engineer based on Traffic Study	

2. Design and Layout

Required stacking spaces are subject to the following design and layout standards.

a. Size

Stacking spaces must be a minimum of 8 feet by 20 feet in size.

b. Location

Stacking spaces may not impede on- or off-site traffic movements or movements into or out of required off-street parking spaces.

c. Design

Stacking spaces must be separated from other internal driveways by raised medians if deemed necessary by the City Engineer for traffic movement and safety.

J. Off-Street Loading Schedule

Off-street loading spaces for trucks and delivery vehicles shall be provided as follows:

Gross Floor Area	Off-Street Loading Spaces Required Retail Sales and Service, Industrial Service, Manufacturing and Production, Warehousing and Freight Movement, and Wholesale Sales
5,000 to 25,000	1
25,001 to 85,000	2
85,001 to 150,000	3
Over 150,000	4 + 1 per 100,000 sq. ft.
	Offices, Community Service, Group Living
8,000 to 100,000	1
Over 100,000	2 + 1 per 100,000 sq. ft.

K. Off-Street Loading Space Dimensions

Off-street loading spaces shall be at least 10 feet wide and 25 feet long unless the Zoning Administrator determines that off-street loading will involve the use of semi-tractor trailer combinations or other vehicles in excess of 25 feet in length, in which case the minimum size of a space shall be 12 feet by 65 feet. All circulation areas leading to and from such spaces shall be provided on site. Under no circumstance shall vehicles be permitted to utilize public streets and rights-of-way as their circulation or parking area, unless otherwise allowed by the City Engineer.

L. Traffic Impact Studies

1. A traffic impact study is required under any one of the following circumstances:
   a. The proposed use consists of one of the following land uses:
      (1) Truck stop,
      (2) Hospital,
      (3) High schools,
      (4) Elementary or middle schools of over 600 students,

(5) Major recreation and entertainment facilities, indoor or outdoor,

(6) Medical office building of 100,000 square feet or greater at build-out of all phases

(7) General or corporate office building of 100,000 square feet or greater at build-out of all phases, and

(8) Retail building or shopping center of 100,000 square feet or greater at build-out of all phases.

b) At the discretion of the City Engineer, based on one or more of the following considerations:

(1) Proposed land use is more intense than that shown on the Growth Plan,

(2) The proposed development (proposed plus future phases) is determined to generate peak hour peak directional trips that are equal to or greater than 250,

(3) Sensitivity of adjacent neighborhoods or other areas that may be perceived as impacted, such as the potential for cut-through traffic,

(4) Anticipated need for additional capacity in an area where widening may be infeasible or undesirable, and

(5) Other conditions as identified by the City Engineer.

2. The City Engineer shall also have the authority to waive the requirement for a traffic impact study even if one of the above criteria is met.

3. The stage at which a traffic impact study may be required shall be one of the following:

a. Category 1

(1) Application for change to land use plan

(2) Application for rezoning

(3) Application for subdivision

(4) Planned Unit Development

The review of a Category 1 traffic impact study and the associated recommendations as a result of that study shall follow the same review and approval process as required in Sections 20-0905, 20-0906, 20-0907, and 20-0908. The assignment of financial responsibility for required improvements shall be reviewed and approved by the Board of City Commissioners.

b. Category 2

(1) Application for building permit

The review of a Category 2 traffic impact study and the associated recommendations as a result of that study shall follow the same review and approval process as required in Sec. 20-0913 and as carried out during established site plan review practices. The assignment of financial responsibility for required improvements shall be reviewed and approved by the Board of City Commissioners.

4. The following shall be the process for conducting a traffic impact study when required:
   a. The cost of the traffic impact study shall be the responsibility of the applicant unless conditions exist whereby a form of cost sharing is appropriate, as determined by the City Engineer.
   b. The City shall be the contracting agent (client) with the consultant(s) from whom cost estimates are received, and with the consultant hired to carry out the study unless otherwise approved by the City Engineer.
   c. Appeals regarding the determination that a traffic impact study is needed shall be made to the Planning Commission.

Source: 2985 (1999), 3062 (1999), 4039 (2000), 4167 (2001), 4177 (2001), 5179 (2018).

§20-0702 Roadway Access and Driveways

A. Access to Streets

Access to streets shall be allowed as follows, unless otherwise restricted by negative access easements or other limitations as indicated on the plat.

Functional Classification	Typical Volume Range (ADT)	Zoning Districts[7]	
		AG-Through MR-3	*NO Through P/I*
Local	0--2,499	Allowed[1]	Allowed[1]
Local Collector	2,500--4,999	Limited[2]	Limited[2]
Collector	5,000--9,999	Limited[3]	Limited[4]
Minor Arterial	10,000--19,999	Limited[5]	Shared[5][6]
Principal Arterial	20,000 or more	Limited[5]	Limited[5][6]

[1] Access allowed provided that at corner lots in SR zoning districts access is at least 15 feet from block corner and at corner lots in UMU, MR and nonresidential zoning districts access is at least 75 feet from block corner. Driveway spacing in NO-GI districts shall be a minimum of 50 feet.

[2] Access allowed provided that at corner lots in SR zoning districts access is at least 40 feet from block corner and in MR and nonresidential zoning districts access is at least 75 feet from block corner. Driveway spacing in UMU, MR and NO-GI districts shall be a minimum of 50 feet.

[3] Guideline = Minimum spacing of 150 feet between driveways.

[4] Minimum spacing of 300 feet between driveways and intersections.

[5] Shared driveways required wherever possible.

[6] Minimum spacing of 600 feet between driveways and intersections.

[7] Existing lot sizes and access locations do not always allow for the practical enforcement of footnotes [3], [4], [5], and [6]. In these areas, the City Engineer shall have the authority to review driveway and intersection spacing on a case-by-case basis, taking into consideration the necessity of the access, the relative location of other access points along the same and opposite sides of the street, opportunities for shared access, and opportunities for on-site modifications that will optimize the location of the driveway or intersection. Using these considerations, the City Engineer shall have the authority to approve driveway and intersection spacing that does not meet footnotes [3], [4], [5], and [6]. This footnote shall not apply to corridors where subdivision accounted for access control or where access control has been applied through a street reconstruction project.

B. Backing onto Arterial Streets

Driveways must be designed and arranged so as to avoid requiring vehicles to back on to arterial streets.

Source: 4039 (2000), 4167 (2001), 4697 (2009).

§20-0703 Number of Principal Buildings and Uses Per Lot

A single lot may be occupied by more than one principal nonresidential use and more than one principal nonresidential structure. A single lot may also be occupied by more than one multi-dwelling residential structure. In all cases, principal structures must be separated by a minimum distance of 10 feet and development on the lot must comply with all applicable standards of this Land Development Code.

Source: 4695 (2009).

§20-0704 Residential Protection Standards

A. General

1. Purpose

The Residential Protection Standards of this section are intended to protect residential properties and neighborhoods from the adverse impacts sometimes associated with adjacent multi-dwelling development and nonresidential development, whether public or private.

2. Applicability[1]

The standards of this section apply to:

a. All multi-dwelling development when such development occurs on a site located within 150 feet of any SR or MHP zoning districts; and

b. All nonresidential development when such development occurs on a site located within 150 feet of any SR, MR or MHP zoning districts.

3. Exemptions

Notwithstanding the applicability provisions of this section, the following are specifically exempt from compliance with Residential Protection Standards to the extent indicated.

a. Structural alteration of an existing building when such alteration does not increase the building's square footage by more than 1,000 square feet;

b. Structural alteration of an existing building when such alteration does not increase the building's height by more than 10 percent; or

c. A change in use that does not increase the number of required off-street parking spaces.

B. Setback

1. From Abutting Side and Rear Lot Lines

Development on lots adjacent to the side or rear lot lines of lots in any SR or MR zoning district must observe the following minimum setbacks.

Development Feature	Minimum Setback from Abutting Side or Rear Lot Line of Protected District (feet)
Off-Street Parking Spaces	10
Driveways	10
Off-Street Loading Spaces	10
Accessory Buildings	10
Principal Buildings	15
Active Recreational Area (e.g. swimming pool, tennis court, playground area, etc.)	20
Dumpsters	20

Note: "Protected Lot" is one located in any SR or MR zoning district.

2. Front Setbacks

When new multi-family or nonresidential development occurs on lots adjacent to the side lot line of a lot in any SR or MHP zoning district, the

[1] For purposes of the residential protection buffers, property zoned AG-Agricultural that is identified as being future residentially-zoned property on any growth plan approved under §20-0905 shall be deemed to be SR-, MR-, or MHP-zoned property.

new development shall observe the same minimum front setback that applies to the SR-zoned lot for a distance of 50 feet from the SR-zoned lot. When new nonresidential development occurs on lots adjacent to the side lot line of a lot in MR zoning district, the new development shall observe the same minimum front setback that applies to the MR-zoned lot for a distance of 50 feet from the MR-zoned lot. In all such cases, no buildings, parking spaces, loading spaces or dumpsters may be located within the required setback.

C. Visual Screening of Dumpsters and Outdoor Storage Areas

Dumpsters and outdoor storage areas located on property subject to the residential protection standards of this section must be completely screened from view of property in any SR, MR or MHP zoning district by buildings, fences, walls, berms or landscape buffers that are at least as tall as the dumpster. This provision shall apply to all dumpsters and outdoor storage areas, including public or private facilities used for collection and storage of recyclable materials.

D. Building Height

1. 75 Feet from Residential

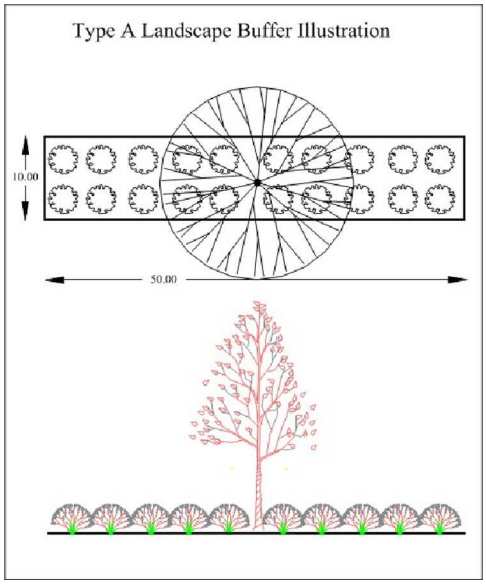
Structures or portions of structures may not exceed 35 feet in height within 75 feet of any SR or MHP zoning district. Structures or portions of structures may not exceed the maximum height allowed in any MR zoning district located within 150 feet of said structure.

2. 76 to 100 Feet from Residential

Structures or portions of structures may not exceed 45 feet in height when located 76 to 100 feet from any SR or MHP zoning district. Structures or portions of structures may not exceed the maximum height allowed in any MR zoning district located within 150 feet of said structure.

3. 101 to 150 Feet from Residential

Structures or portions of structures may not exceed 55 feet in height when located 101 to 150 feet from any SR or MHP zoning district. Structures or portions of structures may not exceed the maximum height allowed in any MR zoning district located within 150 feet of said structure.



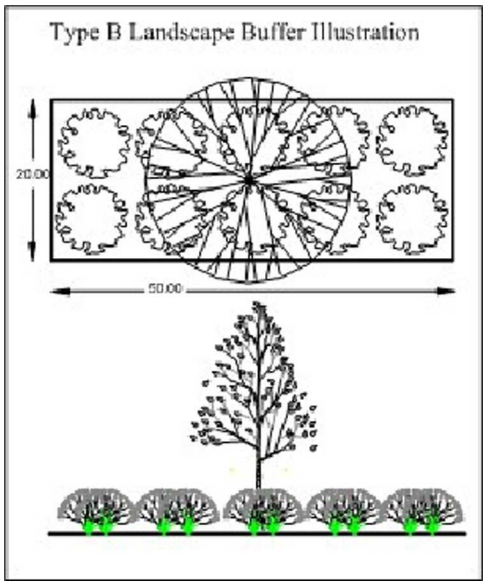
E. Residential Protection Buffers

1. Where Required [1]

Residential Protection Landscape Buffers must be installed or preserved along lot lines adjacent to any SR-, MR-, or MHP-zoned property. Plantings in Residential Protection Landscape Buffers are not counted toward the plant unit requirements of the Open Space Landscaping Requirements of Section 20-0705C.

2. Types of Buffers Required

Any of the following types of landscape buffers may be used to satisfy the Residential Protection Buffer standards of this section.



a. Type A

A "Type A" landscape buffer has a minimum width of 10 feet, with a minimum of 1 tree and 20 shrubs per 50 linear feet of buffer.

b. Type B

A "Type B" landscape buffer has a minimum width of 20 feet. It requires a minimum of 1 tree and 10 shrubs per 50 linear feet of buffer.

3. Use of Landscape Buffers

Required landscape buffers may be used solely for open space and landscaping. No proposed building addition, parking area or any other type of physical land improvement, (other than walls, walkways or other landscape features) may be located in a required landscape buffers.

4. Waiver for Small Sites

The area of required Residential Protection Buffers shall not be required to exceed 10 percent of the site area or 10 percent of the width of the site.

5. Trees and Shrubs

Deciduous trees planted to satisfy the standards of this section must have a minimum size of 2-inch caliper. Evergreen trees must have a minimum height of 5 feet. Shrubs must be at least 1 gallon size.

F. Operating Hours

The following operating hour restrictions apply to all development that is subject to Residential Protection Standards.

1. Collection of Garbage and Recyclables

No use subject to Residential Protection Standards may be served by garbage or recycling collection services between the hours of 10:00 p.m. and 6:00 a.m.

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[1] For purposes of the residential protection buffers, property zoned AG-Agricultural that is identified as being future residentially-zoned property on any growth plan approved under §20-0905 shall be deemed to be SR-, MR-, or MHP-zoned property.

2. Loading Operations

No use subject to Residential Protection Standards may conduct loading or unloading operations between the hours of 10:00 p.m. and 6:00 a.m.

G. Lighting [1]

All lights used by development that is subject to Residential Protection Standards must be arranged and controlled so as to deflect light away from any SR-, MR-, or MHP-zoned property. Any light or combination of lights that cast light on any SR-, MR-, or MHP-zoned lot may not exceed 0.4 foot-candles (meter reading), as measured one foot inside the lot line of an SR-, MR-, or MHP-zoned lot.

H. Odor [1]

No use that is subject to Residential Protection Standards may be operated in a manner that causes odors that are detectable after the air has been diluted with 4 or more volumes of odor-free air, as measured within the lot lines of an SR-, MR-, or MHP-zoned lot. No violation of this odor standard will be deemed to have occurred if the person or business causing the emission of odorous air contaminants is employing the best available treatment, maintenance, and odor emission control techniques currently available.

I. Waivers

The City Planner may reduce or waive one or more of the Residential Protection Standards imposed by this section if they the City Planner finds find that reduction or waiver is appropriate and will not harm the surrounding area. An application for a reduction or waiver of one or more of the Residential Protection Standards shall be submitted in writing in a form established by the City Planner. Prior to issuing a decision by the City Planner to approve a reduction or waiver of the Residential Protection Standards, the City Planner shall provide written notice of the City Planner′s decision by first class mail to all owners of the subject property, all property owners within 300 feet of the subject property and all members of the Planning Commission. The notice of decision shall describe the requested reduction or waiver, the intended decision of the City Planner and shall inform the recipient that an appeal of the City Planner′s decision may be appealed within 10 days of the date of the City Planner′s notice of decision by filing an appeal with the City Planner.

1. Appeal of City Planner′s Decision

a. Appeals to Planning Commission; Timing

Appeals from the action of the City Planner on an application for waiver of the residential protection standards required by Sec. 20-0704 may be taken to the Planning Commission by filing an appeal with the City Planner.

b. Appeals to Board of City Commissioners; Timing

Appeals from the action of the Planning Commission on an

[1] For purposes of the residential protection buffers, property zoned AG-Agricultural that is identified as being future residentially-zoned property on any growth plan approved under §20-0905 shall be deemed to be SR-, MR-, or MHP-zoned property.

[1] For purposes of the residential protection buffers, property zoned AG-Agricultural that is identified as being future residentially-zoned property on any growth plan approved under §20-0905 shall be deemed to be SR-, MR-, or MHP-zoned property.

application for waiver of the residential protection standards required by Sec. 20-0704 may be taken to the City Commission by filing an appeal with the City Planner.

c. Right to Appeal

The following persons and entities shall have standing to appeal the action of the City Planner or Planning Commission on an application for waiver of the residential protection required by Sec. 20-0704:

(1) The applicant;

(2) The Planning Commission or any member of the Planning Commission;

(3) The Board of City Commissioners or any member of the Board of City Commissioners;

(4) Any person that the Planning Commission or Board of City Commissioners determine to be actually or potentially aggrieved by the appealed action; and

(5) Any person given the right of appeal by law.

d. Action on Appeal

The Planning Commission or Board of City Commissioners shall consider the appealed decision on the request for waiver of residential protection standards required by Sec. 20-0704 as a new matter. After considering the matter, the Planning Commission or Board of City Commissioners shall act to approve or deny the original application.

J. Installation Maintenance and Replacement

All trees and landscaping must be installed according to sound nursery practices in a manner designed to encourage vigorous growth. All landscaping and buffers required by this Land Development Code must be healthy and in-place within one (1) year of the date that the building permit was approved. The Zoning Administrator shall be authorized to extend this deadline.

1. Maintenance and Replacement

Trees, shrubs, fences, walls, and other landscape features depicted on plans approved by the City will be considered as elements of the project in the same manner as parking, building materials, and other details are elements of the plan. The land owner, or successors in interest, or agent, if any, will be jointly and severally responsible for the following:

a. Regular maintenance of all landscaping in good condition and in a way that presents a healthy, neat, and orderly appearance. All landscaping must be maintained free from disease, pests, weeds, and litter. This maintenance must include weeding, watering, fertilizing, pruning, mowing, edging, mulching or other maintenance, as needed and in accordance with acceptable horticultural practices;

b. The repair or replacement of required landscape structures (e.g. walls, fences) to a structurally sound condition;

c. The regular maintenance, repair, or replacement, where necessary, or any landscaping required by this section; and

d. Continuous maintenance of the site as a whole.

e. Survival rate levels of less than 90 percent of the original landscaping requirements after expiration of four years from issuance of the building permit shall be corrected upon notification submitted to the owner of the property by the Zoning Administrator. Any person, firm or company, having received such notification from the Zoning Administrator, shall be required to correct survival rate levels of less than 90 percent of the original landscaping requirements by replacing trees, shrubs or other landscaping elements within one year of such notification or in such other manner as approved by the Zoning Administrator.

2. Notification of Noncompliance

If the Zoning Administrator determined that required landscaping has not been installed or maintained in compliance with this section, the Zoning Administrator shall notify the applicant immediately (by mail or personal service to the same person and to the same address as is designated to receive the real estate tax notice for the property). The notice shall state:

a. The work that must be done or the improvement that must be made to comply with the requirements of this Land Development Code;

b. The amount of time the owner has to commence and complete the required landscape work or improvements; and

c. That, if the work or improvements are not commenced and completed within the time specified, the work will be performed by the City and the cost thereof will be assessed against the real property described in the notice.

Source: 2985 (1999), 4039 (2000), 4167 (2001), 4386 (2004), 5179 (2018).

§20-0705 Trees and Landscaping

A. Exemptions

The following are exempt from all of the standards of this section.

1. Agriculture in the AG district;
2. Construction, repair or remodeling of single-family or duplex dwelling units; provided, however, that street tree requirements shall be required in SR zoning districts within the City limits;
3. Development in the DMU district; and
4. Improvements or repairs to existing development that do not increase the existing floor area by more than 1,000 square feet or 10 percent, whichever is greater, and changes in use that do not require more parking spaces or a more intensive zoning than the previous use.

B. Street Trees and Ground Cover of Boulevard

The Street Tree and Ground Cover Planting standards of this subsection apply to all nonexempt development. Review for compliance with these standards shall occur as part of the Subdivision process, Conditional Use Permit, Site Plan Review or Building Permit process, whichever occurs first.

1. Number

a. Local Streets

At least one (1) street tree is required for every 35 linear feet of local street frontage unless the City Forester determines that additional space between trees is necessary to address specific siting or other conditions. All areas of right-of-way for streets and utilities not covered by concrete, asphalt or such other material for vehicular, bicycle or pedestrian travel shall be covered by grass, unless otherwise approved by the Zoning Administrator.

b. Collector and Arterial Streets

At least one (1) street tree is required for every 50 linear feet of collector and arterial street frontage unless the City Forester determines that additional space between trees is necessary to address specific siting or other conditions. All areas of right-of-way for streets and utilities not covered by concrete, asphalt or such other material for vehicular, bicycle or pedestrian travel shall be covered by grass, unless otherwise approved by the Zoning Administrator.

2. Location

Required street trees shall be installed within the street right-of-way or within 10 feet of the street right-of-way. If street trees are to be located outside of the right-of-way, the City shall be authorized to require the establishment of a 15-foot landscape easement. The proposed location of street trees must be shown on the Amenities Plan that accompanies the subdivision plat.

3. Spacing

Street trees need not be placed exactly at 35- or 50-foot intervals, but they must be placed fairly evenly along the street frontage. The City Forester

shall have the authority to determine the final location of street trees, based on site factors such as the location of utilities and driveways, intersection visibility requirements and other factors.

4. Size

Street trees must comply with the following minimum size standards (all sizes to be measured in accordance with *American Standards for Nursery Stock* published by the American Association of Nurserymen).

a. Local Streets

Street trees planted adjacent to local streets must be a minimum size of 1 ½-inch caliper.

b. Collector Streets

Street trees planted adjacent to collector streets must be a minimum size of 2-inch caliper.

c. Arterial Streets

Street trees planted adjacent to arterial streets must be a minimum size of 3-inch caliper.

5. Planting Requirement

Organic mulch (woodchips) shall be installed to a minimum coverage thickness of 2 inches around street tree plantings within a radius of 3 feet of the trunk base.

C. Open Space Landscaping

1. Applicability

The Open Space Landscaping standards of this subsection shall apply to any development that contains three or more attached dwelling units in SR-3, SR-4, or SR-5 zoning districts and to any development in MR-1 or more intensive zoning districts.

2. Relationship to Other Landscaping Standards

Landscaping provided to meet the Street Tree or Parking Lot Perimeter Landscaping standards of this section may not be counted towards meeting a project's Open Space Landscaping requirements. Open Space Landscaping may be placed within the interior of off-street parking areas, in which case the landscaping shall be counted toward meeting the project's Open Space Landscaping requirements.

3. Plant Units Required

a. Residential Districts and UMU zoning district

Within residential and institutional zoning districts and a UMU zoning district, at least three (3) plant units shall be provided for each 1,000 square feet of lot area or fraction thereof, and eight (8) square feet per plant unit shall be provided.

b. Commercial and P/I Districts

Within commercial and public/institutional zoning districts (NO, NC, GO, LC, GC, P/I), at least three (3) plant units shall be provided for each one thousand (1,000) square feet of lot area or fraction thereof, and eight (8) square feet per plant unit shall be provided.

c. Industrial Districts

Within industrial zoning districts (LI and GI), at least one (1) plant unit shall be provided for each one thousand (1,000) square feet of lot area or fraction thereof, and eight (8) square feet per plant unit shall be provided.

The following table provides a breakdown of plant unit equivalencies.

Type of Plant Material	Size	Equivalent Plant Units
Large, Mature Deciduous Tree [1]	1.5 to 3-inch caliper - >30 foot mature height	10
Large, Mature Evergreen Tree [1][2]	5/6 foot height - >30 foot mature height	10
Small, Mature Deciduous Tree [1]	1.5 to 3-inch caliper - 12 to 30 foot mature height	5
Small, Mature Evergreen Tree [1][3]	3 to 4 foot height - 12 to 30 foot mature height	5
Mature Shrub Perennial Plants [4]	2 gallon 1 gallon 2 gallon	1 0.5 1

Sizes to be measured in accordance with *American Standards for Nursery Stock* published by the American Association of Nurserymen.

[1] Smaller caliper trees for certain species may be acceptable upon approval of the Zoning Administrator.

[2] Type 3 cone types ANSI standard including spruce and pine varieties.

[3] Type 6 columnar evergreens including upright junipers and pyramidal arborvitae.

[4] Perennial plant materials shall not exceed twenty percent (20%) of the open space requirement

4. Location of Plant Units

A minimum of seventy percent (70%) of the plant units required pursuant to this subsection shall be installed in required front or street side setback areas. In a UMU zoning district, said seventy percent (70%) requirement shall not apply.

5. P/I Zoning District Calculation

The City Planner shall have authority to exclude playing fields or ball fields from the square footage value used to calculate required plant units in P/I zoning districts.

D. Parking Lot Perimeter Landscaping

1. Applicability

All off-street parking areas shall be subject to the Parking Lot Perimeter Landscaping standards of this subsection. The standards do not apply to areas used for storing vehicles or equipment in conjunction with a vehicle sales or rental establishment.

2. Relationship to Other Landscaping Standards

Landscaping provided to meet Street Tree or Open Space Landscaping standards shall not be counted towards meeting the Parking Lot Perimeter Landscaping requirements.

3. Buffer Standards

Parking lot perimeter buffers shall be located between adjacent street rights-of-way and off-street parking areas and all vehicular circulation[3] areas within the front or street side setback in accordance with the following table:

Parking Area Size Number of Spaces	**Buffer Width** Minimum (feet)	**Planting Requirements**
1--50	4	Continuous plantings[4] of shrubs or perennial grasses
	6	Decorative metal fence (height between 2.5 and 3 feet) + 1 small tree or 6 shrubs/perennial grasses per 25 linear feet
	9	Berm (minimum height of 3 feet) + 1 small tree or 6 shrubs/perennial grasses per 25 linear feet
51--250	9	1 small tree + 6 shrubs/perennial grasses per 25 linear feet or Berm (minimum height of 3 feet) + 1 small tree per 25 linear feet
251+	18	1 large tree per 25 linear feet

Notes:

1. Buffer Width measured from property line
2. Planting requirements and minimum sizes at installation:
   - Perennial grass (greater than 2.5 ft tall at maturity), 1 gallon container
   - Shrub (greater than 2.5 ft tall at maturity), 1 gallon container
   - Small deciduous tree (less than 30 ft tall at maturity), 1.5-inch caliper
   - Small evergreen tree (less than 30 ft tall at maturity), 3-4 foot height
   - Large deciduous tree (greater than 30 ft tall at maturity), 1.5-inch caliper
   - Large evergreen tree (greater than 30 ft tall at maturity), 5-6 foot height
3. Vehicular circulation refers to any surfaces intended for motor vehicle use.
4. Continuous plantings must be spaced so that at maturity, plantings create a continuous row with no spaces or gaps. The plantings shall be spaced between 2 and 4 feet.

4. Paving setbacks.

For the purpose of providing space for pedestrian and bicycle circulation, and creating opportunities for planting buffers, parking lots and vehicular circulation areas shall provide a paving setback in accordance with the following table:

UMU Zoning District	
Location	**Setback** Minimum (feet)
Street side	15
Interior Side	8
Rear side	6

E. Landscape Quality

Plants installed to satisfy the requirements of this must meet or exceed the plant quality standards of the most recent edition of *American Standard for Nursery Stock*, published by the American Association of Nurserymen. Plants must be nursery-grown and adapted to the local area.

F. Use of Existing Plant Material

Vegetation and plant material that exists on a site prior to its development may be used to satisfy the landscaping standards of this section provided that it meets all size, variety and locational requirements of this section.

G. Installation Maintenance and Replacement

All trees and landscaping must be installed according to sound nursery practices in a manner designed to encourage vigorous growth.

1. Installation of Street Trees

The Forester shall determine the time for installation of Street Trees by a written order. Required Street Trees within subdivisions must be healthy and in-place within six (6) months of the order of the Forester. In no event, however, shall Street Trees required by this section be installed, healthy and in-place later than five (5) years after approval of the plat.

2. Installation of other Required Landscaping

All other landscaping and buffers (other than street trees) required by this Land Development Code must be healthy and in-place within one year of the date that the building permit was approved.

3. Maintenance and Replacement

Trees, shrubs, fences, walls and other landscape features depicted on plans approved by the City will be considered as elements of the project in the same manner as parking, building materials and other details are elements of the plan. The land owner, or successors in interest, or agent, if any, will be jointly and severally responsible for the following:

a. Regular maintenance of all landscaping in good condition and in a way that presents a healthy, neat, and orderly appearance. All landscaping must be maintained free from disease, pests, weeds and litter. This maintenance must include weeding, watering, fertilizing, pruning, mowing, edging, mulching or other maintenance, as needed and in accordance with acceptable horticultural practices;

b. The repair or replacement of required landscape structures (e.g. walls, fences) to a structurally sound condition;

c. The regular maintenance, repair, or replacement, where necessary, of any landscaping required by this section; and

d. Continuous maintenance of the site as a whole.

e. Survival rate levels of less than ninety percent (90%) of the original landscaping requirements after expiration of four years from issuance of the building permit shall be corrected upon notification submitted to the owner of the property by the Zoning Administrator. Any person, firm, or company, having received such notification from the Zoning Administrator, shall be required to correct survival rate levels of less than ninety percent (90%) of the original landscaping requirements by replacing trees, shrubs or other landscaping elements within one year of such notification or in such other manner as approved by the Zoning Administrator.

4. Notification of Noncompliance

If the Zoning Administrator determines that required landscaping has not been installed or maintained in compliance with this section, the Zoning Administrator shall notify the applicant immediately (by mail or

personal service to the same person and to the same address as is designated to receive the real estate tax notice for the property). The notice shall state:

a. The work that must be done or the improvement that must be made to comply with the requirements of this Land Development Code;

b. The amount of time the owner has to commence and complete the required landscape work or improvements; and

c. That, if the work or improvements are not commenced and completed within the time specified, the work will be performed by the City and the cost thereof will be assessed against the real property described in the notice.

Source: 2985 (1999), 4039 (2000), 4167 (2001), 4227 (2002), 4695 (2009), 5016 (2016), 5179 (2018).

§20-0706. Corner Visibility

Notwithstanding any other provision of this Land Development Code, neither buildings, permanent or portable signs, parking spaces, fences, landscaping nor any other object may be erected, placed, planted, or allowed to grow in such a manner as to impede vision between a height of two (2) feet and eight (8) feet above curb grade within the required corner visibility area of a street intersection or driveway intersection with a street.

Required Corner Visibility	
Speed Limit (miles per hour)	Size of Corner Visibility Triangle
25	25 feet measured from curb
30	25 feet measured from curb
35	30 feet measured from curb
40	25 feet measured from property line
45	33 feet measured from property line
50	43 feet measured from property line
55	60 feet measured from property line

At intersections of two streets, the corner visibility triangle for the street with the higher speed limit applies. The size of the triangle may be increased by the Zoning Administrator when deemed necessary for traffic safety alignment or other factors that require increased corner visibility. This Corner Visibility Standard shall not apply within the portion of the DMU district where development follows the zero lot line dimensional standard. A "portable sign", as defined in the Fargo Sign Code, that is located within a parking space on an all-weather-surface parking lot that is striped for parking shall be permitted even though such sign may be within said corner visibility area. For purposes of this section, that "distance measured from curb" at an intersection of two streets or roads shall be determined from a point where the extension of the curb from the two streets or roads meet and, at an intersection of a street or road and a driveway, the distance shall be measured from the point of the curb cut for the driveway.

Source: 4167 (2001), 4439 (2004), 4697 (2009).

ARTICLE 20-08

REVIEW AND DECISION-MAKING BODIES

§20-0801 Board of City Commissioners

A. Powers and Duties

The Board of City Commissioner's powers and duties under this Land development code are set out in this subsection.

1. Land Development Code Text Amendments

The Board of City Commissioners shall be responsible for reviewing Land Development Code text amendment applications and for taking the final local action to approve or deny such applications.

2. Area Plans

The Board of City Commissioners shall be responsible for reviewing Area Plan applications and for taking the final local action to approve, approve with conditions or deny such applications.

3. Zoning Map Amendments

The Board of City Commissioners shall be responsible for reviewing zoning map amendment (rezoning) applications and for taking the final local action to approve, approve with conditions or deny such applications.

4. Major Subdivisions

The Board of City Commissioners shall be responsible for reviewing and taking the final local action to approve or deny Major Subdivision Plat applications.

5. Planned Unit Developments

a. PUD Master Land Use Plan and PUD Rezonings

The Board of City Commissioners shall be responsible for reviewing PUD Master Land Use Plan and PUD Rezoning applications and for taking the final local action to approve, approve with conditions or deny such applications.

b. PUD Final Development Plan

The Board of City Commissioners shall be responsible for hearing appeals of the Planning Commission's decision on PUD Final Development Plans and for taking the final local action on such appeals.

6. Conditional Use Permits

The Board of City Commissioners shall be responsible for hearing appeals of the Planning Commission's decision on Conditional Use Permits and for taking the final local action on such appeals.

7. Site Plan Review

The Board of City Commissioners shall be responsible for hearing appeals of the Planning Commission's decision on Site Plan Review matters and for taking the final local action on such appeals.

8. Institutional Master Plans

The Board of City Commissioners shall be responsible for hearing appeals of the Planning Commission's decision on Institutional Master Plans and for taking the final local action on such appeals.

9. Certificates of Appropriateness

The Board of City Commissioners shall be responsible for hearing appeals of the Planning Commission's decision on Certificates of Appropriateness and for taking the final local action on such appeals.

10. Variances

The Board of City Commissioners shall be responsible for hearing appeals of the Board of Adjustment's decision on Variance matters and for taking the final local action on such appeals.

11. Appeals of Administrative Decisions

The Board of City Commissioners shall be responsible for hearing appeals of the Board of Adjustment's decision on Appeals of Administrative Decisions and for taking the final local action on such appeals.

§20-0802. Planning Commission

A. Appointment

1. The Planning Commission shall consist of eleven (11) members, eight (8) of whom shall be appointed by the Board of City Commissioners for 3-year terms and three (3) of whom shall be appointed by the Cass County Board of Commissioners for 5-year terms, in accordance with Sections 40-47-06 and 40-48-03 of the North Dakota Century Code. If a vacancy occurs by means other than expiration of a term, the vacancy shall be filled by appointment for the unexpired portion of the term. Planning Commissioners appointed by the Board of City Commissioners must be residents of the City of Fargo.

2. The President of the Board of City Commissioners shall appoint the members of the Planning Commission on or before the second regular meeting of the Board of City Commissioners in June of each year and shall submit the names of the persons appointed and the lengths of their terms to the Board of City Commissioners at the second meeting in June of each year. The Board of City Commissioners shall, by a majority vote, confirm or reject such appointments. If such appointments are rejected, the President of the Board of City Commissioners shall make other appointments, which shall be approved or rejected in the same manner. The provisions of this section shall not apply to the three (3) rural members of the Planning Commission who shall be appointed and confirmed by the Cass County Board of Commissioners.

B. Removal

Any member of the Planning Commission may be removed by the President of the Board of City Commissioners, subject to the concurrence of a majority of the qualified and existing members of the Board of City Commissioners as defined in section 1-0203 of the Revised Ordinances of 1965 of the City of Fargo; provided, however, that no member of the Planning Commission may be removed until they have been afforded an opportunity of a hearing before the Board of City Commissioners and shall have been given at least 10 days written notice of such hearing by certified or registered mail.

C. Rules

The Planning Commission shall elect a chair and vice-chair at its regularly scheduled June meeting each year. The Planning Commission shall adopt rules and by-laws for the transaction of business.

D. Powers and Duties

The Planning Commission shall have such powers and shall perform such duties as may now or hereinafter be provided by law for any Planning or Zoning Commission, and, in addition thereto, shall act in an advisory capacity to the Board of City Commissioners in any matter which may be assigned to the Planning Commission for consideration and recommendation. Members of the Planning Commission shall receive no compensation, except that they may be

allowed actual expenses for traveling as provided by law. The Planning Commission's powers and duties under this Land Development Code are set out in this subsection (below).

1. Land Development Code Text Amendments

The Planning Commission shall be responsible for reviewing Land Development Code text amendment applications and for recommending that the Board of City Commissioners approve or deny such applications.

2. Area Plans

The Planning Commission shall be responsible for reviewing Area Plan applications and for recommending that the Board of City Commissioners approve, approve with conditions or deny such applications.

3. Zoning Map Amendments

The Planning Commission shall be responsible for reviewing zoning map amendment (rezoning) applications and for recommending that the Board of City Commissioners approve, approve with conditions or deny such applications.

4. Minor Subdivisions

The Planning Commission shall be responsible for recommending that the Board of City Commissioners, approve, approve with conditions or deny Minor Subdivision Plat applications.

5. Major Subdivisions

The Planning Commission shall be responsible for recommending that the Board of City Commissioners approve, approve with conditions or deny Major Subdivision Plat applications.

6. Planned Unit Developments

a. PUD Master Land Use Plan and PUD Rezoning

The Planning Commission shall be responsible for reviewing PUD Master Land Use Plan and PUD Rezoning applications and for recommending that the Board of City Commissioners approve, approve with conditions or deny such applications.

b. PUD Final Development Plan

The Planning Commission shall be responsible for reviewing PUD Final Development Plans and for acting to approve, approve with conditions or deny such applications.

7. Conditional Use Permits

The Planning Commission shall be responsible for hearing and reviewing Conditional Use Permit applications and for acting to approve, approve with conditions or deny such applications.

8. Site Plan Review

The Planning Commission shall be responsible for hearing appeals of the Zoning Administrator's decision on Site Plan Review matters and for acting to approve, approve with conditions or deny the application.

9. Institutional Master Plans

The Planning Commission shall be responsible for reviewing Institutional Master Plans and for acting to approve, approve with conditions or deny such applications.

10. Certificates of Appropriateness

The Planning Commission shall be responsible for hearing appeals of the Historic Preservation Commission's decision on Certificates of Appropriateness and for acting to approve, approve with conditions or deny the application.

11. Other Matters

The Planning Commission shall have such other duties as determined from time-to-time by the Board of City Commissioners and as provided by law.

Source 4592 (2007).

§20-0803. Board of Adjustment

A. Appointment

The Board of Adjustment shall consist of five (5) members who shall be appointed by the Board of City Commissioners for 3-year terms. If a vacancy occurs by means other than expiration of a term, the vacancy shall be filled by appointment for the unexpired portion of the term.

B. Rules

The Board of Adjustment shall elect a chair and vice-chair. The Zoning Administrator shall serve as Secretary. The Board of Adjustment shall adopt rules and by-laws for the transaction of business.

C. Powers and Duties

The Board of Adjustment's powers and duties under this Land Development Code are set out in this subsection.

1. Zoning Variance

The Board of Adjustment shall be responsible for reviewing and taking final local action to approve, approve with conditions or deny zoning variance applications.

2. Appeals of Administrative Decisions

In all matters where appeal powers have not been specifically assigned to the Planning Commission or Board of City Commissioners, the Board of Adjustment shall be responsible for hearing appeals of administrative decisions and for taking the final local action to uphold or overturn the administrative official's decision.

§20-0804. Historic Preservation Commission

A. Purposes and Intent

1. The purpose of this section is to establish a program for the preservation, protection and regulation of historic properties within the City of Fargo for the educational, cultural, economic, and general welfare of the public; to safeguard the heritage of the City by preserving and regulating historic properties that reflect elements of its cultural, social, economic, political and architectural history; to preserve the City's economic base by the stimulation of the tourist industry; to establish and improve property values; to foster economic development; to manage growth; to foster civic pride in the beauty and noble accomplishments of the past; and to promote the use of historic properties for the education, pleasure and welfare of the people of the City of Fargo.
2. It is intended that the Historic Preservation Commission will cooperate with and assist various local, state and federal entities and agencies in the enforcement of federal and state legislation to identify, evaluate, designate, and protect properties significant in the pre-history, history, architecture, engineering and culture of the community, state and nation.
3. It is further declared that the purposes of this article are to:
   a. Retain and enhance historic properties within the City of Fargo while allowing their adaption for current use by assuring that alterations are compatible with their historic character; and
   b. Assure that new construction and subdivision of lots in designated historic districts complies with the standards of this Land Development Code.

B. Creation of Historic Preservation Commission

There is hereby created a body to be known as the Historic Preservation Commission of the City of Fargo, which shall have powers and duties as hereinafter provided.

C. Appointment and Terms

The Historic Preservation Commission shall consist of seven (7) members who shall be residents of the City of Fargo. At least a majority of the membership shall be comprised of persons from among professionals in the disciplines of architecture, history, architectural history, planning, archeology, or other historic preservation related disciplines, such as urban planning, American studies, American civilization, cultural geography or cultural anthropology, to the extent that such professionals are available in the community. Members shall be appointed by the Mayor, subject to ratification and approval by the Board of City Commissioners. The appointments shall be made as follows, to-wit: two (2) members who shall serve for a term of one year; two (2) members who shall serve for a term of two (2) years; and three (3) members who shall serve for a term of three (3) years. All terms shall commence on November 1, 1990. At the expiration of the terms of the members as aforesaid, members shall be appointed for 3-year terms. If a vacancy occurs for reasons other than expiration of a term, it shall be filled by appointment for the unexpired portion of the term. Notwithstanding the expiration of a member's term, such member may serve until his

successor has been appointed and qualified. No member of the Historic Preservation Commission shall be entitled to any compensation, except that reasonable expenses may be paid if budgeted and approved in advance.

D. Rules

The Historic Preservation Commission shall prepare and adopt by-laws and rules governing its own operation and, at its first meeting following November 1 each year, it shall elect a chair and vice-chair to serve until their successors are elected and qualified. The majority of the existing and qualified members of the Historic Preservation Commission shall constitute a quorum for the conduct of business.

E. Meetings

The Historic Preservation Commission shall conduct at least four (4) public meetings annually at the Fargo City Hall. All meetings shall be open to the public and advance notice shall be posted in the City Hall. Appropriate minutes of all meetings shall be maintained and kept in the office of the Planning Department and shall be provided to the State Historical Society within sixty (60) days following each Historic Preservation Commission meeting, or at such other times as may be directed.

F. Employment of Staff

The Historic Preservation Commission, if authorized by the Board of City Commissioners, may employ such persons and obtain such services as may be necessary to direct, advise, and assist the Historic Preservation Commission and obtain equipment, supplies, services and other material which may be necessary to its effective operation.

G. Funding

The Board of City Commissioners may annually appropriate funds, within budget limitations, for the operation of the Historic Preservation Commission. The Historic Preservation Commission, in addition to the appropriations made by the City of Fargo, shall have the right to receive, hold and spend funds which it may legally receive from any and every source, both in and out of the state of North Dakota, for the purpose of carrying out the provisions of this article.

H. Powers and Duties

The Historic Preservation Commission shall have the powers and duties as hereinafter provided and in addition thereto, shall act in an advisory capacity to the Board of City Commissioners and the Fargo Planning Commission in any manner which may be assigned to said Historic Preservation Commission for consideration and recommendation. The following general powers and duties are specifically conferred upon the Historic Preservation Commission.

1. To promulgate criteria for classifying properties within the City as having historic significance.
2. To prepare, or have prepared on its behalf, a comprehensive inventory of historically significant properties within the City.
3. To make recommendations to the Board of City Commissioners concerning the acquisition of fee simple and less than fee simple rights in properties within the City for purposes of historic preservation.

4. To make recommendations to the Board of City Commissioners for any additional ordinances or administrative procedures required to implement the stated purpose and intent of this section.
5. To develop and participate in educational programs to increase public awareness of the value of historic preservation and of the preservation program established by this ordinance.
6. To make recommendations to the Board of City Commissioners:
   a. Regarding application for and acceptance and utilization of grants from federal, state and local agencies or other entities, private groups, and individuals, and
   b. For budgetary appropriations to promote and advance the preservation of historic properties in the City and to otherwise implement the stated purpose and intent of this section.
   c. To evaluate and comment upon plans, proposals, permits and applications which are developed or required by other public agencies -- including those developed by other commissions, offices, and departments of the City -- which may, in the opinion of the Historic Preservation Commission, either directly or indirectly affect any property or properties deemed by the Historic Preservation Commission to have historic value.
7. To prepare and submit, in accordance with all applicable federal laws and regulations, nominations to the National Register of Historic Places for properties deemed by the Historic Preservation Commission to be significant in local, state or national history.
8. To review and comment upon all certifications of significance and certifications of rehabilitation as requested by the North Dakota State Historic Preservation Officer.
9. To accept such gifts or grants as may be appropriate for fulfilling the purposes of this ordinance.
10. To identify and recommend, for historic preservation purposes, such organization or organizations to which fee titles or lesser interest in property should be granted.
11. To submit and file such information, findings and resolutions deemed necessary and appropriate by the Historic Preservation Commission with the State Historical Society of North Dakota.
12. To review and comment to all local, state or federal agencies or entities deemed necessary with regard to governmental funded, assisted or licensed projects with emphasis as to the presence of historically significant properties within the project's impact area, the extent of the project's effect on historically significant properties and proposed means of mitigating any adverse effect.
13. To review and comment on any building permits which are pending or which have been issued by the City of Fargo which may, in the opinion of the Historic Preservation Commission, either directly or indirectly have an effect on property or properties having historic significance. Unless

otherwise expressly provided in this Land Development Code, the Historic Preservation Commission shall have no power to delay or prohibit the issuance of any building permit.

14. Perform any other functions which may be assigned or delegated to it by the Board of City Commissioners.
15. Review each Certificate of Appropriateness application and act to approve or deny the application. (See Sec. 20-0912.)

§20-0805 Arts and Culture Commission

A. Purposes and Intent

1. The purpose of this section is to establish a commission to ensure that public art continues to be a valuable part of Fargo to encourage the display of public art by citizens, developers, property owners, architects and builders to provide a process for review and recommendation to the city commission of the commissioning and placement of public art by the city; to ensure that existing public art is properly displayed and maintained and that it is accessible to the general public.
2. The Arts and Culture Commission is not a municipal arts council as provided by N.D.C.C. Chapter 40-38.1. As a result, the Arts and Culture Commission is not authorized to levy city property taxes; however, the Arts and Culture Commission is authorized to receive and expend funds as provided by N.D.C.C. § 40-05-01(73).

B. Creation of Arts and Culture Commission

There is hereby created an Arts and Culture Commission of the city of Fargo, which shall have powers and duties as hereinafter provided.

C. Appointment and Terms

The Arts and Culture Commission shall consist of nine (9) members who shall be residents of the City of Fargo. One member shall be a representative of the Downtown Community Partnership if available. One member shall be a representative of an established neighborhood association if available. Four members shall have a background in arts and humanities or shall have experience participating in the arts and culture activities in the community. The rest of the members shall be at large. Members shall be appointed by the Mayor, subject to ratification and approval by the Board of City Commissioners. The appointments shall be made as follows, to-wit: three (3) members who shall serve for a term of one (1) year; three (3) members who shall serve for a term of two (2) years; and three (3) members who shall serve for a term of three (3) years. All terms shall commence 2015. June 1 of each year, beginning in 2016, shall be considered the expiration date. At the expiration of the terms of the members as aforesaid, members shall be appointed for 3-year terms. If a vacancy occurs for reasons other than expiration of a term, it shall be filled by appointment for the unexpired portion of the term. Notwithstanding the expiration of a member's term, such member may serve until his successor has been appointed and qualified. No member of the Arts and Culture Commission shall be entitled to any compensation, except that reasonable expenses may be paid if budgeted and approved in advance.

D. Rules

The Arts and Culture Commission shall prepare and adopt by-laws and rules governing its own operation and, at its first meeting following January 1st each year, it shall elect a chair and vice-chair to serve until their successors are elected and qualified. The majority of the existing and qualified members of the Arts and Culture Commission shall constitute a quorum for the conduct of business.

E. Meetings

All meetings of the Arts and Culture Commission shall be governed by North Dakota open meeting law. Minutes of meetings shall be kept in the office of the Planning Department.

F. Funding

The board of city commissioners may annually appropriate funds, within budget limitations, for the operation of the Arts and Culture Commission. As provided by state law, the Arts and Culture Commission, in addition to the appropriations made by the city of Fargo, is authorized to receive, hold and spend funds which it may legally receive from any and every source, both in and out of the state of North Dakota, for the purpose of carrying out the provisions of this article.

G. Powers and Duties

The Arts and Culture Commission shall have the powers and duties as hereinafter provided and in addition thereto, shall act in an advisory capacity to the board of city commissioners in any manner which may be assigned to said Arts and Culture Commission for consideration and recommendation. The following general powers and duties are specifically conferred upon the Arts and Culture Commission.

1. Managing and facilitating new public art commissions or works of art gifted to the city.
2. Managing available funds and engaging in active pursuit of public art grants and other relevant funding opportunities.
3. Reporting to city commission annually the status of donations, monies received and expended, and the purpose of all expenditures.
4. Guiding the development of a public art master plan and maintaining said master plan.
5. Identifying opportunities for public art within current and future capital improvement projects.
6. Managing a public art collection.
7. Promoting public art through education.
8. Employing qualified city staff to support the activities of the council.
9. To make recommendations to the board of city commissioners for any additional ordinances or administrative procedures required to implement the stated purpose and intent of this section.
10. To accept such gifts or grants as may be appropriate for fulfilling the purposes of this ordinance.
11. Maintain public art as needed.

12. Perform any other functions which may be assigned or delegated to it by the board of city commissioners.

Source: 4948 (2014), 4981 (2015).

ARTICLE 20-09

DEVELOPMENT REVIEW PROCEDURES

§20-0901. General

The requirements of this section apply to all applications under this Land Development Code.

A. Authority to File Applications

An application for development review or approval under this Land Development Code must be filed by the person having legal authority to take action in accordance with the approval sought. Unless otherwise expressly stated, that person is presumed to be the record owner, purchaser under a sale from the record owner, or the duly authorized agent of the record owner in the absence of satisfactory proof to the contrary. City officials are authorized to require proof of legal authority to take the action sought. The Board of City Commissioners, Planning Commission, Board of Adjustment and City department heads may initiate any action under this Land Development Code with or without an application from the property owner.

B. Form of Application

Applications required under this Article must be submitted on forms and in such numbers as required by the official responsible for accepting the application.

C. Filing Fees

Applications must be accompanied by the non-refundable fee established by Board of City Commissioners. Fees shall not be required with applications initiated by the Board of City Commissioners, Planning Commission, Board of Adjustment or City department heads.

D. Complete Applications

Applications that do not include required information or that are not accompanied by required fees will be returned to the applicant as incomplete, and no further processing of the application will occur until the deficiencies are corrected. Applications will be reviewed for completeness within five (5) days of filing. If the official determines that the application is complete, the application will be processed. If the official determines that the application is incomplete, the application will be returned to the applicant along with an explanation of the application's deficiencies.

E. Establishment of Processing Cycles

Officials responsible for accepting applications, after consulting with review and decision-making bodies, may promulgate processing cycles for applications. Processing cycles may establish:

1. Deadlines for receipt of complete applications;
2. Dates of regular meetings;
3. The scheduling of staff reviews and staff reports on complete applications;
4. All required steps in the application process (including public hearings, and reviews by other agencies); and
5. Required time-frames for action by review and decision-making bodies.

F. Notices

All notices required under this Land Development Code must:

(1) indicate the time and place of all scheduled public hearings;

(2) describe the property involved in the application by street address, legal description or map;

(3) describe the nature, scope and purpose of the proposal; and

(4) indicate the location and source of additional information on the proposal.

1. Written Notice

Unless otherwise expressly stated, when the provisions of this Land Development Code require that written notice be provided, the official responsible for accepting the application shall provide written notice by first class mail to all owners of the subject property and all property owners within three hundred (300) feet of the subject property. The notice shall be deposited in the U.S. mail at least fifteen (15) days before the first scheduled public hearing. Ownership information shall be obtained from the Cass County Assessor′s Office.

2. Published Notice

When the provisions of this Land Development Code require that notice be published in the newspaper, the official responsible for accepting the application shall ensure that notice is published in a newspaper of general circulation within the City at least once each week for 2 successive weeks preceding the date of the first scheduled public hearing.

3. Constructive Notice

Minor technical deviations from specified notice requirements shall not be deemed to impair notice where there is actual notice. When required written notices have been properly addressed and deposited in the mail, failure of a party to receive such notice shall not invalidate any subsequent action. In all cases, however, the requirements for the timing of the notice and for specifying the time, date and place of a hearing and the general location of the subject property shall be strictly construed. If questions arise at the hearing regarding the adequacy of notice, the body hearing the matter shall make a finding regarding whether there was compliance with the notice requirements of this article.

G. Neighborhood Associations

Established neighborhood associations may request that written notice be mailed to a designated representative and city planning staff shall send to said designated representative a copy of any legally required written notice; however, failure on the part of said planning staff or the city to send such notice shall not invalidate any proceedings nor shall it constitute grounds for delay of any proceedings, said notification to the representative of the neighborhood association being a courtesy and not a legal requirement.

H. Action by Review and Decision-Making Bodies

Commentary

Review and decision-making bodies are authorized to postpone action or continue hearings in order to allow for presentation of additional facts or otherwise provide adequate time for consideration of issues.

Review and decision-making bodies may take any action on an application that is consistent with the notice given, including, but not limited to, approving the application, approving the application with conditions or denying the application. Review bodies may recommend and decision-making bodies may impose conditions on the application or allow amendments to the application if the effect of the conditions or amendments is to allow a less intensive use or zoning district than indicated in the application, to reduce the impact of the development or to reduce the amount of land area included in the application. Decision-making bodies may not approve an application for a greater density of development, a more intensive use, a more intensive zoning district, reduced setbacks, more dwelling units, greater height, more access points or fewer improvements than indicated in the notice.

I. Inaction By Review and Decision-Making Bodies

1. Review Bodies

When a review body fails to take action on an application, the application will be forwarded to the decision-making body with no recommendation.

2. Decision-Making Bodies

When a decision-making body fails to take action on an application within a required time-frame, that inaction will be deemed a denial of the application.

J. Continuation of Public Hearings

A public hearing for which proper notice was given may be continued to a later date without again complying with the notice requirements, provided that the continuance is set for a date and time certain and announced at the original public hearing.

K. Compliance with North Dakota Century Code

The development review procedures of this Article are intended to implement the procedural requirements of the North Dakota Century Code. In the event of conflict between the procedures of this article and those required by the Century Code, the North Dakota Century Code shall control.

Procedure	Sec. No.	Review (R), Decision-Making (DM) and Appeal (A) Bodies				
		Staff	HPC	BOA	PC	BCC
LDC Text Amendments	20-0904	R			R	**DM**
Area Plan	20-0905	R			R	**DM**
Zoning Map Amendments	20-0906	R	R[1]		R	**DM**
Subdivision						
Minor					R	**DM**
Major	20-0907	R			R	**DM**

Procedure	Sec. No.	Review (R), Decision-Making (DM) and Appeal (A) Bodies				
		Staff	HPC	BOA	PC	BCC
Planned Unit Developments						
Master Land Use Plan		R			R	**DM**
PUD Rezoning		R			R	**DM**
Final Development Plan	20-0908	R			**DM**	A
Conditional Use Permits	20-0909	R			**DM**	A
Site Plan Review	20-0910	**DM**			A	A[2]
Institutional Master Plan	20-0911	R			**DM**	A
Certificates of Appropriateness	20-0912	R & DM[3]	**DM & A [3]**			A[2]
Building Permits/Certificates of Occupancy	20-0913	**DM**		A		
Variances	20-0914			**DM**		A
Written Interpretations	20-0915	**DM**		A		
Appeals of Administrative Decisions	20-0916			**DM**		A

■ BOA = Board of Adjustment ■ PC = Planning Commission

■ BCC = Board of City Commissioners ■ HPC = Historic Preservation Commission

[1] HPC is involved only on H-O District application, pursuant to § 20-0305.
[2] Appeals are not required to go to Planning Commission and Board of City Commissioners. Board of City Commissioners acts as appellate body only if the Planning Commission's decision is appealed.
[3] Review, Decision Making and Appeals process is different depending on nature of request. See § 20-0912.

Source: 2985 (1999), 4486 (2005), 4592 (2007), 4881 (2013), 5179 (2018).

§20-0902. Burden of Proof or Persuasion

The burden of demonstrating that an application complies with applicable review and approval criteria is on the applicant. The burden is not on the City or other parties to show that the criteria have not been met.

Source: 2985 (1999).

§20-0903. Date of Decision; Time Period for Appeals

A. For all matters requiring a public hearing, the date of the decision shall be the date on which the decision-making body votes to take final action on the matter. For matters that do not require a public hearing, the date of the decision shall be the date indicated on the notice that is mailed to the applicant by the City Planner or Zoning Administrator.

B. Appeals of final decisions made pursuant to the procedures of this article must be filed within ten (10) days of the date of the decision.

Source: 2985 (1999).

§20-0904. LDC Text Amendments

This section sets out the required review and approval procedures for Land Development Code text amendments.

A. Application

A complete application for a Land Development Code text amendment must be submitted to the Planning Department in a form established by the City Planner, along with a nonrefundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid.

B. City Planner Review and Recommendation

The City Planner must review each proposed Land Development Code text amendment and provide a report to the Planning Commission describing the purpose and effect of the amendment.

C. Planning Commission Review

The Planning Commission must hold a public hearing on the proposed Land Development Code text amendment and, at the close of the public hearing, make a recommendation to the Board of City Commissioners.

D. Board of City Commissioners Action

The Board of City Commissioners must hold a public hearing on the proposed Land Development Code text amendment. At the close of the public hearing, the Board of City Commissioners shall act to approve or deny the Land Development Code text amendment.

LDC Text Amendments



E. Review Criteria

The Planning Commission and Board of City Commissioners shall consider the following criteria in reviewing Land Development Code text amendments. Proposed text amendments that satisfy all of the criteria may be approved.

1. The amendment must be consistent with the purpose of this Land Development Code;
2. The amendment must not adversely affect the public health, safety, or general welfare; and
3. The amendment is necessary because of changed or changing social values, new planning concepts or other social or economic conditions in the areas affected.

F. Notice of Public Hearings

Notice of the Planning Commission and Board of City Commissioners' public hearings on Land Development Code text amendments shall be published in accordance with Sec. 20-0901-F.

G. Notice of Amendment Adoption

Within thirty (30) days after the Board of City Commissioners approves a Land Development Code text amendment, the City Planner shall ensure that notice of the approved amendment is published in accordance with Sec. 20-0901-F.

§20-0905. Growth Plans

A. Applicability

Effective April 1, 2000, an approved Growth Plan is a prerequisite for the approval of a Zoning Map Amendment or Subdivision Plat in portions of the City that have been annexed to the City after February 17, 1998, in Sections 33 and 34 of Reed Township (T140N, R49W), and in the extraterritorial jurisdiction of the City. This section sets out the required review and approval process for Growth Plans. The requirement of an approved Growth Plan shall not take effect until July 1, 2000, provided, however, that as to proposals for zoning map amendments for areas currently zoned Agricultural (AG) in which an approved Growth Plan is not in place, the Planning Commission shall be provided with the following:

1. The opportunity for preliminary review to occur prior to a public hearing;
2. The Planning Department shall provide analysis of the compatibility of the proposed development with existing development, the Comprehensive Policy Plan, physical features of the land and infrastructure availability; and
3. The written notice requirements of 20-0901 shall be extended to landowners within five hundred (500) feet of the subject property.
4. The requirements of subparagraphs 1 through 3, above, shall not apply to development applications submitted prior to March 23, 1999.

B. Plan Definition

As used in this section a Growth Plan, or Plan, shall be deemed to be a land use map and street plan.

C. Application

A complete Growth Plan application must be submitted to the City Planner in a form established by the City Planner, along with a nonrefundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid.

D. Preparation of Growth Plan

The City Planner shall prepare the proposed Growth Plan.

E. Plan Review

After preparing the Growth Plan, the City Planner shall schedule a meeting for the purpose of allowing area residents and property owners in the area to review and comment on the proposed Growth Plan. Notice of meeting shall be published in accordance with Section 20-0901-F.

F. Planning Commission Review

The Planning Commission shall hold a public hearing on the proposed Growth Plan and, at the close of the public hearing, make a recommendation to the Board of City Commissioners.

Growth Plan



G. Board of City Commissioners Action

The Board of City Commissioners shall hold a public hearing on the proposed Growth Plan. At the close of the public hearing, the Board of City Commissioners shall act to approve, approve with modifications or deny the Growth Plan.

H. Approval Criteria

In acting on Growth Plans, the Planning Commission and Board of City Commissioners shall consider whether the Growth Plan is consistent with and serves to implement adopted plans and policies of the City.

I. Notice of Public Hearings

Notice of the Planning Commission and Board of City Commissioners' public hearings shall be published in accordance with Section 20-0901-F.

J. Amendments to Growth Plans

Growth Plans may be amended, in part or in total, in the same manner as set forth in this section.

Source: 2997 (1999), 4024 (2000).

§20-0906. Zoning Map Amendments

This section sets out the required review and approval procedures for amendments to the official zoning map (zoning changes).

A. Growth Plan Prerequisite

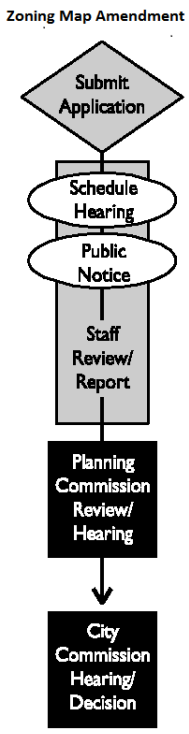
No zoning map amendment application will be accepted for land that is not covered by an approved Growth Plan. If the subject property is not included in an approved Growth Plan, a Growth Plan must be submitted for review and approval before or concurrently with the zoning map amendment application. This provision shall not be interpreted as requiring an approved Growth Plan prior to initial zoning of land brought into the City's Extra-Territorial Zoning Jurisdiction (See also Sec. 20-0108). The requirement of an approved Growth Plan shall not take effect until April 1, 2000, provided, however, that as to proposals for zoning map amendments for areas currently zoned Agricultural (AG) in which an approved Growth Plan is not in place, the Planning Commission shall be provided with the following:

1. The opportunity for preliminary review to occur prior to a public hearing;

2. The Planning Department shall provide analysis of the compatibility of the proposed development with existing development, the Comprehensive Policy Plan, physical features of the land and infrastructure availability; and

3. The written notice requirements of Sec. 20-0901 shall be extended to landowners within 500 feet of the subject property.

4. The requirements of subparagraphs 1 through 3, above, shall not apply to development applications submitted prior to March 23, 1999.



B. Application

A complete application for a zoning map amendment must be submitted by the applicant or the applicant's agent to the City Planner. The application shall be in a form established by the City Planner, and be accompanied by a nonrefundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid.

C. City Planner Review and Recommendation

The City Planner must review each proposed zoning map amendment and provide a report to the Planning Commission describing the purpose and effect of the amendment.

D. Planning Commission Review

The Planning Commission must hold a public hearing on the proposed zoning map amendment and, at the close of the public hearing, make a recommendation to the Board of City Commissioners.

E. Board of City Commissioners Action

The Board of City Commissioners must hold a public hearing on the proposed zoning map amendment. At the close of the public hearing, the Board of City Commissioners shall act to approve or deny the zoning map amendment.

F. Review Criteria

The Planning Commission and Board of City Commissioners shall consider the following criteria in their review of zoning map amendment requests. Proposed zoning map amendments that satisfy all of the criteria may be approved.

1. The requested zoning change is justified by a change in conditions since the previous zoning classification was established or by an error in the zoning map;

2. The City and other agencies will be able to provide necessary public services, facilities, and programs to serve the development allowed by the new zoning classification at the time the property is developed;

3. The approval will not adversely affect the condition or value of property in the vicinity; and
4. The proposed amendment is consistent with the purpose of this Land Development Code, the applicable Growth Plan and other adopted policies of the City.

G. Protest Petitions

1. Definition of "Valid" Protest Petition

In order to be deemed "valid," a protest petition must be signed by the owners of twenty percent (20%) or more: (a) of the area of the lots included in the area proposed to be changed, or (b) of the area adjacent and extending three hundred (300) feet from the land area proposed to be changed, excluding the width of streets. "Valid" protest petitions must contain the signature and address of each protesting property owner, and the location of property owned by each protestor shall be shown on a map attached to the written petition.

2. Super-Majority Vote Required

If a valid protest petition is submitted to City Planner before the scheduled public hearing of the Board of City Commissioners, approval of a zoning map amendment shall require a favorable vote of ¾ of all the members of the Board of City Commissioners.

H. Notice of Public Hearings

1. Written Notice

The City Planner shall provide written notice of the Planning Commission public hearing in accordance with Sec. 20-0901-F.

2. Published Notice

Notice of the Planning Commission and Board of City Commissioners' public hearings shall be published in accordance with Sec. 20-0901-F.

I. Limit on Successive Applications

If the Board of City Commissioners denies an application for a zoning map amendment, an application for the same zoning district on any portion of the subject tract may not be refiled by the original applicant for three months from the date of the Board of City Commissioners' public hearing on the proposed amendment.

Source: 2985 (1999), 2997 (1999), 4024 (2000), 4168 (2001).

§20-0907. Subdivision

A. General

1. Applicability

Subdivision of land shall be required before any of the following activities occur:

a. The division of land (for any purpose) into two (2) or more parcels; or

b. Development that involves the construction of any public improvements that are to be dedicated to the City.

2. Exemptions

The "Applicability" provision of Sec. 20-0907-A notwithstanding, the following shall be exempt from the subdivision procedures of this section.

a. Boundary Line Adjustments

An adjustment in the boundary between adjoining lots if the adjustment does not create a substandard lot, exceed the maximum density allowed by the underlying zoning district or necessitate new roadway construction or right-of-way dedication. In such cases, a Boundary Line Adjustment survey must be submitted to the Zoning Administrator for review and approval, based on whether the reconfigured lots comply with the standards of this Land Development Code. Upon approval, the Boundary Line Adjustment survey shall be recorded with County Register of Deeds. A Boundary Line Adjustment shall not be required when two (2) or more lots are combined into a single lot whose boundaries coincide with lot lines shown on the recorded plat of the subdivision.

b. Tax Lots

The division of ownership interests solely for the purpose of assigning tax liability among multiple owners (tax lots), provided that a tax lot survey must be submitted to the City Assessor, who shall inform the applicant of the effect of the tax lot division and record the tax lot survey with the County Register of Deeds.

c. Rail Rights-of-Way, Drainage Easements and Utilities

Land used for street or railroad right-of-way, a drainage easement or other public utilities subject to local, state or federal regulations, where no new street, right-of-way or easement is involved, or for a cemetery.

d. Agricultural

The division of a parcel or tract of land when the smallest parcel created is greater than ten (10) acres and the land is to be used solely for agriculture and living unit purposes.

3. Proper Designation

Notwithstanding the references in this section to subdivisions, minor subdivisions and major subdivisions, the subdivided land shall be considered an "addition" if the land is within the corporate limits of the City

and shall be considered a "subdivision" if the land is outside the corporate limits of the City and the same shall be reflected in the proper name for the subdivision. A failure to properly identify the subdivision as either an "addition" or "subdivision" shall not invalidate a subdivision which was otherwise approved in accordance with the Land Development Code.

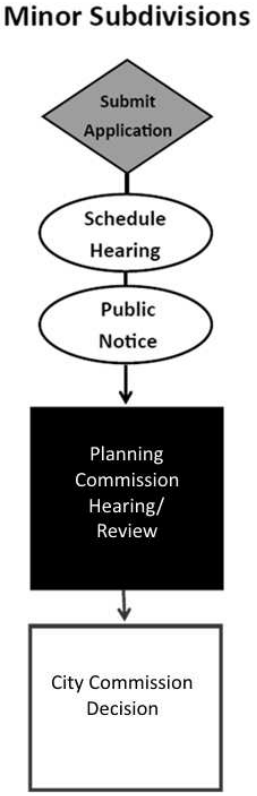
Source: 4039 (2000)

B. Minor Subdivisions

The expedited review and approval procedures of this subsection apply only to "Minor Subdivisions."

1. Application

A complete application for Minor Subdivision Plat approval must be submitted to the City Planner in a form established by the City Planner, along with a nonrefundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid.



2. Review and Report--City Planner

The City Planner shall prepare a staff report that reviews the application in light of the Comprehensive Plan, the zoning standards of Article 20-06 and all other applicable requirements of this Land Development Code.

3. Review and Recommendation--Planning Commission

The Planning Commission shall hold a public hearing on the Minor Subdivision application and, after the close of the public hearing, shall recommend approval or denial of the application, based on whether it complies with the adopted Area Plan, the standards of Article 20-06 and all other applicable requirements of this Land Development Code.

4. Review and Action - Board of City Commissioners

After receiving the recommendation of the Planning commission, the Board of City Commissioners shall act to approve or deny the application. A public hearing beore the City Commission is not required. A Minor Subdivision Plat shall not be approved unless it is located in a zoning district that allows the proposed development (uses and density/ dimensional standards) and complies with the adopted Area Plan, the standards of Article 20-06 and all other applicable requirements of this Land Development Code.

5. Notices

Notices of the Planning Commission public hearings on Minor Subdivisin Plat applications shall be published in accordance with Sec. 20-0901-F.

6. Recordation

After approval of a Final Plat, the City Planner shall be responsible for recording the Final Plat with the County Recorder.

C. Major Subdivisions

The procedures of this subsection apply to all "Major Subdivisions."

1. Growth Plan and Zoning Prerequisite

No Major Subdivision plat application will be accepted for land that is not consistent with an approved Growth Plan or zoned to accommodate the proposed development. If the subject property is not consistent with an approved Growth Plan, a new or revised Growth Plan must be submitted for review and approval before or concurrently with the major plat application. The requirement of an approved Growth Plan shall not take effect until July 1, 2000.

2. Preapplication Meeting

Before submitting a plat for a proposed Major Subdivision, the applicant shall confer with the City Planner to discuss the proposal and applicable regulations. The purpose of the Preapplication Meeting is for the applicant to become familiar with applicable subdivision procedures and standards. The City Planner may waive the preapplication meeting requirement.

3. Preliminary Review

a. Application

A complete application for preliminary review of major subdivision plats must be submitted to the City Planner in a form established by the City Planner, along with a nonrefundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid.

b. Review and Report - City Planner

The City Planner shall prepare a staff report that reviews the application in light of the applicable Area Plan, the Comprehensive Plan, the standards of Article 20-06 and all other applicable requirements of this Land Development Code.

c. Review By Planning Commission

The Planning Commission shall review the plat application to determine if it complies with the adopted Area Plan, the standards of Article 20-06 and all other applicable requirements of this Land Development Code. After making its determination, the Planning Commission shall schedule a public hearing date for review of the finalized plat documents. After the preliminary review, the applicant may proceed with the preparation of Construction Plans and submit the required plat documents for review and approval.

4. Final Review and Action

a. Prerequisites for Planning Commission Hearing

The Planning Commission shall not hold a public hearing on a proposed Major Subdivision Plat until all of the following documents and information have been submitted to the City Planner in a form established by the City Planner:

Commentary

An Amenities Plan provides a description and inventory of the amenities to be included within the subdivision, including:

Trees	Sidewalks and Medians
Fences and Walls	Entrance Monuments and Signs
Street Signs (Addressing)	Structure in Rights-of-Way
Common Area Improvements	

The Amenities Plan must outline the location, type, quantity, size, materials and other relevant details about the amenities. It must also describe plans for implementation, such as:

Special Assessments	Covenants
Property Owner Association	Developer Funding

(1) A complete Amenities Plan;

(2) A Clear Title Opinion;

(3) A Departmental Review Checklist; and

(4) Mylar Plat Document signed by the applicant, property owner and land surveyor.

b. Review and Report--City Planner.

The City Planner shall prepare a staff report that reviews the application in light of the approved Preliminary Plat, the applicable Area Plan, the Comprehensive Plan, the standards of Article 20-06 and all other applicable requirements of this Land Development Code.

c. Review and Recommendation--Planning Commission.

The Planning Commission shall hold a public hearing on the Major Subdivision Plat and, after the close of the public hearing, recommend approval or denial of the application, based on whether it complies with the adopted Area Plan, the standards of Article 20-06 and all other applicable requirements of this Land Development Code.

Major Subdivision Plats (Final Review)



d. Review and Action--Board of City Commissioners.

The Board of City Commissioners shall hold a public hearing on the Major Subdivision Plat and, after the close of the public hearing, act to approve or deny the application. A Major Subdivision Plat shall not be approved unless it is located in a zoning district that allows the proposed development (uses and density/dimensional standards) and complies with the adopted Area Plan, the standards of Article 20-06 and all other applicable requirements of this Land Development Code.

e. Notices.

Notice of the Planning Commission and Board of City Commissioners' public hearings on Major Subdivision Plat applications shall be published in accordance with Sec. 20-0901-F.

f. Public Improvements.

In taking action on Final Plat applications, the Board of City Commissioners shall specify the terms for securing installation of public improvements to serve the subdivision. In doing so, the Board of Commissioners may:

(1) Require that the developer install required subdivision improvements in accordance with the approved Final Plat and all other applicable public facility design standards, including the subdivision and improvement and design standards of Article 20-06;

(2) Require that the developer post a financial guarantee for the improvements, in accordance with applicable law; or

(3) Agree that the City will install public facilities and improvements and then assess the costs of those improvements against the benefited properties.

5. Recordation

After approval of a Final Plat, the City Planner shall be responsible for recording the Final Plat with the County Register of Deeds.

D. Subdivision Waivers

1. Application Filing

Subdivision Waiver requests shall be submitted to the City Planner in a form established by the City Planner at the time that the subdivision plat application is submitted. At a minimum, the Subdivision Waiver request shall include: (1) a description of the subdivision design or improvement standards to be waived or modified, and (2) the reasons and justifications for the requested Subdivision Waiver.

2. Staff Recommendation

Upon receipt of a Subdivision Waiver application, the City Planner shall distribute copies of the application to all affected departments and agencies. Reviewing departments and agencies shall have ten (10) days to review the request and submit a recommendation to the City Planner. The staff recommendation shall state the reasons for the recommendation and any suggested conditions of approval. Upon receipt of the staff recommendation, the City Planner shall prepare a report and recommendation for presentation to the Planning Commission.

3. Approval Criteria

The Subdivision Waiver request shall be considered by the Planning Commission and Board of City Commissioners during their review of the subject subdivision. In recommending action and in acting upon the Subdivision Waiver request, the Planning Commission and Board of City Commissioners shall be bound by all of the following criteria:

a. A Subdivision Waiver must not be detrimental to the public safety, health or welfare, or injurious to other property or improvements in the area in which the property is located;

b. The Subdivision Waiver must represent the least deviation from this Land Development Code that will mitigate the hardship or practical difficulty that exists on the subject property; and

c. The Subdivision Waiver shall not have the effect of waiving any provisions of this development code other than the Subdivision Design and Improvement Standards of Article 20-06.

Source: 2985 (1999), 2997 (1999), 4024 (2000), 4592 (2007), 5179 (2018).

§20-0908. Planned Unit Developments

A. Description and Overview

1. General Description

A "planned unit development" (PUD) is a type of overlay zoning district and a type of development plan. PUD zoning districts are inextricably linked to PUD plans in that no rights of development apply to a PUD zoning designation other than those of the approved PUD plan.

2. Overview of Procedure

PUDs shall be processed in three stages: Master Land Use Plan; Rezoning to PUD district and Final Plan. Master Land Use Plans and Rezonings may be processed concurrently, provided that no rezoning to the PUD district may occur until approval of a PUD Master Land Use Plan.

a. The PUD Master Land Use Plan application is reviewed with respect to such issues as density, including the number, type, and location of dwelling units and other uses; impacts on surrounding areas; and the adequacy of facilities and services. The result of this review is the establishment of the basic parameters for development of the PUD. PUD Master Land Use Plan approval establishes the maximum development "envelope" with regard to density, lot sizes, overall scale, open space, environmental protection, and other land development and service provision issues.

b. After approval of a PUD Master Land Use Plan, a PUD zoning map amendment may be approved, or a PUD zoning map amendment may be processed concurrently with the PUD Master Land Use Plan.

c. The PUD Final Plan is the document upon which building permits and other applicable approvals are issued. The PUD Final Plan review stage is the point at which developers bring forward detailed plans for carrying out the type of project conceptually approved during PUD Concept Plan review. The applicant must submit the detailed and technical information necessary to demonstrate that all applicable standards, requirements, and conditions have been met.

B. PUD Master Land Use Plan

A PUD Master Land Use Plan is a generalized land use plan for the entire area proposed to be included within a PUD. The purpose of a PUD Master Land Use Plan is to allow early review of a proposed PUD before substantial technical planning work has been undertaken.

1. Preapplication Conference

Before submitting a PUD Master Land Use Plan, the applicant shall confer with the City Planner and other officials designated by the City Planner. The purpose of this preapplication conference is to discuss the proposal and the applicable development review and approval procedures.

2. Application

A complete application for PUD Master Land Use Plan approval shall

be submitted to the City Planner in a form established by the City Planner along with a nonrefundable fee that has been established by the Board of City Commissioners. No application shall be processed until the application is complete and the required fee has been paid.

3. Review and Report--City Planner

The City Planner shall prepare a staff report that reviews the PUD Master Land Use Plan application in light of the PUD zoning standards of Sec. 20-0302 and all other applicable development standards and planning policies. The City Planner shall provide a copy of the report to the Planning Commission and the applicant.

PUD Master Land Use Plans



4. Review and Recommendation--Planning Commission

The Planning Commission shall hold a public hearing on the PUD Master Land Use. At the close of the public hearing, the Planning Commission shall recommend approval or denial of the PUD Master Land Use Plan application and transmit a written summary of its action and proceedings to the Board of City Commissioners.

5. Review and Action--Board of City Commissioners

After the close of the Planning Commission public hearing, the Board of City Commissioners shall hold a public hearing on the PUD Master Land Use Plan application. After the close of the hearing, the Board of City Commissioners shall act to approve, approve with conditions or deny the proposed PUD Master Land Use Plan. If the Board of City Commissioners acts to approve the PUD Master Land Use Plan, it shall establish required time-frames for development of the entire PUD and its individual phases, if any.

6. Notice of Public Hearings

a. Written Notice

The City Planner shall provide written notice of the Planning Commission public hearing in accordance with Sec. 20-0901-F.

b. Newspaper Notice

Notice of the Planning Commission and Board of City Commissioners' public hearing on PUD Master Land Use Plans shall be published in accordance with Sec. 20-0901-F.

7. PUD Master Land Use Plan Review Criteria

Applications for PUD Master Land Use Plan approval shall be approved if the following criteria are met:

a. The plan represents an improvement over what could have been accomplished through strict application of otherwise applicable base zoning district standards, based on the purpose and intent of this Land Development Code;

b. The PUD Master Land Use Plan complies with the PUD standards of Sec. 20-0302;

c. The City and other agencies will be able to provide necessary public services, facilities, and programs to serve the development proposed, at the time the property is developed;

d. The development is consistent with and implements the planning goals and objectives contained in the Area Plan, the Comprehensive Plan and other adopted policy documents; and

e. The PUD Master Land Use Plan is consistent with sound planning practice and the development will promote the general welfare of the community.

8. Effect of PUD Master Land Use Plan Approval

Approval of a PUD Master Land Use Plan shall constitute acceptance of the overall general planning concepts for the proposed PUD development and is a prerequisite for the filing of a PUD Final Plan and approval of a PUD zoning classification.

9. Lapse of PUD Master Land Use Plan Approval

An approved PUD Master Land Use Plan shall lapse and be of no further force and effect if a PUD Final Plan for the PUD (or a phase of the PUD) has not been approved within 2 years of the date of approval of the PUD Master Land Use Plan. In the event of such lapse, the PUD zoning classification shall be of no effect, and the property shall be developed solely in accordance with the underlying zoning classification. In the event of lapse of approval pursuant to this section, the Planning Commission shall initiate action to remove the land from the PUD overlay zoning district and may initiate action to rezone the property to its former base zoning district classification.

C. PUD Zoning Map Amendment

After approval of a PUD Master Land Use Plan, or concurrently with the processing of a PUD Master Land Use Plan, a zoning map amendment request for PUD zoning may be reviewed and approved. PUD zoning requests shall be processed in accordance with the zoning map amendment procedures of Sec. 20-0906.

D. PUD Final Plan

1. Application

After approval of a PUD zoning classification and before lapse of a PUD Master Land Use Plan, a complete application for PUD Final Plan approval must be submitted to the City Planner in a form established by the City Planner along with a non-refundable fee that has been established by the Board of City Commissioners. No application shall be processed until the application is complete and the required fee has been paid. A PUD Final Plan application may include the entire area covered in the PUD Master Land Use Plan or it may include one or more phases of the approved PUD Master Land Use Plan.

2. Review and Report--City Planner

The City Planner shall prepare a staff report that reviews the PUD Final Plan application in light of the approved PUD Master Land Use Plan and all other applicable development standards and planning policies.

3. Review and Action--Planning Commission

The Planning Commission shall consider the PUD Final Plan application and act to approve or deny the PUD Final Plan application.

4. PUD Final Plan Review Criteria

A PUD Final Plan shall be approved by the Planning Commission if it is determined by the Planning Commission to be in substantial compliance with the approved PUD Master Land Use Plan. The PUD Final Plan shall be deemed to be in substantial compliance with the PUD Master Land Use Plan so long as, when compared with the PUD Master Land Use Plan, it does not result in:

a. An increase in project density or intensity, including the number of housing units per acre or the amount of nonresidential floor area per acre;
b. A change in the mix of housing types or the amount of land area devoted to nonresidential uses;
c. A reduction in the amount of open space;
d. Any change to the vehicular system that results in a significant change in the amount or location of streets, common parking areas, and access to the PUD;
e. Any change within fifty (50) feet of any SR or MR zoning district;
f. Any change determined by the Planning Commission to represent an increase in development intensity; or
g. A substantial change in the layout of buildings.

PUD Final Plans



5. Effect of Approval; Lapse of Approval

Approval of a PUD Final Plan shall confer upon the applicant the right to develop the subject property in accordance with the approved PUD Final Plan. The right to develop in accordance with an approved PUD Final Plan shall lapse and be of no further effect if all development shown on the PUD Final Plan is not complete within the time-frame established by the Board of City Commissioners during review of the Master Land Use Plan. In the event of such lapse of approval, the PUD Final Plan and PUD zoning classification shall be of no effect, and the property shall be developed solely in accordance with the underlying zoning classification. In the event of lapse of approval pursuant to this subsection, the Planning Commission shall initiate action to remove the land from the PUD overlay zoning district.

6. Appeal of Planning Commission Decision

a. Appeals to Board of City Commissioners; Timing

Appeals from the action of the Planning Commission on an application for PUD Final Plan approval may be taken to the Board of City Commissioners by filing an appeal with the City Planner.

b. Right to Appeal

The following persons and entities shall have standing to appeal the action of the Planning Commission on an application for a PUD Final Plan approval:

(1) The applicant;

(2) The Planning Commission or any member of the Planning Commission;

(3) The Board of City Commissioners or any member of the Board of City Commissioners;

(4) Any person who received mailed notice of the public hearing;

(5) Any person that the Board of City Commissioners determines to be actually or potentially aggrieved by the appealed action; and

(6) Any person given the right of appeal by law.

c. Action on Appeal

The Board of City Commissioners shall consider the appealed PUD Final Plan decision as a new matter in a public hearing and, at the close of the public hearing, act to approve or deny the original application for PUD Final Plan approval. The procedure and required notice shall be the same as required of the original action before the Planning Commission.

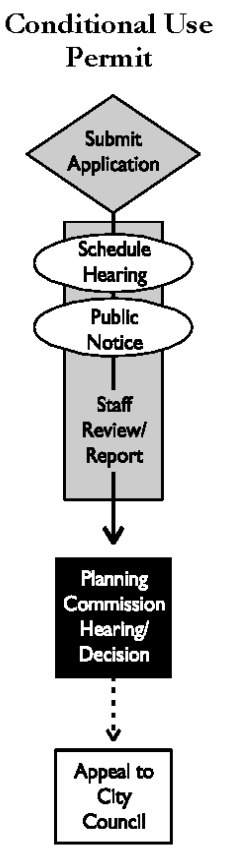
Source: 2985 (1999).

§20-0909. Conditional Use Permits.

This section sets out the required review and approval procedures for Conditional Use Permits.

A. Application.

A complete application for a Conditional Use Permit shall be submitted to the City Planner in a form established by the City Planner, along with a nonrefundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid.



B. Review and Recommendation--City Planner.

The City Planner must review each proposed Conditional Use Permit and prepare a report that reviews the application in light of the Comprehensive Plan, the Area Plan, the general requirements of this Land Development Code and the applicable review criteria set forth in this section.

C. Review and Action--Planning Commission.

The Planning Commission must hold a public hearing on the proposed Conditional Use Permit and, at the close of the public hearing, act to approve or deny the Conditional Use Permit request. In acting on Conditional Use Permit requests, the Planning Commission shall be authorized to impose such conditions, safeguards or restrictions upon the premises benefited by the conditional use as may be necessary to reduce or minimize any potentially injurious effect upon other property in the area, or to carry out the general purpose and intent of this Land Development Code, so long as the condition, safeguard or restriction relates to a situation created or aggravated by the proposed use.

D. Review and Approval Criteria.

In reviewing any application for a Conditional Use Permit, the Planning Commission shall identify and evaluate all factors relevant to the applicaton. A Conditional Use Permit may not be approved unless the Planning Commission finda that all of the following criteria, as applicable, have been satisfied:

Commentary

Not all of the Conditional Use Permit Approval Criteria will apply in every case. Only the applicable criteria will be used in determining whether to approve or deny a Conditional Use Permit. A development that does not involve the use or extension of utilities, for example, will not be evaluated pursuant to the criteria of paragraph D.5.

1. The proposed conditional use complies with all applicable provisions of this Land Development Code and will conform to the general intent and purpose of this Land Development Code;

2. The proposed conditional use at the specified location will contribute to and promote the welfare or convenience of the public;
3. The proposed conditional use will not cause substantial injury to the value of other property in the neighborhood in which it is to be located;
4. The location and size of the conditional use, the nature and intensity of the operation involved in or conducted in connection with it, and the location of the site with respect to streets giving access to it are such that the conditional use will not dominate the immediate neighborhood so as to prevent development and use of neighboring property in accordance with the applicable zoning district regulations. In determining whether the conditional use will dominate the immediate neighborhood, consideration shall be given to:
   a. The location, nature and height of buildings, structures, walls, and fences on the site; and
   b. The nature and extent of proposed landscaping and buffering on the site.
5. Adequate utility, drainage, and other such necessary facilities and services have been or will be provided at the time of development; and
6. Adequate access roads or entrance and exit drives will be provided and be so designed to prevent traffic hazards and to minimize traffic congestion in public streets.

E. Notice of Public Hearings

1. Written Notice

The City Planner shall provide written notice of the Planning Commission public hearing in accordance with Sec. 20-0901-F.

2. Newspaper Notice

Notice of the Planning Commission's public hearing on Conditional Use Permits shall be published in accordance with Sec. 20-0901-F.

F. Appeal of Planning Commission Decision

1. Appeals to Board of City Commissioners; Timing

Appeals from the action of the Planning Commission on an application for Conditional Use Permit approval may be taken to the Board of City Commissioners by filing an appeal with the City Planner.

2. Right to Appeal

The following persons and entities shall have standing to appeal the action of the Planning Commission on an application for a Conditional Use Permit approval:

a. The applicant;
b. The Planning Commission or any member of the Planning Commission;
c. The Board of City Commissioners or any member of the Board of City Commissioners;
d. Any person who received mailed notice of the public hearing;
e. Any person that the Board of City Commissioners determines to be actually or potentially aggrieved by the appealed action; and
f. Any person given the right of appeal by law.

3. Action on Appeal

The Board of City Commissioners shall consider the appealed Conditional Use decision as a new matter in a public hearing and, at the close of the public hearing, act to approve or deny the original application for Conditional Use Permit approval. The procedure and required notice shall be the same as required of the original action before the Planning Commission.

G. Limit on Successive Applications

If the Board of City Commissioners denies an application for a Conditional Use Permit, an application for the same use on any portion of the subject tract may not be refiled by the original applicant for three months from the date of the Board of City Commissioners' public hearing.

H. Amendments

The procedure for amending a Conditional Use Permit shall be the same as required for the original approval.

Source: 2985 (1999), 4168 (2001).

§20-0910. Site Plan Review

A. Applicability

The Site Plan review procedures of this section shall apply to:

Commentary
Although Site Plans may be required with applications for other forms of development approval (e.g. Conditional Use Permits), those plans shall be reviewed in accordance with the respective development review procedure. When Site Plans are reviewed in conjunction with other forms of development approval, separate Site Plan Review under the procedures of this section will not be required.

1. Any development that is subject to the Residential Protection Standards of Sec. 20-0704 if it will result in the addition of more than fifty thousand (50,000) square feet of gross floor area, whether through new construction or building enlargement;
2. Any development involving the addition of more than one hundred thousand (100,000) square feet of gross floor area, whether through new construction or building enlargement;
3. Any development involving the addition of more than two hundred fifty (250) off-street parking spaces;
4. Any development on a site with an area of two hundred thousand (200,000) square feet or more;
5. Any development involving more than one principal building on a single site if the total floor area of all of the buildings on the site exceeds fifty thousand (50,000) square feet;
6. Any development in a DMU zoning district;
7. Any development in a UMU zoning district; and
8. Any other use or development expressly requiring Site Plan Review by other provisions of this Land Development Code.

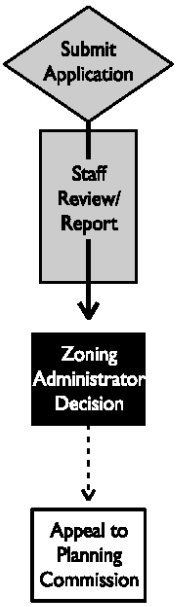
B. Application

A complete application for Site Plan Review shall be submitted to the Zoning Administrator in a form established by the Zoning Administrator, along with a nonrefundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid.

C. Review and Action--Zoning Administrator

The Zoning Administrator must review each Site Plan application in light of the applicable review criteria set forth in this section and act to approve or deny the Site Plan application.

Site Plan Review



D. Review and Approval Criteria

A Site Plan application may not be approved unless the Zoning Administrator finds that the proposed project complies with all applicable provisions of this Land Development Code and with all adopted plans and policy documents of the City. The Zoning Administrator may grant approval with conditions only to the extent that such conditions specify the actions necessary to bring the application into complete compliance with this Land Development Code and adopted plans and policy documents.

E. Appeal of Zoning Administrator's Decision

1. Appeals to Planning Commission; Timing

Appeals from the action of the Zoning Administrator on an application for Site Plan approval may be taken to the Planning Commission by filing an appeal with the Zoning Administrator.

2. Appeals to Board of City Commissioners; Timing

Appeals from the action of the Planning Commission on an application for Site Plan approval may be taken to the Board of City Commissioners by filing an appeal with the Zoning Administrator.

3. Right to Appeal

The following persons and entities shall have standing to appeal the action of the Zoning Administrator or Planning Commission on an application for Site Plan approval:

a. The applicant;

b. The Planning Commission or any member of the Planning Commission;

c. The Board of City Commissioners or any member of the Board of City Commissioners;

d. Any person that the Planning Commission or Board of City Commissioners determines to be actually or potentially aggrieved by the appealed action; and

e. Any person given the right of appeal by law.

4. Action on Appeal

The Planning Commission or Board of City Commissioners shall consider the appealed Site Plan decision as a new matter without a requirement for a public hearing. After considering the matter, the Planning Commission or Board of City Commissioners shall act to approve or deny the original application. The procedure shall be the same as required of the original action before the Zoning Administrator.

F. Amendments

The procedure for amending a Site Plan application shall be the same as required for the original approval.

G. Expiration and Lapse of Approval

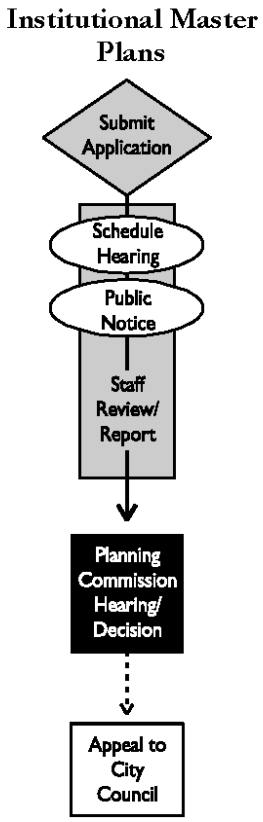
Property owners shall have 12 months from the date of approval of a Site Plan to secure a Building Permit to carry out the proposed improvements. If a Building Permit has not been obtained within 12 months of the date of Site Plan approval, the approved Site Plan shall lapse and be of no further effect.

Source: 2985 (1999), 4695 (2009).

§20-0911. Institutional Master Plans

A. Applicability

Institutional Master Plans (or site plan review) may be used to satisfy the Project Review requirements of the P/I zoning district (See Sec. 20-0304-D).



B. Applications

A complete application for Institutional Master Plan approval shall be submitted to the City Planner in a form established by the City Planner, along with a non-refundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid.

C. Review and Recommendation--City Planner

The City Planner must review each proposed Institutional Master Plan and prepare a report that reviews the application in light of the Comprehensive Plan, any applicable Area Plan, the general requirements of this Land Development Code and the applicable review criteria set forth in this section.

D. Review and Action--Planning Commission

The Planning Commission must hold a public hearing on the proposed Institutional Master Plan and, at the close of the public hearing, act to approve or deny the Institutional Master Plan request. In acting on Institutional Master Plan requests, the Planning Commission shall be authorized to impose such conditions, safeguards or restrictions as may be necessary to reduce or minimize any potentially injurious effect upon other property in the area, or to carry out the general purpose and intent of this Land Development Code, so long as the condition, safeguard or restriction relates to a situation created or aggravated by the proposed use.

E. Review and Approval Criteria

In reviewing any application for a Institutional Master Plan, the Planning Commission shall identify and evaluate all factors relevant to the application. An Institutional Master Plan may not be approved unless the Planning Commission finds that all of the following criteria have been satisfied:

1. The plan complies with all applicable provisions of this Land Development Code and will conform to the general intent and purpose of this Land Development Code;

2. The plan is consistent with all adopted plans and policies of the City; and

3. The proposed plan will not cause substantial injury to the value of other property in the neighborhood in which it is to be located.

F. Notice of Public Hearings

1. Written Notice

The City Planner shall provide written notice of the Planning Commission public hearing in accordance with Sec. 20-0901-F.

2. Newspaper Notice

Notice of the Planning Commission's public hearing on Institutional Master Plans shall be published in accordance with Sec. 20-0901-F.

G. Appeal of Planning Commission Decision

1. Appeals to Board of City Commissioners; Timing

Appeals from the action of the Planning Commission on an application for Institutional Master Plan approval may be taken to the Board of City Commissioners by filing an appeal with the City Planner.

2. Right to Appeal

The following persons and entities shall have standing to appeal the action of the Planning Commission on an application for an Institutional Master Plan approval:

a. The applicant;

b. The Planning Commission or any member of the Planning Commission;

c. The Board of City Commissioners or any member of the Board of City Commissioners;

d. Any person who received mailed notice of the public hearing;

e. Any other person that the Board of City Commissioners determines to be actually or potentially aggrieved by the appealed action; and

f. Any person given the right of appeal by law.

3. Action on Appeal

The Board of City Commissioners shall consider the appealed decision as a new matter in a public hearing and, at the close of the public hearing, act to approve or deny the original application for Institutional Master Plan approval. The procedure and required notice shall be the same as required of the original action before the Planning Commission.

H. Amendments

The procedure for amending an Institutional Master Plan shall be the same as required for the original approval.

I. Effect of Approval

Once approved, building permits may be issued for development within the P/I district if the proposed development is consistent with the approved Institutional Master Plan. An Institutional Master Plan shall remain in effect for a period of ten (10) years, unless the Planning Commission establishes a shorter time period as part of its approval of the Institutional Master Plan.

J. Application Submittal Requirements

1. Institutional Master Planning Area

An Institutional Master Plan must include the lot upon which subject development is to be located, all commonly owned land within one

thousand (1,000) feet and a detailed description of land uses within two hundred (200) feet of the lot to be occupied by the proposed development, regardless of ownership.

2. Planning Requirements

An Institutional Master Plan must, at a minimum, include all of the information required with a Conditional Use Permit application plus the following, unless the Planning Commission determines that such information is not necessary to evaluate the proposed Institutional Master Plan its impacts on surrounding neighborhoods.

a. Planning Horizon

The Institutional Master Plan must cover a period of at least ten (10) years, commencing from the date of submission of the Institutional Master Plan.

b. Existing Property and Uses

The Institutional Master Plan must include a description of land, buildings, and other structures that occupy land areas included in the Institutional Master Plan, as of the date of submission of the Institutional Master Plan. The following information must be included:

(1) Illustrative site plans showing the footprints of each building and structure, together with roads, sidewalks, parking, landscape features and other significant site improvements;

(2) Land and building uses;

(3) Gross floor area in square feet;

(4) Building height in stories and feet; and

(5) A description of off-street parking and loading areas and facilities, including a description of the approximate number of parking spaces in each area or facility.

c. Needs of the Institution

The Institutional Master Plan must include a summary and projection of current and future plans for the following facilities:

(1) Academic;

(2) Service;

(3) Research;

(4) Office;

(5) Housing;

(6) Patient care;

(7) Public assembly;

(8) Parking; and

(9) Other facilities related to the use.

d. Development Envelope

The Institutional Master Plan must include a description of the

amount and type of development proposed to take place over the horizon of the Institutional Master Plan. This description must include the following information:

(1) Gross floor area;
(2) Average daily and peak-hour traffic;
(3) Building heights;
(4) Setbacks; and
(5) Total open space.

e. Neighborhood Protection Strategy.

The Institutional Master Plan must identify standards and programs that will be put in place to ensure that the quality of the surrounding neighborhoods is maintained or enhanced.

Source: 2985 (1999).

§20-0912. Certificates of Appropriateness

A. Applicability

The procedures of this section shall apply to all work requiring a Certificate of Appropriateness in the H-O district.

B. Application

A complete application for a Certificate of Appropriateness shall be submitted to the City Planner in a form established by the City Planner, along with a nonrefundable fee that has been established by the Board of City Commissioners. No application will be processed until the application is complete and the required fee has been paid.

C. Review and Recommendation

1. Review by City Planner

All Certificate of Appropriateness applications involving exterior renovation of a structure shall be reviewed by the City Planner in light of the applicable review criteria set forth in this section. The City Planner may approve or deny the application for a Certificate of Appropriateness based on the standards imposed by this section. If the City Planner finds that the proposed renovation is inconsistent with the relevant special regulations and standards as described in § 20-0305.C., the City Planner shall refer the application to the Historic Preservation Commission for review. The applicant has the right to appeal the City Planner's decision to the Historic Preservation Commission.

2. Review by Historic Preservation Commission

The Historic Preservation Commission must review each Certificate of Appropriateness application that involves the creation of a mural, or the demolition or new construction of a structure, in light of the applicable review criteria set forth in this section and act to approve or deny the Certificate of Appropriateness application.

D. Review and Approval Criteria

A Certificate of Appropriateness application shall be reviewed in accordance with the Special Development Standards that are established for each designated H-O District in Section 20-0305, the standards of this Land Development Code and the U.S. Secretary of the Interior's Standards for the Treatment of Historic Properties.

E. Exception to Special Development Standards

1. Appeals to Board of City Commissioners; Timing

Appeals from the action of the Historic Preservation Commission on a Certificate of Appropriateness application may be taken to the Board of City Commissioners by filing an appeal with the City Planner.

2. Right to Appeal

The following persons and entities shall have standing to appeal decisions on a Certificate or Appropriateness:

a. The applicant;

b. The Historic Preservation Commission or any member of the Historic Preservation Commission;

c. The Board of City Commissioners or any member of the Board of City Commissioners;

d. Any person that the Historic Preservation Commission or Board of City Commissioners determines to be actually or potentially aggrieved by the appealed action; and

e. Any person given the right of appeal by law.

3. Action on Appeal

The Board of City Commissioners shall consider the appealed decision as a new matter without a requirement for a public hearing. After considering the matter, the Board of City Commissioners shall act to approve or deny the original application. The procedure shall be the same as required of the original action before the Historic Preservation Commission.

F. Expiration and Lapse of Approval

Property owners shall have twleve (12) months from the date of approval of a Certificate of Appropriateness to secure a Building Permit or Demolition Permit to carry out the proposed work. If a Building Permit or Demolition Permit has not been obtained within twelve (12) months of the date of approval, the approved Certificate of Appropriateness shall lapse and be of no further effect.

Source: 2985 (1999), 4486 (2005).

§20-0913. Building Permits

Building Permits shall be required in accordance with applicable provisions of the Municipal Code (See Sec. 21-01). This section sets out the required review and approval procedures for Building Permits.

A. Application Submittal

A complete application for a Building Permit shall be submitted to the Building Official in a form established by the Building Official along with a non-refundable fee that has been established by the Board of City Commissioners. No Building Permit application shall be processed until the application is complete, all applicable development approvals have been secured and the required fee has been paid. Building Permits may be issued only for development on Legal Lots provided, however, that as to lots outside the corporate City limits and within the area where the City has exercised its extraterritorial zoning jurisdiction, the Zoning Administrator is authorized to waive the requirement that the lot be shown on a Subdivision plat that has been recorded in the office of the County Register of Deeds when the Zoning Administrator is satisfied that roadway access and driveway issues as identified in Sec. 20-0702 and subdivision design and improvement issues as identified in Sec. 20-0611 can be properly addressed without a platting or subdivision approval process.

B. Review and Action--Building Official

The Building Official shall be responsible for conducting reviews to determine if intended uses, buildings or structures comply with all applicable regulations and standards, including the building code. The Building Official shall not issue a building permit unless the plans, specifications and intended use of such building or structures or part thereof conform in all respects to the provisions of this Land Development Code and the building code.

Source: 4039 (2000).

§20-0914. Variances

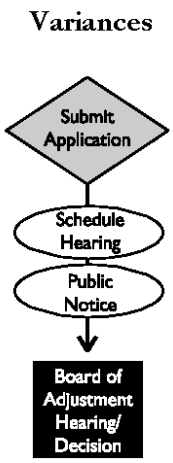
This section sets out the required review and approval procedures for variances.

A. Types of Variances Allowed

The Board of Adjustment is authorized to grant variances from the zoning district dimensional standards and off-street parking and loading standards of this Land Development Code that will not be contrary to the public interest or the spirit of this Land Development Code, where, owing to special conditions, a literal enforcement of the provisions of this Land Development Code would result in unnecessary physical (not economic) hardship to the property owner.

B. Application Submittal

A complete application for a variance shall be submitted to the Zoning Administrator in a form established by the Zoning Administrator, along with a nonrefundable fee that has been established by the Board of City Commissioners. No application shall be processed until the application is complete and the required fee has been paid.



C. Review and Action--Board of Adjustment

The Board of Adjustment shall hold a public hearing on the variance request, and, at the close of the public hearing act to approve, approve with conditions or deny the application based on the review criteria set out in this section. A concurring vote of at least four members of the Board of Adjustment shall be required to approve any variance request.

D. Notice of Public Hearings

1. Written Notice

The Zoning Administrator shall provide written notice of the Board of Adjustment public hearing in accordance with Sec. 20-0901-F.

2. Newspaper Notice

Notice of the Board of Adjustment′s public hearing on Variance requests shall be published in accordance with Sec. 20-0901-F.

E. Review Criteria; Findings of Fact

1. Criteria for Approval

A variance may be granted by the Board of Adjustment upon an affirmative finding that all of the following conditions exist.

a. The requested variance arises from conditions that are unique to the subject property, that are not ordinarily found in the same zoning district and that are not a result of the owner′s intentional action;

b. The granting of the permit for the variance will not adversely affect the rights of adjacent property owners or residents;

c. The strict application of the applicable standards will constitute an unnecessary physical hardship (not economic hardship) because the property cannot be used for an otherwise allowed use without coming into conflict with applicable site development standards;

d. The variance desired will not adversely affect the public health, safety or general welfare; and

e. The variance is the minimum variance that will overcome the hardship.

2. Findings of Fact

The Board of Adjustment shall make a determination on each approval criterion and enter its findings in the official record. Findings of fact shall be based on evidence presented at the public hearing on the variance request.

F. Use Variances Prohibited

The Board of Adjustment may not grant use variances, which are variances that have the effect of allowing a use type that is not allowed by the Use Table of Sec. 20-0401.

G. Conditions of Approval

In granting a variance, the Board of Adjustment may impose such conditions, safeguards and restrictions upon the premises benefited by the variance as may be necessary to reduce or minimize any potentially injurious effect of the variance upon other property in the area.

H. Expiration and Lapse of Approval

Property owners shall have twelve (12) months from the date of approval of a Variance to secure a Building Permit to carry out the proposed improvements. If a Building Permit has not been obtained within twelve (12) months of the date of Variance approval, the approved Variance shall lapse and be of no further effect.

I. Appeal of Board of Adjustment Decisions

1. Appeals to Board of City Commissioners; Timing

Appeals from the action of the Board of Adjustment on an application for a Variance may be taken to the Board of City Commissioners by filing an appeal with the Zoning Administrator.

2. Right to Appeal

The following persons and entities shall have standing to appeal the action of the Board of Adjustment on an application for a Variance:

a. The applicant;

b. The Board of City Commissioners or any member of the Board of City Commissioners;

c. Any person who received mailed notice of the public hearing;

d. Any other person that the Board of City Commissioners determines to be actually or potentially aggrieved by the appealed action; and

e. Any person given the right of appeal by law.

3. Action on Appeal

The Board of City Commissioners shall consider the appealed decision as a new matter in a public hearing and, at the close of the public hearing, act to approve or deny the original application for a Variance. The procedure and required notice shall be the same as required of the

original action before the Board of Adjustment. A favorable vote of ¾ of all the members of the Board of City Commissioners shall be required to approve any variance request.

J. Limit on Successive Applications

If the Board of Adjustment denies an application for a variance, an application for the same variance may not be re-filed for three (3) months from the date of the Board of Adjustment's public hearing on the proposed variance.

Source: 2985 (1999), 4168 (2001), 5179 (2018).

§20-0915. Written Interpretations

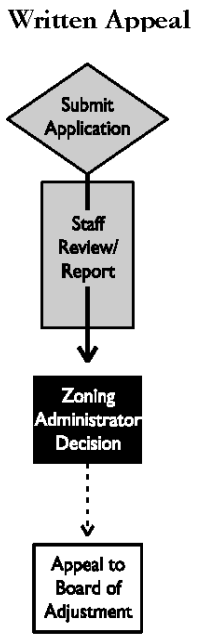
This section sets out the required review and approval procedures for Written Interpretations of the provisions of this Land Development Code.

A. Application Submittal

A complete application for a Written Interpretation shall be submitted to the Zoning Administrator in a form established by the Zoning Administrator along with a non-refundable fee that has been established by the Board of City Commissioners. No application shall be processed until the application is complete and the required fee has been paid.

B. Review and Action--Zoning Administrator

Within twenty (20) days after a complete application for a Written Interpretation has been submitted, the Zoning Administrator shall: (1) review and evaluate the request in light of the text of this Land Development Code, the Official Zoning Maps, the Comprehensive Plan and any other relevant documents; (2) consult with other staff; and (3) render a Written Interpretation.



C. Form

The interpretation shall be provided to the applicant in writing and shall be filed in the official record of interpretations.

D. Official Record of Interpretations

The Zoning Administrator shall maintain an official record of interpretations. The record of interpretations shall be available for public inspection in the Planning Department offices during normal business hours.

E. Appeal of Interpretation

Appeals of the Zoning Administrator's Written Interpretation may be taken to the Board of Adjustment, in accordance with the procedures of Sec. 20-0916. Appeals of Written Interpretations shall be filed with the Zoning Administrator.

Source: 2985 (1999).

§20-0916. Appeals of Administrative Decisions

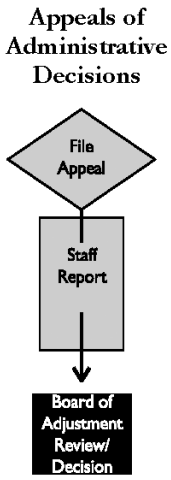
This section sets out the required review and approval procedures for Appeals of Administrative Decisions.

A. Applicability

The Board of Adjustment shall be authorized to hear and decide appeals where it is alleged there is an error in any order, requirement, decision or determination made by an administrative official of the City in the administration or enforcement of this Land Development Code.

B. Right to Appeal

Appeals of Administrative Decisions may be filed by any person aggrieved or by any officer, department, board or agency affected by any decision of the administrative officer.



C. Application Submittal

Applications for Appeals of Administrative Decisions shall be submitted to the Zoning Administrator in a form established by the Zoning Administrator along with a nonrefundable fee that has been established by the Board of City Commissioners. No application shall be processed until the application is complete and the required fee has been paid.

D. Time of Filing Appeal

Appeals of Administrative Decisions shall be filed with the Zoning Administrator.

E. Effect of Filing

The filing of a complete application for appeal stays all proceedings in furtherance of the action appealed, unless the official whose decision is being appealed certifies to the Board of Adjustment, after the appeal is filed, that, because of facts stated in the certification, a stay would cause immediate peril to life or property. In such case, proceedings shall not be stayed other than by a restraining order which may be granted by the Board of Adjustment, or by a court of record.

F. Transmittal of Papers

The Zoning Administrator or the official whose decision is being appealed shall transmit to the Board of Adjustment all papers constituting the record upon which the action appealed is taken.

G. Review and Action--Board of Adjustment

Appeals of Administrative Decisions shall be taken to the Board of Adjustment. The Board of Adjustment shall grant to the administrative official's decision a presumption of correctness, placing the burden of persuasion of error on the appellant. In exercising the appeal power, the Board of Adjustment shall have all the powers of the official from whom the appeal is taken, and the Board of Adjustment may reverse or affirm wholly or partly or may modify the decision being appealed. If the Board of Adjustment determines that it is necessary to obtain additional evidence in order to resolve the matter, it shall remand the appeal to the official from whom the appeal is taken, with directions to obtain such evidence and to reconsider the decision in light of such evidence. A concurring vote of four members of the Board of Adjustment shall be necessary to reverse any order, requirement, decision, or determination of an administrative official.

H. Review Criteria; Findings of Fact

An appeal shall be sustained only if the Board of Adjustment finds that the administrative official erred. Every decision of the Board of Adjustment shall

be accompanied by written findings of fact specifying the reason for the decision. These findings shall be filed in the office of the Board of Adjustment within fifteen (15) days after the date of the final action.

I. Appeal of Board of Adjustment Decisions

1. Appeals to Board of City Commissioners; Timing

Appeals from the action of the Board of Adjustment may be taken to the Board of City Commissioners by filing an appeal with the Zoning Administrator.

2. Right to Appeal

The following persons and entities shall have standing to appeal the action of the Board of Adjustment:

a. The applicant;

b. The Board of Adjustment or any member of the Board of Adjustment;

c. The Board of City Commissioners or any member of the Board of City Commissioners;

d. Any person who received mailed notice of the public hearing;

e. Any other person that the Board of City Commissioners determines to be actually or potentially aggrieved by the appealed action; and

f. Any person given the right of appeal by law.

3. Action on Appeal

The Board of City Commissioners shall consider the appealed decision as a new matter in a public hearing and, at the close of the public hearing, act to approve or deny the original application. The procedure and required notice shall be the same as required of the original action before the Board of Adjustment.

Source: 2985 (1999), 4592 (2007).

ARTICLE 20-10

NONCONFORMITIES

§20-1001. General

A. Overview

The regulations of this article establish regulations that govern uses, structures, lots and other current circumstances that came into being lawfully but that do not conform to one or more requirements of this Land Development Code. The regulations address the following types of nonconformities:

1. Nonconforming Uses

Nonconforming uses are uses that were established in accordance with zoning regulations in effect at the time of their establishment, but which, because of amendments to the zoning regulations, no longer comply with the use regulations of the underlying zoning district. A use that was legally established without a Conditional Use Permit shall be deemed to have a Conditional Use Permit and shall not be deemed nonconforming solely because a Conditional Use Permit is now required for the use.

2. Nonconforming Structures

Nonconforming structures are buildings or structures that were established in accordance with all zoning regulations in effect at the time of their establishment, but which, because of amendments to the zoning regulations, no longer comply with the dimensional standards of the underlying zoning district.

3. Nonconforming Lots

Nonconforming lots are lots that were legally created in accordance with zoning district minimum lot size and dimensional standards in effect at the time of their creation, but which, because of amendments to the zoning regulations, no longer comply with the minimum lot size or other dimensional standards of the zoning district.

B. Policy

It is the general policy of the City to allow uses, structures or lots that came into existence legally and in conformance with then-applicable requirements but that do not conform to all of the applicable requirements of this Land Development Code to continue to exist and be put to productive use, but to bring as many aspects of such use into conformance with current Land Development Code as is reasonably practicable, all subject to the limitations of this Article. The limitations of this Article are intended to recognize the interests of the property owner in continuing to use the property but to control the expansion of the nonconformity and to control re-establishment of abandoned uses and limit re-establishment of buildings and structures that have been substantially destroyed.

C. Authority to Continue

Nonconformities shall be allowed to continue in accordance with the regulations of this Article.

D. Determination of Nonconformity Status

The burden of establishing that a nonconformity lawfully exists is the owner's burden, not the City's.

E. Repairs and Maintenance

Repairs and normal maintenance required to keep nonconforming uses, structures and lots in a safe condition are permitted, provided that no alterations may be made except those allowed by this Article or required by law or ordinance.

F. Change of Tenancy or Ownership

Changes of tenancy, ownership or management of an existing nonconformity are permitted, provided that no changes in the nature or character, extent or intensity of such nonconformity may occur except those allowed by this Article.

Source: 4558 (2006).

§20-1002. Nonconforming Uses

Nonconforming uses shall be subject to the following standards.

A. Enlargement

No nonconforming use may be enlarged, expanded or extended to occupy a greater area of land or floor area than was occupied on February 17, 1998, and no additional accessory use, building or structure may be established on the site of a nonconforming use. This provision notwithstanding, uses may be extended throughout any part of a building or other structure that was lawfully and manifestly designed or arranged for such use on February 17, 1998.

B. Relocation

No nonconforming use may be moved in whole or in part to any other portion of such parcel nor to another lot unless the use will be in conformance with the use regulations of the district into which it is moved.

C. Discontinuance and Abandonment

If a nonconforming use ceases for any reason for a period of more than twelve (12) consecutive months (except where Government action causes such cessation), the subsequent use of such parcel or lot must conform to the regulations and provisions set by this Land Development Code for the district in which such parcel or lot is located.

D. Damage or Destruction

If a structure devoted in whole or in part to a nonconforming use is damaged or destroyed by any means, to the extent of more than fifty percent (50%) of its structural value prior to the damage, that structure may not be restored unless the structure and the use thereof thereafter complies with all regulations of the zoning district in which it is located. The determination of reduced structural valuation shall be made by the City. If the damage or destruction represents fifty percent (50%) or less of the structure's value prior to the damage, repair and restoration is allowed, provided that a building permit must be obtained within six (6) months of the damage and restoration must begin within one year of the date of damage.

1. Existing, off-premises advertising signs located along interstate highways that become legal, nonconforming signs with the adoption of this Land Development Code may be replaced or repaired even though damaged beyond fifty percent (50%) of their value, and such signs may also be relocated, even if not damaged or destroyed, so long as they remain on the same property; provided, that any such replacement sign shall be limited to a sign of no greater size than the original.
2. Existing off-premises advertising signs located within the DMU zoning district, but outside of the downtown historic district, that become legal, nonconforming signs with the adoption of this Land Development Code may be replaced or repaired even though damaged beyond fifty percent (50%) of their value, and such signs may also be relocated, even if not damaged or destroyed, so long as they remain on the same property, provided that any such replacement sign shall be limited to a sign of no greater size than the original.

3. Notwithstanding the foregoing provisions of this section, if a structure devoted in whole or in part to a nonconforming use that is residential in nature is damaged or destroyed by any means, to the extent of more than fifty percent (50%) of its structural value prior to the damage, that structure may be restored, repaired or rebuilt in its entirety if all of the following conditions are met:
   a. The building or structure will not occupy any portion of the lot that was not occupied by the destroyed structure
   b. The building or structure will not have a greater floor area than the destroyed structure,
   c. The building or structure will not exceed the height or number of stories contained in the destroyed structure
   d. The number of off-street parking spaces located on the property will not be reduced from the number available before the damage; and,
   e. The building permit for the repair or restoration must be obtained within six (6) months of the damage and restoration must begin within one (1) year of the date of the damage.

E. Change in Use

A nonconforming use may be changed to a new use, provided that the new use must be of the same general character or of a less intensive character (and thus more closely conforming) than the existing, nonconforming use. The determination of whether a proposed use is a conforming use or is less intensive shall be made by the Zoning Administrator. A nonconforming use, if changed to a conforming use or less intensive nonconforming use, may not thereafter be changed back to a less conforming use.

F. Residential Uses in Nonresidential Districts

The other provisions of this section notwithstanding, any structure that is devoted to a nonconforming residential use and located in an NO or more intensive zoning district may be remodeled, extended, expanded, and enlarged, provided that after the remodeling, extension, expansion or enlargement, the structure may not be used to accommodate a greater number of dwelling units than the structure accommodated prior to the work.

G. Accessory Uses

No use that is accessory to a principal nonconforming use may continue after the principal use ceases or terminates.

Source: 4658 (2008), 4697 (2009).

§20-1003. Nonconforming Lots

A lot shown on an approved and recorded subdivision plat on February 17, 1998, or a parcel shown on the assessor's records as a separate parcel on February 17, 1998, may be occupied and used although it may not conform in every respect with the lot size and width standards of this Land Development Code, subject to the provisions of this section.

A. Vacant Lot

If the lot or parcel was vacant on February 17, 1998, then the owner may use the property for any uses allowed in the underlying zoning district, provided that the use must comply with applicable dimensional requirements to the maximum extent practicable. If the applicable zoning district permits a variety of uses or a variety of intensities of uses and one or more uses or intensities would comply with applicable dimensional requirements while others would not, then only the uses or intensities that would comply with the applicable dimensional standards shall be permitted.

B. Lot with Building or Structure

If the lot or parcel contains a building or structure on February 17, 1998, then the owner may continue the use of that building or structure and may expand the structure provided that the expansion is in compliance with all applicable Land Development Code standards. The determination of whether a proposed expansion is in compliance with all applicable Land Development Code standards shall be made by the Zoning Administrator. If the structure is removed or destroyed, any structure that is reconstructed must comply with all applicable land use and dimensional requirements.

C. Lot Merger

If the lot or parcel is smaller than would otherwise be required by this Land Development Code and such lot or parcel is at any time on or after February 17, 1998, under common control with an adjacent lot or parcel, then the two lots shall be considered merged for purposes of this Land Development Code and shall in the future be considered together for purposes of determining compliance with the Land Development Code. If the merged lots or parcels contain sufficient area for the actual or proposed use, then they shall be deemed fully conforming. If the merged lots or parcels together do not contain sufficient area for the actual or proposed use, they shall nonetheless be considered together for purposes of reducing the degree of nonconformity.

Source: 4039 (2000), 4169 (2001).

§20-1004. Nonconforming Structures

Nonconforming structures shall be subject to the following standards.

A. Enlargement and Expansion

Any expansion of a nonconforming structure shall be prohibited unless such expansion is in compliance with all applicable Land Development Code standards. The determination of whether a proposed expansion is in compliance with all applicable Land Development Code standards shall be made by the Zoning Administrator.

B. Damage or Destruction

In the event that any nonconforming structure is damaged or destroyed, by any means, to the extent of more than fifty percent (50%) of its structural value prior to such destruction, such structure may not be restored except in conformance with the regulations of the zoning district in which it is located. When a structure is damaged to the extent of fifty percent (50%) or less of its pre-destruction value, repairs or restoration may be made, provided that a building permit is obtained within six (6) months and restoration begins within one year after the date of destruction. The determination of reduced structural valuation shall be made by the Zoning Administrator.

1. Notwithstanding the foregoing paragraph, any existing structure that is devoted to a legal nonconforming residential use may be repaired or rebuilt even though damaged beyond 50 percent of its value, provided that the structure may be repaired or rebuilt in its entirety so long as the new structure will not: occupy any portion of the lot that a was not occupied by the destroyed structure, have a greater floor area than the destroyed structure, exceed the height or number of stories contained in the destroyed structure, or diminish the number of off-street parking spaces located on the property from the number existing before the damage; and so long as a building permit is obtained within six (6) months of the date the damage occurs and so long as restoration begins within one year of the date the damage occurs.

C. Relocation

Nonconforming structures may not be moved unless the movement or relocation will bring the structure into compliance with all applicable zoning district regulations.

Source: 4039 (2000), 4658 (2008), 4697 (2009).

§20-1005. Nonconformities Created by Public Action

When a conveyance of land to a federal, state, or local government for a public purpose results in the creation of nonconformity to Article 20-04, Article 20-05, or Article 20-07 of the Land Development Code, such nonconformity shall not be deemed to be a violation of the Land Development Code. Such nonconformity shall be deemed to be in compliance with the Land Development Code until such time that subsequent development activity will trigger Land Development Code provisions as applicable at the time of such activity.

Source: 5105 (2017).

ARTICLE 20-11

VIOLATIONS AND ENFORCEMENT

§20-1101. Responsibility for Enforcement

This Land Development Code shall be enforced by the Zoning Administrator.

§20-1102. Types of Violations

All of the following represent violations of the Land Development Code and of law and will be subject to the remedies and penalties provided in the Land Development Code, the City Code and state law.

A. Subdivision, Development or Use Without Required Permits or Approvals
It is a violation of the Land Development Code to engage in any subdividing, development, use, construction, remodeling or other activity of any nature without obtaining all the permits, approvals, certificates and other forms of authorization required by this Land Development Code.

B. Subdivision, Development or Use Inconsistent with Permit
It is a violation of the Land Development Code to engage in any development, use, construction, remodeling, or other activity of any nature in any way inconsistent with the terms and conditions of any permit, approval, certificate or other form of authorization required in order to engage in such activity.

C. Subdivision, Development or Use Inconsistent with Conditions
It is a violation of the Land Development Code to violate, by act or omission, any term, condition, or qualification imposed by a decision-making body upon a required permit, certificate, or other form of authorization.

D. Subdivision, Development or Use Inconsistent with Land Development Code
It is a violation of the Land Development Code to erect, construct, reconstruct, remodel, alter, maintain, move, or use any building or structure or to use any land in violation or contravention of any zoning, subdivision, or other regulation of the Land Development Code, or any amendment thereof.

E. Making Lots or Setbacks Nonconforming
It is a violation of the Land Development Code to reduce or diminish any lot area so that the setbacks or open spaces are smaller than prescribed by the Land Development Code.

F. Increasing Intensity of Use
It is a violation of the Land Development Code to increase the intensity of use of any land or structure, except in accordance with the procedural and substantive requirements of the Land Development Code.

G. Continuing Violations
It is a violation of the Land Development Code to continue any of the violations specified in this Article. Each day that a violation continues shall be considered a separate offense.

§20-1103. Remedies and Enforcement Powers

The City shall have the following remedies and enforcement powers.

A. Withhold Permits

The City may deny or withhold all permits, certificates or other forms of authorization on any land or structure or improvements thereon upon which there is an uncorrected violation of the Land Development Code or of a condition or qualification of a permit, certificate, approval or other authorization previously granted by a decision-making body. Instead of withholding or denying an authorization, the City may grant such authorization subject to the condition that the violation be corrected. This enforcement provision applies regardless of whether the current owner or applicant is responsible for the violation in question. The City may deny or withhold all permits, certificates or other forms of authorization on any land or structure or improvements owned by a person who owns, developed or otherwise caused an uncorrected violation of a provision of the Land Development Code or of a condition or qualification of a permit, certificate, approval or other authorization previously granted by a decision-making body. This provision applies regardless of whether the property for which the permit or other approval is sought is the property in violation.

B. Revoke Permits

A permit may be revoked when the Building Official determines that:

1. There is departure from the plans, specifications, or conditions as required under terms of the permit;
2. The plans, specifications, or conditions were obtained by false representation or were issued by mistake; or
3. Any of the provisions of the Land Development Code are being violated.

C. Stop Work

With or without revoking permits, the City may stop work on any building or structure, on any land on which there is an uncorrected violation of a provision of the Land Development Code or of a permit or other form of authorization issued hereunder, in accordance with its power to stop work under the building code.

D. Revoke Plan or Other Approval

When a violation of the Land Development Code involves a failure to comply with approved plans or conditions to which the approval of such plans was made subject, the Board of City Commissioners may, upon notice to the applicant and other known parties in interest (including any holders of building permits affected) and after a public hearing, revoke the plan or other approval or condition its continuance on strict compliance, the provision of security or such other conditions as the Board of City Commissioners may reasonably impose.

E. Injunctive Relief

The City may seek an injunction or other equitable relief in court to stop any violation of the Land Development Code or of a permit, certificate or other form of authorization granted hereunder.

F. Abatement

The City may seek a court order in the nature of mandamus, abatement,

injunction or other action or proceeding to abate or remove a violation or to otherwise restore the premises in question to the condition in which they existed prior to the violation.

G. Penalties

The penalty for a violation of this Land Development Code shall be governed by the penalty provisions of the Municipal Code, and the City may also seek such criminal or civil penalties provided by North Dakota law.

H. Other Remedies

The City shall have such other remedies as are and as may be from time to time provided by North Dakota law and municipal codes for the violation of zoning, subdivision or related Land Development Code provisions.

I. Remedies Cumulative

The remedies and enforcement powers established in this Article are cumulative.

§20-1104. Enforcement Procedures

A. Non-Emergency Matters

In the case of violations of the Land Development Code that do not constitute an emergency, the Building Official shall give notice of the nature of the violation to the property owner and to any other person who is party to the agreement and to any applicant for any relevant permit, after which the persons receiving notice shall have ten (10) days, or such longer period as the Building Official allows, to correct the violation. If the violation is not corrected within the required time-frame, the Building Official and City Attorney shall use all penalties, remedies and enforcement powers available under this Article. Notice must be given in-person, by United States Mail, or by posting notice on the premises. Notices of violation must state the nature of the violation, the time period allowed for coming into compliance, the corrective steps necessary and the nature of subsequent penalties and enforcement actions should the situation not be corrected.

B. Emergency Matters

In the case of violations of the Land Development Code that do constitute an emergency situation, the City shall use all remedies, penalties and enforcement powers available under this Article without prior notice, but the Building Official must send notice simultaneously with beginning enforcement action to the property owner, to any other person who is party to the agreement and to applicants for any relevant permit.

§20-1105. Other Enforcement Matters

A. Other Powers

In addition to the enforcement powers specified in this Article, the City may exercise any and all enforcement powers granted to them by North Dakota law.

B. Continuation

Nothing in the Land Development Code shall prohibit the continuation of previous enforcement actions, undertaken by the City pursuant to previous and valid ordinances and laws.

ARTICLE 20-12

DEFINITIONS

§20-1201. Construction of Land Development Code

A. Meanings and Intent
All provisions, terms, phrases and expressions contained in the Land Development Code shall be construed accordidng to the LDC's stated purpose and intent.

B. Headings, Illustrations and Text
In case of any difference of meaning or implication between the LDC's text and any heading, drawing, table or figure, the text will control.

C. Commentary
When a provision of this Land Development Code requires additional explanation to clarify its intent, a "Commentary" is included. These Commentaries are intended as a guide for administrative officials and the public to use in interpreting the Land Development Code.

D. Computation of Time
The time within which an act is to be completed will be computed by including the first day and excluding the last day. If the last day is a Saturday, Sunday or legal holiday, that day will be excluded. In the computation of time for public hearing notice, the day of the advertisement will be counted and the day of the hearing will be excluded.

E. References to Other Regulations, Publications and Documents
Whenever reference is made to another regulation, document or publication, it will be construed as a reference to the most recent edition of such regulation (as amended), document or publication, unless otherwise expressly stated.

F. Delegation of Authority
Whenever a provision appears requiring the head of a department or another officer or employee of the City to perform an act or duty, that provision will be construed as authorizing the department head or officer to delegate the responsibility to subordinates.

G. Technical and Nontechnical Terms
Words and phrases will be construed according to the common and approved usage of the language, but technical words and phrases that may have acquired a peculiar and appropriate meaning in law will be construed and understood according to such meaning.

H. Public Officials and Agencies
All public officials, bodies, and agencies to which references are made are those of the City of Fargo, unless otherwise indicated.

I. Mandatory and Discretionary Terms
The words "shall," "will," and "must" are always mandatory. The words "may" and "should" are discretionary terms.

J. Conjunctions

Unless the context clearly suggests the contrary, conjunctions will be interpreted as follows:

"And"

indicates that all connected items, conditions, provisions or events apply; and

"Or"

indicates that one or more of the connected items, conditions, provisions or events may apply.

K. Tenses and Usage

Words used in one tense (past, present or future) include all other tenses, unless the context clearly indicates the contrary. The singular includes the plural, and the plural includes the singular.

§20-1202 Words Defined

The following terms shall have the meanings ascribed to them:

1. **Accessory Use:** A use or structure that:
   a. Is clearly incidental to and customarily found in connection with a principal structure or use;
   b. Is subordinate in area, extent and purpose to the principal building or use;
   c. Contributes to the comfort, convenience or necessity of occupants of the principal use; and
   d. Is located on the same lot and in the same zoning district as the principal use.
2. **Adult Arcade:** A commercial establishment to which the public is permitted or invited that maintains booths or rooms smaller than 100 square feet, wherein image-producing devices are regularly maintained to show images characterized by their emphasis upon matter exhibiting "specified sexual activities" or "specified anatomical areas."
3. **Adult Bookstore:** A commercial establishment which, as one of its principal business activities, offers for sale or rental for any form of consideration any one or more of the following: books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, video cassettes, compact discs, digital video discs, slides, or other visual representations which are characterized by their emphasis upon the display of "specified sexual activities" or "specified anatomical areas." A "principal business activity" exists where the commercial establishment meets any one or more of the following criteria:
   a. At least 30% of the establishment's displayed merchandise consists of said items, or
   b. At least 30% of the establishment's revenues derive from the sale or rental, for any form of consideration, of said items, or
   c. The establishment maintains at least 30% of its floor space for the display, sale, and/or rental of said items (aisles and walkways used to access said items, as well as cashier stations where said items are rented or sold, shall be included in "floor space" maintained for the display, sale, or rental of said items); or
   d. The establishment maintains at least five hundred square feet (500 sq. ft.) of its floor space for the display, sale, and/or rental of said items (aisles and walkways used to access said items, as well as cashier stations where said items are rented or sold, shall be included in "floor space" maintained for the display, sale, or rental of said items); or
   e. The establishment regularly offers for sale or rental at least five hundred (500) of said items; or
   f. The establishment regularly makes said items available for sale or rental and holds itself out, in any medium, as an establishment that caters to adult sexual interests.

   In this definition, "floor space" means the floor area inside an establishment that is visible or accessible to patrons for any reason, excluding restrooms.

4. **Adult Cinema:** A commercial establishment to which the public is permitted or invited that maintains viewing rooms that are 100 square feet or larger wherein films or videos characterized by their emphasis upon "specified sexual activities" or "specified anatomical areas" are regularly shown.
5. **Adult Entertainment Facility:** A nightclub, juice bar, restaurant, or similar commercial establishment that regularly offers live semi-nude conduct. No establishment shall avoid classification as an adult entertainment facility by offering nude conduct.
6. **Adult Establishment:** An Adult Arcade, Adult Bookstore, Adult Cinema, Adult Entertainment Facility, or a Sexual Device Shop.
7. **Airport:** Hector International Airport.
8. **Airport Elevation:** The established elevation of the highest point on the usable landing area.
9. **Airport Hazard:** Any structure or tree or use of land which obstructs the airspace required for the flight of aircraft in landing or taking off at the airport or is otherwise hazardous to such landing or taking-off of aircraft.
10. **All Weather Surface:** Any surface that is durable and reasonably free of dust or mud. Such surfaces shall include, but not be limited to concrete, asphalt, paving blocks, brick, and other similar materials intended for outdoor motor vehicle use. They shall not include dirt, grass, or gravel. Crushed concrete, asphalt millings, or approved similar materials are acceptable in LI or GI zoning districts in areas used for rear-yard circulation and/or loading, but not used for required parking.
11. **Animal Confinement:** Any lot or building or combination of lots or buildings intended for the confined feeding, breeding, raising, or holding of animals and specifically designed as a confinement area in which manure may accumulate, or where the concentration of animals is such that vegetative cover cannot be maintained within the enclosure.
12. **Antenna Array:** One or more rods, panels, discs or similar devices used for the transmission or reception of radio frequency signals, which may include omni-directional antenna (rod), directional antenna (panel) and parabolic antenna (disc). It does not include a "telecommunications support structure."
13. **Block:** An area of land bounded entirely by streets.
14. **Boundary Line Adjustment:** An adjustment in the boundary between adjoining lots if the adjustment does not create an additional or substandard lot or necessitate new roadway construction or right-of-way dedication.
15. **Building:** A structure having a roof supported by columns or walls.
16. **Building Coverage:** The area of a lot covered by buildings (principal and accessory) or roofed areas, as measured along the outside wall at ground level, and including all projections, other than open porches, fire escapes, canopies and the first three feet of a roof overhang.
17. **Characterized by:** Describing the essential character or quality of an item. As applied in this chapter, no business shall be classified as an adult establishment by virtue of showing, selling, or renting materials rated NC-17 or R by the Motion Picture Association of America.

18. **Decision-Making Body:** A person or group authorized in this Land Development Code to conduct land use reviews and take action on the matter under review.
19. **Density:** The number of dwelling units for each acre of land. See also Sec. 20-0504. Density may also be expressed as the amount of land area per dwelling unit.
20. **Developer:** The person proposing to develop land, either as an owner of said land or as an agent of the owner.
21. **Dwelling Unit:** A building or portion of it designed and used for residential occupancy by a single household and that includes exclusive sleeping, cooking, eating and sanitation facilities. Buildings with more than one set of cooking facilities are considered to be multi-dwelling structures unless the additional cooking facilities are clearly accessory, such as an outdoor grill.
22. **Essential Services:** The erection, construction, alteration, maintenance by public utilities or by governmental departments or commissions of such underground or overhead gas, electrical, steam, or water transmission or distribution systems, collection, communication, supply or disposal systems, including towers, poles, wires, mains, drains, sewers, pipes, conduits, cables, fire alarm boxes, police call boxes, street lights, traffic signals, hydrants, and other similar equipment, and accessories in connection therewith, but not including buildings, as are reasonably necessary for the furnishing of adequate service by such public utilities or governmental departments or commissions or as are required for protection of the public health, safety, or general welfare.
23. **Floor Area (Gross):** The total square footage within a structure calculated by using the measurements from the exterior walls.
24. **Garage:** An accessory building or portion of a main building used for the storage of motor vehicles.
25. **Height, Building:** The vertical distance between the average finished grade at the base of the building and: 1) the highest point of the coping of a flat roof; 2) the highest point of a mansard roof; or 3) the average height level between the eaves and ridge line of a gable, hip or gambrel roof. For the purpose of the HIA-O, Hector International Airport Overlay district regulations the datum shall be mean sea level elevation unless otherwise specified.
26. **Home Occupation:** A business, profession, occupation or trade conducted for gain, conducted within a dwelling unit, including an attached or detached garage accessory to the dwelling unit, for gain or support by a resident of the dwelling unit.
27. **Household:** Any one of the following:
    a. One or more persons related by blood, marriage, adoption, or legal guardianship, including foster children, living together in a dwelling unit; or
    b. A group of not more than 3 persons not related by blood, marriage, adoption, or legal guardianship living together in a dwelling unit;
    c. Two unrelated persons and their children living together in a dwelling unit; or

d. Any group of people living together that meets the definition of "protected class," as that term is defined in the North Dakota law.

28. **Landing Area:** the area of the airport used for the landing, taking off or taxying of aircraft.

29. **Lot:** The entire parcel of land occupied or intended to be occupied by a principal building and its accessory buildings, or by a group such as a dwelling group or automobile court and accessory buildings, including the yards, setbacks and open spaces required by this Land Development Code and other applicable law. When a lot is used together with 1 or more contiguous lots for a single use or unified development, all of the lots so used, including any lots used for off-street parking, shall be considered a single lot.

30. **Lot, Legal:**
    a. A lot that is shown on a Subdivision plat that has been recorded in the office of the County Register of Deeds; or
    b. A lot created through a Boundary Line Adjustment.

31. **Lot, Corner:** A lot abutting two or more streets at their intersection.

32. **Lot, Interior:** A lot other than a corner lot.

33. **Lot Lines:** The property lines along the edge of a lot or site.
    a. **Front Lot Line:** A lot line that abuts a street. A through lot has 2 front lot lines.
    b. **Side Lot Line:** Any lot line except a front or rear lot line.
    c. **Rear Lot Line:** A lot line that is opposite a front lot line. A triangular lot has two side lot lines but no rear lot line. For other irregularly shaped lots, the rear lot line is all lot lines that are most nearly opposite the front lot line.
    d. **Interior Side Line:** A side lot line that does not abut a street.
    e. **Street Side Lot Line:** A lot line that is both a side lot line and a street lot line.
    f. **Lot Line, Street:** Any lot lines that abut a street. Street lot line does not include lot lines that abut an alley. On a corner lot, there are two (or more) street lot lines. Street lot line can include front lot lines and side lot lines.

34. **Lot, Reverse Corner:** A corner lot whose front does not face the same street as the adjacent lot.

35. **Lot, Through:** A lot having its front and rear lines on different streets.

36. **Lot Width:** The horizontal distance between side lines measured along a line that is parallel to the front lot line and located the minimum exterior setback distance from the front lot line.

37. **Mobile Home Space:** That part of a Mobile Home Park that has been reserved for the placement of the mobile home, appurtenant structures, or additions.

38. **Mobile Home Park:** A parcel of land under single ownership that has been planned and improved for the placement of mobile homes for nontransient use.

39. **Negative Access Easement:** An easement, usually designated on a plat, which operates to deny direct access to a street or public way from the lot or lots adjacent to such street or way.

40. **Nonconforming Lot:** Lots that were legally created in accordance with zoning district minimum lot size and dimensional standards in effect at the time of their creation, but which, because of amendments to the zoning regulations, no longer comply with the minimum lot size or other dimensional standards of the zoning district.
41. **Nonconforming Structure:** Buildings or structures that were established in accordance with all zoning regulations in effect at the time of their establishment, but which, because of amendments to the zoning regulations, no longer comply with the dimensional standards of the underlying zoning district.
42. **Nonconforming Use:** Uses that were established in accordance with zoning regulations in effect at the time of their establishment, but which, because of amendments to the zoning regulations, no longer comply with the use regulations of the underlying zoning district.
43. **Nonprecision Instrument Runway:** A runway equipped or to be equipped with an instrument approach procedure utilizing air navigation facilities with only horizontal guidance or area-type navigation equipment.
44. **Nudity or Nude Conduct:** The showing of the human male or female genitals, pubic area, vulva, or anus with less than a fully opaque covering, or the showing of the female breast with less than a fully opaque covering of any part of the nipple and areola. For purposes of this chapter, a "fully opaque covering" must not consist of any substance that can be washed or peeled off the skin (such as paint, make-up, or latex).
45. **Official Map:** A map established by the Board of City Commissioners showing the streets, highways and drainage systems theretofore laid out, adopted and established by law, including new subdivision plats approved by the Board of City Commissioners and the subsequent filing of such approved subdivision plats.
46. **Open Space:** An outdoor, unenclosed area, located on the ground or on a roof, balcony, deck, porch or terrace designed and accessible for outdoor living, recreation, pedestrian access or landscaping, but not including roads, parking areas, driveways, or other areas intended for vehicular travel.
47. **Open Space, Common:** Open space within a development, not in individually owned lots or dedicated for public use, but which is designed and intended for the common use or enjoyment of the residents or occupants of the development. Common Open Space does not include areas used for streets, alleys, driveways, or off-street parking or loading areas. However, the area of recreational activities such as swimming pools, tennis courts, shuffleboard courts, etc., may be counted as common open space.
48. **Parcel:** A contiguous area of land in the possession of, owned by, or recorded as the property of the same person or persons.
49. **Perimeter Street:** Any street or road which is on the perimeter of the parcel of land to be subdivided and which abuts said parcel on only one side.
50. **Precision Instrument Runway:** A runway equipped or to be equipped with an Instrument Landing System (ILS), or a Precision Approach Radar (PAR).
51. **Principal Building:** A building occupied by the principal use of the lot on which it is situated.

52. **Property Owner:** The person who is shown by the County Register of Deeds as the record owner of a lot or parcel.
53. **Public Improvement:** Any improvement for use by the general public and for which a governmental unit may ultimately assume the responsibility for maintenance and operation.
54. **Public Utility:** Any person, firm, corporation, municipal department, or board duly authorized to furnish, and furnishing, under public regulation, to the public, electricity, gas, heat, power, steam, telephone, telegraph, transportation, or water.
55. **Regional Shopping Mall (Enclosed):** A group of retail and other commercial establishments that is planned, developed, and managed as a single property, with on-site parking provided around the perimeter of the shopping center, and that is generally at least forty acres in size and flanked by two or more large "anchor" stores, such as department stores. The common walkway or "mall" is enclosed, climate-controlled and lighted, usually with an inward orientation of the stores facing the walkway.
56. **Registered Engineer:** An individual licensed and registered as a professional engineer under the laws of the state of North Dakota.
57. **Registered Land Surveyor:** An individual licensed and registered as a professional land surveyor under the laws of the state of North Dakota.
58. **Regularly:** The consistent and repeated doing of an act on an ongoing basis.
59. **Residential Structure Types:**
    a. **House, Attached:** A dwelling unit that shares one or more common or abutting walls with one or more dwelling units. An attached house does not share common floor/ceilings with other dwelling units. An attached house is also called a townhouse.
    b. **House, Detached:** A dwelling unit located on its own lot that is not attached to any other dwelling unit, including a residential-design manufactured housing unit.
    c. **Duplex:** A single structure that contains 2 primary dwelling units on one lot. The units may share common walls or common floor/ceilings.
    d. **Group Living Structure:** A structure that contains sleeping areas and at least one set of cooking and sanitary facilities that is used as a residence for Group Living uses.
    e. **Manufactured Housing Unit:** A dwelling unit constructed in accordance with Federal Manufactured Housing Construction and Safety Standards (HUD code) in effect after June 15, 1976. For the purpose of this Land Development Code, the term "manufactured housing unit," when used by itself, shall not include a "residential-design manufactured housing unit" as defined in this section.
    f. **Mobile Home:** A transportable, factory-built structure that was manufactured prior to enactment of or otherwise does not comply with the federal Manufactured Housing Construction and Safety Standards Act of 1974 (42 U.S.C. Sec. 5401) and that is designed to be used as a single dwelling unit.

g. **Multi-Dwelling Structure:** A structure that contains 3 or more dwelling units that share common walls or floor/ceilings with one or more units. The land underneath the structure is not divided into separate lots. Multi-dwelling includes structures commonly called garden apartments, apartments and condominiums.

h. **Residential-Design Manufactured Housing Unit:** A manufactured housing unit that meets the following criteria:

(1) Is constructed on a permanent foundation that complies with the Uniform Building Code and the City's Building Code;

(2) Has a minimum front width of 24 feet and a minimum depth of 20 feet;

(3) Has a predominantly double-pitched roof with a minimum vertical rise of 2.2 inches for every 12 inches of horizontal run and a minimum eave projection and roof overhang of 10 inches on at least 2 sides. Gutters shall be counted in calculating roof overhang.

(4) Uses siding and roofing materials customarily used on site-built homes within the City of Fargo;

(5) Has a minimum gross floor area of 960 square feet; and

(6) Has a minimum ceiling height of 7 feet.

60. **Review Body:** A person or group authorized in this Land Development Code to conduct land use reviews and offer recommendations but not to take final action on the matter under review.

61. **Runway:** the paved surface of an airport landing strip.

62. **Semi-Nude or Semi-Nudity:** The showing of the female breast below a horizontal line across the top of the areola and extending across the width of the breast at that point, or the showing of the male or female buttocks, with less than a fully opaque covering. This definition shall include the lower portion of the human female breast, but shall not include any portion of the cleavage of the human female breasts exhibited by a bikini, dress, blouse, shirt, leotard, or similar wearing apparel provided the areola is not exposed in whole or in part. For purposes of this chapter, a "fully opaque covering" must not consist of any substance that can be washed or peeled off the skin (such as paint, make-up, or latex).

63. **Setback:** The distance that is required by this Land Development Code to be maintained in an unobstructed state between a structure and the lot line of the lot on which the structure is located. Note: The term "setback" refers to a required minimum area, while the term "yard" refers to the actual open area.

a. **Front Setback:** A setback that is to extend across the full width of a lot, the required depth of which is measured as the minimum horizontal distance between the front lot line and a line parallel thereto on the lot.

b. **Interior Side Setback:** A setback that is to extend from the front lot line to the rear lot line along the side of a lot that is adjacent to another lot, the required depth of which is measured as the minimum horizontal distance between the side lot line and a line parallel thereto on the lot.

c. **Rear Setback:** A setback that is to extend across the full width of a lot, the required depth of which is measured as the minimum horizontal distance between the rear lot line and a line parallel thereto on the lot.

d. **Street Side Setback:** A setback that is to extend from the front lot line to the rear lot line along the street side of a corner lot, the required depth of which is measured as the minimum horizontal distance between the street side lot line and a line parallel thereto on the lot.

64. **Sexual Device:** Any three (3) dimensional object designed for stimulation of the male or female human genitals, anus, buttocks, nipple, or for sadomasochistic use or abuse of oneself or others and shall include devices commonly known as dildos, vibrators, penis pumps, cock rings, anal beads, butt plugs, nipple clamps, and physical representations of the human genital organs. Nothing in this definition shall be construed to include devices primarily designed for protection against sexually transmitted diseases or for preventing pregnancy.

65. **Sexual Device Shop:** A commercial establishment:

a. where more than 100 sexual devices are regularly made available for sale or rental; or

b. where sexual devices are regularly made available for sale or rental and the establishment regularly gives special prominence to sexual devices (e.g., by using lighted display cases for sexual devices, having a large variety of sexual devices, having a room or discrete area of the establishment significantly devoted to sexual devices, or positioning sexual devices near cash registers or similar points of sale).

This definition shall not be construed to include an establishment located within an enclosed regional shopping mall, an establishment containing a pharmacy that employs a licensed pharmacist to fill prescriptions on the premises, or an establishment that is enrolled in Medicare as a durable medical equipment, prosthetics, and supplies (DMEPOS) supplier.

66. **Solar Energy Collector:** A device or combination of devices, structure, or part of a device or structure that transforms direct solar energy into thermal, chemical or electrical energy and that contributes significantly to a structure's energy supply.

67. **Specified Anatomical Areas:**

a. Less than completely and opaquely covered:

(1) Human genitals, pubic region;

(2) Buttocks;

(3) Female breast below a point immediately above the top of the areola; and

b. Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

68. **Specified Sexual Activities:**

a. Human genitals in a state of sexual stimulations or arousal;

b. Acts of human masturbation, sexual intercourse, or sodomy; and

c. Fondling of human genitals, pubic region, buttock or female breast.

69. **Street:** A public or private way used or intended to be used for passage or travel by motor vehicles. Streets are further classified according to their design and the function they perform. The hierarchy of streets is as follows:
    a. **Local Street:** A street intended to provide direct access to abutting property and access to higher classification streets.
    b. **Local Collector Street:** A street that connects traffic from local streets and higher classification streets and that may provide direct access to abutting property.
    c. **Collector Street:** A street that connects traffic from lower classification streets and higher classification streets and that does not provide direct access to abutting property.
    d. **Minor Arterial Street:** A street with signals at major intersections and stop signs at side streets and that collects and distributes traffic to and from collector streets.
    e. **Principal Arterial Street:** A street with access control, channelized intersections, restricted parking, and that collects and distributes traffic to and from minor arterial streets.
70. **Structural Alteration:** Any change, addition or modification in construction in the supporting members of a building, such as exterior walls, bearing walls, beams, columns, foundations, girders, floor joists, roof joists, rafters or trusses.
71. **Structure:** Anything constructed or erected having location on or under the ground or attached to something having location on or under the ground.
72. **Subdivision:** The division of a tract or parcel of land into lots for the purpose of, whether immediate or future, sale or of development.
73. **Subdivision, Major:** Any subdivision that does not meet the definition of a "Minor Subdivision."
74. **Subdivision, Minor:** A subdivision that meets all of the following criteria:
    a. Does not require the dedication of rights-of-way or construction of new streets;
    b. Does not create any public improvements other than sidewalks;
    c. Does not land-lock or otherwise impair convenient ingress and egress to or from the rear or side of the subject tract or any adjacent property;
    d. Does not fall within the corridors of any planned or proposed street as shown upon the Official Map or approved Area Plans; and
    e. Does not violate any local, state or federally adopted law, ordinance, regulation, plan or policy.
75. **Telecommunication Facility, Attached:** An antenna array that is attached to an existing building or structure, including utility poles, signs, water towers, and similar structures with any associated connection cables, and an equipment facility which may be located either inside or outside of the attachment structure.
76. **Telecommunications Support Structure:** A structure designed and constructed specifically to support an antenna array, and may include a monopole, self supporting (lattice) tower, guy-wire support tower and other similar structures. Any device used solely to attach an attached telecommunications facility to an existing building or structure shall be excluded from this definition. A mono-

pole, self-supporting (lattice) tower, Guy-wire support tower and other similar structures which are erected or constructed on a building, water tower, or other structure for the purpose of elevating an attached telecommunications facility shall be included in this definition.

77. **Use:** The purpose for which land or a building or structure thereon is designed, arranged, intended, or maintained or for which it is or may be used or occupied.
78. **Viewing Room:** The room or booth where a patron of an adult establishment would ordinarily be positioned while watching a film, videocassette, digital video disc, or other video on an image-producing device.
79. **Yard:** The actual unobstructed open space that exists or that is proposed between a structure and the lot lines of the lot on which the structure is located. See "Setback."
80. **Zoning District:** The separate geographic areas to which a specific zoning district is assigned.
    a. **Base Zoning District:** A zoning district that establishes the primary permitted uses, conditional uses, and dimensional standards.
    b. **Overlay Zoning District:** A zoning district that is applied to a parcel of land to add special or additional development requirements in addition to or in place of the requirements of the Base Zoning District requirements.
81. **Bed and Breakfast:** A facility of residential character that provides sleeping accommodations and breakfast for hire on a day-to-day basis in which the proprietor resides.

Source: 2985 (1999), 4039 (2000), 4089 (2000), 4170 (2001), 4560 (2006), 4592 (2007), 5179 (2018), 5379 (2022).

§20-1203 Use Categories

A. Basis for Classifications

Use categories classify land uses and activities into use categories based on common functional, product, or physical characteristics. Characteristics include the type and amount of activity, the type of customers or residents, how goods or services are sold or delivered and site conditions. The use categories provide a systematic basis for assigning present and future land uses into appropriate zoning districts.

1. Principal Uses

Principal uses are assigned to the category that most closely describes the nature of the principal use. The "Characteristics" subsection of each use category describes the common characteristics of each principal use.

a. Developments with Multiple Principal Uses

When all principal uses of a development fall within one use category, the entire development is assigned to that use category. A development that contains a coffee shop, bookstore and bakery, for example, would be classified in the Retail Sales and Service category because all of the development's principal uses are in that category. When the principal uses of a development fall within different use categories, each principal use is classified in the applicable category and each use is subject to all applicable regulations for that category.

b. Accessory Uses

Accessory uses are allowed by-right in conjunction with a principal use unless otherwise stated in the regulations. Also, unless otherwise stated, accessory uses are subject to the same regulations as the principal use. Common accessory uses are listed as examples in the use category descriptions.

c. Use of Examples

The "Examples" subsection of each use category lists common examples of uses included in the respective use category. The names of these sample uses are generic. They are based on common meanings and not on what a specific use may call itself. For example, a use that calls itself "Wholesale Warehouse" but that sells mostly to consumers, is included in the Retail Sales and Service category rather than the Wholesale Sales category. This is because the actual activity on the site matches the description of the Retail Sales and Service category.

B. Similar Use Interpretation Criteria

The following considerations shall be used in making similar use interpretations (See also Sec. 20-0401-F):

1. The actual or projected characteristics of the activity in relationship to the stated characteristics of each use category;
2. The relative amount of site area or floor space and equipment devoted to the activity;
3. Relative amounts of sales from each activity;

4. The customer type for each activity (retail or wholesale);
5. The relative number of employees in each activity;
6. Hours of operation;
7. Building and site arrangement;
8. Vehicles used with the activity;
9. The relative number of vehicle trips generated by the use; and
10. How the use advertises itself.

C. Residential Use Categories

1. Group Living

a. Characteristics

Group Living is characterized by the residential occupancy of a structure by a group of people who do not meet the definition of Household Living. The size of the group may be larger than the average size of a household. Tenancy is arranged on a monthly or longer basis. Uses where tenancy may be arranged for a shorter period are not considered residential. They are considered to be a form of transient lodging (see the Retail Sales and Service and Community Service categories). Generally, Group Living structures have a common eating area for residents. The residents may receive care, training, or treatment, as long as the care givers also reside at the site.

b. Accessory Uses

Accessory uses commonly associated with Group Living are recreational facilities and parking of vehicles for occupants and staff.

c. Examples

Examples of Group Living include dormitories; fraternities and sororities; monasteries and convents; nursing and convalescent homes; some group homes for the physically disabled, mentally retarded, or emotionally disturbed; some residential programs for drug and alcohol treatment; and alternative or post incarceration facilities.

d. Exceptions

(1) Lodging where tenancy may be arranged for periods of less than 30 days is to be considered a hotel or motel use and classified in the Retail Sales and Service category.

(2) Lodging where the residents meet the definition of Household and where tenancy is arranged on a month-to-month basis, or for a longer period is classified as Household Living.

(3) Facilities for people who are under judicial detainment and under the supervision of sworn officers are included in the Detention Facilities category.

2. Household Living

a. Characteristics

Household Living is characterized by the residential occupancy

of a dwelling unit by a household. Tenancy is arranged on a month-to-month or longer basis. Uses where tenancy may be arranged for a shorter period are not considered residential. They are considered to be a form of transient lodging (see the Retail Sales and Service and Community Service categories).

b. Accessory Uses

Accessory uses commonly associated with Household Living are recreational activities, raising of pets, hobbies and parking of the occupants′ vehicles. Home occupations are accessory uses that are subject to additional regulations (See Sec. 20-0403). The keeping of chickens authorized by a city permit under Article 12-02 shall be considered an accessory use to household living. In SR-0 districts, the keeping of one or more horses shall be an acceptable use provided it is accessory to household living and provided that the following criteria are met:

(1) There shall be a minimum of two (2) acres for one horse, and an additional acre for every additional horse kept on the property;

(2) The number of horses permitted shall be based on the size of the portion of the lot to be used as an animal enclosure;

(3) In subdivisions created prior to January 1, 2000, no structure intended for housing said animals shall be closer than 100 feet from any lot line; otherwise, no structure intended for housing said animals shall be closer than 200 feet from any lot line;

(4) All manure and other animal wastes shall be removed and disposed of properly on a regular basis; and

(5) The residential use area shall be separated from the area to be used as an animal enclosure by a fence, and the entire animal enclosure area shall be fenced to prevent escape and subsequent damage to adjacent property.

Furthermore, in SR-0 districts, the keeping of one or more animals other than horses shall be a Conditional Use, subject to the procedures of Sec. 20-0909. In evaluating such a Conditional Use, in additional to any other appropriate factors, the decision-maker shall consider the detrimental impact of keeping of such animals in comparison to the impact of the keeping of one or more horses.

c. Examples

Uses include living in houses, duplexes, triplexes, fourplexes and other multi-dwelling structures, retirement center apartments, manufactured housing and other structures with self-contained dwelling units.

d. Exceptions

Lodging in a dwelling unit or where less than two thirds of the units are rented on a monthly or longer basis is considered a hotel or motel use and is classified in the Retail Sales and Service category.

D. Commercial Use Categories

1. Entertainment Event, Major

a. Characteristics

Major Entertainment Event uses are characterized by activities and structures that draw large numbers of people to specific events or shows. Activities are generally of a spectator nature.

b. Accessory Uses

Accessory uses may include restaurants, bars, concessions, parking and maintenance facilities.

c. Examples

Examples include stadiums, sports arenas, coliseums, auditoriums, exhibition and meeting areas and fairgrounds.

d. Exceptions

(1) Exhibition and meeting areas with less than 20,000 square feet of total event area are classified as Retail Sales and Service.

(2) Banquet halls that are part of hotels or restaurants are accessory to those uses, which are included in the Retail Sales and Service category.

(3) Theaters, including drive-in theaters, are classified as Retail Sales and Service.

(4) Recreation or entertainment uses conducted on a continuous basis are classified as Outdoor Recreation and Entertainment or Retail Sales and Service uses.

2. Office

a. Characteristics

Office uses are characterized by activities conducted in an office setting and generally focusing on business, government, professional, medical, or financial services.

b. Accessory Uses

Accessory uses may include cafeterias, health facilities, parking, or other amenities primarily for the use of employees in the firm or building.

c. Examples

Examples include professional services such as lawyers, accountants, engineers, or architects; financial businesses such as lenders, brokerage houses, bank headquarters, or real estate agents; data processing; sales offices; government offices and public utility offices; TV and radio studios; medical and dental clinics, medical and dental labs; and blood-collection facilities.

d. Exceptions

(1) Offices that are part of and located with a principal use in another category are considered accessory to the firm's primary activity. Headquarters offices, when in conjunction with or adjacent to a principal use in another category, are considered part of the other category.

(2) Contractors and others who perform services off-site are included in the Office category if equipment and materials are not stored on the site and fabrication, services, or similar work is not carried on at the site.

3. Off-Premise Advertising Sign

Any sign that directs attention to a business, profession, product, service, activity or entertainment not conducted, sold or offered on the premises upon which the sign is located.

4. Parking, Commercial

a. Characteristics

Commercial Parking facilities provide parking that is not accessory to a specific use. A fee may or may not be charged. A facility that provides both accessory parking for a specific use and regular fee parking for people not connected to the use is also classified as a Commercial Parking facility.

b. Accessory Use

In a parking structure only, accessory uses may include gasoline sales, car washing and vehicle repair activities if these uses provide service only to vehicles parked in the garage.

c. Examples

Examples include short- and long-term fee parking facilities and mixed parking lots (partially accessory to a specific use, partly for rent to others).

d. Exceptions

(1) Parking facilities that are accessory to a use, but that charge the public to park for occasional events nearby, are not considered Commercial Parking facilities.

(2) Parking facilities that are accessory to a principal use are not considered Commercial Parking uses, even if the operator leases the facility to the principal use or charges a fee to the individuals who park in the facility.

(3) Public transit park-and-ride facilities are classified as Basic Utilities.

5. Recreation and Entertainment, Outdoor

a. Characteristics

Outdoor Recreation and Entertainment uses are large, generally commercial uses that provide continuous recreation or entertainment-oriented activities. They primarily take place outdoors. They may take place in a number of structures that are arranged together in an outdoor setting.

b. Accessory Uses

Accessory uses may include concessions, restaurants, parking, caretaker's quarters and maintenance facilities.

c. Examples

Examples include amusement parks, theme parks, golf driving ranges, miniature golf facilities and zoos.

d. Exceptions

(1) Golf courses are classified as Parks and Open Space.

(2) Uses that draw large numbers of people to periodic events, rather than on a continuous basis, are classified as Major Entertainment Events.

6. Retail Sales and Service

a. Characteristics

Retail Sales and Service firms are involved in the sale, lease or rent of new or used products to the general public. They may also provide personal services or entertainment, or provide product repair or services for consumer and business goods.

b. Accessory Uses

Accessory uses may include offices, storage of goods, manufacture or repackaging of goods for on-site sale and parking.

c. Examples

Examples include uses from the four following groups:

(1) Sales-Oriented:

Stores selling, leasing, or renting consumer, home and business goods including art, art supplies, bicycles, clothing, dry goods, electronic equipment, fabric, furniture, garden supplies, gifts, groceries, hardware, home improvements, household products, jewelry, pets, pet food, pharmaceuticals, plants, printed material, stationary and videos; food sales and sales or leasing of consumer vehicles including passenger vehicles, motorcycles, light and medium trucks and other recreational vehicles.

(2) Personal Service-Oriented:

Branch banks; emergency medical care; laundromats; photographic studios; photocopy and blueprint services; hair, tanning and personal care services; business, martial arts and other trade schools; dance or music classes; taxidermists; mortuaries; veterinarians; and animal grooming.

(3) Entertainment-Oriented:

Restaurants, cafes, delicatessens, bars and taverns; indoor continuous entertainment activities such as bowling alleys, ice rinks and game arcades; pool halls; dance halls; indoor firing ranges; theaters, health clubs, gyms, membership clubs and lodges; hotels, motels, recreational vehicle parks and other temporary lodging with an average length of stay of less than 30 days.

(4) Repair-Oriented:

Repair of televisions, bicycles, clocks, watches, shoes, guns, appliances and office equipment; photo or laundry drop-off; tailor; locksmith; and upholsterer.

d. Exceptions

(1) Lumber yards and other building material sales that sell primarily to contractors and do not have a retail orientation are classified as Wholesale Sales.

(2) Repair and service of consumer motor vehicles, motorcycles and light and medium trucks is classified as Vehicle Repair. Repair and service of industrial vehicles and equipment and heavy trucks is classified as Industrial Service.

(3) Sales, rental, or leasing of heavy trucks and equipment or manufactured housing units are classified as Wholesale Sales.

(4) Hotels, restaurants and other services that are part of a truck stop are considered accessory to the truck stop which is classified as Industrial Service.

(5) In certain situations, hotels and motels may be classified as a Community Service use, such as short-term housing or mass shelter. See "Community Services."

7. Self-Service Storage

a. Characteristics

Self-Service Storage uses provide separate storage areas for individual or business uses. The storage areas are designed to allow private access by the tenant for storing or removing personal property.

b. Accessory Uses

Accessory uses may include living quarters for a resident manager or security and leasing offices. Use of the storage areas for sales, service and repair operations, or manufacturing is not considered accessory to the Self-Service Storage use. The rental of trucks or equipment is also not considered accessory to a Self-Service Storage use.

c. Examples

Examples include facilities that provide individual storage areas for rent. These uses are also called mini-warehouses.

d. Exceptions

A transfer and storage business where there are no individual storage areas or where employees are the primary movers of the goods to be stored or transferred is in the Warehouse and Freight Movement category.

8. Vehicle Repair

a. Characteristics

Vehicle Repair firms service passenger vehicles, light and medium trucks and other consumer motor vehicles such as motorcycles, boats and recreational vehicles. Generally, the customer does not wait at the site while the service or repair is being performed.

b. Accessory Uses

Accessory uses may include offices, sales of parts and vehicle storage.

c. Examples

Examples include vehicle repair, transmission or muffler shop, auto body shop, alignment shop, auto upholstery shop, auto detailing and tire sales and mounting.

d. Exceptions

Repair and service of industrial vehicles and equipment and of heavy trucks; towing and vehicle storage; and vehicle wrecking and salvage are classified as Industrial Service.

9. Vehicle Service, Limited

a. Characteristics

Limited Vehicle Service uses provide direct services to motor vehicles where the driver or passengers generally wait in the car or nearby while the service is performed.

b. Accessory Uses

Accessory uses may include auto repair and tire sales.

c. Examples

Examples include full-service, mini-service and self-service gas stations; car washes; and quick lubrication services.

d. Exceptions

(1) Truck stops are classified as Industrial Service.

(2) Refueling facilities for vehicles that belong to a specific use (fleet vehicles) are considered accessory uses if they are located on the site of the principal use.

10. Non-farm Commercial

a. Characteristics

Non-farm Commercial uses are those commercial uses identified in subparagraphs (D)(1) through (D)(9), hereof, but which occur in an AG, Agricultural District.

b. Accessory Uses

Accessory activities described in subparagraphs (D)(1) through (D)(9), hereof, is also a Conditional Use, permitted only after approval pursuant to Section 20-0909.

c. Examples

Examples include any of those examples listed under the particular uses described in subparagraphs (D)(1) through (D)(9), hereof.

d. Exceptions

Any of the exceptions listed under the particular uses described in subparagraphs (D)(1) through (D)(9), hereof, shall also be exceptins for purposes of a Non-farm Commercial use.

E. Industrial Use Categories

1. Industrial Service

a. Characteristics

Industrial Service firms are engaged in the repair or servicing of

industrial, business or consumer machinery, equipment, products or by-products. Firms that service consumer goods do so by mainly providing centralized services for separate retail outlets. Contractors and building maintenance services and similar uses perform services off-site. Few customers, especially the general public, come to the site.

b. Accessory Uses

Accessory activities may include offices, parking and storage.

c. Examples

Examples include welding shops; machine shops; tool repair; electric motor repair; repair of scientific or professional instruments; sales, repair, storage, salvage or wrecking of heavy machinery, metal and building materials; towing and vehicle storage; auto and truck salvage and wrecking; heavy truck servicing and repair; tire retreading or recapping; truck stops; building, heating, plumbing or electrical contractors; exterminators; recycling operations; janitorial and building maintenance services; fuel oil distributors; solid fuel yards; above-ground tanks used for the storage or dispensing of Class I or Class II petroleum products (as defined in the Fargo Fire Code); research and development laboratories; laundry, dry-cleaning and carpet cleaning plants; and photofinishing laboratories; and the stockpiling of sand, gravel, or other aggregate materials.

d. Exceptions

(1) Contractors and others who perform services off-site are included in the Office category, if major equipment and materials are not stored at the site and fabrication, or similar work is not carried on at the site.

(2) Hotels, restaurants and other services that are part of a truck stop are considered accessory to the truck stop.

2. Manufacturing and Production

a. Characteristics

Manufacturing and Production firms are involved in the manufacturing, processing, fabrication, packaging, or assembly of goods. Natural, man-made, raw, secondary, or partially completed materials may be used. Products may be finished or semi-finished and are generally made for the wholesale market, for transfer to other plants, or to order for firms or consumers. Goods are generally not displayed or sold on site, but if so, they are a subordinate part of sales. Relatively few customers come to the manufacturing site.

b. Accessory Uses

Accessory activities may include offices, cafeterias, parking, employee recreational facilities, warehouses, storage yards, repair facilities, truck fleets and caretaker's quarters.

c. Examples

Examples include processing of food and related products; catering establishments; slaughter houses and meat packing; weaving or production of textiles or apparel; lumber mills, pulp and paper mills and other wood products manufacturing; woodworking, including cabinet makers; production of chemical, rubber, leather, clay, bone, plastic, stone, or glass materials or products; printing, publishing and lithography; movie production facilities; production or fabrication of metals or metal products including enameling and galvanizing; manufacture or assembly of machinery, equipment, instruments, including musical instruments, vehicles, appliances, precision items and other electrical items; production of artwork and toys; sign making; and production of prefabricated structures, including mobile homes.

d. Exceptions

(1) Manufacturing of goods to be sold primarily on-site and to the general public are classified as Retail Sales and Service.

(2) Manufacture and production of goods from composting organic material is classified as Waste-Related uses.

3. Warehouse and Freight Movement

a. Characteristics

Warehouse and Freight Movement firms are involved in the storage, or movement of goods for themselves or other firms. Goods are generally delivered to other firms or the final consumer, except for some will-call pickups. There is little on-site sales activity with the customer present.

b. Accessory Uses

Accessory uses may include offices, truck fleet parking and maintenance areas.

c. Examples

Examples include separate warehouses used by retail stores such as furniture and appliance stores; household moving and general freight storage; cold storage plants, including frozen food lockers; storage of weapons and ammunition; major wholesale distribution centers; truck, or air freight terminals; bus barns; parcel services; major post offices; and grain terminals.

d. Exceptions

(1) Uses that involve the transfer or storage of solid or liquid wastes are classified as Waste-Related uses.

(2) Mini-warehouses are classified as Self-Service Storage uses.

4. Waste-Related

a. Characteristics

Characterized by uses that receive solid or liquid wastes from others for disposal on the site or for transfer to another location,

uses that collect sanitary wastes, or uses that manufacture or produce goods or energy from the composting of organic material.

b. Accessory Uses

Accessory uses may include recycling of materials, offices and repackaging and transshipment of by-products.

c. Examples

Examples include sanitary landfills, waste composting, energy recovery plants, sewage plants and hazardous-waste-collection sites.

d. Exceptions

(1) Disposal of dirt, concrete, asphalt and similar non-decomposable materials is considered fill.

(2) Recycling collection centers are considered Basic Utilities.

5. Wholesale Sales

a. Characteristics

Wholesale Sales firms are involved in the sale, lease, or rent of products primarily intended for industrial, institutional, or commercial businesses. The uses emphasize on-site sales or order taking and often include display areas. Businesses may or may not be open to the general public, but sales to the general public are limited. Products may be picked up on-site or delivered to the customer.

b. Accessory Uses

Accessory uses may include offices, product repair, warehouses, parking, minor fabrication services and repackaging of goods.

c. Examples

Examples include sale or rental of machinery, equipment, heavy trucks, building materials, special trade tools, welding supplies, machine parts, electrical supplies, janitorial supplies, restaurant equipment and store fixtures; mail order houses; and wholesalers of food, clothing, auto parts, building hardware.

d. Exceptions

(1) Firms that engage primarily in sales to the general public or on a membership basis are classified as Retail Sales and Service.

(2) Firms that are primarily storing goods with little on-site business activity are classified as Warehouse and Freight Movement.

F. Institutional and Civic Use Categories

1. Colleges

a. Characteristics

This category includes colleges and other institutions of higher learning that offer courses of general or specialized study leading to a degree. Colleges tend to be in campus-like settings or on multiple blocks.

b. Accessory Uses

Accessory uses include offices, housing for students, food service, laboratories, health and sports facilities, theaters, meeting areas, parking, maintenance facilities and support commercial.

c. Examples

Examples include universities, liberal arts colleges, community colleges, nursing and medical schools not accessory to health care facilities and seminaries.

d. Exceptions

Business and trade schools are classified as Retail Sales and Service.

2. Community Services

a. Characteristics

Community Services are uses of a public, nonprofit, or charitable nature generally providing a local service to people of the community. Generally, they provide the service on-site or have employees at the site on a regular basis. The service is ongoing, not just for special events. Community centers or facilities that have membership provisions are open to the general public to join at any time, (for instance, any senior citizen could join a senior center). The use may provide special counseling, education, or training of a public, nonprofit or charitable nature.

b. Accessory Uses

Accessory uses may include offices; meeting areas; food preparation areas; parking, health and therapy areas; and athletic facilities.

c. Examples

Examples include libraries, museums, senior centers, community centers, publicly owned swimming pools, youth club facilities, hospices, social service facilities, temporary shelters, vocational training for persons with physical or mental disabilities, crematoriums, columbariums and mausoleums.

d. Exceptions

(1) Private lodges, clubs and private or commercial athletic or health clubs are classified as Retail Sales and Service. Commercial museums are classified as Retail Sales and Service.

(2) Parks are classified as Parks and Open Areas.

(3) Uses where tenancy is arranged on a month-to-month basis, or for a longer period are residential and are classified as Household or Group Living.

3. Day Care

a. Characteristics

Day Care uses provide care, protection and supervision for children or adults on a regular basis away from their primary residence for less than 24 hours per day.

b. Accessory Uses

Accessory uses include offices, recreation areas and parking.

c. Examples Examples include preschools, child care centers, nursery schools, latch key programs and adult day care programs.

d. Exceptions

Day Care does not include public or private schools or facilities operated in connection with an employment use, shopping center or other principal use, where children are cared for while parents or guardians are occupied on the premises or in the immediate vicinity.

4. Health Care Facilities

a. Characteristics

Health Care Facilities include uses providing medical or surgical care to patients and offering overnight care.

b. Accessory Uses

Accessory uses include out-patient clinics, offices, laboratories, teaching facilities, meeting areas, cafeterias, parking, maintenance facilities and housing facilities for staff or trainees.

c. Examples

Examples include medical centers and hospitals.

d. Exceptions

(1) Uses that provide exclusive care and planned treatment or training for psychiatric, alcohol, or drug problems, where patients are residents of the program, are classified in the Group Living category.

(2) Medical clinics or offices that provide care where patients are generally not kept overnight are classified as Offices.

(3) Emergency medical clinics are classified as Retail Sales and Service.

5. Parks and Open Areas

a. Characteristics

Parks and Open Areas are uses of land focusing on natural areas, large areas consisting mostly of vegetative landscaping or outdoor recreation, community gardens, or public squares. Lands tend to have few structures.

b. Accessory Uses

Accessory uses may include club houses, maintenance facilities, concessions, caretaker's quarters and parking.

c. Examples

Examples include parks, golf courses, cemeteries, public squares, plazas, recreational trails, botanical gardens, nature preserves and land used for grazing that is not part of a farm or ranch.

6. Religious Institutions

a. Characteristics

Religious Institutions primarily provide meeting areas for religious activities.

b. Accessory Uses

Accessory uses include Sunday school facilities, preschools, day cares, parking, caretaker's housing and group living facilities such as convents.

c. Examples

Examples include churches, temples, synagogues and mosques.

d. Exceptions

Schools are classified as Schools.

7. Safety Services

a. Characteristics

Safety Services are uses that provide public safety and emergency response services. They often need to be located in or near the area where the service is provided. Employees are regularly present on-site.

b. Accessory Uses

Accessory uses include offices and parking.

c. Examples

Examples include fire stations, police stations and emergency medical and ambulance stations.

8. Schools

a. Characteristics

This category includes public and private schools at the primary, elementary, middle, junior high, or high school level that provide state-mandated basic education.

b. Accessory Uses

Accessory uses include play areas, cafeterias, recreational and sport facilities, auditoriums and before- or after-school day care.

c. Examples

Examples include public and private daytime schools, boarding schools and military academies.

d. Exceptions

(1) Preschools are classified as Day Care uses.

(2) Business and trade schools are classified as Retail Sales and Service.

9. Utilities, Basic

a. Characteristics

Basic Utilities are infrastructure services that need to be located in or near the area where the service is provided. Basic Utility uses generally do not regularly have employees at the site. Services may be public or privately provided.

b. Accessory Uses

Accessory uses may include parking and control, monitoring, data or transmission equipment.

c. Examples

Examples include water and sewage pump stations; electrical

substations; water towers and reservoirs; stormwater retention and detention facilities; telephone exchanges; recycling collection centers; and park-and-ride facilities for mass transit.

d. Exceptions

(1) Services where people are generally present are classified as Community Services, Offices, or Safety Services.

(2) Utility offices where employees or customers are generally present are classified as Offices.

(3) Bus barns are classified as Warehouse and Freight Movement.

G. Other Use Categories

1. Agriculture

a. Characteristics

Agriculture includes activities that primarily involve raising, producing or keeping plants or animals.

b. Accessory Uses

Accessory uses include dwellings for proprietors and employees of the use and animal training.

c. Examples

Examples include breeding or raising of fowl or other animals; dairy farms; stables; riding academies; kennels or other animal boarding places; farming, truck gardening, forestry, tree farming; and wholesale plant nurseries.

d. Exceptions

(1) Uses involved in the processing of animal or plant products are classified as Manufacturing and Production.

(2) Livestock auctions are classified as Wholesale Sales.

(3) Plant nurseries that are oriented to retail sales are classified as Retail Sales and Service.

(4) Uses that meet the definition ″animal confinement″ shall not be considered ″agriculture″ for the purpose of determining required zoning.

(5) Residential uses that include the keeping of up to one horse per two (2) acres of lot shall not be considered ″agriculture″ for the purpose of determining required zoning and will be an acceptable accessory use in SR zoning districts which were zoned Ag-P2 (as defined by the Stanley Township′s zoning ordinance, or similar township or county zoning), prior to the extension of the City′s extraterritorial zoning jurisdiction to the subject property.

(6) The keeping of chickens authorized by a city permit under Article 12-02 shall not be considered an agricultural use but, rather, shall be considered an accessory use to household living.

2. Aviation and Surface Passenger Terminals

a. Characteristics

Aviation and Surface Passenger Terminals includes facilities for the landing and takeoff of flying vehicles, including loading and unloading areas. Aviation facilities may be improved or unimproved. Aviation and Surface Passenger Terminals also includes passenger terminals for aircraft, regional bus service and regional rail service.

b. Accessory Uses

Accessory uses include freight handling areas, concessions, offices, parking and maintenance and fueling facilities.

c. Examples

Examples include airports, bus passenger terminals for regional bus service, railroad passenger stations for regional rail service and helicopter landing facilities.

d. Exceptions

(1) Bus and rail passenger stations for subregional service such as mass transit stops and park-and-ride facilities are classified as Basic Utilities.

(2) Private helicopter landing facilities that are accessory to another use are considered accessory uses. However, they are subject to all the regulations and approval criteria for helicopter landing facilities.

3. Detention Facilities

a. Characteristics

Detention Facilities includes facilities for the judicially required detention or incarceration of people. Inmates and detainees are under 24 hour supervision by sworn officers, except when on an approved leave.

b. Accessory Uses

Accessory uses include offices, recreational and health facilities, therapy facilities, maintenance facilities and hobby and manufacturing activities.

c. Examples

Examples include prisons, jails, probation centers and juvenile detention homes.

d. Exceptions

Programs that provide care and training or treatment for psychiatric, alcohol, or drug problems, where patients are residents of the program, but where patients are not supervised by sworn officers are classified as Group Living. Programs that provide transitional living experience for former offenders, such as halfway houses, where residents are not supervised by sworn officers, are also classified as Group Living.

4. Mining

a. Characteristics

Mining includes mining or extraction of mineral or aggregate resources from the ground for off-site use.

b. Accessory Uses

Accessory uses include storage, sorting, stockpiling, or transfer off-site of the mined material.

c. Examples

Examples include quarrying or dredging for sand, gravel or other aggregate materials; mining; and oil, gas, or geothermal drilling.

5. Telecommunications Facilities

a. Characteristics

Telecommunications facilities includes all devices, equipment, machinery, structures or supporting elements necessary to produce nonionizing electromagnetic radiation within the range of frequencies from 100 KHz to 300 GHz and operating as a discrete unit to produce a signal or message. Facilities may be self supporting, guyed, mounted on poles, other structures, light posts, power poles, or buildings. Facilities shall also include intertie and interconnection translators, connections from over-the-air to cable, fiber optic, or other landline transmission system.

b. Accessory Uses

Accessory uses may include transmitter facility buildings.

c. Examples

Examples include broadcast towers, attached telecommunications facilities, telecommunications support towers, point-to-point microwave towers and amateur radio facilities that are owned and operated by a federally-licensed amateur radio station operator.

d. Exceptions

(1) Radio and television studios are classified in the Office category.

(2) Radio and television broadcast facilities that are public safety facilities are classified as Basic Utilities.

(3) Ground-mounted telephone switch boxes not exceeding 6 feet in height are classified as Basic Utilities.

(4) Amateur radio facilities that are owned and operated by a federally licensed amateur radio station operator are not included in this category.

Source: 2985 (1999), 3007 (1999), 3062 (1999, 4228 (2002), 4241 (2002), 4324 (2003), 4613 (2007), 5092 (2017).

[The next page is 20:255]

ARTICLE 20-13

FARGO SIGN CODE

§20-1301 General Provisions

A. Authority

This article shall be part of the Land Development Code (Chapter 20 of the Fargo Municipal Code) in all respects including the interpretation, enforcement and remedies for violation hereof. This article may be referred to as the "sign code". This article is also enacted as provided in article 25-03 of the Fargo Municipal Code and references therein to the "Fargo Sign Code" shall be to this article, as the same may be amended from time to time.

B. Findings

The board of city commissioners hereby finds as follows:

1. Exterior signs have a substantial impact on the character and quality of the environment.

2. Signs provide an important medium through which individuals may convey a variety of messages.

3. Signs can create safety hazards that threaten the public health, safety or welfare. Such a safety threat is particularly great for signs that are structurally inadequate, or that may confuse or distract drivers or pedestrians, or that may interfere with official directional or warning signs.

4. Signs can also threaten the public welfare by creating aesthetic concerns and detriments to property values. Such aesthetic concerns and detriments to property values are particularly great when an accumulation or proliferation of signs results in visual clutter, or when one or more signs spoil vistas or views, or when one or more signs add or increase commercialism in noncommercial areas.

5. The ability to erect signs serving certain functions, such as an address sign or a sign announcing that the property on which it sits is for sale or for lease is an integral part of nearly every property owner's ability to realize the fundamental attributes of property ownership. The same cannot be said for signs serving other functions, such as billboards erected so as to be visible from public rights-of-way. Such signs are primarily designed to take advantage of an audience drawn to that location by the public's substantial investment in rights-of-way and other public property.

6. Signs serving certain other functions, such as small signs that serve a purely directional function, are necessary to enable visitors or residents to efficiently reach their intended destinations. Experience teaches that citizens often plan as if such signs will be present in those settings, so in the absence of such signs, frustration and disorientation will result, and time and fuel will be wasted. Such signs also prevent traffic hazards by easing the task of the motorist looking for a property open house or other events.

7. No signs that exceed the size or spacing limitations of this ordinance constitute a customary use of signage in the city.

8. The city has prohibited obscene or indecent signs to protect the health, safety, general welfare and morals of the residents of the city, to preserve the quality of family life, to preserve the characteristics of its neighborhoods and to prevent adverse and deleterious effects contributing to the flight and downgrading of neighborhoods. The city is mindful of the negative effects of obscene and indecent material upon minors and the criminal activity and disruption of the public peace associated with such establishments.

9. With respect to lost animal signs, notices in newspapers or other means of communicating this information are inadequate. Notice of the animal's loss near the site of the loss is necessary to increase the likelihood and timeliness of the animal's return to its owner, and promotes the government's interest in avoiding euthanasia and the other costs attendant upon stray animals.

10. The city recognizes businesses are committed to responding to community needs and are willing to use their advertising dollars to alert civic minded individuals of community issues of common importance. Ancillary off-premise advertising signs and community wide event signs provide businesses the opportunity to support schools, promote service clubs, raise money for charities, sponsor a community event or other activities that otherwise may be considered off-premise advertising.

11. In narrowly drawing and tailoring provisions for regulating signage, the city finds and determines that the exercise of its police power for such regulation should not extend to objects that are not typically associated with or considered signage, such as artwork, decorations, or cemetery markers. However, to prevent the purposes of these regulations from being circumvented, such regulations should apply where objects such as vehicles are used for the primary purpose of signage or as a functional equivalent of signage.

12. Non-conforming signs may adversely affect the public health, safety, and welfare. Such signs may adversely affect the aesthetic characteristics of the city and may adversely affect public safety due to the visual impact of said signs on motorists and the structural characteristics of said signs. In addition, overprotection of prior nonconforming uses and structures can unjustifiably delay the point at which nonconforming uses and structures are gradually eliminated due to obsolescence and similar causes, and can unfairly provide existing businesses with an unfair competitive advantage over new competitors because those new competitors are uniformly required to comply with existing standards.

13. The city's land-use regulations have included the regulation of signs in an effort to foster adequate information and means of expression and to promote the economic viability of the community, while protecting the city and its citizens from a proliferation of signs of a type, size, number, location and character that would adversely impact upon the aesthetics of the community or threaten health, safety or the welfare of the

community. The appropriate regulation of the physical characteristics of signs in the city and other communities has had a positive impact on the safety and the appearance of the community.

14. Prior to the adoption of this ordinance, the city has from time to time utilized conditional overlays as a tool to limit the overall area or height of signage, or both the area and height of signage, on particular parcels deemed to be design sensitive. The intent of this ordinance is, in part, to serve as the definitive guidance for signage issues and thereby not rely upon conditional overlays as a matter of course.

C. Interpretation

The following shall be used as methods of interpreting this ordinance:

1. Where any provision of this ordinance imposes restrictions different from those imposed by any other provision or any other regulation, ordinance, statute or provision of law, the provision which is most restrictive or imposes higher standards shall govern.

2. The provisions of this ordinance shall be interpreted and applied so as to be the minimum requirements.

3. This ordinance is not intended to interfere with, abrogate or annul any other regulation, statute or other provision of law.

4. This ordinance is not intended to abrogate any covenant or any other private agreement or restriction, provided that where the provisions of this ordinance are more restrictive or imposes higher standards or requirements than such covenant, or other private agreement or restriction, the provisions of this ordinance shall govern. The city does not enforce private covenants or other private agreements.

5. Words defined in Section 20-1311 shall have the meaning as defined even though the word is not capitalized.

D. Severability

If any part, section, subsection, paragraph, subparagraph, sentence, phrase, clause, term, or word of this ordinance is declared invalid, such invalidity shall not affect the validity or enforceability of the remaining portions**.** In addition, if any portion of this ordinance would remain valid by operation of Section 1-0105 of the Fargo Municipal Code, it also remains valid by operation of this subdivision.

§20-1302 Transitional Provision

A. A nonconforming sign that was established in accordance with all sign regulations in effect at the time of its establishment, but which, because of the adoption of the sign code, no longer complies with the dimensional or other standards of this ordinance may be registered with the Building Official. Registration must be completed within 60 days of the effective date of this ordinance. In the event that a registered legal nonconforming sign is damaged or destroyed, by any means, to extent of more than 50% of its structural value prior to such destruction, such sign may be restored or replaced, provided that a building permit is obtained within six months and restoration begins within one year after the date of such damage or destruction.

B. Repealed as a result of Ordinance No. 4819, May 14, 2012.

§20-1303 General Standards

A. Applicability and Jurisdiction

This article shall apply to all signs and all zoning districts within the extraterritorial zoning jurisdiction and corporate limits of the city**;**including permanent, temporary, on-premise and off-premise signs.

B. Conformity With Sign Code Required

No person shall display, construct, erect, alter, use, or maintain any sign except in conformance with the provisions of this article, the sign code. No person shall display, alter, use, maintain, or enlarge any legal, nonconforming sign except in conformity with the provisions of this article, the sign code. No person shall perform or order the performance of any act contrary to the provisions of this ordinance or fail to perform any act required by the provisions of this article, the sign code.

C. Permit Requirement

Permits shall be required for all signs unless a sign is exempt as provided by Section 20-1306.

D. Permit Application

An application for a sign permit shall be filed by the sign owner or agent with the Building Official upon forms furnished by the Building Official.

E. Application Requirements

A complete application for a sign permit shall include: a completed and signed city sign permit application form, a site plan, an elevation drawing, application fee as set by resolution of the board of city commissioners and other material or information as required herein. A complete application shall convey sufficient information so that the Building Official can determine whether the proposed sign conforms to the provisions of this article and the applicable provisions of other adopted regulations. **The time allowed for action on an application shall be tolled during any period in which additional information or data is being assembled at the request of the Building Official.**

1. Application Form Requirements. A complete application for a sign permit shall include the following:

a. The address of the subject property upon which the proposed sign is to be located.

b. The name and address of each owner of the subject property upon which the proposed sign is to be located.

c. The names and address of each tenant or occupant of the subject property upon which the proposed sign is to be located.

d. Written consent of the owner of the property, or his agent granting permission for the placement, maintenance, size and height of the subject sign to be placed on the property.

e. The name, address, telephone number and business license number of the sign contractor. All applicants for electrical signs must obtain an electrical permit.

f. The zoning district in which the subject property is located and a statement that all requirements of this ordinance have been complied with.
g. Type of sign.
h. Area of proposed sign.
i. Area of all existing signs located on parcel.
j. Total allowable signage of parcel.
k. Such other material or information as may be reasonably required upon request of the Building Official so as to allow the Building Official to determine whether the proposed sign will conform to all requirements.

2. Site Plan Requirements

The site plan shall be submitted on paper of a size sufficient to be understandable and no less than 8. 5 x 11 inches. The site plan shall be drawn to scale and/or dimensioned, and shall depict the proposed sign and its location in relationship to the following features of the site:

a. Property lines,
b. Existing and proposed buildings and other structures,
c. Parking areas, and
d. Drive aisles and vehicle circulations areas

3. Elevation Plan Requirements

The elevation plan shall be submitted on paper of a size to be understandable and no less than 8 . 5 x 11 inches. The elevation plan shall be drawn to scale and/or dimensioned, and shall depict the following elements:

a. Sign face design,
b. Sign dimensions, including its height, width and depth,
c. Area of sign face,
d. Illumination specifications, and
e. For all signs 50 square feet or larger in sign face area, a photographic simulation of the sign shall accompany the application.

F. Action on Application.

The Building Official shall examine or cause to be examined applications for permits and amendments therewith within a reasonable time after filing. If the application does not conform to the requirements of pertinent laws, the Building Official shall reject such application in writing, stating the reasons therefore. If the Building Official is satisfied that the proposed work conforms to the requirements of this code and laws and ordinances applicable thereto, the Building Official shall issue a permit therefore as soon as practicable. In the event the Building Official has neither issued nor denied a complete application within 30 days of the submission of a complete application, the application shall be deemed approved and the proposed work or sign deemed permitted; provided, however, that nothing in this section shall be construed to allow a sign or supporting sign structure to not conform to the International Building Code, Chapter 21, or the Electrical Code, Chapter 23, of the Fargo Municipal Code.

G. Appeal from Denial

Denial of any request for a sign permit is an administrative decision and is appealable in accordance with the provisions of Section 20-0916.

H. Action on Completed Application.

If a sign that is the subject of a sign permit complies with all applicable requirements of the sign code, the city must issue a permit for the sign.

I. Substitution of Noncommercial Message

1. Subject to the property owner's consent, a commercial message or noncommercial message of any type may be substituted for any duly permitted or allowed noncommercial message provided that the sign structure or mounting device is legal without consideration of message content. Such substitution of message may be made without any additional approval or permitting. This provision prevails over any provision to the contrary in the sign code. The purpose of this provision is to prevent any inadvertent favoring of a commercial message over a noncommercial message, or favoring of any particular noncommercial message over any other noncommercial message. This provision does not create a right to increase the total amount of signage on a parcel, nor does it affect the requirement that a sign structure or mounting device be properly permitted.

2. All noncommercial messages are considered on-premise signs and are entitled to the privileges that on-premise signs receive under the sign code.

J. Design and Construction

1. All signs must comply with applicable provisions of the International Building Code and the Electrical Code, Fargo Municipal Code Article 21-01 and Chapter 23, respectively.

2. All signs shall be permanent in nature except for those signs allowed as temporary signs in accordance with Section 20-1309 of this article.

K. Maintenance and Repair

1. Maintenance, touch-up, repainting or repair of a legally permitted sign shall not require a sign permit. (see also Section 20-1310 regarding nonconforming signs)

2. Except as provided in Section 20-1306(B)11 and subparagraph 3, below, any alteration of a sign shall constitute construction of a new sign and as such shall require a sign permit.

3. The alteration of a sign message via the substitution of sign lettering (changeable copy) or the automatic changing of an electronic message center shall not constitute a new sign. The alteration of a sign face by painting or permanent overlay shall constitute construction of a new sign, but may be exempt from the sign permit process. (see Section 20-1306. B. 11)

4. Signs shall be maintained in good condition at all times and shall be kept free of cracked or peeling paint, missing or damaged sign panels or supports.

5. The area on private property around the sign on which it is erected shall be properly maintained clear of brush, trees, and other obstacles so as to make signs readily visible.

6. All burned-out bulbs or damaged panels must be replaced.

7. All sign copy shall be affixed securely to the face and all missing copy must be replaced.

8. All signs shall be designed, constructed, installed and maintained so that public safety and traffic safety are not compromised.

L. Location of Signs

Except as otherwise authorized in the sign code, all signs shall be located on the same parcel as the use to which it is associated.

M. Signs Over the Public Right of Way

Except as otherwise authorized in the sign code, the DMU zoning district or as may be approved within a Planned Unit Development (PUD), no sign or supporting structure shall be located upon or over any portion of the dedicated right-of-way of any public street, alley, or thoroughfare.

N. Obsolete or Abandoned Signs

Signs that identify businesses, goods, or services no longer provided on the premise shall be removed within 30 days after the business ceases. See also Fargo Municipal Code Section 25-0304.

O. Illumination

Illumination of all signs shall comply with the following standards:

1. The light from any illuminated sign shall be so shaded, shielded and directed that the light intensity does not generate glare onto nearby residential areas between the hours of 8:00 P. M. and 8:00 A. M.

2. Neither the direct nor the reflected light from primary light sources shall create a traffic hazard to operators of motor vehicles on public thoroughfares or approaches to public thoroughfares, as determined by the Building Official.

3. No exposed reflective type bulbs or incandescent lamps that exceed 40 watts shall be used on the exterior surface of a sign.

P. Identification and Marking

Each sign requiring a permit hereafter erected or remodeled shall bear, in a permanent position, an identification plate stating the date the sign was erected and the name of person, firm or entity responsible for the construction and erection.

Q. Enforcement

The Building Official is hereby authorized and directed to enforce all the provisions of the sign code.

§20-1304 Sign Dimensional Calculation Standards

A. Sign Face Area

1. For a sign which is framed, outlined, painted or otherwise prepared and intended to provide a background for a sign display, the sign face area and dimensions shall include the entire portion within such background or frame.

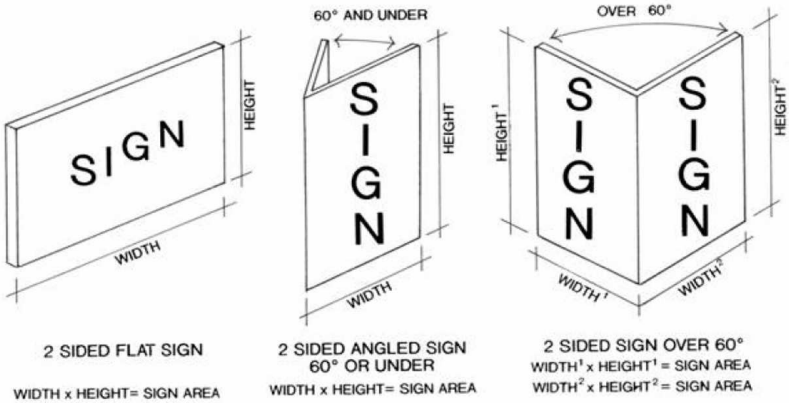
2. For a sign comprised of individual letters, figures or elements on a wall or similar surface of the building or structure, the area and dimensions of the sign face shall encompass a regular geometric shape (rectangle, circle, trapezoid, triangle, etc.), or a combination of regular geometric shapes, which form, or approximate, the perimeter of all elements in the display, the frame, and any applied background that is not part of the architecture of the building. When separate elements are organized to form a single sign, but are separated by open space, the sign face area and dimensions shall be calculated by determining the geometric form, or combination of forms, which comprises all of the display areas, including the space between different elements. Minor appendages to a particular regular shape, as determined by the Building Official, shall not be included in the total area of a sign.

3. For a freestanding sign, the sign face area shall include the frame, if any, but shall not include:

a. A pole or other structural support unless such pole or structural support is internally illuminated or otherwise so designed to constitute a display device, or a part of a display device.

b. Architectural features that are either part of the building or part of a freestanding structure, and not an integral part of the sign, and which may consist of landscaping, building or structural forms complementing the site in general.

4. The sign face area for a sign with more than one face shall be computed by adding together the area of all sign faces. On all signs other than wall signs, which shall only be allowed one face, signs with identical sign faces placed in such a manner to ensure that the angle at which the two sign faces are placed does not exceed 60 degrees shall be considered as a single face. If the two faces of such a double-faced sign are of unequal area, the larger sign face shall be considered the sign face area of the sign.



5. Other multi-faced signs. For all other multi-faced signs, the area of each sign face shall be added together to calculate total sign face area.

6. Three-dimensional signs. Where a sign consists of one or more three-dimensional objects (i. e., balls, cubes, clusters of objects, sculpture or

statue-like trademarks), the sign face area shall be measured as their maximum projection upon a vertical plane. Signs with three-dimensional objects that exceed a projection of 12 inches from the sign face may be approved through the iconic sign permit process.

B. Aggregate Sign Area

The aggregate sign area is equal to the sum of all sign face areas located on a parcel subject to the provisions of the sign code. At no time shall the aggregate sign area exceed the limits set forth in the sign code.

C. Sign Height and Clearance

1. The height of a sign shall be determined by computing the vertical distance from the base of the sign at normal grade to the top of the highest attached component of the sign. Normal grade shall be construed to be the lower of:

a. Existing grade before construction, or

b. The newly established grade after construction, exclusive of any filling, mounding or excavating solely for the purpose of placing the sign.

c. In cases where the normal grade cannot reasonably be determined, sign height shall be computed on the assumption that elevation of the normal grade at the base of the sign is equal to the elevation of the nearest point of the crown of a public street, or the grade of the land at the principal entrance to the principal structure on the parcel, whichever is lower.

2. Clearance for freestanding and projecting signs shall be measured as the smallest vertical distance between the finished grade and the lowest point of the sign, including any architectural supports, framework or other embellishments.

§20-1305 Prohibited Types of Signs

The following signs are prohibited:

A. Obscene or Indecent Signs: Signs that**,** in whole or in part, show specified anatomical areas or specified sexual activities.

B. Animal Sign

A sign involving the use of a live animal.

C. Beacon Sign

A sign that uses a light signal or summons, whether flashing or steady and shining in a horizontal or vertical direction.

D. Extending Sign

A sign or sign structure, other than freestanding, that extends above the parapet, building roof line, canopy or awning against which the sign is located.

E. Flashing or Strobing Sign

A signs that uses a pattern of changing light illumination where at least a portion of the sign illumination alternates between fully illuminated and fully non-illuminated.

F. Handbill Posted Without Consent. With respect to handbills, the provisions of Section 10-0312 apply.

G. Non-mounted Sign
A sign that contains or consists of a portable sign, tent sign or strings of lights bulbs not permanently mounted to a rigid background.

H. Roof Sign
A sign that is erected upon or above a roof or parapet of a building or structure.

I. Rotating Sign
A sign that rotates or revolves.

J. Sign Creating an Illusion
A sign designed to create an optical illusion of movement by means of a design giving the illusion of motion or changing of copy, including, without limitation, a sign that presents a pattern capable of reversible perspective.

K. Snipe Sign
A sign made of any material when such sign is tacked, nailed, posted, pasted, glued, or otherwise attached to trees, poles, stakes, fences, or other objects, and the advertising matter appearing thereon is not applicable to the use of the premise upon which such sign is located.

L. Sign Similar to Official Signs
A sign that is of a size, location, movement, content, coloring, or manner of illumination that may be confused with or construed as a traffic control device or which hides from view any traffic or street sign or signal.

M. Sign with an Emission
A sign that produces or emits any sound, odor, smoke, fire or other such emissions.

N. Swinging Sign
A sign that swings or otherwise moves as a result of wind pressure because of the manner of its suspension or attachment.

O. Unauthorized Sign on Public Property
A sign placed on any curb, sidewalk, post, pole, hydrant, bridge, tree or other surface located on public property or on a public easement, unless said sign is specifically authorized by this article, such as a directional sign.

P. Unsafe Sign
A sign or structure that constitutes a hazard to safety or health including, without limitation, a sign that is structurally inadequate by reason of inadequate design, construction, repair, or maintenance, is capable of causing electrical shock to persons likely to come into contact with it, or has less than three feet horizontal or eight feet vertical clearance from overhead electric conductors that are energized in excess of 750 volts.

Q. Vehicular Sign
A sign attached to or painted on a motor vehicle or trailer that is parked on or adjacent to property for more than 24 consecutive hours, the principal purpose of which is to serve as a stationary advertising device and to attract attention to a product sold or to a business, not including vehicle sales authorized by the city. A logo or business name on a motor vehicle or on equipment, shall not be prohibited unless is the motor vehicle or equipment is used as a stationary advertising device.

R. Video Sign

A sign that displays non-static images using motion pictures, video, computer-generated images, light-emitting diodes (LEDs) or other technology so as to produce the appearance of moving images that function or appear like a televised image.

§20-1306 Exemptions

A. Exemptions from Regulation

The following types of signs are exempt from all aspects of this article, including permit requirements and limits on size, location, and number:

1. **Indoor Sign.** A sign located completely within a building and not visible from any public right of way.
2. **Window Sign.** A sign affixed to a window of a structure, including the window or glass area of a door.
3. **Athletic Field Sign.** A sign that is physically oriented toward spectators of an event and not physically oriented so as to attract the motoring public, such as a sign located on the fence of a baseball field, football field, racetrack or outdoor stadium.
4. **Sign Used in Cultural Events.** A sign at a street fair, or other cultural event, if such sign is not oriented so as to attract the motoring public.
5. **Integral Sign.** A sign carved in stone, concrete or similar material or made of metal, bronze, aluminum, or other permanent type construction and made as an integral part of the structure.
6. **Temporary Lighting Displays.** Temporary use of low-wattage lighting for public festivals or other events, including holidays, provided it does not create distracting or disabling glare.
7. **Certain Handbills.** Handbills, placards, posters or other signs that are allowed under the provisions of Fargo Municipal Code Section 10-0312.
8. **Architectural Pendant Sign.** A pendant sign used as an architectural enhancement to denote a streetscape or location.
9. **Utility Sign.** A sign placed by a utility company as part of the normal operation and maintenance of a facility such as a public telephone or underground service.
10. **Safety or other official public duty sign.**
    a. A public sign erected by or on behalf of a government body in the performance of its official duties, for the purpose of posting legal notices, identifying public property, directing or regulating pedestrian or vehicular movements, identifying transit stops, facilities, times and bus routes, or influencing traffic control or safety. This exemption includes safety signs, danger signs, trespassing signs, traffic signs, memorial plaques, and signs of historical interest.
    b. A sign erected by a governmental agency, a public utility company or a contractor doing authorized or permitted work within the public right-of-way, for the purpose of ensuring safety.

B. Exemptions from Permitting Requirements

Unless otherwise stated, exemptions shall not be construed as relieving the

owner of the sign from the responsibility for its erection, maintenance and timely removal, as applicable, nor from the owner's compliance with the provisions of this sign code or any other law or ordinance regulating the same.

The following signs shall not require a permit:

1. **Sign of a Lawful Size Used Solely for Noncommercial Messages.** A sign used solely for the purpose of displaying a noncommercial message is exempt from all other aspects of the sign code, so long as the sign does not exceed the dimensional requirements for commercial signs in the zoning district and at the position where the sign is located. Any sign erected for the purpose of displaying a noncommercial message shall not be used for display of a commercial message unless such sign is erected in conformance with all applicable requirements of this ordinance and has received a sign permit as required under section 20-1303.
2. **Temporary Sign.** A temporary sign as provided in section 20-1309 unless it is a portable sign, high-impact sign or community-wide event sign.
3. **Home Occupation Sign.** A home occupation sign as provided in section 20-0403. C. 6.
4. **Directional Sign.** A sign directing traffic movement into a premises or within a premises, not exceeding six square feet in area, and horizontal directional signs on, and flush with, paved areas regardless of size. Said sign shall not count against the aggregate sign area allotment of a parcel. For purposes of this exemption, a directional sign shall contain no more than the name and logo of a place, a directional arrow to a place, the distance to a place, and may not be used to advertise. Directional signage that meets the above definition shall also be considered on-premise advertising of the business or property that is being advertised whether the directional sign is located on or off the subject premises. Signage that does not meet the above definition shall be considered on-premise advertising if located on the subject property and off-premise advertising if located off the subject property.
5. **Nameplates.** A nameplate, not exceeding one square foot in area, containing no more than the name of the resident, title of person conducting a permitted home occupation, name of building and name of agent.
6. **Flush-Mounted Rear Entrance Signs.** A rear entrance sign associated with a pedestrian walk-through building, provided it does not exceed 16 square feet in area and it is flush mounted, and contains no more than the name of the establishment and directional information. Said sign shall not count against the aggregate sign area allotment of a parcel.
7. **Menu Sign and Other Signs Not Legible Off the Premises.** A menu sign at a drive-through or drive-in restaurant and other signs that are not legible from the public right of way or a sign not legible beyond the boundaries of the lot or parcel upon which it is located or from any public right of way. Said sign shall not count against the aggregate sign area allotment of a parcel.
8. **Warning Signs.** A warning or instructional sign, such as "No Soliciting", "No Trespassing", "Beware of Dog", not exceeding 1. 5 square feet.

9. **Transit Courtesy Bench.** Signage on city approved transit courtesy benches is lawful without the issuance of a permit as long as there is a written agreement between the provider and the city and all appropriate permits have been obtained from the city.
10. **Permanent Development Signage.** Permanent development signage may be permitted on any development as contained within the applicable subdivision amenity plan reviewed and approved in accordance with the subdivision procedures of Section 20-0907 of the Land Development Code. Such signage may be for the purpose of identification of the development only and shall contain no commercial advertising.
11. **Replacement of Sign Face.** The replacement of an existing sign face with a new sign face of the same dimensional measurements shall not require a sign permit. However, in order for city to maintain an accurate record of all permitted signs, the sign owner or agent, prior to the installation of the replacement sign face, shall submit either in person or by facsimile or email transmission to the Building Official the following information:
    a. The address of the subject property,
    b. The name, address and telephone number of the of sign owner or agent submitting the information,
    c. A graphic representation (dimensioned or scaled) of the new sign face, and
    d. A site plan or narrative sufficient to determine the location of the subject sign, if more than one sign is located on the property.

§20-1307 On-Premise Signs

On-premise signs shall be allowed in all zoning districts, subject to the following conditions:

A. Size Limitations

The total amount of signage allowed on any parcel shall not exceed the sign allowance standards of this article.

1. In the SR, MR-1 and MR-2 and AG zoning districts, the total sign face area of on-premise signage shall not exceed 64 square feet. No single sign shall exceed eight square feet in area.
2. In the MR-3 zoning district, the total sign face area of on-premise signage shall not exceed 64 square feet; however, a parcel containing an apartment building or multiple apartment buildings totaling 50 or more dwelling units shall be allowed an additional 64 square feet of sign face area for each 50-dwelling-unit increment provided that no single sign shall exceed 64 square feet in area.
3. In the NC and NO zoning districts, no on-premise sign shall exceed one square foot of total aggregate sign face area per 100 square feet of building coverage. All signage other than wall signs shall be limited in height to no greater than four feet above the ground level.
4. In the UMU zoning district, the aggregate sign face area allowed per parcel shall not exceed two square feet of signage per linear foot of street frontage, or 15% of the façade of the primary structure, whichever is less.

The area of the façade is determined by multiplying (a) the lesser of the height of the front elevation of the principle structure's first floor or twenty feet by (b) the width of the façade.

5. In all zoning districts other than the foregoing, the aggregate sign face area allowed per parcel shall not exceed 2. 5 square feet of signage per one linear foot of street frontage or 30 % of the façade of the primary structure, whichever is greater. The area of the façade is determined by multiplying (a) the lesser of the height of the front elevation of the principle structure's first floor or twenty feet by (b) the width of the façade.

6. Off-premise signage and billboards are not subject to this section.

B. Determining Allowable Sign Face Area

The total sign face area allowed per parcel is based on the greater of either the primary street frontage length or the primary façade area of the principal building and, as applicable, the secondary street frontage or secondary façade area of the principal building. Street frontage calculations may not be used to determine the total allowable signage per parcel on parcels without street frontage. On such parcels, the building façade area shall be used to determine the total amount of signage allowed per parcel.

1. **Single-Tenant.** The following description shall apply to single-tenant buildings.

a. **Primary Street Frontage.** Primary street frontage is the linear distance along which a lot line adjoins a public street right-of-way. The primary street frontage of a corner lot or multi-corner lot is the street with the highest functional street classification or longest street frontage if functional street classification is the same. If the street is a frontage road, the functional classification of the road which the frontage road affronts shall be used to determine maximum sign face area.

b. **Secondary Street Frontage.** The secondary street frontage is the linear distance along which a lot line adjoins additional public street right-of-way, generally perpendicular to, the primary street frontage. For a lot with more than one street frontage, such as a corner lot, signage calculations for the secondary street frontage may be added to those for the primary street frontage at one-half the signage allotment rate. However, if secondary street signage is used, this signage must be located and oriented toward the secondary frontage.

c. **Building Façade Area.** The building façade area shall be the area of the first floor elevation of the primary structure or building unit, as determined by multiplying the lesser of the height of the front elevation of the first floor or twenty feet.

1. **Building Unit.** A building unit is equivalent to the tenant space.

2. **Primary and Secondary Frontage.** The frontage of any building unit shall include the elevation facing a public

street, facing a primary parking area for the building or tenants, or containing the public entrance to the building or building units.

a. The primary frontage shall be considered the portion of any frontage containing the primary public entrance to the building or building units.

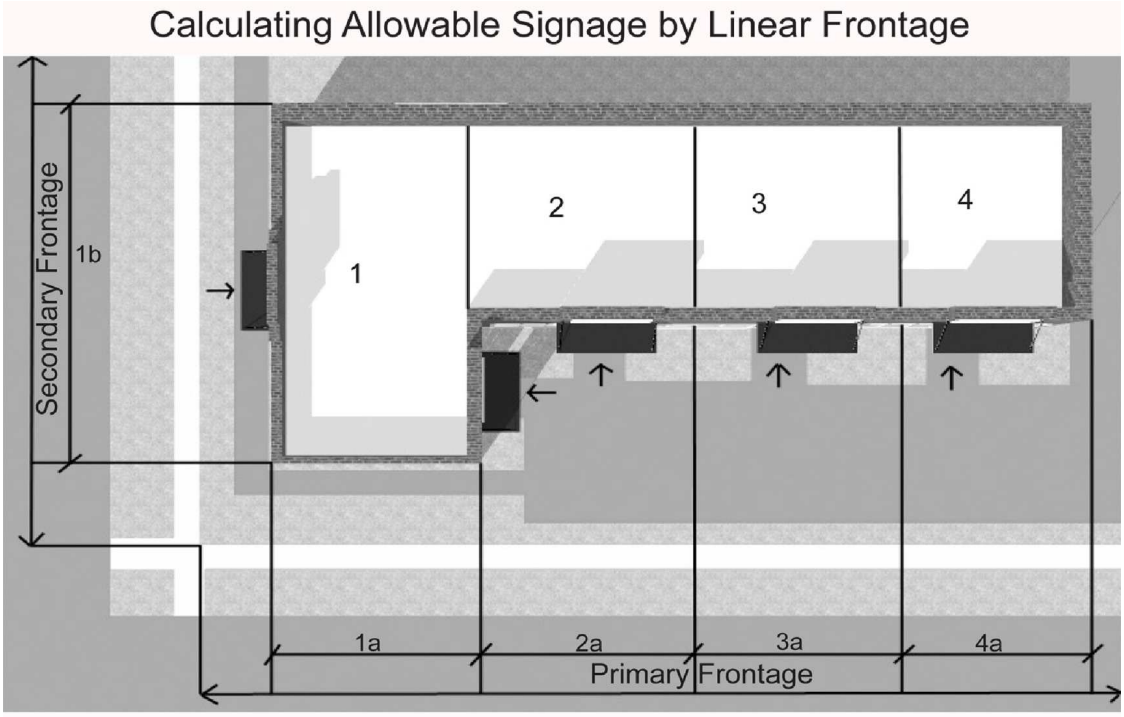
b. The secondary frontage shall include those frontages containing secondary public entrances to the building or building units, and all building walls facing a public street or primary parking area that are not designated as the primary building frontage by subsection "a" above.

3. **Bonus Secondary Signage Calculations.** A principal building with more than one frontage, such as a building located on a corner lot, shall be allowed to add to its signage calculations the secondary frontage at one-half the signage allotment rate of the primary frontage. However, if secondary signage is used, this signage must be located and oriented toward the secondary frontage.

2. Multi-Tenant. The following descriptions shall apply to multi-tenant buildings.

a. **Primary Street Frontage.** Primary street frontage is the linear distance along which a lot line adjoins a public street right-of-way. The primary street frontage of a corner lot or multi-corner lot is the street with the highest functional street classification or longest street frontage if functional street classification is the same. If the street is a frontage road, the functional classification of the road which the frontage road affronts shall be used to determine maximum sign face area.

b. **Secondary Street Frontage.** Secondary street frontage is the linear distance along which a lot line adjoins a public street right-of-way, generally perpendicular to, the primary frontage. For a lot with more than one street frontage, such as a corner lot, signage calculations for the secondary street frontage may be added to those for the primary street frontage at one-half the signage allotment rate; however, if secondary street signage is used, this signage must be located and oriented toward the secondary frontage.



c. Building Façade Area. The building façade area is the area of the first floor elevation of the primary structure or building unit, as determined by multiplying (a) the lesser of the height of the front elevation of the first floor or 20 feet by (b) the width of the façade.

1. **Building Unit.** A building unit is equivalent to the tenant space. For a principal building with two or more building units, the allowable sign face area for each building unit shall be calculated separately and in no case shall the allowable sign face area for one building unit be transferred to another building unit.

2. **Primary and Secondary Frontage.** The frontage of any building unit shall include the elevation facing a public street, facing a primary parking area for the building or tenants, or containing the public entrance to the building or building units.

   a. The primary frontage shall be considered the portion of any frontage containing the primary public entrance to the building or building units.

   b. The secondary frontage shall include those frontages containing secondary public entrances to the

building or building units, and all building walls facing a public street or primary parking area that are not designated as the primary building frontage by subsection "a" above.

3. **Bonus Secondary Signage Calculations.** A principal building with more than one frontage, such as a building located on a corner lot, shall be allowed to add to its signage calculations the secondary frontage at one-half the signage allotment rate of the primary frontage. However, if secondary signage is used, this signage must be located and oriented toward the secondary frontage.



3. Multiple Story Buildings. Additional signage is permitted in all zoning districts except UMU, SR, MR, and AG according to the following:

a. For a building with two floors, the additional sign area shall not exceed 30% of the area of the second floor elevation of the primary facade, as determined by multiplying (a) the lesser of the height of the front elevation of the second floor or twenty feet by (b) the width of the façade.

b. For buildings with more than two floors, the additional sign area shall not exceed 30% of the area, beyond the second floor, of any additional building floor elevations of the primary façade, as determined by multiplying (a) the lesser of the height of the front elevation of each floor or twenty feet for each floor by (b) the width of the façade.

C. Permitted Sign Types

Permissible on-premise signs may include wall, projecting, freestanding, awning, canopy, and marquee signs, subject to the following standards:

1. Wall Sign. A wall sign may extend up to 12 inches from the face of the building if the base of the sign is at least eight feet above the ground level. No wall sign shall extend beyond the required setback line or property line (as applicable) nor shall it extend above any adjacent parapet or roof of the supporting building.

2. Projecting Sign. A projection sign may extend up to six feet from the face of the building if the base of the sign is at least eight feet above the

ground level. No projection sign shall extend beyond the required setback line or property line (as applicable), nor shall it extend above any adjacent parapet or roof of the supporting building.

3. **Freestanding Sign.** (Including pylon, pole and monument signs)

   a. No freestanding sign shall be located in or project over or into the right-of-way or into any adjoining property.

   b. A parcel fronting only on one public street shall have no more than one freestanding sign unless the street frontage exceeds 300 feet, for which case a second freestanding sign is allowed. An additional freestanding sign is allowed for each additional 300 feet of frontage over 600 feet.

   c. A parcel fronting on two or more public streets shall be allowed to have one freestanding sign for each street frontage. If one of the additional street frontages exceeds 300 feet then a third sign shall be permitted. If the site contains more than one street frontage that exceeds 300 feet, an additional freestanding sign is allowed per street for every 300 feet of frontage over 600 feet.

   d. Where more than one freestanding sign is proposed for installation on a parcel with multiple frontages, a minimum of 60 feet shall separate each freestanding sign.

4. **Awning, Canopy and Marquee Signs.** An awning, canopy or marquee sign that extends more than 12 inches beyond a wall of a building must comply with the following additional conditions:

   a. No such sign may project above, below, or beyond the face of the architectural projection on which it is located, except for an awning, canopy, or marquee sign that meets the following standards:

      1. A sign may project horizontally beyond the face of an awning, canopy or marquee no more than twelve inches, measured from the bottom of the sign, if necessary to accommodate the letter thickness and required electrical equipment;

      2. The awning, canopy, or marquee to which the sign is attached must be located over an entry to the building; and

      3. The sign shall be substantially parallel with the building wall to which the awning, canopy, or marquee is attached.

   b. Signs mounted 12 inches or less from a wall of a building shall be considered to be wall signs, subject to the requirements of the sign code.

5. **Iconic Signs.** An iconic sign shall be reviewed and approved in accordance with the conditional use review procedures of Section 20-0909, except that the substantive criteria for approval or denial shall be limited to those set forth in this section. Unless otherwise expressly stated, any

conditional use permit for an iconic sign granted pursuant to Section 20-0909 shall run with the land and shall not automatically terminate upon sale or transfer of the property.

a. **Intent.** The iconic sign provision is intended to create a process whereby a proposed sign that does not meet the dimensional or other standards of the sign code, but, through design and artistic expression unrelated to its message, is culturally significant to our community, and is expected to serve a placemaking function either upon completion or with the passage of time. Examples of such signs include the "Hollywood" sign on the hills of Hollywood, California; the cowboy with lariat sign for the Frontier Hotel and Casino in Las Vegas, Nevada or the sign for the Radio City Music Hall in New York, New York. This provision is not intended to be a tool to vary one or more of the standards of this ordinance simply to allow for a larger sign than otherwise could be obtained.

b. **Approval Criteria.** Applications for an iconic sign approval shall be approved if the following criteria are also met.

1. The proposed iconic sign represents an improvement over what could have been accomplished through the strict application of this ordinance for reasons unrelated to any message of the sign.
2. The proposed iconic sign is consistent with sound planning practice. A sign is consistent with sound planning practice when it is in furtherance with the city's comprehensive policy plan for the location of the sign.
3. The proposed iconic sign, through design and artistic expression unrelated to its message, is culturally significant to the community.
4. The proposed iconic sign is expected to serve a placemaking function either upon completion or with the passage of time. A sign serves a placemaking function when it attracts people to the immediate area of the sign for purposes of social interaction.
5. Approval of the proposed iconic sign will not arbitrarily or unreasonably result in favoritism of the proposed sign over another sign that is similarly situated in all relevant respects but for which a sign permit has been denied by the city in the previous two years.

D. Placement of Sign

A permitted sign may be located anywhere on the premises except as specifically restricted within the sign code. A freestanding sign may be located only in the front or side yard.

E. Height Limitations

The height of signs shall be governed by the following setback steps listed below.

	Distance from Property Line	*Maximum Height of Sign*
Step 1	0 feet to 25 feet	25 feet
Step 2	25 feet to 100 feet	35 feet
Step 3	100 plus feet	50 feet
Step 4 *	Adjacent to Interstate	60 feet

**No setback from property line required*

F. Ancillary Off-Premise Sign

Ancillary off-premise signage shall not exceed 10 percent of the total permitted on-premise signage. Anything more than 10 percent shall be permitted only to the extent that it satisfies the requirements of this ordinance for off-premise signage. Regarding the use of electronic messaging center signs to display ancillary off-premise messages, in any given 10-minute increment, no more than one minute may include ancillary off-premise advertising.

G. Multi-Tenant Sign

A multi-tenant sign is a sign that advertises two or more businesses on separate parcels that utilize common off-street parking, shared access or both. A multi-tenant sign shall be considered an on-premise sign.

H. Sponsorship Sign

A sponsorship sign that does not exceed 20 percent of the total sign face area of an otherwise lawful sign shall be allowed in all zoning districts, if the sign is posted on public property or owned by a non-profit entity. All sponsorship signs must be static.

I. Changeable Copy

Changeable copy signs that otherwise satisfy all other requirements of this ordinance shall be allowed in all zoning districts.

J. Electronic Messaging Centers

Electronic Messaging Centers that otherwise satisfy all other requirements of this ordinance are allowed in the GI, LI, GC, LC, GO, PI, and DMU zoning districts, subject to the following additional conditions:

1. Size Limitations. The maximum sign face area of an electronic messaging center shall be based on the zoning district of the subject property and functional road classification of the adjacent roadway to which the sign faces. If the adjacent roadway is a frontage road, the functional classification of the road which the frontage road affronts shall be used to determine maximum sign face area. The following chart shall be used to determine maximum sign face area:

Zoning District	**Functional Classification of Adjacent Roadway**				
	Interstate	*Principal Arterial*	*Minor Arterial*	*Collector*	*Local*
GI - General Industrial	300 sq ft	200 sq ft	200 sq ft	48 sq ft	25 sq ft
LI - Limited Industrial	300 sq ft	200 sq ft	200 sq ft	48 sq ft	25 sq ft
GC - General Commercial	300 sq ft	200 sq ft	200 sq ft	48 sq ft	25 sq ft
LC - Limited Commercial	300 sq ft	200 sq ft	150 sq ft	48 sq ft	25 sq ft
NC - Neighborhood Commercial	N/A	N/A	N/A	N/A	N/A

Zoning District	Functional Classification of Adjacent Roadway				
	Interstate	*Principal Arterial*	*Minor Arterial*	*Collector*	*Local*
GO - General Office	200 sq ft	100 sq ft	100sq ft	48 sq ft	25 sq ft
NO - Neighborhood Office	N/A	N/A	N/A	N/A	N/A
DMU - Downtown Mixed Use	N/A	200 sq ft	200 sq ft	100 sq ft	25 sq ft
UMU - University Mixed Use	N/A	N/A	N/A	N/A	N/A
P/I - Public Institutional	300 sq ft	200 sq ft	100 sq ft	48 sq ft	25 sq ft
MR - Multi-dwelling Residential	N/A	N/A	N/A	N/A	N/A
SR - Single-dwelling Residential	N/A	N/A	N/A	N/A	N/A
AG- Agricultural	N/A	N/A	N/A	N/A	N/A

2. Frame Effects and Background Animation

The use of frame effects and background animation is allowed with electronic messaging center signs, provided that when located less than 100 feet, as measured from the curbline of the street in which the sign is oriented, from a residential zoning district, an electronic messaging center sign, between the hours of 10:30 p. m. and 6:00 a. m., shall not utilize background animation or frame effects and each message shall have a minimum seven second hold time prior to transitioning to the next message.

3. Number of Electronic Messaging Centers Allowed

Electronic messaging center signs must be an ancillary use or structure to the principal use or structure of the parcel upon which the sign is located.

a. A parcel fronting on only one public street shall have no more than one electronic messaging center sign unless the street frontage exceeds 300 feet, in which case a second electronic messaging center sign is allowed. An additional electronic messaging center sign is allowed for each additional 300 feet of frontage over 600 feet.

b. If the subject parcel has multiple street frontages, one additional electronic messaging center sign is permitted per street upon which the development fronts, provided that each additional sign is oriented so as not to be visible from the other street frontages.

4. Sign Brightness

Electronic messaging centers must be equipped with automatic dimming technology that automatically adjusts the display's brightness based upon ambient light conditions.

a. The brightness level for electronic message centers shall not increase by more than 0. 3 foot-candles over ambient levels.

b. The brightness measurement process to determine compliance shall be as follows:

i. At least 30 minutes after sunset or 30 minutes before sunrise, the Building Official shall measure and determine the sign's brightness by aiming a foot-candle meter directly at the electronic messaging center sign at a pre-set distance:

Size of Sign in Total Square Feet	*Distance from Sign**
0-300	150 feet
**If sign cannot be measured at pre-set distance, the sign shall be measured as near as practical to pre-set distance.*	

ii. After the sign brightness has been determined, the Building Official shall contact the sign owner or the owner's agent to schedule a time to measure and determine the ambient light conditions with the electronic messaging center off or while displaying all black copy. The ambient light reading shall be taken with the same foot-candle meter at the same location used to establish the sign's brightness.

iii. Once the two light readings have been determined, the second measurement reading shall be subtracted from the first measurement reading. To be in compliance with this standard, the difference of the two readings shall be 0. 3 foot-candles or less.

Source: 4979 (2015).

§20-1308 Off-premise Signs and Digital Billboards

Off-premise signs and digital billboards that otherwise satisfy all other requirements of this ordinance are allowed in the GI, LI, GC, and LC zoning districts, subject to the following additional standards:

A. Size Limitations

1. In the GI zone district, no off-premise sign or digital billboard shall have a sign face area exceeding 672 square feet. In the LI, GC and LC zoning district, no off-premise sign or digital billboard shall have a sign face area exceeding 300 square feet; providing that if the subject property directly abuts the interstate corridor, and the location of the off-premise sign or digital billboard is within 150 feet of the interstate right-of-way, and is oriented to face toward the interstate, the maximum sign face area shall not exceed 672 square feet.

2. An off-premise sign or digital billboard with a sign face area not exceeding 672 square feet shall also be allowed in GI, LI, GC and LC zoning districts along principal arterial roads provided that the number of off-premise signs with a sign face area between 301 and 672 square feet and the number of digital billboards with a sign face area between 301 and 672 square feet along such principal arterial roads does not exceed 44. The term principal arterial road shall be a street, avenue or other roadway identified as such on the functional road system map approved for the purpose of identifying eligible locations for such signs which map is approved by resolution of the board of city commissioners, as the same may be modified from time to time by subsequent resolution. The said

maximum number of such allowable larger-sized off-premise signs and digital billboards includes all such signs, regardless of ownership of the sign structure or the land upon which the sign structure is located.

3. Off-premise signs or digital billboards shall not be included with on-premise signs in determining the total number or size of signs permitted on any site.

4. With the exception of portable signs, all off-premise signs and digital billboards shall have a minimum sign face area of 280 square feet.

B. Height Limitations

The height of off-premise signs and digital billboards shall be governed by the following setback steps listed below.

	Distance from Property Line	Maximum Height of Sign
Step 1	0 feet to 25 feet	25 feet
Step 2	25 feet to 100 feet	35 feet
Step 3	100 plus feet	50 feet
Step 4*	Adjacent to Interstate	60 feet

**No setback from property line required*

C. Spacing Requirements

No off-premise sign or digital billboard shall be placed in a location that causes it to violate any of the following spacing requirements:

1. **Sensitive Land Uses.** Spacing of off-premise signs and digital billboards from any residential zoning district, public institutional zoning district, mixed-use zoning district allowing residential uses, religious institutions, parks, or schools shall be at least 300 feet, as measured from the curbline of the street in which the sign is oriented, unless one or more structures or objects obstructs the view of all or substantially all of the sign from such residences, religious institutions, parks or schools.

2. **Off-premise signs.** Spacing between off-premise signs shall be at least 500 feet, as measured from the curbline of the street along which the sign is oriented.

3. **Digital Billboards.** Spacing between digital billboards shall be at least 1,200 feet, as measured from the curbline of the street along which the sign is oriented.

4. **Limited Commercial Zone District.** Spacing between all off-premise signs and digital billboards in the LC zoning district shall be at least 1,000 feet, as measured from the curbline of the street along which the sign is oriented.

D. Digital Billboards. Digital billboards are subject to the following additional conditions:

1. **Hold Time**

Signs shall display a static message which message may not change or be changed for a period of at least seven seconds.

2. **Message Transitions**

Transition from one such static message to the next shall occur instantaneously without the use of animation, flashing or frame effects.

3. Sign Brightness

Digital billboards shall come equipped with automatic dimming technology that automatically adjusts the display's brightness based on ambient light conditions.

a. The brightness level for digital billboards shall not increase by more than 0. 3 foot-candles over ambient levels.

b. Brightness measurement process to determine compliance shall be as follows:

i. At least 30 minutes after sunset or 30 minutes before sunrise, the Building Official shall measure and determine the sign's brightness by aiming a foot-candle meter directly at the electronic messaging center sign at a pre-set distance, as described in the following table.

Size of Sign in Total Square Feet	*Distance from Sign**
0-350	150 feet
351-650	200 feet
651-1000	250 feet
Over 1000	350 feet
** If sign cannot be measured at pre-set distance, the sign shall be measured as near as practical to pre-set distance.*	

ii. After the sign brightness has been determined, the Building Official shall contact the sign owner or the owner's agent to schedule a time to measure and determine the ambient light conditions with the digital billboard off or with the billboard displaying all black copy. The ambient light reading shall be taken with the same foot-candle meter at the same location used to determine the sign's brightness.

iii. To be in compliance with this standard, the difference of the first reading and the second reading may be no more than 0. 3 foot-candles.

E. Prohibited Off-Premise Signs. The following off-premises signs are prohibited:

1. Stacked signs.

2. Signs with more than two faces.

3. Building wraps.

§20-1309 Temporary Signs

A. Applicability

Except as specifically identified within this section, a temporary sign shall be considered as temporary for purposes of the exemption from the permit requirement pursuant to §20-1306(B)(2), provided that it does not remain in place more than 14 days. Once 14 days has expired from the time the temporary sign is placed, a minimum of 60 days must pass before another temporary sign may be

placed. If a sign remains in place for more than 14 days it shall be subject to the applicable regulations of the sign code. No temporary sign may exceed 100 square feet in sign face area.

B. Banner Sign

A banner sign may be placed flat against the façade of a building but must be affixed so as to not flap or move with the wind.

C. Contractor Sign

A builder, contractor or other person furnishing service, materials or labor to a premises that is under construction or development may post on such premises a non-illuminated static sign, provided that:

1. In AG, SR, MR-1, MR-2, NC, and NO zoning districts, the sign face area does not exceed eight square feet;

b In all other zoning districts, the sign face area does not exceed 40 square feet; and

3. Such sign are removed within 60 days of the commencement of occupancy of structure.

D. Going-Out-of-Business Sign

A single business or owner may not conduct more than one sale that is described as a "going-out-of-business sale. "

E. Grand Opening Sign

A single business or owner may not conduct more than one event that is described as a "grand opening. "

F. Garage Sale Sign

A person conducting a garage sale, rummage sale, or auction sale may post on the premises on which the sale is to be held one or more non-illuminated static temporary signs, provided that:

1. The sign face area of all signs does not exceed eight square feet, cumulatively; and

2. Such signs may be posted for a maximum of three days before and one day after the day of the event or, if such event consists of two or more consecutive days, a maximum of three days before the first such day and one day after the last such day.

G. Subdivision Development Sign

A developer may post a subdivision development sign at each entrance of a subdivision provided that:

1. No more than one subdivision development sign is allowed per entrance.

2. The sign face area of each sign does not exceed 40 square feet.

3. The sign is removed at such time as the owners of 80% of the lots within the subdivision have been issued certificates of occupancy for completion of primary structures on said lots.

H. Real Estate Sign

A non-illuminated static sign on a premises that is offered for sale or lease shall be allowed as a temporary sign, provided that:

1. In the SR, MR-1, MR-2, NC, and NO zoning districts, the sign face area of such sign does not exceed eight square feet; and

2. In all other zoning districts, the sign face area of such sign does not exceed 40 square feet, and

3. The sign is removed within one week after the transfer of title or the signing of a lease for the premises.

I. Lost Animal Sign

A person who has lost an animal may post one or more lost animal signs within the city boulevard, provided that,

1. Each sign must be a free-standing sign.

2. The maximum sign face area of any sign shall not exceed six square feet.

3. The maximum width of a sign shall not exceed 36" and the maximum height of a sign shall not exceed 36".

4. A lost animal sign shall be allowed on the right-of-way for a maximum period of 10 days or a period ending one day after the animal is found, whichever period is shorter.

J. Boulevard Directional Sign

A boulevard directional sign is a sign that provides direction for vehicular or pedestrian traffic to an event that is lawfully held in a residential zoning district, such as a garage or rummage sale or an open house for the sale of a home.

A boulevard directional sign may be placed within city right-of-way provided that:

1. The sign must be a free-standing sign.

2. The sign shall contain no more than the name of a place, a directional arrow to the place, and the distance to the place, the day or days of sale, and may not be used to advertise.

3. The maximum sign face area shall not exceed eight square feet.

4. The maximum width of the sign shall not exceed 36" and the maximum height of the signs shall not exceed 36".

5. A boulevard directional signs shall be allowed on the right-of-way for a maximum period of three days before and one day after the event being held at the location to which the sign is directed, for a maximum cumulative total of 14 days, including the days of the event.

K. Pedestrian Signs

Pedestrian signs are permitted subject to the rules and regulations of Fargo Municipal Code Section 18-0309.

L. High Impact Sign

1. Additional Permitting Required

A high impact sign cannot be displayed unless it is installed by a licensed sign provider who has first obtained a permit from the Building Official.

2. Size

A high impact sign may not exceed 64 square feet in sign face area nor may it exceed eight feet in height.

3. Zoning District and Duration of Display

A high impact sign may be displayed for a period no longer than the following:

a. In GI, LI, LC, GC and DMU and P/I zoning districts, high impact signs may be displayed at a location for a period not to

exceed 14 days in any 12-month period, but in no event may a high impact sign be displayed within 300 feet of any residential zoning district, as measured in all directions. High impact signs are prohibited in all other zoning districts.

b. A high impact sign may not be displayed on a parcel upon which a portable sign is displayed; provided, however that a maximum of either: (a) two high impact signs or (b) one portable sign and one high impact sign may be displayed during any given period on a multi-tenant property containing six or more businesses as described in Section 20-0909. M. 3. c.

4. Spacing

Spacing between a high impact sign and (a) a portable sign or (b) another high impact sign shall be at least 300 feet as measured from the curbline of the street along which the sign is oriented.

M. Portable Signs

1. Additional Permitting Required.

A portable sign cannot be displayed unless it is installed by a licensed sign provider who has first obtained a permit from the Building Official.

2. Size.

A portable sign may not exceed 64 square feet in sign face area nor may it exceed eight feet in height.

3. Zoning District/Duration of Display.

A portable sign may be displayed for a period no longer than the following:

a. In GI, LI, GC, LC, DMU, P/I, and MR-3 zoning districts, portable signs may be displayed at a location for a period not to exceed 30 consecutive days. Upon termination of the display, a portable sign may not be displayed again at the same location for an additional 14 days. In no event may a portable sign be displayed at the same location for more than 98 days in any single calendar year. portable signs are prohibited in all other zoning districts not specifically listed above.

b. A high impact sign may not be displayed at a location at which a portable sign is displayed; neither shall a portable sign be displayed at a location at which a high impact sign is displayed.

c. With respect to multi-tenant properties in GI, LI, GC, LC, DMU, P/I and MR-3 zoning districts consisting of six or more businesses under six or more separate leases or consisting of six or more units within a condominium, a maximum of either: (a) two portable signs or (b) one portable sign and one high impact sign may be displayed during any given period on such multi-tenant property. For every four businesses or condominium units in addition to the initial six businesses, one additional portable sign is allowed. In the event there is substantial road construction for

an extended period that disrupts normal vehicular traffic flow to a location, upon approval of the Building Official, portable signs may be displayed as the Building Official deems appropriate.

d. Portable signs with blinking, flashing or fluttering lights or other illuminating devices which have a changing intensity; brightness or color may not be displayed within 300 feet of any SR, MR, UMU, MHP, NO, DMU or NC zoning district or any other zoning district where household or group living is permitted as a Conditional Use. No such sign shall have any bulb with more than 11 watts.

4. Spacing. Spacing between a portable signs and another portable sign shall be at least 50 feet as measured from the curbline of the street in which the sign is oriented.

N. Community-wide Event Sign

1. Definition. A Community-wide Event Sign is a portable sign used by an organization exempt from taxation under Section 501 of the Internal Revenue Code (26 U. S. C. § 501) to promote a charitable event or activity.

2. Intent. This provision is intended to accommodate temporary advertising of events and activities that serve the community as a whole, such as, fundraising for a cancer patient by the local VFW or marketing of the annual Kiwanis pancake breakfast.

3. Location. Signs advertising a community-wide event shall be deemed to be an on-premise sign regardless of the location of the sign or the location of the event or activity being advertised.

4. Duration. In GI, LI, GC, LC, DMU, P/I, and MR-3 zoning districts, and provided the size of the sign does not exceed 64 square feet in sign face area nor exceed 8 feet in height, community-wide events signs may be displayed at a location for a period not to exceed 30 consecutive days. Upon termination of the display, a community-wide event sign may not be displayed again at the same location for an additional 14 days. In no event may a community-wide event sign be displayed at the same location for more than 98 days in any single calendar year.

§20-1310 Non-Conforming Sign

A. A sign that does not conform to this article is a non-conforming sign. See also Section 20-1302A. A non-conforming sign that is permanently affixed to the ground or to a building may continue to be used, except that the non-conforming sign:

1. Shall not be replaced, except in conformity with the provisions of this ordinance;

2. Shall not be enlarged, altered or rebuilt except in conformance with this ordinance, but it may be repaired to the extent necessary to maintain it in a safe and sanitary condition; and

B. Damage to Non-conforming Sign

1. Any non-conforming sign shall not be rebuilt, altered or repaired after damage exceeding 50% of its replacement cost at the time of destruction. The owner of such sign must apply for a new sign permit in accordance with the permitting procedures in order to erect or construct a conforming replacement sign.

2. Any non-conforming sign may be rebuilt or repaired after damage not exceeding 50% of its replacement cost, provided that the non-conformity is not increased in any way.

§20-1311 Definitions and Abbreviations

1. GENERAL

For the purpose of this article, certain terms, phrases, words and their derivatives shall be construed as specified in either this ordinance or as specified in the land development code. Where terms are not defined, they shall have their ordinary accepted meanings within the content with which they are used.

2. **Abandoned sign:** Any sign which identifies or advertises a business, lessee, service, owner, product, or activity, which is no longer available at the indicated location or no longer available on the premises or for which no legal owner can be found.

3. **Ancillary off-premise sign:** The off-premise advertising portion of an on-premise sign.

4. **Awning:** A shelter supported by the exterior wall of a building and projecting more than 12 inches from the wall over a window and/or doorway or building façade.

5. **Awning sign:** A sign painted on, printed on or attached flat against the surface of the awning.

6. **Beacon light:** Any light which serves as a signal or summons, whether flashing or steady and shining in a horizontal direction.

7. **Banner sign:** A temporary sign made of cloth, canvas, fabric or other light weight, non-rigid materials with no enclosing framework. No banner sign shall flap or move with the wind.

8. **Building code:** The building code adopted by this jurisdiction. See Fargo Municipal Code Article 21-01.

9. **Building façade area:** The area of the first floor elevation of the primary structure or building unit, as determined by multiplying (a) the lesser of the height of the front elevation of the first floor or twenty feet by (b) the width of the façade.

10. **Building front:** An exterior wall of a building facing a front line of a parcel on one exterior wall containing the primary entrance to the building.

11. **Building Official:** The officer or other designated authority charged with the administration and enforcement of this ordinance or his duly authorized representative.

12. **Building wrap:** To "wrap" or cover a building or portion of a building with perforated vinyl prints or full color digital banners or a combination thereof.

13. **Building unit:** One tenant space in a multi-tenant structure.

14. **Canopy, building:**A rigid, multi-sided structure covered with fabric, metal or other material and supported by a building at one or more points and by columns or posts at the other points.
15. **Canopy, free-standing:**A rigid multi-sided structure covered with fabric, metal or other material and supported solely by columns or posts.
16. **Canopy sign:**A sign painted on, printed on or attached flat against the surface of the canopy.
17. **Changeable copy sign:** A sign or portion thereof with characters, letters or illustrations that can be changed or rearranged manually without altering the face of the sign. Reader boards and marquee signs are considered "changeable copy" signs.
18. **Combination sign:** Any sign incorporating any combination of the features of pole, projecting and roof signs.
19. **Commercial message:**Speech or graphics advertising a business, provision, commodity, service, or entertainment.
20. **Commercial sign. A sign containing speech or graphics advertising a business, profession, commodity, service or entertainment.**
21. Construction sign: A temporary sign identifying an architect, engineer, contractor, subcontractor, and/or materials supplier participating in construction on the property on which the sign is located.
22. **Copy:** The wording or message on a sign surface in either permanent of removable form.
23. **Courtesy bench sign:** A sign painted or affixed to a bench or seating area at or along bus routes.
24. **Curb line:** The line at the face of the curb nearest to the street or roadway. In the absence of a curb, the curb line shall be established by the City Engineer. (see definition for legal setback line)
25. **Digital billboard:**An off-premise sign capable of displaying multiple images in succession that can be electronically or mechanically changed by remote or automatic means.
26. **Direction sign:** Any on-premise sign giving directions, instruction, or facility information, e. g., parking or exit and entrance signs, and which may contain the name and/or logo of an establishment but no advertising copy.
27. **Directory sign:**A sign, which lists the names of the occupants of a multiple occupancy building or site.
28. **Display surface:** The area made available by the sign structure for the purpose of displaying the advertising message.
29. **Electronic messaging center:** An on-premise sign capable of displaying words, symbols, figures or images that can be electronically or mechanically changed by remote or automatic means.
30. **Electric sign:** Any sign containing electrical wiring, but not including signs illuminated by an exterior light source.
31. **Fin sign:** A sign which is supported wholly by a one-story building of an open-air business or by poles placed in the ground or partly by such a pole or poles and partly by a building or structure.

32. **Flashing:** A pattern of changing light illumination where at least a portion of the sign illumination alternates suddenly between fully illuminated and fully non-illuminated.
33. **Freestanding sign:** A sign that is set firmly in or upon the ground surface and is not attached to any building or structure.
34. **Glare:**The effect produced by a light source within the visual field that is sufficiently brighter than the level to which the eyes are adapted, to cause annoyance, discomfort of loss of visual performance and ability.
35. **Height (of a sign):** The vertical distance measured from the highest point of the sign, including supports, framing and decorative embellishments, to the grade of the adjacent street or the surface grade beneath the sign, whichever is less.
36. **High impact sign:** A sign that contains a mobile electronic message center, automatically changing sign faces, vehicles or other device of significant signage, or other hi-impact business promotion mechanisms.
37. **Home occupation sign:** Any unlighted sign not over one square foot in area attached flat against the dwelling and displaying only the occupants name, address or occupation, or any combination thereof.
38. **Iconic sign:**Any proposed sign that does not meet the dimensional or other standards of the sign code, but, through design and artistic expression unrelated to its message, is culturally significant to our community, and is expected to serve a placemaking function either upon completion of with the passage of time.
39. **Identification sign:** Any sign the copy for which does not include more than the name, address and phone number of an apartment building, business, institution or person and the activity of occupation being identified. (Does not include home occupation)
40. **Informational sign:** Any sign that meets the definition of a direction sign.
41. **Illegal sign:** Any sign or advertising structure erected without a permit required by the sign code, or in violation of any of the limitations, prohibitions or requirements of the sign code.
42. **Legal setback line:** A line established by ordinance beyond which a building may not be built. A legal setback line may be a property line.
43. **Location:** Any lot or parcel of land with or without a building thereon.
44. **Lot:** The entire parcel of land occupied or intended to be occupied by a principal building and its accessory buildings, or by a group such as a dwelling group or automobile court and accessory buildings, including the yards, setbacks and open spaces required by this Land Development Code and other applicable law. When a lot is used together with 1 or more contiguous lots for a single use or unified development, all of the lots so used, including any lots used for off-street parking, shall be considered a single lot.
45. **Maintained in good condition:** A sign condition in which the appearance and structural stability of the sign and its supporting system have been kept in a condition comparable to that of the sign when it was first installed. In no case may the sign or its supporting structure be allowed to become deformed in any manner which will affect its legibility or its ability to withstand the required wing design loads on the sign face or its supporting structure.

46. **Marquee:** A permanent roofed structure attached to and supported by the building and projecting over public right-of-way.
47. **Marquee sign:**A sign that is painted on, printed on or attached flat against the surface of a marquee.
48. **Monument style sign:** A freestanding sign with a base width of at least 80% of the width of the sign cabinet or sign face.
49. **Multi-tenant sign:** A sign that advertises two or more businesses on separate parcels, which utilize common off-street parking, shared access or both.
50. **Nonstructural trim:** The molding, battens, caps, nailing strips, latticing, cutouts or letters and walkways which are attached to the sign structure.
51. **Obsolete sign:** A sign that meets the definition of an abandoned sign.
52. **Off-premise sign:** A sign which directs attention to a business, profession, product, service, activity or entertainment not conducted, sold or offered on the premises upon which the sign is located. An ancillary off-premise sign shall not be considered an off- premise sign as long as it remains accessory and incidental (less than 10 % of the advertising) to the operations of an on-premise advertising sign.
53. **On-premise sign:** A sign directing attention to a business, profession, product, service, or activity conducted, sold or offered on the same premises where the sign is located, or a sign that is otherwise defined as an on-premise sign by this article.
54. **Parcel:** A contiguous area of land described in a single description or one of a number of lots on a plat, capable of being separately conveyed.
55. **Permanent foundation:** A system of anchorage against uplift and/or displacement of a sign as a result of the application of maximum design wind load from any direction upon a sign and its supporting structure. A permanent foundation must include a concrete foundation system including concrete of a minimum 28 day compressive strength of 2,500 psi and not less than 3/8 inch anchor bolts penetrating at least seven inches into the concrete foundation system. Minimum depth of concrete below finished grade shall be 12 inches.
56. **Pole or pylon sign:** A sign that is mounted a freestanding pole or pylon placed in the ground.
57. **Portable display surface:** A display surface temporarily fixed to a standardized advertising structure which is regularly moved from structure to structure at periodic intervals and is intended for special events.
58. **Portable sign:** Any sign which is constructed so as to be movable, either by skids, wheels, truck or other conveyance; any sign which does not have a permanent foundation or is otherwise permanently fastened to the ground and/or which is not wired for electricity in accordance with the sign code. When on a trailer, the removal of the wheels or undercarriage does not place the sign in another category, neither does the anchoring of the sign by means of concrete blocks, sandbags, or other types of temporary anchors. Portable Signs and High Impact Signs are mutually exclusive.
59. **Premise:** A lot, plot or parcel of land, together with the building and structures thereon.

60. **Projecting sign:** A sign other than a wall sign, which extends more than 12 inches from and is supported by a wall of a building or structure.
61. **Projection:** The distance by which a sign extends beyond the building line.
62. **Reader board:** A sign that meets the definition of a changeable copy sign.
63. **Real estate sign:** Any sign advertising the real estate upon which the sign is located as being for sale, sold, or lease.
64. **Roof sign:** A sign erected upon or above a roof or parapet of a building or structure.
65. **Sign:** Any medium, including its structure and component parts, which is used or intended to be used to attract attention to the subject matter. Artwork, decorations, and cemetery markers do not constitute signs.
66. **Sign permit:** A written permit granted by the Building Official for the erection, construction, enlargement, relocation or conversion of any on-premises, off-premises, portable or temporary sign for which a permit is required by the sign code.
67. **Snipe sign:** A sign made of any material when such sign is tacked, nailed, posted, pasted, glued, or otherwise attached to trees, poles, stakes, fences, or other objects, and the advertising matter appearing thereon is not applicable to the use of the premise upon which such sign is located.
68. **Sign structure:** Any structure which supports or is capable of supporting any sign as defined in the sign code. A sign structure may be a single pole and may or may not be an integral part of the building.
69. **Sponsorship sign:**An accessory portion of an on-premise sign which singularly denotes the sponsorship of a business or entity that purchased or funded the purchase of the sign.
70. **Stacked sign:** An off-premise sign or digital billboard containing two or more billboards grouped vertically regardless of supporting systems.
71. **Static sign:** A sign designed to have a single-fixed or permanent message.
72. **Street frontage:** The length of a parcel's property line that runs parallel to and abuts a public right-of-way (other than an alley) to which the parcel borders.
73. **Structure:** Anything constructed or erected having location on or under the ground or attached to something having location on or under the ground.
74. **Subdivision development sign:** A sign advertising a subdivision containing a minimum of 10 lots.
75. **Temporary sign:** Any sign, banner, pendant, valance or advertising display constructed of cloth, canvas, light fabric, cardboard, wallboard or other light materials, with or without frames, intended to be displayed for a limited period of time only.
76. **Wall sign:** Any sign attached to or erected against the wall of a building or structure, with the exposed face of the sign in a plane parallel to the plane of said wall.
77. **Width (of a sign):**The horizontal distance measured at the widest point of the sign, including supports, framing and decorative embellishments.
78. **Window sign:**A sign that is painted directly on a window or affixed to the inside or outside of a window.

Source: 4772 (2010), 4784 (2011), 4798 (2011), 4805 (2012), 4810 (2012), 4819 (2012).

CHAPTER 21

INTERNATIONAL BUILDING CODE

Article

21-01 International Building Code--Adoption--Modifications, §§ 21-0101 to 21-0102.
21-02 Light and Ventilation of Buildings, Omitted.
21-03 Safety Regulations for Moving and Construction of Buildings, § 21-0301.
21-04 Dangerous Buildings, §§ 21-0401 to 21-0412.
21-05 Television Masts, Towers, and Antennas, §§ 21-0501 to 21-0505.
21-06 Flood Plain Management, §§ 21-0601 to 21-0605.
21-07 Wind Energy Conversion Systems, §§ 21-0701 to 21-0710.

ARTICLE 21-01

INTERNATIONAL BUILDING CODE--ADOPTION--MODIFICATIONS*

Section

21-0101 International Building Code adopted.
21-0102 Modification of International Building Code.

21-0101. International Building Code adopted.--The erection, construction, enlargement, alteration, repair, moving, removal, demolition, conversion, occupancy, equipment, use, height, area, and maintenance of buildings or structures in the city of Fargo, North Dakota, shall meet with the provisions of the rules and regulations of the 2024 Edition of the International Building Code of the International Code Council as the same are now established in said code, a copy of which is on file in the office of the city auditor for the city of Fargo, with the exception of the sections hereinafter set forth affecting local conditions in the city of Fargo, which sections shall be substituted for and in lieu of like sections or paragraphs in said International Building code; and the board of city commissioners of said city of Fargo, by this section hereby approves and adopts such rules and regulations, as so modified, for use and application in the city of Fargo, North Dakota, and within the extra-territorial zoning jurisdiction of the city.

Source: 5347 (2022), 5486 (2025).

21-0102. Modification of International Building Code.--The International Building Code as adopted in § 21-0101 is hereby changed and amended as follows:

Section 101.1 is hereby amended to read as follows:

101.1 Title. These regulations shall be known as the Building Code of the City of Fargo, hereinafter referred to as "this code."

***Editor's note—**Ord. No. 5347, §§ 1, 2, adopted May 31, 2022, repealed the former Art. 21-01, §§ 21-0101, 21-0102, and enacted a new Art. 21-01 as set out herein. The former article pertained to similar subject matter and derived from Ord. Nos. 2450 (1989), 2616 (1992), 2757 (1995), 2867 (1998), 4183 (2001), 4293 (2003), 4304 (2003), 4406 (2004), 4428 (2004), 4595 (2007), 4745 (2010), 4876 (2013), 5050 (2016), and 5215 (2019).

Section 101.4.3 is hereby amended to read as follows:

> **101.4.3 Plumbing.** The provisions of the North Dakota State Plumbing Code shall apply to the installation, alteration, repair and replacement of plumbing systems, including equipment, appliances, fixtures, fittings and appurtenances, and where connected to a water or sewage system and all aspects of a medical gas system. The provisions of the North Dakota State Plumbing Code shall apply to private sewage disposal systems.

Section 103.1 is hereby amended to read as follows:

> **103.1 Creation of enforcement agency.** The Inspections Department is hereby created and the official in charge thereof shall be known as the building official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

Section 104.8.1 is hereby amended to read as follows:

> **104.8.1 Legal Defense.** Any suit or criminal complaint instituted against an officer or employee because of an act or omission performed by that officer or employee in the lawful discharge of duties and under the provisions of this code or other laws and ordinances implemented through the enforcement of this code shall be afforded all the protection provided by the city's insurance pool and immunities and defenses provided by other applicable state and federal laws and shall be defended by legal representatives of the jurisdiction until the final termination of the proceedings. The building official or any subordinate shall not be liable for costs in any action, suit or proceeding that is instituted in pursuance of the provisions of this code. This code shall not be construed to relieve from or lessen the responsibility of any person owning, operating or controlling any building or structure for any damages to persons or property caused by defects, nor shall the code enforcement agency or the city be held as assuming any such liability by reason of the inspection authorized by this code or any permits or certificates issued under this code.

Section 105.2 is hereby amended to read as follows:

> **105.2 Work exempt from permit.** Exemptions from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of this jurisdiction. Permits shall not be required for the following:
>
> **Building:**
>
> * * * *
>
> 2. Fences not over 8.5 feet high.
>
> * * * *

6. Sidewalks and driveways.

* * * *

11. Swings and other playground equipment.

12. Window awnings.

* * * *

14. Reroofing.

Section 107.2.6.1 is hereby deleted in its entirety.

Section 107.3.1 is hereby amended to read as follows:

107.3.1 Approval of construction documents. When the building official issues a permit, the construction documents shall be approved, in writing or by stamp. One set of construction documents so reviewed shall be retained by the building official.

Section 109.2 is hereby amended to read as follows:

109.2 Schedule of permit fees. Where a permit is required, a fee for each permit and plan review shall be paid as required, in accordance with the schedule as established by the Board of City Commissioners. The plan review fees specified in this subsection are separate from, and in addition to, permit fees. When submittal documents are incomplete or changed so as to require additional plan review or when the project involves deferred submittal items as defined in Section 107.3.4.1, an additional plan review fee shall be charged in an amount not to exceed 10% of the building permit fee established in Section 109.2.

Section 305.2 is hereby amended to read as follows:

305.2 Group E, day care facilities. This group includes buildings and structures or portions thereof occupied by more than twelve children older than 2 ½ years of age who receive educational, supervision or personal care services for fewer than 24 hours per day.

Section 305.2.2 is hereby amended to read as follows:

305.2.2 Twelve or fewer children. A facility having twelve or fewer children receiving such day care shall be classified as part of the primary occupancy.

Section 305.2.3 is hereby amended to read as follows:

305.2.3 Twelve or fewer children in a dwelling unit. A facility such as the above within a dwelling unit and having twelve or fewer children receiving such day care shall be classified as a Group R-3 occupancy or shall comply with the International Residential Code.

Section 308.5 is hereby amended to read in part as follows:

308.5 Institutional Group I-4 day care facilities. Institutional Group I-4 occupancy shall include buildings and structures occupied by more than twelve persons of any age who receive custodial care for fewer than 24 hours per day by persons other than parents or guardians; relatives by blood, marriage or adoption; and in a place other than the home of the person cared for. This group shall include, but not be limited to, the following:

Adult day care

Child day care

Section 308.5.1 is hereby amended to read in part as follows:

308.5.1 Classification as a Group E. A child day care facility that provides care for more than twelve but not more than 100 children 2 ½ years or less of age, where the rooms in which the children are cared for are located on a level of exit discharge serving such rooms and each of these child care rooms has an exit door directly to the exterior, shall be classified as Group E.

Section 308.5.3 is hereby amended to read as follows:

308.5.3 Twelve or fewer persons receiving care. A facility having twelve or fewer persons receiving custodial care shall be classified as part of the primary occupancy.

Section 308.5.4 is hereby amended to read as follows:

308.5.4 Twelve or fewer persons receiving care in a dwelling unit. A facility such as the above within a dwelling unit having twelve or fewer persons receiving custodial care shall be classified as a Group R-3 occupancy or shall comply with the International Residential Code.

Section 406.3.2.1 is hereby amended to read as follows:

406.3.2.1 Dwelling unit separation. The private garage shall be separated from the dwelling unit and its attic area by means of gypsum board, not less than 1/2 inch (12.7 mm) in thickness, applied to the garage side. Garages beneath habitable rooms shall be separated from all habitable rooms above by not less than a 5/8-inch (15.9 mm) Type X gypsum board or equivalent and 1/2-inch (12.7 mm) gypsum board applied to structures supporting the separation from habitable rooms above the garage. Door openings between a private garage and the dwelling unit shall be equipped with either solid wood doors or solid or honeycomb core steel doors not less than 13/8 inches (34.9 mm) in thickness, or doors in compliance with Section 716.2.2.1 with a fire protection rating of not less than 20 minutes.

Section 903.3.1 is hereby amended to read as follows:

903.3.1 Standards. Automatic sprinkler systems shall be designed with a 5 psi safety margin and installed in accordance with Section 903.3.1.1 unless otherwise permitted by Sections 903.3.1.2 and 903.3.1.3 and ither chapters of this code, as applicable.

Section 903.3.1.1.1 is hereby amended to read as follows:

903.3.1.1.1 Exempt locations.

* * * *

6. Elevator machine room and machinery spaces. Where sprinklers are not installed in elevator machine rooms, shunt trip required in accordance with IBC 3005.5 shall not be installed.

Section 903.3.5 is hereby amended to read as follows:

903.3.5 Water supplies. Water supplies for automatic sprinkler systems shall comply with this section and the standards referenced in Section 903.3.1. The potable water supply shall be protected against backflow in accordance with the requirements of this section and the International Plumbing Code. For connections to public waterworks systems, the water supply test used for design of fire protection systems shall be adjusted to account for seasonal and daily pressure fluctuations based on information from the water supply authority and as approved by the fire code official. Underground water supply piping shall be constructed of a material allowed by Fargo Municipal Code Chapter 16 and Chapter 22 and shall be allowed to extend into the building through the slab or wall not more than 24 inches.

Section 905.1 is hereby amended to add an exception to read as follows:

Exception: The installation of fire hose on standpipes may be omitted when approved by the local fire code official. Approved standpipe hose valves and connections shall be provided where required.

Section 907.2.11.1 is hereby amended to read as follows:

907.2.11.1 Group R-1. Single- or multiple-station smoke alarms shall be installed in all of the following locations in Group R-1:

* * * *

4. In sleeping units where the ceiling height of a room open to the hallway serving the sleeping rooms exceeds that of the hallway by 24 inches or more, smoke alarms shall be installed in the hallway and in the adjacent room.

Section 907.2.11.2 is hereby amended to read as follows:

907.2.11.2 Groups R-2, R-3, R-4 and I-1. Single- or multiple station smoke alarms shall be installed and maintained in Groups R-2, R-3, R-4 and I-1 regardless of occupant load at all of the following locations:

* * * *

4. In dwelling units where the ceiling height of a room open to the hallway serving the sleeping room exceeds that of the hallway by 24 inches or more, smoke alarms shall be installed in the hallway and in the adjacent room.

Section 1003.3.1 is hereby amended as follows:

1003.3.1 Headroom. * * * *

An approved barrier shall be provided where the vertical clearance above a circulation path is less than 80 inches (2032 mm) high above the finished floor. A portion of such a barrier shall be located 27 inches (686 mm) maximum above the finished floor.

Section 1009.8.1 is hereby amended to read as follows:

1009.8.1 System requirements. Two-way communication systems shall provide communication between each required location and the fire command center or a central control point location approved by the fire department. Where the central control point is not a constantly attended location, the two-way communication system shall have timed, automatic telephone dial-out capability that provides two-way communication with an approved supervising station. The two-way communication system shall include both audible and visible signals.

Section 1011.1 exception is hereby amended to read as follows:

Exceptions:

1. Within rooms or spaces used for assembly purposes, stepped aisles shall comply with Section 1030.

2. In B, F, M, S or U occupancies, a stairway that is private and not open to the public that serves an area of 750 square feet or less, shall have a maximum riser height of 8 inches, a minimum thread depth of 9 inches, a minimum width of 36 inches, and shall have at least one handrail that terminates at the top and bottom riser. All other requirements of section 1014 shall apply.

Section 1011.5.2 exceptions are hereby amended to read as follows:

Exceptions:

* * * *

3. In Group R-3 occupancies; within dwelling units in Group R-2 occupancies not required by Chapter 11 to be Accessible or Type A dwelling or sleeping units; and in Group U occupancies that are accessory to a Group R-3 occupancy or accessory to individual dwelling units in Group R-2 occupancies; the maximum riser height shall be 8 inches (203.2 mm); the minimum tread depth shall be 9 inches (228.6 mm); the minimum winder tread depth at the walkline shall be 10 inches (254 mm); and the minimum winder tread depth shall be 6 inches (152mm). A nosing projection not less than ¾ inch (19.1 mm) but not more than 1 ¼ inches (32 mm) shall be provided on stairways with solid risers where the tread depth is less than 11 inches (279 mm).

* * * *

6. Stairways used only to attend equipment or private stairways serving an occupant load of 10 or fewer persons and which are not accessible to the public are permitted to have a maximum 8-inch riser height and minimum 9 tread depth.

Section 1015.2 is hereby amended to read as follows:

1015.2 Where required. Guards shall be located along open-sided walking surfaces, including mezzanines, equipment platforms, aisles, stairs, ramps and landings, that are located more than 30 inches (762 mm) above the floor or grade below or if within 36 inches (914 mm) horizontally to the edge of the open side, the vertical measurement to the floor or grade below is greater than 48 inches. Guards shall be adequate in strength and attachment in accordance with section 1607.9.

Section 1104.4 exceptions are hereby amended to read as follows:

Exceptions:

1. An accessible route is not required to stories, mezzanines and occupied roofs that have an area of not more than 3,000 square feet (278.7 m^2), or are in a building 2 stories or less above grade plane and are located above or below accessible levels. This exception shall not apply to:

* * * *

Section 1202.1 is hereby amended to read as follows:

1202.1 General. Buildings shall be provided with natural ventilation in accordance with Section 1202.5, or mechanical ventilation in accordance with the International Mechanical Code.

Section 1206 is hereby deleted in its entirety.

Section 1403.6 is hereby deleted in its entirety.

Section 1403.7 is hereby deleted in its entirety.

Section 1601.1 is hereby amended to read as follows:

1601.1 Scope. The provisions of this chapter shall govern the structural design of buildings, structures and portions thereof.

It shall not be the responsibility of the building official to determine engineering requirements of this code. Exclusive of the conventional light-frame wood construction provisions referenced in Section 2308, the method to resist loads as referenced in this chapter is the responsibility of a structural engineer or other qualified design professional.

Section 1610.1 exception is hereby amended to read as follows:

Exception: Foundation walls extending not more than 9 feet below grade and laterally supported at the top by flexible diaphragms shall be permitted to be designed for active pressure.

Section 1804.4 is hereby deleted in its entirety and the following text enacted:

Section 1804.4 Site Grading. Surface drainage shall be diverted to a storm sewer conveyance or other approved point of collection. Lots shall be graded to drain surface water away from foundation walls.

The procedure used to establish the final ground level adjacent to the foundation shall account for additional settlement of the backfill.

Section 1809.5 exception is hereby amended to read as follows:

Exception: Free-standing unheated buildings used as Group U or S occupancies for the storage of private or pleasure-type motor vehicles constructed in accordance with Sections 406.1 and 406.3 meeting all of the following conditions shall not be required to be protected:

1. Assigned to Risk Category I.

2. Eave height of 20 feet or less.

3. Building is not normally occupied.

Section 2901.1 is hereby amended to read as follows:

Section 2901.1 Scope. The provisions of this chapter and the North Dakota State Plumbing Code shall govern the design, construction, erection and installation of plumbing components, appliances, equipment and systems used in buildings and structures covered by this code. Toilet and bathing rooms shall be constructed in accordance with Section 1210. Private sewage disposal systems shall conform to the North Dakota State Plumbing Code. The International Fire Code, the International Property Maintenance Code and the North Dakota State Plumbing Code shall govern

the use and maintenance of plumbing components, appliances, equipment and systems. The International Existing Building Code and the North Dakota State Plumbing Code shall govern the alteration, repair, relocation, replacement and addition of plumbing components, appliances, equipment and systems.

Section 2902.3 is hereby amended to add the following exception:

Section 2902.3 Employee and public toilet facilities. * * * *

Exception: Public toilet facilities shall not be required for:

* * * *

3. Unheated self-storage facilities that are not staffed.
Source: 5347 (2022), 5375 (2022), 5486 (2025).

ARTICLE 21-02

LIGHT AND VENTILATION OF BUILDINGS

Note: Article 2 of chapter 21 of the 1952 Revised Ordinances (sections 21-0201 to 21-0210) is repealed by omission from the 1965 Revised Ordinances.

This former article contained definitions, restrictions, and regulations relating to provision for light and ventilation and other requirements in the construction of buildings, and the subject matter of the article is covered in the Uniform Building Code adopted under § 21-0101.

ARTICLE 21-03

SAFETY REGULATIONS FOR MOVING AND CONSTRUCTION OF BUILDINGS

Section

21-0301 Regulating the moving and construction of buildings.

21-0301. Regulating the moving and construction of buildings.--Any person, firm, or corporation engaged in any moving or building operations or making any excavations for any purposes, whatever, upon or adjoining any public street, alley, or sidewalk, requiring the use of any portion of any street, alley, or sidewalk, shall cause a red light to be placed in a conspicuous place in front of such obstruction, from sunset until sunrise, each night during the time such obstruction remains, to warn passersby of danger, in order to prevent accidents.

A sidewalk or passageway at least three feet wide shall be kept in front of any building during the process of its construction, which temporary sidewalk shall extend from the side of the permanent sidewalk in front of each lot adjoining the sides of the lot on which such building is being erected and shall be laid around the space to be used for the materials for

building said buildings, but shall be laid wholly within that part of the street which is so permitted to be used for such building material, which temporary sidewalk shall, at all times, be kept clear for the passage of persons over the same, and no person shall leave any materials, tools, implements, or machinery thereon. Said temporary sidewalk shall be constructed of two-inch planks laid lengthwise on good and sufficient sleepers laid three feet apart.

The respective ends of said temporary sidewalk shall be laid even with the sidewalk to which it is attached, and there shall be a fence four feet high built from the line of the curb to the street line on both sides of any place where the sidewalk shall be removed or obstructed by such building operations.

No person shall occupy any street or the sidewalks for building purposes without first having completed such sidewalk and fence; and during the time of such occupation of said street for such building operation, such person or persons shall maintain and keep in repair said temporary sidewalk and fence. Such temporary sidewalk may be dispensed with on paved streets, but the approaches to the permanent sidewalk adjoining such building operation must be put down in all cases.

The gutter or waterway of any street, avenue, or alley shall not at any time be obstructed by any building material so as to prevent the free passage of water in and along the same.

No person, firm, or corporation owning, or engaged in the moving of, and dwelling house shall move or attempt to move such dwelling house to any location in the city of Fargo unless adequate advance arrangements have been made to put promptly such dwelling house in proper condition for use and occupancy and in full conformity with all of the ordinances of the city within a reasonable time after moving operations have been completed; and in no event shall a reasonable time be considered to be more than 60 days from the date of moving.

Source: 1952 Rev. Ord. 21-0301.

ARTICLE 21-04

DANGEROUS BUILDINGS

Section

21-0401 Definitions.
21-0402 Standards for repair, vacation, or demolition.
21-0403 Dangerous buildings--Nuisances.
21-0404 Duties of building inspector.
21-0405 Duties of board of city commissioners.
21-0406 Violations--Penalty for disregarding notices or orders.
21-0407 Duties of the city attorney.
21-0408 Owner absent from the city.
21-0409 Duties of fire department.
21-0410 Duties of the police department.
21-0411 Duties of the health department.
21-0412 Appeal.

21-0401. Definitions.--All buildings or structures which have any or all of the following defects shall be deemed "dangerous buildings":

1. Those whose interior walls or other vertical structural members lean, list, or buckle to such an extent that a plumb line passing through the center of gravity falls outside of the middle third of its base.

2. Those which, exclusive of the foundation, show 33% or more of damage or deterioration of the supporting members or members, or 50% of damage or deterioration of the nonsupporting enclosing or outside walls or covering.

3. Those which have improperly distributed loads upon the floors or roofs or in which the same are overloaded, or which have insufficient strength to be reasonably safe for the purpose used.

4. Those which have been damaged by fire, wind, or other causes so as to have become dangerous to life, safety, morals, or the general health and welfare of the occupants or the people of the city.

5. Those which have become, or are, so dilapidated, decayed, unsafe or unsanitary or which so utterly fail to provide the amenities essential to decent living that they are unfit for human habitation or are likely to cause or aggravate sickness or disease, so as to work injury to the health, morals, safety, or general welfare of those living therein.

6. Those having light, air, and sanitation facilities which are inadequate to protect the health, morals, safety, or general welfare of human beings who live or may live therein.

7. Those having inadequate facilities for egress in case of fire or panic or those having insufficient stairways, elevators, fire escapes, or other means of communication.

8. Those which have parts thereof which are so attached that they may fall and injure members of the public or property.

9. Those which because of their condition are unsafe, unsanitary, or dangerous to the health, morals, safety or general welfare of the people of this city.

10. Those buildings existing in violation of any provision of the Building Code, zoning ordinances, any provision of the Fire Prevention Code or other ordinances of this city.

Source: 1952 Rev. Ord. 21-0401.

21-0402. Standards for repair, vacation, or demolition.--The following standards shall be followed in substance by the board of city commissioners in ordering repair, vacation, or demolition:

A. If the "dangerous building" can reasonably be repaired so that it will no longer exist in violation of the terms of this article, it shall be ordered repaired.

B. If the "dangerous building" is in such condition as to make it dangerous to the health, morals, safety, or general welfare of its occupants, it shall be ordered to be vacated.

C. In any case where a "dangerous building" is 50% damaged, decayed, or deteriorated from its original value or structure, it shall be demolished, and in all cases where a building cannot be repaired so that it will no longer be in violation of the terms of this article, it shall be demolished. In all cases where a "dangerous building" is a fire hazard existing or erected in violation of the terms of this article or any ordinance of this city or statute of the state of North Dakota, it shall be demolished.

Source: 1952 Rev. Ord. 21-0402.

21-0403. Dangerous buildings--Nuisances.--All "dangerous buildings" within the terms of § 21-0401 are hereby declared to be public nuisances and shall be repaired, vacated, or demolished as hereinbefore and hereinafter provided.

Source: 1952 Rev. Ord. 21-0403.

21-0404. Duties of building inspector.--The building inspector shall:

A. Inspect or cause to be inspected semiannually, all public buildings, schools, halls, churches, theaters, hotels, tenements, commercial, manufacturing, or loft buildings for the purpose of determining whether any conditions exist which render any of such places a "dangerous building" within the terms of § 21-0401 of this article.

B. Inspect any building, wall, or structure about which complaints are filed by any person to the effect that a building, wall, or structure is or may be existing in violation of this article.

C. Inspect any building, wall, or structure reported (as hereinafter provided for) by the fire or police departments of this city as probably existing in violation of the terms of this article.

D. Notify in writing the owner, occupant, lessee, mortgagee, and all other persons having an interest in said building, as shown by the records in the office of the register of deeds of the county of Cass, of any building found by him to be a "dangerous building" within the standards set forth in § 21-0401 of this article, that: (1) the owner must vacate, or repair, or demolish said building in accordance with the terms of the notice and this article; (2) the owner or occupant must vacate said building or may have it repaired in accordance with the notice and remain in possession. Provided, that any person notified under this subsection to repair, vacate, or demolish any building shall be given such reasonable time, not exceeding 30 days, as may be necessary to do, or have done, the work or act required by the notice provided for herein.

E. Set forth in the notice provided for in subsection (D) hereof a description of the building, or structure deemed unsafe, a statement of the particulars which make

the building or structure a "dangerous building" and an order requiring the same to be put in such condition as to comply with the terms of this ordinance within such length of time, not exceeding 30 days, as is reasonable.

F. Report to the board of city commissioners any noncompliance with the "notice" provided for in subsections (D) and (E) hereof.

G. Appear at all hearings conducted by the board of city commissioners and testify as to the condition of "dangerous buildings."

H. Place a notice on all "dangerous buildings" reading as follows: "This building has been found to be a 'dangerous building' by the building inspector. This notice is to remain on this building until it is repaired, vacated, or demolished in accordance with the notice which has been given the owner, occupant, lessee, or mortgagee of this building and all other persons having an interest in said building as shown by the records of the register of deeds of the county of Cass. It is unlawful to remove this notice until such notice is complied with."

Source: 1952 Rev. Ord. 21-0404.

21-0405. Duties of board of city commissioners.--The board of city commissioners shall:

A. Upon receipt of a report of the building inspector as provided for in § 21-0404, subsection (F), give written notice to the owner, occupant, mortgagee, lessee and all other persons having an interest in said building as shown by the records of the register of deeds of the county of Cass to appear before it on the date specified in the notice to show cause why the building or structure reported to be a "dangerous building" should not be repaired, vacated, or demolished in accordance with the statement of particulars set forth in the building inspector(s notice provided for herein in § 21-0404, subsection (E).

B. Hold a hearing and hear such testimony as the building inspector or the owner, occupant, mortgagee, lessee or any other person having an interest in said building as shown by the records of the register of deeds of the county of Cass shall offer relative to the "dangerous building."

C. Make written findings of fact from the testimony offered pursuant to subsection (B) as to whether or not the building in question is a "dangerous building" within the terms of § 21-0401.

D. Issue an order based upon findings of fact made pursuant to subsection (C) hereof commanding the owner, occupant, mortgagee, lessee, and all other persons having an interest in said building as shown by the records of the register of deeds of the county of Cass to repair, vacate, or demolish any building found to be a "dangerous building" within the terms of this article and provided that any person so notified, except the owners, shall have the privilege of either vacating or repairing said "dangerous building."

E. If the owner, occupant, mortgagee, or lessee fails to comply with the order provided for in subsection (D) hereof, within 10 days, the board of city commissioners shall cause such building or structure to be repaired, vacated, or demolished as the facts may warrant, under the standards hereinbefore provided for in § 21-0402 of this article, and shall, with the assistance of the city attorney, cause the costs thereof to be assessed back against the property in the manner provided by law, or in the alternative, cause the costs of such repair, vacation, or demolition to be recovered in a suit at law against the owner or other proper party.

F. Report to the city attorney the names of all persons not complying with the order provided for in subsection (D) of this section.

Source: 1952 Rev. Ord. 21-0405.

21-0406. Violations--Penalty for disregarding notices or orders.--The owner of any "dangerous building" who shall fail to comply with any notice or order to repair, vacate, or demolish said building given by any person authorized by this article to give such notice or order shall be guilty of a misdemeanor and upon conviction thereof shall be fined not exceeding $100 for each offense and every day subsequent to such notice in which the said owner shall fail to comply with any notice or order as above stated shall be deemed a separate offense.

The occupant or lessee in possession who fails to comply with any notice to vacate and who fails to repair said building in accordance with any notice given as provided for in this article shall be guilty of a misdemeanor and upon conviction thereof shall be fined not exceeding $100 for each offense and every day subsequent to such notice in which the said owner shall fail to comply with any notice or order as above stated shall be deemed a separate offense.

Any person removing the notice provided for in § 21-0404, subsection (H) shall be guilty of a misdemeanor and upon conviction shall be fined not exceeding $100 for each offense.

Source: 1952 Rev. Ord. 21-0406.

21-0407. Duties of the city attorney.--The city attorney shall:

A. Prosecute all persons failing to comply with the terms of the notices provided for in § 21-0404, subsections (D) and (E) and the order provided for in § 21-0405, subsection (D).

B. Appear at all hearings held by the board of city commissioners in regard to "dangerous buildings."

C. Take such other legal action as is necessary to carry out the terms and provisions of this article.

Source: 1952 Rev. Ord. 21-0407.

21-0408. Owner absent from the city.--All notices or orders provided for herein shall be sent by certified mail to such owner, occupant, lessee or mortgagee, and all other persons

having an interest in said building, to the last known address of each, and a copy of such notice shall be posted in a conspicuous place on the "dangerous building" to which it relates. Such mailing and posting shall be deemed adequate service.

Source: 1952 Rev. Ord. 21-0408, 5121 (2017).

21-0409. Duties of fire department.--The employees of the fire department shall make a report in writing to the building inspector of all buildings or structures which are, may be, or are suspected to be "dangerous buildings" within the terms of this article. Such reports must be delivered to the building inspector within 24 hours of the discovery of such buildings by any employee of the fire department.

Source: 1952 Rev. Ord. 21-0409.

21-0410. Duties of the police department.--All employees of the police department shall make a report in writing to the building inspector of any buildings or structures which are, may be, or are suspected to be "dangerous buildings" within the terms of this article. Such reports must be delivered to the building inspector within 24 hours of the discovery of such building by any employee of the police department.

Source: 1952 Rev. Ord. 21-0410.

21-0411. Duties of the health department.--All employees of the health department shall make a report in writing to the building inspector about any buildings or structures which are, may be, or are suspected to be "dangerous buildings" and which, because of their condition, are untenable, unsanitary, or dangerous to the health, morals, safety, or general welfare of the occupants or the people of this city. Such reports must be delivered within 24 hours of the discovery of such buildings by any employee of the health department.

Source: 1952 Rev. Ord. 21-0411.

21-0412. Appeal.--The board of city commissioners shall serve upon the owner, occupant, mortgagee, lessee, and all other persons having an interest in any such building so ordered repaired, vacated, or demolished a copy of its order, such notice to be served upon such owner, occupant, mortgagee, or lessee within 10 days after the issuance of such order. Such owner, occupant, mortgagee or lessee shall thereafter have 30 days from the date of the service of such order upon him in which to appeal from such order to the district court of Cass County, North Dakota, or to take such other legal steps to enjoin the enforcement of such order as he may deem proper.

Any person desiring to appeal from any order issued by the board of city commissioners under and by virtue of this article shall file an undertaking in the sum of at least $500 to be approved by the city auditor and conditioned that the appellant will prosecute the appeal without delay and will pay all costs that may be adjudged against him in the district court. Such undertaking shall be payable to the city of Fargo.

Source: 1952 Rev. Ord. 21-0412.

ARTICLE 21-05

TELEVISION MASTS, TOWERS, AND ANTENNAS

Section

21-0501 Permit required.
21-0502 Application for permit.
21-0503 Technical requirements for masts, towers, or antennas.
21-0504 Removal of masts, towers, or antennas--Order of city engineer.
21-0505 Penalty.

21-0501. Permit required.--No person, firm, company, or corporation shall erect or install an outside television mast, tower, or antenna in the city of Fargo without having first obtained a permit therefor from the office of the city engineer.

Source: 1952 Rev. Ord. 21-0501, 903 (1953).

21-0502. Application for permit.--Any person, firm, company, or corporation desiring to erect or install a television mast, tower, or antenna over 10 feet high shall make written application to the city engineer for a permit therefor, setting forth and describing the mast, tower, and antenna to be erected, stating the height, the nature of the material of which it is to be constructed, and the manner in which it is to be attached to the building, and such application shall be accompanied by a fee of $1.

Source: 1952 Rev. Ord. 21-0502, 903 (1953).

21-0503. Technical requirements for masts, towers, or antennas.--All television masts, towers, or antennas in the city of Fargo shall meet the following requirements:

A. An Underwriters Laboratories approved lightning arrestor or its equivalent is required of all antenna lead-ins unless the lead-in is of the metal-shielded type, with the metal shield properly grounded.

B. Lead-in conductors attached to buildings shall be so installed that they cannot swing within two feet of conductors carrying 250 volts or less, or within 10 feet of conductors carrying more than 250 volts. The clearance between lead-in conductors and any conductor forming part of lightning-rod system shall be not less than six feet. That part of the lead-in that comes in contact with the building shall be supported at intervals of not more than 15 feet.

C. Conductive supporting poles, masts, or structures supporting antennas shall be permanently and effectively grounded with a minimum of No. 10 copper or No. 8 aluminum wire. Poles or masts which are themselves the sole antenna are, of course, exempt from this rule.

D. No television mast, pole, tower, or antenna shall be mounted or attached to a chimney.

E. Poles or masts over 12 feet in height must be guyed with three or more wires to one position. Masts or poles 20 feet to 30 feet must be guyed to a minimum of two positions with the uppermost guy wires to be within two feet of the top of the pole or tower. The angle of the guys must not be less than 30E degrees from the vertical mast and wire used shall be of the stranded, rustproof type. Anchors shall be of equal strength or stronger than the combined wires connected to them. All guys fastened to the ground shall be protected by a sufficient safety guard to a minimum of eight feet vertically from the ground.

F. All self-supporting towers, poles, or masts over 10 feet in height shall be designed and installed to withstand an actual wind velocity of 90 miles per hour.

G. Metal supporting poles, masts, towers, or other structures located on buildings provided with lightning protection must have an interconnection between the grounding conductors and the lightning surge conductors.

H. Plumbing vent stacks or natural gas piping shall not be used to ground antenna masts, poles, or towers; instead all grounding conductors shall be attached, preferably to a cold water pipe supplied by an underground water distribution system, with the water meter properly jumpered. Where not available, grounding conductors shall be attached to a standard driven ground rod six feet or longer. No pole, mast, tower, or structure used to support antenna shall be so located that in falling it might fall across a utility distribution line over 250 volts unless that mast, pole, tower, or structure has a double-strength guy in such a position so as to keep that pole, mast, tower, or structure from failing across such utility line.

I. All towers, masts, poles, or antenna attached to a building shall be noncombustible and corrosive resistant.

Source: 1952 Rev. Ord. 21-0503, 903 (1953).

21-0504. Removal of masts, towers, or antennas--Order of city engineer.--Any television mast, tower, pole, or antenna installed contrary to the provisions of this ordinance shall be taken down and removed upon the written order of the city engineer and the failure of the owner or occupant of the premises upon which said mast, tower, pole, or antenna is located to comply with any such order within five days of the receipt thereof shall constitute a violation of this ordinance.

Source: 1952 Rev. Ord. 21-0504, 903 (1953).

21-0505. Penalty.--Every person, firm, company, or corporation violating any of the provisions of this chapter shall upon conviction be punished by a fine not to exceed $100 or by imprisonment not to exceed 90 days, or both such fine and imprisonment, in the discretion of the court; the court to have power to suspend said sentence and to revoke the suspension thereof. Each day any person, firm, company, or corporation shall violate any of the provisions of this article shall constitute a separate offense.

Source: 1952 Rev. Ord. 21-0505, 903 (1953).

ARTICLE 21-06

FLOOD PLAIN MANAGEMENT

Section

21-0601 Definitions.
21-0601.1 Statutory authorization, findings of fact, purpose, and objectives.
21-0602 General provisions.
21-0603 Administration.
21-0604 Provisions for flood hazard reduction.
21-0605 Penalty.

21-0601. Definitions.--

1. "Area of jurisdiction" shall mean the area within the corporate limits of the city, the area which is served by the city of Fargo utilities, and any area in which the city has statutory planning and zoning authority.

2. "Area of special flood hazard" means the land in the floodplain within a community subject to a 1% or greater chance of flooding in any given year.

3. "Base flood" means the flood having a 1% chance of being equaled or exceeded in any given year.

4. "Base Flood Elevation" (BFE) means the height of the base flood or 100-year flood usually in feet, measured in the same datum (either NAVD88 or NGVD29) as the FIRM.

5. "Basement" means any area of the building having its floor subgrade (below ground) on all sides.

6. "Best Available Information" (BAI) means water elevation information from any source used to estimate or determine a base flood elevation (i.e. high water mark).

7. "Community" means any political subdivision that has the authority to zone, or any Indian tribe or authorized tribal organization, which has authority to adopt and enforce flood plain management regulations for the areas within its jurisdiction.

8. "Conveyance or hydraulic conveyance" means a geometric characteristic of a river or watercourse at a given point that determines the flow-carrying capacity at that point.

9. "Development" means any man-made change to improved or unimproved real estate, including but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations located within the area of special flood hazard.

10. "Elevation" shall mean height, above mean sea level, measured in feet.

11. "Existing Manufactured Home Park or Subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

12. Expansion to an Existing Manufactured Home Park or Subdivision" means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufacturing homes are to be affixed (including the installation of utilities, he construction of streets, and either final site grading or the pouring of concrete pads).

13. "FEMA" shall mean the Federal Emergency Management Agency.

14 "Flood" or "flooding" means a general and temporary condition of partial or complete inundation of normally dry land areas from:

a. The overflow of inland waters and/or

b. The unusual and rapid accumulation or runoff of surface waters from any source.

15. "FIRM" means the Flood Insurance Rate Map which is the official map on which FEMA has delineated both the areas of special flood hazard and the risk premium zones applicable to the community.

16. "Flood Insurance Study" means the official report provided by FEMA that includes flood profiles, the Flood Boundary - Floodway Map, and the water surface elevation of the base flood.

17. "Floodproofing" means any combination of structural and nonstructural additions, changes or adjustments to properties and structures which reduce or eliminate flood damage to lands, water and sanitary facilities, structures and contents of buildings.

18. "Floodproofing Code" means the revised Floodproofing Code of the City of Fargo, North Dakota, as prepared by Moore Engineering, Inc., and dated December 9, 1975, as clarified by the Floodproofing Construction Requirements, together with illustrative exhibits as adopted by the board of city commission.

19. "Floodway" means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than 0.75 feet.

20. "Highest adjacent grade" means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

21. "Lowest floor" means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood resistant enclosure, usable solely for parking of vehicles, building access or storage, in an area other than a basement area, is not considered a building's lowest floor, provided that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirements of this ordinance.

22. "Manufactured home" means a structure, transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. This term also includes park trailers, travel trailers and other similar vehicles placed on a site for greater than 180 consecutive days.

23. "Manufactured home park" or "subdivision" means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale and shall include mobile home parks as defined in § 25-2401 of the Fargo Municipal Code.

24. "New construction" means structures for which the start of construction occurred on or after the effective date of this ordinance.

25. "New Manufactured Home Park or Subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.

26. "Person" means any person, firm, partnership, association, corporation, limited liability company, agency, or any other private or governmental organization, which includes any agency of the United States, a state agency, or any political subdivision of the state.

27. "Reasonably safe from flooding" means base flood waters will not inundate the land or damage structures to be removed from the special flood hazard area, and that any subsurface waters related to the base flood will not damage existing or proposed buildings.

28. "Recreational vehicle" means a vehicle which is:

    (a) built on a single chassis:

    (b) 400 square feet or less when measured at the largest horizontal projection:

    (c) designed to be self-propelled or permanently towable by a light duty truck:

    (d) designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational camping, travel, or seasonal use; including, but not limited to;

    (e) travel trailers, trailers on wheels, park-model trailers, and other similar vehicles.

29. "Special Flood Hazard Area" (SFHA) means an area of land that would be inundated by a flood having a one percent chance of being equaled or exceeded in any given year.

30. "Start of construction" means the date the building permit was issued for any construction or substantial improvement, provided the actual start of construction, repair, reconstruction, placement, or other improvement was within 180 days of the permit date. The actual start means the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure.

31. "Structure" means a walled and roofed building or manufactured home that is principally above ground.

32. "Substantial improvement" means any single repair, combination of repairs, reconstruction, rehabilitation, addition, or other improvement of a structure taking place during a period of five consecutive years beginning in 2015, the cumulative cost of which equals or exceeds 50% of the market value of the structure either:

    a. Before the improvement or repair is started, or

    b. If the structure has been damaged and is being restored, before the damage occurred. For the purpose of this definition, substantial improve-

ment is considered to occur when the first alteration of any wall, ceiling, floor, or other structural part of the building commences, whether or not that alteration affects the external dimensions of the structure.

The term "substantial improvement" does not include:

a. Any project for improvement of a structure to comply with existing state or local health, sanitary, or safety code specifications which are solely necessary to assure living conditions, or

b. Any alteration of a structure listed on the National Register of Historic Places or a state or local inventory or register of historic places.

33. "Watercourse" means only the channel and banks of an identifiable watercourse, and not the adjoining floodplain areas. The flood carrying capacity of a watercourse refers to the flood carrying capacity of the channel, except in the case of alluvial fans, where a channel is not typically defined. The definition of watercourse in N.D.C.C. § 61-01-06 is not applicable in this ordinance.

34. "Variance" means a grant of relief from the requirements of this ordinance which permits construction in a manner that would otherwise be prohibited by this ordinance.

35. "Violation" means the failure of a structure or other development to be fully compliant with the community's flood plain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required by the community's floodplain management ordinance is presumed to be in violation until such time as that documentation is provided.

Source: 2325 (1987), 2939 (1998), 4956 (2014), 5247 (2020), 5494 (2025).

21-0601.1 Statutory authorization, findings of fact, purpose, and objectives.--

A. Statutory Authorization.
The Legislature of the State of North Dakota has in North Dakota Century Code, Chapters 40-47, 11-33 and 58-03 delegated responsibility to local governmental units to adopt regulations designed to promote the public health, safety, and general welfare of its citizenry. Therefore, the board of city commissioners of the city of Fargo hereby adopt such regulations.

B. Findings of Fact.

1. The flood hazard areas of City of Fargo are subject to periodic inundation which can endanger life, result in loss of property, create health and safety hazards, disrupt commerce and governmental services, cause extraordinary public expenditures for flood protection and relief, and impair the tax base, all of which adversely affect the public health, safety, and general welfare.

2. Flood losses caused by the cumulative effect of obstructions in the special flood hazard areas cause increases in flood heights and velocities. Inadequately floodproofed, elevated or otherwise unprotected structures also contribute to the flood loss.

C. Statement of Purpose.
It is the purpose of this ordinance to promote the public health, safety, and general welfare, and to minimize public and private losses due to flood conditions in specific areas by provisions designed:

1. To protect human life and health;

2. To minimize expenditure of public money for costly flood control projects;

3. To minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;

4. To minimize prolonged business interruptions;

5. To minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets, and bridges located in special flood hazard areas;

6. To help maintain a stable tax base by providing for the second use and development of special flood hazard areas so as to minimize future flood blight areas;

7. To ensure that potential buyers are notified that property is in a special flood hazard area; and

8. To ensure that those who occupy the special flood hazard areas assume responsibility for their actions.

D. Methods of Reducing Flood Losses.
In order to accomplish its purposes, this ordinance includes methods and provisions for:

1. Restricting or prohibiting uses which are dangerous to health, safety, and property due to water or erosion hazards, or which result in damaging increases in erosion or in flood heights or velocities;

2. Requiring that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;

3. Controlling the alteration of natural floodplains, stream channels, and natural protective barriers, which help accommodate or channel flood waters;

4. Controlling filling, grading, dredging, and other development which may increase flood damage; and,

5. Preventing or regulating the construction of flood barriers which will unnaturally divert flood waters or which may increase flood hazards in other areas.

Source: 5494 (2025).

21-0602. General Provisions.--

A. Applicability--This ordinance shall apply to all areas of special flood hazard within the area of jurisdiction of the city.

B. Identification of affected area--The areas of special flood hazard identified by FEMA in the Flood Insurance Study for Cass County, North Dakota, All Jurisdictions, with the accompanying FIRM dated September 5, 2025, is hereby adopted by reference and declared to be a part of this ordinance. The Flood Insurance Study and FIRM are on file at the office of the city engineer in Fargo, North Dakota.

C. Compliance--No structure or land shall hereafter be constructed, located, extended, converted or altered without full compliance with the terms of this ordinance and other applicable regulations.

D. Abrogation and greater restrictions--This ordinance is not intended to repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. However, where this ordinance, another ordinance, the Floodproofing Code, easements, covenants, or deed restrictions conflict or overlap, whichever imposes the more stringent restrictions shall prevail.

E. Interpretation--In the interpretation and application of this ordinance, all provisions shall be:

1. Considered as minimum requirements;

2. Liberally construed in favor of the governing body; and,

3. Deemed neither to limit nor repeal any other powers granted under state statutes.

F. Warning and disclaimer of liability--The degree of flood protection required by this ordinance is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. Larger floods can and will occur on rare occasions. Flood heights may be increased by man-made or natural causes.

This ordinance does not imply that land outside the areas of special flood hazard or uses permitted within such area will be free from flooding or flood damages. This ordinance shall not create liability on the part of the city of Fargo, any officer or employee thereof, or FEMA for any flood damages that result from reliance on this ordinance or any administrative decision lawfully made thereunder.

Source: 2325 (1987), 2706 (1994), 4956 (2014), 5494 (2025).

21-0603. Administration.--

A. Development Permit--Permit required--A development permit shall be obtained before construction or development begins within any area of special flood hazard. Application for such development permit shall be made on forms furnished by the building inspector and shall include, but not be limited to, the following:

1. Plans in duplicate drawn to scale showing the nature, location, dimensions, and elevations of the area in question;

2. Existing or proposed structures, fill, storage of materials, and drainage facilities;

3. Elevation of the lowest floor of all structures;

4. Elevation to which any structure has been floodproofed;

5. Certification by a registered professional engineer or architect that the floodproofing methods for any non-residential structure meet the floodproofing criteria in § 21-0604 of this article; and,

6. Description of the extent to which any watercourse will be altered or relocated as a result of proposed development.

A building permit issued for a structure to be constructed within the SFHA shall serve as the required development permit.

B. Building Inspector--The building inspector or designee is hereby appointed to administer and implement this ordinance by granting or denying development permit applications in accordance with the provisions of this article. The duties of the building inspector shall include, but not be limited to, the following:

1. Review all applications for development permits to determine that the permit requirements of this ordinance have been satisfied.

2. Review all applications for development permits to determine that all necessary permits have been obtained from federal, state, or local governmental agencies from which prior approval is required.

3. Review all applications for development permits to determine if the proposed structure or development is located in the floodway. If located in the floodway, assure that the encroachment provisions of § 21-0604 are met.

4. Review permit applications and proposed improvements to determine whether any improvement or repair of a building constitutes a substantial improvement and issue a written conclusion to the owner or applicant.

   a. Determining substantial improvement. The building inspector shall make a determination based on the current market value of a structure, taking into account the cumulative cost of an improvement or repair taking place during a period of five consecutive years beginning in 2015.

   b. Determining current market value. Unless the owner provides the building inspector with a current market value assessment completed by a licensed assessor, the building inspector shall determine market value based on the current assessed value by the assessor's department either before the start of construction or before the damage occurred. If buildings have not been maintained and have deteriorated over time, current market value is based on the date of the application for the permit to improve or repair the building.

5. Track the cost of repairs and improvements for the purpose of making substantial improvement determinations.

C. Use of Other Data--When base flood elevation data has not been provided in accordance with § 21-0602 of this article, the building inspector shall obtain, review, and reasonably utilize any base flood elevation and floodway data available from any federal, state or other source to establish criteria for requiring that new construction, substantial improvements, or other development in Zone A are constructed in accordance with § 21-0604 of this article.

D. Maintenance of information--

1. The building inspector shall obtain and record the elevation of the lowest floor of all new or substantially improved structures; and whether or not the structure contains a basement.

2. For all new or substantially improved floodproofed structures, the building inspector shall:

   a. Verify and record the actual elevation to which the structure has been floodproofed.

b. Maintain the floodproofing certifications of registered professional engineers or architects as hereinabove provided.

c. Maintain for public inspection, all records pertaining to the provisions of this ordinance.

E. Alteration of watercourses--

1. The building inspector shall notify adjacent communities and the North Dakota State Department of Water Resources prior to any alteration or relocation of a watercourse, and submit evidence of such notification to FEMA.

2. Require that maintenance is provided within the altered or relocated portion of said watercourse so that the flood-carrying capacity is not diminished.

3. All buildings or structures in the Minimal Disturbance Zone Setback and the Limited Disturbance Zone Setback shall be erected, constructed, enlarged or altered in conformance with the Watercourse and Setback Restrictions and Exceptions as stated in Municipal Code § 20-0508.

F. FIRM Boundaries--Interpretation--The building inspector shall interpret, when needed, the exact location of the boundaries of the areas of special flood hazards and shall make adjustments when necessary to resolve conflicts between mapped boundaries and actual field conditions. The person contesting the location of any boundary shall be given a reasonable opportunity to appeal the interpretation of the building inspector as hereinafter provided.

G. Appeals--Variances--

1. The board of adjustment shall hear and decide appeals from decisions or determinations made by the building inspector in the enforcement or administration of this article.

2. The board of adjustment shall consider requests for variances from the requirements of this ordinance.

3. Any person aggrieved by the decision of the board of adjustment may appeal such decision to the board of city commissioners of the city of Fargo.

4. Any person aggrieved by the decision of the board of city commissioners may appeal such decision to the North Dakota district court, pursuant to law.

5. In determining appeals or requests for variances, the board of adjustment shall consider all technical evaluations, all relevant factors, standards specified in other sections of this ordinance, and:

   a. The danger that materials may be swept onto other lands to the injury of others;

   b. The danger to life and property due to flooding or erosion damage;

   c. The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owners;

   d. The importance of the services provided by the proposed facility to the community;

   e. The necessity to the facility of a waterfront location, where applicable;

   f. The availability of alternative locations for the proposed use which are not subject to flooding or erosion damage;

   g. The compatibility of the proposed use with the existing and anticipated development;

   h. The relationship of the proposed use to the comprehensive plan and floodplain management program for that area;

   i. The safety of access to the property in times of flood for ordinary and emergency vehicles;

   j. The expected heights, velocity, duration, rate of rise and sediment transport of the flood waters and the effects of wave action, if applicable, expected at the site; and,

   k. The costs of providing governmental services during and after flood conditions, including maintenance and repair of public utilities and facilities such as sewer, gas, electrical, and water systems, streets and bridges.

6. Upon consideration of the foregoing factors and the purpose of this article, the board of adjustment may attach such conditions to the granting of variances as it may deem appropriate and necessary to effectuate the intent of this article.

7. The building inspector shall maintain the records of all appeal actions, including technical information, and report any variances to FEMA.

H. Conditions for variances--

1. Variances may be issued for new construction and substantial improvements to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base level, providing items (a-k) in subsection (G)(5) above have been fully considered. As the lot size increases beyond the one-half acre, the technical justifications required for issuing the variance increases.

2. Variances may be issued for the reconstruction, rehabilitation or restoration of structures listed on the National Register of Historic Places or any state or local inventory or register of historic places without regard to the procedures set forth in the remainder of this section.

3. Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

4. Variances shall be issued only upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

5. Variances shall be issued only upon:

   a. A showing of good and sufficient cause;

   b. A determination that failure to grant the variance would result in exceptional hardship to the applicant; and

   c. A determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with existing local laws or ordinances.

6. Any applicant to whom a variance is granted shall be given written notice that the structure will be permitted to be built with a lowest floor below the base flood elevation and that the cost of flood insurance will be commensurate with the increased risk from the reduced lowest floor elevation.

Source: 2325 (1987), 2408 (1988), 2939 (1998), 4956 (2014), 5247 (2020), 5494 (2025).

21-0604. Provisions for flood hazard reduction.--

A. General standards--In all areas of special flood hazard, the following standards shall apply:

1. Anchoring

   a. All new construction and substantial improvements shall be anchored to prevent flotation, collapse, or lateral movement of the structure and shall be capable of resisting the hydrostatic and hydrodynamic loads.

b. All manufactured homes which are placed or substantially improved must be elevated and anchored to resist flotation, collapse or lateral movement and shall be capable of resisting the hydrostatic and hydrodynamic loads. Methods of anchoring shall include, but are not limited to, the following:

i. Over-the-top ties shall be provided at each of the four corners of the manufactured home, with two additional ties per side at intermediate locations, provided that manufactured homes less than 50 feet long shall have one additional tie per side.

ii. Frame ties shall be provided at each corner of the home with five additional ties per side at intermediate points, provided that manufactured homes less than 50 feet long shall have four additional ties per side;

iii. All components of the anchoring system shall be capable of carrying a force of 4,800 pounds.

Any additions to a manufactured home shall be similarly anchored.

2. Construction materials and methods

a. All new construction and substantial improvements shall be constructed with materials which are resistant to flood damage.

b. All new construction and substantial improvements shall be constructed using methods and practices that minimize flood damage.

c. All new construction and substantial improvements shall be constructed with electrical, heating, ventilation, plumbing, and air conditioning equipment and other service facilities that are designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding.

3. Utilities

a. All new and replacement water supply systems shall be designed to minimize or eliminate infiltration of flood waters into the system.

b. New and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of flood waters into the systems and discharge from the systems into flood waters.

c. On-site waste disposal systems shall be located to avoid impairment or contamination during flooding.

4. Subdivisions

a. All proposed subdivisions shall be consistent with the need to minimize flood damage.

b. All subdivisions shall have public utilities and facilities such as sewer, gas, electrical, and water systems located and constructed to minimize flood damage.

c. All subdivisions shall have adequate drainage provided to reduce exposure to flood damage.

d. Base flood elevation data shall be provided for proposed subdivisions and other development proposals which contain at least 50 lots or five acres (whichever is less).

5. Specific standards--In all areas of special flood hazard where base flood elevation data has been provided as set forth in § 21-0602 or 21-0603, the following provisions are required:

a. New construction and substantial improvement of any structure shall:

i. Conform to structural and technical provisions set forth in the floodproofing code.

ii. Be constructed in accordance with the Floodproofing Construction Requirements, on file in the Inspections Office of the city of Fargo, North Dakota. A registered professional engineer or architect shall develop and/or review structural design, specifications, and plans for the construction, and shall certify that the design methods of construction are in accordance with accepted standards of practice.

iii. Have structural components capable of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. Fully enclosed areas below the lowest floor that are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or architect or must meet or exceed the following minimum criteria:

- A minimum of two openings having a total net area of not less than one square inch per square foot of enclosed area subject to flooding shall be provided;

- The bottom of all openings shall be no higher than one foot above grade.

- Openings may be equipped with screens, louvers, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

6. Manufactured homes.

a. Require all manufactured homes placed within Zone A shall be installed using methods and practices which minimize flood damage. For the purposes of this requirement, manufactured homes must be elevated and anchored to resist floatation, collapse, or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable State and local anchoring requirements for resisting wind forces.

b. Require all manufactured homes placed or substantially improved within Zones A 1-30, AH, or AE on sites (i) outside of a manufactured home park or subdivision, (ii) in a new manufactured home park or subdivision, (iii) in an expansion to an existing manufactured home park or subdivision, or (iv) in an existing manufactured home park or subdivision which has incurred substantial damage, be elevated on a permanent foundation so the lowest floor of the manufactured home is elevated one foot above the base flood elevation and be securely anchored to an adequately anchored foundation system to resist floatation, collapse, and lateral movement.

c. Require that manufactured homes placed or substantially improved on sites in an existing manufactured home park or subdivision within Zones A 1-30, AH, or AE not subject to other requirements of this section be elevated so that either:

(i) the lowest floor of the manufactured home is one foot above the base flood elevation, or

(ii) the manufactured home chassis is supported by reinforced piers or other foundation elements of at least equivalent strength that are no less than 36" in height above grade and be securely anchored to an adequately anchored foundation system to resist floatation, collapse, and lateral movement.

7. Recreational Vehicles.

   a. In A1-30, AH, and AE Zones, all recreational vehicles to be placed on a site must:

      (i) be elevated and anchored to meet the requirements in 5.2-3; OR

      (ii) be on the site for less than 180 consecutive days; AND

      (iii) be fully licensed and highway ready

8. Encroachment Analysis.

   a. When a regulatory floodway has not been designated, the building inspector must require that no new construction, substantial improvements, or other development (including fill) shall be permitted within Zones A1-30 and AE on the community's FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one foot at any point within the community.

   b. Under the provisions of 44 CFR Chapter 1, Section 65.12, of the National Flood Insurance Program regulations, a community may approve certain development in Zones A1-30, AE, AH, on the community's FIRM which increases the water surface elevation of the base flood by more than one foot, provided that the community first applies for and receives a Conditional Letter of Map Revision (CLOMR) through FEMA.

9. Floodways--The following provisions shall apply to any development or construction in the floodway:

   a. Any development or construction is prohibited unless a registered professional engineer certifies that such development or construction shall not result in any increase in flood levels during the occurrence of the base flood discharge. Any increase, as used in this section, means any modeled impacted greater than 0.0 feet.

   b. All new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions of this section.

   c. Under the provisions of 44 CFR Section 65.12 of the NFIP Regulations, a community may permit encroachments within the

adopted regulatory floodway that would result in an increase in BFEs, provided that the community first applies for and receives a Conditional Letter of Map Revision (CLOMR) through FEMA.

Source: 2325 (1987), 2939 (1998), 4956 (2014), 5494 (2025).

21-0605. Penalty.--A person who willfully violates this ordinance is guilty of an infraction. Every person, firm or corporation violating an ordinance which is punishable as an infraction shall be punished by a fine not to exceed $1,000; the court to have power to suspend said sentence and to revoke the suspension thereof. Each day such violation continues shall be considered a separate offense.

Source: 5494 (2025).

ARTICLE 21-07

WIND ENERGY CONVERSION SYSTEMS

Section

21-0701 Definitions.
21-0702 Permit required.
21-0703 Location.
21-0704 Permit application--Plans required--Fees.
21-0705 Issuance of permit--Procedure.
21-0706 Construction requirements.
21-0707 Restricted area construction--Requirements.
21-0708 System interconnect.
21-0709 Compliance with codes.
21-0710 Miscellaneous regulations.

21-0701. Definitions.--

1. Tower Clear Area (TCA) is a circular area around the base of a tower supporting a wind energy conversion system with the base of the tower at its center. The radius of the circular area shall be equal to the height of the tower, including any devices or appurtenances attached to the top of the tower.

2. Wind Energy Conversion System (WECS) is a mechanical device which is designed for the purpose of converting wind energy into electrical or mechanical power.

Source: 2166 (1984).

21-0702. Permit required.--No person shall install or construct a WECS in the corporate limits of the city of Fargo without first having applied for and obtained a permit from the building inspector as hereinafter provided.

Source: 2166 (1984).

21-0703. Location.--No WECS shall be installed or constructed within the corporate limits of the city of Fargo except in areas which are zoned C-2, general commercial district;

M-1, light industrial district; M-2, heavy industrial district; or in any area pursuant to special use permit granted pursuant to § 20-0322 of the Revised Ordinances of 1965 of the city of Fargo.

Source: 2166 (1984).

21-0704. Permit application--Plans required--Fees.--Application for a permit to install or construct a WECS shall be made to the building inspector of the city of Fargo in a form to be approved by said building inspector. Said application shall be accompanied by payment of the license fee in an amount which shall be established by resolution of the board of city commissioners. The application shall be accompanied by plans and specifications containing the following information:

A. Dimensional representation of the tower or towers, including the conversion system, base, and footing design.

B. A plot plan certified by a registered land surveyor indicating the following:

1. Property lines.

2. Location of the proposed tower or towers.

3. Location of existing structures on the site and on adjacent property.

4. Location of all above-ground utilities.

5. Location of all underground utility lines within the TCA.

6. Boundaries of all utility easements within the TCA.

Source: 2166 (1984).

21-0705. Issuance of permit--Procedure.--Upon submission of an application for a permit, the building inspector shall examine said application and, if the proposed WECS complies will all the terms and provisions of this ordinance, shall issue the permit. Provided, that if there is any property within the TCA which is not zoned in accordance with § 21-0703 of this article, or if the proposed installation is on a lot which is adjacent to a residential zone, no permit may be issued without prior approval of the planning commission as hereinafter provided. Application for approval of the planning commission shall be made by the applicant by submission of a duplicate copy of his application to the planning commission office. Upon receipt of such application, the planning commission shall consider the matter at its next regularly scheduled meeting and shall either approve or deny the application. In the event the planning commission does not take action on the application within 40 days of date of submission, the application shall be deemed to be approved and the building inspector may issue the permit if all other requirements have been met.

Source: 2166 (1984).

21-0706. Construction requirements.--All WECS installations shall meet the following requirements:

A. WECS towers shall be designed to withstand winds of 100 mph or greater, or requirements of the International Building Code, whichever is greater.

B. Height of WECS installations shall not exceed limits as established by Federal Aviation Administration regulations.

C. All WECS shall be equipped with overspeed devices.

D. All electrical transmission lines from the WECS shall be underground.

E. The WECS installation shall be located so that any overhead electric distribution lines carrying voltage in excess of 240 volts to ground will be located outside of the TCA.

F. Except as hereinafter provided, the WECS installation shall be located so that the TCA will fall entirely within the property on which the installation is to be constructed and so that no part of any building on the premises will be located within the TCA.

Source: 2166 (1984), 4594 (2007).

21-0707. Restricted area construction--Requirements.--In the event that compliance with the clearance requirements of § 21-0706(F) above is impossible, the applicant shall submit the following information:

A. Details of the structural components of the tower, including the base and footings.

B. Design data, shop drawings, structural calculations, together with installation and operating instructions for the WECS.

C. Certification by the manufacturer, or by a licensed architect or a registered professional engineer, that the tower, as designed, will withstand windloads of 100 mph or greater or requirements established by the International Building Code, whichever is greater.

Upon furnishing of the foregoing information, the building inspector shall issue a permit as provided herein.

Source: 2166 (1984), 4594 (2007).

21-0708. System interconnect.--A WECS, if interconnected to an electric utility distribution system, shall meet all requirements of the electric utility company for such connection and in addition, shall include a manual disconnect which complies with the National Electric Code.

Source: 2166 (1984).

21-0709. Compliance with codes.--Construction, design and installation of a WECS shall comply with all local, state and national electrical, safety and building codes which are in effect at the time of installation.

Source: 2166 (1984).

21-0710. Miscellaneous regulations.--In addition to the foregoing, a WECS which is installed or constructed pursuant to this article shall be subject to the following restrictions:

A. A WECS shall be subject to present and future noise limitations pursuant to ordinances of the city of Fargo.

B. A WECS which is installed pursuant to this article shall be located and installed in compliance with all Federal Aviation Administration regulations concerning clearance.

C. Climbing access to WECS towers shall be limited by constructing climbing apparatus at a minimum of 12 feet above ground or, by constructing a fence around the tower which is at least six feet in height.

D. WECS shall not be permitted to generate power as a commercial enterprise which is defined and regulated by the North Dakota Public Service Commission.

Source: 2166 (1984).

CHAPTER 21.1

INTERNATIONAL RESIDENTIAL CODE

Article
21.1-01 International Residential Code--Adoption--Amendments, §§ 21.1.-0101 to 21.1-0102

ARTICLE 21.1-01

INTERNATIONAL RESIDENTIAL CODE--ADOPTION--AMENDMENTS*

Section
21.1-0101 Adoption of International Residential Code by Reference.
21.1-0102 Amendment to International Residential Code.

21.1-0101. Adoption of International Residential Code by Reference.--There is hereby adopted by reference by the board of city commissioners, for the purpose of prescribing regulations governing standards, relative to existing buildings in the city of Fargo, that certain code known as the International Existing Building Code recommended and compiled by the International Code Council, 2024 Edition, a copy of which is on file in the office of the city auditor, and the same is hereby adopted and incorporated as fully as if set out in length herein, and from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the limits of the city, and within the extra-territorial zoning jurisdiction of the city.

Source: 5348 (2022), 5493 (2025).

21.1-0102. Amendment to International Residential Code.--The International Residential Code as adopted in Section 21.1-0101 is hereby changed and amended as follows:

Section R101.1 is hereby amended to read as follows:

> **R101.1 Title.** These provisions shall be known as the Residential Code for One- and Two-Family Dwellings of the City of Fargo, and shall be cited as such and will be referred to herein as "this code."

Section R103.1 is hereby amended to read as follows:

> **R103.1 Creation of agency.** The Inspections Department of the city of Fargo is hereby created and the official in charge thereof shall be known as the building official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

***Editor's note—**Ord. No. 5348, §§ 1, 2, adopted May 31, 2022, repealed the former Art. 21.1-01, §§ 21.1-0101, 21.1-0102, and enacted a new Art. 21.1-01 as set out herein. The former article pertained to similar subject matter and derived from Ord. Nos. 4184 (2001), 4205 (2002), 4305 (2003), 4411 (2004), 4431 (2004), 4596 (2007), 4697 (2009), 4746 (2010), 4871 (2013), 5048 (2016), and 5216 (2019).

Section R104.8 is hereby amended to read as follows:

R104.8. Liability. The building official, member of the board of appeals or employee charged with the enforcement of this code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be personally liable, either civilly or criminally, and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. This code shall not be construed to relieve from or lessen the responsibility of any person owning, operating, or controlling any building or structure for any damages to persons or property caused by defects, nor shall the code enforcement agency or the city be held as assuming any such liability by reason of the inspection authorized by this code or any permits or certificates issued under this code.

Section R105.2 is hereby amended to read as follows:

R105.2 Work exempt from permit. * * * *

Building:

1. Other than storm shelters, one-story detached accessory structures, provided the floor area does not exceed 120 square feet.

2. Fences not over 8.5 feet high.

* * * *

7. Swimming pools that are less than 24 inches (610 mm) deep.

* * * *

10. Decks not exceeding 120 square feet in area, that are not more than 7 inches above grade at any point, are not attached to a dwelling and do not serve the exit door required by Section R318.4.

Section R108.3 is hereby amended to read as follows:

R108.3 Building permit valuations. Building permit valuation shall include total value of the work for which a permit is being issued, such as electrical, gas, mechanical, plumbing equipment and other permanent systems, including materials and labor. If, in the opinion of the building official, the valuation is underestimated on the application, the permit shall be denied, unless the applicant can show detailed estimates to meet the approval of the building official. Final building permit valuation shall be set by the building official.

Section R201.3 is hereby amended to read as follows:

R201.3 Terms defined in other codes. Where terms are not defined in this code such terms shall have the meanings ascribed in other code publications of the International Code Council. Wherever the term 'International Plumbing Code' or 'International Private Sewage Disposal Code' is used in the International Residential Code, it shall mean the North Dakota State Plumbing Code. Wherever the term 'ICC Electrical Code' is used in the International Residential Code, it shall mean the National Electrical Code together with the North Dakota State Wiring Standards. Wherever reference is made to flood plain requirements, it shall mean the Fargo Flood Plain Management Ordinance together with the Fargo Flood Proofing Code (Fargo Municipal Code Article 21-06).

Section R202 is hereby amended to add a new definition as follows:

LANDING. A constructed platform at the top or bottom of a staircase or between one flight of stairs and another. A landing may not consist of soil, gravel, or sand.

Table R301.2 is hereby amended to read as follows:

Table 301.2(1)
Climactic and Geographic Design Criteria

Ground Snow Load	Wind Design				Seismic Design Category	Subject to Damage From			Winter Design Temp	Ice Barrier Underlayment Required	Flood Hazards	Air Freezing Index	Mean Annual Temp
	Speed (mph)	Topographic Effects	Special Wind Region	Windborne Debris Zone		Weathering	Frost Line Depth	Termite					
64	111	No	No	No	Zone A	Severe	4.5'	None	-18°	Yes	1978	4000	41.5°

Manual J Design Criteria

Elevation	Latitude	Winter Heating	Summer Cooling	Altitude Correction Factor	Indoor Design Temperature	Design Temperature Cooling	Heating Temperature Difference
869	46	-17°	88°	None	70°	75°	87°

Cooling Temperature Difference	Wind Velocity Heating	Wind Velocity Cooling	Coincident Wet Bulb	Daily Range	Winter Humidity	Summer Humidity
13°	15 mph	7.5 mph	70	M	30%	50%

Section R301.2.4 is hereby deleted in its entirety.

Section R301.2.4.1 is hereby deleted in its entirety.

Table R302.1(1) Exterior Walls. The fourth column is hereby amended as follows:

0 feet

≥ 3 feet

< 2 feet

≥ 2 feet to < 3 feet

≥ 3 feet

< 3 feet

3 feet

5 feet

< 3 feet

3 feet

Section R302.5.1 is hereby amended to read as follows:

R302.5.1 Opening protection. Openings from a private garage directly into a room used for sleeping purposes shall not be permitted. Other openings between the garage and dwelling unit shall be equipped with solid wood doors not less than 1⅜ inches (35 mm) in thickness, solid or honeycomb-core steel doors not less than 1⅜ inches (35 mm) thick, or 20-minute fire rated doors.

Section R306 is hereby deleted in its entirety.

Section R307.2 Construction. Storm shelters shall be constructed in accordance with this code and ICC 500.

Section R309.1 Townhouse automatic sprinkler systems. Is hereby amended to read as follows:

R309.1 Townhouse automatic sprinkler systems. An automatic residential sprinkler system shall be installed in townhouses which are located on a private street or private fire department access road that is required to be greater than 150 feet in length as required by Section 503 of the International Fire Code.

Section R309.2 One- and two-family dwelling automatic sprinkler systems. Is hereby deleted in its entirety.

Section R318.3.2 is hereby amended to read as follows:

R318.3.2 Floor elevations at other exterior doors. Exterior doors other than the required egress door shall be provided with landings or floors not more than 8 inches below the top of the threshold.

Exception: An exterior landing or floor is not required at the exterior doorway where a stairway with a total rise of less than 30 inches (762 mm) is located on the exterior side of the door, provided that the door does not swing over the stairway.

Section R318.7.5.1 is hereby amended to read as follows:

R318.7.5.1 Risers. The riser height shall be not more than 8 inches.

* * * *

Section R318.7.5.2 is hereby amended to add the following exception:

Exception: Where a landing is not provided or required by Sections R318.3, R318.3.2, or R318.7.6, the top tread of a stair serving exterior doors other than the required exit

door, and in-swinging doors opening into an attached garage, shall be permitted to exceed the smallest tread by more than 3/8 inch (9.5 mm). Such a tread shall be at least 18 inches (457 mm) measured in the direction of travel.

Section R318.7.5.2.1 is hereby amended to read as follows:

R318.7.5.2.1 Winder treads. Winder treads shall have a tread depth of not less than 9 inches measured between the vertical planes of the foremost projection of adjacent treads at the intersections with the walkline. * * * *

Section R318.7.6 exceptions are hereby amended to read as follows:

Exceptions:

1. The top landing of an interior stairway, including those in an enclosed garage, shall be permitted to be on the other side of a door located at the top of the stairway provided that the door does not swing over the stairs.

2. At an enclosed garage, the top landing at the stair shall be permitted to be not more than 8 inches below the top of the threshold.

3. At exterior doors, a top landing is not required for an exterior stairway with a total rise of less than 30 inches , provided that the door does not swing over the stairway.

Section R319.2.3 is hereby amended to add the following exception:

Exception: Below grade emergency escape and rescue windows shall have a maximum sill height of 48 inches.

Section R319.4.2 is hereby amended to read as follows:

R319.4.2 Ladder and steps. Area wells with a vertical depth greater than 44 inches (1118 mm) shall be equipped with an approved, permanently affixed ladder or steps, usable with the window in the fully open position or shall be equipped with a permanently attached platform at least 30 inches by 16 inches. The maximum distance between the top of the window well and a platform shall be 42 inches and shall not impede the operation of the window. The ladder or steps shall not be obstructed by the emergency escape and rescue opening where the window or door is in the open position. Ladders and steps required by this section shall not be required to comply with Section R318.7.

Section R319.4.2.1 is hereby amended to add the following exception:

Exception: Terraced window wells with a maximum of 24 inches per vertical rise and minimum of 12 inches per horizontal projection on each level shall also be allowed.

Section R321.1.1 is hereby amended to read as follows:

> **R321.1.1 Where required.** Guards shall be provided for those portions of open-sided walking surfaces, including floors, stairs, ramps and landings that are located more than 30 inches (762 mm) measured vertically to the floor or grade below or to the bottom of any window well within 36 inches (914 mm) horizontally to the edge of the open side. Insect screening shall not be considered as a guard.

Section R327.1 is hereby amended to read as follows:

> **R327.1 Space required.** Fixtures shall be spaced in accordance with the requirements of the North Dakota State Plumbing Code and Figure R327.1, except for the clearance in front of the water closets and bidets, which shall be at least 24 inches.

Section R328 is hereby deleted in its entirety.

Section R401.1 is hereby amended to read as follows:

> **R401.1 Application.** The provisions of this chapter shall control the design and construction of the foundation and foundation spaces for buildings. In addition to the provisions of this chapter, the design and construction of foundations in flood hazard areas and established by Table R301.2 shall meet the provisions of the Fargo Floodproofing Code (Article 21-06) and any other applicable requirements of the city of Fargo. Wood foundations shall be designed and installed in accordance with AWC PWF.

Section R401.3 exception is hereby deleted in its entirety.

Section R403.1.4.1 exceptions are hereby amended to read as follows:

> **Exceptions:**
>
> 1. Protection of free-standing accessory structures of light-frame construction shall not be required.
>
> 2. Protection of free-standing accessory structures with an area of 400 square feet (37 m^2) or less, of other than light-frame construction shall not be required.
>
> 3. Uncovered decks need not be provided with footings that extend below the front line.

Section R404.1.3.2 is hereby amended to read as follows:

> **Section R404.1.3.2 Reinforcement for foundation walls.** Concrete foundation walls shall be laterally supported at the top and bottom. Horizontal reinforcement shall be provided in accordance with Table R404.1.3.2(1). Vertical reinforcement shall be provided in accordance with Table R404.1.3.2(2), R404.1.3.2(3), R404.1.3.2(4), R404.1.3.2(5), R404.1.3.2(6), R404.1.3.2(7), R404.1.3.2(8), or Table R404.1.2(10) and Figure R404.1.2(1) or Table R404.1.2(11) and R404.1.2 (2). Vertical reinforcement for

flat basement walls retaining 4 feet (1219 mm) or more of unbalanced backfill is permitted to be determined in accordance with Table R404.1.3.2(9). For basement walls supporting above-grade concrete walls, vertical reinforcement shall be the greater of that required by Tables R404.1.3.2(2) through R404.1.3.2(8) or by Section R608.6 for the above-grade wall. In buildings assigned to Seismic Design Category D0, D1 or D2, concrete foundation walls shall also comply with Section R404.1.4.2.

Table R404.1.3.2(10) is hereby enacted to read as follows:

Table R404.1.3.2(10)
Foundation Wall Reinforcing
Active Pressure = 45pd

Minimum Reinforcement for Concrete Foundation Walls		
Wall Height (h) feet	**Wall Thickness (t) inches**	**Vertical Reinforcing**
8	**8**	**#4 @ 24" o.c.** **#5** *(ii),* 40" o.c.
	10	**#4 @ 30" o.c.** **#5** *Cii2* 50" o.c.
9	**8**	**#4 @ 18" o.c.** **#5** *(ii),* 28" o.c.
	10	**#4 @ 24" o.c.** **#5** *(ii),* 36" o.c.
10	**10**	**#4 @ 16" o.c.** **#5** *(ii)* 26" o.c.

Notes:

1. Chart is based on an active soil pressure of 45 pounds per cubic foot (pct).

2. Reinforcing steel shall be ASTM A615 Fy - 60,000 pounds per square inch (psi).

3. The vertical reinforcing bars are to be located on the inside face.

4. Minimum concrete strength Fc^1 = 3,000 pounds per square inch (psi).

5. Backfill shall not be placed until first floor framing and sheathing is installed and fastened or adequately braced and the concrete floor slab is in place, or the wall is adequately braced.

Table R404.1.3.2(11) is hereby enacted to read as follows:

Table R404.1.3.2(11)
Foundation Wall Reinforcing
Active Pressure = 65 pcf

Minimum Reinforcement for Concrete Foundation Walls		
Wall Height (h) Feet	**Wall Thickness (t) inches**	**Vertical Reinforcin**
8	**8**	**#4 @ 18" o.c.** **#5 @ 26" o.c.** **#6** *(ti),* 40" o.c.
	10	**#4 @ 24" o.c.** **#5 @ 36" o.c.** **#6** *(ti),* 52" o.c.
9	**8**	**#4@ 12" o.c.** **#5 @ 18" o.c.** **#6** *(ti),* 26" o.c.
	10	**#4 @ 16" o.c.** **#5 @ 24" o.c.** **#6** *(ti),* 36" o.c.
10	**10**	**#4@ 12" o.c.** **#5 @ 18" o.c.** **#6** *Cii2* 24" o.c.

Notes:

1. Chart is based on an active soil pressure of 65 pounds per cubic foot (pct).

2. Reinforcing steel shall be ASTM A615 Fy - 60,000 pounds per square inch (psi).

3. The vertical reinforcing bars are to be located on the inside face.

4. Minimum concrete strength Fc[1] = 3,000 pounds per square inch (psi).

5. Backfill shall not be placed until first floor framing and sheathing is installed and fastened or adequately braced and the concrete floor slab is in place or the wall is adequately braced.

Figures R404.1.3.2(1) and R404.1.3.2(2) are hereby enacted as shown:

FIGURE R404.1.3.2(1)

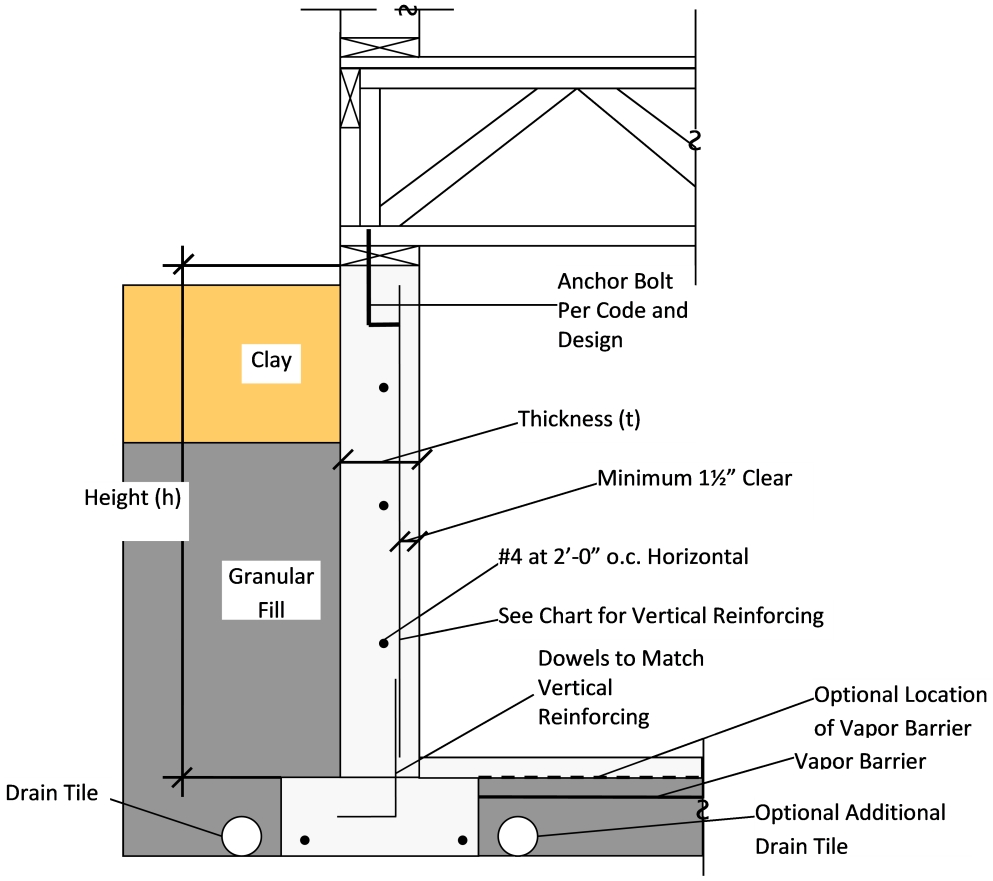
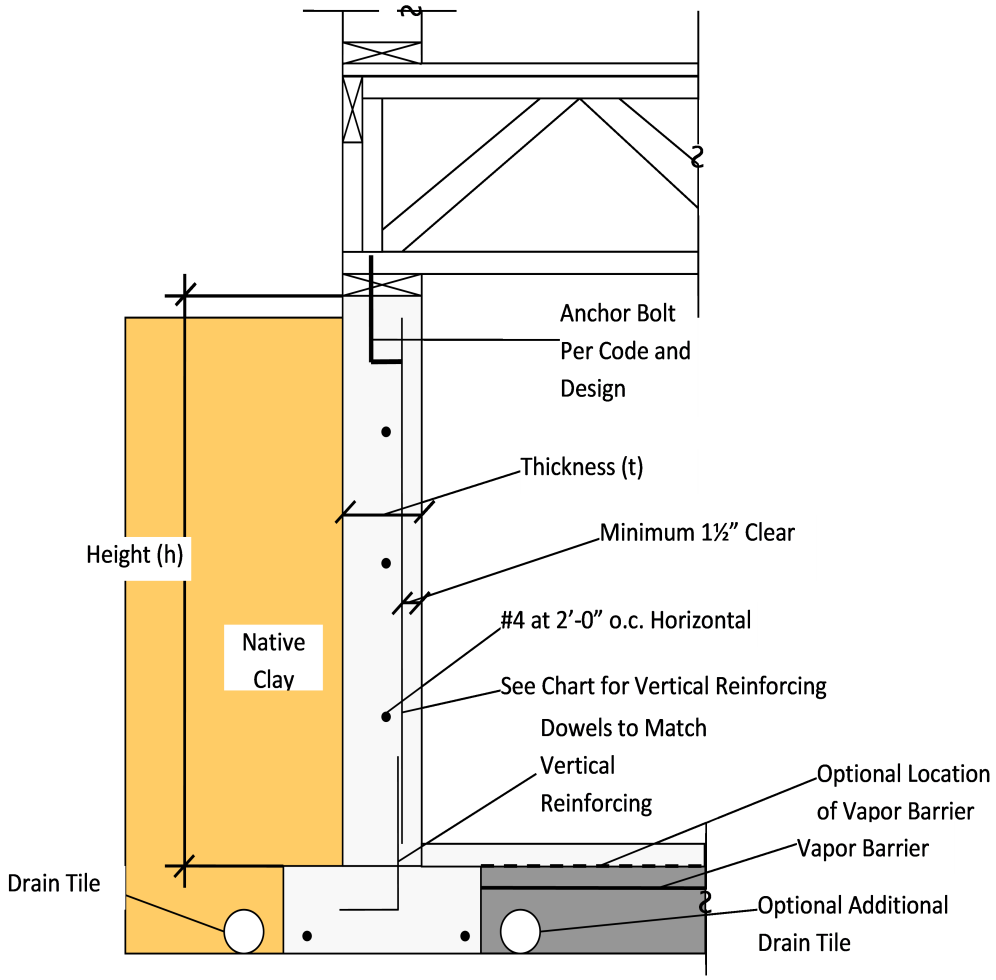


FIGURE R404.1.3.2(2)



Section R507.3 is hereby deleted in its entirety.

Table R507.3.1 is hereby deleted in its entirety.

Section R602.7.2 is hereby amended to read as follows:

> **R602.7.2 Rim board headers.** Rim board header size, material and span shall be in accordance with Table R602.7(1). Rim board headers shall be constructed in accordance with Figure R602.7.2 and shall be supported at each end by full-height studs. Rim board headers supporting concentrated loads shall be designed in accordance with accepted engineering practice.

Section R602.7.5 is hereby amended to read as follows:

> **R602.7.5 Supports for headers.** Headers shall be supported on each end with one or more jack studs or with approved framing anchors in accordance with Table R602.7(1) or R602.7(2). The full-height stud adjacent to each end of the header shall be end nailed to each end of the header in accordance with Table R602.3(1).

Table R602.7.5 is hereby deleted in its entirety.

Table N1102.1.2 (R402.1.2) is hereby amended to read as follows:

TABLE N1102.1.2 (R402.1.2)
MAXIMUM ASSEMBLY *U*-FACTORS AND FENESTRATION REQUIREMENTS

Maximum Assembly U-Factors and Fenestration Requirements			
Climate Zone	* * * *	6	* * * *
Vertical Fenestration *U*-Factor	* * * *	0.32	* * * *
* * * *	* * * *	* * * *	* * * *
Wood-Framed Wall *U-Factor*	* * * *	0.057	* * * *
* * * *	* * * *	* * * *	* * * *
Basement Wall *U-Factor*	* * * *	0.059	* * * *
	* * * *		* * * *

(balance of table remains unchanged)

Table N1102.1.3 (R402.1.3) is hereby amended to read as follows:

TABLE N1102.1.3 (R402.1.3)
INSULATION MINIMUM R-VALUES AND FENESTRATION REQUIREMENTS BY COMPONENT

Insulation Minimum R-Values and Fenestration Requirements by Component			
Climate Zone	* * * *	6	* * * *
Vertical Fenestration *U*-Factor	* * * *	0.32	* * * *
* * * *	* * * *	* * * *	* * * *
Wood-Framed Wall *R*-Value[e, h]	* * * *	21 or 13 & 5 ci	* * * *
* * * *	* * * *	* * * *	* * * *
Basement Wall *R*-Value [b, e]	* * * *	15 or 10 ci	* * * *
	* * * *		* * * *

(balance of table remains unchanged)

Table N1102.5.1.1 (R402.5.2.2) is hereby amended to read as follows:

TABLE N1102.5.1.1 (R402.5.1.1)
AIR BARRIER, AIR SEALING AND INSULATION INSTALLATION

Air Barrier, Air Sealing and Insulation Installation		
Component	*Air Barrier Criteria*	*Insulation Installation Criteria*
Basement, Crawl Space and Slab Foundations	* * * *	* * * * Exterior foundation insulation shall be covered and flashed to protect it from exposure to light and weather to a minimum of 6 inches (152 mm) below grade and be covered by a minimum 6-mil polyethylene slip sheet over the entire surface.

(balance of table remains unchanged)

Section N1104.2 is hereby deleted in its entirety.

Section N1104.3 is hereby deleted in its entirety.

Section N1103.6.3 (R403.6.3) is hereby deleted in its entirety.

Table N1106.5 (R406.5) is hereby amended to read as follows:

TABLE N1106.5 (R406.5)
MAXIMUM ENERGY RATING SYSTEM

Maximum Energy Rating Index		
Climate Zone	*Energy Rating Index Not Including OPP*	*Energy Rating Index Including OPP*
* * * *	* * * *	* * * *
6	58	48

(balance of table remains unchanged)

Section M1502.4.2 is hereby amended to read as follows:

M1502.4.2 Duct installation. Exhaust ducts shall be supported at intervals not to exceed 4 feet and shall be secured in place. The insert end of the duct shall extend into the adjoining duct or fitting in the direction of airflow. Exhaust duct joints may be mechanically fastened. Ducts shall not be joined with screws. Where dryer exhaust ducts are enclosed in wall or ceiling cavities, such cavities shall allow the installation of the duct without deformation.

Section M1503.6 exception is hereby deleted in its entirety.

Section M1601.4.1 exceptions are hereby amended to read as follows:

Exceptions:

* * * *

3. For ducts having a static pressure classification of less than 2 inches of water column (500 Pa), additional closure systems shall not be required for continuously welded joints and seams and locking-type joints and seams.

Section M2005.1 is hereby amended to read as follows:

M2005.1 General. Water heaters shall be installed in accordance with the North Dakota State Plumbing Code, the manufacturer's instructions and the requirements of this code. * * * *

Section M2101.3 is hereby amended to read as follows:

M2101.3 Protection of potable water. The potable water system shall be protected from backflow in accordance with the provisions listed in the North Dakota State Plumbing Code.

Section M2101.10 is hereby amended to read as follows:

M2101.10 Tests. New hydronic piping systems shall be tested hydrostatically at a pressure of not less than 100 pounds per square inch (689 kPa). The duration of each test shall be not less than 15 minutes. Hydronic piping to be embedded in concrete shall be pressure tested and inspected prior to pouring concrete.

Section M2103.3 is hereby amended to read as follows:

M2103.3 Piping joints. * * * *

2. Copper tubing shall be joined by brazing complying with the North Dakota State Plumbing Code.

Figure G2407.6.1(1) [304.6.1(1)] is hereby deleted in its entirety.

Figure G2407.6.6(2) [304.6.1(2)] is hereby deleted in its entirety.

Section G2407.11 (304.11) is hereby amended to read as follows:

G2407.11 (304.11) Combustion air ducts. Combustion air ducts shall comply with all of the following:

* * * *

5. Ducts shall not terminate in an attic space.

Section G2413.6 (402.6) is hereby amended as follows:

G2413.6 (402.6) Allowable pressure drop. The design pressure loss in any piping system under maximum demand, from the point of delivery to the inlet connection of all appliances served, shall be such that the supply pressure at each appliance inlet is greater than or equal to the minimum pressure required by the appliance, but such pressure loss shall not be greater than .5 inch water column for gas pipe systems operating at less than 2 psi.

Section G2417.4.1 (406.4.1) is hereby amended to read as follows:

G2417.4.1 (406.4.1) Test pressure. The test pressure to be used shall be not less than 1 ½ times the proposed maximum working pressure, but not less than 25 psig (20 kPa gauge). Where the test pressure exceeds 125 psig (862 kPa gauge), the test pressure shall not exceed a value that produces a hoop stress in the piping greater than 50 percent of the specified minimum yield strength of the pipe.

Section G2425.12 (501.12) is hereby amended to read as follows:

G2425.12 (501.12) Residential and low-heat appliances flue lining systems. Flue lining systems for use with residential-type and low-heat appliances shall be limited to the following:

1. Clay flue lining complying with the requirements of ASTM C315 or equivalent when each appliance connected into the masonry chimney has a minimum input rating greater than 400,000 Btu/h. Clay flue lining shall be installed in accordance with Chapter 10.

2. Listed chimney lining systems complying with UL 1777.

3. Other approved materials that will resist, without cracking, softening or corrosion, flue gases and condensate at temperatures up to 1,800°F (982°C).

    a. Aluminum (1100 or 3003 alloy or equivalent) not less than 0.032 inches thick up to 8 inches in diameter.

    b. Stainless steel (304 or 430 alloy or equivalent) not less than 26 gauge (0.018 inches thick) to 8 inches in diameter or not less than 24 gauge (0.024 inches thick) 8 inches in diameter and larger.

    c. When a metal liner other than a listed chimney liner is used, a condensation drip tee shall be installed and supported in an approved manner.

Section G2427.5.2 (503.5.3) is hereby amended to read as follows:

G2427.5.2 (503.5.3) Masonry chimneys. Masonry chimneys shall be built and installed in accordance with NFPA 211 and shall be lined in accordance with G2425.12.

Section G2439.7.2 (614.9.2) is hereby amended to read as follows:

G2439.7.2 (614.9.2) Duct installation. Exhaust ducts shall be supported at 4-foot (1219 mm) intervals and secured in place. The insert end of the duct shall extend into the adjoining duct or fitting in the direction of airflow. Ducts shall not be joined with screws. Where dryer exhaust ducts are enclosed in wall or ceiling cavities, such cavities shall allow the installation of the duct without deformation.

Section G2442.4 (618.4) is hereby amended to read as follows:

G2442.4 (618.4) Screen. Required outdoor air inlets shall be covered with a screen having ¼ -inch (6.4 mm) openings. Required outdoor air inlets serving a nonresidential portion of a building shall be covered with screen having openings larger than ¼ inch (6.4mm) and not larger than ½ inch.

Chapters 25 through 43 are hereby deleted in their entirety.

* * * *

APPENDIX BE - Radon Control Methods is hereby adopted in its entirety and incorporated herein by reference, subject to the following amendments:

BE101.1 General. This appendix contains requirements for new construction in jurisdictions where radon-resistant construction is required.

Figure BE101.1 and **Table BE101.1** are hereby deleted in their entirety.

* * * *

BE103.1 General. The following construction techniques are intended to resist radon entry and prepare the building for post-construction radon mitigation, if necessary (see Figure BE103.1). These techniques are required in areas where designated by the jurisdiction. All potential entry routes, including but not limited to joints, penetrations, gaps, cracks, and openings, shall be cleared of debris and sealed.

* * * *

The Exception in **BE103.2(2) Subfloor preparation** is hereby deleted in its entirety.

* * * *

Section BE103.3 Soil-gas-retarder is hereby deleted in its entirety.

Section BE103.4 Entry routes is hereby deleted in its entirety.

Section BE103.4.1 Floor openings is hereby deleted in its entirety.

Section BE103.4.2 Concrete joints is hereby deleted in its entirety.

Section BE103.4.3 Condensate drains is hereby deleted in its entirety.

Section BE103.4.4 Sumps is hereby deleted in its entirety.

Section BE103.4.5 Foundation walls is hereby deleted in its entirety.

Section BE103.4.6 Dampproofing is hereby deleted in its entirety.

Section BE103.4.7 Air handling units is hereby deleted in its entirety.

Section BE103.4.8 Ducts is hereby deleted in its entirety.

Section BE103.4.9 Crawl space floors is hereby deleted in its entirety.

Section BE103.4.10 Crawl space access is hereby deleted in its entirety.

* * * *

Section BE104.1 Testing is hereby deleted in its entirety.
Source: 5348 (2022), 5390 (2023), 5493 (2025), 5514 (2025), 5533 (2025).

CHAPTER 21.2

INTERNATIONAL EXISTING BUILDING CODE

Article
21.2-01 International Existing Building Code--Adoption--Amendments, §§ 21.2-0101 to 21.2-0102

ARTICLE 21.2-01

INTERNATIONAL EXISTING BUILDING CODE--ADOPTION--AMENDMENTS*

Section
21.2-0101 Adoption of International Existing Building Code by Reference.
21.2-0102 Amendment to International Existing Building Code.

21.2-0101. Adoption of International Existing Building Code by reference.--There is hereby adopted by reference by the board of city commissioners, for the purpose of prescribing regulations governing standards, relative to existing buildings in the city of Fargo, that certain code known as the International Existing Building Code recommended and compiled by the International Code Council, 2024 Edition, a copy of which is on file in the office of the city auditor, and the same is hereby adopted and incorporated as fully as if set out in length herein, and from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the limits of the city, and within the extra-territorial zoning jurisdiction of the city.

Source: 5349 (2022), 5487 (2025).

21.2-0102. Amendment to International Existing Building Code.--The International Existing Building Code as adopted in Section 21.2-0101 is hereby changed and amended as follows:

Section 101.1 is hereby amended to read as follows:

> **101.1 Title.** These regulations shall be known as the Existing Building Code of the City of Fargo, hereinafter referred to as "this code."

Section 103.1 is hereby amended to read as follows:

> **103.1 Creation of agency.** The City of Fargo Inspections Department is hereby created, and the official in charge thereof shall be known as the code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

***Editor's note**—Ord. No. 5349, §§ 1, 2, adopted May 31, 2022, repealed the former Art. 21.2-01, §§ 21.2-0101, 21.2-0102, and enacted a new Art. 21.2-01 as set out herein. The former article pertained to similar subject matter and derived from Ord. Nos 4289 (2002), 4407 (2004), 4597 (2007), 4747 (2010), 4875 (2013), 5049 (2016), and 5217 (2019).

Section 104.2.4.1 is hereby deleted in its entirety.

Section 104.8 is hereby amended to read as follows:

> **104.8 Liability.** The code official, member of the Board of Appeals, officer or employee charged with the enforcement of this code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered personally liable, either civilly or criminally, and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties. This code shall not be construed to relieve from or lesson the responsibility of any person owning, operating, or controlling any building or structure for any damage to persons or property caused by defects nor shall the code enforcement agency or the city be held as assuming any such liability by reason of the inspection authorized by this code or any permits or certificates issued under this code.

Section 105.2 is hereby amended to read as follows:

> **Section 105.2 Work exempt from permit.** * * * *
>
> **Building:**
>
> * * * *
>
> 7. Reroofing.
>
> 8. Window replacement.

Section 109.3.3 is hereby deleted in its entirety.

Section 109.3.10 is hereby deleted in its entirety.

Section 201.3 is hereby amended to read as follows:

> **201.3 Terms defined in other codes.** Where terms are not defined in this code and are defined in the other International Codes, such terms shall have the meanings ascribed to them in those codes. Wherever the term "International Plumbing Code" and/or the "International Private Sewage Disposal Code" is used it shall mean the North Dakota State Plumbing Code. Wherever the term "ICC Electrical Code" is used, it shall mean the National Electric Code together with the North Dakota State wiring Standards. Wherever the term "Flood Hazard Area" is used, it shall mean the Fargo Flood Plain Management ordinance together with the Flood Proofing Code of the City of Fargo North Dakota.

Section 1401.2 is hereby amended to read as follows:

1401.2 Conformance. Buildings to be moved within this jurisdiction shall comply with the provisions of this chapter. Buildings to be moved into this jurisdiction shall comply with the provisions of the International Codes for new buildings and shall be certified as to meet compliance by an agency approved by the code official.
Source: 5349 (2022), 5487 (2025).

CHAPTER 21.3

INTERNATIONAL ENERGY CONSERVATION CODE*

Article
21.3-01 International Energy Conservation Code--Adoption--Amendments, §§ 21.3-0101 to 21.3-0102

ARTICLE 21.3-01

INTERNATIONAL ENERGY CONSERVATION CODE--ADOPTION--AMENDMENTS

Section
21.3-0101 Adoption of International Energy Conservation Code by Reference.
21.3-0102 Amendment to International Energy Conservation Code.

21.3-0101. Adoption of International Energy Conservation Code by Reference.--There is hereby adopted by reference by the Board of City Commissioners, for the purpose of prescribing regulations governing standards, relative to housing in the city of Fargo, that certain code known as the International Energy Conservation Code recommended and compiled by the International Code Council, being particularly the 2024 Edition thereof, a copy of which is on file in the office of the City Auditor, and the same is hereby adopted and incorporated as fully as if set out in length herein, and from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the limits of the city, and within the extra-territorial zoning jurisdiction of the city.

Source: 5353 (2022), 5488 (2025).

21.3-0102. Amendment to International Energy Conservation Code.--The International Energy Conservation Code as adopted in Section 21.3-0101 is hereby changed and amended as follows:

IECC - COMMERCIAL PROVISIONS

Section C101.1 is hereby amended to read as follows:

> **C101.1 Title.** This code shall be known as the Energy Conservation Code of the city of Fargo and shall be cited as such. It is referred to herein as "this code".

Section C103.1 is hereby amended to read as follows:

> **C103.1 Creation of enforcement agency.** The Inspections Department is hereby created and the official in charge thereof shall be known as the authority having jurisdiction (AHJ). The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

***Editor's note—**Ord. No. 5353, §§ 1, 2, adopted May 31, 2022, repealed the former Ch. 21.3, Art. 21.3-01, §§ 21.3-0101, 21.3-0102, and enacted a new Ch. 21.3, Art. 21.3-01, as set out herein. The former chapter pertained to similar subject matter and derived from Ord. Nos. 5055 (2016), and 5218 (2019).

Section C105.6.2 is hereby amended to delete number 3 regarding compliance documentation.

Section C405.12 is hereby deleted in its entirety.

Section C405.13 is hereby deleted in its entirety.

Section C405.15 is hereby deleted in its entirety.

Section C406.1.2 is hereby deleted in its entirety.

Section C406.3 is hereby deleted in its entirety.

Section C502.3.8 is hereby deleted in its entirety.

IECC - RESIDENTIAL PROVISIONS

Section R101.1 is hereby amended to read as follows:

> **R101.1 Title.** This code shall be known as the Energy Conservation Code of the city of Fargo and shall be cited as such. It is referred to herein as "this code".

Section R103.1 is hereby amended to read as follows:

> **R103.1 Creation of enforcement agency.** The Inspections Department is hereby created and the official in charge thereof shall be known as the authority having jurisdiction (AHJ). The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

Table R402.1.2 is hereby amended to read as follows:

TABLE R402.1.2
MAXIMUM ASSEMBLY U-FACTORS[a] AND FENESTRATION REQUIREMENTS

Maximum Assembly U-Factors[a] and Fenestration Requirements			
Climate Zone	****	6	****
Vertical Fenestration *U*-Factor	****	0.32	****
****	****	****	****
Wood-Framed Wall *U*-Factor	****	0.057	****
****	****	****	****
Basement Wall *U*-Factor	****	0.059	****
	****		****

(balance of table remains unchanged.)

Table R402.1.3 is hereby amended to read as follows:

TABLE R402.1.3
INSULATION MINIMUM R-VALUES AND FENESTRATION REQUIREMENTS BY COMPONENT[a]

Insulation Minimum *R*-Values and Fenestration Requirements by Component			
Climate Zone	****	6	****
Vertical Fenestration *U*-Factor	****	0.32	****
****	****	****	****
Wood-Framed Wall *R*-Value[e, h]	****	21 or 13 & 5 ci	****
****	****	****	****
Basement Wall *R*-Value [b, e]	****	15 or 10 ci	****
	****		****

(balance of table remains unchanged.)

Table R402.5.1.1 is hereby amended to read as follows:

TABLE R402.5.1.1
AIR BARRIER, AIR SEALING AND INSULATION INSTALLATION[a]

Air Barrier, Air Sealing and Insulation Installation		
Component	Air Barrier Criteria	Insulation Installation Criteria
Basement, Crawl Space and Slab Foundations	****	**** Exterior foundation insulation shall be covered and flashed to protect it from exposure to light and weather to a minimum of 6 inches (152 mm) below grade and be covered by a minimum 6-mil polyethylene slip sheet over the entire surface.

(balance of table remains unchanged.)

Section R403.6.3 is hereby deleted in its entirety.

Section R404.2 is hereby deleted in its entirety.

Section R404.3 is hereby deleted in its entirety.

Table R406.5 is hereby amended to read as follows:

TABLE R406.5
MAXIMUM ENERGY RATING SYSTEM

Maximum Energy Rating Index		
Climate Zone	Energy Rating Index Not Including OPP	Energy Rating Index Including OPP
****	****	****
6	58	48

(balance of table remains unchanged.)
Source: 5353 (2022), 5488 (2025).

CHAPTER 22

PLUMBING CODE

Article

22-01 Adoption and Modification of State Plumbing Code--Licenses and Permits, §§ 22-0104.1 to 22-0109, 22-0111, 22-0112, 22-0114, 22-0115, 22-0117, [§§ 22-0101 to 22-0104, 22-0110, 22-0113, 22-0116, 22-0118 Repealed by omission].

22-02 Definitions, §§ 22-0220 [§§ 22-0201 to 22-0219 Repealed by omission].

22-03 Water Supply and Distribution, §§ 22-0301 [§§ 22-0302 to 22-0309 Repealed by omission].

22-04 Drains and Sewers, §§ 22-0404, 22-0432 [§§ 22-0401 to 22-0403, 22-0405 to 22-0431, 22-0433, 22-0434 Repealed].

22-05 Traps and Clean-outs--Repealed by omission.

22-06 Regulations Governing Piping, Repealed by omission.

22-07 Construction and Ventilation of Plumbing Fixtures, § 22-0710 [§§ 22-0701 to 22-0709, 22-0711 to 22-0731 Repealed by omission].

22-08 Sanitary Requirements--Repealed by omission.

22-09 Excavations--Cutting of Pavement and Walks, Repealed by omission.

22-10 Inspection and Testing, § 22-1016 [§§ 22-1001 to 22-1015, 22-1017 to 22-1021 Repealed by omission].

22-11 Compliance with Plumbing Code--Repealed by omission.

ARTICLE 22-01

ADOPTION AND MODIFICATION OF STATE PLUMBING CODE--LICENSES AND PERMITS

Section

22-0101 to 22-0104 Repealed by omission.

22-0104.1 North Dakota State Plumbing Code adopted.

22-0105 Master plumber--License required.

22-0106 Application for license.

22-0107 License fees--Bond of master plumber.

22-0108 Expiration of licenses and bonds.

22-0109 Renewal of licenses.

22-0110 Temporary permits granted--Repealed by omission.

22-0111 Journeyman plumber's license required.

22-0112 Plumbing permit--Application by plumber.

22-0113 Plumbing permit--Repealed by omission.

22-0114 Plumbing permit--Fees.

22-0115 Permits to install water heaters, water softeners, and air-conditioning units--Fees.

22-0116 Refusal of plumbing permit--Repealed by omission.

22-0117 City engineer to locate wye in sewer on request.

22-0118 Table 3.5 of State Plumbing Code modified--Repealed.

22-0101 to 22-0104. Repealed by omission.

22-0104.1. North Dakota State Plumbing Code adopted.--The North Dakota State Plumbing Code is hereby adopted and all installations, repairs, and alterations of plumbing shall, from the effective date of this ordinance, be performed in accordance with its provisions. The installation in buildings of the pipes, fixtures, and other facilitating apparatus for bringing water into, and using the same in buildings, and for removing liquids and water-carried wastes therefrom and including the practice, materials, and fixtures used in the installation, maintenance, extension, and alteration of all piping, fixtures, appliances, and appurtenances in connection with any of the following: sanitary drainage or storm drainage facilities, the venting system, and the public or private water-supply systems, within or adjacent to any building or other structure, or conveyance, also the practice and materials used in the installation, maintenance, extension, or alteration of the stormwater or sewage system of any premises to their connection with any point of public disposal or other terminal in the city of Fargo, North Dakota, shall meet with the provisions of the North Dakota State Plumbing Code as the same are now established in said code, copies of which said code are on file with the city auditor and are hereby a part of the chapter by reference, with the exception of the sections hereinafter set forth affecting local conditions in the city, which sections shall be substituted for and in lieu of any like sections or paragraphs in the North Dakota State Plumbing Code; and the board of city commissioners, by this section, hereby approves and adopts such rules and regulations, as so modified, for use and application in the city of Fargo.

Source: 1952 Rev. Ord. 1966.

22-0105. Master plumber--License required.--No person shall be permitted to conduct the business of master plumber without a license or by virtue of a license issued to any other persons; provided, however, that in the case of a partnership or corporation, such license may be taken for and on behalf of such partnership or corporation in the name of a partner, employee, or officer and may be transferred from one such partner, employee, or officer to another, without the payment of an additional license fee during the year for which license was granted, on application to the city auditor and compliance with other provisions of this chapter, including those with respect to the qualifications of the persons to whom such license may be issued or transferred.

No owner or lessee, nor any representative or agent of any owner or lessee, shall knowingly hire or otherwise engage any unlicensed person to do any plumbing work in any building in the city of Fargo.

Source: 1965 Rev. Ord. 22-0105, 1462 (1973).

22-0106. Application for license.--Application for a master plumber's license shall be made to the city auditor of the city of Fargo. Such application shall state the full name of the applicant, who must be a resident of the city, and his proposed place of business, previous experience, and trade references. The place of business shall be established in a commercial or industrial district according to the zoning ordinances of the city. Before application for license can be made by a journeyman he must have worked under the supervision of a master plumber for a period of three years; and before application for license can be made by an apprentice he must have worked under the supervision of a licensed journeyman or a master plumber for a period of two years.

Source: 1965 Rev. Ord. 22-0106, 1462 (1973).

22-0107. License fees--Bond of master plumber.--Any person to whom a journeyman plumber's license has been granted shall, before receiving such license, pay to the city of Fargo

the required fee, which shall be established by resolution of the board of city commissioners. Any person to whom a master plumber's license has been granted shall, before receiving such license, pay to the city of Fargo the required fee, which shall be established by resolution of the board of city commissioners.

Source: 1965 Rev. Ord. 22-0107, 1462 (1973), 1519 (1973), 2398 (1988).

22-0108. Expiration of licenses and bonds.--All plumbers' licenses and bonds shall expire on December 31st of each year, except that the board of city commissioners may, in its discretion, upon 10 days' written notice to the licensees, cancel the license upon any breach or violation of any of the conditions or requirements set forth in § 22-0107.

Source: 1952 Rev. Ord. 22-0108.

22-0109. Renewal of licenses.--The fee for a renewal of a master plumber's license and for renewal of a journeyman's license shall be in an amount which shall be established by resolution of the board of city commissioners. All licenses must be renewed on or before January 31st. If not renewed by that time, an additional fee of $10 for master plumber's license and $5 for journeyman plumber's license shall be paid. No plumbing permits will be issued until required licenses and bonds are delivered to the proper authorities.

Source: 1965 Rev. Ord. 22-0109, 1519 (1973).

22-0110. Temporary permits granted.--Repealed by omission.

22-0111. Journeyman plumber's license required.--No person shall construct, alter, extend, or repair any plumbing or building drainage or connect any building drain or building sewer with the sewer system of the city of Fargo until such person shall have received a journeyman plumber's license.

Source: 1952 Rev. Ord. 22-0111.

22-0112. Plumbing permit--Application by plumber.--Every licensed plumber, before engaging in the installation, alteration, repair or extending of any plumbing or the connecting of any building sewer or water connection with the sewer or water system of the city, shall make application to the city engineer on appropriate blanks furnished by him for a permit therefor.

Source: 1952 Rev. Ord. 22-0112.

22-0113. Plumbing permit.--Repealed by omission.

22-0114. Plumbing permit--Fees.--The fee for a plumbing permit as required by §§ 17-0202(B) and 22-0112 of the Revised Ordinances of 1965 of the city of Fargo shall be an amount which shall be established by resolution of the board of city commissioners; said resolution shall establish one fee for a residential or commercial building sewer permit and another fee for an industrial building sewer permit.

Source: 1965 Rev. Ord. 22-0114, 1136 (1962), 1853 (1978).

22-0115. Permits to install water heaters, water softeners, and air-conditioning units--Fees.--No person, firm or corporation shall hereafter install or connect any hot-water storage tank, gas, oil, coal, electric water heater, water softener, water filter, or air-conditioning unit without first having obtained a permit to do so from the city engineer. Such permit and

inspection fee shall be in an amount to be established by resolution of the board of city commissioners, and the work shall be inspected by the plumbing inspector to determine whether the same is in conformity with the city ordinances.

Source: 1965 Rev. Ord. 22-0115, 1519 (1973).

22-0116. Refusal of plumbing permit----Repealed by omission.

22-0117. City engineer to locate wye in sewer on request----When a permit has been issued for the plumbing of any premises, the city engineer shall, when requested by the plumber to whom such permit has been issued, locate the wye in sewer.

When the city records are in error and the wye is not found within one pipe length in either direction, the city shall pay the plumber a reasonable amount up to a maximum to be established by resolution of the board of city commissioners for springing in a wye on all sewers 15 inches in diameter and smaller. In similar instances sewers 18 inches in diameter or larger may be tapped, under specifications from the engineering department. When a connection is desired and where permitted at locations or on sewers where wyes do not exist, wyes may be sprung in or sewers tapped as above but at no cost to the city. All sewer and water connections shall be made and laid under the supervision of the city engineer.

Source: 1965 Rev. Ord. 22-0117, 1519 (1973).

22-0118. Table 3.5 of State Plumbing Code modified.--Repealed by Ord. No. 1420 (1972).

ARTICLE 22-02

DEFINITIONS

Section

22-0201 to 22-0219 Repealed by omission.
22-0220 Plumbing inspector.

22-0201 to 22-0219-- Repealed by omission.

22-0220. Plumbing inspector.--"Plumbing inspector" shall mean a person duly appointed by the city engineer and duly authorized under this chapter to make inspections of plumbing installations in the city of Fargo. Such person shall be registered and a holder of a plumber's license issued by the North Dakota State Plumbing Board. He shall also have a city of Fargo plumber's license.

Source: 1952 Rev. Ord. 1966.

ARTICLE 22-03

WATER SUPPLY AND DISTRIBUTION

Section

22-0301 Water services--Quality--Rules regarding.
22-0302 to 22-0309 Repealed by omission.

22-0301. Water services--Quality--Rules regarding.--Water services shall consist of standard copper pipe which shall conform to the latest revision ASTM Specification B88-33 for underground services known as type "K" or type "L" soft tubing, or ASTM Specification F876 for underground services known as Cross-linked Polyethylene PEXa tubing for services two inches in diameter or less. An approved tracer wire must be installed with PEXa tubing to the curb box, following city specifications, to facilitate locating the water line. No service shall be constructed from a main for any purpose of greater capacity than 50% than that of the main and in no case larger than eight inches in diameter. Services one and one-half inches in diameter or less shall be of copper pipe. Taps in mains may be up to one and one-half inches in diameter except on mains six inches in size or less when taps larger than one inch will not be permitted.

Services one and one-quarter inches and one and one-half inches shall be connected to the main by using an approved saddle. On services larger than two inches, a four-inch gate valve may be used as the shutoff, or two inch PEXa tubing is permitted.

Services larger than two inches shall be of standard C900 PVC SDR 18 connected to the main by a "tapping sleeve and valve" or equal or a tee. Gate valves smaller than four inches shall not be used and any service less than four inches in size shall have a four-inch gate valve with proper reducers to meet service size.

In renewing or constructing a larger service to any premises, a permit for such work will not be issued unless the abandoned service is closed at the corporation.

All services shall have minimum depth of seven feet below finished grade and shall have a stop or curb cock fitted with a box, set between the sidewalk and curb and the top of such box to the grade of the sidewalk.

The city water department maintains and repairs all existing services between the corporation and the curb cock only. On services larger than four inches, the gate valve that is tapped of the water main will be considered the curb cock for that service.

The city shall have the right to enter any premises at reasonable times and as necessary to inspect, maintain, repair or terminate the plumbing system when located on private property.

Services shall be fitted with a standard Ball valve adjacent to and on the street side of the meter. An additional valve shall be provided on the house side of the meter when larger than five-eighths inch in size.

For meters one and one-half inches in size, or over, a bypass shall be required with a suitable valve on each side of the meter and a valve in the bypass and also a valve on the service as it enters the building.

Upon completion of a plumbing installation and test, where no service meter exists, the plumber shall close the water service at the curb cock and it shall remain closed until application for a meter shall have been made by the general contractor or the owner and the meter installed by the water department.

A separate and independent water connection shall be provided from the main for each building or subdivision thereof when such subdivisions are under separate ownership.

For duplex dwellings or subdivisions of buildings under single ownership, a shutoff shall be provided for each subdivision at a point between the public sidewalk and the curb, which may be done by branching from a single service at the curb. When existing services to buildings of the latter classification do not conform to these regulations, the owner of such building shall be held responsible for the payment of water charges.

No person, firm or corporation shall connect to an abandoned lead service line to secure water service. Unauthorized connection to a city water service is an infraction.

Source: 1965 Rev. Ord. 22-0301, 1408 (1971), 1420 (1972), 5210 (2019), 5539 (2025).

22-0302 to 22-0309. Repealed by omission.

ARTICLE 22-04

DRAINS AND SEWERS

Section

22-0401 to 22-0403 Repealed by omission.
22-0404 Separate connection with sewers.
22-0405 and 22-0406 Repealed by omission.
22-0407 House sewer--Quality--Repealed.
22-0408 House drains--Depth--Repealed by omission.
22-0409 House sewer--Size--Repealed.
22-0410 to 22-0424 Repealed by omission.
22-0425 Storm water drains--Sewer connection--Repealed.
22-0426 to 22-0431 Repealed by omission.
22-0432 Subsoil, foundation, clear water, and absorption tile drains--Connections prohibited.
22-0433 and 22-0434 Repealed by omission.

22-0401 to 22-0403. Repealed by omission.

22-0404. Separate connections with sewers.--Every building intended for human habitation or occupancy on premises abutting on a street in which there is a public sewer or within 150 feet of a public sewer shall have a separate connection.

A. All connections shall be in accordance with § 62-03-02-19 of the North Dakota State Plumbing Code.

B. All sewer connections in the city which do not comply with this section on the effective date of this ordinance (August 14, 1989) shall be required to be brought into compliance on the occurrence of any of the following events:

1. Upon change of ownership or occupancy, compliance shall be required within 90 days thereof.

2. With respect to property utilizing a septic system, compliance shall be required within 90 days of any failure of the septic system. A failure shall include, but not be limited to, surfacing of sewage effluent, collapse for structural failure of the septic tank, contamination of wells or surface waters by the septic system, or any other circumstance or situation which, in the opinion of the city health officer, is harmful to the public health and welfare.

3. All property shall be required to be brought into compliance with this section not later than 15 years after the date of annexation.

Source: 1952 Rev. Ord. 22-0404, 2464 (1989).

22-0405 and 22-0406. Repealed by omission.

22-0407. House sewer--Quality.--Repealed by Ord. No. 1420, § 2, 1972.

22-0408. House drains--Depth.--Repealed by omission.

22-0409. House sewer--Size.--Repealed by Ord. No. 1420, § 2, 1972.

22-0410 to 22-0424. Repealed by omission.

22-0425. Storm water drains--Sewer connection.--Repealed by Ord. No. 1408, § 2, 1971.

22-0426 to 22-0431. Repealed by omission.

22-0432. Subsoil, foundation, clear water, and absorption tile drains--Connections prohibited.--No surface or ground water drains, including roof drains and foundation drain tiles, shall be connected to the sanitary sewer but shall be connected directly to the city storm sewer or discharged into a sump and thereafter pumped into the city storm sewer system or into a yard in such a manner so as to drain into the city storm sewer system. Where subsoil drains are placed under the cellar floor or used to encircle the outer walls of a building, the same shall be made of open-jointed drain tile or earthenware pipe, four inches in diameter.

Source: 1965 Rev. Ord. 22-0432, 1408 (1971).

22-0433 and 22-0434. Repealed by omission.

ARTICLE 22-05

TRAPS AND CLEAN-OUTS

Note: Article 5 of chapter 22 (sections 22-0501 to 22-0517) of the Revised Ordinances of 1952, as amended by Ord. No. 1066, 1959, relating to traps and clean-outs, manholes and back-water valves, is repealed by omission from the 1965 Revised Ordinances. The subject matter of the former article is covered in the State Plumbing Code, chapters 5 and 6.

ARTICLE 22-06

REGULATIONS GOVERNING PIPING

Note: Article 6 of chapter 22 (sections 22-0601 to 22-0634) of the Revised Ordinances of 1952, as amended by Ord. No. 1066, 1959, relating to piping installations and materials and joints and connections, is repealed by omission from the 1965 Revised Ordinances. The subject matter of the former article is covered in the State Plumbing Code, chapters 2, 3, 4, and 8.

ARTICLE 22-07

CONSTRUCTION AND VENTILATION OF PLUMBING FIXTURES

Section

22-0701 to 22-0709 Repealed by omission.
22-0710 Hot-water heaters.
22-0711 to 22-0731 Repealed by omission.

22-0701 to 22-0709. Repealed by omission.

22-0710. Hot-water heaters.--Hot-water heater installations shall be in accordance with the North Dakota State Plumbing Code.

Source: 1965 Rev. Ord. 22-0710, 1408 (1971).

22-0711 to 22-0731. Repealed by omission.

ARTICLE 22-08

SANITARY REQUIREMENTS

Note: Article 8 of chapter 22 (sections 22-0801 to 22-0808) of the Revised Ordinances of 1952, relating to requirements for toilet rooms and drinking fountains in buildings, including theaters, assembly halls, schools, libraries, museums, apartment houses, hotels, dormitories, club houses, and food shops, is repealed by omission from the 1965 Revised Ordinances. The subject matter of the former article is covered in the State Plumbing Code, chapter 7, Table 7.21.2.

ARTICLE 22-09

EXCAVATIONS--CUTTING OF PAVEMENT AND WALKS

Note: Article 9 of chapter 22 (sections 22-0901 to 22-0906) of the Revised Ordinances of 1952, as amended by Ord. No. 955, 1957, Ord. No. 1066, 1959, Ord. No. 1141, 1963, and

Ord. No. 1193, 1965, relating to excavations in streets or walks, is repealed by omission from the 1965 Revised Ordinances. The subject matter of the former article is covered in sections 18-0412 to 18-0421 and in the State Plumbing Code, chapter 2, section 2.7.

ARTICLE 22-10

INSPECTION AND TESTING

Section

22-1001 to 22-1015 Repealed by omission.
22-1016 Plumber not to leave water turned on.
22-1017 to 22-1021 Repealed by omission.

22-1001 to 22-1015. --Repealed by omission.

22-1016. Plumber not to leave water turned on.--Any plumber who shall perform any work under a plumbing permit shall in no instance leave the water turned on when such work has been completed.

Any plumber leaving the water turned on after completing plumbing and making his test of the service pipe shall be liable to suspension or forfeiture of license.

Source: 1952 Rev. Ord. 22-1016.

22-1017 to 22-1021. Repealed by omission.

ARTICLE 22-11

COMPLIANCE WITH PLUMBING CODE

Note: Article 11 of Chapter 22 (sections 22-1101 and 22-1102) of the Revised Code of 1952, as amended by Ord. No. 1066, 1959, relating to compliance of alterations, repairs, or extensions of existing plumbing with the Plumbing Code and submission of plans for plumbing installations in trailer courts and parks, is repealed by omission from the 1965 Revised Ordinances. The subject matter of the sections is covered in the State Plumbing Code, chapter 2, section 2.5, and chapter 16.

CHAPTER 23

ELECTRICAL CODE

Article

23-01 Licensing Electricians--Repealed.
23-02 Inspection, §§ 23-0201 to 23-0214.
23-03 Fees and Wiring, §§ 23-0301 to 23-0307--Repealed.
23-04 Electric Space Heating, §§ 23-0401 to 23-0412--Repealed.
23-05 Liability for Damages, § 23-0501.

ARTICLE 23-01

LICENSING ELECTRICIANS

Note: Article 23-01 of chapter 23, Licensing Electricians, of the Revised Ordinances of 1965 was repealed by Ord. No. 2009 (1981).

ARTICLE 23-02

INSPECTION

Section

23-0201 Supervisory powers of building official.
23-0202 Duties of building official and inspectors--Issuance of permits--Records--Expenses.
23-0203 Fee required before permit granted.
23-0204 Assistant inspectors.
23-0205 Powers of the building official and inspectors.
23-0206 Building official and inspectors not to engage in electrical business.
23-0207 Existing installations subject to inspection.
23-0208 Other installations subject to inspection.
23-0209 Inspection prior to completion when installations are to be concealed.
23-0210 Notice to inspect--Certificate of approval, when issued.
23-0211 Installations must conform to certain regulations before certificate issued.
23-0212 Condemning work--Petition for review filed with board of appeals.
23-0213 Connection to installations--Certificate of approval required.
23-0214 Re-inspection.
23-0215 Violations.

23-0201. Supervisory powers of building official.--Inspection and tests of electrical installations shall be under the supervision of the building official. The building official shall be the inspections administrator of the inspections division of the planning department.

Source: 1952 Rev. Ord. 23-0201, 4103 (2001), 4130 (2001).

23-0202. Duties of building official and inspectors--Issuance of permits--Records--Expenses.--It shall be the duty of the building official and inspectors to see that the provisions of this chapter are enforced. He shall, upon application, grant permits for the installation of

electric wiring and shall make inspections of all new installations and re-inspection of all electrical installations as provided in this chapter. He shall keep records of all permits issued and inspections made and other official work performed under the provisions of this chapter.

All expense in connection with such activities shall be charged against the receipts of the department in the form of permits and licenses.

Source: 1952 Rev. Ord. 23-0202, 4103 (2001), 4130 (2001).

23-0203. Permit Required.--A permit shall be required for all electrical work as defined in this chapter (whether done by the property owner or otherwise) except for minor repairs, and except as follows:

A. Work of public utilities engaged in the manufacture and distribution of electrical energy when such work pertains directly to the manufacture and distribution of electrical energy.

B. Work of public utilities engaged in telephone, telegraph, and radio communication service when said work pertains directly to such service.

Source: 1952 Rev. Ord. 23-0203, 4103 (2001), 4130 (2001), 4708 (2009).

23-0204. Assistant inspectors.--The building official is empowered to employ, after receiving the approval of the board of city commissioners, an electrical inspector and any assistant inspectors and clerical assistants necessary for the proper conduct of his office and the inspection of electrical installations as provided for in this chapter, the salary of such assistants to be determined by the board of city commissioners.

Source: 1952 Rev. Ord. 23-0204, 4103 (2001), 4130 (2001).

23-0205. Powers of the building official and inspectors.--The building official and the electrical inspector and any assistant inspectors shall have the right during reasonable hours to enter any building in the discharge of their duties or for the purpose of making any inspection or test of the electrical installation or electrical equipment contained therein, and shall have the authority to cause the turning off of all electrical currents and to cut or disconnect in cases of emergency any wire where such electrical currents are dangerous to life or property, or where such wires may interfere with the work of the fire department.

The building official and the electrical inspector are hereby empowered to disconnect or order the discontinuance of electrical service to any electric wiring or equipment found to be defectively installed or otherwise not in conformity with the provisions of this chapter until such wiring, or equipment shall have been made safe as directed by him.

Source: 1952 Rev. Ord. 23-0205, 4103 (2001), 4130 (2001).

23-0206. Building official and inspectors not to engage in electrical business.--It shall be unlawful for the building official, or the electrical inspector, or any of their assistants to engage in the business of the sale or installation of electric wiring or appliances and they shall have no financial interest in any concern engaged in such business in the city at any time while holding such offices.

Source: 1952 Rev. Ord. 23-0206, 4103 (2001), 4130 (2001).

23-0207. Existing installation subject to inspection.--All existing electrical installations in the city of Fargo shall be subject to inspection if reported to be in hazardous condition by any master electrician of the city of Fargo, any member of the state electrical board, any

member of the fire insurance companies, any taxpayer of the city of Fargo, and if, in the opinion of the building official or electrical inspector, a hazard exists, the owner shall be so notified, with a request that the fault be corrected. It shall be left to the board of appeals to determine whether or not such correction be made compulsory.

Source: 1951 Rev. Ord. 23-0207, 4103 (2001), 4130 (2001).

23-0208. Other installations subject to inspection.--Every electrical installation or addition to or alteration of any electrical installation hereinafter installed or made shall be subject to inspection and test as elsewhere provided in this chapter.

Source: 1952 Rev. Ord. 23-0208.

23-0209. Inspection prior to completion when installations are to be concealed.--When any part of a wiring installation is to be hidden from view by the permanent placement of parts of the building, the person, firm, or corporation installing the work shall notify the building official or the electrical inspector, and such parts of the installation shall not be concealed until they have been inspected or until 24 hours (exclusive of Sundays and legal holidays) shall have elapsed from the time of such notice; providing, that on large installations, where the concealment of parts of the wiring proceeds continuously, the person, firm, or corporation installing the work shall give the electrical inspector due notice and inspections shall be made periodically during the progress of the work.

Source: 1952 Rev. Ord. 23-0209, 4103 (2001), 4130 (2001).

23-0210. Notice to inspect--Certificate of approval, when issued.--Upon the completion of the electrical installation or part thereof which has been authorized by issuance of a permit, it shall be the duty of the person, firm, or corporation installing same to notify the building official or electrical inspector, who shall inspect the installation within 24 hours of the time such notice is given and if it is found to be fully in compliance with the provisions of this chapter, he shall issue to such person, firm, or corporation a final certificate of approval, authorizing connecting to the electric service, the turning on of the electric current, and the use of the installation; and he shall send written notice of such authorization to the power company furnishing the electric service. When a certificate is issued authorizing the connection and use of temporary work, such a certificate shall be issued to expire at a stated time and shall be revocable by the building official or electrical inspector at his discretion.

If, upon inspection, the installation is not found to be fully in compliance with this chapter, the building official or electrical inspector shall at once forward to the person, firm, or corporation installing the work a written notice stating the defects that have been found to exist.

Source: 1952 Rev. Ord. 23-0210, 4103 (2001). 4130 (2001).

23-0211. Installations must conform to certain regulations before certificate issued. No certificate of approval shall be issued for electric light, power, and heating installations unless such installations are in strict conformity with the provisions of this chapter, the statutes of the state of North Dakota, the North Dakota State Wiring Standards, Article 24.1-06 of the North Dakota Administrative Code, as amended herein, the ordinances, rules and regulations issued by the board of city commissioners of the city of Fargo, under authority of the state statutes, and unless they are in conformity with approved methods of construction for safety to life and property. The regulations as laid down in the 2023 edition of the National Electrical

Code as currently adopted by the State of North Dakota, as approved by the American Standards Association and in the National Electrical Safety Code, as approved by the American Standards Association, and other installation and safety regulations approved by the American Standards Association, together with the current standards as published by the National Fire Protection Association, shall be prima facie evidence of such approved methods.

Source: 1965 Rev. Ord. 23-0211, 1293 (1969), 1334 (1969), 1418 (1972), 1992 (1980), 2296 (1986), 4103 (2001), 4130 (2001), 4246 (2002), 4708 (2009), 4992 (2015), 5171 (2018), 5291 (2021), 5448 (2024).

23-0212. Condemning work--Petition for review filed with board of appeals.--When the building official or the electrical inspector has condemned all or part of any electrical installation, the owner may, within five days after receiving written notice from the building official or electrical inspector, file a petition in writing for review of said action of the building official or electrical inspector with the board of appeals, upon receipt of which said board of appeals shall at once proceed to determine whether said electrical installation complies with this chapter and within three days shall make a decision with its findings.

Source: 1952 Rev. Ord. 23-0212, 4103 (2001), 4130 (2001).

23-0213. Connection to installations--Certificate of approval required.--It shall be unlawful for any person, firm, or corporation to make connection from a source of electric energy to any electric wiring or equipment for the installation of which a permit is required until a certificate of approval has been issued by the building official or electrical inspector authorizing such connection and the use of such wiring or equipment.

It shall be unlawful for any person, firm, or corporation to make connection from a source of electrical energy to any wiring or equipment that has been disconnected or ordered to be disconnected by the building official or electrical inspector until a certificate of approval has been issued by him authorizing the reconnection and use of such wiring or equipment. The building official or electrical inspector shall seal, lock, and tag such installations so that any person asked to make such connection can readily see such tag.

Source: 1952 Rev. Ord. 23-0213, 4103 (2001), 4130 (2001).

23-0214. Re-inspection.--The building official or electrical inspector is empowered to make a re-inspection of the installation of electric wiring and equipment installed within the city of Fargo and within the scope of this chapter at any time there is reason to believe that any changes or additions have been made to the existing installations or equipment or when there is reason to believe that an unsafe condition exists as a result of the continued use of any electrical wiring or equipment. When the installations of any such wiring or equipment is found not to comply with the requirements of this chapter, the owner of such wiring or equipment shall be notified in writing and shall make the necessary repairs or changes as required and shall have same completed in 15 days, or a longer period if so allowed by the building official or electrical inspector in the written notice.

The building official or electrical inspector is hereby empowered to disconnect or order the discontinuance of electric service to such wiring or equipment until such time as such wiring or equipment has been changed or repaired as required in the building official's or electrical inspector's notice.

Source: 1952 Rev. Ord. 23-0214, 4103 (2001), 4130 (2001).

23-0215. Violations.--Every person, firm or corporation violating any of the provisions of this article shall, upon conviction thereof, be guilty of an infraction, and be punished by a fine not to exceed $1,000.00; the court to have the power to suspend said sentence and to revoke the suspension thereof.

Source: 4103 (2001), 4130 (2001), Ord. 5291 (2021).

ARTICLE 23-03

FEES AND WIRING

Note: Article 23-03 of chapter 23 of the Revised Ordinances of 1965 (§§ 23-0301 to 23-0307) was repealed by Ord. No. 1418, § 2, 1972.

Section 23-0301 as amended by Ord. No. 1517, 1973 was repealed by Ord. No. 1531, 1973.

ARTICLE 23-04

ELECTRIC SPACE HEATING

Note: Article 23-04 of chapter 23 of the Revised Ordinances of 1965 (§§ 23-0401 to 23-0412) was repealed by Ord. No. 1418, § 2, 1972.

ARTICLE 23-05

LIABILITY FOR DAMAGE

Section

23-0501 Liability for damages.

23-0501. Liability for damages.--This chapter shall not be construed to relieve from or lessen the responsibility or liability of any party owning, operating, controlling, or installing any electric wiring, electric devices, or electric equipment for damage to any person or property caused by any defect therein, nor shall the city of Fargo, the building official, the electrical inspector, or the assistant inspectors be held as assuming any such liability by reason of the inspection authorized herein or certificate of approval issued as herein provided.

Source: 1952 Rev. Ord. 23-0401 and 23-0413, 1105 (1961), 4103 (2001), 4131 (2001).

CHAPTER 24

FRANCHISES AND CONTRACTS

Article

24-01 Grants and Privileges to Public Utilities Companies, §§ 24-0101 to 24-0118.
24-02 Cable Television, §§ 24-0201 to 24-0212.
24-03 Grant of Access and Use of Public Rights-of-Way, §§ 24-0301 to 24-0332.
24-04 Wireless Telecommunication Facilities in the Public Right-of-Way--Requirements and Permits, §§ 24-0401 to 24-0424.
24-05 Franchises, §§ 24-0501 to 24-0507.

ARTICLE 24-01

GRANTS AND PRIVILEGES TO PUBLIC UTILITIES COMPANIES

Section

24-0101 Fargo and Southern Railroad Company.
24-0102 St. Paul, Minneapolis, and Manitoba Railroad Company.
24-0103 Northern Pacific Railroad Company.
24-0104 Great Northern Railway Company.
24-0105 Chicago, Milwaukee, St. Paul and Pacific Railroad Company.
24-0106 Courtesy Benches--Repealed.
24-0107 Western Union.
24-0108 Erie Telegraph and Telephone Company.
24-0109 Northwestern Telephone Exchange.
24-0110 North Dakota Independent Telephone Company.
24-0111 Fargo Gas, Light, and Fuel Company.
24-0112 Fargo Gas and Electric Light Company.
24-0113 Alexander and Edmund Hughes (Gas and Electric Company).
24-0114 Union Light, Heat, and Power Company.
24-0115 Northern States Power Company.
24-0116 George Nichols for Laying, Constructing, and Maintaining Water Main (Heating Main).
24-0117 Burlington Northern Railway, for the Operation and Maintenance of a Cable.
24-0118 [Cablecom of Fargo.]
24-0119 Northern States Power Company--Electric.
24-0120 Northern States Power Company--Gas.

24-0101. Fargo and Southern Railroad Company.--

1. Franchise granted May 11, 1883.

There is hereby granted and conferred upon the Fargo and Southern Railroad Company, its successors and assigns, the right, permission, and authority to construct, maintain, and operate such railway tracks and switches as may be necessary for the use of said company; and to run and operate locomotive engines and cars upon said railway tracks and switches, upon and along said Second Avenue from the western end of said Second Avenue to Harwood Street, in the city of Fargo, and upon and over and across the several streets of said city intersecting said avenue between the said western end of Second Avenue and Harwood Street.

The city of Fargo reserves the right to enter upon all portions of said streets and avenues upon or over which said tracks and switches shall be constructed, and to make thereon such excavations, and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes, or other works of a public character without being liable therefor, to any claim for damages. And said railroad company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and shall re-lay at their own expense, when such works are completed from time to time, and protect such railroad during such work.

This right is granted upon the express condition that said railroad company, its successors and assigns, shall construct and maintain good and sufficient sidewalks and street crossings wherever said several streets shall cross Second Avenue. Said railroad company is also granted like permission and authority to construct and maintain and operate its cars and locomotives upon and along said Second Avenue such additional tracks and switches as may be necessary and convenient for the purpose of doing business at its freight yard and depot grounds, and of reaching such depot, yards, warehouses, elevators, and other industries as may be created, erected, or operated along the line of said Second Avenue, and for the transaction of public business thereat.

2. Franchise granted November 26, 1883.

That subject to the conditions and agreements hereinafter contained, there is hereby granted and conferred upon the Fargo and Southern Railroad Company, its successors and assigns, permission and authority to construct, maintain and operate such railway tracks and switches as may be necessary for the use of such company in the proper conduct of its business, and to run and operate locomotive engines and cars on such railway tracks and switches, upon and along Second Avenue in the city of Fargo, from the western side of Harwood Street to the alley extending in a northerly and southerly direction through blocks numbered two (2) and three (3) in Roberts' Addition to said city of Fargo, and upon, over, and across the several streets of said city intersecting said Second Avenue between the limits above mentioned. Such tracks to be laid and maintained upon such grade of such avenue as is or may be established by the said city, and in such manner as least to interfere with the free use of such avenue as a public street.

The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which such tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes, or other works of a public character, without being liable therefor to any damages or claim of damages; and such company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its tracks and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The privileges and rights conferred upon the said railroad company by section one hereof is upon the express condition that said company will, whenever requested by the mayor or common council of said city so to do, reasonable time being given therefor, grade and construct and maintain proper and sufficient street crossings over the tracks of said company at any street or avenue within the city limits, now or hereafter created, whenever such streets or avenues shall intersect or cross said Second Avenue, and will keep the same at all times open for public travel and suitable for public use.

Source: 1952 Rev. Ord. 24-0101.

24-0102. St. Paul, Minneapolis, and Manitoba Railroad Company.--

1. Franchise granted July 15, 1882.

There is hereby conferred upon the St. Paul, Minneapolis, and Manitoba Railway Company, its successors and assigns, permission and authority, to maintain and operate the two railway tracks as now laid and in use by said company, upon and along Fourth Avenue from the west line of Chapin, Johnson, and Barrett's Addition to Fargo, to the east line of "F" Street in Keeney and Devitt's Addition to Fargo, and also to maintain and operate said tracks over and across the several streets of said city between the points last above named.

The city of Fargo reserves the right to enter upon all portions of said streets and avenues upon or over which said tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes, or other works of a public character, without being liable therefor to any claim for damages, and said railway company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and shall protect such railroad during such work, and re-lay at their own expense when such works are completed from time to time.

Said railroad company is also hereby granted like permission and authority to construct, maintain, and operate its cars and locomotives upon and along said Fourth Avenue, such additional tracks, sidetracks, and switches connecting with said two railway tracks now laid, as may be necessary and convenient, for the purpose of doing business at its freight yard and depot grounds in said city and of reaching such warehouses, elevators, and other industries as may be created, erected, or operated along the line of said Fourth Avenue and for the transaction of public business thereat.

The right-of-way conferred upon the said railway company by section one hereof, is upon the express condition that said railway company will, whenever requested by the mayor of said city so to do, reasonable time being given therefor, grade and construct sufficient street crossings over the tracks of said company at Sherman and Grant Streets and Sixth Avenue in said city, and will keep the same at all times open for public travel, as other streets of said city, across which the tracks of said company run.

The right-of-way and franchise conferred upon the said railway company and its successors and assigns by this section 24-0102 is hereby amended to exclude therefrom that certain real property being approximately 0.169 acres lying adjacent to and north of Block 24 of Keeney and Devitts 2nd Addition to the city of Fargo, as established by Resolution of the board of city commissioners of the city of Fargo on May 30, 2023, and recorded at the Office of the Recorder for Cass County, North Dakota, on June 2, 2023, as document number 1690274, by which resolution the Vacation Plat, which was also recorded at said Office on June 2, 2023, as document number 1690275, was approved.

2. Franchise granted March 6, 1884. (Repealed by Ord. No. 1053, 1959).

3. Franchise granted November 1, 1905.

There is hereby granted unto the St. Paul, Minneapolis, and Manitoba Railway Company, its successors and assigns, forever, the right to lay, maintain, and operate railway tracks, at grade, upon, along, and across the following streets and alleys in the city of Fargo, to-wit:

(A) A single track of standard gauge railway upon and along Twenty-Second Street North, in said city of Fargo, from a point of connection with the present railway of the St. Paul, Minneapolis, and Manitoba Railway Company at or about the

intersection of Twelfth Avenue North, with said Twenty-Second Street North, in a southerly direction across Eleventh Avenue, Tenth Avenue, Eighth Avenue, Seventh Avenue, Fifth Avenue, and Third Avenue to a point of connection with the line of railway of the Northern Pacific Railway Company at or about the intersection of said Twenty-Second Street North with First Avenue North.

(B) A single track of standard gauge railway extending from a point of intersection with said first above-described track in said Twenty-Second Street North, at or near the intersection thereof with Tenth Avenue North, along said Twenty-Second Street and over and across Tenth Avenue North, Twenty-First Street North and Twentieth Street North, to a point of connection with the present line of the St. Paul, Minneapolis, and Manitoba Railway Company at a point midway between said Twentieth Street North and Nineteenth Street North.

(C) A single track of standard gauge railway extending from a point of connection with said first above-described track in said Twenty-Second Street North at or near the intersection thereof with Third Avenue North, along said Twenty-Second Street North and over and across First Avenue North and Twenty-Third Street North, to a point of connection with the line of railway of said Northern Pacific Railway Company, together with the right to cross with said track any intervening alleys.

(D) A single track of standard gauge railway upon and along the alley through Blocks 8, 9, 16 of Keeney and Devitt's Addition, and Block 21 of Keeney and Devitt's Second Addition to the city of Fargo, and over and across Second, Third and Fourth Avenues to connect with said alley, and also over and, across Fourth and Fifth Streets between Blocks 21, 22 and 23, respectively, of Keeney and Devitt's said Second Addition, and also over and across the alley in said Block 22 of said Keeney and Devitt's Second Addition, said track so to be laid along the easterly side thereof.

There is also hereby granted unto the said St. Paul, Minneapolis, and Manitoba Railway Company, its successors and assigns, forever, the right to construct, maintain, and operate in and upon Fifth Avenue, between Fourth Street and Broadway, all necessary platforms and sidewalks leading to and connected with the depot now or hereafter located between said streets.

The grants hereby made to said grantee are conditioned upon the performance by said grantee, its successors and assigns, of the following conditions to-wit:

(A) The track to be laid in said alley in Blocks 8, 9, and 16 in Keeney and Devitt's Addition and Block 21 of Keeney and Devitt's Second Addition, and over and across Second, Third, and Fourth Avenues and Fourth and Fifth Streets, and the alley in Block 22 of said Keeney and Devitt's Second Addition, shall be laid at the grade of said alleys and streets, and planking shall be placed and maintained fully between the rails of said track and on either side of said track to the extent of 12 inches, and when said alleys or streets shall be ordered paved by the city of Fargo, then the said railway company shall pave the same between the rails and to the extent of 18 inches on each side of said track, said paving to be done according to the plans and specifications laid down by the city engineer of the city of Fargo, the paving and planking herein referred to be laid and maintained

at the sole cost and expense of the said railway company and to be laid in such a manner as to render the alley and streets suitable and convenient for public travel over the said railway track.

(B) The said grantee, its successors and assigns, shall hold and save the city of Fargo harmless from any and all loss or damage to abutting property owners or others on account of the construction, maintenance and operation of said railway tracks in the streets and alleys hereinbefore described.

(C) The city of Fargo hereby reserves the right at any and all times, at its own expense, to lay sewers and gas or water mains in any of said streets and alleys or across the same under the railway tracks hereby authorized to be laid therein, but in the laying of such sewers and gas and water mains the city of Fargo shall not in any way injure or impair the said tracks or the usefulness thereof for the operation of trains and cars thereover, and shall support said tracks and restore the same to their former condition, all at the sole cost and expense of the said city of Fargo.

(D) The said St. Paul, Minneapolis, and Manitoba Railway Company, its successors and assigns, shall use and enjoy the rights and franchises hereby granted in such manner as not to unnecessarily or unreasonably interfere with the use of said streets and alleys by the public. It being further understood that no cars shall be placed in said alleys unless ordered in for loading or unloading by parties owning or occupying property abutting said alley, and no cars shall be left in said alley, over a reasonable length of time and shall not be left on said street or avenue crossing at any time.

(E) The city of Fargo hereby reserves the right at any and all times at its own expense to erect and maintain poles and wires along or across said alleys and streets for the operation of telegraph and telephone service, or other like use, provided, that the same be so placed that all poles be erected at the extreme east and west sides of the alley, and wires be strung at least 22 feet above the ground and provided further, that this franchise in no way confers the right to said railway company, its successors or assigns, to use the said alleys or streets for the purpose in this subdivision provided.

(F) All the grants hereof shall become null and void unless the said the St. Paul, Minneapolis, and Manitoba Railway Company shall, within 30 days after the passage and approval hereof, file its written acceptance of said ordinance and all the conditions hereby imposed upon it.

Source: 1952 Rev. Ord. 24-0102, 1053 (1959), 5409 (2023).

24-0103. Northern Pacific Railroad Company.--

1. Franchise granted May 11, 1883.

There is hereby granted to the Northern Pacific Railroad Company the right and privilege of laying, constructing and maintaining water pipes along, upon, and under Northern Pacific Avenue through its entire length, and also to lay, construct, and maintain said water pipes across and under the several streets crossing and intersecting with the said Northern Pacific Avenue in the city of Fargo. The said railroad company shall have the right-of-way along, upon, and under the said Northern Pacific Avenue and the several other streets as aforesaid for the purpose of placing, operating, re-laying and repairing their said water pipes,

and whenever the said Northern Pacific Avenue or said other streets shall be disturbed by said railroad they must be restored to their proper condition with the least delay practicable and at the cost of the said railroad company. And said railroad company shall properly protect streets whenever and wherever any excavations or openings are made to lay or repair said water pipes. Said water pipes are to be laid at a depth below the frost limit.

2. Franchise granted October 6, 1884.

That there is hereby granted to the Northern Pacific Railroad Company, its successors and assigns, permission, right, and authority to construct, maintain, and operate a spur track and such switches as may be necessary in connection therewith, in the proper conduct of its business, and to run and operate locomotive engines and cars on said track and switches, upon, through, and along First Street to the lower end of Russell Street in Tyler's Addition to the city of Fargo, as follows:

Entering Dayton Street between Blocks 26 and 27; thence crossing Dayton Street, north of, and parallel to the Fargo and Southern Railroad, and at a distance of 16 feet, center to center; thence entering First Street on the North side of Block 27, and at a point 110 feet west of the southwest corner of Radcliffe and First Streets; thence along First Street, north of and parallel to the Fargo and Southern Railroad at a distance of 16 feet, center to center, to a point in Block 20, 37 feet west of the northwest corner of Russell and First Streets; thence entering Russell Street between Blocks 20 and 18, and crossing the same still north of and parallel to the Fargo and Southern Railroad to Block 18. The spur occupying a space 8 feet in width, 4 feet on each side of the above-described center line.

Such track to be laid and maintained upon such grade of said streets as is or may be established by said city, and in such manner as least to interfere with the use of said streets for public purposes.

The city of Fargo reserves the right to enter at any time upon any or all portions of said street or streets, upon or over which such track or tracks shall be constructed, and to make therein such excavations and do such other work as may be necessary for the construction or repairs of sewers, gutters, water mains, gas pipes, and other works of a public character, said work to be performed in a careful and workmanlike manner, so as to interfere as slightly as possible with said railroad track or tracks and operation over the same.

The privileges and rights granted to and conferred upon said railroad company by the foregoing sections, are upon condition that said railroad company will, whenever requested by the mayor or council so to do, reasonable time being given therefor, grade, construct, and maintain proper and sufficient street crossings over the track or tracks of said company, at any street or avenue, according to the recorded plat of said Tyler's Addition, whenever such street or avenue shall intersect or cross the street or streets occupied by the track or tracks hereinbefore designated, and will keep the same at all times open for the public travel and suitable for public use.

3. Franchise granted March 13, 1891.

That the Northern Pacific Railroad Company is hereby granted and given the right to operate and maintain a sidetrack across Northern Pacific Avenue, at a point about midway between the intersection of Eighth and Ninth Streets North with said Northern Pacific Avenue in the city of Fargo, as the same is now located, constructed, and operated across said avenue, to the lumberyard of the Beidler and Robinson Lumber Company in said city.

4. Franchise granted December 29, 1904.

That the Northern Pacific Railway Company is hereby granted and given the right to construct, maintain, and operate a spur track across the Northern Pacific Avenue in the city of Fargo, extending diagonally across said avenue from a point on the northern edge of the right-of-way of said company, opposite Lot "J" in Block 7 of Roberts Addition to Fargo, to a point on the south line of Lot "G" in Block 7, at and rear of the southwest corner of said Lot "G", said spur track to be in lieu of and instead of the present spur track as now laid and operated across said Northern Pacific Avenue, to connect with the main line of said railway company with the side of the Beidler and Robinson lumberyard, as heretofore conducted in said Block 7; this ordinance, and the permission hereby granted being upon the express condition that said last named spur track as now laid, shall be entirely taken up and removed

from said Northern Pacific Avenue by, or before the track first herein named is put in operation; and the building and commencement of said new track shall be deemed an abandonment of the said now existing track, so far as the same is laid over and across said Northern Pacific Avenue, and provided further, that said Northern Pacific Railway Company shall within 20 days after the passage and approval of this ordinance, and before any work is done upon said proposed new track, make and file with the city auditor its written acceptance of this ordinance, and of its terms as to abandonment and removal of said now existing track; and if said written acceptance be not so filed within said period, this ordinance shall be nonoperative, null, and void.

5. Franchise granted March 13, 1906.

That pursuant to an agreement heretofore entered into between the representatives of the Northern Pacific Railway Company and a committee appointed by the city council for that purpose, which agreement was ratified and confirmed by the city council of said city, the mayor and auditor of said city be, and they are hereby authorized, instructed, and directed to make and enter into a contract in writing on behalf of said city of Fargo with the Northern Pacific Railway Company, in form and substance as set forth in Exhibit "A" hereto attached.

That upon the making and delivery of the deeds mentioned in said contract by said railway company to the city of Fargo, the mayor be and he is hereby instructed to cause the same to be recorded and the plats and tracts of land over and along which an easement is thereby granted to said city for street purposes, shall thereupon become and be a part of the system of streets of said city of Fargo for all purposes.

That upon the completion of a viaduct across the right-of-way of said railway company at Thirteenth Street, mentioned in said contract, and the turning over of the same to the city of Fargo, said viaduct shall become a part of said street system of the said city of Fargo, and shall thereafter be maintained and kept in repair by said city.

There is hereby granted to said Northern Pacific Railway Company the right to construct, establish, and maintain a spur track extending in a southeasterly direction diagonally across Front Street and Thirteenth Street South, leading to the North Half of Block 12 in Original Townsite of said city of Fargo, and entering said half block near the northwest corner thereof, and spur to be used for the purpose of a lumberyard to be located upon the north half of said block.

(Exhibit "A" referred to in (5), first paragraph)

"Agreement, made this _____ day of _____, 1906, between the city of Fargo, North Dakota, hereinafter called the city, and the Northern Pacific Railway Company, hereinafter called the railway company,

Witnesseth:

"The main line of the railway company built under the Act of Congress of July 2nd, 1884, was constructed through what is at present the city of Fargo, in about the year 1871. At that time there was substantially no population, where the city now is, but at the present time the city has grown up on each side of the right of way and tracks of the railway company and comprises a population of about thirteen thousand. Various controversies exist and have for a long time existed between the city and the railway company as to the existence across and upon property of the railway company of various streets in the city, a controversy as to the existence across and upon the railway company's property of First Street, Fourth Street, Thirteenth

Street, and Front Street, and a controversy as to the width of Broadway between Northern Pacific Avenue and Front Street, and one concerning the extent of Northern Pacific Avenue West of Eighth Street.

"The city lately brought suit against the railway company to compel the opening across the right of way of the railway company of Thirteenth Street, and the railway company defended the suit, claiming that the street did not exist across its right of way and that the public had no right to open a street at that location, and that there was no necessity for opening it, which controversy is still pending.

"Fargo is an important division terminal and important point for the gathering up and distribution of traffic for main and branch lines. The railway company has extensive yards in the city which it needs for the accommodation of its business greatly to enlarge. It is essential before the railway company make this expenditure to so locate its yard extension that it will be forever free of grade street crossings, as railroad yards of this character cannot be safely or economically operated across the streets.

"The parties have reached an understanding that all their differences before stated shall be compromised and settled by this agreement.

"Now, therefore, in consideration of the facts and premises before stated and in consideration of the compromise and settlement between the parties of each and every of the controversies aforesaid, and to enable the railway company to so locate and construct its yard extensions and its operations in the city may be safe and economical, the said city of Fargo, and the Northern Pacific Railway Company hereby agree as follows:

"1. The railway company will grant to the city by good and sufficient deed an easement for street purposes in all the tracts of land colored red on the map hereto attached, the railway company reserving the right to maintain and operate the tracks now existing on said lands colored red, also the right to construct additional tracks and operate and maintain the same across said lands at First Street, Fourth Street, Broadway, and Eighth Street. This deed will be made promptly and as soon as the engineers of the respective parties are able to survey the said lands so as to make a correct description thereof.

"2. The railway company will not hereafter, while a grade crossing is maintained at Eighth Street, erect any buildings upon its property or allow any to be erected within ten feet of the West line of Eighth Street.

"3. The said suit involving the opening of Thirteenth Street across the railway company's right of way will be dismissed. The railway company will construct at its own expense a viaduct across its right of way at Thirteenth Street, including the approaches thereto, and the city will indemnify the railway company against all claims for damages to property resulting from its construction. Said viaduct shall have roadway twenty (20) feet in width with a sidewalk on one side six (6) feet in width. The sidewalk however shall extend only from about the north line of Northern Pacific Avenue to about the south line of Front Street, terminating at a stairway on either end leading down to the street underneath. The viaduct will be a steel and concrete structure with wooden floor. The grade of the approaches will not exceed seven percent. Detail plans will be submitted to the city engineer for his approval before construction is commenced. When the viaduct has been completed by the railway company as above, it will be turned over to the city and the city will thereafter maintain it at its own expense, as a part of its street system.

"4. The railway company will have the right to construct, maintain and operate a track across Northern Pacific Avenue under the west approach to the city's bridge on the street across

the Red River; and the city will maintain the approach at its present height so as to permit the operation of said track. The city agrees that upon the execution of said conveyance by the railway company and the construction of said viaduct at Thirteenth Street, it will not at any time thereafter open or maintain, or operate, or seek to open or maintain or operate any street crossing at grade across the right of way of the railway company west of the grade crossing at Eighth Street.

"In Witness Whereof, this agreement is executed by the city of Fargo under the hands of its mayor and city auditor by authority of an ordinance of the city council and the railway company has executed this agreement under its corporate seal and the hands of its president and assistant secretary by authority of its board of directors."

6. Franchise granted September 12, 1907.

That the Northern Pacific Railway Company be and it is hereby granted and given the right to construct, maintain, and operate an additional spur railway track over and across Northern Pacific Avenue in the city of Fargo, running parallel with and not to exceed 25 feet from and on the easterly side of its spur railway track now constructed and operated over and across the said avenue, from a point on the northern edge of the right-of-way of the said railway company, opposite Lot "J" in Block 7 of Robert's Addition to Fargo, to a point on the south line of Lot "F" in said Block 7 about 25 feet east of the said spur track now constructed and in operation.

This ordinance shall take effect and be in force from and after its passage, approval, and publication and the acceptance thereof by the Northern Pacific Railway Company, which acceptance shall be in writing and be filed in the office of the city auditor of the city of Fargo not later than 30 days from and after the publication of this ordinance.

Whereas, the city of Fargo has granted and given the Northern Pacific Railway Company the right to construct, maintain, and operate an additional spur railway track over and across Northern Pacific Avenue in the city of Fargo, running parallel with and not to exceed 25 feet from and on the easterly side of its spur railway track now constructed and operated over and across the said avenue, from point on the northern edge of the right-of-way of the said railway company, opposite Lot "J" in Block 7 of Robert's Addition to Fargo, to appoint on the south line of Lot "F" in said Block 7, about 25 feet east of the said spur track now constructed and in operation; such permissions being granted by ordinance approved September 12, 1907, and published September 13, 1907.

Now, therefore, the Northern Pacific Railway Company hereby accepts the said ordinance by this instrument, within 30 days from the date of publication of said ordinance, and the said Northern Pacific Railway Company consents to the terms and conditions of said ordinance and agrees to perform all acts and things required by said ordinance to be done by said Northern Pacific Railway Company and it requests the city auditor of Fargo to file this acceptance as in said ordinance provided.

Northern Pacific Railway Company,
By Thomas Cooper, Land Commissioner

Dated October 4th, 1907
(Acceptance filed October 5, 1907)

7. Franchise granted February 14, 1920.

The Northern Pacific Railway Company is hereby granted permission at its sole cost and expense to build and construct a subway in Tenth Street in the city of Fargo, to carry said street across its right-of-way and under its tracks.

The subway shall be constructed in accordance with the plans and specifications prepared by the railway company and approved and accepted by the city commission of the city of Fargo. That portion of the subway on the railway company's property shall be timber or other approved material with re-enforced concrete lining. That portion of the subway outside the limits of the railroad company shall be re-enforced concrete construction throughout. The subway shall provide a roadway of not less than 33 feet with two 8-foot sidewalks, one upon each side of the roadway, with supports in the center of the roadway and at each curb line. Clear head-room over the roadway shall be at least 12' 6" and over the sidewalks not less than 9 feet. The center of the roadway at the lowest point to be at an elevation 886.7 feet of the established datum of the railway company. The enclosed portion of the subway shall be sloped sufficiently to provide adequate drainage and from the ends of the enclosed portion to an intersection with the existing street grades, the approaches shall rise on a grade of 6 feet in 100 feet.

The city will by proper proceedings, extend Tenth Street across the right-of-way of the railway company in the manner shown on the plans accepted by the city commission.

Upon completion of the subway, the city shall thereafter maintain all portions of the subway not on the right-of-way of the railway company and shall maintain the streets and sidewalks on Tenth Street, as opened across the railway company's right-of-way, in the same manner as all other streets in said city. The railway company shall maintain all of the subway located on its right-of-way at its own cost and expense.

Such lighting as may be ordered by the city to adequately illuminate the subway shall be provided by the railway company at its own expense.

The railway company shall install and maintain a motor-driven pump below the level of the subway in order to remove water therefrom, and to deliver the same into the city sewer.

The railway company is hereby permitted and authorized to enter upon the streets, avenues, and alleys and make such excavations and do such work as may be necessary to construct said subway, also to obstruct or close temporarily any streets, avenues, or alleys to such extent and for such length of time as may be reasonably necessary, also to construct and maintain temporarily structures and false work in the streets, avenues, and alleys subject to the approval of the city engineer.

All water pipes, sewers, and other utilities owned by the city, including all service connections necessary to the abutting property, shall be moved to the position made necessary by the change of grade in streets, avenues, and alleys under this ordinance by the railway company under the supervision of the city, it being understood that the cost and expense of such changes in the position of utilities by the city made necessary by this work shall be borne by the railway company.

The city of Fargo shall, by necessary proceedings, establish the changes in the grades of streets and avenues required by this work.

The railway company shall signify in writing its acceptance of this ordinance and all the terms thereof within 30 days after its passage, and the Northern Pacific Railway Company shall thereupon commence the work of constructing said subway within three months thereafter and shall diligently pursue and continue the same until it is completed.

8. Franchise granted May 19, 1920.

That the Northern Pacific Railway Company is hereby granted and given the right to construct, maintain, and operate a spur track across Northern Pacific Avenue, beginning at a point on the south line of Northern Pacific Avenue in the city of Fargo, North Dakota, 130 feet

east from the produced easterly line of Ninth Street North, thence northerly along a curve to the left across said Northern Pacific Avenue to the northerly line thereof at a point therein 145 feet easterly from the easterly line of said Ninth Street North.

Also beginning at a point on the south line of Northern Pacific Avenue in said city 135 feet east from the produced easterly line of said Ninth Street North, thence northerly along a curb to the left across said Northern Pacific Avenue to the northerly line thereof at a point therein 158 feet easterly from the easterly line of said Ninth Street North, conditioned that said spur tracks are to be in lieu of the present spur tracks as now laid and operated across said Northern Pacific Avenue in said city between Eighth and Ninth Streets North.

This ordinance and permission hereby granted the Northern Pacific Railway Company by said city is made necessary by reason of the construction of the subway crossing the Northern Pacific Railway Company's right-of-way on Tenth Street in said city.

9. Franchise granted March 29, 1944.

The Northern Pacific Railway Company, a corporation, its successors and assigns, is hereby granted the right, authority and permission to establish, construct, maintain and operate railroad tracks and crossings over and across Twenty-Third Street North in the city of Fargo, Cass County, North Dakota, at a point approximately 18 feet south of the existing southerly main line tracks of the said Northern Pacific Railway Company, which tracks now cross the said Twenty-Third Street North, said tracks and crossing to be approximately parallel with the existing tracks and crossing of the said Northern Pacific Railway Company over and across said Twenty-Third Street, and in accordance with and as shown by the red line on the attached blue print.

The said Northern Pacific Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said construction, maintenance and operation of the said railroad tracks and crossing.

The grantee named herein shall, within 10 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

10. Franchise granted February 1, 1949.

The Northern Pacific Railway Company, a corporation, its successors and assigns, is hereby granted the right, authority and permission to establish, construct, maintain and operate a railroad track over and along Ridgley Street (original plat) and now known as Twenty-Fifth Street from a point south of First Avenue North and to Third Avenue North, in approximate accordance with the solid red line on the attached plat.

The said Northern Pacific Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said construction, maintenance and operation of the said railroad tracks and crossing.

The grantee named herein shall, within 10 days after the passage and approval hereof file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

11. Franchise granted September 18, 1956.

The Northern Pacific Railway Company, a corporation, its successors and assigns, is hereby granted the right, authority and permission to establish, construct, maintain and operate a railroad industrial track over and across First Avenue North between Fifteen and One-half and Sixteenth Streets North, and extending through the alley as now located in Block "A" of Stern's Subdivision of Block 17, of Reeve's Addition to the city of Fargo, in approximate accordance with the red line markings on plat attached hereto, said track to be an extension of the Northern Pacific spur track presently running through the alley in Block 25 of Reeve's Addition to the city of Fargo and presently terminating at the south side of First Avenue North.

The said Northern Pacific Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said construction, maintenance and operation of the said railroad tracks and crossing.

The grantee named herein shall, within 10 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

Source: 1952 Rev. Ord. 24-0103, (Subdiv. (11) added by Ord. No. 979, 1956.)

24-0104. Great Northern Railway Company.--

1. Franchise granted June 17, 1910.

There shall be, and hereby is granted to the Great Northern Railway Company, a corporation, authority to build, erect, construct, and maintain one or more railway tracks over and across the following streets, avenues, and alleys, and through Beardsley's Addition to said city of Fargo, to-wit:

> Seventeenth Street North, Eighteenth Street North, Nineteenth Street North, Twentieth Street North, Twenty-First Street North, Twenty-Second Street North, Twenty-Third Street North, and Twenty-Fourth Street North; Eighth Avenue North, Ninth Avenue North, Tenth Avenue North, and Eleventh Avenue North, Alley in Blocks 9, 10, 13, 14, 15, 25, 22, 23, and 24, said Beardsley's Addition.

The particular points at which said tracks may be constructed across said streets, alleys, and avenues being at the points where the line of railway of the said Great Northern Railway Company heretofore surveyed, laid out, located, and established through said addition, known as the Fargo-Surrey branch or line of railway, and which connects with the main line of the Great Northern Railway Company, extending through said city, intersects the various streets, avenues, and alleys, above referred to; the course of said line of railway across said streets, avenues, and alleys being designated as near as may be as follows:

> The located center line of the Fargo-Surrey line of the Great Northern Railway Company enters Beardsley's Addition, at a point 94.1 feet north, 20° and 30' east of the northeast corner of Lot Five (5) of the Southwest Quarter (SW¼) of the Northeast Quarter (NE¼) of Section One (1), Township One Hundred Thirty-Nine (139) North, of Range Forty-Nine (49) West, being Lot Five (5) of Auditor's Plats of Miscellaneous Tracts; thence in a northwesterly direction to a point 74.3 feet north of the southwest corner of the east half of Block 22, at which point said center line crosses the east line of the alley in Block 22; thence in a northwesterly direction to a point 159.4 feet north of the southwest corner of Block 22, at which point said center line crosses the east line

of Seventeenth Street North; thence northwesterly to a point 276.3 feet north of the southwest corner of the East Half of Block 23, at which point said center line crosses the east line of the alley in Block 23; thence northwesterly to a point 361.3 feet north of the southwest corner of Block 23 at which point said center line crosses the east line of Eighteenth Street North; thence northwesterly to a point 478.2 feet north of the southwest corner of the east half of Block 24, at which point said center line crosses the east line of the alley in said Block 24; thence northwesterly to a point 650.8 feet north of the northwest corner of Lot One (1), of the Southeast Quarter (SE¼) of the Northwest Quarter (NW¼) of Section One (1), Township One Hundred Thirty-Nine (139) North, of Range Forty-Nine (49) West, being Lot One (1), of Auditor's Plats of Miscellaneous Tracts, at which point said center line crosses the east line of Nineteenth Street North; thence northwesterly to a point 7.5 feet south of the northwest corner of the East Half of Block 25, at which point said center line crosses the east line of the alleys in said Block 25; thence northwesterly to a point 149.5 feet east of the northwest corner of Block 25, at which point said center line crosses the south line of Tenth Avenue North; thence northwesterly to a point 77.5 feet north of the northwest corner of Block 25, at which point said center line crosses the east line of Twentieth Street North; thence northwesterly to a point 114.3 feet north of the southwest corner of the East Half of Block 15, at which point said center line crosses the east line of the alley in said Block 15; thence northwesterly to a point 199.4 feet north of the southwest corner of Block 15, at which point said center line crosses the east line of Twenty-First Street North; thence northwesterly to a point 310.7 feet north of the southwest corner of the East Half of Block 14, at which point said center line crosses the east line of the alley in said Block 14; thence northwesterly to a point 395.7 feet north of the southwest corner of Block 14, at which point said center line crosses the east line of Twenty-Second Street North; thence northwesterly to a point 507.5 feet north of the southwest corner of the East Half of Block 13, at which point said center line crosses the east line of the alley in said Block 13; thence northwesterly to a point 14.5 feet east of the northwest corner of Block 13, at which point said center line crosses the south line of Eleventh Avenue North; thence northwesterly to a point 12.3 feet north of the northwest corner of Block 13, at which point said center line crosses the east line of Twenty-Third Street North; thence northwesterly to a point 40.7 feet north of the southwest corner of the East Half of Block 9, at which point said center line crosses the east line of the alley in said Block 9; thence northwesterly to a point 126.7 feet north of the southwest corner of Block 9, at which point said center line crosses the east line of Twenty-Fourth Street North; thence northwesterly to a point 233 feet north of the southwest corner of the East Half of Block 10, at which point said center line crosses the east line of the alley in said Block 10; thence northwesterly to a point 345.5 feet north of the southwest corner of Block 10; thence northwesterly to a point 250.3 feet south of the northwest corner of Section One (1), Township One Hundred Thirty-Nine (139) North, of Range Forty-Nine (49) West, at which point the said center line leaves said Beardsley's Addition.

Tracks shall be built in such a manner as not to obstruct said street, avenue, or alleys, or interfere with the travel thereon or the ordinary use of the same.

That the said tracks or line of railway shall be so constructed where the same intersect with the streets, avenues, and alleys aforesaid as to permit ordinary traffic and use thereof, and not to impair or interfere with the same.

2. Franchise granted November 22, 1944.

There is hereby granted and conferred upon the Great Northern Railway Company, its successors and assigns, permission and authority to construct, maintain and operate such railway tracks and switches as may be necessary for the use of such company in the proper conduct of its business, and to run and operate locomotive engines and cars on such railway tracks and switches, such sidetracks or spur tracks to extend from a connection with the main tracks of said railway company in a southeasterly direction across Seventh Avenue North, the center line of said track intersecting the center line of Seventh Avenue North at a point approximately 115 feet west of the west line of Fifteenth Street North, extended, and continuing southeasterly across Sixth Avenue North, the center line of said tracks intersecting the center line of Sixth Avenue North at a point approximately 30 feet west of the west line of Fifteenth Street North, and continuing southeasterly across Fifteenth Street North, the center line of said track intersecting the center line of Fifteenth Street North at a point approximately 32 feet south of the south line of Sixth Avenue North, extending thence southeasterly across the northwest corner of Block 5 of Reeve's Addition to Fargo to the alley, as platted but not now in use, (extending east and west through the center of said block), thence eastward along said alley to the west line of Fourteenth Street North. Such tracks shall be laid and maintained upon such grade as is or may be established by the said city, and in such manner as least to interfere with the free use of such avenues and streets as public streets and avenues.

The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which such tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefor to any damages or claim of damages; and such company, its successors and assigns shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its tracks and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The privileges and rights conferred upon the said railway company by section one hereof is upon the express condition that the said company will, whenever requested by the board of city commissioners of said city so to do, reasonable time being given therefor, grade and construct and maintain proper and sufficient street crossings over the tracks of said company, covered by this ordinance, and will keep the same open at all times for public travel and suitable for public use; that it will also afford any reasonable protection required by the board of city commissioners for the protection of the traveling public at the points of intersection of said tracks with such streets or avenues.

3. Franchise granted December 5, 1945.

Authority is hereby granted to the Great Northern Railway Company, its successors and assigns, to construct, maintain and operate a railroad track across Fourteenth Street between Fifth Avenue North and Sixth Avenue North and within and along the alley in Block 6 of Reeve's Addition to the city of Fargo, said track extending from connection with an existing railroad track of said Great Northern Railway Company in the alley of Block 5, Reeve's Addition, at or near the west boundary of said Fourteenth Street North, easterly across Fourteenth Street and along and within the alley in Block 6 of Reeve's Addition for a distance of 250 feet in said alley.

The said track shall be constructed and maintained flush with the surface of Fourteenth Street and alley at the established grade thereof, so as to cause the minimum of interference with travel thereover. The railway company shall maintain the traveled portion of said street with plank or other suitable material between the rails and for two feet on each side thereof. Whenever the city shall pave any part of the street included in this franchise the railway company shall pay for and maintain in good condition the pavement between the rails and for two feet on each side thereof. All of the work shall be done to the satisfaction of the city council.

The city of Fargo reserves the right at any time to enter upon any or all portions of said Fourteenth Street or the alley in said Block 5 upon or over which said track shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefore to any damages or claims of damages; and said railway company, its successors or assigns, shall afford all reasonable aid and facilities to said city of Fargo in doing such work, and re-lay its said tracks and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are being made, all of which said railway company, by acceptance of the privileges granted hereby, agrees to do.

The railway company, its successors or assigns, shall hold the city of Fargo harmless from every liability and damage from the construction, maintenance and operation of said track across said street and within and along said alley.

All of the rights and privileges herein granted are subject to the provisions of the Charter of the city of Fargo relating to franchises of this character, to the same extent and as fully as if set forth herein.

4. Franchise granted October 15, 1946.

The Great Northern Railway Company is hereby authorized and empowered to build, construct, maintain and operate the following described sidetracks, across the following avenues, streets and alleys in the city of Fargo, North Dakota:

A spur track extending in a northerly and southerly direction and crossing Sixth Avenue North and the alley in Block 4 of Reeve's Addition, the center line of said spur track intersects the center line of Sixth Avenue North approximately 95 feet west of the west line of Fifteenth Street North and intersects the center line of the alley in said Block 4 approximately 80 feet west of the west line of Fifteenth Street North.

A second spur track extending from a connection with the track above described at a point in Sixth Avenue North in a southeasterly direction and crossing Sixth Avenue North and Fifteenth Street North, the center line of said spur track intersects the south line of Sixth Avenue North approximately 36 feet west of the west line of Fifteenth Street North and intersects the west line of Fifteenth Street North approximately 110 feet south of the south line of Sixth Avenue North and intersects the east line of Fifteenth Street North approximately 145 feet south of the south line of Sixth Avenue North.

A third spur track extending from a connection with the existing spur track of said railway company at a point near the south line of Seventh Avenue North in a southeasterly direction and crossing Sixth Avenue North and Fifteen Street North, the center line of said spur track intersects the north line of Sixth Avenue North approximately 70

feet west of the west line of Fifteenth Street North, and intersects the east line of Fifteenth Street North approximately 25 feet south of the south line of Sixth Avenue North.

A fourth spur track extending from a connection with the spur track last above referred to at a point approximately 45 feet north of the north line of Sixth Avenue North in a southeasterly direction and crossing Sixth Avenue North and Fifteenth Street North, the center line of said spur track intersects the north line of Sixth Avenue North approximately 65 feet west of the west line of Fifteenth Street North, and intersecting the east line of Fifteenth Street North approximately 10 feet south of the south line of Sixth Avenue North.

All ordinances or parts of ordinances in conflict herewith are hereby repealed.

5. Franchise granted December 7, 1948.

There is hereby granted and conferred upon the Great Northern Railway Company, a corporation, its successors and assigns, authority to construct, maintain and operate a railway spur track extending from a point on the existing track of the Great Northern Railway Company on Twenty-Second Street North upon a portion of said Twenty-Second Street described as follows:

Beginning at a point in the center line of said railway company's interchange track as now established in Twenty-Second Street North, distant 280 feet south of the south line of Tenth Avenue North; thence easterly at right angles thereto 8.9 feet; thence southwesterly along a curve to the right having a radius of 773.49 feet, 98 feet; thence southwesterly tangent to said curve 97.2 feet; thence southwesterly along a curve to the right having a radius of 379.78 feet, 88 feet, more or less, to a point in the west line of said Twenty-Second Street North distant 552.8 feet south of the south line of Tenth Avenue North; thence northerly along said west line of Twenty-Second Avenue North, 62 feet; thence northeasterly along a curve to the left having a radius of 361.78 feet, 26.2 feet to a point 9 feet northwesterly measured at right angles from the center line of said spur track; thence northeasterly tangent to last described curve 97.2 feet; thence northeasterly, along a curve to the left having a radius of 755.49 feet, 95.7 feet; thence easterly at right angles to the center line of said interchange track 9.1 feet to the point of beginning. The said center line of said proposed spur track is described as follows:

Beginning at a point in the center line of said interchange track in Twenty-Second Street North, 267.9 feet distant south of the south line of Tenth Avenue North; thence southwesterly along a 7°30' curve to the right having a radius of 764.49 feet, a distance of 12.1 feet to the northerly limits of the above-described 18 foot strip in Twenty-Second Street North; thence continuing southwesterly along said 7°30' curve 96.8 feet; thence southwesterly tangent to said 7°30' curve 97.2 feet; thence southwesterly along a 15°30' curve to the right having a radius of 370.78 feet, 227.6 feet; thence southwesterly tangent to said 15°30' curve 482.4 feet to the end of said spur track, said end of spur track being 252.92 feet distant northerly from the center line of Seventh Avenue North; measured at right angles thereto from a point therein 452.17 feet distant westerly from the center line of Twenty-Second Street North.

The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which such tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without

being liable therefor to any damages or claim of damages, and such company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its tracks and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The said Great Northern Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said construction, maintenance and operation of the said railroad tracks and crossing.

All of the rights and privileges herein granted are subject to the provisions of the charter of the city of Fargo relating to franchises of this character, to the same extent, and as fully as if set forth herein.

6. Franchise granted December 20, 1949.

The Great Northern Railway Company, a corporation, its successors and assigns, is hereby granted the right to construct, maintain and operate an interchange and industrial railway track extending from a point of connection with the existing track of said Great Northern Railway Company described in section one, paragraph (A) of ordinance passed October 30, 1905, entitled "An Ordinance Granting to the St. Paul, Minneapolis and Manitoba Railway Company the Right to Lay, Maintain and Operate Railway Tracks in, upon and across Certain Streets and Alleys in the City of Fargo, North Dakota" at a point opposite a point approximately midway between the north and south lines of Lot 7, Block 6, Tyler's Addition to a point on the north line of Lot 11, Block 22, Tyler's Addition, said track to be located and constructed to the west of and with center line generally 14 feet distant from the center line of the track covered by said ordinance, passed October 30, 1905.

There is also hereby granted to Great Northern Railway Company, its successors and assigns, the right to construct, maintain and operate a crossover track extending from a connection with the existing track of the Great Northern Railway Company constructed pursuant to said ordinance passed October 30, 1905, at a point opposite a point approximately midway between the north and south lines of Lot 5, Block 6, Tyler's Addition to a connection with the track of the Chicago, Milwaukee, St. Paul and Pacific Railroad Company authorized by Ordinance No. 825, passed June 7, 1949, at a point approximately 115 feet north of the north line of Fifth Avenue North; also a connecting track in Twenty-Second Street North, opposite the south line of Lot 1, Block 11, Tyler's Addition, and leading from a connection with said interchange track described in section one hereof southwesterly to a correction with the track serving the Dakota Transfer and Storage Terminal.

The said Great Northern Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from, or growing out of, any action, or proceeding, brought by any person, firm or corporation on account of any matter, or thing, connected with the construction, maintenance and operation of the railroad trackage, authorized by this ordinance.

Said Great Northern Railway Company shall within 20 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

7. Franchise granted January 10, 1950.

The Great Northern Railway Company, a corporation, its successors and assigns, is hereby granted the right, authority and permission to establish, construct, maintain and operate a railroad spur track from a point in Block 3 of Reeve's Addition to the city of Fargo, Cass County, North Dakota, southerly across Sixth Avenue North, across the alley in Block 4 of Reeve's Addition, across Fifth Avenue North, easterly across Fifteenth Street North and over and along the alley in Block 8 of Reeve's Addition, all in accordance with the red track markings as shown on the attached plat.

The said Great Northern Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damage, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said construction, maintenance and operation of the said railroad tracks and crossing.

The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which such tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefor to any damages or claim of damages; and such company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its tracks and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The privileges and rights conferred upon the said railway company by section one hereof is upon the express condition that the said company will, whenever requested by the board of city commissioners of said city so to do, reasonable time being given therefor, grade and construct and maintain proper and sufficient street crossings over the tracks of said company, covered by this ordinance, and will keep the same open at all times for public travel and suitable for public use; that it will also afford any reasonable protection required by the board of city commissioners for the protection of the traveling public at the points of intersection of said tracks with such streets or avenues.

The grantee named herein shall, within 10 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

8. Franchise granted August 1, 1950.

The Great Northern Railway Company, a corporation, its successors and assigns, is hereby granted the right, authority and permission to establish, construct, maintain and operate a railroad spur track at street grade level extending in an easterly and westerly direction in the alley in Block 7, Reeve's Addition, and crossing Fourteenth Street North; the center line of said spur track being parallel with and distant 8.6 feet, more or less, southerly from the north line of said alley and extending from a point approximately 10 feet east of the west line of Lot 4, produced, in said Block 7, westerly to a connection with the existing spur track of said Great Northern Railway Company near the west line of Fourteenth Street North, all in accordance with the red track markings as shown on the attached plat.

The said Great Northern Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damage, costs or expenses in any way arising from or growing

out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said construction, maintenance and operation of the said railroad tracks and crossing.

The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which such tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefor to any damages or claims of damages; and such company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its tracks and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The privileges and rights conferred upon the said railroad company by section one hereof is upon the express condition that the said company will, whenever requested by the board of city commissioners of said city so to do, reasonable time being given therefor, grade and construct and maintain proper and sufficient street crossings over the tracks of said company, covered by this ordinance, and will keep the same open at all times for public travel and suitable for public use; that it will also afford any reasonable protection required by the board of city commissioners for the protection of the traveling public at the points of intersection of said tracks with such streets or avenues.

The grantee named herein shall, within 10 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

9. Franchise granted August 29, 1950.

The Great Northern Railway Company, a corporation, its successors and assigns, is hereby granted the right, authority and permission to establish, construct, maintain and operate a railroad spur track at street grade level, in the city of Fargo, North Dakota, extending across Seventh Avenue North from a point in the northerly line thereof distant 120 feet west of the west line of Fifteenth Street North, extended, southerly to a point in the south line of said Seventh Avenue North distant 95 feet west of said west line of Fifteenth Street North, all in accordance with the red track markings as shown on the attached plat.

The said Great Northern Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damage, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said construction, maintenance and operation of the said railroad tracks and crossing.

The city of Fargo reserves the right at any time to enter upon any, or all portions of such streets or avenues, upon or over which such tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefor to any damages or claims of damages; and such company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its tracks and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The privileges and rights conferred upon the said railway company by section one hereof is upon the express condition that the said company will, whenever requested by the board of city commissioners of said city so to do, reasonable time being given therefor, grade and construct and maintain proper and sufficient street crossings over the tracks of said company, covered by this ordinance and will keep the same open at all times for public travel and suitable for public use; that it will also afford any reasonable protection required by the board of city commissioners for the protection of the traveling public at the points of intersection of said tracks with such streets or avenues.

The grantee named herein shall, within 10 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

10. Franchise granted May 22, 1962.

The Great Northern Railway Company, a Minnesota corporation, its successors and assigns, be and hereby is granted the right, authority and permission, without charge therefor, to locate, maintain and operate one track in Twenty-Second Street North, Fifth Avenue North, across the alley in Block 6 of Tyler's Addition, and across Twenty-Third Street North, Twenty-Fourth Street North, Twenty-Fifth Street North, and Twenty-Seventh Street North in the city of Fargo, North Dakota, the center line of said spur track being described as follows:

> Beginning at a point in the center line of the existing Great Northern Railway Company track in Twenty-Second Street North, approximately 228 feet south and 58 feet east from the northeast corner of said Block 6, said point being at Railway Company survey station 31+27.2; thence southwesterly along a No. 7 turnout curve to the right, 61 feet; thence southwesterly tangent to said turnout curve, 7 feet; thence southwesterly along a 21°40' curve to the right, 377.7 feet; thence westerly, tangent to last described curve, 270 feet; thence northwesterly along a 12°30' curve to the right, 89.6 feet; thence westerly along a 12°30' curve to the left, 89.6 feet; thence westerly, tangent to last described curve 1043.1 feet; thence southwesterly along a 12°30' curve to the left, 56.5 feet; thence southwesterly along a 12°30' curve to the right 27 feet, more or less, to the west line of said Twenty-Seventh Street North and the end of center line being described. Also, a franchise for an additional spur track, beginning at a point in the above-described center line 18 feet east from the east line of Twenty-Fifth Street North; thence southwesterly along a reverse turnout curve to the left and right across said Twenty-Fifth Street North to a point distance 14 feet south of said above-described center line; thence westerly parallel with said above-described center line and center line extended to the west line of Twenty-Seventh Street North.

The location of said track shall be as is shown by the area colored red upon the attached plat.

The said Great Northern Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said location, maintenance and operating of the said tracks.

The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which such tracks as shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefor to any damages or claim of damages; and such company, its successors

and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its track and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The privileges and rights conferred upon the said railroad company by section one hereof is upon the express condition that the said company will, whenever requested by the board of city commissioners of said city so to do, reasonable time being given therefor, grade and construct and maintain proper and sufficient street crossings over the tracks of said company, covered by this ordinance, and will keep the same open at all times for public travel and suitable for public use; that it will also afford any reasonable protection required by the board of city commissioners for the protection of the traveling public at the points of intersection of said track with all of the streets, alleys and avenues involved.

The grantee named herein shall, within 20 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

11. Franchise granted June 5, 1962.

The Great Northern Railway Company, a Minnesota corporation, its successors and assigns, be and hereby is granted the right, authority and permission, without charge therefor, to locate, maintain and operate one track on Twenty-Second Street North and across a portion of Fifth Avenue North in Block 6 of Tyler's Addition to the city of Fargo, Cass County, North Dakota, the center line of said spur track being described as follows:

> Beginning at a point in the existing Great Northern Railway Company track, approximately 15 feet south and 42 feet east from the southeast corner of said Block 6, said point being at Railway Survey Station 34+34; thence northwesterly through a No. 9 turnout and along a 7°30' curve to the left 149.2 feet; thence northwesterly along a 7°30' curve to the right, 161.1 feet; thence northerly, tangent to last described curve, 216.2 feet to the end of center line being described.

The location of said track shall be as is shown by the area colored red upon the attached plat.

The said Great Northern Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said location, maintenance and operating of the said tracks.

The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which said tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefor to any damages or claim of damages; and such company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its track and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The privileges and rights conferred upon the said railroad company by section one hereof is upon the express condition that the said company will, whenever requested by the board of city commissioners of said city so to do, reasonable time being given therefor, grade and construct and maintain proper and sufficient street crossings over the tracks of said

company, covered by this ordinance, and will keep the same open at all times for public travel and suitable for public use; that it will also afford any reasonable protection required by the board of city commissioners for the protection of the traveling public at the points of intersection of said track with all of the streets, alleys and avenues involved.

The grantee named herein shall, within 20 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

12. Franchise granted October 6, 1967.

Section 1. The Great Northern Railway Company, a Minnesota corporation, its successors and assigns, be and hereby is granted the right, authority and permission, without charge therefor, to locate, maintain and operate one spur track over and across the intersection of Eighth Avenue North, Eighteenth Street North and Great Northern Drive in Fargo, North Dakota, the center line of said spur track being described as follows:

> Beginning at a point in the north line of Eighth Avenue North in the city of Fargo, North Dakota, which is also a point in the south line of Lot 15, Block 23, Beardsley's Addition to Fargo, distant 25.15 feet east, measured along said north line, from the north-south quarter section line of Section 1, Township 139 North, Range 49 West, 5th Principal Meridian; thence southwesterly along a 16°00' curve to the left, the tangent of which makes a northeasterly angle of 37°53' with said north line of Eighth Avenue North and bears north 41°07' east, through a point in the southerly line of Great Northern Drive in said city, which is also the northeasterly line of Lot 1, Block 1, Bower's Addition to Fargo, distant 21.03 feet northwesterly, measured along said southerly line of Great Northern Drive, from a monument at the intersection of said southerly line of Great Northern Drive with the west line of Eighteenth Street in said city, which is also the east line of said Block 1, Bower's Addition. The 16°00' curve at its point of intersection with said southerly line of Great Northern Drive makes a southwesterly angle of 91°13' with said southerly line of Great Northern Drive and bears south 17°17' west.

The location of said track shall be as is shown by the area colored red upon the attached plat.

The said Great Northern Railway Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said location, maintenance and operating of the said tracks.

Section 2. The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which said tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefor to any damages or claim of damages; and such company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its track and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

Section 3. The privileges and rights conferred upon said railroad company by section one hereof is upon the express condition that the said company will, whenever requested by the board of city commissioners of said city so to do, reasonable time being given therefor, grade

and construct and maintain proper and sufficient street crossings over the tracks of said company, covered by this ordinance, and will keep the same open at all times for public travel and suitable for public use; that it will also afford any reasonable protection required by the board of city commissioners for the protection of the traveling public at the points of intersection of said track with all of the streets, alleys and avenues involved.

The grantee named herein shall, within 20 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

Source: 1951 Rev. Ord. 24-0104 (Subdiv. (10), added by Ord. No. 1127, 1962, Subdiv. (11), added by Ord. No. 1128, 1962), 1965 Rev. Ord. 24-0104 (Subdiv. (12), added by Ord. No. 1259, 1 to 3, 1967.)

24-0105. Chicago, Milwaukee, St. Paul and Pacific Railroad Company.--

1. Franchise granted June 7, 1949.

The Chicago, Milwaukee, St. Paul and Pacific Railroad Company, a corporation, its successors and assigns, is hereby granted the right, authority and permission to establish, construct, maintain and operate an interchange and industrial railroad track extending from a point in the south line of First Avenue North, approximately 140 feet east of the east line of Twenty-Third Street, northerly across First Avenue North, thence across Lots 10 to 13 inclusive, in Block 22, Tyler's Addition to Fargo, and thence in Twenty-Second Street North to the south line of Seventh Avenue North, with the center line of said track between the south line of Seventh Avenue North, and a point opposite Lot 26, in Block 21, of said Tyler's Addition to Fargo, being 8½ feet westerly of the east line of Twenty-Second Street North, and also to establish, construct, maintain and operate a crossover track extending from a point in said interchange and industrial track which is distant approximately 115 feet north of the north line of Fifth Avenue North, to a connection with the existing track of the Great Northern Railway Company, located in the westerly half of Twenty-Second Street North. The location of said interchange and industrial railroad track and of said crossover track shall be in approximate accordance with the location shown by solid red line on the attached plat.

The said Chicago, Milwaukee, St. Paul and Pacific Railroad Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said construction, maintenance and operation of the said interchange and industrial railroad track and the said crossover track.

The grantee named herein shall, within 10 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

2. Franchise granted May 16, 1950.

The Chicago, Milwaukee, St. Paul and Pacific Railroad Company, a Wisconsin corporation, its successors and assigns, be and hereby is granted the right, authority and permission, without charge therefor, to relocate, maintain and operate its main track and pole line and round house track in, along and across sundry streets and alleys in said city of Fargo. The alignment of said tracks, the location of which is shown by solid red lines on the attached plat, is as follows:

RELOCATED MAIN TRACK--From a point in Second Avenue North approximately 165 feet easterly from the east line of Sixteenth Street, which point is the easterly

extremity of the relocated main track and the point of beginning of a 2° curve to the left, run westerly along said 2° curve 183.7 feet to a point in Sixteenth Street and the end of said 2° curve; thence westerly along a tangent to said curve 1831.1 feet to the beginning of an 8° curve to the left; thence westerly and southwesterly along said curve 339.8 feet to the end thereof; thence westerly on the tangent to said curve 536 feet to a point in Twenty-Third Street approximately 15 feet easterly of the southeasterly corner of Block 26, Tyler's Addition to Fargo and the end of the relocated main track.

RELOCATED ROUND HOUSE TRACK--Start at a point in the center of said relocated main track approximately 105 feet easterly of the west line of Twentieth Street and 85 feet westerly of the east line of Nineteenth Street; thence westerly through the alignment of a number 10 turnout 85 feet; thence easterly and northerly along 10° curve to the left 565.1 feet to a point in Lot 3 in Block 17, Tyler's Addition to Fargo and the end of the relocated round house track.

The said Chicago, Milwaukee, St. Paul and Pacific Railroad Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any persons, firm or corporation on account of any matter or thing connected with the said relocation, maintenance and operation of the said main railroad track and pole line and the said round house track.

The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which such tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefor to any damages or claim of damages; and such company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its tracks and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The privileges and rights conferred upon the said railway company by section one hereof is upon the express condition that the said company will, whenever requested by the board of city commissioners of said city so to do, reasonable time being given therefor, grade and construct and maintain proper and sufficient street crossings over the tracks of said company, covered by this ordinance, and will keep the same open at all times for public travel and suitable for public use.

The grantee named herein shall, within 20 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

3. Franchise granted January 3, 1956.

The Chicago, Milwaukee, St. Paul and Pacific Railroad Company, a Wisconsin corporation, its successors and assigns, be and hereby is granted the right, authority and permission, without charge therefor, to locate, maintain and operate one track across Twenty-Second Street in the city of Fargo, beginning at a point in the east line of Twenty-Second Street, 95 feet north of the southwest corner of Block 21, Reeve's Addition to the city of Fargo, North Dakota, said point being on the center line of the track serving the Cass-Clay Creamery, thence southwesterly along the center line of the track which is on a 16° curve to the right to the heel

of frog for the turnout from the main track of said track, thence through a #7 1/7 turnout to a point in the west line of Twenty-Second Street 25 feet north of the southeast corner of Block 22, Reeve's Addition to the city of Fargo.

The location of said track shall be as is shown by the area colored yellow upon the attached plat.

The said Chicago, Milwaukee, St. Paul and Pacific Railroad Company shall keep harmless the city of Fargo, North Dakota, from any and all damages, costs or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm or corporation on account of any matter or thing connected with the said location, maintenance and operating of the said track.

The city of Fargo reserves the right at any time to enter upon any or all portions of such streets or avenues, upon or over which such tracks shall be constructed, and to make thereon such excavations and do such other work thereon as may be necessary in the construction and repairs of sewers, gutters, water mains, gas pipes or other works of a public character, without being liable therefor to any damages or claim of damages; and such company, its successors and assigns, shall afford all reasonable aid and facilities to said city in doing such work, and re-lay its track and properly restore its roadbed and ties at its own expense from time to time as such work or repairs are completed, all of which such company by acceptance of the privileges granted by this ordinance agrees to do.

The privileges and rights conferred upon the said railroad company by section one hereof is upon the express condition that the said company will, whenever requested by the board of city commissioners of said city so to do, reasonable time being given therefor, grade and construct and maintain proper and sufficient street crossings over the tracks of said company, covered by this ordinance, and will keep the same open at all times for public travel and suitable for public use; that it will also afford any reasonable protection required by the board of city commissioners for the protection of the traveling public at the points of intersection of said track with Twenty-Second Street.

The grantee named herein shall, within 20 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, North Dakota, whereupon it shall become a compact between the parties hereto.

Source: 1952 Rev. Ord. 24-0105, (Subdiv. (3) added by Ord. No. 956, 1956.)

24-0106. Courtesy benches.--Repealed by Ord. No. 2804 (1996).

24-0107. Western Union.--Permission is hereby granted to the Western Union Telegraph Company to erect, maintain, operate and repair a telegraph line, including the erection of poles or posts to support the wires of said line through and along the following streets: Commencing at a point where the east line of Roberts Street intersects with the Manitoba track, running thence south on the east line of said street (Roberts) to Northern Pacific Avenue, thence across Northern Pacific Avenue to Northern Pacific right-of-way; said poles to be set on the outer edge of the sidewalk along the line of said street, and no poles to be set further than 10 feet from the north or south line of Northern Pacific Avenue, and in all cases to be set so as not to interfere with crosswalks or sidewalks, nor with the fronts of buildings, gateways, or doors. In consideration of this permit the Western Union Telegraph Company agrees to be responsible for any and all damage that may be done to the city of Fargo, or any of its citizens, by reason of the excavations for said poles or the erection thereof, or that may arise in any manner in the erection or repairing of said line, and further agree for the same consideration

that the city of Fargo may, at any time, by resolution of the council, revoke this permit, and the said Western Union Telegraph Company expressly binds themselves by the acceptance of this permit not to ask or claim any damage whatever from the city of Fargo in case they are required to remove any or all of said poles and lines but to hold themselves in readiness to move any or all of said poles under the direction of the city council.

Upon the acceptance of this ordinance by said company in writing, within 10 days from the date of its passage, it shall constitute a contract between the city of Fargo and the said Western Union Telegraph Company, subject, however, to revocation or modification as above expressed.

Source: 1952 Rev. Ord. 24-0107.

24-0108. Erie Telegraph and Telephone Company.--

1. Franchise granted November 26, 1887.

That the Erie Telegraph and Telephone Company is hereby authorized to erect, establish, and maintain within the limits of the city of Fargo, telegraph poles, and to stretch and maintain thereon the necessary wires for a telephone exchange system, according to the conditions hereinafter stated.

That said company shall file in the office of the city engineer, a statement of the streets and alleys of the said city which it has already occupied.

That said company shall file with the city engineer written application for all streets and alleys it may hereafter wish to occupy with its poles and wires, and when it may desire to occupy the same; and if such application shall be approved by the city engineer, such approval shall be deemed a permission of the city to so occupy said streets and alleys for the purpose above stated.

In case of a change of grade of any street or pavement so occupied by said company, it shall reset poles at its own cost so as to conform to the grade of such street or pavement so changed, and in such manner as the city engineer shall direct.

All the proceedings of said Erie Telegraph and Telephone Company, under this ordinance, shall be subject to any ordinance relative to the same which may hereinafter be passed by the city council of Fargo.

2. Franchise granted April 8, 1895.

That the right heretofore given by the city council to the Erie Telegraph and Telephone Company to erect, operate, and maintain telephone poles and wires in said city, is hereby continued for the period of 30 years from the date of the adoption hereof; and the right is hereby granted to the Northwestern Telephone Exchange Company, its successors and assigns, to erect, maintain, and operate in, through, over and across any and all streets, alleys, highways, bridges, approaches, and public places of the city of Fargo, a system of poles, posts, conduits, and wires, and all other useful and necessary appliances for the construction and transmission of sound applicable to and with a telephone and messenger service and general telephone system or exchange, whether for the use of said city of Fargo, or any or all the inhabitants thereof or for any and all companies, corporations, and persons in said city of Fargo, or the suburbs thereof, and such grant is hereby made to extend to all streets, alleys, highways, bridges, approaches, and public places in and of said city of Fargo, now owned and controlled by it, and in which it has any interest whatever, and as well also to any and all such as said city may hereafter acquire during the period herein limited, whether within its corporate limits as

now existing, or as the same may at any time hereafter be extended or enlarged. Provided, that such permission is granted solely upon the conditions, restrictions, and limitations hereinafter set forth, and not otherwise.

In case of any change of grade, street, or curb line of any street or pavement, in said city, wherein or upon which any poles, posts, or any other appliances of said parties, or of said corporation, their successors or assigns are set, or placed, said parties or successors shall do any necessary resetting or replacing of such poles or appliances at their sole cost and expense so as to conform to such new grade, street, or curb line. And in the event that at any time in the future such system of wiring be made by adoption of the conduit system, all such conduits constructed therefor shall be subject to such rules, regulations, and ordinances of said city of Fargo, as may then be in force and applicable thereto, and whenever in said behalf, any of said streets, alleys, bridges, approaches, or public places shall be disturbed by said parties or their successors in, about, or in connection with the doing of any of the things herein and hereby permitted in that regard, they shall be restored to their proper condition with the least possible delay, or should it become necessary, in default of such matter, the said city of Fargo shall have the right to do any needful work to restore such streets, alleys, highways, bridges, approaches, or public places to their proper condition and thereupon recover from said parties or their successors, the cost of any work done or material furnished therefor. And said parties and their successors and assigns, shall at any and all times save and keep said city of Fargo harmless from all damages, cost, or expense, in any way arising or to arise from, or growing out of any action or proceeding, brought by any person, firm, company, or corporation on account of any matter or thing connected with such proposed system.

All posts, poles, and appliances set or placed by said Northwestern Telephone Exchange Company, and their said successors and assigns, under conditions hereof in any of their streets, alleys, highways, bridges, or approaches of the said city of Fargo, shall be set and placed in conformity with the provisions of any and all ordinances, rules, and regulations of said city in force at the time thereof, whether now enacted or hereafter to be enacted, and all work done in that behalf, shall be done to the satisfaction of the proper authorities of said city of Fargo, with regard to public convenience and safety. And should the authorities of said city at any time, by proper enactment, in that behalf, require the placing of all wires of other companies as well as the party of the privileges herein granted, to be placed underground, and in conduit system, to meet the then requirement of the public needs of said city, said Northwestern Telephone Exchange Company, its successors or assigns, shall be subject to all such requirements, provided all of the companies and persons having similar systems for the same or other purposes are likewise required to conform to the said regulation and enactment, and neglect or refusal to comply therewith shall forfeit all privileges herein contained.

The right of use herein given shall not be exclusive, and the council reserves the power to grant like right of use to others for similar uses; the same, however, not to interfere with the proper exercise of the privileges herein granted.

In consideration whereof said Northwestern Telephone Exchange Company shall agree to allow the city to attach at any time, to any of said poles, on the upper arm, the city's fire alarm or police wires, and said poles are made a municipal instrumentality for that purpose. Provided, said attachments, and said city's use, shall not be so made or permitted as to interfere with said company's use, and said attachments shall be made and maintained under the direction of said company's manager in said city.

The said company is to furnish for the city's business and without charge, and with exchange service, so long as an exchange is maintained hereunder, two telephones at locations to be fixed by the council of said city of Fargo, also such other telephones at locations for the city's business as the council may hereafter by a resolution require, at 50% discount from the regular rates from time to time for business purposes. Provided, that for each of said telephones separate contracts be previously signed containing the usual provisions of said contracts, or having endorsed thereon the terms of payment herein provided for.

Source: 1952 Rev. Ord. 24-0108.

24-0109. Northwestern Telephone Exchange.--

1. Franchise granted April 8, 1895. See section 24-0108, subdiv. (2).

2. Franchise granted June 9, 1902.

The right and permission is hereby granted to the Northwestern Telephone Exchange Company, its successors and assigns, to construct, maintain, operate, and repair electrical wires, conduits, or subways, with necessary manholes and service pipes, and distributing its wires upon and through the streets and alleys of the city of Fargo; such rights and permission to be exercised by said company in the manner and form as hereinafter provided, subject to the regulations and requirements of this ordinance and otherwise.

The main conduits or subways herein authorized shall be laid in the streets and avenues on a line parallel with the curb line thereof, and at such distance from the curb as not to interfere with water, gas or sewer pipes already in said streets and avenues. And all such conduits or subways shall be constructed under the supervision of the city engineer of the city of Fargo, or such other officer as may be designated by the common council for that purpose. And whenever and as fast as the conduits are completed and the cables and wires laid therein it shall be unlawful for any person, firm, or corporation to maintain poles for telephone wires within the territory supplied by said underground cables, except such poles as may be necessary for the distribution of said underground cables and wires; and said distributing poles shall be placed as far as may be practicable in the alleys of the said city.

At least three days before opening any street, avenue, or alley, or any public place, the grantees herein named, their successors or assigns, shall notify the proper officer of said city, in writing, of their intention to lay such conduit or subway, stating the place where and the distance the same shall run, and shall file with the city engineer of the city of Fargo a map or plan showing the location of said conduit and manholes; which plan shall be approved by the city engineer and committee on public improvements of the city council before the opening of any street or alley. And in the opening and refilling of all the openings made as aforesaid, and in the re-laying of the pavements, and all the work necessary to complete the restoration of the street pavements, sidewalks, and grounds to an equally good condition, as when disturbed, the said grantees herein, their successors or assigns, or their contractor, servant, or employees, shall be under the supervision of the city engineer of the city of Fargo, or such other officer as may be designated for that purpose, and shall promptly comply with any order of his in reference thereto, and in case they fail to comply with such order, the city may perform the work ordered and the grantees shall pay therefor, and all of said work shall be done at the cost of said grantees. Nor shall any street, avenue, or alley, or public place be allowed to remain open or encumbered for a longer period than shall be necessary to execute the work for which the same has been opened. Such period in no case to exceed 15 days. And in all cases where the

work required the exercise of skill, as in the laying or re-laying of pavements or sidewalks, the said grantees, their successors or assigns, shall employ none but skilled workmen, familiar with the execution of such work.

Nothing in this ordinance shall be construed as to absolve said grantees, their successors or assigns, from any legal liability or proceeding for injury to person or property resulting from the negligence of the grantees herein, their successors or assigns, or their contractor, servant, or employees in constructing or operating said conduits or subways, nor to render the said city of Fargo liable to any person or corporation for the damage caused by the construction or operation of said subways or conduits by the grantees herein, their successors or assigns, and said grantees, their successors or assigns, shall protect and save the city of Fargo harmless from any suit or claim for injuries or damage arising from their negligence, or that of their contractor, or servant, or employees in the construction or operation of said conduits or subways.

The grantees herein, their successors or assigns, shall be at all times subject to and comply with all lawful ordinances or police regulations of the city of Fargo now in force, or that may hereafter be passed relating to the use and occupancy of the streets of said city.

The said grantees herein named, their successors or assigns, in consideration of the privileges herein granted to them shall, without cost to the city of Fargo, provide and furnish sufficient space in their conduits in all streets and parts of streets they occupy or use hereunder at the time and ever after they commence to use any thereof, and furnish and maintain in working order in such conduits, all wires and conductors used or needed on or along such streets or parts of streets by the city of Fargo for the fire alarm and police purposes.

The said grantees, their successors or assigns, shall within 30 days from the passage and approval of this ordinance file with the city auditor an acceptance in writing of the terms and conditions herein named, and this ordinance shall have no effect until such acceptance is filed with the city auditor as aforesaid. Provided, however, that the work of laying such conduits or subways shall be commenced within 60 days from the passage and approval of this ordinance; and that such work, when commenced, shall be prosecuted continuously and with all reasonable dispatch until completed.

That said grantees, their successors or assigns, shall file with the city engineer for his approval, a complete set of the detail plans and specifications for the construction of said underground system prior to the commencement of construction.

Source: 1952 Rev. Ord. 24-0109.

24-0110. North Dakota Independent Telephone Company.--

1. Franchise granted March 7, 1907.

The North Dakota Independent Telephone Company is hereby authorized, permitted, and empowered to erect, establish, and maintain within the city of Fargo telephone poles and the necessary attachments and appliances thereto, together with such wires and conduits as may be necessary for the operation and maintenance of a long distance toll telephone exchange only, and such toll station or stations within the city of Fargo as the business of the said company may require, according to the conditions hereinafter mentioned and set forth. Provided, however, that should any charge or rental of telephones be made or exacted from patrons of the North Dakota Independent Telephone Company, its successors, assigns, or lessees, within the limits of the city of Fargo, or any local business be transacted over or

messages be transmitted between any of its stations by patrons of the company, its successors, assigns, or lessees for rent, hire, pay or revenue within the limits of the city of Fargo, then this franchise shall be forfeited.

That the North Dakota Independent Telephone Company shall, in consideration of the granting of this franchise, pay to the city of Fargo a sum of money equal to 2½% of its gross receipts upon all business originating in the city of Fargo, such payments to be made to the city of Fargo, beginning at the close of the first year after the granting of this franchise and annually thereafter during the life of this franchise; and it is stipulated and agreed on the part of the North Dakota Independent Telephone Company, that the proper officers of the city of Fargo shall have the right to examine the books, records, and accounts of the North Dakota Independent Telephone Company at any time touching and as to the gross receipts on its business originating in the city of Fargo, in any or all of the said years.

That all rights, duties, and privileges authorized, permitted, or granted by the terms of this ordinance, shall be in full force and effect and shall continue for a period of 20 years from and after the date of the passage and approval of this ordinance.

The said North Dakota Independent Telephone Company, whenever any change or alteration shall be made in the grade or construction of any of the streets or alleys within the city of Fargo, by authority of the city council, shall at its own expense, whenever necessary, replace, reconstruct, or re-set any or all of the poles or other attachments or appliances belonging to it, which shall be present upon or adjacent to such street or alley, so changed or altered, to conform to the altered or changed grade or condition thereof.

The North Dakota Independent Telephone Company shall, upon demand of the city council of the city of Fargo, install and adopt such methods in relation to the maintenance and operation of such long distance toll exchange as shall be demanded by the city council of the city of Fargo; provided, that such methods shall also be demanded from any other person or company operating and maintaining a long distance telephone exchange of the same kind, in the city of Fargo. Provided, that all wires used in the business portion of the city of Fargo shall be underground, and in such other parts or portions of the said city, poles shall be erected in the alleys, as far as practicable. And provided further that during the life of this franchise no wires shall be laid along or under any street which is paved with cement or other solid base.

In case of the disturbance of any street or alley of the city of Fargo, or traffic thereon, by the said North Dakota Independent Telephone Company, in the erection, operation, and maintenance of its long distance toll telephone system, or necessary acts in connection therewith, the said company shall restore such street or alley to its proper condition with the least possible delay, and in the event of the failure of the said company so to do, the city of Fargo shall have the right, upon notice, to so restore said street or alley to its proper condition, and thereupon recover from the said North Dakota Independent Telephone Company any and all expense made necessary by such acts on the part of the city of Fargo, because of said company's failure to act.

The North Dakota Independent Telephone Company shall save and keep the city of Fargo at any and all times harmless and exempt from all damages arising or growing out of any action or proceeding, however, brought on account of any condition or fact by reason of the erection, operation, and maintenance of the long distance toll telephone system of the said company.

That the erection, operation, and maintenance of said long distance toll telephone exchange shall be subject to and governed by the ordinances, rules, and regulations of the city of Fargo, provided that the said ordinances, rules, and regulations shall apply equally to all telephone exchanges or systems in the city of Fargo.

The city of Fargo shall at all times have the right to attach to the poles of the company, whatever appliances shall be necessary for the maintenance and operation of the fire alarm system and police telephone system in use in said city, insofar as such use does not interfere with the operation and maintenance of the system of the said company.

The North Dakota Independent Telephone Company shall furnish to the city of Fargo, free of charge, as long as its said long distance toll telephone system is operated and maintained, at least two stations for long distance service, and shall collect no fees or charges from the city of Fargo for any services or messages when same are for city purposes.

The rights, powers, and privileges granted by this ordinance to the North Dakota Independent Telephone Company shall not be exclusive, and the city council hereby reserves the power to extend to others for similar uses, the same powers and privileges herein granted.

The North Dakota Independent Telephone Company is hereby granted the right and power to extend its long distance toll telephone exchange throughout the city of Fargo, and to locate and establish such toll stations in the city of Fargo as the business of the company may require.

Source: 1952 Rev. Ord. 24-0110.

24-0111. Fargo Gas, Light and Fuel Company.--

1. Franchise granted October 31, 1881.

Subject to the terms and conditions of this ordinance, there is hereby granted to the Fargo Gas, Light, and Fuel Company the right of constructing, maintaining, and operating gas works within the city of Fargo, together with the right-of-way along, upon, and under all the streets and alleys of the said city, whether now laid out or hereafter to be laid out, and through, upon and under all the parks and public places of the said city, for the purpose of placing, operating, re-laying, and repairing one or more lines of gas mains and pipes and all appurtenances thereto for lighting and fuel purposes.

The said company shall commence the erection of gas works, under this grant by or before the first day of June, 1882, and shall have laid not less than two miles of gas mains and commence the manufacture of gas by or before December 1, 1882, and shall thereafter extend its mains as rapidly, and in and to such parts of the city of Fargo as the needs of the public and the patronage of said company shall justify.

The gas mains of said company shall be laid at a depth below the established grade of all streets and alleys of not less than five feet; and whenever said company shall desire to lay mains in any street or alley of said city, the grade whereof shall not then be established, the said city by its proper authorities shall, and will, upon 30 days' notice of such desire on the part of said company, proceed forthwith to establish the grade of such street or alley, provided, that if the grade of any street or alley in which such gas mains are already laid, is thereafter cut down so as to expose such mains to action of frost or other damaging influences, such mains shall be re-laid and re-set at the expense of said city of Fargo.

Said company shall, at any time when required so to do by the authorities of said city of Fargo, procure, set up, and maintain in good order and repair street lamps and posts, in such number and at such points on the line of any of its mains as may from time to time or at any

time be designated by said authorities, without any charge to the city whatever for such lamps or posts; and whenever such posts and lamps are so put in place in any of the streets, alleys, or public places of said city, the company shall thereafter furnish gas for supplying and lighting the same at such hours of the night as may be designated and required by said authorities, and continue such supply or discontinue the same at the order or request of such authorities, and furnish attendance to light and care of such lamps at a cost not exceeding $3 per month for each such lamp, and all gas to be manufactured or sold by said company for illuminating purposes shall be of not less than 15 candle power. Provided, that after any lamps and posts shall have been placed by said company, at the request or order of said city or its proper authorities, no discontinuance of the use thereof shall be ordered by the city or its officers within one year; nor after the expiration of such year, except upon three months' notice thereof to such company.

The said company shall lay and keep in repair at its own cost supply pipes connecting its mains with any building situated upon any line of said mains, whose owner or occupant shall desire such connection made.

Provided, that such supply pipe or pipes need only be laid and maintained at the expense of the company, from such main to a point not exceeding six feet inside the inner line of the sidewalk of the street or alley in which such main is located, and in no case further than the foundation wall of such building. And provided further, that whenever in making such connection it shall be necessary to penetrate any curbing wall or other wall of brick, stone, or concrete or other material outside of the foundation wall of such building, the cost of penetrating such wall shall be borne by the party desiring such connection made. And provided, further, that the making of such connection at the expense of said company shall in all cases be subject to its rules and regulations as to contracts for consumption of gas, etc.

The said company shall not charge to or receive from any consumer of gas who shall pay his or their bill on or before the tenth day of the month following that for which said bill is or may be rendered, any more than $3.50 per 1,000 cubic feet.

Nothing in this ordinance shall be construed as the grant of any exclusive privilege to said company, and it is hereby, as explanatory of part of section one hereof, expressly declared that no right-of-way is granted to said company through, upon, or under any of the parks or public places of said city, expecting streets and alleys, save for the sole purpose of lighting such parks and public places or for heating public buildings therein or lighting the same, and then only upon the express request thereto of said city or its proper officers.

The said company by written acceptance, to be signed by its president and secretary, shall within 10 days from the passage of this ordinance expressly accept the grant herein contained, with all its conditions and obligations, and file such written acceptance with the city clerk; and the passage of this ordinance, and the filing of said acceptance shall constitute and be a contract between said company and said city of Fargo, which shall not be altered or amended without the consent of both parties.

The failure of said company to comply with the requirements of section 2 hereof or to file the written acceptance mentioned in section 8 within the time therein designated shall operate to work an absolute forfeiture of all its grants, rights, and privileges hereunder.

The city council of the said city of Fargo will hereafter pass all ordinances that may be needful to enable the said company to enjoy all the rights intended to be conferred upon it by this ordinance, and for more fully protecting said company in all its rights.

Whenever any of said streets, alleys, or public places of said city of Fargo shall be disturbed by the said company in the laying, re-laying, altering, or repairing of any of its said

mains, pipes, or appurtenances, they shall be restored to their proper condition with the least possible delay, and should default in such matter be at any time made by said company, said city of Fargo shall have the right to do any needful work to restore such streets, alleys, and public places to their proper condition and thereupon recover from said company the cost of any work done or material furnished therefor. And the said company shall save and keep harmless the said city of Fargo from any and all damages, costs, or expenses in any way arising from or growing out of any action or proceedings brought by any person, firm, company or corporation on account of any matter or thing connected with said company or the laying, re-laying, maintaining, or repairing of its said mains, pipes or appurtenances.

Source: 1952 Rev. Ord. 24-0111.

24-0112. Fargo Gas and Electric Light Company.--Certain rights, privileges, and franchises having been heretofore duly granted by the mayor and city council of the city of Fargo to the Fargo Gas, Light, and Fuel Company and the Fargo Electric Light and Power Company, all of which were subsequently purchased by and transferred to the Fargo Gas, Light, and Coke Company, the successors of both such corporations, and which has since been in the possession and exercise of all their rights.

And similar rights, franchises, and privileges having been also heretofore duly granted by the said mayor and city council to the Fargo Incandescent Light Company.

And the Fargo Gas and Electric Company having now purchased and become the owner and in control of all the powers, rights, privileges, and franchises heretofore so granted to either of said other corporations,

Now, be it resolved, by the mayor and city council of the city of Fargo, that said city does hereby consent to the several transfers hereinbefore described and consents that said Fargo Gas and Electric Company may and shall possess, enjoy, and exercise all the powers, rights, privileges, and franchises heretofore granted by the said city, to either of said companies.

Source: 1952 Rev. Ord. 24-0112.

24-0113. Alexander and Edmund Hughes (Gas and Electric Company).--

1. Franchise granted July 19, 1898.

Be it resolved by the common council of the city of Fargo that permission is hereby granted to Alexander Hughes and Edmund A. Hughes and to any corporation which may be organized as the successors or assigns of said parties in that behalf, to enter upon, construct, and maintain, and operate in, through, over, and across all of the streets, alleys, highways, bridges, approaches, and public places of said city of Fargo, a system of poles, posts, conduits, and wires, and all other necessary and useful appliances for the manufacture, production, use and transmission of electricity and for furnishing the same to consumers, for the purpose of lighting, heating, motive power, cooking, and for any and all other purposes for which electricity produced by means of human agency is now or hereafter may be used, whether for the use of said city or any or all of the inhabitants thereof, or for any and all companies, corporations, and persons in said city of Fargo or the suburbs thereof. And such permission is hereby made to extend to all streets, alleys, highways, bridges, approaches, and public places in and of said city, now owned or controlled by it and in which it has any interest whatever, and as well also to any and all such as said city may hereafter acquire during the period herein

limited, whether within its corporate limits as now existing, or as the same may at any time hereinafter be extended or enlarged; provided that such permission is granted solely upon the conditions, restrictions, and limitations hereinafter set forth, and not otherwise.

In case of any change of grade of any street or pavement in said city wherein or upon which any poles, posts, or other appliances of said parties or of said corporation, their successors or assigns, are set or placed, said parties and corporation, their successors or assigns, shall do any necessary re-setting or replacing of such poles, posts, or appliances at their or its sole cost and expense, and so as to conform to such new grade; and in the event that, at any time in the future such system or wiring be made by adoption of the conduit system, all such conduits constructed therefor shall be subject to such rules, regulations, and ordinances of said city of Fargo as may then be enforced and applicable thereto; and whenever in that behalf any of said streets, alleys, highways, bridges, and approaches, or public places shall be disturbed by said parties or by said corporation, their successors or assigns, in, about, or in connection with the doing of any of the things herein and hereby permitted, or hereafter to be permitted in that regard, they shall be restored to their proper condition with the least possible delay; and should any default in such matters be at any time made by said parties, or their successors or assigns, said city of Fargo shall have the right to do any needful work to restore such streets, alleys, highways, bridges, approaches, or public places to their proper condition, and thereupon recover from said parties, their successors or assigns, the cost of any work done or materials furnished therefor. And said parties, and their successors or assigns, shall at any and all times save and keep the city of Fargo harmless from any and all damages, cost, or expense in any way arising or to arise from or growing out of any action or proceeding brought by any person, firm, company, or corporation on account of any matter or thing connected with such proposed system.

Said parties, and their successors or assigns, shall at any and all times after their plant is placed and in operation furnish to said city of Fargo for use in lighting its streets and for lighting any and all of their buildings and public places, electric lights, either arc or incandescent, in such numbers and at such points and places as said city may, from time to time, require and need, and at prices not to exceed those hereinafter named, though this shall not be construed as requiring said city at any time to take, use, or have any lights from said persons, their said successors or assigns, unless the said city shall so elect; and whenever said city shall desire or elect to have any lights furnished by said persons, their successors or assigns, the connections from street wires into the buildings and places so to be lighted shall be made, including the furnishing of materials therefor, by said persons, their said successors or assigns, at the sole cost and expense of the latter, and without any expense in that behalf to said city.

Said parties, their successors or assigns, shall within 10 days after the final passage hereof, signify their acceptance of this resolution by writing to that effect, to be filed with the city auditor, and after the filing of such acceptance, this resolution shall be and constitute a contract between said parties, and their successors or assigns, and said city of Fargo, and the duration thereof and of the privileges and franchises hereby granted shall be the term of 20 years, subject, however, to all limitations before or hereafter set out.

All posts, poles, and appliances set or placed by said persons, and their successors and assigns, under provisions hereof in any of the streets, alleys, and public places of said city of Fargo, shall be set and placed in conformity with the provisions of any and all ordinances, rules, and regulations of said city in force at the time thereof, whether now enacted or hereafter to be enacted, and all work done in that behalf shall be done to the satisfaction of the proper

authorities of said city with regard to the public convenience and safety. And should the authorities of said city, at any time, by proper enactment in that behalf, require the placing of all wires of other companies as well as of the grantees of the privileges herein, to be placed underground, and in conduit system, to meet the then requirements of the public needs of said city, said persons, their successors or assigns, shall be subject to all such requirements, and negligent refusal to comply therewith shall forfeit all privileges herein contained; provided, in that behalf, that the grantees of these privileges shall not be so required to do unless all other companies and persons having similar systems for the same or other purposes are likewise required to conform to the same regulation and enactments.

Said parties and their successors or assigns shall commence work in and about the erection and construction of such plant within 60 days from and after the passage and acceptance hereof, and within four months thereafter shall have such plant in actual operation, or this resolution and all herein contained shall be null and void at the election and option of said city of Fargo, and said parties, and their successors or assigns, shall extend its system of electric lighting as rapidly and in and to such parts of the said city as the needs of the public and the patronage of said company shall justify.

Nothing herein contained shall be construed as the granting or attempting to grant of any exclusive privilege to said persons, their successors or assigns, or as binding said city at any time to be a patron of said persons, or their successors or assigns, either in the way of taking lights, or otherwise.

The maximum rates to be charged by said persons, their successors or assigns, for lights furnished consumers, either public or private, shall never during the life of this privilege exceed 20 cents per 1,000 watts.

Source: 1952 Rev. Ord. 24-0113.

24-0114. Union Light, Heat, and Power Company.--

1. Franchise granted, February 17, 1902.

Whereas the Union Light, Heat, and Power Company of Fargo, North Dakota, has purchased and duly acquired by proper assignment all the rights, licenses, privileges, and franchises heretofore granted by the city of Fargo, North Dakota, to various corporations and persons, as follows, to-wit:

A. By Ordinance Number 4, giving and granting to the Fargo Gas, Light, and Fuel Company the right to construct, maintain and operate gas works in the city of Fargo, together with the right-of-way along, upon, and under all the streets and alleys of said city, for the purpose of placing, operating, re-laying, and repairing one or more of gas mains and pipes and all appurtenances thereto for lighting and fuel purposes, which ordinance was passed October 31, 1881.

B. By Ordinance Number 5, passed November 7, 1881, giving and granting to the Fargo Electric Light and Power Company the exclusive privileges to furnish electric lights and to maintain poles, lines, and works for that purpose in the streets and alleys in the city of Fargo.

C. By resolution or ordinance dated May 1, 1888, giving and granting to the Fargo Incandescent Light Company the right to supply electric light and power and to maintain poles, lines, and works in the city of Fargo for 20 years from said last named date.

D. By resolution or ordinance entitled Ordinance Number 227, passed July 5, 1898, giving and granting to Alexander Hughes and Edmund A. Hughes, and to any corporation which may be organized as the successors or assigns of said parties in that behalf, the right to construct, maintain, and operate in all streets and alleys of said city of Fargo a system of poles and lines to conduct electricity for lighting, heating, power, cooking, and all other purposes for 20 years, that is to say, to July 5, 1918.

And whereas the said Union Light, Heat, and Power Company is in the full possession of the works and business established under and by virtue of said ordinances, resolutions, and franchises, and is operating the same; and

Whereas, by a resolution duly passed on the 14th day of August, 1902, the city council of the city of Fargo did consent to and approve of the said various assignments and the purchase and operation by the said Union Light, Heat, and Power Company of the said works and franchises; and

Whereas, it is deemed desirable to confirm in said Union Light, Heat and Power Company the rights, privileges, licenses, and franchises as heretofore granted; now, therefore,

Be it ordained by the city council of the city of Fargo,

That the said city does hereby consent to the several transfers hereinbefore described, and consents that the said Union Light, Heat, and Power Company may and shall possess, enjoy, and exercise all the powers, rights, privileges, and franchises heretofore granted by the said city to the said Fargo Gas, Light, and Fuel Company, the Fargo Electric Light and Power Company, the Fargo Incandescent Light and Power Company, and Alexander Hughes and Edmund A. Hughes, and each of them, to the same extent and with the same rights, privileges, and benefits as if said powers, rights, privileges, and franchises had been originally granted to the said Union Light, Heat, and Power Company.

2. Franchise granted August 29, 1903.

Right, authority, and permission are hereby granted to the Union Light, Heat, and Power Company of Fargo, North Dakota, a corporation duly incorporated under the laws of the state of North Dakota, its successors and assigns, to establish, construct, maintain, and operate a system of mains, pipes, and conduits within the city of Fargo, together with the right-of-way along, upon, and under all of the streets, alleys, and public places of said city, whether now laid out or hereafter to be laid out, for the purpose of placing, maintaining, operating, re-laying, altering, and repairing one or more lines of mains, pipes, conduits, and all appurtenances thereto, for heating or power purposes, and also the rights and privileges of vending hot water and steam to the city of Fargo and the inhabitants of said city.

When any street or alley is to be opened or constructed for any of the purposes mentioned in this ordinance, application shall be made to the city engineer, who shall make an estimate of the cost of refilling and properly tamping that portion of any street or alley which is intended to be opened, and also the cost of properly replacing the paving, all of which refilling, tamping, and repaving shall be done by the city of Fargo, through its street commissioner. The said Union Light, Heat, and Power Company shall thereupon pay to the city auditor the amount of the estimated cost as above provided; whereupon the city engineer shall issue the necessary permit for the opening of such street or alley.

The rate and price to be charged for heating, during any one heating season, shall not exceed 40 cents per square foot of radiation, which may be computed in the usual manner or by a system of meters based on this rate per square foot of radiation.

The said company shall save and keep harmless the said city of Fargo, from any and all damages, costs, or expenses in any way arising from or growing out of any action or proceedings brought by any person, firm, company, or corporation, on account of any matter or thing connected with said company in the laying, re-laying, maintaining, altering, or repairing of the said mains, pipes, conduits, or appurtenances.

The grantee herein named shall, within 10 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, whereupon it shall become a compact between the parties hereto.

No new extensions shall be made under this ordinance after streets now unpaved shall have been paved, or when streets now paved shall be repaved.

3. Franchise granted October 4, 1910.

That Union Light, Heat, and Power Company, and its successors and assigns may, for the purpose of conducting steam for heating purposes to buildings in the city of Fargo, extend the pipes, mains, and conduits now laid or hereafter to be laid, and lay new mains, pipes, and conduits for such purposes in or through the streets and alleys that are now paved or that may hereafter be paved on compliance with the conditions, requirements, and regulations in this ordinance contained and not otherwise.

That at least one week before laying any such pipes, mains, or conduits, or extension thereof, in or through any paved street or alley said company shall apply to the city engineer for permission to do so, and shall with such application for a permit present to and file with the city engineer a written description of the location and size of the pipes, mains, and conduits proposed to be laid; and the same shall be so located in the street as to require the least practicable excavation in the street consistent with the proper use of such main, pipes, and conduits.

Upon receiving such application the city engineer shall examine the same and if the proposed location of the pipes, mains, and conduits to be laid conformed to the requirements of the foregoing section and to the provisions of the laws and ordinances in force in the city of Fargo, including such laws and ordinances as may have been theretofore passed and such laws and ordinances as may hereafter be enacted, and if the said Union Light, Heat, and Power Company shall thereupon deposit with the city auditor of the city of Fargo the cost of refilling and properly tamping that portion of any street or alley which is intended to be opened, and also the cost of properly replacing the paving thereon, if any, all as estimated by the city engineer, as security for refilling and properly tamping that portion of any street or alley which is intended to be opened and for replacing such paving in as good condition as the same was at the time such application was made, and if the said Union Light, Heat, and Power Company shall at the time of making such application have complied with and obeyed all the said laws and ordinances the city engineer shall thereupon grant to such company a permit, subject, however, to the approval of the mayor and city council of said city of Fargo, to lay the said pipes, mains, and conduits under the direction and supervision of the city engineer, provided, however, that the city engineer may, before granting such permit, require the company to change the location of such proposed pipes, mains, and conduits so as better to conform to the convenience and best interests of the city of Fargo and to the requirements of the laws and ordinances aforesaid.

That before any permit shall be granted, said company shall execute, deliver to and file with the city auditor a bond payable to the city of Fargo in the penal sum of $5,000, with sureties to be approved by the city auditor and the city attorney conditioned that said company

shall complete the work of laying such pipes, mains, or conduits in said street or alley with reasonable dispatch and immediately replace the paving taken up in such work, and restore the street or alley where said work shall have been done to as good a condition as it was before the work was done, and promptly repair any break, cave-in, or defect in said street or alley resulting from such work within a period of five years after the completion of such work; and further that said company shall save and keep the city of Fargo harmless from all expenses, charges, and damages paid out, incurred, or for which the city of Fargo shall become liable, whether resulting from accident or otherwise, by reason of such work upon or excavation in the street or alley, or the tearing up or removal of the paving; all such replacing of paving and restoring of the street or alley to good condition and subsequent repair thereof to be done to the satisfaction of the city engineer.

The Union Light, Heat, and Power Company, its successors and assigns, shall pay to the city treasurer of the city of Fargo annually on the 1st day of December of each year hereafter the sum of $25 by way of compensation to the city of Fargo for all the rights and franchises heretofore or hereafter acquired or now owned by the Union Light, Heat, and Power Company for the use or enjoyment of any of the streets, alleys, or public property belonging to said city by the said company, and the amount of such annual payment for compensation to the city of Fargo as aforesaid may be from time to time readjusted and fixed by the city council of the city of Fargo at a sum which is just and reasonable.

The rate and price to be charged for heating, during any one heating season, shall not exceed 40 cents per square foot of radiation, which may be computed in the usual manner, or by a system of meters based on this rate per square foot of radiation.

Source: 1952 Rev. Ord. 24-0114.

24-0115. Northern States Power Company.--

1. Assignment and transfer of Union Light, Heat, and Power Company's franchises to Northern States Power Company, December 7, 1936.

A. Whereas, the Union Light, Heat, and Power Company of Fargo, North Dakota, heretofore purchased and duly acquired by proper assignment all the rights, licenses, privileges, and franchises heretofore granted by the city of Fargo, North Dakota, to various corporations and persons, as follows, to-wit:

1. By Ordinance Number 4, giving and granting to the Fargo Gas, Light, and Fuel Company the right to construct, maintain, and operate gas works in the city of Fargo, together with the right-of-way along, upon, and under all of the streets and alleys of said city, for the purpose of placing, operating, re-laying, and repairing one or more of gas mains and pipes and all appurtenances thereto for lighting and fuel purposes, which ordinance was passed October 31, 1881.

2. By Ordinance Number 5, passed November 7, 1881, giving and granting to the Fargo Electric Light and Power Company the exclusive privilege to furnish electric light and to maintain poles, lines, and works for that purpose in the streets and alleys of the city of Fargo.

3. By resolution or ordinance dated May 1, 1888, giving and granting to the Fargo Incandescent Light Company the right to supply electric light and power, to maintain poles, lines, and works in the city of Fargo for 20 years from said last named date.

4. By resolution or ordinance entitled Ordinance Number 227, passed July 5, 1898, giving and granting to Alexander Hughes and Edmund A. Hughes, and to any corporation which may be organized as the successors or assigns of said parties in that behalf, the right to construct, maintain, and operate in all streets and alleys of said city of Fargo a system of poles and lines to conduct electricity for lighting, heating, power, cooking, and all other purposes, for 20 years, that is to say to July 5, 1918.

B. And whereas, by Ordinance Number 278 approved February 17, 1903, the city council of the city of Fargo did confirm in said Union Light, Heat, and Power Company the rights, privileges, licenses, and franchises as heretofore granted by the city of Fargo and as assigned to the Union Light, Heat, and Power Company,

C. And whereas, the said Northern States Power Company has been and is the owner, in fee simple title of the electric, gas, and steam heat work, and business established under and by virtue of said ordinances, resolutions, and franchises, and is desirous of henceforth operating the same under and by virtue of said ordinances, resolutions, and franchises,

D. And whereas, it is deemed desirable to confirm in said Northern States Power Company the rights, privileges, licenses, and franchises as heretofore granted by the city of Fargo,

E. Now, therefore, the said city of Fargo, North Dakota, does hereby consent to the transfer and assignment of the Union Light, Heat, and Power Company to the Northern States Power Company (Minnesota) of the franchises and privileges hereinbefore described and consents that the said Northern States Power Company, a Minnesota corporation, may and shall possess, enjoy, and exercise all the powers, rights, privileges, and franchises, heretofore granted by the said city to the said Fargo Gas, Light, and Fuel Company, the Fargo Electric Light and Power Company, the Union Light, Heat, and Power Company, and to the extent that the same may now be existing, any and all rights and privileges heretofore conferred upon the Fargo Incandescent Light and Power Company, and Alexander Hughes and Edmund A. Hughes, and each of them, to the same extent and with the same rights, privileges, and benefits as if said powers, rights, privileges, and franchises had been originally granted to the said Northern States Power Company, upon the condition however, that the said Northern States Power Company shall within 60 days after the passage, approval, and publication hereof, file in writing with the city of Fargo its acceptance of all the terms and conditions hereof, and its agreement to comply with and fully perform on its part all the terms and conditions of that certain agreement between the city of Fargo and the Union Light, Heat, and Power Company dated December 9, 1911, providing for the payment of a gross earnings tax from the sale of electricity, gas, and steam within the city of Fargo, except collections from electric, gas, and steam service furnished to the city of Fargo and to the North Dakota Agricultural College, as clarified by resolution of the board of commissioners of the city of Fargo on March 2, A. D. 1936, and as agreed to by the said Union Light, Heat, and Power Company on March 9, A. D. 1936.

Source: 1952 Rev. Ord. 24-0115.

24-0116. George Nichols, for laying, constructing, and maintaining water main (heating main).--

1. Franchise granted January 4, 1910.

Right, authority, and permission are hereby granted to George E. Nichols, his heirs and assigns, to establish, construct, maintain, and operate a heating main along, on, and under the full length of that certain alley running east and west, from the center line of Seventh Street South to Eighth Street South, through Block 7 of the Original Townsite of the city of Fargo, as shown by the recorded plat thereof, together with the right-of-way along, upon and under said alley for the purpose of placing, maintaining, operating, re-laying, altering, and repairing a main for heating purposes.

When said alley is to be opened or obstructed for any of the purposes mentioned in this ordinance, application shall be made to the city engineer, who shall make an estimate of the cost of refilling and properly tamping that portion of said alley which is intended to be opened, and also the cost of properly replacing the paving, if any, all of which refilling, tamping and repaving shall be done by the city of Fargo, through its street commissioner. The said George E. Nichols shall thereupon pay to the city auditor the amount of the estimated cost as above provided; whereupon the city engineer shall issue the necessary permit for the opening of said alley.

The said George E. Nichols shall keep harmless the said city of Fargo from any and all damages, costs, or expenses in any way arising from or growing out of any action or proceeding brought by any person, firm, company or corporation on account of any matter or thing connected with said George E. Nichols in the re-laying, maintaining, altering, or repairing of the said heating main.

The grantee named herein shall, within 10 days after the passage and approval hereof, file a written acceptance of this franchise with the city auditor of the city of Fargo, whereupon it shall become a compact between the parties hereto.

Source: 1952 Rev. Ord. 24-0116.

24-0117. Burlington Northern Railway, for the operation and maintenance of a cable. The Burlington Northern, Inc., its successors and assigns, is hereby granted the right, privilege, and franchise to install, operate and maintain, at its own expense, an underground cable between the former Northern Pacific Railway Company Depot and the former Great Northern Railway Company Depot in the city of Fargo, North Dakota, said cable to be located as follows:

> Commencing at the former Great Northern Depot; thence southerly along the west side of Fifth Street to the former Northern Pacific right-of-way; thence westerly along said right-of-way to the former Northern Pacific Depot. Also including branches from said cable into the Western Union building on the east side of Fifth Street between Third and Fourth Avenues North and westerly into the alley between First Avenue North and Northern Pacific Avenue in accordance with the map attached hereto.

In consideration of this franchise, Burlington Northern, Inc. agrees to be responsible for any and all damage that may be done to the city of Fargo, or any of its citizens, by reason of the said cable or the operation and maintenance thereof, or that may arise in any manner in the operation and maintenance of said cable.

It is further understood and agreed that the city of Fargo may, by resolution of the city commission and upon six months' notice to the Burlington Northern, Inc. revoke this franchise

and the said Burlington Northern, Inc. binds itself by the acceptance of this franchise not to ask or claim any damage whatsoever from the city of Fargo in the event they are required to remove any or all of said underground cable, but hereby agrees to remove such cable upon the direction of the city commission.

Upon the acceptance of this ordinance by said company in writing, within 10 days from the date of its passage, it shall constitute a contract between the city of Fargo and said Burlington Northern, Inc., subject, to revocation or rescission as above expressed.

Source: 1965 Rev. Ord. 24-0117, 1415 (1972).

24-0118. Cablecom of Fargo.--Cablecom of Fargo is hereby granted a nonexclusive franchise to install, construct, operate and maintain a cable television system within the corporate limits of the city of Fargo. Said franchise shall be for a period of 10 years, provided, that the grant of this franchise and the commencement thereof shall be conditioned upon the filing of a written acceptance by Cablecom of Fargo not later than 12:01 p.m. on the 10th day next following the final adoption of the ordinance granting such franchise. Written acceptance of said franchise by Cablecom of Fargo, Inc. shall constitute a contract between it and the city of Fargo.

(Note: Second reading and final adoption of this ordinance occurred on August 29, 1994, which is also the commencement date of the Franchise of Cablecom of Fargo, having filed its written acceptance within 10 days).

Source: 1965 Rev. Ord. 24-0118, 1921 (1979), 2705 (1994).

24-0119. Northern States Power Company--Electric.--

A. Grant of Franchise.--City hereby grants Company, for a period of 20 years from the date passed and approved by the City, a non-exclusive franchise ("Franchise"), except as otherwise provided by the Public Service Commission, the right to construct and to transmit and furnish electric energy for light, heat, power and other purposes for public and private use within and through the limits of the City as its boundaries now exist or as they may be extended in the future. For these purposes, Company may construct, operate, repair and maintain Electric Facilities in, on, over, under and across the Public Ways of City, subject to the provisions of this Franchise Ordinance. Company may do all reasonable things necessary or customary to accomplish these purposes, subject, however, to such reasonable regulations as may be imposed by the City pursuant to Ordinance.

B. Effective Date; Written Acceptance.--This franchise Ordinance shall be in force and effect from and after passage of this Ordinance, its acceptance by Company, and its publication as required by law. City by board of city commission resolution may revoke this franchise Ordinance if Company does not file a written acceptance with City within 90 days after publication.

C. Service and Rates.--The service to be provided, the rates to be charged by Company for electric service in City, termination provisions, assignment and merger terms, and all operational decisions that apply shall continue to be subject to the jurisdiction of the Public Service Commission of this State or its successor agency.

D. Dispute Resolution.--If either party asserts that the other party is in default in the performance of any obligation hereunder, the complaining party shall notify the other party of the default and the desired remedy. The notification shall be written. Representatives of the parties must promptly meet and attempt in good faith to negotiate a resolution of the dispute. If the dispute is not resolved within 30 days of the written notice, the parties may

jointly select a mediator to facilitate further discussion. The parties will equally share the fees and expenses of this mediator. If a mediator is not used or if the parties are unable to resolve the dispute within 30 days after first meeting with the selected mediator, either party may commence an action in District Court, Cass County, North Dakota, to interpret and enforce this franchise or for such other relief as may be permitted by law or equity for breach of contract, or either party may take any other action permitted by law.

Source: 5324 (2021)

Editor's note—At the editor's discretion, only such provisions as relate to the granting of the franchise to Northern States Power Company have been codified in this section. For the remaining provisions including, but not limited to, definitions, regulations, and fees, please see Ord. No. 5324 in its entirety as can be found on file with the city or online.

24-0120. Northern States Power Company--Gas.--

A. Grant of Franchise.--City hereby grants Company, for a period of 20 years from the date passed and approved by the City, a non-exclusive franchise ("Franchise"), except as otherwise provided by the Public Service Commission, the right to transmit and furnish Gas energy for light, heat, power and other purposes for public and private use within and through the limits of the City as its boundaries now exist or as they may be extended in the future. For these purposes, Company may construct, operate, repair and maintain Gas Facilities in, on, over, under and across the Public Ways of City, subject to the provisions of this Franchise Ordinance. Company may do all reasonable things necessary or customary to accomplish these purposes, subject, however, to such reasonable regulations as may be imposed by the City pursuant to ordinance.

B. Effective Date: Written Acceptance.--This franchise Ordinance shall be in force and effect from and after passage of this Ordinance, its acceptance by Company, and its publication as required by law. City by board of city commission resolution may revoke this franchise Ordinance if Company does not file a written acceptance with the City within 90 days after publication.

C. Service and Rates.--The service to be provided and the rates to be charged by Company for Gas service in City, termination provisions, assignment and merger terms, and all operational decisions that apply shall continue to be subject to the jurisdiction of the Public Service Commission of this State or its successor agency.

D. Dispute Resolution.--If either party asserts that the other party is in default in the performance of any obligation hereunder, the complaining party shall notify the other party of the default and the desired remedy. The notification shall be written. Representatives of the parties must promptly meet and attempt in good faith to negotiate a resolution of the dispute. If the dispute is not resolved within 30 days of the written notice, the parties may jointly select a mediator to facilitate further discussion. The parties will equally share the fees and expenses of this mediator. If a mediator is not used or if the parties are unable to resolve the dispute within 30 days after first meeting with the selected mediator, either party may commence an action in District Court, Cass County, North Dakota, to interpret and enforce this franchise or for such other relief as may be permitted by law or equity for breach of contract, or either party may take any other action permitted by law.

Source: 5365 (2022)

Editor's note—At the editor's discretion, only such provisions as relate to the granting of the franchise to Northern States Power Company have been codified in this section. For the remaining provisions including, but not limited to, definitions, regulations, and fees, please see Ord. No. 5365 in its entirety as can be found on file with the city or online.

ARTICLE 24-02

CABLE TELEVISION

Section

24-0201 General provisions.
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24-0203 Franchise requirements.
24-0204 Terms and termination.
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24-0211 Administration of franchise.
24-0212 Effective date, publication, acceptance and governing law.

24-0201. General Provisions.--

A. Title. This ordinance shall be referred to and cited as the "Cable Services Code" or herein as the "Ordinance".

B. Applicability. The requirements of this ordinance shall apply to the full extent of the terms herein and shall be limited in scope or application only to the extent as may be required by applicable federal or state law, including such changes in applicable law as may be hereinafter enacted. No provisions of this ordinance shall be disregarded pursuant to this subsection except on express application to and determination by the city to such effect based on the specific factual circumstances demonstrated. The provisions of this ordinance shall be deemed incorporated in each franchise granted. Nothing in this ordinance or amendments thereto shall be interpreted to unilaterally deprive any person of any rights or obligations imposed by any binding and existing valid franchise or contract during the term thereof, whether entered into before or after enactment of this ordinance, and shall impose obligations on any such person additional to those included in such franchise or contract only to the extent permitted by law and to the extent not inconsistent with such franchise or contract; provided that the failure of the city to enforce any provision herein or the failure of any person to comply with any provision herein shall not be a waiver of the city's right to enforce such provisions nor shall it in any way constitute evidence or agreement by the city that such person has a valid existing franchise. The provisions of this ordinance shall apply irrespective of whether a grantee is determined to be operating pursuant to a valid franchise.

C. Preservation of Police Power Authority. To the extent not inconsistent with § 24-0205(A)(2), any rights granted pursuant to this ordinance and pursuant to any franchise authorized hereunder are subject to the authority of the city to adopt and enforce ordinances necessary to the health, safety, and welfare of the public. Grantees shall be subject to and comply with all applicable laws enacted by the city pursuant to its home rule powers, to the extent not in conflict with

North Dakota or federal law. Nothing in this ordinance shall be deemed to waive a right, if any, that any party may have to seek judicial or regulatory review as to any provisions of the ordinance or as to actions of the parties under applicable federal law, including 47 U.S.C. 555A, as well as applicable, state, or local law currently in effect or as may hereinafter be amended.

D. Public Inspection of Records. Certain information required to be filed with the city pursuant to this ordinance is subject to inspection and copying by the public pursuant to North Dakota law concerning public and non-public information, N.D.C.C. §§ 44-04-17.1 through 44-04-31. The city shall provide a grantee with notice of any request by a third party for information designated as proprietary. Nothing in this ordinance or franchise shall be construed as a waiver of the provisions of North Dakota law applicable to public and non-public information. City shall not make information designated as proprietary open for public inspection except when ordered to do so by authorized legal authority.

E. No Cause of Action for Damages. The grantee shall have no cause of action whatsoever against the city for damages of any kind arising from any of the provisions or requirements of a franchise, or because of the enforcement thereof by said city, for reasonable cause. By acceptance of a franchise a grantee acknowledges that it accepted the rights and obligations therein granted and the terms of this ordinance in reliance upon its independent and personal investigation and understanding of the power of authority of said city to enter into the franchise authorized therein with grantee; provided further that a grantee acknowledges by its acceptance of said franchise that it has not been induced to

enter into a franchise upon any understanding, or promise, whether given verbally or in writing by or on behalf of said city, or by any other person concerning any term or condition of a franchise not expressed therein.

F. Enforcement. The city shall be entitled to enforce this ordinance and any franchise through all remedies lawfully available.

G. Relationship of the Parties. Under no circumstances shall any franchise authorized by this ordinance be construed to create any relationship of agency, partnership, joint venture, or employment between the parties.

Source: 1965 Rev. Ord. 24-0201, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

24-0202. Definitions.--For the purposes of this ordinance, the following terms, phrases, words, and their derivations will have the meaning given herein. Words used in the present tense include the future, words in the plural number include the singular number, and words in the singular number include the plural number. All capitalized terms used in the definition of any other term will have their meaning as otherwise defined in this section. The words "will" and "shall" are mandatory and "may" is permissive. Words not defined will be given their common and ordinary meaning.

1. "Access Channels" means channel capacity designated for educational or governmental access use, as well as the facilities and equipment required for the use of such channel capacity.

2. "Affiliate" means each person, directly or indirectly, controlling, controlled by, or under common control with the grantee; provided that affiliate shall in no event mean any limited partner or shareholder holding an interest of less than fifteen percent (15%) of such grantee, or any creditor of such grantee solely by virtue of its status as a creditor and which is not otherwise an affiliate by reason of owning a controlling interest in, being owned by, or being under common ownership, common management, or common control with, such grantee.

3. "Basic Cable Service" means any service tier, which includes the lawful retransmission of local television broadcast signals and access channels required by this ordinance to be carried on the basic tier. This definition will be consistent with and deemed to change pursuant to any changes in applicable federal law or FCC rules.

4. "Cable Act" means the Cable Communications Policy Act of 1984, Pub. L. No. 98-549, 98 Stat. 2779 (1984) (codified at 47 U.S.C. §§ 521-611 (1982 & Supp. V. 1987)) as amended by the Cable Television Consumer Protection and Competition Act of 1992, Pub. L. No. 102-385, and the Telecommunications Act of 1996, Pub. L. No. 104-104, as may, from time to time, be amended.

5. "Cable Service" means (a) the one-way transmission to subscribers of (i) Video programming or (ii) other programming service; (b) subscriber interaction, if any, which is required for the selection or use of such video programming or other programming service.

6. "Cable Television System", "Cable System," or "System" means a facility, consisting of a set of closed transmission paths and associated signal generation, reception, and control equipment that is designed to provide cable service which includes video programming and which is provided to multiple subscribers within the franchise area. Such term does not include (a) a facility that serves only to retransmit the television signals of one or more television broadcast stations; (b) a facility that serves subscribers without using any public

right-of-way; (c) a facility of a common carrier which is subject, in whole or in part, to the provisions of 47 U.S.C. §§ 201 et seq., except that such facility will be considered a cable system (other than for purposes of 47 U.S.C. § 541(C)) to the extent such facility is used in the transmission of video programming directly to subscribers, unless the extent of such use is solely to provide on-demand services; or (d) any facilities of any electric utility used solely for operating its electric utility system.

7. "Capital Costs" means costs associated with the purchase of assets, products or other resources that will provide service for more than one (1) year, but shall not have any meaning inconsistent with generally accepted accounting principles.

8. "City" or "Grantor" means the city of Fargo, North Dakota, and all territory within its existing and future territorial corporate limits, or jurisdiction for purposes of this ordinance.

9. "Channel" or "Cable Channel" means a portion of the electromagnetic frequency spectrum which is used in a cable system and which is capable of delivering a television channel as defined by the FCC.

10. "Collocation" means the shared use of facilities, including, but not limited to, the placement of conduit owned by more than one (1) rights-of-way user in the same trench or boring and the placement of equipment owned by more than one (1) user in the same or connected conduit. Collocation does not include interconnection of facilities or the sale or purchase of capacity (whether bundled or unbundled).

11. "Complaint" means any written or electronic inquiry, allegation, or assertion made by a person regarding cable service or cable system operations requiring subsequent corrective action to the system or any portion thereof.

12. "Converter" means an electronic device that converts signals to a frequency not susceptible to interference within the television receiver of a subscriber and, through the use of an appropriate channel selector, permits a cable subscriber to view all authorized cable subscriber signals delivered at designated converter dial locations.

13. "Direct Incremental Costs" means the costs actually incurred by a cable grantee in meeting an obligation under its franchise which the grantee would not otherwise have incurred in order to either operate and conduct the business of its cable system or meet another obligation of the franchise.

14. "Drop" means the cable or cables that connect the ground block on the cable subscriber's property to the nearest feasible point on the cable system in order to receive cable service.

15. "Facilities" means any portion of a cable or OVS system located in, along, over, upon, under, or through the rights-of-way.

16. "FCC" means the Federal Communications Commission, its designee, or any successor thereof.

17. "Franchise" or "Franchise Agreement" means an initial authorization or renewal thereof issued by the city, whether such authorization is designated as a franchise, permit, license, resolution, contract, certificate, agreement, or otherwise, which authorizes the construction or operation of the cable system. It also means a contract entered into in accordance with this ordinance between the city and a grantee that sets forth, subject to this ordinance, the terms and conditions under which a franchise will be granted and exercised. Subject to applicable law, any franchise agreement shall define the services any grantee is so authorized to provide.

18. "Franchise Area", unless otherwise specified in the applicable franchise, means the entire geographic area within the city as it is now constituted or may in the future be constituted.

19. "Franchise Fee" means any tax, fee, or assessment of any kind imposed by the city or other governmental entity on a grantee or its cable subscribers, or both, solely because of their status as such, pursuant to this ordinance. The term "franchise fee" does not include: (i) any tax, fee, or assessment of general applicability (including any such tax, fee, or assessment imposed on both utilities and cable operators or their cable services but not including a tax, fee, or assessment that is unduly discriminatory against grantees or cable subscribers); (ii) capital costs that are required by a franchise to be incurred by a grantee for public, educational or governmental access facilities; (iii) requirements or charges incidental to the award or enforcement of a franchise, including payments for bonds, security funds, letters of credit, insurance, indemnification, penalties, or liquidated damages; or (iv) any fee imposed under Title 17 of the United States Code.

20. "Grantee" means and includes all persons having any rights, powers, privileges, duties, liabilities, or obligations under this ordinance and the franchise agreement and any lawful agent, employee, successor, transferee, or assignee of the original grantee.

21. "Gross Revenues" means all revenues or compensation received directly or indirectly by the grantee, arising from or in connection with the provision of cable services in the city and consistent with local, state, and federal law, including, but not limited to, subscriber revenues (including Pay TV), advertising income, home shopping programs, rentals of equipment, antenna, or signal space, and any and all other revenues received by the grantee from the provision of cable service in the city. Gross revenues include funds collected from subscribers by grantee to pay a franchise fee to the city. Gross revenues do not include revenues recorded as received but which are "bad debt," but includes any recoveries of bad debt. Gross revenues also do not include any sales, excise, or other taxes collected by grantee on behalf of federal, state, county, city, or other governmental unit. Subject to a determination by the FCC, and other applicable law, internet modem and related services revenues may be part of gross revenues.

22. "Installation" means the act of connecting the system from the feeder cable to the subscriber terminal so that cable service may be received by the subscriber.

23. "Institutional Network" or "I-NET" means a communication network which is constructed or operated by grantee and which is generally available only to institutional users The I-NET will consist of new fiber optic construction and includes all equipment and maintenance of equipment required to make the capacity available, including, but not limited to, fiber and coaxial cable, necessary for the use of the network as set out in the individual franchise. No entity other than local city government or public schools may use the I-NET.

24. "Institutional Network Services" means the provision of I-NET by a cable system operator to governmental, educational, and other institutional users pursuant to the terms of its franchise for non-commercial applications including, but not limited to, a closed path two-way dedicated, video, data channels connecting and interconnecting users facilities.

25. "Institutional Users" means governmental and state certified educational users.

26. "Lifeline Service" will include all access channels as well as all local broadcast channels.

27. "Normal Business Hours" means those hours during which most similar businesses in the community are open to serve customers.

28. "Normal Operating Conditions" means those service conditions which are within the control of the grantee. Those conditions which are not within the control of the grantee include, but are not limited to, natural disasters, civil disturbances, power outages, telephone network outages, and severe or unusual weather conditions. Those conditions which are ordinarily within the control of the grantee include, but are not limited to, special promotions, pay-per-view events, rate increases, regular peak or seasonal demand periods, and maintenance or upgrade of the system.

29. "Open Video Services" or "OVS" means any video programming services provided to any person by a grantee certified by the FCC to operate an open video system pursuant to Section 47 U.S.C. 573, as may be amended, regardless of the facilities used.

30. "Pay TV" means the delivery over the system of per-channel or per-program programming to subscribers for a separate fee or charge from basic cable service.

31. "Person" means any natural person or any association, firm, individual, partnership, joint stock company, joint venture, corporation, or other legally recognized entity, public or private, whether for profit or not for profit.

32. "Public Building" means any building identified in the applicable franchise, which is owned or for the greater part occupied by the city or on behalf of the city by other governmental units performing traditional municipal governmental functions.

33. "Renewal" means a new franchise granted to an existing grantee in accordance with the renewal provisions of the federal Cable Act, 47 U.S.C. § 546 as amended.

34. "Rights-of-Way" means the surface and space on, above and below every municipal street, alley, road, highway, lane or city right-of-way dedicated or commonly used now or hereafter for utility purposes and facilities thereon, including, but not limited to, overhead lighting facilities. This term shall not include any county, state, or federal rights-of-way except where controlled or maintained by the city, or as other provided by applicable Laws or pursuant to an agreement between the city and any such person or agency. "Rights-of-way" shall not include public property owned or leased by the city and not intended for right-of-way use, including, but not limited to, municipal office building property or public works facilities.

35. "Service Interruption" means the loss of picture or sound on one (1) or more cable channels for single or multiple subscribers.

36. "Standard Installation" means any service installation that can be completed using a drop of one hundred twenty-five (125) feet or less.

37. "Subscriber" means any person who lawfully receives cable service provided by a grantee.

Source: 1965 Rev. Ord. 24-0202, 1823 (1977), 1848 (1978), 1923 (1979), 2453 (1989), 2705 (1994), 4421 (2004).

24-0203. Franchise requirements.--

A. Franchise required. It shall be unlawful for any person to construct, operate or maintain a cable system or to provide cable service or other competing multi-channel video services, including OVS, in the city without a franchise in the form of a franchise agreement authorizing the same, unless applicable federal or state law prohibits the city's enforcement of such a requirement. Such franchise agreement shall comply with all of the specifications of this ordinance.

B. Nature of rights granted by franchise. Franchises shall not convey title, equitable or legal, in the rights-of-way, and shall give only the right to occupy rights-of-way, for the purposes of providing cable services and as may be further limited by the franchise. A separate franchise or other applicable authorization from the city may be required for non-cable service or use of rights-of-way for purposes other than for the provision of cable services, including, but not limited to, telephone or telecommunications no presently offered on a cable system. No franchise shall grant the right to use facilities owned or controlled by the city or a third-party, without the consent of such party, nor shall a franchise excuse grantee from obtaining appropriate access or attachment agreements before locating its facilities on the facilities owned or controlled by the city or a third-party. All franchises shall be deemed to incorporate and be limited by the provisions of this ordinance and shall create rights for the sole and exclusive use of grantee. Any franchise or other authorization for cable services, in whatever form granted, shall not grant or include: (i) any other permit or authorization required for the privilege of transacting and carrying on a business within the city required by the ordinances and laws of the city, including the provision of communications services; (ii) any permit, agreement, or authorization required in connection with operations in the rights-of-way including, without limitation, permits and agreements for placing devices on or in poles, conduits, or other structures, whether owned by the city or a private entity, or for excavating or performing other work in or along the rights-of-way.

C. Franchise not exclusive. Any franchise granted by the city shall be nonexclusive. The city specifically reserves the right to grant, at any time, such additional franchises for a cable system or any component thereof, to any other person including itself, as it deems appropriate, subject to this ordinance and applicable state and federal law.

D. Franchise territory. Every franchise shall apply to the entire territorial area of the city, as it exists now or may later be configured.

E. Selection of initial grantee. In selecting a grantee pursuant to this ordinance, the city will prepare a request for proposals to seek bids for a cable system to be established under a franchise by the city. This request for proposals will contain information and instructions relating to the preparation and filing of proposals; conditions regarding the installation, operation, and maintenance of a cable system; and the criteria to be used in evaluating applicant proposals. Any person desiring an initial franchise for a cable system shall file an application with the city. A nonrefundable application fee as may be hereinafter be established by the city shall accompany the application, which shall not be considered or credited against the collection of applicable franchise fees. The provisions of this section will not be applicable to the renewal of any franchise.

Applicants may be evaluated according to the following criteria:

1. Installation plan. Consideration may be given to an Installation plan that would provide the flexibility needed to adjust to new developments, maintenance practices, and services that would be available to the subscriber and the community immediately and in the future.

2. Rate schedule. Consideration may be given to applicants with the most reasonable Installation and subscriber rate schedule.
3. Financial soundness and capability. The evidence of financial ability required in the applicant's proposal will be such as to assure the ability to complete the entire system within a maximum of three years from the date the franchise is granted. The city will also consider the applicant's ability to operate the system and provide the necessary services.
4. Demonstrated experience in operating a cable system. Consideration may be given to evidence of the applicant's experience in operating a cable system, where such evidence would show or tend to show or confirm the ability of the applicant to furnish sufficient and dependable service to the potential public and private users.
5. Technical capability. The city may consider the quality of service offered, including signal quality, response to subscriber complaints, and billing practices.
6. Future needs. Consideration may be given to the grantee's ability to meet the future cable-related community needs and interests, taking into account the cost of meeting such needs and interests.
7. Additional considerations. The city may consider any additional information that it deems applicable.

F. Application for franchise renewal. Franchise renewals will be according to applicable law including, but not necessarily limited to, the Cable Act, Section 546, as amended. The city and grantee, by mutual consent, may enter into renewal negotiations at any time during the term of the franchise.

Source: 1965 Rev. Ord. 24-0203, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

24-0204. Terms and Termination.

A. Term of franchise. The term of the franchise will be stated in the franchise agreement.

B. Termination of franchise. In addition to all other rights and powers of the city by virtue of the franchise or this ordinance, the city may terminate and cancel the franchise and all rights and privileges of the franchise thereunder in the event that the grantee either:
   1. Substantially violates any provision of the franchise agreement or this ordinance;
   2. Attempts to evade any of the provisions of this ordinance or the franchise agreement, or practices any fraud or deceit upon the city.

C. Procedure. If the city believes that grounds for termination exist or have existed, the city will notify the grantee, in writing, setting forth the nature and facts of such noncompliance. If, within the sixty (60) days following such written notification, the grantee has not furnished reasonably satisfactory evidence that corrective action has been taken or is being actively and expeditiously pursued, or that alleged violations did not occur, or that the alleged violations were beyond the grantee's direct control, the city may, following notice of the grounds

for termination, pursuant to this section and the holding of a public hearing with the city commission, revoke a franchise. Grantee will be afforded a fair opportunity for participation at the public hearing, including the right to introduce evidence and question witnesses. Grantee will have the right to appeal any such decision to a state or federal court.

Source: 1965 Rev. Ord. 24-0204, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

24-0205. Required provisions.--

A. Franchise provisions.

1. All franchises granted pursuant to this ordinance will be subject to the following provisions:

(a) The continuing authority of city to impose such other regulations of general applicability through lawful exercises of its police powers as may be determined by the city commission to be conducive to the health, safety, and welfare of the public.

(b) The continuing authority of city to control and regulate the use of its streets.

(c) The authority of city to inspect all construction or installation work performed subject to the provisions of the franchise and this ordinance, and make such inspections as it will find necessary to insure compliance with the terms of the franchise, this ordinance, and other pertinent provisions of law.

(d) The authority of city to inspect the books, records, maps, plans, income tax returns, and other like materials of the grantee upon reasonable notice to insure compliance with the terms of the franchise, this ordinance, and other pertinent provisions of law.

(e) At the expiration of the term for which this franchise is granted or upon the termination and cancellation as provided herein, the authority of the city to require the grantee to remove at its own expense any and all portions of the cable system from the rights-of-way within the city; provided, however, that this paragraph shall not be applicable if grantee is authorized to provide telecommunications service in city.

2. Federal, state, and city jurisdiction.

(a) This ordinance and any franchise agreement will be construed in a manner consistent with all applicable federal and state laws.

(b) In the event that the state or federal government will discontinue preemption in any area of cable television over which it currently exercises jurisdiction in such a manner as to expand rather than limit municipal regulatory authority, the city may, if it so elects, adopt rules and regulations in these areas to the extent permitted by law.

(c) This ordinance will apply to all franchises granted or renewed from and after the effective date of this ordinance.

(d) Grantee will not be relieved of its obligation to comply with any of the provisions of this ordinance or any franchise agreement granted pursuant to this ordinance by reason of any failure of the city to enforce prompt compliance.

(e) In the event of a change in state or federal law which by its terms would require the city to amend this ordinance, the parties shall modify the existing franchise in a mutually agreed upon manner.

B. Franchise agreement.

1. The applicant awarded a franchise by the city will execute a franchise agreement, agreeing to the terms and provisions of the franchise and specifications of the franchise as may be incorporated into the franchise agreement in writing.

2. In addition to those matters required elsewhere in this ordinance to be included in the franchise agreement, it must contain the following express representations by the grantee that:

(a) It accepts and agrees to all of the provisions of this ordinance, as to construction, operation, or maintenance of the system, subject to applicable state and federal law

(b) It has examined all of the provisions of this ordinance and agrees that the provisions thereof are valid, binding at this time, and enforceable as of the effective date of the franchise.

(c) It recognizes the right of the city to adopt such additional regulations of general applicability as it will find necessary in the exercise of its police power.

3. No franchise will be exclusive.

4. Every franchise will specifically delineate the territorial extent of the city in which the grantee is authorized to operate.

5. The franchise agreement will contain such further conditions or provisions as may be negotiated between the city and the grantee. In case of such conflict or ambiguity between any terms or provisions of the franchise agreement and this ordinance, the franchise agreement will control, except where conflict arises from lawful exercise of city's police power.

C. Design, services, and capabilities.

1. Cable system design. Every grantee shall offer cable service that meets the cable-related needs of the city. The franchise shall incorporate a description of the grantee's cable system including the general design and capabilities of the cable system to identify how the cable system will meet the current and future cable needs of the city.

2. The cable system. Every cable system shall pass by every household within the city in accordance with line extension policies set forth in a franchise. Where rights-of-way provide access, cable service shall be provided to subscribers in accordance with the schedules and line extension policies specified in the franchise.

3. Drops to public buildings.--

(a) Every grantee shall provide installation of at least one (1) cable drop and one (1) outlet, provide monthly basic cable service, and maintenance of the same, without charge, to public buildings specified by the city in the applicable franchise, where the drop does not exceed two hundred (200) feet. All accredited K-12 schools, secondary private schools with students receiving funding under Title I of the Education and Secondary School Act of 1965, public libraries, and each police and fire station shall receive one (1) cable drop, one (1) drop, basic cable service, and maintenance of the same at no charge, subject to the two hundred (200) foot limit. The location of such cable drops and outlets shall be determined in cooperation with the management of the public building to which the connection is to be made. Inside wiring will be installed by the requesting party and must meet FCC standards regarding signal leakage. Following the city's designation of additional public buildings to receive cable service, a grantee shall complete construction of the drop and the outlet within one hundred eighty (180) days of the request, weather permitting and subject to payment of the direct incremental costs of installation in excess of two hundred (200) feet. Drops and outlets that are in addition to the one (1) free drop and outlet required by this section shall be provided by a grantee at grantee's actual cost, overhead, tax and freight charges. Alternatively, at an institution(s request, the institution may add outlets at its own expense, as long as such installation meets the grantee's standards, which shall be made readily available to any public entity upon request. Additional outlets and services to public buildings are subject to the applicable commercial rate.

(b) All cable outlets provided for in this subsection shall not be utilized for commercial purposes. The city shall take reasonable precautions to prevent any use of a grantee's cable system in any inappropriate manner or that may result in loss or damage to the cable system. Users of such outlets shall hold the grantee harmless from any and all liability or claims arising out of their use of such outlets, other than those claims arising out of improper installation or faulty equipment.

(c) In instances where the drop line from the feeder cable to the public building, school, or library exceeds two hundred (200) feet, the grantee may charge for its actual cost, overhead, tax and freight charges that are incurred in exceeding this length. A grantee may require advance payment of this cost.

4. School and library cable modems. As specified in a franchise, and upon activation and commercial offering of two-way cable modem service by a grantee, such grantee shall provide upon written request cable internet service to every state accredited K-12 pubic school, secondary private

schools with students receiving funding under Title I of the Education and Secondary School Act of 1965, and public library in the franchise area, where the drop does not exceed two hundred (200) feet.

5. Use of grantee's facilities. Subject to any applicable state or federal regulations and a franchise, the city may have the right to install and maintain, upon the poles and within the underground pipes and conduits of a grantee, any wires and fixtures desired by the city for public purposes. The specific terms and conditions of such access shall be set out in the individual franchise agreement. Provided, however, that (a) such use by grantor shall not interfere with the current or future use by grantee or any pre-existing user or lessor of grantee's facilities; (b) such use by Grantor is restricted to non-commercial public purposes; (c) grantor takes reasonable precautions to prevent and use of grantee's facilities in any manner that results in an inappropriate use thereof, or any loss or damage to the cable system. For the purposes this subsection, "public purposes" includes, but is not limited to, the use of the structures and installations for city fire, police, traffic, utility, and/or signal systems, but not for commercial cable system purposes in competition with the grantee; (d) to the extent provided by state law, the city holds grantee harmless against and from all claims, demands, costs, or liabilities of every kind and nature whatsoever arising out of such use of said poles or conduits; and (e) at the grantee's sole discretion, the city may be required either to pay a reasonable rental fee or otherwise reasonably compensate the grantee for the use of such conduit or other equipment provided, however, the grantee agrees that such compensation or charge will not exceed those paid by it to public utilities.

6. Initial construction, rebuild and upgrade of the system. Every grantee shall construct, rebuild or upgrade its cable system as set forth in its respective franchise. Furthermore, the city may amend this ordinance whenever necessary to enable the grantee to take advantage of any developments in the field of transmission of communication signals and upgrade the system which will afford it an opportunity to more effectively, efficiently, or economically serve its customers; provided that this section will not be construed to require the city to make any such amendment and further provided that the city may not impose any capital or operating expenditures on any grantee pursuant to this section without the grantee's consent.

7. Emergency alert capability. Every grantee shall at all times provide the system capabilities to comply with the FCC's Emergency Alert System rules and regulations. Provided, that if the FCC at some future date eliminates the Emergency Alert System regulations, the city and grantee may mutually agree upon a comparable local system.

8. Periodic review and evaluation. The city has determined that cable television technology, programs, and services are subject to continuing change. This includes change in law and regulations, as well as technological and service advancements. For this reason, it is essential that any

franchise which is granted pursuant to this ordinance must include provisions for periodic review evaluation and/or independent technical review and modification, procedures and requirements relating to evaluation of the current technology and services deployed permitting the city and grantee to agree to changes based upon review and a demonstrated need and in accordance with the procedures outlined in the franchise agreement.

9. Close captioning and descriptive audio service. Every grantee will make audio descriptive services and closed captioning capabilities available to the extent required by state and federal law.

10. Standby power. Grantees shall provide standby power generating capacity capable of providing at least twelve (12) hours of emergency supply at the cable system headend. For nodes, two (2) hours with emergency power supply. Every grantee shall maintain standby power system supplies throughout the major trunk cable networks capable of providing emergency power within the standard limits of commercially available power supply units.

11. Status monitoring. Every grantee shall provide an automatic status monitoring system, or a functionally equivalent, to provide prompt response to system malfunctions, when the cable system had been activated for interactive service, provided that such status monitoring is technically and economically feasible.

D. Institutional Network and Public, Educational, and Governmental Access or PEG Access.

1. Institutional Network, Access Channels.

(a) Every grantee shall, to the extent required in its franchise and subject to applicable law, provide or fund an Institutional Network or PEG access facilities or other public interest services, or some combination of the same, for use by institutional users. Such public interest requirements shall, at a minimum, satisfy the community need for such facilities and/or service as determined by the city or governing body for the period of the applicable franchise.

(b) Every grantee shall also provide channel capacity for Public, Educational, and Government Access Channels, as specified in their franchise. All such PEG access channels shall be provided as part of basic cable service. Oversight and administration of the PEG access channels shall be set forth in the franchise.

2. Proof of performance testing. To ensure high quality of service on the access channels, results of proof of performance testing as required by applicable federal law throughout the system and on all required channels will be made available to the city upon request to the extent required by the franchise. Every grantee will monitor the cable system to determine and ensure that the level of technical quality of the system's transmission of access channels is in conformance with the FCC Rules and is the same as on other channels transmitted on the sable system.

E. Construction standards and requirements.

1. Permit required. Grantee will not construct any cable system facilities until grantee has secured the necessary permits from the city or other cognizant public agencies.
2. Construction standards. All of the grantee's plant and equipment including, but not limited to, the antenna site, headend, and distribution system, towers, house connections, structures, poles, wire, cable, coaxial cable, fixtures, and appurtenances will be installed, located, erected, constructed, reconstructed, replaced, removed, repaired, maintained, and operated in accordance with good engineering practices, performed by experienced pole line construction crews and so as not to endanger or interfere with the safety of any person or property, or to interfere with improvements the city may deem proper to make, or to interfere in any manner with the right of any property owner, or to unnecessarily hinder or obstruct pedestrian or vehicular traffic on city properties.
3. Compliance with city ordinances for work in rights-of-way. Any opening or obstruction in or disturbance of the rights-of-way or other municipal properties made by the grantee in the exercise of its rights under a franchise agreement will be done in compliance with city ordinances which regulate work in the public ways of the city, except that any bond requirements therein may be waived in cognizance of the bond requirements of this ordinance.
4. Compliance with city ordinances for construction and building standards. The grantee will comply with the minimum standards provided for by the applicable ordinances of the city adopted from time to time containing construction or building standards of general applicability.
5. Removal and relocation of facilities. The grantee will, at its expense, protect, support, temporarily disconnect, relocate in the same rights-of-way, or other right-of-way, or remove from the right-of-way, any property of grantee when required by the city or its designee by reason of traffic conditions, public safety, street excavation, freeway, and street construction, change or establishment of street grade, installation of sewers, drains, water pipes, power lines, signal lines, and tracks, or any other type of structures or improvements by public agencies. If the city compensates any utility for such work, the city must similarly compensate the grantee for such work.
6. Movement of lines. The grantee will, on the request of any private party holding an appropriate permit issued by the city, temporarily raise or lower its lines to permit the moving of any building or other structure, and the actual expense of the same will be paid in advance by the party requesting the same. Any work concerning movement of lines shall comply with the regulations governing house moving as stated in Fargo Municipal Code § 25-2006.
7. Tree trimming. The grantee will have the right, with the prior approval of the city, except in emergency circumstances, to remove, trim, cut, and keep clear of its poles, wires, or cables, the trees in and along the streets of

the city, but in the exercise of such right, the grantee will not cut or otherwise injure said trees to any greater extent than is reasonably necessary for the continued integrity of its poles, wires, or cables.

8. Responsible for restoration and costs. The grantee, in exercise of any right granted to it by the franchise, will reconstruct, replace, restore, or repair any street, and any sewer, gas, or water main, pipe, electric, fire alarm, or police communications, off or on city property, or right-of-way or traffic control facility of the city which may be damaged or destroyed by the exercise of any such right, to a condition as good as that prevailing before said work to the reasonable satisfaction of the city. The city reserves the right to determine whether the grantee has properly complied with the provisions of this paragraph and in the event it is determined that the grantee has failed to do so, the city will have the right to, following notice to the grantee and reasonable opportunity for the grantee to cure, enforce such provisions, and the grantee will reimburse the city in full for all expenses incurred by the city in carrying out all or part of such provisions.

9. Failure to complete work. Upon failure of the grantee to commence, pursue, or complete any work required by law, a franchise or by the provisions of this ordinance to be done in any Rights-of-Way, within the time prescribed, and to the satisfaction of the city or its designee, the city or its designee may, unless there is an excusable delay, as determined by city. If it is determined there is not an excusable delay, following notice to the grantee and reasonable opportunity for the grantee to cure, at the option of the city, the city may cause such work to be completed. The grantee will pay to the city the cost thereof in the itemized amounts reported by the city or its designee to grantee within 30 days after receipt of such itemized report. A franchise shall include a provision of force majeure to describe conditions of excusable delay.

F. Technical Standards.--

1. Compliance with OSHA. All construction practices will be in accordance with all applicable sections of the Occupational Safety and Health Act of 1970, as amended, as well as all other applicable local, state, and federal laws and regulations.

2. Compliance with National Electrical Codes. All Installation of electronic equipment will be installed in accordance with the provisions of the National Electrical and Safety Code and National Electrical Code as amended.

3. Compliance with FAA Regulations. Antennae and their supporting structures (towers) will be painted, lighted, erected, and maintained in accordance with all applicable rules and regulations of the Federal Aviation Administration and all other local, state, and federal laws and regulations.

4. Test and compliance procedure. Tests for the cable system shall be performed periodically in a manner so as to conform with FCC specifications. The tests may be witnessed by representatives of the city and

written test results shall be made available to the city within thirty (30) days of a request. If any test locations fail to meet the performance standards, the grantee shall be required to indicate what corrective action measures have been taken and shall have the site retested.

5. Additional tests. At any time after commencement of service to subscribers, the city may require the grantee to perform additional tests, full or partial repeat tests, or tests involving a specific subscriber's drop. Such additional tests may be made on the basis of complaints received or other evidence indicating an unresolved controversy or significant noncompliance, and such tests will be limited to the particular matter in controversy. The city will be able to designate a representative to be present during the testing. If a test indicates that the grantee is in compliance with FCC standards and requirements, the city will bear the expense of such test. If a test indicates that the grantee is not in compliance with FCC standards and requirements, the grantee will bear the expense of such test. The city will endeavor to so arrange its requests for such special tests so as to minimize hardship or inconvenience to grantee or to the subscriber.

G. Repair. Any damage caused to the property of building owners or users or any other person by the grantee's negligence will be repaired fully to a condition as good as that prevailing before said work by the grantee.

H. Removal of facilities from subscriber's premises upon request. Upon termination of service to any subscriber, the grantee will promptly remove all its facilities and equipment from the premises of such subscriber upon his or her request.

I. Transfer of ownership. --

1. Grantee will not sell, transfer, lease, assign, sublet, or dispose of any franchise awarded under this ordinance or any of the rights or privileges granted by the franchise to any person other than an affiliate of grantee, without the prior consent of the city, which consent will not be unreasonably withheld and may be denied only upon a good faith finding by the city that the proposed transferee lacks the legal, technical, or financial qualifications to consummate the transaction and operate the cable system so as to perform its obligations under the franchise. This section shall not apply to sales or property or equipment in the normal course of business.

   Further, any sale or transfer and the consent thereto, will comply with applicable legal requirements. Any attempt to sell, transfer, lease, assign, or otherwise dispose of the franchise and/or the cable system without the consent of the city except as otherwise provided herein will be null and void. The granting of a security interest in any of grantee's assets, or any mortgages or other hypothecation, will not be considered a transfer for the purposes of this section.

2. Any change of control of grantee will be deemed to be a "sale" or "transfer" of the franchise. A "change of control" will include any sale by grantee of the majority of its stock to, or any merger or consolidation

with, any person (or group of persons acting in concert) who is not an affiliate of grantee before such transaction. The sale, assignment, or other transfer of all or a majority of a grantee's assets in the city shall also constitute a sale or transfer.

3. The grantee must comply with provisions of the Cable Act regarding transfers of ownership and any other state, federal, or local laws which are applicable.

4. The grantee will notify the city in writing of any foreclosure or any other judicial sale of all or a substantial part of the property of the grantee or upon the termination of any lease or interest covering all or a substantial part of said franchised property. Such notification will be considered by the city as notice that a change in control or ownership of the franchise has taken place and the provisions under this section governing the consent of the city to such change in control or ownership will apply.

5. For the purpose of determining whether it will consent to such a change, transfer, or acquisition of control, the city may inquire into the qualifications of the prospective transferee or controlling party, and the grantee will assist the city in any such inquiry. The transferee will be required to establish that it possesses the legal, technical, and financial qualifications to operate and maintain the system and comply with all franchise requirements for the remainder of the term of the franchise. After considering the legal, financial, and technical qualifications of the transferee and determining that they are satisfactory, the city may approve the transfer of rights and obligations of said franchise.

6. As a condition of transfer of ownership or control any proposed transferee shall execute an agreement, in such form as acceptable to the city attorney, that it will assume and be bound by all of the provisions, terms and conditions of this ordinance and any franchise granted pursuant to it.

7. Any financial institution having a pledge of the grantee or its assets for the advancement of money for the construction and/or operation of the franchise will have the right to notify the city that it or its designee satisfactory to the city will take control of and operate the cable television system, in the event of a grantee default in its financial obligations. Said financial institution will also submit a plan for such operation within thirty (30) days of assuming such control that will assure continued service and compliance with all franchise requirements during the term the financial institution exercises control over the system. The financial institution will not exercise control over the system for a period exceeding one year unless extended by the city in its discretion and during said period of time it will have the right to petition the to transfer the franchise to another grantee.

8. Notwithstanding anything to the contrary contained herein, no such prior consent will be required for any transfer or assignment to any person controlling, controlled by, or under the same common control as the grantee.

9. The city reserves any legal right it has under applicable law to require a grantee to pay all costs and expenses incurred by the city in connection with the sale, assignment, or transfer of a franchise, including, but not limited to, the city's costs of reviewing the qualifications of any proposed transferees.

J. Purchase by city. Subject to the Cable Act, if a franchise is revoked for cause, the city may acquire that portion of the cable system serving the city.

K. Requests for cable service. A grantee will provide cable service to any requesting residential subscriber within the city within thirty (30) days from the date of request, weather permitting.

L. Multiple franchises.--

1. Grant of additional franchise. The city may grant one or more franchises for the city. The city may, in its sole discretion, limit the number of franchises granted based upon, but not necessarily limited to, the requirements of applicable laws and specific local considerations, such as:
   (a) The capacity of the public rights-of-way to accommodate multiple coaxial cables in addition to the cables, conduits, and pipes of the utility systems, such as electrical, power, telephone, gas, and sewerage and the potential disruption of those rights-of-way and private property that may occur if one or more additional franchises are granted.
   (b) The impact on the community of having multiple franchises.
   (c) The disadvantages that may result from cable system competition, such as the requirement for multiple pedestals on residents' property, and a disruption arising from numerous excavations of the rights-of-way.
   (d) The legal, technical, and financial capabilities of the applicant and its guaranteed commitment to make the necessary investment to erect, maintain, and operate the proposed system for the duration of the franchise term.
   (e) The amount of time it will take the applicant to complete construction of the proposed cable system and activate cable service in the entire franchise area; and, whether the applicant can complete construction and activation of its cable system in a timely manner.
   (f) The disruption on the availability of cable service within the city.
   (g) Such other information as the city may deem appropriate to be considered prior to granting any competing or overlapping franchise.

2. Permits for non-franchised entities. The city may issue a license to a person other than the grantee to permit that person to traverse any portion of a grantee's franchise area within the city in order to provide cable service outside, but not within the city. Such a license or easement, absent a grant of a franchise in accordance with this ordinance, shall not authorize nor permit said person to provide cable service of any type to any home or place of business within the city.

M. Discriminatory or preferential practice.

1. Rates and charges. The grantee will not, in its rates or charges, or in making available the services or facilities of its system, or in its rules or regulations, or in any other respect, make or grant preferences or advantages to any subscriber or potential subscriber to the system, or to any user or potential user of the system; and will not subject any such persons to any prejudice or disadvantage. The foregoing will not be deemed to prohibit or preclude promotional rates, bundled rates, bulk rates or charges.
2. Access and employment. The grantee will not deny service, deny access, or otherwise discriminate against subscribers on the basis of race, creed, color, religion, national origin, or sex. The grantee will comply at all times with applicable equal employment opportunity requirements and all other applicable federal, state, and local laws and regulations, and all executive and administrative orders relating to nondiscrimination which are hereby incorporated and made part of this ordinance by reference.
3. Build-Out. A grantee may not discriminate in the build-out of its cable system to a particular area of the city or provision of cable service to individual groups of residents on the basis of race, creed, color, religion, national origin, sex, or economic condition.

N. Subscriber privacy. The franchise will comply with the subscriber privacy standards located in 47 U.S.C. § 551. In addition to complying with all obligations under Section 631 of the Federal Communications Act (47 U.S.C. § 551) and other applicable federal, state, and local law, a grantee and its affiliates shall comply with the requirements of this subsection. A grantee and its affiliates shall maintain and make available online a privacy policy outlining in clear, understandable terms their obligations and practices with regard to the collection, use, and sharing of subscriber information. A grantee and its affiliates shall annually mail to each subscriber a written statement of such policy, consistent with the requirements of 47 U.S.C § 551 (a)(1), and shall provide subscribers a copy of such statement at the time the grantee enters into a franchise to provide cable service or other such service. The city may, as part of the franchise entered into with a grantee, reserve a right of review of such privacy policy, but in no case shall such review be unreasonably delayed. If the standards in 47 U.S.C. § 551 cease to exist, in addition to the requirements in this section and in a franchise, the city will have the right to implement the following:

No signal will be transmitted from a subscriber terminal to grantee for purposes of monitoring individual viewing patterns or practices unless the monitoring will only result in aggregate viewing information that does not identify individual subscribers. The grantee will be entitled to conduct system-wide or individually addressed "sweeps" for the purpose of verifying system integrity, controlling return transmission, or billing for services.

O. Permits and authorizations. The grantee or applicant for franchise will diligently apply for all necessary permits and authorizations required in the conduct of its business, and will diligently pursue the acquisition thereof, including necessary pole attachment contracts, and necessary authorizations from the Federal Avi-

ation Administration to construct such receiving antenna towers as may be required, and any necessary authorizations or waivers from the FCC. After the grantee has diligently pursued the acquisition of necessary pole attachment contracts, or other necessary easements, and where such necessary contracts have not been entered or easements obtained after a reasonable period of time, the grantee may submit the matter to the city and the city may thereupon provide assistance that may be necessary to arrive at a solution so that scheduled construction of the system will not be impaired.

P. Annual reports.

1. Contents. Each grantee will file an annual report. Such report will include:
   (a) An ownership report, identifying all persons who at any time during the preceding year controlled or benefited from an interest in the grantee of five percent (5%) or more.
   (b) A list of grantee's officers, board members, and other principals and a current list of the addresses of each officer and director and other management personnel of the grantee.
   (c) A revenue statement certified by a representative of the grantee showing the gross revenues of the grantee for the proceeding fiscal year.
   (d) A statement of the grantee's current billing practices and charges.
2. Annual presentation to the city. At the time the grantee files its annual report, if requested by the city, it will make arrangements to make an oral presentation before the city's governing body at the earliest meeting thereafter. The presentation may include a brief overview of the annual report and in addition, an overview of franchise operations, services and changes, including plans for technical or service changes, changes in rates and trends in the industry. All city franchise holders to submit the same reports and presentations. As part of the presentation, a grantee shall furnish the city with written summaries of at least the following:
   (a) A summary of any customer surveys conducted pursuant to § 24-0205(B)(22), and as required by a franchise agreement.
   (b) A summary of the previous year's (or in the case of the initial reporting year, the initial year's) activities in development of the cable system, including but not limited to, services begun or discontinued during the reporting year.
   (c) As part of the annual report, grantee will provide to the city a written summary of the following statistical information:
      (i) Statistics compiled on a quarterly basis recording service calls in which a technician or repairman is dispatched to a residence to correct a reception problem. Such records should be kept pursuant to § 24-0204(F).
      (ii) Service interruption logs, in which service interruptions to multiple addresses are recorded.
      (iii) Grantee's leakage log.

(iv) New services to be offered to residents of city or technology to be deployed in city within the next thirty (30) days.

(v) Records of policy concerns and complaints called or written into the system and kept in the ordinary course of business. Such records should be kept pursuant to the requirements of § 24-0207(F).

Upon request, grantee will allow the city administrator or his or her designee to review a detailed plan (map) of the system at its offices.

3. Service contract and subscriber information. --

(a) A grantee shall have authority to promulgate such rules, regulations, terms, and conditions governing the conduct of its business as shall be reasonably necessary to enable the grantee to exercise its rights and perform its obligations under this ordinance and its franchise and to assure uninterrupted cable service to all of its subscribers; provided such rules, regulations, terms, and conditions shall not be in conflict with the provisions of this ordinance, federal, state, and or local law, or any applicable rules and regulations.

(b) Upon request, a grantee shall submit to city any standard residential subscriber contract form that it utilizes. If no written form exists, a grantee shall file with the city a document completely and concisely stating the terms of the standard residential subscriber contract offered.

Q. Index of reports. Each grantee shall compile and maintain an index of reports, that shall list all reports, documents, and filings, that it has prepared with respect to the system over the course of the past two years as a result of the requirements of the FCC or this ordinance, including technical system testing, and proof of performance reports and customer service compliance measurements, and shall provide a copy of such index of reports to the grantor every six months, and upon request. Each grantee shall make a copy of any reports or documents listed in the index of reports available to the grantor upon request.

R. Indemnification, security funds, insurance.

1. Liability and indemnification. The grantee will indemnify, hold harmless, release, and defend the city, its officers, agents, and employees from and against any and all lawsuits, claims, causes of action, actions, liability, demands, damages, disability losses, expenses including reasonable attorneys' fees, and costs or liabilities of any nature that may be asserted by any person or entity from any cause whatsoever including another's concurring negligence arising from injury to persons or damages to property to the extent caused by any conduct undertaken by the grantee, its officers, agents, or employees, by reason of its construction, operation, or maintenance of its system. However, unless otherwise provided in a franchise, a grantee may not be liable for the content of access channel public, educational, or governmental programming. Damages and penalties will include, but not be limited to, damages arising out of copyright infringements, and all other damages arising out of the

installation, operation, or maintenance of the cable system authorized herein, whether or not any act or omission complained of is authorized, allowed, or prohibited by the franchise, except that a grantee will not be liable for payment of damages and penalties arising solely from any acts or omissions by the city, its agents, or employees. If a lawsuit is filed against the city, either independently or jointly with the grantee to recover for any claim or damages, the grantee, upon notice to it by the city, will, at its sole cost and expense, defend and fully control the defense of the city against the action and, in the event of a final judgment being obtained against the city, either independently or jointly with the grantee solely by reason of the acts of the grantee, the grantee will pay said judgment and all costs and hold the city harmless therefrom. However, the grantee may not enter into any compromise, settlement, resolution, or disposition of a claim or proceeding that may create or impose liability for the city without obtaining the city's written consent thereto which shall not be unreasonably withheld. In order for the city to assert its rights to be indemnified and held harmless, the city must:

(a) Notify grantee of any claim or legal proceeding which gives rise to such right;

(b) Afford grantee the opportunity to participate in and fully control any compromise, settlement, resolution, or disposition of such claim or proceeding; and

(c) Fully cooperate in the defense of such claim and make available to grantee all such information which it may lawfully furnish to grantee and relating to the claim.

2. Performance bond. The city may require the grantee to file with the city auditor, concurrently with its acceptance of the franchise and at grantee's sole expense a performance bond. Such bond will be in an amount specified in the franchise agreement, issued by a responsible company licensed to do business in North Dakota and conditioned upon the faithful performance of the grantee to meet its obligations under this ordinance and the franchise. The grantee shall be required to replenish any such bond within thirty (30) days after the city draws down upon it.

3. Insurance.

(a) During the course of the franchise, the grantee will be required to maintain liability insurance, to protect the city and the grantee from and against any and all claims, injury, or damage to persons or property, both real and personal, caused by the construction, erection, operation, or maintenance of any aspect of the system. The amount of insurance will be specified in the franchise agreement.

(b) The grantee will provide workers' compensation insurance as required by state law.

(c) All such insurance coverage will provide a thirty (30) day notice to the city administrator in the event of material alteration or cancellation of any coverage afforded in said policies prior to the date said material alteration or cancellation will become effective.

(d) Copies of all certificates evidencing insurance will be furnished to and filed with the city administrator prior to the commencement of operations or the expiration of prior policies, as the case may be.

(e) It will be the obligation of grantee to promptly notify the city of any pending or threatened litigation that would be likely to affect the grantee's insurance coverage.

4. Non-Waiver. Neither the provisions of this section, nor any bonds accepted by the city pursuant thereto, nor any damages recovered by the city thereunder will be construed to excuse unfaithful performance by the grantee or limit the liability of the grantee under this ordinance or the franchise for damages, either to the full amount of the bond or otherwise.

S. Operational standards. The grantee will:

1. Limit failures to a minimum by locating and correcting malfunctions properly, but in no event later than twenty-four (24) business hours after notification.
2. When possible and with reasonable costs, notify subscribers affected twenty-four (24) hours prior to any planned service Interruption. Such notice may be made through the cable system itself.
3. Demonstrate to subscribers upon request, by instruments and otherwise, that a signal of adequate strength and quality is being delivered.

T. Continuity of service.

1. It will be the right of all subscribers to continue receiving cable services insofar as their financial and other obligations to the grantee are honored. In the event that the grantee elects to rebuild, modify, or sell the system, or the city gives notice of intent to terminate or fails to renew the franchise, the grantee will act so as to insure that all subscribers receive continuous, uninterrupted service, subject to compliance with federal and state laws.
2. In the event of a change of the grantee, or in the event a new operator acquires the system, the grantee will cooperate with the city's new grantee or operator in maintaining continuity of cable service to all subscribers. During such period, grantee will be entitled to the revenues for any period during which it operates the system and will be entitled to reasonable cost for its services when it no longer operates the system.

U. Safety requirements.

1. The grantee will at all times employ ordinary care and will install, maintain, and use commonly accepted methods and devices for preventing failures and accidents which are likely to cause damage, injuries, or nuisances to the public.
2. The grantee will install and maintain its wires, cables, fixtures, and other equipment in accordance with the requirements of the National Electrical Safety Code of the Institute of Electrical and Electronic Engineers; the National Electrical Code of the National Fire Protection Association; the Bell System Code of Pole Line Construction; and applicable federal, state, and local regulations.

3. All structures and all lines, equipment, and connections in, over, under, and upon the rights-of-way of the city, wherever situated or located, will at all times be kept and maintained in a safe, suitable, substantial condition and in good order and repair.

V. Customer surveys and procedures.

1. In accordance with the terms of a franchise agreement, the city may require a grantee to conduct a statistically valid random survey of city subscribers. The city shall coordinate with and assist a grantee with the preparation and distribution of a survey. Each questionnaire will be prepared and conducted in good faith so as to provide reasonably reliable measures of subscriber satisfaction with:
   (a) Audio and signal quality;
   (b) Response to subscriber complaints;
   (c) Billing practices;
   (d) Programming services; and
   (e) Installation practices.

Source: 1965 Rev. Ord. 24-0205, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

24-0206. Franchise fees.--

A. Five percent franchise fee. During the term of any franchise granted pursuant to this ordinance, the grantee will pay to the city for the use of its rights-of-way an annual franchise fee in an amount up to five percent (5%) of the annual gross revenues, but not to exceed the amount allowed by federal rules and regulations as compensation for the grant of a franchise and in consideration of permission to use the rights-of-way of the city for the construction, operation, maintenance, and reconstruction of a cable system, and to defray the costs of franchise obligations. This payment will be in addition to any other tax or payment owed to the city by the grantee and does not include rental of poles or underground conduits. Further, every grantee that offers any "bundled" services shall fairly reflect as part of its calculation of applicable franchise fees an appropriate and reasonable division of services among the various services offered. The specific cost accounting for such revenue attribution shall be set out in the individual franchise or other agreement.

B. Payment and audits. Payments due the city under the terms of this ordinance and a franchise will be computed monthly for the preceding month and will be paid by wire transfer as directed by the city auditor on or before the thirtieth (30th) calendar day from each said computation date to the city. The city will be furnished a worksheet, made part of a franchise, via e-mail with each payment, certified as correct by the grantee, reflecting the total amount of gross revenues applicable for franchise fee and computations for the payment period covered by the payment. Every three years, upon thirty (30) days prior written notice, the city will have the right to conduct an independent audit of grantee's records, in accordance with generally accepted accounting principles and if such audit indicates a franchise fee underpayment of five percent (5%) or more, the grantee will assume all reasonable costs of the audit. Any additional amount due the city

as a result of such audit will be paid within thirty (30) days following the final audit report and written notice by the city to the grantee, which notice will include a copy of the audit report.

C. Acceptance of payment. No acceptance of any payment will be construed as a release or accord and satisfaction of any claim the city may have for further or additional sums payable as a franchise fee under this ordinance or the franchise agreement or for the performance of any other obligation hereunder.

D. Failure to pay. Failure to pay any fees required by this section within ten (10) days of receipt of written notice of such failure from the city will be grounds for termination of the franchise and reinstatement thereof may be had only upon resolution by the city commission.

E. Penalty for late payment. In the event that any franchise fee payment or recomputed amount is not made on or before the dates specified above, grantee will pay as additional compensation an interest charge, computed from such due date, at an annual rate equal to the prime lending rate plus one and one-half percent (1.5%) during the period for which payment was due and unpaid.

F. Quarterly report of gross revenues. Each grantee will file with the city quarterly reports of gross revenues certified as correct by the grantee and prepared in a form acceptable to the city.

Source: 1965 Rev. Ord. 24-0206, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

24-0207. Customer service standards.--

A. Compliance. Grantee shall comply with the customer service standards of the FCC and applicable industry standards.

B. Cable system office hours and telephone availability.

1. Grantee will maintain a local, toll-free, or collect call telephone access line which will be available to its subscribers twenty-four (24) hours per day, seven (7) days per week.

(a) Trained grantee representatives will be available to respond to customer telephone inquiries during normal business hours.

(b) After normal business hours, the access line may be answered by a service or an automated response system, including an answering machine. Inquiries received after normal business hours must be responded to by a trained grantee representative, but no later than the next business day.

2. Under normal operating conditions, telephone answer time by a customer representative or automated response unit, including wait time, will not exceed thirty (30) seconds when the connection is made. If the call needs to be transferred, transfer time will not exceed thirty (30) seconds. These standards will be met not less than ninety percent (90%) of the time under normal operating conditions, measured on a quarterly basis.

3. The grantee will not be required to acquire equipment or perform surveys to measure compliance with the telephone answering standards above unless a historical record of complaints indicates a clear failure to comply.
4. Under normal operating conditions, the customer will receive a busy signal less than three percent (3%) of the time.
5. Every grantee shall maintain a conveniently located customer service center, which shall include a place where subscribers may pay their bills, pick up and return converter boxes and comparable items and receive information on the grantee and its services. Such service center shall be open at least during normal business hours.

C. Installations, outages, and service calls. Under normal operating conditions, each of the following four standards will be met no less than ninety-five percent (95%) of the time measured on a quarterly basis:
1. Standard installations will be performed within seven business days after an order has been placed. "Standard" installations are those that are located up to one hundred twenty five (125) feet from the existing distribution system.
2. Excluding conditions beyond the control of grantee, grantee's representatives will be available to begin working on service interruptions within twenty-four (24) hours of request. Grantee must begin actions to correct other service problems the next business day after notification of the service problem.
3. The "appointment window" for installations, service calls, and other installation activities will be either at a specific time or, at a maximum, within a four (4) hour time block during normal business hours. (The grantee may schedule service calls and other installation activities outside of normal business hours for the express convenience of the customer.)
4. Grantee may not cancel an appointment with a customer after the close of business on the business day prior to the scheduled appointment.
5. If grantee's representative is running late for an appointment with a customer and will not be able to keep the appointment as scheduled, the customer will be contacted. A grantee shall keep a record to demonstrate its efforts to contact the customer. The appointment will be rescheduled, as necessary, at a time which is convenient for the customer.

D. Communications between grantee and subscribers.
1. Notifications to subscribers.
   (a) The grantee, when possible, will provide written information on each of the following areas at the time of installation of service, at least annually to all subscribers, and at any time upon request:
      (i) Products and services offered;
      (ii) Prices and options for programming services and conditions of subscription to programming and other services;
      (iii) Installation and service maintenance policies;
      (iv) Instructions on how to use the cable service;

(v) Channel positions programming carried on the system; and

(vi) Billing and complaint procedures, including the address and telephone number of the city official who handles cable issues.

(b) Subscribers will be notified of any changes in rates, programming service deletions, or channel positions as soon as possible in writing or by media advertising notice or notice on the bill or cable channels. Notice must be given to subscribers a minimum of thirty (30) days in advance of such changes if the change is within the control of the grantee, except for new service additions to the system. In addition, the grantee will notify subscribers thirty (30) days in advance of any significant changes in the other information required by the preceding subparagraph, except for new service additions. Notwithstanding any other provision, grantee shall not be required to provide prior notice of any rate change that is the result of a regulatory fee, franchise fee or any other fee, tax, assessment or charge of any kind imposed by any federal agency, state or franchise authority on the transaction between grantee and the subscriber.

2. Billing.

(a) Bills will be clear, concise, and understandable. Bills must be fully itemized, with itemizations including, but not limited to, basic and premium service charges and equipment charges. Bills will also clearly delineate all activity during the billing period, including optional charges, rebates, and credits.

(b) In case of a billing dispute, the grantee must respond to a written complaint from a subscriber within thirty (30) days.

3. Refunds. Refund checks will be issued promptly, but no later than either:

(a) The customer's next billing cycle following resolution of the request or thirty (30) days, whichever is earlier, or

(b) The return of the equipment supplied by the grantee if service is terminated.

4. Credits. Credits for service will be issued no later than the customer's next billing cycle following the determination that a credit is warranted.

5. Late charges. A grantee may impose a monthly fee for any delinquent balance owned by a subscriber, subject to the following:

(a) At least ten (10) days before the date the fee is imposed, the subscriber shall be given written notice, on the face of the bill or by separate notice of:

The date after which the fee will be imposed if the balance is not paid; and

The amount of the fee that will be imposed; and

(b) The fee for the delinquent payment shall not exceed the state statutory maximum as may be amended from time to time.

E. Parental control. Every grantee shall make available to any subscriber upon request a "lockout" device, which may be included within the converter, for blocking both video and audio portions of any channel(s) of programming entering the subscriber's premises. Such device shall be provided at a reasonable charge, except to the extent that federal law specifically provides otherwise. A grantee may, however, require a reasonable security deposit for the use of such device.

F. Complaint log. Subject to the privacy provisions of 47 U.S.C. § 521 et. seq., every grantee shall prepare as necessary and maintain written records of complaints made to them and the resolution of such complaints, including the date of such resolution. For the purposes of this requirement, all complaints or service calls that result in the dispatch of a service technician shall be individually logged and for all other complaints the grantee may satisfy this requirement by the creation of a periodic written summary of the type of complaint and, where appropriate, their resolution. Verbal complaints will not be required to be logged. Such complaint logs and summaries shall be on file at the office of the grantee for three (3) years, and available for inspection by the city upon request.

Source: 1965 Rev. Ord. 24-0207, 1823 (1977), 1848 (1978), 1923 (1979), 2193 (1985), 2705 (1994), 4421 (2004).

24-0208. General.--

A. Subscriber rates.

1. City may regulate rates as permitted by federal law.

B. Records required and city's right to inspect.

1. Grantee will at all times maintain:

(a) A full and complete set of plans, records, and "as-built" maps showing the location of the cable television system installed or in use in the city, exclusive of subscriber service Drops and equipment provided in subscribers' homes.

(b) If requested by city, a summary of service calls, identifying the number, general nature, and disposition of such calls, on a monthly basis to the extent kept in the regular course of business.

2. Upon five (5) days written notice and during normal business hours, grantee will permit examination by any duly authorized representative of the city, of all franchise property and facilities, together with any appurtenant property and facilities of grantee situated within or outside the city, and all records relating to the franchise, provided they are necessary to enable the city to ascertain the grantee's compliance with this ordinance and the franchise agreement. Such records include all books, records, maps, plans, engineering reports and related contracts, financial statements, service complaint logs, performance test results, records of request for service, and other like materials of grantee. Grantee will have the right to be present at any such examination.

3. If any of the records described in the previous subsection are proprietary in nature or must be kept confidential under state, federal, or local law, upon proper request by grantee, such information obtained during such

an inspection will be treated as confidential, making it available only to those persons who must have access to perform their duties on behalf of the city, including but not limited to the legal and financial and commission members. To the extent any state or federal requirement for privacy applies to the information to be submitted, said law will control. Grantee reserves the right to withhold confidential information which it reasonably believes does not meet the standard prescribed in paragraph (b) above.

4. The city will have the right to request copies of any petitions, applications, communications, and reports submitted by grantee or on its behalf to the FCC, Securities and Exchange Commission, or any other federal or state regulatory commission or agency having jurisdiction with respect to any matters affecting the cable system authorized pursuant to this ordinance and any franchise, as such documents relate to grantee's operation of its system under the franchise. Copies of responses from the regulatory agencies to grantee will likewise be furnished to the city upon request. If the city is specifically named in any such pleading or response, the city shall automatically be furnished a copy.

C. Abandonment or removal of franchise property.

1. Abandonment. In the event that the use of any property of grantee within the franchise area or a portion thereof is discontinued for a continuous period of twelve (12) months, grantee will be deemed to have abandoned that franchise property.

2. Removal. The city, upon such terms as city may impose, may give grantee permission to abandon, without removing, any system facility or equipment laid, directly constructed, operated, or maintained under the franchise. Unless such permission is granted or unless otherwise provided in this ordinance, the grantee will remove all abandoned above-ground facilities and equipment upon receipt of written notice from city and will restore any affected street, alley, or public property to its former state at the time such facilities and equipment were installed, so as not to impair its usefulness. In removing its plant, structures, and equipment, grantee will refill, at its own expense, any excavation that will be made by it and will leave all rights-of-way in as good condition as that prevailing prior to such removal without materially interfering with any electrical or telephone cable or other utility wires, poles, or attachments. The city will have the right to inspect and approve the condition of the rights-of-way, cables, wires, attachments, and poles prior to and after removal. The liability, indemnity, insurance, and performance bond provisions of this ordinance and a franchise agreement as provided herein will continue in full force and effect during the period of removal and until full compliance by grantee with the terms and conditions of this section.

3. Transfer of abandoned property. Upon abandonment of any franchise property in place, the grantee, if required by the city, will submit to the city an instrument, satisfactory in form to the city, transferring to the city the ownership of the franchise property abandoned.

4. Above ground portion of system. At the expiration of the term for which the franchise is granted and a denial of any renewal, or upon its revocation or earlier expiration, as provided for herein, in any such case without renewal, extension, or transfer, the city will have the right to require grantee to remove, at its own expense, all above-ground portions of the cable television system from all rights-of-way within the city within a reasonable period of time, but will not be less than one hundred eighty (180) days.

5. No material interference. Notwithstanding anything to the contrary set forth in this ordinance, the grantee may abandon any underground franchise property in place so long as it does not materially interfere with the use of the rights-of-way in which such property is located or with the use thereof by any public utility or other cable grantee.

D. Rights reserved to city.

1. In addition to any rights specifically reserved to the city by this ordinance, the city reserves to itself every right and power which is required to be reserved by a provision of any ordinance or under the franchise.

2. The city will have the right to waive any grantee obligation of the franchise, except those required by federal or state regulation, if the city determines:

(a) That it is in the public interest to do so; and

(b) That the enforcement of such provision will impose an undue hardship on the grantee or subscribers.

To be effective, such waiver will be evidenced by a statement in writing signed by a duly authorized representative of the city. Waiver of any provision in one instance will not be deemed a waiver of such provision subsequent to such instance nor be deemed a waiver of any other provision of the franchise unless the statement so recites.

E. Violators. All persons including officers of any grantee, causing, participating in, or permitting any violation of any provision of this ordinance will be severally or jointly liable therefore.

F. Force majeure. Grantee's inability to perform. In the event grantee's performance of any of the terms, conditions, or obligations required by this ordinance or a franchise granted hereunder is prevented by a cause or event not within normal operating conditions or otherwise not within the grantee's control, such inability to perform will be deemed excused and no penalties or sanctions will be imposed as a result thereof.

For the purpose of this section, causes or events not within the control of grantee include but are not limited to: acts of God, strikes, sabotage, riots or civil disturbances, restraints imposed by order of a governmental agency or court, failure or loss of utilities, explosions, acts of public enemies, and natural disasters such as floods, earthquakes, landslides, inability to obtain equipment, and fires.

G. Non-Enforcement not estoppel. The grantee will not be relieved of its obligation to comply promptly with any of the provisions of the franchise by any failure of the city to enforce prompt compliance.

H. Enforcement procedures. Every franchise granted by the city pursuant to this ordinance shall include provisions for enforcement.

Source: 1965 Rev. Ord. 24-0208, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

24-0209. Severability.--If any provision of this ordinance is held by any court or by any federal or state agency of competent jurisdiction to be invalid as conflicting with any federal or state law, rule, or regulation now or hereafter in effect, or is held by such court or agency to be modified in any way in order to conform to the requirements of any such law, rule, or regulation, such provision will be considered a separate, distinct, and independent part of this ordinance, and such holding will not affect the validity and enforceability of all other provisions hereof. In the event that such law, rule, or regulation is subsequently repealed, rescinded, amended, or otherwise changed, so that the provision hereof which had been held invalid or modified is no longer in conflict with such law, rule, or regulation, said provision will thereupon return to full force and effect and will thereafter be binding on city and grantee, provided that city will give grantee thirty (30) days written notice of such change before requiring compliance with said provision or such longer period of time as may be reasonably required for grantee to comply with such provision.

Source: 1965 Rev. Ord. 24-0209, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

24-0210. Receivership and foreclosure.--

A. Receivership. A franchise granted hereunder shall, at the option of city, cease and terminate one hundred twenty (120) days after appointment of a receiver or receivers, or trustee or trustees, to take over and conduct the business of grantee, whether in a receivership, reorganization, bankruptcy, or other action or proceeding, unless such receivership of trusteeship shall have been vacated prior to the expiration of said one hundred twenty (120) days, or unless:

1. Such receivers or trustees have, within one hundred twenty (120) days after their election or appointment, fully complied with all the terms and provisions of this section and the franchise granted pursuant hereto, and the receivership or trustees within such one hundred twenty (120) days shall have remedied all the faults under the franchise or provided a plan for the remedy of such faults which is satisfactory to the city.

2. Such receivers or trustees shall, within said one hundred twenty (120) days, execute an agreement duly approved by the court having jurisdiction in the premises, whereby such receivers or trustees assume and agree to be bound by each and every term, provision, and limitation of the franchise granted.

B. Foreclosure. In the case of a foreclosure or other judicial sale of the franchise property, or any material part thereof, city may serve notice of termination upon

grantee and the successful bidder at such sale, in which event the franchise granted and all rights and privileges of the grantee hereunder shall cease and terminate thirty (30) days after service of such notice, unless:

1. City shall have approved the transfer of the franchise, as and in the manner that this section provides.
2. Such successful bidder shall have covenanted and agreed with city to assume and be bound by all terms and conditions of the franchise.

Source: 1965 Rev. Ord. 24-0210, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

24-0211. Administration of franchise.--The city shall be responsible for the continued administration of this code and any franchises granted hereunder. The city may delegate this authority from time to time in any manner consistent with applicable law, provided, however, that the city shall not delegate enforcement authority.

Source: 1965 Rev. Ord. 24-0211, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

24-0212. Effective date, publication, acceptance and governing law.--

A. Publication: Effective date.

1. A franchise shall be signed by the mayor and attested by the city auditor. A franchise shall be published in accordance with the requirements of city and state law and shall take effect upon acceptance by a grantee, and in accordance with the requirements as provided for in § 24-0212(2) of this ordinance, the effective date.
2. Cost of publication. A grantee shall assume any cost of publication of its franchise, as such publication may be required by law, and such cost is payable upon a grantee's filing of its written acceptance of the franchise as provided in § 24-0212(2) of this ordinance.

B. Acceptance and governing law.

1. A grantee shall have thirty (30) days from the date of adoption of a franchise to accept a franchise in a written form approved by the city attorney which shall include grantee acceptance of this ordinance and the franchise, its authority to do business in North Dakota, a representation of its legal, technical, and financial qualifications to fully perform the obligations of this ordinance and a franchise, and the representations required in § 24-0205(B)(2) of this ordinance. Such acceptance by grantee shall be deemed the grant of a franchise for all purposes. Grantee shall also deliver a guarantee, if required by the city, when granting the franchise, within the same time as delivery of the acceptance, in a form acceptable to the city attorney. In the event acceptance does not take place within thirty (30) days or such other time as the city might allow, a franchise shall be null and void.
2. Upon acceptance of a franchise, grantee shall be bound by all the terms and conditions contained in this ordinance and in a franchise. Grantee shall provide all services and offerings specifically set forth in this ordinance and in a franchise, to provide cable services within the city.

3. With its acceptance, grantee shall also deliver to the city a certified resolution evidencing a grantee's power and authority to accept a franchise. Such documents shall also describe the officers authorized to accept on behalf of grantee.
4. With its acceptance, grantee shall also deliver any security deposit, insurance certificate, and performance bonds required by this ordinance and a franchise.
5. This ordinance and a franchise granted pursuant to it and every question arising thereunder shall be construed or determined according to the laws of the State of North Dakota and applicable federal law.

Source: 1965 Rev. Ord. 24-0212, 1823 (1977), 1848 (1978), 1923 (1979), 2705 (1994), 4421 (2004).

ARTICLE 24-03

GRANT OF ACCESS AND USE OF PUBLIC RIGHTS-OF-WAY

Section

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24-0301. Definitions.--The following definitions apply in this article. References hereinafter to "sections" are, unless otherwise specified, references to sections in this article. Defined terms remain defined terms whether or not capitalized.

A. "Applicant" means any person requesting permission to excavate or obstruct a right-of-way.

B. "City" means the city of Fargo, North Dakota.

C. "Department" means the City Engineering Department of the city.

D. "Director" means the City Engineer, or his or her designee.

E. "Emergency" means a condition that (1) poses a clear and immediate danger to life or health, or of a significant loss of property; or (2) requires immediate repair or replacement of facilities in order to restore service to a customer.

F. "Excavate" means to dig into or in any way remove or physically disturb or penetrate any part of a right-of-way.

G. "Excavation Permit" means the permit which, pursuant to Article 18-09 of the Fargo Municipal Code, must be obtained before a person may excavate in a right-of-way. An excavation permit allows the holder to excavate that part of the right-of-way described in such permit.

H. "Facility" or "Facilities" means any tangible asset in the right-of-way required to provide utility service.

I. "Gross Revenues" means any and all revenue in any way derived and collected directly or indirectly by permittee, its affiliates, subsidiaries, parents, or any person in which permittee has a financial interest, from or in connection with the providing of services or materials to persons, firms or corporations within the city of Fargo; provided, however, that this shall not include any taxes collected by such permittee on behalf of a governmental unit.

J. "Local Representative" means a local person or persons, or designee of such person or persons, authorized by a registrant to accept service and to make decisions for that registrant regarding all matters within the scope of this article.

K. "Obstruct" means to place any tangible object in a right-of-way so as to hinder free and open passage over that or any part of the right-of-way.

L. "Permittee" means any person to whom a permit to excavate or obstruct a right-of-way has been granted by the city under this article.

M. "Person" means any natural or corporate person, business association or other business entity including, but not limited to, a partnership, a sole proprietorship, a political subdivision, a public or private agency of any kind, a utility, a successor or assign of any of the foregoing, or any other legal entity.

N. "Registrant" means any person who (1) has or seeks to have its equipment or facilities located in any right-of-way, or (2) in any way occupies or uses, or seeks to occupy or use, the right-of-way or place its facilities in the right-of-way.

O. "Construction Performance Bond" means a performance bond, or other form of security posted to ensure the availability of sufficient funds to assure that right-of-way excavation and obstruction work is completed in accordance with the terms of the right-of-way permit, or other applicable state law or local regulation.

P. "Restore" or "Restoration" means the process by which a right-of-way is returned to the same condition and life expectancy that existed before excavation.

R. "Right-of-Way" means the area on, below, or above a public roadway, highway, street, cartway, bicycle lane and public sidewalk in which the city has an interest, including other dedicated rights-of-way for travel purposes and utility easements of the city. A right-of-way does not include the airwaves above a right-of-way with regard to cellular other nonwire telecommunications or broadcast service.

Source: 2918 (1998).

24-0302. Administration.--The director is the principal city official responsible for the administration of the rights-of-way, right-of-way permits, and the ordinances related thereto. The director may delegate any or all of the duties hereunder.

Source: 2918 (1998).

24-0303. Utility coordination committee.--The city may create an advisory utility coordination committee. Participation on the committee is voluntary. It will be composed of any registrants that wish to assist the city in obtaining information and by making recommendations regarding use of the right-of-way, and to improve the process of performing construction work therein. The director may determine the size of such committee and shall appoint members from a list of registrants that have expressed a desire to assist the city.

Source: 2918 (1998).

24-0304. Registration and right-of-way occupancy.--

A. Registration.--Each person who occupies, uses, or seeks to occupy or use, the right-of-way or place any equipment or facilities in the right-of-way, including persons with installation and maintenance responsibilities by lease, sublease or assignment, must register with the director. Registration will consist of providing application information and paying a registration fee.

B. Registration prior to work.--No person may construct, install, repair, remove, relocate, or perform any other work on, or use any facilities or any part thereof in any right-of-way without first being registered with the director.

C. Exceptions.--Nothing herein shall be construed to repeal or amend the provisions of a city ordinance permitting or requiring persons to plant or maintain boulevard plantings or gardens in the area of the right-of-way between their property and the street curb. Persons planting or maintaining boulevard plantings or gardens shall not be deemed to use or occupy the right-of-way, and shall not be required to obtain any permits under this article. However, nothing herein relieves a person from complying with the provisions of the North Dakota "One-Call Excavation Notice System" law, N.D.C.C. chapter 49-23.

Source: 2918 (1998).

24-0305. Registration Information.--

A. Information required.--The information provided to the director at the time of registration shall include, but not be limited to:

1. Each registrant's name, North Dakota One-Call registration certificate number, address and e-mail address if applicable, and a telephone and facsimile numbers.

2. The name, address and e-mail address if applicable, and telephone and facsimile numbers of a local representative. The local representative or designee shall be available at all times. Current information regarding how to contact the local representative in an emergency shall be provided at the time of registration.

3. A certificate of insurance of self-insurance:

(a) Verifying that an insurance policy has been insured to the registrant by an insurance company licensed to do business in the state of North Dakota or a form of self-insurance acceptable to the directors;

(b) Verifying that the registrant is insured against claims for personal injury, including death, as well claims for property damage arising out of the (i) use and occupancy of the right-of-way by the registrant, its officers, agents, employees and permitees, and (ii) placement and use of facilities in the right-of-way by the registrant, its officers, agents, employees and permitees, including, but not limited to, protection against liability arising from completed operations, damage of underground facilities and collapse of property;

(c) Name the city as an additional insured as to whom the coverages required herein are in force and applicable and for whom defense will be provided as to tall such coverages;

(d) Requiring that the director be notified 30 days in advance of cancellation of the policy or material modification of a coverage term;

(e) Indicating comprehensive liability coverage, automotive liability coverage, workers compensation and umbrella coverage established by the director in amounts sufficient to protect the city and the public and to carry out the purposes and policies of this article.

4. The city may require a copy of the actual insurance policies.

5. If the person is a corporation, a copy of the certificate of incorporation as recorded and certified by the Secretary of State.

6. A copy of the person's order granting a certificate of authority from the North Dakota Public Service Commission or other applicable state of federal agency, where the person is lawfully required to have such certificate from said commission or other state or federal agency.

B. Notice of changes.--The registrant shall keep all of the information listed above current at all times by providing to the director information as to changes within 15 days following the date on which the registrant has knowledge of any change.

Source: 2918 (1998).

24-0306. Reporting obligations.--

A. Operations.--Each registrant shall, at the time of registration and by December 1st of each year, file a construction and major maintenance plan for underground facilities with the director. Such plan shall be submitted using a format designated by the director and shall contain the information determined by the director to be necessary to facilitate the coordination and reduction in frequency of excavations and obstructions of rights-of-way. The plan shall include, but not be limited to, the following information:

1. The locations and the estimated beginning and ending dates of all projects to be commenced during the next calendar year (in this section, a "next-year project"); and
2. To the extent known, the tentative locations and estimated beginning and ending dates for all projects contemplated for the five years following the next calendar year (in this section, a "five-year project").

The term "project" in this section shall include both next-year projects and five-year projects.

By January 1st of each year the director will have available for inspection in the director's office a composite list of all projects of which the director has been informed in the annual plans. All registrants are responsible for keeping themselves informed of the current status of this list.

Thereafter, by February 1st, each registrant may change any project in its list of next-year projects, and must notify the director and all other registrants of all such changes in said list. Notwithstanding the foregoing, a registrant may at any time join in a next-year project of another registrant listed by the other registrant.

B. Additional next-year projects.--Notwithstanding the foregoing, the director will not deny an application for right-of-way permit for failure to include a project in a plan submitted to the city if the registrant has used commercially reasonable efforts to anticipate and plan for the project.

Source: 2918 (1998).

24-0307. Permit requirement.--

A. Permit required.--Except as otherwise provided in this code, no person may obstruct or excavate any right-of-way without first having obtained the appropriate right-of-way occupancy permit and excavation permit from the director to do so.

B. Permit extensions.--No person may excavate or obstruct the right-of-way beyond the date or dates specified in the permit unless such person (i) makes a supplementary application for another right-of-way permit before the expiration of the initial permit and (ii) a new permit or permit extension is granted.

C. Delay penalty.--Notwithstanding subdivision (b) of this section, the city shall establish and impose a delay penalty for unreasonable delays in right-of-way excavation, obstruction, patching or restoration. The delay penalty shall be established from time to time by city commission resolution.

D. Permit display.--Permits issued under this article shall be conspicuously displayed or otherwise available at all times at the indicated work site and shall be available for inspection by the director.

Source: 2918 (1998).

24-0308. Permit applications--Application for a permit is made to the director.--Right-of-way permit application shall contain, and will be considered complete only upon compliance with the requirements of the following provisions:

A. Registration with the director pursuant to this article;

B. Submission of a completed permit application form, including all required attachments, and scaled drawings showing the location and area of the proposed project and the location of all known and existing proposed facilities.

C. Payment of money due the city for:

1. Permit fees and franchise or user fees, if applicable.
2. Any overdue permit or fee payment.
3. Any disputed loss, damage or expense suffered by the city as a result of the applicants prior excavating or any emergency actions taken by the city.

Source: 2918 (1998).

24-0309. Issuance of permit; conditions.--

A. Permit issuance.--If the applicant has satisfied the requirements of this article, the director shall issue a permit.

B. Conditions.--The director may impose reasonable conditions upon issuance of the permit and the performance of the applicant thereunder to protect the health, safety, and welfare or when necessary to protect the right-of-way and its current use.

Source: 2918 (1998).

24-0310. Permit Fees.--

A. Annual fees shall be in the amount of (i) $1 per foot of right-of-way access or excavation, (ii) if the right-of-way user is providing service on a city-wide basis, then the annual fees shall be five percent of the applicant's gross revenues in the manner as described in § 24-0331, below.

B. Excavation permit fees shall be in the amount set forth in the Excavation Code Article 18-09 of the Fargo Municipal Code.

C. Payment of permit fees.--No permit shall issued without the payment of permit fees. The city may allow applicant to pay such fees within 30 days of billing.

D. Non-Refundable.--Permit fees that were paid for a permit that the director has revoked for a breach as stated in § 24-0319 are not refundable.

Source: 2918 (1998).

24-0311. Right-of-way patching and restoration--Compliance with excavation code.--

A. Timing--The work to be done under the permit and the patching and restoration of the right-of-way as required herein must be completed within the date specified in the permit, increased by as many days as work could not be done because of extraordinary circumstances beyond the control of the permitee or when work was prohibited as unseasonable or unreasonable.

B. Patch and restoration--Compliance with excavation code. Permitee shall patch and restore its own work in compliance with the excavation code, article 18-09 of the Fargo Municipal Code.

C. Standards--The permittee shall perform patching and restoration according to the standards and with the materials specified by the director and the excavation restoration requirements in Fargo Municipal Code Article 18-09. The director shall have the authority to prescribe the manner and extent of the restoration, and may do so in written procedures of general application or on a case-by-case basis. The director in exercising this authority shall comply with excavation code standards for right-of-way restoration and shall further be guided by the following considerations:

1. The number, size, depth and duration of the excavations, disruptions or damage to the right-of-way;
2. The traffic volume carried by the right-of-way; the character of the neighborhood surrounding the right-of-way;
3. The pre-excavation condition of the right-of-way; the remaining life-expectancy of the right-of-way affected by the excavation;
4. Whether the relative cost of the method of restoration to the permittee is in reasonable balance with the prevention of an accelerated depreciation of the right-of-way that would otherwise result from the excavation, disturbance or damage to the right-of-way; and
5. The likelihood that the particular method of restoration would be effective in slowing the depreciation of the right-of-way that would otherwise take place.

D. Guarantees--The permitee guarantees its work and shall maintain it for 36 months following its completion. During this 36-month period, it shall, upon notification from the director, correct all restoration work to the extent necessary, using the method required by the director. Said work shall be completed within five calendar days of the receipt of the notice from the director, not including days during which work cannot be done because of circumstances constituting force majeure or days when work is prohibited as unseasonal or unreasonable.

E. Failure to Restore.--If the permitee fails to restore the right-of-way in the manner and condition required by the director, or fails to satisfactorily and timely complete all restoration required by the director, the director at its option may do such work. In that event, the permitee shall pay to the city within 30 days of billing, the cost of restoring the right-of-way. If permitee fails to pay as required, the city may exercise its rights under the construction performance bond.

Source: 2918 (1998).

24-0312. Joint applications.--

A. Joint application.--Registrants may jointly apply for permits to excavate or obstruct a right-of-way at the same place and time.

B. Shared fees.--Registrants who apply for permits for the same obstruction or excavation, which the director does not perform, may share in the payment of the permit fee. Registrants must agree among themselves as to the portion each will pay and indicate the same on their applications.

Source: 2918 (1998).

24-0313. Supplementary applications.--

A. Limitation on area.--A right-of-way permit is valid only for the area of the right-of-way specified in the permit. No permittee may do any work outside the area specified in the permit, except as provided herein. Any permittee which determines that an area greater than that specified in the permit obstructed or excavated must before working in that greater area (i) make application for a permit extension and pay any additional fees required thereby and (ii) be granted a new permit or a permit extension.

B. Limitation on dates.--A right-of-way permit is valid only for the dates specified in the permit. No permittee may begin its work before the permit start date or, except as provided herein, continue working after the end date. If a permittee does not finish the work by the permit end date, it must apply for a new permit for the additional time it needs, and receive the new permit or an extension of the old permit before working after the end date of the previous permit. This supplementary application must be done before the permit end date.

Source: 2918 (1988).

24-0314. Other obligations.--

A. Compliance with other laws.--Obtaining a right-of-way permit does not relieve permittee of its duty to obtain all other necessary permits, licenses and authority and to pay all fees required by the city or other applicable rule, law or regulation. A permittee shall comply with all requirements of local, state and federal laws, including N.D.C.C. Chapter 49-23 ("One-Call Excavation Notice System"). A permittee shall perform all work in conformance with all applicable codes and established rules and regulations, and is responsible for all work done in the right-of-way pursuant to its permit, regardless of who does the work.

B. Prohibited work.--Except in an emergency, and with the approval of the director, no right-of-way obstruction or excavation may be done when seasonally prohibited or when conditions are unreasonable for such work.

C. Interference with right-of-way.--A permittee shall not so obstruct a right-of-way that the natural free and clear passage of water through gutters or other waterways shall be interfered with. Private vehicles of those doing work in the right-of-way may not be parked within or next to a permit area, unless parked in conformance with city parking regulations. The loading or unloading of trucks must be done solely within the defined permit area unless specifically authorized by the permit.

D. Work area protection.--All work zones shall have advance and local area signing and work zone protection in conformance to the current version of the Manual on Uniform Traffic Control Devices (MUTCD). A work zone protection plan must be submitted as part of the right-of-way permit application.

Source: 2918 (1998).

24-0315. Denial of permit.--The director may deny a permit for failure to meet the requirements and conditions of this article or if the director determines that the denial is necessary to protect the health, safety and welfare of the public or when necessary to protect the right-of-way and its current use.

Source: 2918 (1998).

24-0316. Inspection.--

A. Notice of completion.--When the work under any permit hereunder is completed, the permittee shall provide written notice of completion to the director.

B. Site inspection.--Permittee shall make the work-site available to the director and to all others as authorized by law for inspections at all reasonable times during the execution of and upon completion of the work.

C. Authority of director.--

1. At the time of inspection, the director may order the immediate cessation of any work which poses a serious threat to the life, health, safety or well-being of the public.

2. The director may issue an order to the permittee for any work which does not conform to the terms of the permit or other applicable standards, conditions or codes. The order shall state that failure to correct the violation will be cause for revocation of the permit. Within 10 days after issuance of the order, the permittee shall present proof to the director that the violation has been corrected. If such proof has not been presented within the required time, the director may revoke the permit pursuant to § 24-0319.

Source: 2918 (1998).

24-0317. Work done without a permit.--

A. Emergency situations.--Each registrant shall immediately notify the director of any event regarding its facilities which it considers to be an emergency. The registrant may proceed to take whatever actions are necessary to respond to the emergency. Within two business days after the occurrence of the emergency, the registrant shall apply for the necessary permits, pay the fees associated therewith and fulfill the rest of the requirements necessary to bring itself into compliance with this article for the actions it took in response to the emergency.

If the director becomes aware of an emergency regarding a registrant's facilities, the director will attempt to contact the local representative of each registrant affected, or potentially affected, by the emergency. In any event, the director may take whatever action it deems necessary to respond to the emergency, the cost of which shall be borne by the registrant whose facilities occasioned the emergency.

B. Non-Emergency situations.--Except in an emergency, any person who, without first having obtained the necessary permit, obstructs or excavates a right-of-way

must subsequently obtain a permit, and as a penalty pay double the normal fee for said permit, deposit with the director the fees necessary to correct any damage to the right-of-way and comply with all of the requirements of this article.

Source: 2918 (1998).

24-0318. Supplementary notification.--If the obstruction or excavation of the right-of-way begins later or ends sooner than the date given on the permit, permittee shall notify the director of the accurate information as soon as this information is known.

Source: 2918 (1998).

24-0319. Revocation of permits.--

A. Substantial breach.--The city reserves its right, as provided herein, to revoke any right-of-way permit, without a fee refund, if there is a substantial breach of the terms and conditions of any statute, ordinance, rule or regulation, or any material condition of the permit. A substantial breach by permittee shall include, but shall not be limited to, the following:
   1. The violation of any material provision of the right-of-way permit;
   2. An evasion or attempt to evade any material provision of the right-of-way permit or the perpetration or attempt to perpetrate any fraud or deceit upon the city or its citizens;
   3. Any material misrepresentation of fact in the application for a right-of-way permit;
   4. The failure to complete the work in a timely manner; unless a permit extension is obtained or unless the failure to complete work is due to reasons beyond the permittee's control; or
   5. The failure to correct, in a timely manner, work that does not conform to a condition indicated on an order issued pursuant to § 24-0316.

B. Written notice of breach. If the director determines that the permittee has committed a substantial breach of a term or condition of any statute, ordinance, rule, regulation or any condition of the permit, the director shall make a written demand upon the permittee to remedy such violation. The demand shall state that continued violations may be cause for revocation of the permit. A substantial breach, as stated above, will allow the director, at his or her discretion, to place additional or revised conditions on the permit to mitigate and remedy the breach.

C. Response to notice of breach. Within 24 hours of receiving notification of the breach, permittee shall provide the director with a plan, acceptable to the director, that will cure the breach. Permittee's failure to so contact the director, or the permittee's failure to submit an acceptable plan, or permittee's failure to reasonably implement the approved plan, shall be cause for immediate revocation of the permit.

D. Reimbursement of city costs.--If a permit is revoked, the permittee shall also reimburse the city for the city's reasonable costs, including restoration costs and the costs of collection and reasonable attorney's fees incurred in connection with such revocation.

Source: 2918 (1998).

24-0320. Mapping data.--Each registrant shall provide mapping information required by the director. Mapping data shall generally consist of drawing exhibits showing all existing above ground and underground facilities and proposed location of new facilities. Drawing shall be submitted in AutoCAD DWG or DXF digital format and in hard copy. All drawings shall be registered to the city's coordinate system and certified by a registered land surveyor or professional engineer.

Source: 2918 (1998).

24-0321. Location of facilities.--

A. Undergrounding.--Unless otherwise permitted by an existing franchise or North Dakota law, or unless existing above-ground facilities are repaired or replaced, new construction and the installation of new facilities and replacement of old facilities shall be done underground or contained within buildings or other structures in conformity with applicable codes.

B. Corridors.--The director may assign specific corridors within the right-of-way or any particular segment thereof as may be necessary, for each type of facilities that is or, pursuant to current technology, the director expects will someday be located within the right-of-way. All permits issued by the director involving the installation or replacement of facilities shall designate the proper corridor for the facilities at issue. A five-foot clear zone shall be maintained on each side of city sanitary sewer, storm sewer and water main utilities.

Any registrant who has facilities in the right-of-way in a position at variance with the corridors established by the director shall, no later than at the time of the next reconstruction or excavation of the area where the facilities are located, move the facilities to the assigned position within the right-of-way, unless this requirement is waived by the director for good cause shown, upon consideration of such factors as the remaining economic life of the facilities, public safety, customer service needs and hardship to the registrant.

C. Nuisance.--One year after the passage of this article, and facilities found in a right-of-way that have not been registered shall be deemed to be a nuisance. The city may exercise any remedies or rights it has at law or in equity, including, but not limited to, abating the nuisance or taking possession of the facilities and restoring the right-of-way to a useable condition.

D. Limitation of space.--To protect health, safety and welfare or when necessary to protect the right-of-way and its current use, the director shall have the power to prohibit or limit the placement of new or additional facilities within the right-of-way. In making such decisions, the director shall strive to the extent possible to accommodate all existing and potential users of the right-of-way, but shall be guided primarily by considerations of the public interest, the public's needs for the particular utility service, the condition of the right-of-way, the time of year with respect to essential utilities, the protection of existing facilities in the right-of-way, and future city plans for public improvements and development projects which have been determined to be in the public interest.

Source: 2918 (1998).

24-0322. Relocation of facilities.--A registrant must promptly and at its own expense, with do regard for seasonal working conditions, permanently remove and relocate its facilities

in the right-of-way whenever the director for good cause requests such removal and relocation, and shall restore the right-of-way to the same condition it was in prior to said removal or relocation. The director may make such requests to prevent interference by the company's equipment or facilities with (i) a present or future city use of the right-of-way, (ii) a public improvement undertaken by the city, (iii) an economical development project in which the city has an interest or investment, (iv) when the public health, safety, and welfare of the public require it, or (v) when necessary to prevent interference with the safety and convenience of ordinary travel over the right-of-way.

Notwithstanding the foregoing, a person shall not be required to move or relocate its facilities from any right-of-way which has been vacated in favor of a non-governmental entity unless and until reasonable costs thereof are first paid to the person they are for.

Source: 2918 (1998).

24-0323. Pre-excavation facility and facility's location.--In addition to complying with the requirements of North Dakota Century Code Chapter 49-23 ("One-Call Excavation Notice System") before the start date of any right-of-way excavation, each registrant who has facilities or equipment in the area to be excavated shall mark the horizontal and approximate vertical placement of all said facilities. Any registrant whose facilities are less than 20 inches below a concrete or asphalt surface shall notify or work closely with the excavation contractor to establish the exact location of its facilities and the best procedure for excavation.

Source: 2918 (1998).

24-0324. Damage to other facilities.--When the director does work in the right-of-way and finds it necessary to maintain, support, or move a registrants facilities to protect it, the director shall notify the local representative as early as is reasonably possible. The costs associated therewith will be billed to that registrant and must be paid within 30 days from the date of billing.

Each registrant shall be responsible for the cost of repairing any facilities in the right-of-way which it or its facilities damages. Each registrant shall be responsible for the cost of repairing any damage to the facilities of any other registrant caused during the city's response to an emergency occasioned by that registrant's facilities.

Source: 2918 (1998).

24-0325. Right-of-way vacation.--

A. Reservation of right.--If the city vacates a right-of-way which contains the facilities of a registrant, and if the vacation does not require the relocation of registrant's or permittee's facilities, the city shall reserve, to and for itself and all registrants having facilities in the vacated right-of-way the right to install, maintain and operate any facilities in the vacated right-of-way and to enter upon such right-of-way at any time for the purpose of reconstructing, inspecting, maintaining or repairing the same.

B. Relocation of facilities.--If the vacation requires the relocation of registrant's or permittee's facilities; and (i) if the vacation proceedings are initiated by the registrant or permittee, the registrant or permittee must pay the relocation costs; or (ii) if the vacation proceedings are initiated by the city, the registrant or permittee must pay the relocation costs unless otherwise agreed to by the city

and the registrant or permittee; or (iii) if the vacation proceedings are initiated by a person or persons other than the registrant or permittee, such other person or persons must pay the relocation costs.

Source: 2918 (1998).

24-0326. Indemnification and liability.--By registering with the director, or by accepting a permit under this article, a registrant or permittee agrees as follows:

A. Limitation of Liability.--By reason of the acceptance of a registration or the grant of a right-of-way permit, the city does not assume any liability (i) for injuries to persons, damage to property, or loss of service claims by parties other than the registrant or the city, or (ii) for claims or penalties of any sort resulting from the installation, presence, maintenance, or operation of facilities by registrants or activities of registrants.

B. Indemnification.--A registrant or permittee shall indemnify, keep, and hold the city free and harmless from any and all liability on account of injury to persons or damage to property occasioned by the issuance of permits or by the construction, maintenance, repair, inspection, or operation of registrants or permittee's facilities located in the right-of-way.

The city shall not be indemnified for losses or claims occasioned through its own negligence except for losses and claims arising out of or alleging the local government units, negligence as to the issuance of permits or inspections to ensure permit compliance. The city shall not be indemnified if the injury or damage results from the performance in a proper manner of acts that the registrant or permittee reasonably believes will cause injury or damage, and the performance is nevertheless ordered or directed by the city after receiving notice of the registrants or permittees determination.

C. Defense.--If a suit is brought against the city under circumstances where the registrant or permittee is required to indemnify, the registrant or permittee, at its sole cost and expense, shall defend the city in the suit if written notice of the suit is promptly given to the registrant or permittee within a period in which the registrant or permittee is not prejudice by the lack or delay of notice. If the registrant or permittee is required to indemnify and defend, it shall thereafter have control of the litigation, but the registrant or permittee may not settle the litigation without consent of the city. Consent will not be unreasonably withheld.

This part is not, as to third parties, a waiver of any defense, immunity, or damage limitation otherwise available to the city.

In defending an action on behalf of the city, the registrant or permitee is entitled to assert in an action every defense, immunity, or damage limitation that the city could assert in its own behalf.

Source: 2918 (1998).

24-0327. Abandoned and unusable facilities.--

A. Discontinued operations.--A registrant who has determined to discontinue its operations in the city must either: (1) provide information satisfactory to the director that the registrants obligations for its facilities in the right-of-way under this chapter have been lawfully assumed by another registrant; or (2) submit to

the director a proposal an instruments for transferring ownership of its facilities to the city. If a registrant proceeds under this clause, the city may, at its option: (a) purchase a facility; or (b) require the registrant, at its own expense, to remove it; or (c) require the registrant to post a bond in an amount sufficient to reimburse the city for reasonably anticipate costs to be incurred in removing the facilities.

B. Abandoned facilities.--Facilities of a registrant who fails to comply with sub-paragraph (A) of this section, and which, for two years remains unused shall be deemed to be abandoned. Abandoned facilities are deemed to be a nuisance. The city may exercise any remedies or rights it has at law or in equity, including, by not limited to, (i) abating the nuisance (ii) taking possession of the facilities and restoring it to a usable condition, or (iii) requiring removal of the facilities by the registrant, or the registrants successor in interest.

C. Removal.--Any registrant who has unusable and abandoned facilities in any right-of-way shall remove it from the right-of-way during the next scheduled excavation, unless this requirement is waived by the director.

Source: 2918 (1998).

24-0328. Appeal.--

A. A right-of-way user that: (1) has been denied registration; (2) has been denied a permit; (3) has had a permit revoked; or (4) believes that the fees imposed are invalid, they have the denial, revocation, or fee imposition reviewed, upon written request by the city commission. The city commission shall act on a timely written request at its next regularly scheduled meeting. A decision by the city commission affirming the denial, revocation, or fee imposition will be in writing and supported by written finding establishing the reasonableness of the decision.

B. Upon confirmation by the city commission of the denial, revocation, or fee imposition, the right-of-way user shall have the right to have the matter resolved by binding arbitration. Binding arbitration must be before an arbitrator agreed to by both the city commission and the right-of-way user. If the parties cannot agree, on an arbitrator, the matter must be resolved by a three-person arbitration panel made up of one arbitrator selected by the city, one arbitrator selected by the right-of-way user, and one selected by the other two arbitrators. The costs and fees of a single arbitrator shall be born equally by the city and right-of-way user. In the event there is a third arbitrator, each party shall bear the expense of its own arbitrator and shall jointly and equally bear with the other part of the expense of the third arbitrator and of the arbitration.

Source: 2918 (1998).

24-0329. Reservation of regulator and police powers.--A permittees or registrants rights are subject to the regulator police powers of the city to adopt and enforce general ordinances necessary to protect the health, safety, and welfare of the public.

Source: 2918 (1998).

24-0330. Severability.--If any section, subsection, sentence, clause, fraise, or portion of this article is for any reason held invalid or unconstitutional by any court or administrative

agency of competence jurisdiction, such portion shall be deemed a separate, distinct, and independent provision and such holding shall not affect the validity of the remaining portions thereof. If a regulatory body or a court of competent jurisdiction should determine by a final, non-appealable order then any permit, right, or registration issued under this article or any portions of this article is illegal or unenforceable, then any such permit, right or registration granted or deemed to exist hereunder shall be considered as a revocable permit with a mutual right in either party to terminate without cause upon giving 60 days written notice to the other. The requirements and conditions of such a revocable permit shall be the same requirements and conditions as set forth in the permit, right or registration, respectively, except for conditions relating to the term of the permit and the right of termination. Nothing in this article precludes the city from requiring a franchise agreement with the applicant, as allowed by law, in addition to requirements set forth herein.

Source: 2918 (1988).

24-0331. General financial and insurance provisions.--

A. Form of payment to city for city-wide services.

1. When required under § 24-0310, when permittee is providing city-wide services, Permittee shall pay to the city, credited to the department, an annual amount equal to 5% of permittee's gross revenues. The foregoing payment shall be compensation for use of streets and other public property.

2. Payments due the city under this provision shall be computed monthly and shall be paid on or before the thirtieth calendar day following the last day of the previous month to the city during regular business hours. Each payment shall be accompanied by a brief report showing the basis for the computation and such other relevant facts as may be required by the city.

3. No acceptance of any payment shall be construed as an accord that the amount paid is in fact the correct amount, nor shall such acceptance of payment be construed as a release of any claim the city may have for further or additional sums payable under the provision of this ordinance, or for the performance of any other obligation hereunder. All amounts paid shall be subject to audit and recomputation by the city.

4. On or before April 1st of each year, the operator shall provide the city with a certification of the gross revenues for the preceding year prepared by an independent certified public accountant in accordance with generally accepted auditing standards, and that fairly and accurately presents the gross revenues of the operator for the year. The calculation of the 5% fee shall be clearly shown as part of this certification in a form approved by the director. This certification shall be used to determine the exact amount of payments due the city and to correct any overpayments or underpayments by the operator.

5. All payments to the city shall be by check, made payable to the city of Fargo, and delivered or sent by mail to the director.

6. In the event any payment is not made on the due date, interest on the amount due shall accrue from such date at the annual rate of 12% or the maximum allowable rate pursuant to § 47-14-09, N.D.C.C. but in no event to exceed an annual rate of 12%.

7. Audit.--
The city and its agents and representatives shall have the authority, during normal business hours, to arrange for and conduct an audit of the books and records of the operator and its equipment. The operator shall first be given seven days advance written notice of the audit request, a description of and purpose for the audit and description, to the best of the city's ability, of the books, records, documents and equipment it wishes to inspect. The operator shall have the right to make its applicable books and records available at its headquarters, to the extent necessary, but shall be solely responsible for all costs and expenses necessary for a city representative to travel to said headquarters for the conduct of an audit.

Source: 2918 (1998).

24-0332. Penalty.--Every person, firm, or corporation violating article 24-03 of the Fargo Municipal Code shall, upon conviction thereof, be guilty of an infraction and shall be punished by a fine not to exceed $500 for each such offense; the court to have power to suspend said sentence and to revoke the suspension thereof. Each day any person shall violate article 24-03 of the Fargo Municipal Code shall constitute a separate infraction or offense.

Source: 2918 (1998).

ARTICLE 24-04

WIRELESS TELECOMMUNICATION FACILITIES IN THE PUBLIC RIGHT-OF-WAY--REQUIREMENTS AND PERMITS

Section

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24-0401. Purpose.--

To ensure that residents, businesses and public safety operations in the city have reliable access to wireless telecommunications network technology and state of the art mobile broadband communications services, the city desires to accommodate the deployment of wireless communications facilities and services within the public right-of-way. The city also desires to minimize potential negative impacts of wireless facility placement within the public right-of-way. This article applies only to installation in the public right-of-way. All other installations are governed by Fargo Municipal Code Chapter 20, and all other applicable laws and regulations. The impact of wireless facilities can be reduced by maintaining standards and objectives for location, visual impact, structural integrity, compatibility, collocation, and the like, which do not unreasonably discriminate among similar users.

Nothing in this article affects the city's right to regulate users of the public right-of-way in a competitively neutral and nondiscriminatory manner. The city intends to exercise its authority with respect to the regulation, placement, construction and modification of wireless facilities in the public right-of-way to the fullest extent permitted by applicable law.

Source: 5077 (2017).

24-0402. Definitions.--

For purposes of this article, the following definitions apply. References to "sections" are, unless otherwise specified, references to sections in this article.

A. "Antenna" means a device used to transmit and/or receive radio or electromagnetic waves for the provision of communication services including, but not limited to, cellular, paging, personal communications services and microwave communications. Such devices include, but are not limited to small wireless facility antennas, small cell antennas, remote radio heads, directional antennae, such as panel antennas, microwave dishes, and satellite dishes; omnidirectional antennae; and wireless access points (Wi-Fi), including strand-mounted wireless access points.

B. "Applicant" means any person who applies for a permit under this article.

C. "Attachment" includes any wireless communication facility affixed to, contained in, or placed on or in a structure within the city public right-of-way.

D. "City" means the city of Fargo, a North Dakota municipal corporation.

E. "City Engineer" means the city engineer or his or her designee.

F. "City-Owned Structure" means an existing structure owned by the city that is located in the public right-of-way. It does not mean State, County or other municipally or government entity owned infrastructure within the public right-of-way. It does not mean infrastructure owned by a public utility. It does not mean infrastructure located outside of the public right-of-way.

G. "Collocation" means the mounting or installation of new wireless communication facilities on or within an existing wireless support structure or equipment that currently houses or supports wireless communication facilities.

H. "Construction Plan" means a written plan, and a collection of documents, for construction that: (i) demonstrates to the satisfaction of the city engineer that the aesthetic impact and physical structure of the wireless communication facility is comparable to prevailing standards of similar structures in the immediate area; (ii) includes the identity and qualifications of each person directly responsible for the design and construction; (iii) includes signed and sealed documentation to proportional scale from a professional engineer licensed in North Dakota describing the proposed wireless communication facilities in detail, including (a) the proposed location of the wireless support structure and all easements, property boundaries, and existing structures within two hundred (200) feet of such wireless facility or wireless support structure; (b) a structural, loading, and wind-speed analysis for existing, proposed, and reserved loading, and (c) a schematic describing the communications properties of the facility, including EMF and RF propagation and off-site data connections; and (iv) includes such other information as the city engineer may require.

I. "EMF" means electromagnetic frequency.

J. "Equipment" means accessory equipment serving or being used in conjunction with an antenna or wireless communication facility. Equipment includes, but is not limited to, utility or transmission equipment, power supplies, generators, batteries, cables and conduit, equipment buildings, cabinets, storage sheds, shelters, and vaults.

K. "Existing Height" means the height of a structure, including wireless communications facilities, as originally approved or as of the most recent approved modification. Height shall be measured from natural grade to the top of all appurtenances.

L. "Existing Structure" means a structure located in the public right-of-way and capable of supporting wireless communication facilities, erected prior to the application for collocation or substantial modification under this article.

M. "Ground Mounted equipment" means any equipment that is affixed to the ground and extends above the natural grade.

N. "Guidelines" or "Wireless Telecommunication Facility Guidelines" means any procedure or description from the city engineer, which may be modified and amended from time to time, concerning wireless facility application process and siting requirements. Any such Wireless Telecommunication Facilities Guidelines shall be consistent with this article.

O. "Interference" means physically or electronically affecting the operation, views, signals or functions of city property or third party property.

P. "Laws" means any and all applicable federal and state laws and applicable local ordinances, resolutions, regulations, administrative orders or other legal requirements.

Q. "Land Development Code" means the city of Fargo Land Development Code (Fargo Municipal Code, Chapter 20).

R. "Permit Holder" means any person that has obtained permission through the issuance of a permit from the city under this article to locate, install or place wireless facilities in the public right-of-way.

S. "Person" means any natural or corporate person, business association or other business entity including, but not limited to, a partnership, a sole proprietorship, a political subdivision, a public or private agency of any kind, a utility, a successor or assign of any of the foregoing, or any other legal entity.

T. "Public Right-of-way" means the area on, below, or above a public roadway, highway, street, cart way, bicycle lane and public sidewalk in which the city has an interest, including other dedicated rights-of-way for travel purposes and utility easements of the city. A right-of-way does not include the airwaves above a right-of-way with regard to cellular or other non-wire telecommunications or broadcast service.

U. "RF" means radio frequency.

V. "Site" means the area occupied by the wireless support structure, the wireless communications facility, accessory equipment, ground-mounted equipment, and the path of the wire or conduit connecting to an off-site network.

W. "Wireless Communication Facility" means any fixed tangible asset usable for the purpose of providing wireless transmission of voice, data, images or other signals or information including, but not limited to, telecommunications, cellular telephone service, personal communications service and paging service. A wireless communications facility includes antennas and accessory equipment. A wireless communications facility does not include an underlying wireless support structure.

X. "Wireless Support Structure" means any fixed, above-grade structure in the public right-of-way used to house or support wireless communications facilities and equipment.

Y. "Stealth Facility" means a city owned structure with a primary function of serving a public purpose that is located and designed in such manner so as to also provide a wireless support structure, but that such secondary purpose of providing a wireless support structure is not readily apparent, including but not limited to utility poles, light poles, traffic signals, adornment or banner poles, information kiosks, bus waiting areas or similar structures that exist elsewhere in the city right-of-way.

Source: 5077 (2017), 5190 (2019).

24-0403. Locating Wireless Communication Facilities.--

The location of any new wireless communication facility shall be, when possible, on existing structures in the public right-of-way, such as utility poles or street lights, or the replacement of an existing such structure as provided herein. Installation of additional wireless support structures for the purpose of supporting a wireless communication facility within the public right-of-way will be permitted only as provided for in Section 24-0409 of this article.

Source: 5077 (2017), 5190 (2019).

24-0404. Permit Required.--

A. No person may construct, install or modify a wireless communication facility within the public right-of-way without having first obtained a permit from the city engineer as set forth in this article.

B. Permit Issuance. Before a permit is issued, a written application must be filed with the city engineer containing such information as may be required by the city engineer. The application shall include, but not be limited to, the following:

1. Information required to be provided by a registrant for public right-of-way use and occupancy under Section 24-0305 of this chapter.

2. The name and address of any retail communications service provider for which the facilities are intended to be used, if this is different than the applicant.

3. Evidence that the applicant has obtained all state permits and other licenses, as well as insurance, performance and payment bonds as may be required by the city engineer.

4. A detailed statement of the location of all proposed facilities for which the permit is sought.

5. A construction plan, if applicable.

6. Other information required by this article, the detailed permit application, and the Wireless Telecommunication Facilities Guidelines ("Guidelines") adopted by the Board of City Commission of the city of Fargo.

C. Fees. The issuing authority may require payment of a nonrefundable permit application fee at the time a permit application is submitted, as approved by the Board of City Commission and adopted in the Guidelines. Such fee shall be set to recoup some or all of the cost of permit review, processing and issuance, and will be in addition to any other applicable fee or any separate payments that may be required in the event a permit is granted for use of the public right-of-way or the use of city-owned structures. The city reserves the right to charge permit holders a fee for their use of the public right-of-way to the extent that such charges are allowed under state law, as well as all other fees provided in article 24-03. All such fees shall be described in the Guidelines and may be in addition to any fee charged for attachment to city-owned structures.

D. Where the city determines that it requires expert assistance in evaluating an application, the city may procure technical and other specialized consulting services that may be necessary to promptly and thoroughly review the application. Reasonable fees charged by the consultant shall be reimbursed to the city by the applicant regardless of whether the application is, or is not, ultimately approved and a permit issued. The city shall be authorized to require the applicant to deposit a sum equal to the reasonable estimated amount of consultant fees to be paid.

E. Timeframe for Review. The city engineer shall comply with applicable federal, state and local law concerning the time period for review following receipt of a completed application to install or modify a wireless communications facility or wireless support structure in the public right-of-way. Specific timeframes shall be described in Guidelines.

F. Nondiscrimination. The city shall evaluate, issue, and deny permit applications under this article on a competitively neutral basis, with no unreasonable discrimination among similarly situated applicants and installations.

G. The city engineer may impose additional reasonable conditions on any permit issued under this article relating to time, place and manner.

H. The city shall not impose environmental testing, sampling, or monitoring requirements or other compliance measures for RF emissions on wireless communication facilities that are categorically excluded under the FCC's rules for radiofrequency remissions pursuant to 4 CFR 1.1307(b)(1).

I. Scope and Duration.

1. Any permit granted pursuant to such application shall be limited in scope to the description submitted in a completed application, as modified by any further agreed-upon conditions or subsequently approved modification.

2. The permit shall be voidable by the city unless in the city's determination the work is commenced within one hundred eighty (180) days from the date of issuance of the permit, unless extended by the city engineer. If the facility is not used for its intended use within twelve (12) months from the date of permit issuance, the city may revoke the permit.

3. Within sixty (60) days following completion of facility installation as described in the permit application, the permit holder shall submit as-built diagrams and digital photographs of the Site to the city engineer.

4. Permits issued under this article are valid for a period of ten (10) years from the date issued. To extend the permit for an additional period of ten (10) years, the permit holder shall provide proof that it continues to have the legal authority to occupy and use the public right-of-way for the purpose set forth in its permit; shall affirm that its site as it exists at the time of the renewal is in full compliance with the applicable city permit or permits issued for the site, and is in compliance with FCC regulations; and shall pay any permit processing fee required for renewal. Failure to submit such proof of legal authority or affirmation of compliance shall be grounds for non-renewal of the permit. The burden is on the permit holder to demonstrate that the site complies with the requirements herein.

J. Conditional Upon Related Agreements. The city engineer may cause a permit under this article to be made temporary or conditional upon the execution of a finalized permit application or attachment agreement further addressing the proposed installation.

K. Proximity to Other Facilities. The city reserves the right to deny, but is not obligated to deny, any siting permit application under this article that proposes to install a wireless communication facility within three hundred (300) feet of any other wireless communication facility. It is the intent of this provision to encourage the collocation of wireless communication facilities on the same wireless support structure or on existing buildings or other structures, and to sensibly limit the overall visual impact of wireless communications in the public right-of-way.

L. Denial of Permit. Any denial of permit shall be in writing, supported by substantial evidence that the proposed installation would be inconsistent with one or more of the provisions described in Sections 24-0406, 24-0407, 24-0408, and 24-0409, or the health, safety and welfare of the city.

Source: 5077 (2017), 5190 (2019).

24-0405. Relation to Other Code Provisions.--

Nothing herein shall be construed to repeal or amend article 24-03 or Chapter 20 of the Fargo Municipal Code, which shall apply to applicants and permittees under this article to the extent not addressed in this article 24-04. In the event of a conflict between article 24-03 and this article 24-04, this article shall control.

Source: 5077 (2017).

24-0406. General Conditions.--

The city engineer may approve a permit for the installation of a wireless communication facility in the public right-of-way, provided the applicant certifies compliance with the following general conditions, and subject to other use-specific conditions and other requirements set forth in this article and in the Guidelines.

A. General Design Standards.

1. The installation shall be unobtrusive, harmonious with its surroundings, and streamlined in appearance. The city engineer may require camouflage or concealment efforts.

2. The height of any wireless communication facility shall be comparable to nearby structures of similar type and not more than 50 feet above normal grade.

3. Antennas shall be as small as possible. To address the physical and aesthetic impact on the public right-of-way, the city engineer may limit the physical size of the antenna as provided by law.

4. All riser cabling and wiring must be contained in conduit, affixed directly to the face of the structure, or enclosed within the hollow interior of the pole, for as long as it is technically feasible. No exposed slack or extra cable will be allowed.

5. No signage or advertising will be permitted, except as required by law or as specifically permitted or required by the city engineer.

6. All other wireless equipment associated with the structure, including the wireless equipment associated with the antenna and any pre-existing associated equipment on the structure, shall be as small as possible, but no more than as permitted by law.

B. Minimizing Impacts on Adjacent Property Owners.

1. A permit holder must design and install a wireless communication facility so as to minimize any impact on the adjacent property owners, and must actively mitigate any adverse impact relating to visibility from the adjacent property; access to and from the adjacent property; intrusion of light, sound, or smell; in addition to any other cognizable substantial impact made known by an adjacent property owner.

2. No Antenna shall be within five (5) feet of a door, balcony or window nor placed in front of any window within 20 feet and located at a similar height to the antenna unit on the adjacent public right-of-way, unless otherwise restricted by the right-of-way width.

3. An installation shall not interfere with city operations, or the operations of preexisting third-party installations in the public right-of-way. The city will reasonably cooperate with the applicant and/or permit holder to permit activities and modifications that may effectively avoid or correct the interference.

4. The city engineer shall have the discretion to impose conditions upon and amend the permit to address concerns and conflicts voiced by adjacent property owners. As part of the permit application process, the applicant shall provide prior notice to all adjacent property owners concerning any equipment to be placed in the public right-of-way, and provide adequate proof of notice and responses to the city engineer in advance of permit issuance.

Source: 5077 (2017), 5190 (2019).

24-0407. Wireless Communications Facilities Upon Existing Structures.--

In addition to the general conditions described in section 24-0406, any wireless communication facility for which a permit is requested under this article shall meet the following requirements, in addition to applicable specifications within any current Guidelines.

A. The wireless communication facility shall not increase total height including the wireless support structure by more than 10% over other public utility poles in the area, unless in the city engineer's discretion an alternative height is accepted, depending on the type and structure of the existing facility and the proposed location.

B. The wireless communication facility shall not block light emanating from a utility structure and shall not otherwise interfere with the original purpose of an existing structure.

C. Electrical power.--The acquisition of electrical power shall be the sole responsibility of the applicant.

Source: 5077 (2017), 5190 (2019).

24-0408. Attachments to City-Owned Structures.--

In addition to the requirements set forth in section 24-0406 and applicable provisions in section 24-0407, the following conditions will apply to a wireless communication facility attached to a city-owned structure.

A. The grant of attachment rights does not waive any zoning or other public right-of-way management requirements that may also apply.

B. The city engineer shall require an applicant for a wireless communication facility attachment to a city-owned structure to execute a separate attachment or license agreement with the city addressing such attachment.

C. The city may require payment of an attachment fee or other compensation, which may be in addition to any application fee, permit fee, or right-of-way use fee.

D. In the event a city-owned wireless support structure is compromised or knocked down, the city and an affected wireless communication facility permit holder will cooperate to reinstall or replace the pole and restore the wireless communication facility.

E. Training.--At the request of the city, the permit holder shall host on-site training for city maintenance staff. The training will be offered for each wireless communication facility project on one or more city-owned structures. The training shall include occupational safety, personal protection, proximity limits, emergency procedures and contact information.

Source: 5077 (2017), 5190 (2019).

24-0409. Replacement of City-Owned Structures, Addition of City Owned Structures by Stealth or the Addition of a New Wireless Support Structure.--

In addition to the general conditions described in sections 24-0406 and applicable provisions in sections 24-0407 and 24-0408, the proposed replacement of an existing city-owned structure or placement of a new stealth city owned structure or the addition of a new wireless support structure shall be subject to the following requirements.

A. The replacement of a city-owned structure, the addition of a new stealth city owned structure or the addition of a new wireless support structure shall be considered a discretionary function of the city engineer in conformance with this article and the Guidelines.

B. At a minimum, the applicant must demonstrate the following, to the satisfaction of the city engineer:

1. That the facility is not able to be placed on existing infrastructure. The applicant shall provide a map of existing infrastructure in the service area and describe why each such site is not feasible.

2. That the structure to be replaced is structurally unsuitable for the proposed use, and that the proposed use cannot be modified or minimized to enable use of an existing structure.

3. That city functions for which the original structure was used will be preserved, improved or enhanced, as part of any replacement structure, at the applicant's expense. Replacement of lighting, electrical power, network connectivity, and any other functional purpose of, on or within the original structure shall be done to the satisfaction of the city engineer.

4. In order to place a new city owned stealth facility, the applicant must establish to the satisfaction of the city engineer that there are no existing or replacement structures that would provide the necessary capabilities, that the new stealth facility serves a public purpose other than wireless communication, and that placement of the facility outside of the right-of-way on private property would be unduly burdensome.

5. In order to place a new wireless support structure, the applicant must first establish that placement of the facility outside of the right-of-way on private property would be unduly burdensome, there are no existing or replacement structures that would provide the necessary capabilities, and that a new stealth facility is not feasible.

6. The city may require payment of an encroachment fee or other compensation, which may be in addition to any application fee, permit fee, or right-of-way use fee.

C. Ownership.--A replacement structure or a new stealth structure under this section shall be dedicated to and owned by the city upon completion, to the satisfaction of the city engineer. The permit holder shall provide city a Bill of Sale, free and clear of all liens and encumbrances.

D. Acquisition and use of electrical power to serve a wireless communication facility on a replacement wireless support structure, stealth facility or wireless support structure shall be the sole responsibility of the permit holder.

E. Stocked Poles.--To enable prompt replacement in the event of a knockdown or structural compromise of a city owned replacement structure or stealth structure, a permit holder shall provide the city with stock poles substantially identical to the initial city owned replacement pole, as follows as required by the Guidelines.

F. Stealth facilities and new wireless support structures placed in the right-of-way shall be maintained in accordance with the terms of this article and as provided for in a separate agreement.

G. An applicant may be required to enter into such license and other agreements with the city or third parties as the city may require to effect the replacement, consistent with this section.

Source: 5077 (2017), 5190 (2019).

24-0410. Equipment.--

A. Equipment other than ground-mounted equipment shall be mounted in one of the manners described below, or as prescribed by the city engineer.

1. Equipment shall be mounted in a base shroud of approved design to be retrofitted to an existing standard. The base shroud should be coated or painted an approved color to match the existing pole.

2. Equipment shall be mounted directly to the pole a minimum of eight (8) feet above the existing grade and be coated or painted with an approved color to match the existing pole.

3. Equipment shall be mounted to the pole in an equipment box a minimum of eight (8) feet above the existing grade. The equipment box shall be coated or painted an approved color to match the existing pole.

4. Equipment shall be attached to the wireless support structure using rigid steel clamping mounts or stainless steel banding to the exterior of any metal pole.

B. Ground-Mounted Equipment.

1. A permit for a wireless communication facility that involves ground-mounted equipment will be issued if the city engineer finds the following:

(a) The ground mounted equipment will not disrupt traffic or pedestrian circulation;

(b) Space exists in the public right-of-way to accommodate the ground mounted equipment;

(c) The ground mounted equipment will not create a safety hazard;

(d) The location of the ground mounted equipment minimizes impacts on adjacent property;

(e) The ground mounted equipment does not detrimentally affect the aesthetics of the area, as provided for in the Guidelines, to the satisfaction of the city engineer;

(f) That no reasonable alternative exists that is more favorable to adjacent property owners and to effective use and management of the public right-of-way; and

(g) The ground mounted equipment will not adversely impact the health, safety or welfare of the community.

2. Underground equipment.--The city engineer may require that equipment and utilities be placed underground when aesthetically appropriate and as provided for in the Guidelines, necessary for public safety and compliance with State and Federal laws, and may prohibit the installation of ground mounted equipment unless technically infeasible or otherwise cost prohibitive.

C. Any excavation required for installation of ground-mounted or underground equipment shall be performed in accordance with article 18-09.

Source: 5077 (2017), 5190 (2019).

24-0411. Modifications to Facilities.--

A. Modifications to existing wireless communication facility installations that replace existing equipment with like kind, number and size of the existing equipment and do not increase the EMF output of the wireless communication facility are permitted as of right.

B. Except as provided in section 24-0411(A), and subject to applicable federal and state law, any modification of a wireless communication facility or equipment shall require the prior approval of the city engineer following submission of a detailed description of the modification, which shall include modified plans, photographs and other information sufficient to enable the city engineer to evaluate the modification's impact on the public right-of-way, and the proposed timeframe for completion of the work.

Source: 5077 (2017).

24-0412. Inspection and Reporting.--

When directed by the city engineer, the permit holder for a wireless communication facility must perform an inspection of the facility and submit a report to the city engineer on the condition of the wireless communication facility, to include any identified concerns and corrective action taken.

Source: 5077 (2017).

24-0413. Network Diagram Submission.--

A. Commencing on the first June 15 following the enactment of this article and on June 15th of each subsequent year, each permit holder with facilities in the city shall submit an updated diagram in a format acceptable to the city engineer of all facilities owned or controlled by such permit holder and located in the public right-of-way. Such diagrams shall show, but not be limited to showing, the number, size, and locations of antennas, wireless communications facilities and equipment, vaults, pedestals, and conduit and fiber optic cable serving such facilities.

B. If a permit holder's facility diagram has not changed from the diagram submitted in a previous year, in lieu of submitting a new diagram, a permit holder may, at its election, provide a statement to the city certifying that the previous year's map has not changed. The certification shall also include the date that the previous map was submitted to the city.

C. To ensure the security of installations, network diagram submissions shall be considered proprietary information, and shall be deemed confidential and not subject to public disclosure except to the extent required by applicable law, except that applicants requesting a permit under this article may request, and the city engineer may share, portions of submitted diagrams affecting their proposed installations.

Source: 5077 (2017).

24-0414. Maintenance.--

A permit holder shall maintain all facilities installed in the public right-of-way in a condition that maintains the safety, integrity, and aesthetics of the public right-of-way.

Cabinets, facilities, and other equipment shall not appear to be unkempt. Maintenance concerns or conditions not in compliance with this article that are discovered by or made known to the city will be reported to the permit holder, which shall then have 30 days to correct the identified issue. If the issue is not corrected within such period, the city reserves the right to take any action it deems necessary, including revocation of the permit. In the case of an emergency involving an imminent threat to life or property, the city may take any corrective action that it deems reasonable at the permit holder's expense. Maintenance and replacement of wireless communication facilities shall be performed by the permit holder or an approved contractor at permit holder's sole cost.

Source: 5077 (2017).

24-0415. Revocation.--

A. Revocation proceedings may be initiated by the city engineer.

B. Required Findings. The city engineer may revoke or modify the permit if it makes any of the following findings:

1. The permit holder obtained the approval by means of fraud or misrepresentation of a material fact.

2. The permit holder substantially expanded or altered the use or structure of a wireless communication facility or wireless support structure beyond what is set forth in the permit.

3. The permit holder has failed to comply with any material condition of a permit issued.

4. A substantive change of law has occurred affecting the permit holder's authority to occupy or use the public right-of-way, or the city's ability to regulate such occupation or use.

5. The facility interferes with a city project.

6. The facility interferes with vehicular or pedestrian use of the public right-of-way.

7. The permit holder has failed to make a safe and timely restoration of the public right-of-way.

8. The facility has not been employed for its intended use within twelve (12) months of the date of permit issuance.

9. After initial activation, the facility has not been employed for its intended use for any six (6) month period.

10. Revocation is necessary to protect the health, safety and welfare of the inhabitants of the city.

C. Notice of Action. A written determination of revocation shall be sent via certified mail to the permit holder within ten (10) days of such determination.

D. A permit holder whose permit has been revoked may have the revocation reviewed, upon written appeal as follows:

1. Within 14 days of the revocation, a written appeal shall be filed with the city engineer. The appeal must contain a statement of any reasons why the permit holder believes that the revocation should be reviewed. The city engineer shall render a decision within 21 day of receipt.

2. If the city engineer denies the appeal, the permit holder may file a written notice of appeal with the city engineer to be presented to the Board of City Commission within 21 days of notification of the appeal denial. In addition to containing a statement of any significant factors or hardships as well as alternatives explored, the appeal must contain a response to the findings of the city engineer that resulted in the denial.

E. Any costs incurred as a result of revocation of a permit under this section shall be the responsibility of the applicant.

Source: 5077 (2017).

24-0416. Reservation of Authority.--

The city at all times reserves the right to take any action it deems necessary, in its sole discretion, to repair, maintain, alter, or improve any wireless support structure, wireless communication facility, or site, as may be necessary and in keeping with the health, welfare and safety of the public. Such actions may temporarily interfere with the operation of a wireless communication facility. The city will give the applicant thirty (30) days written notification of such planned, non-emergency actions. In the event of an emergency the city shall give the owner notice within twenty-four (24) hours of such action.

Source: 5077 (2017).

24-0417. Duty to Remove and Relocate Facilities.--

A. The city may amend the permit and may order a permit holder to remove and relocate its wireless communication facility and wireless support structure in the public right-of-way, including all related equipment at the permit holder's expense, if the facility or wireless support structure interferes with the use of the public right-of-way or city facilities or services.

B. Following revocation of a permit, a wireless communication facility shall be removed by the permit holder within ninety (90) days of such city order. The permit holder must attain all required permits to effect the removal.

C. If the wireless communication facilities and all equipment are not removed voluntarily pursuant to notice, the city may remove such facilities at that permit holder's expense without further notice.

D. If the city removes facilities and the owner does not claim the property within sixty (60) days of its removal, the city may take whatever steps are available under the law to declare the property abandoned or surplus, and may sell it with the proceeds of such sale going to the city as permitted by law.

E. When a permit holder removes its facilities from the public right-of-way, the permit holder shall at its own expense and in the manner prescribed by the city, replace and restore such public right-of-way in accordance with repair standards adopted by the city engineer.

Source: 5077 (2017), 5190 (2019).

24-0418. Deemed Granted.--

In the event that an application for permit under this article is deemed granted by rule of law, all conditions and design parameters under this article are applicable and required for the installation.

Source: 5077 (2017).

24-0419. Wireless Telecommunication Facility Guidelines.--

Due to rapidly changing technology and regulatory requirements, the Board of City Commissioners may adopt Wireless Telecommunication Facility Guidelines ("Guidelines") by Resolution to serve as further regulatory guidance and clarification consistent with this article and applicable law, and further may designate the City Engineer with such authority as necessary to develop, revise and enforce Application criteria and Aesthetics requirements. The Guidelines may be amended and updated by Resolution to adjust for new technologies, regulations, and city objectives. All permit holders shall comply with such Guidelines for any new facility installations subject to this article.

Source: 5077 (2017), 5190 (2019).

24-0420. Compliance with Applicable Law and Regulations.--

This article is not intended to be the exclusive means of regulating installation of facilities in the public right-of-way and nothing herein is intended to waive any other applicable city requirements, including but not limited to building permit requirements, storm water runoff requirement, business license requirements and undergrounding regulations. The applicant or permit holder must obtain all permits, licenses, and similar authorizations that are required by other governmental entities for the installation of its facilities. The permit holder must also be and remain in compliance with all applicable statutes, ordinances, rules, regulations, orders, and decisions issued by any Federal, state or local governmental body or agency, including without limitation those issued by the North Dakota Public Service Commission and the Federal Communications Commission. The facility and its operation will comply with all applicable laws, including all federal EMF and RF emissions standards. A permit holder shall comply with all applicable public safety requirements described in Federal, state or local law, shall not interfere with public safety communications and shall meet the requirements of section 20-0402.

Source: 5077 (2017).

24-0421. Exemption Procedures.--

A. An applicant may apply to the city engineer for an exemption from any of the requirements of this article on the grounds that such requirement (a) is not feasible or (b) constitutes an undue hardship.

1. An application shall include information necessary for the city to make its decision, including but not limited to reports or studies showing the factual support for the claimed exemption. The city engineer may require the applicant to provide additional information to permit the city engineer to determine facts regarding the exemption application.

2. Following a review of the application, the city engineer may approve the exemption, in whole or in part, with or without conditions, provided all of the following findings of fact are made:

   (a) The subject requirement is not feasible or constitutes an undue hardship;

   (b) The facility will serve a community benefit;

   (c) The requirements of this article are met, except for the requirement sought to be waived; and

   (d) The proposed facility can be mitigated so that its impacts do not result in a material change to the character or the location and relate harmoniously with the surrounding neighborhood.

3. The city engineer's decision shall become effectively immediately, is final and shall not be appealable.

Source: 5077 (2017).

24-0422. Insurance.--

An applicant and permit holder shall obtain and comply with insurance coverage requirements in accordance with the terms of a separate agreement, as provided for herein.

Source: 5077 (2017).

24-0423. Indemnification and Liability.--

A. Limitation of liability. By reason of the acceptance of a permit for a wireless communication facility in the public right-of-way, permit holder assumes all liability for injuries to persons, damage to property or loss of service claims by parties other than the registrant or the city, and for claims or penalties of any sort resulting from the installation, presence, maintenance or operation of equipment or facilities by registrants or permit holders or activities of registrants or permit holders.

B. Indemnification. By reason of acceptance of a permit, permittee shall indemnify, keep and hold the city, its officials, employees and agents, free and harmless from any and

all costs, liabilities and claims for damages of any kind arising out of the construction, presence, installation, maintenance, repair or operation of its equipment and facilities, or out of any activity undertaken in or near a right-of-way, whether or not any act or omission complained of is authorized, allowed or prohibited by a right-of-way permit. The foregoing does not indemnify the city for its own negligence except for claims arising out of or alleging the city's negligence in issuing the permit or in failing to properly or adequately inspect or enforce compliance with a term, condition or purpose of a permit. This section is not, as to third parties, a waiver of any defense or immunity otherwise available to the registrant, permit holder or the city and the registrant or permit holder, in defending any action on behalf of the city, shall be entitled to assert in any action every defense or immunity that the city could assert on its own behalf.

C. If the registrant or permit holder is required to indemnify and defend, it shall thereafter have control of the litigation, but the registrant or permit holder may not settle the litigation without the consent of the city. Such consent will not be unreasonably withheld.

Source: 5077 (2017).

24-0424. Penalty.--

A. A Person who willfully violates this ordinance is guilty of an infraction. Every Person violating an ordinance which is punishable as an infraction shall be punished by a fine not to exceed $1,000; the court to have power to suspend said sentence and to revoke the suspension thereof.

B. Each period of ten (10) days that a Person violated the provisions of this article after notice shall constitute a separate offense.

C. The application of the above penalty provisions shall not be held to prevent the enforced removal of prohibited conditions.

D. The permit of any Person violating any of the provisions of this article may be revoked, as provided in this article.

Source: 5077 (2017).

ARTICLE 24-05

FRANCHISES

Section

24-0501 Application.
24-0502 Fee; bond.
24-0503 Terms.
24-0504 Regulatory powers of the board of city commissioners.
24-0505 Non-transferability.
24-0506 Non-exclusivity.
24-0507 Copies of franchise to be maintained by the city auditor.

24-0501. Application.--The board of city commissioners shall have the authority to pass ordinances granting franchises to any person, association or corporation. All applications for franchises shall be made in writing to the board of city commissioners.

Source: Ord. No. 5323 (2021).

24-0502. Fee; bond.--The amount of the franchise fee and bond, if any required, shall be set by Resolution of the board of city commissioners.

Source: Ord. No. 5323 (2021).

24-0503. Terms.--The board of city commissioners shall have the authority to determine the term of any such franchise granted; provided, however, no franchise shall be granted for a period to exceed twenty (20) year.

Source: Ord. No. 5323 (2021).

24-0504. Regulatory powers of the board of city commissioners.--All franchises shall be subject to the rules and regulations promulgated by the board of city commissioners in the enacting ordinance and any other ordinance applicable thereto. If any franchise shall violate any provision of any ordinance of the City of Fargo, such franchisee may be proceeded against for any fine or penalty imposed thereby, and the franchise may be revoked, or forfeited, in the discretion of the board of city commissioners.

Source: Ord. No. 5323 (2021).

24-0505. Non-transferability.--No franchise shall be assigned or transferred without first making applications to and receiving the approval of the board of city commissioners.

Source: Ord. No. 5323 (2021).

24-0506. Non-exclusivity.--No franchise granted by the board of city commissioners shall be exclusive, except as provided by the Public Service Commission.

Source: Ord. No. 5323 (2021).

24-0507. Copies of franchise to be maintained by the city auditor.--It shall be the duty of the city auditor to maintain copies of all franchise ordinances passed by the board of city commissioners.

Source: Ord. No. 5323 (2021).

CHAPTER 25

LICENSING AND REGULATING BUSINESSES AND TRADES

Article

25-01 General Provisions, §§ 25-0101 to 25-0105.

25-02 Auction Sales and Auctioneers, §§ 25-0201 to 25-0203 [25-0204 to 25-0210, Repealed].

25-03 Outdoor Advertising, §§ 25-0301 to 25-0308.

25-04 Taxicabs and Vehicles for Hire, §§ 25-0401 to 25-0423.

25-05 Peddlers and Solicitors, §§ 25-0501 to 25-0512.

25-06 Solicitors for Subscriptions, Photographs, or Services--Repealed.

25-07 Transient Merchants--Repealed.

25-08 Employment Agencies--Repealed.

25-09 Fortunetelling, Spiritualism, Phrenology--Repealed.

25-10 Pawnbrokers, §§25-1000 to 25-1019.

25-11 Salvage Dealers, §§ 25-1101, 25-1105 to 25-1109 [§§ 25-1102 to 25-1104--Repealed].

25-12 Public Dances and Dance Halls, §§ 25-1201 to 25-1207.

25-13 Messenger Service--Repealed.

25-14 Used Car Dealers--Repealed.

25-15 Alcoholic Beverages, §§ 25-1501 to 25-1515.

25-16 Non-Alcoholic Bars--Repealed.

25-17 Fuel Dealers--Repealed.

25-18 Barbershops--Repealed.

25-19 Circuses, Carnivals, Exhibitions, and Parades--Repealed.

25-20 House Movers, §§ 25-2001 to 25-2016.

25-21 Extermination of Insects and Vermin, §§ 25-2101 to 25-2107.

25-22 Hotel and Rooming-house Registers, §§ 25-2201, 25-2202.

25-23 Snow Removers--Repealed.

25-24 Mobile Homes and Recreational Vehicles, §§ 25-2401 to 25-2407.

25-25 Going-out-of-business and Fire Sales, §§ 25-2501 to 25-2512.

25-26 Private Security Systems--Repealed.

25-27 Sale of Pistols--Repealed.

25-28 Public Transit Licenses--Repealed.

25-29 Special Bus Licenses--Repealed.

25-30 Alarm System, §§ 25-3001 to 25-3008.

25-31 Surface Ambulance Services--Repealed.

25-32 Dealers in Precious Metals and Precious Gems, §§ 25-3201 to 25-3216--Repealed.

25-33 Tattoos, Body Art and Body Piercing, §§ 25-3301 to 25-3306 [25-3307, Repealed].

25-34 Mechanical Amusement Devices, §§ 25-3401 to 25-3405.

25-35 Secondhand Goods Dealers, §§25-3500 to 25-3517.

25-36 Tanning Facilities.

25-37 Licensing of Re-Roofing Contractors.

25-38 Commercial Pedal Car Vehicles.

ARTICLE 25-01

GENERAL PROVISIONS

Section

25-0101 License--Application--Bond.
25-0102 License--Issuance--Term.
25-0103 Revocation of license.
25-0104 License nontransferable.
25-0105 Taxes paid before license issued.

25-0101. License--Application--Bond.--All applications for license to pursue any business or calling, where a license is required, shall be made in writing to the issuing officer or to the board of city commissioners, and shall be filed with such issuing officer, unless otherwise required. The applicant, at the time of filing his application, shall deposit with the city treasurer the amount of license fee required. He also shall file with his application the bond required. Where approval of the board of city commissioners is required, the city auditor shall lay such application before the board at its next regular meeting. If the application is granted and the bond is approved by the board, the city auditor or issuing officer shall issue the license accordingly. If such application is refused, the license money deposited with the city treasurer shall be refunded to the applicant. In this chapter and in all ordinances of the city of Fargo, where it is provided for approval and issuance of a license by a designated city official, the approval or refusal of a license application by such issuing officer shall in all cases be subject to review by the board of city commissioners.

Source: 1952 Rev. Ord. 25-0101.

25-0102. License--Issuance--Term.--No license shall be granted for a longer period than one year, and all yearly licenses shall commence on the first day of January in each year and expire on the last day of December in each year unless otherwise specified. All licenses shall be signed by the city auditor under the corporate seal. No license shall be valid until so signed and sealed, nor shall any person be deemed licensed until a license shall be duly issued him. Each license shall be dated on the day of the issuance thereof; but if the applicant or applicants shall have been acting without a license, the license shall commence with the date the business commenced, and the date of the issue of the license, together with the time of commencing and expiring, shall be given in the license and the license record.

Source: 1952 Rev. Ord. 25-0102.

25-0103. Revocation of license.--All licenses granted shall be subject to the ordinance relating to licenses which may be in force at the time of issuing thereof or which may be subsequently passed by the board of city commissioners. If any person shall violate any provision of any ordinance relating to his license, he may be proceeded against for any fine or penalty imposed thereby, and his license may be revoked, or forfeited in the discretion of the board, or of the court before which any action may be brought for the recovery of any fine or penalty.

Source: 1952 Rev. Ord. 25-0103.

25-0104. License nontransferable.--No license shall be assignable or transferable, nor shall any person be authorized to do business or act under such license except only the person

to whom it is granted, or at any place other than the place specified therein. The board of city commissioners may grant the removal of the business licensed to any other portion of the city, the said permission to be certified on such license by the city auditor. A license shall not authorize any person to act under it at more than one place at the same time, or at any other place than is thereon specified. Whoever shall violate any of the provisions of this section shall be deemed to be acting without license and shall be subject to the same penalty as prescribed for acting without a license.

Source: 1952 Rev. Ord. 25-0104.

25-0105. Taxes paid before license issued.--Whenever, pursuant to any ordinance of the city now existing or which may hereafter be enacted, a license is required to be obtained from the said city for the conduct of any business, trade, or occupation, or for any other purpose except dog licenses, no license shall be issued to any person, firm, or corporation owing two years or more of delinquent personal property taxes until such person, firm, or corporation shall have paid at least two of the delinquent years' personal property taxes owing by such person, firm, or corporation to the county of Cass, state of North Dakota. Every applicant shall furnish to the city auditor with his application for a license tax receipts showing compliance with the provisions of this article.

Source: 1952 Rev. Ord. 25-0105.

ARTICLE 25-02

AUCTION SALES AND AUCTIONEERS

Section

25-0201 Auction sales--License required.
25-0202 Auction sales license--Issuance--Fee--Term.
25-0203 Auction sales license--Revocation.
25-0204 to 25-0210 Repealed.

25-0201. Auction sales--License required.--No person shall hereafter sell, or offer to sell, any goods, wares, merchandise, or other personal property, or any real estate, or any interest therein, at public auction for gain, or advertise such property for sale at public auction without first procuring from the city auditor of the city of Fargo a license to conduct said sale at public auction.

Source: 1965 Rev. Ord. 25-0201, 1465 (1973).

25-0202. Auction sales license--Issuance--Fee--Term.--Any person who desires to sell and dispose of personal property or real estate at public action shall make application to the city auditor of the city of Fargo for a license so to do. If said license is granted, the said person shall pay into the city treasury the required fee, which shall be established by resolution of the board of city commissioners; and the city auditor shall issue a license to conduct said sale, at public auction, for the period of time specified, but no license shall be issued for a period longer than 30 days, provided, however, that upon application, an auction sales license may be issued for a period of up to one year allowing a licensee to conduct auction sales at a fixed location.

Such public auctions conducted at said location may not exceed one in number per week. The fee to be charged for such yearly license shall be established by resolution of the board of city commissioners.

Source: 1965 Rev. Ord. 25-0202, 1465 (1973), 1500 (1973), 1985 (1980).

25-0203. Auction sales license--Revocation.--Any license issued to sell real or personal property at public auction may be revoked by the board of city commissioners at any time they may deem it advisable so to do.

Source: 1952 Rev. Ord. 25-0203.

25-0204 to 25-0210. Repealed by Ord.--No. 2299, effective December 29, 1986.

ARTICLE 25-03

OUTDOOR ADVERTISING

Section

25-0301 Erection or placement of signs--Permit required.
25-0302 Sign hanger's license--Fee--Certificate of insurance required.
25-0303 Identification of owner.
25-0304 Abandoned signs.
25-0305 Regulations for non-conforming uses.
25-0306 Conflicting ordinances.
25-0307 City of Fargo Sign Code.
25-0308 Temporary and portable signs--Impoundment.

25-0301. Erection or placement of signs--Permit required.-- Except as hereinafter provided, no person shall erect or place any sign, banner, placard or other advertising device, whether temporary, permanent or portable, upon any property for the purpose of advertising any merchandise, goods, services, business, show, entertainment or performance without first obtaining a permit from the building inspector and paying into the city treasury, a fee for such permit, the amount of which shall be established by resolution of the board of city commissioners. Denial of any such permit shall be appealable to the board of adjustment. This article shall not be construed to permit the erection or placement of signs on public property nor to prohibit or to require a permit for advertising which is lettered directly on the body of a motor vehicle.

Source: 2040 (1981), 2504 (1989).

25-0302. Sign hanger's license--Fee--Certificate of insurance required.--No person, except a licensed sign hanger, shall hereafter engage in the business of painting, or installing, any permanent sign structure or any sign upon the outside walls or on the roof of any building within the city of Fargo; such license shall be obtained by making application therefor to the city auditor of the city of Fargo. No such license shall be granted until the person applying therefor shall have paid into the city treasury the required fee, and shall have furnished a certificate of liability insurance with minimum limits of $250,000. A sign hanger's license shall expire one year after date of issuance and the fee for such license shall be established by resolution of the board of city commissioners. No licensee hereunder shall paint or install any

sign, or install any sign structure without first having obtained a permit pursuant to § 25-0302 of this article. This section shall not be construed to require a sign hanger's license or permit of any person or firm for the painting of any sign or sign structure located on that person or firm's property and advertising such person or firm's business conducted upon the same premises provided, that such person or firm shall be required to comply with the requirements of the city of Fargo Sign Code and may not contract with an unlicensed contractor or sign hanger to place or erect such sign or sign structure.

Source: 2040 (1981), 2504 (1989), 4387 (2004) - Repealed.

25-0303. Identification of owner.--Every sign erected or installed in the city of Fargo shall be clearly marked by some permanent means and in a location on said sign which is readily visible. Said marking shall state the name and address of the owner of such sign.

Source: 2040 (1981), 2504 (1989).

25-0304. Abandoned signs.--A sign shall be removed by the owner or lessee of the premises upon which the sign is located when the business which it advertises is no longer conducted on the premises. If owner or lessee fails to remove it, the building inspector shall direct its removal and shall give the owner 30 days' written notice of such directive. Upon failure to comply, the building inspector or his duly authorized representative may remove the sign and charge the owner the cost of such removal. In the event said owner does not pay for the removal within 30 days of receiving notice of the amount of the cost, such cost may be assessed against the property and certified to the county auditor for collection as a special assessment against said property.

Source: 2040 (1981), 2504 (1989).

25-0305. Regulations or non-conforming uses.--The lawful use of a sign existing at the date of enactment of this article, although such use does not conform to the provisions hereof, may be continued, provided no structure or alterations, additions, or enlargements are made to the sign.

A non-conforming sign which is destroyed or damaged by fire, flood, wind, earthquake, explosion, or other casualty, or by the public enemy, to the extent that the cost of restoration would amount to less than 50% of its original value, may be restored; provided, that where a structure is destroyed or damaged to such an extent that its total demolition is required by law or to protect the public health or safety, or if restoration is not started within a period of 30 days and promptly completed, any further signs shall conform to the provisions of the city of Fargo Sign Code.

The provision of this section shall not prevent or interfere with action that may be taken to abate any nuisance in any manner provided by law.

Source: 2504 (1989).

25-0306. Conflicting ordinances.--In the event of a conflict or discrepancy between the provisions of this article and any other ordinances of the city of Fargo, such ordinances shall be construed, whenever possible, to give effect to both and in cases where more stringent requirements are imposed by other ordinances, the most restrictive provision shall apply.

Source: 2504 (1989).

25-0307. City of Fargo Sign Code.--The city building inspector shall adopt regulations which shall be considered as an extension of this article and shall, after approval as hereinafter

provided, have all of the force and effect as if included herein in its entirety. Such regulations shall be known as the city of Fargo Sign Code and shall not be effective until approved by the board of city commissioners of the city of Fargo. Prior to such approval, a public hearing shall be conducted by the Fargo planning commission and thereafter, by the board of city commissioners of the city of Fargo. Such public hearings shall be held after notice thereof shall have been published in the official newspaper of the city. Amendments of the city of Fargo Sign Code shall be accomplished in the same manner as adoption of the original code. A copy of the city of Fargo Sign Code and any amendments thereto shall be kept on file in the office of the Fargo building inspector and shall be made available for public inspection at any reasonable time.

Source: 2504 (1989).

25-0308. Temporary and portable signs--Impoundment.--Portable or temporary signs which are determined to be in violation of any of the provisions of the Fargo Sign Code may be impounded by the city and thereafter, be released only upon payment of a fee to be established by resolution of the board of city commissioners.

Source: 2504 (1989).

ARTICLE 25-04

TAXICABS AND VEHICLES FOR HIRE*

Section

25-0401 Definitions.
25-0402 Exceptions.
25-0403 Application.
25-0404 Investigation.
25-0405 Approval.
25-0406 License fees.
25-0407 Expiration.
25-0408 Non-transferable.
25-0409 Vehicle requirements and certification of inspection.
25-0410 Taxicab markings.
25-0411 Accident and incident reporting and ASE inspection.
25-0412 Taxicab and vehicle for hire drivers.
25-0413 Driver standards.
25-0414 Insurance required.
25-0415 Taxicab rates.
25-0416 Receipts.
25-0417 Stands.
25-0418 Lost articles.
25-0419 Smoking or vaping prohibited.

***Editor's note—**Ord. No. 5381, § 1, adopted Feb. 21, 2023, repealed the former Art. 25-04, §§ 25-0401--25-0410, and enacted a new Art. 25-04 as set out herein. The former Art. 25-04 pertained to vehicles for hire and derived from 4964, adopted 2015; Ord. No. 4983, adopted 2015.

25-0420 Driver impairment.
25-0421 Occupants in vehicle must be restrained.
25-0422 Denial, suspension of revocation of license.
25-0423 Appeal.

25-0401. Definitions.--The following words, terms and phrases shall have the meanings ascribed to them in this Article:

1. "Applicant" means an organization or entity registered with the Secretary of State authorized to do business in the State of North Dakota applying for a license under this Article.
2. "For hire" means for remuneration or reward, paid or promised, either directly or indirectly.
3. "For hire driver" means any person in physical control of a taxicab or vehicle for hire required to be licensed under this Article.
4. "Lease driver" means a for-hire driver who is an independent contractor/sole proprietor who has leased a taxicab or for-hire vehicle from a taxicab/limousine licensee.
5. "Taxi" or "Taxicab" means a motor vehicle designed to carry passengers operating on the public streets, alley or places of the city of Fargo, and accepting passengers for transportation for hire on call or on demand, or as may be determined by the use of a taximeter, between such points as may be directed by the passenger, and that carries signs or indicia of a taxicab, including the words "taxi," "taxicab," or "cab."
6. "Taximeter" means an instrument or device that operates to calculate at predetermined rates and plainly displays the charges to the passenger of a taxicab. Any device which calculates fares charged to passengers for taxicab service, including devices which operate remotely based upon vehicle location technology, and which bases said fares upon time and distance, is considered a Taximeter, irrespective of whether such device is a portable or handheld device, monitor, smart phone or other electronic device or unit.
7. "Licensee" shall mean any taxicab or vehicle for hire service that secures authorization to commence a ride within the city of Fargo.
8. "Sober Ride Services" means a service whereby one driver drives the patron home and a second driver drives the patron's vehicle home. For such services, both drivers must meet all the requirements of this Article, including any requirements related to licensing, insurance, and background checks.
9. "Decal" means the license identification issued by the City Auditor that must be affixed to all vehicles licensed in accordance with this Article. The decal remains the property of the City and must be returned to the City Auditor for replacement, or in the event the vehicle is no longer in use. A fee for the replacement decal shall be established by Resolution of the board of city commissioners.
10. "Personal vehicle" is a vehicle owned and licensed by an individual, and not the licensee. Personal vehicles are not eligible for licensing in accordance with this Article.

11. "Vehicle for hire" shall include limousine service, sober ride service, medical transport, handicap ride service, leased vehicles, party busses, or any other permutation in which a vehicle is driven for compensation.
12. "Wheelchair accessible taxicab" or "Wheelchair accessible vehicle for hire" or "Mobility Services" means a taxicab, for-hire vehicle, or any other vehicle conforming to the requirements of the Americans with Disabilities Act (ADA). The licensee is responsible for any additional training or equipment requirements to operate this type of service.
13. "Solicitation" means the ability of a taxicab licensed under this Article to solicit a ride without a prearranged fare or location having been determined and in response to ride hailing on public ways.

Source: 5381 (2023).

25-0402. Exceptions.--This Article does not apply to a person operating a ground transportation service that is:

1. Operated under state or federal authority unless subject to the city's regulatory authority;
2. Operated for a funeral home in the performance of funeral services;
3. Provided by an employer or employee association for use in transporting employees between the employees' homes and the employer's place of business or between work stations, with the employees reimbursing the employer or employee association in an amount calculated only to offset the reasonable expenses of operating the vehicle;
4. Owned and operated by the federal or state government, by a political subdivision of the state, or by a person under contract with the city for operation of the vehicle;
5. Used in a carpool to transport the person and others on a prearranged basis between their homes and places of employment or places of common destination, if only a fee calculated to reasonably cover expenses is charged;
6. Used to transport children to or from school if only a fee calculated to reasonably cover expenses is charged;
7. Owned by a nonprofit organization and carrying only passengers associated with that organization, if no compensation is received from any other person for carrying the passengers;
8. A courtesy vehicle, if the name of the business or sponsor of such vehicle is affixed to the outside of the vehicle; or
9. A transportation network company operating in compliance with North Dakota Century Code Chapter 39-34.

Source: 5381 (2023).

25-0403. Application.--Any person or entity that desires to operate a taxicab or vehicle for hire service must make application in writing to the City Auditor for a taxicab or vehicle for hire license, which application shall include the following:

1. A true copy of the registration with the Secretary of State evidencing authorization to do business in North Dakota.

2. The name and address of the applicant. If the applicant is not an individual person, the application shall state the names and addresses of all individuals owning an interest in such business, and if a corporation shall give the names and addresses of the officers and directors thereof.
3. Background information of the applicant, including criminal background completed by the Federal Bureau of Investigation, and Department of Transportation records for all jurisdictions in which the operator has resided, or any other background investigation process and investigation deemed necessary and appropriate by the Chief of Police of the city of Fargo, or designee.
4. Number of taxicabs or vehicles for hire intended to be operated. Such vehicle listing shall accompany the application and/or renewal.
5. The make, model and ownership information of all of the vehicles the applicant intends to use in operating the taxicab or vehicle for hire service, including the name of the manufacturer, the motor and serial number, the body type, the year when made, the number of passengers each vehicle will accommodate, and certification that each vehicle has been inspected by a certified mechanic and passed inspection as provided in section 25-0409 of this Article.
6. An accurate and detailed description of the Logo or color scheme of the taxicabs or vehicles for hire, including inscriptions or monograms thereon, proposed to be operated by the applicant, which shall be distinctly different from that of the taxicabs or vehicles for hire of any other operators within the city of Fargo, so that ownership and identity may be readily ascertained by the police department and patrons of any taxicab or vehicle for hire.
7. A certificate of insurance showing the applicant has sufficient insurance to meet the requirements of section 25-0414 of this Article.
8. A statement signed by the applicant under penalty of perjury indicating an understanding that falsification of any statement, material or not, is sufficient reason for denial of the license and criminal prosecution.
9. Payment of the application fee as established by Resolution of the Board of City Commissioners.

Source: 5381 (2023).

25-0404. Investigation.--Upon completion of the application required, the application shall be submitted to the City Auditor, or his/her designee for review and investigation. Upon satisfaction of compliance with all license requirements, the taxicab or vehicle for hire license shall be issued. If the application is incomplete or cannot otherwise be approved, the application shall be denied, and the City Auditor shall provide a written explanation of the reason for denial.

Source: 5381 (2023).

25-0405. Approval.--In the event the application is approved and the license is granted, the City Auditor shall grant said license stating the name and address of the applicant, and identifying the vehicles authorized under said license. The City Auditor shall issue a numbered identification decal which must be affixed and displayed in the upper passenger side front window.

Source: 5381 (2023).

25-0406. License fees.--The fee for taxicab or vehicle for hire licenses shall be set by Resolution of the Board of City Commissioners.

Source: 5381 (2023).

25-0407. Expiration.--All taxicab or vehicle for hire licenses issued by the city of Fargo, unless sooner revoked by the city of Fargo, will expire on December 31 of each year. If the licensee applies for a renewal following the expiration of a license, a reinstatement fee in an amount to be established by Resolution of the Board of City Commissioners shall be applied.

Source: 5381 (2023).

25-0408. Non-Transferable.--Licenses issued under this Article shall be nontransferable. A transfer or attempted transfer thereof shall automatically result in a revocation of such license.

Source: 5381 (2023).

25-0409. Vehicle requirements and certification of inspection.--

1. No taxicab or vehicle for hire license shall be issued until the applicant files with the City Auditor certification that each vehicle licensed or leased has been inspected by a certified mechanic and has passed said inspection.
2. An automotive service excellence (ASE) certificate of inspection must be completed on a yearly basis and certified to the City Auditor with the taxicab or vehicle for hire license renewal.
3. Every holder of a license under this Article shall keep such vehicles in good serviceable condition so that each vehicle may be safely operated at all times without endangering the safety or property of the passengers carried or other persons.
4. The license for the operation of any vehicle not kept in a safe and serviceable condition shall be revoked and immediately removed from service.
5. The board of city commissioners may set by resolution an additional fee for each vehicle registered under this Article.
6. Vehicles must be maintained in a safe and sanitary condition. Licensee must remove all rubbish/garbage from the taxicab or vehicle for hire, and the windows must be clear for vision.

Source: 5381 (2023).

25-0410. Taxicab markings.--Taxicabs must bear the licensees logo or identification in letters and words at least 4" in size on both sides of the vehicle. The markings must be in contrasting colors readily viewable to the Police Department and public, and bear the licensee's telephone number.

Source: 5381 (2023).

25-0411. Accident and incident reporting and ASE inspection.--All accidents involving a decaled vehicle pursuant to the Article shall be reported immediately to the City Auditor. The licensee shall provide an automobile service excellence (ASE) certificate of inspection pertaining to that vehicle, and take appropriate actions necessary to protect the traveling public.

Source: 5381 (2023).

25-0412. Taxicab and vehicle for hire drivers.--No person shall drive, operate, use or cause to be used upon the streets of the city a taxicab or vehicle for hire unless the person driving the vehicle is properly licensed in accordance with North Dakota law and employed or endorsed by a holder of a city of Fargo taxicab or vehicle for hire license.

Source: 5381 (2023).

25-0413. Driver standards.--

A. Licensee must, on a yearly basis, verify that each and every taxicab or vehicle for hire driver in their employ or endorsement meets the following minimum standards:

1. Is a citizen of the United States or an alien admitted for permanent residence, or who has otherwise obtained work authorization from the U.S. citizenship and immigration services;
2. Is the holder of a valid driver's license authorizing operation of the licensed vehicle;
3. Is able to read and speak the English language sufficiently to converse with the general public, to understand highway traffic signs and signals in the English language, to respond to official inquiries, and to make entries on reports and records;
4. Is twenty-one (21) years of age or older;
5. Certify that the taxicab or vehicle for hire driver is free from any infirmity, physical or mental, which would render the driver unfit for the safe operation of the licensed vehicle;
6. Has a driving record, at least for the past three (3) years, clear of:
   a. A license cancellation, a revocation, or a suspension;
   b. A conviction for operating a motor vehicle without insurance
   c. A conviction for driving a motor vehicle without a valid license for the class of vehicle driven;
   d. A conviction for driving under the influence of alcohol or a controlled substance;
   e. A conviction for alcohol related driving by a commercial vehicle driver;
   f. A conviction for leaving the scene of an accident;
   g. A conviction for reckless or careless driving;
   h. Is not a registered predatory offender in any state;
   i. Has a criminal record clear of any misdemeanor or felony conviction as a habitual offender for driving under the influence of alcohol or a controlled substance;
   j. Has a criminal record clear of any crimes against persons, including but not limited to Conspiracy, Murder Manslaughter Criminal vehicular homicide and injury, Assault; Great bodily harm caused by distribution of drugs, Use of drugs to injure or facilitate crime, Robbery, Kidnapping, False imprisonment, Abduction; Criminal sexual conduct, Solicitation of children to engage

in sexual conduct, Human trafficking, Theft of a motor vehicle, Fleeing a peace officer in a motor vehicle, Misusing credit card to secure services, or Burglary; and

k. Information indicating whether or not the applicant has ever had a for-hire driver's license suspended, revoked, or denied and for what cause.

B. A city of Fargo taxicab or vehicle for hire driver record form, or an alternative electronic record approved by the City Auditor, shall be used to document the drivers' records. All approved taxicab or vehicle for hire driver record forms shall be kept by the licensee for a minimum of five (5) years and shall be available for review by the city of Fargo immediately upon request. The city of Fargo shall have the right at any time and without prior notice to perform inspections of the licensee records to determine compliance with this Article. Failure to comply with this Article shall result in license suspension or revocation.

C. A daily manifest shall be maintained by the owner of each taxicab noting all trips made each day, showing the driver's name, cab number, place and time of origin and destination of each trip and the amount of fare. Every owner shall retain and preserve all drivers' manifests in a safe place for at least 180 days and such manifests shall be made available upon demand for inspection by the City Auditor.

D. No driver shall refuse or neglect to convey any person because of the person's race, color, national origin, religion, sex, age, handicap or any other persons recognized under Federal and State laws.

Source: 5381 (2023).

25-0414. Insurance required.--

A. No taxicab or vehicle for hire license shall be issued by the City Auditor until the license applicant obtains and provides proof of a policy of commercial auto liability insurance issued by a responsible insurance company authorized to do business in the State of North Dakota.

1. The licensee shall have and maintain such insurance in the amount of one million dollars ($1,000,000) as well as fifty thousand dollars ($50,000.00) property damage insurance.
2. Such insurance shall cover all passengers carried by the insured licensee and shall be for public taxicab or vehicle for hire purposes.
3. All such policies shall contain a clause providing for thirty (30) days' written notice to the City Auditor before cancellation, and a memorandum of such insurance naming the city of Fargo as an additional insured shall be furnished to the City Auditor before a license is issued.
4. Failure to maintain insurance as provided in this Article shall result in immediate suspension or revocation of the taxicab or vehicle for hire license.

Source: 5381 (2023).

25-0415. Taxicab rates.--A taxicab licensee shall provide passengers with the applicable rates being charged and the option to receive an estimated fare before the passenger enters the vehicle. Unless a flat rate fee has been agreed to in advance, the taxicab must clearly display the

rate to be charged, readily observable to a passenger, and such rate must be measured by a taximeter visible to the passenger at all times; each taxicab shall have only one taximeter. Taximeters must be activated with each taxicab trip or any time a taxicab driver accepts a fare. The rate charge must be uniform as to all passengers.

Source: 5381 (2023).

25-0416. Receipts.--The taxicab or vehicle for hire driver shall, upon demand by a passenger, provide a receipt for the amount charged, which shall include the name of the licensee, driver identification, the amount of the meter reading or charges, and the date of the transaction. Such receipt shall be in paper or electronic form, at the election of the passenger.

Source: 5381 (2023).

25-0417. Stands.--Only licensed taxicabs may stop or stand on city of Fargo streets or alley ways while waiting for a fare.

Source: 5381 (2023).

25-0418. Lost articles.--Whenever any package, money, articles of baggage or goods of any description are left in or on any taxicab or vehicle for hire, such driver shall, upon the discovery of such package or article, attempt to return the item in a timely manner. In the event the item cannot be returned to the passenger, the licensee shall retain possession of the lost item for not less than 15 days.

Source: 5381 (2023).

25-0419. Smoking or vaping prohibited.--Smoking and/or vaping of tobacco products is prohibited inside any taxicab or vehicle for hire.

Source: 5381 (2023).

25-0420. Driver impairment.--

A. No driver shall be permitted to operate a taxicab or vehicle for hire while under the influence of alcohol or any mood-altering drug (prescription or nonprescription). No driver shall possess any controlled substance or alcoholic beverage while operating a taxicab or vehicle for hire.

B. No driver shall be permitted to drive any vehicle carrying passengers for more than twelve (12) hours in any one 24-hour period.

C. Mobile phone use is prohibited while the vehicle is in motion, except in a hands-free mode. Navigation tools, including cell phones, must be separate devices from the taximeter, and only be operated in hands-free mode while the vehicle is in motion.

Source: 5381 (2023).

25-0421. Occupants in vehicle must be restrained.--No person operating a taxicab or vehicle for hire shall allow a greater number of passengers to occupy or be transported in the vehicle than the number of legal seated/belted positions within said vehicle.

Source: 5381 (2023).

25-0422. Denial, suspension of revocation of license.--

A. Licensee and any taxicab or vehicle for hire in service by a licensee shall remain subject to random inspections by the City Auditor and/or designee to ensure

continuing compliance with the terms of this Article. Refusal to permit or complete such inspection shall be cause for immediate suspension or revocation of the license.

B. The City Auditor may deny, suspend or revoke any license to operate a taxicab or vehicle for hire service as defined in this Article as stated in this Article, in addition to any of the following reasons:

1. Fraud, misrepresentation or incorrect statement contained in the application or made in carrying on the licensed or permitted activity.
2. Violation of any of the driver standards.
3. Conducting such licensed or permitted activity in such manner as to constitute a breach of the peace or a menace to the health, safety or welfare of the public, or a disturbance of the peace or comfort of residents of the city of Fargo, upon recommendation of the appropriate city official.
4. Expiration or cancellation of any required insurance.
5. Actions unauthorized or beyond the scope of the license granted.
6. Violation of any regulation or provision of this Article applicable to the activity for which the license has been granted, or any regulation or law of the state so applicable.
7. Failure to continuously comply with all conditions required as precedent to the approval of the license.

Source: 5381 (2023).

25-0423. Appeal.--Any person aggrieved by the action of the City Auditor in denying, suspending or revoking a license shall have the right to a hearing before the Board of City Commissioners on any such action, provided a written request is filed with the City Auditor within ten (10) days after receipt of the notice of such denial, suspension or revocation. The Board of City Commissioners may grant such license, confirm any suspension or revocation, or reinstate any such license. The action taken by the Board of City Commission after a hearing shall be final, subject to appeal pursuant to North Dakota Century Code Ch. 28-34.

Source: 5381 (2023).

ARTICLE 25-05

PEDDLERS AND SOLICITORS

Note: Article 25.05 of chapter 25 of the Revised Ordinances of 1965 (sections 25-0501 to 25-0518) was repealed by Ord. No. 1953, 1979, which enacted new article 25-05 (sections 25-0501 to 25-0512).

Section

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25-0501. Definitions.--

1. "Charitable organization" means any nonprofit organization operated for the relief of poverty, distress, or other condition of public concern within this city, which has been so engaged within this city for two years.

2. "Civic and service club" means any branch, lodge or chapter of a nonprofit national or state organization which is authorized by its written constitution, charter, articles of incorporation, or bylaws to engage in a civic or service purpose within the state of North Dakota, which shall have existed in this city for two years. "Civic and service club" shall also mean a similar local nonprofit organization, not affiliated with a state or national organization, which is recognized by resolution adopted by the board of city commissioners of the city of Fargo. Such club shall have existed in this city for two years.

3. "Educational organization" means any nonprofit public or private elementary, secondary or high school in this city which has been in existence for two years.

4. "Fraternal organization" means a nonprofit organization within this city except for college and high school fraternities, which is a branch or lodge or chapter of a national or state organization and exists for the common business, brotherhood, or other interests of its members. Such organization shall have existed within this city for two years.

5. "Other public-spirited organization" means a nonprofit organization recognized by the board of city commissioners of the city of Fargo by resolution as such.

6. "Peddler" shall mean any person engaged in the selling of personal property by going from place to place or house to house or by selling from a vehicle or conveyance and who carries with him such property for delivery at time of sale. The word "peddler" shall include the words "hawker" and "huckster".

7. "Person" shall include the singular and plural, and shall also mean and include any person, firm or corporation, association, club, partnership, society, or any other organization.

8. "Religious organization" means any nonprofit organization, church, body of communicants, or group gathered in common membership for mutual support and edification in piety, worship, and religious observance which has been so gathered or united in this city for two years.

9. "Solicit" shall mean the practice of going about from person to person, place to place, or house to house, or using other means including telephone, requesting orders, offering to sell personal property, or services, requesting money or credit from another, or soliciting contributions for any purpose. Solicit shall not include the practice of using the telephone in an attempt to arrange for a meeting or appointment between the parties, nor shall it include the practice of contacting persons for the purpose of membership enlistment in any firm, corporation, association, club or organization which has been in existence in the city of Fargo for at least one year.

10. "Solicitor" shall mean any person who engages in the practice of, or who directs, allows or permits any person to engage in solicitations.

11. "Veterans organization" means any congressionally chartered organization within the state of North Dakota, or any branch or lodge or chapter of a nonprofit national or state organization within this city, the membership of which consists of individuals who were members of the armed services or forces of the United States. Such organization shall have been in existence in this city for two years.

Source: 1965 Rev. Ord. 25-0501, 1953 (1979).

25-0502. Permit required.--Except as hereinafter provided, it shall be unlawful for any person to solicit or act as a peddler within the corporate limits of the city of Fargo without first obtaining a solicitation permit. If the applicant is a firm, corporation, association, club, partnership, society or other organization, each individual who is employed by or acting on behalf of such organization shall be required to obtain a sub-permit as hereinafter provided.

This section shall not apply:

A. To the solicitation of orders for the sale of milk, dairy products, vegetables, poultry, eggs, and other farm and garden products as far as the sale of such commodities is authorized by law.

B. To the solicitation of orders for the distribution or sale of regularly published newspapers.

C. To solicitations conducted by radio, television and newspaper advertising.

D. To solicitations conducted by members of charitable organizations, civic and service clubs, educational organizations, fraternal organizations, religious organizations, veterans organizations, or other public-spirited organizations.

E. To the solicitation of orders for the sale of property or services made to or by business suppliers, distributors or retailers when such solicitations occur at the business premises.

F. To the distribution or sale of religious, political, economic or educational tracts, pamphlets, papers or periodicals where the proceeds are to be used exclusively for religious, charitable or benevolent purposes.

G. To the distribution or sale of personal property by charitable organizations, civic and service clubs, educational organizations, fraternal organizations, religious organizations, veterans organizations, or other public-spirited organizations where the proceeds are to be used exclusively for charitable, benevolent, educational, patriotic or other public-spirited purposes.

H. To solicitations conducted by persons who have a permanent residence or permanent place of business in Cass County, North Dakota, or Clay County, Minnesota.

Source: 1965 Rev. Ord. 25-0502, 1953 (1979), 2112 (1983).

25-0503. Solicitations board.--There is hereby established a solicitations board which shall consist of five citizens of the city of Fargo who shall be appointed by the president of the board of city commissioners subject to confirmation by the board of city commissioners. The terms of office of such members shall be as follows, to-wit: Two members who shall serve until October 1, 1980; two members who shall serve until October 1, 1981, and one member who shall serve until October 1, 1982. At the expiration of the terms of the members as aforesaid, the members shall be appointed for three-year terms. Any vacancy occurring shall be filled in the same manner as provided for in the original appointment. The solicitations board shall elect its own chairman and vice-chairman in November of each year. The members of the board shall serve without remuneration. The solicitations board shall review activities of solicitors and make recommendations to the board of city commissioners regarding the issuance or revocation of any solicitations permit.

Source: 1965 Rev. Ord. 25-0503, 1953 (1979).

25-0504. Application for solicitations permit.--An application for a solicitations permit shall be made to the city auditor upon forms provided by the city of Fargo. The city auditor shall be authorized to issue such solicitation permits on the approval of the chief of police or his designated representative. The application herein required shall contain the following information, or in lieu thereof, a detailed statement of the reason or reasons why such information cannot be furnished.

A. The name, address or headquarters of the person applying for the permit.

B. If the applicant is not an individual, the names and addresses of the applicant's principal officers, managers, and the names and addresses of those persons who will be conducting the solicitations or acting as a peddler.

C. The purpose for which such solicitation is to be made, the total amount of funds proposed to be raised thereby and the use or disposition to be made of any receipts therefrom.

D. The name and address of the person or persons who will be in direct charge of conducting the solicitations.

E. An outline of the method or methods to be used in conducting the solicitations.

F. The time when such solicitations shall be made, giving the dates for the beginning and ending of such solicitations.

G. Such other information as may be reasonably required by the solicitations board in order to determine the kind and character of the proposed solicitation and whether or not such will not be detrimental to the best interests of the citizens of the city of Fargo.

The holder of an existing permit issued pursuant to the provisions of this article who desires to renew said permit for another permit term shall not be required to make and file a new application under the provisions of this section; provided, however, said permit holder shall be required to keep the information contained in the original application accurate and current. Any person renewing a solicitations permit shall pay the necessary fees and shall request a current permit from the city auditor.

Source: 1965 Rev. Ord. 25-0504, 1953 (1979), 2113 (1983).

25-0505. Investigation by solicitations board of permit applications.--The solicitations board shall examine all applications and requests for permit renewals filed under § 25-0504 of this ordinance and shall make, or cause to be made, such further investigation of the application and the applicant as the solicitations board deems necessary in order to perform its duties under this section.

Source: 1965 Rev. Ord. 25-0505, 1953 (1979).

25-0506. Standards for solicitations board's action in granting or denying applications. The solicitations board shall authorize the issuance of the solicitations permit whenever it shall find all the following facts to exist:

A. That all of the statements made in the application are true.

B. That the applicant has a good character and reputation for honesty and integrity, or, if the applicant is not an individual person, that every member, managing officer or agent of the applicant has good character or reputation for honesty and integrity.

C. That the control and supervision of the solicitations will be under responsible and reliable persons.

D. That the applicant has not engaged in any fraudulent transaction or enterprise.

E. That the solicitation will not be a fraud on the public.

F. That the solicitation and its goals will be in the furtherance of the public's health, education, welfare, safety or interest.

Source: 1965 Rev. Ord. 25-0506, 1953 (1979).

25-0507. Types of permits--Fees and expiration dates.--

A. If the applicant is a firm, corporation, association, club, partnership, society or other organization, the solicitations permit shall be issued to such organization; provided, that each individual conducting solicitations or acting as a peddler on

behalf of such organization shall be issued a sub-permit which shall show the individual's name and address, and clearly indicate his affiliation with said organization.

B. The city auditor shall issue solicitations permits and sub-permits only after approval of the application by the chief of police and by the solicitations board as hereinabove provided.

C. Fees for the solicitations permit and sub-permits shall be as established by resolution of the board of city commissioners and shall be payable at the city auditor's office.

D. All permits and sub-permits issued under the provisions of this ordinance shall expire 90 days after the date of issuance, or at such other time as may be established by the solicitations board at the time of approval of the application.

Source: 1965 Rev. Ord. 25-0507, 1953 (1979), 2114 (1983).

25-0508. Hearing after denial of application for permit.--Within five days after receiving notification that his application to a solicitation permit has been denied, an applicant may file a written request for a public hearing on the application before the board of city commissioners. At the hearing, the applicant may present evidence in support of his application. Any interested persons shall be allowed to participate in the hearing. The board of city commissioners shall either grant or deny the request for a solicitation permit.

Source: 1965 Rev. Ord. 25-0508, 1953 (1979).

25-0509. Revocation of permits.--Whenever it shall be shown, or whenever the solicitations board has knowledge, that any person to whom a permit has been issued under this ordinance has violated any of the provisions of this ordinance, or that any promoter, agent or solicitor or a permit holder has misrepresented the purpose of this solicitation, the solicitations board may revoke the permit. Notice of revocation must be sent to the permit holder by certified mail addressed to the permit holder at the address set forth on the application. The chief of police shall be notified of the revocation of any permit. The permit holder may appeal his revocation to the board of city commissioners in the same manner as in the case of a denial of a permit.

Source: 1965 Ord. 25-0509, 1953 (1979).

25-0510. Solicitations practices.--

A. The solicitations permit, or a duplicate thereof, shall be carried at all times by the solicitor and shall be exhibited when requested to do so by any police officer or any person contacted. It shall be the duty of any police officer to require any solicitor to produce his solicitations permit and to enforce the provisions of this ordinance against any person found to be violating the same.

B. The chief of police shall report to the solicitations board all convictions for violations of this ordinance.

C. Solicitations conducted in and upon private property by solicitors after having been requested to leave such private property by the owner or occupant thereof is prohibited.

D. No person shall directly or indirectly solicit contributions for any purpose or misrepresentation by his name, occupation, financial condition, social condition or residence, and no person shall make or perpetrate any other misstate-

ment, deception or fraud in connection with any solicitation of any contribution for any purpose in the city of Fargo, or in any application or report filed under this ordinance.

E. No person shall engage in solicitation upon any premises without a prior invitation from the occupant thereof, if such premises are posted against such solicitation by the means of a notice prominently displayed, upon which is printed the legend: "NO SOLICITORS" (or words of similar import). For purposes of this paragraph, a dwelling house or apartment or other place of residence shall be deemed to be posted against solicitation if there is exhibited, on or near the main entrance to the premises, or on or near the main door to any residence located thereon, a sign at least 3" by 4" in size which bears the above legend in letters at least 1/3" in height. Signs complying with the foregoing requirement shall be made available for sale by the city.

F. There shall be no solicitation upon any premises prior to 9:00 a.m. or after 9:00 p.m., local time, of any day, other than upon prior invitation of the occupant of any such premises.

G. Not more than two individuals shall engage in solicitation upon any premises at the same time for the same goods or services, or religious or charitable purposes. Each individual member of a group engaged in solicitation in violation of this provision shall be deemed to have violated such provision.

H. No person shall make more than one solicitation call at the same premises for the same goods or services, or religious or charitable purposes within any consecutive six-month period, without a prior invitation therefor from the occupant of any such premises. This provision shall be construed to prohibit a person, or his employee, agent or representative, from knowingly soliciting the same premises more than once during the aforesaid period.

Source: 1965 Rev. Ord. 25-0510, 1953 (1979).

25-0511. Voluntary submission of application to solicitations board.--Any peddler or solicitor who is exempt from the requirements of this ordinance by subsections (A) through (H) of § 25-0502 may make application for a permit in accordance with § 25-0504 of the article. Upon approval of said application by the solicitations board, the city auditor shall issue a solicitation permit pursuant to § 25-0504 of this article. Fees for permits granted under this section shall be without charge to the applicant.

Source: 1965 Rev. Ord. 25-0511, 1953 (1979).

25-0512. Severance clause.--The provisions of this article are declared to be severable and if any section, sentence, or clause or phrase of this ordinance shall for any reason be held to be invalid or unconstitutional, such decision shall not affect the validity of the remaining sections, sentences, clauses or phrases of this article, it being the legislative intent that this article shall stand notwithstanding the invalidity of any part.

Source: 1965 Rev. Ord. 25-0512, 1953 (1979).

ARTICLE 25-06

SOLICITORS FOR SUBSCRIPTIONS, PHOTOGRAPHS, OR SERVICES

Note: Article 25-06 of chapter 25 of the Revised Ordinances of 1965 (sections 25-0601 to 25-0608) was repealed by Ord. No. 1282, § 2, 1968. For present provisions see article 25-05.

ARTICLE 25-07

TRANSIENT MERCHANTS

Note: Article 25-07 of chapter 25 of the Revised Ordinances of 1965 (sections 25-0701 to 25-0704) was repealed by Ord. No. 1282, § 2, 1968. For present provisions see article 25-05.

ARTICLE 25-08

EMPLOYMENT AGENCIES

Note: Article 25-08 of chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2305, 1987.

Source: Article 25-08 of Chapter 25, Revised Ordinances of 1952 (sections 25-0801 to 25-0810), 1635 (1975), 1740 (1976), repealed by Ord. 2305 (1987).

ARTICLE 25-09

FORTUNETELLING, SPIRITUALISM, PHRENOLOGY

Note: Article 25-09 of chapter 25 of the Revised Ordinances of 1965 (sections 25-0901 and 25-0902) was repealed by Ord. No. 1617, § 1, 1974, effective October 8, 1974.

ARTICLE 25-10

PAWNBROKERS

Section

25-1000 Purpose.
25-1001 Definitions.
25-1002 Fixed premises and license required.
25-1003 License and renewal.
25-1004 Bond.
25-1005 Fee for license and application fee.
25-1006 Investigation fee.
25-1007 Effective period, denial, renewal and suspension or revocation.
25-1008 Acts prohibited by minors.
25-1009 Required records.
25-1010 Daily reports to police.
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25-1012 Redemption period.
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25-1015 Articles available for inspection.
25-1016 Police order to hold property.
25-1017 Label required.
25-1018 Motor vehicle title pawn transactions; special provisions.
25-1019 Prohibited acts.

25-1020 Penalty.

25-1000. Purpose.--The city commission recognizes the need to regulate pawnbrokers to provide the ability to identify stolen property presented to pawn shops and to identify those responsible for committing property crimes. The commission also determines the need to provide a basic level of consumer protection through a comprehensive pawnbroker ordinance.

To help the police department better regulate future pawn businesses, decrease and stabilize regulatory costs, and improve identification of criminal activities through the timely collection and sharing of transaction information, this chapter also implements and establishes the required use of the LEADS system.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1001. Definitions.--

1. "Licensee" shall mean all pawnbrokers required to be licensed by this chapter.
2. "Pawnbroker" shall mean any person who:
   A. Loans money on deposit or pledge of personal property, or other valuable thing;
   B. Deals in the purchasing of personal property or other valuable thing, on condition of selling the same back again at a stipulated price; or
   C. Loans money, secured by chattel mortgage on personal property, taking possession of the property or any part thereof so mortgaged.
   D. To the extent that a pawnbroker's business includes buying personal property previously used, rented or leased, or selling it on consignment, the provisions of this chapter shall be applicable.
3. "Person" shall mean any individual, partnership, corporation or association or any other legal entity, or any agent or employee thereof.
4. "Regulated transaction" shall include all purchases, loans, pawns, trades or consignments made by a pawnbroker.
5. "Reportable transaction" shall include every transaction conducted by a pawnbroker in which merchandise is received through a pawn, purchase, consignment or trade, or for which a unique transaction number or identifier is generated by their point-of-sale software, is reportable except:
   A. The bulk purchase or consignment of new or used merchandise from a merchant, manufacturer or wholesaler having an established permanent place of business, and the retail sale of said merchandise, provided the pawnbroker must maintain a record of such purchase or consignment which describes each item.
   B. Retail and wholesale sales of merchandise originally received by pawn or purchase, and for which all applicable hold and/or redemption periods have expired.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008,

1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1002. Fixed premises and license required.--No person shall engage in business as a pawnbroker unless said person has a fixed premises where said business is conducted, either on a continuing basis or from time to time, and unless said person has first obtained a license to engage in that business at that premises. A separate license is required for each place of business. The city may issue more than one license to a person if the person complies with the requirements of the chapter. A license issued under this article shall be prominently displayed at the licensed premises during hours when such premises is open for business. If, during the effective period of a license issued under this article, a licensee changes the location of the licensed premises within the city, such licensee shall inform the city auditor and the chief of police of such change of location and shall have the new premises to be licensed noted on the license. There shall be no additional fee charged for changing the location of the licensed premises. The operation of a business as a pawnbroker without a license as required by this section shall be a class B misdemeanor.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1003. License and renewal.--

1. Any person desiring to obtain, renew or transfer a license shall make and file an application for such license with the commission. The application shall be made on a form approved by the chief of police and made available through the office of the city auditor. In addition to the information required on the application form, the commission, in its discretion, may require such other information as it deems necessary in determining whether a license should be issued to the applicant.

2. The holder of an existing license issued pursuant to the provisions of this article who desires to renew said license for another license year, shall not be required to make and file a new application under this section but shall make and file a renewal application under the provisions of this section which shall require the payment of the renewal fee and shall include an affidavit indicating the current name and address of the licensee, and if said licensee is a corporation, the names and addresses of the resident manager, all corporate officers, and all shareholders holding more than 5% of the outstanding stock of the corporation, and such other information as the city may require. The renewal application and affidavit shall be on a form to be prescribed by the chief of police made available through the city auditor's office.

3. The application for a new license or renewal of a license shall require that the applicant agrees to provide the police department with the records required by section 25-1010 in a format, including electronically transmitted digital data, as required by the police department.

4. The chief of police shall investigate the facts stated in the application filed with the commission and shall report the results of the investigation to the commission prior to the hearing on said application. Said investigation and report shall include the character, reputation, fitness of the applicant to hold a license, any other pertinent information and the

recommendation of the chief of police as to whether or not such license should be granted. In addition, the commission may request and consider such other recommendations and reports of other city officials.

5. Any pawnbroker as defined under section 25-1001.2.D. shall not be required to purchase a separate license as a second-hand or precious metals dealer.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1004. Bond.--Before a license will be issued or renewed, every applicant must submit a five thousand dollar ($5,000.00) bond on the forms provided by the auditor's office, with sufficient sureties to be approved by the auditor's office. All bonds must be conditioned that the principal will observe all laws in relation to pawnbrokers and will conduct business in conformity thereto, and that the principal will account for and deliver to any person legally entitled any goods which have come into the principal's hand through the principal's business under this chapter, or in lieu thereof, will pay the reasonable value in money to the person. This language shall not be construed to apply to items the principal has legally disposed of under the requirements of this ordinance. The bond shall contain a provision that no bond may be cancelled except upon thirty (30) days written notice to the chief of police.

Alternately, a licensee may provide proof to the auditor's office of a separate dedicated account with a balance of $5,000.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1005. Fee for license and application fee.--The fee for issuance of a license to engage in business as a pawnbroker shall be in such amount as shall be established by resolution of the board of city commissioners.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1006. Investigation fee.--The fee for the investigation of an initial application or renewal for a license to engage in business as a pawnbroker shall be paid to the city auditor at the time an application is submitted. The amount of the investigation fee shall be established by resolution of the board of city commissioners.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1007. Effective period, denial, renewal and suspension or revocation.--A license issued under this article shall be valid and effective until December 31 of the year for which the license applies. Every license issued under the provisions of this article shall be issued upon the understanding that such license may be revoked or suspended by the board of city commissioners at any time for good cause, for failure to comply with any provision of this chapter, or by any fraud, misrepresentation bribery, or false statements in the application, investigation, securing or renewing a license, or the conviction of a license holder of a violation of this article or any criminal conviction related to theft of property or any felony conviction. Notice of such revocation or suspension must be sent to the licensee by certified mail addressed to the licensee at the address set forth in the application. The chief of police shall be notified of the revocation or suspension of any license. The licensee may appeal a revocation or suspension to the board of city commissioners and request a public hearing on such revocation or suspension.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1008. Acts prohibited by minors.--No person under the age of 18 years shall pawn, sell or otherwise initiate a reportable transaction with any person licensed to do business under this article nor may any licensee receive be involved in any reportable transaction from a person under the age of 18 years. No person under the age of 18 years shall represent to any person licensed under the provisions of this article, that he is 18 years of age or over.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1009. Required records.--At the time of any reportable transaction other than renewals, extensions or redemptions, every licensee must immediately record in English the following information by using ink or other indelible medium on forms or in a computerized record approved by the chief of police. Such record shall specifically include:

1. A complete and accurate description of each item including, but not limited to any trademark, identification number, serial number, model number, brand name or other identifying mark on such an item.
2. The purchase price, amount of money loaned upon, or pledged.
3. The maturity date of the transaction and the amount due, including monthly and annual interest rates and all pawn fees and charges.
4. Date, time and place the item of property was received by the licensee, and the unique alpha and/or numeric transaction identifier that distinguishes it from all other transactions in the licensee's records.
5. Full name, current residence address and phone number, date of birth and accurate description of the person from whom the item of the property was received including sex, height, weight, race, color of eyes and color of hair.
6. The identification number and state of issue of a current state photo driver's license or state photo identification card.

7. The signature of the person identified in the transaction.

8. Renewals, extensions and redemptions. For renewals, extensions and redemptions, the licensee shall provide the original transaction identifier, the date of the current transaction, and the type of transaction.

9. Inspection of records. Transaction records must at all reasonable times be open to inspection by the police department during the licensee's business hours. Data entries shall be retained for at least three (3) years from the date of transaction.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1010. Daily reports to police.--Licensees must submit every reportable transaction to the police department daily in the following manner:

Licensees must provide to the police department all information required in section (REQUIRED RECORDS) (1) through (7) and other required information, by transferring it from their computer to the LEADS system. All required records must be transmitted completely and accurately each day in accordance with the standards and procedures established by the issuing authority. If a licensee is unable to successfully transfer the required information to LEADS, the licensee must provide the police department printed copies of all reportable transactions, by 12: 00 the next business day. The licensee must make all reasonable efforts to correct the problem as soon as possible.

Regardless of the cause or origin of the technical problems that prevented the licensee from uploading their reportable transactions, upon correction of the problem, the licensee shall upload every reportable transaction from every business day since the problem existed.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1011. Receipt required.--Every licensee must provide a receipt to the party identified in every reportable transaction and must maintain a duplicate of that receipt for three (3) years. The receipt must include the information (A) through (G) identified in Section 25-1009 (1) through (7) RECORDS REQUIRED.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1012. Redemption period.--Any person pledging, pawning or depositing an item for security must have a minimum of sixty (60) days from the date of that transaction to redeem the item before it may be forfeited and sold. During the sixty (60) day period, items may not be removed from the licensed location.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008,

1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003).

25-1013. Holding period.--Any item purchased by a licensee and defined in Section 25-1001 (5) must be held in the city of Fargo and not be sold or otherwise transferred for fourteen (14) total days from the date of the transaction.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003), 4829 (2012), 4885 (2013).

25-1014. Exempt from holding.--The acquisition for resale of an ingot of precious metal including, but not limited to, gold, silver, platinum, which ingot bears a stamp or other marking indicating or reflecting:

A. The government, governmental agency, private corporation, or banking institution issuing or producing the ingot;

B. An indication of the quantity of metal contained in the ingot; and

C. The seal of the issuing party.

D. The acquisition for resale of coins, precious metals or precious gems and currency by any banking institution or like entity regulated by the state or federal government or both.

For purposes of this section, ingot does not refer to jewelry, silverware or any other item that is unique or readily identifiable.

Source: 4885 (2013).

25-1015. Articles available for inspection.--All property received by a pawnbroker in a reportable transaction shall be made available for inspection by city police officers during reasonable business hours.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003), 4885 (2013).

25-1016. Police order to hold property.--

1. Investigative hold. Whenever a law enforcement official from any agency notifies a licensee not to sell an item, the item must not be sold or removed from the premises. The investigative hold shall be confirmed in writing by the originating agency within seventy-two (72) hours and will remain in effect for fifteen (15) days from the date of initial notification, or until the investigative order is canceled, or until an order to hold/confiscate is issued, whichever comes first.

2. Order to hold. Whenever the chief of police, or the chief's designee, notifies a licensee not to sell an item, the item must not be sold or removed from the licensed premises

until authorized to be released by the chief or the chief's designee. The order to hold shall expire ninety (90) days from the date it is placed unless the chief of police or the chief's designee determines the hold is still necessary and notifies the licensee in writing.

3. Order to confiscate. If an item is identified as stolen or evidence in a criminal case, the chief or chief's designee may:

A. Physically confiscate and remove it from the shop, pursuant to a written order from the chief or the chief's designee, or

B. Place the item on hold or extend the hold as provided in section b, and leave it in the shop.

When an item is confiscated, the person doing so shall provide identification upon request of the licensee, and shall provide the licensee the name and phone number of the confiscating agency and investigator, and the case number related to the confiscation.

When an order to hold/confiscate is no longer necessary, the chief of police, or chief's designee shall so notify the licensee.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003), 4885 (2013).

25-1017. Label required.--Licensees must attach a label to every item at the time it is pawned, purchased or received in inventory from any reportable transaction. Permanently recorded on this label must be the number or name that identifies the transaction in the shop's records, the transaction date, the name of the item and the description or the model and serial number of the item as reported to the police department, whichever is applicable, and the date the item is out of pawn or can be sold, if applicable. Labels shall not be re-used.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003), 4885 (2013).

25-1018. Motor vehicle title pawn transactions; special provisions.--In addition to the other requirements of this chapter, a pawnbroker who holds a title to a motor vehicle (to the extent permissible under North Dakota state law) as part of a pawn transaction shall:

1. Be licensed as a used motor vehicle dealer under the North Dakota Century Code and post such license on the pawnshop premises.

2. Verify that there are no liens or encumbrances against the motor vehicle with the department of motor vehicles.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003), 4885 (2013).

25-1019. Prohibited acts.--

1. No licensee may receive any goods, unless the seller presents identification in the form of a valid driver's license, a valid State of North Dakota identification card, or current valid photo driver's license or identification card issued by the state or providence of residency of the person from whom the item was received.

2. No licensee may receive any item of property that possesses an altered or obliterated serial number or operation identification number or any item of property that has had its serial number removed.

3. No person may pawn, pledge, sell, consign, leave, or deposit any article of property not their own; nor shall any person pawn, pledge, sell, consign, leave, or deposit the property of another, whether with permission or without; nor shall any person pawn, pledge, sell, consign, leave, or deposit any article of property in which another has a security interest; with any licensee.

4. No person seeking to pawn, pledge, sell, consign, leave, or deposit any article of property with any licensee shall give a false or fictitious name; nor give a false date of birth; nor give a false or out of date address of residence or telephone number; nor present a false or altered identification, or the identification of another; to any licensee.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003), 4885 (2013).

25-1020. Penalty.--Any person, firm or corporation violating the terms of this chapter, except as provided in section 25-1002, shall upon conviction thereof, be guilty of an infraction, and punished by a fine not to exceed $1,000 or such other amount as permitted under state law, the court to have power to suspend said sentence and to revoke the suspension thereof.

Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4326 (2003), 4885 (2013).

ARTICLE 25-11

SALVAGE DEALERS

Section

25-1101 "Salvage dealer" defined.
25-1102 Salvage dealer's license--How obtained--Fee. Repealed.
25-1103 Bond--Conditions of. Repealed.
25-1104 License--Revocation of.--Repealed.
25-1105 Purchase from minors prohibited.
25-1106 Nuisance prohibited.
25-1107 Fencing of salvage yard required.
25-1108 Records required.
25-1109 Purpose of article.

25-1101. "Salvage dealer" defined.--The term "salvage dealer" when used in this article shall be defined to be any person, co-partnership, corporation or association (1) maintaining a store, shop, or place of business wherein purchases are made of used metals, rags, bottles, bones, dead animals, or scrap of any kind, or material of any description, for the purpose of resale either at retail or otherwise, (2) soliciting the purchase or sale for resale or purchases or sells for resale, other than from or to a licensed salvage dealer in the city of Fargo, any used metals, rags, bottles, bones, dead animals, scrap or material of any description, or (3) operating or maintaining a store, shop, or place of business where farm or other machinery or equipment, or automobiles are purchased for the purpose of wrecking, dismantling, and sale as scrap, parts, or otherwise.

The aforesaid definition shall not be construed to mean or include any firm, co-partnership, association, or corporation which as an incident to the business of selling merchandise in a new condition takes in trade used articles of farm machinery, household goods, automobiles or similar merchandise for the purpose of resale as such.

Source: 1965 Rev. Ord. 25-1101, 1644 (1975).

25-1102. Salvage dealer's license--How obtained--Fee.-- Repealed by Ord. No. 1901 (1979).

25-1103. Bond--Conditions of.--Repealed by Ord. No. 1901 (1979).

25-1104. License--Revocation of.--Repealed by Ord. No. 1901 (1979).

25-1105. Purchase from minors prohibited.--No person engaged in the business of salvage dealer shall transact any business whatsoever with any minor or purchase any merchandise, goods or property from a minor.

Source: 1965 Rev. Ord. 25-1105, 1644 (1975).

25-1106. Nuisance prohibited.--Salvage yards shall at all times be kept and maintained in a sanitary condition, and the keeping of any goods, wares, and merchandise of any kind, or property whatsoever, which tends to annoy, injure, or endanger the comfort, repose, health, or safety of others, or in any way renders other persons insecure in life or the use of property, is hereby declared a nuisance and is prohibited.

Source: 1965 Rev. Ord. 25-1106, 1644 (1975).

25-1107. Fencing of salvage yard required.--No material shall be piled or stored in the area comprising the premises upon which a salvage yard is situated unless a fence shall be erected so as to completely enclose the yard or place where such piling or storing is to be done, and the gates or places of access to such place where such material is to be piled or stored shall likewise be constructed of board and shall be of equal height as the fence and such gates or places of access shall, when not in use, be kept tightly closed. Such fence shall be not less than eight (8) feet in height and shall be securely built. Such fence, and any gates, shall be constructed in such a manner as to screen from view the yard or place where such piling or storing is to be done. The materials from which the fence may be constructed may be wood (tight board fence), durable composite or plastic material, or chain-link material; provided, however, that in the case of chain-link fencing, slats or strips of plastic or other screening material, approved by the zoning administrator, must be inserted into the chain links so as to

provide the appropriate screen from view. Such fence shall at all times be kept and maintained in a good state of repair and no signs or advertising shall be painted or placed thereon or attached thereto; provided, however, that where any railway spur is located within the confines of such salvage yard, and where such spur is used for the transportation in and out of such yard, any part of the fence herein provided for which is within 50 feet of such spur track may be built of tightly woven wire fencing of such texture that the operation of any railway equipment within such fence may be observed from the outside.

Source: 1965 Rev. Ord. 25-1107, 1644 (1975), 4363 (2004).

25-1108. Records required.--Every licensee shall be required to keep a permanent record of all goods purchased, which record shall show an accurate account or description of the goods, articles, or other merchandise purchased in the city of Fargo, the name and address of the party from whom purchased, and the amount of money paid therefor, which record shall be open to inspection at any time upon demand by the board of city commissioners, the police commissioner, the city attorney, or any member of the police force. Provided, however, that the licensee shall not be required to furnish such description of any property purchased from manufacturers or wholesale dealers having an established place of business, or of goods purchased at open sale from any bankruptcy stock, or from any other person having an established place of business in the city.

Source: 1965 Rev. Ord. 25-1108, 1644 (1975).

25-1109. Purpose of article.--This article is hereby declared to be enacted pursuant to the police power of the city of Fargo and in the interests of public welfare and public safety.

Source: 1965 Rev. Ord. 25-1109, 1644 (1975).

ARTICLE 25-12

PUBLIC DANCES AND DANCE HALLS

Section

25-1201 Definitions.
25-1202 Public dance hall license.
25-1203 Public dance hall license--Term.
25-1204 Public dance hall license--Requirements and license application.
25-1205 Public dance hall license--Revocation.
25-1206 Public dance hall--Closing time--Security and other requirements.
25-1207 Police and other regulations.

25-1201. Definitions.--When used in this article, unless the subject matter or context otherwise requires:

A. A "public dance" as used herein shall be taken to mean any dance not given under the auspices of a municipality, school district, civic, fraternal, religious, or other regularly organized non-profit group or society, to which admission can be had by payment of a fee or to which the public generally may gain admission with or without the payment of a fee. In addition to the exceptions mentioned

herein and other exceptions mentioned in this article, holders of an A and/or AB liquor license who also hold a live entertainment license issued by the city of Fargo shall be exempt from this article.

B. A "public dance hall" as used herein shall be taken to mean any room, place or space in which a public dance shall be held.

C. A "person" shall mean a natural person, firm, association, partnership, corporation, or any other business entity recognized under North Dakota law.

D. A "security officer" for purposes of this ordinance shall mean designated personnel who shall be qualified by experience and/or training to operate as a security officer.

Source: 1973 (1980), 4080 (2000), 4435 (2004).

25-1202. Public dance hall license.--

A. Fee required.--It shall be unlawful to hold any public dance within the limits of the city unless the room, place or space in which the same may be held first has been duly licensed for such purposes. The licenses shall be granted by the city commission and the fee therefor shall be set by resolution of the board of city commissioners. The fees for transfer of the license, both for owner and location, shall be similarly set by resolution of the board of city commissioners. The initial issuance fee as set by resolution of the board of city commissioners may be in a greater amount than the fee for yearly renewal. This provision shall not apply to a dance held or conducted in a hotel or motel having more than 50 guest rooms, if held or conducted under the immediate control of the owner or operator of such hotel or motel.

B. Temporary dance hall permit.--

Fee required.--Except as allowed under a license obtained under 25-1202(A) above, it shall be unlawful to hold any public dance within the limits of the city without obtaining a temporary dance hall permit to give, hold or conduct such dance from the board of city commissioners. The fee for such permit shall be set by resolution of the board of city commissioners. There shall be a further fee established by resolution of the board of city commissioners as an investigation fee. Any person desiring to obtain a temporary dance hall permit shall make and file an application for such license with the commission. Said application shall be made on a form approved by the commission and made available through the office of the city auditor. In addition to the information supplied on the application form, the commission, in its discretion, may require such other information as it deems necessary in determining whether a temporary permit should be issued to the applicant. The chief of police or his designee shall investigate the facts stated in the application filed with the commission and shall report the results of his investigation to the commission prior to the hearing on said application. Said investigation report shall include the character, reputation, fitness of the applicant to hold a license, any other pertinent information and the recommendation of the chief of police as to whether or not such license should be granted. In addition, the commission may request and consider such other recommendations and reports of other city officials as it may deem necessary. No license for a temporary dance permit shall be issued until it shall

be found that the place where such public dance will be held complies with and conforms to all ordinances, health and fire regulations of the city, that it is properly ventilated, and supplied with sufficient toilet conveniences and it is a safe and proper place for the purpose for which it is to be used. The public dance hall permit herein provided for shall cover the date or dates set forth in such permit. In addition to any restrictions contained in said permit, all of the relevant provisions of §§ 25-1201, 25-1205, 25-1206 and 25-1207 shall apply to such public dance hall permits.

Source: 1973 (1980), 4080 (2000), 4151 (2001).

25-1203. Public dance hall license--Term.--The license fee herein provided for shall be due on the first day of January in each year and shall cover the period until the following December 31.

Source: 1973 (1980), 4080 (2000).

25-1204. Public dance hall--Requirements and license application.--No license for a public dance hall shall be issued until it shall be found that such hall complies with, and conforms to all ordinances, health and fire regulations of the city, that it is properly ventilated, and supplied with sufficient toilet conveniences and is a safe and proper place for the purpose for which it is to be used. Any person desiring to obtain a license shall make and file an application for such license with the commission. Said application shall be made on a form approved by the commission and made available through the office of the city auditor. In addition to the information supplied on the application form, the commission, in its discretion, may require such other information as it deems necessary in determining whether a license should be issued to the applicant. The chief of police shall investigate the facts stated in the application filed with the commission and shall report the results of his investigation to the commission prior to the hearing on said application. Said investigation report shall include the character, reputation, fitness of the applicant to the hold the license, any other pertinent information and the recommendation of the chief of police as to whether or not such license should be granted. In addition, the commission may request and consider such other recommendations and reports of other city officials.

Source: 1973 (1980), 4080 (2000).

25-1205. Public dance hall--Revocation.--The license of any public dance hall may be forfeited or revoked by the city commission if it is made to appear, after hearing, that:

A. The holder of the license has violated any of the provisions of this article or any of the laws of this state resulting in a conviction of a Class A misdemeanor or greater offense provided, however, that violations of lesser offenses evidencing a pattern of conduct inamicable to operation of a public dance hall may also result in license forfeiture or revocation;

B. The holder of the license is not conducting the public dance in a manner conforming to law;

C. The business of the licensee, at the location licensed, is conducted in such a manner as to be in violation of the health and sanitary regulations of the city of Fargo;

D. The licensee conducts the business in a manner which results in, encourages or is conducive to the creation of disturbances of the peace, disorderly conduct or any other violations of federal, state and/or city laws; or

E. Intoxicating liquor is being knowingly sold, served, dispensed or consumed on the licensed premises.

The holder of a license shall be given notice of revocation of such license and shall be granted a hearing before the board of city commissioners. When a permit is once revoked, it cannot be reissued to the same licensee within six months from the date of cancellation thereof except by consent of four-fifths of the members of the board of city commissioners.

Source: 1973 (1980), 4080 (2000).

25-1206. Public dance hall--Closing time--Security and other requirements.--

A. All licensed premises shall be closed and locked at 3:00 a.m. with all patrons to be out of the dance hall by 3:00 a.m., subject to the provisions of subsection (B) hereinafter. No persons shall be permitted to remain on said premises thereafter except for the owner and his employees for normal cleaning and maintenance activities.

B. Any new patrons allowed admittance into the dance hall after 1:00 a.m., and before the closing time specified in subsection (A) above shall be at the discretion of the owner.

C. Security personnel shall be on the premises in such numbers as to insure the safety of patrons and to maintain order on the premises as follows:

99 or less - 2 security officers

100 to 200 - 3 security officers

201 to 300 - 4 security officers

301 to 400 - 5 security officers

401 to 500 - 6 security officers

501 and over - appropriate number of security officers as may be determined by the chief of police.

Source: 1973 (1980), 4080 (2000).

25-1207. Police and other regulations.--

A. All public dance halls shall be kept at all times in a clean, healthful and sanitary condition, and all stairways and other passages and all rooms connected with a dance hall shall be kept open and well lighted.

B. The chief of the fire department, the chief of police, or any police officer shall have the power and it shall be their duty to cause the place, hall or room where any dance is held or given to be vacated whenever any provision of any ordinance with regard to public dances is being violated. No smoking shall be allowed on the floor of such dance hall.

Source: 1973 (1980), 4080 (2000).

ARTICLE 25-13

MESSENGER SERVICE

Note: Article 25-13 of Chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2300, effective December 29, 1986.

Source: Revised Ordinances of 1952 (sections 25-25-1301 to 25-1307), 1468 (1973), repealed by Ord. 2300 (1986).

ARTICLE 25-14

USED CAR DEALERS

Note: Article 25-14 of Chapter 25 of the Fargo Municipal Code was repealed in its entirety by Ord. No. 2307 (1987).

Source: Revised Ordinances of 1952 (sections 25-1401 to 25-1404), 1472 (1973), repealed by Ord. 2307 (1987).

ARTICLE 25-15

ALCOHOLIC BEVERAGES

[NOTE: Article 25-15, Intoxicating Liquors, and article 25-16, Beer, Sale Of, of the Revised Ordinances of 1965 (sections 25-1501 to 25-1532 and 25-1601 to 25-1623) were repealed by Ordinance No. 1869 (1978), which enacted new article 25-15, Alcoholic Beverages (sections 25-1501 to 25-1515).]

Section

25-1501 Definitions.
25-1502 License required.
25-1503 License--Qualifications.
25-1504 License--Application.
25-1504.1 License renewal.
25-1504.2 Renewal of combined food/alcohol licenses.
25-1504.3 Mandatory meeting.
25-1505 Application--Investigation of.
25-1506 Licenses--Classifications.
25-1507 License--Fees.
25-1508 Issuance and transfer of licenses--Restrictions--Hearing required.
25-1509 Restrictions on sale, service or dispensing of alcoholic beverages.
25-1509.1 Restrictions on sale or consumption in a public place.
25-1509.2 Restrictions on obviously intoxicated or impaired persons.
25-1510 Live entertainment license.
25-1511 Licensed premises--Requirements for.
25-1512 Licenses--Termination, suspension, revocation, and sanctions.
25-1513 Revocation, suspension, sanctions or other penalties--Hearing Request.
25-1514 Creation of a Liquor Control Board.
25-1515 Number of Members--Term of Members--Appointment of Members--Filling Vacancies.

25-1516 Removal.
25-1517 Powers and Duties.
25-1518 Unlawful practices.
25-1519 Inspection of licensed premises.
25-1520 Penalty.

25-1501. Definitions.--In this article, unless the context or subject matter otherwise requires:

1. "Alcohol" shall mean neutral spirits distilled at or above 190 proof, whether or not such product is subsequently reduced, for nonindustrial use.

2. "Alcoholic beverages" shall mean any liquid suitable for drinking by human beings, which contains one-half of one percent or more of alcohol by volume. All alcoholic beverages shall be deemed intoxicating.

3. "Beer" shall mean any malt beverage containing more than one-half of one percent of alcohol by volume.

4. "Business complex" shall mean any shopping center, shopping mall or similar physical facility where two or more retail businesses are located and conducted, whether or not such businesses are separately owned and operated.

5. "Commission" shall mean the board of city commissioners of the city of Fargo, its governing body.

6. "Distilled spirits" means any alcoholic beverage that is not beer, wine, or sparkling wine.

7. "Distillery" shall mean a domestic operation wherein the owner/operator of the distillery shall produce distilled spirits within the state of North Dakota in accordance with the provisions of N.D.C.C. § 5-01-19.

8. "Entertainment" shall mean all forms and types of entertaining patrons of licensed premises, whether such entertainment is provided by means of live performances or audio and/or video presentations, whether remote or prerecorded; provided, however, that "entertainment" shall not be deemed to include the use of any regularly broadcast television or radio programs, or coin-operated music machine.

9. "Growler" shall mean a sealed container holding at least 12 ounces and not more than 2 liters of beer or wine that is filled and sealed on-site for the sole purpose of off-premises consumption. At the time of sale, the container shall be sealed with a paper or plastic adhesive band, strip or sleeve which is applied over the top of the twist-type closure, cork, stopper, or plug in such a manner that the seal must be broken in order to open the container. The adhesive band, strip or sleeve shall either bear the name and address of the licensee-seller or shall have the sales receipt attached to the container.

10. "Licensee" shall mean any person to whom a license has been issued under the provisions of this article.

11. "Licensed premises" shall mean the bar area, dining rooms, meeting rooms, outdoor dining areas as provided in Article 18-03 of the Fargo Municipal Code, and all other areas or spaces where alcoholic beverages are regularly or occasionally sold, served or dispensed. In the alternative, any person applying for a license under the provisions of this article may describe, depict or otherwise identify in his application for a license various areas or

spaces which shall constitute the licensed premises. The commission, in its discretion, may require any applicant to so describe, depict or otherwise identify the licensed premises as a condition for the issuance of a license under the provisions of this article.

12. "Location transfer" shall mean a change in location of the licensed premises.

13. "Lodge" or "club" shall mean any corporation or association organized for civic, fraternal, social or business purposes, or for the promotion of sports. Said lodge or club shall have at least 200 members at the time a license is applied for and shall have been in existence for at least 20 years prior to the time of application for the license; provided, that a local veteran's organization which has not existed for 20 years but is a subsidiary of and chartered by a national organization which has had a bona fide existence for more than 20 years shall be deemed to be a "lodge" or "club" for purposes of this article.

14. "Microbrew pub" means a brewer that brews 10,000 barrels or less per year and sells beer produced or manufactured on the premises for consumption on or off the premises, or serves beer produced or manufactured on the premises for purposes of sampling the beer.

15. "Off-sale" shall mean sale of alcoholic beverages in original packages solely for consumption off or away from the premises where sold. An off-sale license shall authorize the licensee to conduct such off-sale at the place designated in the license.

16. "On-sale" shall mean sale of alcoholic beverages for consumption only on the licensed premises. An on-sale license shall authorize the licensee to conduct such on-sales at the place designated in such license or as may be authorized by a Class E license issued pursuant to the provisions of this article.

17. "Ownership transfer" shall mean any assignment, sale, exchange or other conveyance of any license issued pursuant to the provisions of this article. A transfer shall be deemed to have occurred upon the assignment, sale, exchange or other conveyance of the ownership interest in a licensee sole proprietorship, general partnership, corporation, limited liability company, limited liability partnership or other form of business entity that is or has been issued the license whether such assignment, sale, exchange or other conveyance of 50% or more of the ownership interest occurred in one single transaction or whether such assignment, sale, exchange or other conveyance occurred in multiple transactions within the prior thirty-six (36) months resulting in a change of more than 50% of the ownership interest of such licensee business entity. Recognizing that the licensee may be a business entity in which the "owners" are, themselves, business entities and recognizing that the city has an interest in knowing who are the natural persons who own 5% or more ownership in a licensee and in knowing when an ownership interest of such natural persons has occurred, in addition to the foregoing said ownership transfer shall be deemed to occur whenever said change in ownership interest occurs by a direct change in ownership of the licensee business entity or by indirect change of ownership whenever there is a 50%, or more, change in ownership held by any single natural person.

18. "Package" and "original package" shall mean any container or receptacle holding alcoholic beverages when such container or receptacle is corked or sealed by the manufacturer thereof and when the cork or seal has not been removed or broken prior to the sale of such package to the purchaser thereof.

19. "Person" shall include, where the context of the provision allows, any natural person, association, partnership, corporation and any clerk, agent and abettor thereof.

20. "Public place" shall mean any building, property or other place that the general public can occupy as a matter of right or any building, property or place that is open to the

general public by implied or express invitation, either for business purposes or otherwise. "Public place" shall not include, however, that area set aside and specifically designated on the Fargodome parking lot by North Dakota State University and utilized for its sponsored tailgating activities.

21. "Recreational establishment or places of amusements" shall mean any establishment whose business building contains a square footage of at least Twelve Thousand (12,000) square feet where games of skill, such as billiards, volleyball, indoor golf, bowling or soccer (but not video or pinball) are usually played, which premises are duly licensed and meet building code requirements for said games of skill, and which has annual gross receipts at least Two Hundred Thousand Dollars ($200,000) of which no more than Fifty Percent (50%) may be derived from the sale of alcoholic beverages.

22. "Sale" shall mean all methods or modes of furnishing alcoholic beverages, with or without consideration, whether by selling, dispensing, exchanging, bartering or other similar means of transfer. Such term shall include all transactions, whether for cash, credit or other considerations and shall include, but not be limited to, transactions where the consideration for the alcoholic beverage is included or combined with another transaction or where the consideration is called a "donation", or used to purchase any ticket, token or other object redeemable for alcoholic beverages.

23. "Sparkling wine" shall mean wine made effervescent with carbon dioxide.

24. "Transfer" shall mean a change in location of the licensed premises; or any assignment, sale, exchange or other conveyance of any license issued pursuant to the provisions of this article.

25. "Wine" shall mean the alcoholic beverage obtained by fermentation of agricultural products containing natural or added sugar or such beverage fortified with brandy and containing not more than 24% alcohol by volume.

26. "Mandatory server training" shall mean server training that has been approved by the Fargo police department and/or its designee for any person responsible for, or participating in, any activity involved in the stream of service of alcoholic beverages, as defined in section 25-1501 (31). Mandatory server training applies to, but is not limited to, managers, servers, security, bartenders, and door attendants, or any employee in the capacity to determine compliance with applicable laws.

27. "Stadium" shall mean a fixed physical structure, which may be fully-enclosed or open, in which spectators of events watch sports, concerts or other similar entertainment activities, with permanent seating and which has controlled access to and from its grounds. A stadium shall include the seating arena, private suites, concession stands, concourse area, playing field, and other permanent or fixed structures and areas related to spectator activities.

28. "Winery" shall mean a domestic operation wherein the owner/operator of the winery shall produce wine within the state of North Dakota in accordance with the provisions of N.D.C.C. 5-01-17.

29. "Wine bar" shall mean an establishment serving primarily on-sale wine and sparkling wine, with incidental on-sale beer, non-alcoholic beverages and food sales, but does not include any sale of alcohol or off-sale wine, sparkling wine, or beer. Such establishment shall offer patrons wines by the glass, flight, bottle and taste, and will allow for presentation of beverages at the table, as well as at the bar. A "wine bar" shall also be focused on education of wines from around the world; may occasionally offer primarily acoustical live performances in the genre of jazz, blues, and classical music; and shall be a non-smoking.

30. "Seasonal license" shall mean a period of time shorter than a year and tied to a specific activity or purpose.

31. "Stream of Service" shall include, but not be limited to, selling, dispensing, serving, identification verification, admission and security at licensed liquor establishments, including restaurants.

Source: 1965 Rev. Ord. 25-1501, 1869 (1978), 1899 (1979), 2497 (1989), 2509 (1989), 2677 (1993), 2760 (1995), 2775 (1995), 3018 (1999), 4214 (2002), 4216 (2002), 4368 (2004), 4401 (2004), 4412 (2004), 4416 (2004), 4501 (2005), 4622 (2007), 4909 (2014), 4915 (2014), 4953 (2014), 5070 (2016), 5085 (2017), 5378 (2022), 5389 (2023), 5438 (2024).

25-1502. License required.--No person shall engage in the business of the sale at retail of alcoholic beverages without first obtaining a license pursuant to the provisions of this article and posting the same in a conspicuous place on the licensed premises.

Source: 1965 Rev. Ord. 25-1502, 1869 (1978).

25-1503. License--Qualifications.--No license shall be issued to any applicant except as follows:

A. If the applicant is an individual or general partnership, such individual or partners must be legal and bona fide residents of the city of Fargo and state of North Dakota and be at least 21 years of age.

B. If the applicant is a corporation, limited liability company, limited partnership, limited liability partnership or other form of business entity that provides limited liability to holders of ownership interest in the entity, the manager of the licensed premises or another full-time employee of the licensee who is at least 21 years of age must be designated in the license application as an agent of the corporation. The manager of the licensed premises shall reside within either Cass County, North Dakota, or Clay County, Minnesota. All officers, directors and shareholders holding more than 5% of the outstanding stock of said corporation shall be at least 21 years of age. All managers or officers, governors and members holding more than 5% of the outstanding member interests of said limited liability company shall be at least 21 years of age. All general managers and all limited partners holding or representing more than 5% of the ownership interest in any such limited partnership, limited liability partnership or other form of business entity providing limited liability to holders of ownership interest in the entity must be at least 21 years of age.

C. No license shall be issued to any person, general partnership, corporation, limited liability company or other form of business entity as the representative or agent of another, and the license may be issued only to the owner or owners of the business being conducted at the location sought to be licensed.

D. If the applicant is a lodge or club, said applicant shall be deemed qualified for a Class "A" license only and no other class license shall be issued to any lodge or club.

E. Mandatory server training (as defined by 25-1501(26)) shall be required of all liquor licensees. Mandatory server training shall be completed prior to participation in the stream of service of alcoholic beverages as defined in section 25-1501 (31). Persons successfully completing the approved class will receive a "server training certificate." The "server training certificate " must be renewed

every three (3) years on the anniversary date as shown on the said certificate. One month prior to license renewal date, the licensee shall provide the city with a roster of employees, and a copy of employees' server training certificate as required by 25-1501 (26) evidencing current training status. If the licensee is found to be not in compliance, license renewal for the upcoming year may be denied or delayed. Failure to comply with this section may result in administrative or other penalties.

Source: 1965 Rev. Ord. 25-1506, 1869 (1978), 1880 (1978), 1900 (1979), 2827 (1997), 4416 (2004), 4915 (2014), 5378 (2022), 5439 (2024).

25-1504. License--Application.--Any person desiring to obtain the issuance or transfer of a license authorizing the sale at retail of alcoholic beverages shall make and file an application for such license with the commission. Said application shall be made on a form approved by the commission and made available through the office of the city auditor.

In addition to the information supplied on the application form, the commission, in its discretion, may require such other information as it deems necessary in determining whether a license should be issued to the applicant.

Source: 1965 Rev. Ord. 25-1504, 1869 (1978), 2169 (1984), 2211 (1985), 2344 (1987), 2346 (1987), 2730 (1995), 2822 (1997), 4402 (2004), 4504 (2006).

25-1504.1. License renewal.--The holder of an existing license issued pursuant to the provisions of this article who desires to renew said license for another license year, shall be required to submit a renewal application on a form prescribed by the City Auditor, including a Consent to Background Investigation form for all License Holders and General Manager(s), and shall further be required to make annual payment as provided in § 25-1507(F). If said licensee is a form of business entity other than a sole proprietorship, the following information must be provided:

A. As to a licensee that is a corporation, the names and addresses of the resident manager, all corporate officers, and all shareholders holding more than 5% of the outstanding stock of the corporation.

B. As to a licensee that is a limited liability company, the names and addresses of the resident manager, all managers or officers and all governors of the limited liability company, and all members holding more than a 5% membership or ownership interest in the company.

C. As to a licensee that is a general partnership, the names and addresses of the general partners.

D. As to a licensee that is a limited partnership, a limited liability partnership or limited liability limited partnership, the names and addresses of the resident manager, all general partners and all limited partners holding more than a 5% ownership interest in the company.

E. As to a licensee that is any other form of business entity, the names and addresses of the resident manager, all officers and decision-makers who have authority to govern the business entity, and all owners holding more than a 5% ownership interest in the company. For purposes of this section, the requirement of providing ownership information for those with more than 5% ownership interest shall include ownership by any single natural person regardless of the form by which said natural person holds or owns said ownership interest.

The City Auditor may request any other information regarding the licensee as may be necessary or appropriate. All license transfers must be presented to the City Auditor at the time of transfer, and a Background Investigation shall be completed on all License Holders and General Manager(s). Any change in General Manager may be presented in advance of license renewal for approval as an amendment. Failure to secure approval of the License Holder and General Manager(s) may result in non-renewal of the license and suspension of operations.

Source: 4504 (2006), 4915 (2014), 5434 (2024).

25-1504.2. Renewal of combined food/alcohol licenses.--All holders of Class "F", Class "FA", Class "FA-RZ", Class "G", Class "H", and Class "I" licenses shall also be required to file with the city, with the request for renewal of the license, an opinion by a certified public accountant indicating that he or she has audited the books and records of the licensee and that the licensee's gross revenue from the sale of food is equal to or exceeds the gross revenue from the sale of alcoholic beverages for the most recent 12-month period. At the option of the licensee, in lieu of a certified public accountant's opinion, licensee may request from the State Tax Commissioner's Office and furnish to the city auditor's office a certified copy of licensee's sales tax returns for the most recent 12-month period prior to renewal.

Notwithstanding furnishing of such sales tax returns, the city may, in its discretion, require licensee to comply with the requirement that an opinion by a certified public accountant be furnished as aforesaid. Any costs incurred in connection with the requirements of this section shall be the sole responsibility of the licensee. The city may also, or any other time during the year, in its discretion, conduct an independent investigation of the sales ratio of food to alcoholic beverages, cost of goods sold or other such tests as deemed necessary and for such purpose, the licensee agrees to allow inspection of its business records. In the event that the results of an independent investigation by the city results in a determination that sale of food does not equal or exceed the sale of beverages, the licensee shall be required to pay all costs of such investigation.

As part of the licensee's obligation that the licensee derive more gross receipts from the sale of prepared meals than from the sale alcoholic beverages, the licensee shall retain and keep appropriate business records concerning purchase of food and alcoholic beverages and sales receipts for food and alcoholic beverages. Such business records shall be organized and maintained according to standard business practices and in such form as to be auditable for purposes of confirming that the licensee satisfies the sales ratio of food to alcoholic beverages. A licensee who fails to maintain the business records required by this section, or to otherwise make such records available to the City upon reasonable request to do so, is subject to the penalties listed in 25-1512(F).

Source: 4504 (2006), 5080 (2017).

25-1504.3. Reserved.--

Editor's note—Ord. No. 5387, § 1, adopted May 1, 2023, repealed § 25-1504.3, which pertained to mandatory meeting and derived from Ord. No. 4621, adopted 2007; and Ord. No. 5141, adopted 2018.

25-1504.4. Renewal of combined food/business proceeds/liquor licenses.--In addition to the requirements of Articles 25-1504, 25-1504.1, and 25-1504.2, Renewal of combined food/business proceeds/liquor licenses. - All holders of Class FA-ENTERTAINMENT li-

censes shall also be required to file with the City, with the request for renewal of the license, an opinion by certified public accountant indicating that he or she has audited the books and records of the licensee and that the licensee's gross revenue from the sale of food and the business income is equal to or exceeds the gross revenue from the sale of alcoholic beverages for the most recent 12 month period. At the option of the licensee, in lieu of a certified public accountant's opinion, licensee may request from the State Tax Commissioner's office and furnish to the City Auditor's office a certified copy of licensee's sales tax returns for the most recent 12 month period prior to renewal.

Notwithstanding furnishing of such sales tax returns, the City may, in its discretion, require licensee to comply with the requirement that an opinion by a certified public accountant be furnished as aforesaid. Any costs incurred in connection with the requirements of this section shall be the sole responsibility of the licensee. The City may also, or any other time during the year, in it discretion, conduct an independent investigation of the sales ration of food and business receipts to alcoholic beverages and for such purpose, the licensee agrees to allow inspection of its business records. In the event that the results of an independent investigation by the City results in a determination that the sale of food and business income does not equal or exceed the sale of alcoholic beverages, the licensee shall be required to pay all costs of such investigation.

As part of the licensee's obligation that the licensee derive more gross receipts from the sale of prepared meals, the sale of food and business receipts than from the sale of alcoholic beverages, the licensee shall retain and keep appropriate business records concerning purchase of food, business income and alcoholic beverages and sales receipts for the same. Such business records shall be organized and maintained according to standard business practices and in such form as to be auditable for purposes of confirming that the licensee satisfies the sales ratio of food and business income to alcoholic beverages. A licensee who fails to maintain the business records required by this section, or to otherwise make such records available to the City upon reasonable request to do so, is subject to the penalties listed in 25-1512(D).

Source: 4623 (2007), 5387 (2023).

25-1505. Application--Investigation of.--The chief of police shall investigate the facts stated in the application filed with the commission pursuant to the provisions of § 25-1504 of this article, and shall report the results of his investigation to the commission prior to the hearing on said application. Said investigation and report shall include the character, reputation, fitness of the applicant to hold a license, any other pertinent information and the recommendation of the chief of police as to whether or not such license should be granted. In addition, the commission may request and consider such other recommendations and reports of other city officials. Unless specifically requested by the city auditor's office or police department at the time of the filing of the application, an investigation and report is not required for a transfer involving only a change in location of the licensed premises or a transfer wherein the existing license is to be exchanged for a license of lower category (e.g. a more restrictive license such as an "F" license for a "G" license, etc.).

Source: 1965 Rev. Ord. 25-1505, 1869 (1978), 2086 (1983), 2344 (1987), 2822 (1997), 4291 (2002).

25-1506. Licenses--Classifications.--Licenses authorizing the sale at retail of alcoholic beverages within the city of Fargo shall be divided into the following classes:

A. Class AB. - A "Class AB" license shall authorize the licensee to sell "on-sale" and "off-sale."

B. Class ABH - A "Class ABH" license shall authorize the licensee to sell "on-sale" and "off-sale", subject to the following restrictions and conditions:

1. A "Class ABH" license may be issued only to persons engaging in the sale of alcoholic beverages in a hotel or motel having 100 or more guest rooms.

2. A "Class ABH" license shall authorize the licensee to sell "off-sale" only to guests or patrons of the hotel or motel in which the licensee conducts business.

3. A "Class ABH-RZ" license may be issued to persons engaging in the sale of alcoholic beverages under the following restrictions and conditions:

   a. In a hotel in the Renaissance Zone having a minimum of 15 guest rooms. For purposes of this license, a hotel is defined as a building where the owner maintains or provides all of the following: room keys, 24-hour uniformed on-staff front desk clerk/concierge services, security, room service, porter service, daily linens, towels and the like, on-staff maid service providing daily room cleaning, utilities and telephone service. A hotel shall further exhibit to the public physical factors befitting an establishment catering to transient guests. Such factors shall include, but not be limited to, appropriate architecture, décor and furnishings. It is the intention of the commission that the purpose of an "ABH-RZ" license is to allow the sale of alcoholic beverages as adjunct to the hotel operation and not that of operating a full-time liquor establishment. Additionally, a hotel shall not be primarily a residence hotel or corporate lodging facility.

   b. The hotel, as defined above, shall be an approved Renaissance Zone building project located within said Renaissance Zone.

   c. Authorization for off-sale of alcoholic beverages shall be restricted only to guests or patrons of the hotel in which the licensee conducts business and not to the general public or walk-in customers.

   d. A Class "ABH-RZ" license is only available in the Renaissance Zone as established by the city of Fargo. Transfer of a license issued hereunder shall be governed by all relevant terms of article 25-15, provided, however, that a Class "ABH-RZ" license cannot be transferred outside the said Renaissance Zone. Upon termination of the business, said license shall revert to the city.

4. A "Class ABH-limited" license may be issued to persons engaging in the sale of beer and wine or hosting "manager's specials," solely for guests or patrons of extended stay and limited service hotels or motels, subject to the following restrictions and conditions:

   a. A "Class ABH-limited" license may be issued only to persons engaging in the sale or dispensing of alcoholic beverages in a hotel or motel having at least 50 guest rooms.

b. A "Class ABH-limited" license shall authorize the licensee to sell "on-sale" beer and wine to guests or patrons of the hotel or motel in which the licensee conducts business, subject to the following restrictions and conditions:

1. The beer and wine shall only be sold in single-serve containers;
2. There shall be no in-room delivery;
3. The sale of beer and wine shall only be allowed from 11:00 a.m. until midnight;
4. The beer and wine must be held inside a locked display case or cooler located behind the front desk or in a sundry shop visible to the front desk staff at all times;
5. The display case or cooler may only be opened by a licensed server for authorized sales;
6. There shall be no beer or wine displays outside the immediate sale area; and
7. Signs prohibiting minors from accessing the beer or wine shall be prominently displayed on the locked display case or cooler.

c. A"Class ABH-limited" license shall authorize the licensee to dispense alcoholic beverages to guests or patrons for the purpose of hosting "manager's specials" subject to the following restrictions and conditions:

1. Service of complimentary alcoholic beverages may be provided only to guests or patrons of the hotel or motel and shall only be allowed from 4:00 pm until 8:00 pm;
2. The complimentary alcoholic beverages shall be opened, mixed or poured by a server-trained member of licensee's staff and shall be served only in the designated area;
3. The complimentary alcoholic beverages shall be consumed only in designated public areas or individual guest rooms; and
4. There shall be no in-room service of complimentary alcoholic beverages.

d. The sole purpose of the "ABH-limited" license is to allow extended stay and limited service hotels to sell single servings of beer and wine to its patrons and guests and allow the hotel or motel to host "manager's specials." The license does not authorize the licensee to establish a bar, to offer in-room delivery of alcohol nor does it allow the licensee to sell alcohol to persons who are not guests or patrons of the hotel or motel. Transfer of a license issued hereunder shall be governed by all relevant terms of article 25-15. Upon termination of the business, said license shall revert to the city.

C. Class A. - A "Class A" license shall authorize the licensee to sell "on-sale" only.

D. Class B. - A "Class B" license shall authorize the licensee to sell "off-sale" only. No Class "B" license shall be issued to any applicant whose primary business is not, or upon the issuance of the license applied for, shall not be the sale of alcoholic beverages on an off-sale basis.

E. Class C. - A "Class C" license shall authorize the licensee to sell beer "on-sale" only.

F. Class D. - A "Class D" license shall authorize the licensee to sell beer "off-sale" only.

G. Class DD. - A Class "DD" license shall authorize the distilling of spirits and the limited sale thereof in accordance with the requirements and limitations set forth in N.D.C.C. §5-01-19, the provisions of which are incorporated herein by reference. In addition, a domestic distiller may obtain a domestic distillery license and a retailer license allowing the on-premises sale of alcoholic beverages at a restaurant owned by the licensee and located on property contiguous to the domestic distillery. A domestic distiller also may own or operate a winery. A domestic distillery is also subject to the following restrictions and conditions:

1. A Class "DD" license shall only be issued to a domestic distillery owner or operator who has obtained a license from the North Dakota State Tax Commissioner allowing the production of distilled spirits.

2. To the extent the following activities or events are authorized under N.D.C.C. §5-01-19 subd. 2, the same shall also be authorized within the city:

   a. A licensee may dispense free samples of the spirits offered for sale.

   b. Special events for which a permit has been obtained from the state tax commissioner allowing the domestic distillery to give free samples of its product and to sell its product by the glass or enclosed containers at off-premises events are, as a result of such permit, authorized within the city.

   c. Participation in pride of Dakota events for which a special events permit has been obtained from the tax commissioner is, as a result of such permit, authorized within the city.

3. Restrictions on sale, service or dispensing of alcoholic beverages contained in section 25-1509 shall be applicable to a domestic distillery.

4. A Class "DD" license will authorize the licensee to sell glassware, wine literature and accessories, cheese, cheese spreads, and other snack food items.

5. A Class "DD" license shall be essentially non-transferable. In the event the holder of a Class "DD" license shall voluntarily go out of business, the license shall revert to the city. It is the intent of this provisions that the city of Fargo desires to control the issuance of additional liquor licenses and restrict any artificial appreciation in value of said licenses. Additional terms, conditions and restriction on transferability shall be as set forth in section 25-1508.

H. Class E. - A "Class E" license, in the nature of a special permit, shall authorize the holder of an existing "on-sale" license to engage in the sale of alcoholic beverages (on-sale only) on such licensed premises as may be designated in the "Class E" license, subject to the following restrictions and conditions:

1. A Class "E" license may be issued only to persons currently holding a Class "AB", Class "ABH", "ABH-RZ", Class "A", Class "C", Class "F", Class "FA", Class FA-GOLF, Class "G", Class "H", Class "I", Class "N", Class "W", Class "FA-Entertainment", "RZ-V", VWB or Class "Z" license.
2. A Class "E" license may be issued for a period of time not to exceed 14 days, and may include Sundays.
3. Except as hereinabove provided, a Class "E" license shall not include days or times when the sale of alcoholic beverages is prohibited by state law and/or city ordinances.
4. Persons under the age of twenty-one (21) years of age may be allowed to remain in the area of the event, or a portion thereof, where beer, wine, or sparkling wine may be sold pursuant to the permit subject to the following conditions:
   a. The area where persons under twenty-one (21) years of age must remain must be specifically set forth in the permit;
   b. Only employees of the qualified alcoholic beverage licensee who are at least twenty-one (21) years of age may deliver and sell the beer, wine or sparkling wine;
   c. Subject to § 25-1509, the area where persons under twenty-one (21) years of age may remain may not be the qualified alcoholic beverage licensee's fixed or permanent licensed premises as shown on the state and local governing body's alcoholic beverage license issued pursuant to § 5-02-01, N.D.C.C., and comparable city ordinance;
   d. No person under twenty-one (21) years of age within the area described in the permit may consume, possess or receive alcoholic beverages.
5. A Class "E", in the nature of a special serving permit, shall authorize the holder of an existing "off-sale" license to hold wine and sparkling wine demonstrations and tastings on such premises as may be designated in the Class "E" license subject to the following restrictions and conditions:
   a. A Class "E" license issued under this section may be issued only to persons currently holding a Class "B" license.
   b. A Class "E" license issued under this section may be issued for a period of time not to exceed 14 days, and may include Sundays.
   c. Except as otherwise provided, a Class "E" license shall not include days or times when sale of alcoholic beverages is prohibited by state law and/or city ordinances.
   d. Only wine or sparkling wine may be served under the Class "E" special serving permit.

e. There shall be no charge of any kind made by the Class "B" license holder.

f. The Class "E" special serving permit issued hereunder shall be only for events held by governmental, fraternal, or other regularly organized non-profit groups or societies.

I. Class F. - A "Class F" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:

1. A Class "F" licensee may sell alcoholic beverages in a restaurant which is separated from the room in which alcoholic beverages are opened or mixed and which holds a restaurant license or permit pursuant to the provisions of article 13-04 of the Fargo Municipal Code, and which derives 50% or more of its annual gross receipts from the sale of prepared meals and not alcoholic beverages. It is specifically provided, however, that wine may be "presented" to the patron of a holder of a Class "F" license at the patron's table. "Presentation" or "presented" shall mean the ordering of a bottle of wine by the patron for consumption in the restaurant, having the server open the bottle of wine, offering the cork to the patron, pouring a small portion of wine into a glass for the patron's approval, and after approval, pouring wine into the patron's glass. After the presentation, further service of the wine may take place at the patron's table and the wine need not be immediately returned to the room in which alcoholic beverages are opened or mixed.

2. A Class "F" license shall authorize the licensee to sell "on-sale" only and no licensee hereunder may conduct any "off-sale" liquor sales.

3. Alcoholic beverages shall be consumed only at tables or booths. No alcoholic beverages shall be consumed at a counter or bar.

4. No dancing will be permitted in an establishment holding a license hereunder without the approval of the commission. Such approval shall be indicated on the Class "F" license and may be revoked at any time at the discretion of the commission, provided, however, that no dancing will be allowed when the licensed premises are closed for alcoholic beverage sale, service or consumption pursuant to § 25-1509 of the Fargo Municipal Code.

5. The minimum seating capacity required on the premises for a Class "F" license is 40 seats.

6. A restaurant under the provisions of this title shall provide adequate off-street parking within the discretion of and subject to the approval of the commission. Membership in the Fargo Park'N Shop program may be considered as compliance with this provision.

7. The physical layout of any establishment seeking a license hereunder shall be subject to the approval of the commission.

8. A restaurant shall mean an establishment providing multi-course meals of steak, fish, seafood and other similarly menued main courses, as well as hors d'oeuvres and desserts. Main course menu items shall be fully prepared and cooked on the premises and shall not be primarily pre-packaged, pre-processed, or pre-prepared food products intended for

fast or convenient service. The hours within which sales of alcoholic beverages may be made shall coincide with the hours permitted by the state of North Dakota for the sale of alcoholic beverages and shall also be additionally limited as set forth herein. When the kitchen is not in full operation and a full menu service is not being offered to patrons, the sale and consumption of alcoholic beverages shall be discontinued within one hour after the cessation of full kitchen operation and the offering of a full menu service. It is the intention of this restriction that the purpose of an "F" license is to allow the sale of alcoholic beverages as an adjunct to the restaurant operation and not that of operating a full-time liquor establishment. It is specifically provided, however, that a nonconforming Class "F" license existing at the time of adoption of City Ordinance Number 4230 on March 18, 2002, may be continued under the terms and limitations contained hereafter. The nonconformity shall extend only to the requirement that the restaurant provide multi-course meals of steak, fish, seafood and other similarly menued main courses which must be fully prepared and cooked on the premises and shall not be primarily pre-packaged, pre-processed, or pre-prepared food products intended for faster convenience service. Any other type of food service as a restaurant that was allowable at the time of the adoption of the above-referenced ordinance amendment may be continued, except that if it is voluntarily discontinued for more than 30 days, it shall then be deemed abandoned and any further use must be in conformity with all of the requirements of this subdivision. All of the other provisions of this subdivision shall apply to any establishment which is deemed nonconforming due to the type of food service including, but not limited to, the hours of sale, full operation of kitchen facilities and the like. It is the intention of this revision that a Class "F" licensee which was in compliance with the type of food service requirements prior to adoption of Ordinance 4230 shall be deemed in compliance with the subsequent food service requirements of this subdivision provided that the licensee has held a Class "F" at all times and has been in business continually since that time. The provisions of this subdivision adding a clause for nonconformity shall not apply to a Class "F" licensee that subsequently ceases operation of the business for which the license is issued or transfers the license.

9. The Class "F" license shall be governed by all the provisions of this article applicable to Class "A" licensees and in addition, said licensee shall hold a restaurant license or permit pursuant to article 13-04 of the Fargo Municipal Code relating to restaurants.

10. As part of the licensee's obligation that the licensee derive fifty (50%) or more of its annual gross receipts from the sale of alcohol of prepared meals than from the sale alcoholic beverages, as discussed in section 25-1504.2, the licensee shall retain and keep appropriate business records concerning purchase of food and alcoholic beverages and sales receipts for food and alcoholic beverages. Such business records shall be orga-

nized and maintained according to standard business practices and in such form as to be auditable for purposes of confirming that the licensee satisfies the sales ratio of food to alcoholic beverages. A licensee who fails to maintain the business records required by this section, or to otherwise make such records available to the City upon reasonable request to do so, is subject to the penalties listed in 25-1512(F).

J. Class FA.--A Class "FA" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:

1. A Class "FA" licensee may sell alcoholic beverages in a restaurant which holds a restaurant license or permit pursuant to the provisions of article 13-04 of the Fargo Municipal Code and which derives 50% or more of its annual gross receipts from the sale of prepared meals and not alcoholic beverages. Meals must be prepared by the licensee or its employees on the licensed premises from ingredients purchased by the licensee. Food not prepared by the licensee that is sold on the licensed premises shall not be included in gross receipts derived from food sales.

2. A Class "FA" license shall authorize the licensee to sell "on-sale" only and no licensee hereunder may conduct any "off-sale" liquor sales.

3. A restaurant under the provisions of this title shall provide adequate off-street parking within the discretion of and subject to the approval of the commission. Membership in the Fargo Park'N Shop program may be considered as compliance with this provision.

4. A restaurant shall mean an establishment providing multi-course meals of steak, fish, seafood and other similarly menued main courses, as well as hors d'oeuvres and desserts. Main course menu items shall be fully prepared and cooked on the premises and shall not be primarily pre-packaged, pre-processed, or pre-prepared food products intended for fast or convenient service. The hours within which sales of alcoholic beverages may be made shall coincide with the hours permitted by the state of North Dakota for the sale of alcoholic beverages and shall also be additionally limited as set forth herein. When the kitchen is not in full operation and a full menu service is not being offered to patrons, the sale and consumption of alcoholic beverages shall be discontinued within one hour after the cessation of full kitchen operation and the offering of a full menu service. It is the intention of this restriction that the purpose of an "FA" license is to allow the sale of alcoholic beverages as an adjunct to the restaurant operation and not that of operating a full-time liquor establishment. A recipient of an "FA" license shall provide a full and complete kitchen adequate for the preparation of food as required by this ordinance. Such kitchen shall be subject to approval by the commission.

5. In addition to the foregoing, the Class "FA" license shall be governed by all the provisions of this article applicable to Class "A" licensees and in addition, said licensee shall hold a restaurant license or permit pursuant to article 13-04 of the Fargo Municipal Code relating to restaurants.

6. As part of the licensee's obligation that the licensee derive fifty (50%) or more of its annual gross receipts from the sale of prepared meals than from the sale of alcoholic beverages, as discussed in section 25-1504.2, the licensee shall retain and keep appropriate business records concerning purchase of food and alcoholic beverages and sales receipts for food and alcoholic beverages. Such business records shall be organized and maintained according to standard business practices and in such form as to be auditable for purposes of confirming that the licensee satisfies the sales ratio of food to alcoholic beverages. A licensee who fails to maintain the business records required by this section, or to otherwise make such records available to the City upon reasonable request to do so, is subject to the penalties listed in 25-1512(F).

K. Class FA-RZ -- A Class "FA-RZ" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:

1. A Class "FA-RZ" licensee may sell alcoholic beverages in a restaurant which holds a restaurant license or permit pursuant to the provisions of Article 13-04 of the Fargo Municipal Code and which derives 50% or more of its annual gross receipts from the sale of prepared meals and not alcoholic beverages. Further, such restaurant must be located in the Renaissance Zone as established by the city of Fargo.
2. A Class "FA-RZ" license shall authorize the licensee to sell "on-sale" only and no licensee hereunder may conduct any "off-sale" liquor sales.
3. A restaurant under the provisions of this title shall provide adequate off-street parking within the discretion of and subject to the approval of the commission. Membership in the Fargo Park'N Shop program may be considered as compliance with this provision.
4. There shall be no charitable gaming or gaming of any kind.
5. A "restaurant" shall mean an establishment providing multi-course meals of steak, fish, seafood and other similarly menued main courses, as well as hors d'oeuvres and desserts. Main course menu items shall be fully prepared and cooked on the premises and shall not be primarily pre-packaged, pre-processed, or pre-prepared food products intended for fast or convenient service. The hours within which sales of alcoholic beverages may be made shall coincide with the hours permitted by the state of North Dakota for the sale of alcoholic beverages and shall also be additionally limited as set forth herein. When the kitchen is not in full operation and a full menu service is not being offered to patrons, the sale and consumption of alcoholic beverages shall be discontinued within one hour after the cessation of full kitchen operation and the offering of a full menu service. It is the intention of this restriction that the purpose of an "FA-RZ" license is to allow the sale of alcoholic beverages as an adjunct to the restaurant operation and not that of operating a full-time liquor establishment. A recipient of an "FA-RZ" license shall provide a full and complete kitchen adequate for the preparation of food as required by this ordinance. Such kitchen shall be subject to approval by the commission.

6. A recipient of a license hereunder shall be allowed to serve alcoholic beverages only in areas which are specifically identified as the licensee's licensed premises. Further, no Class "E" license shall be issued to such recipient.
7. A Class "FA-RZ" license is only available in the Renaissance Zone as established by the city of Fargo. Transfer of a license issued hereunder shall be governed by all relevant terms of article 25-15, provided, however, that a Class "FA-RZ" license cannot be transferred outside the said Renaissance Zone. Upon termination of the business, said license shall revert to the city. A Class "FA-RZ" license cannot be transferred outside the said Renaissance Zone.
8. In addition to the foregoing, the Class "FA-RZ" license shall be governed by all the provisions of this article applicable to Class "A" licensees and in addition, said licensee shall hold a restaurant license or permit pursuant to article 13-04 of the Fargo Municipal Code relating to restaurants.
9. As part of the licensee's obligation that the licensee derive fifty (50%) or more of its annual gross receipts from the sale of prepared meals than from the sale of alcoholic beverages, as discussed in section 25-1504.2, the licensee shall retain and keep appropriate business records concerning purchase of food and alcoholic beverages and sales receipts for food and alcoholic beverages. Such business records shall be organized and maintained according to standard business practices and in such form as to be auditable for purposes of confirming that the licensee satisfies the sales ratio of food to alcoholic beverages. A licensee who fails to maintain the business records required by this section, or to otherwise make such records available to the City upon reasonable request to do so, is subject to the penalties listed in 25-1512(F).
10. No additional FA-RZ licenses shall be available as of the effective date of this ordinance.

L. Class FA-GOLF. A Class "FA-GOLF" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:
1. A Class "FA-GOLF" licensee may sell alcoholic beverages as the food and beverage concessionaire at a golf course which also holds a restaurant license or permit pursuant to the provisions of article 13-04 of the Fargo Municipal Code and which derives a percentage (hereinafter stated) of its gross receipts from the sale of prepared meals and not alcoholic beverages. A recipient of "FA-GOLF" license must derive at least 25% of its gross receipts from the sale of prepared meals and food products and not alcoholic beverages during the months when full golf course operations are open. During the remaining months of the year, said recipient must derive 50% or more of its gross receipts from the sale of prepared meals and not alcoholic beverages. It is the intention of this restriction that the purpose of a "FA-GOLF" license is to allow the sale of alcoholic beverages as an adjunct to the operation of the golf course and restaurant and not that of operating a full-time liquor establishment. Further, such licensee must be located at and serve a golf course of at least nine (9) or more holes. Said golf course must be USGA approved.

2. The Class "FA-GOLF" license shall authorize licensee to sell "on-sale" only and no licensee hereunder may conduct any "off-sale" liquor sales.
3. A licensee hereunder, which must also operate a restaurant under the provisions of this title, shall provide adequate off-street parking within the discretion of and subject to the approval of the commission.
4. A recipient of a license hereunder shall not be authorized to receive or be issued a live entertainment license as provided in section 25-1510.
5. A "restaurant" shall mean an establishment providing multi-course meals of steak, fish, seafood and other similarly menued main courses, as well as hors d'oeuvres and desserts. Main course menu items shall be fully prepared and cooked on the premises and shall not be primarily pre-packaged, pre-processed, or pre-prepared food products intended for fast or convenient service. The hours within which sales of alcoholic beverages may be made shall coincide with the hours permitted by the state of North Dakota for the sale of alcoholic beverages and shall also be additionally limited as set forth herein. When the kitchen is not in full operation and a full menu service is not being offered to patrons, the sale and consumption of alcoholic beverages shall be discontinued within one hour after the cessation of full kitchen operation and the offering of a full menu service. It is the intention of this restriction that the purpose of an "FA-GOLF" license is to allow the sale of alcoholic beverages as an adjunct to the operation of the golf course and restaurant and not that of operating a full-time liquor establishment. A recipient of an "FA-GOLF" license shall provide a full and complete kitchen adequate for the preparation of food as required by this ordinance. Such kitchen shall be subject to approval by the commission.
6. A Class "FA-GOLF" license is only available to the food and beverage concessionaire of a golf course as defined hereinbefore. Notwithstanding the closing time as allowed by state law and city ordinance, a licensee hereunder must close at 1:00 o'clock a.m. The license shall be site specific and shall not be transferred in any manner provided, however, the license may be transferred to a successor food and beverage concessionaire of a golf course. Upon cessation or termination of the business, said license shall revert to the city.
7. In addition to the foregoing restrictions and conditions, the Class "FA-GOLF" license shall be governed by all the provisions of this article applicable to Class "A" licenses and shall in addition, said licensee shall hold a restaurant license or permit pursuant to article 13-04 of the Fargo Municipal Code relating to restaurants.

M. Class FA-ENTERTAINMENT - A "Class FA-ENTERTAINMENT" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:

1. A Class FA-ENTERTAINMENT may sell alcoholic beverages in a place of amusement or recreational establishment as defined hereinbefore provided the licensee also holds a restaurant license or permit pursuant to the provisions of Article 13-04 of the Fargo Municipal Code. A

recipient of a "FA-ENTERTAINMENT" must derive at least 50% of its gross receipts from the sale of prepared meals and food products or from goods related to the business of the place of amusement and not from the sale of alcoholic beverages. All sales must occur at the place of business of the licensee. It is the intention of this restriction that the purpose of a FA-ENTERTAINMENT license is to allow the sale of alcoholic beverages as an adjunct to the operation of the place of amusement and not that of operating a full time liquor establishment. By way of illustration, such licensee operating a billiard establishment must have at least 50% combined prepared meals and food products, rental and/or sales of pool tables, pool cues and other accessories in order to be in compliance with said percentage requirement.

2. A Class FA-ENTERTAINMENT shall authorize licensee to sell "on-sale" only and no licensee hereunder may conduct any "off-sale" liquor sales.

3. A licensee hereunder, which must also operate a restaurant pursuant to the provisions of City Ordinance, shall provide adequate off-street parking within the discretion of and subject to the approval of the Commission as well as all other requirements of the Land Development Code.

4. A recipient of a license hereunder shall be allowed to serve alcoholic beverages only in areas which are specifically identified as the licensee's licensed premises and as permitted by the State of North Dakota Liquor License.

5. No person, partnership or other form of business entity holding an "A:, "AB", "ABH", or "ABH-RZ" license can hold a license issued hereunder.

6. In addition to the foregoing restrictions and conditions, the Class "FA-ENTERTAINMENT" license shall be governed by all of the provisions of this Article applicable to Class "A" licenses and shall in addition, require the licensee to hold a restaurant permit pursuant to Article 13-04 of the Fargo Municipal Code relating to restaurants.

N. Class G.--A Class "G" license shall authorize the licensee to sell wine and sparkling wine "on-sale" only, subject to the following restrictions and conditions:

1. A Class "G" licensee may sell wine and sparkling wine in a restaurant which is separated from the room in which said wine and sparkling wine are opened or dispensed and which holds a restaurant license or permit pursuant to the provisions of article 13-04 of the Fargo Municipal Code and which derives 50% or more of its annual gross receipts from the sale of prepared meals and not wine and sparkling wine. It is specifically provided, however, that wine may be "presented" to the patron of a holder of a Class "G" license at the patron's table. "Presentation" or "presented" shall mean the ordering of a bottle of wine by the patron for consumption in the restaurant, having the server open the bottle of wine, offering the cork to the patron, pouring a small portion of wine into a glass for the patron's approval, and after approval, pouring wine into the

patron's glass. After the presentation, further service of the wine may take place at the patron's table and the wine need not be immediately returned to the room in which alcoholic beverages are opened or mixed.

2. A Class "G" license shall authorize the licensee to sell wine and sparkling wine "on-sale" only and no licensee hereunder may conduct any "off-sale" wine and sparkling wine sales.
3. Wine and sparkling wine shall be consumed only at tables or booths. No wine and sparkling wine shall be consumed at a counter or bar.
4. A restaurant under the provisions of this title shall provide adequate off-street parking within the discretion of and subject to the approval of the commission. Membership in the Fargo Park'N Shop program may be considered as compliance with this provision.
5. The physical layout of any establishment seeking a license hereunder shall be subject to the approval of the commission.

6. The Class "G" license shall be governed by all the applicable provisions of article 13-04 of the Fargo Municipal Code relating to restaurants and the licensee shall hold a restaurant license from the city of Fargo.

7. As part of the licensee's obligation that the licensee derive fifty (50%) or more of its annual gross receipts from the sale of prepared meals than from the sale of wine and sparkling wine, as discussed in section 25-1504.2, the licensee shall retain and keep appropriate business records concerning purchase of food and wine/sparkling wine and sales receipts for food and wine/sparkling wine beverages. Such business records shall be organized and maintained according to standard business practices and in such form as to be auditable for purposes of confirming that the licensee satisfies the sales ratio of food to alcoholic beverages. A licensee who fails to maintain the business records required by this section, or to otherwise make such records available to the City upon reasonable request to do so, is subject to the penalties listed in 25-1512(F).

O. Class H.--A Class "H" license shall authorize the licensee to sell beer "on-sale" only, subject to the following restrictions and conditions:

1. A Class "H" licensee may sell beer in a restaurant which is separated from the room in which said beer is opened or dispensed and which holds a restaurant license or permit pursuant to the provisions of article 13-04 of the Fargo Municipal Code and which derives 50% or more of its annual gross receipts from the sale of prepared meals and not beer.

2. A Class "H" license shall authorize the licensee to sell beer "on-sale" only and no licensee hereunder may conduct any "off-sale" beer sales.

3. Beer shall be consumed only at tables or booths. No beer shall be consumed at a counter or bar.

4. A restaurant under the provisions of this title shall provide adequate off-street parking within the discretion of and subject to the approval of the commission. Membership in the Fargo Park'N Shop program may be considered as compliance with this provision.

5. The physical layout of any establishment seeking a license hereunder shall be subject to the approval of the commission.

6. The Class "H" license shall be governed by all the applicable provisions of article 13-04 of the Fargo Municipal Code relating to restaurants and the licensee shall hold a restaurant license or permit from the city of Fargo.

7. As part of the licensee's obligation that the licensee derive fifty (50%) or more of its annual gross receipts from the sale of prepared meals than from the sale of beer, as discussed in section 25-1504.2, the licensee shall retain and keep appropriate business records concerning purchase of food and beer and sales receipts for food and beer. Such business records shall be organized and maintained according to standard business practices and in such form as to be auditable for purposes of confirming that the licensee satisfies the sales ratio of food to alcoholic beverages. A licensee who fails to maintain the business records required by this

section, or to otherwise make such records available to the City upon reasonable request to do so, is subject to the penalties listed in 25-1512(F).

P. Class I.--A Class "I" license shall authorize the licensee to sell beer, wine and sparkling wine "on-sale" only, subject to the following restrictions and conditions:

1. A Class "I" licensee may sell beer, wine and sparkling wine in a restaurant holding a restaurant license or permit pursuant to the provisions of article 13-04 of the Fargo Municipal Code and which derives 65% or more of its annual gross receipts from the sale of prepared meals and not alcoholic beverages.
2. A Class "I" license shall authorize the licensee to sell beer, wine and sparkling wine "on-sale" only and no licensee hereunder may conduct any "off-sale" beer, wine or sparkling wine sales.
3. A restaurant under the provisions of this title shall provide adequate off-street parking within the discretion of and subject to the approval of the commission. Membership in the Fargo Park'N Shop program may be considered as compliance with this provision.
4. The physical layout of any establishment seeking a license hereunder shall be subject to the approval of the commission.
5. The Class "I" license shall be governed by all the applicable provisions of article 13-04 of the Fargo Municipal Code relating to restaurants and the licensee shall hold a restaurant license or permit from the city of Fargo.
6. As part of the licensee's obligation that the licensee derive sixty-five (65%) or more of its annual gross receipts from the sale of prepared meals than from the sale of alcoholic beverages, as discussed in section 25-1504.2, the licensee shall retain and keep appropriate business records concerning purchase of food and alcoholic beverages and sales receipts for food and alcoholic beverages. Such business records shall be organized and maintained according to standard business practices and in such form as to be auditable for purposes of confirming that the licensee satisfies the sales ratio of food to alcoholic beverages. A licensee who fails to maintain the business records required by this section, or to otherwise make such records available to the City upon reasonable request to do so, is subject to the penalties listed in 25-1512(F).
7. An "I" license shall be essentially non-transferable. In the event, the holder of a Class "I" license shall voluntarily go out of business, the license shall revert to the city. It is the intent of this provision that the city of Fargo desires to control the issuance of additional liquor licenses and restrict any artificial appreciation in value of said licenses. Additional terms, conditions and restrictions on transferability shall be as set forth in section 25-1508.

Q. Class I-ENTERTAINMENT. A "Class I-ENTERTAINMENT" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:

1. A Class I-ENTERTAINMENT may sell beer, wine and sparkling wine alcoholic beverages in a recreational establishment or place of amuse-

ment as defined hereinbefore provided the licensee also holds a restaurant license or permit pursuant to the provisions of Article 13-04 of the Fargo Municipal Code. The recipient of a "I-ENTERTAINMENT" must derive at least 65% of its gross receipts from the sale of prepared meals and food products or from goods related to the business of the place of amusement and not from the sale of alcoholic beverages. All sales must occur at the place of business of the licensee. By way of illustration, such licensee operating an entertainment venue that consists of fees to participate and/or retail sales must have at least 65% combined prepared meals and food products, rental fees, participation fees and/or retail sales, and other accessories in order to be in compliance with said percentage requirement.

2. A Class I-ENTERTAINMENT shall authorize licensee to sell "on-sale" only and no licensee hereunder may conduct any "off-sale" liquor sales.
3. A licensee hereunder, which must also operate a restaurant pursuant to the provisions of City Ordinance, shall provide adequate off-street parking within the discretion of and subject to the approval of the Commission as well as all other requirements of the Land Development Code.
4. A recipient of a license hereunder shall not be entitled or authorized to receive or be issued a live entertainment license as provided in Section 25-1510. Further, there shall be no charitable gaming of any kind.
5. A recipient of a license hereunder shall be allowed to serve alcoholic beverages only in areas which are specifically identified as the licensee's licensed premises and as permitted by the licensee's State of North Dakota liquor license.
6. A Class "I-ENTERTAINMENT" license shall not be entitled to receive any Class "E" license.
7. No person, partnership or other form of business entity holding an "A", "AB", "ABH", or "ABH-RZ" license can hold a license issued hereunder.
8. In addition to the foregoing restrictions and conditions, the Class "I-ENTERTAINMENT" license shall be governed by all of the provisions of this Article applicable to Class "A" licenses and shall in addition, require the licensee to hold a restaurant permit pursuant to Article 13-04 of the Fargo Municipal Code relating to restaurants.
9. A "Class I-ENTERTAINMENT" license shall be essentially non-transferable. In the event, the holder of a Class "I-ENTERTAINMENT" license shall voluntarily go out of business, the license shall revert to the city. It is the intent of this provision that the city of Fargo desires to control the issuance of additional liquor licenses and restrict any artificial appreciation in value of said licenses. Additional terms, conditions and restrictions on transferability shall be as set forth in section 25-1508.

R. Class J.--A Class "J" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:

1. A Class "J" license shall be issued only to a non-profit organization operating a club or establishment located on property which is owned by or leased to the state or federal government for military purposes.

2. A Class "J" license shall authorize the licensee to sell "on-sale" only and no licensee hereunder may conduct any "off-sale" liquor sales.

3. A Class "J" licensee shall be subject to all laws and ordinances otherwise applicable to licensed liquor dealers.

S. Class L. -- A Class "L" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:

1. A Class "L" licensee may sell alcoholic beverages on an excursion boat operating upon the Red River of the North.

2. The boat and the licensee shall be in compliance with any and all other licenses and restrictions that may be imposed and required by any other regulatory or governing body.

3. The licensee shall be regularly engaged, on an annual or seasonal basis, in the business of offering tours and excursions by boat on the Red River of the North.

4. The boat shall moor, dock and board passengers at a location within the corporate limits of the city of Fargo.

5. The boat shall have a minimum certified seating capacity of at least 100 persons.

6. Sale of alcoholic beverages shall be limited to passengers on the boat and such passengers may not be permitted to remove alcoholic beverages from the boat.

7. Sale or dispensing of alcoholic beverages shall be allowed only when the boat is engaged in a tour or excursion or when the vessel is moored to a dock within the jurisdiction and limits of the city of Fargo; provided, that alcoholic beverages shall not be sold or served anytime while the boat is drydocked, removed from the waterways of the Red River of the North, or otherwise rendered incapable of engaging in the business of offering tours and excursions by boat on the Red River of the North.

8. The boat and its operations shall be in compliance with all applicable laws and regulations concerning health, fire and safety.

9. The licensee shall regularly sell meals and provide food service on the boat, in addition to the sale of alcoholic beverages.

10. Persons under the age of 21 years of age may be permitted on the boat in accordance with § 5-02-06 of the North Dakota Century Code; provided, that the area where persons under the age of 21 are permitted is separated from the area where alcoholic beverages are opened or mixed.

11. Temporary bars may be set up and sale or service of alcoholic beverages permitted to passengers anywhere on the vessel at times when persons under the age of 21 years of age are not permitted on the boat.

12. The license which is established by this subsection shall be a seasonal license, commencing on the 1st day of April and terminating on the 15th day of November of each license year.

T. Class M. - A "Class M" license shall authorize the licensee to operate a "microbrew pub", a domestic winery, to sell beer and wine "on-sale" and "off-sale", or to do both, including the sale of growlers, subject to the following restrictions and conditions:

1. A Class "M" license may be issued only to a brewer which brews 10,000 barrels or less per year on the license premises, to a domestic winery which produces total quantities not in excess of 10,000 gallons in a calendar year, or to a retail establishment offering growlers filled with tap beer or wine.

2. A Class "M" license may be issued only to persons currently holding a Class "AB", "ABH", "A", "ABH-RZ", "C", "F", "FA", "FA-RZ", "G", "H", "I", "B", "B-Limited", "D", "W", or "Z" license.

3. A Class "M" license will authorize the licensee to sell:

   a. Growlers of beer or wine, sold "off-sale" only; or

   b. Beer or wine that has been produced on the premises, which beer or wine may be sold either "on-sale" or "off-sale".

4. A Class "M" license otherwise shall not be construed as a modification of any of the restrictions imposed on said licensee as the owner of an "on-sale" beverage license.

U. Class "N" - A Class "N" license shall authorize the licensee to sell "on-sale" only, subject to the following conditions:

1. A Class "N" licensee need not have a Class "E" license as defined in § 25-1506(G) so long as the provisions of this Class "N" license are followed. A Class "N" licensee must be in compliance with any and all other licenses and restrictions that may be imposed and required by any other governing body.

2. A Class "N" licensee may sell alcoholic beverages at a stadium which has a minimum permanent seating capacity of 1,500.

3. A Class "N" licensee may sell alcoholic beverages within 90 minutes prior to and during the event or activity held in the stadium.

4. Persons under the age of twenty-one (21) years shall be allowed into and throughout the stadium of a Class "N" licensee.

5. Distilled spirits shall be served in a clear plastic container.

6. No more than two (2) alcoholic beverages may be purchased at any one time by an individual guest.

7. Only employees of the Class "N" licensee who are at least twenty-one (21) years of age may deliver and sell the alcoholic beverages.

8. A Class "N" license shall authorize the licensee to sell on-sale only and no licensee hereunder may conduct any off-sale liquor sales.

9. The Class "N" license shall be governed by all of the provisions of this article applicable to Class "A" licensees.

V. Class "O" - A Class "O" license shall authorize the licensee to operate as a winemaker and/or vendor of winemaking supplies and related services. A license holder possessing such a license shall be authorized to offer complimentary samples of wines produced on the premises provided that the size of each sample is no greater than two (2) fluid ounces. No other alcoholic beverages may be sampled on the premises. In the absence of another appropriate license, sales of off-sale or on-sale wine, beer or any other alcoholic beverage shall not be permitted. The intent of this license is to allow a winemaker to permit sampling by prospective customers of the winemaker's products and services prior to sales to, or engagement by, the customer.

W. Class P - A Class "P" license shall authorize the licensee to operate a domestic winery and to sell wine "on-sale" and "off-sale", subject to the following restrictions and conditions:

1. A Class "P" license may be issued only to a domestic winery owner or operator who obtains a license from the State Tax Commissioner allowing the production of wine.

2. A Class "P" license will authorize the licensee to sell, on the winery premises, wine produced by that winery at "on-sale" or "off-sale", in retail lots, and not for resale, in total quantities not in excess of 10,000 gallons in a calendar year. In addition, a Class "P" licensee may, if so authorized by a license issued by the State of North Dakota, sell beer "on-sale" only provided, however, that such "on-sale" beer sales shall be incidental to the sale of wine.

3. A Class "P" license will authorize the licensee to sell glassware, wine literature and accessories, cheese, cheese spreads, and other snack food items.

4. A Class "P" license will authorize the licensee to utilize special event permits issued by the State Tax Commissioner, provided, however, that the incidental sales of "on-sale" beer allowed by paragraph 2 above, will not be allowed at the locations where said permits are utilized.

5. The Class "P" license shall be governed by all the provisions of this article applicable to Class "A" licensees.

A Class "P" license shall not be required, however, for a domestic winery owner or operator having a license from the state tax commissioner allowing the production of wine and only being present within the city to utilize special event permits issued by the state tax commissioner. It is the intent of this exemption to not require licensure by domestic winery owners or operators, if properly licensed elsewhere, where the only presence in the city is to utilize special event permits.

X. Class "Z" - A "Class Z" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:

1. A Class "Z" license shall authorize a licensee to sell "on-sale" only, and no licensee hereunder may conduct any "off-sale" liquor sales.

2. A Class "Z" licensee under the provisions of this title shall provide adequate off-street parking within the discretion of and subject to the approval of the commission. Membership in the current Fargo parking program (presently POP), or any subsequently adopted parking program, may be considered as compliance with this provision.

3. No person, partnership, or other form of business entity may hold more than one (1) "Z" license nor may a "Z" license be owned by any individual, partnership or other business entity in which a person holding more than a 5% ownership interest in the business entity also holds more than a 5% ownership interest in another business entity that holds a "Z" license or an "A", "AB", "ABH", or "ABH-RZ" license.

4. The initial fee for a "Z" license, as well as the annual renewal fee shall be as set forth in city ordinance.

5. A "Z" license shall be essentially non-transferable. In the event, the holder of a Class "Z" license shall voluntarily go out of business, the license shall revert to the city. It is the intent of this provision that the city of Fargo desires to control the issuance of additional liquor licenses and restrict any artificial appreciation in value of said licenses. Additional terms, conditions and restrictions on transferability shall be as set forth in section 25-1508.

6. The initial issuance of a "Z" license shall consider all of the factors set forth in article 25-1508 hereinafter. In the event the applications for said license shall exceed the number then available, any applications meeting all of the requirements shall be determined by a drawing in the presence of the governing body of the city and in such manner as it shall direct.

7. In addition to the foregoing, the Class "Z" license shall be governed by all the terms of this article applicable to Class "A" licensees provided, however, that in the event the provisions should conflict with this section, provisions of this section shall prevail.

Y. Class "W" - A "Class "W" license shall authorize the licensee to sell "on-sale" only, subject to the following restrictions and conditions:

1. A Class "W" license shall authorize a licensee to sell "on-sale" wine and sparkling wine only.

2. The initial fee for a "W" license, as well as the annual renewal fee, shall be as set forth in city ordinance.

3. The initial issuance of a "W" license shall consider all of the factors set forth in article 25-1508 hereinafter.

Z. Class "B-Limited" - A "B-Limited" license shall authorize the licensee to sell "off-sale" only, subject to the following restrictions and conditions:

1. A Class "B-Limited" license shall authorize a licensee to sell "off-sale" only, and no licensee hereunder may conduct any "on-sale" liquor sales. No Class "B-Limited" license shall be issued to any applicant whose primary business is not, or upon the issuance of the license applied for, shall not be the sale of alcoholic beverages on an off-sale basis.

2. A Class "B-Limited" licensee under the provisions of this title shall provide adequate off-street parking within the discretion of and subject to the approval of the commission. Membership in the current Fargo parking program (presently POP), or any subsequently adopted parking program, may be considered as compliance with this provision.

3. No person, partnership, or other form of business entity may hold more than two (2) "B-Limited" licenses, nor may more than two (2) "B-Limited" licenses be owned by any individual, partnership or other business entity in which a person holding more than a 5% ownership interest in the business entity also holds more than a 5% ownership interest in another business entity that holds a "B-Limited" license or an "A", "AB", "ABH", or "ABH-RZ" license.

4. The initial fee for a "B-Limited" license, as well as the annual renewal fee shall be as set forth in city ordinance.

5. A "B-Limited" license shall be essentially non-transferable. In the event the holder of a Class "B-Limited" license shall voluntarily go out of business, the license shall revert to the city. It is the intent of this provision that the city of Fargo desires to control the issuance of additional liquor licenses and restrict any artificial appreciation in value of said licenses. Additional terms, conditions and restrictions on transferability shall be as set forth in section 25-1508.

6. The initial issuance of a "B-Limited" license shall consider all of the factors set forth in section 25-1508 hereinafter. In the event the applica-

tions for said license shall exceed the number then available, any applications meeting all of the requirements shall be determined by a drawing in the presence of the governing body of the city and in such manner as it shall direct.

7. In addition to the foregoing, the Class "B-Limited" license shall be governed by all the terms of this article applicable to Class "B" licenses provided, however, that in the event the provisions should conflict with this section, provisions of this section shall prevail.

AA. Class "Y" - A Class "Y" license is a brewer taproom license. A brewer taproom licensee may manufacture on the licensed premises, store, transport, sell and export a total number of barrels of malt beverages annually not to exceed the amount allowed by the North Dakota Century Code § 5-01-21, and must comply with all other provisions of N.D.C.C. § 5-01-21. A brewer taproom licensee may sell malt beverages manufactured on the licensed premises directly to consumers for consumption on or off the premises subject to the limitations set forth hereinafter. Licenses granted under this subsection entitle the brewer taproom licensee to sell malt beverages manufactured on the premises for off-premises consumption in brewery-sealed containers holding at least 12 ounces and not more than 5.16 gallons (19.53 liters) in contents. Complimentary samples of malt beverages may be served on the premises in amounts not exceeding 16 ounces (.47 liters) per patron. All sales and delivery of malt beverages to licensed retailers within the state must be made in accordance with § 5-03-07, N.D.C.C. and N.D.C.C. § 5-01-21(2) (f). Additional sales may be made through a wholesaler licensed in this state. Malt beverages manufactured on the licensed premises and sold by a brewer taproom licensee directly to the consumer for consumption on or off the premises are subject to the taxes imposed pursuant to § 5-03-07, N.D.C.C., in addition to any other taxes imposed on brewers and retailers. A brewer taproom licensee is also subject to the following restrictions and conditions:

1. The initial fee for a "Y" license as well as the annual renewal fee shall be as set forth in city ordinance.

2. The initial issuance of a "Y" license shall consider all of the factors set forth in section 25-1508.

3. All restrictions on sale, service or dispensing of alcoholic beverages as contained in section 25-1509 shall be applicable to a brewer taproom licensee.

4. A Class "Y" licensee shall obtain any brewery license required by the state of North Dakota.

5. Special events for which a permit has been obtained from the state tax commissioner allowing the brewer taproom licensee to give free samples

of its beer and to sell its beer by the glass or in enclosed containers at off-premises events are, as a result of such permit, authorized within the city, so long as notice of the special event to which the permit is issued is given to the City Auditor and Chief of Police no less than seven (7) days before the event is to occur.

6. Multiple brewer taproom licenses may be issued to the owner or operator of a brewery producing no more than twenty-five thousand barrels of malt beverages annually. Class "Y" licensees with multiple taprooms must produce malt beverages at each location and the total amount of malt beverages produced at all locations combined may not exceed twenty-five thousand barrels of malt beverages annually.

BB. Class "RZ- V" - A Class "RZ-V" license shall authorize the licensee to sell "on-sale" only, subject to the following conditions:

1. A Class "RZ-V" licensee must be in compliance with any and all other licenses and restrictions that may be imposed and required by any other governing body.

2. The licensed premises for Class "RZ-V" license must be located in an approved Renaissance Zone building project located within the Renaissance Zone established by the city of Fargo at the time of application. For purposes of subsequent renewals or applications, the licensed premises shall be deemed eligible for this RZ-V license regardless of whether the licensed premises continues to be located in a city of Fargo designated Renaissance Zone.

3. A Class "RZ-V" licensee may sell on-sale alcoholic beverages at a venue designed and intended to be used as a private event center or entertainment venue with square footage of at least 10,000 square feet and with capacity for at least 300 people. The venue must derive 60% or more of its annual gross receipts from the sale of tickets, rent charged for the use of the venue, or both, and not from the sale of alcoholic beverages.

4. A Class "RZ-V" licensee may not sell alcoholic beverages more than 90 minutes prior to the event or activity held in the venue and must immediately cease selling alcoholic beverages at the conclusion of the event or activity and immediately remove all attendees from the event space. No alcoholic beverages may be sold or consumed in the licensed premises unless a qualifying public or private event is in progress.

5. Gross receipts from ticket sales and rental of the venue must total at least $200,000 as determined in accordance with section 25-1504.4.

6. For every event for which alcohol is available, food must also be made available for attendees, either provided free of charge as a component of the event or activity or made available for purchase by the attendees.

7. The hours within which sales of alcoholic beverages may be made shall coincide with the hours permitted by the State of North Dakota for the sale of alcoholic beverages, and shall also be additionally limited as set forth herein.
8. The Class "RZ-V" licensed premises shall be eligible for the holding of events described in section 25-1509(K) relating to public events, and 25-1509(L) relating to private events, provided that to the extent said provisions conflict with the restrictions as set forth in this subsection, this subsection shall control and apply.
9. There shall be no charitable gambling or gaming of any kind on the licensed premises.
10. There shall be no permanent bar with seating.
11. A Class "RZ-V" license shall be non-transferable. In the event the holder of a Class "RZ-V" license shall cease operations the license shall revert to the city.

CC. Class "DCP-E" License - A Class "DCP-E" license, in the nature of a special permit, shall authorize the Downtown Community Partnership, a non-profit corporation established January 15, 2014, operated as a business league within the meaning of Section 501(c)(6) of the Internal Revenue Code with the stated purpose of serving the Fargo downtown business community, to apply for a special event "DCP-E" license, to be issued by the city auditor, for an event that is open to the general public and that is held on certain designated public property, private property or both public and private property, including public rights of way, and in which one or more licensees that are eligible to obtain a Class "E" license will be allowed to participate in the event and in which certain alcoholic beverages will be lawfully allowed to be possessed and consumed within the designated space, in accordance with the following:

1. Class "DCP-E" license application and approval. For each proposed Class "DCP-E" license event, the Downtown Community Partnership must submit to the city auditor an application on a form provided by the city. The application must describe the event space including a detailed description of public streets that will be closed to the traveling public, adjacent sidewalks, and designated alley ways adjacent to such streets and sidewalks along with any private property included in the event space. To the extent the event space includes any private property, the applicant must provide the written consent by the property owner to the holding of the event.
    a. Licenses non-transferable.--A Class "DCP-E" license may only be issued to the Downtown Community Partnership and it may not be transferred to, or held by, a person, firm, or entity other than the licensee.
    b. Notice of an intention to seek a Class "DCP-E" license must be submitted to the city auditor at least 45 days in advance of the requested event. Such notice deadline may be waived for good cause. A complete Class "DCP-E" license application must be submitted to the city auditor in the manner of a Class "E" license.

c. The notice shall provide an estimate of the number of attendees expected to participate in the event, which estimate may be used by the police department to determine the number of additional police department personnel necessary to patrol the event space and surrounding area, and shall state the hours during which alcoholic beverages may be served in vendor approved containers, including cans and plastic cups, but prohibiting bottles and other glass containers ("vendor approved containers"), , and when such beverages may be possessed or consumed within the designated event space.

d. Downtown Community Partnership shall be eligible to receive a limited number of licenses per year, in an amount to be determined by the motion or resolution of the Board of Directors of the Downtown Community Partnership, presented with the application.

e. The city auditor is authorized to issue the Class "DCP-E" license without notice or hearing and the provisions of section 25-1508 shall not be applicable to the issuance thereof.

f. Effective times and dates of license.--A Class "DCP-E" license shall be effective for the period or periods of time as approved by the city auditor and as stated on the license. Said license may be structured by the city auditor such that a DCP-E permitted event may run during certain limited time periods on certain specified consecutive days. In no event shall a Class "DCP-E" license be granted allowing alcoholic beverage open containers or the consumption of alcoholic beverages in a public space after 9:00 p.m.

g. No Class "E" licenses other than those issued to an alcoholic beverage retailer as part of a licensed Class "DCP-E" event may be issued for the event space during the Class "DCP-E" permitted times or locations.

h. At any time when a Class "DCP-E" license is in effect for a particular event and event space, the event space shall be specifically excepted from the definition of "public place" as set forth more fully in section 25-1509.1(D) of this chapter.

2. Administration and Coordination of Event. Upon issuance by the city auditor of the Class "DCP-E" license for the event, the Downtown Community Partnership will be responsible for administration and coordination of the event in accordance with the following:

a. The Downtown Community Partnership will solicit and accept applications from existing licensees that are eligible to obtain a Class "E" license to serve as alcohol vendors for the approved and licensed Class "DCP-E" event.

b. Downtown Community Partnership, by approval of its board of directors, will select one or more alcoholic beverage retailers for the Class "DCP-E" event, and will notify the city auditor of its selection or selections.

c. In order to participate in the licensed Class "DCP-E" event, said selected alcoholic beverage retailer must apply for and obtain a Class "E" license for the event.

d. The Downtown Community Partnership is authorized to charge the selected alcohol vendors a fee for participation. The Downtown Community Partnership will be responsible for making the necessary arrangements for the event, and will be responsible for payment of the costs for additional security personnel.

3. Terms, Conditions and Restrictions for Event. With respect to an approved Class "DCP-E" licensed event, the following terms, conditions and restrictions shall be applicable:

a. The designated event space must be clearly marked with signs, special markings and other demarcations such that participants and the general public are advised as to the boundaries of the event space. The Downtown Community Partnership shall post conspicuously at all entrances and exits of the event space a notice stating that alcoholic beverages shall not be permitted outside of the designated event space. Alcoholic beverages may only be served in vendor approved containers.

b. The Downtown Community Partnership will provide the selected Class "E" license holders for the event a sufficient supply of clearly identifiable wrist bands to be distributed to, and worn by, event participants.

c. Nothing in this subsection shall be construed to relieve the responsibility of a Class "E" license holder from the obligation to comply with all laws, including laws regulating the serving of alcoholic beverages and nothing shall be construed to transfer any such obligations or responsibilities to the Downtown Community Partnership.

d. Downtown Community Partnership shall be responsible for making arrangements with the Fargo police department for any police department extra duty officers that are required to be provided for the Class "DCP-E" event, at the sole cost of the Downtown Community Partnership, at such rate or rates as are established by the chief of police.

e. Nothing in this subsection shall be construed to allow Class "E" licensees at a DCP-E permitted event to sell off-sale alcoholic beverages at such event.

f. Only alcoholic beverages that have been served by a Class "E" permit holder and which beverages are contained within the vendor approved containers may be consumed within the event space. No other alcoholic beverages shall be permitted to be consumed in the event space. No personal use coolers for individual alcohol consumption will be permitted in the event space.

g. All other laws and regulations shall be in full force and effect.

DD. Class VWB - A "Class VWB" license shall authorize the licensee to sell "on-sale" and "off-sale", subject to the following restrictions and conditions:

1. The VWB license may sell and/or deliver on-sale wine only when a qualifying Wine Educational Event is in progress, commencing 60 minutes before the educational component, and must cease sales and delivery 60 minutes after the educational event ends, but in no event later than midnight of the day of the Wine Educational Event.
2. Definitions.
   a) "Wine Educational Event:" A particular set time for an event in which a particular wine or vintner is featured and a sommelier or other professionals, trained experts recognized in the wine industry or otherwise associated with the wine industry and complementary services, is engaged to make presentations intended to educate event ticket holders regarding particular aspects of the featured wine, vintner or associate services.
   b) "Venue:" A particular event space identified in the license application and approved by the board of City Commissioners. Such venue may have a permanent bar for service, and may have limited seating at the bar for ticketed attendees only while a Wine Educational Event is in progress. The venue must provide seating for all attendees at the Wine Educational Event.
   c) "Controlled Access:" Only those persons in possession of a ticket from the licensee may be permitted access or otherwise be permitted to consume wine on the premises during the designated times.
3. All Wine Educational Events must be ticketed by the licensee for a pre-determined price with limited capacity seating for the Wine Educational Event with a specific start time for such event. Only ticket holders for the specific Wine Educational Event may consume wine on-sale.
4. A Class VWB shall not have a food requirement.
5. There shall be no limit on the number of Wine Educational Events that a license holder may hold in the approved venue on a yearly basis.
6. A holder of a Class VWB license may engage in limited off-sale of wine only.
   a) Off-sale may only be made to ticketed attendees of the Wine Educational Event during the time in which the Wine Educational Event is permitted herein.
   b) There shall be no store front or retail off-sale at any other times. Off-sale may only be to ticket holders of the specified Wine Educational Event and no off-sales shall be permitted to walk-in public. There shall be no signs or other announcement of off-sale wine except in association with a ticketed Wine Educational Event.
7. There shall be no charitable or licensed gaming of any kind in the licensed premise.

8. VWB license holders may secure an e-permit to conduct a qualifying Wine Education Event off the licensed premise.
   a) No off-sale is permitted at events held pursuant to an e-permit for a qualifying Wine Educational Event off premise.
9. All attendees of the Wine Education Events must be 21 years old.
10. A Class VWB license shall be non-transferable. In the event the holder of a Class VWB shall close business (at the licensed venue), the license shall revert to the city.

EE. A "Class B Annexation" license shall authorize the licensee to sell "off-sale" only, subject to the following terms and conditions:

1. A "Class B Annexation" license may be issued only to persons who have secured a license, including a conditional license, to sell alcohol from the licensing jurisdiction prior to the city of Fargo annexation process completion.
2. The property on which the applicant seeks to operate the licensed premises must be in possession or control, including but not limited to an executed purchase agreement or lease, of the entity, related entity, or person eligible to seek a "Class B Annexation" license prior to the resolution of annexation.
3. The annexed property on which the "Class B Annexation" license is intended to be located must be properly zoned and platted upon annexation.
4. The "Class B Annexation" license issued hereunder shall remain at the same geographic location approved for a period of not less than ten (10) years from the date of commencement of liquor sales.
5. A "Class B Annexation" license may not be combined with an "on-sale" license of any category.
6. The physical layout of any establishment seeking a license hereunder shall be subject to the approval of the board of city commissioners and must comply with all licensing requirements, including but not limited to the requirements stated in Fargo Municipal Code § 25-1508(E).
7. All terms and conditions of the "Class B-Limited" and "Class B" licenses shall apply to the license issuance of a "Class B Annexation" license, however, that in the event the provisions should conflict with this section, provisions of this section shall prevail.
8. The initial fee for a "Class B Annexation" license as well as the annual renewal fee shall be set forth in city ordinance.
9. The initial issuance of a "Class B Annexation" license shall consider all of the factors set forth in Fargo Municipal Code § 25-1508.
10. A "Class B Annexation" license shall be non-transferable. In the event the holder of the "Class B Annexation" license shall cease operations, the license shall revert to the City.

Source: 1965 Rev. Ord. 25-1506, 1884 (1978), 2087 (1983), 2212 (1985), 2218 (1985), 2243 (1986), 2344 (1987), 2517 (1990), 2532 (1990), 2581 (1991), 2582 (1991), 2596 (1991), 2624 (1992), 2636 (1992), 2649 (1993), 2676 (1993), 2677 (1993), 2760 (1995), 2806 (1996), 2808 (1996), 2822 (1997), 2848 (1998), 2940 (1998), 3014 (1999), 4193 (2001), 4194 (2001), 4196

(2001), 4217 (2002), 4219 (2002), 4230 (2002), 4235 (2002), 4294 (2003), 4295 (2003), 4348 (2003), 4350 (2003), 4368 (2004), 4420 (2004), 4436 (2004), 4448 (2005), 4461 (2005), 4466 (2005), 4498 (2005), 4501 (2005), 4503 (2005), 4512 (2006), 4540 (2006), 4566 (2006), 4586 (2007), 4589 (2007), 4593 (2007), 4622 (2007), 4847 (2013), 4870 (2013), 4889 (2013), 4896 (2013), 4909 (2014), 4923 (2014), 4945 (2014), 4954 (2014), 4973 (2015), 4984 (2015), 4998 (2015), 5008 (2015), 5010 (2015), 5011 (2015), 5036 (2016), 5059 (2016), 5081 (2017), 5085 (2017), 5132 (2018), 5149 (2018), 5183 (2018), 5193 (2019), 5208 (2019), 5228 (2019), 5321 (2021), 5389 (2023), 5399 (2023), 5437 (2024), 5484 (2025), 5526 (2025).

25-1507. License--Fees.--

A. Initial issuance fee--For a license granted which is not a renewal or a transfer of an existing license, the following fees shall be payable as hereinafter provided:

Class AB--$150,000
Class ABH--$30,000
Class ABH-RZ--$15,000
Class ABH-limited--$1,800.00
Class A--$115,000
Class B--$ 90,000
Class B Annexation--$90,000
Class C--$7,500
Class D--$1,500.00
Class DD--$3,000
Class E--$25 for each day requested. Additional $25 fee if application is received less than 7 days before the event. A permit shall not be issued less than 48 hours before the scheduled event without a showing of good cause.
Class F--$3,000
Class FA--$100,000
Class FA-RZ--$50,000
Class FA-GOLF--$60,000
Class FA-ENTERTAINMENT--$100,000
Class G--$1,000
Class H--$800
Class I--$10,000
Class I-ENTERTAINMENT--$10,000
Class J--No fee
Class L--No fee
Class M--$1,500
Class N--$3,000
Class O--$400
Class P--$1,400
Class W--$7,500
Class Y--$3,000
Class Z--$105,000
Class B-Limited--$80,000
Class RZ-V--$5,000

Class DCP-E--$25 plus $10 for each day requested.
Class VWB--$7,500

No fee shall be charged for the initial issuance of a license hereunder to a lodge or club, nor shall any fee be charged for the initial issuance of a license to any liquor establishment licensed by any other political subdivision over which the city of Fargo has subsequently acquired jurisdiction by annexation, provided, however, that such liquor establishment must have been in existence for at least fifteen (15) years prior to such annexation by the city of Fargo. The initial issuance fee charged shall be the difference between the city fee and the fee originally charged by the issuing subdivision.

A non-refundable payment in the sum of 10% of the initial issuance fee shall be paid at the time issuance of the license is approved by the board of city commissioners pursuant to § 25-1508 of this article. The remainder of the initial issuance fee shall be payable upon issuance of the license, but not more than 30 days after date of approval by the board of city commissioners; provided, that the time for payment of the remaining balance of the initial issuance fee may, with the approval of the board of city commissioners, be deferred and paid by periodic payments within 180 days after the date of approval. In the event that the applicant fails to pay the remainder of the initial issuance fee within 30 days, or such other time as may have been approved by the board of city commissioners, the approval shall be deemed to have expired and the 10% payment by the applicant shall be forfeited.

B. Annual fees shall be payable at the beginning of each license year as follows:

Class AB--$2,400
Class ABH--$2,000
Class ABH-RZ--$2,000
Class ABH-limited--$700.00
Class A--$1,700, except that the license fee for any lodge or club having a total membership of less than 1,000 shall be $1,200 per year.
Class B--$1,400
Class B Annexation--$1,400
Class C--$750
Class D--$200
Class DD--$500
Class E--No annual fee shall be charged for a Class E license.
Class F--$1,500
Class FA--$1,700
Class FA-RZ--$1,700
Class FA-GOLF--$1,700
Class FA-ENTERTAINMENT--$1,700
Class G--$400
Class H--$300
Class I--$1,000
Class I-ENTERTAINMENT--$1,000
Class J--$25
Class L--$1,000

Class M--$200
Class N--$1,500
Class O--$150
Class P--$500
Class W--$750
Class Y--$500
Class Z--$1,700
Class B-Limited--$1,400
Class RZ-V--$1,700
Class DCP-E--No annual fee shall be charged for a Class DCP-E license.
Class VWB--$750

C. The transfer of a license issued pursuant to the provisions of this article shall require a transfer fee equal to the total annual cost of the license being transferred; provided, however, that a transfer fee shall not be imposed for the following-described transfers:

1. When an individual holding a license issued pursuant to the provisions of this article has become deceased, the license may, upon application of the personal representative of the decedent, be transferred to another individual, partnership, firm or corporation.
2. When any corporation holding a license issued pursuant to the provisions of this article voluntarily dissolves, a license may be issued to any individual shareholder in such corporation who held said stock at the time of the issuance or last renewal of the license and whose application is approved by the holders owning a majority of the outstanding shares of stock in said corporation prior to the time of dissolution; provided, however, that such shareholder shall be subject to all the requirements of this article relating to the application for a license and to the qualifications of a licensee.
3. When any licensee under the provisions of this article applies for and receives the approval of the commission on the change of location of the licensed premises.
4. When an individual licensee desires to transfer a license to a corporation in which the licensee is the owner of at least 75% of the outstanding shares of stock in said corporation; provided, however, that such licensee may not permit his stock ownership in the transferee corporation to fall below a majority of the outstanding stock in said corporation without the prior approval of the commission and payment of the required transfer fee. The transferee corporation shall be subject to all the requirements of this article relating to the application for a license and the qualifications of a licensee.
5. When a licensee is a corporation or partnership which desires to transfer a license to another corporation or partnership having substantially the same partners or stockholders; provided, however, that such transferee corporation or partnership shall be subject to all the requirements of this

article relating to the application for a license and the qualifications of a licensee. No Class "E" licensee shall transfer his license under any circumstances.

D. In addition to the fees set forth in paragraphs A, B and E of this section, each application for a new license (except Class "E" and Class "J"), or a transfer of a license pursuant to § 25-1504 of this article shall, at the time of submission of his application for such issuance or transfer, pay to the city auditor, the sum of $250 as a minimum non-refundable fee for the investigation which is required by § 25-1505 of this article. Any additional costs incurred by the city in connection with such investigation shall be paid by the applicant prior to the hearing on said application and shall not be refunded in the event that the applicant is not successful.

E. In addition to the fees and costs set forth in paragraphs A, B, C and D of this section, each licensee who applies for and receives a Class "E" license for a special event shall, upon conclusion of said special event pay to the city auditor, a sum of money sufficient to defray the extra costs incurred by the city in providing police protection for said event. The amount of such extra cost shall be determined by the police chief and an appropriate statement sent to the licensee but in no event shall said extra costs exceed the sum of $300.

F. The license fees set forth in subsection B of this section shall be for a period of one year and shall be payable in advance at the time of the issuance of the license and thereafter, on or before 30 days prior to the renewal date.

G. If an application is made for the issuance of a license at a time other than the beginning of the license year, the license fee shall be prorated on a monthly basis of the unexpired term of the license commencing on the first day of the month in which the application is filed and any subsequent renewal of said license shall be for a full license year.

H. Class "F", "FA-GOLF", "G", "H", "I", and "N" licenses may be issued as seasonal licenses. Application for such licenses shall be made prior to June 30 each year and the application shall indicate the months in which the license is to be effective. Fees for such licenses shall be prorated to the nearest fractional month of the effective period and payment therefor shall accompany the application.

Source: 1965 Rev. Ord. 25-1507, 1884 (1978), 1912 (1979), 1920 (1979), 2088 (1983), 2161 (1984), 2213 (1985), 2244 (1986), 2270 (1986), 2344 (1987), 2353 (1987), 2517 (1990), 2532 (1990), 2539 (1990), 2553 (1990), 2596 (1991), 2636 (1992), 2642 (1993), 2677 (1993), 2720 (1994), 2760 (1995), 2822 (1997), 4201 (2001), 4218 (2002), 4236 (2002), 4368 (2004), 4448 (2005), 4461 (2005), 4501 (2005), 4541 (2006), 4545 (2006), 4587 (2007), 4593 (2007), 4624 (2007), 4846 (2013), 4889 (2013), 4896 (2013), 4909 (2014), 4973 (2015), 5010 (2015), 5085 (2017), 5129 (2018), 5149 (2018), 5321 (2021), 5389 (2023), 5482 (2025), 5526 (2025), Ord. No. 5532 (2025).

25-1508. Issuance and transfer of licenses--Restrictions--Hearing required.--

A. No license, other than a Class "E" license, shall be issued or transferred without approval of the commission. A Class "E" license may be issued by the city

auditor, without notice or hearing, provided, however that, application must be made seven (7) days before the planned event unless such requirement is waived for good cause shown.

B. When an application for any license other than a Class "E" is filed with the commission pursuant to the provisions of § 25-1504 of this article, the city auditor shall cause notice to be published in a newspaper of general circulation within the city of Fargo, that the applicant has applied for a license to sell alcoholic beverages at the place named in the application or for the transfer of an existing license, and that the application will be acted upon by the commission on a certain day and time. A hearing on the application shall be held not less than 10 days nor more than 30 days after the date of publication. The expense of the publication, in addition to the license fee, shall be paid by the applicant to the city auditor prior to publication.

C. At the time of the hearing on the application, the commission shall, in its discretion, determine if the issuance or transfer of the license is in the best interests of the public health, safety, morals and general welfare of the community. Among the factors to be considered by the commission in granting or denying a license or a transfer are the following:

1. Public health and sanitation and the convenience of police regulation and the recommendations and reports of city officials, such as the chief of police, chief of the fire department, building inspector, health officer, and any other official submitting a recommendation or report at the request of the board of city commissioners.
2. The proximity of other businesses licensed to sell alcoholic beverages.
3. The proximity of schools, churches, funeral homes, public buildings or buildings used by or for minors.
4. Protests of neighboring property owners or occupants.
5. Zoning regulations.
6. Interference with neighboring properties.
7. Suitability of premises for sale of alcoholic beverages.
8. Number of such licenses already in existence.

D. No transfer of any license shall be approved by the commission until the transferee has submitted a license application and has met all the requirements imposed upon an applicant for a new license.

E. No license issuance or transfer authorizing off-sale of any kind shall be approved by the commission for the sale of alcoholic beverages on premises, any part of which are closer than 100 feet to any grocery store, drug store or gasoline service station, or any portion thereof; provided, that this restriction shall not apply to a transfer which is an assignment, sale, exchange or other conveyance of a license. In the event the owner of the licensed premises for the sale of alcoholic beverages is also the owner of any such grocery store, drug store or gasoline service station, the board of city commissioners is authorized to determine whether the configuration of the licensed premises and such grocery, drug or gasoline station premises is such that the 100-foot separation has been satisfied.

F. The number of licenses which may be issued by the board of city commissioners shall be limited as follows:

1. Class "AB" - 22
2. Class "ABH" - no limit
3. Class "ABH-limited" - no limit
4. Class "A" - 10 (not including licenses issued to lodges or clubs)
5. Class "B" - 12
6. Class "C" - 13
7. Class "D" - 2
8. Class "DD" - no limit
9. Class "E" - no limit
10. Class "F" - no limit
11. Class "FA" - no limit
12. Class "FA-GOLF" - no limit
13. Class "FA-ENTERTAINMENT" - no limit
14. Class "G" - no limit
15. Class "H" - no limit
16. Class "I" - 12
17. Class "J" - no limit
18. Class "L" - no limit
19. Class "M" - no limit
20. Class "N" - no limit
21. Class "O" - no limit
22. Class "P" - no limit
23. Class "W" - 13
24. Class "Z" -- Class "Z" - 5 with the conditions and limitations set forth in subsection (I) hereinafter. The initial issuance of a Class "Z" license shall provide for five (5) licenses (as aforesaid) with two (2) licenses being designated for the downtown area and two (2) for areas outside the downtown area as defined and one (1) license in either area. "Downtown area" shall mean that area included in the Downtown Area Plan as previously approved by the board of city commissioners and as it may hereafter be amended. At such time as the population of the city of Fargo shall exceed 100,000, one (1) additional "Z" shall become available for each 10,000 people in excess of 100,000 population. The granting of additional licenses shall be subject to all of the terms and conditions of the "Z" license as set forth hereinbefore.
25. Class "B-Limited" - a Class "B-Limited" license shall authorize the licensee to sell "off-sale" only with the conditions and limitations set forth in subsection (J) hereinafter. One (1) Class "B-Limited" license shall be available immediately. An additional Class "B-Limited" shall become available at such time as the population of the city of Fargo shall exceed 100,000 with an additional Class "B-Limited" then becoming available for each additional 10,000 increase in population. The granting

of additional licenses shall be subject to all of the terms and conditions of the Class "B" license as set forth hereinbefore and as limited by subsection (J) hereinafter.

26. Class "Y" - no limit
27. Class RZ-V - no limit
28. Class DCP-E - no limit
29. Class VWB - 10
30. Class B Annexation - no limit

For purposes of determining the population of the city of Fargo in this article, the board of city commissioners may recognize the most recent estimated population as determined by the Census Bureau of the United States Department of Commerce and, further, may establish a current population by extrapolation based upon a reasonable rate of population change since the most recent census estimate or by estimation considering recent annexations into the city, the number of housing starts within the city, other relevant activity that would typically coincide with increases or decreases of population or any combination of such data or activity to arrive at such estimate.

G. Alcoholic beverage licenses which are located in motels/hotels having a minimum of 100 rooms and one single license located in the Hector Airport Terminal building shall be reserved for those locations and may be transferred to other owners as hereinabove provided but shall not be transferred to any other location. Ownership of licenses issued to lodges and clubs shall not be transferable.

H. A Class "W" on-sale only license has been created and is subject to different conditions (set forth hereinbefore) which include certain terms, conditions, and restrictions on transferability which are set forth hereinafter. A Class "W" license, in addition to the foregoing conditions on transfer (to the extent possible), shall be subject to the following:

1. Should any "W" licensee voluntarily go out of business, the license shall revert to the city.
2. In the event the licensee shall file a petition in bankruptcy, become insolvent, or otherwise cease business, the license shall revert to the city.
3. There shall be no limitation on the transferability of a "W" license as regards a change in location of licensed premises provided, however, that the licenses issued for the downtown area shall only be allowed to relocate in said area. In the event of a change of location (as herein restricted), the licensee may apply for transfer subject to all of the terms and conditions of this article.
4. When an individual holding a "W" license issued pursuant to the provisions of this article has become deceased, the license may be transferred to the heir or heirs of the individual, but may not be transferred to any other person, partnership, corporation, or other form of business entity.
5. Upon the death or withdrawal of any person holding more than a 5% ownership interest in the business entity holding a license issued pursuant to the provisions of this article, the remaining owner or owners may continue to hold the license, but no ownership interest may be issued to

any new owner. It is the intent of this provision that the city of Fargo desires to control the transfer of the "W" license and restrict any artificial appreciation in value of said license.

6. When an individual, partnership, limited liability company or other business entity holding a "W" license issued pursuant to the provisions of this article sells the business as a going concern, whether by sale of the assets of the business entity holding the "W" license or by sale of the underlying ownership shares, member interests or other ownership interest, the purchaser of the business has the first preference to purchase the "W" license being returned to the city for such business. The purchaser must, however, meet all other relevant conditions of article 25-1508 including the factors contained in 25-1508(C) and must remit payment to the city a transfer fee equal to the total annual cost of the license being transferred as set forth in § 25-1507.B.

I. A Class "Z" on-sale only license has been created and is subject to different conditions (set forth hereinbefore) which include certain terms, conditions and restrictions on transferability which are set forth hereinafter. A Class "Z" license, in addition to the foregoing conditions on transfer (to the extent applicable), shall be subject to the following:

1. Should any "Z" licensee voluntarily go out of business, the license shall revert to the city.
2. In the event the licensee shall file a petition in bankruptcy, become insolvent, or otherwise cease business, the license shall revert to the city.
3. There shall be no limitation on the transferability of a "Z" license as regards a change in location of licensed premises provided, however, that the licenses issued for the downtown area shall only be allowed to relocate in said area. In the event of a change of location (as herein restricted), the licensee may apply for transfer subject to all of the terms and conditions of this article.
4. When an individual holding a "Z" license issued pursuant to the provisions of this article has become deceased, the license may be transferred to the heir or heirs of the individual, but may not be transferred to any other person, partnership, corporation, or other form of business entity.
5. Upon the death or withdrawal of any person holding more than a 5% ownership interest in the business entity holding a license issued pursuant to the provisions of this article, the remaining owner or owners may continue to hold the license, but no ownership interest may be issued to any new owner. It is the intent of this provision that the city of Fargo desires to control the transfer of the "Z" license and restrict any artificial appreciation in value of said license.
6. When an individual, partnership, limited liability company or other business entity holding a "Z" license issued pursuant to the provisions of this article sells the business as a going concern, whether by sale of the assets of the business entity holding the "Z" license or by sale of the underlying ownership shares, member interests or other ownership interest, the purchaser of the business has the first preference to purchase the

"Z" license being returned to the city for such business. The purchaser must, however, meet all other relevant conditions of article 25-1508 including the factors contained in 25-1508(C) and must remit payment to the city a transfer fee equal to the total annual cost of the license being transferred as set forth in § 25-1507.B.

J. A Class "B-Limited" has been created and is subject to different conditions including certain terms, conditions and restrictions on transferability which are set forth hereinafter. A Class "B-Limited", addition to availability based on population increase as set forth above, shall be subject to the following:

1. Should any "B-Limited" licensee voluntarily go out of business, the license shall revert to the city.
2. In the event the licensee shall file a petition in bankruptcy, become insolvent, or otherwise cease business, the license shall revert to the city.
3. There shall be no limitation on the transferability of a "B-Limited" license as regards a change in location of the licensed premises. In the event of change of location, the licensee may apply for transfer subject to all of the terms and conditions of this article. This will include, but not be limited to, the provisions of section 25-1508 regarding factors in considering the granting or denying of license, as well as proximity to other business establishments.
4. Upon the death or withdrawal of any person holding more than a 5% ownership interest in the business entity holding a license issued pursuant to the provisions of this article, the remaining owner or owners may continue to hold the license, but no ownership interest may be issued to any new owner. Nothing contained herein shall prevent the license holder (whether solely-owned, owned by partners or owned in another form of business entity) from incorporating or forming another form of business entity for liability purposes providing, however, that all ownership interest in the business entity must remain in the ownership of the initial license holder or holders, with the license to be returned to the city upon the conditions contained in this section. It is further provided that there may be one lifetime transfer to an heir of the original person holding more than a 5% ownership interest in the business entity holding a license issued pursuant to the provisions of this article. It is the intent of this provision that the city of Fargo desires to control the transfer of the "B-Limited" license and restrict any artificial appreciation in value of said license.
5. When an individual, partnership or other form of business entity holding a "B-Limited" license issued pursuant to the provisions of this article sells the business as a going concern, the purchaser of the business has the first preference to purchase the "B-Limited" license being returned to the city for such business. The purchaser must, however, meet all other relevant conditions of article 25-1508 including the factors contained in 25-1508(C) and must remit payment to the city a transfer fee equal to the total annual cost of the license being transferred as set forth in § 25-1507.B.

K. Notwithstanding any other provision in this article, as to any license issued from and after June 1, 2014, no ownership transfer shall be allowed except as follows:
   1. With respect to the ownership interest of a person who has such ownership interest in a licensee business entity that his or her name and address is required to be included along with a license renewal application as set forth in 25-1504.1, above, an ownership transfer will be allowed upon the death of such person so long as (a) the transfer is made to a spouse or a descendant within three degrees of kinship and (b) the transferee is approved by the commission after an application for such ownership transfer is submitted and an investigation is submitted as provided in section 25-1505; or
   2. An assignment, sale, exchange or other conveyance of said ownership interest (herein the "conveyance") during the life of a person who has the ownership interest is permitted so long as (a) the licensee business has not been automatically terminated by reasons set forth in section 25-1512 subd. A; (b) the transferee is approved by the commission after an application for such ownership transfer is submitted and an investigation is submitted as provided in section 25-1505 and (c) a transfer fee is remitted to the city equal to the total annual cost of the license being transferred in accordance with subsection C of section 25-1507.
   3. Any other ownership transfer shall cause the license to automatically terminate in the same manner as though a terminating event had occurred as described in section 25-1512.A(3).
   4. Transition Provision. With respect to licenses issued prior to June 1, 2014, said licenses shall be subject to all provisions within this article except this subsection of section 25-1508.

L. Self-Serve Dispenser Utilization (Beer and Wine only). An establishment holding an on-sale license that allows for the sale of beer and wine only may utilize a self- serve dispenser, provided all of the requirements for self-serve dispenser utilization are met:
   1. Only draft beer and wine may be dispensed from the self-serve dispenser; no spirits or mixed drinks may be dispensed; and
   2. All alcohol dispensed must be consumed on the licensed premises; and
   3. The self-serve dispenser shall require access controlled by the licensee as to the method and amount of the alcohol accessible to the patron. Controlled access may be by any technology or device so long as the liquor cannot be drawn or obtained by a patron without being first approved for access to the dispenser by the licensee, and each approved access restricts the amount of liquor that may be dispensed by the patron as required under this section; and
   4. Each access transaction provided by the licensee to the patron shall be deemed as and constitutes a sale or the service of liquor to the patron as is otherwise regulated by Fargo Municipal Code Chapter 25-15; and
   5. Each access transaction for a patron to the self-serve liquor dispenser shall limit the patron access to no more than 32 fluid ounces of beer and 10 liquid ounces of wine. No patron shall have or be provided at any one time with access to more than the restricted amount; and

6. Certified server trained employees shall be required for all self-serve liquor access transactions; and
7. Subsequent access transactions shall be closely monitored, and access provided in lesser amounts as appropriate; and
8. Prior to approving or reapproving any dispenser transaction, the patron's age shall be verified to ensure the patron is age 21 or older; and
9. No persons under the age of 21 shall be permitted in the licensed premises; and
10. All access transaction authorizations shall terminate or be disabled prior to the patron leaving the licensed premises; and
11. No patron shall transfer or share any access transaction device or passcode to another person or remove the access device from the licensed premises; and
12. The licensed premises must be attended by the licensee at all times while the self-serve dispensary is operational and patrons are present in the licensed premises.

Source: 1965 Rev. Ord. 25-1508, 1869 (1978), 1882 (1978), 1941 (1979), 2089 (1983), 2111 (1983), 2159 (1984), 2214 (1985), 2240 (1986), 2271 (1986), 2344 (1987), 2448 (1989), 2517 (1990), 2531 (1990), 2532 (1990), 2596 (1991), 2627 (1992), 2642 (1993), 2719 (1994), 2720 (1994), 2731 (1995), 2774 (1995), 2808 (1996), 2822 (1997), 2847 (1998), 2944 (1998), 4218 (2002), 4236 (2002), 4368 (2004), 4448 (2005), 4461 (2005), 4501 (2005), 4588 (2007), 4625 (2007), 4728 (2010), 4846 (2013), 4882 (2013), 4897 (2013), 4909 (2014), 4915 (2014), 4923 (2014), 4938 (2014), 4971 (2015), 4973 (2015), 5010 (2015), 5037 (2016), 5060 (2016), 5085 (2017), 5149 (2018), 5321 (2021), 5406 (2023), 5417 (2023), 5526 (2025).

25-1509. Restrictions on sale, service or dispensing of alcoholic beverages.--

A. No licensee, his agent or employee, shall sell, serve or dispense any alcoholic beverage to a person under 21 years of age; and no licensee, his agent or employee, shall permit any person under 21 years of age to be furnished with any alcoholic beverage upon the licensed premises.

B. No person under 21 years of age shall be permitted to enter any portion of licensed premises in which alcoholic beverages are sold, served or dispensed; nor shall anyone under the age of 21 years be employed in any portion of licensed premises in which alcoholic beverages are sold, served or dispensed, except as provided in subsections (C) and (D) of this section. For purposes of this section, a person is not 21 years of age until 8 a.m. on the person's twenty-first birthday.

C. Any person under 21 years of age may enter and remain in a restaurant where alcoholic beverages are being sold if the restaurant is separated from the designated area in which alcoholic beverages are opened or mixed and if gross sales of food are at least equal to gross sales of alcoholic beverages which are consumed in the dining area. Any person who is employed by the restaurant as a food waiter, food waitress, busboy or busgirl, food server or other title engaged directly in the sale and delivery of food in the separate restaurant premises, may not engage in the sale, dispensing, delivery or consumption of alcoholic beverages; provided, that any person who is between 18 and 21 years of age may be employed by the restaurant to serve and collect money for alcoholic beverages,

if the person is under the direct supervision of a person 21 or more years of age. All employees engaged in the stream of service as defined in section 25-1501 (31) are subject to mandatory server training as provided in section 25-1501(26), and unless specifically exempted herein, must be 21 years old to be so employed. A law enforcement officer, or person cooperating with and under the control of such law enforcement officer, under the age of 21 years may enter premises where alcoholic beverages are sold, dispensed, or consumed in the performance of an official duty. Any establishment where alcoholic beverages are sold may employ persons from 18 to 21 years of age to work in the capacity of musicians, disc jockey, or entertainer, or to perform duties directly related to working as a musician, disc jockey, or entertainer under the direct supervision of a person over 21 years of age. Any person under 21 years of age may enter and remain on the license premises if the person is an independent contractor or the independent contractor's employee engaged in contract work and is not engaged in selling, dispensing, delivering or consuming alcoholic beverages, or if the individual enters the premises for training, education, or research purposes under the supervision of an individual 21 or more years of age with prior notification of the local licensing authority. Any person under 21 years of age may remain in the area of and event where beer, wine, or sparkling wine is sold in accordance with the conditions of an event permit issued pursuant to § 5-02-01.1, N.D.C.C., and the city comparable ordinance § 25-1506(H)(4).

D. At the discretion of the owner of the licensed premises, an individual under 21 years of age may be permitted to enter and remain in a restaurant where alcoholic beverages are being sold and in the area of the restaurant designated for the opening or mixing of alcoholic beverages if the individual:

1. Is accompanied by a parent or guardian;
2. Is not seated at or within three feet [0.91 meters] of the bar counter; and
3. Does not enter or remain in the designated area after ten p.m.

For purposes of this subsection, a restaurant shall be any establishment which serves prepared food and holds a restaurant license or permit pursuant to the provisions of Article 13-04 of the Fargo Municipal Code.

E. No Class "B" or Class "D" licensee shall permit the opening or consumption of alcoholic beverages upon the licensed premises; provided, that a Class "B" licensee may permit the sampling of alcoholic beverages upon the licensed premises without charge to the consumer.

F. No licensee, his agent or employee shall sell, serve, consume or permit to be sold, served or consumed on the licensed premises any alcoholic beverages during the hours of closure, and in no situation, between the hours of 2:00 a.m. and 8:00 a.m.; nor shall any licensee, his agent or employees sell, serve or permit to be sold, served or consumed on the licensed premises any alcoholic beverage on Christmas Day or after 6:00 p.m. on Christmas Eve. Additionally, there shall be no off-sale sales allowed after 2:00 a.m. on Thanksgiving Day or between the hours of 2:00 a.m. and 8:00 a.m. on Sundays. For purposes of this provision, any person having a glass or other opened container containing an alcoholic beverage in close proximity or otherwise available for consumption shall be deemed to be consuming an alcoholic beverage.

G. All licensed premises shall be closed and locked not more than one-half hour after the termination of business hours as specified in subsection (F) of this section and no persons shall be permitted to remain on said premises thereafter except for the owner and his employees for normal cleaning and maintenance activities; provided, that a licensee may remain open for the purpose of providing food service and operate its entertainment business, provided, however, that the licensee must comply with all other terms of Article 25 and those of its State of North Dakota liquor license.

H. No license to sell alcoholic beverages under the provisions of this article shall entitle the holder thereof to carry on such business at more than one location under any one license and each license shall contain a legal description of the place where the holder thereof operates such business; provided, however, the foregoing provision shall not apply in the case where a licensee, in addition to his regular license, is granted a Class "E" license to engage in the sale of alcoholic beverages at the place designated in the Class "E" license. In addition, the provisions of this subsection shall not apply to any licensee serving alcoholic beverages at the city auditorium or the Fargodome, pursuant to the provisions of article 18-05 and article 34-01 of the Fargo Municipal Code; provided, however, that all other provisions of this article and all other ordinances of the city of Fargo, not inconsistent herewith, shall apply to any licensee serving alcoholic beverages at the city auditorium or the Fargodome.

I. Licensee, its agent or employee shall not sell or serve, or permit to be sold or served on the licensed premises any food other than prepackaged, confectionery items such as peanuts, potato chips and similar items. This prohibition shall not apply to licensed establishments which hold a restaurant license or permit pursuant to the provisions of article 13-04 of the Fargo Municipal Code or food items prepared by an article 13-04 licensee for immediate personal consumption and not for resale. Further, licensee may participate in nonprofit public spirited events. A nonprofit public spirited event is one held by an organization not regularly engaged in the business of preparing or selling food who does so for the sale directly to the ultimate consumer at a farmer's market, bake sale, or similar enterprise.

J. Any licensee holding a Class "AB", Class "ABH, Class "A", Class "C", Class "FA", Class "FA-RZ", Class "G", Class "H", Class "Y", Class "W", or Class "I" license, who also holds a restaurant license, limited restaurant license, or permit issued pursuant to the provisions of Article 13-04 of the Fargo Municipal Code, and who regularly serves food and beverages, may dispense alcoholic beverages in connection with food sales, on tables located on the public sidewalk adjacent to the licensed establishment; provided, that tables on the public sidewalk shall be in accordance with Article 18-03 of the Fargo Municipal Code.

* K. Any person under 21 years of age may enter and remain in a licensed premises for a designated alcohol-free public event in any licensed premises or in a separate room within the licensed premises where the licensee has determined not to sell or permit consumption or possession of alcoholic beverages on that licensed premises or within the designated separate room within the licensed premises during a specified time period provided the licensee complies with the require-

ments of this subsection. For purposes of this subsection a public event is any event to which admission is open to the general public and may be gained with or without payment of a fee or an event which is advertised to the general public.

1. The licensee shall give written notice of the intent to operate the premises or separate room within the premises as an alcohol-free area at least 72 hours in advance to the chief of police on a form to be prepared by the chief of police. The notice shall specify which portion of the licensed premises will be used for the alcohol free event or if a separate room within the premises will be used for the alcohol free event. If only a separate room within the licensed premise will be used for the event, the room must have a point of entry and exit which does not permit those under the age of 21 to enter any portion of the licensed premises where alcoholic beverages are being sold, mixed or consumed. The notice shall define what security measures within the licensed premises or the separate room thereof will be taken to prevent the consumption of alcoholic beverages by persons during the alcohol-free event. The chief of police may, in his discretion, require such additional information from the licensee as is necessary to ensure compliance with this section.
2. Security personnel shall be on the premises in such numbers as to ensure the safety of patrons and to maintain order on the premises as follows:

   99 or less - 2 security personnel
   100 to 200 - 3 security personnel
   201 to 300 - 4 security personnel
   301 to 400 - 5 security personnel
   401 to 500 - 6 security personnel
   501 and over - appropriate number of security personnel as may be determined by the chief of police.
3. The licensee shall post conspicuously at all entrances to the alcohol-free event a notice stating the sale, possession or consumption of alcoholic beverages will not be permitted during the duration of the alcohol-free event and that no participant under the age of 21 is permitted into any area within the licensed premises where alcoholic beverages are sold, consumed, or possessed to include common areas such as hallways or restrooms.
4. During the alcohol-free event, the licensee shall remove from public view and secure all containers of alcoholic beverages as well as de-activate any device used to dispense alcohol in the alcohol free event.
5. The licensee shall have all patrons regardless of age removed from the alcohol free event following the completion of the alcohol-free event and not reopen the licensed premise or the separate room thereof for the sale, possession or consumption of alcohol until one hour after the completion of the alcohol-free event.
6. Smoking shall not be permitted at alcohol-free public events.

* L. Any person under 21 years of age may enter and remain in a licensed premises or in a separate room within the licensed premises for a private event where the licensee has restricted access to invited guests provided that the licensee complies

with the requirements of this subsection. For purposes of this subsection a private event is an event which is not open to the general public to which access is granted to invited guests only, for which no admission fee is paid, and for which no advertising was conducted to the general public.

1. The licensee maintains the responsibility to comply with city ordinance 25-1509 (A) which prohibits selling, serving or dispensing any alcoholic beverage to a person under 21 years of age; or permitting any person under 21 years of age to be furnished with any alcoholic beverage upon the licensed premises.
2. The room must have a point of entry and exit which does not permit those under the age of 21 to enter any portion of the licensed premises, not designated as the private event, where alcoholic beverages are being sold, mixed or consumed.
3. The licensee shall post conspicuously at all entrances to the private event a notice stating the sale, possession or consumption of alcoholic beverages by those under the age of 21 will not be permitted and that no participant under the age of 21 is permitted into any area outside of the designated separate room within the licensed premises where alcoholic beverages are sold, consumed, or possessed to include common areas such as hallways or restrooms.
4. Security personnel shall be on the premises in such numbers as to ensure the safety of patrons and to maintain order.
5. The licensee shall have all patrons regardless of age removed from the private event following the completion of the private event and not reopen the separate room to the general public for the purpose of the sale, possession or consumption alcohol until one hour after the completion of the private event.
6. Smoking shall not be permitted at a private event designated under this section.
7. In addition to the foregoing restrictions and conditions, the licensee shall be governed by all applicable provisions of the Fargo Municipal Code.

M. Any licensee holding a valid license under Article 25-15 of the Fargo Municipal Code and conducting business as a bowling alley may:

1. Allow the sale, service and consumption of alcoholic beverages in the bowling alley area and concourse adjacent to the bowling alley area during events sanctioned by the American Bowling Congress, Women's International Bowling Congress sanctioned events, or other nationally or regionally recognized bowling associations;
2. At all other times, the licensee may allow alcoholic beverages to be consumed in the bowling alley area and concourse adjacent to the bowling alley area provided that the alcoholic beverages are purchased and dispensed within the licensed premises.

N. Removal of wine from restaurant. If a full bottle of wine has been opened and the contents partially consumed, a retail alcoholic beverage licensee whose gross sales of food are at least thirty percent of the gross sales of alcoholic beverages that are consumed on the premises may permit an individual purchasing the

bottle in conjunction with the purchase of a meal to remove the bottle on leaving the licensed premises if the licensee re-corks the bottle, seals the bottle with a seal that must be made conspicuously inoperative to reopen the bottle, and places a receipt of sale with the bottle. The removal of the bottle under these conditions is not an off sale of wine and is permitted without an additional license.

** The provisions of this section apply to the licensee's City of Fargo Alcohol License only and do not apply to or grant any exemption from the necessary state liquor license requirements or the provisions of the North Dakota Century Code.*

Source: 1965 Rev. Ord. 25-1509, 1869 (1978), 2090 (1983), 2099 (1983), 2160 (1984), 2162 (1984), 2217 (1985), 2241 (1986), 2264 (1986), 2344 (1987), 2447 (1989), 2509 (1989), 2517 (1990), 2583 (1991), 2584 (1991), 2597 (1991), 2603 (1992), 2645 (1993), 2760 (1995), 2822 (1997), 3015 (1999), 3084 (1999), 4401 (2004), 4476 (2005), 4528 (2006), 4535 (2006), 4565 (2006), 4618 (2007), 4619 (2007), 4626 (2007), 4659 (2008), 4718 (2009), 4973 (2015), 5002 (2015), 5061 (2016), 5085 (2017), 5113 (2017), 5135 (2018), 5311 (2021), 5440 (2024), 5469 (2025).

25-1509.1. Restrictions on sale or consumption in a public place.--

A. No owner, manager or person having control of any public place shall serve, permit to be served, or permit any person to drink alcoholic beverages in such place, unless such place has been duly issued an on-sale or other appropriate license under this chapter.

B. No person shall mix, prepare, serve or consume alcoholic beverages in any public place unless such place has been duly issued an on-sale or other appropriate license under this chapter.

C. The area set aside and specifically designated on the Fargodome parking lot by North Dakota State University and specifically excepted from the definition of "public place" shall nonetheless conform to and abide by all of the other relevant provisions of this chapter. Minors shall not be allowed to possess or consume alcoholic beverages. Minors shall not be allowed in the area set aside and specifically designated unless accompanied by a parent or guardian. There shall be adequate security provided, to the satisfaction of the chief of police, or his designee, and North Dakota State University shall allow inspection by the Fargo Police Department and any other city officials.

D. With respect to persons who are in possession of alcoholic beverages who are wearing a clearly identifiable wrist band, the DCP-E event space set aside and specifically designated in a Class "DCP-E" license, as provided by section 25-1506(CC), is specifically excepted from the definition of "public place" during the time said "DCP-E" license is in effect. Except as set forth herein, all persons shall nonetheless conform to and abide by all of the other relevant provisions of this chapter. Minors shall not be allowed to possess or consume alcoholic beverages.

Source: 3019 (1999), 4412 (2004), 5149 (2018), 5436 (2024).

25-1509.2. Restrictions on obviously intoxicated or impaired persons.--No licensee, partner, principal, agent, or employee of any licensee shall sell, serve, or furnish alcoholic

beverages to, or allow possession or consumption of alcoholic beverages on the licensed premises, by any person who is or has become intoxicated or impaired by alcohol or drugs. A person may be considered to be obviously intoxicated or impaired when it can be determined by appearance, conduct, or demeanor. The term "obviously intoxicated or impaired" shall mean that the person's obvious intoxication or impairment be reasonably discernible or evident to a person of ordinary experience. Such indicators of intoxication or impairment may include, but are not limited to, a combination of any of the following types of conditions:

A. Problems with, or inability to maintain, balance, i.e., stumbling, swaying, staggering gait, bumping into furniture while walking, falling against bar or off stool, resting head on bar;

B. Ineffective muscular coordination, i.e., spilling and/or knocking over drinks, unable to pick up change;

C. Delayed responses, rambling, disorientation, and mental confusion;

D. Strong smell of alcohol;

E. Unusual or distorted speech, i.e., slurred, thick tongue, uncontrollable voice pitch, muttering;

F. Bloodshot, watery, or glassy eyes, flushed face;

G. Condition of clothes and hair, i.e., soiled clothing, urinated upon clothing, disheveled;

H. Unusual behavior, i.e., vomiting, profanity, crying, hiccups, fighting, loud, boisterous, obnoxious behavior, sleeping or unconscious;

I. Anxious, scratching, paranoia, dry mouth, or dilated pupils.

Violation of this ordinance may result in sanctions as prescribed in Section 25-1512(F). Violations may be established with direct and indirect evidence.

Source: 4332 (2003), 5144 (2018), 5388 (2023).

25-1510. Live entertainment license.--

A. No licensee shall feature or permit entertainment, including outdoor amplified music or vocal performances, without first having obtained a live entertainment license provided that a licensee may feature certain forms of background music without obtaining such license. Background music allowed without a live entertainment license shall only include instrumental performances such as a piano, string ensemble, or other instrumental ensemble, or vocal performances held in conjunction with dining in a restaurant or operating under a Class FA-ENTERTAINMENT license. Such entertainment shall not include dancing. A live entertainment license is required for any performance where tickets are sold or where a cover charge is required. It is the intention of this proviso that background-type entertainment clearly incidental to dining and operation of a restaurant, or operation under a Class FA-ENTERTAINMENT license, including non-amplified outdoor music or vocal performances, is allowed without a live entertainment license.

B. The initial license fee for a live entertainment license shall be $700 and the renewal fee for such license shall be $350 per year.

C. The license fee required for a live entertainment license shall be for a period of one year from July 1 through June 30 and shall be payable in advance at the time of the issuance of the license and thereafter, on or before June 10 of each subsequent year for renewal of said license.

D. Annual application for a live entertainment license shall be made by the licensee on forms provided by the city auditor's office of the city of Fargo. The granting of a live entertainment license shall be subject to the approval of the city commission, with any appropriate conditions, and it may be suspended or revoked in conformance with the procedures established by § 25-1512 of this article.

E. The applicant shall provide sufficient information on the application relating to adequate parking, adequate traffic controls, acceptable indoor and outdoor noise levels, and protections against underage drinking. Such other information may be required as necessary in order to properly determine whether a license should be granted to the applicant.

F. No licensee shall feature or permit entertainment at a time when the licensed premises are closed for alcoholic beverage sale, service or consumption pursuant to § 25-1509 of the Fargo Municipal Code.

Source: 1965 Rev. Ord. 25-1510, 1869 (1978), 2859 (1998), 2941 (1998), 4437 (2004), 4627 (2007).

25-1510.1. Entertainment on licensed premises. Restrictions.--
Source: 2775 (1995), repealed by Ord. 2870 (1998).

25-1511. Licensed premises--Requirements for.--

A. Every Class "AB", "ABH", "ABH-RZ", "A", "C", "F", "FA", "FA-ENTERTAINMENT", "G", "H", "I", "L", "M", "RZ-V", "W" and "N" licensed premises must be equipped with adequate and sufficient lavatories and toilets separately maintained for men and women and kept in a clean and sanitary condition.

B. Every Class "AB", "ABH", "ABHE-RZ", "A", "C", "F", "FA", "G", "H", "I", "L", "W" and "M" licensee shall equip his establishment with tables and chairs in sufficient number to accommodate his patrons.

C. Every licensee is hereby made responsible for the conduct of his place of business and is required to maintain order and sobriety in such place of business. No intoxicated person or persons shall be permitted to remain upon the premises licensed or to be served or furnished any alcoholic beverages by any licensee.

D. A licensee shall not be permitted to utilize licensed premises as a food service establishment at times or on days when the sale and dispensing of alcoholic beverages is prohibited except under the following conditions:

1. Said licensee is the holder of a restaurant license pursuant to the provisions of article 13-04 of the Fargo Municipal Code, and is regularly engaged in the business of serving food;

2. Said licensee is the holder of an FA-ENTERTAINMENT and RZ-V license; and

3. The bar or other part of the premises where alcoholic beverages are opened or mixed is either;

   a. Physically shut off from the remainder of the premises by an opaque barrier; or

   b. Devoid of all containers, promotional material, apparatus and equipment relating to alcoholic beverages.

E. Mandatory server training (as defined by 25-1501(26)) shall be required of all liquor licensees. Mandatory server training shall be completed before any person participates in the stream of service of alcoholic beverages. Failure of a licensee to produce the required server training certificate for all employees subject to this requirement at any time requested by any person authorized by the City to verify compliance may result in administrative or other penalties.

Source: 1965 Rev. Ord. 25-1511, 1869 (1978), 1885 (1978), 2100 (1983), 2344 (1987), 2532 (1990), 2822 (1997), 4218 (2002), 4294 (2003), 4346 (2003), 4418 (2004), 4628 (2007), 4697 (2009), 5010 (2015), 5085 (2017), 5378 (2022).

25-1512. Licenses--Termination, suspension, revocation, and sanctions.--All licenses issued under the provisions of this article, unless otherwise specifically provided, shall terminate one year from following the date of issuance; provided, however, that any license issued under the provisions of this article may, under certain circumstances, terminate automatically or may be terminated, suspended or revoked by the commission.

A. Any license issued under the provisions of this article shall automatically terminate:

1. Upon the death of the licensee unless, upon application to the commission by the personal representative of the decedent, the commission shall consent to the carrying on of such business by the personal representative. Said application must be submitted to the commission within 30 days of the licensee's death.

2. When the licensee, for any reason, ceases business at the licensed premises, except as permitted in accordance with § 25-1507(H) of this article. Business shall be deemed to have ceased upon occurrence of any of the following:

   a. When no sale of alcoholic beverages occurs on the licensed premises for a period of at least 30 consecutive business days; or

   b. When alcoholic beverages are not sold on the licensed premises on at least 15 of any 60 consecutive business days; or

   c. When the licensed premises are not open for normal business for at least 180 hours in any 60 consecutive business days;

   provided, however, upon written request of the licensee, the commission, in its discretion and for good cause shown, may extend the date upon which business shall be deemed to have ceased. Any extension granted pursuant to the licensee's request shall be subject to review every six (6) months. The commission reserves the right to deny any extension request.

3. When any license or permit of the licensee from the United States government or state of North Dakota to sell alcoholic beverages at the licensed premises has terminated or been revoked.
4. As to any license issued from and after June 1, 2014, when an ownership transfer has occurred except as are excepted under section 25-1508 subs. K.

B. The commission may, in its discretion, suspend or revoke for cause any license issued under the provisions of this article. The grounds for suspension or revocation shall, among others, include the following:
1. The licensee has filed a petition in bankruptcy.
2. An individual licensee, one of the partners in a partnership licensee, or one of the officers in a corporation licensee, or any individual in active management of the licensed business is convicted of violating any of the provisions of this article.
3. The licensee has been convicted of a felony under the laws of the United States or under the laws of one of the several states.
4. The business of the licensee, at the location licensed, is conducted in such a manner as to be in violation of the health and sanitary regulations of the city of Fargo.
5. The licensee has made any false statement in his application for a license.
6. The licensee conducts his business in a manner which results in, encourages or is conducive to the creation of disturbances of the peace, disorderly conduct or any other violations of federal, state and/or city laws.

C. The grounds enumerated in subsection (B) above of this section shall not be deemed to be exclusive and any license issued under the provisions of this article may be suspended or revoked by the commission for any other reason deemed by the commission to be sufficient in order to promote and protect the public health, safety, morals and general welfare of the people of the city of Fargo. When any license is suspended or revoked by the commission pursuant to the provisions of this section, or when the licensee voluntarily ceases business, no portion of the license fee previously paid shall be returned to the licensee or to anyone claiming under or through him.

D. Penalties for failing compliance checks conducted by the Fargo police department are as follows:
1. First offense - $500 penalty.
2. Second offense - $750 penalty.
3. Third offense - $1,000 penalty - for Class "AB", "A" and "B" license holders, one day suspension of license (liquor sales only) with the date selected by licensee within thirty (30) days of either occurrence of the offense or final decision upon appeal. For all other classes of liquor licenses, two days suspension of liquor sales only.
4. Fourth offense - no monetary penalty - for Class "AB", "A" and "B" license holders, three days in one week suspension of liquor license (liquor sales only) on consecutive dates chosen by licensee requiring the business to be closed. For all other classes of liquor licenses, six consec-

utive days suspension of liquor sales only. Such suspension shall be within thirty (30) days of either the occurrence of the offense or final decision upon appeal.

5. Fifth offense - no monetary penalty - for Class "AB", "A" and "B" license holders, seven consecutive day suspension of license (liquor sales only) with the dates selected by licensee requiring the business to be closed for liquor sales. For all other classes of liquor licenses, fourteen consecutive days suspension of liquor sales only, such suspension to be within thirty (30) days of either the occurrence of the offense or final decision upon appeal.

6. Sixth offense - no monetary penalty - for Class "AB", "A" and "B" license holders, ten consecutive day suspension of license (liquor sales only) with the dates selected by licensee requiring the business to be closed for liquor sales. For all other classes of liquor licenses, twenty consecutive days suspension of liquor sales only, such suspension to be within thirty (30) days of either the occurrence of the offense or final decision upon appeal.

7. Seventh offense - no monetary penalty - revocation of liquor license.

The foregoing penalties for failing compliance checks will be those offenses occurring within a one-year period. Said one-year period commences to run and is calculated (365 days) from the first offense by the licensee. The city of Fargo police department, in conjunction with its designee, will make a reasonable effort to conduct up to four compliance checks a year at each licensed liquor serving establishment in the city. In the event a licensed establishment fails to pass compliance checks during such visits, the same may result in additional compliance checks being conducted at that establishment during the year.

E. For those businesses with liquor licenses requiring a food-to-alcohol sales ratio (or in the case of an FA-ENTERTAINMENT or RZ-V licensee, a food and business income to alcohol sales ratio), there shall be an audit at least once every three (3) years (one-third of the licensees each year) provided, however, that subject businesses obtaining a new license and businesses that transfer an existing license to new owners shall be subject to an audit 12 months after obtaining or transferring of the license. The city of Fargo shall pay the cost of the audit if the business is in compliance with the required food-to-alcohol sales ratio (or in the case of an FA-ENTERTAINMENT or RZ-V licensee, a food and business income to alcohol sales ratio). The liquor licensee shall, however, pay for the cost of the audit of the business is not in compliance with the required food-to-alcohol sales ratio (or in the case of an FA-ENTERTAINMENT or RZ-V licensee, a food and business income to alcohol sales ratio). Penalties for failed audits shall be as follows:

1. First offense - six month probationary period to come into compliance to be followed by a second audit establishing compliance. Sale and consumption of alcoholic beverages shall be discontinued at 1:00 a.m. for such time as the length of any probationary period. Yearly audits for the next two years to be paid for by the liquor licensee.

2. Second offense - thirty days suspension of liquor license not requiring closure of the business which may remain open for food sales. Yearly audits for the next two years to be paid for by the liquor licensee.
3. Third offense - revocation of license.

F. Administrative penalties for violation of section 25-1509.2 are as follows:
1. First offense: $500 administrative penalty.
2. Second offense: $1,000 administrative penalty, plus a one-day suspension of alcoholic beverage license to be determined by liquor control board. For Class "AB", "A" and "B" license holders, one day suspension of license (liquor sales only) with the date selected by licensee. Such suspension shall be within thirty (30) days of either the occurrence of the offense or final decision upon appeal.
3. Third offense: $2,000 administrative penalty, plus a two-day day suspension of alcoholic beverage license to be determined by liquor control board. For Class "AB", "A" and "B" license holders, two days in one week suspension of liquor license (liquor sales only) on consecutive dates chosen by licensee requiring the business to be closed. Such suspension shall be within thirty (30) days of either the occurrence of the offense or final decision upon appeal.
4. Fourth offense: Revocation.

Any suspension of alcoholic beverage license provided for herein shall relate to liquor sales only so that food sales could, if applicable, continue on the licensed premises.

The level of offense shall be determined by reference to an 18-month period from the first offense by licensee. A second offense occurring more than 18-months after a first offense would be deemed a first offense.

It is the intent of this ordinance that no multiple offenses shall be deemed to have occurred from a single incident. For example, on an officer contact with the licensed premises, if there should be two or more offenses involving intoxicated persons on the premises, the same will constitute one offense and not multiple offenses. Any subsequent officer contact with the establishment at a different time may constitute a separate offense.

Source: 1965 Rev. Ord. 25-1512, 1869 (1978), 2198 (1985), 2539 (1990), 2822 (1997), 4182 (2001), 4215 (2002), 4333 (2003), 4416 (2004), 4502 (2006), 4629 (2007), 4915 (2014), 5010 (2015), Ord. 5292 (2021), 5378 (2022); 5388 (2023), 5481 (2025), 5483 (2025).

25-1513. Revocation, suspension, sanctions or other penalties--Hearing Request.--Revocation, suspension, sanctions or other penalties may not be invoked without a public hearing if requested by the licensee. The city auditor's office shall notify the licensee that it has determined a license compliance violation exists, and shall further provide written notice by email and regular mail to the licensee of the Liquor Control Board's scheduled meeting date and time at which the violation will be considered. If the Liquor Control Board recommends revocation, suspension, sanctions or other penalties, the licensee may request a hearing before the board of city commissioners within ten (10) days of such Liquor Control Board recommendation. The board of city commissioners shall conduct a public hearing, including consideration of the evidence and testimony presented to the Liquor Control Board. The city

auditor shall provide written notice to the licensee, specifying the date, time and place of the public hearing before the board of city commissioners, and such notice shall be served upon the licensee or its managing agent in the same manner as provided by law for the service of a summons in a civil action. No hearing shall be held before the board of city commissioners before expiration of fifteen (15) days after the date of the service of the notice upon the licensee.

If, upon such hearing, it appears to the majority of the board of city commissioners that sufficient cause exists for the revocation, suspension, sanctions or other penalty, the board of city commissioners shall issue its findings, conclusions and order which shall then be served on the licensee by certified mail. The findings, conclusions and order of the board of city commissioners is appealable pursuant to Chapter 28-34 of the North Dakota Century Code.

Source: Ord. 5292 (2021).

Editor's note—Ord. 5292, § 2, adopted April 5, 2021, enacted a new § 25-1513 and § 7 of said ordinance renumbered the prior § 25-1513 as § 25-1518. Historical notation has been retained for reference purposes.

25-1514. Creation of a liquor control board.--The purpose of this section is to establish a Liquor Control Board whose purpose is to undertake initial review and consideration of liquor license matters, including but not limited to applications for licenses, license renewal applications, requests for new or additional licenses, and asserted violations which may result in penalties, sanctions, suspensions or license revocations. The Liquor Control Board shall provide a process for review and recommendation to the board of city commissioners.

Source: Ord. 5292 (2021).

Editor's note—Ord. 5292, § 3, adopted April 5, 2021, enacted a new § 25-1514 and § 8 of said ordinance renumbered the prior § 25-1514 as § 25-1519. Historical notation has been retained for reference purposes.

25-1515. Number of Members--Term of Members--Appointment of Members--Filling Vacancies.--The Liquor Control Board shall consist of five (5) members, who shall be appointed by the president of the board of city commissioners, subject to confirmation by the board of city commissioners. One (1) member of the Liquor Control Board shall be a member of the board of city commissioners, who shall serve as Chair of the Liquor Control Board and continue in such role for so long as Committee appointments are approved by the board of city commissioners. The four (4) remaining Liquor Control Board members shall be residents of the city of Fargo and shall be appointed by the president of the board of city commissioners, subject to confirmation by the board of city commissioners. The terms of office of the remaining four (4) Liquor Control Board members shall be as follows: two (2) members shall serve until July 1, 2023; two (2) members shall serve until July 1, 2025. At the expiration of the terms of the members as aforesaid, members shall be appointed for three-year terms. If a vacancy occurs otherwise than by expiration of a term, it shall be filled by appointment for the unexpired portion of the term. Notwithstanding the expiration of a member's term, such member may serve until his or her successor has been appointed and qualified.

Source: Ord. 5292 (2021).

Editor's note—Ord. 5292, § 4, adopted April 5, 2021, enacted a new § 25-1515 and § 9 of said ordinance renumbered the prior § 25-1515 as § 25-1520. Historical notation has been retained for reference purposes.

25-1516. Removal.--Any member of the Liquor Control Board may be removed by the president of the board of city commissioners, subject to the concurrence of a majority of the board of city commissioners.

Source: Ord. 5292 (2021).

25-1517. Powers and Duties.--The Liquor Control Boards shall act in an advisory capacity to the board of city commissioners in any matter which may be assigned to the Liquor Control Board for consideration and recommendation. Members of the Liquor Control Board shall receive no compensation.

Source: Ord. 5292 (2021).

25-1518. Unlawful practices.--In addition to such other prohibitions as are contained in this article:

A. It shall be unlawful for any person to sell or consume any alcoholic beverage upon any street, alley or public highway, including any public sidewalk or boulevard, or on any private property without consent of the owner or occupant within the city of Fargo, except as permitted by subsection (J) of section 25-1509 of this chapter. It shall further be unlawful for any person to possess any bottle or receptacle containing any alcoholic beverage which has been opened or the contents of which have been partially consumed while such person is upon any street, alley or public highway, including any public sidewalk or boulevard, or upon property owned, operated or leased by the city of Fargo or by the state of North Dakota or any political subdivision or agency thereof, within the city of Fargo, except under a valid alcoholic beverages license issued under this article, and further except as permitted by 25-1509.1(C). A violation of this section is deemed a violation of section 10-0327 of this Code.

B. The sale, possession, use or consumption of alcoholic beverages shall be unlawful and prohibited in and on the premises of any public building except as may be authorized by appropriate license or permit issued pursuant of this chapter, and further except as permitted by 25-1509.1(C). A violation of this section is deemed a violation of section 10-0327 of this Code.

C. It shall be unlawful for any person under 21 years of age to misrepresent his or her age for the purpose of purchasing or drinking any alcoholic beverage or for the purpose of entering any premises licensed under the provisions of this article.

D. It shall be unlawful for any person, either personally or through an agent or employee, to procure, furnish or deliver any alcoholic beverage for the use of any person under 21 years of age.

E. No licensee shall deliver or permit to be delivered to any customer outside the licensed premises any alcoholic beverages sold under the terms and provisions of this article unless the package containing such alcoholic beverage shall be securely wrapped and shall contain on the outside thereof, in plain, legible writing, the name of the dealer selling the same and also the name and address of the purchaser thereof. Additional conditions and restrictions on delivery of alcoholic beverages are as follows:

1. Delivery shall only be allowed by licensees having an off-sale license.

2. Delivery shall be limited to customers having a pre-established credit arrangement with the off-sale licensee. Such credit arrangement may be in the form of a house account or open charge account established between the customer and off-sale licensee, but specifically shall not include credit cards, debit cards, bank credit cards or any other form or type of credit arrangement. The pre-established credit arrangement between the customer and the off-sale licensee shall have been established at least one (1) week before any delivery is allowed thereunder. It is the intent of this paragraph that the entire sales transaction is complete at the point of sale subject only to delivery.

3. Delivery shall only be made to the address of the customer as identified on the pre-established credit arrangement with the off-sale licensee.

4. Delivery shall only be made by a person who is of legal age and who has completed mandatory server training.

5. Positive identification of the purchaser shall be made at the point of delivery. In addition, a digital photograph shall be taken to confirm the identity of purchaser.

F. No owner, operator, officer or employee or driver of any taxicab in the city of Fargo shall accept from any person, except a dealer regularly licensed under the provisions of this article, any order for the delivery of any alcoholic beverage.

Source: 1965 Rev. Ord. 25-1513, 1869 (1978), 2025 (1981), 2344 (1987), 2570 (1991), 2760 (1995), 2814 (1997), 2822 (1997), 3090 (1999), 4202 (2002), 4401 (2004), 4412 (2004), 4413 (2004), 5163 (2018), Ord. 5292 (2021), 5472 (2025).

Editor's note—See editor's note to § 25-1513.

25-1519. Inspection of licensed premises.--The members of the board of city commissioners of the city of Fargo, the chief of police, or any officer of the health or police department may, at any time, enter upon any licensed premises for the purpose of police inspection or to determine whether the licensed premises are in compliance with any and all ordinances of the city.

Source: 1965 Rev. Ord. 25-1514, 1869 (1978), Ord. 5292 (2021).

Editor's note—See editor's note to § 25-1514.

25-1520. Penalty.--Any person, firm or corporation violating §§ 25-1509(A), 25-1518(C), or 25-1518(D) of this article is guilty of a Class B misdemeanor. Every person, firm or corporation violating an ordinance which is punishable as a Class B misdemeanor shall be punished by a fine not to exceed $1,500.00, or by imprisonment not to exceed 30 days, or by both such fine and imprisonment, in the discretion of the court; the court to have power to

suspend said sentence and to revoke the suspension thereof. In addition to such fine and/or imprisonment, the court, in its discretion, may assess a fee in an amount not to exceed $25.00 as provided in section 27-01-10, N.D.C.C.

Unless otherwise indicated, every person, firm or corporation violating any other sections of this article shall, upon conviction thereof, be punished by a fine not to exceed $1,000.00; the court to have power to suspend said sentence and to revoke the suspension thereof.

Source: 1965 Rev. Ord. 25-1515, 1869 (1978), 2517 (1990), 4718 (2009), 4909 (2014), Ord. 5292 (2021), 5311 (2021).

Editor's note—See editor's note to § 25-1515.

ARTICLE 25-16

NON-ALCOHOLIC BARS

Note: Article 25-16 of chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2800 (1995).

Source: Article 25-16 of Chapter 25 of the Revised Ordinances of 1952 (sections 25-1601 to 25-1622), 1409 (1971), 1455 (1972), 1484 (1973), 1632 (1975), 1638 (1975), 1647 (1975), 1822 (1977), 2469 (1989), 2555 (1990), repealed by Ord. 2800 (1995).

ARTICLE 25-17

FUEL DEALERS

Note: Article 25-17 of chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2308 (1987).

Source: Article 25-17 of Chapter 25 of the Revised Ordinances of 1952 (sections 25-1701 to 25-1711), 1471 (1973), 1491 (1973), repealed by Ord. 2308 (1987).

ARTICLE 25-18

BARBERSHOPS

Note: Article 25-18 of chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2309 (1987).

Source: Article 25-18 of Chapter 25 of the Revised Ordinances of 1952 (section 25-1801), repealed by Ord. 2309 (1987).

ARTICLE 25-19

CIRCUSES, CARNIVALS, EXHIBITIONS, AND PARADES

Note: Article 25-19 of chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2567 (1991).

Source: Article 25-19 of Chapter 25 of the Revised Ordinances of 1952 (sections 25-1901 to 25-1905), repealed by Ord. 2567 (1991).

ARTICLE 25-20
HOUSE MOVERS

Section

25-2001 House mover's license required.
25-2002 License fee--Bond.
25-2003 Expiration of license.
25-2004 Moving permit required.
25-2005 Moving permit--Fee for.
25-2006 Removal of wires, cables, or pipes--Notice.
25-2007 Permit required to move buildings that will injure trees--Tree-trimming cost paid by mover.
25-2008 Moving buildings across railway tracks.
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25-2011 House-moving board--Composition--Qualifications of members--Secretary--Meetings --Procedure--Findings.
25-2012 Favorable finding of house-moving board needed for issuance of house-moving permit.
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25-2014 Manner of taking appeal.
25-2015 Penalty for violating article.
25-2016 Cost of rebuilding, remodeling, or moving may be assessed as taxes.

25-2001. House mover's license required.--No person except a licensed house mover shall remove, raise, or support free of its foundation any building or structure within the limits of the city of Fargo; and every house mover shall comply with the provisions of § 21-0301 of the Building Code and shall annually, before engaging in the occupation of moving, raising, or supporting of any building or structure, obtain a license therefor from the city auditor of the city of Fargo. The above shall not be construed as preventing the owner of a building or structure from personally raising, moving, or supporting such building or structure upon his own premises.

Source: 1965 Rev. Ord. 25-2001, 1470 (1973).

25-2002. License fee--Bond.--No house mover's license shall be granted until the person applying therefor shall have paid to the city of Fargo the required fee.

Source: 1965 Rev. Ord. 25-2002, 1492 (1973), 2310 (1987).

25-2003. Expiration of license.--All licenses for house movers shall expire one year from the date of issue.

Source: 1952 Rev. Ord. 25-2003.

25-2004. Moving permit required.--Every licensed house mover shall, before raising, moving, or supporting free of its foundation any building or structure, make application on forms provided and obtain a permit therefor from the city engineer.

Source: 1952 Rev. Ord. 25-2004.

25-2005. Moving permit--Fee for.--When any building or structure is to be moved across or through any street or alley, the required fee, which shall be established by resolution of the board of city commissioners, shall be paid by the person receiving a permit therefor. Upon the issuance of such permit, all excavations, erection of foundations, and setting of the building or structure in place at its new location only shall be authorized.

Source: 1965 Rev. Ord. 25-2005, 1492 (1973).

25-2006. Removal of wires, cables, or pipes--Notice.--

A. The person to whom a removal permit has been issued shall, before raising or moving any building or structure to which electric wires, cables, or piping for any purpose are attached, notify the persons, associations, or corporations owning or controlling such electric wiring, cables, or piping of the proposed moving of said building or structure. The persons, associations, or corporations so notified shall, within a reasonable time not exceeding 24 hours thereafter, disconnect and make safe all such electric wires, cables, or piping.

B. In every case in which a permit shall be issued as herein provided for the removal of any house or structure, when such removal requires the displacement of any overhead electrical or other wire or cable, it shall be the duty of the person,

association, or corporation owning, operating, or controlling such wire or cable to remove or displace the same, as far as may be necessary, to permit the removal of such house, building, or structure. The person to whom a removal permit shall have been issued shall notify the persons, associations, or corporations owning, operating, or controlling such wire or cable to remove or displace the same to facilitate the removal of said house, building, or structure, and shall exhibit to said persons, associations, or corporations the properly issued permit, authorizing the removal of said house, building, or structure; and it shall thereupon be the duty of said persons, associations, or corporations, within a reasonable time not exceeding 24 hours thereafter, to remove or displace such wires or cables sufficiently to allow the passage of said house, building, or structure.

Source: 1952 Rev. Ord. 25-2006.

25-2007. Permit required to move buildings that will injure trees--Tree-trimming cost paid by mover.--No person, firm, or corporation, whether licensed or otherwise, shall move any building or structure along any street, alley or other public way in such a manner as to interfere with or injure any tree, shrub, or other vegetable growth without a written permit first obtained from the superintendent of parks. The application shall specify the building or structure to be moved and the proposed route. All necessary tree-trimming or shrub-trimming costs shall be paid by applicant.

Source: 1952 Rev. Ord. 25-2007.

25-2008. Moving buildings across railway tracks.--No house, building, or structure shall be moved across any railway track except at such time as permitted by the person, associations, or corporation owning or controlling such tracks.

Source: 1952 Rev. Ord. 25-2008.

25-2009. Buildings in streets--Lights required.--When any building or structure is being moved upon or adjoining any street, alley, or sidewalk, a red light must be kept lighted at each corner of such building or structure from sunset to sunrise. All ropes, blocks, winches, windlasses, or other equipment used in the moving of said building or structure must, when obstructing the free use of a street or alley, be protected by suitable lights from sunset to sunrise.

Source: 1952 Rev. Ord. 25-2009.

25-2010. Hours of moving operations--Buildings not to stand on streets without written permission.--Moving operations upon a street or alley shall be carried on continuously for at least eight hours daily, except Sunday, and in such manner as to cause the least inconvenience to the public use of such street or alley. No building shall be left, or be permitted to stand, on any street, alley, or public place in the city without written permission from the city engineer.

Source: 1952 Rev. Ord. 25-2010.

25-2011. House-moving board--Composition--Qualifications of members--Secretary-- Meetings--Procedure--Findings.--The house-moving board shall consist of three residents of the city of Fargo, two of whom shall be architects, including within that term

landscape architects, selected from a panel of not less than five, which board shall be established from time to time by resolution of the board of city commissioners. The building inspector shall be secretary of the house-moving board and the secretary of said board shall from time to time select and request, until the requisite number is obtained, the residents listed upon the above-mentioned panel, to act as said board whenever the city engineer shall request a meeting of the board to consider applications for house-moving permits which he has found comply in all respects with all other ordinances of the city. The board may, if it desires, hear the applicant for the house-moving permit in question and/or the owner of the lot on which it is proposed to move the structure in question, together with any other persons, whether residents or property owners, desiring to be heard, giving such notice of the hearing as the board may deem sufficient. Such hearing may be adjourned from time to time but for not more than 48 hours, and within 48 hours after the close of the hearing the board shall, in writing, make or refuse to make the finding required by § 25-2012 and file their report in the office of the city engineer who shall send a copy of it to the building inspector.

Source: 1952 Rev. Ord. 1043 (1959).

25-2012. Favorable finding of house-moving board needed for issuance of house-moving permit.--No house-moving permit for any structure shall be issued unless it has been found as a fact by the house-moving board by at least a majority vote, after a view of the proposed site and after either a view of the house concerned or an examination of the application papers for a house-moving permit, which shall include photographs or detailed exterior elevations of the house to be moved, that the exterior architectural appeal and functional plan of the house will, when moved, not be so at variance with or so similar to either the exterior architectural appeal and functional plan of the structures already constructed or in the course of construction in the immediate neighborhood or the character of the applicable district as established by the zoning ordinances of the city as to cause a substantial depreciation in the property values of said neighborhood within said applicable district.

Source: 1952 Rev. Ord. 1043 (1959).

25-2013. Appeal to board of adjustment from finding of house-moving board--Absence of certain proof on appeal, effect of.--On an appeal to the board of adjustment, in the absence of proof to the contrary adduced before the board of adjustment, a refusal to grant the house-moving permit because of refusal of the house-moving board to make the finding required by § 25-2012 shall be deemed to be based upon facts supporting the conclusion that the exterior architectural appeal and functional plan of the proposed structure for which a house-moving permit was refused would, when erected, be so at variance with all of the exterior architectural appeal and functional plan of structures already constructed or in the course of construction in the immediate neighborhood or with the character of the applicable district as to cause a substantial depreciation in the property values of said neighborhood within said applicable district.

Source: 1952 Rev. Ord. 1043 (1959).

25-2014. Manner of taking appeal.--Anyone aggrieved may appeal from the grant of, or refusal of the city engineer to grant, said house-moving permit, to the board of adjustment of the city of Fargo in the same manner and with the same force and effect as appeals can be taken from the decisions of the zoning administrator, pursuant to subsection (C) of § 20-0315 of article 3 of chapter 15 of the 1965 Revised Ordinances.

Source: 1952 Rev. Ord. 1043 (1959).

25-2015. Penalty for violating article.--Every person, firm, company, or corporation who shall violate any of the terms and provisions of this article shall, upon conviction thereof, be punished by a fine not to exceed $100, or by imprisonment not to exceed 90 days, or by both such fine and imprisonment, in the discretion of the court; the court to have power to suspend said sentence, and to revoke the suspension thereof.

Source: 1952 Rev. Ord. 1043 (1959).

25-2016. Cost of rebuilding, remodeling, or moving may be assessed as taxes.--In the event that any person, firm, company, or corporation shall violate any provision of this article and after conviction thereof shall refuse to correct the violation within 15 days after written notice from the building inspector so to do, then and in that event the city may proceed, under the direction of the city engineer, to correct any such violation, including the rebuilding, remodeling, or moving of any house or structure so as to comply with this article; the cost and expenses of such work, as certified by the city engineer to the city auditor, shall be recoverable in an action against the owner or owners of the real property upon which the structure or house is located, or any person, firm, company or corporation found guilty of a violation of this article, or it shall be certified by the city auditor as a special tax assessment against the lot or parcel of land upon which said structure or house is located. In August of each year the board of city commissioners shall review all such assessments and hear all complaints against the same and approve the same as finally adjusted and such special assessment shall then be certified to the county auditor to be placed upon the tax roll for that year and be collected as other city taxes.

Sources: 1952 Rev. Ord. 1043 (1959).

ARTICLE 25-21

EXTERMINATION OF INSECTS AND VERMIN

Section

25-2101 Operations prohibited without license.
25-2102 License required.
25-2103 Issuance of license.
25-2104 Fee for licenses.
25-2105 Notification of officers.
25-2106 Regulations.
25-2107 Penalty for violation of article.

25-2101. Operations prohibited without license.--No person, firm, or corporation shall fumigate with any poisonous or dangerous gases, fumes, vapors, or other agents that are liable to endanger the health and lives of human beings when used for the extermination or control of disease germs, household insects, vermin, rodents, or other household pests in any place of domestic habitation, office buildings, stores, markets, warehouses, places of public assembly, asylums, hospitals, or other similar places without first obtaining a license as hereinafter required. No person, firm, or corporation shall commercially engage in the business of exterminating with powders, liquids, sprays, poisonous baits, or other insecticides without first obtaining a license.

Source: 1952 Rev. Ord. 25-2101.

25-2102. License required.--Any person, firm, or corporation, desiring a license to engage in the business of extermination of disease germs, household insects, vermin, rodents, or other household pests in the city shall make a written application for such a license to the health officer on a form provided for such purpose. Such application shall state whether hydrocyanic acid gas or similar dangerous gases or fumigants, or exterminators, or insecticides are to be used for fumigating purposes. The term "fumigant" shall mean and include any substance which by itself or in combination with any other substance emits or liberates a gas, fumes, or vapors, which gas, fumes, or vapors when liberated and used for the destruction or control of insects, vermin, germs, rodents, or other pests is lethal, poisonous, noxious, or dangerous to human life. The terms "exterminator" or "insecticide" as used herein shall mean and include any substance, not a fumigant, under whatever name known, used for the destruction or control of insects, vermin, germs, rodents, or other pests. In addition, the applicant shall file with the health officer, a sworn statement, listing the training and experience tending to qualify the applicant desiring to engage in the business of exterminating with dangerous and poisonous gases, fumes, vapors, or other agents. The health officer may also examine applicants by giving such oral or written examination as he deems necessary. The health officer is authorized to appoint an advisory board of three representatives of the fumigating industry to confer with him upon matters of technical information with reference to said business and to assist him in drafting questions for such examinations as he deems necessary to determine the fitness and reliability of the applicant and to ascertain his knowledge of the requirements of said business as set forth in this ordinance. Every person and every firm or corporation, by an officer or agent, engaged in exterminating work shall be required to obtain a license for such work, and no employee of such person, firm, or corporation shall be permitted to do any work for the person, firm, or corporation while engaged in exterminating work unless such employee is under the immediate supervision of a licensed exterminator employed by the person, firm, or corporation.

Source: 1952 Rev. Ord. 25-2102.

25-2103. Issuance of license.--The health officer shall issue a license to applicants when he believes them to be qualified to engage in the business of exterminating or fumigating with dangerous and poisonous gases, fumes, vapors, or other agents.

Source: 1952 Rev. Ord. 25-2103.

25-2104. Fee for licenses.--The annual license fee for any person, firm, or corporation engaging in the exterminating business shall be as established by resolution of the board of city commissioners. The approval of the health officer for the renewal of the licenses as provided for by this section shall be obtained before such a license is renewed.

Source: 1965 Rev. Ord. 25-2104, 1494 (1973).

25-2105. Notification of officers.--It shall be the duty of every person, firm, or corporation holding a license under this article for fumigating with dangerous gases, fumes and vapors, to notify in writing the health department, fire department, and police department at least 24 hours before starting to fumigate any premises, except that in case of emergency, notification may be made by telephone immediately preceding fumigation, to be followed by written notice. Such notice shall give the location of the building or enclosed space to be fumigated, as well as the day and hour when the work will be performed. Representatives of these departments may or may not inspect such premises before, during, or after the fumiga-

tion, but under no circumstances will the representatives of such departments or the city assume any responsibility for the work of the licensee. Greenhouses, specially constructed vaults, and other places performing their own fumigation are not required to obtain a license under the provisions of this article and are not required to notify the above-named departments whenever they fumigate, providing these places are so located or so constructed as not to endanger the health or lives of occupants or frequenters of these places and nearby buildings or persons in the vicinity.

Source: 1952 Rev. Ord. 25-2105.

25-2106. Regulations.--When dangerous gases, fumes, or vapors are used for exterminating purposes, the following procedure shall be followed:

A. Notification of occupants and vacating of premises. Before fumigation, the operator shall personally inspect the premises, and shall serve notice, over his signature, upon all responsible occupants of each room or apartment within the danger area, stating the danger of the process and the precautions to be observed, designating the rooms or apartments which must be vacated, and indicating the time when the gas is to be generated and liberated. The form of this notice shall be approved by the health officer. Every room in the danger area shall be vacated. In the case of a building in which there is an inner court, vent shaft, or light well, or a lot-line court with a partywall, or in the case of two buildings having adjacent lot-line courts, upon which any room being gassed opens, every room, with windows or other apertures opening to such inner or lot-line courts, vent shafts or light wells, shall be vacated or the windows remain closed until the fumigation room is thoroughly ventilated. Where the walls of any adjoining buildings are located within 10 feet of the rooms or apartments being gassed, the operator shall notify, over his signature, all responsible occupants of rooms or apartments with window openings in such wells that such windows are directly opposite or above the area of the adjoining building which is under gas and must remain closed, or the rooms vacated, during the time the building gassed is being flushed or aired. All rooms or apartments ordered vacated but not under gas shall be ventilated during the process by keeping the windows or rooms or apartment open.

The operator placing or liberating toxic gas during the process of fumigation and while he is entering and airing out the premises during said process and immediately thereafter shall be properly protected and safeguarded by being equipped with a mask approved by the health officer and suitable gloves.

Vacating of premises and notification of occupants shall not be necessary where the fumigation is done in special rooms or vaults in furniture stores, secondhand stores, or household goods warehouses, when such special rooms or vaults are approved as to their location, construction, and gas-tightness by the fire department and a provision is made for the airing of such vaults so as to allow the escape of gases, fumes, or vapors at such location where it is not dangerous, by a system of ducts and ventilation approved by the fire department.

B. The danger area. The danger area is those portions of any structure or dwelling which lie within the boundary of the outside of the building under gas, the roof,

the basement or cellar floor, and such cutoff or firewalls as may exist in the structure in question. Such cutoff or fire walls shall be of solid masonry, gas tight, at least eight inches in thickness, extending from the basement through the attic, with all openings locked and guarded against entry and effectively sealed against gas leakage.

C. Sealing rooms. Before fumigation with dangerous gases, fumes, or vapors, it is required that the operator shall securely seal all cracks, holes, crevices, openings, and apertures in walls, ceilings, and floors in such a way as to confine the gas to the premises intended to be fumigated.

D. Locking rooms and adjoining rooms or apartments. Before fumigation, it is required that the operator shall personally inspect all rooms and apartments ordered vacated under subdivision (A) above, and be assured that they are unoccupied by persons or domestic animals, and that all fish and growing plants have been removed; afterward all doors to all apartments, excepting one exit door to the rooms or apartments to be gassed, shall be securely locked; in addition, such windows or other wall openings as might possibly be used to gain entrance shall be locked or barred in such a way as to prevent entrance while still permitting thorough airing of the room. Immediately upon generating or liberating the gas, the door through which the operator leaves shall be securely locked and sealed, and all keys obtainable to all rooms or apartments ordered vacated shall be retained by the operator until all danger is past. As an additional precaution, all rooms and apartments vacated shall be placarded.

E. Warning card. Prior to releasing the gas, suitable warning signs shall be posted on all entrances or doors to the premises to be fumigated:

Skull and Crossbones Symbol	DANGER Fumigating With Poisonous Gas KEEP OUT	Skull and Crossbones Symbol

By order of the Fargo Fire Department (Name and address of licensee as well as telephone number.)

Such signs shall be printed in red ink on white cardboard. The letters in the word "DANGER" shall be at least two inches high, all others except signature, at least three-fourths of an inch high. At night, whenever possible, such signs shall be illuminated so as to make the reading matter thereon plainly legible.

F. Guards. Whenever dangerous gases, fumes, or vapors are generated or liberated in any room or portion of a structure in the city, a sufficient number of capable, alert watchmen shall remain on duty at the entrance to the building, room, or other enclosed space to prevent people from entering or attempting to enter while gas is present and for two hours after the room or area gassed is open for aeration and ventilation. All guards or watchmen shall be reliable persons and must be acceptable as proper guards by the health officer. The licensee shall be held strictly responsible and accountable for the conduct of the guards or watchmen. In every case where the entire building is not vacated, the licensee or his approved representative shall remain on the job during the progress of fumigation and airing and shall constantly supervise the occupancy of the

structure to ensure that no person will be endangered or inconvenienced by gas leakage. Guards are not compulsory when one- or two-family residences are fumigated.

G. Opening of rooms after gassing. At the conclusion of the gassing process, its hall be the duty of the operator to throw open doors and windows of the premises until all rooms have been opened for free access of air. No person other than the operator shall be permitted to enter the premises until all traces of the gas have disappeared. No room or space, except where the whole building is vacated, shall be left under gas after the time of sunset. Warnings posted where the natural light between sunrise and sunset is dim shall be artificially illuminated.

H. Disposal of chemical residue. The operator shall pour the residue left in the jars or containers which held the chemicals and the water used for cleaning such jars or containers down the toilet bowl, which shall then be flushed thoroughly with water to remove all traces of the chemicals.

I. Powers of health officer. The health officer is further authorized and directed to give 30 days' notice of his intention to add or change rules and regulations with reference to the fumigating industry to representatives of said industry.

J. Separability. It is the intent of the board of city commissioners that the provisions of this article are separable, and if any provision or part of this article shall be held unconstitutional by any court having competent jurisdiction, such decision shall not affect the validity of any other part of this article. Such other parts shall remain in full force and effect.

Source: 1952 Rev. Ord. 25-2106.

25-2107. Penalty for violation of article.--The license of any person, firm, or corporation violating any of the provisions of this article may be revoked by the board of city commissioners, who shall give due hearing to the licensee before such revocation. The licensee shall be given 10 days' registered mail notice of any such hearing.

Source: 1952 Rev. Ord. 25-2107.

ARTICLE 25-22

HOTEL AND ROOMING-HOUSE REGISTERS

Section

25-2201 Registers to be kept.
25-2202 Definition of hotel, rooming house, or lodginghouse.

25-2201. Registers to be kept.--Every person, corporation, co-partnership, or association conducting, keeping, or managing or operating, as owner, lessee, agent, or in any other capacity, any hotel, rooming house or lodging house within the corporate limits of the city shall at all times keep and maintain a standard hotel register in form satisfactory to the chief of

police, in which shall be inscribed the names and permanent residences of all guests or persons renting or occupying rooms in such hotel, rooming house or lodging house, which register shall be signed by the person renting a room or rooms, or by someone under his direction. Before any person shall be permitted to occupy such room or rooms, the manager of the hotel, rooming house, or lodging house, or his agent, shall write in such register the number of the room or rooms which such guest or person is to occupy, together with the time when such room is rented. Such register shall be preserved for a period of not less than three years from the date of the renting of such room.

Source: 1952 Rev. Ord. 10-0617 and 25-2201, 5337 (2022).

25-2202. Definition of hotel, rooming house, or lodginghouse.--For the purposes of this article a hotel, rooming house, or lodginghouse shall be and is deemed to be any house or building occupied as the abiding place of five or more individuals who are not related to the owner or lessee thereof and who are lodged in such house or building with or without meals and in which sleeping rooms, as a rule, are offered to the public for rental or hire singly and as separate units from the other rooms in such house or building. Nothing in this article contained shall be construed to apply to any eleemosynary, religious, benevolent, or charitable organization or association.

Source: 1952 Rev. Ord. 10-0617 and 25-2202.

ARTICLE 25-23

SNOW REMOVERS

Note: Article 25-23 of Chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2301, effective December 29, 1986.

ARTICLE 25-24

MOBILE HOMES AND RECREATIONAL VEHICLES

Section

25-2401 Definitions.
25-2402 Parking of mobile homes or recreational vehicles.
25-2403 Mobile home park license.
25-2404 Application for license and renewal; fees.
25-2405 Term of license.
25-2406 Park standards.
25-2407 Certification label.

25-2401. Definitions.--In this article, unless the context or subject matter otherwise requires:

A. "Mobile home" means a structure, transportable in one or more sections, which is eight body feet or more in width and thirty-two body feet or more in length, and which is built on a permanent chassis, and designed to be connected to the required utilities and used as a residence.

B. "Mobile home lot" means a designated parcel of land in a mobile home community designated for the accommodation of one mobile home and its accessory equipment, for exclusive use of the occupants of the mobile home.

C. "Mobile home stand" means that area of a mobile home site which has been reserved for the placement of a mobile home.

D. "Mobile home community" means a mobile home community or plot of ground under single ownership or management which has been planned and improved for the placement of at least ten mobile homes which is used for the accommodation of occupied mobile homes.

E. "Recreational vehicle" means a vehicular unit primarily designed as temporary living quarters for recreational, camping, or travel use, which either has its own motive power or is mounted on or drawn by another vehicle. The basic entities are travel trailer, camping trailer, truck camper and motor home.

F. "Recreational vehicle park" means a plot of ground under single ownership or management which has been planned and improved for occupancy by at least twenty or more recreational vehicles of the general public as temporary living quarters for recreational or vacation purposes.

G. "Recreational vehicle space" means a plot of ground within a recreational vehicle park intended for the accommodation of a recreational vehicle, tent, or other individual camping unit on a temporary basis.

H. "Carport" means a roofed structure, attached or detached, for protection of a vehicle or vehicles, which, if attached to the mobile home is open on at least two sides and, if detached, is open on two or more sides except for necessary roof supports.

Source: 4952 (2014).

25-2402. Parking of mobile homes or recreational vehicles.

A. It is unlawful for any person to park a mobile home or recreational vehicle on any street, alley, highway, or public place or on any tract of land owned by any person, occupied or unoccupied, within the city except as provided in this section.

B. Emergency or temporary stopping or parking is permitted on any street, alley or highway for no longer than 48 hours, subject to any other or further traffic or parking limits imposed on such streets, alleys, or highways.

C. Mobile homes or recreational vehicles may be used for temporary construction offices and sales rooms when a special use permit is first secured as required by Chapter 20 of the Fargo Municipal Code.

D. Recreational vehicles may be parked upon private premises, if vacant and not used for human habitation. A recreational vehicle may not be occupied or used for human habitation unless located in a licensed recreational vehicle park, or except for special events at designated locations approved by the building official.

E. Mobile homes may be allowed on parcels of land that are properly zoned and platted for such use as allowed by Chapter 20 of the Fargo Municipal Code.

Source: 4952 (2014).

25-2403. Mobile home park license.

A. It is unlawful for any person to maintain or operate a mobile home community without a valid license issued annually by the city auditor in the name of such person. All applications for licenses must be made to the city auditor and a license issued upon compliance by the applicant with provisions of this chapter.

B. Every person holding a license shall give notice in writing to the city auditor within 24 hours after having sold, transferred, given away or otherwise disposed of interest in or control of any mobile home community. The notice shall include the name and address of the person succeeding to the ownership or control.

Source: 4952 (2014).

25-2404. Application for license and renewal; fees.--Application for a license for a mobile home community must be filed with the city auditor. The application shall contain the following:

A. Name and address of the applicant and the annual fee.

B. The location and legal description of the mobile home community showing all the mobile home stands, structures, roads and other service facilities.

C. The annual fee for mobile home parks shall be set by resolution of the board of city commissioners.

Applications for renewal of licenses must be made on forms issued by the city auditor and must be accompanied by the required fee and contain any change in the information submitted since the original license was issued or the latest renewal granted.

Source: 4952 (2014).

25-2405. Term of license.--Every license issued under the provisions of this chapter is valid for the period of January 1st of each year through December 31 of that year. Licenses must be posted in the office or on the premises of the mobile home community at all times. Any license issued after January 1st of any year shall be valid only until the following December 31st.

Source: 4952 (2014).

25-2406. Park standards.--In addition to the standards located in Section 20-0207 of Chapter 20 of the Fargo Municipal Code, each mobile home park or community shall comply with the following:

A. The limits of each mobile home lot must be marked or clearly defined on the ground. The lot limits must be the same as shown on accepted plans.

B. The mobile home stand must be improved to provide adequate support for placement. The stand may not heave, shift or settle unevenly under the weight of the mobile home due to inadequate drainage. The stand must be graded to provide drainage away from the stand. Permanent foundations shall comply with the requirements of the city building code.

C. Mobile homes and attachments must be separated from each other and from other principal buildings or structures on adjacent lots in the community by at least fifteen feet.

D. All streets within a mobile home community must be hard-surfaced and shall comply with the city zoning ordinances. All streets shall be maintained in good condition.

E. The connection of water, fuel, sanitary sewer and electrical service must be under the supervision of the mobile home community owner or operator or a

qualified representative of the utility company supplying fuel or electrical service. A mobile home may not be occupied before an inspection is conducted by the building official of the following items to insure ordinance compliance:

1. Water and sanitary sewer connections;
2. The electrical service conductors;
3. The placement of the home to insure sideyard and setback requirements;
4. A gas line test conducted by the owner or seller of the mobile home unit and certified by the building official;
5. Heating appliances for transportation damages;
6. Blocking to approved standards;
7. The home is secured by approved tie-downs to the stand.

F. Each new or altered mobile home lot must be provided with service equipment rated at not less than 100 amperes. Provisions may be made for connecting a mobile home power supply assembly by a permanent wiring method which may have 50-ampere receptacles conforming to the National Electrical Code. Each existing mobile home lot must be provided with an electrical service of adequate size to serve the mobile home load.

G. Fuel supply.

1. Gas equipment and installation within a mobile home community must be designed and constructed in accordance with the provisions of the International Fuel Gas Code, as adopted by the city. Each lot must be provided with an accessible, listed gas shutoff valve. The valve may not be located under the mobile home. The connector between the gas supply line and the mobile home must be an approved listed flexible mobile home connector of sufficient capacity to supply gas to the connected load.
2. Fuel oil equipment and supply must be designed and installed in accordance with the International Fuel Gas Code and the International Fire Code, as adopted by the city.

H. A mobile home community must be provided with an adequate supply of potable water complying with the state health department standards for drinking and domestic use.

I. Each mobile home lot must be provided with sanitary sewer and water connections. Such plumbing facilities shall conform to the city's plumbing code.

J. Any buildings housing toilet rooms and/or laundry facilities must be a permanent structure. The interior surfaces must be moisture resistant and readily cleanable. Such structures shall meet the requirements of the city building code.

K. Accessory buildings.

1. Accessory buildings and carports must be of standard construction and shall meet the requirements of the city building code. An attached entryway may not obstruct any required exitway from the mobile home. No more than one entryway is allowed for each mobile home. The entryway is limited to a maximum of 120 square feet in size. A porch or deck that is open on at least two sides except for roof supports and guardrails need not be included in the allowable square footage of the attached entryway.

2. Individual storm shelters are permitted provided they meet the requirements of the city building code and the consent of the community manager has been obtained. Such shelters may not be included in lot coverage requirements of the zoning ordinances or be counted as an accessory building to the mobile home lot.

3. A detached garage may be allowed providing the following requirements are met:

   a) Garages must be located at least seven and one-half feet from the dividing line between mobile home lots. They shall be at least 15 feet from the mobile home or any attachment thereto on a neighboring lot.

   b) A minimum of six feet must be maintained between a garage and a mobile home or attachment thereto on the same lot.

   c) A 20-foot setback must be maintained between the front of the garage and any public or private street.

   d) The above setback and sideyard clearances apply unless a greater clearance is required by the zoning ordinances if the mobile home, attachment, or accessory buildings is located adjacent to a public right-of-way. These clearances must be to the walls of the structure involved; a roof overhang may extend a maximum of two feet into the setback or sideyard.

e. Accessory buildings on a mobile home lot are limited to one attached entryway not to exceed 120 square feet, one detached storage or utility building not to exceed 120 square feet, and one detached garage as specified in this section.

f. Carports may not project beyond the front or rear edge of the mobile home. Carports must be set back a minimum of 20 feet from the walkway, a minimum of seven and one-half feet from the lot line, and must be located at least 15 feet from any other mobile home and its attachments.

g. Accessory structures must be attached to proper foundations. Exceptions to foundations may be granted by the building official provided the methods used shall render them rodent proof and resistant to wind damage.

h. Accessory buildings may not be constructed without building permits.

h. Accessory storage or utility structures shall comply with setback and sideyard requirements of the zoning ordinances.

Source: 4952 (2014).

25-2407. Certification label.--Each mobile home shall be affixed with a permanent label certifying that the mobile home complies with the requirements of the U.S. Department of Housing and Urban Development and is constructed in conformance with the federal mobile home construction and safety standards.

Source: 4952 (2014).

ARTICLE 25-25

GOING-OUT-OF-BUSINESS AND FIRE SALES

Section

25-2501 Definitions.
25-2502 License required.
25-2503 Powers and duties of city auditor.
25-2504 Application for license.
25-2505 Issuance of license and license fee.
25-2506 Limitations on articles to be sold.
25-2507 Bond and clean-up deposit required of applicant for license--Repealed.
25-2508 Period of license--Renewal.
25-2509 Display of license--Inspection of merchandise and records.
25-2510 Persons exempt from article.
25-2511 Penalty for violation of article.
25-2512 Separability clause.

25-2501. Definitions.--The following words and terms, as used in this article, shall be deemed to mean and be construed as follows:

1. "Sales". The sale, or an offer to sell, to the public of goods, wares, and merchandise of any and all kinds and descriptions on hand and in stock in connection with a declared purpose, as set forth by advertising, on the part of the seller that such sale is anticipatory to the termination, closing, liquidation, revision, windup, discontinuance, conclusion, or abandonment of the business in connection with such sale. It shall also include any sale advertised, either specifically or in substance, to be a "fire sale", "smoke-and-water-damage sale", "adjustment sale", "creditor's sale", "trustee's sale", "bankrupt sale", "save-us-from-bankruptcy sale", "insolvent sale", "insurance salvage sale", "mortgage sale", "assignee's sale", "adjuster's sale", "loss-of-lease sale", "receiver's sale", "forced-out-of-business sale", "going-out-of-business sale", "removal sale", and any and all sales advertised in such manner as to reasonably convey to the public that upon the disposal of the stock of goods on hand, the business will cease and be discontinued.

2. "Publish". "Publishing", "advertisements", "advertising" shall include any and all means of conveying to the public notice of sale or notice of intention to conduct a sale, whether by word of mouth, by newspaper advertisement, by magazine advertisement, by handbill, by circular, by pamphlet, by written notice, by printed notice, by printed display, by billboard display, by poster, by radio announcement, by radio program, by recordings and any and all means including oral, written, or printed.

3. "License". A license issued pursuant to this article.

4. "Licensee". Any person to whom a license has been issued pursuant to this article.

Source: 1952 Rev. Ord. 1072 (1959).

25-2502. License required.--No person shall hereafter publish, advertise, or conduct any sale of the type defined in § 25-2501 without first receiving a license therefor.

Source: 1952 Rev. Ord. 1072 (1959).

25-2503. Powers and duties of city auditor.--The city auditor of the city of Fargo is hereby authorized and empowered to supervise or regulate sales or special sales as defined in § 25-2501 and to issue an appropriate license therefore, upon proper application.

Source: 1965 Rev. Ord. 25-2503, 1475 (1973).

25-2504. Application for license.--Application for a license shall be made to the city auditor of the city of Fargo in a form to be approved by said city auditor and shall be in writing and verified by the applicant. Such application shall contain a description of the place where such sale is to be held, the nature of the occupancy, whether by ownership, lease, or sublease, and the effective date of termination of such occupancy, the means to be employed in publishing such sale, together with the proposed language contained in any advertisements. Such application shall further contain, as part thereof, an itemized inventory list of the goods, wares, and merchandise to be offered for sale; a statement why such goods, wares, and merchandise are to be sold under such descriptive name or title, and in what manner such name is truthfully descriptive of such sale; and the place where such stock was purchased or acquired, and if not purchased, the manner of such acquisition and when acquired, and also

the date of delivery thereof to the applicant. Upon receipt of such application and payment of the fee hereinafter prescribed, the city auditor shall cause the same to be examined and investigated.

Source: 1965 Rev. Ord. 25-2504, 1475 (1973).

25-2505. Issuance of license and license fee.--If, upon investigation, the facts as represented by the application required by § 25-2504 are found to conform to the representations thereof and the advertising proposed to be used truly represents such facts and is not fraudulent or misleading to the public, the city auditor of the city of Fargo shall issue a license permitting the publication and conduct of the sale. The license fee for the original license and each 30-day renewal shall be as established by resolution of the board of city commissioners.

Source: 1965 Rev. Ord. 25-2505, 1475 (1973), 1556 (1973).

25-2506. Limitations on articles to be sold.--During any sale licensed under the provisions of this article, no additions whatsoever shall be made to the stock of merchandise set forth in the inventory attached to the application for license, except that the applicant is permitted to add new stock not to exceed 10% of the dollar value of the inventory as filed, for the purpose of maintaining reasonably balanced selections. Such additions may be made only once and must be reported to the city auditor before being offered for sale. Nothing shall be offered for sale or sold at any such sale which is in excess of the original inventory as filed, plus such permitted additions.

Source: 1952 Rev. Ord. 1072 (1959).

25-2507. Bond and clean-up deposit required of applicant for license.--Repealed by Ord. No. 2311, effective January 12, 1987.

25-2508. Period of license--Renewal.--A license shall cover a period not exceeding 30 days, except that upon satisfactory proof by the licensee that the stock itemized in the original application has not been disposed of, upon proper application, the city auditor's office shall renew such license for not more than two additional 30-day periods upon payment of the prescribed renewal fee for each renewal period. Said renewal application shall contain an itemized list of the original stock remaining on hand and shall be verified by the applicant. The city auditor shall cause the same to be examined and investigated, and if satisfied as to the truth of the statements therein contained, the city auditor shall issue a renewal license for the period of 30 days.

Source: 1952 Rev. Ord. 1072 (1959), 2311 (1987).

25-2509. Display of license--Inspection of merchandise and records.--Upon commencement of any sale, as hereinbefore defined, the license issued by the board of city commissioners shall be prominently displayed near the entrance to the premises. A duplicate original of the application and stock list pursuant to which such license was issued shall, at all times, be available to the board and the licensee shall permit the board or its agent to examine all merchandise in the premises for comparison with such stock list at any and all times during the period of such sale. All advertisements or advertising and the language contained therein shall be in accordance with the purpose of the sale as stated in the application pursuant to which a license was issued, and the wording of such advertisement shall not vary from the wording as indicated in the application. Such advertising shall contain a statement in these words: "Sale

held pursuant to Permit No. ____ of the board of city commissioners, granted the ____ day of _____, 19____" and in such blank spaces shall be indicated the permit number and the requisite dates. Books and records of the sale shall be kept by the licensee and shall, at all times, be available for inspection.

Source: 1952 Rev. Ord. 1072 (1959).

25-2510. Persons exempt from article.--The provisions of this article shall not apply to or affect the following persons:

A. Persons acting pursuant to an order or process of a court of competent jurisdiction.

B. Persons acting in accordance with their powers and duties as public officers, such as sheriffs, bailiffs, or marshals.

C. Duly licensed auctioneers, selling at auction.

D. Executors, guardians, assignees of insolvent debtors, bankrupts, and/or other persons required by law to sell property.

Source: 1952 Rev. Ord. 1072 (1959).

25-2511. Penalty for violation of article.--Every person, firm, company, or corporation violating any of the provisions of this article, shall, upon conviction thereof, be punished by a fine not to exceed $100, or by imprisonment not to exceed 90 days, or by both such fine and imprisonment in the discretion of the court; the court to have power to suspend said sentence and to revoke the suspension thereof. Each day any person, firm, company, or corporation shall violate any of the provisions of this article shall constitute a separate offense.

Source: 1952 Rev. Ord. 1072 (1959).

25-2512. Separability clause.--The provisions of this article are declared to be severable and if any section, sentence, clause, or phrase of this article shall for any reason be held to be invalid or unconstitutional, such decision shall not affect the validity of the remaining sections, sentences, clauses, and phrases of this article, but they shall remain in effect, it being the legislative intent that this article shall stand notwithstanding the invalidity of any part.

Source: 1952 Rev. Ord. 1072 (1959).

ARTICLE 25-26

PRIVATE SECURITY SYSTEMS

Note: Article 25-26 of chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2474, effective August 28, 1989.

ARTICLE 25-27

SALE OF PISTOLS

Note: Article 25-27 of chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2303, effective December 29, 1986.

ARTICLE 25-28

PUBLIC TRANSIT LICENSES

Note: Article 25-28 of chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2313, effective January 12, 1987.

ARTICLE 25-29

SPECIAL BUS LICENSES

Note: Article 25-29 of chapter 25 of the Fargo Municipal Code was repealed by Ord. No. 2304, effective December 29, 1986.

ARTICLE 25-30

ALARM SYSTEM

Section

25-3001 Definitions.
25-3002 Rules and regulations.
25-3003 Reserved.
25-3004 Reserved.
25-3005 Prohibitions.
25-3006 Charges for excessive alarms.
25-3007 Limitation of liability.
25-3008 Severability.

25-3001. Definitions.--

1. "Alarm user" shall mean any person who installed an alarm system that uses alarm answering services to notify Police for a Police response.

2. "Answering service" refers to a telephone answering service which receives emergency signals from alarm systems, and thereafter immediately relaying the message by live voice to the communication center of the police department.

3. "Automatic dialing device" refers to an automated alarm system which sends a prerecorded voice message or coded signal indicating the existence of the emergency situation which the alarm system is designed to detect.

4. "False alarm" means the activation of an alarm system caused by anything other than an emergency, criminal activity, or weather.

5. "Person" shall mean any individual, partnership, corporation, association or other entity.

6. "Alarm system" shall mean any device designed for the detection of an unauthorized entry on premises or for alerting others of the commission of an unlawful act, or both, and, when actuated, emits a sound or transmits a signal or message which causes the Police department to be alerted.

7. "Alarm Period" is defined as January 1st through December 31st, calendar year.

Source: 1965 Rev. Ord. 25-3001, 1826 (1977), 2656 (1993), 5145 (2018).

25-3002. Rules and regulations.--The chief of police may prescribe rules and regulations for alarm systems, including but not limited to the following:

A. Minimum standards for the quality, efficiency, and effectiveness of alarm system;

B. Specific provisions relating to testing procedures;

C. Minimum standards for the training of alarm business personnel.

The Chief of Police is authorized to inspect or cause to be inspected the premises of the alarm business and the premises whereon the alarm system is located.

Source: 1965 Rev. Ord. 25-3010, 1826 (1977), 2656 (1993), 5145 (2018).

25-3003. Reserved.--

Editor's note—Ord. No. 5145, § 3, adopted June 18, 2018, repealed § 25-3003, which pertained to automatic dialing device--interconnecting to primary trunklines and derived from Rev. Ord. No. 25-3011 adopted 1965, Ord. No. 1826 adopted 1977, Ord. No. 2656 adopted 1993.

25-3004. Reserved.--

Editor's note—Ord. No. 5145, § 3, adopted June 18, 2018, repealed § 25-3004, which pertained to automatic dialing device--intermediary services and derived from Rev. Ord. No. 25-3012 adopted 1965, Ord. No. 1826 adopted 1977, Ord. No. 2656 adopted 1993.

25-3005. Prohibitions.--It shall be unlawful for anyone to activate any police alarm system for the purpose of summoning police except in the event of what is reasonably believed to be an unlawful act and/or an unauthorized entry on premises. Whenever a police alarm system has been designed and commonly understood to alert others of the commission of a particular crime, it shall be unlawful for anyone to activate such police alarm system for the purpose of summoning police except in the event of what is reasonably believed to be such particular crime. It shall be unlawful to install or use a police alarm system which upon activation emits a sound similar to sirens in use on emergency vehicles or for civil defense purposes.

Source: 1965 Rev. Ord. 25-3014, 1826 (1977), 2656 (1993).

25-3006. Charges for excessive alarms.--

A. Any alarm user who maintains or has an alarm system which signals more than three (3) false excessive alarms in an alarm period as defined herein, shall pay a fee to the city of Fargo as follows:

1. False Alarm 1-3 $0/alarm.

2. False Alarm 4-6 $100/alarm.

3. False alarm 7-9 $150/alarm.

4. False Alarm ten (10) and more $200/alarm.

B. Alarm fees shall be cumulative and due immediately upon receipt of billing notice. Interest shall accrue at a rate of 1½% per month on all invoices 30 days' past due, until paid in full.

C. The Chief of Police may suspend police response to alarms without secondary verification, excluding panic and robbery alarms, in the event the alarm user exceeds ten (10) false alarms in the alarm period. The Chief of Police or designee shall provide written notice mailed by first class mail to the alarm user's last known address advising of the decision to suspend police response under these circumstances.

Source: 1965 Rev. Ord. 25-3015, 1826 (1977), 2656 (1993), 5145 (2018).

25-3007. Limitation of liability.--The city of Fargo shall be under no duty or obligation to any alarm user or to any other person hereunder by reason of any provision of this article, including but not limited to any defects in a police alarm system or any delays in transmission or response to any alarm.

Source: 1965 Rev. Ord. 25-3016, 1826 (1977), 2656 (1993).

25-3008. Severability.--In the event that any part or provision of this article, or the application thereof to any person or circumstance is adjudged invalid by any court of competent jurisdiction, such judgment shall be confined in its operation to the part, provision or application directly involved in the said controversy, and shall not affect or impair the validity of the remainder of this article or the application thereof to other persons or circumstances.

Source: 1965 Rev. Ord. 25-3017, 1826 (1977), 2656 (1993).

ARTICLE 25-31

SURFACE AMBULANCE SERVICES

Note: Article 25-31 of chapter 25 of the Fargo Municipal Code was repealed in its entirety by Ord. No. 2810, 1996.

ARTICLE 25-32

DEALERS IN PRECIOUS METALS AND PRECIOUS GEMS

Note: Article 25-32 of chapter 25 of the Fargo Municipal Code was repealed in its entirety by Ord. No. 4829, effective September 17, 2012.

ARTICLE 25-33

TATTOOS, BODY ART AND BODY PIERCING

Section

25-3301 Definitions.
25-3301.1 North Dakota Administrative Code Chapter 33-41-01 Adopted-Amendments.
25-3301.2 Modification of North Dakota Administrative Code Chapter 33-41-01.
25-3302 Unlawful to operate body art establishment without license--Exemptions.
25-3303 License to operate body art establishment issued annually--License for individual technician--Temporary licenses--Fee--Application form--Display of license required--Department to enforce regulations.
25-3304 Inspections of licensed premises.
25-3305 Licenses--Termination, suspension, revocation.
25-3306 Unlawful practices.
25-3307 Reserved.

25-3301. Definitions.--As used in this ordinance, unless the context otherwise indicates, the following definitions shall apply:

1. "Bloodborne Pathogen" means a micro-organism that is present in human blood or in other bodily fluid or tissue which can cause a disease in humans, including the hepatitis B virus, the hepatitis C virus, and the human immunodeficiency virus, and for which testing is recommended by the United States public health service.

2. "Communicable disease" means a disease or condition that causes serious illness, serious disability, or death, the infectious agent or which may pass or be carried, directly or indirectly, from the body of one person to the body of another.

3. "Department" means Fargo Cass Public Health, or its authorized representatives.

4. "Gross incompetence" means any serious lack of ability or knowledge to perform one's duty in a sanitary manner or failure to comply with these regulations. It shall also mean any conduct which endangers the public's health or safety.

5. "License" means written approval issued by the director of public health or any designee of the director of public health to operate a body art establishment.

6. "Procedure room" means the physical space or room used for performing body art procedures.

7. "Scarification" means altering the skin texture by cutting the skin and controlling the body's healing process in order to produce wounds, resulting in permanently raised wheals or bumps known as keloids.

8. "Temporary Body Art Event" means an event to promote body art which lasts no longer than five consecutive days.

Source: 2155 (1984), 4061 (2000), 4520 (2006), 4947 (2014), 5180 (2018).

25-3301.1. North Dakota Administrative Code Chapter 33-41-01 Adopted--Amendments.--For the purpose of prescribing regulations governing public health and safety in the city of Fargo, relative to tattoos and body art, the provisions of chapter 33-41-01 of the North Dakota Administrative Code is hereby adopted and incorporated as fully as if set out in length herein, and from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the limits of the city.

Source: 5180 (2018).

25-3301.2. Modification of North Dakota Administrative Code Chapter 33-41-01.--The North Dakota Administrative Code Ch. 33-41-01 as adopted in this article is hereby amended as follows:

1. Subsection 1 of Section 33-41-01-02 and Sections 33-41-01-10, -11, -12, -13 and -14 are hereby deleted in their entirety.

2. Section 33-41-01-03(5) is hereby amended to read as follows:

   5. The operator shall be free of communicable diseases that may be transmitted to a patron, maintain a high degree of personal cleanliness, conform to hygienic practices, and wear clean clothes when performing body art procedures. Before performing body art procedures, operators must thoroughly wash their hands in hot running water with liquid soap, then rinse hands and dry with disposable paper towels. This shall be done as often as necessary to remove contaminants.

3. Section 33-41-01-03(9) is hereby amended to read as follows:

   9. No person shall perform any body art procedure upon a person under the age of eighteen years without the presence, written consent, and proper identification of a parent, legal custodial parent, or legal guardian. The age of all patrons must be verified by photo identification and documentation establishing the patron's age prior to the body art procedure being performed. Photo identification or other proper identification of all patrons under the age of eighteen years must be photocopied by the operator and maintained in the patron's record. Nothing in this section is intended to require an operator to perform any body art procedure on a person under eighteen years of age with parental or guardian consent.

4. Section 33-41-01-03 is hereby amended to add a subsection to read as follows:

   The operator shall be certified in Bloodborne Pathogen training.

5. Section 33-41-01-08(3) is hereby amended to read as follows:

   3. All cleaned, nondisposable instruments and jewelry used for body art or that directly aid in body art procedures shall be sterilized in a steam autoclave or

dry-heat sterilizer. (if approved by the department) The sterilizer shall be used, cleaned, and maintained according to manufacturer's instruction. A copy of the manufacturer's recommended procedures for the operation of the sterilization unit must be available for inspection by the department. Sterile equipment may not be used if the package has been breached or after the expiration date without first repackaging and resterilizing. Sterilizers shall be located away from work-stations or areas frequented by the public. If the body art establishment uses only single-use, disposable instruments and products, and uses sterile supplies, an autoclave shall not be required.

6. Section 33-41-01-09 is hereby amended to add subsections to read as follows:

Single-use prepackaged sterilized equipment must be obtained from reputable suppliers or manufacturers and packages must contain a temperature strip or sterilizer indicator.

Single-use wood spatulas used to remove all creams and other semi-solid substances from containers must be discarded after each use.

Source: 5180 (2018).

25-3302. Unlawful to operate body art establishment without license--Exemptions.--It shall be unlawful to operate a body art establishment unless a license is first obtained from the department. The provisions of this article do not apply to physicians, or a person working under the direct supervision of a physician in the physician's office or clinic, nor to individuals who pierce only the non-cartilaginous perimeter and lobe of the ear with a presterilized single-use stud-and-clasp ear-piercing system are exempt from these regulations; provided, however, that such individuals shall not be exempt from the applicable U.S. Food and Drug Administration requirements.

Source: 2155 (1984), 4061 (2000), 4520 (2006), 4947 (2014), 5180 (2018).

25-3303. License to operate body art establishment issued annually--License for individual technician--Temporary licenses--Fee--Application form--Display of license required--Department to enforce regulations.--

A. After an inspection and approval of the proposed body art establishment by the director of public health or designee of the director of public health, the license described in §25-3302 hereof shall be issued annually, January 1st, by the department. The fee therefor shall be as established by resolution of the board of city commissioners. The license shall be non-transferable. The license shall be displayed prominently in the body art establishment where it may be readily observed by clients.

B. The department is authorized to promulgate regulations creating minimum standards for body art establishments pertaining to the facilities, preparation and care of the body art area, education and information for prospective clients, professional standards for the body art operators/technicians, sanitation and sterilization procedures, requirements for single use items, maintenance and retention of records of body art procedures, and requirements for posting of notices and information regarding body art, which regulations may be enforced by

the director of health or any designee of the director of public health after such regulations are approved by the city commission, notice of which is to be given pursuant to the provisions of §13-0101 of the Fargo Municipal Code. A copy of such regulations shall be posted in all body art establishments in a prominent location so that they may be read by clients and by operators and technicians of a body art establishment.

C. Each individual body art technician shall be required to first obtain a license from the department. The fee therefor shall be established by resolution of the board of city commissioners and applicants shall complete and sign an application form furnished by the department. Each individual body art technician must be working under a licensed body art establishment. If the body art establishment has only one technician, only the establishment license needs to be obtained.

D. Body art establishments and individual body technicians, not otherwise licensed in the city, who wish to practice body art at a temporary body art event shall obtain a temporary license through the department. The fee therefor shall be established by resolution of the board of city commissioners and applicants shall complete and sign an application form furnished by the department. If the body art establishment has only one technician, only the establishment license needs to be obtained.

Source: 2155 (1984), 4061 (2000), 4520 (2006), 4947 (2014), 5180 (2018).

25-3304. Inspections of licensed premises.--The members of the board of city commissioners of the city of Fargo, the chief of police, or any officer of the health or police department may, at any time, enter upon any licensed premises for the purpose of inspection or to determine whether the licensed premises are in compliance with any and all ordinances of the city and regulations promulgated by the department. A copy of the inspection report must be furnished to the license holder or operator of the body art establishment.

Source: 2155 (1984), 4061 (2000), 4947 (2014), 5180 (2018).

25-3305. Licenses--Termination, suspension, revocation.--All licenses issued under the provisions of this article, unless otherwise specifically provided, shall terminate on December 31st following the date of issuance; provided, however, that any license issued under the provisions of this article may, under certain circumstances, be terminated, suspended or revoked by the commission.

A. The commission may, in its discretion, suspend or revoke for cause any license issued under the provisions of this article. The grounds for suspension or revocation shall, among others, include the following:

1. The licensee has filed a petition in bankruptcy.

2. The licensee does not remit the annual renewal fee.

3. An individual licensee, one of the partners in a partnership licensee, or one of the officers in a corporation licensee, or any individual in active management of the licensed business is convicted of violating any of the provisions of this article.

4. The licensee has been convicted of a felony under the laws of the United States or under the laws of one of the several states.

5. The licensee has made any false statement in his application for a license.

6. The licensee has demonstrated gross incompetence and/or has violated one or more of the regulations created pursuant to Fargo Municipal Code §25-3303(B).

7. The licensee interferes with the department or its agents and assistants in the performance of its duties.

B. The department may temporarily suspend the license and order the establishment immediately closed if immediate danger to the public health or safety is found, unless the danger is immediately corrected.

C. The grounds enumerated in subsection (A) and (B) of this section shall not be deemed to be exclusive and any license issued under the provisions of this article may be suspended or revoked by the commission for any other reason deemed by the commission to be sufficient in order to promote and protect the health, safety, and welfare of the public. When any license is suspended or revoked by the commission pursuant to the provisions of this section, or when the licensee voluntarily ceases business, no portion of the license fee previously paid shall be returned to the licensee or to anyone claiming under or through them.

D. No license issued under the provisions of this article shall be suspended or revoked for cause by the commission without a public hearing. In the event that the commission intends to consider the suspension or revocation of any license for cause, it shall direct the city auditor to notify the licensee of its intention to consider the same. The notice shall specify the time and place of the suspension or revocation hearing and shall be served upon the licensee or his managing agent in the same manner as provided by law for the service of a summons in a civil action. No suspension or revocation hearing shall be held before the expiration of 15 days after the date of the service of the notice upon the licensee.

If, upon such hearing, it appears to the commission that sufficient cause exists for the suspension or revocation of a license issued pursuant to the provisions of this article, the commission shall make its order suspending or revoking the said license.

Source: 2155 (1984), 4061 (2000), 4520 (2006), 4947 (2014), 5180 (2018).

25-3306. Unlawful practices.--In addition to such other prohibitions as are contained in this article:

A. No person shall perform body art on any body part of a person under the age of 18 without the written consent of the parent or legal guardian of such minor and without said parent or legal guardian being present during such procedure.

B. No person shall obtain or attempt to obtain any body art establishment license by means of fraud, misrepresentation or concealment.

C. No person shall perform body art procedures unless such procedures are performed in a body art establishment with a current license.

D. No person shall perform body art procedures unless they are at least 18 years of age.

E. No person shall interfere with the department in the performance of an inspection or in the performance of any other duties.

F. Willful failure by the licensee to post regulations which are required to be posted pursuant to § 25-3303 of this article shall be unlawful.

Source: 2155 (1984), 4061 (2000), 4520 (2006), 4947 (2014), 5180 (2018).

25-3307. Reserved.--

Editor's note—Ord. No. 5180, § 8, adopted Dec. 3, 2018, repealed § 25-3307, which pertained to penalty and derived from 2155 (1984), 4061 (2000), 4947 (2014).

ARTICLE 25-34

MECHANICAL AMUSEMENT DEVICES

Section

25-3401 Definitions.
25-3402 Mechanical amusement device--Display of sexual activity--License required.
25-3403 Mechanical amusement device license--Issuance.
25-3404 Issuance and term of license.
25-3405 License fee.

25-3401. Definitions.--

1. "Mechanical amusement device": A machine which, upon the insertion of a coin or the payment of consideration, depicts, displays or projects directly or indirectly, pictures, photographs or other visual images.

2. "Sexual activity": Shall include the depiction of specified anatomical areas and/or specified sexual activities as defined in § 20-0319.1 of the Fargo City ordinances.

Source: 2228 (1985).

25-3402. Mechanical amusement device--Display of sexual activity--License required. No person shall offer to the public, mechanical amusement devices which are used on a regular basis to depict or display sexual activity, without first procuring from the city auditor of the city of Fargo a license for each machine owned and operated by the licensee.

Source: 2228 (1985).

25-3403. Mechanical amusement device license--Issuance.--Any person who desires to operate one or more mechanical amusement devices as hereinabove provided, shall make application to the city auditor of the city of Fargo for a license so to do. The application shall be in the form prescribed by the city auditor and shall identify the machine, the site where the machine will be located, and the time for which the license is desired. If the licensee is the owner of more than one such mechanical amusement device, the application shall include a complete list of all devices owned by him together with its location.

Source: 2228 (1985).

25-3404. Issuance and term of license.--Each license issued pursuant to the terms of this article shall expire on June 30 of the year following. Licenses shall be renewed on an annual basis as of July 1 of each year.

Source: 2228 (1985).

25-3405. License Fee.--The license fee for a mechanical amusement device which depicts or displays sexual activity shall be $300 per machine per year. The license fee shall be payable on July 1 of each year, and prorated on a monthly basis if a license becomes effective at any time other than July 1.

Source: 2228 (1985).

ARTICLE 25-35

SECONDHAND GOODS DEALERS

Section

25-3500 Purpose.
25-3501 Definitions.
25-3502 Fixed premises and license required.
25-3503 License and renewal.
25-3504 Bond.
25-3505 Fee for license and application fee.
25-3506 Investigation fee.
25-3507 Effective period, denial, renewal and suspension or revocation.
25-3508 Acts prohibited by minors.
25-3509 Required records.
25-3510 Daily reports to police.
25-3511 Receipt required.
25-3512 Holding period.
25-3513 Exempt from holding.
25-3514 Articles available for inspection.
25-3515 Police order to hold property.
25-3516 Label required.
25-3517 Prohibited acts.
25-3518 Penalty.

25-3500. Purpose.--The city commission recognizes the need to regulate secondhand dealers to provide the ability to identify stolen property that may be presented to secondhand shops and to identify those responsible for committing property crimes. The commission also determines the need to provide a basic level of consumer protection through a comprehensive ordinance.

To help the police department better regulate secondhand businesses, decrease and stabilize regulatory costs, and improve identification of criminal activities through the timely collection and sharing of transaction information, this chapter also implements and establishes the required use of the LEADS system.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3501. Definitions.--

1. Licensee" shall mean all secondhand dealers required to be licensed by this chapter.

2. "Secondhand dealer" shall mean:

   A. Any person, firm, or corporation other than a pawnbroker who purchase, collects, trades, sells, or deals in secondhand goods including, but not limited to: business machines, tape recorders and tapes, compact

discs, radio transmitters and receivers, computer hardware, computer software, electronic games and their components, musical instruments, cameras and accessories, power tools, sporting goods, stereos, stereo equipment, tools and tool boxes, television sets, weapons, bicycles, radios microwave ovens, household furniture, appliances, precious metals and gems and jewelry.

B. Exemptions: any person --

(1) dealing exclusively in the resale of new and/or used automobiles;

(2) involved in the casual and occasional sales of used household goods by the owner to the public, if the seller is not engaged for profit in the business of selling goods of that nature; this category includes those sales commonly referred to as "garage sales";

(3) operating a junkyard for wrecked automobiles;

(4) conducting sales of secondhand goods at stores or events sponsored by nonprofit corporations or associations or fraternal or religious organizations;

(5) dealing exclusively in the resale of secondhand books or magazines;

(6) conducting the auction of goods by a licensed auctioneer;

(7) operating a bona fide antique, used furniture or used clothing store.

3. "Person" shall mean any individual, partnership, corporation or association or any other legal entity, or any agent or employee thereof.

4. "Regulated transaction" shall include all purchases, trades or consignments made by a secondhand dealer.

5. "Reportable transaction" - all regulated transactions except:

A. Any transaction where used articles are taken in trade against the purchase price of a new article sold for market value.

B. The bulk purchase or consignment of new or used merchandise from a merchant, manufacturer or wholesaler having an established permanent place of business, and the retail sale of said merchandise, provided the secondhand dealer must maintain a record of such purchase or consignment which describes each item.

C. Any item which has no unique identifier and/or contains no precious metals or gems and for which the licensee paid less than $100.00.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003), 4845 (2013).

25-3502. Fixed premises and license required.--No person shall engage in business as a secondhand dealer unless said person has a fixed premises where said business is conducted, either on a continuing basis or from time to time, and unless said person has first obtained a license to engage in that business at that premises. A separate license is required for each place of business. The city may issue more than one license to a person if the person complies with

the requirements of the chapter. A license issued under this article shall be prominently displayed at the licensed premises during hours when such premises is open for business. If, during the effective period of a license issued under this article, a licensee changes the location of the licensed premises within the city, such licensee shall inform the city auditor and the chief of police of such change of location and shall have the new premises to be licensed noted on the license. There shall be no additional fee charged for changing the location of the licensed premises. The operation of a business as a secondhand dealer without a license as required by this section shall be a class B misdemeanor.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3503. License and renewal.--Any person desiring to obtain, renew or transfer a license shall make and file an application for such license with the commission. The application shall be made on a form approved by the chief of police and made available through the office of the city auditor. In addition to the information required on the application form, the commission, in its discretion, may require such other information as it deems necessary in determining whether a license should be issued to the applicant.

The holder of an existing license issued pursuant to the provisions of this article who desires to renew said license for another license year, shall not be required to make and file a new application under this section but shall make and file a renewal application under the provisions of this section which shall require the payment of the renewal fee and shall include an affidavit indicating the current name and address of the licensee, and if said licensee is a corporation, the names and addresses of the resident manager, all corporate officers, and all shareholders holding more than 5% of the outstanding stock of the corporation, and such other information as the city may require. The renewal application and affidavit shall be on a form to be prescribed by the chief of police made available through the city auditor's office.

The application for a new license or renewal of a license shall require that the applicant agrees to provide the police department with the records required by §25-3509 in a format, including electronically transmitted digital data, as required by the police department.

The chief of police shall investigate the facts stated in the application filed with the commission and shall report the results of the investigation to the commission prior to the hearing on said application. Said investigation and report shall include the character, reputation, fitness of the applicant to hold a license, any other pertinent information and the recommendation of the chief of police as to whether or not such license should be granted. In addition, the commission may request and consider such other recommendations and reports of other city officials.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3504. Bond.--Before a license will be issued or renewed, every applicant must submit a five thousand dollar ($5,000.00) bond on the forms provided by the auditor's office,

with sufficient sureties to be approved by the auditor's office. All bonds must be conditioned that the principal will observe all laws in relation to secondhand dealers and will conduct business in conformity thereto, and that the principal will account for and deliver to any person legally entitled any goods which have come into the principal's hand through the principal's business under this chapter, or in lieu thereof, will pay the reasonable value in money to the person. This language shall not be construed to apply to items the principal has legally disposed of under the requirements of the ordinance. The bond shall contain a provision that no bond may be cancelled except upon thirty (30) days written notice to the chief of police.

Alternately, a licensee may provide proof to the auditor's office of a separate dedicated account with a balance of $5,000.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3505. Fee for license and application fee.--The fee for issuance of a license to engage in business as a secondhand dealer shall be in such amount as shall be established by resolution of the board of city commissioners.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3506. Investigation fee.--The fee for the investigation of an initial application or renewal for a license to engage in business as a secondhand dealer shall be paid to the city auditor at the time an application is submitted. The amount of the investigation fee shall be established by resolution of the board of city commissioners.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3507. Effective period, denial, renewal and suspension or revocation.--A license issued under this article shall be valid and effective until December 31 of the year for which the license applies. Every license issued under the provisions of this article shall be issued upon the understanding that such license may be revoked or suspended by the board of city commissioners at any time for good cause, for failure to comply with any provision of this chapter, or by any fraud, misrepresentation bribery, or false statements in the application, investigation, securing or renewing a license, or the conviction of a license holder of a violation of this article or any criminal conviction related to theft of property regulations or any felony conviction. Notice of such revocation or suspension must be sent to the licensee by certified mail addressed to the licensee at the address set forth in the application. The chief of police shall be notified of

the revocation or suspension of any license. The licensee may appeal a revocation or suspension to the board of city commissioners and request a public hearing on such revocation or suspension.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3508. Acts prohibited by minors.--No person under the age of 18 years shall sell or otherwise initiate a reportable transaction with any person licensed to do business under this article nor may any licensee participate in a reportable transaction with a person under the age of 18 years. No person under the age of 18 years shall represent to any person licensed under the provisions of this article that he is 18 years of age or over.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3509. Required records.--At the time of any reportable transaction every licensee must immediately record in English the following information by using ink or other indelible medium on forms or in a computerized record approved by the chief of police. Such record shall specifically include:

A. A complete and accurate description of each item including, but not limited to any trademark, identification number, serial number, model number, brand name or other identifying mark on such an item.

B. The purchase price.

C. Date, time and place the item of property was received by the licensee, and the unique alpha and/or numeric transaction identifier that distinguishes it from all other transactions in the licensee's records.

D. Full name, current residence address and phone number, date of birth and accurate description of the person from whom the item of the property was received including sex, height, weight, race, color of eyes and color of hair.

E. The identification number and state of issue of a current state photo driver's license or state identification.

F. The signature of the person identified in the transaction.

G. Inspection of records. Transaction records must at all reasonable times be open to inspection by the police department during the licensee's business hours. Data entries shall be retained for at least three (3) years from the date of transaction.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3510. Daily reports to police.-- Licensees must submit every reportable transaction to the police department daily in the following manner:

A. Licensees must provide to the police department all information required in §25-3509 (A) through (E) and other required information, by transferring it from their computer to the LEADS system. All required records must be transmitted completely and accurately each day in accordance with the standards and procedures established by the issuing authority. If a licensee is unable to successfully transfer the required information to LEADS, the licensee must provide the police department printed copies of all reportable transactions by 12:00 the next business day. The licensee must make all reasonable efforts to correct the problem as soon as possible.

B. Regardless of the cause or origin of the technical problems that prevented the licensee from uploading their reportable transactions, upon correction of the problem, the licensee shall upload every reportable transaction from every business day since the problem existed.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3511. Receipt required.--Every licensee must provide a receipt to the party identified in every reportable transaction and must maintain a duplicate of that receipt for three (3) years. The receipt must include the information (A) through (F) identified in §25-3509.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003).

25-3512. Holding period.--Any item purchased by a licensee and defined in §25-3501 (5) must be held in the city of Fargo and not be sold or otherwise transferred for fourteen (14) total days from the date of the transaction.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003), 4727 (2010), 4829 (2012), 4884 (2013).

25-3513. Exempt from holding.--The acquisition for resale of an ingot of precious metal including, but not limited to, gold, silver, platinum, which ingot bears a stamp or other marking indicating or reflecting:

A. The government, governmental agency, private corporation, or banking institution issuing or producing the ingot;

B. An indication of the quantity of metal contained in the ingot; and

C. The seal of the issuing party.

D. The acquisition for resale of coins, precious metals or precious gems and currency by any banking institution or like entity regulated by the state or federal government or both.

For purposes of this section, ingot does not refer to jewelry, silverware or any other item that is unique or readily identifiable.

Source: 4884 (2013)

25-3514. Articles available for inspection.--All personal property, other valuable things, precious metals or precious gems purchased by a secondhand dealer in a reportable transaction shall be made available for inspection by city police officers during reasonable business hours.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003), 4884 (2013).

25-3515. Police order to hold property.--

A. Investigative hold. Whenever a law enforcement official from any agency notifies a licensee not to sell an item, the item must not be sold or removed from the premises. The investigative hold shall be confirmed in writing by the originating agency within seventy-two (72) hours and will remain in effect for fifteen (15) days from the date of initial notification, or until the investigative order is canceled, or until an order to hold/confiscate is issued, whichever comes first.

B. Order to hold. Whenever the chief of police, or the chief's designee, notifies a licensee not to sell an item, the item must not be sold or removed from the licensed premises until authorized to be released by the chief or the chief's designee. The order to hold shall expire ninety (90) days from the date it is placed unless the chief of police or the chief's designee determines the hold is still necessary and notifies the licensee in writing.

C. Order to confiscate. If an item is identified as stolen or evidence in a criminal case, the chief or chief's designee may:

1. Physically confiscate and remove it from the shop, pursuant to a written order from the chief or the chief's designee, or
2. Place the item on hold or extend the hold as provided in subsection B above, and leave it in the shop.

When an item is confiscated, the person doing so shall provide identification upon request of the licensee, and shall provide the licensee the name and phone number of the confiscating agency and investigator, and the case number related to the confiscation.

When an order to hold/confiscate is no longer necessary, the chief of police, or chief's designee shall so notify the licensee.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003), 4884 (2013).

25-3516. Label required.--Licensees must attach a label to every item at the time it is purchased or received in inventory from any reportable transaction. Permanently recorded on this label must be the number or name that identifies the transaction in the shop's records.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003), 4884 (2013).

25-3517. Prohibited acts.--

A. No licensee may receive any goods, unless the seller presents identification in the form of a valid driver's license, a valid State of North Dakota identification card, or current valid photo driver's license or identification card issued by the state or providence of residency of the person from whom the item was received.

B. No licensee may receive any item of property that possesses an altered or obliterated serial number or operation identification number or any item of property that has had its serial number removed.

C. No person may sell or consign any article of property not their own; nor shall any person sell or consign the property of another, whether with permission or without; nor shall any person sell or consign any article of property in which another has a security interest; with any licensee.

D. No person seeking to sell or consign any article of property with any licensee shall give a false or fictitious name; nor give a false date of birth; nor give a false or out of date address of residence or telephone number; nor present a false or altered identification, or the identification of another; to any licensee.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003), 4884 (2013).

25-3518. Penalty.--Any person, firm or corporation violating the terms of this chapter, except as provided in §25-3502, shall upon conviction thereof, be guilty of an infraction, and punished by a fine not to exceed $1,000, the court to have power to suspend said sentence and to revoke the suspension thereof.

Source: Source: 1952 Rev. Ord. 25-1001, 1965 Rev. Ord. 25-1002, 1965 Rev. Ord. 25-1003, 1952 Rev. Ord. 25-1005, 1952 Rev. Ord. 25-1006, 1952 Rev. Ord. 25-1007, 1952 Rev. Ord. 25-1008, 1952 Rev. Ord. 25-1009, 1952 Rev. Ord. 25-1011, 1952 Rev. Ord. 25-1012, 1952 Rev. Ord. 25-1013, 1952 Rev. Ord. 25-1014, 990 (1957), 993 (1957), 1489 (1973), 1496 (1973), 2156 (1984), 2306 (1987), 4334 (2003), 4884 (2013).

ARTICLE 25-36

TANNING FACILITIES

Section

25-3601 Definitions.
25-3602 Operation of tanning facility--permit required.
25-3603 Regulation, inspection and enforcement by public health department.
25-0304 Display of permit--permit nontransferable.
25-3605 Application and fees; issuance and expiration of permits; and renewal.
25-3606 Advertising and prohibited claims.
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25-3612 Duties of user.
25-3613 Reports of injury.
25-3614 Authority of public health department to promulgate regulations.
25-3615 Denial, suspension or revocation of permit.
25-3616 North Dakota requirements for tanning facilities adopted.
25-3617 Violations and penalty.

25-3601. Definitions.--In this article, unless the context or subject matter otherwise requires: As used in this ordinance, unless the context otherwise indicates, the following definitions shall apply:

1. "Applicant" means any person who applies to the public health department for a permit to operate a tanning facility.
2. "Customer" means any member of the public who is provided access to a tanning device in exchange for a fee or other compensation, or any individual who, in exchange for a fee or other compensation, is afforded use of a tanning device as a benefit of membership in or access to a health club, condominium ownership, apartment complex activity center, hotel or motel room rental or other offer. For purposes of this article, the term customer shall be synonymous with the term "user."
3. "Public health department" means the Fargo Cass Public Health as defined in Fargo Municipal Code section 13-0202(M), and its authorized designees and representatives.
4. "Operator" means an individual designated by the permit holder to manage the tanning facility and to assist and instruct the public in the correct operation of the tanning devices.
5. "Person" means any individual, corporation, partnership, firm, association, trust, estate, public or private institution, group or agency, or a representative or agent of any of these.
6. "Phototherapy device" means equipment that emits ultraviolet radiation and is used in treating disease.

7. "Protective eyewear" means any apparatus designed to be worn over the eyes by a user of tanning devices which absorbs all UV-A, UV-B and visible light up to 500 nanometers but permits sufficient light to pass through to allow a user to safely negotiate obstacles, and that complies with the standards set forth in 21 CFR 1040.20.
8. "Radiation" means ultraviolet radiation.
9. "Tanning device" means a device that emits electromagnetic radiation having wavelengths in the air between two hundred and four hundred nanometers and which is used for tanning of human skin and any equipment used with that device, including food and drug administration-approved protective eyewear, timers, and handrails. The term does not include a phototherapy device used by a physician.
10. "Tanning facility" means a place or business that provides individuals access to a tanning device.
11. "Ultraviolet radiation" means electromagnetic radiation with a wavelength in air of 200 to 400 nanometers.
12. "UV-A" means ultraviolet radiation having a wavelength in air of 320 to 400 nanometers.
13. "UV-B" means ultraviolet radiation having a wavelength in air of 290 to 320 nanometers.

25-3602. Operation of tanning facility--permit required.--No person may operate a tanning facility within the city of Fargo without a permit issued by the public health department. This provision applies to all persons who possess or operate tanning devices which are made available to the public for the purpose of artificial light skin tanning, including tanning devices offered for use as part of a membership or premium offer in a health club, condominium, apartment complex activity center, hotel or motel rental.

25-3603. Regulation, inspection and enforcement by public health department.--In order to provide for the public health and safety, the public health department shall have authority to regulate and enforce the provisions stated herein concerning the use, operation and maintenance of tanning facilities within the jurisdiction of such department. The public health department shall have authority to enter upon the premises of a tanning facility and to inspect or cause to be inspected all tanning facilities as often as is necessary to confirm compliance with the provisions of this article. In the event of a failure to comply with the provisions of this article, after due notice thereof, the public health department shall have the power to abate or cause a suspension of the use of the tanning facility until such time as the same is, in the opinion of the public health department, no longer a hazard to public health or safety.

25-3604. Display of permit--permit nontransferable.-- A permit issued pursuant to this article shall be displayed in a conspicuous place at the tanning facility for which the permit is issued. A permit issued pursuant to this article is non-transferable.

25-3605. Application and fees; issuance and expiration of permits; and renewal.

A. Application. The owner of a tanning facility shall submit an application for a permit to the department on a form provided by the public health department along with payment of the required permit fee. Permit fees and fees for renewal thereof shall be established by resolution of the board of city commissioners. The application must include the name and complete mailing address of the applicant, the street address of the tanning facility, a scale drawing and floor plan of the proposed tanning establishment and any other information reasonably required by the public health department for the administration of this section.

B. Issuance of permits and expiration. Approved permits shall be issued annually by the city auditor's office effective January 1 of each year, and shall expire on December 31 of each year.

C. Renewal. Applications for renewal shall be submitted with the appropriate renewal fee to the public health department on the same form as an initial application. Permit renewals will be issued by the city effective January 1 of each year.

25-3606. Advertising and prohibited claims.

A. A tanning facility may not state in any advertising, written or verbal, that tanning is free of risk.

B. A tanning facility may not state in any advertising, written or verbal, that tanning is free of hazards from ultraviolet radiation or has any health benefits other than those recognized by a credible scientific or medical source.

C. No person may state or imply that any activity allowed under a permit has been approved by the public health department.

D. A tanning facility may not state in any advertising that the tanning facility holds a permit issued by the public heath department to operate a tanning facility.

25-3607. Requirements for written notice to customers.--A tanning facility shall give to each of the tanning facility's customers written notice of the following:

A. Failure to wear the eye protection provided by the tanning facility may result in damage to the customer's eyes and may cause cataracts;

B. Overexposure to a tanning device causes burns;

C. Repeated exposure to a tanning device may cause premature aging of the skin and may cause skin cancer;

D. Abnormal skin sensitivity or burning of the skin while using a tanning device may be caused by:

1. certain foods;

2. certain cosmetics; and

3. certain medications, including tranquilizers, diuretics, antibiotics, high blood pressure medicines, and birth control pills; and

E. An individual who takes a drug should consult a physician before using a tanning device.

25-3608. Requirement to prominently display warning sign.--A tanning facility shall display prominently a warning sign in each area where a tanning device is used. The warning sign must convey the following directions and information:

A. Follow instructions.

B. Avoid too frequent or too lengthy exposure. Like exposure to the sun, use of a tanning device can cause eye and skin injury and allergic reactions. Repeated exposure can cause chronic sun damage, which is characterized by wrinkling, dryness, fragility and bruising of the skin, and skin cancer.

C. Wear food and drug administration-approved protective eyewear.

D. Ultraviolet radiation from tanning devices will aggravate the effects of the sun, so do not sunbathe during the twenty-four hours immediately preceding or immediately following the use of a tanning device.

E. Medications and cosmetics may increase your sensitivity to ultraviolet radiation. Consult a physician before using a tanning device if you are using medications, have a history of skin problems, or believe that you are especially sensitive to sunlight. Women who are pregnant or using birth control pills and who use a tanning device may develop discolored skin.

F. If your skin does not tan when exposed to the sun, it is unlikely that your skin will tan when exposed to this tanning device

25-3609. Liability.--A tanning facility's compliance with this article does not relieve the owner or any employee of the tanning facility from liability for injury sustained by a user of a tanning device.

25-3610. Age restrictions for customers.

A. Use by customers under eighteen years of age. A customer under eighteen years of age shall not be allowed to use a tanning device at a tanning facility unless the customer provides the facility with written consent, in a form prescribed by the public health department, of a parent or legal guardian to use the tanning facility. The consent must indicate that the parent or legal guardian has read the warnings required by this article and that the customer agrees to wear food and drug administration-approved protective eyewear. The parent or legal guardian shall provide a notarized statement of consent or sign the consent form in the presence of the owner of the tanning facility or an employee responsible for the operation of the ultraviolet radiation device of the facility. The written consent form expires twelve months from the date signed.

B. Physician approval required for customers under fourteen years of age. A customer under the age of fourteen years shall not be allowed to use a tanning device at a tanning facility unless he has produced a written order from a physician licensed in this state prescribing or authorizing such use and unless he is accompanied by a parent or legal guardian every time he uses the tanning device.

25-3611. Duties of owner. The owner of a tanning facility shall comply with the following requirements:

A. An owner shall provide attendants in the tanning facility who are trained to be capable of providing information and assistance to customers in the proper use of tanning devices. A properly trained attendant must be present during all hours of operation of a tanning facility.

B. Each tanning bed shall be properly sanitized after each use.

C. Properly sanitized and securely fitting food and drug administration-approved protective eyewear, that protects the wearer's eyes from ultraviolet radiation and allows enough vision to maintain balance, shall be made available to the customer.

D. A customer shall not be allowed to use a tanning device unless the customer agrees to use food and drug administration-approved protective eyewear.

E. A customer shall be shown how to use such physical aids as handrails and markings on the floor to determine the proper distance from the tanning device.

F. Timing devices must be accurate within ten percent.

G. Each tanning device must be equipped with a mechanism that allows the customer to turn off the tanning device.

H. Customers shall be limited to the maximum exposure time recommended by the manufacturer.

I. Customers may not be allowed to use a tanning device more than once every twenty-four hours.

J. The interior temperature of the tanning facility may not exceed one hundred degrees Fahrenheit.

K. A statement obtained as required Section under 25-3610(B)(1) must be retained by the owner for a period of three years unless it is replaced by a new such statement prior to the expiration of such three years.

25-3612. Duties of user. A user of a tanning facility shall comply with the following:

A. Before a user's first use of a tanning facility in a year, the user shall sign a statement acknowledging that the customer has read and understands the notice required by Fargo Municipal Code section 25-3607 and the warning sign required by Fargo Municipal Code section 25-3608 and specifying that the customer agrees to use food and drug administration-approved protective eyewear.

B. Use food and drug administration-approved protective eyewear at all times while using a tanning device.

25-3613. Reports of injury.

A. Injury by customer--duty of owner to report. If a customer of a tanning facility reports to that facility a sunburn injury resulting from the use of a tanning device of the facility, the owner shall provide the customer with written information on how to report the alleged injury to the state department of health.

B. Health care provider's duty to report. If a health care provider treats a patient for a sunburn injury and determines, in the exercise of professional judgment, that the injury occurred as a result of using a tanning device at a tanning facility, the health care provider shall report the circumstances of the injury to the state department of health. As provided by N.D.C.C. section 23-39-06 a health care provider making or not making a report in good faith pursuant to this section is immune from liability for making or not making a report.

25-3614. Authority of public health department to promulgate regulations.--Regulations creating minimum standards for tanning facilities pertaining to the preparation and care of the equipment, education and information for prospective clients, professional standards for the tanning facility attendants, operators and technicians, sanitation procedures, requirements for single use items, maintenance and retention of records of tanning clients, and requirements for posting of notices and information regarding tanning facilities may be adopted by the Board of City Commissioners. Upon adoption thereof, notice of such regulations shall be published in a newspaper of general circulation within the city of Fargo, as provided by section 13-0105 of the Fargo Municipal Code. A copy of such regulations shall be provided to all tanning facilities so that they may be read by users and by attendants, operators and technicians of a tanning facility.

25-3615. Denial, suspension or revocation of permit.

A. The public health department may deny issuance of a permit or may suspend or revoke a permit issued under this article if the public health department determines that the applicant or permittee, or an employee thereof, has violated any section within this article or is found to have:

1. Submitted false or misleading information in the application or in any report made to the public health department.
2. Failed to construct, operate or maintain the tanning facility in accordance with the application.
3. Operated the tanning facility in a way that causes or creates a nuisance or hazard to the public health or safety.
4. Violated any condition upon which the permit was issued.

5. Failed to allow a public health department staff person or a duly authorized agent to inspect the facility at a reasonable hour and in a reasonable manner for the purpose of determining compliance with this article.

6. Failed to pay the permit fee.

B. No permit issued under the provisions of this article shall be suspended or revoked by the public health department a hearing before the director of the public health department has issued written notice to the owner and allowing the owner an opportunity to appear and be heard by the director. The director may also, in his discretion, issue an order for compliance requiring the owner to correct certain violations within a tanning facility within a certain time. In the event the owner brings the tanning facility into compliance within the prescribed time, the director may determine whether any further discipline is in order. All notices or orders shall be delivered to the owner either by personal delivery or by any form of mail or third-party commercial delivery addressed to the owner at the address noted on the owner's application for tanning facility permit and requiring a signed receipt and resulting in delivery to the owner.

C. Any decision of the public health department may be appealed to the board of city commissioners as provided in section 13-0213.

25-3616. North Dakota requirements for tanning facilities adopted.--There is hereby adopted by reference by the board of city commissioners, for the purpose of prescribing regulations governing standards, relative to tanning facilities, those provisions compiled by the North Dakota Department of Health, article 33-42 of the North Dakota Administrative Code, as well as all other applicable chapters or sections of the North Dakota Century Code and this chapters and the same is hereby adopted and incorporated as fully as set out in length herein, and from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the limits of the city.

25-3617. Violations and penalty.--Every person, firm, or corporation violating the provisions of this article shall, upon conviction thereof, be guilty of a class B misdemeanor, and shall be punished by a fine not to exceed $1,000 or by imprisonment not to exceed 30 days, or by both such fine and imprisonment.

Source: 4645 (2008), 4697 (2009).

ARTICLE 25-37

RE-ROOFING CONTRACTORS

Section

25-3701 Definitions.
25-3702 License required - fee and expiration period.
25-3703 License - How obtained - Failure to grant.
25-3704 Revocation.
25-3705 Penalty.

25-3701. Definitions.--In this article, unless the context or subject matter otherwise requires:

1. "Re-roofing Contractor" means any contractor engaged in the business of replacement with shingles of an existing roof covering on a building or structure used for residential purposes, including without limitation single-family and multi-family residential purposes.

2. "Contractor" means any person engaged in the business of construction, repair, alteration, dismantling, or demolition of bridges, highways, roads, streets, buildings, airports, dams, drainage or irrigation ditches, sewers, water or gas mains, water filters, tanks, towers, oil, gas, or water pipelines, and every other type of structure, project, development, or improvement coming within the definition of real or personal property, including the construction, alteration, or repair of property to be held either for sale or rental, and shall include subcontractor, public contractor, and nonresident contractor.

3. "Person" includes any individual, firm, copartnership, association, corporation, limited liability company, or other group or combination thereof acting as a unit, and the plural as well as the singular number, unless the intent to give a more limited meaning is disclosed clearly by the context thereof.

4. "Transient merchant" includes any person, individual, copartnership, corporation, or limited liability company, either as principal or agent, who engages in, does, or transacts any temporary or transient business in this state, either in one locality, or in traveling from place to place in the state of North Dakota, selling, or soliciting orders for future delivery of, goods, wares, merchandise, personal property, and personal services, including the business of being a re-roofing contractor, who does not intend to become and does not become a permanent merchant within the state of North Dakota or within the County of Clay, State of Minnesota.

25-3702. License required - fee and expiration period.--A person may not engage in the business nor act in the capacity of a re-roofing contractor within the city of Fargo when the cost, value or price of any job exceeds the sum of five hundred dollars without first having a license as provided in this article. The fee and period of expiration for a re-roofing contractor license shall be established by resolution of the board of city commissioners.

25-3703. License - How obtained - Failure to grant.--

A. To obtain a license under this article, an applicant who is eighteen years of age or older shall submit, on forms the city auditor prescribes, an application under oath containing the address and telephone number of the re-roofing contractor's principal place of business and a statement of the applicant's experience and qualifications as a re-roofing contractor. The applicant must establish that the applicant has a valid North Dakota state contractor's license, pursuant to N.D.C.C. Chapter 43-07. The applicant must provide a certificate of general liability insurance including products and completed operations coverage with an insurance carrier licensed in the state of North Dakota in the amount of at least $500,000 and a statement from North Dakota Workforce Safety and Insurance that the re-roofing contractor has secured workforce safety and

insurance coverage satisfactory to the North Dakota Department of Workforce Safety and Insurance. The application must contain a statement that the applicant desires the issuance of a license under this article.

B. As to any applicant that is also a transient merchant, such applicant must also provide to the city auditor a surety bond, or the deposit of cash in lieu thereof, which must be not less than ten thousand dollars, the surety on which must be a surety company authorized to transact business in the state of North Dakota. The contents and surety therein are subject to the approval of the city auditor and must be conditioned that the applicant will in all things conform to the laws relating to transient merchants as defined by Chapter 51-04 of the North Dakota Century Code and further conditioned upon full compliance with all material oral or written statements and representations made by the applicant, the applicant's agents or representatives with reference to merchandise or services sold or offered for sale, and on faithful performance under all warranties made with reference thereto. The bond may not be revocable nor terminate prior to passage of two years' time after the expiration of the license issued pursuant thereto nor until due notice that the terms of the bond are to be canceled has been given to the city auditor.

C. The city auditor may refuse to grant a license if the city auditor determines the application contains false, misleading, or is incomplete. The city auditor shall notify the applicant in writing if the city auditor does not grant the license and shall provide the applicant an opportunity to respond to or cure the defect in the application for a period of ten days from the date of the written notification. An applicant aggrieved by a decision of the city auditor not to grant the license may appeal the decision to the board of city commissioners.

25-3704. Revocation.--No sooner than twenty days after sending written notice to a re-roofing contractor at the re-roofing contractor's last-known address, the city auditor shall classify as not in good standing the license of any re-roofing contractor who fails to maintain liability insurance as required by N.D.C.C. Section 43-07-04 or 43-07-10, fails to keep and maintain the surety bond as required in this chapter. Any re-roofing contractor who has been notified by the city auditor that the re-roofing contractor's license is not in good standing shall cease soliciting or entering new re-roofing contract projects. If the re-roofing contractor fails to correct the deficiency specified in the notice by evidence satisfactory to the city auditor within thirty days of the date of the notice or if the re-roofing contractor solicits or enters new re-roofing contract projects while the re-roofing contractor's license is not in good standing, the city may revoke or forfeit the license of the re-roofing contractor as provided in article 25-01.

25-3705. Penalty.--A violation of this ordinance shall be a class B misdemeanor. Every person, firm or corporation violating an ordinance which is punishable as a Class B misdemeanor shall be punished by a fine not to exceed $1,000.00, or by imprisonment not to exceed 30 days, or by both such fine and imprisonment, in the discretion of the court; the court to have power to suspend said sentence and to revoke the suspension thereof.

Source: 4665 (2008), 4698 (2009).

ARTICLE 25-38

COMMERCIAL PEDAL CAR VEHICLES

Section

25-3801 Definitions.
25-3802 License required.
25-3803 License denial.
25-3804 Term of license.
25-3805 Fees.
25-3806 Routes.
25-3807 Insurance.
25-3808 Advertising on commercial pedal cars.
25-3809 Parking.
25-3810 Hours of operation.
25-3811 Vehicle operation.
25-3812 Operating restrictions and conditions.
25-3813 Commercial pedal car company licenses.
25-3814 Licenses nontransferable.
25-3815 Revocation.

25-3801. Definitions.--As used in this section, the following terms shall have the meanings indicated:

1. Alcohol beverages shall have the meaning given in Fargo Municipal Code § 25-1501.
2. Commercial pedal car vehicle shall mean a vehicle with fully operational pedals for propulsion entirely by human power, that has four wheels and is operated in a manner similar to a bicycle, that is designed to be occupied by a driver and passengers providing pedal power to the drive train of the vehicle containing not less than 5 drive trains, and that is operated by the vehicle owner or an employee of the owner.
3. Commercial pedal car business shall mean the operating of one (1) or more commercial pedal car vehicle(s) for profit or not-for-profit.
4. Commercial pedal car driver shall mean any person who is responsible for the safe operation of a commercial pedal car, including but not limited to the steering and braking and maintaining compliance with all state and local traffic and parking regulations.
5. Commercial pedal car driver license shall mean a license granted in accordance with this Article.
6. Street shall mean any street or roadway under the jurisdiction of the city of Fargo, and specifically excludes privately owned roadways, roadways owned and operated by the Fargo Park District, or roadways located on the campus of North Dakota State University.

Source: 5397 (2023).

25-3802. License required.

A. Commercial pedal car business license.--No person or business may engage in a commercial pedal car business without first obtaining a commercial pedal car business license and after full compliance with this Article.

1. Application for a commercial pedal car business license shall be made in writing to the Auditor's office, upon forms furnished by the Auditor, which the owner of the business shall sign. For a partnership, the name of the business and the names and addresses of the partners must also be given, and one of the partners shall sign the application. For an LLC or a corporation, the applicant shall also provide the names and addresses of the principal officers, and the president and secretary shall sign the application.
2. The license application shall identify each commercial pedal car owned by the license holder. The license holder shall provide an amendment to the application for a commercial pedal car business license before adding any commercial pedal cars into service.

B. Commercial pedal car vehicle license.--No person shall operate or permit the operation of a commercial pedal car vehicle upon any street, sidewalk or other public place unless a commercial pedal car vehicle license has been issued for said commercial pedal car, and unless the commercial pedal car vehicle has a valid license/sticker visible in the proper registration area.

1. Application for a commercial pedal car license shall be made by the owner of the pedal car, in writing, upon forms furnished by the Auditor. Such application shall be signed by the owner and granted by the Auditor, or his/her designee, on an annual basis.
2. At the time of application, the applicant shall provide evidence of certification by an employee of a bicycle repair shop located within the city of Fargo of the safety and roadworthiness of the commercial pedal car vehicle. The Auditor may designate minimum safety standards for pedal car equipment, construction and design. A separate fee as established in the license fee schedule may be required for inspections performed throughout the license period. Commercial pedal cars found to not meet minimum inspection standards shall be identified as "out of service" and shall not operate until such defects have been repaired and approved by the Auditor.
3. In addition to the minimum standards designated by the Auditor, the following equipment requirements shall apply to all commercial pedal car vehicles:
    i. Tires. Tires shall be of a size appropriate for the commercial pedal car with no mismatched tires per the design of the vehicle. There shall be no cuts to the tires, localized worn spots that expose the ply, or visible tread wear indicators.
    ii. Operational horn or bell. The commercial pedal car shall be equipped with a fully operational horn or bell.
    iii. Brakes. It shall be unlawful to operate, or cause to be operated, a commercial pedal car that is not equipped with front and rear braking systems capable of being manipulated by the driver from the driver's normal position of operation and capable of causing a commercial pedal car with a loaded passenger compartment to come to a complete stop in

a linear path of motion when each wheel of the commercial pedal car is in contact with the ground on dry, level, clean pavement. The braking system controlling the rear wheels shall be hydraulic or mechanical disc or drum brakes, unaffected by rain or wet conditions.

iv. Headlight. A headlight capable of projecting a beam of white light for a distance at a minimum of three hundred (300) feet which shall be clearly visible during darkness and must be illuminated at all times during darkness.

v. Mirrors. A side mounted mirror or a wide-angle rear view mirror affixed to the pedal car to reflect to the pedal car driver a view of the street for a distance of at least two hundred (200) feet from the rear of the pedal car.

vi. Rear Illumination and Brake Lights. A red light and brake light affixed to the rear of the pedal car which must be visible for a distance of at least two hundred (200) feet from the rear of the pedal car and must be illuminated at all times during darkness. Turn signals must be affixed to the front and rear of the vehicle.

vii. Reflectors. All pedal cars shall have reflectors on the frame and a red reflector mounted on each side of the rear of the pedal car, at least one (1) inch from the outer edge and centered. In addition, the international slow moving triangle must be displayed on the rear of the pedal car.

viii. Hi Restraints. Hip restraints as defined by the American National Standards Institute (ANSI)/National Golf Carts Manufacturers Association (NGCMA) shall be installed for every seat on the vehicle. The driver of the commercial quadricycle shall not operate the vehicle unless each passenger thereon is wearing a hip restraint. The failure of a passenger to wear a hip restraint shall not be considered evidence of negligence, comparative or otherwise, including apportionment of fault, on the part of the passenger, and shall not be evidence used to diminish any recovery for damages arising out of the ownership, maintenance, occupancy, or operation of a vehicle.

4. No commercial pedal car vehicle shall travel at a speed greater than 25 miles per hour.

5. Commercial pedal cars shall be exempt from Fargo Municipal Code section 8-0506- Impeding traffic. When safe and appropriate to do so, the commercial pedal car operator shall exit the lane of travel in order to allow traffic to pass safely.

6. The Auditor shall have the right to examine and inspect any licensed commercial pedal car at any reasonable time in order to ensure compliance with all applicable ordinances, laws and rules.

7. If an inspection finds a commercial pedal car in operation exhibiting continuing and present safety concerns, the commercial pedal car may be immediately ordered out of service until necessary repairs are made or the safety concerns are resolved. Qualifying safety concerns may include but are not limited to failure to abide by applicable ordinances, laws or rules, flat tires, inoperable head lights or taillights, or other mechanical or operational issues making the vehicle unsafe to operate.

C. Commercial pedal car vehicle operator's license.--No person shall drive or operate a commercial pedal car vehicle upon any street, sidewalk or other public place without first obtaining a commercial pedal car operator's license.

1. Written application for a commercial pedal car operator's license shall be made to the City Auditor, giving the name, residence address, date of birth, all residing addresses within the previous five (5) years, and North Dakota driver's license number of the applicant. Every pedal car driver shall meet and maintain the following requirements in order to hold a pedal car driver license:
   i. Must be at least 21 years of age; and
   ii. Must possess a valid state driver's license which is not suspended, revoked, canceled or expired; and
   iii. Shall not have had more than three (3) moving violations in the last three (3) years and no more than two (2) moving violations in the last year; and
   iv. Shall indicate the name of the pedal car business for which the driver works; and
   v. Shall not have been convicted of careless or reckless driving or any moving violation within the past three (3) years; and
   vi. Shall have completed mandatory server training as defined in Fargo Municipal Code § 25-1501 (26).

Source: 5397 (2023).

25-3803. License Denial.--The Auditor shall issue a license under section 25-3802 only if all requirements have been met and if issuance is in the best interest of the city. The Auditor may deny any license under section 25-3802 in his/her full discretion in the interest in public safety or if the application is not in the best interest of the city. The Auditor shall take into account any objections from the City Administrator, the Police Chief, the Fire Chief, a Building Inspector, the Director of Planning and Development, and the City Engineer, or their designees. If the Auditor denies a license, the applicant may appeal said denial to the board of city commissioners.

Source: 5397 (2023).

25-3804. Term of License.--Any license issued pursuant to this subsection shall be issued upon granting and shall expire on March 1 of the year following its issuance.

Source: 5397 (2023).

25-3805. Fees.--All fees for the operation of a commercial pedal car business in the city of Fargo shall be established by Resolution approved by the board of city commissioners.

Source: 5397 (2023).

25-3806. Routes.--The license application shall identify the proposed route or routes over which the commercial pedal car shall operate. No license shall be issued under this Article until the Auditor, in consultation with other city personnel, including the Chief of Police, Fire Chief, City Engineer, Director of Planning, and Transit Director, or his/her designee, has approved the proposed route or routes. Each commercial pedal car license application is limited to no more than four (4) approved routes at any one time, to be presented at the time of the yearly license application for approval. Prohibited and restricted roadways shall be identi-

fied on the city of Fargo website for reference purposes only. Route amendments may be submitted due to road closures or other impediments to commercial pedal car operation. Such route amendments must be approved in advance of operation.

All commercial pedal car businesses shall operate tours only from approved commercial locations on private property approved by the Auditor. These sites shall be used by the licensed business as the locations for patrons to gather and assemble prior to embarking on a commercial pedal car tour and to disembark at the conclusion of the tour. Approved sites shall provide patron access to restroom facilities and a minimum of three (3) off-street customer parking spaces per pedal car operated from the site.

Source: 5397 (2023).

25-3807. Insurance.--No license shall be issued or renewed without proof of commercial general liability insurance in the minimum amount of two million dollars ($2,000,000.00). Proof of insurance shall name the city of Fargo as an additional insured and provide for the payment of damages for bodily injury, loss of consortium or death of a person, and for injury to or destruction of property of a person or entity, due to the liability of the owner or operator of the commercial pedal car arising out of the ownership, operation, use, or maintenance of a commercial pedal car. The policy shall provide that the insurer shall give the city notice of any cancellation or nonrenewal of the policy. The commercial pedal car licensee shall maintain on file with the Auditor's office a copy of the current policy of comprehensive general liability insurance required by this section.

Source: 5397 (2023).

25-3808. Advertising on commercial pedal cars.--Advertisements shall only be allowed on the manufactured body of the commercial pedal car. No banners, poles, flags, detached signs, or any other addition or object will be permitted.

Source: 5397 (2023).

25-3809. Parking.--No person shall park or permit the parking of a commercial pedal car upon any sidewalk or in any place not specifically designated for parking. The commercial pedal car may occupy up to two designated parking stalls for no more than 1 hour.

Source: 5397 (2023).

25-3810. Hours of operation.--Hours of operation shall be from 10:00 a.m. to 10:00 p.m. May through September, and 10:00 a.m. to 8:00 p.m. October through April. The prohibitions of hours of operation may be waived for special events upon proper application to the Auditor.

Source: 5397 (2023).

25-3811. Vehicle operation.--Every commercial pedal car shall be operated in compliance with all applicable federal, state and local traffic laws and regulations, and in a manner so as to assure the safety of persons and property.

Source: 5397 (2023).

25-3812. Operating restrictions and conditions.--

1. No commercial pedal car shall be operated or parked on a public sidewalk.

2. No commercial pedal car shall use any public street or other public property as a waiting area unless such area is a legal motor vehicle parking area. No pedal car shall park or wait in a taxi stand or passenger loading and unloading area as designated.

3. No commercial pedal car driver shall consume any alcoholic beverages while on duty or operate a commercial pedal car while impaired in any manner.

4. All commercial pedal cars shall be clean and maintained in a good state of repair. All commercial pedal cars shall be maintained by the commercial pedal car business so as to be well painted and have an appearance free of damage or deterioration, and a safe operational condition.

5. All commercial pedal cars shall display a valid license decal conspicuously displayed, issued by the Auditor.

6. All commercial pedal cars shall have the trade name and phone number of the licensee conspicuously displayed on the pedal car.

7. All commercial pedal car passengers consuming alcohol shall be of legal age.

8. Commercial pedal car drivers shall have in their possession proof of insurance, valid state driver's license and a commercial pedal car driver's license while in control of any commercial pedal car and shall operate the pedal car in compliance with all applicable federal, state, and local traffic laws, ordinances, or other applicable regulations and in a manner so as to assure the safety of persons and property. These documents shall be made available upon request of law enforcement, the license official, or traffic control agent.

9. All commercial pedal car drivers shall obey and comply with any lawful order or direction of any police officer, traffic control agent, or license inspector, and shall refrain from interference with such officials while in the performance of their duties.

10. No commercial pedal car driver shall permit more passengers to be carried in a commercial pedal car than the commercial pedal car's normal seating capacity and no more than two (2) persons in addition to the driver may be in the center aisle while the pedal car is in motion.

11. No commercial pedal car driver shall allow a passenger or other individuals to drive their commercial pedal car unless that individual also holds a commercial pedal car driver's license.

12. All beverages must be in cans not exceeding 16 ounces. No glassware of any kind shall be allowed on a commercial pedal car, including but not limited to bottles, plastic cups, or other drinking glasses.

13. No music or amplified sound shall be played, nor yelling or conversation be conducted, in such a manner that violates Article 11-02 of the Fargo Municipal Code.

14. No more than two (2) alcoholic beverages may be permitted per passenger. Obviously intoxicated persons shall not be permitted to be carried on the commercial pedal car, and the licensed pedal car driver shall confiscate any alcoholic beverages permitted by this Article from any intoxicated passenger.

15. It is the responsibility of the commercial pedal car driver to properly dispose of all trash.

16. A commercial pedal car driver must be properly attired with a shirt, pants, skirt or shorts and secure footwear.

17. A commercial pedal car driver shall not stop to load or unload passengers or their belongings in the intersections of any street, crosswalk or in any manner or other location

that would be considered unsafe. No commercial pedal car driver shall load or unload in any such manner that will in any way impede or interfere with the orderly flow of traffic on the streets.

18. It shall be unlawful for any commercial pedal car driver to allow or cause to be operated a pedal car in any unsafe manner or operating condition.

19. It is the responsibility of the commercial pedal car driver to actively and affirmatively manage the behavior of the passengers of the commercial pedal car so that that their behavior remains law-abiding during the excursion, both while the pedal car is in motion and at a stop. Behavior which shall be prohibited and prevented includes specifically, but is not limited to, indecent exposure, disorderly conduct, public urination and littering.

Source: 5397 (2023).

25-3813. Commercial pedal car company licenses.--Every licensed pedal car company shall:

1. Take affirmative measures to ensure that all of its owners and drivers comply with the terms of this Article.
2. Be responsible for the operation of the pedal car at all times.
3. Ensure that no pedal car is operated in an unsafe mechanical condition or continues to operate after it has been ordered out of service.
4. Promptly respond to all requests for information from the Auditor.
5. Promptly report any and all accidents involving pedal cars operating in Fargo to the Auditor.
6. Every licensed pedal car company shall be deemed the agent of service of all notices, orders, and other correspondences from the city of Fargo to pedal car drivers operating under their company license.

Source: 5397 (2023).

25-3814. Licenses nontransferable.--Licenses issued under this Article are non-transferrable, and cessation of operation shall immediately result in license termination.

Source: 5397 (2023).

25-3815. Revocation.--In addition to all other penalties, any violation of the terms of this Article shall be grounds for revocation, suspension, or non-renewal of the license. Any applicant or licensee whose license has been denied, suspended or revoked under the provisions of this Article may appeal said denial, suspension or revocation to the board of city commissioners.

Source: 5397 (2023).

CHAPTER 26

AVIATION

Article
26-01 Municipal Airport, §§ 26-0101 to 26-0105.

ARTICLE 26-01

MUNICIPAL AIRPORT

Section
26-0101 Only licensed aircraft and pilots to use municipal airport.
26-0102 Municipal airport under supervision and control of the municipal airport authority of the city of Fargo.
26-0103 Permit required for sale of refreshments or merchandise in municipal airport.
26-0104 Ordinances of city apply to municipal airport.
26-0105 Municipal airport named "Hector International Airport".

26-0101. Only licensed aircraft and pilots to use municipal airport.--Only aircraft and air pilots duly licensed by the state of North Dakota or the secretary of commerce of the United States shall be permitted to use the municipal airport of the city of Fargo; provided, however, that this restriction shall not apply to public aircraft of the government of the United States or of any state, territory, political subdivision, or possession of the United States, or of any foreign country.

Source: 1952 Rev. Ord. 26-0101.

26-0102. Municipal airport under supervision and control of the municipal airport of the city of Fargo.--The municipal airport property may be owned by the municipal airport authority of the city of Fargo to the extent allowable by law. The care, management, supervision, and control of such municipal airport shall be under such rules and regulations as the municipal airport authority of the city of Fargo, shall, from time to time, prescribe.

Source: 1965 Rev. Ord. 26-0102, 1387 (1971).

26-0103. Permit required for sale of refreshments or merchandise in municipal airport. No person, firm, or corporation shall engage in the sale of, or make any individual sale of, refreshments or any other merchandise or commodity or service within the confines of the municipal airport without previously having obtained therefor a permit from the board of city commissioners.

Source: 1951 Rev. Ord. 26-0103.

26-0104. Ordinances of city apply to municipal airport.--The ordinances of the city of Fargo, so far as applicable, are hereby extended to and shall apply to the municipal airport, and to the entire area thereat, and to all connecting public highways between said municipal airport and the said city of Fargo.

Source: 1952 Rev. Ord. 26-0104.

26-0105. Municipal airport named "Hector International Airport".--Said municipal airport, as now established and constituted, all be known as "Hector International Airport" in commemoration of the distinguished services rendered to the cause of aviation by Honorable Martin Hector, deceased.

Source: 1952 Rev. Ord. 26-0105, 2072 (1982).

CHAPTER 27

CIVIL DEFENSE COUNCIL

Article
27-01 Municipal Civil Defense Council, §§ 27-0101 to 27-0108.

ARTICLE 27-01

MUNICIPAL CIVIL DEFENSE COUNCIL

Section
27-0101 Policy and purpose.
27-0102 Creation.
27-0103 Director--Powers and duties.
27-0104 Survey to be made.
27-0105 Report to city commission.
27-0106 Personnel.
27-0107 Expenses and contracts.
27-0108 Immunity and exemption.

27-0101. Policy and purpose.--Because of the existing and increasing possibility of the occurrence of disasters of unprecedented size and destructiveness resulting from enemy attack, sabotage, or other hostile action, and in order to insure that preparations of this city will be adequate to deal with such disasters, and generally to provide for the common defense and to protect the public peace, health, and safety, and to preserve the lives and property of the people of this city, it is hereby found and declared to be necessary:

A. To establish a local civil defense council;

B. To provide for the exercise of necessary powers during civil defense emergencies;

C. To provide for the rendering of mutual aid between this city and other political subdivisions of this state and of other states with respect to the carrying out of civil defense functions.

It is further declared to be the purpose of this ordinance and the policy of the city that all civil defense functions of this city be coordinated to the maximum extent practicable with the comparable functions of the federal government, of this state, and of other states and localities, and of private agencies of every type, to the end that the most effective preparations and use may be made of the nation's manpower, resources, and facilities for dealing with any disaster that may occur.

Source: 1952 Rev. Ord. 27-0101.

27-0102. Creation.--There is hereby created the local municipal defense council of the city of Fargo, hereinafter referred to as the defense council. The mayor of the city of Fargo shall serve as chairman of the defense council and such other persons, not exceeding five in number, shall be appointed by the mayor to serve as members thereof. The mayor shall designate one of the members so appointed as vice-chairman of the defense council, who shall be known as the director of civil defense of the city of Fargo, and who shall supervise and

direct the activities and functions of the defense council, which activities and functions are hereinafter specified. The said director and each member of the defense council shall be appointed by the mayor for an indefinite term and may be removed by him at any time.

Source: 1952 Rev. Ord. 27-0102.

27-0103. Director--Powers and duties.--The director, with the consent of the mayor, shall represent the city on any regional or state organization for civil defense. He shall develop proposed mutual-aid agreements with other political subdivisions within or outside the state for reciprocal civil defense aid and assistance in a civil defense emergency too great to be dealt with unassisted, and he shall present such agreements to the council for its action. Such arrangements shall be consistent with the state civil defense plan and during a civil defense emergency, it shall be the duty of the civil defense agency and civil defense forces to render assistance in accordance with the provisions of such mutual-aid arrangements. Any mutual-aid arrangement with a political subdivision of another state shall be subject to the approval of the governor.

The director shall utilize the personnel, services, equipment, supplies, and facilities of existing departments and agencies of the city to the maximum extent practicable. The officers and personnel of all such departments and agencies shall, to the maximum extent practicable, cooperate with and extend such services and facilities to the local civil defense agency and to the governor upon request. The head of each department and agency, in cooperation with and under the direction of the director, shall be responsible for the planning and programming of such civil defense activities as will involve the utilization of the facilities of his department or agency.

The director shall direct and coordinate the general operations of all local civil defense forces during a civil defense emergency in conformity with controlling regulations and instructions of state civil defense authorities. The heads of departments and agencies shall be governed by his orders in respect thereto.

On or before the first of July in each year, the director shall file a report in writing with the mayor and the board of city commissioners which report shall summarize the activities of the defense council for the year and shall include an accounting for all monies spent during the year.

Source: 1952 Rev. Ord. 27-0103.

27-0104. Survey to be made.--With a view toward the provision of an adequate civil defense plan for the city, the defense council shall, immediately upon appointment, undertake a survey which shall include, but not be limited to, an appraisal and evaluation of:

A. The availability of existing fire-fighting, engineering, communications, rescue, health, medical, police, transportation, construction, or other facilities and the minimum requirements for such service or facilities in the event of enemy attack upon the city or county or surrounding territory.

B. The type and structure of a civil defense organization which could most efficiently and satisfactorily administer the civil defense program of the city.

C. The personnel presently employed in the service of the city who are available for civilian defense work and the additional personnel which would be required as the result of the adoption of a final and adequate civil defense plan for the city.

D. The extent to which volunteer civil defense workers would be required, together with a study of the legally incurable liabilities, tort, contract, or otherwise, of the city with respect to such volunteer personnel.

E. The means by which protection from sabotage or other internal hostility may be supplied.

F. The extent to which training courses should be instituted for civil defense workers in order to provide an efficient and capable corps to handle disasters caused by enemy attack.

G. The type of public information program needed to appraise the civilian populace of the proposed civil defense plan, and the manner in which such an information program should be maintained.

H. The feasibility and desirability of providing for the evacuation of the civilian populace, or portions thereof, in time of enemy attack, as well as the provision of air raid warning systems, bomb shelters, and emergency medical, police, fire, and similar centers.

L. The adequacy of available equipment, supplies, food, clothing, medical supplies, and shelter, and the extent to which they should be supplemented or increased.

J. The maintenance of liaison with adjacent or other municipalities and with state and federal civil defense agencies, as well as a consideration of the need for mutual or reciprocal aid agreements with such other municipalities.

K. The methods by which alternate supplies of electric, water, telephone, or other essential public utility services can be provided in the event of disruption of the present sources of supply.

L. Any additional matters which are deemed necessary for the formulation of an adequate civil defense program for the city.

Source: 1952 Rev. Ord. 27-0104.

27-0105. Report to city commission.--At the earliest practicable date upon the completion of the survey required by § 27-0104, the defense council shall report its findings to the city commission in detail, and shall include in such report, for the purpose of authorizing an adequate civil defense plan for the city, recommendations as to each of the matters specified in § 27-0104. In addition, the defense council shall provide an estimate to the board of city commissioners of the cost which would be entailed through adoption of each or any of its recommendations, and shall also outline the sufficiency of existing legal authority in the city to accomplish and effectuate the specific recommendations of the defense council. In the event that the enabling authority is found by the defense council to be inadequate, its report shall then contain recommendations as to the type of authority needed, together with suggested ordinance provisions, charter amendments, or state legislation which would supply the required legal authority to the city to act. The findings and recommendations of the defense council, made pursuant to the survey required by § 27-0104, shall be promptly considered by the board, and may be adopted, modified, or returned to the defense council for change or further action.

Source: 1952 Rev. Ord. 27-0105.

27-0106. Personnel.--Subject to the prior approval of the board of city commissioners, the defense council is authorized to employ such persons as may be necessary to carry out its

functions. Persons so employed shall be subject, however, to all laws, ordinances, and regulations governing the employees of this city except that said employees shall not be participants in any of the pension plans of the city and shall not be entitled to any rights or privileges thereunder.

Source: 1952 Rev. Ord. 27-0106.

27-0107. Expenses and contracts.--The defense council shall have no right to expend any public funds of the city without prior written approval of the board of city commissioners, nor shall it have any right to bind the city by contract, agreement, or otherwise without prior written approval of the board.

Source: 1952 Rev. Ord. 27-0107.

27-0108. Immunity and exemption.--All functions hereunder and all other activities relating to civil defense are hereby declared to be governmental functions. Neither the state nor any political subdivision or their departments and agencies, nor any civil defense worker complying with or reasonably attempting to comply with this article, or any order, rule or regulation promulgated pursuant to the provisions of this article, or pursuant to any ordinance relating to blackout or other precautionary measures enacted by any political subdivision of the state, except in case of willful misconduct, gross negligence, or bad faith, shall be liable for the death of or injury to persons, or for damage to property, as a result of any such activity. The provisions of this section shall not affect the right of any person to receive benefits to which he would otherwise be entitled under this article, or under the workmen's compensation law, or under any pension law, or the right of any such person to receive any benefits or compensation under any act of Congress.

Any requirement for a license to practice any professional, mechanical or other skill shall not apply to any authorized civil defense worker who shall, in the course of performing his duties as such, practice such professional, mechanical or other skill during a civil defense emergency.

Source: 1952 Rev. Ord. 27-0108.

CHAPTER 28

MISCELLANEOUS

Article
28-01 Disposition of Stolen or Lost Property Unclaimed, § 28-0101.
28-02 Use of the Power of Eminent Domain, §28-0201.

ARTICLE 28-01

DISPOSITION OF STOLEN OR LOST PROPERTY UNCLAIMED

Section
28-0101 Sale of stolen or lost property unclaimed--Disposition of proceeds from.

28-0101. Sale of stolen or lost property unclaimed--Disposition of proceeds from. Where stolen property or lost property of any kind shall come into the hands of the police department of the city of Fargo and for a period of 10 days shall not be identified, claimed, or if claimed, not proved to belong to said claimant, and the true owner is unknown, the said property, after being held for a period of 60 days, may be sold by order of the chief of the police, after 10 days' notice by a publication in a daily newspaper of general circulation published in the city, and the proceeds shall be placed in the city treasury to the credit of the contingent fund, and subject to use for police purposes. All expenses of keeping, storing, handling, and such as may be necessarily incident to the proper care of any personal property shall be first paid and receipt taken therefor, and the balance only paid to the city treasurer on due receipt therefor; provided, that no such personal property shall ever be sold so long as such property is required to be used as evidence in any criminal or civil case, except when done by order of the court.

1952 Rev. Ord. 28-0101.

ARTICLE 28-02

USE OF THE POWER OF EMINENT DOMAIN

Section
28-0201 Limitation of use of eminent domain by city

28-0201. Limitation on Use of Eminent Domain by City.--The city shall limit its use of its power of eminent domain, as authorized by local, state or federal law, only to further a public use or public purpose. For purposes of this section, a public use or public purpose does not include public benefits of economic development, including an increase in tax base, tax revenues, employment, or general economic health. Private property shall not be taken by for the use of, or ownership by, any private individual or entity, unless that property is necessary for conducting a common carrier or utility business. Notwithstanding the foregoing, private property taken by the city for a public purpose may be sold or returned to private ownership after the public use or public purpose for the property is satisfied or completed.

Source: 4532 (2006).

CHAPTER 29

PENALTY PROVISIONS

Note: Chapter 29 (section 29-0101) of the 1952 Revised Ordinances is repealed by omission. The 1952 Revised Ordinances contained two general penalty provisions which were codified as sections 1-0301 and 29-0101. The compiler combined the provisions of the two former sections into section 1-0301, and omitted section 29-0101 (Chapter 29) from the 1965 Revised Ordinances.

CHAPTER 30

MECHANICAL CODE

Article

30-01	General Provisions, §§ 30-0101 to 30-0106.
30-02	Heating and Air-conditioning Plants, §§ 30-0201 to 30-0202--Repealed.
30-03	Combustion Units, §§ 30-0301 to 30-0305.
30-04	Chimneys and Flues--Repealed.
30-05	Gasoline Stoves, §§ 30-0501 to 30-0506.
30-06	Certificate of Authority, §§ 30-0601 to 30-0612.
30-07	Fees, §§ 30-0701, 30-0702.
30-08	Miscellaneous, §§ 30-0801, 30-0802.

ARTICLE 30-01

GENERAL PROVISIONS

Section

30-0101	Definitions.
30-0102	Scope of chapter.
30-0103	Minimum requirements.
30-0104	Emergency repairs.
30-0105	Certificate of authority required.
30-0106	Standards adopted.

30-0101. Definitions.--The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section except where the context clearly indicates a different meaning:

1. "Person" includes any individual, firm, partnership, joint adventure, association, corporation, estate, receiver, or any other group or combination acting as a unit, and their agents, employees, and representatives and includes the plural as well as the singular number.

2. "Building inspector" means the building inspector of the city of Fargo and his authorized assistants.

3. "Heating and air-conditioning plant" includes any heating or air-conditioning plant or system and the component parts thereof (except combustion units as defined in paragraph (D) of this section) including but not limited to steam boilers, hot-water boilers and warm-air furnaces.

4. "Combustion unit" includes any stoker, oil burner, oil-burning equipment, gas burner, gas-burning equipment, conversion burner, or incinerator and their component parts.

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960).

30-0102. Scope of chapter.--This chapter shall govern the construction, installation, alteration, maintenance, and repair of all heating and air-conditioning plants, chimney flues, combustion units, gas burners, gas-burner equipment and appliances, and gasoline stoves installed in or for all buildings within the city except that the owner-occupant of any single-family dwelling may, with the assistance of members of his family and household, personally perform any work governed by this chapter, but before doing the same, he shall obtain a permit therefor from the building inspector and pass inspection as hereinafter provided.

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960).

30-0103. Minimum requirements.--The provisions of this chapter shall be held to be minimum requirements adopted for the protection of the health, welfare, and safety of the community.

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960).

30-0104. Emergency repairs.--In case of emergency, repair work may be proceeded with without first obtaining the permit hereinafter required. Application for such permit shall be made within 24 hours after repairs are commenced, Sundays and holidays excepted. This section shall not be construed to limit the right of Northern States Power Company and its authorized employees to render necessary services.

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960).

30-0105. Certificate of authority required.--Except as is otherwise provided in § 30-0102 and § 30-0104 of article 30-01, no person shall engage in or carry on the construction, installation, alteration, maintenance, and repair of heating and air conditioning plants, combustion units, gas burners and gas burner equipment and appliances within the city, or advertise, hold out or otherwise represent himself as being qualified to perform such work without first securing and continuing in force a "certificate of authority" as hereinafter prescribed in this chapter.

Source: 1965 Rev. Ord. 30-0105, 1575 (1974).

30-0106. Standards adopted.--The following standards are hereby adopted for all heating, air conditioning and other gas, oil, or coal consuming appliances:

A. All heating, air conditioning, or other gas, oil, or coal consuming appliances for either domestic or commercial use installed in the city of Fargo shall bear a seal of approval from the American Gas Association, American Standards Association, Underwriters Laboratories, or other nationally recognized testing laboratory.

B. The International Mechanical Code, sponsored by the International Code Council, 2024 Edition, is hereby adopted as the mechanical code for the city of Fargo from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the limits of the city, and within the extra-territorial zoning jurisdiction of the city, with the following amendments:

Section 101.1 is hereby amended to read as follows:

101.1 Title. These regulations shall be known as the Mechanical Code of the City of Fargo, hereinafter referred to as "this code."

Section 103.1 is hereby amended to read as follows:

> **103.1 Creation of agency.** The City of Fargo Inspections Department is hereby created and the official in charge thereof shall be known as the code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code.

Section 104.8 is hereby amended to read as follows:

> **104.8 Liability.** The code official, member of the board of appeals or employee charged with the enforcement of this code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered personally liable, either civilly or criminally, and is hereby relieved from personal liability for any damage accruing to persons or property as a result of an act or by reason of any an act or omission in the discharge of official duties. This code shall not be construed to relieve from or lessen the responsibility of any person owning, operating, or controlling any building or structure for any damages to persons or property caused by defects, nor shall the code enforcement agency or the city be held as assuming any such liability by reason of the inspection authorized by this code or any permits or certificates issued under this code.

Section 108.2 is hereby amended to read as follows:

> **108.2 Schedule of permit fees.** Where work requires a permit, a fee for each permit and mechanical work shall be paid as required, in accordance with the schedule as established by the City of Fargo Board of City Commissioners.

Section 201.3 is hereby amended to read as follows:

> **201.3 Terms defined in other codes.** Where terms are not defined in this code and are defined in the International Building Code, International Fire Code, International Fuel Gas Code or North Dakota State Plumbing Code, such terms shall have meanings ascribed to them as in those codes.

Section 307.2.2 is hereby amended to read as follows:

> **307.2.2 Drain pipe materials and sizes.** Components of the condensate disposal system shall be ABS, cast iron, copper and copper alloy, CPVC, cross-linked polyethylene, galvanized steel, PE-RT, polyethylene, polypropylene, PVC or PVDF pipe or tubing. Components shall be selected for the pressure and temperature rating of the installation. Joints and connections shall be made in accordance with the applicable provisions of North Dakota State Plumbing Code relative to the material type. Condensate waste and drain line size shall be not less than ¾-inch pipe size and shall not decrease in size from the drain pan connection to the place of condensate disposal. Where the drain pipes from more than one unit are manifolded together for condensate drainage, the pipe or tubing shall be sized in accordance with Table 307.2.2.

Section 701.3 is hereby added to read as follows:

701.3 Attic space. Attic space shall not be used for combustion air.

Section 908.5 is hereby amended to read as follows:

908.5 Water supply. Cooling towers, evaporative coolers and fluid coolers shall be provided with an approved water supply, sized for peak demand. The quality of water shall be provided in accordance with the equipment manufacturer's recommendations. The piping system and protection of the potable water supply system shall be installed as required by the North Dakota State Plumbing Code.

Section 1008.2 is hereby amended to read as follows:

1008.2 Discharge. Blowoff valves shall discharge to a safe place of disposal. Where discharging to the drainage system, the installation shall conform to the North Dakota State Plumbing Code.

Section 1208.1 is hereby amended to read as follows:

1208.1 General. New hydronic piping systems shall be isolated and tested hydrostatically at no less than 100 psi (689 kPa). The duration of each test shall be not less than 15 minutes.

Source: 5350 (2022), 5491 (2025).

Editor's note—Ord. No. 5350, §§ 1, 2, adopted May 31, 2022, repealed the former § 30-0106, and enacted a new § 30-0106 as set out herein. The former section pertained to similar subject matter and derived from Ord. Nos. 1572 (1974), 1800 (1977), 1997 (1980), 2083 (1983), 2253 (1986), 2347 (1987), 2451 (1989), 2617 (1992), 2679 (1994), 2758 (1995), 2797 (1996), 2868 (1998), 2996 (1999), 4185 (2001), 4405 (2004), 4432 (2004), 4598 (2007), 4697 (2009), 4748 (2010), 4873 (2013), 5054 (2016), and 5219 (2019).

ARTICLE 30-02

HEATING AND AIR-CONDITIONING PLANTS

Note: Article 2 of chapter 30 of the Fargo Municipal Code has been repealed by Ord. No. 2758 (1995) and 2795 (1996).

ARTICLE 30-03

COMBUSTION UNITS

Section

30-0301 Definitions.

30-0302 Duties and powers of building inspector--Repealed.
30-0303 Stoker installation.
30-0304 Oil burner installation.
30-0305 Gas burner installation.

30-0301. Definitions.--The following words, terms, and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

1. "Stoker" means a mechanical device, for feeding solid fuel into the combustion chamber of a boiler or furnace used in connection with a heating plant whether automatically or manually controlled.

2. "Oil burner" shall mean any device designed to burn fuel oil having a flash point of 100° Fahrenheit or higher, as determined by the Tag Closed Test in accordance with the method of test adopted by the American Society for Testing Materials (ASTM Designation D 56-36), and having a fuel tank or container with a capacity of more than 10 gallons connected thereto.

3. "Oil-burning equipment" shall include oil burners and all tanks, piping, pumps, control devices, and accessories, including blowers for the distribution of warmed air, connected to the burners.

4. "Gas burner" means a device for the final conveyance of the gas, or a mixture of gas and air, to the combustion zone of a boiler, furnace, device, or appliance used in connection with a heating system and shall include conversion burners and gas-designed appliances as hereinafter defined.

5. "Gas burner equipment" shall include gas burners, is above-defined, and all piping, shut-off valves, fans, blowers, control devices, and accessories connected to the burners.

6. "Conversion burner" means a gas-burning appliance designed to supply gaseous fuel to and properly burn the same within the combustion chamber of a boiler, furnace, or other device originally designed to burn another fuel.

7. "Gas-designed appliance" means all gas-burning space heating appliances designed for the exclusive use of gaseous fuels either natural or manufactured.

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960).

30-0302. Duties and powers of building inspector.--Repealed by Ord. No. 2796 (1996).

30-0303. Stoker installation.--The construction, arrangement, equipment, and manner of installation of all stokers hereafter installed for use in connection with heating plants in or for buildings in the city, and the alteration hereafter of all such stoker installations shall conform to the following provisions:

A. Nonautomatic stokers not allowed--Exceptions--When. Stokers which are not equipped with automatic means of preventing excessive pressure or temperatures of the heating medium shall not be installed or operated in any location where a competent attendant will not be constantly on duty on the premises while the stoker is in operation.

B. Automatic controls. Each mechanical stoker shall be equipped with at least one high-limit control so connected as to shut off power from stoker drive in the

event of excessive pressure in a steam boiler or excessive temperature in a hot-water boiler or warm-air furnace casing. Each steam boiler or hot-water boiler shall be equipped with a low-water cutoff.

Where there may be an overrun of heat due to sustained period of operation for the stoker, a reverse action control or equivalent control shall be installed in hot-water or steam systems so as to relieve this condition.

On all installations where operation of stokers is controlled by an aquastat, pressurestat or furnacestat, a second control, either aquastat, pressurestat or furnacestat, shall be installed in the 110-volt line ahead of all controls as a high-limit or safety control.

C. Stoker capacity, setting heights and combustion space. The capacity of a stoker for any given installation shall be in accordance with load-carrying capacity set forth by the Stoker Manufacturers' Association. In any event, the stoker installed shall have a capacity or feed rate not to exceed 50% greater than that required in said table of Stoker Manufacturers' Association.

The distance from retort to crown sheet and the space for combustion, within any boiler or furnace, shall be such as to secure efficient smokeless combustion and shall be in accordance with the table set forth by the Stoker Manufacturers' Association. Where stokers are installed in old boilers and strict compliance with the foregoing requirements cannot be met, minor modifications may be made subject to the approval of the building inspector.

D. Alterations to combustion chambers. Where stokers are installed in downdraft boilers, the upper grates shall be removed and baffling changed where necessary to secure an unrestricted combustion space.

E. Used stokers--Reconditioned. It shall be hereafter unlawful for any person to install any used stoker, or for the building inspector to issue any permit authorizing such installation, until such person shall have first submitted, with his application for such permit to install, a copy of the purchase order stating that a used, repaired, or reconditioned stoker is to be installed and bearing a statement by the installer that said stoker has been properly reconditioned and will comply in every way with the requirements of this chapter for new equipment as to operation and adjustment.

F. Approved stokers required. It shall be unlawful for any person to install within the city any stoker not approved by the Stoker Manufacturers' Association.

G. Stoker equipment installation permit required. Any person may install an approved stoker and its associated equipment in accordance with the provisions of this chapter, but no stoker equipment shall be installed in the city unless and until the building inspector shall have issued a permit for the specific installation.

H. Application. Application for the installation permit herein required shall be made in writing signed by the dealer or installer, stating the location of the property or building in which the installation is intended, the name, type, and model of the stoker, type and model of controls, stoker capacity, setting heights and combustion space, accompanied by a sketch, if deemed necessary by the building inspector, showing the layout of controls for the purpose of installation.

I. Granting permits. Within 48 hours after filing of the application and sketch, the building inspector shall issue such permit or in writing notify the applicant of changes required before a permit will be issued or the reason why the application is denied. Upon the required changes being made in the application or sketch, a permit shall be issued. No stoker equipment of a different kind than that specified in the application and no other changes shall be made, nor shall the installation be made in any other manner than as described in such application or shown in the sketch submitted therewith.

J. Inspection of installations. All installations of stokers installed within the city shall be inspected by the building inspector. An approval of installation shall be given the installer before any stoker is turned on for use. Installers of stokers shall give at least 24 hours' notice that a stoker installation is ready for inspection.

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960).

30-0304. Oil burner installation.--The construction, arrangement and manner of installation of all oil burners and oil-burning equipment hereafter installed for use in connection with heating plants in or for buildings in the city, and the alteration or repair hereafter of such installations shall conform to the following provisions:

A. Exception. This chapter does not apply to oil heaters and oil lamps equipped with a wick or a mechanical device, the movement of which is essential to flame adjustment, or to such portable apparatus as blowtorches, soldering pots, etc., but does include all types, classes, and sizes of oil-burning water heaters and space heaters, regardless of their oil container or tank capacity.

B. Approved oil burners required. It shall be unlawful for any person to install within the city any oil burner not approved by the Underwriters Laboratories or other nationally recognized testing laboratory.

C. Inspection. The building inspector shall automatically approve any oil burners listed by the Underwriters Laboratory or any other nationally recognized inspection board or laboratory. Oil burners not listed by the Underwriters Laboratory or any other nationally recognized board or laboratory shall not be approved.

D. Oil-heating equipment--Installation permit. Any qualified person may install approved oil-burning equipment in connection with an approved oil burner in accordance with the provisions of this chapter but no oil-burning equipment shall be installed in the city unless and until the building inspector shall have issued a permit for the specific installation.

E. Definition of permit. A permit is the written authority of the building inspector issued pursuant to this charter for the installation of an oil burner and its associated equipment covered by this chapter or any material entering into the composition thereof.

F. Application for installation permit. Application for an installation permit shall be made in writing signed by the dealer or installer stating the location of the property in which the installation is intended, the name, type and model of the

burner, type and model of controls, and the number and capacity of tanks for storage of fuel, accompanied by a sketch, if deemed necessary by the building inspector, showing the layout of the proposed installation.

G. Granting permits. Within 48 hours after filing of an application and sketch in accordance with this chapter, the building inspector shall issue such permit or in writing notify the applicant of changes required before a permit will be issued or the reasons why the application is denied. Upon the required changes being made in the application or sketch, a permit shall be issued. No oil burner or equipment of a different kind than that specified in the application and no tanks of different sizes, kind, or quality shall be installed, nor shall the installation be made in any manner other than as described in such application or shown in the sketch submitted therewith.

H. Inspection of installation. All installations of oil burners or equipment within the city shall be inspected by the building inspector. An approval of installation shall be given the installer before any oil burner is turned on for use. The installer shall give at least eight hours' notice that the installation is ready for inspection.

I. Installation of used oil Burners--Procedure to be required. No person shall install a used oil burner or use in connection with a heating plant until he shall have furnished the building inspector with a statement that said oil burner has been put in first-class operating condition and with a letter from the purchaser acknowledging that said purchaser is buying a used oil burner.

J. Fuel oil. The grade of fuel oil used with any oil burner shall be one which tests and experience have shown to be suitable for use with that burner. The oil shall have a flash point not less than 100° Fahrenheit, determined as specified in paragraph (B) of § 30-0301 of this article, and shall be free from acid, grit, and fibrous or other foreign matter likely to clog or injure the burner or valves.

K. Commercial standard. The commercial standards (Grades 1, 2, 3, 5, and 6) for domestic and industrial fuel oils, set up by the U.S. Department of Commerce, Bureau of Standards Bulletin CS 12-40 (effective June 5, 1940) shall constitute standard grades for fuel oil sold or delivered to oil burners within the city, and it is hereby declared a violation of this chapter for any person to deliver for use as fuel in an oil burner or burners, or put into the storage tank of any oil burner or burners a grade of oil heavier than that which has been approved by the building inspector for use in such burner or burners.

L. Secondary controls--Thermostats. All domestic types of oil-burner installations in the city shall be equipped with a modern type of thermostat for the secondary control of the oil burner.

M. Electrical installations. Electrical installations used in connection with oil-burning equipment shall be installed in accordance with the electrical code of the city.

N. Combustion chamber dimensions. It shall be unlawful for any person to install any oil burner into a combustion chamber if the chamber is of a design, size, or type other than that which has been specified by the manufacturer as being the correct design, size, or type for the size of nozzle and angle of atomization with which the oil burner being installed is equipped.

0. Flue gas analysis tests. Before any final approval shall be given by the building inspector on any installation of any type of oil burner covered by the provisions of this chapter, the person installing the same shall make a test, or tests, commonly known as a flue gas analysis test in the presence of the inspecting officer if deemed necessary by the building inspector. The findings of such analysis shall be recorded upon the inspection approval form.

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960).

30-0305. Gas burner installation.--

A-1. No apparatus or equipment to be used with gas supplied from the general gas distribution system of Xcel Energy within the city shall be installed or connected for use without a permit having been secured therefor from the building inspector.

A-2. Repealed by Ord. No. 2568 (1991).

A-3. Xcel Energy shall refuse gas service to the premises wherein any gas-fired installation or connection is made contrary to the terms of this chapter, upon discovery of same, until the same has been remedied or disconnected and removed.

A-4. All installations of mains, regulator stations, services, and meter installations shall conform to the gas construction standards on file in the office of the city engineer. Such standards shall not be effective until approved by the board of city commissioners and any changes in such standards shall not be effective unless approved by the building inspector. However, regardless of such standards, every high or medium pressure service shall have an outside shutoff valve and all low pressure services installed after January 1, 1962, shall have outside shutoff valves.

B-1. Scope. The construction arrangement, manner of installation, alteration and repair of all gas burners, gas-burner equipment and appliances as herein defined having an input capacity of 400,000 BTU per hour or less shall conform to provisions of this chapter.

B-2. Definitions. For the purpose of this section the following definitions shall apply:

A. Gas burners and gas-burner equipment. The term "gas burner" shall mean a device for the final conveyance of gas or a mixture of gas and air to the combustion zone of a steam or hot-water boiler, furnace, or any device or appliance used in connection with a space-heating system, and shall include conversion burners, gas-designed heating appliances, power gas burners and atmospheric gas burners. The term "gas-burner equipment" shall include gas burners as above defined, together with all fans, blowers, control devices, accessories connected to the burners, and piping involved in supplying the burner.

B. Conversion burner. The term "conversion burner" shall mean a gas-burning device designed to supply gaseous fuel to and properly burn this fuel in the combustion space of equipment, originally designed to burn another fuel.

C. Gas-designed heating appliance. The term "gas-designed heating appliance" shall mean any space-heating appliance designed for the exclusive use of gaseous fuel, excepting such auxiliary heaters as gas logs, radiant heaters, etc.

D. Power Gas Burner. A "power gas burner" is one in which either gas or air or both are supplied at pressures exceeding, for gas, the normal line pressure at the burner and for air, atmospheric pressure, the added pressure being applied at the burner.

E. Atmospheric burner. An "atmospheric burner" is a device (other than a gas range or a gas water heater) in which air at atmospheric pressure is injected into the burner by a jet of gas under pressure not more than the house line pressure and whose input exceeds 50,000 BTU per hour.

B-3. Approval of gas burners. It shall be unlawful for any person, firm, corporation, or agent to install any gas burner, as defined within this chapter, until such gas burner has been approved by the building inspector. The building inspector may approve all gas burners meeting the minimum requirements for approval or listing by the American Standards Association, sponsored by the American Gas Association, or other nationally recognized testing laboratory and in compliance with requirements of this chapter.

B-4. Installation of used gas burners. It shall be unlawful to install any used gas burner, and no permit shall be issued authorizing such installation, until the licensed installer shall have first submitted with his application for permit a copy of the purchase order stating that a used burner is to be installed and bearing an acknowledgment by the purchaser that such is the case together with a statement by the licensed installer that said burner has been reconditioned and will comply in every way with ordinance requirements for new equipment as to operation, safety standards, and adjustments. No used gas burner shall be installed unless it is of a type, make, and model currently approved for installation in the city.

B-5. Type of gas. The requirements of this chapter shall apply to gas burners supplied with natural gas from the general distribution system within the city. Burners and their installation where supplied with other types of gas, such as bottled or liquefied petroleum gas, shall conform to the requirements of this chapter where applicable together with the requirements of the American Gas Association and the National Board of Fire Underwriters pertaining to the type of gas to be used.

B-6. Ventilation. Gas burners and gas-burning appliances as hereinbefore defined shall not be installed for operation in a room where the normal facilities for ventilation do not permit proper combustion of the gas, unless special provision is made for supplying sufficient air for complete combustion.

Gas burners, gas-burner appliances and space heaters will not be permitted in bedrooms, rooms used for sleeping purposes, bathrooms, or any confined space or area unless proper provisions are made for the supply of primary and secondary air for combustion from outside the building. Provisions shall also be made for proper venting to the outside.

Regulations for the method of securing air for combustion and the proper venting of the appliances shall be secured from the building inspector before work is started on any specific installation.

B-7. General. The installation of conversion burners shall be made in conformance with the American Standards Association requirements as sponsored by the American Gas Association and with requirements herein set forth.

B-8. Preparation of boilers and furnaces. Before a gas burner is installed in any existing boiler or furnace, all flues, fire pots, combustion chambers, and connecting joints through which flue gases are conducted shall be thoroughly cleaned, examined for leaks and draft conditions, and made gas-tight as shown by a smoke-bomb test or its equivalent.

B-9. Flues and flue pipes. The chimney flue and flue pipe shall be examined and reconditioned if necessary so that they will freely conduct the flue gases to the outer air. Where flue pipes are rusted or burned out, they shall be replaced by new pipe.

B-10. Removal of oil burners. Where a gas burner is installed and an oil burner removed, it shall be mandatory that the vent and fill pipes to the storage tank be removed and all openings to the storage tank plugged.

B-11. Draft hoods. Each gas-burning appliance shall be equipped with a draft hood or its equivalent designed to:

A. Insure the ready escape of the products of combustion in the event of no draft, back draft, or stoppage beyond the appliance.

B. Prevent a back draft from entering the appliance.

C. Neutralize the effect of stack action of the flue upon the operation of the appliance.

The draft hood shall be placed in and made a part of the flue pipe from the appliance or shall be in the appliance itself. Such device shall have a free area equal to or greater than the cross-sectional area of the flue pipe connected thereto subject to the approval of the building inspector.

The draft hood shall be located at a point not lower than the top of the highest flue passage in the appliance.

Appliances of the revertible flue type shall have the draft hood located at least one foot higher than the top of the highest flue passage. Proper provision shall be made, subject to the approval of the building inspector, to prevent the accumulation of gas in any part thereof. Revertible flue-type furnaces shall have as a minimum a two-inch bleeder cut through if trapped more than 12 inches.

B-12. Flue pipes. The internal cross-sectional area of the flue pipe between the appliance and the chimney liner shall be such as to provide not less than one square inch of flue area per 7,500 hourly BTU input. In no case shall this flue pipe be less than five inches in diameter for central-heating gas appliances nor less than four inches in diameter for space-heating appliances and it shall not be larger than the next integral inch diameter above the sizes given in the following table:

MINIMUM PERMISSIBLE FLUE SIZES
FOR GAS BURNER INSTALLATIONS*

Input Rating BTU per hour	*Area of Flue Outlet--Sq. inch.*	*Diameter Flue Pipe--Inches*
95,500	12.6	4
147,000	19.6	5
212,250	28.3	6
288,750	38.5	7
377,250	50.3	8
477,000	63.6	9

Based on 1 square inch flue area per 7,500 BTU per hour input.

*NOTE: If flue pipe exceeds 10 feet in length or contains more than two elbows, use next size larger pipe and draft hood.

In cases where the outlet from the appliance is larger than the above-indicated size, an orifice plate may be inserted, or a section of the flue pipe restricted to the size indicated

between the appliance outlet and the draft diverter. In special cases with high chimneys or flues, the above schedule of areas may be modified subject to specific approval of the building inspector.

The draft hood should ordinarily be located adjacent to the appliance. In cases where it appears desirable to place the draft hood at a distance from the appliance, the size of the restricted section may be modified according to the length and rise of the flue pipe.

The proportioned section at the flue outlet of the appliance eliminates the necessity of using an adjustable damper in the flue pipe and such damper will not be permitted.

Where dampers are an integral part of the boiler or furnace, they shall be removed or permanently secured in the wide-open position, except such dampers the function of which is to alter the passage of the flue gases through the appliance, which shall be locked in such a position as not to interfere with the normal operation of the burners.

B-13. Material used for flue pipe shall be such as to resist the corrosive action of flue gases.

Flue pipe of existing systems shall be relocated where necessary and new flue pipe installations shall be so made as to avoid sharp turns or other constructional features which could create excessive resistance to the flow of flue gases. Flue pipe shall slope upward to chimney.

Flue pipe shall be tightly connected to the chimney liner, so as to prevent infiltration of cold air.

No baffles shall be applied which will interfere with the proper combustion of gas.

Flue pipe shall be well supported to prevent sagging and shall not be installed closer than six inches to any combustible building materials unless flue pipe is covered with incombustible insulation such as will permit the surface temperature of the exterior surface thereof to attain a temperature of not higher than 125° Fahrenheit when the appliance is under continuous operation.

All space-heating equipment shall be of the vented type and properly vented to an effective flue. Heaters of a sealed-unit type vented through a wall to the atmosphere will be accepted if approved by the American Gas Association.

B-14. Radiant heaters or other unvented heaters may be installed in fireplaces providing the chimney has a positive draft with the damper closed.

B-15. Gas burners. Gas burners of all types shall consist of assembled and tested units and shall be accompanied by complete and comprehensive installation and operation instructions. The burner or burners shall be located according to the manufacturers' instruction and shall be so secured that they will not twist, slide, or drop out of position.

B-16. The burners shall be so installed as to be readily accessible for cleaning and inspection. The burner or burners shall be so installed that no part of the flames impinge on the heating surface so as to cause incomplete combustion. Air shutters shall be adjusted to produce a proper flame at the prevailing gas pressure.

On all installations where the combustion air pressure can exceed the house line pressure, an approved check valve or other approved device shall be installed in the gas supply line to prevent air from backing into the gas line.

B-17. Air intake. Where secondary air is necessary, secondary air opening or openings shall be provided of sufficient area to supply an adequate amount of air for complete combustion under the specified draft conditions and at the maximum rate of firing.

Where an automatic secondary air control is provided, the construction shall be such that, in case the control fails in any way, either the gas will be shut off or the secondary air door will remain open.

The air intake of power burners shall be so located as to prevent the possibility of accidental closure. The gas and air supply shall be equipped with controls coordinated to prevent opening of the gas supply until the air supply is adequate for proper combustion and to shut off the gas supply in the event of failure of the air supply.

B-18. Pilots. Each gas burner shall be equipped with a safety device arranged to prevent the flow of gas through the main burner unless the pilot flame is burning. The device shall consist of a thermostatic pilot or other approved type of safety device. The operation of this device shall not depend upon the closing of an electric circuit to shut off the main gas supply. Gas burners installed under subsection B-14 are exempt from this provision.

Pilot burners shall be rigidly supported in such a manner that their position relative to the main burner or burners will be fixed.

Pilot burner or burners shall be so placed that they can be safely lighted and they shall be readily accessible or removable for cleaning.

The gas supply line to the pilot or pilots shall be connected to vertical main gas supply lines or to the side or top of horizontal lines ahead of the main burner governor and appliance shutoff valve and shall be provided with a separate cock. Provided, however, that where complete shutoff-type automatic pilot is provided with approved flow interrupter, the pilot line shall be connected to this control and such control shall be located ahead of the main burner governor and after the appliance shutoff valve.

Room heaters, floor furnaces and recessed wall heaters shall be equipped with complete shutoff type of automatic pilot.

Thermostatic safety pilots shall be so adjusted that under continuous operating conditions the main gas supply will be shut off within three minutes after pilot flame has been extinguished.

Copper or iron tubing shall not be used for supply piping within the burner heat zone to pilot burners.

B-19. Main shutoff valve or cock. A manually operated, approved shutoff valve or cock shall be installed at each appliance to shut off the entire gas supply to appliance.

Such valve or cock shall be so located that it is readily accessible at about five feet above the floor, and shall clearly indicate the "on" and "off" positions, or direction of rotation to open or close. Where a cock is provided, the opening handle shall be securely attached to the plug in such manner that it may not be readily removed.

B-20. Automatic control. Electric control valves shall be installed according to the instructions furnished by the manufacturer. All heating equipment shall be automatically controlled by thermostat except heaters installed in fireplaces as provided in subsection B-14.

B-21. Electric wiring. All electrical connections shall be made in accordance with the provisions of all building and electrical codes relating to the installation of electric wiring in the city of Fargo.

B-22. Gas pressure regulators. An approved gas pressure regulator shall be installed on the downstream side of the pilot supply on all gas burners, and a pressure regulator and pilot filter shall be installed in all pilot lines, downstream from the pilot shutoff cock, on all burners. Pressure regulators and pilot filters shall be of a type listed for approval by the American Gas Association and shall be approved by the building inspector.

B-23. Limiting devices. The boiler or furnace shall be equipped with safety devices arranged to limit high steam pressures or water temperatures, as well as high air temperature in warm-air furnaces, and all such devices shall be subject to the approval of the building inspector.

Each gas-fired steam boiler shall be equipped with a low-water cutoff approved by the building inspector.

Safety devices operated electrically shall not depend upon the closing of a circuit to shut off the main gas supply. This requirement shall not be construed as prohibiting the use of electrical regulating devices, providing the required safety devices are also installed. Controls shall be so connected that maximum inherent safety provided by such controls will be attained.

Safety shutoff valves, if used, shall be tested to assure gas-tightness of the seat when in the closed position; the valve assembly shall be gas-tight in all positions. Packing glands shall be designed so that the valve will not be made inoperative by excessive tightening of the packing nut.

Either the valve shall incorporate means for requiring a manual operation for reopening of the valve after it has closed or the electrical circuit shall be so arranged as to require a manual operation to reopen the valve after it has been closed. In no case shall valves be able to be opened manually until safety pilots are lighted and circuit completed or low-water cutoff circuit has been completed.

B-24. Piping. Gas piping installed for serving conversion burners or gas-designed heater appliances shall be sized for a total pressure drop not exceeding 0.5 inches water gauge from the meter to the burner for the total connected load. A separate pipe from the meter is to be preferred and in no case shall the service pipe be smaller than the size of equipment connection. All gas piping shall be installed in conformance with the provisions of this chapter and in conformance with American Standard Association's requirements.

Subsection B-25 is deleted in its entirety and the remaining subsections of section 30-0305 shall be renumbered accordingly.

* * *

B-28. Burner operation. . . .

NOTE: In making the test under subsection B-28, care shall be exercised to prevent the accumulation of unburned gas in the appliance or flues which might result in explosion or fire.

* * *

B-30. Instructions to the owner and/or occupant. The owner and/or occupant shall be thoroughly instructed by the installer as to the proper and safe operation of the appliance before it is placed in service, such instructions to include actual demonstration to the customer or his authorized agent of the processes of lighting and turning off the gas burner. A printed set of instructions enclosed in an envelope labeled "Instructions to Customer" shall be securely attached to the gas valve.

* * *

C-10. Venting of controls. Pressure regulators, slow-opening gas valves, and other gas equipment requiring venting shall be vented to a safe point outside of the building.

* * *

C-13. Inspection and tests. All installations shall be carefully tested for the proper operation of all controls and electrical circuits.

Piping shall be carefully tested for leaks.

* * *

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960), 2467 (1989), 2796 (1996), 4599 (2007).

ARTICLE 30-04

CHIMNEYS AND FLUES

Note: Article 4 of chapter 30 (sections 30-0401 to 30-0404) of the Fargo Municipal Code has been repealed by Ord. No. 2758 (1995).

Source: Revised Ordinances of 1952 (added by Ord. No. 968, 1956), 1087 (1960), repealed by Ord. 2758 (1995).

ARTICLE 30-05

Article 30-05 repealed in its entirety by Ord. No. 4600 (2007).

ARTICLE 30-06

CERTIFICATE OF AUTHORITY

Note: Article 30-06 of chapter 30 of the Revised Ordinances of 1965 (sections 30-0601 to 30-0615), relating to the board of examiners, was repealed by Ord. No. 1571 (1974), which enacted new article 30-06 (sections 30-0601 to 30-0612); additional source: 1952 Rev. Ord. as added by Ord. No. 968; amended by Ord. No. 1087 (1690).

Section

30-0601 Definitions.
30-0602 Applications.
30-0603 Subject of examination.
30-0604 Rules and procedures.
30-0605 Time of examination.
30-0606 Passing grade.
30-0607 Issuance of certificate of authority.
30-0608 Suspension or revocation of certificates.
30-0609 Records.
30-0610 Master heating contractor and master gas installer--Bond required--Repealed.
30-0611 Liability insurance.
30-0612 Liability.

30-0601. Definitions.--The following words, terms and phrases when used in this chapter shall have the meanings ascribed to them in this section, except when the context clearly indicates a different meaning:

1. "Master heating contractor" shall mean a person, firm, or corporation duly authorized by a master's certificate of authority to conduct the business of constructing, installing, altering, maintaining, and repairing heating and air conditioning plants and combustion units and fuel consuming appliances within the city of Fargo.

2. "Journeyman heating mechanic" shall mean a person duly authorized by a journeyman's certificate of authority to construct, install, alter, maintain, and repair heating and air conditioning plants and combustion units and all fuel consuming appliances while under the supervision of or in the employment of a master heating contractor.

3. "Master gas installer" shall mean a person, firm, or corporation duly authorized by a master's certificate of authority to conduct the business of installing, maintaining and repairing gas consuming appliances within the city.

4. "Journeyman gas fitter" shall mean a person duly authorized by a journeyman's certificate of authority to install, maintain and repair gas consuming appliances while under the supervision of or in the employment of a master gas installer.

Source: 1965 Rev. Ord. 30-0601, 1571 (1974).

30-0602. Applications.--Any applicant for a certificate of authority shall apply for said certificate with the building official, and shall state in the application whether it is for a master's or journeyman's certificate. The application shall show the full name, place of business, name of employer, and proof of at least three years of experience or trade school or combination of both.

Source: 1965 Rev. Ord. 30-0602, 1571 (1974), 4091 (2000).

30-0603. Subject of examination.--The building inspector shall examine all applicants for a master's or journeyman's certificate of authority as to their ability and skill to construct, install, alter, maintain, service and repair heating and air conditioning plants, gas burners, gas burner equipment , refrigeration equipment, and appliances and combustion units in the city of Fargo. The building official shall have complete control over such examinations. The subject of such examination shall be confined to the provisions, requirements and application of this ordinance and the regulatory standards therein adopted. The building official may enter into and recognize agreements with another jurisdiction for the purpose of licensing under the regulatory standards contained herein; and, such reciprocal licensing shall be recognized as if testing occurred as specified in this article. The effect of reciprocity licensing shall not be to lessen any other requirements of this article including specifically those requirements contained in 30-0608, 30-0611, and 30-0612.

Source: 1965 Rev. Ord. 30-0603, 1571 (1974), 4091 (2000).

30-0604. Rules and procedures.--The building official shall make such rules and regulations and prescribe such procedure as may be necessary to carry out his duties under this article.

Source: 1965 Rev. Ord. 30-0604, 1571 (1974), 4091 (2000).

30-0605. Time of examination.--Regular examinations of applicants shall be conducted in June and December of each year at such time and place as the building official may designate. Special examinations, where deemed necessary by the building official, may be held at other times.

Source: 1965 Rev. Ord. 30-0605, 1571 (1974), 4091 (2000).

30-0606. Passing grade.--A passing grade shall be 75% of a possible 100%. Any applicant who shall fail to receive a passing grade shall be eligible to take a subsequent examination at the discretion of the building official.

Source: 1965 Rev. Ord. 30-0606, 1571 (1974), 4091 (2000).

30-0607. Issuance of certificate of authority.--The building official shall certify to the board of city commissioners the names of all successful applicants, which shall constitute a recommendation that the board of city commissioners issue to said applicants a master's or a journeyman's certificate of authority, as the case may be, upon payment of the fee as established in accordance with article 30-07. Such certificate of authority shall not authorize the doing of any work which is subject to the provisions of the Electrical Code and Plumbing Code of the city of Fargo.

Source: 1965 Rev. Ord. 30-0607, 1571 (1974), 4091 (2000).

30-0608. Suspension or revocation of certificates.--The board of city commissioners of the city of Fargo shall have the authority to suspend, or revoke, any certificate of authority granted under the provisions of this chapter for violations thereof after first giving notice to the holder thereof of such claimed violation and an opportunity to be heard and present evidence in his own behalf.

Source: 1965 Rev. Ord. 30-0608, 1571 (1974).

30-0609. Records.--The building official shall keep accurate records of all applications or examinations, the examinations given, and the results thereof. Such records shall be kept in the office of the building inspector and shall be open to public inspection during business hours.

Source: 1965 Rev. Ord. 30-0609, 1571 (1974), 4091 (2000).

30-0610. Master heating contractor and master gas installer--Bond required.--Repealed by Ord. No. 2396, effective February 22, 1988.

30-0611. Liability insurance.--Public liability insurance shall be carried by each master heating contractor and master gas installer. The amount of coverage for one act of negligence shall be not less than $100,000 for personal injuries to, or death of, one person and, subject to said limit for one person, an amount not less than $300,000 for injuries to or death of more than one person, and for damage to property of any person an amount not less than $100,000. A copy of such insurance policy shall be filed with the city auditor and shall cover the full term of each license.

Source: 1965 Rev. Ord. 30-0611, 1571 (1974).

30-0612. Liability.--This chapter shall not be construed to relieve or lessen the responsibility or liability of any party or his employees engaged in the business of constructing, installing, altering, maintaining, and repairing heating and air conditioning plants, gas burners, gas burning equipment, refrigeration equipment, and combustion units within the city for damage to any person or property caused by any act of neglect or inadequate or defective work, nor shall the city of Fargo be held to have assumed any such liability by reason of the issuance of any certificates of authority, certificates of approval, inspections of installations, permits, or other acts of said city or its employees as authorized or provided for by this chapter.

Source: 1965 Rev. Ord. 30-0612, 1571 (1974), 4091 (2000).

ARTICLE 30-07

FEES

Section

30-0701 Permits.
30-0702 Masters and journeymen.

30-0701. Permits.--The fees for permits shall be as established by resolution of the board of city commissioners.

All permits issued pursuant to this section shall be posted and kept on the premises concerned until the work has been completed and approval given by the building inspector.

Source: 1965 Rev. Ord. 30-0701, 1518 (1973).

30-0702. Masters and journeymen.--Master heating contractors and master gas installers and journeyman heating mechanics and journeyman gas installers shall pay the required license fees which shall be established by resolution of the board of city commissioners.

Source: 1965 Rev. Ord. 30-0702, 1518 (1973).

ARTICLE 30-08

MISCELLANEOUS

Section

30-0801 Separability clause.
30-0802 Penalties for violation of chapter.

30-0801. Separability clause.--If any section, subsection, sentence, clause, or phrase of this chapter is, for any reason, held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of any other section, subsection, sentence, clause, phrase, or portion thereof. The board of city commissioners hereby declares that it would have passed this chapter and each section, subsection, sentence, clause, or phrase thereof irrespective of the fact that any one or more other sections, subsections, sentences, clauses, or phrases may be declared invalid or unconstitutional.

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960).

30-0802. Penalties for violation of chapter.--Any person violating any of the provisions of this chapter or failing to comply therewith, or who shall violate or fail to comply with any code, standard or requirement therein adopted by reference, or who shall construct or install any heating or air-conditioning plant, gas burner, gas-burner equipment or appliance or combustion unit in violation of any plans, specifications, or sketches upon which the same was submitted and approved or any permit issued thereunder shall be guilty of a misdemeanor and upon conviction thereof shall be punished for each and every such violation and noncompliance by a fine of not less than $10 or more than $100 or by imprisonment for not to exceed 90 days, or by both such fine and imprisonment, in the discretion of the court; the court to have power to suspend such sentence and to revoke the suspension thereof. The imposition of one penalty for any violation of or noncompliance with this chapter shall not excuse or permit the same to continue; and all such persons shall he required to correct or remedy such violations or

noncompliances within a reasonable time; and when not otherwise specified, each 10 days that prohibited conditions are maintained shall constitute a separate offense. The application of the above penalty shall not be held to prevent the enforced correction or removal of prohibited conditions.

Source: 1952 Rev. Ord. 968 (1956), 1087 (1960).

CHAPTER 30.1

INTERNATIONAL FUEL GAS CODE*

Article
30.1-01 International Fuel Gas Code--Adoption--Amendments, §§ 30.1-0101 to 30.1-0102

ARTICLE 30.1-01

INTERNATIONAL FUEL GAS CODE--ADOPTION--AMENDMENTS

Section
30.1-0101 Adoption of International Fuel Gas Code by Reference.
30.1-0102 Amendment to International Fuel Gas Code.

30.1-0101. Adoption of International Fuel Gas Code by Reference.--There is hereby adopted by reference by the Board of City Commissioners, for the purpose of prescribing regulations governing standards, relative to housing in the City of Fargo, that certain code known as the International Fuel Gas Code sponsored by the International Code Council, being particularly the 2024 Edition thereof, a copy of which is on file in the office of the City Auditor, and the same is hereby adopted and incorporated as fully as if set out in length herein, and from the date on which this ordinance shall take effect, the provisions thereof shall be controlling within the limits of the city, and within the extra-territorial zoning jurisdiction of the city.

Source: 5351 (2022), 5490 (2025).

30.1-0102. Amendment to International Fuel Gas Code.--The International Fuel Gas Code as adopted in Section 30.1-0101 is hereby changed and amended as follows:

Section 101.1 is hereby amended to read as follows:

> **101.1 Title.** These regulations shall be known as the Fuel Gas Code of the City of Fargo, hereinafter referred to as "this code."

Section 104.8 is hereby amended to read as follows:

> **104.8 Liability.** The code official, member of the board of appeals or employee charged with the enforcement of this code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered personally liable, either civilly or criminally,

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***Editor's note**—Ord. No. 5351, §§ 1, 2, adopted May 31, 2022, repealed the former Ch. 30.1, Art. 30.1-01, §§ 30.1-0101, 30.1-0102, and enacted a new Art. 30.1-01 as set out herein. The former article pertained to similar subject matter and derived from Ord. Nos. 4186 (2001), 4403 (2004), 4430 (2004), 4601 (2007), 4749 (2010), 4874 (2013), 5051 (2016), and 5220 (2019).

and is hereby relieved from personal liability for any damage accruing to persons or property as a result of an act or by reason of any act or omission in the discharge of official duties.

This code shall not be construed to relieve from or lesson the responsibility of any person owning, operating, or controlling any building or structure for any damage to persons or property caused by defects nor shall the code enforcement agency or the city be held as assuming any such liability by reason of the inspection authorized by this code or any permits or certificates issued under this code.

Section 108.2 is hereby amended to read as follows:

108.2 Schedule of permit fees. Where work requires a permit, a fee for each permit shall be paid as required, in accordance with the schedule as established by the City of Fargo Board of City Commissioners.

Section 201.3 is hereby amended to read as follows:

201.3 Terms defined in other codes. Where terms are not defined in this code and are defined in the International Building Code, International Fire Code, International Mechanical code or North Dakota State Plumbing Code, such terms shall have meanings ascribed to them as in those codes.

Section 304.6.1 is hereby amended to read as follows:

304.6.1 Two-permanent-openings method. * * * *

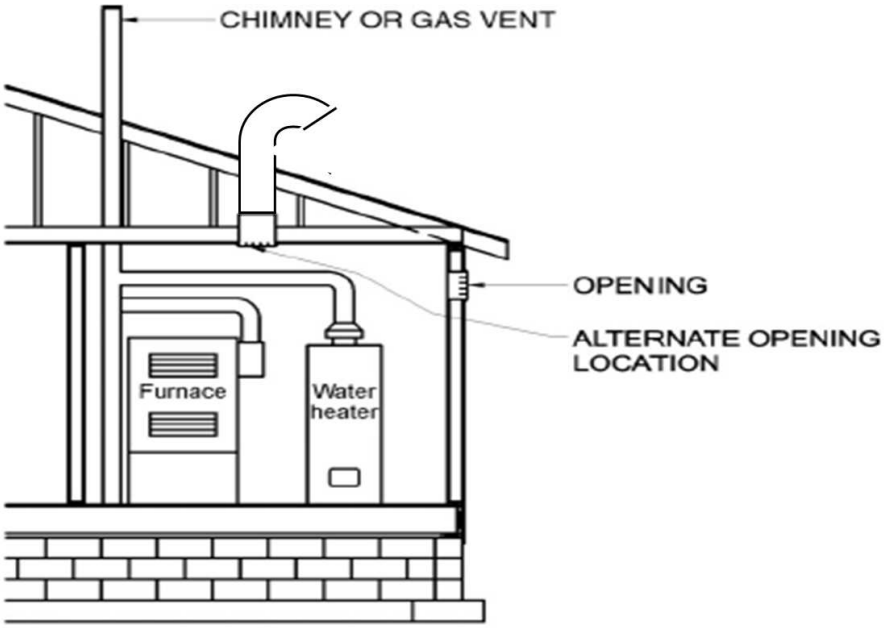
Where directly communicating with the outdoors, or where communicating with the outdoors through vertical ducts, each opening shall have a minimum free area of 1 square inch per 4,000 Btu/h (550 mm2 /kW) of total input rating of all appliances in the enclosure.

* * * *

Figure 304.6.1(1) is hereby deleted in its entirety.

Figure 304.6.1(2) is hereby deleted in its entirety.

Figure 304.6.2 is hereby amended as shown below:



Section 304.6.2 is hereby amended to read as follows:

304.6.2 One-permanent-opening method. One permanent opening, commencing within 12 inches (305 mm) of the top of the enclosure, shall be provided. The appliance shall have clearances of not less than 1 inch (25 mm) from the sides and back and 6 inches (152 mm) from the front of the appliance. The opening shall directly communicate with the outdoors, or through a vertical or horizontal duct, to the outdoors and shall have a minimum free area of 1 square inch per 3,000 Btu/h (734 mm^2/kW) of the total input rating of all appliances located in the enclosure and not less than the sum of the areas of all vent connectors in the space.

Section 304.11 is hereby amended to read as follows:

304.11 Combustion air ducts. Combustion air ducts shall comply with all of the following:

* * * *

5. Ducts shall not terminate in an attic space.

* * * *

Section 406.4 is hereby amended to read as follows:

406.4 Test pressure measurement. Test pressure shall be measured with a manometer or with a pressure-measuring device designed and calibrated to read, record or indicate a pressure loss caused by leakage during the pressure test period. The source of pressure

shall be isolated before the pressure tests are made. Dial gauges used to measure test pressures shall be performed with gauges of 2-psi incrimination or less and have a range not exceeding 100 psi unless otherwise approved.

Section 406.4.1 is hereby amended to read as follows:

406.4.1 Test pressure. The test pressure to be used shall be not less than 1 ½ times the proposed maximum working pressure, but not less than 25 psig irrespective of design pressure. Where the test pressure exceeds 125 psig (862 kPa gauge), the test pressure shall not exceed a value that produces a hoop stress in the piping greater than 50 percent of the specified minimum yield strength of the pipe.

Section 408.2 is hereby amended to read as follows:

408.2 Drips. Where wet gas exists, a drip shall be provided at any point in the line of pipe where condensate could collect.

Section 411.2 is hereby amended to read as follows:

411.2 Manufactured home connections. Manufactured homes shall be connected to the distribution piping system by listed and labeled connectors in compliance with ANSI Z21.75/CSA 6.27 and installed in accordance with the manufacturer's instructions.

Section 501.12 is hereby amended to read as follows:

501.12 Residential and low-heat appliances flue lining systems. Flue lining systems for use with residential-type and low-heat appliances shall be limited to the following:

1. Clay flue lining complying with the requirements of ASTM C315 or equivalent when each appliance connected into the masonry chimney has a minimum input rating greater than 400,000 Btu/h. Clay flue lining shall be installed in accordance with the International Building Code.

2. Listed chimney-lining systems complying with UL 1777.

3. Other approved materials that will resist, without cracking, softening or corrosion, flue gases and condensate at temperatures up to 1,800°F (982°C).

Source: 5351 (2022), 5490 (2025).

CHAPTER 31

INTERNATIONAL PROPERTY MAINTENANCE CODE*

Article
31-01 Adoption of International Property Maintenance Code, §§ 31-0101 to 31-0102

ARTICLE 31-01

ADOPTION OF INTERNATIONAL PROPERTY MAINTENANCE CODE†

Section
31-0101 Adoption of International Property Maintenance Code by Reference.
31-0102 Amendment to International Property Maintenance Code.

31-0101. Adoption of International Property Maintenance Code by Reference.--There is hereby adopted by reference by the board of city commissioners, for the purpose of prescribing regulations governing standards, relative to housing in the city of Fargo, that certain code known as the International Property Maintenance Code recommended and compiled by the International Code Council, being particularly the 2024 Edition thereof, a copy of which is on file in the office of the city auditor, and the same is hereby adopted and incorporated as if fully set forth herein, and from the provisions thereof shall be controlling within the limits of the city and within the extra-territorial zoning jurisdiction of the city.

Source: 5352 (2022), 5492 (2025).

31-0102. Amendment to International Property Maintenance Code.--The International Property Maintenance Code as adopted in § 31-0101 is hereby changed and amended as follows:

Section [A] 101.1 is hereby amended to read as follows:

> **[A] 101.1 Title.** These regulations shall be known as the Property Maintenance Code of] the city of Fargo, hereinafter referred to as "this code."

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* Note: Chapter 31 of the Revised Ordinances of 1965 was repealed by Ord. No. 1310 (1969) and Ord. No. 1333 (1969). Both ordinances enacted provisions to adopt by reference the Volume of the Uniform Building Code regarding housing standards. The 1969 ordinances are superseded by the provisions of Ord. No. 1400 (1971), enacting new Chapter 31.

†**Editor's note—**Ord. No. 5352, §§ 1, 2, adopted May 31, 2022, repealed the former Art. 31-01, §§ 31-0101, 31-0102, and enacted a new Art. 31-01 as set out herein. The former article pertained to similar subject matter and derived from Ord. Nos. 1965 Rev. Ord. 31-0101.1, 1400 (1971), 1419 (1972), 1573 (1974), 1799 (1977), 1967 (1980), 2084 (1983), 2256 (1986), 2869 (1998), 4099 (2000), 4099 (2001), 4187 (2001), 4206 (2002), 4404 (2004), 4429 (2004), 4467 (2005), 4602 (2007), 4696 (2009), 4750 (2010), 4872 (2013), 5052 (2016), and 5221 (2019).

Section [A] 102.3 is hereby amended to read as follows:

> **[A] 102.3 Application to other codes.** Repairs, additions or alterations to a structure, or changes of occupancy, shall be done in accordance with the procedures and provisions of all applicable ordinances adopted by the city of Fargo.

Section [A] 103.1 is hereby amended to read as follows:

> **[A] 103.1 Creation of agency.** The city of Fargo Inspections Department is hereby created and the official in charge thereof shall be known as the code official. The function of the agency shall be the implementation, administration and enforcement of the provisions of this code

Section [A] 105.7 is hereby amended to read as follows:

> **[A] 105.7 Liability.** The building official, member of the board of appeals or employee charged with the enforcement of this code, while acting for the jurisdiction in good faith and without malice in the discharge of the duties required by this code or other pertinent law or ordinance, shall not thereby be rendered personally liable, either civilly or criminally, and is hereby relieved from personal liability for any damage accruing to persons or property as a result of any act or by reason of an act or omission in the discharge of official duties.
>
> This code shall not be construed to relieve from or lessen the responsibility of any person owning, operating, or controlling any building or structure for any damages to persons or property caused by defects, nor shall the code enforcement agency or the city be held as assuming any such liability by reason of the inspection authorized by this code or any permits or certificates issued under this code.

Section 105.9 is hereby enacted to read as follows:

> **105.9 Certificate of Occupancy for Rental.** For any property that has dwelling units or sleeping units occupied by anyone other than the owner or their family members and regardless if rent, services, or other means of payment are collected or not, a secondary Certificate of Occupancy shall be issued showing compliance with this code and any other codes and ordinances adopted by the city of Fargo. If the property title is transferred to another person or entity, the current or previous secondary Certificate of Occupancy shall be void and a new secondary Certificate of Occupancy shall be obtained.

Section 105.9.1 is hereby enacted to read as follows:

> **105.9 Certificate issued.** After the building official inspects the building or structure and does not find violations of the provisions of this code or other laws that are enforced by the department, the building official shall issue a certificate of occupancy containing the following:
>
> 1. The address of the structure.

2. The name and address of the owner or the owner's authorized agent.

3. A description of that portion of the structure for which the certificate is issued.

4. A statement that the described portion of the structure has been inspected for compliance with the requirements of this code.

5. The name of the building official.

6. The edition of the code under which the certificate was issued.

7. Where an automatic sprinkler system is provided and whether the sprinkler system is required.

8. Any special stipulations and conditions of the certificate of occupancy.

Section 105.9.2 is hereby enacted to read as follows:

105.9.2 Revocation. The building official is authorized to suspend or revoke a certificate of occupancy issued under the provisions of this code, in writing, wherever the certificate is issued in error, or on the basis of incorrect information supplied, or where it is determined that the building or structure or portion thereof is in violation of the provisions of this code or other ordinance of the jurisdiction.

Section 111.1 exceptions are hereby amended to read as follows:

111.1 General. * * * *

* * * *

3. Boarding the building up for future repair shall not extend beyond one year, unless approved by the building official.

4. Upon completion of demolition, sufficient filling and grading shall be done to bring the area of demolition up to the same level as the existing yard. Frozen fill is not allowed.

Section 201.3 is hereby amended to read as follows:

201.3 Terms defined in other codes. Where terms are not defined in this code and are defined in the International Building Code, International Existing Building Code, International Fire Code, International Fuel Gas Code, International Mechanical Code, International Residential Code or NFPA 70, such terms shall have the meanings ascribed to them as stated in those codes. Throughout this code, wherever reference is made to the International Plumbing Code, it shall be taken to mean the North Dakota State Plumbing Code and ND Admin. Code Section 62-03.1-01. Throughout this code, wherever reference is made to the NFPA 70, it shall be taken to mean the National Electric Code and Chapter 43-09 of the North Dakota State Wiring Standards.

Section 202 is hereby amended to add the following definitions:

MOTORIZED VEHICLE. An object used for transporting people or goods on land under its own power such as a car, truck, or similar.

NON-MOTORIZED VEHICLE. An object used for transporting people or goods on land using an external source of power such as a trailer or similar.

Section 302.4 is hereby amended to read as follows:

302.4 Weeds. Premises and exterior property shall be maintained free from weeds or plant growth as provided by Article 11-08 of the Fargo Municipal Code. * * * *

Section 303.2.1 is hereby enacted to read as follows:

303.2.1 Fence or barrier height and clearances. Barrier heights and clearances shall be in accordance with all the following:

1. The top of the barrier shall be not less than 48 inches above grade where measured on the side of the barrier that faces away from the pool or spa. Such height shall exist around the entire perimeter of the barrier and for a distance of 4 feet measured horizontally from the outside of the pool or spa to the inside of the required barrier.

2. The vertical clearance between grade and the bottom of the barrier shall not exceed 2 inches (51 mm) for grade surfaces that are not solid, such as grass or gravel, where measured on the side of the barrier that faces away from the pool or spa.

3. The vertical clearance between a surface below the barrier to a solid surface, such as concrete, and the bottom of the required barrier shall not exceed 4 inches (102 mm).

4. Where measured on the side of the required barrier that faces away from the pool or spa.

5. Where the top of the pool or spa structure is above grade, the barrier shall be installed on grade or shall be mounted on top of the pool or spa structure. Where the barrier is mounted on the top of the pool or spa, the vertical clearance between the top of the pool or spa and the bottom of the barrier shall not exceed 4 inches (102 mm).

Section 303.2.2 is hereby enacted to read as follows:

303.2.2 Openings. Openings in the barrier shall not allow passage of a 4-inch-diameter (102 mm) sphere.

Section 303.2.3 is hereby enacted to read as follows:

303.2.3 Solid barrier surfaces. Solid barriers that do not have openings shall not contain indentations or protrusions that form handholds and footholds, except for normal construction tolerances and tooled masonry joints.

Section 303.2.4 is hereby enacted to read as follows:

303.2.4 Mesh fence as a barrier. Mesh fences, other than chain link fences in accordance with Section 303.2.7, shall be installed in accordance with the manufacturer's instructions and shall comply with the following:

1. The bottom of the mesh fence shall be not more than 1 inch (25 mm) above the deck or installed surface or grade.

2. The maximum vertical clearance from the bottom of the mesh fence and the solid surface shall not permit the fence to be lifted more than 4 inches (102 mm) from grade or decking.

3. The fence shall be designed and constructed so that it does not allow passage of a 4-inch (102 mm) sphere under any mesh panel. The maximum vertical clearance from the bottom of the mesh fence and the solid surface shall not be more than 4 inches (102 mm) from grade or decking.

4. An attachment device shall attach each barrier section at a height not lower than 45 inches (1143 mm) above grade. Common attachment devices include, but are not limited to, devices that provide the security equal to or greater than that of a hook-and-eye-type latch incorporating a spring-actuated retaining lever such as a safety gate hook.

5. Where a hinged gate is used with a mesh fence, the gate shall comply with Section 303.2.10.

6. Patio deck sleeves such as vertical post receptacles that are placed inside the patio surface shall be of a nonconductive material.

7. Mesh fences shall not be installed on top of on-ground residential pools.

Section 303.2.4.1 is hereby enacted to read as follows:

303.2.4.1 Setback for mesh fences. The inside of a mesh fence shall be not closer than 48 inches (1219 mm) to the nearest edge of the water of a pool or spa.

Section 303.2.5 is hereby enacted to read as follows:

303.2.5 Closely spaced horizontal members. Where the barrier is composed of horizontal and vertical members and the distance between the tops of the horizontal members is less than 45 inches (1143 mm), the horizontal members shall be located on the pool or

spa side of the fence. Spacing between vertical members shall not exceed 1¾ inches (44 mm) in width. Where there are decorative cutouts within vertical members, spacing within the cutouts shall not exceed 1¾ inches (44 mm) in width.

Section 303.2.6 is hereby enacted to read as follows:

303.2.6 Widely spaced horizontal members. Where the barrier is composed of horizontal and vertical members and the distance between the tops of the horizontal members is 45 inches (1143 mm) or more, spacing between vertical members shall not exceed 4 inches (102 mm). Where there are decorative cutouts within vertical members, the interior width of the cutouts shall not exceed 1¾ inches (44 mm).

Section 303.2.7 is hereby enacted to read as follows:

303.2.7 Chain link dimensions. The maximum opening formed by a chain link fence shall be not more than 2 inches (50.8 mm). Where the fence is provided with slats fastened at the top and bottom which reduce the openings, such openings shall be not more than 2 inches (50.8 mm).

Section 303.2.8 is hereby enacted to read as follows:

303.2.8 Diagonal members. Where the barrier is composed of diagonal members, the maximum opening formed by the diagonal members shall be not more than 1¾ inches (44 mm). The angle of diagonal members shall be not greater than 45 degrees (0.79 rad) from vertical.

Section 303.2.9 is hereby enacted to read as follows:

303.2.9 Clear zone. Where equipment, including pool equipment such as pumps, filters and heaters, is on the same lot as a pool or spa and such equipment is located outside of the barrier protecting the pool or spa, such equipment shall be located not less than 36 inches (914 mm) from the outside of the barrier.

Section 303.2.10 is hereby enacted to read as follows:

303.2.10 Doors and gates. Doors and gates in barriers shall comply with the requirements of Sections 303.3.11 through 303.2.13 and shall be equipped to accommodate a locking device. Pedestrian access doors and gates shall open outward away from the pool or spa, shall be self-closing and shall have a self-latching device.

Section 303.2.11 is hereby enacted to read as follows:

303.2.11 Utility or service doors and gates. Doors and gates not intended for pedestrian use, such as utility or service doors and gates, shall remain locked when not in use.

Section 303.2.12 is hereby enacted to read as follows:

303.2.12 Double or multiple doors and gates. Double doors and gates or multiple doors and gates shall have not fewer than one leaf secured in place and the adjacent leaf shall be secured with a self-latching device.

Section 303.2.13 is hereby enacted to read as follows:

303.2.13 Latch release. For doors and gates in barriers, the door and gate latch release mechanisms shall be in accordance with the following:

1. Where door and gate latch release mechanisms are accessed from the outside of the barrier and are not of the self-locking type, such mechanism shall be located above the finished floor or ground surface at residential pools and spas, not less 54 inches (1372 mm).

2. Where door and gate latch release mechanisms are of the self-locking type such as where the lock is operated by means of a key, an electronic opener or the entry of a combination into an integral combination lock, the lock operation control and the latch release mechanism shall be located above the finished floor or ground surface at residential pools and spas, at not greater than 54 inches (1372 mm).

3. Where the only latch release mechanism of a self-latching device for a gate is located on the pool and spa side of the barrier, the release mechanism shall be located at a point that is at least 3 inches (76 mm) below the top of the gate.

Section 303.2.14 is hereby enacted to read as follows:

303.2.14 Barriers adjacent to latch release mechanisms. Where a latch release mechanism is located on the inside of a barrier, openings in the door, gate and barrier within 18 inches (457 mm) of the latch shall not be greater than ½ inch (12.7 mm) in any dimension.

Section 303.2.15 is hereby enacted to read as follows:

303.2.15 Structure wall as a barrier. Where a wall of a dwelling or structure serves as part of the barrier and where windows having a sill height of less than 48 inches (1219 mm) above the indoor finished floor, doors and gates shall have an alarm that produces an audible warning when the window, door or their screens are opened. The alarm shall be listed and labeled as a water hazard entrance alarm in accordance with UL 2017.

Exception: An approved means of protection, such as self-closing doors with self-latching devices, is provided. Such means of protection shall provide a degree of protection that is not less than the protection afforded by an alarm that produces an audible warning when the window, door or their screens are opened.

Section 303.2.16 is hereby enacted to read as follows:

303.2.16 On-ground residential pool structure as a barrier. An on-ground residential pool wall structure or a barrier mounted on top of an on-ground residential pool wall structure shall serve as a barrier where all the following conditions are present:

1. Where only the pool wall serves as the barrier, the bottom of the wall is on grade, the top of the wall is not less than 48 inches (1219 mm) above grade for the entire perimeter of the pool, the wall complies with the requirements of Section 303.2 and the pool manufacturer allows the wall to serve as a barrier.

2. Where a barrier is mounted on top of the pool wall, the top of the barrier is not less than 48 inches (1219 mm) above grade for the entire perimeter of the pool, and the wall and the barrier on top of the wall comply with the requirements of Section 303.2.

3. Ladders or steps used as means of access to the pool are capable of being secured, locked or removed to prevent access except where the ladder or steps are surrounded by a barrier that meets the requirements of Section 303.

4. Openings created by the securing, locking or removal of ladders and steps do not allow the passage of a 4-inch (102 mm) diameter sphere.

5. Barriers that are mounted on top of on-ground residential pool walls are installed in accordance with the pool manufacturer's instructions.

Section 303.2.17 is hereby enacted to read as follows:

303.2.17 Natural barriers. In the case where the pool or spa area abuts the edge of a lake or other natural body of water, public access is not permitted or allowed along the shoreline, and required barriers extend to and beyond the water's edge not less than 18 inches (457 mm), a barrier is not required between the natural body of water shoreline and the pool or spa.

Section 303.2.18 is hereby enacted to read as follows:

303.2.18 Natural topography. Natural topography that prevents direct access to the pool or spa area shall include but not be limited to mountains and natural rock formations. A natural barrier approved by the governing body shall be acceptable provided that the degree of protection is not less than the protection afforded by the requirements of Sections 303.2 through 303.2.16.

Section 304.14 is hereby amended to read as follows:

304.14 Insect screens. During the period from April 1 to October 31 of each year, every door, window, and other outside opening required for ventilation of habitable rooms, for food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured,

packaged or stored shall be supplied with approved tightly fitting screens of minimum 16 mesh per inch (16 mesh per 25 mm), every screen door used for insect control shall have a self-closing device in good working condition.

Section 307.1 is hereby amended to read as follows:

307.1 Handrails. Stairs having four or more risers shall have a handrail on one side of the stair.

Section 309.6 is hereby enacted to read as follows:

309.6 Pest elimination. Licensed contractor required for extermination of insects and vermin in rental properties.

Section 405 is hereby enacted to read as follows:

Section 405 HOME DAY CARE OCCUPANCY

Section 405.1 is hereby enacted to read as follows:

405.1 General. This section shall apply to a home day care operated within a dwelling. It is to include buildings and structures occupied by persons of any age who receive custodial care for less than 24 hours by individuals other than parents or guardians or relatives by blood, marriage, or adoption, and in a place other than the home of the person cared for.

Section 405.2 is hereby enacted to read as follows:

405.2 DEFINITION

Section 405.2.1 is hereby enacted to read as follows:

405.2.1 General. The following term shall, for the purposes of this appendix, have the meaning shown herein.

EXIT ACCESS. That portion of a means-of-egress system that leads from any occupied point in a building or structure to an exit.

Section 405.3 is hereby enacted to read as follows:

405.3 MEANS OF EGRESS

Section 405.3.1 is hereby enacted to read as follows:

405.3.1 Exits required. Two exits are required for home day care. Exits shall comply with Section R318.

Section 405.3.1.1 is hereby enacted to read as follows:

405.3.1.1 Exit access prohibited. An exit access from the area of day care operation shall not pass through bathrooms, bedrooms, closets, garages, fenced rear yards or similar areas.

Exception: An exit may discharge into a fenced yard if the gate or gates remain unlocked during day care hours. The gates may be locked if there is an area of refuge located within the fenced yard and more than 50 feet (15,240 mm) from the dwelling. The area of refuge shall be large enough to allow 5 square feet (0.5 m^2) per occupant.

Section 405.3.1.2 is hereby enacted to read as follows:

405.3.1.2 Basements. If the basement of a dwelling is to be used in the day care operation, two exits are required from the basement regardless of the occupant load. One of the exits may pass through the dwelling and the other shall lead directly to the exterior of the dwelling. An emergency and escape window used as the second means of egress from a basement shall comply with Sections R319 and 405.3.1.1.

Section 405.3.1.3 is hereby enacted to read as follows:

405.3.1.3 Yards. Yards to be used as part of the day care operation shall be fenced.

Section 405.3.1.3.1 is hereby enacted to read as follows:

405.3.1.3.1 Type of fence and hardware. The fence shall be of durable materials and not less than 4 feet (1529 mm) tall, completely enclosing the area used for the day care operation. Each opening shall be a gate or door.

Section 405.3.1.3.2 is hereby enacted to read as follows:

405.3.1.3.2 Construction of fence. Openings in the fence, wall or enclosure required by this section shall have intermediate rails or an ornamental pattern that do not allow a sphere 4 inches (102 mm) in diameter to pass through. In addition, the following criteria must be met:

1. The maximum vertical clearance between grade and the bottom of the fence, wall or enclosure shall be 2 inches (51 mm).

2. Solid walls or enclosures that do not have openings, such as masonry or stone walls, shall not contain indentations or protrusions, except for tooled masonry joints.

3. Maximum mesh size for chain link fences shall be 2 inches square, unless the fence has slats at the top or bottom that reduce the opening to not more than 2 inches. The wire shall be not less than 9 gage [0.148 inch (3.8 mm)].

Section 405.3.2 is hereby enacted to read as follows:

405.3.2 Width and height of an exit. The minimum width of a required exit is 36 inches (914 mm) with a net clear width of 32 inches (813 mm). The minimum height of a required exit is 6 feet 8 inches (2032 mm).

Section 405.3.3 is hereby enacted to read as follows:

405.3.3 Type of lock and latches for exits. Regardless of the occupant load served, exit doors shall be openable from the inside without the use of a key or any special knowledge or effort.

Section 405.3.4 is hereby enacted to read as follows:

405.3.4 Landings. Landings for stairways and doors shall comply with Section R318, except that landings shall be required for the exterior side of a sliding door where a home day care is being operated in a Group R-3 occupancy.

Section 405.4 is hereby enacted to read as follows:

405.4 SMOKE DETECTION

Section 405.4.1 is hereby enacted to read as follows:

405.4.1 General. Smoke detectors shall be installed in dwelling units used for home day care operations. Detectors shall be installed in accordance with the approved manufacturer's instructions. If the current smoke detection system in the dwelling is not in compliance with the currently adopted code for smoke detection, it shall be upgraded to meet the currently adopted code requirements and Section 405.3 before day care operations commence.

Section 405.4.2 is hereby enacted to read as follows:

405.4.2 Power source. The detector shall emit a signal when the batteries are low. Wiring shall be permanent and without a disconnecting switch other than those required for overcurrent protection. Required smoke detectors shall be interconnected such that if one detector is activated, all detectors are activated.

Section 405.4.3 is hereby enacted to read as follows:

405.4.3 Location. A detector shall be located in each bedroom and any room that is to be used as a sleeping room, and centrally located in the corridor, hallway or area giving access to each separate sleeping area. Where the dwelling unit has more than one story, and in dwellings with basements, a detector shall be installed on each story and in the basement. In dwelling units where a story or basement is split into two or more levels, the smoke detector shall be installed on the upper level, except that where the lower level contains a sleeping area, a detector shall be installed on each level. Where sleeping rooms are on the upper level, the detector shall be placed at the ceiling of the upper level

in close proximity to the stairway. In dwelling units where the ceiling height of a room open to the hallway serving the bedrooms or sleeping areas exceeds that of the hallway by 24 inches (610 mm) or more, smoke detectors shall be installed in the hallway and the adjacent room. Detectors shall sound an alarm audible in all sleeping areas of the dwelling unit in which they are located.

Section 602.3 is hereby amended to read as follows:

602.3 Heat supply. Every owner and operator of any building who rents, leases or lets one or more dwelling units or sleeping units on terms, either expressed or implied, to furnish heat to the occupants thereof shall supply heat during the period from September 15 to June 1 to maintain a minimum temperature of 68°F (20°C) in all habitable rooms, bathrooms and toilet rooms.

Exception: In older structures where the original design of the heating system operating at full capacity is unable to achieve the minimum temperature required, in the discretion of the building official, the system may be deemed adequate.

Section 602.4 is hereby amended to read as follows:

602.4 Occupiable work spaces. Indoor occupiable work spaces shall be supplied with heat during the period from September 15 to June 1 to maintain a minimum temperature of 65°F (18°C) during the period the spaces are occupied.
Source: 5352 (2022), 5425 (2024), 5492 (2025).

CHAPTER 32

CORPORATE LIMITS

Article
32-01 Annexation, §§ 32-0101 to 32-0114.

ARTICLE 32-01

ANNEXATION

Section

32-0101 A portion of the Northeast Quarter of Section 24, Township 139 North, Range 49 West.

32-0102 A portion of the Southwest Quarter of Section 20, Township 140 North, Range 48 West.

32-0103 A portion of the Southwest Quarter of Section 13, Township 139 North, Range 49 West.

32-0104 A portion of Section 5, Township 138 North, Range 49 West.

32-0105 A portion of the East Half of Section 3, Township 138 North of Range 49 West of the 5th Principal Meridian.

32-0106 A portion of the Southeast Quarter (SE ¼) of Section Eleven (11), Township 138 North, Range 49 West of the Fifth Principal Meridian.

32-0107 A portion of the Southeast Quarter of Section 11, Township 138 North, Range 49 West of the Fifth Principal Meridian.

32-0108 A certain parcel of land lying in the East Half of Section 15, Township 140 North, Range 49 West.

32-0109 A certain parcel of land lying in the North Half of the South Half of the Southeast Quarter of Section 11, Township 138 North, Range 49 West, in Cass County, North Dakota.

32-0110 Excluding a certain parcel of land lying in part of Government Lot 4 of Section 5, Township 138 North, Range 49 West, in Cass County, North Dakota.

32-0111 A certain parcel of land lying in the Southeast Quarter of Section 15 and the Northeast Quarter of Section 22, Township 140 North, Range 49 West, in Cass County, North Dakota.

32-0112 A certain parcel of land lying in a portion of the Northwest Quarter of Section 10, Township 138 North, Range 49 West of the 5th Principal Meridian in Cass County, North Dakota.

32-0113 A certain parcel of land lying in a portion of the northeast quarter of Section 15, Township 140 North, Range 49 West of the 5th Principal Meridian in Cass County, North Dakota.

32-0114 A portion of the Southwest Quarter and part of the Southeast Quarter of Section 11, Township 138 North Range 49 west of the 5th Principal Meridian in Cass County, North Dakota.

32-0101. A portion of the Northeast Quarter of Section 24, Township 139 North, Range 49 West.--In accordance with section 40-51.2-06 of the North Dakota Century Code, and upon filing of a verified petition signed by at least three-fourths of the qualified electors or by the owners of at least three-fourths in assessed value of the property hereinafter described, the corporate limits of the city of Fargo are hereby revised so as to include the following described parcel:

> The South One-Half (S½) of the Northeast One-Quarter (NE¼) of Section Twenty-four (24), Township One Hundred Thirty-nine (139) North, Range Forty-nine (49) West, less the east one thousand five hundred forty-one and five-tenths feet (1,541.5').

Said tract shall, after second reading and final passage of this ordinance, be deemed to be a part of the corporate limits of the city of Fargo and shall be entitled to all the rights and benefits incidental thereto.

Source: 1965 Rev. Ord. 32-0101, 1421 (1972).

32-0102. A portion of the Southwest Quarter of Section 20, Township 140 North, Range 48 West.--In accordance with section 40-51.2-06 of the North Dakota Century Code, and upon filing of a verified petition signed by at least three-fourths of the qualified electors or by the owners of at least three-fourths in assessed value of the property hereinafter described, the corporate limits of the city of Fargo are hereby revised so as to include the following described parcel:

> Commencing at the southwest corner of said Section 20; thence North 00°00'00" East along the west line of said Section 20 for a distance of nine hundred feet (900.0') to the point of beginning; thence North 89°16'00" East along the north line of the present city limits (also the north line of Golf Course First Addition to the city of Fargo) for a distance of one thousand three hundred twenty feet (1,320.0'); thence North 00°00'00" along the projected east line of Golf Course First Addition to the city of Fargo for a distance of four hundred eighty-three and thirty-one hundredths feet (483.31'); thence North 30°00'00" West for a distance of six hundred fifty-eight and eighty-four hundredths feet (658.84'); thence South 60°00'00" West for a distance of eighty-eight and sixty-eight hundredths feet (88.68'); thence North 30°00'00" West for a distance of three hundred thirty feet (330.0'); thence South 60°00'00" West for a distance of eight hundred sixty-four and forty-eight hundredths feet (864.48') to the west line of said Section 20; thence South 00°00'00" East along the west line of said Section 20 for a distance of eight hundred eighty feet (880.0') to the point of beginning. (Said tract contains 30.81 acres, more or less).

Said tract shall, after second reading and final passage of this ordinance, be deemed to be a part of the corporate limits of the city of Fargo and shall be entitled to all the rights and benefits incidental thereto.

Source: 1965 Rev. Ord. 32-0102, 1423 (1972).

32-0103. A portion of the Southwest Quarter of Section 13, Township 139 North, Range 49 West.--In accordance with section 40-51.2-06 of the North Dakota Century Code, and upon filing of a verified petition signed by at least three-fourths of the qualified electors or

by the owners of at least three-fourths in assessed value of the property hereinafter described, the corporate limits of the city of Fargo are hereby revised so as to include the following described parcel:

> The west three hundred five feet (305') of the east four hundred ninety-five feet (495') of the Southwest Quarter (SW¼) of Section Thirteen (13), in Township One Hundred Thirty-nine (139) North, of Range Forty-nine (49) West of the Fifth Principal Meridian, except the north eight hundred eighty-five feet (885') thereof, situated in Cass County, North Dakota.

Said tract shall, after second reading and final passage of this ordinance, be deemed to be a part of the corporate limits of the city of Fargo and shall be entitled to all the rights and benefits incidental thereto.

Source: 1965 Rev. Ord. 32-0103, 1426 (1972).

32-0104. A portion of Section 5, Township 138 North, Range 49 West.--In accordance with Chapter 40-51.2 of the North Dakota Century Code, and upon filing of a verified petition signed by at least three-fourths of the qualified electors or by the owners of at least three-fourths in assessed value of the property hereinafter described, the corporate limits of the city of Fargo are hereby revised so as to include the following described parcel:

> Beginning at the northeast corner of Ashwood Subdivision as recorded as Document No. 788220, Book O, Page 95, at the Cass County Recorder's Office; thence north 02°10`58" west a distance of 1405.93 feet, more or less, to the south line of the north half of the southwest quarter of the northwest quarter of said Section 5; thence westerly along the south line of the north half of the southwest quarter of the northwest quarter of said Section 5 to a point on the centerline of the Sheyenne River; thence southwesterly, southerly and southeasterly along said centerline to a point that intersects with the westerly extension of the north boundary line of Lot 2, Block 1, of said Ashwood Subdivision; thence easterly along the extension of the north boundary line of said Lot 2, Block 1, Ashwood Subdivision a platted distance of 166.36 feet, more or less, to the point of beginning. (Said tract contains 18.2 acres, more or less, and is subject to all easements and rights-of-way of record.)

Said tract shall, after second reading and final passage of this ordinance and upon compliance with the filing requirements of N.D.C.C. § 40-51.2-06, be deemed to be a part of the corporate limits of the city of Fargo and shall be entitled to all the rights and benefits incidental thereto.

Source: 4890 (2013).

32-0105. A portion of the East Half of Section 3, Township 138 North of Range 49 West of the 5th Principal Meridian.--In accordance with Chapter 40-51.2 of the North Dakota Century Code, the following described property located in Section 3, Township 138 North, Range 49 West, Cass County North Dakota, is hereby annexed to the City of Fargo, Cass County, North Dakota:

> Commencing at the Northeast corner of the Southeast Quarter of said Section 3; thence South 02 degrees 00 minutes 54 seconds East, along the east line of said

Southeast Quarter, 35.00 feet; thence South 88 degrees 26 minutes 59 seconds West, parallel with the north line of said Southeast Quarter, 1260.06 feet to the actual point of beginning of the land to be described; thence South 88 degrees 26 minutes 59 seconds West, continuing along said parallel line, 349.94 feet; thence South 01 degree 53 minutes 01 seconds East 400.00 feet; thence South 88 degrees 26 minutes 59 seconds West 180.00 feet; thence South 37 degrees 27 minutes 07 seconds West 172.04 feet; thence South 88 degrees 26 minutes 59 seconds West 105.00 feet; thence North 01 degree 53 minutes 01 second West 170.00 feet; thence South 88 degrees 26 minutes 59 seconds West 560.00 feet; thence North 01 degree 53 minutes 01 second West 563.70; thence North 88 degrees 26 minutes 59 seconds East and parallel with the north line of said Southeast Quarter 1303.33 feet; thence South 02 degrees 04 minutes 17 seconds East 200.01 feet to the point of beginning.

Said part contains 14.77 acres, more or less, and is subject to all easements and rights-of-way of record.

Source: Ord. 4969 (2015).

32-0106. A portion of the Southeast Quarter (SE ¼) of Section Eleven (11), Township 138 North, Range 49 West of the Fifth Principal Meridian.--In accordance with Chapter 40-51.2 of the North Dakota Century Code, the following described property located in the Southeast Quarter (SE ¼) of Section Eleven (11), Township 138 North, Range 49 West of the Fifth Principal Meridian, Cass County North Dakota, is hereby annexed to the City of Fargo, Cass County, North Dakota:

Beginning at the southeast corner of Lot 15, Block 1 of Golden Valley Addition, according to the record plat thereof, said County; thence South 02 degree 16 minutes 07 seconds East along the existing City of Fargo corporate limits and parallel to the east of line of said Southeast Quarter 703.96 feet; thence South 89 degrees 05 minutes 36 seconds West 2,373.63 feet to a point of intersection with the southeasterly line of the 100.00-foot wide right-of-way for Cass County Drain No. 53; thence North 49 degrees 06 minutes 22 seconds East along the southeasterly line of said Drain No. 53 a distance of 152.36 feet; thence Northeasterly 355.98 feet along a tangential curve concave to the northwest and along the easterly line of said Drain No. 53, having a radius of 336.48 feet and a central angle of 60 degrees 37 minutes 00 seconds; thence North 11 degrees 30 minutes 38 seconds West along the easterly line of said Drain No. 53 a distance of 291.00 feet to its intersection with the south line of said Golden Valley Addition and the existing City of Fargo corporate limits; thence North 89 degrees 05 minutes 27 seconds East along the south line of said Golden Valley Addition and the existing City of Fargo corporate limits 2,179.20 feet to the point of beginning.

Said tract contains 35.22 acres, more or less.

Source: Ord. 5151 (2018).

32-0107. A portion of the Southeast Quarter of Section 11, Township 138 North, Range 49 West of the Fifth Principal Meridian.--In accordance with Chapter 40-51.2 of the North Dakota Century Code, the following described property located in the Southeast

Quarter of Section 11, Township 138 North, Range 49 West of the Fifth Principal Meridian, Cass County North Dakota, is hereby annexed to the City of Fargo, Cass County, North Dakota:

Auditor's Lots One (1) and Two (2) of the Northeast Quarter of Section 11, Township 138 North, Range 49 West, 5th Principal Meridian, Cass County, North Dakota.

And:

That part of the Northwest Quarter of Section 11, Township 138 North, Range 49 West, 5th/Principal Meridian, Cass County, North Dakota, that lies East of the east right-of-way line of Interstate Highway 29.

Said tract contains 171.972 acres, more or less.
Source: Ord. 5212 (2019).

32-0108. A certain parcel of land lying in the East Half of Section 15, Township 140 North, Range 49 West.--The following described property located in the East Half of Section 15, Township 140 North, Range 49 West, of the Fifth Principal Meridian, Cass County, North Dakota, is hereby annexed to the City of Fargo, Cass County, North Dakota:

Commencing at the southeast corner of said Section 15; thence North 02 degrees 55 minutes 01 seconds West, assumed bearing along the east line of the Southeast Quarter of said Section 15, a distance of 2,650.49 feet to the point of beginning; thence South 87 degrees 55 minutes 36 seconds West, along the north line of said Southeast Quarter, also being the north line of the Fargo City limits per Document No. 1359928, a distance of 150.02 feet; thence South 02 degrees 55 minutes 01 seconds East, 150.00 feet distant and parallel to the east line of said Southeast Quarter, also being the west line of the Fargo City Limits per Document No. 1359928, a distance of 1,126.17 feet; thence South 87 degrees 58 minutes 41 seconds West, departing Fargo City limits per Document No. 1359928, a distance of 1,565.10 feet; thence 310.11 feet along a tangential curve concave to the southeast with a radius of 340.00 feet and a central angle of 52 degrees 15 minutes 30 seconds; thence South 35 degrees 43 minutes 11 seconds West, tangent to last described curve, a distance of 52.10 feet to the Northeasterly Right-of-Way line of U.S. Highway 81; thence northwesterly, and along said Northeasterly Right-of-Way, a distance of 654.74 feet along a non-tangential curve concave to the northeast with a radius of 1,332.69 feet, a central angle of 28 degrees 08 minutes 56 seconds, and a chord which bears North 43 degrees 10 minutes 32 seconds West; thence North 29 degrees 06 minutes 04 seconds West, continuing along said Northeasterly Right-of-Way and tangent to last described curve, a distance of 208.50 feet; thence South 60 degrees 53 minutes 56 seconds West, and along said Right-of-Way, a distance of 40.00 feet; thence North 29 degrees 06 minutes 04 seconds West, and along said Right-of-Way, a distance of 168.47 feet; thence North 02 degrees 45 minutes 09 seconds West, a distance of 1235.96 feet; thence North 87 degrees 14 minutes 51 seconds East, a distance of 243.04 feet; thence North 79 degrees 58 minutes 30 seconds East, a distance of 315.98 feet;

thence North 87 degrees 14 minutes 51 seconds East, a distance of 2079.30 feet; thence South 02 degrees 55 minutes 01 seconds East, a distance of 815.78 feet to the point of beginning.

Said tract contains 110.23 acres, more or less.
Source: Ord. 5268 (2020).

32-0109. A certain parcel of land lying in the North Half of the South Half of the Southeast Quarter of Section 11, Township 138 North, Range 49 West, in Cass County, North Dakota.--The following described property located in the North Half of the South Half of the Southeast Quarter of Section 11, Township 138 North, Range 49 West of the Fifth Principal Meridian, Cass County, North Dakota, is hereby annexed to the City of Fargo, Cass County, North Dakota:

Commencing at the southeast corner of said Southeast Quarter; thence on an assumed bearing of North 02 degrees 16 minutes 07 seconds West along the east line of said Southeast Quarter, 661.81 feet to a point of intersection with the south line of the North Half of the South Half of said Southeast Quarter; thence South 89 degrees 04 minutes 25 seconds West along said south line, 100.02 feet to the existing City of Fargo corporate limits and the point of beginning; thence continuing South 89 degrees 04 minutes 25 seconds West along said south line, 2,502.04 feet to the west line of said Southeast Quarter; thence North 02 degrees 08 minutes 25 seconds West along said west line, 496.52 feet to a point of intersection with the southeasterly right-of-way line of Cass County Drain No. 53; thence northeasterly along said southeasterly right-of-way line 84.83 feet on an arc of a non-tangential curve, concave to the southeast, having a radius of 236.48 feet, a central angle of 20 degrees 33 minutes 08 seconds, and a long chord which bears North 38 degrees 49 minutes 48 seconds East, 84.37 feet; thence North 49 degrees 06 minutes 22 seconds East along said southeasterly right-of-way line 91.94 feet to the southwest corner of Madelyn's Meadows First Addition, according to the record plat thereof, said County; thence along the existing City of Fargo corporate limits on the following courses, North 89 degrees 05 minutes 36 seconds East, along the south line of said plat, 2,373.63 feet; thence South 02 degrees 16 minutes 07 seconds East, 619.68 feet to the point of beginning.

Said tract contains 35.44 acres, more or less.
Source: Ord. 5279 (2020).

32-0110. Excluding a certain parcel of land lying in part of Government Lot 4 of Section 5, Township 138 North, Range 49 West, in Cass County, North Dakota.--The following described property located in part of Government Lot 4 of Section 5, Township 138 North, Range 49 West of the Fifth Principal Meridian, Cass County, North Dakota, is hereby excluded from the City of Fargo, Cass County, North Dakota:

Commencing at the Northwest Corner of Section 5; thence North 87°23′43″ East on the north line of said Section 5 a distance of 658.14 feet to the west line of the parcel described as Tract 2 in Doc. No. 451449, records of Cass County; thence South 33°34′45″ East on said west line a distance of 151.61 feet to the Point of Beginning;

thence North 87°23′43″ East parallel with, and 130.00 feet south of, said north line of Section 5 a distance of 339.59 feet; thence South 47°36′17″ East a distance of 50.32 feet; thence South 2°36′17″ East perpendicular to said north line a distance of 453.42 feet to the intersection of the east line of said Tract 2 with the south line of the North Half (N½) of Gov't Lot 4 of said Section 5; thence South 86°21′43″ West on said south line a distance of 80.78 feet to said west line of Tract 2; thence North 33°34′45″ West on said west line of Tract 2 a distance of 572.03 feet to the Point of Beginning.

Said parcel contains 2.55 acres, more or less.
Source: Ord. 5283 (2020).

32-0111. A certain parcel of land lying in the Southeast Quarter of Section 15 and the Northeast Quarter of Section 22, Township 140 North, Range 49 West, in Cass County, North Dakota.--The following described property located in the Southeast Quarter of Section 15 and the Northeast Quarter of Section 22, Township 140 North, Range 49 West, of the Fifth Principal Meridian, Cass County North Dakota, is hereby annexed to the City of Fargo, Cass County, North Dakota:

Beginning at the southeast corner of said Section 15; thence South 02 degrees 38 minutes 37 seconds East, assumed bearing, along the east line of said Northeast Quarter of Section 22, also being the west line of the Fargo City limits per Document No. 1359928, a distance of 75.00 feet, more or less, to the south right-of-way of County Highway 20, also being the north line of the Fargo City limits as depicted on City of Fargo Annexation Plat Document No. 916190 and 1359928; thence South 87 degrees 58 minutes 41 seconds West, along said south right-of-way and north line of said Fargo City limits, a distance of 1050.24 feet, more or less, to the intersection with the westerly right-of-way of County Road 81; thence northwesterly, and along said westerly right-of-way of County Road 81, a distance of 1174.68 feet along a non-tangential curve concave to the southwest with a radius of 1332.69 feet, a central angle of 50 degrees 30 minutes 09 seconds, and a chord which bears North 34 degrees 50 minutes 59 seconds West; thence North 60 degrees 06 minutes 04 seconds West, tangent to last described curve and along said right-of-way, a distance of 499.80 feet; thence northwesterly, along a tangential curve concave to the northeast and along said right-of-way, a distance of 166.66 feet to the intersection with the southwesterly extension of the northerly right-of-way line of 44th Ave North as dedicated in the plat of North Fargo Industrial Addition, said curve has a radius of 1532.69 feet, a central angle of 06 degrees 13 minutes 49 seconds; thence North 35 degrees 43 minutes 11 seconds East, not tangent to last described curve and along said southwesterly extension of said north line of 44th Ave North, a distance of 200.00 feet to the northeasterly right-of-way of County Road 81 and the southwesterly line of the Fargo City limits per Document No. 1604271; thence southeasterly, and along said northeasterly right-of-way and southwesterly line of the Fargo City limits, a distance of 80.03 feet along a non-tangential curve concave to the northeast with a radius of 1332.69 feet, a central angle of 3 degrees 26 minutes 27 seconds, and a chord which bears South 55 degrees 31 minutes 46 seconds East, thence North 35 degrees 43 minutes 11 seconds East, not tangent to last described curve and along the south line of the Fargo City limits per Document No. 1604271, a distance of 52.10 feet; thence northeasterly along a tangential curve concave to the southeast and

continuing along the said south line of the Fargo City limits per Document No. 1604271, a distance of 310.11 feet said curve has a radius of 340.00 feet, and a central angle of 52 degrees 15 minutes 30 seconds; thence North 87 degrees 58 minutes 41 seconds East, tangent to last described curve and along the south line of said Fargo City limits per Document No. 1604271, a distance of 1565.10 feet, to the west line of the Fargo City limits per Document No. 1359928; thence South 02 degrees 55 minutes 01 seconds East, along said west line, a distance of 1524.19 feet; thence North 87 degrees 58 minutes 41 seconds East along the south line of the Southeast Quarter of said Section 15, also being the south line of the Fargo City limits per Document No. 1359928, a distance of 150.02 feet to the point of beginning.

Contains 2,237,104 square feet or 51.36 acres, more or less.
Source: Ord. 5303 (2021).

32-0112. A certain parcel of land lying in a portion of the Northwest Quarter of Section 10, Township 138 North, Range 49 West of the 5th Principal Meridian in Cass County, North Dakota.--The following described property located in Section 10, Township 138 North, Range 49 West of the 5th Principal Meridian, Cass County North Dakota, is hereby annexed to the City of Fargo, Cass County, North Dakota:

That part of the Northwest Quarter of Section 10, Township 138 North, Range 49 West of the Fifth Principal Meridian, Cass County, North Dakota, described as follows:

Commencing at a found iron monument which designates the Southeast corner of Covey Ranch First Addition, according to the recorded plat thereof, on file and of record in the Office of the Recorder, said County; thence South 87 degrees 56 minutes 21 seconds West on a record bearing along the south line of said Covey Ranch First Addition, also being the existing City of Fargo corporate limits, for a distance of 769.50 feet to the southwest corner of Lot 1, Block 1, said Covey Ranch First Addition, the point of beginning; thence continuing South 87 degrees 56 minutes 21 seconds West along the south line of said Covey Ranch First Addition and continuing along said existing City of Fargo corporate limits for a distance of 70.00 feet to the southwest corner of said Covey Ranch First Addition; thence North 01 degree 52 minutes 55 seconds West along the west line of said Covey Ranch First Addition and continuing along said existing City of Fargo corporate limits for a distance of 849.00 feet to a point on a line which is 100.00 feet southerly of, as measured at a right angle to and parallel with the north line of said Northwest Quarter; thence South 87 degrees 56 minutes 21 seconds West along said parallel line and continuing along said existing City of Fargo corporate limits for a distance of 1647.10 feet to the west line of said Northwest Quarter; thence South 01 degree 42 minutes 54 seconds East along said west line and continuing along said existing City of Fargo corporate limits for a distance of 1100.02 feet to a point on a line which is 1200.00 feet southerly of, as measured at a right angle to and parallel with the north line of said Northwest Quarter; thence North 87 degrees 56 minutes 21 seconds East along said parallel line and leaving said existing City of Fargo corporate limits for a distance of 1720.31 feet; thence North 01 degree 52 minutes 55 seconds West for a distance of 251.00 feet to the point of beginning.

Said tract contains 42.04 acres, more or less.
Source: 5357 (2022).

32-0113. A certain parcel of land lying in a portion of the northeast quarter of Section 15, Township 140 North, Range 49 West of the 5th Principal Meridian in Cass County, North Dakota.--The following described property located in Section 15, Township 140 North, Range 49 West of the 5th Principal Meridian, Cass County North Dakota, is hereby annexed to the City of Fargo, Cass County, North Dakota:

Beginning at the north quarter corner of said Section 15; thence North 87 degrees 52 minutes 22 seconds East, assumed bearing, along the north line of said Northeast Quarter of Section 15, a distance of 2630.67 feet to the northeast corner of said Section 15; thence South 02 degrees 55 minutes 01 second East, a distance of 1834.71 feet, also being the northeast corner of the Fargo City Limits as depicted on City of Fargo Annexation Plat Document No. 1604271; thence South 87 degrees 14 minutes 51 seconds West along the north line of NORTH FARGO INDUSTRIAL ADDITION, also being a north line of said Fargo City Limits, a distance of 2079.30 feet; thence South 79 degrees 58 minutes 30 seconds West along a northwesterly line of NORTH FARGO INDUSTRIAL ADDITION, also being a northwesterly line of said Fargo City Limits, a distance of 315.98 feet; thence South 87 degrees 14 minutes 51 seconds West along a northwesterly line of NORTH FARGO INDUSTRIAL ADDITION, also being a northwesterly line of said Fargo City Limits, a distance of 243.04 feet; thence North 02 degrees 45 minutes 09 seconds West along the west line of said Northeast Quarter, a distance of 1903.41 feet to the point of beginning.

Contains 4,884,785 square feet or 112.14 acres, more or less.
Source: 5392 (2023).

32-0114. A portion of the Southwest Quarter and part of the Southeast Quarter of Section 11, Township 138 North Range 49 west of the 5th Principal Meridian in Cass County, North Dakota.--The following described property located as part of the Southwest Quarter and part of the Southeast Quarter of Section 11, Township 138 North, Range 49 West of the Fifth Principal Meridian, Cass County, North Dakota more particularly described as follows:

Beginning at the Northeast corner of said Southwest Quarter and the existing City of Fargo corporate limits; thence southerly along the East line of said Southwest Quarter and along said existing City of Fargo corporate limits to the South line of the North Half of the North Half of said Southeast Quarter; thence easterly along said South line and along said existing City of Fargo corporate limits to the westerly line of Lot 13, Block 3, MADELYN'S MEADOWS FIRST ADDITION, according to the recorded plat thereof, on file and of record in the office of the Recorder, said Cass County; thence southerly along said westerly line and along said existing City of Fargo corporate limits to the southerly line of said Lot 13; thence westerly along the westerly extension of said Lot 13, leaving said City of Fargo corporate limits, to the easterly right of way line of Interstate Highway No. 29; thence northerly along said easterly right of way line, to the

North line of said Southwest Quarter and to said existing City of Fargo corporate limits; thence easterly along said North line and said existing City of Fargo corporate limits to the point of beginning.

Said tract contains 72.96 acres, more or less.
Source: 5535 (2025)

CHAPTER 33

HOUSING AND REDEVELOPMENT

Article
33-01 Housing and Redevelopment Authority, §§ 33-0101 to 33-0108.

ARTICLE 33-01

HOUSING AND REDEVELOPMENT AUTHORITY

Section
33-0101 Fargo Urban Renewal Agency and Fargo Housing Authority abolished.
33-0102 Fargo Housing and Redevelopment Authority established.
33-0103 Number of members--Chairman--Rules.
33-0104 Terms of members--Appointment--Vacancies.
33-0105 Confirmation of appointments by board of city commissioners.
33-0106 Powers of authority--Compensation of members.
33-0107 Limitation of powers of authority.
33-0108 Determination of necessity.

33-0101. Fargo Urban Renewal Agency and Fargo Housing Authority abolished. The Fargo Urban Renewal Agency as created in accordance with § 40-58-16 of the North Dakota Century Code, by resolution of the Fargo board of city commissioners dated May 1, 1956, and the Fargo Housing Authority as created under authority of § 23-11-02 of the North Dakota Century Code, by resolution of the Fargo board of city commissioners dated June 18, 1968, are hereby abolished and said resolutions shall be deemed to have been rescinded.

Source: 1965 Rev. Ord. 33-0101, 1695 (1976), 1970 (1980).

33-0102. Fargo Housing and Redevelopment Authority established.--There is hereby created a body to be known as the Housing and Redevelopment Authority of the city of Fargo. Except as hereinafter provided, said body shall assume the rights, duties, responsibilities, debts and liabilities of the Urban Renewal Agency of the city of Fargo and the Fargo Housing Authority.

Source: 1965 Rev. Ord. 33-0102, 1695 (1976), 1741 (1976), 1970 (1980).

33-0103. Number of members--Chairman--Rules.--The housing and redevelopment Authority shall consist of five members plus one optional additional member, who shall be appointed as hereinafter provided. The members of said authority shall elect a chairman and a vice-chairman on an annual basis and shall adopt rules and regulations for the transaction of its business.

Source: 1965 Rev. Ord. 33-0103, 1695 (1976), 1970 (1980), 2711 (1994), 4496 (2005).

33-0104. Terms of members--Appointment--Vacancies.--The mayor shall appoint five members of the housing and redevelopment authority, who shall be residents of the city of Fargo, and such appointments shall be made as follows: two members who shall serve for a term of three years commencing October 1, 1994; two members who shall serve for a term of two years commencing October 1, 1994; and one member who shall serve for a term of one year

commencing October 1, 1994. Additionally, upon request of the Housing and Redevelopment Authority, the city may appoint a sixth member for a regular three-year term. At the expiration of the terms of the members as aforesaid, members shall be appointed for three-year terms. If a vacancy shall occur otherwise than by expiration of term, it shall be filled by appointment for the unexpired portion of said term. Notwithstanding the expiration of a member's term, such member may serve until his or her successor has been appointed and qualified.

Source: 1965 Rev. Ord. 33-0104, 1695 (1976), 1970 (1980), 2711 (1994), 4496 (2005).

33-0105. Confirmation of appointments by board of city commissioners.--The president of the board of city commissioners shall appoint the members of the housing and redevelopment authority on or before the second regular meeting of the board of city commissioners in September of each year, and shall submit the names of the persons appointed and the lengths of their terms to the board of city commissioners at the second meeting of said board in September of each year; and the board of city commissioners shall, by a majority vote, confirm or reject such appointments. If such appointments are rejected, the president of the board of city commissioners shall make other appointments, which shall be approved or rejected in the same manner as hereinabove stated.

Source: 1965 Rev. Ord. 33-0105, 1695 (1976), 1970 (1980).

33-0106. Powers of authority--Compensation of members.--The housing and redevelopment authority shall have such powers and shall perform such duties as may now, or hereinafter be provided by state statutes relating to urban renewal agencies and housing authorities, plus any additional powers and duties which may be granted by resolution of the board of city commissioners; provided, however, that such powers and duties in connection with any urban renewal projects commenced subsequent to the adoption of this ordinance shall be vested in the board of city commissioners as provided in § 40-58-14 of the North Dakota Century Code unless such powers and duties are expressly conferred on the housing and redevelopment authority by resolution of the board of city commissioners. The housing and redevelopment authority shall also be subject to limitations as hereinafter provided in § 33-0107 of this article. The members of the housing and redevelopment authority shall receive no compensation, except that they may be allowed actual expenses for traveling as provided by law.

Source: 1965 Rev. Ord. 33-0106, 1695 (1976), 1970 (1980).

33-0107. Limitation of powers of authority.--The housing and redevelopment authority shall have such powers and duties as stated in § 33-0106 of this article; provided, however, that any action taken by the housing and redevelopment authority may be rescinded by the board of city commissioners of the city of Fargo within 30 days of the date of such action. In the event that the authority desires immediate final action on any matter, such matter may be submitted to the board of city commissioners at the next regular meeting following the date of action by the authority, and the board of city commissioners shall approve or disapprove such action, and approval thereof shall constitute final action notwithstanding the fact that 30 days from the date of action by the authority may not have elapsed.

Source: 1965 Rev. Ord. 33-0107, 1695 (1976), 1970 (1980).

33-0108. Determination of necessity.--In accordance with the intent of §§ 40-58-04 and 23-11-03 of the North Dakota Century Code, it is hereby determined that there is a need for a housing and redevelopment authority and for the implementation of the powers granted in articles 40-58 and 23-11 of the North Dakota Century Code for the following reasons:

A. That unsanitary or unsafe inhabited dwelling accommodations exist in the city of Fargo.

B. That there is a shortage of safe or sanitary dwelling accommodations in the city of Fargo which are available to persons with low income at rentals which they can afford to pay.

C. That one or more slum or blighted areas exist in the city of Fargo.

D. That the rehabilitation, conservation, or redevelopment, or a combination thereof, of such areas is necessary in the interest of the public health, safety, morals or welfare of the residents of the city of Fargo.

Source: 1965 Rev. Ord. 33-0108, 1695 (1976), 1970 (1980).

CHAPTER 34

THE FARGODOME

Article
34-01 Fargo Dome Authority, §§ 34-0101 to 34-0107.

ARTICLE 34-01

FARGO DOME AUTHORITY

Section
34-0101 Fargo Dome Authority created.
34-0102 Number of members--Officers--Compensation.
34-0103 Nomination and appointment of authority members--Terms-Vacancies.
34-0104 Meetings--Quorum.
34-0105 Powers of the authority.
34-0106 Fiscal matters.
34-0107 Contract restrictions--Approval required.

34-0101. Fargo Dome Authority created.--There is hereby created, pursuant to Article 3(P) of the Fargo Home Rule Charter, a body to be known as the Fargo Dome Authority which shall have all of the powers and duties relating to the FargoDome, as hereinafter provided.

Source: 2437 (1989).

34-0102. Number of Members--Officers--Compensation.--The Fargo Dome Authority shall consist of seven members, who shall be appointed as hereinafter provided. The members of said authority shall elect a president, vice-president, secretary and treasurer annually to serve one-year terms and shall adopt rules and regulations for the transaction of its business. Members of the authority shall serve without compensation provided that they shall be entitled to reimbursement of expenses incurred in conducting the business of the authority.

Source: 2437 (1989).

34-0103. Nomination and appointment of authority members--Terms--Vacancies.--The board of city commissioners of the city of Fargo shall appoint seven members of the Fargo Dome Authority from a list of candidates who are nominated as follows:

A. One member from a list of nominees to be provided by the board of education of the city of Fargo who are residents of the city. The initial appointment of this member shall be for a term of two years.

B. One member from a list of nominees to be provided by the board of park commissioners of the city of Fargo who are residents of the city. The initial appointment of this member shall be for a term of two years.

C. One member from a list of nominees to be provided by the board of county commissioners of Cass County, North Dakota, who are residents of Cass County. The initial appointment of this member shall be for a term of two years.

D. Two members from a list of nominees to be provided by the president of North Dakota State University who are residents of the city. The initial appointment of these members shall be for a term of three years.

E. Two members who are residents of the city of Fargo. The initial appointment of these members shall be for a term of four years.

The initial term of each member shall commence on April 1, 1989, and shall continue for the term of the appointment. Subsequent appointments shall be for a term of four years. If a vacancy shall occur other than by expiration of a term, it shall be filled by appointment for the unexpired portion of said term. Notwithstanding the expiration of a member's term, such member may serve until his or her successor has been appointed and qualified.

The nominating entity shall submit at least two names for each position to be filled. In the event that the board of city commissioners refuses to appoint any of the nominees of a nominating entity, such entity shall submit two additional names for consideration and the process shall continue until all positions are filled. The board of city commissioners shall take action, either appointing or rejecting the nominees within 30 days of submission by the nominating entity. In the event any nominating entity fails to submit a list of nominees within 60 days after notification of vacancy in its member position on the authority, the board of city commissioners may appoint additional members who are residents of the city.

Source: 2437 (1989).

34-0104. Meetings--Quorum.--The Fargo Dome Authority shall conduct meetings on a regular basis at an interval to be determined by the authority. A majority of the members of the authority shall constitute a quorum and minutes of all meetings shall be kept and copies filed in the office of city auditor of the city of Fargo. The time and place of such meetings shall be as determined by the authority and appropriate notice shall be given to the public as required by city ordinance and North Dakota statutes relating to open meetings.

Source: 2437 (1989).

34-0105. Powers of the authority.--The authority shall have the following powers:

A. To construct, maintain, and manage the FargoDome.

B. To adopt an annual budget, which shall be subject to approval of the board of city commissioners of the city of Fargo.

C. To purchase and sell supplies, goods and equipment as may be necessary for the operation of the dome.

D. To employ management personnel and such other employees, either permanent or temporary, as may be required and shall determine their duties, qualifications and compensation. Such employees, other than management personnel, shall be deemed to be city employees and members of the civil service of the city of Fargo; provided, that this provision shall not be construed to limit the power to contract for the operation and management of the FargoDome.

E. To execute such contracts for management and operation of the FargoDome and any other contracts or instruments as may be necessary in the construction, maintenance, and operation of the FargoDome.

F. To acquire, by purchase, gift, devise, lease or otherwise any and all property which may be necessary for the construction, maintenance, and operation of the FargoDome.

G. To establish rules and regulations for the rental and operation of the FargoDome.

H. To permit the sale and consumption of alcoholic beverages in the FargoDome in accordance with the ordinances of the city of Fargo and the statutes of the state of North Dakota.

CHAPTER 35

SALE OF TOBACCO PRODUCTS

Article

35-01 Authority for the Sale of Tobacco Products, §§ 35-0101 to 35-0105.

35-02 Sale of Tobacco Without Authority Prohibited, §§ 35-0201 to 35-0202.

ARTICLE 35-01

AUTHORITY FOR THE SALE OF TOBACCO PRODUCTS

Section

35-0101 Definitions.

35-0102 Authority to sell tobacco, e-cigarettes, electronic cigarettes or electronic smoking devices.

35-0103 Suspension of authority to sell tobacco products and imposition of administrative penalties.

35-0104 Burden of proof.

35-0105 Hearing for suspension or administrative penalties.

35-0101. Definitions.--As used in this chapter, unless the context or subject matter otherwise requires:

1. "Cigar" means any roll of tobacco wrapped in tobacco.
2. "Cigarette" means any roll for smoking made wholly or in part of tobacco, and encased in any material except tobacco.
3. "E-cigarettes" means any electronic oral device, such as one composed of a heating element and battery or electronic circuit, or both, which provides a vapor of nicotine or any other substances, and the use or inhalation of which simulates smoking. The term shall include any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, and e-pipe or under any other product, name, or descriptor and also includes any cartridge or other component of the device.
4. "Person" means any individual, firm, fiduciary, partnership, corporation, limited liability company, trust, or association however formed.
5. "Probationary period" is defined as a period of 12 months for a violation which is not within any period of probation already established by a violation of any of this article, which 12 months shall be defined as commencing on the date of the said first offense and shall extend for 12 consecutive months thereafter. If any subsequent offenses occur within the said 12-month period the probationary period for any such subsequent offense shall extend for either the same 12 consecutive months from the date of the first offense, as described above, or for a period of six months from the date of the subsequent offense, whichever period would expire later. For purposes of this article, an offense is deemed to have occurred when the offense is committed, and not the date of judgment or conviction.
6. "Sale" or "sell" applies to gifts, exchanges, and barter.

7. "Tobacco product" means any product that is made from or derived from tobacco, which contains nicotine or a similar substance, and is intended for human consumption or is likely to be consumed, whether smoked, heated, chewed, absorbed, vaped, dissolved, inhaled or ingested by any other means, including, but not limited to, a cigarette, a cigar, pipe tobacco, chewing tobacco, snuff, snus, or an electronic smoking device. Tobacco product also includes pipes and rolling papers, but does not include any product specifically approved by the U.S. Food and Drug Administration for legal sale as a tobacco cessation product and is being marketed and sold solely for that approved purpose.

Source: 2777 (1996), 4903 (2014), 5238 (2019).

35-0102. Authority to sell tobacco, e-cigarettes, electronic cigarettes or electronic smoking devices.--The city of Fargo does hereby grant the authority to sell at retail tobacco, other tobacco products, e-cigarettes, electronic cigarettes or electronic smoking devices as defined in chapters 10-1001 and 35-0101, within the city to persons who have a state license under chapter 57-36 of the North Dakota Century Code. The authority to sell granted by this Article may be suspended or revoked, and administrative penalties imposed, as provided in this chapter. No mobile vendor, person or business may sell or deliver tobacco or vape products from a mobile vendor vehicle or a push cart, as defined in chapter 18-0308(J), from a motor vehicle or trailer, or from any other moveable facility.

Source: 2777 (1996), 5122 (2018), 5165 (2018), 5238 (2019).

35-0103. Suspension of authority to sell tobacco products and imposition of administrative penalties.--The authority granted under this chapter shall be suspended and administrative penalties imposed for violation of §§ 10-0103 or 10-0105 of the Fargo Municipal Code or North Dakota Century Code §§ 12.1-31-03 or 12.1-31-03.3 prohibiting the sale of tobacco, e-liquids and other tobacco products to individuals under 21 years of age, or for a violation of the provisions of this chapter, as follows:

A. First offense -- A $500 administrative penalty shall be assessed to the business and the probationary period as defined in section 35-0101(5) shall commence.

B. Second offense -- Three-day suspension: In the event of a second offense within the probationary period, the court shall suspend the person's authority to sell tobacco, e-liquids, and tobacco products for a period of three days. A $500 administrative penalty shall be assessed to the business if the offense involves the sale to an individual under 21 years of age.

C. Third offense -- Ten-day suspension: In the event of a third offense within the probationary period the court shall suspend the person's authority to sell tobacco, e-liquids, and tobacco products for a period of 10 days. A $500 administrative penalty shall be assessed to the business if the offense involves the sale to an individual under 21 years of age.

D. Subsequent offenses -- Thirty-day suspension: In the event of an offense occurring after a third offense within the probationary period the court shall suspend the person's authority to sell tobacco, e-liquids, and tobacco products for a period of 30 days. A $500 administrative penalty shall be assessed to the business if the offense involves the sale to an individual under 21 years of age.

E. Offenses during periods of suspension. In the event an offense is committed by a person while that person's authority to sell tobacco, e-liquids, or other tobacco

products is under suspension, the authority to sell granted in this article shall be suspended for one year from the sale that occurred during the period of suspension.

F. One offense per 24 hours. For purposes of establishing the number of offenses committed by a person who has been granted the authority to sell tobacco, e-liquids, or tobacco products a person is deemed to have committed only one offense during any 24-hour period.

Source: 2777 (1996), 5238 (2019), 5312 (2021).

35-0104. Burden of proof.--A violation of the provisions of this article shall be a noncriminal administrative proceeding in which the city of Fargo shall have the burden of proving a violation of this ordinance by a preponderance of the evidence.

Source: 2777 (1996).

35-0105. Hearing for suspension or administrative penalties.--The authority granted under the provisions of this article may not be suspended, and no administrative penalties may be imposed, without a public hearing. In the event that the commission, or a person or committee so designated by separate resolution, intends to consider the suspension, or administrative penalties, of the authority granted in this article, the person whose authority is sought to be suspended or against whom administrative penalties are imposed, shall be notified of the commission's intention to consider the same. The notice shall specify the time and place of the suspension or administrative penalty hearing, shall describe the reason for said hearing, and shall be served upon the person whose authority is sought to be suspended, or against whom administrative penalties are sought to be imposed, in the same manner as provided by law for the service of a summons in a civil action. No suspension or administrative penalty hearing shall be held before the expiration of 15 days after the date of the service of the notice. The hearing for said suspension or administrative penalty shall be heard by the municipal court judge. A record of the hearing shall be made by electronic recording device.

If, upon such hearing, it appears to the municipal court judge that sufficient cause exists for the suspension of the authority, or administrative penalties, granted pursuant to this article, the municipal court judge shall make its order suspending the said authority, or imposing such administrative penalties, in accordance with the provisions of this article. The municipal court judge shall issue its findings, conclusions and order which shall be served on the person whose authority is thereby suspended or against whom administrative penalties are imposed. The order is appealable pursuant to chapter 28-34 of the North Dakota Century Code.

Failure to pay the administrative penalty within 30 days upon which time such administrative penalty shall become final shall result in an immediate suspension of authority to sell in accordance with this Article, until such time as the administrative penalty has been paid in full.

Source: 2777 (1996), 5238 (2019).

ARTICLE 35-02

SALE OF TOBACCO WITHOUT AUTHORITY PROHIBITED

Section

35-0201 Sale without authority prohibited.
35-0202 Separate offense for each day.

35-0201. Sale without authority prohibited.--No person shall, directly or indirectly or by means of device, offer or dispose of, or give away, or cause to be offered or exposed for sale, exchanged, bartered, disposed of, or given away, tobacco or other tobacco products, e-cigarettes, electronic cigarettes or electronic smoking devices as defined in chapters 10-1001 and 35-0101, at any price in the city without the authority granted to that person by the city of Fargo under § 35-0102 of the Fargo Municipal Code.

Source: 2777 (1996), 5166 (2018).

35-0202. Separate offense for each day.--Each day any person shall violate § 35-0201 of the Fargo Municipal Code shall constitute a separate infraction or offense.

Source: 2777 (1996).

CHAPTER 36

ENTERPRISES UNDER HOME RULE

Article
36-01 Enterprise for Payment of Infrastructure Improvement Costs, §§ 36-0101 to 36-0102.

ARTICLE 36-01

ENTERPRISE FOR PAYMENT OF INFRASTRUCTURE IMPROVEMENT COSTS

Section
36-0101 Enterprise for payment of infrastructure improvement costs.
36-0102 Joint powers authority agreement with Park District of the City of Fargo.

36-0101. Enterprise for payment of infrastructure improvement costs.--There is hereby created an enterprise having as its public purpose the payment of special assessment infrastructure costs on that certain property leased by the Park District of the City of Fargo to the Red River Zoological Society, Inc. The funds contributed for such purpose shall come from the tax increment financing district already established pursuant to Chapter 40-58, N.D.C.C., The funds are to be used only to pay infrastructure costs including, but not limited to, street, sewer, water improvements, and the like, but shall not be used to pay for any other operation costs of the property leased to the Red River Zoological Society, Inc. In establishing this enterprise involving development of a program to provide funds for payment of the said infrastructure costs, the city of Fargo has been guided by the public purpose in the recreational benefit of a zoo and has found that the endeavor promotes the public health, safety, morals, general welfare, security, prosperity and contentment of all the inhabitants or residents within the city of Fargo.

Source: 4307 (2003).

36-0102. Joint powers authority agreement with Park District of the City of Fargo. The city of Fargo will enter into a joint powers agreement with the Park District of the City of Fargo to accomplish the purposes of this ordinance. Said joint powers agreement will address, among other things, the manner in which the parties will finance the cooperative or joint undertaking and how the parties will expend funds and otherwise share or contribute property in this undertaking. Said joint powers agreement will be under Chapter 54-40.3, N.D.C.C.

Source: 4307 (2003).

CHAPTER 37

STORM WATER MANAGEMENT

Article
37-01 General Provisions, §§ 37-0101 to 37-0104.
37-02 Permanent Storm Water Management, §§ 37-0201 to 37-0205.
37-03 Erosion and Sediment Control Permit, §§ 37-0301 to 37-0312.
37-04 Violations and Enforcement, §§ 37-0401 to 37-0411.

ARTICLE 37-01

GENERAL PROVISIONS

Section
37-0101 Purpose.
37-0102 Definitions.
37-0103 Waivers.
37-0104 Extraterritorial zoning jurisdiction.

37-0101. Purpose.--This chapter sets forth uniform requirements for storm water management systems within the city of Fargo. In the event of any conflict between the provisions of this chapter or other regulations adopted by the city of Fargo, Cass County, State of North Dakota or Federal authorities, the more restrictive standard prevails.

The objectives of this chapter are as follows:

A. To promote, preserve, and enhance the natural resources within the city of Fargo from adverse or undesirable impacts occasioned by development or other activities;

B. To protect and promote the health, safety, and welfare of the people and property through effective storm water quantity and quality management practices.

C. To regulate land development activity, land disturbing activity, or other activities that may have an adverse and/or potentially irreversible impact on storm water quantity, water quality and/or environmentally sensitive lands and to encourage compatibility between such uses;

D. To establish detailed review standards and procedures for land development activities throughout the city of Fargo, thereby achieving a balance between urban growth, development, and the protection of water quality; and

E. To provide for adequate storm water system analysis and design as necessary to protect public and private property, water quality and existing natural resources.

Source: 4510 (2006).

37-0102. Definitions.--For the purpose of this chapter, the following terms, phrases, and words, and contact, words used in the present tense include the future tense. Words in the plural number include the singular number, singular include the plural number. The word "shall" is always mandatory and the word "may" is always permissive.

1. "Applicant" means any person that applies for a building permit, subdivision approval, zoning change, approach, excavation or special use permit, erosion and sediment

control plan approval, erosion and sediment control permit, or any other permit which allows land disturbing activities. Applicant also means that person's agents, employees, and others acting under this person's direction. The term "applicant" also refers to the permit holder or holders and the permit holder's agents, employees, and others acting under this person's direction.

2. "Best Management Practices" (BMP) means the schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of waters of the state and including treatment requirements, operating procedures and practices to control site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage which are promulgated or approved and adopted by the city engineer.

3. "City" means the city of Fargo or its board of city commissioners.

4. "City engineer" means the city engineer of the city of Fargo or his designee.

5. "Erosion and sediment control permit" means a permit issued by the city in accordance with this chapter.

6. "Control measure" means a practice or combination of practices to control erosion and attendant pollution, see also Best Management Practices.

7. "Development" means any land disturbing activity that changes the site's runoff characteristics in conjunction with residential, commercial, industrial or institutional construction or alteration.

8. "Developer" means a person, firm, corporation, sole proprietorship, partnership, federal or state agency, or political subdivision thereof engaged in a land disturbing and/or land development activity.

9. "Discharge" means the release, conveyance, channeling, runoff, or drainage, of storm water, including snowmelt.

10. "Drainage easement" means a right to use the land of another for a specific purpose, such as a right-of-way for the movement of water across or under the land surface or the storage of water.

11. "Dwelling unit" means a single unit providing complete independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking and sanitation.

12. "Erosion" means removing or wearing away of the surface of the land by the action of water, wind, ice, or gravity. Erosion can be accelerated by the activities of man and nature.

13. "Erosion and sediment control plan" means a written description or plan indicating the number, locations, sizes, and other pertinent information about best management practice methods designed to reduce erosion of the land surface and the deposition of sediment within a waterway. The Erosion and Sediment Control Plans are used in developing the State mandated Storm Water Pollution Prevention Plan (SWPPP).

14. "Erosion control" means methods employed to prevent erosion. Examples include soil stabilization practices, horizontal slope grading, temporary or permanent cover, and construction phasing.

15. "Exposed soil" means all areas of the construction site where the vegetation (trees, shrubs, brush, grasses, etc.) or impervious surface has been removed thus rendering the soil more prone to erosion. This includes topsoil stockpile areas; borrow areas and disposal

areas within the construction site. It does not include temporary stockpiles or surcharge areas of clean sand, gravel, concrete or bituminous, which have less stringent protection. Once soil is exposed, it is considered "exposed soil," until it meets the definition of "final stabilization."

16. "Final stabilization" means that disturbing activities at the site have been completed and a uniform perennial vegetative cover with a density of 70 percent of the native cover for unimproved areas and areas not covered by permanent structures, or equivalent permanent stabilization measures (such as the use of riprap, gabions, or geotextiles) have been employed.

17. "Hydric soils" means soils that are saturated, flooded, or ponded long enough during the growing season to develop anaerobic conditions in the upper part of the soil profile.

18. "Hydrophytic vegetation" means macrophytic (large enough to be observed by the naked eye) plant life growing in water, soil, or on a substrate that is at least periodically deficient in oxygen as a result of excessive water content.

19. "Impervious area" means a constructed hard surface that either prevents or retards the entry of water into the soil, and causes water to run off the surface in greater quantities and at an increased rate of flow than existed prior to development. Examples include rooftops, sidewalks, patios, driveways, parking lots, storage areas; and concrete, asphalt, or gravel parking lots and roads.

20. "Land development activity" means the act of subdivision or platting properties for personal use, adding value or for the purposes of resale. This includes the construction and/or demolition of buildings, structures, roads, parking lots, paved storage areas, and similar facilities.

21. "Land disturbing activity" means any land change that may result in soil erosion from water or wind and the movement of sediments into or upon waters or lands within the city's jurisdiction, including construction, clearing & grubbing, grading, excavating, transporting and filling of land. Within the context of this ordinance, land disturbing activity does not mean:

A. Minor land disturbing activities such as home gardens and an individual's home landscaping, repairs, and maintenance work, which will not result in sediments entering the storm water system.

B. Additions or modifications to existing single family structures that result in creating under five thousand (5,000) square feet of exposed soil or impervious surface and will not result in sediments entering the storm water system.

C. Construction, installation, and maintenance of trees, fences, signs, posts, poles, and electric, telephone, cable television, utility lines or individual service connections to these utilities, which result in creating less than five thousand (5,000) square feet of exposed soil or impervious surface and will not result in sediments entering the storm water system.

D. Tilling, planting, harvesting or customary field maintenance activities associated with agricultural, horticultural, or silvicutural (forestry) crops.

E. Emergency work to protect life, limb, or property and emergency repairs, unless the land disturbing activity would have otherwise required an approved erosion and sediment control plan, except for the emergency. If such a plan would have been required, then the disturbed land area shall be shaped and stabilized in accordance with the city's requirements as soon as possible.

22. "Landowner" means any person holding title to or having a divided or undivided interest in land.

23. "National pollution discharge elimination system permit" ("NPDES permit")means any permit or requirement enforced pursuant to the United States Clean Water Act [insert legal citation], as amended, for the purpose of regulating storm water discharge.

24. "Noncompliance fee" means the administrative fee charged to offset the additional costs and oversight necessary for re-inspection of a property which may be assessed to a permittee, land owner, developer or their contractor(s) for noncompliance with the provisions and/or conditions of an approved storm water plan and/or permit or the violation of any other provisions contained in this storm water ordinance.

25. "One or two dwelling unit building" means any building that contains one or two dwelling units used, intended, or designed to be built, used, rented, leased, let or hired out to be occupied, or that are occupied for living purposes.

26 "Outlet" means any discharge point, including storm sewers, into a watercourse, pond, ditch, lake or other body of surface or groundwater.

27. "Operator" means the person (usually the general contractor), who has day to day operational control and/or the ability to modify project plans and specifications related to the SWPP plan. The person must be knowledgeable in those areas of the permit for which the operator is responsible and must perform those responsibilities in a workmanlike manner.

28. "Owner" means the person or party possessing the title of the land on which the construction activities will occur; or if the construction activity is for a lease holder, the party or individual identified as the lease holder; or the contracting government agency responsible for the construction activity.

29. "Permanent cover" means final stabilization. Examples include grass, gravel, asphalt, and concrete.

30. "Permit" within the context of this chapter is a grant Erosion and Sediment Control Permit.

31. "Permittee" means any person who applies for and receives approval of an erosion and sediment control plan and/or permit from the city.

32. "Person" means a developer, individual, firm, corporation, partnership, franchise, association, owner, occupant of property, or agency, either public or private.

33. "Prohibited discharge" (also known as an illicit discharge) means a discharge into the storm water system or river, stream, pond, channel or ditch, including but not limited to:

A. Dumping of debris or other materials such as grass clippings, vegetative materials, tree branches, earth fill, rocks, concrete chunks, metal, other demolition or construction materials, or structures.

B. Connecting storm water collection systems, such as roof gutters, roof drains, drain tile and sump systems, or other such facility, with a municipal sanitary sewer system unless authorized under Chapter 17. The term municipal separate storm sewer system includes a storm sewer opening, a drainage ditch, waterway or other storm water conveyance. A storm water collection system is connected with a municipal separate storm sewer or sanitary system when storm water is allowed to be directly deposited into the municipal system.

C. The disposal or misuse of chemicals or any other materials that would degrade the quality of waters within the system, including, but not limited to chemicals (fertilizers, herbicides, pesticides, etc.) or petroleum based products (gasoline, oil, fuels, solvents, paints, etc.).

D. Erosion and sediment originating from a property and deposited onto city streets, private properties or into the storm water conveyance system, including those areas not specifically covered under an approved erosion and sediment control plan or erosion and sediment control permit.

E. Failure to remove sediments transported or tracked onto city streets by vehicles or construction traffic by the end of each work day, or as needed to prevent or minimize the transport of sediment to the storm sewer system.

F. For the purposes of this ordinance, prohibited discharges do not include the following, unless information is available to indicate otherwise:

1) Water line flushing
2) Landscape irrigation
3) Diverted stream flows
4) Rising ground water
5) Uncontaminated ground water infiltration
6) Uncontaminated pumped ground water
7) Discharges from potable water sources
8) Foundation drains
9) Air conditioning condensate
10) Irrigation water
11) Springs
12) Water from crawl space pumps
13) Footing drains
14) Lawn watering
15) Individual residential car washing
16) Flows from riparian habitats and wetlands
17) De-chlorinated swimming pool discharges
18) Street wash water
19) Sump pump connections (properly connected) to the storm sewer.

34. "Public storm sewer" means a storm sewer located entirely within publicly-owned land or easements.

35. "Runoff" means the rainfall, snowmelt, dewatering, or irrigation water flowing over the ground surface and into open channels, underground storm sewers, and detention or retention ponds.

36. "Sediment" means solid material or organic material that, in suspension, is being transported or has been moved by air, water, gravity, or ice, and deposited at another location.

37. "Sediment control" means the methods employed to prevent sediment from leaving the development site. Examples of sediment control practices include, but are not limited to silt fences, sediment traps, earth dikes, drainage swales, check dams, subsurface drains, pipe slope drains, storm drain inlet protection, and temporary or permanent sedimentation basins.

38. "Site" means the entire area included in the legal description of the parcel or other land division on which the land development or land disturbing activity is proposed.

39. "Stabilize" means the exposed ground surface has been covered by appropriate materials such as mulch, staked sod, riprap, wood fiber blanket, or other material that prevents erosion from occurring. Grass seeding alone is not stabilization.

40. "Stabilized" means the exposed ground surface after it has been covered by sod, erosion control blanket, riprap, pavement or other material that prevents erosion. Simply sowing grass seed is not considered stabilization. Ground surfaces may be temporarily or permanently stabilized (also see Final Stabilization).

41. "State" means the State of North Dakota.

42. "Storm sewer" means a pipe or conduit for carrying storm waters, surface runoff, and drainage, excluding sewage and industrial wastes.

43. "Storm water" means precipitation runoff, storm water runoff, snow melt runoff, and any other surface runoff and drainage.

44. "Storm water detention" means temporary storage of storm water runoff in ponds, parking lots, depressed grassy areas, rooftops, buried underground tanks, etc., for future or controlled release. Used to delay and attenuate flow.

45. "Storm water management" means the planned set of public policies and activities undertaken to regulate runoff and reduce erosion, and maintain or improve water quality under various specified conditions within various portions of the drainage system.

46. "Storm water management system" means physical facilities that collect, store, convey, and treat storm water runoff in urban areas. These facilities normally include detention and retention facilities, streets, storm sewers, inlets, open channels, and special structures, such as inlets, manholes, and energy dissipaters.

47. "Storm water pollution prevention plan" (SWPPP) means a joint storm water and erosion and sediment control plan that is written as a prerequisite to obtaining an NPDES Storm Water Permit for Construction Activity that, when implemented, will decrease soil erosion on a parcel of land and off-site non-point pollution and includes both temporary and permanent controls.

48. "Structure" means anything manufactured, constructed, or erected which is normally attached to or positioned on land, including portable structures, earthen structures, roads, parking lots, and paved storage areas.

49. "Subdivision" means any tract of land divided into building lots for private, public, commercial, industrial, etc. development for the purpose of sale, rent, or lease, including planned unit development.

50. "Temporary protection" means short-term methods employed to prevent erosion. Examples of such protection are straw, mulch, erosion control blankets, wood chips, and erosion netting.

51. "Undeveloped land" means land that in its current state has not been impacted by significant land disturbing activities annexed into the city or subdivided into multiple ownership lots and is typically zoned agricultural.

52. "User" means any person who discharges, causes, or permits the discharge of storm water into the city's Storm Water Management System.

53. "Waters of the state" means any and all surface waters that are contained in or flow in or through the state of North Dakota as defined in NDCC 61-28-02. This definition includes all water courses, even if they are usually dry.

54. "Watercourse" means the natural path for the flow of water where there is sufficient natural and accustomed runoff to form and maintain a distinct and defined channel or an open channel facility that has been constructed for such purpose. This shall include any easements obtained for the purposes of runoff conveyance.

55. "Wetlands buffer area" means a protective vegetated zone located adjacent to a natural resource, such as a water of the state that is subject to direct or indirect human alteration. Such a buffer strip is an integral part of protecting an aquatic ecosystem through trapping sheet erosion, filtering pollutants, reducing channel erosion and providing adjacent habitat.

56. "Wetlands" means lands transitional between terrestrial and aquatic systems (excluding drainage ditch bottoms) where the water table is usually at or near the surface or the land is covered by shallow water. For purposes of this definition, wetlands must have the following three attributes:

A. A predominance of hydric soils;

B. Are inundated or saturated by the surface or groundwater at a frequency and duration sufficient to support a prevalence of hydrophytic vegetation typically adapted for life in saturated soil conditions; and

C. Under normal circumstances support the prevalence of such vegetation.

Source: 4510 (2006).

37-0103. Waivers.--The city engineer may waive any requirements of this chapter upon making a finding that compliance with the requirement will involve an unnecessary hardship, and that waiver of such requirement is not contrary to the objectives of this chapter. The city engineer may require as a condition of the waiver, a dedication or construction, or agreement to dedicate or construct, as may be necessary to adequately meet the said standards and requirements. All waivers must be in writing to be valid.

Source: 4510 (2006).

37-0104. Extraterritorial zoning jurisdiction.--This chapter is intended to be enacted as a zoning regulation and to apply to all areas within the city's extraterritorial zoning jurisdiction as authorized by state law. This chapter shall, therefore, apply to the city's extraterritorial zoning jurisdiction and references in this chapter to violations occurring within the city shall be deemed to include the extraterritorial zoning jurisdiction of the city.

Source: 4510 (2006).

ARTICLE 37-02

PERMANENT STORM WATER MANAGEMENT

Section

37-0201 Permanent storm water facilities design--One and two dwelling units exempt.
37-0202 Methodologies and computations.
37-0203 Operation, maintenance and inspection.
37-0204 Easements.
37-0205 Record drawings.

37-0201. Permanent storm water facilities design--One and two dwelling units exempt. An owner must submit to the city engineer a plan for storm water management and control including detention and retention facilities. The plan shall be submitted, and approval obtained from the city engineer prior to the owner (a) obtaining approval of an application for a plat, pursuant to §20-0907 of the Land Development Code of the city, or (b) engaging in any land disturbing activity. Said plan may include, in the discretion of the city engineer, arrangements for further planning and implementation of permanent facilities for storm water management and control by subsequent owners of the property being platted or by the current owner at a later time. Plans submitted for review shall at a minimum contain the total acreage of the development, total impervious area being added by the improvement, and a calculation showing the water detention/retention capacity of the facility. Construction of one or two dwelling unit buildings [E1]shall be exempt from the requirements of this article. Projects administered by the city engineering department that include storm water facilities shall be designed under the guidance of the city engineer and shall be approved by a registered professional engineer, but shall be exempt from the requirements of this section.

Source: 4510 (2006).

37-0202. Methodologies and computations--Storm water control facilities and erosion/sediment control features shall be designed in conformance with the city's storm water management and control policy approved by resolution of the board of city commissioners.

Source: 4510 (2006).

37-0203. Operation, maintenance and inspection.--All storm water management systems shall be designed to minimize the need for maintenance, to provide easy vehicle (typically eight (8) feet or wider) and personnel access for maintenance purposes, and to be structurally sound. All storm water management systems shall have a plan of operation and maintenance that assures continued effective removal of pollutants carried in storm water runoff. The city engineer may inspect all public and private storm water management systems at any time. Inspection records will be kept on file at the city engineer's office. It shall be the responsibility of the applicant to obtain any necessary easements or other property interests to allow access to the storm water management system for inspection and maintenance purposes.

Source: 4510 (2006).

37-0204. Easements.--Easements may be required as conditions to the issuance of an erosion and sediment control permit. If a storm water management system involves directing some or all of the site's runoff to a drainage easement, the applicant or his designated representative shall obtain from the property owners any necessary easements or other property interests concerning the flowing of such water.

Source: 4510 (2006).

37-0205. Record drawings.--The owner shall provide the city engineer notice, in writing, any changes or material modifications to the original permitted design in the form of as-built, or record, drawings. The record drawings shall contain the final configuration for all improvements as constructed. A professional engineer registered in the state shall certify the record drawings. If no significant or material changes occurred between the approved plan and final construction, the record drawings need not be submitted to the city engineer. The owner,

however, is responsible to retain copies of said drawings and provide them to the city engineer upon request. Failure to provide these drawings upon written request constitutes a violation of this chapter.

Source: 4510 (2006).

ARTICLE 37-03

EROSION AND SEDIMENT CONTROL PERMIT

Section

37-0301 Erosion and sediment control permit.
37-0302 Single or two dwelling unit buildings--Exemption.
37-0303 Permit delays.
37-0304 Permit conditions.
37-0305 Permit duration.
37-0306 Permit modification.
37-0307 Permit amendments.
37-0308 Permit transfer.
37-0309 Monitoring facilities.
37-0310 Inspection.
37-0311 Frequency of inspection.
37-0312 Construction plans and specifications.

37-0301. Erosion and sediment control permit.--Prior to engaging in any land disturbing activity, an owner shall first (a) submit for review and approval the owner's erosion and sediment control plan and (b) obtain from the city engineer an erosion and sediment control permit. The owner shall complete and file with the city an application for an erosion and sediment control permit in the form prescribed by the city engineer and accompanied by a fee established by the board of city commissioners. No application for an erosion and sediment control permit may be considered unless the applicant has obtained from the North Dakota Department of Health an NDPES permit. Projects administered by the city engineering department shall include erosion and sediment control plans that are designed under the guidance of the city engineer and shall be approved by a registered professional engineer, but shall be exempt from the requirements of this section.

Source: 4510 (2006).

37-0302. One or two dwelling unit buildings--Exemption.--Construction of one or two dwelling unit buildings shall be exempt from the requirement of submitting or obtaining approval of a plan for permanent facilities for storm water management and control, as provided in Article 37-02, and shall be exempt from the requirement of submitting for review and approval an erosion and sediment control plan as required by this section; however, said construction must comply with the requirement of obtaining an erosion and sediment control permit and construction must conform with best management practices, as described in the City of Fargo's Guide to Erosion and Sediment Control Practices for One Family and Two Family Dwelling Construction.

Source: 4510 (2006).

37-0303. Permit delays.--The city engineer may withhold granting approval of an erosion and sediment control permit until all issues associated with the site are resolved to the satisfaction of the city engineer. Permits may be conditioned with delays such that work cannot begin until a specified date or until after the site is inspected.

Source: 4510 (2006).

37-0304. Permit conditions.--Permits are issued subject to all provisions of this chapter and all other applicable regulations, user charges and fees established by the board of city commissioners. Permits may contain, but are not limited to, any of the following conditions:

1. Limits on the maximum rate of allowable storm water discharge;

2. Requirements for water quality of storm water discharge;

3. Requirements for the installation, operation and maintenance of storm water facilities including detention/retention or other treatment facilities;

4. Requirements for erosion and sediment control, including measures to be implemented and other procedures necessary to protect the storm water system;

5. Compliance schedule;

6. Requirements for notification to and acceptance by the city engineer of any land disturbing activities which have the potential for increasing the rate of storm water discharge resulting in degradation of storm water quality; and

7. Easements

8. Other conditions as deemed appropriate by the city engineer to insure compliance with this chapter.

Source: 4510 (2006).

37-0305. Permit duration.--Permits must be issued for a time period specified by the city engineer. An extension of a permit may be granted, in the discretion of the city engineer, upon application for such extension submitted in writing at least thirty (30) days prior to the expiration of the permit.

Source: 4510 (2006).

37-0306. Permit modification.--The city engineer is authorized to modify erosion and sediment control permits for cause. The city engineer shall provide written notice of the modification to the permit, and state the cause therefore, at least thirty days before the modified permit is to take effect. Written notice shall be deemed to be delivered upon mailing the notice to the address of the applicant and the owner as provided in the application or such other address as the applicant or owner may provide to the city engineer in writing. Cause for modifying the permit shall include but not be limited to:

1. Promulgation of new federal, state or local regulatory requirements;

2. Changes in the requirements of this chapter;

3. Changes in the process used by the permittee or changes in discharge rate, volume, or character; and

4. Changes in the design or capability of receiving storm water systems.

The city engineer shall include within the modified permit a reasonable time schedule for compliance with the altered or added requirements in the modified permit.

Source: 4510 (2006).

37-0307. Permit amendments.--Permits may be amended by the applicant or owner by a written request submitted to the city engineer. This request shall contain the reason for the change and documentation related to any additional impacts, which may result from amendment approval. Amendment requests submitted prior to issuance of a permit shall be considered part of the original submittal. Amendment requests filed after permit approval shall be considered and reviewed under the same procedures and guidelines used for the permit applications under this section. Depending on the extent of the amendment, the city engineer may waive any additional fees for a permit amendment review.

Source: 4510 (2006).

37-0308. Permit transfer.--A permit runs with the property it covers, until the permitted activities are completed, and is transferable to new landowners in its entirety or by parcel, with each parcel being subject to the permit and any conditions, which apply to that parcel. In the event land under such a permit is transferred or conveyed in fee, such transfer or conveyance must be reported in writing, to the city engineer within seven (7) days of the transfer. This section refers to city-issued permits and does not release the applicant or owner from transfer requirements of a NPDES permit including, but not limited to, permit transfers.

Source: 4510 (2006).

37-0309. Monitoring facilities.--The city engineer may require the owner to provide and operate at the owner's expense a monitoring facility to allow inspection, sampling, and flow measurements of each storm water system component. Where at all possible, the monitoring facility shall be located on the owner's property as opposed to being located on public rights-of-way. Ample room must be allowed for accurate flow measuring and sampling and the facility shall be kept in a safe and proper operating condition.

Source: 4510 (2006).

37-0310. Inspection.--The city engineer may inspect the storm water management system of any permittee to determine compliance with the requirements of this chapter. The owner shall promptly allow the city and their authorized representatives, upon presentation of credentials to:

1. Enter upon the permitted site for the purpose of obtaining information, examination of records, conducting investigations, inspections or surveys.

2. Bring such equipment upon the permitted site as is necessary to conduct such inspections, surveys and investigations.

3. Examine and copy any books, papers, records, or memoranda pertaining to activities or records required to be kept under the terms and conditions of this permitted site.

4. Inspect the storm water pollution control measures.

5. Sample and monitor any items or activities pertaining to storm water pollution control measures.

Any temporary or permanent obstruction to the safe and easy access of such an inspection shall be promptly removed upon the inspector's request. The cost of providing such access shall be born by the owner.

Source: 4510 (2006).

37-0311. Frequency of inspections.--The owner shall be responsible for inspecting any measures called for by the approved erosion and sediment control plan or in the owner's

approved SWPPP, as applicable. From the date the permit is issued, during construction and until final stabilization, inspections shall be done at least once every 14 days by the owner, and within twenty-four (24) hours after every storm or snow melt event large enough to result in runoff from the site (approximately 0.5 inches or more in twenty-four (24) hours). The owner shall be responsible for providing to the city engineer, upon request, documentation of the inspections performed, and action taken in response to such inspections, as applicable.

Source: 4510 (2006).

37-0312. Construction plans and specifications.--The erosion and sediment control plan shall be submitted in a format acceptable to the city engineer. The plan shall contain a drawing or drawings delineating the features incorporated into the SWPPP including details of perimeter protection, construction phasing, storm drain inlet protection, erosion control measures, temporary and final stabilization measures, and all BMPs. In addition the plan shall contain construction specifications containing technical provisions describing erosion, sedimentation, and water control measures to be utilized during and after construction as well as to define the entities responsible for the installation and maintenance of BMPs. The permittee shall notify the city engineer, in writing, as to any changes or material modifications to the original permitted design. The permittee is responsible for retaining copies of said drawings and providing them to the city engineer upon request. Failure to provide these drawings upon written request constitutes a violation of this chapter.

Source: 4510 (2006).

ARTICLE 37-04

VIOLATIONS AND ENFORCEMENT

Section

37-0401 Definitions.
37-0402 Responsibility for enforcement.
37-0403 Violations.
37-0404 Management of site vegetation.
37-0405 Enforcement procedures.
37-0406 Remedies and enforcement powers.
37-0407 Enforcement, noncompliance and re-inspection fees.
37-0408 Other powers.
37-0409 Continuation.
37-0410 Power and authority of inspectors--Right of entry.
37-0411 Savings clause--Conflict.

37-0401. Definitions.--The following definitions apply to this article.

A. Notice of violation. A notice of violation is a written notice of the violation of an ordinance in this article which identifies the nature of the violation, the section or ordinance allegedly violated and the time of occurrence of the violation, if known.

B. Administrative compliance order. An administrative order is an order issued by the city engineer which identifies the nature of the violation, the section or ordinance allegedly violated, the time of occurrence of the violation, if known,

the corrective steps necessary and the nature of subsequent penalties and enforcement actions should the situation not be corrected and ordering that the alleged violator come into compliance with the section or ordinance allegedly violated. The administrative order may provide a time period within which compliance must occur.

C. Administrative compliance order with fine. An administrative order with fine is an administrative order that also provides that the city will impose a civil fine if compliance does not occur within the time provided in the order.

D. Order to show cause. An order issued by the city engineer issued when there is reason to believe that the violation identified in the administrative order has not ceased or been corrected as required, and directing the alleged violator to appear before the administrative enforcement board to show cause why further enforcement measures should not be taken or ordered or fees imposed, or both.

Source: 4510 (2006).

37-0402. Responsibility for enforcement.--The city engineer is authorized to enforce this article.

Source: 4510 (2006).

37-0403. Violations.--All of the following represent violations of this chapter and of law and will be subject to the remedies and penalties provided in this article, the Fargo Municipal Code and state law, where applicable. The city includes the extraterritorial zoning jurisdiction of the city as provided in Section 37-0104.

A. Land disturbing activity without required permit or approval. No person shall initiate within the city any land development activity, land disturbing activity, or other activity resulting in an increase in storm water quantities, degradation of storm water quality, or restriction of flow in any storm sewer system, open ditch or natural channel, storm water easement, water body, or wetland outlet, without having first complied with the terms of this chapter.

B. Authorities inconsistent with requirements. No person shall engage in land disturbing activities on an owner's land in contravention of the plans set forth in an approved SWPPP, an erosion and sediment control permit, any conditions for such plan or permit, any provision of this chapter or any other term, condition, or qualification imposed by city engineer, or other decision-making body, imposed or stated as part of a permit, certificate, or other form of authorization. This section applies to all persons including owners, their contractors and any utility companies or their contractors engaging in land disturbing activities.

C. Permanent facilities inconsistent with requirements. It is a violation of this article to erect, construct, reconstruct, remodel, alter, maintain, move, or use any permanent storm water management or control facility in violation or contravention of this chapter or of an approved plan as provided in this chapter.

D. No person shall cause a prohibited discharge within the city.

E. The owner shall cause to be removed sediments transported or tracked from owner's land onto city streets by vehicles or construction traffic before the end of the each work day and failure to do so shall be a violation of this chapter.

F. As to construction activities on owner's land, the owner shall comply with the requirements of the erosion and sediment control permit, and with the following, and failure to do so shall be a violation of this chapter:

1. Site dewatering. Water pumped from the site shall be treated by temporary sedimentation basins, grit chambers, sand filters, upflow chambers, hydro-cyclones, soil concentrators, sediment bags or other appropriate controls as approved by the city engineer. Water may not be discharged in a manner that causes erosion, sedimentation, or flooding on the site, on downstream properties, in the receiving channels, or in any wetland.
2. Waste and material disposal. All waste and unused building materials (including garbage, debris, cleaning wastes, wastewater, petroleum based products, paints, concrete or concrete wash water, toxic materials, or other hazardous materials) shall be properly disposed of off-site and shall not be allowed to be carried by runoff into a receiving channel, storm sewer system, or wetland.
3. Tracking management. The use of clay or other cohesive soils to construct access roads or ramps over curbs or onto paved streets shall not be allowed.
4. Water quality protection. The construction contractor, including the general contractor and all subcontractors, shall be required to control oil and fuel spills and chemical discharges to prevent such spills or discharges from entering any watercourse, sump, sewer system, water body, or wetland.

H. One or two dwelling unit building. Construction of a one or two dwelling unit building must comply with in-place BMPs and any existing permitted SWPPP for the subdivision, including NPDES permit requirements and failure to do so shall be a violation of this chapter.

I. Utility service lines. Utility companies or contractors working in a street right-of-way to repair existing or install new utilities that involve land disturbing activities shall obtain an excavation permit from the city engineer, in accordance with Chapter 18 of the Fargo Municipal Code. With respect to utility companies that are working in a street right-of-way and are engaging in land disturbing activities, in addition to the requirements of Chapter 18, including the obligation of obtaining an excavation permit, the excavation permittee shall implement storm water protection measures and utilize construction methods to minimize the potential for sediment or other contaminants to enter the city's storm sewer system. The utility company or contractor shall provide street sweeping as necessary to prevent sediments from their activities from entering the storm sewer system. All sediments or other materials shall be removed from the site within one working day of completion of utility installation on the site. All disturbed vegetation shall be replaced with seed or sod within seven (7) days of completion of utility installation on the site or other appropriate means of erosion and sediment control shall be implemented and maintained until the restoration is complete. All seeded or sodded areas shall be maintained by the utility company or contractor until vegetation is established except in the case of a utility repair for a private residence. For utility repairs to private residences the

homeowner shall be responsible for the maintenance of vegetation until it is established. The contractor shall provide the homeowner with a "Sediment and Erosion Control for New Homeowners" fact sheet from the ND State Health Department. The city will make available guidelines for acceptable temporary protection BMPs until the requirements for final stabilization are met.

J. Illicit connections. Storm water systems are designed to carry uncontaminated storm water. Legal connection to the city's storm water system includes sump pumps lawfully connected to the storm sewer system under chapter 17, and uncontaminated storm water conveyances (such as roof drains). All other connections shall be considered illicit connections and therefore constitute a prohibited discharge and a violation of this chapter.

K. Illicit dumping. The dumping or disposal of debris materials such as grass clippings, vegetative materials, tree branches, stumps, earth fill, rocks, concrete chunks, metal, other demolition or construction materials, or structures, any chemicals, or other materials that could degrade the quality of waters within the system by dumping in a manner that allows them to come into contact with storm water is prohibited. It is a violation of this chapter to allow such a discharge to occur.

Source: 4510 (2006).

37-0404. Management of site vegetation.--All landowners shall provide for the installation and maintenance of vegetation on their property as follows regardless as to whether or not an erosion and sediment control permit has been approved or is necessary under this chapter and failure to do so shall be a violation of this chapter. All unimproved areas shall be covered either by plants or vegetative growth or, in the alternative, by other means of storm water protection approved by the city engineer. The term unimproved area means all areas other than driveways, sidewalks, patios, areas occupied by structures and landscaped areas.

Source: 4510 (2006).

37-0405. Enforcement procedures.--The following enforcement procedures shall apply to violations of this article, in addition to the procedures set forth in Article 1-04 pertaining to administrative enforcement.

A. Non-emergency matters. In the case of violations of this article that do not constitute an emergency, the city engineer may:

1. Issue a notice of violation;
2. Issue an administrative order; or,
3. Issue an administrative order with fine;

All notices and orders shall be issued to the property owner and to any other person who is alleged to be in violation of this article or of the terms of any permit or condition granted and to any applicant for any relevant permit.

B. Emergency matters. In the case of violations of this article that do constitute an emergency situation, the city shall use all remedies, penalties and enforcement powers available under this article without prior notice, but the city engineer must send notice simultaneously with beginning enforcement action to the property owner, to any other person who is party to the agreement and to applicants for any relevant permit and must advise persons affected by the action taken that a hearing will be held within seven days from the date of such

action. At the hearing, the administrative enforcement board will determine whether there were appropriate grounds for the action taken, and whether the action taken should continue.

C. Administrative compliance orders--Procedure. Persons receiving an administrative order or an administrative order with fee shall have 10 days, or such longer period as the city engineer allows, to correct the violation. If the violation is not corrected within the required time-frame, the city engineer and city attorney shall use all penalties, remedies and enforcement powers available under this article. Any notice or order issued by the city engineer must be given in the manner required by the administrative enforcement ordinance, Article 1-04 of the Fargo Municipal Code.

D. Administrative compliance order with fee/administrative complaint or citation--Procedure. The city engineer shall include in the administrative complaint the amount of administrative fee to be paid by the person against whom the citation or complaint is issued. The authorized city employee or representative issuing the administrative citation need not issue an administrative order before issuing an administrative complaint.

E. Order to show cause--Hearing. In the event the city engineer has issued an administrative order or an administrative order with fee, if the violation is not corrected by timely compliance, the city engineer may order any person who causes or allows an unauthorized discharge to show cause before the administrative enforcement board why sewer service should not be shut off. A notice shall be served on the offending party, specifying the time and place of a hearing to be held by the administrative enforcement board regarding the violation, and directing the offending party to show cause before said board why an order should not be made directing the shut off of service. The notice of the hearing shall be served personally or by registered or certified mail (return receipt requested) at least 10 days before the hearing in accordance with the provisions of Article 1-04. The hearing before the administrative enforcement board shall be held in the same manner, and under the same rules and procedures as provided in Article 1-04.

Source: 4510 (2006).

37-0406. Remedies and enforcement powers.--The city shall have the following remedies and enforcement powers, including all the authority as set forth in Article 1-04 of the municipal code regarding administrative enforcement.

A. Withhold permits. The city may deny or withhold all permits, certificates or other forms of authorization as to any applicant for a permit. Instead of withholding or denying an authorization, the city may grant such authorization subject to the condition that the violation be corrected. This enforcement provision applies regardless of whether the current owner or applicant is responsible for the violation in question. The city may deny or withhold all permits, certificates or other forms of authorization on any land or structure or improvements owned by a person who owns, developed or otherwise caused an uncorrected violation of a provision of this article or of a condition or qualification of

a permit, certificate, approval or other authorization previously granted by a decision-making body. This provision applies regardless of whether the property for which the permit or other approval is sought is the property in violation.

B. Revoke Permits. A permit may be revoked when the city engineer determines that:

1. There is departure from the plans, specifications, or conditions as required under terms of a permit or approved plan;
2. The plans, specifications, or conditions were obtained by false representation or was issued by mistake; or
3. Any of the provisions of this chapter are being violated as to the project under the permit.

C. Revoke plan or other approval. When a violation of this article involves a failure to comply with approved plans or conditions to which the approval of such plans was made subject, the city engineer or administrative enforcement board charged with enforcement of the provisions of this article may, upon notice to the applicant and other known parties in interest (including any holders of building or other permits affected) and after a public hearing, revoke the plan or other approval or condition its continuance on strict compliance, the provision of security or such other conditions as the city engineer or administrative enforcement board may reasonably impose.

D. Injunctive relief. The city may seek an injunction or other equitable relief in court to stop any violation of this article or of a permit, certificate or other form of authorization granted hereunder.

E. Abatement. The city may seek a court order in the nature of mandamus, abatement, injunction or other action or proceeding to abate or remove a violation or to otherwise restore the premises in question to the condition in which they existed prior to the violation.

F. Restitution. The city may seek an order requiring restitution as a condition to be met by a person before the person's permit is restored, before the person is allowed to lawfully discharge into the sewer system, or before other action may be taken by the person as determined by an appropriate order.

G. Costs of damage. Any person violating any of the provisions of this chapter or who initiates an activity causes a deposit, obstruction, or damage or other impairment to the city's storm water management system is liable to the city for any expense, loss, or damage caused by the violation or the discharge. The city may bill the person violating this chapter the costs of any cleaning, repair or replacement work caused by the violation of storm water discharge, and if unpaid within ninety (90) days may result in assessment of such costs against the violator's property.

H. City attorney's fees and costs. In addition to the fees and penalties provided herein, the city may recover reasonable attorney's fees, court costs, court reporter's fees, and other expenses of litigation by appropriate action against the person found to have violated this chapter or the orders, rules, regulations and permits issued hereunder.

I. Other remedies. The city shall have such other remedies as are and as may be from time to time provided by North Dakota law and municipal codes for the violation of this article or related provisions.

J. Remedies cumulative. The remedies and enforcement powers established in this article are cumulative. An administrative enforcement board may hold a single hearing to consider evidence and render decisions on appeals from administrative citations or complaints, orders to show cause or other administrative proceedings involving one or more alleged violators stemming from the same occurrence or series of occurrences.

Source: 4510 (2006).

37-0407. Enforcement--Non-compliance and re-inspection fees.--Any person who is found to have violated an order of the city engineer made in accordance with this chapter, or who has failed to comply with any provision of this chapter and the orders, rules, regulations and permits issued hereunder, is guilty of an offense. Each day on which a violation occurs or continues to exist shall be deemed a separate and distinct offense. A schedule for noncompliance and re-inspection fees, which may be imposed for violation of this chapter, may be approved by the board of city commissioners.

Source: 4510 (2006).

37-0408. Other powers.--In addition to the enforcement powers specified in this article, the city may exercise any and all enforcement powers granted to them by North Dakota law.

Source: 4510 (2006).

37-0409. Continuation.--Nothing in this article shall prohibit the continuation of previous enforcement actions undertaken by the city pursuant to previous and valid ordinances and laws.

Source: 4510 (2006).

37-0410. Power and authority of inspectors--Right of entry.--Where it is necessary to make an inspection to enforce the provisions of this code, or where the engineers or inspections officer has reasonable cause to believe that there exists in a structure or upon a premises a condition which is contrary to or in violation of this code which makes the structure or premises unsafe, dangerous or hazardous, the engineer or inspections officer is authorized to enter the structure or premises at reasonable times to inspect or to perform the duties imposed by this code, provided that if such structure or premises be occupied that credentials be presented to the occupant and entry requested. If such structure or premises is unoccupied, the engineer or inspections officer shall first make a reasonable effort to locate the owner or other person having charge or control of the structure or premises and request entry. If entry is refused, the engineer shall have recourse to the remedies provided by law to secure entry.

Source: 4510 (2006).

37-0411. Savings clause--Conflict.--In the event that any provision, paragraph, word, section or article of this ordinance is invalidated by any court of competent jurisdiction, the remaining provisions, paragraphs, words, sections and articles shall not be affected and shall

continue in full force and effect; all ordinances and parts of ordinances inconsistent or conflicting with any part of this ordinance are hereby repealed to the extent of such inconsistency or conflict.

Source: 4510 (2006)

CHAPTER 38

CITY STREET LIGHTING SYSTEM UTILITY

Article
38-01 City Street Lighting System Utility, §§ 38-0101 to 38-0107

ARTICLE 38-01

CITY STREET LIGHTING SYSTEM UTILITY

Section
38-0101 Creation of Street Lighting and Traffic Control Devices System.
38-0102 Control of the System.
38-0103 Rates and Charges to be Established.
38-0104 Rates and Charges to be Billed and Collected.
38-0105 System to be Self Supporting.
38-0106 Segregation of City of Fargo Street Lighting and Traffic Control Devices Fund.
38-0107 Installation of Street Lights and Traffic Control Devices.

38-0101. Creation of Street Lighting and Traffic Control Devices System.--Pursuant to the provisions of Section 40-05-01 and Chapter 40-05, N.D.C.C, all lands, easements, rights in land, facilities, poles, wires, cables, conduits and other electrical fixtures and equipment necessary for the proper maintenance and operation thereof heretofore or hereafter acquired by purchase, lease or otherwise and set aside by the board of city commissioners of the city of Fargo for a municipal street lighting and traffic control devices system are hereby declared to be and shall henceforth constitute, be held, operated, maintained, improved, enlarged, and administered as a single system to be known as the street lighting and traffic control devices system.

Source: 5172 (2018).

38-0102. Control of the System.--All properties and assets set aside or held by the board of city commissioners for the purpose of lighting streets and alleys and all moneys to be derived from the operations and maintenance of said assets shall at all times be under the management and control of the board and shall be operated under such rules, terms and conditions as the board may establish.

38-0103. Rates and Charges to Be Established.--In order to provide funds to defray the costs operating, maintaining and repairing the street lighting and traffic control devices system and to provide for related revenue transfers, the board of city commissioners shall from time to time determine, establish, maintain and change, by resolution, a schedule of rates, charges and fees for all services, facilities and benefits furnished by the street lighting and traffic control devices system.

Source: 5172 (2018).

38-0104. Rates and Charges to be Billed and Collected.--The rates and charges shall be billed and collected in the same manner and time as are bills for other utility services provided by the city under article 16-03 of the Fargo Municipal Code.

38-0105. System to Be Self Supporting.--The street lighting and traffic control devices system shall be operated and maintained, and the rates and charges for use of the facilities, shall be such as to make the system self-supporting, self-perpetuating and adequate to pay all of the costs of operations and maintenance of the system, to fund the acquisition of capital equipment needed to maintain the system assets, to provide for revenue transfers approved during the annual budget adoption, to provide a reasonable operating reserves and to pay all obligations of the city incurred in establishing, improving and extending the system provided, however, nothing herein shall be deemed or construed to preclude the city from defraying all or any part of the expense of the operation or of any improvement or extension of the system by the levy of special assessments, or taxes, or to preclude the city from issuing general obligation bonds, whenever and to the extent that such action is authorized in a manner provided by law and is deemed fair and equitable by the board of city commissioners.

Source: 5172 (2018).

38-0106. Segregation of City of Fargo Street Lighting and Traffic Control Devices Fund.--All moneys received by the city in respect of the service and facilities furnished and made available by the system shall be paid into the treasury of the city and kept in a utility fund which shall be permanently maintained on the books of the city, separate and distinct from other funds, shall be considered a non-major utility fund for financial reporting and budgeting purposes, and shall be designated as the Street Lighting and Traffic Control Devices System Fund.

Source: 5172 (2018).

38-0107. Installation of Street Lights and Traffic Control Devices.--The board of city commissioners may, from time to time, designate where street lights and traffic control devices shall be installed and the manner and procedures to be followed in making such installations. The city engineer shall be responsible for the regulation, control, maintenance, and expansion of the street lighting and traffic control devices system.

Source: 4724 (2010), 5172 (2018).

CHAPTER 39

STORM WATER UTILITY SERVICE

Article

39-01 Storm Water Service Charge, §§ 39-0101--39-0108.

ARTICLE 39-01

STORM WATER SERVICE CHARGE

Section

39-0101 Generally.
39-0102 Definitions.
39-0103 Collection.
39-0104 Calculation.
39-0105 Fees for Residential and Nonresidential Properties.
39-0106 Exemptions or Reduced Charges.
39-0107 Review of Storm Water System Charge.
39-0108 Certification of unpaid charges.

39-0101. Generally.--A monthly storm water service charge shall be collected for each property located within the city of Fargo.

Source: 5176 (2018).

39-0102. Definitions.--The following definitions shall apply in the interpretation and enforcement of this Article:

(1) Land use or zoning classification is that classification identified in the Land Development Code, Fargo Municipal Code Chapter 20.

(2) Area is the total square footage of all the improved and unimproved property contained within the boundaries of each parcel of land in the city as determined by the City Engineer or designee, in conjunction with the city Geographical Information System (GIS).

(3) Storm water system rate is that portion of the total annual expenses which the board of commissioners of the city of Fargo determines is to be charged to a parcel with a specific land use or zoning classification to provide such services as the management and operation of the storm water system as well as the construction, reconstruction, repair, enlargement, maintenance, use and operation of all storm water utility improvements.

(4) Storm water service charge is the actual charge imposed against each parcel of land within the city.

Source: 5176 (2018).

39-0103. Collection.--The storm water service charge shall be collected from each parcel on a monthly billing.

Source: 5176 (2018).

39-0104. Calculation.--The storm water service charge shall be a flat rate or based on the percentage of impervious surface and the size of the property draining into the city's storm sewer system.

Source: 5176 (2018).

39-0105. Fees for Residential and Nonresidential Properties.--Property within the city shall be assessed a monthly storm water service charge. The amount of the monthly storm water service charge for all Residential and Nonresidential properties shall be established by Resolution of the board of city commissioners of the city of Fargo.

Source: 5176 (2018).

39-0106. Exemptions or Reduced Charges.--Exemptions and reduced charges may be adopted by Resolution of the board of city Commissioners of the city of Fargo.

Source: 5176 (2018).

39-0107. Review of Storm Water System Charge.--

(1) Property owners, as determined by the city of Fargo parcel information, may seek review of the storm sewer system charge by filing a written request for review with the City Engineer. The request shall be filed within thirty (30) days of the mailing of the monthly bill and shall set forth the particular grounds upon which the review is sought.

(2) Grounds for review include questions relating to the city's determination of the parcel's area and its determination of the parcel's impervious surface determination.

(3) The board of commissioners, by resolution and upon the recommendation of the City Engineer shall adopt guidelines and policies for the review of these petitions. The City Engineer shall follow these guidelines and policies and consider all pertinent data including that provided by the property owner before making a determination of the merits of each petition.

Source: 5176 (2018).

39-0108. Certification of unpaid charges.--The balance of any unpaid storm water service charges shall be certified for collection with real estate taxes in the following year in accordance with Article 3-23.

Source: 5176 (2018).

CODE COMPARATIVE TABLE

Revised Ordinances of 1951

This table gives the location within this Code of those sections of the Revised Ordinances of 1951 which are included herein. Sections of the Revised Ordinances of 1951 not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

1951 Rev. Ord. Section	**Section this Code**
23-0207	23-0207
24-0104	24-0104
26-0103	26-0103

Revised Ordinances of 1952

This table gives the location within this Code of those sections of the Revised Ordinances of 1952 which are included herein. Sections of the Revised Ordinances of 1952 not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

1952 Rev. Ord. Section	Section this Code	1952 Rev. Ord. Section	Section this Code
1-0204	1-0204	4-1102	4-1102
1-0205	1-0205	4-1301	4-1301
3-0102	3-0101	5-0101	5-0101
3-0103	3-0102	5-0102	5-0102
3-0104	3-0103	5-0103	5-0103
3-0105	3-0104	5-0104	5-0104
3-0106	3-0105	5-0105	5-0105
3-0107	3-0106	5-0201	5-0201
3-0204	3-0202	5-0202	5-0202
3-0206	3-0203	5-0203	5-0203
3-0301	3-0301	5-0204	5-0204
4-0104	4-0104	5-0205	5-0205
4-0105	4-0105	5-0206	5-0206
4-0106	4-0106	5-0207	5-0207
4-0107	4-0107	5-0301	5-0301
4-0108	4-0108	5-0302	5-0302
4-0109	4-0109	5-0303	5-0303
4-0110	4-0110	5-0304	5-0304
4-0111	4-0111	5-0305	5-0305
4-0112	4-0112	5-0306	5-0306
4-0113	4-0113	5-0307	5-0307
4-0114	4-0114	6-0101	6-0101
4-0201	4-0201	6-0104	6-0104
4-0202	4-0202	6-0106	6-0106
4-0203	4-0203	6-0107	6-0107
4-0301	4-0301	6-0108	6-0108
4-0401	4-0401	6-0109	6-0109
4-0501	4-0501	6-0110	6-0110
4-0601	4-0601	6-0112	6-0112
4-0701	4-0701	6-0114	6-0114
4-0702	4-0702	6-0115	6-0115
4-0801	4-0801	6-0117	6-0117
4-0802	4-0802	6-0118	6-0118
4-0803	4-0803	6-0121	6-0121
4-0901	4-0901	6-0122	6-0122
4-1001	4-1001	9-0101	9-101--9-105
4-1002	4-1002	9-0201	9-0201
4-1003	4-1003	9-0401	9-0401
4-1004	4-1004	9-0402	9-0402
4-1005	4-1005	9-0406	9-0406
4-1101	4-1101	9-0407	9-0407

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9-0408	9-0408
9-0409	9-0409
9-0410	9-0410
9-0416	9-0416
9-0417	9-0417
9-0419	9-0419
9-0501	9-0501
9-0502	9-0502
9-0504	9-503, 9-504
9-0601	9-0601
9-0602	9-0602
9-0603	9-0603
10-0617	25-2201, 25-2202
11-0101	11-0101
11-0102	11-0102
11-0103	11-0103
11-0301	11-0301
11-0302	11-0302
11-0303	11-0303
11-0304	11-0304
11-0401	11-0401
11-0402	11-0402
11-0404	11-0404
11-0501	11-0501
11-0502	11-0502
11-0503	11-0503
11-0504	11-0504
11-0505	11-0505
11-0506	11-0506
11-0601	11-0601
11-0602	11-0602
11-0603	11-0603
11-0701	11-0701
11-0702	11-0702
11-0704	11-0703
11-0705	11-0704
11-0801	11-0802
	11-0801
	11-803--11-823
12-0101	12-0101
12-0104	12-0104
12-0106	12-0106
12-0110	12-0110
12-0201	12-0201
12-0202	12-0202
12-0205	12-0205
12-0206	12-0206
12-0207	12-0207
12-0208	12-0208
12-0209	12-0209
12-0210	12-0210
12-0211	12-0211
12-0212	12-0212
12-0213	12-0213
12-0214	12-0214
12-0215	12-0215
12-0216	12-0216
12-0217	12-0217
12-0301	12-0301
12-0302	12-0302
12-0303	12-0303
12-0304	12-0304
12-0305	12-0305
13-0101	13-101--13-105
13-0102	13-101--13-105
13-0103	13-101--13-105
13-0201	13-201--13-213
13-0202	13-201--13-213
13-0203	13-201--13-213
13-0204	13-201--13-213
13-0205	13-201--13-213
13-0206	13-201--13-213
13-0207	13-201--13-213
13-0208	13-201--13-213
13-0209	13-201--13-213
13-0210	13-201--13-213
13-0211	13-201--13-213
13-0212	13-201--13-213
13-0213	13-201--13-213
13-0214	13-201--13-213
13-0215	13-201--13-213
13-0216	13-201--13-213
13-0217	13-201--13-213
13-0218	13-201--13-213
13-0301	13-0301
13-0302	13-0302
13-0304	13-0304
13-0305	13-0305
13-0306	13-0306
13-0501	13-0501
13-0502	13-0502.1
13-0503	13-0503
13-0504	13-0504
13-0505	13-0505
13-0506	13-0506
13-0507	13-0507
13-0509	13-0509
13-0510	13-0510
13-0511	13-0511
13-0512	13-0512
13-0515	13-0514
13-0516	13-0515
13-0517	13-0516
13-0519	13-0519
13-0520	13-0520
13-0521	13-0521
13-0523	13-0523

1952 Rev. Ord. Section	Section this Code	1952 Rev. Ord. Section	Section this Code
13-0524	13-0524	16-0212	16-0212
13-0525	13-0525	16-0213	16-0213
13-0526	13-0526	16-0214	16-0214
13-0801	13-0801	16-0215	16-0215
13-0802	13-0802	16-0216	16-0216
13-0803	13-0803	16-0217	16-0217
13-0804	13-0804	16-0301	16-0301
13-0805	13-0805	16-0302	16-0302
13-0806	13-0806	16-0303	16-0303
13-0807	13-0807	16-0304	16-0304
13-0808	13-0808	16-0305	16-0305
13-0809	13-0809	16-0306	16-0306
13-0810	13-0810	16-0307	16-0307
13-0811	13-0811	16-0308	16-0308
13-0812	13-0812	16-0401	16-0401
13-0813	13-0813	16-0402	16-0402
13-0814	13-0814	16-0403	16-0403
14-0101	14-101--14-108	16-0404	16-0404
14-0104	14-101--14-108	16-0405	16-0405
16-0101	16-0101	16-0406	16-0406
16-0102	16-0102	16-0407	16-0407
16-0103	16-0103	16-0408	16-0408
16-0105	16-0105	16-0409	16-0409
16-0106	16-0106	16-0410	16-0410
16-0107	16-0107	16-0411	16-0411
16-0109	16-0109	16-0412	16-0412
16-0110	16-0110	16-0501	16-0501
16-0111	16-0111	16-0502	16-0502
16-0112	16-0112	16-0503	16-0503
16-0113	16-0113	16-0504	16-0504
16-0114	16-0114	16-0505	16-0505
16-0115	16-0115	16-0506	16-0506
16-0116	16-0116	16-0507	16-0507
16-0117	16-0117	16-0508	16-0508
16-0118	16-0118	16-0509	16-0509
16-0120	16-0120	16-0601	16-0601
16-0121	16-0121	16-0701	16-0701
16-0121.1	16-0121.1	16-0702	16-0702
16-0121.2	16-0121.2	16-0703	16-0703
16-0122	16-0122	16-0704	16-0704
16-0123	16-0123	16-0801	16-0801
16-0124	16-0124	16-0802	16-0802
16-0125	16-0125	16-0803	16-0803
16-0201	16-0201	16-0805	16-0805
16-0202	16-0202	16-0806	16-0806
16-0203	16-0203	16-0807	16-0807
16-0204	16-0204	17-0101	17-0101
16-0205	16-0205	17-0102	17-0102
16-0206	16-0206	17-0103	17-0103
16-0207	16-0207	17-0105	17-0105
16-0208	16-0208	17-0106	17-0106
16-0209	16-0209	17-0201	18-0413
16-0210	16-0210	17-0204	18-0424
16-0211	16-0211	18-0301	18-0301

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18-0302	18-0302	23-0204	23-0204
18-0304	18-0304	23-0205	23-0205
18-0305	18-0305	23-0206	23-0206
18-0306	18-0306	23-0208	23-0208
18-0402	18-0402	23-0209	23-0209
18-0403	18-0403	23-0210	23-0210
18-0404	18-0404	23-0212	23-0212
18-0405	18-0405	23-0213	23-0213
18-0406	18-0406	23-0214	23-0214
18-0407	18-0407	23-0401	23-0501
18-0408	18-0408	23-0413	23-0501
18-0409	18-0409	24-0101	24-0101
18-0410	18-0410	24-0102	24-0102
18-0411	18-0411	24-0103	24-0103
18-0413	18-0413	24-0105	24-0105
18-0422	18-0422	24-0107	24-0107
18-0423	18-0423	24-0108	24-0108
18-0424	18-0424	24-0109	24-0109
18-0425	18-0425	24-0110	24-0110
18-0426	18-0426	24-0111	24-0111
18-0427	18-0427	24-0112	24-0112
18-0428	18-0428	24-0113	24-0113
18-0501	18-0501	24-0114	24-0114
18-0502	18-0502	24-0115	24-0115
18-0503	18-0503	24-0116	24-0116
18-0504	18-0504	25-0101	25-0101
19-0206	19-0207	25-0102	25-0102
19-0403	19-0303	25-0103	25-0103
21-0301	21-0301	25-0104	25-0104
21-0401	21-0401	25-0105	25-0105
21-0402	21-0402	25-0203	25-0203
21-0403	21-0403	25-0401	25-0401
21-0404	21-0404	25-0402	25-0402
21-0405	21-0405	25-0403	25-0403
21-0406	21-0406	25-0405	25-0405
21-0407	21-0407	25-0406	25-0406
21-0408	21-0408	25-0407	25-0407
21-0409	21-0409	25-0408	25-0408
21-0410	21-0410	25-0409	25-0409
21-0411	21-0411	25-0410	25-0410
21-0412	21-0412	25-0411	25-0411
21-0501	21-0501	25-0412	25-0412
21-0502	21-0502	25-0413	25-0413
21-0503	21-0503	25-0414	25-0414
21-0504	21-0504	25-0415	25-0415
21-0505	21-0505	25-0417	25-0417
22-0108	22-0108	25-0418	25-0418
22-0111	22-0111	25-0420	25-0420
22-0112	22-0112	25-0421	25-0421
22-0404	22-0404	25-0422	25-0422
22-1016	22-1016	25-0423	25-0423
23-0201	23-0201	25-0424	25-0424
23-0202	23-0202	25-0425	25-0425
23-0203	23-0203	25-0426	25-0426

1952 Rev. Ord. Section	Section this Code
25-0427	25-0427
25-0428	25-0428
25-0431	25-0431
25-0432	25-0432
25-0433	25-0433
25-1001	25-1000--25-1013
	25-1015--25-1020
	25-3500--25-3512
	25-3514--25-3518
25-1005	25-1000--25-1013
	25-1015--25-1020
	25-3500--25-3512
	25-3514--25-3518
25-1006	25-1000--25-1013
	25-1015--25-1020
	25-3500--25-3512
	25-3514--25-3518
25-1007	25-1000--25-1013
	25-1015--25-1020
	25-3500--25-3512
	25-3514--25-3518
25-1008	25-1000--25-1013
	25-1015--25-1020
	25-3500--25-3512
	25-3514--25-3518
25-1009	25-1000--25-1013
	25-1015--25-1020
	25-3500--25-3512
	25-3514--25-3518
25-1011	25-1000--25-1013
	25-1015--25-1020
25-1012	25-1000--25-1013
	25-1015--25-1020
	25-3500--25-3512
	25-3514--25-3518
25-1013	25-1000--25-1013
	25-1015--25-1020
	25-3500--25-3512
	25-3514--25-3518
25-1014	25-1000--25-1013
	25-1015--25-1020
	25-3500--25-3512
	25-3514--25-3518
25-2003	25-2003
25-2004	25-2004
25-2006	25-2006
25-2007	25-2007
25-2008	25-2008
25-2009	25-2009
25-2010	25-2010
25-2101	25-2101
25-2102	25-2102
25-2103	25-2103
25-2105	25-2105
25-2106	25-2106
25-2107	25-2107
25-2201	25-2201
25-2202	25-2202
26-0101	26-0101
26-0104	26-0104
26-0105	26-0105
27-0101	27-0101
27-0102	27-0102
27-0103	27-0103
27-0104	27-0104
27-0105	27-0105
27-0106	27-0106
27-0107	27-0107
27-0108	27-0108
28-0101	28-0101

Revised Ordinances of 1965

This table gives the location within this Code of those sections of the Revised Ordinances of 1965 which are included herein. Sections of the Revised Ordinances of 1965 not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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2-0102	2-0102	6-0123	6-0123
2-0103	2-0103	6-0127	6-0127
2-0104	2-0104	6-0202	6-0202
2-0105	2-0105	6-0204	6-0204
2-0201	2-0201	6-0205	6-0205
2-0203	2-0203	6-0206	6-0206
2-0204	2-0204	6-0208	6-0208
3-0203	3-0201	6-0210	6-0210
3-0401	3-0401	6-0212	6-0212
	3-0901	6-0213	6-0213
3-0402	3-0402	6-0215	6-0215
	3-0902	6-0216	6-0216
3-0404	3-0904	8-0101	8-0101
3-0501	3-0501	8-0105	8-0105
3-0502	3-0502	8-0127	8-0127
3-0601	3-0601	8-0303	8-0303
3-0602	3-0602	8-0305	8-0305
3-0603	3-0603	8-0308.1	8-0308
3-0604	3-0604	8-0309	8-0309
3-0605	3-0605	8-0310	8-0310
3-0606	3-0606	8-0317	8-0317
3-0607	3-0607	8-0319	8-0318
3-0801	3-0801	8-0320	8-0319
3-0903	3-0903	8-0402	8-0402
3-1001	3-1001	8-0405	8-0405
	3-1201, 3-1202	8-0502	8-0502
3-1002	3-1002	8-0801	8-0801
3-1003	3-1003	8-0908	8-0908
3-1101	3-1101	8-0930	8-0930
4-0101	4-0101	8-1003	8-1003
4-0101.1	4-0101.1	8-1004.1	8-1004.1
4-0102	4-0102	8-1005	8-1005
4-0103	4-0103	8-1006	8-1006
4-0115	4-0115	8-1008	8-1008
4-0302	4-0302	8-1010	8-1010
4-0402	4-0402	8-1011	8-1011
6-0103	6-0103	8-1013	8-1013
6-0105	6-0105	8-1014	8-1014
6-0111	6-0111	8-1020	8-1020
6-0119	6-0119	8-1021	8-1021
6-0120	6-0120	8-1024	8-1024

1965 Rev. Ord. Section	Section this Code	1965 Rev. Ord. Section	Section this Code
8-1202	8-1202	12-0113	12-0117
8-1308.1	8-1308	12-0203	12-0203
8-1312	8-1313	12-0204	12-0204
8-1401	8-1401	12-0307	12-0307
8-1402	8-1402	13-0303	13-0303
8-1403	8-1403	13-0402	13-0401
8-1404	8-1404	13-0509	13-0508
8-1405	8-1405	13-0513	13-0513
8-1406	8-1406	13-0517.1	13-0517
8-1407	8-1407	13-0518	13-0518
8-1408	8-1408	13-0522	13-0522
8-1410	8-1410	14-0102	14-101--14-108
8-1411	8-1411	14-0103	14-101--14-108
8-1412	8-1412	14-0203	14-101--14-108
8-1413	8-1413	14-0302	14-101--14-108
8-1414	8-1414	15-0101	15-0101
8-1415	8-1415	15-0102	15-0102
8-1416	8-1416	15-0103	15-0103
8-1417	8-1417	15-0104	15-0104
8-1419	8-1419	16-0104	16-0104
8-1420	8-1420	16-0108	16-0108
8-1421	8-1421	16-0804	16-0804
8-1422	8-1422	17-0104	17-0104
8-1423	8-1423	17-0107	17-0107
8-1424	8-1424	17-0108	17-0108
8-1425	8-1425	18-0101	18-0101
8-1601	8-1601	18-0102	18-0102
8-1612	8-1612	18-0103	18-0103
8-1701	8-1701	18-0104	18-0104
8-1702	8-1702	18-0105	18-0105
8-1705	8-1703	18-0106	18-0106
8-1706	8-1704	18-0107	18-0107
8-1707	8-1705	18-0108	18-0108
8-1708	8-1706	18-0201.1	18-0201.1
8-1709	8-1707	18-0202	18-0202
8-1710	8-1708	18-0203	18-0203
8-1711	8-1709	18-0207	18-0207
	8-1711	18-0216	18-0216
8-1712	8-1710	18-0412	18-0412
8-1714	8-1712	18-0433	18-0433
9-0202	9-0202	18-0510	18-0510
9-0203	9-0203	18-0513	18-0513
9-0204	9-0204	18-0601	18-0601
9-0422	9-0422		18-0901
9-0505	9-0505	18-0602	18-0602
11-0403	11-0403		18-0902
12-0102	12-0102	18-0603	18-0603
12-0103	12-0103		18-0903
12-0105	12-0105	18-0604	18-0604
12-0107	12-0107		18-0904
12-0108	12-0108	18-0605	18-0905
12-0109	12-0109	18-0606	18-0906
12-0111	12-0111	18-0607	18-0907
12-0112	12-0112	18-0608	18-0908

1965 Rev. Ord. Section	Section this Code	1965 Rev. Ord. Section	Section this Code
18-0609	18-0909	25-0501	25-0501
18-0610	18-0910	25-0502	25-0502
18-0611	18-0911	25-0503	25-0503
18-0612	18-0912	25-0504	25-0504
18-0613	18-0913	25-0505	25-0505
18-0614	18-0914	25-0506	25-0506
18-0615	18-0915	25-0507	25-0507
18-0616	18-0916	25-0508	25-0508
18-0617	18-0917	25-0509	25-0509
18-0801	18-0801	25-0510	25-0510
18-0802	18-0802	25-0511	25-0511
18-0803	18-0803	25-0512	25-0512
18-0804	18-0804	25-1002	25-1000--25-1013
18-0805	18-0805		25-1015--25-1020
19-0101	19-0101		25-3500--25-3512
19-0102	19-0102		25-3514--25-3518
19-0103	19-0103	25-1003	25-1000--25-1013
19-0104	19-0104		25-1015--25-1020
19-0201	19-0201		25-3500--25-3512
19-0202	19-0202		25-3514--25-3518
19-0203	19-0203		
19-0204	19-0204		
19-0205	19-0206		
19-0401	19-0301		
19-0402	19-0302		
22-0105	22-0105		
22-0106	22-0106		
22-0107	22-0107	25-1101	25-1101
22-0109	22-0109	25-1105	25-1105
22-0114	22-0114	25-1106	25-1106
22-0115	22-0115	25-1107	25-1107
22-0117	22-0117	25-1108	25-1108
22-0301	22-0301	25-1109	25-1109
22-0432	22-0432	25-1501	25-1501
22-0710	22-0710	25-1502	25-1502
23-0211	23-0211	25-1504	25-1504
24-0117	24-0117	25-1505	25-1505
24-0118	24-0118	25-1506	25-1503
24-0201	24-0201		25-1506
24-0202	24-0202	25-1507	25-1507
24-0203	24-0203	25-1508	25-1508
24-0204	24-0204	25-1509	25-1509
24-0205	24-0205	25-1510	25-1510
24-0206	24-0206	25-1511	25-1511
24-0207	24-0207	25-1512	25-1512
24-0208	24-0208	25-1513	25-1513
24-0209	24-0209	25-1514	25-1514
24-0210	24-0210	25-1515	25-1515
24-0211	24-0211	25-2001	25-2001
24-0212	24-0212	25-2002	25-2002
24-0104	24-0104	25-2005	25-2005
25-0201	25-0201	25-2104	25-2104
25-0202	25-0202	25-2503	25-2503
25-0416	25-0416	25-2504	25-2504

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25-2505	25-2505
25-3001	25-3001
25-3010	25-3002
25-3011	25-3003
25-3012	25-3004
25-3014	25-3005
25-3015	25-3006
25-3016	25-3007
25-3017	25-3008
26-0102	26-0102
30-0105	30-0105
30-0601	30-0601
30-0602	30-0602
30-0603	30-0603
30-0604	30-0604
30-0605	30-0605
30-0606	30-0606
30-0607	30-0607
30-0608	30-0608
30-0609	30-0609
30-0611	30-0611
30-0612	30-0612
30-0701	30-0701
30-0702	30-0702
31-0101.1	31.0102
32-0101	32-0101
32-0102	32-0102
32-0103	32-0103
33-0101	33-0101
33-0102	33-0102
33-0103	33-0103
33-0104	33-0104
33-0105	33-0105
33-0106	33-0106
33-0107	33-0107
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CODE COMPARATIVE TABLE

This table gives the location within this Code of those ordinances which are included herein. Ordinances not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

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1419	1972	31-0101
1424	1972	8-1004
1479	1973	2-0202
1551	1973	1-0203
1572	1974	30-0106
1573	1974	31-0101
1618	1974	1-0203
1652	1975	8-0802
1667	1975	8-1004
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1780	1977	8-0101
1799	1977	31-0101
1800	1977	30-0106
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2101	1983	13-1106--13-1108
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2106	1983	6-0125
2107	1983	16-0808
2121	1983	11-1001--11-1004
2154	1984	8-0931
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2238	1985	6-0201, 6-0209, 6-0211, 6-0214, 6-0217

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2258	1986	1-0101--1-0104, 1-0106, 1-0107, 1-0206--1-0209
2262	1986	6-0126
2265	1986	6-0125
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2267	1986	6-0102
2268	1986	6-0116
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2601	1991	1-0301
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2708	1994	8-1321
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2722	1994	8-1009
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2742	1995	8-0320
2743	1995	10-0201
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2747	1995	10-0301
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2777	1996	35-0101--35-0105, 35-0201, 35-0202
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4082	2000	1-0306
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4090	2000	1-0305
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4286	2002		9-0704
4288	2002		4-1405
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4293	2003		21-0102
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4325	2003		1-0305
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4550	2006	8-1418
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4561	2006	10-0326
4562	2006	1-0305
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4568	2007	10-0320
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4768	2010	1-0305
4776	2011	1-0305
4781	2011	1-0305
4785	2011	13-1108
4799	2011	8-0321
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4812	2012	10-0304
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4877	8-19-2013	1		9-0701, 9-0704
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			as	20-0901.H--K
			Added	20-0901.G
4882	8-19-2013	1		25-1508.C, E
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4889	10-14-2013	1	Rltd	25-1506.P--Y
			as	25-1506.Q--Z
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4890	10-14-2013	1	Added	32-0104
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4913	4-14-2014	1	Added	Art. 10-12, §§ 10-1201--10-1205
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4927	8- 4-2014	1		8-1003.Q
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4945	10-27-2014	1	Added	25-1506.AA.5
4946	10-27-2014	1	Added	13-0106
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4947	10-27-2014			25-3302--25-3307
			Added	25-3301.11
4948	11-24-2014	1	Added	20-0805
4951	12- 8-2014	1	Rpld	8-1401.A
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4964	2- 2-2015	1	Rpld	Art. 25-04, 25-0401--25-0433
		2	Added	Art. 25-04, 25-0401--25-0409
4965	2-17-2015	1		Art. 13-10 tit., 13-1001--13-1011
			Added	13-1012, 13-1013
4966	2-17-2015	1	Added	11-0209.F.4
4969	3- 2-2015	1	Added	32-0105
4970	3- 2-2015	1		11-0401
4971	3- 2-2015	1		25-1508.H.6, I.6, J.4, J.5
4972	3-16-2015	1		12-0102, 12-0103
4973	3-16-2015	1	Added	25-1506.B.4 25-1507.A, B
			Added	25-1508.F.3
			Rnbd as	25-1508.F.3--25 25-1508.F.4--26
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4979	4-13-2015	1		20-1307.B.1.a, B.2.a, J.1
4981	4-27-2015	1		20-0805.A, C
4983	6- 8-2015	1	Added	25-0401.A.9
		2	Added	25-0410
4984	6- 8-2015	1		25-1506. B.4.b.4--6
			Added	25-1506.B.4.b.7
4985	6- 8-2015	1		8-1025
4986	6- 8-2015	1		8-1006

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4987	6- 8-2015	1	Added	8-1006.2
4988	6- 8-2015	1		20-0402.N.3
4992	7- 6-2015	1		23-0211
4997	8-17-2015	1(Att.)		20-0401 (table)
4998	8-17-2015	1		25-1506.AA
5000	9-14-2015	1		10-0304.A
5001	9-14-2015	1		10-1202
5002	9-14-2015	1		25-1509.F
5008	10-26-2015	1		25-1506.H.1
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			Rnbd as	25-1506.M.6 25-1506.M.4
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5010	11-23-2015	1		25-1506.H.1
		2	Added	25-1506.BB
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		4	Added	25-1508.F.27
		5		25-1511.A, D.2
		6		25-1512.F
5011	11-23-2015	1		25-1506.G.3
5013	1- 4-2016	1		13-1001--13-1003, 13-1008, 13-1012, 13-1013
		2	Rpld	13-1004--13-1007
		3	Added	13-1014, 13-1015
5016	1- 4-2016	1		20-0705.D.3
5017	1- 4-2016	1		8-1606
		2		1-0305.C.12
5035	6- 6-2016	1		14-0102
		2		14-0105
5036	6- 6-2016	1		25-1506.B.4.a
5037	6- 6-2016	1		25-1508.F
5043	7-18-2016	1		20-0212.D.4
5048	8-15-2016	1		21.1-0101, 21.1-0102
5049	8-15-2016	1		21.2-0101, 21.2-0102
5050	8-15-2016	1		21-0101, 21-0102

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5052	8-15-2016	1		31-0101, 31-0102
5053	8-15-2016	1		9-0701, 9-0704
5054	8-15-2016	1		30-0106.B
5055	8-15-2016	1	Added	21.3-0101, 21.3-0102
5059	8-29-2016	1		25-1506.T.1
5060	8-29-2016	1		25-1508.F
5061	8-29-2016	1		25-1509.J
5068	11- 7-2016	1		8-0804
5069	11-21-2016	1		18-0902
		2	Rpld	18-0905
5070	12- 5-2016	1		25-1501.14
5072	12-19-2016	1		3-2110
		2		3-2111
5073	12-19-2016	1		3-2210
		2		3-2211
5077	1-17-2017	1	Added	Art. 24-04, 24-0401--24-0424
5078	1-30-2017	1		20-0401
		2		20-0402.N
5080	2-13-2017	1		25-1504.2
5081	2-13-2017	1	Added	25-1506.K.10
5085	2-27-2017	1		25-1501.9
		2		25-1506.T
		3		25-1506.Y
		4		25-1507.A, B
		5		25-1508.F.23
		6		25-1509.J
		7		25-1511.A, B
5089	4-10-2017	1		8-0101.68
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		4	Added	8-0920.1
		5		8-0921
		6	Added	8-0921.1
		7		8-0925
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		9		8-0925.8
5091	4-24-2017	1		20-0403.B.7
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		5	Added	20-0403.E
		6		20-1203.C.2.b
			Added	20-1203.G.1.d.(6)
5105	7-31-2017	1		20-1005
5109	9-11-2017	1		1-0305.C.8
5110	9-11-2017	1	Added	8-0322
5111	9-11-2017	1		8-0321.B.1
5113	9-25-2017	1		25-1509.C
5116	10- 9-2017	1		Table 20-0401
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5120	12- 4-2017	1		13-1001
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5121	12- 4-2017	1		21-0408
5122	1-16-2018	1		35.0102
5125	1-16-2018	1		20.0402R.1.b
5129	1-29-2018	1		25-1507.A
5132	2-12-2018	1		25-1506.W
5133	2-12-2018	1		10-0304.D
5135	3-26-2018	1		25-1509.I
5136	3-26-2018	1		18-0202
5141	5- 7-2018	1		25-1504.3
5143	5-21-2018	1		11-0805
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5144	6- 4-2018	1		25-1509.2
5145	6-18-2018	1		25-3001
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5150	7- 2-2018	1		13-0301
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5151	7- 2-2018	1	Added	32-0106
5163	9-10-2018	1		25-1513
5164	9-10-2018	1		01-0305.A, C
5165	9-24-2018	1		35-0102
5166	9-24-2018	1		35-0201
5168	10- 8-2018	1		8-1425
5169	10- 8-2018	1		1-0305.C
5170	10- 8-2018	1	Added	Ch. 3, Art. 3-23, 3-2301, 3-2302
5171	10-22-2018	1		23-0211
5172	10-22-2018	1		38-0101
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5173	10-22-2018	1		20-0504.G.
5176	11- 5-2018	1	Added	Ch. 39, Art. 39-01, 39-0101--39-0108
5177	11- 5-2018	1		8-1009
5179	11-19-2018	1		20-0212.D.3
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		3	Added	20-0302.E.10
		4		20-0402.N.3
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		13		20-0901.K
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5181	12- 3-2018	1		1-0305.A.1
5182	12-17-2018	1		10-0318.A.7
5183	12-17-2018	1		25-1506.CC.1
5186	1-14-2019	1		7-0302.D
5187	1-14-2019	1		8-0305
		2	Added	8-0323
5188	1-14-2019	1		1-0305.C.2
5190	1-28-2019	1		24-0402.N
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5191	1-28-2019	1		2-0203
		2	Added	2-0205
5193	2-25-2019	1		25-1506.Z
5203	4-22-2019	1	Rpld	Ch. 17, Art. 17-02, 17-0201--17-0211
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			Rpld	Ch. 17, Art. 17-05, 17-0501--17-0508
			Added	Ch. 17, Art. 17-02, 17-0201--17-0204
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5204	5-20-2019	1		4-0106
		2		11-0814
		3		1-0305.A.1
5208	7- 1-2019	1		25-1506.L.4
5210	7-29-2019	1		22-0301
5211	7-29-2019	1		16-0105
5212	7-29-2019	1	Added	32-0107
5215	8-12-2019	1	Rpld	Art. 21-01, 21-0101, 21-0102
		2	Added	Art. 21-01, 21-0101, 21-0102
5216	8-12-2019	1	Rpld	Art. 21.1-01, 21.1-0101, 21.1-0102
		2	Added	Art. 21.1-01, 21.1-0101, 21.1-0102
5217	8-12-2019	1	Rpld	Art. 21.2-01, 21.2-0101, 21.2-0102
		2	Added	Art. 21.2-01, 21.2-0101, 21.2-0102
5218	8-12-2019	1	Rpld	Art. 21.3-01, 21.3-0101, 21.3-0102
		2	Added	Art. 21.3-01, 21.3-0101, 21.3-0102
5219	8-12-2019	1	Rpld	30-0106
		2	Added	30-0106
5220	8-12-2019	1	Rpld	Art. 30.1-01, 30.1-0101, 30.1-0102

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5221	8-12-2019	1	Rpld	Art. 31-01, 31-0101, 31-0102
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5222	8-12-2019	1	Rpld	9-0701, 9-0704
		2	Added	9-0701, 9-0704
5224	8-26-2019	1		10-1201
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5225	8-26-2019	1		1-305.A, B
5226	9- 9-2019	1		1-305.A.1
5228	9-23-2019	1		25-1506.U
5231	10- 7-2019	1		16-0204
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5232	10- 7-2019	1		3-1301.1, 2
		2		3-1302
5235	10-21-2019	1		10-0103.B
		2		10-0103.C
		3		10-0103.C.4
5236	10-21-2019	1		71-0305.C.3
5237	10-21-2019	1	Added	10-0105
5238	10-21-2019	1		35-0101
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5240	12- 2-2019	1		13-1002
		2		13-1008
5242	12-30-2019	1		1-0305.C
5247	4- 6-2020	1		21-0601.19
		2	Added	21-0603.B.4, 5
5261	4- 6-2020	1	Rpld	13-1101.3, 4
		2	Rpld	13-1102--13-1109
5268	8-24-2020	1	Added	32-0108
5274	10- 5-2020	I		Art. 8-17(title)
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5275	10- 5-2020	1		8-0101.5
		2		8-1009.A
		3		18-0308.A
		4		10-0311.A.2
		5		11-0201.5
5276	10-19-2020	1		13.0901.2.
5279	11- 2-2020	1	Added	32-0109
5281	11-16-2020	1	Added	Art. 13-16, 13-1601--13-1607
5283	11-16-2020	1	Added	32-0110
5284	11-30-2020	1		15-0202
5291	3-22-2021	1		23-0211
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5292	4- 5-2021	1		25-1512
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5294	4-19-2021	1		1-0305.C.11
5303	6-28-2021	1	Added	32-0111
5305	6-28-2021	1	Added	10-0321.1
5306	6-28-2021	1	Added	10-0322.1
5307	6-28-2021	1	Added	10-0323.1
5309	7-12-2021	1	Added	Art. 13-17, 13-1701--13-1706
5310	7-12-2021	1		1-0305.A.1
5311	7-26-2021	1		10-0102
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5313	7-26-2021	1		1-0305.A.1
5318	9-20-2021	1		8-0304
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5319	9-20-2021	1	Added	8-1220
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5321	11- 1-2021	1		25-1506 H.1
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5323	11-15-2021	1	Added	Ch. 24, Art. 24-05, 24-0501--24-0507
5324	11-15-2021	2	Added	24-0119
5327	11-29-2021	1--9	Added	Ch. 5, Art. 5-05, 5-0401--5-0409
5330	12-13-2021	1	Added	Ch. 13, Art. 13-18, 13-1801--13-1807
5335	1-24-2022	1	Added	1-0210
5337	2-22-2022	1		25-2201
5338	2-22-2022	1		Art. 15-02(title), 15-0201--15-0206
5339	2-22-2022	1		8-0309
5342	3-21-2022	1	Rpld	2-0106
5346	5-31-2022	1		1-0305.C.7
5347	5-31-2022	1	Rpld	Art. 21-01, 21-0101, 21-0102
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5348	5-31-2022	1	Rpld	Art. 21.1-01, 21.1-0101, 21.1-0102
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5349	5-31-2022	1	Rpld	Art. 21.2-01, 21.2-0101, 21.2-0102

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5351	5-31-2022	1	Rpld	Ch. 30.1, Art. 30.1-01, 30.1-0101, 30.1-0102
		2	Added	Ch. 30.1, Art. 30.1-01, 30.1-0101, 30.1-0102
5352	5-31-2022	1	Rpld	Art. 31-01, 31-0101, 31-0102
		2	Added	Art. 31-01, 31-0101, 31-0102
5353	5-31-2022	1	Rpld	Ch. 21.3, Art. 21.3-01, 21.3-0101, 21.3-0102
		2	Added	Ch. 21.3, Art. 21.3-01, 21.3-0101, 21.3-0102
5354	5-31-2022	1	Rpld	9-0701
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5355	5-31-2022	1		7-0302.D
5357	6-13-2022	1	Added	32-0112
5363	6-13-2022	1	Added	8-1026
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5365	7-11-2022	2	Added	24-0120
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5372	10- 3-2022	1		18-0310
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5379	12-27-2022	1		20-0401
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		4		20-0403.C.5.f
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5380	2-21-2023	1	Added	10-1301--10-1303
5381	2-21-2023	1	Rpld	25-0401--25-0410
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5382	1-20-2023	1		1-0305.A.1
5384	4-17-2023	1	Rpld	18-1901--18-1904, 18-1906--18-0917
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5387	5- 1-2023	1	Rpld	25-1504.3
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5388	5-15-2023	1		25-1509.2
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5390	5-30-2023	1		21.1-0102
5392	5-30-2023	1	Added	32-0113
5393	6-12-2023	1		1-0305.C.7.
5394	6-26-2023	1		11-0209
5395	7-10-2023	1		19-0203
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5397	7-24-2023	1		25-3801--25-3815
5398	7-24-2023	1		8-0311
5399	8- 7-2023	1		25-1506.J.1.
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5410	11-27-2023	1		1-0305
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